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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. MOORE of Utah).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
July 18, 2023.

I hereby appoint the Honorable BLAKE D. MOORE to act as Speaker pro tempore on this day.

KEVIN MCCARTHY,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 9, 2023, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

REMEMBERING JEROMY SULLIVAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Washington (Mr. KILMER) for 5 minutes.

Mr. KILMER. Mr. Speaker, I rise today to honor a man of profound courage and vision: Jeromy Sullivan, the late chairman of the Port Gamble S'Klallam Tribe.

From his early years, Jeromy was molded by his surroundings, nurturing a love of the land and the water and their gifts.

His early experiences digging for clams or catching crab and salmon imbued him with a deep connection to his culture and to his environment. Besides being an experienced leader, he was still a relatively young man when we lost him last month.

I loved to see Jeromy's pride and enthusiasm for the progress being made by his Tribe. Once, he gave me a tour of the Tribe's new health facility, and it mattered to him that Tribal members could get care in a quality environment, that they had the respect and the dignity that all Americans deserve.

He was proud that not only was the facility first class, but rather that the care that people would receive would be first class as well.

Jeromy was also a passionate advocate for Tribal treaty rights. Jeromy saw his role as Tribal chairman to be one of not only advocating for today's fishermen or geoduck harvesters, he was a champion for the rights of future generations of Port Gamble's S'Klallam Tribal members.

I can't tell you how many conversations I had over the last 10 years about discussions with the Navy in which Jeromy was unbending in his belief that he had a responsibility to ensure that his people could enjoy the rights promised to them in their treaty.

Last year, I visited a new housing development the Port Gamble S'Klallam Tribe was undertaking, and Jeromy beamed as he explained that these weren't just investments in shelters; they were investments in families. He said: Think of what this will mean to our Tribal members.

Jeromy often told me that he prayed for the leaders of his Tribe and for the leaders of our country, that he asked for strength and wisdom, and Jeromy showed those every day.

To those who loved him most, Jeromy was a loving family man, survived by his wife, Toni; their children, Samantha and Jacob; and his brothers, Chad and Corey.

In the musical ''Hamilton,'' they asked the question: What is a legacy? Answering: It is planting seeds in a garden you will never get to see.

Well, I am saddened that Jeromy won't get to see the fruit of some of his projects. They will nourish the Tribe's members for generations. Indeed, Jeromy's legacy will live on, reminding us to protect what we love and to stand tall for our beliefs.

Jeromy Sullivan's memory will continue to guide his people and his spirit will endure in the lands and the waters that he loved, the waters that he healed, and the community he served so faithfully.

Mr. Speaker, the last thing Jeromy texted me were the words: ''I miss you, my friend, and I hope we will connect soon.'' I miss him, too, and I will always treasure our friendship.

HONORING RICK TIFT

Mr. KILMER. Mr. Speaker, I rise today to celebrate Rick Tift, executive director of Puget Sound Naval Shipyard, who has dedicated his life to public service.

Rick is retiring after 45 years of service at Puget Sound Naval Shipyard, 19 of those as executive director, Puget Sound Naval Shipyard's top civilian management position.

The executive director oversees internal processes and administrative processes and is the overall coordinator outside of direct maintenance issues.

Rick has acted as a constant for 19 years when commanding officers came and went, always advocating for the workforce, and acting as a liaison to the community.

Rick has lived in Bremerton since 1962, a graduate of Central Kitsap High, Olympic College, the University of Washington, and the University of Puget Sound.

He serves as a member of the city of Bremerton's Planning Commission, he was a former board member of St. Michael Medical Center, he was a board member and past president of Leadership Kitsap, and sits on the

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Chancellor's advisory board at the University of Washington Tacoma.

There are not enough words to express my gratitude to Rick for everything he has done for our community and the tremendous help he has been to me during my time in this office.

Rick is a fair, considerate, compassionate, and kind person who really cares about the community he lives and serves in. Rick has been instrumental in working with the community to find pathways for employment at the shipyard. He has been a fierce advocate for the shipyard, making sure elected officials, educational institutions, and the greater community understand the opportunities for employment within its workforce.

With the Federal Government being the largest employer in my district, I appreciate his efforts as we are all invested in making sure we have the next generation of workers and future leaders at Puget Sound Naval Shipyard and IMF.

Those efforts really can't be understated. He has been a staunch advocate for infrastructure and needed improvements to the shipyard inside and outside of its gates, helping to bring elected officials at every level and Navy leadership together to find ways to make needed improvements.

That is only the tip of the iceberg as far as the positive impact Rick has made with his time.

You will never find a more dedicated, loyal, considerate man than Rick, and it has been an absolute pleasure to work with him.

Mr. Speaker, he will be dearly missed, and I wish him all the best in his next chapter as he moves off into retirement. We wish him well, and thank him for his friendship and partnership.

CONGRATULATING DR. LALIT VERMA ON HIS RETIREMENT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Arkansas (Mr. WESTERMAN) for 5 minutes.

Mr. WESTERMAN. Mr. Speaker, I rise today to congratulate Dr. Lalit Verma on his retirement from the University of Arkansas Biological and Agricultural Engineering Department.

As a proud alumnus of this department myself, it is my pleasure today to honor Dr. Verma for his distinguished career at the University of Arkansas and everywhere he has studied and taught.

He started in India and continued his academic career at Montana State University and the University of Nebraska. He spent time teaching in Bangkok, in South Dakota, and even made his way down to Louisiana where he spent time at LSU. Thankfully, he made it to Arkansas, where for 23 years, he has left his most significant mark on academia.

Dr. Verma has done an incredible job leading the department and has served in various other organizations, such as ASABE.

Mr. Speaker, I congratulate Dr. Verma for his distinguished career and wish Dr. Verma and his wife Aruna well in their future endeavors and as they spend more time with their two grandchildren.

FOOD ANIMAL VETERINARIAN SHORTAGE

Mr. WESTERMAN. Mr. Speaker, as a top-ranking State in livestock production, Arkansas is in need of food animal veterinarians like many other places around the country.

In 2022, 25 counties within my district applied for designated shortage area status. Of the 25 counties that applied, only 13 were awarded the status. Food animal veterinarians who practice in these areas are eligible to apply for the Veterinary Medicine Loan Repayment Program, or VMLRP.

Food animal veterinarians are on the decline, and this program is essential to encourage young Americans to consider practicing food animal veterinary.

With the 2018 Farm Bill set to expire in September of this year, I urge my colleagues on both sides of the aisle to consider the importance of the VMLRP Program in addressing the food animal veterinarian shortage that poses a concern to my constituents and many of my colleagues' constituents, and also it is critical to the food supply for our Nation.

CELEBRATING THE LIFE OF BILL REYNOLDS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Rhode Island (Mr. MAGAZINER) for 5 minutes.

Mr. MAGAZINER. Mr. Speaker, I rise today to celebrate the life of the great Providence Journal columnist, Bill Reynolds.

Ask any Rhode Islander and they will tell you that Bill Reynolds was an institution of Rhode Island sports and journalism whose column was read by thousands across the State.

It was a tradition, a must-read, and families across Rhode Island, including mine, started their Saturday by reading his column, ''For What It's Worth,'' which included his latest not only on sports, but also pop culture, politics, movies, and more.

He was a columnist at the Journal for almost 40 years, a New York Times best-selling author, and a Hall of Fame Brown University basketball player, who still played pickup games well into his 60s, and was known for his jump shot, which earned him the nickname ''Shooter.''

Bill was one of the best sportswriters in Rhode Island history, who mentored an entire generation of aspiring writers and athletes. There will never be another like him. May he rest in peace.

CELEBRATING RHODE ISLAND SPECIAL OLYMPIC ATHLETE, BRIAN JOHNSON

Mr. MAGAZINER. Mr. Speaker, I rise today to celebrate the achievements of Rhode Island's Special Olympic athlete, Brian Johnson of East Greenwich.

Brian made Rhode Island proud by bringing home the gold for bocce at the Special Olympics World Games in Berlin last month.

He and his teammate, David Young, defeated the team from Paraguay 10–3 to win the unified doubles gold. To top it off, Brian also won the silver medal in the singles division.

Brian has competed in the Special Olympics for 14 years, participating in track and field, basketball, bocce, bowling, cycling, flag football, and volleyball. He has been an advocate for inclusion and has shared the impact of his Special Olympics experiences with students at his school.

Mr. Speaker, I congratulate Brian for his incredible accomplishment. He has done himself and all of Rhode Island proud.

CELEBRATING JONATHAN STONE ON HIS RETIREMENT

Mr. Speaker, I rise today to celebrate Jonathan Stone, who recently retired as executive director of Save the Bay Rhode Island after 14 years of service.

Founded in 1970, Save the Bay is Rhode Island's leading organization for advocacy, education, and policy to safeguard the Narragansett Bay and its tributaries.

Jonathan led vital work to restore Rhode Island's coastlines and waterways, protect marine life, help our State adapt to climate change, and delivered major legislative victories for environmental conservation.

He championed the Cesspool Phaseout law of 2015 to remove sewage from public waterways and the creation of the Ocean State Climate Adaptation and Resilience fund to protect vulnerable infrastructure and coastal areas from sea level rise in extreme weather.

At the same time, Jonathan strengthened Save the Bay's environmental education programs, which have introduced hundreds of thousands of students to the bay, and launched construction of a new exploration center and aquarium, which will open this fall.

Rhode Islanders are indebted to Jonathan for his commitment to our State and the waterways that make it so special, but we must remember, as Jonathan Stone reminded us when he announced his retirement, that the saving of Narragansett Bay is not complete.

Mr. Speaker, I look forward to doing my part in Congress and using Jon Stone's leadership as an example.

RECOGNIZING NORTH CAROLINA'S SCHOOL OF SCIENCE AND MATH

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. MCHENRY) for 5 minutes.

Mr. MCHENRY. Mr. Speaker, as we continue to stress STEM education in our country, I would like to recognize the North Carolina School of Science and Math.

This new campus for the School of Science and Math is located in the city of Morganton in the Tenth District in western North Carolina.

Students recently finished their first academic year on this new campus. This is the second campus of the North Carolina School of Science and Math, the original having opened in Durham in 1980.

Thanks to the hard work of local officials, citizens, and industry leaders in our region, funding was secured for the western campus in Morganton, and the first residential class of some 300 students started last fall.

A special thanks to my friend, State Representative Hugh Blackwell, whose vision for the western campus made the project a reality and his great work in the legislature made it possible.

This public high school will fill our workforce with the next generation of innovators and entrepreneurs and will help these dedicated students reach their full potential. I salute the graduating seniors and send best wishes as you continue your educational journey in the years ahead.

AMERICAN LEGION WORLD SERIES

Mr. MCHENRY. Mr. Speaker, The American Legion World Series is being held on Monday in my district in the beautiful city of Shelby, North Carolina, which has been the permanent home of the tournament since 2011.

Beginning August 10, more than 100,000 fans will fill Shelby's Keeter Stadium over the 6 days of the tournament. They will cheer on eight teams from around the country as they vie to be crowned the 2023 American Legion World Series champions in the tournament which was first contested in 1926.

□ 1015

Many former American Legion players had successful careers in the big leagues, including all stars such as Johnny Bench, George Brett, Dusty Baker, and the pride of Caldwell County, Madison Bumgarner.

To local leaders in Cleveland County, American Legion Post 82, and the hundreds of volunteers who will work countless hours to welcome fans to Shelby, I extend my thanks, and a special thanks for all that The American Legion does for youth around this country.

BIDEN ADMINISTRATION'S FAILURE AT THE SOUTHERN BORDER

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Mrs. STEEL) for 5 minutes.

Mrs. STEEL. Mr. Speaker, I rise today to address the Biden administration's failure to secure our border and create an immigration system that works for the American people.

Let's be clear: The crisis at our southern border is still out of control. Since President Biden took office, more than 5.5 million illegal crossings have occurred at the southern border, yet he continues to pursue policies that make the situation worse.

As a proud immigrant to this country representing thousands of first-generation Americans, I support policies to protect our communities and uphold the rule of law.

House Republicans are taking action to secure our border and restore order to our immigration system. I welcome the President and Congressional Democrats to join us in the effort. The American people deserve nothing less.

RECOGNIZING THOMAS HEILMAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Virginia (Mr. GOOD) for 5 minutes.

Mr. GOOD of Virginia. Mr. Speaker, I rise today to recognize the extraordinary athleticism and achievement of Albemarle County swimmer Thomas Heilman.

On June 26, the 16-year-old Heilman claimed his spot in the world swimming championships after earning the silver medal in both the men's 100-meter butterfly and the 200-meter butterfly races.

Heilman broke a longstanding record for his age group when he finished the 200-meter butterfly just 22 milliseconds behind the winner of the race, a swimmer 5 years older than him.

By finishing the race in 1 minute, 54 seconds, and 54 milliseconds, Thomas Heilman broke the 15–16 National Age Group 200-meter butterfly record which Olympic gold medalist Michael Phelps had held for 22 years.

Heilman's coach, Gary Taylor, of Cavalier Aquatics in Charlottesville, said Thomas is very coachable, has a tremendous work ethic, strives to be his best self, and is the consummate teammate.

Thomas has certainly made Albemarle County and the rest of Virginia's Fifth District proud of his accomplishments. I am honored to represent this extraordinary young man in Congress, and I wish him success in his already outstanding athletics career.

DEMOCRATS MADE THE NDAA A CULTURAL ISSUE

Mr. GOOD of Virginia. Mr. Speaker, I thank the Republican leadership and the House majority for passing what was an outstanding NDAA, our National Defense Authorization Act, last week, that focuses on the priorities of force readiness, effectiveness in lethality, and ensuring that America has the strongest military machine on the planet. It focuses on Republican priorities that the American people voted us, the majority, to implement.

The strong NDAA is reversing the policies of the previous majority and the Biden administration that were so harmful to our military. I am going to remind everyone that it was the Democrats, the former majority, that made the NDAA, the defense bill, a cultural issue, an ideological issue, with their policies. It was the Democrats who put abortion funding into the military bill. It was Democrats wanting to pay for transgender surgery and the Democrats who focused on DEI and CRT ideology in our military. It was the Democrats who said the purpose of the military was to fight the climate war and put a climate focus on our military funding. It was the Democrats who were discharging members of the military for not getting a vaccine they didn't want and didn't need.

This new NDAA that was passed last week with the Republican majority and sent on to the Senate simply reverses the harmful policies that have been hurting recruitment and reducing the effectiveness of our military. This now goes on to the Senate, and I hope the Senate will pass this Republican House bill to make our military stronger and make our Nation safer.

CURRENT U.S. MUNITIONS SHORTAGE

The SPEAKER pro tempore (Mrs. STEEL). The Chair recognizes the gentleman from California (Mr. LAMALFA) for 5 minutes.

Mr. LAMALFA. Madam Speaker, until recently, we weren't supposed to discuss that indeed the United States does have an ammunition shortage for our military here and around the world. But it is so widely reported in the press, I guess we really shouldn't ignore it anymore and pretend it isn't a problem.

Recently, with the controversy around cluster bombs, the President has defended his decision to send them to Ukraine by announcing the U.S. Army ammunition stockpiles are depleted. In other words, basically, this is all we have to give them at this point.

The primary reasons are lack of funds, little focus on production, and truly a lack of will to truly ramp up and build our ammunition stocks to what they should be.

The U.S. military's goal decades ago was that we could fight a two-front war. The United States used to have that might and capability. We saw that in World War II with many other allies, of course, around the world that we fought side by side with.

As we know, modern, western military hardware is indeed incredibly complex, costly, and difficult to produce at scale. It requires a large infrastructure, a well-protected supply chain, and a large workforce of skilled labor. These are things that we are capable of as a country. Look at all the gadgetry we can build in order to satisfy a market of people desiring entertainment.

Artillery round expenditures we point to in Ukraine really paint a dark picture. Ukrainians burn through a year's worth of U.S. artillery round production in 1 month. In 1 month, they can burn through a year's worth of our production. That is just Ukraine. What does that make our own stocks look like?

We must ramp up production tremendously. If we are going to continue in

some fashion, or not, the controversial backing of Ukraine, we have to be able to supply them in order to have them be able to do a credible job on the field. If we are going to support that policy, we have to build our own stocks.

What does this mean for us? We are actually foraging shells and ammunition from stocks around the world, even from our allies, in order to keep the chain going into Ukraine. That is why cluster bombs, right?

The main concern for American defense really should be what does it mean if China's aggression gets much worse? What if they make a move on Taiwan that we are obligated and have promised to back up on? What about other issues that may happen in NATO? Are we ready?

We are not near ready for it. We need to produce the bombs and the bullets and the other hardware so that we have that as a deterrent and not have the idea that we are so weak that they know they can make a move on us or our allies. It is really that simple. It is really common sense.

So ramping up these domestic munitions production could run afoul of a lot of ideas the Democrats hold: climate, environment, or just a philosophy that if we don't produce the ammunition, we don't produce these arms, that we just won't have war.

We are going to have to make some very clear choices here with the Democratic policies. Is it about climate? Is it about environment, by producing these things and having them ready and available to deter war? Do they want to weaken us so much that China and others can make any kind of move they want and we just have to sit and watch?

These munitions are procured on a yearly basis. That is why when we have an orderly appropriation process in committees, instead of a last-minute continuing resolution, throwing last year's spending in the hopper, put some duct tape and baling wire on it and kick it out for another year or whatever the period is, you can't plan for that. You certainly can't plan long-term to up your military needs and fill them when we do last-minute things like that. We have to have a better process of procuring and planning for it.

What we saw from the end of the Cold War, we scaled down military. Okay, maybe there is a dividend there. We lost one-third of it in armament production after the Soviet Union collapsed. Then in the global war on terror, procurements and production was indeed focused on smaller, low-intensity conflicts, not a wide war.

Training skilled labor takes time and building the infrastructure to do so will take time, but what we have in place we should be running 24/7 and have the will to do it.

So what does that mean for our national security? I just said it. What are they going to do? Russia is going to continue to be able to bully Ukraine if they see us as weak.

China and Iran can do what they want, and who knows what we will get out of North Korea.

We must be ready. We must get the supply chain going again and bolster our military so those who serve in it have everything they need in order to do their job and be safe from unnecessary risk.

LOCAL IMPACT OF THE NATIONAL BORDER CRISIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. ROSE) for 5 minutes.

Mr. ROSE. Madam Speaker, about 20 miles outside my district, in Franklin, Tennessee, a 63-year-old is facing some of the worst charges on the books, including assault and rape. It breaks my heart to say these crimes involved children as young as 9 years old. Investigators have identified several victims, but they are asking more to come forward as some of these crimes go back more than a decade. Police say the accused predator targeted playgrounds and lured young boys under the guise that he was a soccer coach recruiting for his team.

Days after this news broke, families learned the man accused of violating their community, their children, had lived there for 20 years but had no business being there. The accused man is an illegal immigrant.

I signed a letter, joined by Members of the Tennessee delegation, led by Senator MARSHA BLACKBURN, asking the Department of Homeland Security Secretary Mayorkas several questions, including why this man was able to go under the radar for so long.

This is a very grim example of the very real consequences open border policies are having on State after State, county after county, community after community.

Nearly 20,000 pounds of fentanyl have been seized at the border since this fiscal year started last October. That is already more than last fiscal year's total, and we still have more than 2 months left in this one. Furthermore, since October 1, Customs and Border Protection officials have caught more than 125 people trying to cross the southern border who are on the terrorist watch list.

No one in this body should glaze over a number like that. Let me repeat: 125 possible terrorists have tried to enter our country since last October. That is just the number we know about. That is more than fiscal years 2017, 2018, 2019, 2020, and 2021 combined. How many, we might ask, have managed to cross that we don't know about?

We know, for example, that 1.5 million illegal immigrants have successfully evaded law enforcement since this administration took over the border. How many of that 1.5 million were, in fact, terrorists? How many were smuggling drugs that will kill our young people? How many are sexual offenders who will abuse our children?

Yet, in May, the Biden administration announced it would be releasing a flood of immigrants into the United States with no way of keeping track of them. Instead of getting a grip on this humanitarian and national security crisis, this President and his administration have been busy fighting title 42 and the Trump-era remain in Mexico policy. To be fair, the President did make his first-ever trip to the border, in his 50-year political career, in January.

As we continue to see records being broken, crime soaring, fentanyl popping up in all corners of our country and taking the lives of an entire generation of young people, overdose deaths rising, Madam Speaker, I rise today to once again implore President Biden and Secretary Mayorkas to do their constitutional duty and secure our southern border.

□ 1030

HONORING WORLD WAR II VETERAN ANTHONY R. VON KLOCK

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. BURCHETT) for 5 minutes.

Mr. BURCHETT. Madam Speaker, I rise to honor World War II veteran Anthony R. von Klock.

Anthony is 95 years old and was born in Waltham, Massachusetts. Anthony was drafted into the Army Air Corps, where he served as an airplane and engine mechanic. He completed his basic training at Lackland Air Force Base in Texas before he was stationed at Great Falls Air Force Base in Montana and Hickam Air Force Base in Hawaii, and in Japan.

He received an honorable discharge in 1949 and earned the World War II Victory Medal and the Japanese Occupation Medal. During the Korean war, Anthony was called back to service, where he was stationed at the Keesler Air Force Base in Mississippi.

After serving in the Air Force, Anthony worked for Mackey and Eastern Airlines while living in Florida with his wife, Leah, and two daughters. He received the Charles Taylor Master Mechanic Award in 1996 for his accomplishments as a senior mechanic.

Madam Speaker, it is my honor to recognize Anthony von Klock as the Tennessee Second District's July 2023 Veteran of the Month. I thank Anthony for his service to our great Nation.

DO NOT HOUSE ILLEGAL IMMIGRANTS IN PUBLIC SCHOOLS

Mr. BURCHETT. Madam Speaker, I rise today in opposition to the latest scheme to house illegal immigrants in public schools.

The mayor of New York City announced plans to house illegal immigrants in gyms on up to 30 public school campuses, which is a move that poses a serious risk for the students attending those schools.

Our children's safety should come before anything else, and we need to stop

this kind of nonsensical policy in its tracks before it is too late.

This is just another addition to the long list of Democrat schemes that waste taxpayer dollars and fail to prioritize the safety and well-being of American citizens. It dries up resources that should be used to improve our students' education, and it also puts those children at risk.

Parents should not have to send their children to schools knowing that they are sharing a campus with illegal immigrants whose backgrounds we know nothing about.

We need to protect our schools' true purpose: educating our children and keeping them safe, not providing shelter for illegal immigrants.

RECOGNIZING LEO AND JUDY WHITESIDE

Mr. BURCHETT. Madam Speaker, I rise to honor Leo and Judy Whiteside for more than 50 years of dedicated service to the people of Knoxville and their continued love for each other.

These two have spent a lot of their free time doing great things for those in need in and around our community. They have delivered Mobile Meals to homebound residents, given communion to church members who were unable to attend the church service, and even advocated for a citywide class reunion at the Austin-East High School. Go Roadrunners.

When people volunteer in their communities, it demonstrates what is really in their hearts. It shows they are willing to sacrifice their free time, effort, and money to help those in need and expect nothing in return.

Madam Speaker, I am so proud to represent people like Leo and Judy, who love the people around them. They love their family and friends, but they also love strangers they have never met before and take true compassion on them.

If you want to know how to care for your community, I think you should look to Leo and Judy for an example. Leo and Judy have been doing it for over 50 years, and so many lives have been made better because of them.

Madam Speaker, I thank Leo and Judy. Their service and kind hearts have made the Knoxville community a much brighter place. I am proud to represent them.

EXCESSIVE AVIATION-RELATED NOISE

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. SANTOS) for 5 minutes.

Mr. SANTOS. Madam Speaker, I rise today to talk about the FAA Reauthorization Act.

Since before I was elected to Congress, my district has been afflicted by excessive aviation-related noise. I campaigned on addressing this issue, and yesterday, I gave testimony on my amendments in the Rules Committee. I am following through on my commitment to offer relief to my constituents.

If enacted, the changes I proposed would lower the permissible decibel levels from 65 to 55, reevaluate the technology known as NextGen, and put up for questioning its impact on communities all around the United States that suffer with the issue of constant flight paths.

Since taking office, I have visited with the people of New York's Third District who have begged me to take action on this matter, often with tears in their eyes.

Most people will suppose this is an exaggeration, but most people have no idea what it is like to live right next to one of the largest airport hubs in the country.

I am here today to make sure my constituents and many others around the country know that they are not alone and that their plight is not in vain. I urge this body to take these amendments into consideration.

MILITARY RECRUITMENT IS DOWN

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. JACKSON) for 5 minutes.

Mr. JACKSON of North Carolina. Madam Speaker, recruitment is down in the military. Fewer young people are joining, in part because unemployment is low and they have higher paying options elsewhere.

I would love to show young people that the military is still a good option for them, as it was for me. In order to do that, I need some help from my friends across the aisle. I need them to put the dog whistle down.

Each year's class of new recruits to our military is now the most diverse in the history of our Nation. Every time they blow the dog whistle against diversity, it is not just their political base that hears it, it is young people who are trying to decide whether to enlist in our All-Volunteer Force.

Last week's debate over the defense bill featured a series of very clear dog whistles. There was one for gay people, one for transgender people, one for Black people, and one for women. Don't remember? They ran amendments on Pride flags, diversity programs, books in libraries, and abortion. Those were all dog whistles for their base. Our generals asked for none of that.

One of our colleagues even went so far as to say that the military's strength ''is not its diversity.'' Someone in this building explicitly defended white nationalism in our military.

When it comes to recruitment, I assure you, that is not helping.

Caring about the military means caring about the people who serve in it, not using them as a political punching bag. If you want to help solve the recruitment problem, the first thing you need to do is stop attacking the people we need to enlist.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 36 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. FLOOD) at noon.

PRAYER

The Chaplain, the Reverend Margaret Grun Kibben, offered the following prayer:

Eternal God, a wise man once said that life is short and we never have too much time for gladdening the hearts of those who are traveling on this journey with us.

May we heed his words, but more importantly, may we yield to Your own counsel to number our days that we may gain a heart of wisdom.

Open our hearts to receive Your wise instruction and fill us with compassion for those who tarry with us in this place. In the days that You have given us, may we have the discernment and the desire to value the opportunities You set before us: to make someone else happy, to put someone else at ease, to share the burdens of those around us that keep them from enjoying the life You offer.

Even while the grass withers and the flower fades, may we prove swift to love and make haste to be kind.

In Your gracious name, we pray.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House the approval thereof.

Pursuant to clause 1 of rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from California (Mr. ROBERT GARCIA) come forward and lead the House in the Pledge of Allegiance.

Mr. ROBERT GARCIA of California led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

TESTIMONY OF JOHN DURHAM

(Mr. ROSE asked and was given permission to address the House for 1

minute and to revise and extend his remarks.)

Mr. ROSE. Mr. Speaker, the American people heard a stunning testimony from Special Counsel John Durham last week during a House Judiciary Committee hearing on his report examining the origins of the FBI's Crossfire Hurricane investigation against then-Presidential candidate Donald Trump.

During the committee hearing, Special Counsel Durham testified that the FBI did not have an adequate predicate to launch the investigation, the FBI failed to examine exculpatory evidence and interview key witnesses, and the FBI abused its Foreign Intelligence Surveillance Act authorities. Special Counsel Durham also said that he was not aware of any evidence of collusion between President Trump's 2016 campaign and Russia.

As an attorney, I am alarmed by these revelations. The good folks of middle Tennessee deserve better from our country's premier law enforcement agency. House Republicans will do everything in our power to ensure our law enforcement institutions are carrying out the law equally so that we can end the two-tiered justice system in this country.

CONGRATULATING DR. DONNA CHRISTENSEN

(Ms. PLASKETT asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. PLASKETT. Mr. Speaker, today, I rise to congratulate my predecessor, the Honorable Dr. Donna Christensen, on the unanimous approval of the Virgin Islands legislature to rename the Charles Harwood Memorial Complex in her honor.

Dr. Christensen has spent her life as a public servant and a leader in each of her roles, whether it is medical, educational, or political. For decades, she has built a legacy as a pioneer. She was the first female physician to serve as a Member of Congress, the first female to represent an offshore territory in Congress, and the first female to represent the Virgin Islands in this body.

Acutely aware of the unique challenges faced by Virgin Islanders, Dr. Christensen has remained a staunch advocate for health equity for minorities in the territory and underserved communities, such as her influential work for minority health in the Affordable Care Act. In my work, I continue to build on her legacy through the tireless battle to attain equitable treatment for the people of the Virgin Islands.

I thank Dr. Christensen.

HONORING JODY SINGER

(Mr. STRONG asked and was given permission to address the House for 1 minute.)

Mr. STRONG. Mr. Speaker, I rise today in honor of Jody Singer, director of Marshall Space Flight Center in Huntsville, Alabama, on her upcoming retirement following 38 years of dedicated leadership to NASA.

Director Singer's leadership, expertise, and vision were vital to the success of the International Space Station, the James Webb Telescope, the Imaging X-ray Polarimetry Explorer mission, the DART mission, the Space Launch System development, and the Artemis I mission. It is also with great pride that I commend her in leading over 110 space shuttle launches.

For over three decades, she has advocated for human spaceflight, science and technology development, and deep space exploration.

As an industrial engineer, she possesses the technical skills necessary to excel in advanced exploration projects, science flight mission programs, and technology demonstration missions. Through two NASA fellowships, she also gained expertise in business operations, project management, and executive leadership.

I congratulate Director Singer for her service to our community and dedication to the future of space exploration. I have no doubt that her successor will continue to advocate for Marshall. Together, we will continue to uphold the Rocket City's legacy of human systems development, scientific discovery, and technological advancements.

ENVIRONMENTAL IMPACT OF THE SHIPPING INDUSTRY

(Mr. ROBERT GARCIA of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROBERT GARCIA of California. Mr. Speaker, as mayor of Long Beach, California, for the last 8 years, I know how vital our ports are to both our local and national economies. There are also enormous environmental concerns that disproportionately impact working-class communities that live around our ports.

The global shipping industry emits 1 billion tons of greenhouse gas emissions every single year, and pollution from port ships has led to some of the highest cancer and asthma rates in the country. In fact, ships pollute more than cargo trucks coming in and out of our ports.

While I am proud of the work that California has done to reduce emissions at our ports, it is time for additional Federal support and intervention.

That is why I proudly introduced the Clean Shipping Act. This is transformational climate legislation that for the first time gives the EPA the authority to regulate carbon emissions from our shipping industry and accelerates our transition to zero emission fuels by 2040.

The legislation is coauthored by Senator PADILLA in the Senate and is a path forward to cleaner air. Let's get this climate legislation done.

THE BIDEN CRIME FAMILY

(Mr. LANGWORTHY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGWORTHY. Mr. Speaker, tomorrow, the House Oversight Committee will hear testimony from two IRS whistleblowers who claim that the President and his son received special treatment during criminal investigations.

I remind my colleagues that it is our constitutional duty in this body to hold the President of the United States accountable.

These recent allegations of influence peddling and foreign bribery have cast a dark shadow over the integrity of this administration.

The American people must ask themselves: Can we trust a President to represent our best interests if he is compromised by foreign businesses or governments?

We must bring the truth to light, not out of personal vendetta or partisan motivation, but out of the genuine commitment to preserving our democratic institutions.

The Framers of our Constitution designed our government with a system of checks and balances to prevent abuses of power. We cannot shy away from this responsibility when it matters the most.

I implore every one of my colleagues to set aside personal interests and come together to seek the truth and to honor our constitutional duty.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

HONORING KENT SALAZAR AND CELEBRATING LATINO CONSERVATION WEEK

(Mr. VASQUEZ asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. VASQUEZ. Mr. Speaker, this week, I join dozens of communities across the Nation that are celebrating the 10th annual Latino Conservation Week. Today, I want to take the time to honor a remarkable leader and Hispanic conservation pioneer of New Mexico, Mr. Kent Salazar.

Kent has made it his life's mission to ensure those places that are so special to us in New Mexico and across the West are conserved and accessible to all.

The Honorable Kent Salazar made an impact as the director of environmental health for the city of Albuquerque, serving on the New Mexico Climate Change Task Force, as president of the New Mexico Wildlife Federation, as chair of the National Wildlife Federation, and was appointed by President Barack Obama to chair the Valles Caldera National Trust.

Kent also founded Hispanics Enjoying Camping, Hunting, and the Outdoors, or HECHO, a testament to his

leadership in creating diversity in the outdoors.

More importantly, Kent is a friend to all New Mexicans, a fearless champion of diversity, an accomplished hunter and outdoorsman, and one of my very good friends, someone who opened doors for me and so many others.

I thank Kent for what he has done for our State and for young conservationists like myself. His work will have a lasting impact for generations. May we carry his spirit forward with the same passion and commitment that has defined his extraordinary life.

''Muchas gracias,'' ''Thank you very much.''

BIDEN FAMILY ALLEGED CRIMINAL ACTIVITIES

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, I express my grave concerns regarding the alleged involvement of members of the Biden family in criminal activities. The evidence keeps popping up again and again and again that there are a lot of problems with the interactions with foreign concerns.

Our duty as Representatives is to demand transparency and accountability from our leaders, whether it is within this House, in the administration, in the bureaucracy, or what have you.

That said, Congress and the American people cannot ignore the mounting evidence and questionable business dealings that have plagued Hunter Biden and the rest of the Biden family for seemingly years now.

We know Hunter Biden served as a board member for a firm that has been accused of bribery. We know of his work with an investment fund that is controlled by the Bank of China, getting paid huge salaries for something he has no expertise and really spending no time on.

All this comes with other pressing allegations of questionable business ethics, legal exposure, and concerns about U.S. national security because of Hunter Biden's relationships in China.

What do we hear lately? They are going to go after President Trump again for January 6 stuff. What is the deal?

END HUNGER NOW

(Mr. MCGOVERN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, Republicans have their priorities all screwed up. It is a national disgrace how many hungry kids there are in America, yet Republicans are passing bills out of the Education Committee not about hunger in our schools but about demonizing immigrants.

Republican Governors lie to migrants and ship them to States like Massachusetts with no help, no notification, no nothing. Now, they have the gall to threaten public school funding for communities that respond to their cruelty by caring for these poor migrants?

Under Republican rule, the House Education Committee hasn't had a single markup or hearing on raising teacher pay. No hearings or markups on school shootings or reducing hunger in schools. Yet, we are bringing to the floor an immigration bill from the Education Committee while over 9 million kids in this country—that is 1 in 8 kids, for God's sake—go hungry.

I am begging Republicans: Stop pushing divisive culture war messaging bills, and let's focus on making sure every kid has a healthy breakfast and lunch at school every day. Food ought to be a fundamental human right for every single person in this country.

□ 1215

BORDER CRISIS IN SCHOOLS

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, the irresponsible Biden open border crisis has turned every State into a border State, and every house is at risk of intrusion.

The failure to lawfully secure the border by Biden and liberal Democrats encourages surges in illegal alien crossings, exposing families to terrorists, human trafficking, and dangerous drugs.

The incredibly successful movie ''Sound of Freedom'' is exposing human trafficking of children in America.

Since Biden took office, over 5.2 million illegal aliens have crossed the southern border, and 1.5 million aliens have evaded apprehension.

As an overflow factor, illegal aliens are now being housed in schools. Schools should be focused on helping students recover from devastating COVID-era learning loss.

House Republicans are committed to securing the border and to providing for rule of law. One effort is the Schools Not Shelters Act, which prohibits the use of schools to provide shelter for illegal aliens.

In conclusion, God bless our troops, who successfully protected America for 20 years, as the global war on terrorism continues moving from the Afghanistan safe haven to America with open Biden borders admitting terrorists.

PUTTING THE SAFETY AND SUCCESS OF CHILDREN FIRST

(Mr. COLLINS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COLLINS. Mr. Speaker, school is out, but the schoolhouse is full. I rise today to urge my colleagues to support H.R. 3941, the Schools Not Shelters Act.

We have seen Democrat-run States, such as New York, that announce plans to house illegal immigrants in public schools and college dorms. Our educational institutions should be focused on helping students recover from the COVID lockdowns, which contributed to significant learning loss, not housing immigrants.

H.R. 3941 prohibits public schools that receive Federal funds from sheltering illegal aliens, which compromises schools' safety.

Let's pass this bill and put the safety and success of our children first.

FEDERAL ASSISTANCE FOR SCHOOLS AND STUDENTS IN POVERTY

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to highlight a growing injustice against millions of students throughout the country.

Title I of the Elementary and Secondary Education Act is the largest source of Federal assistance for schools and students in poverty. These targeted formula grants are intended to combat the effects of poverty upon student achievement.

Unfortunately, the current formula has the perverse effect of diverting funds from the higher poverty school districts to more populous school districts that, in many instances, do not have high levels of poverty. This runs counter to congressional intent and negates the fact that poverty is poverty regardless of where it occurs.

To right this wrong, I have introduced H.R. 4565, the All Children are Equal Act, to ensure that all title I funds are distributed based on actual need and levels of poverty in a given school district.

No kid should be discriminated against based on their ZIP Code, and it is time for Congress to act and ensure no student gets left behind. I encourage all of my colleagues to support this commonsense measure to ensure all children are truly treated equally.

Mr. Speaker, I take personal privilege as chair of the Congressional Scouting Caucus to wish all those Scouts attending the 2023 National Jamboree a great experience.

FIGHT FOR AMERICA'S CHILDREN

(Mrs. MILLER-MEEKS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. MILLER-MEEKS. Mr. Speaker, last month, the House passed my resolution condemning the use of school facilities to shelter illegal immigrants. This week, the House will take up H.R. 3941, the Schools Not Shelters Act, to officially strip Federal funds from

those who allow our schools to be used as hotels instead of schools.

New York City Mayor Eric Adams claims there are over 51,800 illegal immigrants in the city's care who need housing. The fact that so many illegal aliens have made it all the way to New York is a direct reflection of the state of our border crisis, and municipalities should not be tasked with fixing this problem.

Since the Biden administration refuses to address the border crisis, we must take action in Congress and fight for America's children. After all, how can we feed America's children in cafeterias of schools if they are housing illegal immigrants?

Mr. Speaker, I applaud Representative MOLINARO for bringing this important piece of legislation to the floor this week, and I look forward to voting for its passage.

PROVIDING FOR CONSIDERATION OF H.R. 3935, SECURING GROWTH AND ROBUST LEADERSHIP IN AMERICAN AVIATION ACT, AND PROVIDING FOR CONSIDERATION OF H.R. 3941, SCHOOLS NOT SHELTERS ACT

Mrs. HOUCHIN. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 597 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 597

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3935) to amend title 49, United States Code, to reauthorize and improve the Federal Aviation Administration and other civil aviation programs, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and amendments specified in this section and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Transportation and Infrastructure or their respective designees. After general debate the bill shall be considered for amendment under the five-minute rule. In lieu of the amendment in the nature of a substitute recommended by the Committee on Transportation and Infrastructure now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 118-11 shall be considered as adopted in the House and in the Committee of the Whole. The bill, as amended, shall be considered as the original bill for the purpose of further amendment under the five-minute rule and shall be considered as read. All points of order against provisions in the bill, as amended, are waived.

SEC. 2. (a) No further amendment to the bill, as amended, shall be in order except those printed in part A of the report of the Committee on Rules accompanying this resolution and amendments en bloc described in section 3 of this resolution.

(b) Each further amendment printed in part A of the report of the Committee on Rules shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

(c) All points of order against the further amendments printed in part A of the report of the Committee on Rules or amendments en bloc described in section 3 of this resolution are waived.

SEC. 3. It shall be in order at any time for the chair of the Committee on Transportation and Infrastructure or his designee to offer amendments en bloc consisting of amendments printed in part A of the report of the Committee on Rules accompanying this resolution not earlier disposed of. Amendments en bloc offered pursuant to this section shall be considered as read, shall be debatable for 30 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Transportation and Infrastructure or their respective designees, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

SEC. 4. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill, as amended, to the House with such further amendments as may have been adopted. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto to final passage without intervening motion except one motion to recommit.

SEC. 5. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 3941) to prohibit the use of the facilities of a public elementary school, a public secondary school, or an institution of higher education to provide shelter for aliens who have not been admitted into the United States, and for other purposes. All points of order against consideration of the bill are waived. The amendment in the nature of a substitute recommended by the Committee on Education and the Workforce now printed in the bill shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce or their respective designees; (2) the further amendment printed in part B of the report of the Committee on Rules accompanying this resolution, if offered by the Member designated in the report, which shall be in order without intervention of any point of order, shall be considered as read, shall be separately debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to a demand for division of the question; and (3) one motion to recommit.

The SPEAKER pro tempore. The gentlewoman from Indiana is recognized for 1 hour.

Mrs. HOUCHIN. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from Pennsylvania (Ms. SCANLON), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mrs. HOUCHIN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Indiana?

There was no objection.

Mrs. HOUCHIN. Mr. Speaker, last night, the Rules Committee met and produced a rule, House Resolution 597, providing for consideration of two measures, H.R. 3935 and H.R. 3941.

The rule provides for H.R. 3935, the Securing Growth and Robust Leadership in American Aviation Act, to be considered under a structured rule with 104 amendments made in order. It provides 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Transportation and Infrastructure, or their designees, and provides for one motion to recommit.

The rule also provides for consideration of H.R. 3941, the Schools Not Shelters Act, under a structured rule with 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce, or their designees.

Mr. Speaker, I rise in support of this rule and in support of the underlying pieces of legislation.

H.R. 3935, the Securing Growth and Robust Leadership in American Aviation Act, was subject to a thorough committee process, one that saw a 2-day markup and eventually passed out of committee in an overwhelming fashion. This is a work product the whole House can be proud of.

Chairman GRAVES and his team, working with Ranking Member LARSEN and his team, have produced a comprehensive and timely bill. I am sure I am joined by all of my colleagues in thanking them for their hard work.

As Chairman COLE mentioned in his opening remarks at the Rules Committee hearing yesterday, since the birth of flight, the United States has been a world leader in aviation safety and innovation. Mr. Speaker, I firmly believe this bill follows in and adds to that tradition.

Our aviation industry needs certainty, and it needs opportunities to innovate. At the same time, we need to ensure that there are proper guardrails for safety. I believe the Transportation and Infrastructure Committee delivered on these goals.

As a testament to meeting the mark, the Committee on Transportation and Infrastructure has provided a lengthy list of groups in the aviation industry that are supportive of this bill.

Aviation plays a crucial role in the American economy. This holds true in each and every congressional district represented by this body, whether that be large international airports or smaller regional airports in districts like mine.

In preparing for the bill's passage, I have spoken to local aviation officials

in southern Indiana to gather input. One of my constituents even referred to the underlying bill as ''one of the best'' FAA reauthorization bills they have seen.

Comments like this give me great confidence in the policies we are advancing and the importance of this bill.

Mr. Speaker, the United States must remain the leader in aviation safety. We must preserve the United States' position as a world leader in providing an efficient, innovative, and safe aviation transportation system.

Simply put, we must remain at the forefront of global aviation, and this FAA reauthorization is a strong illustration of our leadership.

Mr. Speaker, I will move on to H.R. 3941, the Schools Not Shelters Act.

I am proud to cosponsor H.R. 3941. As a member of the Education and the Workforce Committee, we were presented with staggering statistics that provide further evidence of Biden's border crisis.

□ 1230

We learned that over 2,500 migrants are pouring into New York City weekly with over 87,000 migrants arriving since last spring. It is obvious that action must be taken.

These statistics from our larger cities preview what could happen across the country if action is not taken. We know some Democrats are willing, even eager, to ignore Federal immigration law, and that is why I am concerned with proposals to house illegal migrants in our schools and what that means for our students and school safety all across the country.

While every child should have access to all the resources they need to be successful in their education, K–12 facilities should be used for educational purposes, not as housing units for illegal immigrants. Colleges and university campuses should not be distracted from meeting the educational needs of students because the Biden administration has failed to secure the southern border.

I am sympathetic to the issues created by this administration leading to the influx of migrants into the interior of the United States, but I vehemently disagree that these problems should be borne by our schools and their students. That is why this legislation is necessary and why I am, again, proud to be a cosponsor.

Mr. Speaker, I reserve the balance of my time.

Ms. SCANLON. Mr. Speaker, I thank the gentlewoman from Indiana for yielding me the customary 30 minutes, and I yield myself such time as I may consume.

Mr. Speaker, with the two bills under consideration in today's rule, we have a striking example of the best and worst that this Chamber can produce.

The first bill reauthorizes the Federal Aviation Administration for another 5 years. That bill is the product of bipartisan negotiations between the members of the Transportation and Infrastructure Committee. It was debated and amended in committee with the full participation of all members, Republicans and Democrats, and it passed out of that committee with unanimous support—unanimous support.

So this FAA bill is an example of how the legislative process can and should work when Members of Congress seek results and are willing to work together to address the interests of the American people.

The other bill in today's rule could not be more different. It is an unserious, hyper-partisan proposal from rightwing extremists designed to sow division and fear by pushing false narratives about immigrants and what is happening in our public schools.

In a truly bizarre twist for the party of small government, this bill would have the Federal Government dictating to our local governments and schools what they should do with their buildings.

All of this is done under the guise of solving a fake crisis manufactured by Republicans, both by sending migrants to cities run by Democrats in a failed attempt to score political points and, more importantly, by refusing to come to the table and genuinely address the critical need for substantive reforms to our immigration system.

If everyone would follow the lead of our colleagues on the Transportation and Infrastructure Committee, and if our rightwing colleagues could drop the heated rhetoric and partisan nonsense, there are many solutions that Republicans and Democrats could work on together to serve the American people, and we would welcome that opportunity.

I will return to this point, Mr. Speaker, but first let's talk about the two bills.

H.R. 3935, the Securing Growth and Robust Leadership in American Aviation Act, will reauthorize the FAA for 5 years and make a variety of much-needed improvements to the laws governing aviation in the United States.

I am encouraged by many of the policy wins that Democrats achieved in the bill, including policies to increase funding for airport infrastructure, increase the scope of projects eligible for funding, hire more air traffic controllers, and grow the talent pipeline for hiring and training the next generation of pilots, mechanics, and aviation manufacturing workers.

This bill also takes some much-needed steps to improve the passenger experience. The bill requires airlines to reimburse passengers for hotel and meal costs when their flight is canceled or significantly delayed.

It requires airlines to allow families to sit together, and it requires airlines to make accommodations for passengers traveling with wheelchairs or other assistive devices, and to compensate those travelers if their property is damaged.

While this bill is good, it is far from perfect. I recognize that when you negotiate, Mr. Speaker, you don't always get what you want. However, Mr. Speaker, when you negotiate with this House Republican majority, it is not only that you don't get what you want, it is also that you get less than what is needed to actually fix the problem at hand.

Mr. Speaker, anyone who has taken a flight knows the sorry state of our Nation's airports. While our country was once First in Flight, our airports are now collectively second and third rate, and that is a policy choice by Congress.

Over the past 30 years, we have underfunded our airports, forcing them to get by on inadequate budgets and limited revenue streams. The result is crystal clear to anyone who flies: old, crowded airports, large backlogs in runway maintenance, and a passenger experience that is often unpleasant from the moment you try to check in, Mr. Speaker, until you arrive at your destination. We did hear a fair amount of commentary on that from our colleagues in the Rules Committee last night.

The passenger experience at many U.S. airports is eclipsed by virtually every other airport in Europe and Asia, and there is no good excuse for that.

Beyond the benefits of improving the flying experience for American travelers, having first-class airports should be a point of national pride. We are not putting our best foot forward when foreign tourists visit the United States, the richest country on Earth, and the first thing they experience is a crumbling, unattractive, and inefficient airport.

The Infrastructure Investment and Jobs Act made a massive investment in our Nation's airports, and dozens of projects have broken ground as a result. However, the IIJA was a onetime investment and gives us about 5 years of boosted airport funding. We need to build on the success of that bill, not rest on our laurels and pretend that this short-term fix was a long-term solution to decades of underinvestment.

In addition, I would have liked to have seen stronger protections for workers and consumers. I strongly oppose the provision in the bill to raise the pilot retirement age to 67, and I would have liked to have seen reforms to organize and form a union and to hold the airlines accountable for junk fees, delays, and cancellations.

However, Mr. Speaker, again, I recognize that any bill of this sort is a compromise, and in a compromise you have to work with others who don't share your beliefs, and you can't always get your own way.

It is important to pass this bill in a timely way so that we are able to maintain and improve our aviation functions without a lapse.

Mr. Speaker, the other bill in today's rule is the so-called Schools Not Shelters Act or, as one of my colleagues called it, the defund our schools act.

This bill is a monumental waste of the House's time and taxpayer dollars.

It is nothing more than an attempt by House Republicans to double down on their demonization of immigrants. The House had this same debate last month when Republicans brought to the floor a poorly drafted and fact-free resolution to the same effect.

Now they have turned that resolution into a bill so they can continue their failed efforts to sow fear of immigrants in order to score political points. This bill does nothing to address the needs of communities facing an influx of migrant families or to solve the problems facing our schools. It is nothing more than another vehicle to create division and stoke culture wars because that is the point.

Starting with the last administration, rightwing Republicans at the State and Federal level have abused migrant families and children fleeing poverty and violence to manufacture a crisis using them as pawns to score points.

For example, if Greg Abbott, the Governor of Texas, was genuinely unable to safely shelter migrants, he could have reached out in good faith to State and local leaders around the country to collaborate on solutions instead of shipping migrant families to those places without any notice or coordination.

He could have reached out to the Biden administration for additional resources, and he could have come to Congress and asked for emergency funding.

Instead, when faced with all those options, Governor Abbott decided to mislead or trick migrants and ship them to other parts of the country with no coordination or communication to the receiving communities.

One of the destinations chosen by Governor Abbott, and Governor DeSantis as well, was Philadelphia. I met some of those migrant families last winter. During the week between Christmas and New Year's when temperatures were at or below freezing, they sent buses of families and children to Philadelphia. These families arrived in T-shirts and sandals. They had no jacket and no gloves, and they were dropped off on the street at 6 a.m. and in the middle of the night.

If not for the mercy and decency of our city officials, charities, churches, and advocates, those poor souls would have been left on the street in the middle of winter.

These are human beings. These are families with children. They are people escaping horrors that apparently our colleagues can't even imagine. I still struggle to process the willingness of those Republican Governors to harm people and the willingness of our colleagues to enable them.

While those Republican Governors thought that everyone shared their contempt and disregard for the humanity of these families, they were dead wrong. All over the country, the cities that have received these migrants did so with open arms and worked in unison with their faith communities, with volunteers, and with advocates to find solutions rather than to inflict further harm.

They refused to play this sick game. They welcomed the migrants with compassion. I continue to be inspired by the fundamental decency and kindness of the Americans who mobilized to help migrants come to our shores yearning to breathe free, as we have throughout our American history.

We are the country we are today because of the innumerable contributions of immigrants from all over the world. So instead of debating rightwing messaging bills to posture for the Republicans' extremist base, we should be using our time to pass a clear, legal, and efficient path to work, residency, and citizenship.

We need to pass the American Dream and Promise Act again to provide Dreamers with a pathway to citizenship. However, our colleagues are not offering solutions to our immigration challenges, they are just offering complaints. They don't have a single, serious proposal for how we can address the needs of our immigration system.

It is particularly galling that they have tried to reframe their active mistreatment of migrant families as a threat to public schoolchildren calling to defund public schools in retaliation against local governments for addressing the mess that Governor Abbott created.

As my colleague, Mr. NEGUSE, pointed out in the Rules Committee hearing last night, the House majority has made clear its priorities: pushing unserious bills like this anti-immigrant bill while failing to address the actual issues facing our public schools, including teacher pay, student achievement gaps, gun violence, and hunger—daily hunger—for schoolchildren.

Later this week when Republicans host their press conference to celebrate passage of this bill, all these problems will still exist.

Mr. Speaker, I look forward to passage of the FAA reauthorization later this week, and I reserve the balance of my time.

Mrs. HOUCHIN. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. ROY).

Mr. ROY. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I would note that my colleague on the other side of the aisle from Pennsylvania referred to the crisis that we are experiencing on the southern border as a ''fake'' crisis.

I just want everyone in America to understand: Our colleagues on the other side of the aisle believe that what we are experiencing on the southern border is a fake crisis.

She said: demonizing migrants. She is criticizing Governor Abbott for having to deal with the crisis that they call fake.

Governor Abbott, yes, moved migrants from Texas to other parts of the country, just like the mayor of El Paso and just like the mayor of New York. The mayor of New York, by the way, exists in a sanctuary city and then wants to come begging the Federal Government for money. That is the truth.

We know precisely what is going on along the southern border, and my colleagues on the other side of the aisle are not just in denial, they are literally making up facts. They are saying things that are completely untrue.

Did the Commonwealth of Pennsylvania have to appropriate $10 billion—$10 billion?

That is what the State of Texas had to do to make up for the fact that the Federal Government is not only refusing to enforce the law, but it is actively participating—as this President is doing and as the Secretary of Homeland Security is doing while he lies to me under oath in the Judiciary Committee—actively participating in the trafficking of human beings into the United States and the trafficking of little girls into the sex trafficking trade.

Was it a fake crisis for the 53 migrants who were cooked in a tractor-trailer last August in San Antonio, Texas? Is that fake?

Is it a fake crisis for the 856 migrants who died along the Rio Grande in south Texas and in Arizona last year? Is that fake?

Is it fake for the little girl who is sitting in a stash house in Houston, San Antonio, New York, or Philadelphia right now being raped by her captors?

Or in Fort Worth, Texas, as a Federal judge articulated in a Federal opinion just 2 months ago?

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. HOUCHIN. Mr. Speaker, I yield an additional 1 minute to the gentleman from Texas.

Mr. ROY. Mr. Speaker, I thank the gentlewoman for the time.

Mr. Speaker, of course, it is not fake.

We are having to impact the entire country, and that is why I support the gentleman's bill, Schools Not Shelters. Yes, we passed other legislation, like H.R. 2, which would address the problem but which my colleagues on the other side of the aisle and this President refused to do.

We are doing this, of course, jointly, while we are trying to move the FAA reauthorization. I support that bill too, but we must include slots—I just want to be very clear—for the people in San Antonio and for cities outside of the perimeter that was created in 1966.

It is critically important for the American people to have access to their Nation's Capitol—including San Antonio, with 1.6 million people, the seventh largest city in the country—to have access to the Ronald Reagan National Airport.

So I hope we will adopt that amendment so the FAA bill can move strongly to the Senate and get passed.

□ 1245

Ms. SCANLON. Mr. Speaker, I am so sorry my colleague across the aisle

misunderstood me. The fake crisis I was referring to was the crisis that this defund our schools bill is seeking to address, which is the use of active public school buildings to house migrants.

That is a fake crisis. It is actually not happening across the country, and it was brought up only after the Texas Governor sent migrant families unannounced to New York State.

Obviously, we have an issue with the amount of migration occurring throughout our hemisphere and the impact on our communities. I would gladly work with anyone to make sure that all of our communities, whether in Texas or New York or Philadelphia or Martha's Vineyard or anywhere across our country have the resources they need to feed and clothe the hungry and unsheltered people in those communities.

Mr. Speaker, I yield 1½ minutes to the gentlewoman from California (Ms. BARRAGÁN).

Ms. BARRAGÁN. Mr. Speaker, I rise as chair of the Congressional Hispanic Caucus in opposition to H.R. 3941, which is what I call the anti-student, anti-family, anti-immigrant act. This bill is another attempt by Republicans to dehumanize migrants under the excuse of student safety. Give me a break.

First, this bill does nothing to protect our students. In fact, it does the opposite. It cuts funding for schools that dare to provide shelter for those who escape oppression and seek protection in our country, even if the school is empty or closed down with no students.

Republicans claim they are the party that protects children, but they are the same party that is directing Texas State troopers to push migrant children back into the Rio Grande River to drown. They should be ashamed.

Mr. Speaker, I urge my colleagues to oppose this anti-student and anti-immigrant proposal.

Mrs. HOUCHIN. Mr. Speaker, I yield 2 minutes to the gentleman from New York (Mr. LANGWORTHY).

Mr. LANGWORTHY. Mr. Speaker, I thank the gentlewoman from Indiana for yielding time today.

Mr. Speaker, I rise today to support the rule and protecting our communities and our public schools from paying the price for the Biden administration's broken border policies.

Five counties in my district have declared a state of emergency in responding to the overwhelming influx of illegal immigration that Democrats in Washington and in my own State of New York refuse to address.

Many of the communities in my district already struggle to provide essential services, but thanks to President Biden, Governor Hochul, and Mayor Adams, they are now forced to shoulder the heavy burden of housing illegal migrants.

For anyone who wants to call those supportive of this effort today as lacking compassion, cruel, callous, whatever they want to come up with, I have this to say: My constituents, who are struggling to accommodate an influx of people who broke the law to enter this country, do not lack compassion.

They are simply trying to survive in the face of an administration that refuses to protect this country's sovereignty and to secure our borders.

Families like those in my district who have seen their loved ones die from the fentanyl flooding into our communities, they are not callous. They are desperate to see something done to stop the flow of lethal substances and save as many lives as possible.

Communities across America who see what New York City is attempting to do by co-opting their public schools at the expense of their children are not cruel for wanting to stop this. They are worried about the safety and the well-being of our children.

I strongly support the rule before us today and appreciate the leadership of my good friend and fellow New Yorker, Congressman MARC MOLINARO, in bringing forward H.R. 3941, the Schools Not Shelters Act.

The Biden administration has already demonstrated its callousness, cruelty, and lack of compassion by refusing to secure our borders and uphold our immigration laws. I urge my colleagues to join me in saying enough, and to support this rule before us today.

Ms. SCANLON. Mr. Speaker, as I suggested, this is just about rightwing messaging, pushing a false narrative that anybody is advocating for an open border—they aren't—while still refusing to come to grips with what do we do with the people who come here? What do we do with the people who are here?

If there are solutions, we would love to work together on them. One of them appears to be providing enough resources for our communities to feed and house folks.

Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule to provide for consideration of a resolution which unequivocally states that it is the House's duty to keep our sacred promise to American workers and seniors to protect and preserve Social Security and Medicare and reject any cuts to those essential programs.

Mr. Speaker, I ask unanimous consent to insert the text of my amendment into the RECORD along with any extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Pennsylvania?

There was no objection.

Ms. SCANLON. Mr. Speaker, I yield 4 minutes to the gentlewoman from Texas (Ms. ESCOBAR) to discuss this proposal.

Ms. ESCOBAR. Mr. Speaker, this week, the House is poised to pass a bill threatening funding for public schools and institutions of higher learning if they provide shelter to vulnerable migrants.

First, it is important to state the obvious. Migrant encounters are down by 70 percent, and the number of people arriving at the southern border has dropped significantly since the Biden administration ended the use of the Trump-era title 42 policy months ago.

While my Republican colleagues want to continue their rabidly anti-immigrant agenda instead of focusing on the needs of the American people, the American people should know that President Biden's efforts to better manage the border are working.

Second, it is important for the American people to understand what my Republican colleagues are really trying to do.

Last December and early again this spring, members of the media descended on my community of El Paso, Texas, to film and interview hundreds, and at some point, thousands of migrants sleeping on the streets of El Paso.

During that coverage, my community told the country that our shelters were full. My community, like others across the country, sprang into action, and with the help of Federal funding, El Paso's Office of Emergency Management provided emergency shelter for vulnerable migrants, and because other shelters were full, had to use empty schools on a temporary basis.

My Republican colleagues aren't trying to help us find solutions, which, by the way, could be done if we could get bipartisan comprehensive immigration reform done. Instead, they are using legislative action to harm migrants and harm communities like mine.

Earlier this year, Republicans worked to eliminate funding to NGOs and receiving communities, and now they are deliberately trying to create a humanitarian catastrophe by further limiting options for receiving communities. This is what they want: a humanitarian catastrophe.

By prohibiting the use of schools for emergency shelter, my Republican colleagues are creating a situation where migrants may not have anywhere else to go except the streets of communities like mine if we were to see numbers climb again.

Unfortunately, the Republican Party of today is gripped by troubling extremism. Instead of seeking real solutions, again, like passing comprehensive immigration reform on a bipartisan basis, they are instead seeking to appease the extremists among them in their ranks.

If they want to deal with challenges inside our schools, how about they work with us on gun violence or teacher shortages.

Democrats, on the other hand, remain focused on solutions and will continue to fight for the needs of Americans. One of those areas of concern in districts across the country has more to do with ensuring we protect key programs that help everyday Americans,

which is why if we defeat the previous question, Democrats will bring up a resolution affirming our commitment to protecting Social Security and Medicare.

These are vital programs that have a profound impact on the lives of millions of Americans. Both programs serve as a cornerstone of retirement security and affordable healthcare coverage for our seniors, people with disabilities, disabled workers, and survivors of deceased workers.

In my district, many El Pasoans rely on Social Security and Medicare to help them meet their basic needs such as housing, preventative care, prescription drugs, doctors' visits, and daily expenses.

This inhumane school defunding bill does nothing to truly address any real challenges we face, and I urge my colleagues to defeat the previous question so we can instead bring up important legislation affirming our commitment to the American people.

Mrs. HOUCHIN. Mr. Speaker, I yield 3 minutes to the gentlewoman from Michigan (Mrs. MCCLAIN).

Mrs. MCCLAIN. Mr. Speaker, I rise today in support of the Schools Not Shelters Act. This bill will protect our student safety and our schools, ensuring that they are used for learning.

I don't know if anyone has recently looked, but the scores of math are down. The scores of reading are down. This bill will make sure that our schools—I will say it again—are used for learning, not to house illegal aliens crossing our southern border.

The decision of local officials in New York City and elsewhere to house illegal aliens at school threatens the safety of our students.

We wouldn't need this bill if President Biden did his job and secured the southern border. See, I am open to talking about immigration reform, but we must secure our southern border. They are not one and the same. They are different.

Schools should never let a stranger come into a school without ID. I know when I go into my daughter's school, I have to show ID.

What is happening now is we are letting illegals into our schools with no idea who these illegals are. They haven't been vetted at the border. Background checks haven't been run. We don't know who is coming into our schools. Could we at least employ the same type of verification that we do for legal American citizens? I mean, it doesn't make sense. Schools are not hotels. They are for education.

When declaring New York's status as a sanctuary State, New York officials should have been a little bit better prepared for the mass number of migrants in a different manner and not throw the problems on our children's schools.

I find it funny how they have an opinion on the southern border, but, yet, when the sanctuary city receives illegal migrants, oh, my goodness, they are all up in arms. They receive those migrants at a much lower rate than the border cities.

Democrats are playing politics with people's lives instead of providing a quality education, and they are more focused on spending your taxpayer money on illegals and telling your kids what pronouns they should be. We have a math and reading problem. Perhaps we should focus our attention on education.

Pass this bill today, protect our children, and keep criminals out of our schools.

Ms. SCANLON. Mr. Speaker, I find myself in complete agreement that we should be addressing the actual issues, like student achievement, that are impacting our students, but, obviously, this bill does none of that.

Mr. Speaker, I yield 3 minutes to the gentlewoman from New Mexico (Ms. LEGER FERNANDEZ), a distinguished member of the Rules Committee.

Ms. LEGER FERNANDEZ. Mr. Speaker, I completely agree as well that we do have an issue that we must address in terms of improving our education system, investing in our students, investing in our schools, but does this bill do this? Absolutely not.

Last night in Rules, we actually had the debate about the fact that in the Education Committee, what has come out so far is nothing that addresses reading, math, STEM.

What has come out so far is the kitchen sink of culture wars, and our families do not want culture wars in our schools. They want us to focus on learning, on making sure that our students cannot just survive but thrive.

So here we are, standing on this floor once again to debate a bill that would defund our schools and dehumanize asylum seekers and immigrants.

I remind my colleagues that one of the first asylum seekers that we know about was when a mother put her young baby into a raft, into a basket, and sent that baby down the river, and he was saved. His name was Moses.

Asylum seekers today are doing the same. They are trying to flee incredible violence and get refuge here in the United States.

Republicans stated last night that the academic success and safety of our students must always be placed first. No exceptions.

If it is no exception, then why are we not addressing gun violence which is the biggest cause of death and injury for children in school, and, sadly, also in their neighborhoods?

This bill does nothing to address gun violence even though more than 344,000 children directly experience gun violence; even though in just 6 months this year, we have already had 188 school shooting incidents with 143 victims in our schools. When will you take up saving our children in our schools by addressing gun violence?

So rather than making sure our students can thrive and stay alive in schools, this bill would defund our schools with an empty gym. That is all we are talking about; an occasionally empty gym used on the coldest winter night or hottest summer day to shelter asylum seekers who have already been processed through the system. At this point in time, they are actually around. They have a legal pathway that they are seeking.

Republicans have decided to politicize the border and immigration. They ignore the fact that apprehensions at the southern border are down by 70 percent. They are down by 70 percent because of Biden's policies.

□ 1300

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. SCANLON. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from New Mexico.

Ms. LEGER FERNANDEZ. Yes, we have a broken immigration system, but whose fault is that?

Last Congress, we passed several bipartisan immigration bills, including the American Dream and Promise Act and the Farm Workforce Modernization Act.

Did any of the Republicans pushing this bill vote for those, vote for the problem solvers? No.

I will end with this: Matthew 25:35 reminds us: ''For I was hungry and you gave me food. I was thirsty and you gave me drink. I was a stranger and you welcomed me.''

I ask my Republican colleagues to show the same humanity in this bill and vote against it.

Mrs. HOUCHIN. Mr. Speaker, I yield myself such time as I may consume.

I will note that new laws will not keep guns from criminals any more than the current ones that we have.

This legislation does not defund schools. I think there is a disconnect from my colleagues on the other side of the aisle because we have before us legislation that would simply say that schools need to be focused on education and not on housing illegal migrants—migrants that the gentlewoman from Michigan (Mrs. MCCLAIN) pointed out have no background checks—and that they have no ability to verify and determine if they would be safe.

Meanwhile, parents of students in my school corporation have to have background checks to go in for classroom parties.

We are not defunding schools. We are simply saying that schools cannot house these migrants as a matter of safety for our children.

Mr. Speaker, I yield 3 minutes to the gentleman from Wisconsin (Mr. VAN ORDEN).

Mr. VAN ORDEN. Mr. Speaker, I rise in support of the rules package.

The United States has long been recognized as a global leader in aviation safety, and each day, thousands of men and women work tirelessly to ensure smooth operations at our Nation's airports. However, in recent months, we have witnessed a concerning increase in fatalities of our ground crews, especially in rural airports like those in my district.

First and foremost, it is crucial to understand and acknowledge that, historically, the United States has been a leader in aviation safety. For decades, we have set the standard for the rest of the world with safety protocols that have undoubtedly saved countless lives.

Nonetheless, we cannot ignore the disturbing trend that has emerged in recent months. Close calls in our airspace and tragedies in our airports have become alarmingly frequent. These incidents remind us that we cannot be complacent on issues that threaten the safety of my constituents who work in rural airports and who spend their days helping Americans get from point A to point B.

I am proud to be the first cosponsor to this amendment that was introduced by the gentlewoman from the great State of Oregon (Ms. HOYLE), my Democrat colleague, because it just makes sense. It requires the FAA to develop and publish safety training materials for airport ground crew workers, including supervisory employees.

This amendment will help incidents involving aircraft engine ingestion and jet blast hazards decrease, and it is critical to keeping the airport workers in Wisconsin's Third Congressional District safe.

The 2023 FAA reauthorization is bold and necessary, and it takes steps toward protecting the men and women who make it possible for most of us to travel to this Chamber so we can serve our constituents.

Ms. SCANLON. Mr. Speaker, I yield myself such time as I may consume.

As I was listening to some of the prior speakers, I started to understand why we have this defund the schools bill before us today. It is based upon a whole bunch of misunderstandings.

The idea that migrants who are in the position where they are potentially being housed in our communities, these folks have, in fact, been vetted by our immigration agencies.

Second of all, no Federal school funding can be used for that purpose. That funding is already restricted, and if it were to be used for the purpose of housing migrants, it could be immediately clawed back.

Again, this is a bill that accomplishes nothing and is based on a series of alternative facts, and I strongly urge that we reject it and the rule.

Mr. Speaker, I reserve the balance of my time.

Mrs. HOUCHIN. Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. MOLINARO).

Mr. MOLINARO. Mr. Speaker, let me first clarify. I live in the State of New York where Mayor Eric Adams and the city of New York decided to declare itself a sanctuary city. It opened its arms to individuals from across the globe.

The city of New York decided to transport individuals—treating them not as human souls but simply as property—to be displaced to upstate counties. There is no screening. There is no criminal background check. In many cases, there is no monitoring or any coordination between the city of New York and those other communities, communities that made no such decision, no such choice.

Earlier, my colleague across the aisle suggested that the Governors who engage in similar activities should simply coordinate and communicate with those other cities. Well, how about the city of New York communicating and coordinating with the rest of the communities?

My colleague suggested that Governors should merely turn their attention to the President and simply ask for assistance. Ironically, Mayor Eric Adams made exactly that request and was met with deafening silence.

My colleague across the aisle suggested that this is a manufactured crisis. It is a humanitarian crisis at our border that too many of my colleagues in power, by the way, for several years chose not to pay attention to. The President ignored the situation, and now communities across the country are faced with a humanitarian crisis.

I am sponsoring the bill not because I don't care about the souls. I spent 12 years locating and identifying real shelters for individuals, unaccompanied minors.

I sponsored the bill because families and communities in New York State and in New York City know their schools are not empty. These are centers of education, academics, and athletics. During the summer months, these are the places, by the way, that single moms send their children to get the services and support they need. Lunches are provided.

For kids like my own, therapies for those with disabilities are provided. For 2½ years, we turned our back on those very children. These families are frightened, upset, and agitated by a government that doesn't pay attention to the concerns they have and instead displaces their children when the city of New York and the President and the White House have the capacity to address this problem where it exists.

Mr. Speaker, I was intending to speak on a number of provisions within the FAA reauthorization, and I would like to try to get to just two.

Within this FAA reauthorization bill, the Access and Dignity for All People Who Travel Act, which I lead, ensures those with disabilities who need special seating accommodations receive them. Too often, those with disabilities are ignored. This bill rectifies that.

Another bill within the FAA reauthorization is the Future of Aviation Act.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. HOUCHIN. Mr. Speaker, I yield an additional 30 seconds to the gentleman from New York.

Mr. MOLINARO. Mr. Speaker, this allows public airports that received funding to use the additional funding for the use of advanced air mobility, including eVTOLs and electrical aircraft charging, and additional building out of their infrastructure.

Lastly, the bill includes AAM that will help reconnect rural communities, reinvigorating tourism, improving ease of movement, and connecting rural communities to regional airports.

Ms. SCANLON. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, we heard the gentleman describing parents of schoolchildren being frightened, upset, and agitated because their school needs, their education needs, their needs for food or remedial education, are not being met.

I remind my colleagues that they hold the majority. They are able to bring forward those bills and have the committee work to address those needs, but, again, the bill before us today does none of that.

We would love to work together in a bipartisan manner, as the Transportation and Infrastructure Committee has done, to present a really good, forward-looking bill to address our Nation's aviation needs. We would just like to extend that ability to work on solutions, as opposed to culture wars, throughout the work before us for the good of the people.

Mr. Speaker, I reserve the balance of my time.

Mrs. HOUCHIN. Mr. Speaker, I yield 3 minutes to the gentlewoman from New York (Ms. MALLIOTAKIS).

Ms. MALLIOTAKIS. Mr. Speaker, I rise in support of H.R. 3941. I am proud to cosponsor this legislation with Congressman MARC MOLINARO, who is also from the State of New York.

There are two people who are truly responsible for the crisis that we see of 7 million illegal immigrants who have come to the United States. Firstly, there is our President, who decided to open the borders without any type of process, any type of order, and, quite frankly, in violation of our own Federal laws. Then, you have Mayor Adams in New York City, the city in which I reside and represent, who decided to misinterpret New York City's right to shelter law, which was intended for American citizens, not citizens of other countries who just came over the border last week.

The problem is, if you look at New York City right now, you will see that there are more illegal immigrants being housed in our shelters than American citizens. Walk down the streets of the city, and you see homeless New Yorkers, people who have substance abuse issues, people who have mental health issues lying on the streets of our city while the mayor has gone head over heels and has done everything possible to house citizens of other countries who chose not to follow our rules, who chose not to follow the proper process, and have come into our country. We don't vet them properly, and we don't know what their intentions are.

I am the daughter of immigrants. I think that many people are coming

here for the right reasons. They do want to have a better life. However, there are many others who are not. We need to differentiate between them. People who come illegally need to follow our process.

Two-thirds of the people who are heard in court are not legitimate asylum seekers. That means they are in this country illegally. The mayor insists that New York taxpayers have to continue to foot the bill of billions and billions of dollars while taxpayers are trying to keep roofs over their own heads. They are trying to pay their mortgages and pay their property taxes, which he keeps raising that levy. They are having their own difficulty, thanks to Bidenflation, in keeping a roof over their head, and now the mayor wants them to house these individuals, as well.

On top of it, they want to add schools, which is where children should be learning. They have lost 2 years of socialization, of physical fitness, of interaction thanks to COVID, and now he wants to take away the school gym.

If anyone says it is a manufactured crisis, look at New York City because it is happening there. The people of New York know it. The people of this country know it, and they know that it has to stop.

House Republicans put forward, by the way, a proposal to stop this, to secure our borders, and every single one of the Democrats voted against it.

Ms. SCANLON. Mr. Speaker, I yield myself the balance of my time to close.

Mr. Speaker, what we are seeing this week is a tale of two Congresses, one that is capable of working across the aisle to solve real problems but one that is increasingly held hostage by forces more interested in culture wars and punching down on vulnerable people to score political points.

I ask my House colleagues, again, to follow the example set by the Transportation and Infrastructure Committee as well as the House Armed Services Committee. I think this building and our country work a lot better when Members put their heads down and work on solutions to the problems facing the country. I would like to think there are many Members in both parties who would agree with that view. However, we learned a lot last week from KEVIN MCCARTHY and the most extreme members of the Republican Party.

Since the first day of the 118th Congress, particularly on the Rules Committee, we have heard countless lofty speeches from our Republican colleagues about the need for more transparency in our processes, for more amendments to be considered on the floor, for more debate, and for more rank-and-file Members to have their priorities considered by the whole House.

Last week, House Republicans had the chance to stand behind those words and instead blocked over 1,000 amendments submitted to the NDAA.

□ 1315

Today's rule and the amendments allowed on it were negotiated behind closed doors—not between Democrats and Republicans but between Republicans and the most extreme members of that party.

Next week, KEVIN MCCARTHY has already signaled that he is abandoning his commitment to consider appropriations legislation under an open rule.

It has become increasingly clear what the real deal is. It is an open rule for the rightwing Freedom Caucus and a closed rule for everyone else, including many Republicans who do not endorse the chaos and antidemocratic impulses pushed by the far-right members of their party.

Despite the griping about regular order and empowering individual Members, this Congress remains enthralled by a power grab—plain and simple—by the most extreme members of the Republican majority.

We can now expect Speaker MCCARTHY to fold at the first sight of trouble, meaning that the House is now run by its loudest and most extreme Members.

Beyond being an embarrassing way to run a democratic institution, this arrangement only serves to weaken the House and all but guarantees that the Senate will jam us on big legislation like appropriations, the NDAA, and the FAA reauthorization.

Mr. Speaker, I urge my colleagues to oppose the previous question and the rule, and I yield back the balance of my time.

Mrs. HOUCHIN. Mr. Speaker, I yield myself the balance of my time.

We face another week of big legislation under consideration for a vote on the House floor to better the lives of everyday Americans.

Both the Securing Growth and Robust Leadership in American Aviation Act and the Schools Not Shelters Act are important steps in delivering on our promise for a nation that is safe.

Republicans are keeping our Commitment to America.

With the passage of these two bills, we can continue to lead in aviation safety and innovation and keep the promise to our students that schools are a place dedicated to learning and safety.

I look forward to moving these promises out of the House this week, and I ask my colleagues to join me in voting ''yes'' on the previous question and ''yes'' on the rule.

Ms. JACKSON LEE. Mr. Speaker, I rise today to speak in strong opposition to the Rule for H.R. 3941, "Schools Not Shelters Act of 2023".

This bill is an absurd measure to condemn the use of elementary and secondary school facilities that provide shelter for people caught up in emergencies, just like we do for other disasters.

Using the facilities of a public elementary or secondary school to provides shelter for non-U.S. nationals who are not admitted into the United States should not be politicized, as this is humanitarian issue and failure of our broken immigration system.

As a Member on the Homeland Security committee, and more specifically the Border Security and Enforcement subcommittee, I interact with those at the border and migrants frequently.

I believe that a comprehensive approach is needed to find a lasting solution to the current immigration crisis.

However, I think it is essential that migrants are brought and allowed into the country through legal immigration.

I am a strong proponent of humanitarian aid efforts in the immigration context, from preventing the breakup of individual families because of a wrongful deportation to ensuring that victims of civil wars and national disasters around the globe receive a temporary protected status under the U.S. immigration laws.

We should not condemn the use of public elementary or secondary schools provide shelter for non-U.S. nationals who are not admitted into the United States.

I acknowledge that school are places of learning and development for students, but there are time periods when school campuses are not being used, such as during school breaks.

Because of this, the space could be used for humanitarian aid purposes, such as allowing migrants to stay there while they wait for legal processing and paperwork to conclude.

Other exceptions need to be reviewed, such as whether migrants could stay at schools when school is in-session, but humanitarian aid should not be overlooked in the immigration context.

As a leading country on the global stage, it is our duty and responsibility to assist who we can in a legal manner.

More importantly when it comes to schools in America, we should be addressing critical issues that are truly impacting our educational system—namely, the hostile state takeovers of majority-minority school districts—as is what is happening in my district with the Texas Education Agency takeover of the Houston Independent School District.

State takeovers in other districts have led to school closures, layoffs, and no improvements in test scores.

The vast majority of school districts that have been taken over by state agencies (TEA included) have not improved but declined.

With data ranging back to the late 1980s, researchers found that most state takeovers don't translate to academic improvements.

We have to stop the State from intermeddling and overstepping into our educational systems—causing further harm and damage to our communities,

That is why I have called upon President Biden and the Department of Education to investigate and take immediate I action to address the recent systematic and dangerous efforts underway by state and local officials in Texas seeking to undermine and undo decades of civils rights protections and advancements in educational institutions and student populations.

And so, I am here today to say that these are the issues that the American people truly care about and want us to be fighting for, for the protection and preservation of their educational rights .

Emergency response agencies have always used school facility sheltering to provide emergency services to affected individuals and communities; the use of these facilities as a

temporary shelter for migrants puts no students in danger.

These school facilities have always been used as emergency shelters during disasters such as weather-related events.

No colleges or public K–12 schools should lose federal funding because they provide temporary relief to migrants.

If Republicans are really concerned about measures needed to ensure school safety, they should support all measures that address gun violence prevention and mental health issues.

If my colleagues genuinely want to address students' safety, they should join with us to focus on the real causes of violent deaths in our country—guns.

Gun violence is decimating our families and communities—mass shootings in schools, places of worship, shopping malls, concerts, and urban neighborhoods.

A majority of Americans, including parents, teachers, students, and educational workers support common sense and meaningful actions that address the surging violence in our schools and colleges.

All that this bill does is to punish schools that Republicans think are helping migrants.

By singling out emergency use for migrants, this bill is only about Republicans' continuous opposition to any effort that provides support for the migrant community.

That is why I had offered the following amendments to be considered by the Rules Committee:

Jackson Lee Amendment 13 would simply prevent the enactment of H.R. 3941 until we actually address and enact comprehensive immigration reform in the United States such that the Federal immigration system operates efficiently and offers a fair, humane, and orderly pathway to citizenship.

Jackson Lee Amendment 15 would also prevent enactment of this bill until my bill the ''Grant Relief for American Children's Elevation (GRACE) Act of 2023'' is implemented such that the ''exceptional and extremely unusual hardship'' term as defined in Section 240A(b) of the Immigration and Nationality Act (8 U.S.C. 12229b(b)) is amended, to include hardship resulting from separating a family member who is a United States citizen, a lawful permanent resident or an individual lawfully admitted to the United States and a family member who is subject to deportation or removal from the United States.

A study on Facts and Fictions of Race and Family in U.S. Immigration Policy found that the United States governing framework of family sponsorship is rooted in the Immigration and Nationality Act of 1965, also known as the Hart-Celler Act.

The act eliminated the 1924 national origins quotas while maintaining the principle of numerical restriction by specifying annual caps as well as per-country limits on immigration.

Under the act, ''immediate family,'' specifically spouses, minor children, and the parents of U.S. citizens, are admitted without numerical quotas.

After that, there is a system of hierarchical preferences in which the claims of U.S. citizens are placed above those of legal permanent residents.

There is also a ranking of the family relationship that is based on assessments of familial proximity and of age, especially in the case of parents and children.

The dominant political narrative of the 1965 act at the time of its passage was one of national values, family unity, and the American commitment to ending racial discrimination.

However, according to the Washington Post, the Trump administration's immigration policies separated more than 5,400 children from their families, sending families to Mexico to await the chance to make asylum claims and seeking the chance to detain children indefinitely.

My amendment, the ''Grant Relief for American Children's Elevation Act'' or ''GRACE Act,'' would amend the Immigration and Nationality Act to establish certain family separation as an exceptional and extremely unusual hardship.

The American Academy of Pediatrics has noted that ''highly stressful experiences, like family separation, can cause irreparable harm, disrupting a child's brain architecture and affecting his or her short- and long-term health.

This type of prolonged exposure to serious stress—known as toxic stress—can carry lifelong consequences for children.''

Just last year, two pediatricians wrote in the Houston Chronicle that ''this kind of stress makes children susceptible to acute and chronic conditions such as extreme anxiety, depression, posttraumatic stress disorder, hypertension and heart disease.''

As we take into consideration the long term negative psychological effects of family separation as the result of immigration, it becomes abundantly clear that we cannot move forward until this cycle is stopped.

As a Member on the Homeland Security committee, and more specifically the Border Security and Enforcement subcommittee, I interact with those at the border and migrants frequently.

I believe that a comprehensive approach is needed to find a lasting solution to the current immigration crisis.

However, I think it is essential that migrants are brought and allowed into the country through legal immigration.

Under the Jackson Lee Amendment 15, the Immigration and Nationality Act would have no longer subjected human beings to extreme trauma by separating a family member who is a United States citizen, a lawful permanent resident, or an individual lawfully admitted to the United States and a family member who is subject to deportation or removal from the United States.

And the Jackson Lee Amendment 16 strikes one word—''not'' from Sect. 2(a) such that it reads as follows:

IN GENERAL.—As a condition on receipt of Federal financial assistance under applicable program by a public elementary school, a public secondary school, or an institution of higher education, the facilities of the school or institution may [not] be used to provide shelter or housing for specified aliens.

Thus, my amendment strikes the very language preventing the use of school facilities for the purpose of providing shelter or housing to individuals as defined by section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)) who has not been admitted (as so defined).

I am a strong proponent of humanitarian aid efforts in the immigration context, from preventing the breakup of individual families because of a wrongful deportation to ensuring that victims of civil wars and national disasters around the globe receive a temporary protected status under the U.S. immigration laws.

We should not condemn the use of public elementary or secondary schools to provide shelter for non-U.S. nationals who are not admitted into the United States.

Whenever appropriate, space in our schools should be made available for humanitarian aid purposes, such as allowing migrants to stay there while they wait for processing and paperwork to conclude their legal residency status.

Other exceptions need to be reviewed, such as whether migrants could stay at schools when school is in session, but humanitarian aid should not be overlooked in the immigration context.

As a leading country on the global stage, it is our duty and responsibility to assist who we can in a legal manner.

More importantly, when it comes to schools in America, we should be addressing critical issues that are truly impacting our educational system—namely, the hostile state takeovers of majority-minority school districts—as is what is happening in my district with the Texas Education Agency takeover of the Houston Independent School District.

State takeovers in other districts have led to school closures, layoffs, and no improvements in test scores.

The vast majority of school districts that have been taken over by state agencies (TEA included) have not improved but declined.

With data ranging back to the late 1980s, researchers found that most state takeovers don't translate to academic improvements.

Republicans provide no evidence that the academic progress of students is negatively impacted simply by attending a school which houses migrants.

H.R. 3941 is distractive, it is uninformed, it is pointless, provocative, inflammatory, and at best, an absolute waste of time.

Using the facilities of a public elementary or secondary school to provide shelter for non-U.S. nationals who are not admitted into the United States should not be politicized, as this is a humanitarian issue and failure of our broken immigration system.

Instead of denying innocent people temporary humanitarian relief we should focus on stopping the State from meddling in and overstepping the boundaries of our educational systems—causing further harm and damage to our communities.

Lastly, the Jackson Lee Amendment 19 was offered to add the word ''freeze'' to be included in the definition of ''specified disaster''.

This definition is particularly important to signify the dangers of deadly and disastrous weather conditions without snow.

In February 2012, my home state of Texas experienced an unprecedented deep freeze that crippled our state as temperatures dropped to as low as six degrees.

The freeze triggered the worst energy infrastructure failure in Texas state history, leading to shortages of water, food, and heat.

More than 4.5 million homes and businesses were left without power, some for several days and at least 246 people were killed directly or indirectly, with some estimates as high as 702 killed during the crisis.

These Jackson Lee Amendments 13, 15, 16, and 19 would have ensured that unaccompanied minors and migrants in need of temporary relief may be provided emergency shelter or housing using institutional facilities where appropriate.

It is a shame that we not made in order, and that we here with such an offensive and counterproductive bill, and that we are spending time on ineffective efforts instead of focusing on real immigration reform and resolutions for our nation's broken pathways for citizenship.

The text of the material previously referred to by Ms. SCANLON is as follows:

AN AMENDMENT TO H. RES. 597 OFFERED BY MS. SCANLON OF PENNSYLVANIA

At the end of the resolution, add the following:

SEC. 6. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the resolution (H. Res. 178) affirming the House of Representatives' commitment to protect and strengthen Social Security and Medicare. The resolution shall be considered as read. The previous question shall be considered as ordered on the resolution and preamble to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means or their respective designees.

SEC. 7. Clause 1(c) of rule XIX shall not apply to the consideration of H. Res. 178.

Mrs. HOUCHIN. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SCANLON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of adoption of the resolution.

The vote was taken by electronic device, and there were—yeas 213, nays 207, not voting 13, as follows:

[Roll No. 331]

YEAS—213

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Lucas
Luetkemeyer
Luna
Malliotakis
Mann
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Timmons
Turner
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—207

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Dean (PA)
DeGette
DeLauro
DelBene
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—13

Buck
Davis (NC)
Deluzio
Gallego
Jackson (IL)
Joyce (OH)
Kelly (PA)
Loudermilk
Luttrell
Mace
Massie
McBath
Tiffany

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1339

Ms. BROWN changed her vote from ''yea'' to ''nay.''

Mr. POSEY changed his vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Ms. SCANLON. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 213, noes 206, not voting 15, as follows:

[Roll No. 332]

AYES—213

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kiggans (VA)
Kiley
Kim (CA)

Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Malliotakis
Mann
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Timmons
Turner
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOES—206

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Dean (PA)
DeGette
DeLauro
DelBene
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Spartz
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—15

Davis (NC)
Deluzio
Gallego
Jackson (IL)
Kelly (PA)
Kuster
Luttrell
Mace
Massie
McBath
Smucker
Thompson (PA)
Tiffany
Veasey
Weber (TX)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1345

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Ms. KUSTER. Mr. Speaker, I was not present for one vote during the vote series this afternoon. Had I been present, I would have voted "no" on rollcall No. 332.

PERSONAL EXPLANATION

Mr. DAVIS of North Carolina. Mr. Speaker, I missed votes due to a death in the family. Had I been present, I would have voted: "nay" on rollcall No. 331, the motion on ordering the previous question on H. Res. 597; and "nay" on rollcall No. 332, H. Res. 597—rule providing for consideration of H.R. 3941 (Schools Not Shelters Act) and H.R. 3935 (Securing Growth and Robust Leadership in American Aviation Act).

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON OCTOBER 27, 2006

Mr. LAWLER. Mr. Speaker, pursuant to the order of the House of July 13, 2023, I call up the joint resolution (H.J. Res. 68) relating to a national emergency declared by the President on October 27, 2006, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to the order of the House of July 13, 2023, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 68

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That, pursuant to section 202 of the National Emergencies Act (50 U.S.C. 1622), the national emergency declared by the finding of the President on October 27, 2006, in Executive Order 13413 is hereby terminated.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes equally divided among and controlled by Representative MCCAUL of Texas, Representative MEEKS of New York, and Representative BOEBERT of Colorado, or their respective designees.

The gentleman from New York (Mr. LAWLER), the gentleman from New York (Mr. MEEKS), and the gentlewoman from Colorado (Mrs. BOEBERT) each will control 10 minutes.

The Chair recognizes the gentleman from New York (Mr. LAWLER).

GENERAL LEAVE

Mr. LAWLER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on H.J. Res. 68.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. LAWLER. Mr. Speaker, Mr. Speaker I yield myself such time as I may consume.

I rise in opposition to H.J. Res. 68 and all of this afternoon's privileged resolutions on this matter.

The International Emergency Economic Powers Act created a process by which the President could declare a national emergency, create sanctions authorities for that emergency, and impose those sanctions on the malign actors that are causing the emergency in the first place.

While I agree with my colleagues about the need for congressional oversight and modernization of Presidential emergency powers, I strongly disagree with the process by which they are trying to force change.

The national emergencies we are discussing today provide the legal basis for critical sanctions programs targeting some of the most evil people on Earth. Although some of these authorities were enacted years ago, many of these sanctioned individuals continue to pose a clear and present danger to U.S. national security interests today.

These ill-thought-out joint resolutions, by terminating these national emergencies, would immediately eliminate these sanctions programs without allowing adequate time for Congress or the executive branch to establish an alternative sanctioning authority. It would also unfreeze sanctioned individuals' assets, immediately putting millions of dollars into the hands of some of the world's most dangerous criminals.

Even if a new authority were created, these monsters would not be automatically resanctioned. Each of the hundreds of sanctions designations at issue today was built on strong evidence compiled over months or even years. It is not a switch that can be flipped on or off. More time and a lot more taxpayer money would need to go into redoing the work that has already taken place to renew these sanctions.

Another reason why this is a horrendous idea is that fines collected from violating terrorist-related sanctions largely go toward the Victims of State Sponsored Terrorism Fund, which provides critical compensation for American victims of state-sponsored terrorist attacks. Since the fund was established, it has paid out over $3 billion to eligible claimants, and by law, 50 percent of these distributions must be paid to 9/11-related claimants. 9/11 was the deadliest terrorist attack worldwide, and the attack has had a huge

impact on the New York community, in particular. Today, we still have cops, firefighters, and first responders, suffering from 9/11-related illnesses. The worst thing that we can do is take money away from 9/11 families and give it right back to terrorists.

Again, while I understand my colleagues' desire to reform the national emergency process, empowering terrorists, corrupt officials, and war criminals is not the answer, and draining the fund that assists victims of terrorist attacks should be a crime in and of itself.

We should address these issues directly through regular order, rather than arbitrarily removing sanctions authorities that are essential to our national security. I urge President Biden to engage with Congress on this, instead of blatantly avoiding the topic.

Now, for the specific matter at hand. I strictly oppose H.J. Res. 68, which would terminate the National Emergency with respect to the Democratic Republic of the Congo.

The forced termination of that emergency would lead to the rescission of sanctions and immediate release of millions of dollars to more than 60 currently sanctioned malicious foreign actors, including notorious arms dealer Viktor Bout, Russia's ''Merchant of Death,'' whose freedom Vladimir Putin demanded in exchange for American hostage Brittney Griner. This is the man you would be helping by passing this joint resolution, someone who was convicted of conspiracy to kill American citizens and officials, delivery of antiaircraft missiles, and providing aid to a terrorist organization. It would empower this horrific individual and embolden the Kremlin even further.

Revoking this emergency would also impact our ability to fight the Islamic State affiliate in the Democratic Republic of the Congo. Africa already represents the largest growth area of terrorism in the world, and Islamic State and al-Qaida affiliates fuel these groups' global networks.

□ 1400

This resolution would make it easier for ISIS to use proxies in Africa to finance its terror operations.

Further revoking the national emergency would release currently frozen money to individuals and groups that have perpetrated and profited from the ongoing deadly strife in the eastern Democratic Republic of the Congo, groups like the M23 group, the armed militia primarily responsible for that bloody conflict.

In recent months, international pressure on all parties has resulted in less offensive military action and violence in the eastern Democratic Republic of the Congo. This resolution could free up funds that groups like M23 would immediately use to purchase advanced weaponry, worsening the humanitarian situation and destabilizing the region.

Mr. Speaker, I urge all of my colleagues to oppose this reckless resolution, and I reserve the balance of my time.

Mr. MEEKS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong opposition to H.J. Res. 68. For the next several hours on the House floor, we will not be discussing how to raise wages for the middle class, debating how to create a regulatory framework for next-generation artificial intelligence technology, or strategizing about competing with China in the 21st century. Instead, we will be debating a handful of resolutions that will provide immediate sanctions relief for human rights violators, illicit arms dealers, and terrorists with American blood on their hands.

I am not being hyperbolic, and I am not exaggerating. The resolutions before us terminate emergencies that were declared for the express purpose of sanctioning war criminals.

Given that we have several similar resolutions on the floor, it is worth providing background on how the sanctions process works.

In 1976, Congress passed the National Emergencies Act. This act formalized how the President can declare a normal emergency, enumerated certain powers the President can use during such an emergency, and gave Congress the ability to terminate an emergency via resolution like the one we have before us today.

A year later, Congress built on this framework with the International Emergency Economic Powers Act, often referred to as IEEPA, which further elucidated what actions the President may take to regulate international commerce in such an emergency. IEEPA is the foundation of the modern American sanctions regime.

The benefits of IEEPA are very clear. They allow the President to move quickly to impose sanctions. Though, of course, some time is needed to jump through appropriate and necessary due process hurdles, the President is able to impose sanctions without a particular congressional mandate.

It is my view, likely shared by the sponsor and hopefully many Members of this body, that the power over sanctions has moved too much to the executive branch and too far from Congress. Too often, congressionally mandated sanctions are slow-rolled or minimized while the executive presses on with its preferred targets.

I do not want to diminish the seriousness and the impressive work professionals at the State Department, the Treasury Department, and the National Security Council do on sanctions. They take the work very seriously and apply thoughtful policies with an attentional detail, executing their actions in a careful manner.

Members of Congress should not blithely substitute their judgment about existing national emergencies without conducting a thorough review of the evidence, obtaining extensive briefings from the executive branch, and gaining a firm understanding of the consequences of a termination.

Moreover, each national emergency is reviewed at least annually. The Bush administration, the Obama administration, the Trump administration, and now the Biden administration all renewed the national emergency this resolution seeks to terminate.

Many national emergencies have been terminated. For instance, President George H.W. Bush terminated the South Africa program after apartheid ended. President Biden terminated the Burundi program not less than 2 years ago.

Let's take a quick look at some of the individuals currently sanctioned under the DRC program. One is Viktor Bout. For decades, Bout flooded the DRC with illegal weapons. He has bragged about his many contacts in financial institutions who have helped him evade sanctions, and Bout likely has significant assets that can easily be unfrozen. If this body votes to terminate the executive order that imposes sanctions on Bout, he stands to gain a windfall of cash within mere minutes.

The DRC program currently places sanctions on ISIS-Congo. That is right, the foreign terrorist organization ISIS. If Congress votes to pass this resolution, ISIS can set up a brokerage account, trade stocks, transfer funds, or keep money in a checking account in the United States of America.

Mr. Speaker, in my humble opinion, ISIS-Congo should not be permitted to do any of the above, and neither should the numerous war criminals currently covered under the Congo emergency.

Mr. Speaker, I strongly oppose H.J. Res. 68, and I implore all of my colleagues to do the same.

Mr. Speaker, I reserve the balance of my time.

Mrs. BOEBERT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of my bill receiving consideration on the House floor that would terminate the national emergency related to the Congo.

National emergencies are supposed to be temporary by definition and limited to 6 months by law unless there is a justifiable reason for an extension. They aren't supposed to linger on for decades with no oversight from Congress or the executive branch.

Clearly, this process is broken for national emergency declarations, and it needs reform. Having been in Washington, D.C., for over 2 years now, I clearly realize nothing gets accomplished here without force.

Today, we are raising the issue of this broken system, and that should be something that Members on both sides of the aisle can all agree with. Congress needs to do its job.

By law, Congress shall meet to consider a vote on a joint resolution to determine whether a national emergency shall be terminated after 6 months. Do you hear that? Congress shall do its

job. Then, they should meet again for that same consideration of each extension of any national emergency every 6 months.

Congress has been required by law to consider a joint resolution for the Congo since April 27, 2007, 16 years ago, and 31 more times since.

Shockingly, Congress has never once reviewed the national emergency related to the Congo over that 16-year timeframe, despite the clear language in section 202 of the NEA requiring review every 6 months.

Administration after administration just keeps on unilaterally rubberstamping these extensions without even providing a report or update to Congress on how much taxpayer money is actually being spent. What are they spending it on? What is the need to extend this temporary national emergency authority?

These national emergency declarations have become the deep state's favorite foreign affairs slush fund. There is literally no spending transparency whatsoever out there on the 41 national emergencies currently in place. Congress is allowing the swamp to continue to shift and funnel an unknown amount of taxpayer dollars to an overseas dark hole.

I know that some of my colleagues will argue that some of the national emergencies we are terminating today won't save that much money. If that is the case and we are only sending a couple hundred thousand dollars in aid and munitions to a particular country, then that country no longer meets the definition of a national emergency. If it is tens of millions of dollars or even hundreds of millions of dollars that we are sending to certain countries as a result of these 41 national emergency authorizations, then taxpayers have the right to know these costs, and Congress has a responsibility to provide oversight on these dollars.

The current sanctions in the Congo have also not addressed the real issue that is there, which is the Congo mineral conflict. Nearly 40,000 children are estimated to be mining cobalt with their bare hands in the Democratic Republic of the Congo right now. They are working in unsafe conditions.

This is the real humanitarian crisis taking place in the Congo. If we want to talk about sanctioning anyone for what is going on in the Congo, it should be China, which is exploiting these children and sucking up the Congo cobalt.

Mr. Speaker, I have heard scare tactics that voting for this bill to end Congo's national emergency would unfreeze the assets of Viktor Bout, an arms dealer who was accused of supplying arms to al-Qaida. I encourage everyone on both sides of the aisle to not be tricked into voting against my bill based on this false assertion.

Viktor Bout was never a citizen of the Congo or of the United States, and the current sanctions only apply to United States assets. Viktor Bout is currently living and running for political office in Russia.

If the U.S. wants to impose further sanctions against him—and I think we probably should—it can do so under the same mechanisms it has imposed more than 2,200 sanctions against Russia in the last year and a half. This is not the only way to sanction a terrorist. We have many other avenues that we can go down, as is seen in these 2,200 sanctions from just the past year and a half.

Mr. Speaker, I agree that Viktor Bout is a threat, so much so that I condemn the President's action and this administration for having traded him for a professional women's basketball player that was locked up for bringing marijuana into Russia.

Mr. Speaker, I have not yet heard a compelling argument to vote against my bill.

Mr. Speaker, I urge adoption of my bill. I urge Congress to actually roll up their sleeves and do the hard work of authorizing stuff like this or putting an end to it, exposing to the American taxpayer exactly where their tax dollars are going and what it is being spent on so we know if we are sending our tax dollars overseas to terrorists with no oversight.

Mr. Speaker, I yield 2 minutes to the gentleman from Arizona (Mr. GOSAR), my colleague.

□ 1415

Mr. GOSAR. Mr. Speaker, I thank the gentlewoman for yielding.

Is it what I hear? Is it really what I hear, that we are too lazy to do our job? Because that is what I heard.

Every 6 months we are supposed to come here to this floor and ante up in regards to the national emergencies. A national emergency, by its whole name, is temporary and short-lived. It is temporary and short-lived.

I guess that is why I would have to quote Milton Friedman: ''Nothing is so permanent as a temporary government program.''

Mr. Speaker, that says it all. That says it all.

There is a whole different way of getting to these perpetrators, these bad actors, and we should do that. However, we are rushing through this thing, and all I hear is: Wait a minute, if we take this down, then all these people are going to get off.

That is not what happens. Remember, we are bicameral, so the House will pass something, then it will go to the Senate where most of the time it will die, but at least they might get something right in this case as foreign affairs. They probably will get something right in regards to who the people are and what is the vehicle to do this in.

This is exactly why Senator Church did this in 1976. It was to try to orchestrate how do we put this together, how do we have checks and balances, and how do we make this work for everybody?

This isn't the way. We just saw a COVID national emergency. Today there is not one inventory in that disbursement record—not one, not one—of $4.8 trillion. That isn't chump change, Mr. Speaker. That is a bunch of money. That is a bunch of money.

So I look at this, and I will tell you, Mr. Speaker, it is time to get rid of these national emergencies. We can do this. We can do it right. We can make everybody look all right.

Mr. LAWLER. Mr. Speaker, I reserve the right to close, and I reserve the balance of my time.

Mr. MEEKS. Mr. Speaker, I reserve the balance of my time.

Mrs. BOEBERT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, we have heard a lot about the forced termination of these emergencies as being reckless and dangerous because it would remove sanction designations from hostile foreign actors.

I agree that the people who are on this list should be sanctioned, but also I see what is reckless and dangerous is continuing to funnel hundreds of millions of dollars to foreign countries, many with bad actors, over a 20-year period with no congressional oversight of how much taxpayer money the deep state is sending out the door.

It is also irresponsible that Congress is ignoring the law and not reviewing these 41 national emergency declarations every 6 months as required by law.

It is also reckless and dangerous that Congress is allowing Joe Biden to have unilateral authority from these national emergency declarations to draft Americans without consent into Active Duty, authorize chemical and biological weapons testing on humans—including Americans—and seize private property of the United States citizens.

Joe Biden decided to release and trade Viktor Bout when he still had nearly 15 years on his sentence. We can find another way to sanction him rather than just giving him a free pass, like the other terrorists who are on this list, without going outside of the bounds of Congress' official duties.

Mr. Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. MEEKS. Mr. Speaker, I yield myself the balance of my time for the purpose of closing.

Mr. Speaker, I am not going to be long, but I am sitting here scratching my head trying to figure out what the gentlewoman from Colorado is talking about.

This is not money that is taxpayer money that is appropriated by the people. I don't understand. This is money that these criminals, people who commit acts of terror, have. It is money that happens to be in some of our financial institutions that we know about. So we freeze it. They are sanctioned so that they can't get the money to continue the harm and damage to people.

She talks about children. Many of them, these individuals, were having child soldiers. They were putting children's lives at risk in war. I don't understand the rationality.

We should sanction ISIS. We should sanction Viktor Bout.

Mr. Speaker, I can't believe that any Member of this august body will vote for this resolution. Every Member should vote against this, and I yield back the balance of my time.

Mr. LAWLER. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I want to reiterate, again, that I appreciate the engagement from my colleagues on these matters, and I would be happy to work with them on ways to modernize IEEPA or increase oversight of the President's authorities, but this is not the way to do it.

Passing this joint resolution would seriously hinder our ability to fight terrorism in Africa and allow criminals like Mr. Bout to operate more efficiently. That absolutely should not be the message that Congress sends.

I hear often from my colleagues about the need for regular order. We had a whole discussion on it as a conference in our rules: regular order. This should be going through the Foreign Affairs Committee to have regular order. By introducing a privileged resolution, this is bypassing regular order. It is bypassing the work that all of us collectively as 435 Members of Congress have to do.

Now, I would remind my colleagues that these declarations are renewed every year by the President, including President Trump, who did it four times. Annual reports come to Congress every year. They come to the Foreign Affairs Committee of which I am a member.

There are no additional spending authorities tied to these national emergency declarations. They cost about $300,000 a year to administer.

I would remind my colleagues that we cannot sanction American citizens. It is unconstitutional. We are sanctioning foreigners. We can only freeze assets within our jurisdiction. That is the intent of this.

So while I do agree that we need to modernize IEEPA and we need to evaluate any of these declarations, Congress already has the tools to do it through regular order. So let's actually follow the rules that many of my colleagues who are introducing these resolutions demanded, and let's do it the proper way.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Mr. JOYCE of Pennsylvania).

All time for debate has expired.

Pursuant to the order of the House of July 13, 2023, the previous question is ordered.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mrs. BOEBERT. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON FEBRUARY 25, 2011

Mr. LAWLER. Mr. Speaker, pursuant to the order of the House of July 13, 2023, I call up the joint resolution (H.J. Res. 70) relating to a national emergency declared by the President on February 25, 2011, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to the order of the House of July 13, 2023, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 70

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That, pursuant to section 202 of the National Emergencies Act (50 U.S.C. 1622), the national emergency declared by the finding of the President on February 25, 2011, in Executive Order 13566 is hereby terminated.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes equally divided among and controlled by Representative MCCAUL of Texas, Representative MEEKS of New York, and Representative GOSAR of Arizona, or their respective designees.

The gentleman from New York (Mr. LAWLER), the gentleman from New York (Mr. MEEKS), and the gentleman from Arizona (Mr. GOSAR) each will control 10 minutes.

The Chair recognizes the gentleman from New York (Mr. LAWLER).

Mr. LAWLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to this resolution.

H.J. Res. 70 would terminate Executive Order No. 13566, which established a state of emergency in Libya due to Qadhafi's attacks on his own people, a deterioration of security in Libya, and prolonged violence that caused serious destabilization.

This executive order was enacted during the first Libyan civil war, was kept in place throughout the second Libyan civil war, and remains critical now as Libya has yet to make a transition to stable governing.

On each annual renewal of the emergency, President Obama, President Trump, and now President Biden have carefully reviewed the circumstances in Libya and each time determined that we need to maintain associated sanctions. It is simple to see the issues in Libya are ongoing, and it is not partisan to know sanctions are a key element.

One of the most critical sanctions that would be removed if Congress passed this joint resolution is against Saif Qadhafi, one of Qadhafi's sons, who has well-known links to the Wagner Group and is wanted for murdering Libyan civilians. Sanctions related to Libya are still, to this day, critical to our national security.

In the last 2 years alone, our Libya sanctions have blocked approximately $18 million from reaching hostile foreign actors. The forced termination of the national emergency regarding Libya would lead to the immediate release of millions of dollars for wanted war criminals backed by the Kremlin, like Saif Al Islam Qadhafi. Again, this money would empower Putin's regime and secure Russia's interests in Libya, a strategically important country along NATO's southern flank.

I also, again, want to mention the importance of the U.S. state-sponsored terrorism fund. There is no question that this money is better served by helping 9/11 families than quite literally financing terrorists. Like most Americans, I remember exactly where I was when I heard the news. I was in my first week of classes as a freshman at Suffern High School.

September 11 had a profound impact on our Nation, but particularly impacted the residents of New York. Thousands of families have faced the repercussions of that day, especially the families of those who worked tirelessly on the pile, trying to find survivors and helping others find closure.

Every September 11, I attend numerous 9/11 ceremonies with the families and our first responders who sacrificed so much, and still today we are adding names to the various monuments of 9/11 first responders who are losing their lives to 9/11-related illnesses. These sanctioned moneys are used to help them and their families.

We will never forget that tragedy, and it is abhorrent that any of these resolutions are coming before us today in this manner.

Mr. Speaker, I reserve the balance of my time.

Mr. MEEKS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to H.J. Res. 70.

For decades, Muammar Qadhafi ruled Libya with an iron fist and with a corrupt, self-serving economic policy that stunted Libya's development and, through a security state, engaged in international terrorism, including the Lockerbie airline bombing that remains the deadliest event in aviation history.

□ 1430

For the past 12 years, Libya has seen its share of continuous turmoil and

chaos. To the extent this resolution is a symptom of frustration about ongoing problems in Libya, that would be understandable. Any notion that this resolution will be at all useful for Libya policy is deeply misguided.

The United States actively supports the U.N.'s efforts to unify the country and its institutions under a democratically elected government.

These talks are ongoing, and violence has decreased over the last several years. The economy is doing better in part because U.S. sanctions have helped decrease oil banditry.

Lifting sanctions on the worst actors in Libya, the individuals who have perpetuated violence and instability, would send the exact wrong message to those pursuing economic reform.

Whereas economic pressure and tough diplomacy have brought parties to the table, a free pass on sanctions would have the exact opposite impact.

In general, there have been two large batches of sanctions under the Libya executive order. The Obama administration issued the first tranche against the Qadhafi family and its fiefdom of business and fake charities.

The Trump administration issued the second set that sanctioned individuals who committed grave human rights abuses and prevented the theft of Libyan oil by pirates and illegal merchants.

It is unclear to me how letting any of these people access American finance would be beneficial to the United States or to Libya or to the MENA region.

One of the most notable people currently sanctioned under the program is Qadhafi's son, Saif al-Islam Qadhafi. When the protests began, Saif al-Islam went on television and threatened ''rivers of blood'' if the protestors did not cease.

He has never condemned his father. He has never condemned his father's despotic rule and is actively seeking to regain power in Libya as we speak.

The Qadhafi family controlled billions of dollars in assets. If sanctions are lifted on the remaining members of the Qadhafi family, the Qadhafis would have access to a windfall of wealth, which they plundered from the Libyan people. Instead of the frozen funds going to the Libyan people, they would go to the family that imprisoned and impoverished them.

I cannot support anything like that outcome, Mr. Speaker. I must strongly oppose and hope all of the Members of this House opposes H.J. Res. 70.

Mr. Speaker, I reserve the balance of my time.

Mr. GOSAR. Mr. Speaker, let's review the facts. There are currently 41 national emergencies that are subject to periodic congressional review, including the emergency declaration related to Libya, which is more than a decade old.

The National Emergencies Act mandates Congress consider joint resolutions terminating national emergencies at least every 6 months. Think about it; every 6 months. That is our job—not the President's; our job.

Yet, Congress has never, not even once, reviewed the legitimacy of the national emergency related to Libya since its declaration by President Obama in 2011, nor has Congress reviewed any of the national emergencies debated today as required by law.

Almost comically, the extended national emergency related to Libya still cites Muammar Qadhafi as a reason for declaration. Mr. Speaker, Muammar Qadhafi has been dead for almost 12 years. You can't make this stuff up.

The situation in Libya poses no extraordinary threat to the national security or foreign policy of the United States. Once again, temporary measures, short-term, punch, terminate.

No group or person in Libya currently poses a threat to our national security. Furthermore, even if there was some hostility, none rises to the level of an unusual and extraordinary threat to national security.

To the extent that there is a desire for certain sanctions, they can be applied without these national emergency declarations in compliance with the Constitution, Federal laws, and national security needs.

Now, that is an important point here. We can adjust these. We can put these in in different places that adhere to our Constitution, our legal aspect, because once again, this is us.

Despite unfounded concerns, sanctioned individuals and entities can be redesignated pursuant to other authorities available to the President, including but not limited to existing national emergencies related to terrorism, Russia, and Iran.

National emergencies are supposed to be rare and brief. In passing the National Emergencies Act in 1976, Congress did not intend for the executive to utilize declarations for decades in order to apply sanctions. That is something Congress can do separately from a national emergency declaration.

In fact, let's look at the history of the National Emergencies Act. It was written to respond to FDR and to Truman in keeping the country in a state of emergency as part of their daily governance. That is what they used the national emergencies for.

Congress allowing these tyrannical authorities to remain in place is recklessly endangering our Republic, checks and balances, and the civil liberties of our constituents.

Under all these extended national emergency declarations, the U.S. Code provides the President with an additional 135 special statutory powers, including: Testing chemical and biological weapons on human beings, including American citizens. Can you say COVID?

Take over or shut down radio stations and U.S.-based internet traffic. Wow. Censorship.

Detail members of our Armed Forces. Waive sanctions on confidentiality provisions related to public health services. Impose crippling and unconstitutional sanctions on American citizens that could freeze their financial assets or restrict anyone from selling them groceries, renting them an apartment, representing them as an attorney, providing dental and medical treatment, and much more—all without any due process supposedly afforded by the Constitution.

Clearly the President thinks he has authority to invoke these special statutory powers absent an executive order explicitly detailing them, which is why he announced his intention to forgive student loans via a press release instead of an executive order.

Oh, but voila. The U.S. Supreme Court said: You can't do that. What does this President do again? He turns around and does it again, shoving it in the Court's face.

Under the extended national emergency declarations, Congress abdicates control over policy and spending and instead transfers unfettered power to the executive branch.

For example, despite repeated bicameral requests, Biden has never provided a single expenditure report related to the COVID–19 national emergency declaration as required periodically by law. Not one.

Now, how can we, Congress, with the explicit power of the purse, allow any President to spend money without requiring a report?

Article I, Section 9, Clause 7 of the United States Constitution says: ''No money shall be drawn from the Treasury, but in Consequence of Appropriations made by law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.''

Further, 50 U.S.C. 1641(c) clearly states: '' . . . the President shall transmit to Congress, within 90 days after the end of each 6-month period after such declaration, a report on the total expenditures incurred by the United States Government during such 6-month period . . .''

Despite repeated—and I said repeated requests—there have been no expenditure reports to this date allocated in the COVID–19 national emergency, nor was there a final report that was due on July 9.

In fact, what we heard is this President realized that he was behind the gun, and he actually rushed it through on July 7, had the Secretary of Health and Human Services actually try to do it for him. What a shame.

The Constitution clearly provides Congress with the power of the purse, not the President, regardless of supposed emergencies. These emergencies are supposed to be limited, not forever bearing.

We have to come up with a different solution. This is not working. This doesn't work at all. For us particularly, we as Congress, haven't done our job.

Every 6 months—if you hear what I am saying here, every 6 months we

should be bringing these up, whether their application is great or fettered or very, very faint, and we should discuss this: What about Libya? What about Yemen? What about these other ones, Iraq and others? By the way, this is regular order. Anything we are detailing here is regular order.

This is almost comical to me. I hate to say it in that light, but when Senator Church put this detail together, he spent a lot of time trying to address this publicly. He tried to get as many people involved in it as he could, and yet, we turn around and do this to him.

We have got to come up with something better, something different, something short-lived, something that actually can keep our eye on the prize.

I don't know whether it is something that we put together in a clearinghouse for known terrorists and whether we utilize that in some way, shape, or form so that we can make sure that we are keeping up to date on all of that, but something has to happen, and it is not in the national emergencies.

Mr. Speaker, I urge all of my colleagues to vote in favor of this joint resolution, and I yield back the balance of my time.

GENERAL LEAVE

Mr. LAWLER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous materials on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. LAWLER. Mr. Speaker, I reserve the balance of my time to close.

Mr. MEEKS. Mr. Speaker, I yield myself such time as I may consume for the purpose of closing.

Mr. Speaker, I will be brief because, unfortunately, when we are in this august body, the world is looking at us. As I was scratching my head on the first resolution, I continue to do that.

Judgments I use in making determinations is: Is this good for America?

The question is, does this resolution promote America's national security? The answer to that is no.

Does this resolution support America's economic interests? The answer to that is no.

Would this resolution undermine America's standing in Libya? The answer to that is absolutely yes.

Would this resolution undermine our standing in the region? The answer to that would be absolutely yes.

Mr. Speaker, there is no need for me to continue to stand to debate this. I strongly oppose, and I believe overwhelmingly the Members of this Congress oppose this resolution, and we should vote it down.

Mr. Speaker, I yield back the balance of my time.

Mr. LAWLER. Mr. Speaker, I yield myself the balance of my time.

Unfortunately, the alarm bells being raised by some proponents of these measures are demonstrably wrong and misleading.

The national emergencies at issue today rely on IEEPA, the International Emergency Economic Powers Act, which does not provide the President with any domestic statutory powers like testing chemical weapons or seizing radio stations unless the President issues another executive order specifically invoking those emergency powers.

If the President were to do so, which no President has ever done, the National Emergencies Act gives Congress the expedited privileged right to disapprove that power, which we undoubtedly would do.

Furthermore, there is no power to draft Americans into Active Duty. That was terminated in 1978. In contrast, let me remind this body, the legal certainty we are facing is that terminating these emergencies would immediately hand many millions of dollars to terrorists and war criminals and would eliminate an important source of compensation to American victims of terrorism.

Now, I remind my colleagues, with respect to Muammar Qadhafi's continued inclusion, if Muammar Qadhafi was delisted, all of his assets would be bequeathed to his children. While he has been dead for over a decade, as everyone knows, you can't take your money with you when you go, so we are preventing that money from going toward funding terrorism.

□ 1445

While I appreciate this dialogue, it is abundantly clear that the consequences of passing this resolution as well as the others are extensive. Amidst Russia's invasion of Ukraine, the Wagner Group's continued war crimes across the globe, and the ongoing instability in Libya, we must keep this state of emergency and associated sanctions in place.

I again reiterate the point that with regular order, this should be going through the Foreign Affairs Committee.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to the order of the House of July 13, 2023, the previous question is ordered on the joint resolution.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. GOSAR. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON MAY 16, 2012

Mr. WILSON of South Carolina. Mr. Speaker, pursuant to the order of the House of July 13, 2023, I call up the joint resolution (H.J. Res. 74) relating to a national emergency declared by the President on May 16, 2012, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to the order of the House of July 13, 2023, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 74

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That, pursuant to section 202 of the National Emergencies Act (50 U.S.C. 1622), the national emergency declared by the finding of the President on May 16, 2012, in Executive Order 13611 is hereby terminated.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes equally divided among and controlled by Representative MCCAUL of Texas, Representative MEEKS of New York, and Representative GOSAR of Arizona, or their respective designees.

The gentleman from South Carolina (Mr. WILSON), the gentleman from Minnesota (Mr. PHILLIPS), and the gentleman from Arizona (Mr. GOSAR) each will control 10 minutes.

The Chair recognizes the gentleman from South Carolina.

GENERAL LEAVE

Mr. WILSON of South Carolina. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from South Carolina?

There was no objection.

Mr. WILSON of South Carolina. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to the resolution. This Yemen national emergency is the basis for sanctions against Iran-backed Houthi leaders, who have spent the past decade waging a deadly, murderous, and destructive civil war in Yemen.

The extremists sanctioned under this emergency have destabilized the Middle East and threaten the security of tens of thousands of Americans who reside or work in or near Yemen, throughout the Persian Gulf, and our great ally Saudi Arabia. If we overturn this national emergency, those sanctions will automatically and immediately disappear.

The Iranian-backed Houthis sanctioned under this emergency proudly chant the slogan, ''Death to America. Death to Israel.'' They recruit and indoctrinate thousands of Yemeni youths into their extremist ideology through schools and summer camps, all while committing murderous human rights abuses every day.

The Houthis are a key part of Iran's strategy to undermine the stability of the United States and its partners. Thanks to years of support from Iran, the Houthis now have advanced indigenous lethal weapons capabilities while continuing to receive shipments of weapons from the Iranian regime, which threaten Americans in the Middle East and global commerce in the Red Sea.

Sanctions issued pursuant to this authority have blocked critical financial support from reaching these dangerous Iranian proxies. If we remove these sanctions, the Houthis will have more funds to develop weapons and threaten American citizens and international shipping interests.

Terminating this national emergency would lift sanctions on the Houthi leader Abdul-Malik al-Houthi, who oversees their campaign of terror. Al-Houthi is also responsible for the ongoing detention of former U.S. Embassy staff and the active occupation of the U.S. Embassy compound in Yemen. What message are we sending to our enemies around the world by arbitrarily terminating sanctions on this dangerous extremist?

This radical group should not gain access to more cash to help fund its war machine. Being weak and lifting sanctions on Iran and its proxies is not an option.

President Donald Trump agreed. His administration stood strong against Iran and renewed this Yemen national emergency on four separate occasions.

Mr. Speaker, I urge my colleagues to stand against Iran and oppose this reckless resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to H.J. Res. 74, which terminates the national emergency pertaining to actions and policies that threaten the very tenuous diplomatic progress that we have achieved in Yemen.

Active American diplomacy has supported a very fragile U.N.-mediated truce, but lifting the national emergency prematurely would undermine the nascent progress that has been made over the past several years.

Sanctions are leverage. If the United States Government unilaterally, and without receiving anything in return, grants amnesty to Yemeni figures seeking to undermine the country's fragile cease-fire, we would potentially be enabling even more conflict.

The list of individuals sanctioned under the Yemen executive order is quite short, but let's take a look at some.

Mansur al-Sa'adi is a Houthi commander of Yemen's Naval and Coastal Defense Forces. He led attacks against international shipping in the Red Sea and smuggled Iranian weapons to Yemen.

Ahmed Ali Saleh is the son of former dictator Ali Abdullah Saleh. President Obama sanctioned Saleh, as he played a critical role in destabilizing the country in 2014 and 2015, and is still seeking to reignite his family's legacy of ruling the country.

Now, I could go on, but the individuals currently sanctioned under the Yemen emergency executive order are on the sanctions list for a reason. They have violated human rights and acted against American national interests, including abducting locally employed staff at the United States Embassy in Yemen.

I am a strong supporter of using diplomacy over military force to bring about a stable, long-term peace in Yemen, but let's be clear. We must use every diplomatic tool at our disposal to bring about that result. Throwing out one of the most powerful weapons in that diplomatic arsenal, economic sanctions, will not result in peace. Rather, it is much more likely to cascade Yemen into more chaos and more violence.

That is why I oppose this resolution and urge all of my colleagues to do the same.

Mr. Speaker, I reserve the balance of my time.

Mr. GOSAR. Mr. Speaker, Golda Meir once said that there would be no peace in Israel until Palestinians love their children more than they hate Israelis. Can't that be the same way?

Why I say that is, let's talk about Yemen. Heartlessly, while this emergency has been extended, Yemen stifles the donation of food, clothing, and medicine intended for human suffering in Yemen.

It is estimated that 130 children die each day because of the famine in Yemen. That is more than 85,000 over the past decade.

I thought love meant a lot to children. Is it our way or the highway? Is it thinking outside the box? A child needs very little. A child needs very little, and this is one of those things that we ought to be looking at, those children.

Right now, because of our sanctions, no international groups will even give food or medicines. Not one. That is sad. That is the result of the United States. I would hate to be that individual.

Nearly 80 percent of the people in Yemen need treatment for malnutrition, and 20 million lack access to adequate healthcare. I have to tell you, I think we need to start thinking outside the box.

If we are building these futures that hate America, that hate all, where is the joy in that? There is no joy. This is one of those that we can actually seemingly give some help to, and those children are not going to balk.

Now, once again, let's go back. National emergencies every 6 months have to be brought up and reviewed by Congress. To this date, none of these five have had any review whatsoever. I have heard a lot about the Presidents here and there—President Obama, President Trump, President this or that—all saying that they looked at it and anted up, but I have yet to hear where Congress has reviewed these designations. Not one.

Therefore, when I saw these, when I looked at these and my staff looked at these, we said, oh my God, we are not doing our job, and we are not doing our job. We are not doing our job at all if we are not reviewing each one of these to find out whether they pertain, whether they don't. If they are not a national emergency, where do they belong?

I hate to give a lot of additional thought to the Foreign Affairs Committee, but this isn't the place for these national emergencies, even with the involvement of IEEPA. We have to do something a little bit different. These have to be mainstayed, where we are actually looking at these and saying: ''Okay, here are all the different bad actors in the world. Here are all these bad institutions going on across this world. How do we involve all our assets, whether they be humanitarian, military, or just a little bit of everything?'' That is what we should be doing.

However, once again, Congress hasn't done its job. Let me say it again. Congress hasn't done its job.

We just went through the COVID national emergency, where $4.8 trillion had been allocated to fighting COVID. Not one inventory on that disbursement record is actually there. Not one, for $4.8 trillion. That is a sad state of affairs. That is a really sad state of affairs.

Mr. Speaker, when I look at these and then turn and look at—the United Nations actually looks at this as the worst humanitarian crisis in the world.

Let me also ask you this. Did the United States do this on its own or was there somebody else that they are speaking up for?

I will let you answer that question, but I will actually tell you that I hope you will vote for this if nothing else for children, the malnutrition, the medicines. Let's see if we can get a new tomorrow where people love the United States instead of hating us.

Mr. Speaker, I reserve the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I reserve the balance of my time to close.

Mr. PHILLIPS. Mr. Speaker, I reserve the balance of my time.

Mr. GOSAR. Mr. Speaker, may I inquire as to how much time I have remaining.

The SPEAKER pro tempore. The gentleman has 4½ minutes remaining.

□ 1500

Mr. GOSAR. Mr. Speaker, I yield myself the balance of my time.

With that 4 minutes what I will do at this point in time is speak up on behalf of my good friend ELI CRANE, who is looking at the Iraq national emergency, and then my good friend MATT GAETZ, who is looking at Syria. These are all from the same area, same detail. None of them have had renewals by the National Emergencies Act. That is flawed. We allow Presidents to re-up them, but we don't do anything on the Congress side.

As a Congress, we need to step up. We need to step up our game.

If these aren't part of the National Emergencies Act—and I find it very atrocious that they are—then we need to find a home for these. We need to find a home where they manage it properly, that everybody gets a chance to see them, look at them, and inventory them. Other than that, we have to make some serious changes.

It is sad that we are here on these five. There will be 36 more coming your way because, once again, when Congress doesn't do its job, somebody has got to squawk, and I will be one of those that squawks from here to sunset.

I have to tell you, we have to do something different. I wish all Members would vote for my amendment, and, Mr. Speaker, I yield back the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield myself the balance of my time for the purpose of closing.

Mr. Speaker, let me say I share the sentiment of the gentleman from Arizona about engaging Congress more regularly on these issues. I would like to see Congress reassert itself on issues of foreign affairs. I think we can actually all agree on that.

However, the notion of terminating these executive orders only to return assets to terrorists and some of the worst malign actors in the world strikes me as a real threat to the United States of America, counter to the principles of Democrats and Republicans.

That is why, for the reasons that I stated in my opening remarks, I believe a termination of this national emergency will actively undermine our diplomatic efforts and further destabilize Yemen.

We cannot and must not allow people who seek to undermine Yemen and the Gulf to obtain funds that would allow them to accomplish those very ends. That is why I have opposed H.J. Res. 74, and I encourage all of my colleagues to do the same.

Mr. Speaker, I yield back the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I yield myself the balance of my time.

I thank Ranking Member DEAN PHILLIPS for his bipartisan cooperation as we work together to strengthen our country and actually work together with all Members of Congress.

The Yemen national emergency is the basis for sanctioning some of the Iranian regime's worst henchmen in Yemen. These terrorists are responsible for staging direct attacks on Americans and direct attacks on Saudi Arabia in Saudi Arabia and on our Middle Eastern allies, diverting critical aid away from the Yemenis who desperately need it.

I have had the opportunity firsthand to see destroyed Iranian drones that had been used to kill Americans and Saudi Arabians. Clearly, they were marked very helpfully in English, ''Made in Iran.'' There is no question what was going on.

War criminal Putin is using these same drones to murder civilians across Ukraine as war criminal Putin and the regime in Tehran as dictators with rule of gun attack democracies with rule of law worldwide.

Again, this national emergency gives no authority to the President to pursue anything outside of economic sanctions.

Mr. Speaker, I urge opposition to this resolution, and I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to the order of the House of July 13, 2023, the previous question is ordered on the joint resolution.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. GOSAR. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON MAY 22, 2003

Mr. WILSON of South Carolina. Mr. Speaker, pursuant to the order of the House of July 13, 2023, I call up the joint resolution (H.J. Res. 71) relating to a national emergency declared by the President on May 22, 2003, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to the order of the House of July 13, 2023, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 71

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That, pursuant to section 202 of the National Emergencies Act (50 U.S.C. 1622), the national emergency declared by the finding of the President on May 22, 2003, in Executive Order 13303 is hereby terminated.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes equally divided among and controlled by Representative MCCAUL of Texas, Representative MEEKS of New York, and Representative CRANE of Arizona, or their respective designees.

The gentleman from South Carolina (Mr. WILSON), the gentleman from Minnesota (Mr. PHILLIPS), and the gentleman from Arizona (Mr. CRANE) each will control 10 minutes.

The Chair recognizes the gentleman from South Carolina.

GENERAL LEAVE

Mr. WILSON of South Carolina. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from South Carolina?

There was no objection.

Mr. WILSON of South Carolina. Mr. Speaker, I yield myself such time as I may consume.

I rise in opposition to the resolution. The Iraq national emergency we are discussing today is the basis for sanctions against Iranian and Iran-backed terrorists who killed Americans and partner forces in Iraq, as well as supporters of al-Qaida. If we overturn this national emergency, these sanctions will automatically and immediately disappear.

This is especially and personally important to me. I am really grateful because my oldest son, Alan, served as field artillery in the Army in Iraq, and my second oldest son, Addison, was a Navy doctor serving in Iraq. They worked for the liberation of the people of Iraq.

Between 2003 and 2011, Iran-backed militias killed over 600 American soldiers serving in Iraq. Since 2018, sanctions issued pursuant to this authority have blocked over $80 million from reaching more than 200 dangerous entities and individuals, including Iran-backed militias, their affiliates, and their supporters.

If we remove these sanctions, that money will help arm the very same people responsible for murdering our troops. Our wounded and fallen soldiers deserve better. Our Gold Star families deserve better. They deserve thoughtful policies that carefully respond to dangerous threats and yield accountability. They do not deserve arbitrary decisions to recklessly overturn sanctions authorities.

As we stand here today, Americans in the region are still on the front lines of Iran's dangerous and murderous aggression. Iran-backed militias are responsible for dozens of attacks against U.S. forces in the region in the past few years.

Examples of individuals who would have sanctions on them removed if this resolution passed are Abu Mustafa al-Sheibani and Abu Dura, IRGC-backed militia leaders who have launched attacks on the United States and British forces in Iraq. It would also remove sanctions on Misha'an al-Juburi, a Syrian who, according to the Department of Treasury, worked with al-Qaida in Iraq's jihadist umbrella organization, the Mujahidin Shura Council, to fund Sunni extremist operations to kill Americans.

Terrorist supporters should not have access to the U.S. financial system, and Americans should not be able to do business with these people who plan to kill Americans.

There is a dangerous message being sent to our enemies if we terminate sanctions programs while those under sanctions openly attack Americans.

President Donald Trump agreed. His administration stood against Iranian-backed terrorists threatening Americans and renewed the Iraq national emergency on four separate occasions.

I urge the Biden administration to engage with Congress in a more open and forthcoming dialogue about its use of these emergency economic powers, and I urge my colleagues to stand up with our troops, with military families, and with Gold Star families to oppose this reckless resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to H.J. Res. 71.

As a Gold Star son who lost his father in the Vietnam war, I understand firsthand the human cost of war. I also know my colleague from Arizona (Mr. CRANE) knows that cost, as well, as a veteran of our armed services, and I honor that.

That is why, since I came to Congress, I have worked in a bipartisan fashion to repeal and replace the 2001 AUMF and have consistently supported the repeal of the 2002 Iraq war AUMF, as well. I wish we had been able to get that legislation through the Senate last Congress, but I remain hopeful that we can do so this year.

All of this is to say that I do not have a hawkish position on Iraq, but sanctions and military force are not the same thing. Again, sanctions and military force are not the same thing. Terminating the national emergency with respect to Iraq would trigger the immediate release of currently sanctioned assets of persons who the U.S. Government has determined are a threat to Iraq's stability and reform efforts, including terrorists and others who have committed acts of terrible violence.

This is not an exaggeration. Numerous Shia militia fighters and ISIS terrorists are sanctioned under the Iraq program. The Iraq executive order is reviewed every year. Perhaps it is not a surprise that the Bush administration renewed it annually, and also the Obama administration, even though President Obama formally ended the Iraq war in 2011 and ran for President in part based on his opposition to it.

The Trump administration also renewed the EO every year. Despite President Biden professing his full support of repealing the 2002 AUMF, the Biden administration also has sought to continue the Iraq sanctions program.

As Members can see from successive renewals and the ongoing situation in Iraq, these sanctions target groups and individuals that continue to operate against U.S. interests in Iraq and the region and are closely monitored on an ongoing basis.

We do not want terrorists to access funds to kill civilians and destabilize Iraq or the region, let alone target Americans overseas. It is important for our national security for these sanctions to remain in place, and I strongly urge Members of this body on both sides of the aisle to forcefully and in a bipartisan manner oppose this resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. CRANE. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of my bill today, which would terminate the 2003 national emergency for Iraq. This legislation serves as a much-needed check on the Biden administration and forces Congress to do its job.

The National Emergencies Act was passed in 1976 and was originally enacted in response to Presidents FDR and Truman keeping the country in a perpetual state of emergency as part of their daily governance.

Specifically, section 202 requires Congress to vote on any resolution terminating each national emergency every 6 months: ''Not later than 6 months after a national emergency is declared, and not later than the end of each 6-month period thereafter that such emergency continues, each House of Congress shall meet to consider a vote on a joint resolution to determine whether that emergency shall be terminated.''

In other words, the bill requires Congress to rein in emergency declarations. However, despite this requirement, Congress has never reviewed the national emergency related to Iraq. This is recklessly endangering our Republic, our system of checks and balances, and due process, and it undermines we the people.

The extended national emergency declaration related to Iraq provides the President with broad statutory powers only meant for times of actual emergency, including the power to draft Americans without consent into Active Duty.

Mr. Speaker, my colleagues on the House Foreign Affairs Committee are tasked with reviewing dozens of extended national emergency declarations as required by law every 6 months.

□ 1515

It is long past time for Congress to do its job and terminate outdated declarations.

I have personally been deployed to Iraq three times as a Navy SEAL. I am not naive.

U.S. military overthrew Saddam Hussein's regime within 3 weeks of being there, and we killed Saddam Hussein in 2006. We formally declared the end of the Iraq war an December 15, 2011. We should not leave this national declaration for Iraq in place as a green light for the Biden administration to fuel forever wars.

Mr. Speaker, since President Biden has been in office, he is now participating in a new proxy war with Russia in Ukraine and allowed an invasion at our southern border. Spending concerns, constitutional concerns, and concerns regarding the lives of our soldiers are easily and often overlooked by this administration.

Two-thirds of veterans and majorities of military families and the public support full withdrawal of U.S. troops from Iraq, and a vast majority of the general public, 80 percent, believe our military engagement around the world should be reduced or stay about the same size. Only 6 percent believe we should be more engaged.

The U.S. has many vital national interests—securing our borders, addressing the crisis of readiness within our military, and achieving energy security and independence. Becoming further entangled in forever wars is not one of them.

Just like the Ukraine-Russia war, Americans see no end in sight and no clear strategy to resolve forever wars. This is a clear dereliction of duty, and Congress must act.

Mr. Speaker, I urge my colleagues to vote in favor of this resolution, and I reserve the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I reserve the balance of my time and the right to close.

Mr. PHILLIPS. Mr. Speaker, I reserve the balance of my time.

Mr. CRANE. Mr. Speaker, I yield back the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield myself such time as I may consume for the purpose of closing.

Mr. Speaker, my argument is very simple: We cannot and we must not allow terrorists to obtain assets that could help them perpetuate attacks against their government, against civilians, or against Americans.

I strongly oppose H.J. Res. 71, and I urge all my colleagues on both sides of the aisle to do the same.

Mr. Speaker, I yield back the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I yield myself the balance of my time.

Again, I am grateful for the bipartisan effort with Ranking Member DEAN PHILLIPS of Minnesota.

The immediate lifting of sanctions on terrorists who actively threaten

America is unconscionable. These national emergency economic authorities are scoped solely to economic sanctions authorities and are effective in preventing terrorists from accessing the financial networks they need to carry out atrocities against Americans and our allies.

American veterans of service in Iraq should be appreciated for their success in liberating the people of Iraq from a murderous dictator who was appropriately executed. This is a message toward criminal Putin that his invasion of Ukraine, totally unprovoked, will result in justice for his conduct of mass murder.

Mr. Speaker, I urge my colleagues to oppose this resolution, and I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to order of the House of July 13th, 2023, the previous question is ordered.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. CRANE. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON MAY 11, 2004

Mr. WILSON of South Carolina. Mr. Speaker, pursuant to the order of the House of July 17, 2023, I call up the joint resolution (H.J. Res. 79) relating to a national emergency declared by the President on May 11, 2004, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to the order of the House on July 17, 2023, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 79

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That pursuant to section 202 of the National Emergencies Act (50 U.S.C. 1622), the national emergency declared by the finding of the President on May 11, 2004, in Executive Order 13338, is hereby terminated.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes equally divided among and controlled by Representative MCCAUL of Texas, Representative MEEKS of New York, and Representative GAETZ of Florida, or their respective designees.

The gentleman from South Carolina (Mr. WILSON), the gentleman from Minnesota (Mr. PHILLIPS), and the gentleman from Florida (Mr. GAETZ) each will control 10 minutes.

The Chair recognizes the gentleman from South Carolina.

GENERAL LEAVE

Mr. WILSON of South Carolina. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from South Carolina?

There was no objection.

Mr. WILSON of South Carolina. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to this resolution. The Syria National Emergency is the basis for sanctions against the regime of the murderous dictator Assad and his comrades.

For over a decade, the Assad regime, war criminal Putin, and the terrorist regime in Tehran have committed brutal atrocities against the people of Syria. The civilian mass murder in Aleppo should never be forgotten, which was facilitated by war criminal Putin.

In the last 5 years, sanctions issued pursuant to this authority have prevented over $100 million from reaching more than 100 dangerous entities and individuals affiliated with the Assad regime and its backers, including ISIS middlemen.

This murderous regime has supported international terrorism, committed innumerable atrocities against civilians, assisted with the manufacture of ballistic missiles, and developed weapons of mass destruction.

Let me be clear: Some of the people sanctioned under this national emergency quite literally developed chemical weapons, and we know when President Donald Trump determined that chemical weapons were used, he immediately responded with a direct attack on the Assad regime.

If we overturn this national emergency, those sanctions will automatically and immediately disappear. The criminals behind Assad's weapons of mass destruction program should not be able to access credit cards to do business with Americans.

These sanctions are more than just an essential tool in countering the war criminal Bashar Al Assad. As previously mentioned, most of the proceeds from violations of the sanctions, including these sanctions on Syria, go directly to the U.S. Victims of State Sponsored Terrorism fund, which benefits American victims of terrorism, including our Nation's 9/11 families.

In addition, this resolution would terminate sanctions on people like George Haswani, who the U.S. Treasury has named, and I quote: ''A Syrian businessman who serves as a middleman for oil purchases by the Syrian regime from ISIL.''

It would also lift sanctions on a number of Assad officials who support Hezbollah terrorists who threaten daily the people of Israel from Lebanon.

Today, Assad is not only a war criminal, but also the head of a narco-state. His regime spreads both the malign influence of his Iranian puppet masters and the scourge of drugs throughout the region.

The Assad regime is a critical player in the growth of regional and global trade of the narcotic Captagon. Removing these sanctions would be a gift to Assad, Putin, and the Iranian regime, as the civilized world confronts the unprovoked attacks on democracies which have rule of law being attacked by the dictators with rule of gun.

Terminating this national emergency would immediately terminate sanctions on hundreds of Assad cronies and financiers, developers of Syria's chemical weapons, terrorist-supporting middlemen who threaten America and Israel, and drug traffickers involved in the Captagon trade.

Mr. Speaker, I urge my colleagues to oppose the Assad regime, its dictatorship, and support the people of Syria to oppose this resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to H.J. Res. 79, which terminates the national emergency pertaining to actions and policies that have existed for years, enjoyed bipartisan consensus, and underpinned a significant portion of the U.S.-Syria sanctions architecture.

More specifically, this measure targets an executive order that was issued based on legislation that Congress passed with broad bipartisan consensus: The Syria Accountability and Lebanese Sovereignty Restoration Act, which over 400 Members of the House, including 200 Republicans, voted in support of.

For over 12 years, Syria's Assad regime has perpetrated a heinous campaign of genocide and unrelenting violence against the Syrian people, who rose up for their basic rights and freedoms after years and years of oppression.

This unceasing campaign of brutality has been aided and abetted by Assad supporters in Tehran and Moscow, and amounted to countless war crimes and the most egregious violations of international humanitarian law of which I am aware.

Relevant to this legislation, the Assad regime has served as a fertile and pliant jurisdiction for Hezbollah and other Iranian proxies to shuttle arms throughout the region, as well as grow in numbers and capabilities in support of the Assad regime's actions against the Syrian people.

At the same time, actors ranging from the remnants of ISIS to other violent extremist organizations like al-Qaida-affiliate Hurras al Din, and others continue to terrorize civilians, and threaten to reconstitute and, again, use Syria as a launchpad for attacks into Europe and the rest of the world.

Active U.S. efforts to counter and degrade these very groups and support networks—those targeted by the sanctions—would be undermined by abruptly repealing and stripping away such important authorities. Preemptively abandoning these policy tools and sanctions authorities through a rushed, poorly conceived legislative effort undermines our national security interests and those of our closest partners.

Mr. Speaker, I encourage my colleagues on both sides of the aisle to join me in opposition to this measure, and I reserve the balance of my time.

□ 1530

Mr. GAETZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I brought a war powers resolution to the floor this Congress to get U.S. troops out of Syria, arguing that the United States, being excessively entangled in a great power competition in Syria wasn't making life better for Syrians, it wasn't playing out to our benefit in the sphere of great power competition, and that it left U.S. servicemembers and contractors as sitting ducks.

Following that vote, which I lost overwhelmingly in a bipartisan fashion, sadly, there were casualties; there was the death of an American, because we have now become the neighborhood crime watch of certain areas in Syria where there are oil rigs. That is what it is all about.

I now come to the floor with this resolution to repeal a 2004 emergency vis-a-vis Syria. Now, it is supposed to be voted on by Congress every 6 months thereafter, but we have been derelict in our duty in doing so.

I am glad that today we are bringing forward a number of these emergency resolutions that have been dormant slush funds, spending untold sums of money with no transparency as to how much is going into the Syrian emergency.

How about this rule for how the House thinks about emergencies: Nothing is allowed to be an emergency for 20 years. If it were really an emergency, there probably would have been some cataclysmic event of Biblical proportion before the 20 years. If it is still an emergency 20 years later, it is a chronic condition, and the United States cannot be the world's policeman and we cannot be the world's piggy bank.

Now, if the principal argument against my resolution is that my resolution is soft on Assad, well, the logic that undergirds that is that somehow the 2004 resolution was this great anti-Assad tool that we must have, that we must maintain, to beat Assad.

Look around, Mr. Speaker. Assad has never been stronger. So if this 2004 resolution was Assad kryptonite, it has been the worst Assad kryptonite you can ever imagine. It has malfunctioned.

I think we ought to repeal this emergency. We have sought transparency to see how much money has been going pursuant to it. We don't know the answer to that question.

To the extent that there are sanctions that we still want to maintain, whether there are the other national emergencies that exist targeted at terrorism generally, at Russia, at Iran, we have the Magnitsky Act and there are all kinds of other authorities for the President, the Secretary of the Treasury, the Secretary of the Department of Commerce, even the DOD weighs in, and the State Department, regarding sanctions regimes.

This is not a vote to lift sanctions and then hope for the best with some pretty gnarly Syrians. In fact, it is us standing up to do our job, and that is what we should do in repealing this 2004 resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I reserve the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield 2½ minutes to the gentleman from California (Mr. SHERMAN).

Mr. SHERMAN. Mr. Speaker, this is indeed a resolution to roll back sanctions and then hope that maybe we will reimpose them on some other basis not detailed by the gentleman from Florida. This is not some meaningless resolution to feel good about or to message about. It has practical consequences.

How many more people would Assad have been able to kill if he had the chance to cooperate economically with businesses here in the United States? How many other dictators would feel free to develop chemical weapons, would feel free to murder their own people and feel that they would face no economic consequences from the United States?

Our policy has not turned Syria into a garden spot.

What would the world be like if America turned its back on the crimes of Assad? Assad has killed more than half a million of his own people and forced 12 million people to flee.

These particular sanctions are imposed on the Assad regime specifically because of his support for Hamas and Hezbollah. Think of that. We are having the President of Israel come here tomorrow, and what would we greet him with but nothing but a rollback of sanctions against two terrorists organizations who are trying to kill as many Israeli civilians as possible every day of the week.

I think for us to be considering a pro-Israel resolution on this very floor in a few hours, for us to be welcoming the President of Israel tomorrow, and to have a resolution on this floor that would say it is okay, support Hamas, support Hezbollah, watch them try to kill as many Israelis as possible—they are not always successful, but they are trying—I can't think of a more effective way to insult the President of Israel when he stands on that podium and addresses us tomorrow.

Let us continue to do what we can and remember that these sanctions do not expose a single American serviceman to risk of death or risk of injury. We should at least be willing to use the economic power of the United States to do what we can to rein in Syria and to make it clear to other dictators that chemical weapons, mass murder, and support for terrorism is not something that we will ignore.

Mr. GAETZ. Mr. Speaker, I yield myself such time as I may consume.

I would point out, Mr. Speaker, to the gentleman that if he is looking for a more effective way to insult the President of Israel, he need look no further than the remarks of some of his own colleagues in the recent days, which I would deem far more insulting than this policy debate about how to have an effective sanctions regime.

No one here is arguing for sanctions relief vis-a-vis these individuals. What we are saying is that the National Emergencies Act is a very ineffective, inefficient way to administer a sanctions regime. We do have specific authorities with the Magnitsky Act, with the National Emergencies Act vis-a-vis counterterrorism. Treasury has these authorities. State has these authorities. Most importantly, Congress has the authority to impose sanctions.

If you believe that there are people who should be the subject of sanctions by the United States Government, we are the board of directors of the most powerful country on the planet Earth. We can introduce those bills, vote for them, and we can fulfill our constitutional authority.

What I am asking the Congress to do is to repeal a 2004 emergency vis-a-vis Syria when Syria doesn't look anything like it did in 2004.

Mr. Speaker, if you vote to allow this national emergency to continue, what you are doing is gaslighting unaccountable spending by the Biden administration because they never have to make the requisite report regarding the outlays on these matters. The money just moves around, and we never quite see the efficacy of it.

We are all strong supporters of Israel on this side of the aisle, certainly, and I would observe that U.S. policy in Syria has not particularly helped Israel. As a matter of fact, when you had terrorist groups setting up camps in Syria, directed at Israel, you know what the Israelis did? They took them out. They blew them up. That sent a message to Iran, the balance of power was restored, and it did not involve the United States of America becoming the block captain of Syria or anywhere else in the Middle East. If we want to do that, it should be through a war powers

resolution with Congress affirmatively voting to do it, not just having rolling national emergencies.

When the law contemplates a requisite obligation for us to vote to reauthorize these things, we never do it. We don't do our job, then the money goes out the door, and we don't see a safer Israel, a safer Middle East, or a safer Syria. All we see is an empowered Assad. If this is the great tool we had against Assad, we had better be thinking of some different ones, because it hasn't exactly worked out as the proponents of this national emergency would seemingly indicate.

Mr. Speaker, I yield back the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I reserve the balance of my time.

Mr. PHILLIPS. Mr. Speaker, I yield myself such time as I may consume for the purpose of closing.

I agree with my colleague from Florida on a couple points. I abhor war like he does, and I wish Congress would reassert itself, but I must say, we should legislate it, not terminate it.

Abruptly terminating this national emergency will simply undermine U.S. national security interests and those of our allies. The resolution would further destabilize Syria and the entire region, be a gift to the violent and oppressive Assad regime, and create space for terrorist organizations like ISIS to grow in numbers and capabilities.

I strongly oppose H.J. Res. 79 and urge my colleagues to do the same. I hope my colleagues on both sides of the aisle join me in opposing it.

Mr. Speaker, I yield back the balance of my time.

Mr. WILSON of South Carolina. Mr. Speaker, I yield myself the balance of my time for closing.

The bipartisan opposition to this resolution is significant. Lifting the national emergency of economic authorities with regard to Syria would immediately line the pockets of chemical weapons manufacturers, terrorists, and drug traffickers who have committed horrific crimes against humanity.

We must work together to oppose the Hezbollah murderers who attack Israel from Lebanon. These economic sanctions keep terrorists from using the financial networks of the free world to enrich themselves and plan attacks against America and our allies.

Democracies must stand together to respond to the dictators' rule of gun opposing democracies' rule of law. The world is in a competition we did not choose. Democracies are under attack by dictators such as war criminal Putin, the Chinese Communist Party, and the regime in Tehran.

Ronald Reagan was absolutely correct, and that is we must have peace through strength.

Mr. Speaker, I urge opposition to this resolution, and I yield back the balance of my time.

The SPEAKER pro tempore (Mr. MILLER of Ohio). All time for debate has expired.

Pursuant to the order of the House of July 17, 2023, the previous question is ordered.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. WILSON of South Carolina. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or votes objected to under clause 6 of rule XX.

The House will resume proceedings on postponed questions at a later time.

EXPRESSING THE SENSE OF CONGRESS SUPPORTING THE STATE OF ISRAEL

Mr. MCCAUL. Mr. Speaker, I move to suspend the rules and agree to the concurrent resolution (H. Con. Res. 57) expressing the sense of Congress supporting the State of Israel.

The Clerk read the title of the concurrent resolution.

The text of the concurrent resolution is as follows:

H. CON. RES. 57

Resolved by the House of Representatives (the Senate concurring), That it is the sense of Congress that—

(1) the State of Israel is not a racist or apartheid state;

(2) Congress rejects all forms of antisemitism and xenophobia; and

(3) the United States will always be a staunch partner and supporter of Israel.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. MCCAUL) and the gentleman from New York (Mr. MEEKS) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. MCCAUL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on this measure.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, tomorrow, the President of Israel will address this body in a joint session. It will be a great day in American history as Representatives of one of the greatest democracies are addressed by the head of state of another. Democracy and its shared values are at the very core of the U.S.-Israel relationship.

The beauty of our friendship is that we stand together, shoulder to shoulder, as we defend our freedom and our way of life from threats like Iran, Hezbollah, Hamas, and other forms of terrorism.

□ 1545

Let me be clear. Israel is not a racist country. It is deeply disturbing and concerning to me that some in this body have such a profound misunderstanding of Israel and Israeli society.

The previous government in Israel had Arab parties and Arab ministers serving in the coalition government. What a fantastic achievement for democracy. It is no secret that Israel is a country in a tough neighborhood that is clear-eyed in seeing many threats in its own backyard.

The United States will always support Israel's right to self-defense. We see Israeli citizens being murdered in senseless terrorist attacks. At times, the fallen have been American citizens.

Israel is responsible for protecting the well-being of its citizens. Protecting one's citizens from terrorist attacks is not racism. It is national security. To think otherwise is small-minded, and quite frankly, Mr. Speaker, it is just plain and simply wrong.

A key component of friendship is looking out for one another and standing up for each other. Racism has no place in this body or in public discord, period. I support this resolution rejecting false accusations and repulsive anti-Israel statements. I stand—and I know almost everyone in this Chamber stands—with our friends in Israel.

Mr. Speaker, I thank my friend from Texas (Mr. PFLUGER) for bringing this resolution forward. Mr. Speaker, I urge my colleagues to support this, and I reserve the balance of my time.

Mr. MEEKS. Mr. Speaker, I rise in support of this resolution, and I yield myself such time as I may consume.

Mr. Speaker, tomorrow, we welcome Israel's President Herzog to the United States of America.

For my entire career of 25 years in the House, and in recent weeks, I have stood on this floor and spoken on the importance of the State of Israel. The need for Israel to remain both Jewish and democratic is without question.

Mr. Speaker, Israel cannot remain both Jewish and democratic unless we have peace and if it does not live side by side in peace with the Palestinian people. Both sides have to want peace. That is why I stand strongly behind a two-state solution for Israelis and Palestinians.

As the resolution before us states, Israel is not a racist state. I concur.

As the resolution before us states, Congress rejects all forms of anti-Semitism and xenophobia. I concur.

Finally, as the resolution before us states, the United States will always be a staunch partner and supporter of Israel. I concur.

I look forward to hearing the address of Israel's President Herzog tomorrow. The President is a rare symbol of unity in a polarized society and a true asset to Israel. He has been working diligently to bring all parties in Israel together to find consensus on judicial reform, something that is necessary to preserve Israel's democratic character, in my view. I encourage him to keep up this important work and wish him much success.

Without question, the Democratic Party, my Democratic Party, supports the long-term viability of the Jewish state and knows its true character and importance. In fact, I, along with Leader JEFFRIES and others, was in Israel recently to celebrate the 75th anniversary of the Jewish state and was moved by the events we witnessed.

Mr. Speaker, I support wholeheartedly and encourage all of my friends on both sides of the aisle to support this resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. PFLUGER), the author of this resolution.

Mr. PFLUGER. Mr. Speaker, I rise in support of the State of Israel and the Jewish community here in the United States of America and, quite frankly, throughout the world.

I thank the chairman and the ranking member, two men who have worked tirelessly on this very topic, this very subject.

I have a resolution. It is simple. It is one page. It is one page, but I think it is powerful. It says the State of Israel is not a racist or apartheid state. It says that Congress rejects all forms of anti-Semitism and xenophobia. Lastly, it says that the United States will always be a staunch partner and supporter of Israel.

It is simple. It is a one-page resolution that I think every Member of Congress should be able to agree on. Unfortunately, Mr. Speaker, we have heard disgusting statements from Members on the other side of the aisle against Israel.

Mr. Speaker, as I look at this debate here, this is the time when anyone who has said those types of things can come to the House floor to debate and have a conversation. If there is disagreement with this, let's let the American people hear that disagreement.

From my standpoint, we look at Israel as the most important partner in the Middle East. Tomorrow, in fact, as we welcome President Herzog to this very body, to the United States, to a joint address of Congress, it is critical for the U.S. Congress to send a unified message that we stand with Israel and unequivocally support our Jewish communities. There is no place for hate or hateful words.

Mr. Speaker, I hope this is an easy vote today. It should be easy. All 435 Members of this body should be able to vote in affirmation of this so that when President Herzog enters this body tomorrow, he knows unequivocally that the United States is with Israel and that the entire world knows that.

In fact, 75 years ago, within minutes of being recognized as a nation, the United States was the very first to recognize Israel as a nation. It is because we both believe in freedom. We both believe in a trusted partnership. We both believe in pushing back against enemies around the world like Iran, the largest state sponsor of terrorism, that would seek to undermine at every turn the State of Israel.

Where are those colleagues if they disagree?

I think what this debate tells me today, seeing very little disagreement on the House floor, is that we as the United States of America, that we as the U.S. Congress, that the House of Representatives believes in the tenets.

I will say it one more time. The State of Israel is not a racist or apartheid state. Congress rejects all forms have anti-Semitism or xenophobia. The United States will always be a staunch partner and supporter of Israel.

Mr. Speaker, not only do I urge my colleagues to support this, but I urge my colleagues to stand up against bullying against those who would say things that are not true, those that would denounce or use words that are hateful in their rhetoric, that undermine the very essence of the nation of Israel, and that undermine the freedoms that this country stands for.

Mr. Speaker, it is with great honor that I am able to author this and stand before the American public and reaffirm, on the 75th anniversary of Israel as a nation, our support in the United States of America for a nation that I believe is divinely inspired.

Mr. MEEKS. Mr. Speaker, I yield 2 minutes to the gentlewoman from North Carolina (Ms. MANNING).

Ms. MANNING. Mr. Speaker, I rise in support of H. Con. Res. 57, expressing the sense of Congress supporting the State of Israel.

Israel, the historic homeland of the Jewish people, is a robust, thriving, multiracial, multiethnic, and multireligious democracy that shares our democratic values. Like the United States, Israel is not perfect. It has challenges and policies that are openly criticized, often by the Israeli people themselves.

Let me be clear. Israel is not now and never has been a racist state. That characterization is contrary to the facts. It is an untrue and unfair characterization that slanders our strongest ally in the region.

Significantly, Israel is the world's only Jewish state. Prior to its founding, Jews suffered centuries of persecution with no country, not one that would guarantee their safe haven. Since its founding, Israel has valued equal rights for all its citizens. It has provided a home to Jewish refugees from all across the globe, from Ethiopia to the Soviet Union to Argentina to Ukraine, all while living under threat from neighbors and terrorist groups dedicated to Israel's destruction.

Too often, divisive voices are quick to demonize Israel. Today, we reaffirm our commitment to the U.S.-Israel relationship. Tomorrow, I will be proud to welcome President Herzog to a historic joint meeting of Congress where the bipartisan majority of this body will stand together to commemorate and cherish the U.S.-Israel relationship.

Mr. Speaker, I urge all my colleagues to join me in voting to support this straightforward resolution and stand with our democratic ally Israel.

Mr. MCCAUL. Mr. Speaker, I yield 2 minutes to the gentleman from Nebraska (Mr. BACON).

Mr. BACON. Mr. Speaker, I stand here in support of this resolution today. I look forward to welcoming the President of Israel tomorrow and hearing his message.

I also stand here in support of this resolution condemning the comments that Israel is a racist country. It is not. We all stand here today united against anti-Semitism and the evil that it represents. It is repugnant.

Mr. Speaker, I will make clear today from my perspective why it is so important to stand with our ally Israel. We have practical reasons, moral reasons, and spiritual reasons—practical in that Israel is the only nation in the region that shares our democratic values, the values of rule of law and human dignity. It is a win-win relationship.

□ 1600

We gain from it, they gain from it, and our countries are stronger together.

It is moral because for thousands of years, the Jews were repressed, discriminated against, abused, and murdered. The nation of Israel was put together to be a safe haven from all over the world where they could go, and that remains true today.

I would say it is spiritual, for I believe in the words of the Torah and our Old Testament when it says that those who bless Israel will be blessed, and, indeed, America has been blessed.

Mr. Speaker, I stand in support of this resolution, and I appreciate my friend from Texas who is a fellow Air Force veteran who put this together.

Mr. MEEKS. Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield 2 minutes to the gentleman from Iowa (Mr. NUNN).

Mr. NUNN of Iowa. Mr. Speaker, I rise today in strong support of this resolution and the State of Israel.

I compliment both the chair for leading this, Mr. MCCAUL, as well as my colleague, Representative PFLUGER, for being brave enough to stand forward and call out Israel not only as an ally, but as standing in that steely breach as a force for democracy, as a force for freedom, and a voice for free people in a world too often tried time and time again by tyrants and terrorists.

Our support for Israel is critical during times of global uncertainty and continued aggression by adversaries around both the region and the world.

When I worked with the Israeli Defense Forces, I saw the threats firsthand from the Golan Heights to the north to the kibbutzes in the south.

Across the world, we must reject anti-Semitism in all its forms and stand with Israel and the people of Israel against these threats. We cannot let our strongest ally in the Middle East be left alone.

Mr. Speaker, I will continue in my unwavering support of Israel and encourage my colleagues to join me.

Mr. MEEKS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. MILLER).

Mr. MILLER of Ohio. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, today I rise to once again reaffirm my steadfast commitment to a free and prosperous State of Israel.

Mr. Speaker, today every single Member of this honorable body will have the opportunity to stand against anti-Semitism, to stand against bigotry, to stand against hatred, and to stand for the forever home of the Jewish people, our great friend and democratic ally in the Middle East, the key pillar to freedom and democracy for the entire region, and the home of so much of our shared history: the State of Israel.

Today we bring forward yet another opportunity. It is yet another opportunity for individuals in this body to set their words and their records straight and to walk back their words, which they so often choose to do.

Mr. Speaker, I urge all of my colleagues to support this resolution.

Mr. MCCAUL. Mr. Speaker, I reserve the right to close, and I reserve the balance of my time.

Mr. MEEKS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, in the 117th Congress, when I became the chair of Foreign Affairs Committee, my first stop was in Israel celebrating the Fourth of July.

I said then what I will say now: Israel and the United States stand together because we have and share the same values. We believe in democracy.

We know that Israel is a nation that at its foundation is not only Jewish but democratic.

Its existence is crucial for the future of the Jewish people. We know that this Congress will continue to expressly reject all forms of anti-Semitism and xenophobia as this resolution before us states.

We stand together, and I would hope that all Members of this august body welcome President Herzog tomorrow as we listen and continue to work with our strongest ally in the Middle East.

Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. SHERMAN).

Mr. SHERMAN. Mr. Speaker, this is an excellent resolution. Israel is not a racist or apartheid state. Congress should and does reject all forms of anti-Semitism and xenophobia, and the United States will always be a staunch partner and supporter of Israel.

However, why are we taking this up today?

We are taking this up today because one of our colleagues from the State of Washington made a statement and then withdrew it.

The question is: Why didn't we take up this resolution when Nick Fuentes, a Holocaust denier, was honored by the former President and given a chance to have dinner with the former President at his home in Mar-a-Lago?

That is when we should have dealt with this resolution.

We should have taken up this resolution when Kanye West had the honor of dinner with Donald Trump, the former President of the United States.

We should have taken up this resolution when our colleagues, Mr. GOSAR and Congresswoman MARJORIE TAYLOR GREENE, both at different times joined Fuentes on stage, and in each case after they were denounced for the anti-Semitic act of lending their authority to Mr. Fuentes, these individuals did not withdraw, they did not apologize, and they did not condemn Mr. Fuentes.

So we should believe in this resolution every day, and if we are going to allocate floor time, it should be when Holocaust deniers are honored by our colleagues and by the former President of the United States.

Mr. Speaker, I will vote for this resolution today, but I will believe in this resolution 365 days each year, including those days in which certain others do something outrageous.

Mr. MEEKS. Mr. Speaker, may I inquire how much time I have remaining.

The SPEAKER pro tempore (Mr. BACON). The gentleman from New York has 10½ minutes remaining.

Mr. MEEKS. Mr. Speaker, I yield 2 minutes to the gentlewoman from the great State of Michigan (Ms. TLAIB).

Ms. TLAIB. Mr. Speaker, I am the only Palestinian American serving in Congress, and I have family members all throughout the West Bank and what many people call the illegally occupied territories.

We are here again reaffirming Congress' support for apartheid. Policing the words of women of color who dare to speak up about truth and about oppression is just not what we should be doing here in Congress.

Let's just get the record straight here. This is not something that is made up. The United Nations Human Rights Watch, Amnesty International, and Israel's own largest human rights organization, B'Tselem, all agree that Israel is an apartheid state.

To assert otherwise, Mr. Speaker, in the face of this body of evidence is an attempt to deny the reality and to normalize violence of apartheid.

This week we are going to hear consistently people touting about, oh, this is bipartisan support here.

Don't forget, this body, this Congress, supported a South African apartheid regime, and it was bipartisan as well.

Mr. Speaker, you don't have to take it from me to understand the racism of an apartheid government. Let's take a moment just to hear Israeli Government's own politician in their own words. This is a direct quote, not mine. Current Prime Minister Netanyahu on his policies toward Palestinians said: ''Beat them up, not once but repeatedly, beat them up until it is unbearable.''

He said that Israel must ''crush Palestinian hopes for a fully sovereign state.''

One of the former defense ministers said that Palestinians are ''beasts. They are not human.''

He is talking about people like my grandmother, Mr. Speaker.

How about a former justice minister who said: ''They should go, as should the physical homes in which they raised the snakes. Otherwise, more little snakes will be raised there.''

How about another former defense minister said: ''Those who are against us, there is nothing to be done. We need to pick up an ax and cut off his head.''

Another quote: ''There is no such thing as a Palestinian people.''

How is that not racism at its core?

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. MEEKS. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Michigan.

Ms. TLAIB. Mr. Speaker, Israel's own President Herzog is going to come before Congress tomorrow. He has long advocated against interracial marriages.

Did you all know that?

Do you care?

He said it on a news segment. Look it up.

When he came to America, he said: ''I encountered something that I called an actual plague. I saw my friends' children married or coupled with non-Jewish partners.''

Israel is an apartheid state. The Israeli Government is deeply problematic in the way that they are proceeding in the structure of oppression.

Mr. Speaker, just like I speak up against injustices here in America, this is about speaking up against violence. Congress must stop funding apartheid.

Mr. MEEKS. Mr. Speaker, I yield back the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself the balance of my time to close.

Mr. Speaker, there is nothing progressive about racism. Racism is ugly. I know my colleague, my dear friend, Mr. MEEKS, who is a member of the Congressional Black Caucus, knows what racism is.

He is also the strongest supporter of Israel.

I know our colleague, John Lewis, knew what racism really is, and racism is ugly.

Israel is not a racist state. My father was a bombardier in a B–17. He bombed the Nazis.

Why were we at war with Adolf Hitler and the Nazis?

For many reasons, but, fundamentally, because of their values. They were anti-Semitic. During the Holocaust, racism, in its ugliest form, took place in the concentration camps in Europe and, indeed, in Auschwitz, where I attended to see the horrors of what mankind can do against mankind.

Why was the State of Israel formed?

Israel was formed out of a racist society to say to the world: No longer, never forget, and we will not tolerate racism.

Mr. Speaker, 75 years later we stand here in this body celebrating this democratic state in the Middle East that was formed because of persecution and because of racism. We do not stand for racism. No one in this Chamber should stand for racism.

To call Israel, which was formed as a result of racism, anti-Semitism, and hatred, to call that very country a racist state is repugnant to all of our values.

I think everyone in this Chamber should vote ''yes,'' because as my dear friend across the aisle knows, racism and anti-Semitism have no place—no place—not only in this Chamber, but not in America and not anywhere in the world. Where we see it, we denounce it in its most ugliest form.

So this is a call to action to defend her and to defend the nation that was created by primarily the United States and our allies as a result of the hatred that we saw come out of Nazi Germany.

Mr. Speaker, I urge my colleagues to vote ''yes,'' and I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Speaker, I rise to address H. Con. Res. 57.

I condemn antisemitism and hate in all its forms, and my record is clear. Last Congress, I voted for H. Res. 1125 affirming this stance, and I have always and will always speak out against hate.

I also support the rights of both Israelis and Palestinians to live in safety. As Chair of the Defense Appropriations Subcommittee in the 117th Congress. I fully funded the Iron Dome and U.S.-Israeli cooperative missile defense programs that help ensure Israel's security.

As a long-time supporter of a two-state solution, I am deeply troubled by the record of Prime Minister Benjamin Netanyahu and actions of the Israeli government that run counter to this stated goal. For example, the Israeli government's decision in 2018 to enact their Nation-State law, which restricts the rights of Palestinians. Or the lack of accountability for how Israel uses the $3.8 billion in annual security assistance provided by the United States. These concerns are central to why I introduced H.R. 3103 to prevent U.S. taxpayer dollars from being used to support the military detention of Palestinian children, demolish Palestinian homes, or annex Palestinian lands.

I am proud to serve in the United States House of Representatives, in the greatest democracy in the world. A cornerstone of a strong democracy is the ability to openly criticize our government when we feel it is doing something against our values. As a Member of Congress, I have often criticized the policies of my own government. That does not make me anti-American. And criticizing the policies of the Israeli government does not make one antisemitic.

H. Con. Res. 57 does nothing to advance the goal of a peaceful solution to end the conflict. Striving for an Israeli state and a Palestinian state living side-by-side in peace and security is worth the effort of every Member of Congress. But that means Congress will need to support the rights, needs, and aspirations of both Palestinians and Israelis.

Attempting to silence conversations about Palestinian human rights and intimidate people who wish to have open and honest conversations about the mistreatment of the Palestinian people will only prolong this problem. I will not be silenced. I will keep speaking up against antisemitism, oppression, and hate in all forms.

I will vote ''present'' on this resolution, because Americans, Israelis, and Palestinians deserve genuine steps forward on the goal of peace, not more division and political gamesmanship. I do this because every Palestinian child and Israeli child deserves to go to sleep at night dreaming of a brighter future, not one of violence.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. MCCAUL) that the House suspend the rules and agree to the concurrent resolution, H. Con. Res. 57.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. MCCAUL. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

SCHOOLS NOT SHELTERS ACT

Ms. FOXX. Mr. Speaker, pursuant to House Resolution 597, I call up the bill (H.R. 3941) to prohibit the use of the facilities of a public elementary school, a public secondary school, or an institution of higher education to provide shelter for aliens who have not been admitted into the United States, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 597, the amendment in the nature of a substitute recommended by the Committee on Education and the Workforce, printed in the bill, is adopted and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 3941

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Schools Not Shelters Act''.

SEC. 2. PROHIBITION ON USE OF SCHOOL AND INSTITUTION FACILITIES TO SHELTER CERTAIN ALIENS.

(a) IN GENERAL.—As a condition on receipt of Federal financial assistance under any applicable program by a public elementary school, a public secondary school, or an institution of higher education, the facilities of the school or institution may not be used to provide shelter or housing for specified aliens.

(b) CONSTRUCTION.—Subsection (a) shall apply notwithstanding subparagraphs (B) and (D) of section 401(b)(1) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1611(b)(1)) and paragraphs (2) and (4) of section 411(b) of such Act (8 U.S.C. 1621(b)).

(c) DEFINITIONS.—For purposes of this Act:

(1) The term ''applicable program'' has the meaning given such term in section 400 of the General Education Provisions Act (20 U.S.C. 1221).

(2) The terms ''elementary school'' and ''secondary school'' have the meaning given such terms in section 8101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(3) The term ''Federal financial assistance'' has the meaning given such term in section 7501(a)(5) of title 31, United States Code.

(4) The term ''institution of higher education''—

(A) has the meaning given such term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002); and

(B) does not include an institution that is not located in a State.

(5) The term ''shelter or housing''—

(A) means emergency shelter or housing provided exclusively to specified aliens under order of the Federal Government, a State, or a unit of local government; and

(B) does not include short-term emergency shelter made necessary by a specified disaster.

(6) The term ''specified alien'' means an alien (as defined in section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a))) who has not been admitted (as so defined).

(7) The term ''specified disaster'' means—

(A) a fire on public or private forest land or grassland described in section 420 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5187); and

(B) any fire, flood, explosion, hurricane, tornado, storm, high water, winddriven water, tidal wave, tsunami, earthquake, volcanic eruption, landslide, mudslide, snowstorm, or drought for which a disaster declaration is made by the Federal Government or a State.

(8) The term ''State'' means any State of the United States, the District of Columbia, Puerto Rico, the Virgin Islands, Guam, American Samoa, and the Commonwealth of the Northern Mariana Islands.

The SPEAKER pro tempore. The bill, as amended, shall be debatable for 1 hour equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce or their respective designees.

After 1 hour of debate, it shall be in order to consider the further amendment printed in part B of House Report

118–147, if offered by the Member designated in the report, which shall be considered read, shall be separately debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to a demand for a division of the question.

The gentlewoman from North Carolina (Ms. FOXX) and the gentleman from Virginia (Mr. SCOTT) each will control 30 minutes.

The Chair recognizes the gentlewoman from North Carolina (Ms. FOXX).

GENERAL LEAVE

Ms. FOXX. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 3941.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from North Carolina?

There was no objection.

□ 1615

Ms. FOXX. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 3941, the Schools Not Shelters Act. In simplest terms, this bill ensures that any public K–12 or postsecondary education institution that houses illegal aliens will not receive a penny of funding from hardworking taxpayers.

Tens of thousands of illegal aliens are pouring into cities across the country, and this administration does nothing to secure the southern border. At its height in May, the average number of illegal border crossings averaged 10,000 per day. It is unsustainable and a slap in the face of Americans and those who come legally.

What is worse, Biden's allies at the State and local level have proposed using public school facilities to accommodate the influx.

Schools are for educating students, not housing illegal aliens. That statement shouldn't be controversial. Yet, somewhere along the way, the left diverged from reality and lost sight of what is best for students.

Take New York, for example. New York City Mayor Eric Adams recently announced plans to allocate up to 30 public school gymnasiums as overflow to house illegal aliens. Governor Hochul doubled down by expressing interest in housing 1,500 illegal aliens in dorms at a few SUNY campuses.

Adult illegal aliens, not children, were already being housed in Brooklyn at Public School 188 facilities by mid-May. Because of the thousands of migrants coming into New York City every week, New York City officials have stated they are in no position to take anything off the table when it comes to housing migrants.

Unfortunately, these actions set a precedent for other localities to follow. For example, in Chicago, 800 illegal aliens are being housed in two colleges.

H.R. 4931 puts a stop to this and for good reason. First, housing illegal aliens in public schools diverts educational resources away from students already reeling from the effects of prolonged school closures during the pandemic.

An entire generation of students has fallen behind academically. If you want proof, look no further than the latest NAEP student test scores for math, reading, civics, and history. They are abysmal.

Every educational resource available must be aimed at getting students back on track. Unfortunately, that is not a reality for many school districts.

In El Paso, surges in illegal aliens required the city to spend $300,000 a day in 1 month alone. That is nearly $10 million in 1 month, every dollar of which should have gone to students and our citizens.

Second, these policies drain institution budgets. It was reported that campuses within the University of Maine system that considered housing illegal aliens found that doing so would require millions to renovate unused facilities.

Beyond giving an old building a facelift, consider the recurring costs: electricity, water, and transportation, and those are just the basics. Make no mistake; institutions that bear increased costs to house illegal aliens will ultimately transfer that burden to students through tuition hikes or the American taxpayer.

Third, these actions perpetuate this administration's illegal border policies. Like many of the left's policies, they are shortsighted and do not address the root challenges that they are intended to solve. Housing illegal aliens in educational facilities is no different.

President Biden caused this mess at the southern border. He, along with his allies at the local and State level, should be the ones paying for their disastrous policies, not schoolchildren or postsecondary students.

Above all, consider this: No State, no city, no school district, and no institution is immune to the effects of an open border. Because of President Biden, every State has become a border State.

What we are voting on in the Schools Not Shelters Act is a change of priorities; putting students and taxpayers above the failed policies of President Biden. The Schools Not Shelters Act sends a message that Republicans will not stand for the left's sanctuary cities that continue to run cover for this administration. Nothing outweighs the success and safety of students.

Mr. Speaker, I reserve the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I speak in opposition to H.R. 3941, the scapegoating not solutions act. It is frustrating that we are taking up another proposal that, among other things, purports to improve school safety, yet does nothing to address school safety, does nothing to address learning loss, does nothing to address gun violence in the schools or improve students' mental health.

Regrettably, so far this Congress, House Republicans' priorities for K–12 education focused entirely on culture wars.

First, they passed legislation that would facilitate the banning of books. Then the House advanced a bill to seek to bar trans students from participating in sports activities.

House Republicans are currently working on a budget that makes devastating cuts to Federal support of education.

Now the House is considering yet another proposal to threaten to strip away funding from schools and institutions of higher learning if they use any of their facilities to temporarily house asylum seekers or undocumented immigrants in an emergency other than those caused by a disaster.

The message is clear: If you do not support this extreme agenda, congressional Republicans will pull your support for education.

Republicans have also falsely implied that temporarily using school facilities to provide shelter diverts educational resources from students already impacted by learning loss, and yet, they present no evidence to support this claim.

We can't meaningfully address learning loss or meet students' mental health needs if we are talking about taking away Federal funds from schools and institutions of higher learning that are not aligned with the Republicans' extreme agenda.

Republicans also claim that this bill is about school safety. Let's remember that this bill prohibits emergency sheltering of undocumented immigrants except due to disasters.

If it is not a disaster, and it is an emergency, you can't house the immigrants. If it is not an emergency, there is no prohibition. You can house the undocumented immigrants all year just so long as it is not an emergency. If it is a disaster, there is no prohibition.

You can also house other people. If it is school safety, how about housing defendants awaiting trial in pretrial detention or those on work release? How about housing them? No prohibition against that.

This isn't about school safety. We can't talk about protecting school safety without addressing gun violence. The reality is that Republicans have done nothing about gun violence in schools, which we know causes the greatest threat to our children's safety.

We have repeatedly said that any conversation about school safety that doesn't meaningfully address gun violence is not a serious conversation.

H.R. 3941 does not address the real issues confronting our students today, and that is ending gun violence and helping students address learning loss and threatens to take funds away from

schools and institutions of higher learning.

I, therefore, urge my colleagues to oppose the bill and reserve the balance of my time.

Ms. FOXX. Mr. Speaker, I reserve the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Oregon (Ms. BONAMICI).

Ms. BONAMICI. Mr. Speaker, I thank the ranking member for yielding time.

Mr. Speaker, I rise in strong opposition to this so-called Schools Not Shelters Act, which should be called the shutting out students act to reflect what this cruel legislation actually does. It would punish public schools and colleges and their students for showing humanity.

This is the second time in less than a month that the majority is bringing legislation to the floor that discriminates against and scapegoats vulnerable people based on their identity. It is the continuation of a trend that, unfortunately, we have seen in this Congress.

Republicans claim that there is a crisis in American education, but their legislation on the floor today would deepen disparities rather than improve public education.

I am disheartened by the continued attempts by my colleagues on the other side of the aisle to delegitimize public schools, the only schools that are required to serve everyone and turn no one away.

Mr. Speaker, public schools are often used as shelters. I hope this bill does not become law, but if it did, what would public schools have to do—check everyone for citizenship before offering shelter to those in need?

I point out if this bill were to become law and schools lost Federal funding because of it, that hurts students—not the people making the decision; the students.

Title I funding, for example, is designed to help schools with high populations of low-income students. Title II supports professional development for educators. IDEA helps students with disabilities. Losing any of that funding would be detrimental to students and educators for showing humanity toward those in need. I urge my colleagues to check their values before they vote on this.

Mr. Speaker, I came to Congress to improve public education and to help all students succeed in school and in college and in life. I have said repeatedly in committee hearings and in this Chamber, I am ready to come to the table with my colleagues and work on serious solutions to the challenges faced by students and their families.

Mr. Speaker, I know the ranking member talked about gun violence in schools. When I was home in June, a student said to me, I only have one more week of school, and then it means I got through the whole year without getting shot. Mr. Speaker, that is what is on students' minds. That is what they are concerned about.

Mr. Speaker, the so-called Schools Not Shelters Act is not a serious solution. I urge my colleagues to reject this harmful legislation.

Mr. Speaker, I want to note that words matter. Presence in the United States of America without proper documents is a civil offense, not a criminal one, and I object to calling people illegal.

Mr. Speaker, again, this is not a serious solution to the challenges facing our schools today. I urge my colleagues on both sides of the aisle to reject this harmful legislation.

□ 1630

Ms. FOXX. Mr. Speaker, I yield 5 minutes to the gentleman from New York (Mr. MOLINARO), who introduced this legislation.

Mr. MOLINARO. Mr. Speaker, I was here earlier today, and my colleagues on the other side of the aisle—and I heard it again repeated just moments ago—were talking a lot about what this bill isn't. I am very familiar with what this bill is not.

It isn't a fix to IDEA, although children like my own living with disabilities would love for us to effectively engage in that.

This isn't a bill about ensuring vocational training, yet we want vocational training.

This isn't a bill about other aspects of education.

It is about one basic thing: Our schools are not to be used for shelters.

We wouldn't be here today, nor would I be compelled to present this legislation, were it not for a failure of this Federal Government—by the way, I acknowledge it is for generations. This administration is not taking seriously the crisis at our border, a true humanitarian crisis.

Earlier today, I heard my colleagues on the other side of the aisle argue that Governors across this country shouldn't be in the business of moving undocumented immigrants from one State to another State.

While I might share, and I do, from a very compassionate perspective—I spent 12 years as a local elected leader responsible for finding housing and shelter for unaccompanied minors. It was my job to take those individuals seeking asylum and find them locations, all in accordance with Federal law, shelters established under Federal law for the purposes of caring for people.

We would not be here today, nor would this bill be even necessary, were it not for the reality that the city of New York made a choice. The city of New York made a decision to be a welcoming, sanctuary city and, by definition, welcomed individuals from around the world, irrespective of their status.

Then, when they were confronted with this very real crisis that the White House and the Federal Government have ignored, the city of New York chose to declare that schools within New York City could be used as shelters.

In one elementary school in Brooklyn, the gymnasium was being prepared to house migrants during the school year while children were in class. This led to after-school activities, including sports, being canceled. Additionally, in New York, Governor Kathy Hochul announced plans to house as many as 1,500 migrants at three different State universities in Albany, Buffalo, and Stony Brook.

We wouldn't be in this position if the city of New York worked effectively to address the crisis within the city.

Additionally, I heard earlier today that Governors from other States should have simply asked the President for financial help. Well, the same is true in the case of Eric Adams. He, in fact, did ask the President and the Federal Government for emergency action and additional financial assistance to contain the crisis within the city of New York and not export it to other parts of the State, and he was met with deafening silence.

This is a crisis of significance, and I respect, truly respect, this desire to be a compassionate people, but it is not compassionate. It is not compassionate to displace schoolchildren or to close down schools and convert them into shelters. Earlier today, I was told that that never would happen while students were there.

Well, schools during the summer months and entering into fall all across this country are used as centers of community. In some of the most vulnerable neighborhoods in America, gymnasiums are used for after-school and summer activities, athletics. The cafeteria is used for nutrition and school lunches and breakfasts, all there to meet the needs of needy families.

For children like my own, schools across this country in the summer months are used to provide therapies and services to those with intellectual, physical, and developmental disabilities.

I understand what this bill is not, and based on my 30 years of experience in public office, it is not meant to be cruel to anyone. There are families in neighborhoods and parents and single moms and dads in urban centers all across this country who just want the school used for their children. They want their government to take responsibility for their actions, whether it is a city that welcomes people from around the world or the Federal Government responsible for containing and addressing this humanitarian crisis where it begins, at our borders.

Like all the other families across this country, I simply ask that Congress state this very clearly. This isn't about defunding anyone. This is about making clear that schools are for a single purpose, centers of community, education, and opportunity for our neighbors. They are not shelters. That

is what this bill affirms, a very basic sentiment.

It is one that I confront, no matter how many words others try to put in our mouths, from a very compassionate perspective. Our kids have already lost too much, and schools should be used for the purpose of educating and empowering kids in our neighborhoods.

Mr. SCOTT of Virginia. Mr. Speaker, prior to yielding to the gentleman from New York, I yield myself 1 minute to remind the gentleman about what his bill actually does. It does not prohibit the sheltering of anyone other than undocumented immigrants in an emergency short term. I mean, long term and not in an emergency, that is okay. Other people, that is okay.

Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. GOLDMAN).

Mr. GOLDMAN of New York. Mr. Speaker, I rise today in opposition to H.R. 3941, which is an inhumane, xenophobic messaging bill that seeks to punish the local governments that are welcoming and supporting migrants arriving from collapsing authoritarian governments to pursue their American Dream.

I come from New York City, which has embraced, housed, fed, vaccinated, and supported more than 80,000 migrants in the past year in the finest traditions of the home of the Statue of Liberty and Ellis Island, where my grandmother arrived in this country.

We in New York City are incredibly proud of being what my distinguished colleague from New York refers to as a sanctuary city. I wish all of America could be a sanctuary country in the finest traditions of welcoming immigrants to our shores.

In the past year, there has not been a single violent incident at any of the nearly 200 shelters housing newly arrived migrants in New York City—not one. You tell me another community of 80,000 people where there is not a single violent incident. I challenge everyone.

It is a remarkable feat, and it demonstrates these individuals' desires, basic desires, to come and settle in this country and escape regimes that are cratering in Central and Latin America.

Despite the excessive burdens on the city's infrastructure and budget, many of the counties represented by the Republican sponsors of this bill have refused to accept migrants, and now they are trying to make it even harder to temporarily house migrants around the State in places that are empty for the summer.

This is simply another attempt by my colleagues on the other side of the aisle to demonize immigrants seeking a better life in this country, a continuation of the effort to sow fear, division, and hate around the country.

My colleague from New York is right. We are in desperate need of immigration reform so that we can streamline and modernize our immigration system, boost our economy, and secure our borders. However, instead of using their majority to address our broken immigration system, Republicans are putting forward a meaningless and useless bill designed to scapegoat immigrants instead of solving our problems.

If my colleagues on the other side of the aisle truly wanted to address the influx of migrants into our communities, they would work with us to alleviate the financial strain on cities all around the country. They would come together with us to allow these migrants to work legally, which would not only allow them to support their families but would help businesses in desperate need of labor from a workforce shortage, would boost our economy, and, of course, would have the benefit of helping our local governments.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. SCOTT of Virginia. Mr. Speaker, I yield an additional 1 minute to the gentleman from New York.

Mr. GOLDMAN of New York. Mr. Speaker, this bill is not about protecting schools or children. It is the summertime, and the schools are mostly empty. If Republicans truly wanted to protect our schools and our children, they would instead focus on cracking down on rampant gun violence in our schools.

Just this year, there have been 20 school shootings, and gun violence is now the leading cause of death of children in America. Parents are not worried about migrants in schools during the summer. Parents are worried that their children won't come home from school. Republicans, instead, do nothing to keep our children safe at school.

Mr. Speaker, you can put lipstick on a pig, but dressing up your anti-immigrant xenophobia by invoking our schools does not change the fact that this bill is, in fact, covered by mud. I urge my colleagues to vote against this harmful bill.

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from Virginia (Mr. GOOD), chair of the Health, Employment, Labor, and Pensions Subcommittee of the Education and the Workforce Committee.

Mr. GOOD of Virginia. Mr. Speaker, I support the legislation today that will allow the Department of Education to withhold Federal funding from schools that house illegal aliens at public school facilities.

This bill focuses on schools, but the issue here is only a symptom of a much larger problem, a blatant disrespect for the Federal immigration laws by this President and the Democratic Party at large.

It is no coincidence that cities like New York and Chicago have announced plans to shelter hundreds of immigrants in school gyms and college dorms. These sanctuary cities are breaking the law by refusing to enforce Federal immigration policy.

These cities blatantly defy the law of the land and then beg the Federal Government for money when they can't handle the consequences that come with their participation in unchecked illegal immigration.

Americans have been suffering under this pattern of lawlessness for years, and it is time for it to stop. President Biden has violated his Article IV, Section 4 constitutional duty to protect the States from invasion, and now it is our American schoolchildren who are paying the price.

I think the mother of a kindergartner and a second grader at a New York school said it best: ''Why would I bring my child to a school where there [are] grown adult men in their gym? You won't let a stranger come into the school with no ID, but you will let them live in your school gym?''

Our schools should not be left vulnerable to the lawless immigration policies pushed by Democrats. This legislation provides the incentive for mayors and Governors to protect our children instead of encouraging Biden's border invasion policies that are harming Americans.

The Biden border crisis impacts every part of our Nation: our national security, our health security, our education system, our welfare system, and now, even more so, our children in our public schools.

When is enough enough? What is the endgame of these Democratic policies?

Mr. Speaker, I urge all of my colleagues to stand against the Biden administration's disastrous policies that harm our schoolchildren and support passage of this bill.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from Virginia (Mr. CONNOLLY).

Mr. CONNOLLY. Mr. Speaker, I thank the gentleman, my good friend, the former and I hope future chairman of the Education and the Workforce Committee, for yielding.

Why are my friends on the other side of the aisle trying to punish those who show basic decency? The so-called Schools Not Shelters Act targets one thing—compassion.

Let me tell you a story. In September 2011, my community faced a sudden weather emergency with flooding. The combination of blocked culverts and relentless rainfall created a flood that swept through a very vulnerable mobile home community called Holly Acres in Woodbridge, Virginia.

The damage to Holly Acres was swift and severe. Sixty percent of the homes in that community were left wholly condemned and uninhabitable. People were put out of their homes immediately.

Thankfully, our local emergency personnel sprung into action. They conducted swift water rescues to save the lives of women and children who lived in this predominantly Hispanic community, largely undocumented, and evacuated them to our local high school for shelter.

Immediately, my team and I descended on the scene. The instincts

from my experience in local government kicked in. We coordinated provisions of toys, of which there were none, and clothes. All they had were the wet clothes on their bodies. They couldn't access warm clothes on their own. Hot meals from the Red Cross, none of which had been planned, were distributed to this dislocated community, many of whom were still in wet clothes from their evacuation.

If the Republicans have their way, this kind of tragedy would have been compounded by robbing the school system of desperately needed funding because they were undocumented. Well, from my point of view, they were human beings in need, emergent need. My values said that we had to reach out, that we had to help. Their status was immaterial. Their need, their compelling need in front of our faces, is what drove our actions.

Thank God the school was able to shelter them. Subsequently, they were able to get housing.

□ 1645

These kinds of things happen all over the place, and my community wants to express its values in offering a helping hand irrespective of one's legal status in this country.

Human beings are human beings.

This legislation punishes those who show kindness in the face of such an emergency, and it does nothing to benefit our students or children. All it does is take away from our schools the crime of caring for others.

Ms. FOXX. Mr. Speaker, I yield 3 minutes to the gentleman from Florida (Mr. BEAN), who is chair of the Early Childhood, Elementary, and Secondary Education Subcommittee of the Education and the Workforce Committee.

Mr. BEAN of Florida. Mr. Speaker, I thank Dr. Foxx for yielding.

Mr. Speaker, what do parents worry about? According to a National PTA survey, American parents worry most about their child being bullied, and they worry about their child struggling socially and emotionally.

What is not on the list? Their school being taken over by illegal immigrants. You would think American parents wouldn't have to worry about that, but yet here we are, because this is crazy town, and here in crazy town, the Biden administration is fixated on transforming America's public schools, our institutions for learning, into shelters for illegal immigrants.

It is happening now, and we are already seeing elementary and secondary school facilities in cities like New York being converted into housing for immigrants who have illegally crossed our border.

Let me be clear. This type of activity emphasizes the notion that an open border is the new normal. This is an attack on law and order and on American families who pay taxes into these schools so their children can get a good educational foundation.

Housing illegal immigrants in school facilities creates a host of issues, including safety hazards, security threats, health risks for our children, and let's not forget, America's students are facing severe learning loss because of school closures during the COVID–19 pandemic.

I believe our schools are for educating students, not for supporting unhinged policies.

I believe teachers should be our educators, not ICE agents.

I believe school gyms and rec spaces should be for physical education and not for motel rooms.

House Republicans are calling President Biden into the principal's office. We refuse to let this happen, and that is why we are tackling this issue head-on with H.R. 3941, the Schools Not Shelters Act.

It says no to this dangerous initiative that threatens our children and distracts our schools from their core mission—to educate America's kids.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 2 minutes to the gentleman from New Mexico (Mr. VASQUEZ).

Mr. VASQUEZ. Mr. Speaker, at the appropriate time I will offer a motion to recommit this bill back to committee. If the House rules permitted, I would have offered the motion with an important amendment to this bill.

My amendment would insert the text of the bipartisan American Dream and Promise Act, which provides a pathway to citizenship for Dreamers. This is an issue that Congress has failed to address, although my colleagues on the other side have continuously committed to supporting this bill.

Now, I find the response from some of our colleagues comical when they are so deathly afraid of immigrant children in our schools, but yet, when they are serviced by undocumented immigrants in the hotels that they stay at, when there are undocumented kitchen workers in the restaurants that they go to, when their houses and their homes are built by undocumented workers, we never see the same type of outrage.

I see a lot of ignorance in the response that we are seeing as to what undocumented folks provide in value to our country, and we cannot ignore that.

Now, there are nearly 2.3 million Dreamers in this country who are integrated into our communities already. They contribute to our economy. They participate in our workforce. They spend their wages. They pay taxes. We need to let Dreamers live and work in the only country they have ever known as home. We have a bipartisan bill right here to make that a reality.

I ask my colleagues on the other side of the aisle to take one of the first steps to fix our broken immigration system.

Mr. Speaker, I ask unanimous consent to insert the text of my amendment in the RECORD immediately prior to the vote on the motion to recommit.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Mexico?

There was no objection.

Mr. VASQUEZ. Mr. Speaker, I hope my colleagues will join me in voting for the motion to recommit.

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from New York (Mr. D'ESPOSITO).

Mr. D'ESPOSITO. Mr. Speaker, I am a little confused by my colleague's comments when he said that Members on this side of the aisle were ''deathly afraid.'' No one is deathly afraid. What we are, though, is we are in support of my good friend from New York, Mr. MOLINARO's Schools Not Shelters Act, to safeguard American children and prevent American schools from being forced to bear the burden of the Biden administration's ongoing migrant crisis.

I am proud to cosponsor this important bill that will prohibit schools that receive Federal funding from being used as shelters for migrants, which is a misguided policy being advanced by Governor Kathy Hochul, Albany Democrats, and many other progressives across this great Nation.

Due to the dereliction of duty by Secretary Mayorkas and the overall mismanagement of the Department of Homeland Security by the Biden administration, the United States has seen a record number of migrants cross into this great Nation.

This deluge has placed a significant particularly strong strain on sanctuary States, such as New York, where Governor Hochul continues to place the interests of migrants ahead of students who we want to keep safe.

The Hochul administration has made housing migrants at schools a priority, a fact that troubles many parents, educators, and students alike. Housing migrants whose histories are murky and intentions unknown at schools from the elementary level to the collegiate level endangers youth learners and puts students in a potentially dangerous situation of interacting with adult migrants in spaces that should be reserved for students.

The fact that migrants are currently being housed in school gyms, particularly in New York City, is absolutely ridiculous. Instead of recognizing that this is a problem, Governor Hochul is seeking to expand this policy to SUNY campuses.

You see, parents send their kids to school to be in a safe zone, and it is incumbent on the Federal Government to do everything possible to stop it. For this purpose, I support the Schools Not Shelters Act and encourage my colleagues to support this legislation I have cosponsored.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I include in the RECORD a statement from Third Way urging Members to stand up for students across the country and vote ''no'' on this bill.

[From Third Way, July 18, 2023]

THIRD WAY STATEMENT ON THE SCHOOLS NOT SHELTERS ACT

(By Lanae Erickson)

WASHINGTON.—Third Way released the following statement from Lanae Erickson, Senior Vice President for Social Policy, Education, & Politics:

''House Republicans have found another target for their 'defund' campaign: schools. The Schools Not Shelters Act would pull federal funding from any school that provides undocumented immigrants with shelter, even temporarily. By bringing this bill to the House floor, majority is yet again signaling that their priority is to put politics over the welfare of our country's students.

''During a time when teachers and students are working tirelessly to overcome learning loss from the pandemic, Republicans are threatening to defund schools to protest something that has nothing to do with students' quality of education. What's worse, schools in the poorest communities across the country are the targets of this political stunt. If Republicans really cared about students, they'd work with Democrats to invest in our nation's schools and improve educational outcomes. Instead, they're focusing on banning books, banning history, and banning migrants. Teachers and students have much bigger things to worry about.

''Republicans have backed out of every major bipartisan immigration reform deal this century, leaving the system outdated and overwhelmed. And now they're punishing American students for the consequences of their inaction.

''We urge all Members to stand up for students across this country and vote 'no' on this bill.''

Mr. SCOTT of Virginia. Mr. Speaker, I include in the RECORD another letter from Council of the Great City Schools pointing out that the bill does nothing to help urban school districts and communities provide the needed educational and transitional services for newly arriving students and families.

COUNCIL OF THE GREAT CITY SCHOOLS,
June 12, 2023.

Hon. VIRGINIA FOXX,
Chairwoman, Committee on Education and Workforce, House of Representatives, Washington, DC.

Hon. BOBBY SCOTT,
Ranking Member, Committee on Education and Workforce, House of Representatives, Washington, DC.

DEAR CHAIRWOMAN FOXX AND RANKING MEMBER SCOTT: For more than a century, urban schools have taken in children and families from other countries who came to the United States seeking a better life and who eventually served as the backbone of the country. The nation's Great City Schools seek to not only meet our legal obligations to provide educational services to whomever comes through our doors but to do everything we can in partnership with our local communities to make sure that newly arriving students and families are welcomed and prepared to give back to the country.

In recent years, the nation's urban public schools have opened their doors to families from Afghanistan, Ukraine, Cuba, Haiti, Guatemala, Vietnam, Sudan, and many other countries as they were seeking refuge, freedom, and a better tomorrow. In addition to providing newcomer aid, instruction, and social services to students, the Great City Schools are helping families find housing, coordinating community services, and providing much of their initial social contacts, translations, and food services. They have also provided cultural orientations, language lessons, and other assistance for refugee families upon their arrival. The Council has examples from school districts across the country—including Anchorage, Sacramento, Indianapolis, St. Louis, Tulsa, Charlotte, and countless other cities—that are working with their local agencies, faith-based leaders, charities, and financial institutions to welcome new arrivals, align and coordinate services, and create a seamless transition into the public schools and the community.

Unfortunately, the Schools Not Shelters Act (H.R. 3941) before the committee does nothing to help urban school districts and communities provide the needed educational and transitional services for newly arriving students and families. After decades of inaction, we urge Congress to focus on bipartisan and comprehensive solutions to address immigration reform rather than threatening federal funding or intervening in local decision-making regarding housing for those who need it.

Sincerely,

RAYMOND HART,
Executive Director.

Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Ms. FOXX. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, it is unfortunate that my Republican colleagues are forcing through another proposal that contradicts our responsibility to help students succeed.

This bill threatens to take funding away from schools if they are used for emergency shelter to shelter undocumented immigrants, except specifically exempting cases of disaster. It allows anyone else to be sheltered, just not undocumented immigrants in an emergency.

We should be focusing on helping students make up for learning loss. They were out of school for a long time. Last Congress, congressional Democrats took critical steps to actually address learning loss by passing the American Rescue Plan Act, investing in students' abilities to offer after-school and summer mentorship and tutorial programs, yet not a single congressional Republican voted to pass the American Rescue Plan Act.

Now, they are seeking to pass a bill that takes funding away from public schools while also considering a budget that makes dangerous cuts to Federal educational funding.

If my colleagues want to address learning loss, we should be talking about evidence-based strategies that actually meet the needs of students.

If my colleagues want to keep students safe, we should be confronting what is actually killing them. Parents, teachers, and students are demanding that we take meaningful action on gun violence. Yet, my Republican colleagues refuse to budge on that issue.

Instead of coming up with meaningful solutions, Republicans are continuing to push their extreme agenda that does nothing to address learning loss or improve school safety.

We should all agree that our students, parents, and schools deserve better.

Mr. Speaker, I strongly urge my colleagues to oppose this bill, and I yield back the balance of my time.

Ms. FOXX. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, housing illegal aliens in public educational facilities is downright dangerous, drains educational resources, and distracts school districts and universities from their primary mission of educating students.

This Chamber sees many rigorous debates about all types of issues facing the American people. I never imagined there would be a debate over the primary function of schools. Since when did schools being used for learning become a novel idea?

The Schools Not Shelters Act delivers a dose of reality to the Biden administration and the left who are putting students second to their open border policies. Enough is enough.

I urge my colleagues to vote for this important bill and stand up for students' well-being and academic success.

Mr. Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise today to speak in strong opposition to H.R. 3941, ''Schools Not Shelters Act of 2023''.

This bill is an absurd measure to condemn the use of elementary and secondary school facilities that provide shelter for people caught up in emergencies, just like we do for other disasters.

Using the facilities of a public elementary or secondary school to provides shelter for non-U.S. nationals who are not admitted into the United States should not be politicized, as this is humanitarian issue and failure of our broken immigration system.

As a Member on the Homeland Security committee, and more specifically the Border Security and Enforcement subcommittee, I interact with those at the border and migrants frequently.

I believe that a comprehensive approach is needed to find a lasting solution to the current immigration crisis.

However, I think it is essential that migrants are brought and allowed into the country through legal immigration.

I am a strong proponent of humanitarian aid efforts in the immigration context, from preventing the breakup of individual families because of a wrongful deportation to ensuring that victims of civil wars and national disasters around the globe receive a temporary protected status under the U.S. immigration laws.

We should not condemn the use of public elementary or secondary schools provide shelter for non-U.S. nationals who are not admitted into the United States.

I acknowledge that school are places of learning and development for students, but there are time periods when school campuses are not being used, such as during school breaks.

Because of this, the space could be used for humanitarian aid purposes, such as allowing migrants to stay there while they wait for legal processing and paperwork to conclude.

Other exceptions need to be reviewed, such as whether migrants could stay at schools when school is in-session, but humanitarian aid should not be overlooked in the immigration context.

As a leading country on the global stage, it is our duty and responsibility to assist who we can in a legal manner.

More importantly when it comes to schools in America, we should be addressing critical issues that are truly impacting our educational system—namely, the hostile state takeovers of majority-minority school district—as is what is happening in my district with the Texas Education Agency takeover of the Houston Independent School District.

State takeovers in other districts have led to school closures, layoffs, and no improvements in test scores.

The vast majority of school districts that have been taken over by state agencies (TEA included) have not improved but declined.

With data ranging back to the late 1980s, researchers found that most state takeovers don't translate to academic improvements.

We have to stop the State from intermeddling and overstepping into our educational systems—causing further harm and damage to our communities.

That is why I have called upon President Biden and the Department of Education to investigate and take immediate action to address the recent systematic and dangerous efforts underway by state and local officials in Texas seeking to undermine and undo decades of civil rights protections and advancements in educational institutions and student populations.

And so, I am here today to say that these are the issues that the American people truly care about and want us to be fighting for, for the protection and preservation of their educational rights.

Emergency response agencies have always used school facility sheltering to provide emergency services to affected individuals and communities; the use of these facilities as a temporary shelter for migrants puts no students in danger.

These school facilities have always been used as emergency shelters during disasters such as weather-related events.

No colleges or public K–12 schools should lose federal funding because they provide temporary relief to migrants.

If Republicans are really concerned about measure needed to ensure school safety, they should support all measures that address gun violence prevention and mental health issues.

If my colleagues genuinely want to address students' safety, they should join with us to focus on the real causes of violent deaths in our country—guns.

Gun violence is decimating our families and communities—mass shootings in schools, places of worship, shopping malls, concerts, and urban neighborhoods.

A majority of Americans, including parents, teachers, students, and educational workers support common sense and meaningful actions that address the surging violence in our schools and I colleges.

All that this bill does is to punish schools that Republicans think are helping migrants.

By singling out emergency use for migrants, this bill is only about Republicans' continuous opposition to any effort that provides support for the migrant community.

That is why I had offered the following amendments to be considered by the Rules Committee:

Jackson Lee Amendment 13 would simply prevent the enactment of H.R. 3941 until we actually address and enact comprehensive immigration reform in the United States such that the Federal immigration system operates efficiently and offers a fair, humane, and orderly pathway to citizenship.

Jackson Lee Amendment 15 would also prevent enactment of this bill until, my bill the ''Grant Relief for American Children's Elevation (GRACE) Act of 2023'' is implemented such that the ''exceptional and extremely unusual hardship'' term as defined in Section 240A(b) of the Immigration and Nationality Act (8 U.S.C. 12229b(b)) is amended, to include hardship resulting from separating a family member who is a United States citizen, a lawful permanent resident or an individual lawfully admitted to the United States and a family member who is subject to deportation or removal from the United States.

A study on Facts and Fictions of Race and Family in U.S. Immigration Policy found that the United States governing framework of family sponsorship is rooted in the Immigration and Nationality Act of 1965, also known as the Hart-Celler Act.

The act eliminated the 1924 national origins quotas while maintaining the principle of numerical restriction by specifying annual caps as well as per-country limits on immigration.

Under the act, ''immediate family,'' specifically spouses, minor children, and the parents of U.S. citizens, are admitted without numerical quotas.

After that, there is a system of hierarchical preferences in which the claims of U.S. citizens are placed above those of legal permanent residents.

There is also a ranking of the family relationship that is based on I assessments of familial proximity and of age, especially in the caseof parents and children.

The dominant political narrative of the 1965 act at the time of its passage was one of national values, family unity, and the American commitment to ending racial discrimination.

However, according to the Washington Post, the Trump administration's immigration policies separated more than 5,400 children from their families, sending families to Mexico to await the chance to make asylum claims and seeking the chance to detain children indefinitely.

My amendment, the ''Grant Relief for American Children's Elevation Act'' or ''GRACE Act,'' would amend the Immigration and Nationality Act to establish certain family separation as an exceptional and extremely unusual hardship.

The American Academy of Pediatrics has noted that ''highly stressful experiences, like family separation, can cause irreparable harm, disrupting a child's brain architecture and affecting his or her short- and long-term health.

This type of prolonged exposure to serious stress—known as toxic stress—can carry lifelong consequences for children.''

Just last year, two pediatricians wrote in the Houston Chronicle that ''this kind of stress makes children susceptible to acute and chronic conditions such as extreme anxiety, depression, post-traumatic stress disorder, hypertension and heart disease.''

As we take into consideration the long term negative psychological effects of family separation as the result of immigration, it becomes abundantly clear that we cannot move forward until this cycle is stopped.

As a Member on the Homeland Security committee, and more specifically the Border Security and Enforcement subcommittee, I interact with those at the border and migrants frequently.

I believe that a comprehensive approach is needed to find a lasting solution to the current immigration crisis.

However, I think it is essential that migrants are brought and allowed into the country through legal immigration.

Under the Jackson Lee Amendment, 15, the Immigration and Nationality Act would have no longer subjected human beings to extreme trauma by separating a family member who is a United States citizen, a lawful permanent resident, or an individual lawfully admitted to the United States and a family member who is subject to deportation or removal from the United States.

And the Jackson Lee Amendment 16 strikes one word—''not'' from Sect. 2(a) such that it reads as follows:

In General:—As a condition on receipt of Federal financial assistance under applicable program by a public elementary school, a public secondary school, or an institution of higher education, the facilities of the school or institution may be used to provide shelter or housing for specified aliens.

Thus, my amendment strikes the very language preventing the use of school facilities for the purpose of providing shelter or housing to individuals as defined by section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)) who has not been admitted (as so defined).

I am a strong proponent of humanitarian aid efforts in the immigration context, from preventing the breakup of individual families because of a wrongful deportation to ensuring that victims of civil wars and national disasters around the globe receive a temporary protected status under the U.S. immigration laws.

We should not condemn the use of public elementary or secondary schools provide shelter for non-U.S. nationals who are not admitted into the United States.

Whenever appropriate, space in our schools should be made available for humanitarian aid purposes, such as allowing migrants to stay there while they wait for processing and paperwork to conclude their legal residency status.

Other exceptions need to be reviewed, such as whether migrants could stay at schools when school is in session, but humanitarian aid should not be overlooked in the immigration context.

As a leading country on the global stage, it is our duty and responsibility to assist who we can in a legal manner.

More importantly, when it comes to schools in America, we should be addressing critical issues that are truly impacting our educational system—namely, the hostile state takeovers of majority-minority school districts—as is what is happening in my district with the Texas Education Agency takeover of the Houston Independent School District.

State takeovers in other districts have led to school closures, layoffs, and no improvements in test scores.

The vast majority of school districts that have been taken over by state agencies (TEA included) have not improved but declined.

With data ranging back to the late 1980s, researchers found that most state takeovers don't translate to academic improvements.

Republicans provide no evidence that the academic progress of students are negatively

impacted simply by attending a school which houses migrants.

H.R. 3941 is distractive, it is uninformed, it is pointless, provocative, inflammatory, and at best, an absolute waste of time.

Using the facilities of a public elementary or secondary school to provides shelter for non-U.S. nationals who are not admitted into the United States should not be politicized, as this is humanitarian issue and failure of our broken immigration system.

Instead of denying innocent people temporary humanitarian relief we should focus on stopping the State from meddling in and overstepping the boundaries our educational systems—causing further harm and damage to our communities.

Lastly, the Jackson Lee Amendment 19 was offered to add the word "freeze" to be included in the definition of "specified disaster".

This definition is particularly important to signify the dangers of deadly and disastrous weather conditions without snow.

In February 2012, my home state of Texas experienced an unprecedented deep freeze that crippled our state as temperatures dropped to as low as six degrees.

The freeze triggered the worst energy infrastructure failure in Texas state history, leading to shortages of water, food, and heat.

More than 4.5 million homes and businesses were left without power, some for several days and at least 246 people were killed directly or indirectly, with some estimates as high as 702 killed during the crisis.

These Jackson Lee Amendments 13, 15, 16, and 19 would have ensured that unaccompanied minors and migrants in need of temporary relief may be provided emergency shelter or housing using institutional facilities where appropriate.

It is a shame that we not made in order, and that we here with such an offensive and counterproductive bill, and that we are spending time on ineffective efforts instead of focusing on real immigration reform and resolutions for our nation's broken pathways for citizenship.

The SPEAKER pro tempore. All time for debate has expired.

AMENDMENT NO. 1 OFFERED BY MR. OGLES

The SPEAKER pro tempore. It is now in order to consider amendment No. 1 printed in part B of House Report 118–147.

Mr. OGLES. Mr. Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 4, after line 20, insert the following:

(6) The term ''short-term'' means for a duration not to exceed 72 hours.

The SPEAKER pro tempore. Pursuant to House Resolution 597, the gentleman from Tennessee (Mr. OGLES) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Tennessee.

Mr. OGLES. Mr. Speaker, I rise today in support of my amendment to define the phrase ''short term'' for the purposes of the Schools Not Shelters Act as being a period of up to 72 hours.

The phrase ''short term'' has varying definitions for different purposes in law and in different States. In many cases, the law considers housing for as long as a year as short term.

The underlying bill prohibits housing illegal aliens in taxpayer-funded schools with an understandable exception for emergencies. If people are seeking shelter from a storm, we don't want to lock them out to face the elements, regardless of their citizenship or immigration status.

My amendment protects the intent of this bill by ensuring that Governors can't abuse this emergency exception by opportunistically using an emergency or declaring an emergency that doesn't really exist so that they can house illegals in schools for months on end.

My amendment still allows State and local authorities the flexibility to offer schools as shelter in moments of true crisis, but requires that they limit that to a few days to make sure it is a momentary stop-gap solution rather than a long-term reality.

Under the so-called leadership of President Biden, Vice President HARRIS, and Secretary Mayorkas, our southern border is open. Every State has become a border State as criminal cartels traffic aliens into our country by the thousands.

Some sanctuary States have chosen to address this problem by housing these illegal aliens in our schools. Using our schools, our public schools, to house illegal aliens redirects resources the American people set aside for our children to foreign nationals who disrespect our laws.

Mr. Speaker, I reserve the balance of my time.

□ 1700

Mr. SCOTT of Virginia. Mr. Speaker, I rise in opposition to the amendment.

Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, it is hard to respond to the amendment because the underlying bill makes little sense. I am not sure what the amendment does because if the amendment is passed, undocumented immigrants would be properly sheltered in the schools because there is an exemption for disasters. After 72 hours, 3 days if the disaster is still going on, I guess you would have to kick them out to avoid liability, unless the emergency is over. If there is no longer an emergency and they are not being housed under an emergency, they can't be housed because only emergency sheltering is allowed.

I don't know if this is good or bad, but I just oppose it, and I yield back the balance of my time

Mr. OGLES. Mr. Speaker, let's be clear: Schools are meant for the purpose of educating our children. Housing those in violation of law, illegals, can put our children at risk and turns places of education potentially into dormitories for lawless individuals. We have Governors who have used and abused their authorities to circumvent Federal law, immigration law, all we are asking is that if it is going to be done, it is for a defined period of time.

I have to admit as I have listened to debate, the violins were playing, widows were weeping, and my colleagues were pandering. We have people that are here violating the law. Keep that in mind. Our border is flooded with illegals. There is a pattern of illegals committing crime in our country. There is a pattern of gang members crossing our border, and there is a pattern of this reckless administration for ignoring the law.

Mr. Speaker, I urge adoption and support for my amendment.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Mr. DESJARLAIS). Pursuant to the rule, the previous question is ordered on the bill and on the amendment offered by the gentleman from Tennessee (Mr. OGLES).

The question is on the amendment by the gentleman from Tennessee (Mr. OGLES).

The amendment was agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. VASQUEZ. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Vasquez of New Mexico moves to recommit the bill H.R. 3941 to the Committee on Education and the Workforce.

The material previously referred to by Mr. VASQUEZ is as follows:

Mr. Vasquez of New Mexico moves to recommit the bill H.R. 3941 to the Committee on Education and the Workforce with instructions to report the same back to the House forthwith with the following amendment:

Strike all after the enacting clause and insert the text of H.R. 16.

The SPEAKER pro tempore. Pursuant to clause 2(b) of rule XIX, the previous question is ordered on the motion to recommit.

The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. FOXX. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 5 o'clock and 5 minutes p.m.), the House stood in recess.

□ 1730

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. DESJARLAIS) at 5 o'clock and 30 minutes p.m.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Byrd, one of its clerks, announced that the Senate has passed without amendment a bill of the House of the following title:

H.R. 3672. An act to designate the clinic of the Department of Veterans Affairs in Indian River, Michigan, as the ''Pfc. Justin T. Paton Department of Veterans Affairs Clinic''.

The message also announced that the Senate has passed bills of the following titles in which the concurrence of the House is requested:

S. 112. An act to amend title 38, United States Code, to strengthen benefits for children of Vietnam veterans born with spina bifida, and for other purposes.

S. 475. An act to designate the clinic of the Department of Veterans Affairs in Gallup, New Mexico, as the Hiroshi ''Hershey'' Miyamura VA Clinic.

S. 932. An act to amend title 5, United States Code, to provide for the halt in pension payments for Members of Congress sentenced for certain offenses, and for other purposes.

S. 1096. An act to require the Secretary of Veterans Affairs to require the employees of the Department of Veterans Affairs to receive training developed by the Inspector General of the Department on reporting wrongdoing to, responding to requests from, and cooperating with the Office of Inspector General of the Department, and for other purposes.

The message also announced that pursuant to Public Law 117–81, the Chair, on behalf of the Ranking Member of the Senate Committee on Appropriations, appoints the following individual to serve as a member of the Commission on Planning, Programming, Budgeting, and Execution Reform:

John E. Whitley of Virginia.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Proceedings will resume on questions previously postponed. Votes will be taken in the following order:

Passage of:

H.J. Res. 68;

H.J. Res. 70;

H.J. Res. 74;

H.J. Res. 71;

H.J. Res. 79; and,

Motion to suspend the rules and agree to H. Con. Res. 57.

The first electronic vote will be conducted as a 15-minute vote. Pursuant to clause 9 of rule XX, remaining electronic votes will be conducted as 5-minute votes.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON OCTOBER 27, 2006

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the joint resolution (H.J. Res. 68) relating to a national emergency declared by the President on October 27, 2006, on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

The vote was taken by electronic device, and there were—yeas 27, nays 381, not voting 25, as follows:

[Roll No. 333]

YEAS—27

Biggs
Bishop (NC)
Boebert
Brecheen
Burlison
Bush
Cloud
Crane
Duncan
Gaetz
García (IL)
Good (VA)
Gosar
Harris
Jordan
Luna
Massie
Nehls
Norman
Omar
Perry
Posey
Rosendale
Roy
Santos
Schweikert
Spartz

NAYS—381

Adams
Aderholt
Aguilar
Alford
Allen
Allred
Amodei
Armstrong
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Banks
Barr
Barragán
Bean (FL)
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bost
Bowman
Boyle (PA)
Brown
Brownley
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Calvert
Caraveo
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Cartwright
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Cline
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Donalds
Duarte
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Estes
Evans
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, C. Scott
Frost
Fry
Fulcher
Gallagher
Garamendi
Garbarino
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Gooden (TX)
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Griffith
Grijalva
Grothman
Guest
Guthrie
Hageman
Harder (CA)
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Joyce (OH)
Joyce (PA)
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luetkemeyer
Lynch
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McGovern
McHenry
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Murphy
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norcross
Nunn (IA)
Obernolte
Ocasio-Cortez
Ogles
Pallone
Palmer
Panetta
Pappas
Pascrell
Pelosi
Peltola
Pence
Perez
Peters
Pettersen
Pfluger
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Ruiz
Ruppersberger
Rutherford
Salazar
Salinas
Sánchez
Sarbanes
Scalise
Scanlon
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Stewart
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—25

Arrington
Cammack
Casar
Case
Davis (NC)
Deluzio
Espaillat
Gallego
Golden (ME)
Horsford
Jackson (IL)
Kamlager-Dove
Kelly (PA)
Luttrell
Mace
McBath
Meeks
Mullin
Owens
Payne
Raskin
Ryan
Schakowsky
Sewell
Tlaib

□ 1751

Messrs. JOYCE of Pennsylvania, MFUME, MOONEY, STEUBE, and STEIL changed their vote from ''yea'' to ''nay.''

Mr. CASTRO of Texas changed his vote from ''present'' to ''nay.''

Ms. BUSH changed her vote from ''nay'' to ''yea.''

So the joint resolution was not passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. RYAN. Mr. Speaker, had I been present, I would have voted "nay" on rollcall No. 333.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON FEBRUARY 25, 2011

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the joint resolution (H.J. Res. 70) relating to a national emergency declared by the President on February 25, 2011, on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 30, nays 388, not voting 15, as follows:

[Roll No. 334]

YEAS—30

Babin	Gaetz	Norman
Biggs	García (IL)	Omar
Bishop (NC)	Good (VA)	Perry
Boebert	Gosar	Posey
Burgess	Hageman	Rosendale
Burlison	Harris	Roy
Bush	LaMalfa	Santos
Cloud	Luna	Schweikert
Crane	Massie	Spartz
Duncan	Nehls	Tlaib

NAYS—388

Adams	Cartwright	Ellzey
Aderholt	Casar	Emmer
Aguilar	Case	Escobar
Alford	Casten	Eshoo
Allen	Castor (FL)	Espaillat
Allred	Castro (TX)	Estes
Amodei	Chavez-DeRemer	Evans
Armstrong	Cherfilus-McCormick	Ezell
Auchincloss	Chu	Fallon
Bacon	Ciscomani	Feenstra
Baird	Clark (MA)	Ferguson
Balderson	Clarke (NY)	Finstad
Balint	Cleaver	Fischbach
Banks	Cline	Fitzgerald
Barr	Clyburn	Fitzpatrick
Barragán	Clyde	Fleischmann
Bean (FL)	Cohen	Fletcher
Beatty	Cole	Flood
Bentz	Collins	Foster
Bera	Comer	Foushee
Bergman	Connolly	Foxx
Beyer	Correa	Frankel, Lois
Bice	Costa	Franklin, C. Scott
Bilirakis	Courtney	Frost
Bishop (GA)	Craig	Fry
Blumenauer	Crawford	Fulcher
Blunt Rochester	Crenshaw	Gallagher
Bonamici	Crockett	Garamendi
Bost	Crow	Garbarino
Bowman	Cuellar	Garcia (TX)
Boyle (PA)	Curtis	Garcia, Mike
Brecheen	D'Esposito	Garcia, Robert
Brown	Davids (KS)	Gimenez
Brownley	Davidson	Golden (ME)
Buchanan	Davis (IL)	Goldman (NY)
Buck	De La Cruz	Gomez
Bucshon	Dean (PA)	Gonzales, Tony
Budzinski	DeGette	Gonzalez, Vicente
Burchett	DeLauro	Gooden (TX)
Calvert	DelBene	Gottheimer
Cammack	DeSaulnier	Granger
Caraveo	DesJarlais	Graves (LA)
Carbajal	Diaz-Balart	Graves (MO)
Cárdenas	Dingell	Green (TN)
Carey	Doggett	Green, Al (TX)
Carl	Donalds	Greene (GA)
Carson	Duarte	Griffith
Carter (GA)	Dunn (FL)	Grijalva
Carter (LA)	Edwards	Grothman
Carter (TX)	Escobar	Guest
Cartwright	Eshoo	Guthrie
Casar	Espaillat	Harder (CA)
Case	Estes	Harshbarger
Casten	Evans	Hayes
Castor (FL)	Ezell	Hern
Castro (TX)	Fallon	Higgins (LA)
Chavez-DeRemer	Feenstra	Higgins (NY)
Cherfilus-McCormick	Ferguson	Hill
Chu	Finstad	Himes
Ciscomani	Fischbach	Hinson
Clark (MA)	Fitzgerald	Houchin
Clarke (NY)	Fitzpatrick	Houlahan
Cleaver	Fleischmann	Hoyer
Cline	Fletcher	Hoyle (OR)
Clyburn	Flood	Hudson
Clyde	Foster	Huffman
Cohen	Foushee	Huizenga
Cole	Foxx	Hunt
Collins	Frankel, Lois	Issa
Comer	Franklin, C. Scott	Ivey
Connolly	Frost	Jackson (NC)
Correa	Fry	Jackson (TX)
Costa	Fulcher	Jackson Lee
Courtney	Gallagher	Jacobs
Craig	Garamendi	James
Crawford	Garbarino	Jayapal
Crenshaw	Garcia (TX)	Jeffries
Crockett	Garcia, Mike	Johnson (GA)
Crow	Garcia, Robert	Johnson (LA)
Cuellar	Gimenez	Johnson (OH)
Curtis	Golden (ME)	Johnson (SD)
D'Esposito	Goldman (NY)	Jordan
Davids (KS)	Gomez	Joyce (OH)
Davidson	Gonzales, Tony	Joyce (PA)
Davis (IL)	Gonzalez, Vicente	Kamlager-Dove
De La Cruz	Gooden (TX)	Kaptur
Dean (PA)	Gottheimer	Kean (NJ)
DeGette	Granger	Keating
DeLauro	Graves (LA)	Kelly (IL)
DelBene	Graves (MO)	Kelly (MS)
DeSaulnier	Green (TN)	Khanna
DesJarlais	Green, Al (TX)	Kiggans (VA)
Diaz-Balart	Greene (GA)	Kildee
Dingell	Griffith	Kiley
Doggett	Grijalva	Kilmer
Donalds	Grothman	Kim (CA)
Duarte	Guest	Kim (NJ)
Dunn (FL)	Guthrie	Krishnamoorthi
Edwards	Harder (CA)	Kuster
Ellzey	Harshbarger	Kustoff
Emmer	Hayes	LaHood
Escobar	Hern	LaLota
Eshoo	Higgins (LA)	Lamborn
Espaillat	Higgins (NY)	Landsman
Estes	Hill	Larsen (WA)
Evans	Himes	Larson (CT)
Ezell	Hinson	Latta
Fallon	Houchin	LaTurner
Feenstra	Houlahan	Lawler
Ferguson	Hoyer	Lee (CA)
Finstad	Hoyle (OR)	Lee (FL)
Fischbach	Hudson	Lee (NV)
Fitzgerald	Huffman	Lee (PA)
Fitzpatrick	Huizenga	Leger Fernandez
Fleischmann	Hunt	Lesko
Fletcher	Issa	Letlow
Flood	Ivey	Levin
Foster	Jackson (NC)	Lieu
Foushee	Jackson (TX)	Lofgren
Foxx	Jackson Lee	Loudermilk
Frankel, Lois	Jacobs	Lucas
Franklin, C. Scott	James	Luetkemeyer
Frost	Jayapal	Lynch
Fry	Jeffries	Magaziner
Fulcher	Johnson (GA)	Malliotakis
Gallagher	Johnson (LA)	Mann
Garamendi	Johnson (OH)	Manning
Garbarino	Johnson (SD)	Mast
Garcia (TX)	Jordan	Matsui
Garcia, Mike	Joyce (OH)	McCaul
Garcia, Robert	Joyce (PA)	McClain
Gimenez	Kamlager-Dove	McClellan
Golden (ME)	Kaptur	McClintock
Goldman (NY)	Kean (NJ)	McCollum
Gomez	Keating	McCormick
Gonzales, Tony	Kelly (IL)	McGarvey
Gonzalez, Vicente	Kelly (MS)	McGovern
Gooden (TX)	Khanna	McHenry
Gottheimer	Kiggans (VA)	Meeks
Granger	Kildee	Menendez
Graves (LA)	Kiley	Meng
Graves (MO)	Kilmer	Meuser
Green (TN)	Kim (CA)	Mfume
Green, Al (TX)	Kim (NJ)	Miller (IL)
Greene (GA)	Krishnamoorthi	Miller (OH)
Griffith	Kuster	Miller (WV)
Grijalva	Kustoff	Miller-Meeks
Grothman	LaHood	Mills
Guest	LaLota	Molinaro
Guthrie	Lamborn	Moolenaar
Harder (CA)	Landsman	Mooney
Harshbarger	Larsen (WA)	Moore (AL)
Hayes	Larson (CT)	Moore (UT)
Hern	Latta	Moore (WI)
Higgins (LA)	LaTurner	Moran
Higgins (NY)	Lawler	Morelle
Hill	Lee (CA)	Moskowitz
Himes	Lee (FL)	Moulton
Hinson	Lee (NV)	Mrvan
Houchin	Lee (PA)	Mullin
Houlahan	Leger Fernandez	Murphy
Hoyer	Lesko	Nadler
Hoyle (OR)	Letlow	Napolitano
Hudson	Levin	Neal
Huffman	Lieu	Neguse
Huizenga	Lofgren	Newhouse
Hunt	Loudermilk	Nickel
Issa	Lucas	Norcross
Ivey	Luetkemeyer	Nunn (IA)
Jackson (NC)	Lynch	Obernolte
Jackson (TX)	Magaziner	Ocasio-Cortez
Jackson Lee	Malliotakis	Ogles
Jacobs	Mann	Owens
James	Manning	Pallone
Jayapal	Mast	Palmer
Jeffries	Matsui	Panetta
Johnson (GA)	McCaul	Pappas
Johnson (LA)	McClain	Pascrell
Johnson (OH)	McClellan	Pelosi
Johnson (SD)	McClintock	Peltola
Jordan	McCollum	Pence
Joyce (OH)	McCormick	Perez
Joyce (PA)	McGarvey	Peters
Kamlager-Dove	McGovern	Pettersen
Kaptur	McHenry	Pfluger
Kean (NJ)	Meeks	Phillips
Keating	Menendez	Pingree
Kelly (IL)	Meng	Pocan
Kelly (MS)	Meuser	Porter
Khanna	Mfume	Pressley
Kiggans (VA)	Miller (IL)	Quigley
Kildee	Miller (OH)	Ramirez
Kiley	Miller (WV)	Raskin
Kilmer	Miller-Meeks	Reschenthaler
Kim (CA)	Mills	Rodgers (WA)
Kim (NJ)	Molinaro	Rogers (AL)
Krishnamoorthi	Moolenaar	Rogers (KY)
Kuster	Mooney	Rose
Kustoff	Moore (AL)	Ross
LaHood	Moore (UT)	Rouzer
LaLota	Moore (WI)	Ruiz
Lamborn	Moran	Ruppersberger
Landsman	Morelle	Rutherford
Larsen (WA)	Moskowitz	Ryan
Larson (CT)	Moulton	Salazar
Latta	Mrvan	Salinas
LaTurner	Mullin	Sánchez
Lawler	Murphy	Sarbanes
Lee (CA)	Nadler	Scalise
Lee (FL)	Napolitano	Scanlon
Lee (NV)	Neal	Schiff
Lee (PA)	Neguse	Schneider
Leger Fernandez	Newhouse	Scholten
Lesko	Nickel	Schrier
Letlow	Norcross	Scott (VA)
Levin	Nunn (IA)	Scott, Austin
Lieu	Obernolte	Scott, David
Lofgren	Ocasio-Cortez	Self
Loudermilk	Ogles	Sessions
Lucas	Owens	Sewell
Luetkemeyer	Pallone	Sherrill
Lynch	Palmer	Simpson
Magaziner	Panetta	Slotkin
Malliotakis	Pappas	Smith (MO)
Mann	Pascrell	Smith (NE)
Manning	Pelosi	Smith (NJ)
Mast	Peltola	Smith (WA)
Matsui	Pence	Smucker
McCaul	Perez	Sorensen
McClain	Peters	Soto
McClellan	Pettersen	Spanberger
McClintock	Pfluger	Stansbury
McCollum	Phillips	Stanton
McCormick	Pingree	Stauber
McGarvey	Pocan	Steel
McGovern	Porter	Stefanik
McHenry	Pressley	Steil
Meeks	Quigley	Steube
Menendez	Ramirez	Stevens
Meng	Raskin	Strickland
Meuser	Reschenthaler	Strong
Mfume	Rodgers (WA)	Swalwell
Miller (IL)	Rogers (AL)	Sykes
Miller (OH)	Rogers (KY)	Takano
Miller (WV)	Rose	Tenney
Miller-Meeks	Ross	Thanedar
Mills	Rouzer	Thompson (CA)
Molinaro	Ruiz	Thompson (MS)
Moolenaar	Ruppersberger	Thompson (PA)
Mooney	Rutherford	Tiffany
Moore (AL)	Ryan	Timmons
Moore (UT)	Salazar	Titus
Moore (WI)	Salinas	Tokuda
Moran	Sánchez	Tonko
Morelle	Sarbanes	Torres (CA)
Moskowitz	Scalise	Torres (NY)
Moulton	Scanlon	Trahan
Mrvan	Schiff	Trone
Mullin	Schneider	Turner
Murphy	Scholten	Underwood
Nadler	Schrier	Valadao
Napolitano	Scott (VA)	Van Drew
Neal	Scott, Austin	Van Duyne
Neguse	Scott, David	Van Orden
Newhouse	Self	Vargas
Nickel	Sessions	Vasquez
Norcross	Sewell	Veasey
Nunn (IA)	Sherrill	Velázquez
Obernolte	Simpson	Wagner
Ocasio-Cortez	Slotkin	Walberg
Ogles	Smith (MO)	Waltz
Owens	Smith (NE)	Wasserman Schultz
Pallone	Smith (NJ)	Waters
Palmer	Smith (WA)	Watson Coleman
Panetta	Smucker	Weber (TX)
Pappas	Sorensen	Webster (FL)
Pascrell	Soto	Wenstrup
Pelosi	Spanberger	Westerman
Peltola	Stansbury	Wexton
Pence	Stanton	Wild
Perez	Stauber	Williams (GA)
Peters	Steel	Williams (NY)
Pettersen	Stefanik	Williams (TX)
Pfluger	Steil	Wilson (FL)
Phillips	Steube	Wilson (SC)
Pingree	Stevens	Wittman
Pocan	Strickland	Womack
Porter	Strong	Yakym
Pressley	Swalwell	Zinke
Quigley	Sykes	
Ramirez	Takano	
Raskin	Tenney	
Reschenthaler	Thanedar	
Rodgers (WA)	Thompson (CA)	
Rogers (AL)	Thompson (MS)	
Rogers (KY)	Thompson (PA)	
Rose	Tiffany	
Ross	Timmons	
Rouzer	Titus	
Ruiz	Tokuda	
Ruppersberger	Tonko	
Rutherford	Torres (CA)	
Ryan	Torres (NY)	
Salazar	Trahan	
Salinas	Trone	
Sánchez	Turner	
Sarbanes	Underwood	
Scalise	Valadao	
Scanlon	Van Drew	
Schiff	Van Duyne	
Schneider	Van Orden	
Scholten	Vargas	
Schrier	Vasquez	
Scott (VA)	Veasey	
Scott, Austin	Velázquez	
Scott, David	Wagner	
Self	Walberg	
Sessions	Waltz	
Sewell	Wasserman Schultz	
Sherrill	Waters	
Simpson	Watson Coleman	
Slotkin	Weber (TX)	
Smith (MO)	Webster (FL)	
Smith (NE)	Wenstrup	
Smith (NJ)	Westerman	
Smith (WA)	Wexton	
Smucker	Wild	
Sorensen	Williams (GA)	
Soto	Williams (NY)	
Spanberger	Williams (TX)	
Stansbury	Wilson (FL)	
Stanton	Wilson (SC)	
Stauber	Wittman	
Steel	Womack	
Stefanik	Yakym	
Steil	Zinke	
Steube		
Stevens		
Strickland		
Strong		
Swalwell		
Sykes		
Takano		
Tenney		
Thanedar		
Thompson (CA)		
Thompson (MS)		
Thompson (PA)		
Tiffany		
Timmons		
Titus		
Tokuda		
Tonko		
Torres (CA)		
Torres (NY)		
Trahan		
Trone		
Turner		
Underwood		
Valadao		
Van Drew		
Van Duyne		
Van Orden		
Vargas		
Vasquez		
Veasey		
Velázquez		
Wagner		
Walberg		
Waltz		
Wasserman Schultz		
Waters		
Watson Coleman		
Weber (TX)		
Webster (FL)		
Wenstrup		
Westerman		
Wexton		
Wild		
Williams (GA)		
Williams (NY)		
Williams (TX)		
Wilson (FL)		
Wilson (SC)		
Wittman		
Womack		
Yakym		
Zinke		

NOT VOTING—15

Arrington	Jackson (IL)	McBath
Davis (NC)	Kelly (PA)	Payne
Deluzio	Langworthy	Schakowsky
Gallego	Luttrell	Sherman
Horsford	Mace	Stewart

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1757

So the joint resolution was not passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. SHERMAN. Mr. Speaker, had I been present, I would have voted "nay" on rollcall No. 334, H.J. Res. 70.

Mr. LAMALFA. Mr. Speaker, on rollcall No. 334, I mistakenly voted "yea" when I intended to vote "nay."

PERSONAL EXPLANATION

Ms. SCHAKOWSKY. Mr. Speaker, had I been present, I would have voted "nay" on rollcall No. 333 and "nay" on rollcall No. 334.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON MAY 16, 2012

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the joint resolution (H.J. Res. 74) relating to a national emergency declared by the President on May 16, 2012, on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 27, nays 393, not voting 13, as follows:

[Roll No. 335]

YEAS—27

Biggs	García (IL)	Norman
Bishop (NC)	Good (VA)	Omar
Boebert	Gosar	Perry
Burlison	Griffith	Posey
Bush	Hageman	Rosendale
Cloud	Harris	Roy
Crane	Luna	Santos
Duncan	Massie	Spartz
Gaetz	Nehls	Tlaib

NAYS—393

Adams	Bucshon	Costa
Aderholt	Budzinski	Courtney
Aguilar	Burchett	Craig
Alford	Burgess	Crawford
Allen	Calvert	Crenshaw
Allred	Cammack	Crockett
Amodei	Caraveo	Crow
Armstrong	Carbajal	Cuellar
Arrington	Cárdenas	Curtis
Auchincloss	Carey	D'Esposito
Babin	Carl	Davids (KS)
Bacon	Carson	Davidson
Baird	Carter (GA)	Davis (IL)
Balderson	Carter (LA)	De La Cruz
Balint	Carter (TX)	Dean (PA)
Banks	Cartwright	DeGette
Barr	Casar	DeLauro
Barragán	Case	DelBene
Bean (FL)	Casten	DeSaulnier
Beatty	Castor (FL)	DesJarlais
Bentz	Castro (TX)	Diaz-Balart
Bera	Chavez-DeRemer	Dingell
Bergman	Cherfilus-McCormick	Doggett
Beyer	Chu	Donalds
Bice	Ciscomani	Duarte
Bilirakis	Clark (MA)	Dunn (FL)
Bishop (GA)	Clarke (NY)	Edwards
Blumenauer	Cleaver	Ellzey
Blunt Rochester	Cline	Emmer
Bonamici	Clyburn	Escobar
Bost	Clyde	Eshoo
Bowman	Cohen	Espaillat
Boyle (PA)	Cole	Estes
Brecheen	Collins	Evans
Brown	Comer	Ezell
Brownley	Connolly	Fallon
Buchanan	Correa	Feenstra
Buck	Costa	Ferguson

Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, C. Scott
Frost
Fry
Fulcher
Gallagher
Garamendi
Garbarino
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Gooden (TX)
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Grijalva
Grothman
Guest
Guthrie
Harder (CA)
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luetkemeyer
Lynch
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McGovern
McHenry
Meeks
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norcross
Obernolte
Ocasio-Cortez
Ogles
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Pelosi
Peltola
Pence
Perez
Peters
Pettersen
Pfluger
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Ruiz
Ruppersberger
Rutherford
Ryan
Salazar
Salinas
Sánchez
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—13

Davis (NC)
Deluzio
Gallego
Horsford
Jackson (IL)
Kelly (PA)
Luttrell
Mace
McBath
Nunn (IA)
Payne
Stewart
Williams (NY)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1803

So the joint resolution was not passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON MAY 22, 2003

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the joint resolution (H.J. Res. 71) relating to a national emergency declared by the President on May 22, 2003, on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 26, nays 394, not voting 13, as follows:

[Roll No. 336]

YEAS—26

Biggs
Bishop (NC)
Boebert
Burlison
Bush
Cloud
Crane
Duncan
Gaetz
García (IL)
Good (VA)
Gosar
Hageman
Harris
Luna
Massie
Nehls
Norman
Omar
Perry
Posey
Rosendale
Roy
Santos
Spartz
Tlaib

NAYS—394

Adams
Aderholt
Aguilar
Alford
Allen
Allred
Amodei
Armstrong
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Banks
Barr
Barragán
Bean (FL)
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bost
Bowman
Boyle (PA)
Brecheen
Brown
Brownley
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Calvert
Cammack
Caraveo
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Cline
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Connolly
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Donalds
Duarte
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Estes
Evans
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, C. Scott
Frost
Fry
Fulcher
Gallagher
Garamendi
Garbarino
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Gooden (TX)
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Griffith
Grijalva
Grothman
Guest
Guthrie
Harder (CA)
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luetkemeyer
Lynch
Magaziner
Malliotakis
Mann
Manning
Mast
Matsui
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McGovern
McHenry
Meeks
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Newhouse
Nickel
Norcross
Nunn (IA)
Obernolte
Ocasio-Cortez
Ogles
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Pelosi
Peltola
Pence
Perez
Peters
Pettersen
Pfluger
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Ruiz
Ruppersberger
Rutherford
Ryan
Salazar
Salinas
Sánchez
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—13

Arrington
Davis (NC)
Deluzio
Doggett
Gallego
Horsford
Jackson (IL)

Kelly (PA) Mace Payne
Luttrell McBath Stewart

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1809

So the joint resolution was not passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

RELATING TO A NATIONAL EMERGENCY DECLARED BY THE PRESIDENT ON MAY 11, 2004

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the joint resolution (H.J. Res. 79) relating to a national emergency declared by the President on May 11, 2004, on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 24, nays 394, not voting 15, as follows:

[Roll No. 337]

YEAS—24

Biggs García (IL) Omar
Bishop (NC) Good (VA) Perry
Boebert Gosar Posey
Bush Hageman Rosendale
Cloud Harris Roy
Crane Luna Santos
Davidson Massie Spartz
Gaetz Norman Tlaib

NAYS—394

Adams Burgess Crow
Aderholt Burlison Cuellar
Aguilar Calvert Curtis
Alford Cammack D'Esposito
Allen Caraveo Davids (KS)
Allred Carbajal Davis (IL)
Amodei Cárdenas De La Cruz
Armstrong Carey Dean (PA)
Arrington Carl DeGette
Auchincloss Carson DeLauro
Babin Carter (GA) DelBene
Bacon Carter (LA) DeSaulnier
Baird Carter (TX) DesJarlais
Balderson Cartwright Diaz-Balart
Balint Casar Dingell
Banks Case Doggett
Barr Casten Duarte
Barragán Castor (FL) Duncan
Bean (FL) Castro (TX) Dunn (FL)
Beatty Chavez-DeRemer Edwards
Bentz Cherfilus-McCormick Ellzey
Bera Chu Emmer
Bergman Ciscomani Escobar
Beyer Clark (MA) Eshoo
Bice Clarke (NY) Espaillat
Bilirakis Cleaver Estes
Bishop (GA) Cline Evans
Blumenauer Clyburn Ezell
Blunt Rochester Clyde Fallon
Bonamici Cohen Feenstra
Bost Cole Ferguson
Bowman Collins Finstad
Boyle (PA) Comer Fischbach
Brecheen Connolly Fitzgerald
Brown Correa Fitzpatrick
Brownley Costa Fleischmann
Buchanan Courtney Fletcher
Buck Craig Flood
Bucshon Crenshaw Foster
Budzinski Crockett Foushee
Burchett Crow Foxx
Frankel, Lois Lee (CA) Ruppersberger
Franklin, C. Scott Lee (FL) Rutherford
Frost Lee (NV) Ryan
Fry Lee (PA) Salazar
Fulcher Leger Fernandez Salinas
Gallagher Lesko Sánchez
Garamendi Letlow Sarbanes
Garbarino Levin Scalise
Garcia (TX) Lieu Scanlon
Garcia, Mike Lofgren Schakowsky
Garcia, Robert Loudermilk Schiff
Gimenez Lucas Schneider
Golden (ME) Luetkemeyer Scholten
Goldman (NY) Lynch Schrier
Gomez Magaziner Schweikert
Gonzales, Tony Malliotakis Scott (VA)
Gonzalez, Vicente Mann Scott, David
Gooden (TX) Manning Self
Gottheimer Mast Sessions
Granger Matsui Sewell
Graves (LA) McCaul Sherman
Graves (MO) McClain Sherrill
Green (TN) McClellan Simpson
Green, Al (TX) McClintock Slotkin
Greene (GA) McCollum Smith (MO)
Griffith McCormick Smith (NE)
Grijalva McGarvey Smith (NJ)
Grothman McGovern Smith (WA)
Guest McHenry Smucker
Guthrie Meeks Sorensen
Harder (CA) Menendez Soto
Harshbarger Meng Spanberger
Hayes Meuser Stansbury
Hern Mfume Stanton
Higgins (LA) Miller (IL) Stauber
Higgins (NY) Miller (OH) Steel
Hill Miller (WV) Stefanik
Himes Miller-Meeks Steil
Hinson Mills Steube
Houchin Molinaro Stevens
Houlahan Moolenaar Strickland
Hoyer Mooney Strong
Hoyle (OR) Moore (AL) Swalwell
Hudson Moore (UT) Sykes
Huffman Moore (WI) Takano
Huizenga Moran Tenney
Hunt Morelle Thanedar
Issa Moskowitz Thompson (CA)
Ivey Moulton Thompson (MS)
Jackson (NC) Mrvan Thompson (PA)
Jackson (TX) Mullin Tiffany
Jackson Lee Murphy Timmons
Jacobs Nadler Titus
James Napolitano Tokuda
Jayapal Neal Tonko
Jeffries Neguse Torres (CA)
Johnson (GA) Newhouse Torres (NY)
Johnson (LA) Nickel Trahan
Johnson (OH) Norcross Trone
Johnson (SD) Nunn (IA) Turner
Jordan Obernolte Underwood
Joyce (OH) Ocasio-Cortez Valadao
Joyce (PA) Ogles Van Drew
Kamlager-Dove Owens Van Duyne
Kaptur Pallone Van Orden
Kean (NJ) Palmer Vargas
Keating Panetta Vasquez
Kelly (IL) Pappas Veasey
Kelly (MS) Pascrell Velázquez
Khanna Pelosi Wagner
Kiggans (VA) Peltola Walberg
Kildee Pence Waltz
Kiley Perez Wasserman Schultz
Kilmer Peters Waters
Kim (CA) Pettersen Watson Coleman
Kim (NJ) Pfluger Weber (TX)
Krishnamoorthi Phillips Webster (FL)
Kuster Pingree Wenstrup
Kustoff Pocan Westerman
LaHood Porter Wexton
LaLota Pressley Wild
LaMalfa Quigley Williams (GA)
Lamborn Ramirez Williams (NY)
Landsman Raskin Williams (TX)
Langworthy Reschenthaler Wilson (FL)
Larsen (WA) Rodgers (WA) Wilson (SC)
Larson (CT) Rogers (AL) Wittman
Latta Rogers (KY) Womack
LaTurner Rose Yakym
Lawler Ross Zinke
Rouzer
Ruiz

NOT VOTING—15

Crawford Horsford McBath
Davis (NC) Jackson (IL) Nehls
Deluzio Kelly (PA) Payne
Donalds Luttrell Scott, Austin
Gallego Mace Stewart

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1815

Ms. STEFANIK changed her vote from ''yea'' to ''nay.''

So the joint resolution was not passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for against:

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I was unavoidably detained. Had I been present, I would have voted "nay" on rollcall No. 337.

EXPRESSING THE SENSE OF CONGRESS SUPPORTING THE STATE OF ISRAEL

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and agree to the concurrent resolution (H. Con. Res. 57) expressing the sense of Congress supporting the State of Israel, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. MCCAUL) that the House suspend the rules and agree to the concurrent resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 412, nays 9, answered ''present'' 1, not voting 11, as follows:

[Roll No. 338]

YEAS—412

Adams Buck Correa
Aderholt Bucshon Costa
Aguilar Budzinski Courtney
Alford Burchett Craig
Allen Burgess Crane
Allred Burlison Crawford
Amodei Calvert Crenshaw
Armstrong Cammack Crockett
Arrington Caraveo Crow
Auchincloss Carbajal Cuellar
Babin Cárdenas Curtis
Bacon Carey D'Esposito
Baird Carl Davids (KS)
Balderson Carter (GA) Davidson
Balint Carter (LA) Davis (IL)
Banks Carter (TX) De La Cruz
Barr Cartwright Dean (PA)
Barragán Casar DeGette
Bean (FL) Case DeLauro
Beatty Casten DelBene
Bentz Castor (FL) DeSaulnier
Bera Castro (TX) DesJarlais
Bergman Chavez-DeRemer Diaz-Balart
Beyer Cherfilus-McCormick Dingell
Bice Chu Doggett
Biggs Ciscomani Donalds
Bilirakis Clark (MA) Duarte
Bishop (GA) Clarke (NY) Duncan
Bishop (NC) Cleaver Dunn (FL)
Blumenauer Cline Edwards
Blunt Rochester Clyburn Ellzey
Boebert Cloud Emmer
Bonamici Clyde Escobar
Bost Cohen Eshoo
Boyle (PA) Cole Espaillat
Brecheen Collins Estes
Brown Comer Evans
Brownley Connolly Ezell
Buchanan Correa Fallon

Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, C. Scott
Frost
Fry
Fulcher
Gaetz
Gallagher
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Good (VA)
Gooden (TX)
Gosar
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Griffith
Grijalva
Grothman
Guest
Guthrie
Hageman
Harder (CA)
Harris
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luetkemeyer
Luna
Lynch
Magaziner
Malliotakis
Mann
Manning
Massie
Mast
Matsui
McCaul
McClain
McClellan
McClintock
McCormick
McGarvey
McGovern
McHenry
Meeks
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Pelosi
Peltola
Pence
Perez
Perry
Pettersen
Pfluger
Phillips
Pingree
Pocan
Porter
Posey
Quigley
Raskin
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Ross
Rouzer
Roy
Ruiz
Ruppersberger
Rutherford
Ryan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Spartz
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—9

Bowman
Bush
Carson
Lee (PA)
Ocasio-Cortez
Omar
Pressley
Ramirez
Tlaib

ANSWERED ''PRESENT''—1

McCollum

NOT VOTING—11

Davis (NC)
Deluzio
Gallego
Jackson (IL)
Kelly (PA)
Luttrell
Mace
McBath
Payne
Peters
Stewart

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1825

So (two-thirds being in the affirmative) the rules were suspended and the concurrent resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. DELUZIO. Mr. Speaker, had I been present, I would have voted "yea" on rollcall No. 338, expressing the sense of Congress supporting the State of Israel.

PERSONAL EXPLANATION

Mr. DAVIS of North Carolina. Mr. Speaker, I missed votes today due to a death in the family. Had I been present, I would have voted "nay" on rollcall No. 333, H.J. Res. 68—Relating to a national emergency declared by the President on October 27, 2006, "nay" on rollcall No. 334, H.J. Res. 70—Relating to a national emergency declared by the President on February 25, 2011, "nay" on rollcall No. 335, H.J. Res. 74—Relating to a national emergency declared by the President on May 16, 2012, "nay" on rollcall No. 336, H.J. Res. 71—Relating to a national emergency declared by the President on May 22, 2003, "nay" on rollcall No. 337, H.J. Res. 79—Relating to a national emergency declared by the President on May 11, 2004, and "yea" on rollcall No. 338, H. Con. Res. 57—Expressing the sense of Congress supporting the State of Israel.

HOUR OF MEETING ON TOMORROW

Mr. ALFORD. Mr. Speaker, I ask unanimous consent that when the House adjourns today, it adjourn to meet at 9 a.m. tomorrow.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

□ 1830

HONORING TYRONE BROWN

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to honor Tyrone ''Hollywood'' Brown, who was recently inducted into the American Basketball Hall of Fame.

Tyrone Brown was born in Savannah, Georgia, where he went to Alfred E. Beach High School.

After years of hard work at Savannah State University, Tyrone joined the Harlem Globetrotters in 1985.

He was a member of the Harlem Globetrotters for over 10 years. During his time with the Globetrotters, Tyrone put an emphasis on children's education and development.

He remained passionate about inspiring children to set goals and work hard, leading him to create the Ambassadors of Responsibility Foundation to enable former teammates to better serve elementary and middle school students across the country.

Tyrone also wrote a book ''A Piece of Paper'' that tells his own story of how he worked to become a Harlem Globetrotter.

Tyrone was inducted into the Hall of Fame this past June alongside many other basketball legends.

WELCOMING PRESIDENT HERZOG OF ISRAEL

(Mr. LANDSMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANDSMAN. Mr. Speaker, I rise today to welcome President Herzog of Israel to the Capitol tomorrow.

Israel is a critical partner of ours and essential to our national security. It is one of the most inclusive and progressive democracies in the world with high voter turnout, a diverse legislature, a Pride event in Tel Aviv that is one of the biggest Pride events in the world.

We must continue to grow our special relationship with Israel.

We also know that the path to peace and security and a two-state outcome will be a strong governing authority in the West Bank and then Gaza. This will help get the mostly Iranian-backed terror groups out of the West Bank. The key will be for European and Arab nations to help our Palestinian friends establish this legitimate governing authority.

With this, we will be on an historic path toward peace and better lives for both Israelis and Palestinians.

Again, I welcome President Herzog. We are so glad he is here, and I hope that this unique and special relationship between our countries continues to grow stronger and stronger all in our effort to promote peace and prosperity around the world.

THE RIGHT TO FREE SPEECH IS A CORNERSTONE OF AMERICAN DEMOCRACY

(Mr. JOYCE of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOYCE of Pennsylvania. Mr. Speaker, since the Bill of Rights was ratified in 1791, the right to free speech has been the cornerstone of American democracy.

Sadly, we have seen deliberate and malicious attempts by President Biden

and his administration to censor and silence this unalienable right.

Under the guise of public health, the Biden administration has attempted to use the Oval Office as a bully pulpit to punish those who share beliefs that the President disagrees with and news that he doesn't like.

The Federal Government should never punish Americans for using First Amendment rights, and the decision by a U.S. district judge to limit the Biden administration's contact with social media companies is a positive first step toward correcting these wrongs.

My constituents who have been censored deserve accountability, and it is time for the Biden administration to fully admit to the actions that were taken to stifle free speech.

GUN VIOLENCE IS AN EPIDEMIC

(Ms. SCHRIER asked and was given permission to address the House for 1 minute.)

Ms. SCHRIER. Mr. Speaker, I am here today to speak about the epidemic of gun violence that continues to plague our country. In fact, gun violence is now the leading cause of death for children.

As a pediatrician, I understand that we have to look at this as a public health crisis and work on multiple levels to keep our children and communities safe from gun violence.

I am focused on pragmatic solutions and proud that both parties came together last Congress to take some commonsense steps to keep guns away from people who are likely to pose a danger and to address the mental health crisis in this country that has led to higher rates of firearm suicide.

There is more to do, and I invite my Republican colleagues to join us to enhance background checks and close loopholes that allow some people to buy guns without a background check, to increase funding for research so that we can make evidence-based decisions in our legislation, and to incentivize safe storage because children should not have access to their parents' weapons.

There are areas where we worked together last Congress, and we can do more.

Not a single Republican Member of Congress lost their race last year because they voted for commonsense safe gun ownership laws. We can do more to protect children and communities, and we should do it together.

STAND AGAINST ANTI-SEMITISM

(Mr. ALFORD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ALFORD. Mr. Speaker, I rise today to stand against anti-Semitism.

I stand before you as a Republican Member of Congress to address the issue that transcends party lines and touches the very core of who we are as Americans.

Anti-Semitism is a pernicious form of hatred that has persisted for far too long in our world. It undermines the principles of tolerance, acceptance, and compassion that we hold dear as Americans.

It is deeply troubling and entirely unacceptable that a colleague on the other side of the aisle has labeled Israel a racist state.

We must be resolute in our efforts to combat this hate and be unequivocal in our condemnation of anti-Semitism in all of its forms from all persons.

The Jewish people have shown incredible resilience and strength as they have faced unimaginable suffering throughout history—from the horrors of the Holocaust to the persistent prejudice that seeks to marginalize them today, as the Jewish people have been unjustly targeted.

Let us join hands in solidarity, Mr. Speaker, with our Jewish brothers and sisters and make it our mission to combat and eradicate anti-Semitism once and for all.

GUN VIOLENCE

(Ms. JACOBS asked and was given permission to address the House for 1 minute.)

Ms. JACOBS. Mr. Speaker, gun violence is the number one killer of kids and teens in America.

For so many problems facing our country, we don't know what to do, we don't know exactly how to fix it. Gun violence is different. We know what to do, but Republicans lack the backbone to do it, and, frankly, their justifications why aren't good enough.

Bucking your party, alienating the NRA, or potentially risking your seat is worth it to save lives.

We can save lives by reinstating the Federal Assault Weapons Ban. The 1994 ban that was implemented when I was only 5 years old decreased gun massacres by 37 percent, and when that ban expired, gun massacres rose by 183 percent.

Reinstating this ban would prevent parents from having to say their final good-byes to their children. It would prevent the trauma we knowingly pass on to future generations. It would prevent the never-ending what-ifs, if-onlys, and what-could-have-beens when thinking about the loved ones we have lost.

I urge my colleagues to do the right thing and reinstate the Federal Assault Weapons Ban.

PAY ATTENTION

(Mr. GROTHMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GROTHMAN. Mr. Speaker, I rise today to talk a little bit about a hearing we are going to have tomorrow in the Oversight and Accountability Committee regarding members of President Biden's family.

It is a hearing I don't want to have. I think the President has done a pretty bad job, and politically he has made a lot of mistakes that have made him unpopular, but what we are dealing with here is significant sums of money, tens of millions of dollars, that appears to have flowed to his family from other countries around the world—in particular, China and Ukraine.

It is very difficult as a Congressman to know exactly what American policy should be with regard to these countries, but it makes it even more difficult if it is apparent that the President of the United States or his family may have received significant amounts of money and may have even been subject to blackmail if the worst had happened.

I strongly encourage the American public and the Chair to tune into our hearing tomorrow because we are going to unveil a new witness whose name has not been publicly revealed, and I think it is important for all Americans to pay attention and see exactly what is going on.

CELEBRATING THE 95TH BIRTHDAY OF LOU PECORA

(Mr. CORREA asked and was given permission to address the House for 1 minute.)

Mr. CORREA. Mr. Speaker, I rise today to celebrate the 95th birthday of Lou Pecora, a beloved member of our Orange County community.

Lou was born in Pennsylvania where his family business was making boots for coal miners. Many of his friends went to Wall Street, but Lou's passion was on Main Street where he found his love for education.

Lou began as a professor at Fairleigh Dickinson University where he taught business to English majors, preparing young professionals with all the skills necessary to succeed in a changing world.

It took getting stuck under a bridge during a snowstorm in Pennsylvania for Lou to decide to finally move to the West Coast. Naturally, he decided to move to our great city of Santa Ana, and he has been there ever since.

Lou believes in living a good life. He believes in friends, good friends, and giving back. He and his partner, Joe, were together for 55 years, and they have been embraced by our community because of their charisma and charm.

Mr. Speaker, I wish Lou a happy 95th birthday, and I wish him many more.

OPPOSITION TO STRIPPING FUNDING FROM THE LGBT CENTER OF GREATER READING

(Ms. HOULAHAN asked and was given permission to address the House for 1 minute.)

Ms. HOULAHAN. Mr. Speaker, today Appropriations Committee Republicans struck down community project funding requests for three projects related to LGBTQ organizations, and one was from my community.

The decision to strip this specific request from the bill, a request previously approved by the Transportation, Housing and Urban Development, and Related Agencies Subcommittee is not based in reasoning or legitimacy, but instead on bigotry and discrimination.

My office's selection process for Community Projects Funding is recognized as one of the most thorough and fair in Congress. We use an independent board of community leaders from our district. That means today the committee overrode the will of my constituents.

My district is a vibrant community in the suburbs of Philadelphia, and I would venture to say that many on the committee who voted against this funding have never visited it. It is demonstrated in the fact that they couldn't pronounce the name of the city of Reading and pronounced it Reading.

They have not visited the LGBT Center of Greater Reading itself like I have many times, and they have never seen the food pantry that helps those who have been rejected by their family or the warm spaces that welcome people in the winter and allow them a clean space to live and be themselves. These are basic human needs.

On behalf of my community and on behalf of the LGBTQ community, I express my vehement opposition to stripping lifesaving funding from the LGBTQ Center of Greater Reading.

AMERICA NEEDS A RELIABLE DECARBONIZED POWER GRID

(Mr. CASTEN asked and was given permission to address the House for 1 minute.)

Mr. CASTEN. Mr. Speaker, can we maintain an affordable, reliable, and decarbonized grid if we rely only on traditional renewables?

To hear our Republican colleagues talk, absolutely not. They say that nuclear and advanced fossil fuels and hydrogen all have to be in the mix. As the old saw goes, when you are in a negotiation, don't watch the other guy's lips, watch his feet.

The Republicans' proposed appropriations package includes $15 billion—that is a 20 percent cut—in the title 17 program. This is the loan program office that helps those early stage technologies get to commercialization.

This program, by the way, is currently massively oversubscribed. Of their existing $73 billion of loan authority, they have already received over $90 billion of applications of which 37 percent offer carbon management, advanced nuclear, and fossil fuel technologies included that my colleagues claim to hold dear.

These technologies are critically important to the future of our energy system. They all critically need government support to get to commercialization, and they would all be cut by the proposed Republican budget.

I want a reliable, decarbonized power grid that uses all those technologies and more. My colleagues across the aisle, on the other hand, seem to be rooting for blackouts—or worse.

I know that is true because in the words of Shakira—feet don't lie.

□ 1845

WORSENING CLIMATE CRISIS HAS WROUGHT DESTRUCTION ACROSS THE COUNTRY

(Ms. SALINAS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. SALINAS. Mr. Speaker, I rise in support of my bill, the Civilian Conservation Center Enhancement Act.

The worsening climate crisis has wrought destruction across the country, and Oregon is not immune from that devastation.

Every year, our wildfire season becomes more severe. In fact, right now, there are 19 active wildfires in Oregon alone, burning thousands of acres, threatening properties, and upending daily life for hundreds of Oregonians.

Yet as the risk of wildfire has grown, our wildland firefighting capacity has fallen far behind, and that is where the Civilian Conservation Center Enhancement Act comes in.

This bill will actually cut through the red tape to ensure the Forest Service can hire brave Americans who are ready, willing, and able to battle these blazes.

Mr. Speaker, I thank my colleagues, Representatives HOYLE, GUTHRIE, and EDWARDS, for their support of this bill, and I look forward to seeing its passage.

HONORING THE WORK OF REVEREND JESSE JACKSON

(Mr. GARCÍA of Illinois asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GARCÍA of Illinois. Mr. Speaker, I rise to honor the work of Reverend Jesse Jackson as he steps down as president of Rainbow PUSH Coalition.

Reverend Jackson has fearlessly fought for the rights of marginalized communities, serving as a beacon of hope and inspiration for millions.

His Presidential campaign in 1988 was a defining moment, not only for our brothers and sisters in the African-American community, but for all Americans who believed in a more inclusive society.

Jesse Jackson has taught us many lessons, among them, that political empowerment is vital to improving our communities. He has encouraged countless individuals to exercise their fundamental right to vote and ensure that every voice is heard and every vote is counted.

There is no doubt that his relentless pursuit with the Rainbow Coalition played a crucial role in the election of Congressman Harold Washington as Chicago's first progressive and Black mayor.

Mr. Speaker, I thank Reverend Jackson for his lifelong commitment to civil rights and his role in helping shape our country's politics to reflect its diversity.

RECOGNIZING THE LIFE AND SERVICE OF DR. ORIN ALLEN

(Mr. DESAULNIER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DESAULNIER. Mr. Speaker, today, I rise to recognize the life and service of Dr. Orin Allen.

Throughout his life, Dr. Allen was committed to advancing justice and serving his community. He worked for the Contra Costa County Probation Department in California for 35 years and was especially passionate about supporting our youth, serving on several local boards. In 1999, Dr. Allen was named Contra Costa County's Humanitarian of the Year in recognition of his commitment to the county's youth.

Dr. Allen also worked tirelessly to ensure quality education and supported students. He served as an elected member on the Pittsburg Unified School District Board for more than 20 years, and was recognized for his contributions with an Outstanding Friend of Education award from the Association of California School Administrators.

Outside of his professional pursuits, Dr. Allen enjoyed spending time with his family and friends of which I am one and consider myself lucky to have been his friend.

Sadly, Dr. Allen passed away on April 23. He will be remembered for his compassionate nature and his many contributions to our community. Please join me in recognizing the life of Dr. Orin Allen.

GUN VIOLENCE IS THE LEADING CAUSE OF DEATH FOR AMERICAN CHILDREN

The SPEAKER pro tempore (Mr. LANGWORTHY). Under the Speaker's announced policy of January 9, 2023, the gentleman from California (Mr. THOMPSON) is recognized for 60 minutes as the designee of the minority leader.

GENERAL LEAVE

Mr. THOMPSON of California. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to submit extraneous material into the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. THOMPSON of California. Mr. Speaker, gun violence is the leading cause of death for American children.

Let me repeat that: Gun violence is the leading cause of death for our kids. It is shameful that every Member in

this body knows that guns are used to kill our kids and the Republican majority is refusing to take any action to stop this epidemic.

Parents are scared to send their kids to school. They are worried that it may be the last time they see them alive. Kids are being impacted by active-shooter drills and are scared to death that their school will be the next site of a school shooting.

The Gun Violence Prevention Task Force is leading efforts in Congress to compel our Republican colleagues to bring gun violence prevention measures up for a vote.

The American people are with us on this. The only place that gun violence prevention is a partisan issue is right here in this Congress.

A recent FOX News poll shows that the American people overwhelmingly support gun violence prevention measures, 87 percent support universal background checks, 81 percent support raising the legal age to purchase firearms to 21, 80 percent support red flag laws, and in this same FOX poll, 61 percent support banning assault weapons.

It is time for the House Republicans to join House Democrats in prioritizing saving our kids. Democrats took an important first step in the last Congress when President Biden signed into law the Bipartisan Safer Communities Act, which was the first major gun violence prevention bill signed in 30 years. There is still more work to do.

We are here this evening to shine a spotlight on the failure of the Republicans to join us in support of policies that will save lives. The Republican leadership's callous inaction is contributing to a mass casualty every day in our country. There have been more mass shootings this year than there have been days in the year.

As a combat veteran, a hunter, and a gun owner, not one Republican can tell me that background checks interfere with our Second Amendment.

When debating background checks, we have definitively refuted every tired Republican excuse time and time again. Republicans have countered with an even more callous response: They respond to every death with deafening silence.

The Gun Violence Prevention Task Force will continue our work to hold Republicans accountable for their obstruction. The leading cause of death of our children and teens demands our attention, and we are demanding that the House pass legislation to help save lives.

Mr. Speaker, I yield 2 minutes to the gentleman from Colorado (Mr. CROW), my friend and colleague from Colorado, and an Army Ranger who was deployed in both Afghanistan and Iraq.

Mr. CROW. Mr. Speaker, I rise today to honor the victims of the horrific mass shooting that occurred at Century 16 movie theater in Aurora, Colorado, 11 years ago. My community forever changed the night of July 20, 2012.

Twelve people, with arms full of popcorn and candy, walked into theater 9 and never walked out. I think those of us in this room whose communities have faced this type of tragedy would agree: There is a before and there is an after, and what comes after is a shattered community trying to make sense of a senseless act of violence.

Today, we remember Veronica, AJ, Micayla, Jessica, Alexander, Jonathan, John, Matt, Alex, Jesse, Rebecca, and Gordon. They should still be here.

Every year, Aurora and the greater Colorado community come together to remember the lives we lost and the collective trauma shared. We also recognize those, who in the face of unspeakable fear, stepped up to help their loved ones and neighbors.

Let us not grow numb to the pain of this day, rather, we honor the lives of those we lost by being relentless in our pursuit for gun reform. As Members of Congress and as Americans, it is our duty.

Mr. THOMPSON of California. Mr. Speaker, I yield to the gentlewoman from Pennsylvania, MARY GAY SCANLON.

Ms. SCANLON. Mr. Speaker, there have been more mass shootings this year than there have been days.

We do not have to live like this.

Children are scared to go to school, parents are scared to put their kids on the bus, and teachers are scared that they will have to protect their students from a mass shooter in the classroom. The daily gun violence that often goes unreported by the media, including suicide and domestic violence, impacts neighborhoods in every corner of the country.

We do not have to live like this.

Last Congress, House Democrats passed into law the most significant gun violence prevention legislation in 30 years, but we know that was only a baby step in the right direction. We have seen that evidence-based violence prevention programs, like group violence intervention, can dramatically reduce gun violence. When it was implemented in the city of Chester, Pennsylvania, 3 years ago, homicides by gun dropped by over 60 percent. The expansion of that program to other cities around the country is already yielding results, but we have also seen the fatal impact of guns flooding our streets nationwide and making their way into the hands of criminal or mentally unstable users.

We can't give up. Democrats are working to prevent the bloodshed.

We are offering commonsense legislation that will address the epidemic of gun violence and protect the Second Amendment rights of responsible gun owners.

Democrats introduced three discharge petitions last month to ban assault weapons, require universal background checks, and close the Charleston loophole. The MAGA Republicans running Congress don't want these bills to come to the floor because they would have to make a choice, and voters would see it, whether to side with the gun lobby that funds their program, their campaigns, or to protect our kids and our communities.

Mr. Speaker, I urge my colleagues, especially those who claim to be moderates, to have the courage to sign the discharge petitions and force Speaker MCCARTHY to bring the legislation to the floor and to have the courage to choose kids over guns.

We do not have to live this way.

Mr. THOMPSON of California. Mr. Speaker, I would just remind you that guns are the leading cause of death for children in the United States of America, and we are here today because we can do something about it.

If you look at this other chart, it clearly points out that, again, firearms are the leading cause of death. However, if you look at other factors, the second, motor vehicle accidents, look at the steep decline in the loss of lives from motor vehicle accidents.

It is because we did something. We passed laws, we made cars safer, we reduced the number of children who were killed in automobile accidents by taking action on this floor, and it is shameful that the Republican leadership will not allow us to do that today to curb children's death by gun violence.

Mr. Speaker, I yield 2 minutes to the gentleman from Massachusetts (Mr. AUCHINCLOSS).

Mr. AUCHINCLOSS. Mr. Speaker, I thank my colleague for yielding and for convening this critically important Special Order hour.

Mr. Speaker, I rise today to address the plague of gun violence in our country.

I was asked recently whether January 6, 2021, was my worst day in Congress, and I answered truthfully that no, it wasn't, actually. My worst day in Congress was the night of the Uvalde shooting when I tucked my children into bed knowing that families in Texas would never get to do the same again, when at that very moment, they were identifying them by their shoes.

I am sad to say that since then, my Republican colleagues have continued to bow to the will of the gun lobby instead of listening to families across the country who are begging for action.

This uniquely American suffering is a policy choice. It doesn't have to be this way. We know what we need to do to fix it. We need to pass the assault weapons ban. I slept, ate, trained, and patrolled with an assault weapon for 4 years as a marine officer.

Weapons of war have no place on our streets or near our schools. We also need to adopt commonsense gun safety measures like universal background checks, red flag laws, safe storage requirements, and evidence-driven violence intervention policies. All of these are supported by a supermajority of Americans and, indeed, by a majority of gun owners.

My home State of Massachusetts is a good example of how strong, sound policy can save lives. Research suggests

that if our State's gun safety legislation were adopted nationwide, tens of thousands of children could be saved every year. Congress would do well to follow that lead.

□ 1900

It is time for Republicans in Congress to find a backbone, stand up to the gun lobby and NRA, and work with Democrats to keep our communities safe.

We cannot continue to allow our schools, our places of worship, and our grocery stores to become scenes of terror because of a lack of political courage.

Mr. THOMPSON of California. Mr. Speaker, can you give us any idea when the Republican leadership will bring bills to deal with gun violence prevention to the floor for a vote?

I didn't think so.

Mr. Speaker, I yield to the gentlewoman from Michigan (Ms. SCHOLTEN).

Ms. SCHOLTEN. Mr. Speaker, I rise today in support of the west Michiganders who are asking and begging Congress to finally act on the uniquely American gun violence epidemic.

As a mother and a lawmaker, I simply cannot sit by and let our kids be senselessly killed in their classrooms and our communities any longer. It is just too much.

Gun violence has become the number one cause of death for kids in the United States. Not drug overdoses, not car accidents. Gun violence.

Earlier this year, the entire State of Michigan watched in horror as the Michigan State University campus was on lockdown during a mass shooting. Three students died and five were injured. The reverberating impacts were felt around the entire State and the entire country. The effects of this trauma linger.

This is now the reality for our children and young adults, but it doesn't have to be.

I stand here on the floor today with my sons watching on, urging my Republican colleagues to take commonsense action. We can and must come together to close loopholes in the law, ensure universal background checks, and keep guns out of the hands of those that should not have them.

I stand ready with my fellow task force members to do the work to protect our kids, schools, families, and communities across the country. It is time our Republican colleagues join us.

Mr. THOMPSON of California. Mr. Speaker, I yield to the gentlewoman from North Carolina (Mrs. FOUSHEE).

Mrs. FOUSHEE. Mr. Speaker, I rise today to urge Congress to confront and act on the deadly epidemic that plagues our communities each day: gun violence.

This is a painful topic and one that is near to my heart. In this year alone, there has been an average of two mass shootings per day. Gun violence continues to be the leading cause of death for children and teens in this country.

Earlier this month, a 5-year-old girl from my district was shot and killed by one of her family members after an argument, and the girl's 15-year-old babysitter was also shot—seven times.

Unfortunately, this is not an isolated event. In Durham, which is located in my district, over 20 young people under the age of 17 have been victims of gun violence since the start of this year.

Thoughts and prayers are not enough and will never be enough. Gun violence victims, gun violence survivors, their families, and their loved ones all deserve more. Congress must act urgently to save lives and keep our communities safe.

The House Gun Violence Prevention Task Force has been pushing for action by signing discharge petitions for the Bipartisan Background Checks Act, the Assault Weapons Ban, and to block the Charleston loophole.

This is a bipartisan issue that a majority of Americans support, but we need support from across the aisle.

Addressing gun violence requires an all-hands-on-deck approach that includes increasing access to mental health services, investing in youth mentoring programs, decreasing firearm access through safe storage, and much more.

My Republican colleagues claim to be working on this issue, but not one of them has joined our task force to help end gun violence nationwide. Instead, they have unilaterally worked against gun violence prevention action on this House floor.

No one in America should have to fear for their lives in our schools, our stores, our places of worship, our streets, or anywhere in our communities.

House Democrats and the House Gun Violence Prevention Task Force stand united, and we will not waiver. I encourage our colleagues on the other side of the aisle to put their words into action and join us in these efforts to save lives.

Mr. THOMPSON of California. Mr. Speaker, the gentlewoman mentioned that our Republican colleagues aren't doing anything in regard to guns. It is actually worse than that. They have done something. The Republicans passed a bill, a gun bill, off this floor this year. Their bill would make this gun legal.

Short-barreled rifles have been regulated by the National Firearms Act for decades. They are regulated because they are incredibly dangerous, they are easy to conceal, and they are deadly accurate. They are used in crimes. They are responsible for the deaths of many, many people, and they have been tightly regulated.

The Republicans in this House passed a bill that makes this gun legal. They call it an arm brace. ''Arm brace'' is just another way of saying you are putting a stock on a semiautomatic assault pistol, so you are making it a short-barreled assault rifle. It is lethal. It is immoral. Everyone who voted for that bill and the leadership who brought it to this floor for a vote should be ashamed of themselves.

Mr. Speaker, I yield to the gentlewoman from Michigan (Ms. TLAIB).

Ms. TLAIB. Mr. Speaker, I really appreciate the leadership and guidance by Congressman THOMPSON as he leads our effort with the task force. I have learned so much about some of the work that has been done prior to getting here and knowing, again, we are taking steps, but we know that we need to move with urgency.

I know 205 of my Democratic colleagues have signed a discharge position to bring the assault weapons ban to the House floor for a vote. I don't know how many more mass shootings it will take for Republicans to finally join us.

These weapons of war have been used in many of the deadliest mass shootings in our history and are the weapons of choice for shooters to kill as many people as possible as quickly as possible.

From 1994, Mr. Speaker, to 2004, while American families were protected by the assault weapons ban, there were 40 percent fewer shootings. Since the ban expired in 2004, gun violence has massacred our communities.

A bullet fired by an assault weapon can tear a softball-sized wound into victims. Imagine a child. There is no reason that anyone needs a weapon that can fire up to 60 rounds per minute.

Weapons of war designed to hunt human beings have no place in our communities, our schools, our places of worship, or on our streets.

It is shameful that many Republican colleagues care more about securing funding from the NRA than saving the lives of our children. Their inaction has left our communities devastated and families torn apart.

The trauma of being survivors of gun violence is real. We cannot afford to wait any longer. We owe it to the victims, to survivors, to our children. We must honor them with action by banning assault weapons.

Maite, a 10-year-old child who was killed in Uvalde, deserves us to act today. She deserves us to do more to save lives.

Mr. THOMPSON of California. Mr. Speaker, may I inquire as to the time remaining?

The SPEAKER pro tempore. The gentleman from California has 40 minutes remaining.

Mr. THOMPSON of California. Mr. Speaker, 30 people every day are killed by someone using a gun. If you add accidental deaths and suicides, that number jumps up to 100 people per day. It costs the American taxpayers roughly $600 billion every year. Gun violence costs almost $600 billion every year. Communities across our country are upended. We already heard that there have been more mass shootings this year than there have been days of the year.

Police officers across the country are taking ghost guns off the streets every single day, guns that can be purchased as a kit so they don't need a background check and they are unserialized. These are guns that are used a lot in crime. Cops are taking them off the streets every day.

This is a serious problem. Our communities are hurting. People are being killed. We need to take action. The Republican leadership in this House needs to bring gun violence prevention legislation to the floor so we can vote it out and help keep our communities safer.

Mr. Speaker, I yield to the gentleman from California (Mr. DESAULNIER).

Mr. DESAULNIER. Mr. Speaker, I thank my neighbor and colleague and friend, Congressman THOMPSON, for the time and for his tireless leadership on this important topic and for his incredible understanding, from many perspectives, on this important subject.

I come to this subject as a survivor of gun violence, having lost my father to gun violence 44 years ago. As Mr. THOMPSON mentioned, suicide is the leading issue with gun violence, and we know the free and easy access to guns in States and communities that don't provide for evidence-based research results in almost 60 percent of those daily deaths. Sixty of the 100 a day are by people that are self-inflicted like my father.

In California, the district I represent and the district Mr. THOMPSON represents, the Bay Area, we can be proud that these commonsense, evidence-based gun violence and public health initiatives make you safer. According to Giffords, significantly safer. We have years of research to demonstrate this.

While we are proud of the fact that you are safer in California in our districts because of sound public evidence and constitutionally approved policy, we are frustrated that weak gun laws in other parts of the country make it more dangerous even in our communities.

Forty percent of the guns used in California come from outside of the State illegally. The ATF reports that nearly 60,000 guns are trafficked across State lines nationally each year with tragic results.

As many as 87 percent of the firearms used in crimes in Chicago, New York, and Boston were trafficked from other States, in spite of those jurisdictions' thoughtful gun violence prevention laws.

Seventy-five percent of trace guns that cross State lines come from States without background checks.

Because of this patchwork of State and local laws, States like California, with strong gun laws, see increased rates of gun homicide and gun crime when they border States with weak gun laws.

To make a real impact, action has to happen here at the Federal level. We should all commit that we will not back down from this fight because every American, no matter where they live, regardless of where they call home, deserves to live free of the fear of gun violence.

Mr. THOMPSON of California. Mr. Speaker, I yield to the gentleman from Illinois (Mr. SCHNEIDER).

□ 1915

Mr. SCHNEIDER. Mr. Speaker, I rise to once again call for urgent action to address the epidemic of gun violence in our Nation. What is wrong with us as a people who we are increasingly here in this well mourning needless gun deaths, yet we can't move in this body any commonsense, wildly popular policies to keep our children and our communities safe?

How many more shootings will we have to endure? How many more lives will have to be lost before Congress—let me be specific here—before my Republican colleagues will do anything to help take care of our kids and our communities?

We have put to this Congress legislation to require universal background checks, ban assault weapons, get ghost guns off our streets, and store firearms safely. Yet, not one of my Republican colleagues can find the will or the courage to support any of this life-saving legislation. For goodness' sake, these bills are law-and-order legislation.

Every day, more than 100 people die from gun violence in this country. In the first 6 months of this year alone, more than 23,000 people have lost their lives needlessly to gun violence in the United States. I represent Highland Park, Illinois, which is still reeling from a mass shooting last July Fourth when seven people were murdered and more than 40 grievously wounded.

Last year, that was the 308th mass shooting in the country. This year, we have already had more than 390 mass shootings.

These deaths impact us all. The trauma resonates throughout our society. Right now, in America, when our children enter kindergarten, one of the first things they learn is how to react and behave if an active shooter enters their school.

As has been noted, gun violence is the leading cause of death for children in the United States. As it says right there on the board, guns are the leading cause of death for children in the United States.

Children are suffering post-traumatic stress from Highland Park in my communities and in communities all around this Nation. Children are facing violence every single day as they walk to school, as they study in their class, and as they join their families in houses of worship.

Republican inaction is unconscionable. As I spend time in my district talking to constituents, I constantly hear about how Congress needs to tackle this issue.

Earlier this month, I held a roundtable with police chiefs in our community. There were 17 community police chiefs plus our county sheriff. The very first issue they raised with me, which was brought up earlier by Mr. THOMPSON, was getting ghost guns off of our streets.

For those unfamiliar, ghost guns are unserialized and untraceable firearms that can be bought online and assembled at home. These are bought online by criminals and bought online by young kids who are too young to buy guns in a store.

Mr. Speaker, I am proud today to be introducing the Ghost Guns and Untraceable Firearms Act with my colleague and friend, Representative ADRIANO ESPAILLAT. Our legislation would amend the legal definition of a firearm to include ghost guns, requiring those who buy gun components to comply with Federal gun regulations.

I urge leadership to bring this and other critical commonsense gun violence prevention bills to the floor immediately. This is not a Republican or a Democratic issue. This issue affects every American in every community in every State of our Nation, and we have to do our jobs in this body to keep our communities and our children safe.

Mr. THOMPSON of California. Mr. Speaker, I thank the gentleman for his remarks.

Mr. Speaker, tonight, members of the Gun Violence Prevention Task Force have made clear the terrible cost of gun violence on our kids, families, schools, and communities.

We have talked about sad milestones. In 2020, guns became the leading killer of kids in America after overtaking motor vehicle accidents.

Another dark milestone has been the 389 mass shootings already this year. We have had more mass shootings by mid-July this year than we had in all of 2014, 2015, 2016, 2017, and 2018.

We know it doesn't have to be this way. We know that States with the most gun violence prevention laws have half the death rate for children and teenagers compared to States with the least gun violence prevention laws. The States can't do it alone.

These weak national gun safety laws make it much too easy for people who are a danger to themselves or a danger to others to access guns regardless of where they live.

According to the ATF gun-tracing database, the largest source of out-of-State guns used in crimes in my home State of California is Arizona, a State with over twice the gun death rate whose gun laws are rated an F.

Likewise, New York, a State with the fourth lowest gun death rate, has guns pouring in from Georgia, which, you might have guessed, has an F rating as well for their weak gun violence laws and over three times the gun death rate.

Similarly, gun deaths in Illinois are fueled by guns from Indiana, Missouri, and Wisconsin, States whose gun laws are rated F, F, and D-plus, respectively.

Members of our task force have been calling on the Republican leadership to bring commonsense gun violence prevention bills to the floor to protect our kids and keep our communities safe.

Mr. Speaker, tonight, we have been on the floor for 30 minutes focused on gun violence prevention. That is 30 more minutes than Republicans have scheduled to debate gun violence prevention bills on the House floor this entire Congress.

Tonight, you heard from Army veterans, Marine Corps veterans, combat veterans, hunters, gun owners, and moms and dads. We say: Enough. We need to pass laws that will help keep our children and our communities safe.

We will continue to fight until Republicans join us in stopping the gun violence epidemic or until Democratic leadership in the next Congress can resume our work and pass the gun violence prevention legislation that has proven to save lives.

Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the chairman very much, and I want to join the stellar Members from so many different backgrounds to add another 2 minutes to that 30 minutes and emphasize that it is now 32 more minutes than we have had an opportunity to discuss gun violence—gun violence against our children.

I am reminded of the late John Lewis, and as I look to the front, Mr. Speaker, where you are, I am reminded of the overwhelming impact that gun violence had just a couple of years ago when he was alive, so much so that Members took to the floor—the actual floor—and sat down on the floor because the pain was so deep.

I remember the tear that President Obama shed as he had to speak about Sandy Hook. I remember going to Uvalde within days of 19 children and teachers being slaughtered. Yes, Mr. Speaker, they were slaughtered with an AR–15 that a young man was able to get online and have shipped to him without any background check of sorts and without any supervision. He was able to recklessly shoot his grandmother in the face and leave his house to go to an elementary school just a few blocks away.

One could not expect law enforcement initially to know what was going to happen. One thing we do know is that if that young man had not had an AR–15, those little babies in Uvalde, where parents are still in such abject pain, would still be alive.

We also know that as I worship with them, as I hug them, they have now become, through their own advocacy, absolutely incredulous that we in this country have not been able to pass bans on assault weapons. I support bills like the Kimberly Vaughan Firearm Safe Storage Act, which impacted Kimberly Vaughan, a 14-year-old who died in Santa Fe because another young man was able to get guns that were left at home.

I think I am here as a mother and as a Member of Congress who has been here since Columbine. I remember being on the Columbine task force to see what we could do about guns. I have been through Sandy Hook, Parkland, Santa Fe, Virginia Tech, various churches, synagogues, and temples that have seen gun violence—and dance studios.

I don't know what it takes for this Congress to come together. No one is trying to take away anyone's firearms. The Second Amendment is constitutionally present. It is in place. None of the language in the Second Amendment prevents us from having a reasonable, safe regulatory scheme that will help save all of our lives.

Mr. Speaker, I thank the chairman very much. As the vice chair of the gun task force and the ranking member of the Subcommittee on Crime and Federal Government Surveillance, we are waiting and ready to take up bills as we did with the Protect our Kids Act and the Bipartisan Safer Communities Act. There is still a lapse of real bills that further need to be in place to change laws. The waiting period, the issue of universal background checks, and storage bills are really crucial to saving lives.

The last point I will make is that we often use mental illness. Let me say that we pray for people who suffer from mental health concerns, but other countries around the world have people who suffer from mental health concerns, and I do not label them in generality. These are human beings who fight every day to survive. That is not a good excuse for saying that is what is causing gun violence. It is not.

In tribute to my colleagues who come from cities like Chicago and other cities where there is handgun violence, individual violence, and domestic violence, you need to have a response to just plain gun violence. That means we have to debate on this floor and find a common solution.

A word to my colleagues in the name of the children who have died, the number one killer of our children in America, and in the name of places like Uvalde and Sandy Hook that comes to mind, Parkland and other places where children have died, we can minimally do something to help our children. Let's do real anti-gun violence legislation. Let's make our children safe.

Mr. Speaker, today, I speak out in support of my bill H.R. 52, the Kimberly Vaughan Firearm Safe Storage Act.

This bill establishes best practices for safe firearm storage to protect Americans, especially children, from improperly stored or misused firearms.

The Kimberly Vaughn Firearm Safe Storage Act is named after one of the victims of a shooting rampage that took place on May 18, 2018, when a 17-year-old student went on a shooting rampage, killing 8 students and 2 teachers and wounding 13 others at Santa Fe High School in Houston, Texas.

The shotgun and pistol used by the perpetrator belonged to his father and were available to him at home.

In 80 percent of gunfire incidents at schools where the shooter is under 18, the shooter obtained the firearm from their home or the home of extended family or friends.

Texas is the state with the second most mass shootings this year so far with a total of 50, and the highest number of mass shooting deaths in the U.S.

Only 3 of 10 adults in households with children report storing all guns unloaded and locked up.

Safe storage practices are also important to keep firearms away from dangerous individuals.

In the last decade, nearly two million firearms have been reported stolen.

An estimated 47,000 guns are stolen each year in Texas alone.

Overall, at least 186,548 firearms were reported stolen in Texas over from 2007 to 2016, which is more than any other state in the nation.

America's gun epidemic is as deadly as ever.

The frequency of firearm violence can largely be accredited to the lack of safe firearm storage.

Previously part of the Protecting Our Kids Act in the 117th Congress with the addition of a tax credit program, the Kimberly Vaughan Firearm Safe Storage Act is an exhaustive solution to improperly stored or misused firearms.

Firearm injury is the leading cause of death for children and young adults in the United States.

American children are twice as likely to be shot and killed as they are to die drowning.

However, there are more safety regulations for pools than gun storage.

An estimated 4.6 million minors live in homes with at least one unlocked, loaded firearm.

One in three U.S. households with children have firearms and firearms accounted for nearly 19 percent of childhood deaths in 2021, which is a 50 percent increase since 2019.

Securing firearms protects children in preventing unintentional shootings and firearm suicides.

The spokeswoman for the National Rifle Association noted earlier this year that, ''the NRA supports safe storage for every firearm owned in America, and we educate gun owners to keep firearms away from unauthorized users.''

This is a nonpartisan issue with a bipartisan solution.

On average, 9 minors are killed by improperly stored or misused guns every day.

In my home state of Texas, more than 4,000 Texans are shot and killed each year.

The Kimberly Vaughn Firearm Safe Storage Act is an important bill that will establish best practices for storing firearms.

In particular, the Attorney General is directed to establish voluntary best practices relating to safe firearm storage and publish them on a website and in print.

Second, it will require most weapons to have a clear written notice on the packaging that says, ''Safe Storage Saves Lives'' and how to obtain the best practices established by the Attorney General.

Additionally, the bill will provide grants to states and local governments with a ten-year, $10 million grant program to distribute safe storage devices.

Every year, almost 20,000 children are shot and killed or wounded by a firearm, and 3 million are exposed to gun violence.

The presence of unsecured firearms in the home increases the risk of unintentional and intentional shootings.

It is long past the time to do something about the epidemic of gun violence in our nation—the nation that prides itself on protecting our children and the future generations.

If we want to protect the youth, we must start by learning how to effectively store guns in the homes that choose to have them.

The Kimberly Vaughan Firearm Safe Storage Act will help protect our children and adults from senseless gun violence through simple gun storage legislation.

I encourage my colleagues in the House and on the Gun Violence Prevention Task Force to push this bill forward so we can promptly and proactively act on preventing firearm violence in America.

Mr. THOMPSON of California. Mr. Speaker, I thank the gentlewoman for her remarks, her good work on gun violence prevention efforts, and her dedication to making sure that we pass the laws that will keep our kids and our communities safe.

Mr. Speaker, as I mentioned earlier, we have had Army combat veterans, Marine Corps combat veterans, hunters, gun owners, gun collectors, and moms and dads on this floor tonight asking and pleading with the Republican leadership to allow gun violence prevention legislation to come to this floor for debate and for a vote.

Mr. Speaker, can you give us any idea when your leadership will be bringing gun violence prevention bills to the floor for action?

Sadly, that is what I was afraid of. Silence. Just like after every mass shooting, silence.

There has to be an effort on the part of this leadership to deal with this issue that is disrupting communities and leading to thousands and thousands of deaths.

Mr. Speaker, I yield back the balance of my time.

STATE OF THE AMERICAN DREAM TODAY

The SPEAKER pro tempore. Under the Speaker's announced policy of January 9, 2023, the gentleman from Texas (Mr. ROY) is recognized for 60 minutes as the designee of the majority leader.

Mr. ROY. Mr. Speaker, I have been listening to my colleagues on the other side of the aisle decrying the alleged lack of action by those on my side of the aisle with respect to gun violence and with respect to guns generally.

□ 1930

I think it is important to note the primary driver of the current malaise and the current dangers upon citizens by those with guns comes from criminals and those who have mental health problems.

A full one-third of Americans are currently putting themselves out as depressed according to polls. We have mental health issues and drug issues with our children. We have problems with people who feel socially detached.

I can assure you, Mr. Speaker, that when I was a child, about the time I was born, fully one-half of American households had weapons and they had guns. Fewer than one-third do today.

The fact is we have a problem and an epidemic of people with mental health issues and we have a lack of resolve of leadership in this country to deal with those or to deal with the criminals perpetrating crimes. That is the truth.

My colleagues on the other side of the aisle rush to say that they want to get the guns. The fact is we need to stop the criminals. I was a Federal prosecutor. I spent my time in the United States Attorneys' Office targeting criminals with guns and putting bad guys behind bars. There has been a movement of late to allow these criminals back out on our streets. That is a mistake.

There has been a longstanding movement to not treat those with mental health problems, and it is getting infinitely worse with these devices, iPhones, and all of the focus that our young are directing towards electronic devices rather than engaging with their fellow mankind.

We know it, we see it, and we do nothing about it.

We rage against TikTok because of its relationship to China.

Why don't we rage against the extent to which these are addictive devices putting garbage in the minds of our children and creating environments where children get detached from reality and detached from society?

We see it unfold before our very eyes, and the response among leaders of this country is to form a task force. You don't need a task force to understand that our society is breaking down, and you don't need a task force to understand that our communities are breaking down.

This is what the American people are feeling on a daily basis. When I talk to my constituents, the people I run into, the people I run into on airplanes, Americans I don't represent and Americans I do represent, they know that something is very, very wrong with our country.

That is the truth. That is what the American people know.

Not just with politicians and not just with elective leaders, not just with Congress, and not just with the economy, but that something is just fundamentally wrong and fundamentally broken with our way of life.

They are not wrong. Just a couple of weeks ago, we celebrated Independence Day. One line from that document which was written specifically about and to King George citing the death warrants for all those who signed it, he said, Jefferson wrote, they wrote, they said that he—the king—has abdicated government here by declaring us out of his protection and waging war against us.

How different is that from our current situation?

The elites in this country are waging war against us. They are waging war against our values, waging wars war against or prosperity, and waging war against our natural rights as parents, as citizens, and as individuals.

The average Americans right out there today listening just want to play by the rules. They want to go to school, they want to get a job, they want to buy a house, they want to support their family, and they want to raise their kids. They want to raise their kids to be happy, they want their kids to be free, and they want a society—more importantly—they want a family that is flourishing and happy and that can achieve. All of that is what we historically call the American Dream.

What is the state of the American Dream today?

If I ask that question, half the people in the room would be staring at their dadgum iPhones because we don't engage with people anymore.

If I said this in the middle of a meeting of my colleagues, or if I said it in a restaurant, how many times do you see everybody just staring at these things?

The question here is: What happened to the American Dream?

If my colleagues were in this room—of course, they are not—I would ask: Do you believe the American Dream can be achieved by your children and by your grandchildren today?

Do you believe it?

Do you believe it is attainable?

Do you believe that if they play by the rules that they will achieve the dream?

Or do you think that the rich and the powerful—the large corporations, the government, your own leaders—are rigging the system to protect their own status and to protect their own wealth against your freedom and your prosperity?

We have a system where too often today, crony policies help big, woke corporations make windfall profits while families struggle with inflation and small businesses struggle to stay afloat amid a mountain of regulatory burdens and costs. That is the truth.

Everybody I talk to can't afford labor, they can't afford their supplies, they can't afford a car, they can't buy a new vehicle because it has been regulated to death, and they can barely afford their electricity bills.

That is the truth of everyday Americans right now, and they are wondering why? What happened to that American Dream?

The elites, on the other hand, bailed out Wall Street, and they forced Main Street to pay for it.

Now they are doing it again. Wall Street got a $1 trillion bailout after a heavy hand at tanking the economy, and they are making more money than ever now.

This year the Federal Government gave a $22 billion bailout to Silicon Valley Bank and Signature Bank of New York.

The administration only cares about their own. Treasury Secretary Yellen

said that small and regional banks wouldn't get the same treatment.

What exactly does ''too big to fail'' mean?

''Too big to fail'' means I am going to protect the fat cats down the street, but you at home are left holding the bag.

Since 2008, corporate profits have increased by 250 percent in the last 15 years. Hourly wages have increased less than 50 percent.

Mr. Speaker, you say: Oh, CHIP, you sound like a Democrat.

What I am trying to say is we have a situation where, as the Founders predicted, the power structure in this town is too tilted to the power structure of Wall Street, and too tilted to the power structure in corporate boardrooms across this country.

Hardworking Americans are the ones who can't make it, and we should be here fighting for them, but are we?

In 1989, the typical American could provide middle-class essentials for a family of four by working 40 weeks a year leaving time for vacation or holidays. It will take that same individual 62 weeks to provide the same life for his or her family in 2022.

Think about that, Mr. Speaker. That is just 30 years.

What are we doing?

The political elites shipped jobs overseas while enriching themselves off the Chinese Communist officials who are taking those jobs and threatening our supply chain.

What do we do?

We respond with the CHIPS Act. Don't blame me. The CHIPS Act basically just increases that flow to China. It is nuts. You can't even make it up, Mr. Speaker, but that is what we do in the people's House.

U.S. manufacturing activity contracted in June for the eighth straight month declining 0.9 percentage points for May. It was the longest period of contraction in U.S. manufacturing since the Great Recession.

During COVID, we shut down the greatest economy in the history of the world. People got laid off, they lost jobs, and small businesses shut down. I have read stats of 100,000 small businesses getting absolutely whacked during the COVID hysteria driven by Dr. Fauci and the cronies in this town, but the wealthiest Americans got 40 percent richer during that same time.

Now, again, I am a believer in lifting all boats, but that is only true if the free enterprise and the free market system in this country is released unfettered to allow Americans to achieve the American Dream, but right now it is stacked, and it is stacked in favor of a small handful of elites against the hardworking average American.

In 2023, as I said before, we have seen three of the largest bank failures in American history. First Republic, $212 billion; Silicon Valley, $209 billion; and Signature Bank, $110 billion. There we were racing to bail out. That is not capitalism, Mr. Speaker. That is not free enterprise. Rushing in to bail people out is the elites protecting their own against the hardworking American.

For decades we have wasted money that isn't ours on policies and projects no one wants, and then we pass the credit card bill down to the next generation.

In the months since this body extended the debt ceiling for another 18 months until January of 2025, in the infinite wisdom of my colleagues on both sides of the aisle, we have already amassed another $1 trillion in debt since Memorial Day, and yet everyone in this body except for a handful gleefully skipped away after saying: Sure, let's raise the debt another $4 trillion.

It isn't going to be $4 trillion.

When are we going to get serious about what we are doing here?

What about wars?

We are now 21 years—22 years—into the authorization of the use of military force post-9/11, and we have not updated it. The 2002 authorization of force in Iraq—Saddam Hussein has been dead 15 years—still exists. We have an authorization of force from 1991 that still exists and 1957 that still exists.

Why?

Because there is a cadre of people in this town who make a large sum of money and get a whole lot of power when there are endless wars continuing for this town to fund with borrowed money driving up inflation, killing jobs, and killing the American Dream. All of us people in this Chamber are running around talking about we have to do it for the defense.

For fiscal year 2022, the United States Federal Government spent $8 trillion on the post-9/11 wars in Afghanistan, Pakistan, Iraq, and elsewhere—$8 trillion, and that is not talking about the thousands of lives lost, the tens of thousands of lives permanently impacted through injury and post-traumatic stress disorder.

When the bill comes due, what do we do?

We raise the ceiling on what we can borrow as I said a minute ago. The $32 trillion we just increased to $36 trillion. CBO reported a $1.4 trillion deficit in the first 9 months of fiscal year 2023. That is $875 billion higher than the year before.

We spent more on so-called COVID relief from 2000 to 2021, around $6 trillion, than we did in the 3½ years of World War II.

Think about that, Mr. Speaker, World War II in current dollars amounted to $4.1 trillion. We are running around like a bunch of scared ninnies with masks and spent $6 trillion.

Why?

We could because we just wrote a blank check.

□ 1945

Since the Biden administration took office, prices have increased over 16 percent. The annual cost of inflation has been estimated to harm American households upwards of $8,900.

Household debt has increased by $2.9 trillion since the end of 2019. In the first quarter of 2023, aggregate household debt increased by $148 billion. Think about this.

How about education? We just want the taxes that we pay to teach our kids what they need to know to succeed in the real world, but teachers' unions and bureaucrats want to teach them that merit and achievement are bad, that skin color defines all of us, that there isn't man and woman, and that America is evil.

Meanwhile, their same beliefs want to undermine the basic parental right to raise their children in their own values and push harmful gender ideology on them.

In Cupertino, California, third graders were required to deconstruct their racial identities and then rank themselves according to their power and privilege.

In Evanston, Illinois, students listened to ''Not My Idea,'' a book about whiteness which states that whiteness is bad. An advisory board in Virginia's Loudoun County Public Schools demanded that teachers be dismissed if they criticized the district's equity training inspired by critical race theory.

The President of the American Federation of Teachers vowed the union will fight ''cultural warriors'' that want to deprive students of a robust understanding of our common history.

In Lexington, Massachusetts, fourth graders were taught to articulate what gender identity is and why it is important to use nonbinary language.

They give our kids pornographic and sexualized books such as ''Gender Queer: A Memoir,'' an explicit pornographic book; ''Flamer''—good grief—a graphic book about young boys performing sexual acts at a summer camp; ''This Book is Gay,'' a book containing instructions on the ''ins and outs of gay sex.''

I am on the floor of the House of Representatives, and I am reading this garbage. Our kids are being given this garbage, and you want to know why parents are dismayed, why parents are frustrated, why the American people are left scratching their head, saying something is terribly wrong.

At Round Rock ISD in Texas, at Walsh Middle School a training presentation instructed teachers not to tell parents if a student tells them they identify as transgender or nonbinary.

When the children of the elites go to the right schools, they get the right jobs. Everyone else gets to rack up debt to get a job in a hamstrung economy with a useless degree that is based more on indoctrination than on education.

Tuition is skyrocketing. We are not even able to afford the garbage education that the elites are foisting on the American people.

Now, if you get through that maze, and you want to buy a house, you can't. You can't afford it. In 1985, the average single family home was $82,800. In 2019, they would have spent $313,000; in 2020, $391,900; and in 2022, it reached $540,000. How can you afford that?

Mr. Speaker, 30-year mortgage rates have gone from 2 to 3 to percent to 7 percent in under a year. In 2021 with sub-3 percent interest rates, a $400,000 home cost $604,000 over 30 years. Today, with 7 percent interest rates, that same $400,000 home, which you can't even get in most places in this country, costs more than a million dollars over the 30-year span, interest accounting for 157 percent of the home price. Think about that. Earlier this year, mortgage demand plunged to the lowest level since 1995.

What about healthcare; a system where crony policies help big corporations make windfall profits while families struggle with inflation and small businesses struggle to stay afloat?

According to the Bureau of Labor Statistics, medical and health service managers, which are described as managers that, ''plan, direct, and coordinate the business activities of healthcare providers,'' i.e., bureaucrats—they might be private bureaucrats, but they are very publicly funded bureaucrats through private corporations, so-called—they are slated to see 32 percent growth in jobs from 2019 to 2029. Not doctors; bureaucrats. This is compared to a 4 percent growth rate for physicians and surgeons if we can even get them educated.

Health insurance companies rake in roughly $1 trillion per year. Health and medical insurance companies placed second in biggest industries by revenue in the United States only behind retirement and pension plans.

I want to pause for a second. I was blessed to go to the National Museum of Military Vehicles in Dubois, Wyoming, 2 weeks ago when I was there around Independence Day. That museum is incredible, by the way. I recommend it to all listening.

A large part of the museum is dedicated to what we achieved in World War II. If you ask the average American what we achieved in World War II, at least those who were educated and informed enough to even tell you what World War II was, they will tell you that we beat Nazism, we beat Hitler, we beat Imperial Japan. Again, that is if we are lucky.

The fact is, it was an unbelievable demonstration of American industrial might. Absent our industrial strength, we lose. That is the truth. If we had not been able to develop what we developed, to take our manufacturing capacity and build thousands of planes, thousands of Jeeps, thousands of boats, thousands of guns, there is no way we would have been able to carry out what we were able to carry out in World War II.

Now, come back. What I just said; what is our number one industry? Retirement and pension plans. What is our second? Medical insurance companies. We have major financial institutions. Where is our industrial base?

You want to beat China? Good luck. Mind you, they drove us all the way back in Korea in 1951, the Chinese did, or 1952, somewhere around there. Here we are talking about beating China, and we don't have the industrial capacity to sneeze at China right now.

That should worry everybody in this Chamber, but instead, we get nothing but fits of angst over social engineering, over equity, over LGBTQ, over all manners of apologizing for past sins. We have a world to go engage in.

The deals they strike with the government, these healthcare bureaucrats, most recently through ObamaCare, guarantees their growth. Anthem had a 344 percent increase in government revenue from 2010 to 2020. United Healthcare, 198 percent increase in government revenue during the same period. Cigna, Anthem, United Healthcare and Humana have seen an average increase of 562 percent in their stock prices from January 11 to January 2021.

In 2016, 60 percent of the Nation's top five health insurers' revenue came from Medicare and Medicaid, up from $92 billion in 2010. In 2022, big insurance revenues reached $1.25 trillion and profits of almost $70 billion, a 300 percent increase in revenue and a 287 percent increase in profits.

The CBO estimates that Federal subsidies for health insurance for Americans under 65 will reach $1 trillion in 2023.

Where is the talk about doctors? Where is the talk about getting care? That is a corporate crony enrichment plan that is undermining your ability to get healthcare. Be worried about your ability to afford care and even have the care if you can afford it; to have a doctor if you want to get one; to choose the doctor if you want to choose because these bureaucrats are going to tell you who you can see. They are going to tell you when you can get care.

They say it is private healthcare. It is not. We have single-payer healthcare. It is just inefficient corporate cronyism running amuck and a bunch of people in this town getting rich and lobbyists getting rich and people in this body not doing a dang thing about it while you can't get care. You can't figure out how to afford your bills.

Energy; a whole other thing. Wealthy people drive around in expensive electric vehicles while climate czar John Kerry this week flies to China, spewing a trail of CO_2 so he can go preach about the climate in China. You can't even make this up.

Orwell would just be down here somewhere between laughing and crying. The average American is struggling just to put gas in their car and keep the lights on. They can't afford a new car because of these anti-energy policies from the radical left, but unfortunately, too often embraced by my own colleagues on this side of the aisle.

In 2021, American energy prices spiked 29 percent, according to BLS, and a further 7 percent in 2022. Gas prices jumped nearly 50 percent in 2021, but here is the thing: I read somewhere online the other day the average price of a new car is almost $70,000. I don't know if that is accurate. I have to go do some research, but I can tell you from personal experience, it is a lot.

Why? Why do you think Ford is shutting down certain lines? Why do you think General Motors is shutting down certain lines? Because my colleagues on the other side of the aisle and this White House want to live in their climate utopia, and they are shutting down American production and capacity to build the internal combustion engine, all so they can push electronic vehicles that nobody can afford and nobody can drive from Austin to Midland or Austin to Houston.

We are literally funding the destruction of reliable energy in this country and thereby diminishing it around the world.

The Democrats' Inflation Reduction Act gave $1.2 trillion in crony subsidies to unreliable forms of energy. This summer, for the first time in history, the Texas grid will see more energy demand than it can meet with reliable electricity generation. That is in Texas.

The EIA estimates these subsidies could make wind and solar account for 60 percent of U.S. generation by 2050, at which point the entire mind-numbed, indoctrinated youth of this country stand up and applaud and say, isn't that awesome.

What they don't know is that it isn't awesome because it is unreliable energy that increases the cost, has enormous environmental impacts, and is doing nothing to significantly drop CO_2 production because China and India are driving CO_2 production.

These same climate doomsayers try to sell us unreliable, more expensive energy policies, which empower our enemies, the Chinese Communist Party. Chinese companies are eligible for these climate credits that we just passed. Again, you can't make this up.

Can you imagine in 1939 saying, hey, guys, I have a good idea. Let's create a way for the American taxpayer to subsidize Adolf Hitler. We are doing that. We are going, oh, let's go subsidize the Chinese Communist Party.

Mr. Speaker, 80 percent of the solar panels installed in the United States come from Chinese firms. China controls 77 percent of EV battery manufacturing.

Meanwhile, China's building two new coal-powered plants per week in 2022, as they did, on top of the 1,100 coal-fired plants they already have. We have about 250.

We are running around whining like a bunch of losers, apologizing for our ability to produce reliable energy and clean-burning natural gas.

We are not building any new nuclear power. We are just running around saying subsidize, subsidize, subsidize wind and solar so we can weaken our grid, empower the Chinese, all so people can feel good about themselves while they drive their Tesla around.

□ 2000

What the average American notices all around them in every part of their daily lives is that systematic, political, cultural rot. I use that term ''rot'' intentionally. When something rots, it decays from the inside. Even though it looks fine, it is falling apart.

As some have noticed, they have said America will not lose to a foreign enemy; we will lose to ourselves. Even though they might not see it, every American can tell that something is not right. They can tell that something is amiss. There is something rotten in this country right now because that is what we are seeing happen to our way of life.

My friends on the other side of the aisle love to lecture us all about the importance of our democracy. The reality is that we are currently living in a cultural oligarchy, a bureaucratic oligarchy, where the rich and the powerful protect their status and prestige at the cost of the American Dream while they preach to us.

These elite forces in the government, corporate America, and our education system feel different, but they are all on the same team. They are people who profit even as the rest of us suffer. They are the ones who set the rules. They are the ones who destroy anyone who steps out of line. They are the ones who rig the system from far away so that we don't notice the rigging.

The rigging starts here in Washington, but it oozes into the school board meetings. It oozes into the local council meetings. It oozes throughout the corporate boardrooms, HR offices, television shows.

There is an expression in Texas: ''All hat, no cattle.'' The lesson it imparts is that if you want to talk a big game, you need to back it up with action.

The American people are fed up with words. They deserve action. We can't promise a wall and not build a wall. We can't say we are going to protect freedom and then cave to Dr. Fauci and let him retire scot-free. You can't tell Americans you are going to protect their money and then get distracted in hiding behind Hunter Biden's drama and his family's money. We can't say we are against a two-tiered system of justice and not hold this President and this Cabinet—Mayorkas, Garland, all of them—accountable for targeting Americans and abandoning and endangering their country and making a mockery of the Constitution.

America's systemic rot is too deep for empty promises and bumper sticker slogans. America deserves leaders who are not ashamed of the country they lead and do not make us ashamed of them. America deserves leaders who not only see the dangers of preventable decline but ones who will actually fight to defend it. We cannot back down. We cannot shy away from the fight.

Right now, today, on the floor of the House of Representatives, this week, next week, next month, through the appropriations process, through the end of the year, all next year, heading into a Presidential election, we are fighting for the soul of this country. That is what is at stake.

To borrow from General Washington on July 2, 1776, ''The fate of unborn millions will now depend, under God, on'' our courage and our conduct. ''We have, therefore, to resolve to conquer or die.''

That is the kind of resolve America needs from us, from this country, from Americans. That is what we owe the American people. As deep as the rot currently is, we cannot let it continue to destroy and undermine the American Dream. We are duty bound to save that American Dream for our kids and our grandkids. That is the truth. It is time for Americans to win again. That is our calling in this Chamber.

I am proud to have my friend from Pennsylvania here with me. I said it would be 30 minutes; I went 35. I know of no greater patriot, a man who wore the uniform of his country and served honorably and serves honorably in the United States Congress. I am proud to call him my friend.

Mr. Speaker, I yield to the gentleman from Pennsylvania (Mr. PERRY), my friend.

Mr. PERRY. Mr. Speaker, I am honored to be with my good friend from Texas, standing up for all Americans and all of America in the face of this place known as the swamp.

There was a time when the country revered Washington, D.C., and no one ever would think of it as the swamp. I was listening to your comments about World War II and visiting the museum this summer. I hope to visit it myself.

I think about just recently the use of the Defense Production Act. In the past, it was used to build tanks, airplanes, munitions, the equipment that the American soldier and servicemember needed to go fight tyranny, fascism, and totalitarianism and be successful.

This government said to the factory that was building a car, that was building some other machine implement: Whoa, hold on a second here, bigger calling here. We have to save the world from tyranny, so you are no longer going to build a car. You are going to build a jeep. You are no longer going to build something for agricultural production. You are going to build a howitzer.

Where are we in 2023? Well, we are going to use the Defense Production Act to force companies—there is no declaration of war, but we are going to force companies to build solar panels and batteries and electric vehicles, windmills, all sourced—my good friend from Texas already talked about where the sourcing of these raw materials come from. Even if you are not buying the solar panel from China, 90 percent of polysilicon comes from China, so we are forcing companies to build these things that, by the way, don't help.

If you are talking about carbon, it actually costs more to produce these things than it does just to produce the energy that they in turn produce. That aside, it is using the Defense Production Act to force companies in America to do this because of a political whim.

I make the argument that this is not needed and is not needed at this time, and my colleagues on both sides of the aisle don't agree. I am astounded. I am astounded that some Okie from Muskogee, a guy from Dillsburg, Pennsylvania, who has read the Constitution and says, my goodness, it is pretty obvious. The Federal Government is limited in its powers—limited. We are not supposed to be telling people what kind of car they can drive or if they are a business and want to produce one thing, and we are telling them, no, they are going to produce batteries instead because we demand it.

Today in a hearing, the Energy Department is proposing rules for new efficiency standards on dryers, washing machines, dishwashers, refrigerators, you name it. If you have a gas stove in your home, they are going to exclude 95 percent of the market. They are saying, well, it is not a ban. I say to myself: Man, I am just a guy from Dillsburg who used to work with his hands underneath a car. I went to votech school. If I understand that the Federal Government shouldn't be telling me this, why doesn't the rest of the country understand it? Am I missing something?

I am not missing anything because when I did spend a week home, just like Mr. ROY did, the great Representative from the State of Texas, I can imagine what he heard. I will tell you what I heard. Time after time at the gas station, when I came out of the movie theater with my wife, when I am at the grocery store, people walk up to me, and they say: Keep fighting.

They don't even tell me what to keep fighting on. They know what CHIP ROY knows, what SCOTT PERRY knows, that this country is rotting from the inside. They can't necessarily explain how it happened or what it is, but they know that they can't afford their groceries. They know that they can't afford to move to a bigger home. They know that they can't afford a mortgage on a car. They know that when their parents had a house, the biggest bill they had was their mortgage, and the second biggest bill if they decided to take out a car loan was a car loan. Now, the second biggest bill people have is health insurance. Health insurance—I thought we solved that problem in the United States of America.

Do you know who sounds like they are getting rich? It is not doctors. It is somebody in the middle. It is bureaucrats siphoning off all the money.

This town created it. This town solved the problem that it created by making the problem worse. Now my bosses and CHIP's bosses, my constituents and yours, can't afford to live their lives in America and be healthy, take a vacation, have a decent car, a decent home, a decent education for their children.

They are making choices: ''Well, I don't know. My house has a gas stove in it. I can't afford to rewire it for an electric stove, but the bureaucrats at the Department of Energy''—I talked to her today. I said: Do you know what is involved in changing from a gas stove to an electric stove? Do you know what is involved? Well, she had no idea, but thank goodness my colleague on the other side of the aisle said, well, if you have to run electricity, we have a $4,000 grant provided by the Federal Government to do that.

The citizens who get up early in the morning, pack a lunch box, and kiss their kids good-bye are paying for that $4,000. They don't want to. They can't afford to. They want the $4,000 for their kids and their home, not the Federal Government to tell them how to spend it and what they are working for. It is absurd and obscene.

Mr. ROY. Mr. Speaker, I thank the gentleman from Pennsylvania, and I want to pick up on what he has observed when he goes home to Pennsylvania, when he is traveling around this country. He has observed what I observe, having individuals pull me aside in an airport, on an airplane, driving around, at a gas station in Texas, at a gas station in Colorado, at a gas station in Virginia, all over this country, they pull me aside and say: Thank you. Keep fighting.

Just like you said, they don't give details. They get it. They see it. They want someone to stand up and fight for this country because they see this country slipping through our fingers.

As has long been said, where else are we going to go? What else are we going to do? As President Reagan said, there is nowhere else to go. This is it.

We are the beacon of hope for the world, and we are still the greatest country in the history of the world, but we are giving it away. We are losing it through a cultural rot and decay where elites are telling us that we have to apologize for being Americans.

In that museum that I walked through in Dubois, Wyoming, there is a great graphic—I don't have it in front of me, although I might be able to pull up a picture—that talks about the tens of millions of lives in this world that have been liberated by Americans.

Yes, we are an imperfect country. Yes, we have committed sins because all of us fall short of the glory of God. Yes, but we are a strong, righteous country that has bled for good around this world. Even in the center of sin, even in 1861 to 1865, we bled so that people around this world could be free, so they can know what it means to prosper.

Here we sit in this Chamber, in the luxury of the protections bought by the people before us, giving it away, shamefully dismissing it, undermining the American Dream for our kids and grandkids. It defies all logic to do that, but the Founders knew that it was likely.

Our job is to break that. When people ask me today: Why did you vote yes on five bills on the floor of the House today to say that we need to essentially end previously declared emergencies when you know, Chip, that there are bad guys connected to those emergencies and that we are using our resources to freeze their assets, take their money away, clamp down on them? Do you just want to walk away from that?

No, I want to restore order in this town. I want to restore order in this country, in this government, by saying you don't get to declare an emergency in 2003 and keep operating 21 years later under an emergency.

Come back to Congress. Let's figure out what we need to do. Let's figure out our authorizations of force. Let's figure out our use of our ability to freeze financial assets. Come back to Congress. We have to fight to restore order, or we are going to lose the Republic. The Republic depends on it.

One last point on that, and I will yield back. The rule of law matters. The Republic depends on it. It depends on us getting it right. I heard my colleagues earlier today referring to the border crisis as a fake crisis. I mean, I don't know what planet some of my colleagues live on to refer to what I see happening to human beings in south Texas—dying in the Texas heat; dying in tractor-trailers; getting forced into the sex trafficking trade, as we are seeing unfold, as we see depicted in the ''Sound of Freedom,'' the movie.

□ 2015

We are allowing that to happen on our watch in the supposedly most powerful nation in the history of the world. My colleagues dismiss it as a fake crisis. The Republic cannot sustain if that is how we are going to treat the rule of law and what we do at our southern border.

I have to say this to all my Republican colleagues right now: If you think I am going to vote for any of our appropriations bills without forcing this President to his knees to secure the border of the United States, you are out of your dang mind.

Enough. Use the power of the purse. Quit wilting in the corner. ''Oh, we have to fund government shutdowns.'' Whatever. Do your job.

That is my call to my Republican colleagues. Don't walk away from the fight. We blinked on Memorial Day. That is the truth. We blinked. $4 trillion, no policy changes, we blinked. We are not going to allow Republicans to blink again in this appropriations season.

Mr. Speaker, I yield to the gentleman from Pennsylvania (Mr. PERRY).

Mr. PERRY. Mr. Speaker, I am thinking about Mr. ROY's comments. We say the Republic can't exist if our colleagues on the other side of the aisle want to dismiss the calamity that is happening on the border, the human tragedy, because it is not a dismissal. It is a collaboration. It is part and parcel to aiding and abetting. It is part and parcel to being involved in and supporting the largest human trafficking operation in recorded history. That is what it is.

If my friends on the other side of the aisle think that there is some political favor in knowing that they are doing nothing about 10-year-old boys and girls being trafficked into unimaginable circumstances, then I sure hope that God is with them because they are going to need something for their souls.

That aside, look, I get the politics of it, but I, like my good friend and colleague from Texas, cannot help myself. I cannot help myself in thinking about the Founding Fathers who pledged their lives, their fortunes, and their sacred honor knowing that mankind, that men and women, were flawed, that they fell short of the grace of God, and that they knew that power was corrupting.

They set up this system—for my good friends on the other side of the aisle—not as a democracy but a republic, a republic with competing interests to check the power of government, the power of the avarice of man and mankind so that the individual was preeminent.

The Founders knew. The Founders knew what the difference was, and that is why they called it a republic. People stand up, and I am happy that they do, and they pledge allegiance to the flag and to the Republic for which it stands. I would submit to you that many don't know what it means to be a republic. A republic means that individual citizens are preeminent.

I talk to my bosses, my constituents, and I ask them: When you can't buy the car that you want, when you are forced to subsidize the car that the other guy wants because he wants to virtue signal to you about how much more he cares about the planet, do you feel preeminent? They don't.

When they can't afford a home—Mr. ROY went through the price of new homes. Unimaginable. My children, I don't know how they will afford to be out on their own. I don't know how you start a business today. Yet, somehow we act like we are in a republic.

Mr. Speaker, our country is in trouble, and there is an urgency that Mr. ROY gets. There is the urgency that the people at the grocery store and the gas station and the movie theater, the people who get up early and pack a lunch box, they get the urgency. Do you know who doesn't? Folks in this town who somehow told themselves, well, look, if we save $12 billion and we spend $4 trillion, somehow that is a good deal.

Look, I am not a math whiz, self-admitted, but I can do arithmetic. We spend over a trillion dollars in a month around this place, so if you are saving $12 billion to spend $1 trillion, let alone $4 trillion, is that a good deal? Only in Washington. I mean, literally, Orwell thought he was writing fiction. He thought he was writing fiction. It is coming to fruition, and we are living in it.

We can't seem to convince our colleagues of the urgency of this situation, the peril that the Republic is in when people are not preeminent, when we lie to our citizens and tell them they can buy an electric lawn mower and it is just as good as your gas lawn mower.

I watch my neighbors mow half a lawn. Do you know why they mow half the lawn? Because they ran out of power and have to charge the thing back up. They mow it the next day.

Look, if that is your choice, God bless you, but we are lying to our citizens about all of this. This town is lying, and I for one won't stand for it. I will not help them pass bills that bankrupt our country, don't secure our border, and don't secure the virtues of liberty for our posterity—my children and theirs.

If they want to vote for it, they can deal with their constituents, their bosses, and the good Lord, but I am not going to bankrupt my country.

Mr. ROY. Mr. Speaker, in this 2 weeks following Independence Day, you do a lot of thinking if you are, as I assume my friend was, part of an Independence Day parade. There are a lot of patriotic Americans out there, particularly in flyover country, who love their country and want to defend their country, and they just want their life back. That is it. They want that American Dream back.

By God, I am going to do everything I can do in this godforsaken town to give them their freedom back, to give them the American Dream back. I don't care who gets mad at me. I don't care who is worried about what bill he or she didn't get across some finish line that nobody in America generally cares about.

We are going to fight to change this town. ''Conquer or die,'' as General Washington said.

The fact is you have to ask yourself the question: Are you free? Are we free? Are we free if you pay taxes to a school that teaches your children that your country is evil, or that there isn't a difference between a man and a woman, if you can't even talk about God, much less pray to God? Are you a free American if that is what you are dealing with in the schools?

Are you free if you want to simply have a vehicle to move around, to carry out your livelihood to provide for your family, and you can't afford one because a bunch of elitists in Martha's Vineyard decide you have to drive an $80,000 battery-powered car?

Are you free if you are worried that your streets are unsafe, your border is wide open, and you are endangered, and fentanyl is pouring into your communities because your government refuses to do its one basic task? Are you actually free?

Are you free if you just want to go to the doctor of your choice and are prohibited from doing so because the government regulatory state and corporate cronies have combined to make a whole lot of money while you can't go to the doctor of your choice? Are you free?

Are you free if one President is treated differently than another President by the system of justice reporting to the President? Are you free?

Are we living in a free country? Are you free if you simply wanted to go about your way of life, but your government said you couldn't unless you stuck a needle in your arm with a vaccine created with full liability protection and then mandated by the very government saying you have to take it, and if you don't take it, you are going to lose your job? Are you free?

No, you are not free. It is about damn time that we live free again. That is why we are here.

Again, to my colleagues on this side of the aisle, I don't care about your checklist of stuff you want to campaign on. I don't care about what you don't want to vote on. I care about one thing and one thing only, and that is living free. It is our God-given right. It is what people bled and died for—living free, imperfect, in a simple world, but free.

That is our calling. That is our duty. Our duty isn't to get reelected. Our duty is to fight for the people who sent us here, to fight for them against a cultural elite who wants to rip away their lives.

That is what my mission is every day when I wake up in this godforsaken town.

Mr. Speaker, I yield to the gentleman from Pennsylvania (Mr. PERRY).

Mr. PERRY. Mr. Speaker, I couldn't have said it better. I watched a movie that has been out for some time, but the question from the gentleman to his wife, he asked what he should do in a situation, and she said it is not what a Senator would do, not what a leader would do, but it is what a free man would do. That is the decision.

That is what drives me. That is what drives my colleague. That is what we think should drive everyone here.

Sure, we would love to have the approval of the body, of our compatriots here, but what is more important to us is that we do the right thing on every occasion, not because it is easy, not because it is tough to message it back home, or not because somebody is going to not have one of their programs funded at the level they want it funded at. We are way beyond that now.

Our country is perilously close. We are borrowing money to pay our bills. We don't even print the money anymore. They just create it digitally. We don't even print it, it is so much, and no one around here seems to care. When we talk about saving $100 billion in the face of them spending $4 trillion, they recoil.

How can we do that? Six months ago, we were spending that amount of money, and you would think that we were asking them to literally give their firstborn child or their right arm to try to get somewhere closer to living within our means. It is unacceptable.

The time is now. The urgency is now. You cannot be free if you can't afford to live free. You are not free if you are not making your own decisions. That is where we are, Mr. Speaker. It has to stop here. It has to stop now.

Mr. ROY. Mr. Speaker, I thank my friend from Pennsylvania for his comments. I think I have less than a minute left, and I will close with, as I said before, as General George Washington said on July 2, 1776, 247 years ago, on the day we actually declared independence: ''The fate of unborn millions will now depend, under God,'' on our courage and our conduct. ''We have, therefore, to resolve to conquer or die.''

That is why we are here.

Mr. Speaker, I yield back the balance of my time.

ADJOURNMENT

Mr. ROY. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 8 o'clock and 28 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, July 19, 2023, at 9 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

EC–1403. A letter from the Director, Office of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting the Corporation's final rule — Supervisory Guidance on Multiple Re-Presentment NSF Fees August 2022 (Revised June 2023) received June 27, 2023, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

EC–1404. A letter from the Assistant General Counsel For Regulatory Services, Office of General Counsel, Department of Education, transmitting the Department's Major final rule — Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program (RIN: 1840-AD81) received July 17, 2023, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

EC–1405. A letter from the Deputy Chief, Space Bureau, Federal Communications Commission, transmitting the Commission's final rule — Revising Spectrum Sharing Rules for Non-Geostationary Orbit, Fixed-Satellite Service Systems [IB Docket No.: 21-456], pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC–1406. A letter from the General Counsel, Federal Energy Regulatory Commission, transmitting the Commission's final rule — Transmission System Planning Performance Requirements for Extreme Weather [Docket No.: RM22-10-000; Order No.: 896] received June 28, 2023, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC–1407. A letter from the General Counsel, Federal Energy Regulatory Commission, transmitting the Commission's final rule — One-Time Informational Reports on Extreme Weather Vulnerability Assessments Climate Change, Extreme Weather, and Electric System Reliability [Docket Nos.: RM22-16-000, AD21-13-000; Order No.: 897] received June 28, 2023, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC–1408. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 25-81, ''Marion Barry Avenue Designation Act of 2023'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Accountability.

EC–1409. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 25-171, ''Fiscal Year 2023 Revised Local Budget Adjustment Temporary Act of 2023'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Accountability.

EC–1410. A letter from the Director, Congressional Affairs, Federal Election Commission, transmitting the Commission's interim final rule — Contributions in the Name of Another [Notice 2023-09] received May 22, 2023, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on House Administration.

EC–1411. A letter from the Clerk, U.S. House of Representatives, transmitting a letter from the Clerk of the United States House of Representatives, transmitting the annual compilation of financial disclosure statements filed with the Clerk of the House of Representatives by members of the board of the Office of Congressional Ethics (H. Doc. No. 118—55); to the Committee on Ethics and ordered to be printed.

EC–1412. A communication from the President of the United States, transmitting a letter regarding certification by the Secretary of the Interior that national of Mexico are engaging the trade or taking of totoaba and vaquita that diminishes the effectiveness of the Convention on International Trade in Endangered Species of Wild Fauna and Flora, pursuant to 22 U.S.C. 1978(b); Aug. 27, 1954, ch. 1018, Sec. 8(b) (as amended by Public Law 95-376, Sec. 2); (92 Stat. 714) (H. Doc. No. 118—54); jointly to the Committees on Foreign Affairs and Natural Resources, and ordered to be printed.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mrs. HOUCHIN: Committee on Rules. House Resolution 597. Resolution providing for consideration of the bill (H.R. 3935) to amend title 49, United States Code, to reauthorize and improve the Federal Aviation Administration and other civil aviation programs, and for other purposes, and providing for consideration of the bill (H.R. 3941) to prohibit the use of the facilities of a public elementary school, a public secondary school, or an institution of higher education to provide shelter for aliens who have not been admitted into the United States, and for other purposes (Rept. 118–147), Referred to the House Calendar.

Mr. GRAVES of Missouri: Committee on Transportation and Infrastructure. H.R. 3395. A bill to direct the Chairman of the Federal Maritime Commission to seek to enter into an agreement with a federally funded research and development center to evaluate foreign ownership of marine terminals at the 15 largest United States container ports, and for other purposes; with an amendment (Rept. 118–148), Referred to the Committee of the Whole House on the state of the Union.

Mr. ROGERS of Alabama: Committee on Armed Services. H.R. 1282. A bill to amend title 10, United States Code, to expand eligibility to certain military retirees for concurrent receipt of veterans' disability compensation and retired pay or combat-related special compensation, and for other purposes; with an amendment (Rept. 118–149 Pt. 1), Referred to the Committee of the Whole House on the state of the Union.

Mr. COMER: Committee on Oversight and Accountability. H.R. 192. A bill to prohibit individuals who are not citizens of the United States from voting in elections in the District of Columbia; with amendments (Rept. 118–150), Referred to the Committee of the Whole House on the state of the Union.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committee on Veterans' Affairs discharged from further consideration, H.R. 1282, referred to the Committee of the Whole House on the State of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. SARBANES (for himself, Mr. JEFFRIES, Mr. MORELLE, Ms. SEWELL, Mr. AGUILAR, Mr. ALLRED, Ms. BALINT, Ms. BARRAGÁN, Mrs. BEATTY, Mr. BEYER, Ms. BLUNT ROCHESTER, Mr. BLUMENAUER, Ms. BONAMICI, Mr. BOWMAN, Ms. BROWNLEY, Mr. CASTEN, Mr. CÁRDENAS, Mr. CARSON, Mr. CASE, Ms. CHU, Mr. CLEAVER, Mr. CLYBURN, Mr. CONNOLLY, Mr. CROW, Ms. CLARK of Massachusetts, Mr. COURTNEY, Ms. CRAIG, Ms. CROCKETT, Ms. DEAN of Pennsylvania, Mr. DAVIS of Illinois, Mr. DAVIS of North Carolina, Mr. DELUZIO, Mr. DESAULNIER, Mrs. DINGELL, Mr. EVANS, Mrs. FLETCHER, Mr. FOSTER, Mrs. FOUSHEE, Ms. LOIS FRANKEL of Florida, Mr. FROST, Mr. ROBERT GARCIA of California, Ms. GARCIA of Texas, Mr. GOLDEN of Maine, Mr. GOLDMAN of New York, Mr. GOMEZ, Mr. GREEN of Texas, Mr. GRIJALVA, Mrs. HAYES, Mr. HOYER, Mr. HUFFMAN, Mr. IVEY, Mr. JOHNSON of Georgia, Mr. JACKSON of North Carolina, Ms. JACOBS, Ms. KAMLAGER-DOVE, Ms. KAPTUR, Ms. KELLY of Illinois, Mr. KIM of New Jersey, Mr. KRISHNAMOORTHI, Ms. KUSTER, Mr. LANDSMAN, Mr. LARSEN of Washington, Mr. LARSON of Connecticut, Ms. LEE of Nevada, Ms. LEGER FERNANDEZ, Mr. LYNCH, Mr. MAGAZINER, Ms. MANNING, Mrs. MCCLELLAN, Ms. MENG, Mr. MFUME, Ms. MOORE of Wisconsin, Mr. MOSKOWITZ, Mr. MULLIN, Mrs. NAPOLITANO, Mr. NEAL, Mr. NEGUSE, Mr. NORCROSS, Ms. NORTON, Mr. PALLONE, Mr. PANETTA, Ms. PELOSI, Mr. PETERS, Ms. PETTERSEN, Mr. PHILLIPS, Mr. POCAN, Ms. PORTER, Ms. PRESSLEY, Mrs. RAMIREZ, Mr. RASKIN, Ms. ROSS, Mr. RUPPERSBERGER, Ms. SCANLON, Ms. SCHAKOWSKY, Mr. SCHIFF, Mr. SMITH of Washington, Ms. SLOTKIN, Mr. SOTO, Mr. STANTON, Ms. STEVENS, Mr. TAKANO, Mr. THANEDAR, Ms. TLAIB, Mr. TONKO, Mrs. TORRES of California, Mr. TRONE, Ms. UNDERWOOD, Mr. VEASEY, Ms. WILLIAMS of Georgia, Ms. WILSON of Florida, Ms. LOFGREN, Mr. BERA, Ms. WILD, Mr. SCOTT of Virginia, Mr. LEVIN, Ms. CASTOR of Florida, Mr. CARBAJAL, Ms. DELBENE, Mr. PASCRELL, Mr. HORSFORD, Mr. GARAMENDI, Mr. JACKSON of Illinois, Ms. TITUS, Ms. BUSH, Ms. ESHOO, Mr. GALLEGO, Mr. THOMPSON of California, Ms. HOYLE of Oregon, Ms. DEGETTE, Mr. MCGOVERN, Ms. BROWN, Mr. KILDEE, Mr. COHEN, Mr. KILMER, Mr. DOGGETT, Ms. MCCOLLUM, Ms. DAVIDS of Kansas, Ms. WASSERMAN SCHULTZ, Mr. PAYNE, Mr. LIEU, Mr. ESPAILLAT, Mr. MOULTON, Mr. TORRES of New York, Mrs. WATSON COLEMAN, Mrs. SYKES, Ms. JAYAPAL, Mr. RUIZ, Mr. PAPPAS, Ms. LEE of California, Ms. PEREZ, Ms. STANSBURY, and Mr. HIMES):

H.R. 11. A bill to expand Americans' access to the ballot box and reduce the influence of big money in politics, and for other purposes; to the Committee on House Administration, and in addition to the Committees on the Judiciary, Science, Space, and Technology, Oversight and Accountability, Financial Services, Ways and Means, Natural Resources, and Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COHEN (for himself and Mr. BURCHETT):

H.R. 4693. A bill to provide that the Federal Reports Elimination and Sunset Act of 1995 does not apply to certain reports required to be submitted by the Tennessee Valley Authority, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. CARBAJAL (for himself, Ms. SALAZAR, and Mr. SOTO):

H.R. 4694. A bill to render certain military parents eligible for adjustment of status, and for other purposes; to the Committee on the Judiciary.

By Mr. ESTES (for himself, Mr. SMITH of Missouri, Mr. SMITH of Nebraska, Mr. KELLY of Pennsylvania, Mr. SMUCKER, Mrs. MILLER of West Virginia, Mr. MOORE of Utah, Mrs. STEEL, Ms. VAN DUYNE, Mr. FEENSTRA, and Mr. BUCHANAN):

H.R. 4695. A bill to amend the Internal Revenue Code of 1986 to modify the application of the base erosion and anti-abuse tax with respect to certain entities connected to jurisdictions which have implemented an extraterritorial tax; to the Committee on Ways and Means.

By Ms. JACKSON LEE (for herself, Ms. WILSON of Florida, Mr. COHEN, Mr. FITZPATRICK, Mr. KEATING, Mr. CURTIS, Mr. PHILLIPS, Ms. SALAZAR, Ms. KAMLAGER-DOVE, Mr. CUELLAR, Mr. EVANS, Mr. IVEY, and Mr. CLEAVER):

H.R. 4696. A bill to amend title 18, United States Code, to prohibit a foreign official from demanding a bribe, and for other purposes; to the Committee on the Judiciary.

By Ms. SCHRIER (for herself, Ms. ESHOO, Mr. PALLONE, Ms. DEGETTE, Ms. SCHAKOWSKY, Ms. MATSUI, Ms. CASTOR of Florida, Mr. SARBANES,

Mr. TONKO, Ms. CLARKE of New York, Mr. CÁRDENAS, Mr. RUIZ, Mr. PETERS, Mrs. DINGELL, Mr. VEASEY, Ms. KUSTER, Ms. KELLY of Illinois, Ms. BARRAGÁN, Ms. BLUNT ROCHESTER, Mr. SOTO, Ms. CRAIG, Mrs. TRAHAN, and Mrs. FLETCHER):

H.R. 4697. A bill to amend the Public Health Service Act to reauthorize certain programs with respect to public health security and all-hazards preparedness and response related to the Administration for Strategic Preparedness and Response and certain programs with respect to public health security and all-hazards preparedness and response related to the Centers for Disease Control and Prevention, and for other purposes; to the Committee on Energy and Commerce.

By Mr. BERA (for himself and Mr. PETERS):

H.R. 4698. A bill to provide for a study on food animal microbiomes, and for other purposes; to the Committee on Agriculture.

By Ms. BUSH (for herself, Ms. JAYAPAL, Ms. LEE of Pennsylvania, Mr. MCGARVEY, Ms. PRESSLEY, Ms. SCHAKOWSKY, Mr. BOWMAN, Ms. CLARKE of New York, Mr. GRIJALVA, Mr. JOHNSON of Georgia, Ms. LEE of California, Mr. SMITH of Washington, Ms. TLAIB, Mr. VARGAS, Mrs. WATSON COLEMAN, Ms. WILLIAMS of Georgia, Ms. BONAMICI, and Ms. KAMLAGER-DOVE):

H.R. 4699. A bill to establish within the Department of Health and Human Services a Division on Community Safety, and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Energy and Commerce, Transportation and Infrastructure, Financial Services, and Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CASE (for himself, Mr. SABLAN, and Mr. MOYLAN):

H.R. 4700. A bill to require fair shipping prices for non-contiguous areas of the United States, and for other purposes; to the Committee on Energy and Commerce.

By Mr. D'ESPOSITO (for himself, Mr. WEBER of Texas, and Mr. GIMENEZ):

H.R. 4701. A bill to codify the temporary scheduling order for fentanyl-related substances by adding fentanyl-related substances to schedule I of the Controlled Substances Act; to the Committee on Energy and Commerce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. ESHOO:

H.R. 4702. A bill to require the Secretary of Health and Human Services to prescribe a regulation reducing the risks in gene synthesis products, and for other purposes; to the Committee on Energy and Commerce.

By Ms. ESHOO:

H.R. 4703. A bill to require research into the health consequences of the environmental impacts of nuclear war, and for other purposes; to the Committee on Energy and Commerce.

By Ms. ESHOO (for herself and Mr. CRENSHAW):

H.R. 4704. A bill to require the Assistant Secretary for Preparedness and Response shall conduct risk assessments and implement strategic initiatives or activities to address threats to public health and national security due to technical advancements in artificial intelligence or other emerging technology fields; to the Committee on Energy and Commerce.

By Mr. FITZGERALD (for himself, Mr. TIFFANY, Mrs. MILLER of Illinois, Mr. STEUBE, and Mr. GROTHMAN):

H.R. 4705. A bill to amend chapter 1511 of title 36, United States Code, to impose certain requirements on the National Education Association, and for other purposes; to the Committee on the Judiciary.

By Mr. FITZPATRICK (for himself and Ms. CROCKETT):

H.R. 4706. A bill to establish the Interagency Task Force to Address Hunger and Promote Access to Healthy Food Among Older Adults and Adults with Disabilities, and for other purposes; to the Committee on Agriculture.

By Mr. GAETZ:

H.R. 4707. A bill to prohibit expending Federal funds for the Special Counsel's Office of John L. Smith; to the Committee on the Judiciary.

By Mr. TONY GONZALES of Texas (for himself, Mr. CUELLAR, Mr. CISCOMANI, Mr. VICENTE GONZALEZ of Texas, Mrs. BICE, Mr. PAPPAS, Mr. VAN DREW, Mr. LAWLER, Mr. DUARTE, Ms. MALLIOTAKIS, Mr. SOTO, Ms. DE LA CRUZ, Mr. THANEDAR, Ms. SALAZAR, Mr. VALADAO, Mr. MOYLAN, and Mr. BACON):

H.R. 4708. A bill to streamline the issuance of nonimmigrant temporary work visas, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GOTTHEIMER (for himself, Mr. GARBARINO, Mr. BACON, Mr. CROW, Mr. DAVIS of North Carolina, Mr. GALLAGHER, Mr. GOLDEN of Maine, Mr. GOLDMAN of New York, Mr. HOYER, Mr. JAMES, Mr. JOHNSON of Ohio, Mr. JOHNSON of South Dakota, Mr. JOYCE of Ohio, Mr. KEAN of New Jersey, Mr. LALOTA, Mr. LIEU, Ms. MACE, Mr. MAST, Mr. MEUSER, Mr. NICKEL, Mr. PETERS, Mr. RUTHERFORD, Ms. SCHOLTEN, Mr. SHERMAN, Ms. SLOTKIN, Mr. SMITH of Missouri, Ms. STEVENS, Mr. THOMPSON of California, Mr. TORRES of New York, Mr. TRONE, Mr. VALADAO, Mr. VARGAS, Ms. WASSERMAN SCHULTZ, Mr. WENSTRUP, Mr. WESTERMAN, Ms. WILD, and Mr. D'ESPOSITO):

H.R. 4709. A bill to amend the National Defense Authorization Act for Fiscal Year 2020, to make improvements relating to cooperation between the United States and Israel to counter unmanned aerial systems, and for other purposes; to the Committee on Armed Services, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GREEN of Tennessee (for himself, Mr. NORMAN, and Mr. D'ESPOSITO):

H.R. 4710. A bill to require the Director of the Centers for Disease Control and Prevention to accelerate the collection and publication of data on suicide and drug overdoses; to the Committee on Energy and Commerce.

By Mr. GROTHMAN:

H.R. 4711. A bill to limit the authority of the Secretary of Education to propose or issue regulations and executive actions; to the Committee on Education and the Workforce.

By Mrs. HARSHBARGER (for herself and Ms. MANNING):

H.R. 4712. A bill to provide for increased oversight of entities that provide pharmacy benefit management services on behalf of group health plans and health insurance coverage; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, and Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. JACKSON of Texas (for himself, Mr. KILMER, Mr. ZINKE, Ms. TOKUDA, Mrs. BOEBERT, Ms. SEWELL, Mr. ARRINGTON, Ms. KUSTER, Mr. MANN, Ms. WILD, Mr. SESSIONS, Ms. PETTERSEN, Mr. CARL, Mr. LARSEN of Washington, Mr. LAMALFA, Ms. SCHRIER, Ms. PEREZ, Ms. HOYLE of Oregon, Ms. BUDZINSKI, Mr. DAVIS of North Carolina, Mr. SCHIFF, Mr. PFLUGER, Mr. TRONE, and Mrs. MILLER of West Virginia):

H.R. 4713. A bill to codify the Rural Hospital Technical Assistance Program of the Department of Agriculture; to the Committee on Agriculture.

By Mr. JOYCE of Pennsylvania (for himself and Ms. SCHRIER):

H.R. 4714. A bill to amend the Public Health Service Act to authorize the Director of the National Institutes of Health to make awards to outstanding scientists, including physician-scientists, to support researchers focusing on pediatric research, including basic, clinical, translational, or pediatric pharmacological research, and for other purposes; to the Committee on Energy and Commerce.

By Mr. KEAN of New Jersey (for himself, Mr. MCCAUL, Mrs. KIM of California, and Mr. HUIZENGA):

H.R. 4715. A bill to amend the Arms Export Control Act in support of the United Kingdom and the AUKUS partnership; to the Committee on Foreign Affairs, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. KIM of California (for herself, Mr. MCCAUL, and Mr. KEAN of New Jersey):

H.R. 4716. A bill to amend the Arms Export Control Act in support of Australia and the AUKUS partnership; to the Committee on Foreign Affairs, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LAMBORN (for himself, Mr. COSTA, Mrs. BOEBERT, and Mr. LAMALFA):

H.R. 4717. A bill to amend the Healthy Forests Restoration Act of 2003 with respect to third-party contracts for wildfire hazard fuel removal, to amend the National Forest Management Act with respect to the threshold for advertised timber sales, and for other purposes; to the Committee on Agriculture, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. MALLIOTAKIS (for herself, Ms. MENG, Mr. BACON, Ms. CLARKE of New York, and Ms. SALAZAR):

H.R. 4718. A bill to require each public housing agency to establish and maintain an online portal for tenants and applicants, and for other purposes; to the Committee on Financial Services.

By Mr. PANETTA (for himself and Mr. OBERNOLTE):

H.R. 4719. A bill to amend the Internal Revenue Code of 1986 to make powered-lift aircraft eligible for certain exemptions from taxes on air transportation; to the Committee on Ways and Means.

By Mr. SCOTT of Virginia (for himself, Ms. WILD, Ms. LEE of Nevada, Mr. DESAULNIER, and Ms. BONAMICI):

H.R. 4720. A bill to direct the Secretary of Labor to award grants for the recruitment, retention, and advancement of direct care workers; to the Committee on Education and the Workforce, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SMUCKER (for himself, Mr. CUELLAR, Mr. GOTTHEIMER, Mr. BUCHANAN, Mr. SMITH of Nebraska, Mr. KELLY of Pennsylvania, Mr. SCHWEIKERT, Mr. LAHOOD, Mr. WENSTRUP, Mr. ARRINGTON, Mr. FERGUSON, Mr. ESTES, Mr. HERN, Mrs. MILLER of West Virginia, Mr. MURPHY, Mr. KUSTOFF, Mr. FITZPATRICK, Mr. STEUBE, Ms. TENNEY, Mrs. FISCHBACH, Mr. MOORE of Utah, Mrs. STEEL, Ms. VAN DUYNE, Mr. FEENSTRA, Ms. MALLIOTAKIS, Mr. CAREY, Mr. WITTMAN, Mrs. CAMMACK, Mr. MEUSER, Mr. BALDERSON, Mr. GROTHMAN, Mr. BACON, Mr. BURCHETT, Mr. BARR, Mr. RESCHENTHALER, Mr. BERGMAN, Mr. PERRY, Mr. JOYCE of Pennsylvania, Ms. MACE, Mr. SESSIONS, Mr. MOONEY, Mr. MOOLENAAR, Mrs. HARSHBARGER, Mr. COLE, Mr. LATURNER, Mr. EZELL, Mr. FITZGERALD, Mr. MOORE of Alabama, Mr. TIMMONS, Mr. HUDSON, Mr. CURTIS, Mr. ELLZEY, Mr. STAUBER, Mr. BANKS, Ms. STEFANIK, Mrs. MILLER-MEEKS, Mr. BUCSHON, Mr. AMODEI, Mrs. KIM of California, Mrs. HINSON, Mr. HIGGINS of Louisiana, Mrs. WAGNER, Mr. PENCE, Mr. JOHNSON of Ohio, Mr. JACKSON of Texas, Mr. LUETKEMEYER, Mr. BEAN of Florida, Mr. MORAN, Mr. WILLIAMS of Texas, Mr. YAKYM, Mr. ALFORD, Mr. GARBARINO, Mr. DUNN of Florida, Mr. EDWARDS, Mr. MILLER of Ohio, Mr. OGLES, Mr. KEAN of New Jersey, Mr. WEBER of Texas, Mr. GUEST, Mr. ROUZER, Mr. MANN, Mr. RUTHERFORD, Mrs. BICE, Mr. GRAVES of Missouri, Mr. GREEN of Tennessee, Mr. FINSTAD, Mr. WALBERG, Mr. JAMES, Mr. KELLY of Mississippi, Mr. LANGWORTHY, Mr. CRAWFORD, and Mr. AUSTIN SCOTT of Georgia):

H.R. 4721. A bill to amend the Internal Revenue Code of 1986 to make permanent the deduction for qualified business income; to the Committee on Ways and Means.

By Mr. SOTO (for himself, Mr. CARBAJAL, and Ms. SALAZAR):

H.R. 4722. A bill to render certain military spouses eligible for adjustment of status, and for other purposes; to the Committee on the Judiciary.

By Mrs. WAGNER (for herself, Ms. WILD, Mr. KEAN of New Jersey, and Mr. TURNER):

H.R. 4723. A bill to provide for the imposition of sanctions with respect to foreign persons undermining the Dayton Peace Agreement or threatening the security of Bosnia and Herzegovina, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committees on Financial Services, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WESTERMAN (for himself, Mr. CÁRDENAS, Mr. TRONE, and Ms. KAMLAGER-DOVE):

H.R. 4724. A bill to authorize the court to depart from a statutory minimum in the case of a juvenile offender, youthful victim offender, and certain other minors, and for other purposes; to the Committee on the Judiciary.

By Mr. OGLES:

H. Con. Res. 58. Concurrent resolution calling on the media to engage in responsible and voluntary journalistic practices to deny mass public murderers the attention they desire and minimize any possible ''media contagion effect'' of irresponsible and sensationalistic reporting practices; to the Committee on Energy and Commerce.

By Mr. ROBERT GARCIA of California:

H. Res. 598. A resolution recognizing the immense capacity of the popular arts to bring people together, inspire creativity and imagination, promote critical thinking, and instill the universal values of truth, justice, and equality; to the Committee on Oversight and Accountability.

By Mr. SCHNEIDER (for himself, Mr. BILIRAKIS, Mr. TORRES of New York, Mr. PANETTA, Mr. SHERMAN, Ms. SALAZAR, Mr. MOSKOWITZ, Mr. PAPPAS, Mr. FITZPATRICK, Ms. STEVENS, Ms. MANNING, Ms. WILSON of Florida, Mr. AUCHINCLOSS, Ms. TITUS, Mr. TRONE, Mr. KRISHNAMOORTHI, Mr. COSTA, Mr. COHEN, Mr. GOTTHEIMER, Mr. KEATING, Ms. TENNEY, Mr. WILSON of South Carolina, Ms. LOIS FRANKEL of Florida, Mr. SMITH of New Jersey, Ms. LEE of Nevada, Mr. LIEU, Mr. SOTO, Mr. BACON, Ms. WASSERMAN SCHULTZ, and Ms. GARCIA of Texas):

H. Res. 599. A resolution urging the European Union to designate Hizballah in its entirety as a terrorist organization; to the Committee on Foreign Affairs.

By Ms. WASSERMAN SCHULTZ (for herself, Mr. DIAZ-BALART, Mr. ESPAILLAT, and Mr. TONY GONZALES of Texas):

H. Res. 600. A resolution condemning the attack on the Argentine Jewish Mutual Association Jewish Community Center in Buenos Aires, Argentina, in July 1994, and expressing the concern of the United States regarding the continuing, 29-year-long delay in the resolution of this case and encouraging accountability for the attack; to the Committee on Foreign Affairs.

CONSTITUTIONAL AUTHORITY AND SINGLE SUBJECT STATEMENTS

Pursuant to clause 7(c)(1) of rule XII and Section 3(c) of H. Res. 5 the following statements are submitted regarding (1) the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution and (2) the single subject of the bill or joint resolution.

By Mr. SARBANES:

H.R. 11.

Congress has the power to enact this legislation pursuant to the following:

Freedom to Vote Act Constitutional Authority Statement

The Freedom to Vote Act relies upon many separate bases of constitutional authority, each of which vests in Congress the power to enact pro-democracy legislation. First, Congress has broad authority to regulate the time, place, and manner of congressional elections under the Elections Clause of the Constitution, article I, section 4, clause 1. Second, Congress has both the authority and responsibility, as the legislative body for the United States, to fulfill the promise of article IV, section 4, of the Constitution, which guarantees to every state a republican form of government. Third, Congress has broad authority pursuant to section 5 of the Fourteenth Amendment to enforce the provisions of the Fourteenth Amendment, including its protections of the right to vote and the democratic process. Fourth, Congress has authority pursuant section 2 of the Fifteenth Amendment, which explicitly bars denial or abridgment of the right to vote on account of race, color, or previous condition of servitude. Finally, Congress has the power to protect the right to vote from denial or abridgment on account of sex, age, or ability to pay a poll tax or other tax pursuant to the Nineteenth, Twenty-Fourth, and Twenty-Sixth Amendments.

The single subject of this legislation is:

The freedom to vote.

By Mr. COHEN:

H.R. 4693.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

The single subject of this legislation is:

Federal salary transparency and reporting

By Mr. CARBAJAL:

H.R. 4694.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

Immigration

By Mr. ESTES:

H.R. 4695.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1—''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;''

The single subject of this legislation is:

This legislation will enact a retaliatory BEAT increase on foreign-based companies if their country of domicile enacts a UTPR.

By Ms. JACKSON LEE:

H.R. 4696.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

Foreign Extortion of U.S. Businesses in doing Business overseas

By Ms. SCHRIER:

H.R. 4697.

Congress has the power to enact this legislation pursuant to the following:

Article I

The single subject of this legislation is:

Public health and preparedness

By Mr. BERA:

H.R. 4698.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

The single subject of this legislation is:

Animal Health

By Ms. BUSH:

H.R. 4699.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

Establishing a Division on Community Safety within the Health and Human Services to fund, promote and otherwise facilitate public health approaches to public safety.

By Mr. CASE:

H.R. 4700.

Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
The single subject of this legislation is:
To require fair shipping prices for non-contiguous areas of the United States, and for other purposes.
By Mr. D'ESPOSITO:
H.R. 4701.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the U.S. Constitution
The single subject of this legislation is:
To permanently make fentanyl related substances a Schedule I substance.
By Ms. ESHOO:
H.R. 4702.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
The single subject of this legislation is:
Gene synthesis
By Ms. ESHOO:
H.R. 4703.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
The single subject of this legislation is:
Health impacts of nuclear war
By Ms. ESHOO:
H.R. 4704.
Congress has the power to enact this legislation pursuant to the following:
Article 1 , Section 8
The single subject of this legislation is:
Biosecurity risks posed by artificial intelligence
By Mr. FITZGERALD:
H.R. 4705.
Congress has the power to enact this legislation pursuant to the following:
Article I, section 8, clause 18
The single subject of this legislation is:
Federal charter reform
By Mr. FITZPATRICK:
H.R. 4706.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section VIII, Clause 18
The single subject of this legislation is:
Nutrition
By Mr. GAETZ:
H.R. 4707.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 1 and Article 1, Section 9, Clause 7
The single subject of this legislation is:
Prohibits the expending of funds for the Special Counsel's Office of John L. Smith.
By Mr. TONY GONZALES of Texas:
H.R. 4708.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Sec. 8 To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.
The single subject of this legislation is:
To streamline the issuance of nonimmigrant temporary work visas, and for other purposes.
By Mr. GOTTHEIMER:
H.R. 4709.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18: To make all laws that shall be necessary and proper for carrying into execution the foregoing powers, and all powers vested by this Constitution in the government of the United States, or in any department or officer thereof.
The single subject of this legislation is:
Foreign Affairs
By Mr. GREEN of Tennessee:
H.R. 4710.
Congress has the power to enact this legislation pursuant to the following:
Article One, Section Eight
The single subject of this legislation is:
Requires the Director of the Centers for Disease Control and Prevention to accelerate the collection and publication of data on suicide and drug overdoses.
By Mr. GROTHMAN:
H.R. 4711.
Congress has the power to enact this legislation pursuant to the following:
Article I Section VIII
The single subject of this legislation is:
Education
By Mrs. HARSHBARGER:
H.R. 4712.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the United States Constitution
The single subject of this legislation is:
Healthcare
By Mr. JACKSON of Texas:
H.R. 4713.
Congress has the power to enact this legislation pursuant to the following:
Article I Section 8 of the United States Constitution
The single subject of this legislation is:
Rural Health Care
By Mr. JOYCE of Pennsylvania:
H.R. 4714.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 Clause 3
The single subject of this legislation is:
To Amend the Public Health Service act to Authorize the Director of the National Institutes of Health to make awards to support early career pediatric researchers.
By Mr. KEAN of New Jersey:
H.R. 4715.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the Constitution of the United States.
The single subject of this legislation is:
To amend the Arms Export Control Act in support of the United Kingdom and the AUKUS partnership.
By Mrs. KIM of California:
H.R. 4716.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the Constitution of the United States
The single subject of this legislation is:
To amend the Arms Export Control Act in support of Australia and the AUKUS Partnership.
By Mr. LAMBORN:
H.R. 4717.
Congress has the power to enact this legislation pursuant to the following:
Article I Section VIII of the United States Constitution
The single subject of this legislation is:
Wildfire mitigation
By Ms. MALLIOTAKIS:
H.R. 4718.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 18
The single subject of this legislation is:
To require each public housing agency to establish and maintain an online portal for tenants and applicants, and for other purposes
By Mr. PANETTA:
H.R. 4719.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 18
The single subject of this legislation is:
Tax
By Mr. SCOTT of Virginia:
H.R. 4720.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution of the United States.
The single subject of this legislation is:
Direct Care Workforce Grants
By Mr. SMUCKER:
H.R. 4721.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 1 of the United States Constitution
The single subject of this legislation is:
This bill makes permanent the 20-percent tax deduction for small- and individually-owned businesses on qualified business income.
By Mr. SOTO:
H.R. 4722.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, of the U.S. Constitution.
The single subject of this legislation is:
To render certain military spouses eligible for adjustment of status, and for other purposes.
By Mrs. WAGNER:
H.R. 4723.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution of the United States
The single subject of this legislation is:
To provide for the imposition of sanctions with respect to foreign persons undermining the Dayton Peace Agreement or threatening the security of Bosnia and Herzegovina, and for other purposes.
By Mr. WESTERMAN:
H.R. 4724.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18 of the United States Constitution.
The single subject of this legislation is:
To authorize the court to depart from a statutory minimum in the case of a juvenile offender, youthful victim offender, and certain other minors, and for other purposes.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 16: Mr. ALLRED and Mr. VASQUEZ.
H.R. 33: Ms. WILSON of Florida.
H.R. 41: Mr. BUCSHON.
H.R. 52: Ms. BROWN and Mrs. FLETCHER.
H.R. 132: Ms. SCHOLTEN.
H.R. 431: Mr. BERGMAN and Mr. HUDSON.
H.R. 468: Mr. THOMPSON of Pennsylvania.
H.R. 530: Mr. BARR.
H.R. 537: Ms. LEE of California, Mr. LANDSMAN, Mr. CARL, Ms. MALLIOTAKIS, Mr. ZINKE, and Ms. PLASKETT.
H.R. 655: Mr. WESTERMAN.
H.R. 681: Mr. LEVIN.
H.R. 709: Mr. DAVID SCOTT of Georgia.
H.R. 760: Mr. LUETKEMEYER.
H.R. 788: Mr. ROUZER.
H.R. 807: Mr. LATTA, Mr. ARMSTRONG, and Mr. VAN ORDEN.
H.R. 883: Ms. WILSON of Florida.
H.R. 898: Mr. KEATING.
H.R. 971: Ms. LOIS FRANKEL of Florida.
H.R. 1021: Mr. MCGOVERN.
H.R. 1074: Mr. BRECHEEN, Mr. MOONEY, Mr. BABIN, and Mr. LAMBORN.
H.R. 1191: Mr. THANEDAR, Ms. CHU, and Mr. MORELLE.
H.R. 1235: Mr. NORCROSS.
H.R. 1247: Mr. GRIJALVA.
H.R. 1297: Mr. BURLISON.
H.R. 1325: Mr. RUPPERSBERGER.

H.R. 1385: Mr. NORCROSS.
H.R. 1406: Ms. SEWELL, Mr. BACON, Mr. JACKSON of North Carolina, and Mr. BALDERSON.
H.R. 1462: Ms. BALINT.
H.R. 1472: Ms. ROSS.
H.R. 1477: Mr. HARRIS and Mr. KEAN of New Jersey.
H.R. 1503: Mr. DAVIS of North Carolina.
H.R. 1505: Mr. MOSKOWITZ.
H.R. 1582: Mr. FLOOD.
H.R. 1610: Mr. VAN ORDEN, Mr. FLOOD, Ms. WILD, Mr. TIFFANY, and Mr. VEASEY.
H.R. 1631: Mr. MOORE of Alabama.
H.R. 1668: Mr. NADLER.
H.R. 1674: Ms. NORTON, Mr. SANTOS, and Ms. DEAN of Pennsylvania.
H.R. 1679: Ms. HOYLE of Oregon.
H.R. 1763: Ms. MENG and Mr. ALLRED.
H.R. 1796: Mr. EDWARDS.
H.R. 1815: Mrs. KIGGANS of Virginia.
H.R. 1829: Mr. GOSAR.
H.R. 1832: Mr. SWALWELL.
H.R. 2382: Mr. JACKSON of North Carolina.
H.R. 2385: Mr. ALLRED.
H.R. 2439: Ms. OCASIO-CORTEZ and Ms. SEWELL.
H.R. 2441: Mr. KILDEE.
H.R. 2539: Mr. BOST, Mr. CARL, Mr. MOONEY, and Mr. BILIRAKIS.
H.R. 2567: Ms. DEAN of Pennsylvania.
H.R. 2604: Ms. JACKSON LEE and Mr. ALLRED.
H.R. 2618: Mr. WESTERMAN.
H.R. 2630: Mrs. DINGELL, Ms. SHERRILL, Mr. SMUCKER, and Mr. BENTZ.
H.R. 2700: Mrs. HARSHBARGER, Mr. BARR, Mrs. CAMMACK, Mr. ROUZER, Mr. OBERNOLTE, Mrs. LESKO, Mr. BABIN, Mr. LAMALFA, Mr. LAMBORN, and Ms. LEE of Florida.
H.R. 2739: Mr. VALADAO.
H.R. 2743: Mrs. BICE.
H.R. 2783: Mr. JACKSON of Illinois and Ms. TITUS.
H.R. 2818: Mr. ALLRED.
H.R. 2830: Mr. HARRIS.
H.R. 2871: Ms. LEGER FERNANDEZ, Ms. PORTER, Mr. NORCROSS, Mr. ROBERT GARCIA of California, and Ms. STANSBURY.
H.R. 2878: Ms. SCHOLTEN.
H.R. 2879: Mr. SMITH of New Jersey.
H.R. 2923: Mr. COURTNEY, Mr. GOTTHEIMER, and Mr. GOLDEN of Maine.
H.R. 3039: Mr. BABIN.
H.R. 3062: Ms. NORTON.
H.R. 3073: Mr. DAVIS of North Carolina.
H.R. 3110: Mr. SIMPSON.
H.R. 3139: Ms. MANNING.
H.R. 3152: Mr. NORCROSS, Mrs. TORRES of California, Mr. SMITH of New Jersey, Mr. HIMES, Mr. SARBANES, and Ms. WILSON of Florida.
H.R. 3161: Mrs. KIM of California.
H.R. 3174: Ms. SCHRIER.
H.R. 3185: Mr. HUIZENGA.
H.R. 3211: Ms. MACE and Mr. COURTNEY.
H.R. 3240: Mr. PANETTA.
H.R. 3253: Mr. LEVIN.
H.R. 3377: Mr. LIEU.
H.R. 3381: Mr. JACKSON of North Carolina.
H.R. 3396: Ms. SCHRIER.
H.R. 3413: Mr. LALOTA, Mr. EVANS, and Mr. HORSFORD.
H.R. 3424: Ms. PINGREE and Ms. DEAN of Pennsylvania.
H.R. 3425: Ms. LOFGREN, Mrs. MILLER of West Virginia, and Mr. CRAWFORD.
H.R. 3433: Mr. VALADAO.
H.R. 3435: Mrs. BICE, Mr. CAREY, Ms. CRAIG, Mr. CURTIS, Mr. EVANS, Mr. LAHOOD, Mr. LAMBORN, Mr. LAWLER, Mr. MORELLE, Mr. OWENS, Mr. RASKIN, Ms. ROSS, Ms. TOKUDA, and Mr. TRONE.
H.R. 3494: Ms. SCHOLTEN, Mr. CASE, Ms. HOYLE of Oregon, and Mr. LIEU.
H.R. 3503: Mr. ALLRED.
H.R. 3520: Mr. BACON.
H.R. 3534: Mr. MCGARVEY.
H.R. 3548: Mr. JACKSON of Illinois and Ms. JAYAPAL.
H.R. 3549: Mrs. STEEL.
H.R. 3561: Ms. WILD, Mr. THANEDAR, Mr. GALLEGO, Mr. LIEU, Mr. VEASEY, Mr. RUIZ, and Ms. PETTERSEN.
H.R. 3616: Mr. BACON.
H.R. 3639: Mr. SMITH of New Jersey, Mrs. MCCLELLAN, and Ms. KUSTER.
H.R. 3666: Mr. LANGWORTHY.
H.R. 3755: Ms. BROWNLEY.
H.R. 3774: Mrs. MILLER-MEEKS, Mr. LARSON of Connecticut, Mr. SCHNEIDER, Mr. SMITH of New Jersey, Mr. VALADAO, Ms. SCHOLTEN, Ms. ROSS, Mr. HARRIS, Mr. RUPPERSBERGER, Mr. HUDSON, Mr. WOMACK, and Mr. KELLY of Mississippi.
H.R. 3790: Ms. LOFGREN.
H.R. 3826: Mr. LEVIN.
H.R. 3828: Mr. LANGWORTHY.
H.R. 3837: Mr. CRENSHAW.
H.R. 3847: Mr. CÁRDENAS.
H.R. 3867: Mrs. DINGELL.
H.R. 3875: Mr. GALLEGO, Mr. DAVIS of North Carolina, and Mr. KIM of New Jersey.
H.R. 3881: Mr. MILLER of Ohio.
H.R. 3887: Mr. PFLUGER.
H.R. 3894: Ms. SALAZAR.
H.R. 3904: Ms. MANNING.
H.R. 3922: Ms. SCHRIER.
H.R. 3934: Ms. TITUS.
H.R. 3939: Ms. CROCKETT.
H.R. 3970: Mr. COURTNEY, Mr. SOTO, and Mr. TONKO.
H.R. 3973: Mr. MCGARVEY.
H.R. 4015: Ms. TITUS and Mrs. BEATTY.
H.R. 4018: Ms. SCHRIER.
H.R. 4127: Mr. HARDER of California and Mr. THOMPSON of California.
H.R. 4167: Mr. KELLY of Mississippi.
H.R. 4172: Ms. DELBENE.
H.R. 4173: Mrs. CHAVEZ-DEREMER, Mr. VALADAO, Mr. HARDER of California, and Mr. DUARTE.
H.R. 4184: Mr. COURTNEY.
H.R. 4198: Mr. AMODEI.
H.R. 4260: Mr. CARTWRIGHT and Ms. PEREZ.
H.R. 4274: Mr. FLOOD and Ms. SCHRIER.
H.R. 4321: Mr. BANKS.
H.R. 4323: Mr. YAKYM.
H.R. 4328: Mr. FITZPATRICK and Mr. VARGAS.
H.R. 4334: Mr. ARMSTRONG and Ms. MACE.
H.R. 4335: Mr. BENTZ, Mr. CROW, Mr. PANETTA, and Mr. SCHIFF.
H.R. 4372: Mrs. LESKO.
H.R. 4392: Ms. SHERRILL.
H.R. 4398: Mr. STEUBE and Mr. CRANE.
H.R. 4424: Mr. DAVIS of North Carolina.
H.R. 4443: Mr. GREEN of Tennessee, Mr. WILSON of South Carolina, Mr. NORMAN, Mr. HARRIS, and Mr. SESSIONS.
H.R. 4468: Mr. LATTA, Mr. OBERNOLTE, and Mr. LANGWORTHY.
H.R. 4470: Mr. JOYCE of Ohio and Mr. CARL.
H.R. 4520: Mr. LAWLER.
H.R. 4531: Mr. DAVIS of North Carolina, Mr. PETERS, and Ms. PETTERSEN.
H.R. 4545: Mr. DAVIS of North Carolina.
H.R. 4550: Mrs. PELTOLA.
H.R. 4552: Mr. DAVIS of North Carolina.
H.R. 4562: Mr. DAVIS of North Carolina.
H.R. 4563: Mr. STEUBE and Ms. MALLIOTAKIS.
H.R. 4587: Mr. DUNN of Florida, Mr. GRAVES of Louisiana, Mr. WALTZ, Mr. CARTER of Georgia, Mr. DIAZ-BALART, Ms. MACE, and Mr. DUNCAN.
H.R. 4595: Mr. DUNCAN.
H.R. 4610: Mrs. FLETCHER.
H.R. 4613: Mr. HARDER of California.
H.R. 4670: Ms. TENNEY.
H.R. 4672: Mr. LATURNER.
H.R. 4690: Mr. NUNN of Iowa and Mr. ELLZEY.
H.J. Res. 54: Ms. CHU.
H.J. Res. 72: Ms. SHERRILL.
H. Con. Res. 37: Mr. JACKSON of Illinois and Mr. DESAULNIER.
H. Con. Res. 44: Mr. FROST.
H. Con. Res. 57: Ms. STEFANIK, Mr. ELLZEY, Mr. MEEKS, Mr. BUCHANAN, Mr. HUDSON, Mr. NORMAN, Mr. WOMACK, Mr. ALFORD, Mr. STEUBE, Mr. FRY, Mrs. RODGERS of Washington, Mr. BUCSHON, Mr. BARR, Mr. MOLINARO, Mr. ROSE, Mr. STAUBER, Mr. ISSA, Mr. JAMES, Ms. TENNEY, and Mr. THANEDAR.
H. Res. 425: Mr. RASKIN.
H. Res. 578: Mrs. NAPOLITANO, Mr. SHERMAN, Ms. SÁNCHEZ, Mr. THOMPSON of California, Mr. DESAULNIER, Ms. LOFGREN, Mr. GOMEZ, Mr. CORREA, Ms. WASSERMAN SCHULTZ, Ms. TITUS, Mr. LEVIN, Mr. LIEU, Mrs. TORRES of California, Mr. SCHIFF, Mr. COSTA, Mr. MFUME, Ms. PORTER, Mr. IVEY, Mr. ESPAILLAT, and Mr. MCGOVERN.
H. Res. 580: Mr. KEAN of New Jersey, Mr. GUEST, Ms. SALINAS, and Mr. THANEDAR.
H. Res. 585: Mr. SHERMAN and Mr. CONNOLLY.
H. Res. 594: Ms. BROWNLEY.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

The amendment to be offered by Representative GRAVES of Missouri, or a designee, to H.R. 3935, the Securing Growth and Robust Leadership in American Aviation Act, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

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PROCEEDINGS AND DEBATES OF THE 118th CONGRESS, FIRST SESSION

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Senate

The Senate met at 3 p.m. and was called to order by the Honorable PETER WELCH, a Senator from the State of Vermont.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, we praise You for the marvelous things You have done throughout our Nation's history. Thoughts about Your mighty deeds continue to fill us with joy.

Lord, in these difficult times, we continue to trust You to guide our Nation toward Your desired destination. Surround this Nation we love with the shield of Your divine favor as You execute judgment from Your throne.

Lord, continue to remind our lawmakers that they are accountable to You. Use them for Your glory as they seek to ensure that Your will is done on Earth even as it is done in Heaven. Do for us all immeasurably, abundantly, above all that we can ask or imagine, according to Your power working in and through us.

We pray in Your merciful Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mrs. MURRAY).

The legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, July 18, 2023.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable PETER WELCH, a Senator from the State of Vermont, to perform the duties of the Chair.

PATTY MURRAY,
President pro tempore.

Mr. WELCH thereupon assumed the Chair as Acting President pro tempore.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will proceed to executive session to resume consideration of the following nomination, which the clerk will report.

The legislative clerk read the nomination of Rachel Bloomekatz, of Ohio, to be United States Circuit Judge for the Sixth Circuit.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

NATIONAL DEFENSE AUTHORIZATION ACT

Mr. SCHUMER. Mr. President, later today, the Senate will take the first procedural step to begin consideration of our annual Defense bill.

For more than six decades, Democrats and Republicans have worked in good faith to pass the NDAA. This year's Defense authorization bill is a prime example of how Senate D's and R's can work constructively to provide our Nation's defense, take care of our servicemembers and DOD civilians, and make the investments necessary to innovate and build up our military intelligence capabilities.

I hope we can have an open and constructive amendment process for the NDAA, without needless delay or dilatory tactics. I certainly hope we do not see the kind of controversy that severely hindered the NDAA process over in the House. Both sides should defeat potentially toxic amendments and refrain from delaying the NDAA's passage.

So far, we have thankfully avoided all of that. Over the weekend, nearly all the committees across the Senate worked around the clock on a substitute, with a managers' package that has 51 amendments—21 from Republicans, 21 from Democrats, and 9 bipartisan. We have had many great amendments. This is a good start, and we are working toward a second managers' package with even more priorities for Democrats and Republicans.

I want to thank Chairman REED, Ranking Member WICKER, all the other chairs and rankers, and all of my colleagues and the staff who worked long and hard over the weekend for their good work on this bill.

There are a few items that are in the bill that deserve some attention, and, in the largeness of the bill, I would like to highlight them. I want to highlight a few items added to the managers' package that are very important and bode well for our country's future, particularly on AI, on outcompeting the Chinese Government, and on tackling our Nation's fentanyl crisis.

First, I am pleased that the managers' package includes an amendment I worked on with Senators ROUNDS, YOUNG, and HEINRICH that takes some early initial steps on AI legislation, the first steps this body is taking in a

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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while. The Senate has already done important preliminary work to bring ourselves up to speed on this issue, but the NDAA will be the Senate's first opportunity this year to pass real AI legislation.

My AI amendment includes provisions that will boost AI oversight within the national security space, including an increase in data sharing within the DOD, new risk studies to examine explainability and similar issues, and it provides for ''bug bounty programs'' that will help sniff out vulnerability in AI systems used by the DOD.

This year, our first managers' package also makes a critical down payment on the Senate's efforts to outcompete the Chinese Government. We have over a dozen amendments related to our ongoing competition with the Chinese Government, including measures that make progress on the AUKUS defense cooperation agreement between the United States, the UK, and Australia. Senator MENENDEZ and I wanted more, but we have a good compromise in the bill, and I hope we can add more in the amendment process.

We have provisions to strengthen our partnership with Taiwan, boost the development of quantum information technologies, and strengthen the United States' position in the Indo-Pacific region, to name a few.

As you know, we are working on a bipartisan China competition package that will deal with the excesses and wrongs of the Chinese Government. But this, in the DOD bill, is a good first start.

And I also want to praise my colleagues TIM SCOTT and SHERROD BROWN for their work to combat our Nation's fentanyl crisis. This is one of the most devastating health crises happening in our country.

In 2021, the DEA, the Drug Enforcement Agency, seized enough fentanyl to give every single American a lethal dose—every single American. A lot of blame for this crisis lies at the feet of the chemical suppliers located in China that operate with little or no accountability, which represent the bedrock of the international fentanyl supply chain.

I felt this is very important that we do more to stop the scourge of fentanyl from coming into our country. So I pushed very hard to get this amendment in the managers' package, and I am glad it was—championed, as I said, and passed in the Banking Committee, by Chairman BROWN and Ranking Member SCOTT. It declares the international trafficking of fentanyl a national emergency and adds teeth and potential sanctions to the administration's ability to hold wrongdoers accountable. The ability to declare this a national emergency gives the President broader powers and allows him to do more to stop the flow of these precursor chemicals coming from China and other countries. The bill was passed unanimously, I am proud to say, by the Banking Committee—another great example of regular order here in the Senate.

Finally, I am pleased the NDAA will include my amendment on increasing transparency on UAPs, Unidentified Anomalous Phenomena. UAPs generate a lot of curiosity from many Americans, and with that curiosity, sometimes comes misinformation. My amendment will require the National Archives and Records Administration to create a collection of records from across government Agencies that can be declassified for the public's use, similar to the approach used in 1992 with the J.F.K. Assassination Records Collection Act. These records will carry a presumption of immediate disclosure, which means they can only be made classified with good reason.

I thank my colleagues who worked with me on this legislation—Senators ROUNDS, RUBIO, HEINRICH, GILLIBRAND, and YOUNG—for their partnership on this amendment. And as many know, my mentor and dear friend whom I miss so much, Harry Reid, was passionate about this issue, and so were Senators Stevens and Inouye. So I am glad we could get this into the managers' amendment.

For these and many other reasons, I look forward to beginning floor consideration of the NDAA bill today. The four things I mentioned—dealing with fentanyl, dealing with competition with China, dealing with AI, and making public the UAP phenomena and what we know about them in an unclassified way—are all important additions to the Defense bill. I am glad we added them in.

I thank both sides for their good work, and I hope we can pass this important bill without needless delay or controversy.

FREEDOM TO VOTE ACT

Mr. President, on the Freedom to Vote Act, in just a few minutes, I will be joining a group of my Democratic colleagues to mark the reintroduction of the Freedom to Vote Act.

The Freedom to Vote Act rests on a simple yet fundamental principle: All Americans, no matter where they live, should have the freedom to vote without fear of discrimination.

Our bill will set basic standards for Americans to vote safely and securely and help instill confidence that our Nation's elections are free and fair.

I want to thank Senators KLOBUCHAR, KAINE, and WARNOCK for their good work on putting this bill together, as well as my House colleagues, led by Leader JEFFRIES.

While Democrats are actively working to expand access to the ballot box, MAGA Republicans in the House, unfortunately, are doing exactly the opposite. Last week, House Republicans introduced and advanced through committee the most restrictive voting rights package we have seen in decades. The Republican package would make voting harder for millions of Americans by creating more barriers to the ballot box, including new obstacles to voter registration and mail-in voting.

The Republican package would allow the scourge of dark money to fester in our politics by loosening campaign finance safeguards and empowering wealthy, wealthy donors.

Let me be clear. Let me be very clear. Democrats will never allow this Republican package to become law and, instead, will focus our efforts on commonsense, real voting rights legislation like the Freedom to Vote Act.

NOMINATIONS

Mr. President, on nominations, later today, the Senate will confirm Rachel Bloomekatz to serve as circuit court judge for the Sixth Circuit. A graduate of Harvard and UCLA Law, Ms. Bloomekatz is an accomplished litigator who has dedicated her career to the pursuit of equal justice for all.

I want to note, Mr. President, that with the Bloomekatz confirmation, the Senate will have confirmed 36 circuit court judges to lifetime appointments under President Biden, including 27 women. These appointments are significant because the lion's share of all Federal cases never actually make it to the Supreme Court and are, instead, resolved at the circuit court level. Senate Democrats have prioritized filling these vacancies with highly qualified nominees who reflect the diversity and dynamism of our country. That is the best way to restore trust in our courts, so sorely needed today.

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The Republican leader is recognized.

NATIONAL DEFENSE AUTHORIZATION ACT

Mr. MCCONNELL. Mr. President, later today, the Senate will vote to begin consideration of this year's National Defense Authorization Act. The NDAA is our most significant opportunity to set priorities for competition with adversaries like China and Russia.

It is our chance to keep the Biden administration focused on critical missions, like rebuilding America's defense industrial base, instead of the woke partisan agenda of political appointees. It is our time to lay the groundwork of robust investments in hard power.

For 62 straight years, from the thick of the Cold War through the Global War on Terror, the Senate has used the NDAA to match tailored solutions to evolving national security challenges.

This year is no different. Ranking Member WICKER, Chairman REED, and our colleagues on the Armed Services Committee considered 445 amendments

and adopted 286 of them. Here on the floor, the full Senate should do the same. Senate Republicans are committed to exceeding the President's woefully inadequate defense budget request and delivering the resources our Armed Forces actually require. So I expect the Democratic leader to allow thorough consideration for a range of important amendments as we begin that work with the NDAA.

First and foremost, I would like to remind all of our colleagues that the No. 1 piece of business on the Senate's agenda is actually already overdue. So it is especially important that we begin this process without further delay.

APPROPRIATIONS

Mr. President, on a related matter, the sooner we pass the NDAA, the sooner we can deliver on full-year appropriations for defense and each of the other areas Senator COLLINS, Senator MURRAY, and our colleagues are working to finish in committee.

I am grateful for our colleagues' commitment to a regular order appropriations process. Funding the government on schedule means fulfilling one of the Senate's most basic responsibilities. But just as important as the must-pass measures that are kept in are the radical ideas that are actually kept out.

Here is an example: Last week, the Appropriations Committee adopted an amendment to prevent unelected administration bureaucrats from abandoning the use of affordable and efficient gas appliances in American homes and small businesses.

The Biden Energy Department's proposed rule regulating gas stoves into extinction is just one of the many ways Washington Democrats want to let elite coastal liberals impose their preferences on all 50 States and spend truckloads of taxpayer dollars accordingly.

DOE's latest rule would effectively ban 96 percent of the gas stoves currently in use in America, and the Consumer Product Safety Commission has begun work on a potential gas stove ban of their own.

Unelected bureaucrats are preparing to pounce, and working families and small businesses across the country are rightly worried. One hospitality industry expert in West Virginia called the cost of switching a kitchen to electric from cheaper and more efficient gas as a multithousand dollar thing.

''A multi-thousand dollar thing,'' that would mean lower quality and longer wait times.

Well, as with any number of other radical climate ideas, some of our Democratic colleagues don't seem to care about these real-world impacts. And in this case, some have been downright oblivious to the threat.

Back in 2021, Senator BARRASSO proposed an amendment to ensure that Democrats' radical climate regulations couldn't restrict the use of gas appliances. But the senior Senator from West Virginia led the vote against the amendment in the Energy and Natural Resources Committee, and Senate Democrats blocked it again on the floor for good measure.

In response to Senator BARRASSO's concerns on behalf of working families and small businesses, Senator MANCHIN said:

I don't see that happening.

''I don't see that happening.'' Even as Senator MANCHIN offered the reckless taxing and spending spree that gave $840 in special rebates for folks to swap their gas stoves for the electric ranges that activists prefer.

Well, it appears our colleague has since changed his tune. This time around, he sponsored the amendment blocking the sort of radical regulation he couldn't imagine just 2 years ago.

As our colleagues continue to make headway on the regular order appropriations, I am glad this commonsense measure has earned bipartisan support.

But it really begs the question: Wouldn't working families and small businesses be better off if Washington Democrats would just stand up to the radical climate regulations in the first place?

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

The majority whip.

NATIONAL DEFENSE AUTHORIZATION ACT

Mr. DURBIN. Mr. President, with Vladimir Putin's ruthless invasion of Ukraine—and a new generation of threats on the horizon with AI and emerging technologies—America's military readiness has never been more important. That is why, today, I am pleased to speak in support of the National Defense Authorization Act for the fiscal year 2024.

I want to thank Chairman JACK REED of Rhode Island and Ranking Member ROGER WICKER of Mississippi for their leadership as well as their staff work. And because of that, the Senate will soon vote on a national defense package that will protect the men and women in uniform, defend our Nation's interests, and support our allies.

For the 63rd year in a row, this bipartisan agreement will authorize necessary funding for our Nation's security. I hope we will pass it without delay.

This year's National Defense Authorization Act authorizes a topline of nearly $886 billion, including $844 billion for the Pentagon. This is a $28 billion increase compared to our current fiscal year, and a more than $100 billion increase compared to the last year.

Now, that may come as a surprise if you listen to the political speeches, given that some voices on the right have cried that our defense spending is falling so far behind.

The fact is this: This is the largest defense budget in the history of the United States ever—the largest defense budget ever. Importantly, it provides a more than 5-percent pay increase for our troops and our Pentagon's civilian workforce. That is the largest increase in decades—the largest increase in decades—and it is well-deserved.

This bill also expands employment opportunities for military spouses, funding for childcare, improved military housing, the quality of life elements that we absolutely owe the men and women in uniform.

It will ensure that our Nation can ward off threats from China and North Korea, with strong investments in the Pacific Deterrence Initiative. It addresses shortfalls in recruitment and improves our cyber defense capabilities. This year's NDAA also includes a number of provisions that I helped to author, including proposals that will support the administration's AUKUS agreement, boost Impact Aid funding for school districts that serve military families, strengthen digital manufacturing for future technologies, and authorize key Illinois military construction projects.

In addition to funding our Nation's long-term priorities, this package also will provide military aid to our friends in Ukraine and our allies throughout Europe, including the Baltics. Nearly 18 months after Putin began his full-scale invasion, Ukraine remains on the frontlines of democracy. And as I saw recently in Vilnius last week, during this year's NATO summit, the Ukrainian people's heroism and determination continues to rally the western alliance in their support.

Today's NATO is larger and stronger than ever. It is more united than ever. And the United States must continue to do everything in our power to maintain the strength and unity of this alliance.

I want to give special recognition to President Biden. When he was elected to the Presidency, he told me this story and shared it with others, that in the first meeting of the NATO alliance, there was a fundamental question that was asked: Is the United States still committed to the NATO alliance?

It was an unthinkable question years ago, but not so when President Biden came in office. The previous President, Donald Trump, raised serious questions as to whether we viewed the NATO alliance as part of our future and the future well-being of the world. President Joe Biden made it clear from the start that he was committed to NATO. Even before the Putin invasion of Ukraine, he made it clear that the alliance had a future under his administration, and he has proven it.

I saw it last week in Vilnius. His arrival and commitment to future support for Ukraine made a difference. It really mobilized not just the members of the alliance, the 31 nations that are

a part of it, but other countries from around the world that wanted to be there and testify—the Prime Minister of Japan, the President of South Korea, the Prime Minister of Australia. None of those countries are members of that alliance, but they wanted to be physically present to make it clear that they stood in support of the alliance and its goals and its values. I salute President Biden for his leadership in bringing us to that moment.

Unfortunately, some lawmakers on the other side of the Capitol seem ready to capitulate to Putin and other autocrats. Last week, the MAGA majority in the House of Representatives voted to inject politics into this Defense appropriations process. Thankfully, their amendment to block U.S. support for Ukraine amid Putin's war of choice failed, even though 89 House Republicans voted for it.

Think of that. Putin is killing innocent people in Ukraine every day. They are begging us to stand with them, to defend their own country, to defend democracy, and to give them a future that is aligned with NATO and the West, and these 89 Republicans said: Cut them off. Don't give them another nickel. That is the end of it.

What were they thinking? Where are their values?

Ultimately, the House passed a bill that would abandon our servicemembers in other ways, along with our allies, and jeopardize our national security in a new age of threats. The bill passed by the House of Representatives would eliminate access to reproductive healthcare for men and women in the military, politicize schoolbooks, and undermine progress addressing the climate crisis and recordbreaking heat.

If you paid any attention at all to weather forecasts across the Nation over the last 2 weeks, how can you question that we are in a real climate crisis? The city of Phoenix, AZ, last week had 3 days with temperatures in excess of 115 degrees. The temperature of the globe measured in scientific terms is the highest ever recorded. Extreme weather events in New England and other places are fair warning to us that if we don't take this seriously, the next generation, our children and grandchildren, will face a world much more difficult to live in.

So MAGA Republicans in the House nevertheless want to rip away not only the addressing of the climate crisis but also the basic freedoms of every American, particularly those who defend our freedom every day. They have hijacked a bipartisan process to pursue an extremist agenda.

The best explanation I can give for this irresponsible conduct is ''Don't worry, the Senate will clean it up.'' Well, we will clean up their mess. We have to. We need to do it on a bipartisan basis. But the MAGA Republicans cannot prevail when we talk about our Nation's defense.

Here in the Senate, one Republican, for instance, is blocking hundreds of military promotions to advance that same extremist agenda. Think about that. The men and women in service in our military, who have risked their lives and seen their comrades and friends fall beside them, who have been given combat awards for their bravery, are being denied promotions because of one Senator, one Republican Senator from Alabama, who has decided to stop the promotions for over 200 of these deserving individuals. Is that our gratitude to the military for their service to our country and their bravery?

I think it is awful that we are in this situation—indefensible. I hope more and more Republican Senators will speak out against their colleague and what he is doing to our military. It endangers our national security, and it shows great disrespect to men and women who deserve our highest level of respect.

As my colleague from Illinois, Senator DUCKWORTH—and she being a national hero herself for her service to our Nation—has pointed out, this partisan charade by one Senator from Alabama has already had a direct impact on our military readiness. For the first time, for example, in over 100 years, the U.S. Marine Corps is without a Senate-confirmed Commandant. Everyone should take note of how extreme that situation is. Very soon, the Army, Navy, and Joint Chiefs will be in a similar position if the Senator from Alabama does not lift his hold.

So to my Republican colleagues who come to the floor and question President Biden and the Democratic Party's commitment to national security, I say: Take a look in the political mirror.

The National Defense Authorization Act we have before us is a serious proposal, which, of course, means there are compromises included. And while it will make important progress, this bill is far from perfect. For instance, this bill once again, in my estimation, extends unnecessary restrictions on transferring detainees from Guantanamo. This will make it even harder to close this shameful facility once and for all. The amount of money we ask taxpayers to spend on Guantanamo is indefensible—millions and millions of dollars for each person who is being held there after we have agreement that more than half of them should be released. It is time to close Guantanamo, and this Senator would like to see that done as part of this bill.

This bill also includes questionable provisions based on false concerns regarding diversity and inclusion in our Armed Forces—provisions that ultimately impair, not improve, military readiness.

I would like to see several of my amendments be considered, including those that would hold accountable perpetrators of heinous atrocities in Ukraine and elsewhere by criminalizing crimes against humanity; strengthening public transparency on the impact of lethal strikes; push the Pentagon toward technologies of the future, such as EVs; address the troubling human rights record of countries such as Egypt which claim to be our allies and friends in one breath and yet jail peaceful activists in the next—and more. I am heartened that negotiations on a second managers' package continue, and I look forward to seeing these issues considered.

Lastly, I hope any increase in defense spending is matched by a similar increase in nondefense discretionary spending to keep parity between the two accounts. The reality is this: While it is important to provide robust spending for national security, it is equally important to invest in America—schools, roads, hospitals, and beyond. Simply put, our strength at home projects strength abroad.

I look forward to working with my colleagues on these issues before we leave for the August recess.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from North Carolina.

TRIBUTE TO DR. NIDO QUBEIN

Mr. BUDD. Mr. President, I rise today to honor a distinguished North Carolinian and a dear friend, High Point University President Dr. Nido Qubein.

Dr. Qubein immigrated to the United States from the Middle East when he was 17 years old. He came to our country to pursue his education and attend college. Needless to say, his academic achievements were impressive, and they were an early indication of the success he would build in North Carolina.

He received his associate's degree in business from Mount Olive College, a bachelor's degree in human relations from High Point University, and a master's in business education from the University of North Carolina at Greensboro.

My family and I have had the pleasure of knowing Dr. Qubein and his family and his wife Mariana for decades. We have been inspired by their dedication to education and their service to others.

During his career in business, philanthropy, and education, Dr. Qubein has been widely recognized for his work. He received the Ellis Island Medal of Honor, the Horatio Alger Association for Distinguished Americans designation, the Daughters of the American Revolution Americanism Award, and has been inducted into the National Speakers Hall of Fame.

But of all of his accomplishments, what he has been able to achieve for his hometown of High Point, NC, is perhaps his most indelible legacy. In 2005, High Point University trustees asked him to become its seventh President. Dr. Qubein decided to scale back his business career and to accept their offer to lead his alma mater. That decision launched a huge golden age.

What has happened under Dr. Qubein's tenure is nothing short of a complete transformation of High Point

University. Enrollment at the school has more than quadrupled—now over 6,000. Nearly every year, HPU has topped itself, increasing the number of students in each year's class. In 2005, HPU had three specialized academic schools. Today, there are 13, including dental, law, and engineering. In 2005, the university had 108 full-time faculty. Today, they have 500. In 2005, the university's endowment was just over $45 million. Today, it has quadrupled to $180 million. The size of the campus has skyrocketed by over 400 percent to 520 acres. Under Dr. Qubein's leadership, the university established a full-time, pro bono physical therapy clinic, as well as new schools for business, communications, law, natural sciences, health sciences, nursing, a school of pharmacy, a conservatory, and so much more.

All of this growth has led to this amazing fact: The percentage of graduates who either begin a career or enroll in graduate school within 180 days of earning their degree is 99 percent. That outcome is 14 percent higher than the national average.

The success is all the more exceptional because High Point University is an institution led by the values of its president. HPU is a God, family, and country institution. They welcome students of all backgrounds, but the values of faith in God and patriotism are at the core of what defines High Point University. They lead, and they lead with purpose.

Simply put, Dr. Qubein has transformed High Point University from a small, little-known southern college into a nationally known and respected institution that now draws students from all 50 States and more than 50 countries around the world.

So on behalf of the citizens of North Carolina, I would like to extend my sincere thanks to Dr. Nido Qubein for everything he has done for the city of High Point and the university that bears its name and for setting the standard for what it means to be an extraordinary American citizen.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Tennessee.

ARTIFICIAL INTELLIGENCE

Mrs. BLACKBURN. Mr. President, AI is really grabbing some headlines, and over the past few months, Tennesseans have been watching the Senate as we go about having hearings and deciding how to handle this emerging technology. This technology has broken boundaries in ways that most people never imagined would be possible, and they see great potential in it.

Healthcare companies in Tennessee are already using AI to enhance the quality of care that doctors can offer their patients. If you have been in for a doctor's checkup in the past few years, you have probably noticed that your doctors and nurses are using more digital tools to help inform their diagnoses and choose which drugs they are going to prescribe. Most of those tools are powered by AI, as are many of the apps and gadgets that healthcare providers recommend to their patients to monitor their health and keep their treatments on track. We have seen the use of these remote monitoring tools just explode, especially in rural areas during the pandemic.

We are also seeing AI make a substantial impact on manufacturing. The largest auto manufacturers in Tennessee are already using this technology to make our cars safer and more efficient. Many of them are experimenting with automated driving systems. They are also using it to make operating a vehicle a little more practical. One that I found amusing is that Ford used AI to develop a program that would automatically hook a trailer to a hitch. Now, I know some of our Members who have farms and ranches probably think you should have that skill, but I think, for many of us, that would be a practical application.

So whether we are talking about making things safer, finding which pharmaceuticals are going to better treat diseases, or making things more convenient, AI has the potential to completely transform entire industries. Indeed, innovators are working on those components as we speak.

It also comes with significant drawbacks, and nowhere are those problems more pronounced than in Tennessee's music industry. All things considered, technology has been great for the business side of the music industry. The increased use of social media by up-and-coming musicians has allowed record labels to sign artists who have millions of fans. Platforms like Spotify automatically generate playlists that promote new music, and all of that music is available instantly via an app on your cell phone. But the thousands of musicians, songwriters, and artists who call Tennessee home are really quite worried about the lack of control they have over how AI platforms exploit their creations and their intellectual property.

This month, the Senate Judiciary Committee held a hearing to examine the downsides of making technology an essential element of the creative process. The most obvious problem that we have uncovered in our discussions with artists and songwriters comes down to a basic question of copyright infringement.

We know that to create artistic works, AI systems must train on data scraped from existing artistic works. If you look at how this technology has advanced, it becomes clear that generative AI is often trained on popular music that was used without the copyright holder's permission. One AI model that we reviewed was trained on a staggering 280,000 hours of music. There is not a reasonable person who would ever suggest that the writers and artists were compensated fairly for that 280,000 hours of use of their products that was used to train AI to mimic and clone their voices and their words.

Now, the very existence of this tech and what it produces are enough to draw challenges to spurious claims that data scraping counts as what is called fair use, but we have even more extreme examples of what AI can do after training on existing popular music, or music that has been scraped, in order to train the platform.

Most recently, an anonymous content creator uploaded an AI-generated song called ''Heart on My Sleeve.'' It was a perfect replication of the vocals of Drake and The Weeknd. It was so perfect that listeners on multiple platforms were duped into thinking it was real. The song gained over 9 million views on social media and hundreds of thousands of plays on Spotify and YouTube before the platforms took it down. But because the internet is forever, so is this fake song, and there is nothing those artists can do about it.

Not only does this raise questions about what ''fair use'' means in the age of AI, but it also raises serious concerns about our current State-by-State approach to protecting an individual right of publicity. Common sense tells us that this isn't right, even if the law is still catching up with the pace of technology. We have discussed having a Federal—a Federal—individual right of privacy law.

AI has also affected how fans interact with real music. At least on streaming platforms, playlists have outpaced platforms as the preferred listening format. Companies have employed AI-driven playlists to expose listeners to new artists, with decidedly mixed results.

Martina McBride, who knows a few things about country music, has gone public about her experience in trying to build a playlist using Spotify's ''recommender'' system. In a playlist she prompted with the words ''country music,'' she had to refresh her recommendations 13 times before it delivered a song by a female artist. Country music is an expansive genre. Yet, somehow, that algorithm spit out 120 songs by men before managing to include a song by a woman.

We could chalk up this apparent bias to a glitch in evolving tech were it not for the fact that fans rely almost exclusively on technology to listen to and discover new music. People expect more innovation, not less, because that is exactly what Big Tech is selling them. When they spin one of those customized playlists, they expect to hear a fair sampling of whatever it is they asked for, but that is clearly not what these platforms are delivering. This matters to established artists like Martina, but it matters even more to up-and-coming artists who are forced to rely on these algorithms to gain exposure to the music-listening public.

Over the past few years, Congress has learned a very important lesson about the perils of allowing technology to outpace the law.

Over the course of several hearings, we produced evidence of the unraveling

of safety and security standards on social media platforms. Senator BLUMENTHAL and I worked together on this. We heard testimony from parents, children, and industry experts. We exposed how platforms prioritize growth over maintaining even the most basic checks on predatory and dangerous content.

This Congress, we have the opportunity to put guardrails on these companies through the passage of the Kids Online Safety Act. It is a strong, bipartisan bill that will make a real difference for children and their families.

I would like to remind my colleagues that it took us far too long to engage on this issue. Indeed, when the Acting President pro tempore and I were in the House, we were leading the way in getting our colleagues to address these issues.

I think we are at the point that we can say now that this has to be done. We can't afford to wait and let AI systems be put in place without having protections for the American people. So, in recent months, we have held several hearings on this issue. Most recently, we examined the impact on intellectual property rights. In June, we fielded several firsthand accounts of how this technology could be weaponized against basic human rights. Senator OSSOFF and I led that hearing.

We have yet to truly dig into the dangers of allowing China to outpace us through the use of AI, and I think it is time that we catch up.

When it comes to tech, we have done our best work when we have listened to the people and have worked with people who are closest to the issue. The Kids Online Safety Act came to be because we listened when parents spoke out about how impossible it was to protect their children in the virtual space.

Years ago, when the House Energy and Commerce Committee was crafting what would become the 21st Century Cures Act, I worked with Tennessee's healthcare innovators to include provisions that made the law more responsive to the rapid growth of the healthcare technology industry. We had similar conversations in the runup to the passage of the Music Modernization Act.

So I would encourage my colleagues to start engaging with us on this issue before it gets away from us. Listen to what creators and engineers have to say about AI's effects on their industries.

There is no turning back the clock on AI just as we learned that there was no turning back the clock on social media and that there was no turning back the clock on the World Wide Web. AI is here to stay—it is going to drive innovation—but that doesn't mean we have to accept innovation at any cost.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Michigan.

Ms. STABENOW. Mr. President, first, I just want to indicate also that there is a lot to think about here when we are looking at artificial intelligence. There are a lot of very serious questions we have to figure out.

I am really pleased that we are seeing this bipartisan initiative in the Senate, with Senator SCHUMER, our majority leader, coming forward, but also with other colleagues who are really helping us go through briefings and are really looking at all of the questions, because it is really serious in terms of the questions. It is something we have to deal with as this is not going away. Certainly, there is a lot we have to figure out in all of this.

MICHIGAN

Mr. President, I come to the floor today first of all to say that, as everybody in this Chamber knows, I am extremely proud to be from Michigan. We are the State of innovation. We built the automobile, the automobile assembly line, and the American middle class as a result.

In Michigan, we make things and we grow things. Just take a look at recent headlines: Ford chose Marshall, MI, as the site of a new battery plant. It is expected to create 2,500 jobs when it opens in 2026.

In June, I was at the groundbreaking for a new UL Solutions battery lab in Auburn Hills. Their work is going to improve the batteries that go into electric vehicles like my Bolt, which I love.

Hemlock Semiconductor, a proud Michigan company that manufactures products used in the semiconductor and solar industries, is expanding its plant by creating an industrial park that will create 170 new jobs, and I expect a lot more jobs will be coming after that.

We are also attracting businesses from Europe and around the world. This spring, Norwegian company Nel Hydrogen announced that it is going to build a manufacturing plant in Michigan that is going to create more than 500 jobs.

Exciting things are happening—and not just in Michigan. All around the country, all across the country, manufacturing facilities are opening, small businesses are launching, and folks are headed to work at good-paying jobs. This past month, 209,000 jobs were created—209,000 jobs were created last month—which means there have been 13.2 million jobs created since President Biden took office. This is in less than 3 years. It is in less than 2½ years—in about 2½ years, I guess.

We are announcing an unemployment rate that is 3.6 percent. It has been under 4 percent for the last 17 months in a row—17 months in a row. There have been 13.7 million jobs created in about 2½ years, and this is coming out of a pandemic and all that surrounded it with supply chain breakdowns and all of the challenges. Yet, because of what we are doing, we are seeing the strength in the underlying economy. That is the longest stretch in over 50 years, when we look at the unemployment rate—the longest stretch in over 50 years—50 years.

The highest number of Americans age 25 to 54 are now in the workforce—the highest number—since May of 2002.

The percentage of women who are working set a new record for the third month in a row.

Wages are up. Inflation is going down. It is down at the lowest level in 2 years. We have got more to do, but it is going in the right direction.

This is Bidenomics in action. This is not by accident that all of this is happening. We are growing our economy from the middle out and bottom up, not the top down. It is the opposite of trickle-down economics. It is the opposite, not giving everything to those at the top—the very wealthy—who can then take their dollars and go anywhere in the world and be able to invest in a race to the bottom on jobs, which is what we have seen for decades, which, by the way, got us the supply chain problems, when over half of the chips going into our automobiles and other electronics were made from one company in Taiwan.

We are now turning that around. We are making smart investments in America, including in our infrastructure—rebuilding America—in manufacturing, in clean energy, and actually making sure we are saying: If you want those tax credits that we want to support you to create those jobs, you have to make it in America. You have to make it in America, not just take the dollars from America and then put them somewhere else. You have to actually make it in America. That is what we are doing.

We are empowering American workers through higher wages and better training and more support for unions.

We are lowering costs for the things that Americans need, starting with prescription drugs, by the way, capping the cost of insulin per month at $35 for our seniors and people on Medicare. We are laser-focused to do more, by the way, to make that cap for everybody who is on insulin, and on all the other changes to bring down healthcare costs and prescription drug costs. We are laser-focused on taking on the drug companies to be able to do that.

We are making sure small businesses have the support they need. I am excited that we have seen the largest number of Black small businesses being created in the last couple of years. We are seeing so many more opportunities for entrepreneurs, for small businesses across the country, which are so much a part of the backbone of our economy. We are seeing that as well.

We are basically seeing what we call Bidenomics because it is growing the middle class. It is aiming at the American middle class. It is saying we want to support you, but the jobs have to be here in America. We want to rebuild and invest in America for the future and in all of our technologies, from high-speed internet to our roads and

bridges and airports and rails and all the other things that will allow us to be leading the pack in a global economy and competing. We want to bring those jobs home.

Then we are laser-focused on lowering costs for folks. If that means taking on the oil companies or taking on the drug companies, so be it. But we are laser-focused on bringing down costs.

That is what Bidenomics is all about. Bidenomics, the opposite of trickle down—the opposite of trickle down.

Meanwhile, what are our Republicans colleagues doing? Unfortunately, the same thing they have been doing for decades. By the way, they have never met a problem that a tax cut for the wealthy wouldn't solve. I remember so many times, when the economy was doing well 20 years ago: Oh, we should do a tax cut for the wealthy.

And then, when the economy was down, and when we had Wall Street crash: Oh, we should do a tax cut for the wealthy.

It doesn't matter what the problem is, the solution is a tax cut for the ultrawealthy of the country, with the idea that it will trickle, trickle down. Unfortunately, what has happened with that is it never trickled down, at least not for the people in Michigan. Of course, they are waiting for it to trickle down.

But it did blow up the deficit. It did blow up the deficit. In fact, 25 percent of all of the debt accumulated by the country ever was in 4 years of President Trump. Twenty-five percent of all of the deficit and debt created ever in the country was under 4 years of President Trump.

And the 2017 Trump tax giveaway exploded the deficit. That is why that was happening. It exploded the deficit by nearly $2 trillion and gave the ultrawealthy massive tax breaks.

So we have come out of this manufactured crisis around the debt ceiling, taking the country to the edge of default, and all the talk about how much debt we have, and then, as soon as that gets resolved and President Biden brings everybody to the table and there is a bipartisan agreement not to have our country crash and default because of, unfortunately, the manufactured antics on the other side, what happens next? Our Republican colleagues have a new tax package. After talking about the debt and the deficit, they have turned around again and want another tax cut for the wealthiest and the largest corporations. In fact, Big Oil will get another $10.5 billion tax break under their latest tax cuts, on top of the embedded tax breaks that have been there for 100 years with Big Oil.

These tax breaks are supposed to help folks get started in the industry—and I think they are pretty much established in our country, after 100 years of this. But, no, a $10.5 billion tax break, in addition now, is what is being proposed in the House.

Their proposal would roll back clean energy tax credits that are creating jobs. The things I listed at the very beginning as I was talking all relate to the focus on investing in clean energy and saying it has to be a production tax credit. So you don't get it unless you are making this in America, and this is key. This has not been happening for decades, and it is now happening.

They want to roll that all back—roll back all the things we are trying to do to combat the climate crisis, which is hitting us over the head every single day, destroying homes and creating havoc and costing lives. All that is happening because of excess carbon pollution that is in the atmosphere, and that has been here for as long as we have been using fossil fuels.

I wish the oil companies would take some of the hundreds of billions that they have been given on tax breaks and put it back into technology to stop pollution. That would be very helpful, if that were where they had put that. But instead what they have done is put it into funding efforts to say the climate crisis isn't real, that it is all a hoax, that everybody is making it up. And we see where we are today because it is not made up. It never was made up.

When they got the first tax breaks 100 years ago, if they had put part of that into technology to make sure that what they were doing was not polluting the atmosphere, we wouldn't even be here today talking about the climate crisis. And, certainly, Mr. President, with what is happening in your home State of Vermont, you see how it destroyed a town. It is extraordinary what is happening with the weather and all the damage.

Our Republican colleagues want to roll back all the efforts right now to try to clean up things and for a cleaner environment. They want another big tax break for Big Oil. They are going to endanger about 150,000 good-paying jobs, and, on top of that, it would balloon the deficit again by another $300 billion just over the next 3 years.

If Republicans extend all of the Trump tax giveaways, we would add another $2.5 trillion—''t''—to the deficit if they got what they have been proposing.

Again, we have tried trickle-down economics, with tax breaks for those at the top, slashing investments for America, and shipping good jobs overseas. That has been the strategy or the result of the strategy—not that they were saying: Oh, we are going to ship jobs overseas. No, they just let it happen by giving tax breaks to folks who did that with no accountability. That is trickle-down economics.

Now, we have what we are proudly calling Bidenomics: investments in America, empowering workers, lowering costs, and helping small businesses. And it is actually working.

Let me go back to the slide. It is actually working. When we look at just last month, there were 209,000 jobs. And every month there is a jobs report—more jobs, more jobs, more jobs. There were 13.2 million jobs created in the last 2½ years. That is real. There are economists talking about that—good-paying jobs for people, jobs you can raise a family on; 3.6 percent unemployment rate and under 4 percent for the last 17 months, the lowest in 50 years.

It is not about just debating rhetoric back and forth. What we have is something that has never worked, which is trickle-down economics, but is used over and over and over again.

I shouldn't say it never worked. It never worked for the majority of people. It never grew the middle class. It worked for a few people. It worked for a few people really, really well, but it has not worked for the majority of Americans.

And now we are turning and saying: Let's focus on something that does—investing in America, bringing jobs home, tackling the big special interests that are causing all of our costs to go up, like the drug companies and oil companies, and bringing down the costs. And, by the way, the engine of our economy, the small businesses, let's make sure we are laser-focused on helping our small businesses.

We have tried Republicans' trickle-down economics. Surprise—it didn't work. It never worked. The wealthy keep buying bigger yachts, while everybody else is left treading water.

Bidenomics is different. It is investing in us—all of us. It is investing in our shared future. It is growing the middle class. And it is working.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Iowa.

NOMINATION OF TANYA J. BRADSHER

Mr. GRASSLEY. Mr. President, Congress and our Nation have no more solemn duty than the one we owe to our veterans. They have given their blood, their sweat, and their tears for our great country. They have fought on battlefields only to come home and face new battles, like difficulty accessing healthcare and challenges in transitioning to civilian life. A lot of them face homelessness, PTSD, and, of course, we hear it all the time, in our various congressional offices, about bureaucratic redtape at the Veterans' Administration.

I have long engaged in Veterans' Administration oversight. The VA has fought my efforts tooth and nail. I won't tire. Our veterans deserve nothing less than making sure the VA delivers in an efficient way, and particularly when we find things to be wrong there.

It is because of my oversight that I placed a hold on the nomination of Tanya Bradsher to be Deputy Secretary at the VA. I urge my colleagues to oppose the nomination as well. So I am here to tell you why.

Records in my possession, as well as statements from VA whistleblowers, show that Ms. Bradsher has failed to secure our veterans' private and sensitive protected health information,

personally identifiable information, and whistleblower information. Information also shows that she played a key role in the Veterans' Administration obstruction of my investigation of VA corruption.

My Democratic colleagues rushed Ms. Bradsher's nomination through the Senate Veterans' Affairs Committee without even investigating the allegations that I brought to the committee's attention. Let's start with one of these: the VA Integrated Enterprise Workflow Solution, otherwise known by the acronym VIEWS. Records show that this system exposes sensitive medical, health, and personal information of many veterans, as well as whistleblower names and information. At least 1,900 Veterans Affairs employees have access to this system but without the need to view this sensitive information.

Now, Ms. Bradsher has direct responsibility for that system as the VA's Chief of Staff, her present position. Emails and screenshots from VIEWS were supplied to me by whistleblowers. And most of my colleagues know I get a lot of information from whistleblowers. These emails show that these whistleblowers notified Ms. Bradsher's deputy last July—a whole year ago—about these issues. One of these whistleblowers told Ms. Bradsher's office she had been harassed and that she feared for her safety.

To this day, Ms. Bradsher hasn't followed up or instructed anyone else to follow up with these whistleblowers to make sure that their concerns were addressed. Despite questions for the record asked by Ranking Member MORAN and Senator BLACKBURN, Ms. Bradsher has offered no explanation whatsoever for why the specific personnel information brought to her office's attention was not secured as it should be secured. Instead, she pointed to a few feeble actions she says were taken to address future correspondence, such as training on private data.

This is unacceptable for a nominee who will be in charge of the VA's effort to modernize our veterans' sensitive electronic health records if she is confirmed. Ms. Bradsher was in the Chief of Staff position 16 months before whistleblowers notified her of the serious potential data breach and now for a year after. That kind of inaction and negligence is remarkable, even for the Veterans' Administration.

These flaws provide a back door enabling whistleblower retaliation and potential identity fraud, and they must be fixed now, not ignored. The matter was serious enough that the Office of Special Counsel last August found ''substantial likelihood of wrongdoing'' in potential violation of Federal privacy laws and ordered the Secretary to complete an investigation within 60 days. The Veterans' Administration still hasn't completed its investigation.

The Office of Special Counsel advised my office that the most serious allegation relating to data privacy has already been confirmed. The Veterans' Administration report to the Office of Special Counsel should be issued by August 1, just days away.

We would fail our Nation's veterans and neglect our constitutional duty to offer informed advice and consent on this nomination if we allowed the nomination to go forward before we have those answers. Also, how can any Member have an informed choice on this nominee if the Veterans' Affairs Committee didn't even bother to interview the people with relevant information on that matter?

Instead, rather than investigate, the majority actually circulated a misleading memo to the committee members that was written by the Veterans' Administration. It also slandered my office by claiming my staff had these allegations but intentionally hid them from the committee until the day before Ms. Bradsher's hearing.

This is not true. My staff provided the information to the committee right away. The VA ought to quickly get with the program.

That brings me to my second point of opposition to this nominee. Documents obtained under the Freedom of Information Act show that Ms. Bradsher played a key role in the VA's failed response to my investigation into VA corruption, which the VA has stonewalled for over 2 years.

We shouldn't continue to reward the Veterans' Administration and a nominee for their inattention to congressional oversight. We shouldn't confirm a nominee who represents business as usual and continued inattention to Congress and our veterans. I urge my colleagues to vote against this nomination until we get the answers to the American people, as they deserve those answers.

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. WELCH. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. DUCKWORTH). Without objection, it is so ordered.

MAIDEN SPEECH

Mr. WELCH. Madam President, I appreciate the opportunity to address the Senate today as Vermont's new Senator, and I hope to express how I will serve Vermont and our country, and I will outline the challenges we face as a governing body and as a nation.

Most importantly, I will state why I believe that the U.S. Senate can be an institution that renews the strength and vitality of the democracy that all of us—whomever we represent and whatever views we advocate—depend on for our mutual benefit.

But before I begin, I would like to say that my heart, today, is with the people of Vermont. They are grappling with the brutal flooding that hit us last week. And when I came to the floor last week after touring the damage in Vermont, I pledged that, along with Senator SANDERS and Congresswoman BALINT, we will do everything in our power to get the people of Vermont the resources that they need to build back from this. And I make that pledge again today, and I appreciate the leadership of our senior Senator, Senator SANDERS, in advocating for Vermont as we recover from this real crisis.

I also appreciate the offers of help from so many of my colleagues here in the Senate. One of the first Members who approached me was Senator KENNEDY from Louisiana, a State that has had to deal with more than its share of natural calamities.

Vermonters, Madam President, have always supported emergency aid when disaster struck others. Senator SANDERS and I are very grateful for so many assurances of support now that Vermonters face their own huge recovery challenge.

I recently heard our colleague, Senator ERIC SCHMITT, from Missouri, give his first speech. He spoke with real respect and reverence for the people of Missouri—hardworking, honest, family- and community-oriented, and very generous. And I felt Senator SCHMITT's deep connection to the people who sent him here. In that respect, Senator SCHMITT spoke for me. In fact, he spoke for all of us. And Senator SCHMITT and I—and all of us—share something else: The citizens that we represent, despite many differences on many issues, share common needs; all the things that families and communities need—affordable housing, safe schools, good healthcare, a secure environment for our kids, and good jobs where you can pay your monthly bills and have a little left at the end of the month. We share that in common.

So the question I have is this: If we share so much respect for the citizens who sent us here in our commitment to their shared aspiration, why can't we make more progress? Why are we so divided?

I believe there are two reasons: First, our democracy is more imperiled at this time than at any time since our Civil War; and, second, working middle-class Americans have been treading water economically for the past 40 years. Top-down economic policies having failed them. So the towns many of us grew up in with diverse economies and vibrant downtowns, farms, and factories that support our communities are vanishing. And many Americans, no matter how hard they work, still struggle to pay their bills.

Our challenge is strengthening our democracy and improving the living standards for everyday Americans. And we must do both, or we won't do either. Democracy depends on trust. It also depends on results.

If conditions stagnate for working Americans and they fall further behind, their trust in democracy will

begin to erode. And we need democracy to ensure that working families have a seat at the table when their aspirations are at stake.

As a young person, I was the beneficiary of the fruits of democracy. I grew up in the 1960s, one of six kids in an Irish-Catholic family in Springfield, MA. It was stable and secure.

When I was asked where I was from, I answered by giving the name of my Catholic parish, Holy Name, not the city of my birth. The sense of community was paramount. Helping a neighbor is what you did, reflectively and always.

When I was a boy, my mother did something that only later did I realize what profound impact it had on me. She taught me what small ''d'' democracy meant in practice. When I was in grammar school, I didn't know what abortion was. I did know my parents were churchgoing Catholics who were against it. It was also illegal in Massachusetts at that time. And a neighbor across the street actually went to jail for performing abortions. My mother made dinner every night for our family of eight. And every week, she sent me across the street with another hot dinner for our neighbors while their parent was away for a while.

When I think about what my mother did, I really hope I can follow her example. Instead of vilifying a neighbor with whom she disagreed on something that was really important to her, she made that family dinner and helped a neighbor and their family through a very difficult time.

Wouldn't democracy be stronger, wouldn't our communities be stronger, if we made dinner or gave a ride to the post office or helped out with childcare for someone who needed a hand, even if we disagreed with them?

Later, I attended Holy Cross College in Worcester, MA, like my father and my three brothers. In those college years, two great issues captured my attention: the word ''Vietnam'' and civil rights. And as I was finishing up my second year at Holy Cross, I learned of a community organizing project in the Lawndale neighborhood of the West Side of Chicago. It was led by a Jesuit seminarian that was affiliated with Martin Luther King, Jr.'s, Southern Christian Leadership Conference. I was really interested. And I hitchhiked 900 miles from Springfield, MA, to Chicago, IL. It really changed my life.

Lawndale was poor, ignored by city hall. We students went door-to-door asking about concerns. And when the lack of sanitation services emerged as an issue, we got together with neighborhood folks and we trucked trash from Lawndale to city hall. If they say you wouldn't pick up the trash in Lawndale, we would bring it to city hall. It caught the mayor's attention.

The next week there was a caravan of Chicago sanitation trucks throughout Lawndale. It worked. But our fight didn't stop at trash pickups. Just before I was to return to Holy Cross for my junior year, we discovered that unscrupulous folks in real estate were brutally exploiting Black families who were moving into Lawndale through a practice what we now know as redline. And they were doing it with the active help of the Federal Housing Authority and with the downtown big banks. I was really shocked at the injustice. And what was most shocking to me then, as an idealistic and eager young person who was accustomed to being treated fairly, was that this immense infliction of suffering on those families was legal. It was legal for banks and the FHA to deny mortgages on the basis of the color of that person's skin.

So I had to make a decision at that point. It was time for me to return to Holy Cross for my junior year. But that would come with a cost: abandoning the neighborhood folks whose hopes we had helped raise that they could get relief from these oppressive contracts. But that felt wrong. Or I could drop out of Holy Cross and continue my community organizing work. That came with a risk then: losing my student deferment and being drafted—as many of my classmates from high school had been—to go to Vietnam, a war that so many of us opposed. But it felt right to stay and continue my work. And I stayed in Chicago.

During that next year, we created a successful neighborhood-led organization called a Contract Buyers League. We exposed the rip-off contracts, demonstrated in front of the big downtown banks, the Federal Housing Authority. We picketed in the serene North Shore neighborhoods of the contract sellers, exposing what they had done in exposure that was long overdue. In short, we really raised hell—or as John Lewis would say, ''good trouble.''

But we succeeded in getting then-Mayor Daley to help us renegotiate these contracts and substitute them with legitimate mortgages that folks should have had in the first place. It made a big difference in the lives of many residents of Lawndale. And it certainly made a difference in my life.

I saw the power of a community coming together. And I saw how democracy was effective when people cooperate when they did work together. And in seeing how much of that injustice was actually illegal is when I made a lifelong commitment to two things: the law—if I became a lawyer I could use the legal system to help people hurt by bad laws; and politics—if I ran for the legislature, I could work to change laws to address injustice and create opportunity and strengthen communities.

In my years of service as a community organizer in Chicago, as a State senator in Vermont, as a Member of the House of Representatives, has taught me that democracy is more—it is more than an ideal we strive for. It is the tool that we use to make meaningful differences in the lives of people we love and in the lives of people we may never meet.

We must preserve our democracy so that hard-working Americans can finally gain economic security—the ability to pay those bills and have a little left over and the ability to build stable communities. And, hopefully, these communities can grow and thrive so that, one day, if their kids decide to stay or they leave and return, they can do so with a decent job and promising opportunities.

And as U.S. Senators, each of us has a unique and urgent opportunity to revitalize our democracy and improve prospects for our constituents.

Let me acknowledge candidly, we have, within this body and within this country, very substantial differences on many ideological issues. But we also have many areas of agreement. You know, the folks in KATIE BRITT's Alabama, in JOHN FETTERMAN's Pennsylvania, and the folks in my State of Vermont, they need and deserve the same things: affordable childcare so parents can work; they need affordable homes and apartments; they need the security that when they drop their child off at the bus stop or at school, that child is going to return home safely.

These are the building blocks of a strong community. These are among the issues that the U.S. Senate should debate. You know, it is said that the U.S. Senate is the greatest deliberative body. That is something we know that is very much now in dispute. But we do have the power to make it so. And in doing so, we can help restore democracy. We can debate those issues and others on the Senate floor.

You know, should social media companies enjoy legal immunity for anything their algorithms promote? Should we work for a sustainable budget but talk about spending and revenues? Is it acceptable that we have the most expensive healthcare system in the world that leaves so many people behind? How do we act immediately and effectively to stop climate change from burning up the planet?

The Senate can deliver, and it can and should debate. But deliberation should be in service of making a good decision. It should be in service of achieving an outcome. It should not be a device by which delay is endless and resolution nonexistent.

Every Senator I know is genuinely honored to be serving in this body. Every Senator takes her and his responsibility very seriously. But every Senator I know realizes that the honor of service is hollow unless we get good things done. That is our job.

And as a Senator, I will use the valuable lessons of democracy I have learned: from my parents, the importance of helping a neighbor you may disagree with; from my time in Chicago, the power of democracy in action; and from Vermont, struggling today with the onslaught of the flood, the strength of community that shows us, that even on the toughest of days, the ability to achieve when we work together.

We in this country and in this Senate may face significant challenges. We

have opportunities to succeed if we face those challenges together.

(Applause, Senators rising.)

I yield the floor.

NOMINATION OF RACHEL BLOOMEKATZ

Mr. DURBIN. Madam President, today, the Senate will vote to confirm Rachel Bloomekatz to an Ohio seat on the Sixth Circuit Court of Appeals.

Ms. Bloomekatz is a longtime appellate litigator who has represented a diverse range of clients, across the political and ideological spectrum, throughout her career. She received her bachelor's degree from Harvard College and her law degree from the University of California, Los Angeles School of Law, before clerking for Judge Guido Calabresi on the U.S. Court of Appeals for the Second Circuit.

Following this role, Ms. Bloomekatz clerked for Chief Justice Margaret H. Marshall of the Massachusetts Supreme Judicial Court and spent 1 year serving as an assistant attorney general in the Massachusetts Attorney General's office. She then clerked for Justice Breyer on the U.S. Supreme Court.

She later entered private practice, where she focused on protecting voting rights and holding government actors accountable. During this time, she represented a wide variety of clients on appellate matters, including, in one case, representing one of our Republican colleagues in the Senate.

Today, Ms. Bloomekatz works as a solo practitioner. And throughout her legal career, she has amassed significant experience briefing and arguing dozens of Federal and State appeals. In each matter, irrespective of her client, she has proven herself to be an effective advocate and has regularly won praise from opposing counsel.

The American Bar Association has unanimously rated Ms. Bloomekatz ''well qualified,'' and she has the strong support of Senator BROWN.

I urge my colleagues to join me in voting for her confirmation.

The PRESIDING OFFICER (Mr. MARKEY). The Senator from Ohio.

Mr. BROWN. Mr. President, it is my honor today to rise in support of Rachel Bloomekatz to serve as a judge on the U.S. Sixth Circuit Court of Appeals. People often think of the courts, especially the circuit courts—this comes from a nonlawyer, keep in mind—as something like an ivory tower, detached from everyday people's lives.

We know the decisions judges make affect Ohio's workplaces and affect Ohioans in their paychecks and in their own personal freedom about how to live their lives. That is why it matters so much whom we promote to these important jobs.

We want our brightest talent. We need our brightest talent on the bench. We need thoughtful judges—thoughtful judges who adhere to the highest ethical standards, who follow the letter and the spirit of the law. We need judges who are compassionate, capable of recognizing and understanding the many different perspectives of the people who will come into their courtrooms. And we need judges with wisdom and with a love for our country's core values.

Rachel Bloomekatz will be all of those things. She will protect the rights of all Americans, not just the powerful and the privileged—something, unfortunately, we see far too much of in the Nation's highest courts.

Ms. Bloomekatz brings with her not only impressive legal credentials but the empathy, the intellect, and the deep commitment to justice required to serve the people of the Sixth Circuit.

Rachel had an impressive academic career, to be sure. She clerked for highly respected judges on the State supreme court, in the Federal district, and in circuit levels, and she clerked on the U.S. Supreme Court. Rachel has a robust and successful litigation practice where she has advanced the cause of justice.

Throughout her career, Ms. Bloomekatz sat on both sides of the table. She represented people across the ideological spectrum. She has represented companies and consumers. She has argued on behalf of the government and for the rights of private citizens.

She has been recognized for the breadth of her practice, which includes work on both civil and criminal matters, both types of cases she will see as a judge on the Sixth Circuit.

She has worked with women's groups, and she has worked with veterans groups, seeking justice for women harmed while giving birth on Active Duty at military hospitals. She helped to represent our colleague Senator MARCO RUBIO with an amicus brief, arguing in support of his legislation providing protections for victims of human trafficking.

Don't just take it from me. Listen to the chorus of people from all across the ideological and political spectrum who enthusiastically support Rachel Bloomekatz's nomination. Twenty fellow Supreme Court clerks, including several Scalia clerks and Kavanaugh clerks, wrote to the Judiciary Committee saying:

> We hold diverse opinions on many areas of law. We are united in our view, though, that Rachel is an extraordinary nominee who will uphold the best traditions and defining attributes of the Federal courts, the rule of law, equal justice, fidelity, and the Constitution.

They are joined by 25 Ohio appellate lawyers—again, from across the political and ideological spectrum—who also wrote in support. They said:

> Some of us will no doubt disagree with some of the opinions Rachel will author or join on in the Sixth Circuit. We are united, though, in urging the Judiciary Committee and the United States Senate to confirm her to the Sixth Circuit.

The letter goes on:

> Rachel has the right temperament to serve as an Article III judge, and her intelligence, diligence, and respect for the rule of law will make her an excellent addition to the Sixth Circuit.

Perhaps Ms. Bloomekatz's most powerful endorsement is from the judges already on the Sixth Circuit who have appointed her to represent clients in serious cases with fundamental rights at stake.

Ms. Bloomekatz is supported by Jewish leaders who represent the breadth and diversity of Ohio's Jewish community—Eric Fingerhut, former Member of the House, the president and CEO of Jewish Federations of North America; Howie Beigelman, the executive director of Ohio Jewish Communities, who recently brought a group of his colleagues to Washington, last week, to talk to Members of the Ohio delegation in both parties about the evil scourge of anti-Semitism.

Rabbi Kanter, Rachel's rabbi when she was a child in Nashville, said:

> Rachel's deep values, informed by her Biblical faith, have led to her compassion for people and her commitment to justice and to the law. I can think of no better endorsement than that. I can think of no better candidate to serve the States of the Sixth Circuit—my State of Ohio, Kentucky, Michigan, and Tennessee. There is no better candidate than Rachel Bloomekatz.

I urge my colleagues to join me in supporting Rachel Bloomekatz's confirmation.

VOTE ON BLOOMEKATZ NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the Bloomekatz nomination?

Mr. BROWN. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Oklahoma (Mr. MULLIN) and the Senator from South Carolina (Mr. SCOTT).

The result was announced—yeas 50, nays 48, as follows:

[Rollcall Vote No. 187 Ex.]

YEAS—50

Baldwin	Heinrich	Rosen
Bennet	Hickenlooper	Sanders
Blumenthal	Hirono	Schatz
Booker	Kaine	Schumer
Brown	Kelly	Shaheen
Cantwell	King	Sinema
Cardin	Klobuchar	Smith
Carper	Luján	Stabenow
Casey	Markey	Tester
Coons	Menendez	Van Hollen
Cortez Masto	Merkley	Warner
Duckworth	Murphy	Warnock
Durbin	Murray	Warren
Feinstein	Ossoff	Welch
Fetterman	Padilla	Whitehouse
Gillibrand	Peters	Wyden
Hassan	Reed	

NAYS—48

Barrasso	Budd	Cotton
Blackburn	Capito	Cramer
Boozman	Cassidy	Crapo
Braun	Collins	Cruz
Britt	Cornyn	Daines

Ernst	Lee	Rounds
Fischer	Lummis	Rubio
Graham	Manchin	Schmitt
Grassley	Marshall	Scott (FL)
Hagerty	McConnell	Sullivan
Hawley	Moran	Thune
Hoeven	Murkowski	Tillis
Hyde-Smith	Paul	Tuberville
Johnson	Ricketts	Vance
Kennedy	Risch	Wicker
Lankford	Romney	Young

NOT VOTING—2

Mullin	Scott (SC)

The nomination was confirmed.

The PRESIDING OFFICER (Mr. WARNOCK). Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to Calendar No. 119, S. 2226, a bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Charles E. Schumer, Jack Reed, Patty Murray, Gary C. Peters, Richard J. Durbin, Jeanne Shaheen, Margaret Wood Hassan, Jon Ossoff, Robert P. Casey, Jr., Chris Van Hollen, Sheldon Whitehouse, Christopher A. Coons, Mark Kelly, Debbie Stabenow, Brian Schatz, Mark R. Warner, Catherine Cortez Masto, Alex Padilla.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the motion to proceed to S. 2226, a bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Maryland (Mr. CARDIN) is necessarily absent.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Oklahoma (Mr. MULLIN) and the Senator from South Carolina (Mr. SCOTT).

The yeas and nays resulted—yeas 72, nays 25, as follows:

[Rollcall Vote No. 188 Ex.]

YEAS—72

Baldwin	Fischer	Padilla
Barrasso	Gillibrand	Peters
Bennet	Graham	Reed
Blumenthal	Grassley	Ricketts
Boozman	Hagerty	Romney
Braun	Hassan	Rosen
Britt	Heinrich	Rounds
Brown	Hickenlooper	Schatz
Cantwell	Hirono	Schumer
Capito	Hoeven	Shaheen
Carper	Hyde-Smith	Sinema
Casey	Kaine	Smith
Cassidy	Kelly	Stabenow
Coons	King	Tester
Cortez Masto	Klobuchar	Thune
Cotton	Luján	Tillis
Cramer	Manchin	Van Hollen
Cruz	McConnell	Warner
Daines	Menendez	Warnock
Duckworth	Merkley	Welch
Durbin	Murkowski	Whitehouse
Ernst	Murphy	Wicker
Feinstein	Murray	Wyden
Fetterman	Ossoff	Young

NAYS—25

Blackburn	Lankford	Sanders
Booker	Lee	Schmitt
Budd	Lummis	Scott (FL)
Collins	Markey	Sullivan
Cornyn	Marshall	Tuberville
Crapo	Moran	Vance
Hawley	Paul	Warren
Johnson	Risch	
Kennedy	Rubio	

NOT VOTING—3

Cardin	Mullin	Scott (SC)

The PRESIDING OFFICER (Mr. KELLY). On this vote, the yeas are 72, the nays are 25.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

LEGISLATIVE SESSION

The PRESIDING OFFICER. Cloture having been invoked, the Senate will now resume legislative session.

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024—MOTION TO PROCEED

The PRESIDING OFFICER. The clerk will report the motion.

The senior assistant legislative clerk read as follows:

Motion to proceed to S. 2226, a bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

The PRESIDING OFFICER. The Senator from Oregon.

UNITED STATES-TAIWAN INITIATIVE ON 21ST-CENTURY TRADE FIRST AGREEMENT IMPLEMENTATION ACT

Mr. WYDEN. Mr. President, in a moment, I am going to put forward a unanimous consent request to pass an important bill exercising Congress's constitutional authority and approving the first modern agreement regulating trade between the United States and Taiwan.

The bill was cosponsored by all 48 Democrats and Republicans on the Ways and Means Committee and was ultimately passed in the House of Representatives by a voice vote. It was originally put forward by Ways and Means Committee Chair SMITH and Ranking Member NEAL, as well as Senator CRAPO and myself as chair and ranking member of the Finance Committee.

Before I make this unanimous consent request on the bipartisan, bicameral bill called the United States-Taiwan Initiative on 21st-Century Trade First Agreement Implementation Act, I want to highlight, for just a couple of minutes, why this bill is so important.

First, the reason behind this proposal, first and foremost, is that the U.S. Congress fully supports deepening our trade relationship with Taiwan and wants to ensure that the recent agreement covering trade facilitation, anticorruption, and small business is legally sound and durable.

Not only is Taiwan a critical market for U.S. exporters, it is a democracy that shares our values and has strong ties with Oregonians and Americans across the land.

Next, this body wants to be clear that trade agreements are within the constitutional authority of the Congress. One of the ways the Senate demonstrates that is by approving trade agreements like this one.

Finally, the legislation requires greater transparency and consultation, as well as public review for future Taiwan trade agreements. Our workers, our farmers, and our businesses deserve the opportunity to read a trade agreement and understand how it affects them before it is signed by a government official and declared the law of the land. Trade agreements that affect millions of Americans can't be done in the dark. Congress and the American people need to know what is in these agreements and how they benefit American interests.

I look forward to working with the USTR, our point person for trade, to negotiate the bigger-ticket items with Taiwan—issues like digital trade, labor, environment, and agriculture, as outlined in the negotiating mandate. Future agreements need to bulldoze barriers to trade for Oregon exporters and American businesses everywhere, including by cutting red tape like labeling rules and making sure that Taiwan's technical standards don't make it tough for exporters to sell their goods. Involving Congress and the public is going to help the administration identify issues and hold them accountable for breaking down barriers.

This is a proposal that brings both sides together. The Taiwan trade agreement approval bill, as I indicated, passed unanimously in the other body. This trade agreement legislation is a can't-miss opportunity for the U.S. Senate to support Taiwan, clarify Congress's role in trade, and call for more transparency and consultation in future agreements.

Moreover, it needs to be done now. Taiwan is expecting to pass their implementing bill in the next few weeks. It is imperative that we move our bill before the administration moves forward with what is called ''entry into force'' to ensure that the United States gets what it has bargained for.

Let me close by saying that we especially look forward in the future to working with the Senate Foreign Relations Committee. The chairman of the committee, Senator MENENDEZ, and I have been talking about ways to recognize the intersection between foreign relations and global economics. There are a whole host of issues—whether it is supply chains, digital trade, the environment, and the like—where we have an opportunity to really recognize that, in this century, what we have to do is break down barriers. We have to find a way to have a unifying strategy for this country, and that means coming together around foreign relations and global economics. That is what Chairman MENENDEZ and I talked about this evening and in the past, and I look forward to working with all of our colleagues on that.

So, Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H.R. 4004, which was received from the House and is at the desk.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

A bill (H.R. 4004) to approve and implement the Agreement between the American Institute in Taiwan and the Taipei Economic and Cultural Representative Office in the United States regarding Trade between the United States of America and Taiwan, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. WYDEN. Mr. President, I further ask unanimous consent that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 4004) was ordered to a third reading, was read the third time, and passed.

Mr. WYDEN. I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

REMEMBERING LIEUTENANT COLONEL VIRGIL IVAN ''GUS'' GRISSOM

Mr. YOUNG. Mr. President, Indiana was settled by men and women who left the safety of their homes, they headed westward, and they crossed the Appalachian Mountains into the wilderness and the unknown. They were willing to endure hardship, to risk danger in search of a better tomorrow, to clear a path for others to follow. They were pioneers. But, long after our State was settled and Indiana's population drifted up from the banks of the Ohio River toward Lake Michigan, Hoosiers never stopped looking at the frontier. Only, they cast their gaze away from the west and toward the sky.

In the fall of 1959, 15,000 people gathered in the southern Indiana town of Mitchell—population 3,500 at the time. Some lined the streets. Others sat on rooftops or watched through windows. They hadn't come to Mitchell's annual Persimmon Festival for the beauty pageant nor did they come for the pudding contest or the classic car run. No. They were there to see the convertible at the head of the festival's parade as it drove down Mitchell's Main Street. Seated inside that convertible was one of their own, a local boy. They knew him from the house on Baker Street. Maybe they knew him from Mitchell High or from the First Baptist Church. History knows him as the second American to travel to space and the first man to go there twice.

So I am proud to have the privilege to deliver these remarks in front of the Presiding Officer, who has also been to space. His name was Lt. Col. Virgil Ivan ''Gus'' Grissom. There he is—a great Hoosier, a great American.

I ask all who may be watching to study his portrait—that flat-top haircut, the serious expression. That was Gus Grissom. They should look at old photos of the White House press events. It is uncanny. He is the odd astronaut out, the one who looks like he would rather not be there. You see, the images don't lie. He was taciturn, tough-minded, and hard-driving.

NASA's head physician described him as ''confident but not conceited.'' He was a ''stern competitor but a good teammate, a frank but carefree speaker.''

He had little use for publicity or even the press. He only went to White House events because Betty, his wife, and their boys wanted to. Gus Grissom wasn't a celebrity; he was a pilot and an engineer. He was more comfortable racing fellow Mercury astronaut Alan Shepard in his souped-up Corvette around Cape Kennedy. He was a regular guy. But the race that Gus Grissom truly cared about was the one to the stars. He was determined—determined—to beat Russia there.

''I think we ought to declare an out-and-out race with the Russians to put the first man in space,'' Grissom once stated.

You see, this Hoosier didn't mince words. He saw the space race as an important global competition between the United States and the Soviet Union, between freedom and communism. And the prize was more than just a flag that was planted on the Moon. It meant prestige and pride, yes, but also technological superiority and the national security and economic benefits that went with it. America won that race in part because of Gus Grissom, and our Nation reaped incredible benefits because of his sacrifice.

On July 21, 1961—almost 2 years after he was at the center of the Persimmon Festival in Mitchell—Grissom splashed down in the Atlantic Ocean, 260 nautical miles south of Cape Canaveral. He had just ridden the Mercury-Redstone 4 above the Earth and back down. Appropriately, Grissom nicknamed the ship Liberty Bell 7—a tribute, of course, to the bell that rang after the reading of the Declaration of Independence in 1776.

Regardless of what you have read in novels or seen in movies, Grissom's flight was flawless. The vessel sank after its hatch blew—the result of a poor design and electrostatic discharge, not astronaut error.

Four years later, on March 23, 1965, friends and former classmates gathered at the First Baptist Church back in Mitchell. Nearly every business installed a television so their customers and employees could watch Grissom return to space. This was a different journey, though. The Mercury ships boosted astronauts into space and retro-rocketed them back to Earth. This new craft, Gemini, gave them a degree of control and added maneuverability—technological leaps that anticipated manned flights to the Moon.

Grissom, along with pilot John Young, did not only skillfully guide Gemini 3 as it orbited the Earth three times, he virtually designed the ship. Stung by the ''hatch crap'' on Liberty Bell 7, as he called it, Grissom securitized and directed the assembly of the new spacecraft. Their construction so closely followed his vision that other astronauts nicknamed the Gemini the ''Gusmobile.'' The cockpit and seat were even configured to his 5'7'' frame.

Grissom was next given command of the Apollo program's first mission, with its goal of realizing President Kennedy's charge of landing a man on the Moon before the end of the 1960s. When the Apollo Lunar Module landed at Tranquility Base in 1969, Grissom was not aboard. He had perished 2 years prior in a launch pad fire aboard Apollo 1 during testing. The tragedy, though, inspired NASA to improve the construction and, ultimately, the safety of the Apollo crafts, leading to the Moon landing.

Grissom said:

The conquest of space is worth the risk of human life.

The race to the stars ended in America's favor because he gave his.

Now, Grissom may not have been aboard Apollo 11 when it reached the Moon, but it never would have gotten there without him.

At the onset of that journey and the most daunting journeys Americans have embarked on, there has been skepticism, and there have been questions of purpose and value. It never stopped the pioneers, the doers and dreamers, and Americans like Gus Grissom from making the voyage and making our country better.

Back in the fall of 1959, during the Persimmon Festival, Mayor Roy Ira handed Grissom a plaque and gave him a simple tribute:

Mitchell is proud of Grissom. I urge our youth to take note of Virgil's example.

Six decades later, we are still proud of him, and we should all still follow his example and always press on toward the next frontier, wherever it may be.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. KELLY. I ask unanimous consent that the order for the quorum call be rescinded.

RECESS SUBJECT TO THE CALL OF THE CHAIR

The PRESIDING OFFICER. In my capacity as a Senator from Arizona, I ask consent that the Senate stand in recess subject to the call of the Chair.

There being no objection, the Senate, at 8:47 p.m., recessed subject to the call of the Chair and reassembled at 8:49 p.m., when called to order by the Presiding Officer (Mr. KELLY).

The PRESIDING OFFICER (Mr. BENNET). The majority leader.

MORNING BUSINESS

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING WILLIAM BRANDT, JR.

Mr. DURBIN. Mr. President, 2 months ago I had the privilege of delivering the commencement address at Loyola University Chicago Stritch School of Medicine in Chicago.

It was an inspiring celebration. Among the new doctors receiving their medical degrees that day were six young people who had been brought to this country as children and educated in American schools, but had never been able to become citizens.

It used to be that such young people had no real future in America. In 2012, however, with bipartisan encouragement from Senator Dick Lugar and myself, President Obama created the DACA program, which allows young people who are undocumented and meet rigorous conditions can remain in America and work legally.

That same year, Loyola University Chicago Stritch School of Medicine became the first medical school in America to openly welcome undocumented DACA recipients. It was a courageous decision. But there was a big obstacle: DACA recipients are ineligible for Federal tuition assistance, and without such financial aid, most Dreamers cannot afford college, much less medical school.

In stepped a smart, visionary public servant with a creative solution. His name was William Brandt, Jr. As chair of the Illinois Finance Authority, he created a program to provide interest-free loans to DACA students at Loyola University Chicago Stritch School of Medicine. In exchange, these Dreamer doctors, after they graduate, work in medically underserved areas in Illinois. In a life filled with many firsts and financial successes, Bill Brandt considered Illinois' loan program for DACA medical students his proudest achievement. It is really a model for the Nation. Thirty-eight DACA recipients have now graduated from Loyola University Chicago Stritch School of Medicine.

As someone who has worked for more than 20 years to pass the Dream Act, I am grateful to Bill for having such faith in Dreamers. And I am deeply saddened by his recent death at the too-young age of 73. Bill Brandt was born in Chicago and his talent for business was obvious early on. In college, he worked as a door-to-door salesman for Kirby Vacuum Cleaners and once won the salesman-of-the-year award from the local distributor. His introductory pitch to customers was: ''Brandt is the name; dirt sucking's the game.'' Who could say no to that?

In 1976, after earning a master's degree in sociology from the University of Chicago, he founded his own company, Development Specialists, Inc., and became a pioneer in the corporate restructuring and bankruptcy consulting industry.

There are people—Gordon Gekko types—who specialize in buying distressed companies only to strip them of their assets and then declare bankruptcy and fire all the employees. Bill Brandt was the opposite of that. To Bill, success meant helping struggling companies turn around. He was proud of all the companies he helped regain their financial footing and of the thousands of jobs he helped save. He believed that good public policies could make the economy stronger and fairer for everyone. When Congress passed a new Federal bankruptcy law in 1994, he testified about ways to make the new law fairer, more streamlined, and accessible to everyone.

To Bill, social justice wasn't just a theory; it was a calling. As a high school senior, he started to do community outreach at the Benton House, a social services organization in Chicago's Bridgeport neighborhood. He believed that government could help make life better for people and that everyone has a responsibility to hold government accountable. He was a trusted adviser and friend to many public officials, including former Illinois Governor Pat Quinn and President Bill Clinton. Bill also believed that everyone has a responsibility to leave the world a better place than they found it. He certainly lived up to that responsibility, and he will be missed.

Loretta and I offer our condolences to Bill's family, especially Patrice, his wife of 43 years; their children Katherine, Joan, John, and William; their grandchildren; to Bill's many friends; and to the countless others, like those Dreamer doctors at Loyola University Chicago, who will help keep his legacy alive for years to come.

TRIBUTE TO JODY SINGER

Mrs. BRITT. Mr. President, I wish to recognize and congratulate Jody Singer on her retirement as the Director of the Marshall Space Flight Center and to express my gratitude for her countless contributions to our Nation and to the State of Alabama.

Singer, a native of Hartselle, AL, earned a bachelor's degree in industrial engineering from the University of Alabama in 1983. She has completed two NASA fellowships, one at Pennsylvania State University in State College and another at the Simmons College Graduate School of Management in Boston.

Singer began her trailblazing 38-year National Aeronautics and Space Administration career in 1985 through the professional intern program in the mission planning and development office. In 1986, she joined the Space Shuttle Program Office, where she was an engineer in the Space Shuttle Maine engine office. In this role, she was able to aid in Return to Flight activities after the Challenger accident.

From 1990 to 2002, Singer served in various roles in the External Tank project office. These roles included business manager, technical assistant, and deputy manager. From 2002 to 2007, Singer served as the first female project manager for the Reusable Solid Rocket Booster Project, leading the team during the Columbia Return to Flight activities. Additionally, Singer served as the deputy manager in the Space Shuttle Propulsion Office from 2008 until the shuttle's successful retirement in 2011.

From 2010 to 2012, she held deputy positions for three concurrent major programs: the Space Shuttle, Ares, and the start-up of the Space Launch System. As deputy for the Shuttle Propulsion Office, she guided successful flyout and retirement of the space shuttle in 2011 as the deputy of the Ares Project Office.

From 2013 to 2016, Singer served as manager of the Flight Programs and Partnerships Office at Marshall, where she held primary responsibility for the center's work with human advanced exploration projects, science flight mission programs, technology demonstration missions, commercial crew, and International Space Station life support systems, research facilities and payload operations. Singer also was responsible for identifying opportunities to develop and maintain partnerships with government agencies, academia, and international and commercial partners to help achieve NASA's vision.

Additionally, Singer was integral to the startup of the Space Launch System, SLS. As the deputy program manager of SLS at Marshall, she helped

oversee nearly 3,000 civil servants and contractors involved in developing and testing of the vehicle, the most powerful rocket ever built. In November 2022, as Marshall's center director, Singer led the team through the successful launch of SLS. The historic Artemis I mission restored America's capability to send humans to the Moon, a feat we have not undertaken since 1972.

Singer was appointed in September 2018 as the 14th Director of Marshall Space Flight Center and first female Director. She manages one of NASA's largest field installations, with nearly 7,000 on- and near-site civil service and contractor employees. Prior to being named to the position, Singer served as Marshall's Acting Director starting in July 2018 and was Deputy Director from February 2016 to July 2018, assisting the Director with the daily management of the Center's workforce and operations.

Her awards and commendations throughout her service to NASA are a testament to her dedication to this Nation. She has received multiple NASA Outstanding Leadership Medals and two Presidential Rank of Meritorious Executive Awards, the highest honor for career Federal employees. She received the Space Flight Awareness Leadership Award in 2005 for inspiring the Shuttle Propulsion Office to strive for excellence and continuous improvement; and the NASA Exceptional Service Medal in 1993 while managing the External Tank Project's business office. For her unwavering commitment to excellence and achievement in support of the human space program, she received the Silver Snoopy Award from the NASA astronaut corps and was named a Space Flight Awareness Launch Honoree.

Singer has also received numerous external awards and recognitions. This includes the Rotary National Award for Space Achievement, Stellar Award; Alabama Engineering Hall of Fame; Distinguished Fellow by the University of Alabama College of Engineering; Federal Asian Pacific American Council—FAPAC—Outstanding SES Leadership Award; Women in Leadership, and Morgan County Hall of Fame; Gardner Award (2020); 2022 AIAA Associate Fellow and 2022 Engineer of the Year. Singer was named in Alabama Magazine's ''Top 40 Over 40!'' and Business Alabama's ''20 Who Make Alabama Business Tick.'' She serves as a board member for Leadership Alabama and is a member of the University of Alabama President's Cabinet.

On behalf of the people of Alabama and our Nation, I offer Director Singer my heartfelt thanks and a long and happy retirement with her husband Chris, their three children, and five grandchildren. Her career is defined by remarkable innovation and unwavering devotion to the National Aeronautics and Space Administration. We owe her a debt of gratitude for her exemplary service to her community, the Marshall Space Flight Center, and her country.

TRIBUTE TO WILL AIKEN

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Will for his hard work as an intern in the Energy and Natural Resources Committee. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Will is a native of Virginia. He attends the University of Florida, where he studies business administration. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Will for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO BROOKS ANDERSON

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Brooks for his hard work as an intern in the Senate Republican Conference. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Brooks is a native of New York. He attends Harvard University, where he studies government. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Brooks for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO BRITTANY BARTON

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Brittany for her hard work as an intern in the Senate Republican Conference. I recognize her efforts and contributions to my office as well as to the State of Wyoming.

Brittany is a native of Evanston. She attends Brigham Young University, where she studies business. She has demonstrated a strong work ethic, which has made her an invaluable asset to our office. The quality of her work is reflected in her great efforts over the last several months.

I want to thank Brittany for the dedication she has shown while working for me and my staff. It is a pleasure to have her as part of our team. I know she will have continued success with all of her future endeavors. I wish her all my best on her journey.

TRIBUTE TO NOAH BELL

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Noah for his hard work as an intern in the Energy and Natural Resources Committee. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Noah is a native of Cheyenne. He recently graduated from the University of Wyoming, where he obtained a bachelor's degree in political science. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Noah for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO GREG FORNSTROM

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Greg for his hard work as an intern in the Senate Republican Conference. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Greg is a native of Pine Bluffs. He attends the University of Wyoming, where he studies political science. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Greg for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO McKENNA KAIL

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to McKenna for her hard work as an intern in my Washington, DC, office. I recognize her efforts and contributions to my office as well as to the State of Wyoming.

McKenna is a native of Lander. She attends the University of Wyoming, where she studies marketing. She has demonstrated a strong work ethic, which has made her an invaluable asset to our office. The quality of her work is reflected in her great efforts over the last several months.

I want to thank McKenna for the dedication she has shown while working for me and my staff. It is a pleasure to have her as part of our team. I know she will have continued success with all of her future endeavors. I wish her all my best on her journey.

TRIBUTE TO JACKSON MARCOTTE

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Jackson for his hard work as an intern in the Energy and Natural Resources Committee. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Jackson is a native of Illinois. He attends the University of Wyoming College of Law. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Jackson for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO ROBERT MORTON

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Robert for his hard work as an intern in my Washington, DC, office. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Robert is a native of Big Horn. He attends Sewanee University, where he studies psychology. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Robert for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO HENRY PEACOCK

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Henry for his hard work as an intern in the Energy and Natural Resources Committee. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Henry is a native of Virginia. He attends Trinity School at Meadowview. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Henry for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

TRIBUTE TO ETHAN WALTON

Mr. BARRASSO. Mr. President, I would like to take the opportunity to express my appreciation to Ethan for his hard work as an intern in my Washington, DC, office. I recognize his efforts and contributions to my office as well as to the State of Wyoming.

Ethan is a native of Cody. He attends Brigham Young University, where he studies American studies. He has demonstrated a strong work ethic, which has made him an invaluable asset to our office. The quality of his work is reflected in his great efforts over the last several months.

I want to thank Ethan for the dedication he has shown while working for me and my staff. It is a pleasure to have him as part of our team. I know he will have continued success with all of his future endeavors. I wish him all my best on his journey.

ADDITIONAL STATEMENTS

RECOGNIZING BLOOM FLORAL

• Ms. ERNST. Mr. President, as ranking member of the Senate Committee on Small Business and Entrepreneurship, each week I recognize an outstanding Iowa small business that exemplifies the American entrepreneurial spirit. This week, it is my privilege to recognize Bloom Floral of Algona, IA, as the Senate Small Business of the Week.

Driven by her passion for designing floral arrangements, Kelsey Thompson founded Bloom Floral in 2011 to serve customers in Algona and the surrounding communities in North Iowa. Bloom Floral is a full-service floral and gift shop that offers a one-stop shop for fresh flowers. In addition, the shop offers permanent botanicals, live plants, and home decor. Bloom Floral specializes in weddings and events with a passion for creating floral designs personalized for each customer. Kelsey and her staff travel all over north Iowa to provide wedding flowers, event setup, and rental items for wedding customers. Bloom Floral's design team has over 60 years of combined experience and is dedicated to providing the freshest flowers and top-level community service.

In addition to teaching hands-on courses and mentoring other florists, Kelsey runs ''Petals & Profits,'' an online resource and content membership to help florists with business and marketing. Additionally, she produces a podcast called ''The Retail Florist'' that promotes her business and floral expertise. Kelsey is a nationally accredited designer and member of the Iowa Florists' Association. In addition to running Bloom Floral, Kelsey also serves as the president of the Algona Chamber of Commerce and sits on the Algona Retail Revolving Loan Fund committee. In September 2022, Kelsey won the first place award in the Sylvia Cup Design Competition at the annual Society of American Florists convention.

Bloom Floral's continual commitment to supplying floral arrangements in Algona is outstanding. I want to congratulate Kelsey Thompson and the entire team at Bloom Floral for the passion and care they put into each and every arrangement, wedding, and workshop. I look forward to seeing their continued growth and success in Iowa.•

RECOGNIZING THE ALASKA RAILROAD CORPORATION'S CENTENNIAL

• Ms. MURKOWSKI. Mr. President, this past weekend, on July 15, 2023, Alaskans marked a milestone as we recognized a century of operations for the Alaska Railroad Corporation.

The Railroad, as we call it, along with all of its builders, operators, and leaders, has been a critical catalyst for our still-young State's growth and development. For 100 years now, the Railroad has transported passengers between Alaska's largest cities, bolstered tourism and commerce across hundreds of miles of terrain, helped build some of our State's most critical infrastructure, and supported our Nation's wartime efforts.

It took decades for the Alaska Railroad Corporation to become the entity we recognize today. The Alaska Central Railway, later renamed the Alaska Railroad, laid its first track in Alaska in 1903. It started in Seward and extended 50 miles north. The Alaska Central Railway reorganized in 1910 as the Alaska Northern Railway Co., later extending the railroad to Kern Creek, 71 miles from Seward.

In 1914, the U.S. Congress, understanding the intrinsic value in the Railroad's expansion, funded the construction and operation of a railroad from Seward to Fairbanks. On July 15, 1923, President Warren G. Harding drove a golden spike to unite the track at Nenana, marking the completion of the Alaska Railroad as we know it today. From 1940 to 1943, the Railroad was integral to our Nation's efforts in World War II, hauling military and civilian supplies across the State.

In 1962, the Railroad established its first car-barge service in Whittier, followed by train-ship service in June 1964, which revolutionized the State by enabling rail cars from the lower 48 to be shipped to any point along its route. In the early to mid-1970s, the Railroad supported construction of the Trans-Alaska Pipeline System by shipping and storing pipe and construction materials between Valdez, Seward, and Fairbanks, where it was then trucked to the North Slope. In 1981, the Alaska Railroad entered into agreements with Fairbanks and Anchorage school district career centers to create a tour-guide program to train high school students to serve as hosts onboard summer passenger trains. In 1983, President Ronald Reagan signed into law the authorization of the transfer of the Alaska Railroad to the State of Alaska. In 1985, the railroad became the property of the State of Alaska, and the Alaska

Railroad Corporation, or ARRC, was born.

Today, the Alaska Railroad Corporation operates regularly scheduled public transportation service that connects roughly half a million Alaskans and visitors to communities from Seward to Fairbanks each year. Passengers can access remote regions of our State, including areas off the road system. Some of the most popular Alaskan treasures that local residents and tourists alike can visit include the Chugach National Forest, Kenai Fjords National Park, and Denali National Park and Preserve.

The Railroad is also a vital part of our supply chains, linking the Alaskan interior to Seward, Whittier, and the Port of Alaska in Anchorage. The Railroad hauled 3.7 million tons of freight last year, including natural resources, industrial goods, and more.

As we reach this 100th anniversary, I join Alaskans in recognizing that our Railroad is a lot more than locomotives and rails. Many talented men and women have dedicated their lives to its safe operation and to carrying passengers and freight across wide expanses, rivers, and mountains, showcasing our State and contributing to our economy.

I join the rest of the Alaska delegation in congratulating the Alaska Railroad Corporation on 100 years of operation and look forward to a new century of investment, expansion, and service ahead to meet the continued needs of our State and Nation.●

TRIBUTE TO SARA HOFER

● Mr. ROUNDS. Mr. President, today I recognize Sara Hofer, an intern in my Washington, DC, office, for all the hard work she has done on behalf of my office and the State of South Dakota. Ms. Hofer is a graduate of Bridgewater-Emery High School in Emery, SD. Currently, she is attending Dordt University, where she studies biology and political science. Ms. Hofer is a dedicated and diligent individual who has been devoted to getting the most out of her internship experience. Ms. Hofer has been a true asset to my office. I extend my sincere thanks and appreciation to Ms. Hofer for all of the work she has done and wish her continued success in the years to come.●

TRIBUTE TO TYLER RASMUSSEN

● Mr. ROUNDS. Mr. President, today I recognize Tyler Rasmussen, an intern in my Washington, DC, office, for all the hard work he has done on behalf of my office and the State of South Dakota. Mr. Rasmussen is a graduate of Brookings High School in Brookings, SD. Currently, he is attending South Dakota State University, where he studies agricultural business and legal studies. Mr. Rasmussen is a dedicated and diligent individual who has been devoted to getting the most out of his internship experience. Mr. Rasmussen has been a true asset to my office. I extend my sincere thanks and appreciation to Mr. Rasmussen for all of the work he has done and wish him continued success in the years to come.●

TRIBUTE TO TAYLORANN WOOLEY

● Mr. ROUNDS. Mr. President, today I recognize TaylorAnn Wooley, an intern in my Washington, DC, office, for all the hard work she has done on behalf of my office and the State of South Dakota. Ms. Wooley is a graduate of Wright Junior Senior High School in Wright, WY. Currently, she is attending Black Hills State University, where she studies political science and international studies. Ms. Wooley is a dedicated and diligent individual who has been devoted to getting the most out of her internship experience. Ms. Wooley has been a true asset to my office. I extend my sincere thanks and appreciation to Ms. Wooley for all of the work she has done and wish her continued success in the years to come.●

MESSAGE FROM THE HOUSE

At 3:02 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 111. An act to require each agency, in providing notice of a rulemaking, to include a link to a 100-word plain language summary of the proposed rule.

The message further announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 813. An act to direct the Secretary of Commerce, in coordination with the heads of other relevant Federal departments and agencies, to conduct an interagency review of and report to Congress on ways to increase the global competitiveness of the United States in attracting foreign direct investment.

H.R. 1418. An act to amend the Federal Food, Drug, and Cosmetic Act to reauthorize user fee programs relating to new animal drugs and generic new animal drugs.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 813. An act to direct the Secretary of Commerce, in coordination with the heads of other relevant Federal departments and agencies, to conduct an interagency review of and report to Congress on ways to increase the global competitiveness of the United States in attracting foreign direct investment; to the Committee on Commerce, Science, and Transportation.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–1681. A communication from the Associate General Counsel, Department of Agriculture, transmitting, pursuant to law, three (3) reports relative to vacancies in the Department of Agriculture, received during adjournment of Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Agriculture, Nutrition, and Forestry.

EC–1682. A communication from the Senior Bureau Official, Legislative Affairs, Department of State, transmitting a legislative proposal relative to the Compact of Free Association; to the Committee on Energy and Natural Resources.

EC–1683. A communication from the Secretary of Energy, transmitting a legislative proposal to repeal the requirement for an annual report to Congress on the status report to Congress on the status of the construction of the Mixed Oxide (MOX) Fuel Fabrication Facility (MFFF) at the Savannah River Site near Aiken, South Carolina; to the Committee on Energy and Natural Resources.

EC–1684. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Test Procedure for Faucets and Showerheads'' (RIN1904–AE75) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1685. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Energy Conservation Standards for Air Cooled, Three-Phase, Small Commercial Air Conditioners and Heat Pumps With a Cooling Capacity of Less Than 65,000 Btu/h and Air-Cooled, Three-Phase, Variable Refrigerant Flow Air Conditioners and Heat Pumps With a Cooling Capacity of Less Than 65,000 Btu/h'' (RIN1904–AF32) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1686. A communication from the General Counsel, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Credit-Related Information Sharing in Organized Wholesale Electric Markets'' ((RIN1902–0325) (Docket No. RM22–13–000)) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1687. A communication from the General Counsel, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Transmission System Planning Performance Requirements for Extreme Weather'' ((RIN1902–AG01) (Docket No. RM22–10–000)) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1688. A communication from the General Counsel, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''One-Time Informational Reports on Extreme Weather Vulnerability Assessments'' (Docket No. RM22–16–000) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1689. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Test Procedure for Commercial Warm Air Furnaces'' (RIN1904–AE57) received during adjournment of the Senate in

the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1690. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Test Procedure for Portable Air Conditioners'' (RIN1904–AF03) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1691. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Energy Conservation Standards for Manufactured Housing; Extension of Compliance Date'' (RIN1904–AF53) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1692. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Standards for Microwave Ovens'' (RIN1904–AE00) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Energy and Natural Resources.

EC–1693. A communication from the Director of Congressional Affairs, Office of Nuclear Regulatory Research, Nuclear Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Regulatory Guide (RG) 1.212 Rev 2, ''Sizing of Large Lead-Acid Storage Batteries'' received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1694. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Revisions; California; San Joaquin Valley Air Pollution Control District; Stationary Source Permits'' (FRL No. 9770–02–R9) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1695. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval and Limited Approval-Limited Disapproval; California; Antelope Valley Air Quality Management District; Stationary Source Permits; New Source Review'' (FRL No. 10165–02–R9) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1696. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Revisions; California; Sacramento Metropolitan Air Quality Management District'' (FRL No. 10790–02–R9) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1697. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Partial Approval and Partial Disapproval; Missouri; Revision to Sulfur Dioxide Control Requirements for Lake Road Generating Facility'' (FRL No. 10839–02–R7) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1698. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Revisions; California; Yolo-Solano Air Quality Management District'' (FRL No. 10867–02–R9) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1699. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; State of Missouri; Confidential Information'' (FRL No. 10875–02–R7) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1700. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Addition of Diisononyl Phthalate Category; Community Right-to-Know Toxic Chemical Release Reporting'' (FRL No. 2425.1–03–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1701. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Federal 'Good Neighbor Plan' for the 2015 Ozone National Ambient Air Quality Standards; Response to Judicial Stays of SIP Disapproval Action for Certain States'' (FRL No. 8670.2–03–OAR) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1702. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Asbestos; Reporting and Recordkeeping Requirements under the Toxic Substances Control Act (TSCA)'' (FRL No. 8632–01–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1703. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Phasedown of Hydrofluorocarbons; Allowance Allocation Methodology for 2024 and Later Years'' (FRL No. 8838–02–OAR) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1704. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Ohio; Consumer Products Rule'' (FRL No. 10425–02–R5) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1705. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Second 10-Year Maintenance Plan for the Coso Junction PM–10 Planning Areas; California'' (FRL No. 10529–02–R9) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1706. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Phasedown of Hydrofluorocarbons; Adjustment to the Hydrofluorocarbon Production Baseline'' (FRL No. 10894–02–OAR) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1707. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; South Carolina; Update to Materials Incorporated by Reference'' (FRL No. 10988–01–R4) received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Environment and Public Works.

EC–1708. A communication from the Senior Regulatory and Policy Coordinator, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Drug Price Negotiation Program: Revised Guidance, Implementation of Sections 1191–1198 of the Social Security Act for Initial Price Applicability Year 2026'' received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Finance.

EC–1709. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Non-Emergency Medical Transportation in Medicaid, 2018–2021''; to the Committee on Finance.

EC–1710. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a notification of intent to provide assistance to Ukraine, including for self-defense and border security operations; to the Committee on Foreign Relations.

EC–1711. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 13936 with respect to Hong Kong; to the Committee on Foreign Relations.

EC–1712. A communication from the Administrator, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, a report relative to the cost of response and recovery efforts for FEMA–3593-EM in the Commonwealth of the Northern Mariana Islands having exceeded the $5,000,000 limit for a single emergency declaration; to the Committee on Homeland Security and Governmental Affairs.

EC–1713. A communication from the Solicitor, Federal Labor Relations Authority, transmitting, pursuant to law, a report relative to a vacancy in the position of General Counsel, Federal Labor Relations Authority, received during adjournment of the Senate in the Office of the President of the Senate on July 7, 2023; to the Committee on Homeland Security and Governmental Affairs.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. SANDERS, from the Committee on Health, Education, Labor, and Pensions, without amendment:

S. 567. A bill to amend the National Labor Relations Act, the Labor Management Relations Act, 1947, and the Labor-Management Reporting and Disclosure Act of 1959, and for other purposes.

S. 728. A bill to amend the Fair Labor Standards Act of 1938 to provide more effective remedies to victims of discrimination in the payment of wages on the basis of sex, and for other purposes.

By Mr. DURBIN, from the Committee on the Judiciary, without amendment:

S. 1094. A bill to provide a temporary safe harbor for publishers of online content to collectively negotiate with dominant online platforms regarding the terms on which content may be distributed.

By Mr. SANDERS, from the Committee on Health, Education, Labor, and Pensions, without amendment:

S. 1664. A bill to allow Americans to earn paid sick time so that they can address their own health needs and the health needs of their families.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. YOUNG (for himself, Ms. ROSEN, Mr. BUDD, and Mrs. SHAHEEN):

S. 2330. A bill to authorize the Small Business Administration to provide business loans to finance business software or cloud computing services, and for other purposes; to the Committee on Small Business and Entrepreneurship.

By Mr. MARKEY (for himself, Mr. RUBIO, and Mr. DURBIN):

S. 2331. A bill to promote free and fair elections, democracy, political freedoms, and human rights in Cambodia, and for other purposes; to the Committee on Foreign Relations.

By Ms. DUCKWORTH:

S. 2332. A bill to improve scheduled air service safety through enhanced aeronautical experience requirements for applicants seeking an airline transport pilot certificate with an airplane category and class rating, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. CASEY (for himself, Mr. ROMNEY, Mr. SANDERS, and Mr. CASSIDY):

S. 2333. A bill to reauthorize certain programs under the Public Health Service Act with respect to public health security and all-hazards preparedness and response, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mrs. GILLIBRAND:

S. 2334. A bill to require each public housing agency to establish and maintain an online portal for tenants and applicants, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. VANCE (for himself, Ms. LUMMIS, and Mr. MARSHALL):

S. 2335. A bill to establish within the Department of the Treasury the Office of the Special Inspector General for Financial Regulatory Abuses and Misconduct, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. MENENDEZ (for himself and Mr. HAGERTY):

S. 2336. A bill to address the threat from the development of Iran's ballistic missile program and the transfer or deployment of Iranian missiles and related goods and technology, including materials and equipment, and for other purposes; to the Committee on Foreign Relations.

By Mr. DURBIN (for himself, Mr. MERKLEY, and Mr. CARDIN):

S. 2337. A bill to require the Administrator of the Environmental Protection Agency to promulgate certain limitations with respect to pre-production plastic pellet pollution, and for other purposes; to the Committee on Environment and Public Works.

By Mr. CRUZ:

S. 2338. A bill to provide an additional $30,000,000 for the testing of hypersonic weapon systems with the B–1 bomber, and for other purposes; to the Committee on Armed Services.

By Mr. CRUZ:

S. 2339. A bill to extend the prohibition on certain reductions to the B–1 bomber aircraft squadrons; to the Committee on Armed Services.

By Ms. SMITH:

S. 2340. A bill to establish the Increasing Land, Capital, and Market Access Program within the Farm Service Agency Office of Outreach and Education; to the Committee on Agriculture, Nutrition, and Forestry.

By Ms. SMITH:

S. 2341. A bill to amend the Food, Agriculture, Conservation, and Trade Act of 1990 to authorize grants for eligible institutions to carry out agriculture workforce training programs, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. DURBIN (for himself and Mr. RUBIO):

S. 2342. A bill to prohibit any official action to recognize or normalize relations with any Government of Syria that is led by Bashar al-Assad; to the Committee on Foreign Relations.

By Mr. MENENDEZ (for himself and Mr. CASSIDY):

S. 2343. A bill to provide for the liquidation or reliquidation of certain entries of products of European Union member states, and for other purposes; to the Committee on Finance.

By Ms. KLOBUCHAR (for herself, Mr. MERKLEY, Mr. KAINE, Mr. KING, Mr. MANCHIN, Mr. PADILLA, Mr. TESTER, Mr. WARNOCK, Mr. SCHUMER, Ms. BALDWIN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mr. BROWN, Ms. CANTWELL, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. COONS, Ms. CORTEZ MASTO, Ms. DUCKWORTH, Mr. DURBIN, Mrs. FEINSTEIN, Mr. FETTERMAN, Mrs. GILLIBRAND, Ms. HASSAN, Mr. HEINRICH, Mr. HICKENLOOPER, Ms. HIRONO, Mr. KELLY, Mr. LUJÁN, Mr. MARKEY, Mr. MENENDEZ, Mr. MURPHY, Mrs. MURRAY, Mr. OSSOFF, Mr. PETERS, Mr. REED, Ms. ROSEN, Mr. SANDERS, Mr. SCHATZ, Mrs. SHAHEEN, Ms. SINEMA, Ms. SMITH, Ms. STABENOW, Mr. VAN HOLLEN, Mr. WARNER, Ms. WARREN, Mr. WELCH, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 2344. A bill to expand Americans' access to the ballot box and reduce the influence of big money in politics, and for other purposes; to the Committee on Rules and Administration.

By Ms. ERNST (for herself and Mr. COONS):

S. 2345. A bill to amend the Public Health Service Act to authorize the Director of the National Institutes of Health to make awards to outstanding scientists, including physician-scientists, to support researchers focusing on pediatric research, including basic, clinical, translational, or pediatric pharmacological research, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BUDD (for himself and Mr. MARKEY):

S. 2346. A bill to require the Secretary of Health and Human Services to develop a strategy for public health preparedness and response to artificial intelligence threats, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WHITEHOUSE (for himself, Mr. TILLIS, Mr. BLUMENTHAL, and Mr. KENNEDY):

S. 2347. A bill to amend title 18, United States Code, to prohibit a foreign official from demanding a bribe, and for other purposes; to the Committee on the Judiciary.

By Mr. VAN HOLLEN (for himself and Ms. WARREN):

S. 2348. A bill to amend the Expedited Funds Availability Act to require that funds deposited be available for withdrawal in real-time, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. CORTEZ MASTO (for herself and Mr. MORAN):

S. 2349. A bill to assist trafficking survivors who lack government issued identification in accessing air travel, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. MURPHY (for himself and Ms. SMITH):

S. 2350. A bill to establish the Office of Social Connection Policy, to establish a national strategy on social connection, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. PADILLA (for himself and Mrs. FEINSTEIN):

S. 2351. A bill to amend title 49, United States Code, to clarify the use of certain taxes and revenues; to the Committee on Commerce, Science, and Transportation.

By Ms. MURKOWSKI:

S. 2352. A bill to amend the Internal Revenue Code of 1986 to exclude micro-grants for food security from gross income; to the Committee on Finance.

By Mr. LUJÁN (for himself and Ms. LUMMIS):

S. 2353. A bill to provide for cost-share waivers for projects carried out in response to wildland fires caused by certain Government actions, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Ms. MURKOWSKI:

S. 2354. A bill to improve access to healthy foods, food processing, housing, forestry, agricultural research, and other agricultural programs, and Tribal self-determination relating to those programs, in the State of Alaska, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. REED (for himself, Mr. ROUNDS, Mr. WARNER, and Mr. ROMNEY):

S. 2355. A bill to clarify the applicability of sanctions and antimoney laundering compliance obligations to United States persons in the decentralized finance technology sector and virtual currency kiosk operators, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. HICKENLOOPER (for himself and Mr. BUDD):

S. 2356. A bill to require the Secretary of Health and Human Services to update guidance with respect to gene synthesis, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. VANCE:

S. 2357. A bill to amend chapter 110 of title 18, United States Code, to prohibit gender-affirming care on minors, and for other purposes; to the Committee on Finance.

By Mr. RUBIO:

S. 2358. A bill to amend the Uyghur Human Rights Policy Act of 2020 to impose additional sanctions relating to human rights abuses in the Xinjiang Uyghur Autonomous Region; to the Committee on Foreign Relations.

By Mr. OSSOFF:

S. 2359. A bill to require a report on military health care referral policies; to the Committee on Armed Services.

By Mr. CASEY:

S. 2360. A bill to establish an Interagency Collaborative and Innovation Pilot Program to Address Hunger and Promote Access to Healthy Food Among Older Adults and Adults with Disabilities; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself and Ms. COLLINS):

S. 2361. A bill to establish the Interagency Task Force to Address Hunger and Promote Access to Healthy Food Among Older Adults and Adults with Disabilities, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Ms. KLOBUCHAR (for herself, Ms. COLLINS, Ms. SMITH, Ms. MURKOWSKI, and Ms. WARREN):

S. 2362. A bill to amend the Federal Food, Drug, and Cosmetic Act to provide for notification by manufacturers of critical drugs of increased demand, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HICKENLOOPER (for himself and Mr. BRAUN):

S. 2363. A bill to promote and expand high-quality youth apprenticeship programs and provide support and incentives to help employees establish such programs; to the Committee on Health, Education, Labor, and Pensions.

By Mr. PETERS (for himself, Mr. LANKFORD, and Mr. BRAUN):

S. 2364. A bill to map the United States pharmaceutical supply chain and use data analytics to identify supply chain vulnerabilities and other national security threats; to the Committee on Health, Education, Labor, and Pensions.

By Mr. RICKETTS:

S. 2365. A bill to amend the Food and Nutrition Act of 2008 to authorize funds for certain employment and training activities, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. ROSEN (for herself and Mrs. BLACKBURN):

S. Res. 299. A resolution supporting cooperation between the United States and the European Union to thwart Hizballah's criminal and terrorist activities and to bring Hizballah operatives to justice and urging the European Union to designate Hizballah, in its entirety, as a terrorist organization; to the Committee on Foreign Relations.

By Mr. TESTER (for himself and Mr. MULLIN):

S. Res. 300. A resolution designating July 14, 2023, as ''Collector Car Appreciation Day'' and recognizing that the collection and restoration of historic and classic cars is an important part of preserving the technological achievements and cultural heritage of the United States; considered and agreed to.

By Ms. CORTEZ MASTO (for herself and Mr. CRAMER):

S. Res. 301. A resolution expressing support for the designation of Journeyman Lineworkers Recognition Day; considered and agreed to.

By Mr. COTTON (for himself, Mr. BOOZMAN, Mr. HAGERTY, Mr. DAINES, Mr. GRASSLEY, Mr. HOEVEN, Mr. GRAHAM, Mr. SCOTT of Florida, Mr. SCHMITT, Mr. CRAMER, Mr. BRAUN, Mr. TILLIS, Mr. VANCE, Ms. MURKOWSKI, Mr. CRUZ, Mrs. CAPITO, Mrs. BRITT, Mr. CRAPO, Mrs. BLACKBURN, Mr. SCOTT of South Carolina, Mr. KENNEDY, Ms. ERNST, Mrs. HYDE-SMITH, Mr. BARRASSO, Mr. SULLIVAN, Mrs. FISCHER, Mr. CORNYN, Mr. RUBIO, and Mr. CASSIDY):

S. Con. Res. 14. A concurrent resolution expressing the sense of Congress supporting the State of Israel; to the Committee on Foreign Relations.

By Mr. LEE:

S. Con. Res. 15. A concurrent resolution calling on the media to engage in responsible and voluntary journalistic practices to deny mass public murderers the attention they desire and minimize any possible ''media contagion effect'' of irresponsible and sensationalistic reporting practices; to the Committee on the Judiciary.

ADDITIONAL COSPONSORS

S. 176

At the request of Mr. KING, the name of the Senator from Nebraska (Mr. RICKETTS) was added as a cosponsor of S. 176, a bill to amend the Agricultural Trade Act of 1978 to extend and expand the Market Access Program and the Foreign Market Development Cooperator Program.

S. 260

At the request of Ms. COLLINS, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 260, a bill to amend title XVIII of the Social Security Act to permit nurse practitioners and physician assistants to satisfy the documentation requirement under the Medicare program for coverage of certain shoes for individuals with diabetes.

S. 322

At the request of Mr. PETERS, the name of the Senator from Georgia (Mr. OSSOFF) was added as a cosponsor of S. 322, a bill to amend the Plant Protection Act to establish a fund for spotted wing drosophila research and mitigation.

S. 359

At the request of Mr. WHITEHOUSE, the name of the Senator from New York (Mr. SCHUMER) was added as a cosponsor of S. 359, a bill to amend title 28, United States Code, to provide for a code of conduct for justices of the Supreme Court of the United States, and for other purposes.

S. 456

At the request of Ms. SINEMA, the name of the Senator from Georgia (Mr. OSSOFF) was added as a cosponsor of S. 456, a bill to amend title 10, United States Code, to authorize non-medical counseling services, provided by certain mental health professionals, to military families.

S. 474

At the request of Mrs. BLACKBURN, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 474, a bill to amend title 18, United States Code, to strengthen reporting to the CyberTipline related to online sexual exploitation of children, to modernize liabilities for such reports, to preserve the contents of such reports for 1 year, and for other purposes.

S. 596

At the request of Mr. KAINE, the names of the Senator from Hawaii (Ms. HIRONO) and the Senator from Washington (Mrs. MURRAY) were added as cosponsors of S. 596, a bill to amend the Internal Revenue Code of 1986 to make employers of spouses of military personnel eligible for the work opportunity credit.

S. 656

At the request of Mrs. FISCHER, the name of the Senator from Georgia (Mr. WARNOCK) was added as a cosponsor of S. 656, a bill to amend title 38, United States Code, to revise the rules for approval by the Secretary of Veterans Affairs of commercial driver education programs for purposes of veterans education assistance, and for other purposes.

S. 711

At the request of Mr. BUDD, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from New Mexico (Mr. LUJÁN) were added as cosponsors of S. 711, a bill to require the Secretary of the Treasury to mint coins in commemoration of the invaluable service that working dogs provide to society.

S. 747

At the request of Ms. COLLINS, the name of the Senator from Vermont (Mr. WELCH) was added as a cosponsor of S. 747, a bill to authorize the Secretary of Agriculture to provide grants to States, territories, and Indian Tribes to address contamination by perfluoroalkyl and polyfluoroalkyl substances on farms, and for other purposes.

S. 804

At the request of Mrs. SHAHEEN, the name of the Senator from North Dakota (Mr. CRAMER) was added as a cosponsor of S. 804, a bill to provide for security in the Black Sea region, and for other purposes.

S. 806

At the request of Ms. BALDWIN, the name of the Senator from Vermont (Mr. WELCH) was added as a cosponsor of S. 806, a bill to amend the Consolidated Farm and Rural Development Act to establish a grant program to assist with the purchase, installation, and maintenance of point-of-entry and point-of-use drinking water quality improvement products, and for other purposes.

S. 866

At the request of Ms. HASSAN, the names of the Senator from Indiana

(Mr. BRAUN) and the Senator from Georgia (Mr. OSSOFF) were added as cosponsors of S. 866, a bill to amend the Internal Revenue Code of 1986 to enhance tax benefits for research activities.

S. 881

At the request of Mr. SCHATZ, the name of the Senator from Pennsylvania (Mr. FETTERMAN) was added as a cosponsor of S. 881, a bill to amend the Internal Revenue Code of 1986 to provide a credit for the purchase of certain new electric bicycles.

S. 955

At the request of Ms. SINEMA, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 955, a bill to amend the Securities Exchange Act of 1934 to create an interdivisional taskforce at the Securities and Exchange Commission for senior investors, and for other purposes.

S. 993

At the request of Ms. CORTEZ MASTO, the names of the Senator from Pennsylvania (Mr. CASEY) and the Senator from Alabama (Mrs. BRITT) were added as cosponsors of S. 993, a bill to prohibit certain uses of xylazine, and for other purposes.

S. 1049

At the request of Mr. CASEY, the names of the Senator from Washington (Mrs. MURRAY) and the Senator from Connecticut (Mr. MURPHY) were added as cosponsors of S. 1049, a bill to ensure that older adults and individuals with disabilities are prepared for disasters, and for other purposes.

S. 1183

At the request of Mr. RUBIO, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 1183, a bill to prohibit discrimination on the basis of mental or physical disability in cases of organ transplants.

S. 1220

At the request of Mr. KENNEDY, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 1220, a bill to establish the position of Special Envoy to the Pacific Islands Forum.

S. 1266

At the request of Mr. MORAN, the names of the Senator from Hawaii (Mr. SCHATZ) and the Senator from Arkansas (Mr. BOOZMAN) were added as cosponsors of S. 1266, a bill to amend titles 10 and 38, United State Code, to improve benefits and services for surviving spouses, and for other purposes.

S. 1384

At the request of Mr. COTTON, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 1384, a bill to promote and protect from discrimination living organ donors.

S. 1478

At the request of Mr. WYDEN, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 1478, a bill to designate United States Route 20 in the States of Oregon, Idaho, Montana, Wyoming, Nebraska, Iowa, Illinois, Indiana, Ohio, Pennsylvania, New York, and Massachusetts as the ''National Medal of Honor Highway'', and for other purposes.

S. 1528

At the request of Mr. PETERS, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 1528, a bill to streamline the sharing of information among Federal disaster assistance agencies, to expedite the delivery of life-saving assistance to disaster survivors, to speed the recovery of communities from disasters, to protect the security and privacy of information provided by disaster survivors, and for other purposes.

S. 1808

At the request of Ms. MURKOWSKI, the name of the Senator from Oregon (Mr. WYDEN) was added as a cosponsor of S. 1808, a bill to amend the Federal Ocean Acidification Research And Monitoring Act of 2009 to require the Secretary of Commerce, acting through the Administrator of the National Oceanic and Atmospheric Administration, to collaborate with State and local governments and Indian Tribes on vulnerability assessments related to ocean acidification, research planning, and similar activities, and for other purposes.

S. 1829

At the request of Mr. RUBIO, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from Nevada (Ms. CORTEZ MASTO) were added as cosponsors of S. 1829, a bill to impose sanctions with respect to persons engaged in the import of petroleum from the Islamic Republic of Iran, and for other purposes.

S. 1871

At the request of Mr. PETERS, the name of the Senator from Arizona (Ms. SINEMA) was added as a cosponsor of S. 1871, a bill to create intergovernmental coordination between State, local, Tribal, and territorial jurisdictions, and the Federal Government to combat United States reliance on the People's Republic of China and other covered countries for critical minerals and rare earth metals, and for other purposes.

S. 1960

At the request of Mrs. SHAHEEN, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 1960, a bill to impose sanctions with respect to foreign persons responsible for violations of the human rights of lesbian, gay, bisexual, transgender, and intersex (LGBTI) individuals, and for other purposes.

S. 1973

At the request of Mr. BROWN, the name of the Senator from Kansas (Mr. MARSHALL) was added as a cosponsor of S. 1973, a bill to require the purchase of domestically made flags of the United States of America for use by the Federal Government.

S. 2054

At the request of Mr. SANDERS, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. 2054, a bill to ensure that the Department of Defense achieves a clean audit opinion on its financial statements.

S. 2082

At the request of Mr. CORNYN, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 2082, a bill to make technical corrections relating to the Justice Against Sponsors of Terrorism Act.

S. 2085

At the request of Mr. CRAPO, the names of the Senator from Mississippi (Mrs. HYDE-SMITH), the Senator from Wisconsin (Ms. BALDWIN), the Senator from North Dakota (Mr. CRAMER) and the Senator from Connecticut (Mr. BLUMENTHAL) were added as cosponsors of S. 2085, a bill to amend title XVIII of the Social Security Act to provide for Medicare coverage of multi-cancer early detection screening tests.

S. 2146

At the request of Mr. OSSOFF, the name of the Senator from Iowa (Ms. ERNST) was added as a cosponsor of S. 2146, a bill to amend the Small Business Act to increase the Government-wide goal for participation in Federal contracts by small business concerns owned and controlled by service-disabled veterans.

S. 2159

At the request of Mr. LEE, the name of the Senator from Alabama (Mrs. BRITT) was added as a cosponsor of S. 2159, a bill to clarify the classification of service provider payees as employees or independent contractors in Federal law.

S. 2246

At the request of Mr. MARKEY, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 2246, a bill to authorize the appropriation of funds to the National Institutes of Health and the Centers for Disease Control and Prevention for conducting or supporting research on barriers to gender affirming care.

S. 2260

At the request of Mr. CORNYN, the name of the Senator from Arizona (Ms. SINEMA) was added as a cosponsor of S. 2260, a bill to require transparency in notices of funding opportunity, and for other purposes.

S. 2279

At the request of Mr. MARKEY, the names of the Senator from Massachusetts (Ms. WARREN) and the Senator from Rhode Island (Mr. WHITEHOUSE) were added as cosponsors of S. 2279, a bill to amend title 18, United States Code, to prohibit panic defenses based on sexual orientation or gender identity or expression.

S. 2283

At the request of Mr. PETERS, the name of the Senator from Alaska (Ms.

MURKOWSKI) was added as a cosponsor of S. 2283, a bill to prohibit the procurement of certain items containing perfluorooctane sulfonate (PFOS) or perfluorooctanoic acid (PFOA) and prioritize the procurement of products not containing PFAS.

S. 2285

At the request of Mr. SCHATZ, the names of the Senator from Montana (Mr. TESTER) and the Senator from North Dakota (Mr. HOEVEN) were added as cosponsors of S. 2285, a bill to reauthorize the Native American Housing Assistance and Self-Determination Act of 1996.

S. 2296

At the request of Mr. BRAUN, the name of the Senator from Nebraska (Mr. RICKETTS) was added as a cosponsor of S. 2296, a bill to cancel recent changes made by the Federal Housing Finance Agency to the up-front loan level pricing adjustments charged by Fannie Mae and Freddie Mac for guarantee of single-family mortgages, and for other purposes.

S. 2307

At the request of Mr. CRAPO, the name of the Senator from Indiana (Mr. BRAUN) was added as a cosponsor of S. 2307, a bill to support and strengthen the fighter aircraft capabilities of the Air Force, and for other purposes.

S. 2316

At the request of Mr. RUBIO, the name of the Senator from Florida (Mr. SCOTT) was added as a cosponsor of S. 2316, a bill to amend the Food, Agriculture, Conservation, and Trade Act of 1990 to establish research and extension grant priorities, and for other purposes.

S.J. RES. 31

At the request of Mr. WICKER, the name of the Senator from Louisiana (Mr. CASSIDY) was added as a cosponsor of S.J. Res. 31, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Environmental Protection Agency relating to ''Federal 'Good Neighbor Plan' for the 2015 Ozone National Ambient Air Quality Standards''.

S. RES. 269

At the request of Mr. BARRASSO, the names of the Senator from Texas (Mr. CRUZ) and the Senator from Nebraska (Mr. RICKETTS) were added as cosponsors of S. Res. 269, a resolution designating July 22, 2023, as ''National Day of the American Cowboy''.

S. RES. 283

At the request of Mr. RISCH, the names of the Senator from Montana (Mr. DAINES) and the Senator from Georgia (Mr. WARNOCK) were added as cosponsors of S. Res. 283, a resolution recognizing June 28, 2023, as the 125th anniversary of the American Association of Colleges of Osteopathic Medicine and commending the work of the association to improve the health of the people of the United States.

S. RES. 296

At the request of Mr. MERKLEY, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. Res. 296, a resolution designating July 2023 as ''Plastic Pollution Action Month''.

AMENDMENT NO. 142

At the request of Mr. TESTER, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of amendment No. 142 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 180

At the request of Ms. HIRONO, the names of the Senator from California (Mrs. FEINSTEIN), the Senator from Indiana (Mr. BRAUN), the Senator from Kansas (Mr. MORAN), the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Colorado (Mr. HICKENLOOPER) were added as cosponsors of amendment No. 180 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 199

At the request of Mr. WARNOCK, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of amendment No. 199 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 200

At the request of Mr. WARNOCK, the name of the Senator from Georgia (Mr. OSSOFF) was added as a cosponsor of amendment No. 200 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 224

At the request of Mrs. BLACKBURN, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of amendment No. 224 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 292

At the request of Mr. MENENDEZ, the name of the Senator from Tennessee (Mrs. BLACKBURN) was added as a cosponsor of amendment No. 292 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 331

At the request of Mr. SCHATZ, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of amendment No. 331 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 360

At the request of Mr. SULLIVAN, the name of the Senator from Florida (Mr. SCOTT) was added as a cosponsor of amendment No. 360 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 405

At the request of Mr. LANKFORD, the names of the Senator from Maine (Mr. KING), the Senator from Georgia (Mr. WARNOCK), the Senator from Arizona (Ms. SINEMA), the Senator from Indiana (Mr. BRAUN), the Senator from New Hampshire (Ms. HASSAN) and the Senator from Florida (Mr. SCOTT) were added as cosponsors of amendment No. 405 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 421

At the request of Mr. CRUZ, the names of the Senator from Missouri (Mr. SCHMITT) and the Senator from South Carolina (Mr. GRAHAM) were added as cosponsors of amendment No. 421 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 444

At the request of Mr. CRUZ, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of amendment No. 444 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year

2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 466

At the request of Mr. GRAHAM, the name of the Senator from South Carolina (Mr. SCOTT) was added as a cosponsor of amendment No. 466 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 468

At the request of Mr. GRAHAM, the name of the Senator from South Carolina (Mr. SCOTT) was added as a cosponsor of amendment No. 468 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 509

At the request of Mr. CRAPO, the name of the Senator from Indiana (Mr. BRAUN) was added as a cosponsor of amendment No. 509 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 526

At the request of Mr. RUBIO, the name of the Senator from Pennsylvania (Mr. FETTERMAN) was added as a cosponsor of amendment No. 526 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 547

At the request of Mr. KING, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of amendment No. 547 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 560

At the request of Mr. WYDEN, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of amendment No. 560 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 605

At the request of Mrs. GILLIBRAND, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of amendment No. 605 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 606

At the request of Mr. PETERS, the name of the Senator from California (Mr. PADILLA) was added as a cosponsor of amendment No. 606 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 636

At the request of Mr. REED, the name of the Senator from Iowa (Mr. GRASSLEY) was added as a cosponsor of amendment No. 636 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 642

At the request of Mr. MENENDEZ, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of amendment No. 642 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 649

At the request of Mr. RUBIO, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of amendment No. 649 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 671

At the request of Mr. SULLIVAN, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of amendment No. 671 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 676

At the request of Mr. BOOKER, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of amendment No. 676 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 681

At the request of Mr. BOOKER, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of amendment No. 681 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 686

At the request of Ms. BALDWIN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of amendment No. 686 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 714

At the request of Mr. MARSHALL, the name of the Senator from Kentucky (Mr. PAUL) was added as a cosponsor of amendment No. 714 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 721

At the request of Mr. WYDEN, the names of the Senator from Tennessee (Mrs. BLACKBURN), the Senator from Maryland (Mr. CARDIN), the Senator from South Carolina (Mr. SCOTT) and the Senator from Michigan (Ms. STABENOW) were added as cosponsors of amendment No. 721 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year

2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 731

At the request of Ms. CORTEZ MASTO, her name was added as a cosponsor of amendment No. 731 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 740

At the request of Mr. MERKLEY, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of amendment No. 740 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 752

At the request of Mrs. BRITT, the name of the Senator from Pennsylvania (Mr. FETTERMAN) was added as a cosponsor of amendment No. 752 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 756

At the request of Mr. BROWN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of amendment No. 756 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 757

At the request of Mr. BROWN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of amendment No. 757 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 760

At the request of Mr. BROWN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of amendment No. 760 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 761

At the request of Mr. BROWN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of amendment No. 761 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 792

At the request of Ms. ROSEN, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of amendment No. 792 intended to be proposed to S. 2226, an original bill to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. DURBIN (for himself, Mr. MERKLEY, and Mr. CARDIN):

S. 2337. A bill to require the Administrator of the Environmental Protection Agency to promulgate certain limitations with respect to pre-production plastic pellet pollution, and for other purposes; to the Committee on Environment and Public Works.

Mr. DURBIN. Madam President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2337

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited the ''Plastic Pellet Free Waters Act''.

SEC. 2. EFFLUENT LIMITATIONS FOR WASTEWATER, SPILLS, AND RUNOFF FROM PLASTIC POLYMER PRODUCTION FACILITIES, PLASTIC MOLDING AND FORMING FACILITIES, AND OTHER POINT SOURCES ASSOCIATED WITH THE TRANSPORT AND PACKAGING OF PLASTIC PELLETS OR OTHER PRE-PRODUCTION PLASTIC MATERIALS.

Not later than 60 days after the date of enactment of this Act, the Administrator of the Environmental Protection Agency (referred to in this section as the ''Administrator'') shall promulgate a final rule to ensure that—

(1) the discharge of plastic pellets or other pre-production plastic materials (including discharge into wastewater and other runoff) from facilities regulated under part 414 or 463 of title 40, Code of Federal Regulations (as in effect on the date of enactment of this Act), is prohibited;

(2) the discharge of plastic pellets or other pre-production plastic materials (including discharge into wastewater and other runoff) from a point source (as defined in section 502 of the Federal Water Pollution Control Act (33 U.S.C. 1362)) that makes, uses, packages, or transports those plastic pellets and other pre-production plastic materials is prohibited; and

(3) the requirements under paragraphs (1) and (2) are reflected in—

(A) all wastewater, stormwater, and other permits issued by the Administrator and State-delegated programs under section 402 of the Federal Water Pollution Control Act (33 U.S.C. 1342) to facilities and other point sources (as defined in section 502 of that Act (33 U.S.C. 1362)) that make, use, package, or transport plastic pellets or other pre-production plastic materials, as determined by the Administrator, in addition to other applicable limits and standards; and

(B) all standards of performance promulgated under section 312(p) of the Federal Water Pollution Control Act (33 U.S.C. 1322(p)) that are applicable to point sources (as defined in section 502 of that Act (33 U.S.C. 1362)) that make, use, package, or transport plastic pellets or other pre-production plastic materials, as determined by the Administrator.

By Mr. DURBIN (for himself and Mr. RUBIO):

S. 2342. A bill to prohibit any official action to recognize or normalize relations with any Government of Syria that is led by Bashar al-Assad; to the Committee on Foreign Relations.

Mr. DURBIN. Madam President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2342

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Assad Regime Anti-Normalization Act of 2023''.

SEC. 2. PROHIBITION OF RECOGNITION OF ASSAD REGIME.

(a) STATEMENT OF POLICY.—It is the policy of the United States—

(1) not to recognize or normalize relations with any Government of Syria that is led by Bashar al-Assad due to the Assad regime's prior and ongoing crimes against the Syrian people, including failure to meet the criteria outlined in section 7431(a) of the Caesar Syria Civilian Protection Act of 2019 (title LXXIV of Public Law 116–92; 22 U.S.C. 8791 note);

(2) to actively oppose recognition or normalization of relations by other governments with any Government of Syria that is led by Bashar Al-Assad, including by fully implementing the mandatory primary and secondary sanctions in the Caesar Syria Civilian Protection Act of 2019 and Executive Order 13894 (84 Fed. Reg. 55851; relating to blocking property and suspending entry of certain persons contributing to the situation in Syria); and

(3) to use the full range of authorities, including those provided under the Caesar Syria Civilian Protection Act of 2019 and Executive Order 13894, to deter reconstruction activities in areas under the control of Bashar al-Assad.

(b) PROHIBITION.—In accordance with subsection (a), no Federal official or employee may take any action, and no Federal funds may be made available, to recognize or otherwise imply, in any manner, United States recognition of Bashar al-Assad or any Government in Syria that is led by Bashar al-Assad.

By Mr. PADILLA (for himself and Mrs. FEINSTEIN):

S. 2351. A bill to amend title 49, United States Code, to clarify the use of certain taxes and revenues; to the Committee on Commerce, Science, and Transportation.

Mr. PADILLA. Madam President, I rise to introduce State and Local General Sales Tax Protection Act. This legislation would clarify congressional intent around a 1987 amendment to the Federal Aviation Administration's authorization regarding the use of local excise taxes on aviation fuel for airport purposes.

In 2014, the FAA implemented a policy change to require State and local governments to use general sales taxes collected on aviation fuel for airport purposes. This contradicted congressional intent clearly stated in the 1987 conference report and 29 years of practice, which applied this requirement only to local excise taxes on fuel and not to other taxes imposed by State and local governments.

This legislation would overturn the 2014 FAA policy and remove any ambiguity in Federal interpretation by distinguishing State and local sales tax measures of general application from aviation fuel excise taxes.

In my home State of California, local government sales taxes are voter-approved by a two-thirds margin for specific purposes. Diverting this money would be a violation of the State's constitution and the will of its voters. This 2014 FAA rulemaking, if enforced, is estimated to divert tens of millions of dollars away from voter-approved purposes like local transportation, first responders, education, and social programs every year. It is an assault on State and local control of general application sales tax measures.

The 2014 FAA rulemaking would also impose an unfunded mandate on States and local governments that would be required to implement a burdensome tracking system to segregate taxes on aviation fuel from other taxable sources.

Furthermore, in recognition of this error, the FAA included in its recommendations to Congress that the clarification provided in this legislation be included in an FAA reauthorization bill.

I look forward to working with my colleagues to enact the State and Local General Sales Tax Protection Act to protect every State and local government that have or will have general sales taxes that include aviation fuel.

By Mr. REED (for himself, Mr. ROUNDS, Mr. WARNER, and Mr. ROMNEY):

S. 2355. A bill to clarify the applicability of sanctions and antimoney laundering compliance obligations to United States persons in the decentralized finance technology sector and virtual currency kiosk operators, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

Mr. REED. Madam President, today I am introducing the Crypto Asset National Security Enhancement and Enforcement, CANSEE, Act along with Senators ROUNDS, WARNER, and ROMNEY. This bipartisan bill will close concerning gaps in the anti-money laundering, AML, and sanctions frameworks for cryptocurrency, most importantly decentralized finance, DeFi, and virtual currency kiosks.

Decentralized finance or ''DeFi'' refers to cryptocurrency protocols and applications that purport to allow automated peer-to-peer transactions using blockchain technology. DeFi enables users to transact and trade cryptocurrency without requiring a traditional financial institution to broker trades, clear and settle transactions, or custody assets.

Criminal syndicates, fraudsters, ransomware hackers, and rogue states have been quick to recognize how DeFi can be exploited to advance their nefarious activities. By design, DeFi provides anonymity allowing malicious and criminal actors to evade traditional tools that the government uses to enforce the AML and sanctions laws.

According to the U.S. National Money Laundering Risk Assessment published in February 2022, ''DeFi services often involve no AML/CFT or other processes to identify customers, allowing layering of proceeds to take place instantaneously and pseudonymously.'' A risk assessment published by the Treasury Department in April 2023 specifically found that ''ransomware cybercriminals, thieves, scammers, and Democratic People's Republic of Korea (DPRK) cyber actors are using DeFi services [and] exploiting vulnerabilities in the U.S. and foreign AML/CFT regulatory, supervisory, and enforcement regimes.''

In addition, DeFi is used in cross-border drug trafficking. Blockchain analytics firm Elliptic has estimated that China-based chemical manufacturers have received enough payments in cryptocurrency to sell $54 billion worth of fentanyl—enough to manufacture 8.6 billion deadly doses.

A series of Federal indictments unsealed in April 2023 revealed how these Chinese companies sell precursor chemicals to the Sinaloa drug cartel to manufacture fentanyl in Mexico, which is then smuggled for distribution in the United States. The manufacturers and cartels transact in cryptocurrency and no longer need to rely exclusively on bulk cash shipments. According to the indictments, once ''fentanyl proceeds are deposited into cryptocurrency wallets, that cryptocurrency can also be used directly to purchase additional fentanyl, without the need to convert the cryptocurrency back into cash.'' Wallets associated with a large sanctioned Chinese chemicals manufacturer have used DeFi to launder funds.

DeFi is so attractive to criminals and other bad actors because the industry takes the position that it does not need to comply with the AML requirements in the Bank Secrecy Act nor the economic sanctions programs administered by the Treasury Department. That places DeFi on a different footing than traditional financial intermediaries like banks and securities brokers, which must monitor all transactions and report suspected money laundering and financial crimes to the government. Other participants in the cryptocurrency markets, such as U.S.-headquartered centralized trading venues, are also expected to maintain AML programs and ensure that sanctioned persons do not use their services. Even casinos have these obligations. It is past time to end special treatment for DeFi and prevent this dark corner of our financial system from being used to fund crime and launder criminal proceeds.

The bipartisan bill we are introducing closes these alarming gaps facilitating narco-trafficking, WMD proliferation, ransomware attacks, and other threats to national and economic security. Our bill simply requires anyone who controls a DeFi service to meet critical—yet basic—regulatory obligations to maintain AML policies and procedures, conduct due diligence on customers, and report suspicious transactions to the government. These requirements will curtail a tool that is used to disguise ownership and movement of criminal funds.

Our legislation also makes clear that if a sanctioned person, such as a Russian oligarch, uses a DeFi service to evade U.S. sanctions, then anyone who controls that platform will be liable for facilitating that violation. If nobody controls a DeFi service, then—as a backstop—the largest investors in that project will be responsible for meeting these obligations.

Our bipartisan legislation also dramatically enhances the customer due diligence requirements for operators of virtual currency kiosks or ''bitcoin ATMs.'' Bitcoin ATMs are typically found in convenience stores, gas stations, and grocery stores, and are used to buy, sell, and exchange cryptocurrency. According to a report by the Government Accountability Office published in December 2021, ''FBI officials said they expect to see an increase in the use of virtual currency kiosks for illicit purposes, including for human and drug trafficking.'' To crack down on this abuse of our financial system, our legislation requires kiosk operators to verify the identities of both counterparties to every transaction. That will help prevent criminals from using cryptocurrency to profit from illegal activity and avoid detection by law enforcement.

Finally, this legislation makes important updates to the Treasury Department's authority to require participants in the U.S. financial system to take special precautions against money laundering threats. Currently, these authorities are limited to transactions conducted in the traditional banking system. But as new technologies like cryptocurrency increasingly enable new ways to conduct financial transactions, it is critical to extend Treasury's authority to crack down on illicit financial activity that may occur without customary intermediaries.

All of our constituents deserve a financial system that is protected from geopolitical adversaries and criminals. The CANSEE Act will deliver those protections by preventing DeFi services from using purported decentralization as a shield to avoid meeting obligations to prevent money laundering and sanctions evasion. That will protect the integrity of the U.S. financial system and help curtail the activities of the worst criminal organizations and malicious state actors. I urge my colleagues to support this important bipartisan legislation.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 299—SUPPORTING COOPERATION BETWEEN THE UNITED STATES AND THE EUROPEAN UNION TO THWART HIZBALLAH'S CRIMINAL AND TERRORIST ACTIVITIES AND TO BRING HIZBALLAH OPERATIVES TO JUSTICE AND URGING THE EUROPEAN UNION TO DESIGNATE HIZBALLAH, IN ITS ENTIRETY, AS A TERRORIST ORGANIZATION

Ms. ROSEN (for herself and Mrs. BLACKBURN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 299

Whereas, in April 1983, a Hizballah terror attack against the United States Embassy in Beirut, Lebanon killed 63 people;

Whereas, in October 1983, a Hizballah terror attack against the United States Marine barracks, in Beirut, Lebanon, killed 241 American and 58 French servicemembers supporting the multinational force peacekeeping mission;

Whereas, in July 2012, a Hizballah terror attack, carried out by an operative with dual Lebanese-French citizenship, in Burgas, Bulgaria, killed 5 Israeli tourists and a Bulgarian;

Whereas, in March 2013, a Swedish-Lebanese Hizballah operative in Cyprus was convicted of planning terror attacks against Israeli tourists;

Whereas, in June 2015, a Hizballah operative was sentenced to 6 years in prison after stockpiling more than 8 tons of ammonium nitrate in Cyprus;

Whereas the Hizballah International Financing Prevention Act of 2015 (Public Law 114–102) and the Hizballah International Financing Prevention Amendments Act of 2018 (Public Law 115–272) broadened financial sector sanctions against Hizballah to compel foreign financial institutions to refrain from supporting the terrorist group;

Whereas, in May 2018, the Department of the Treasury imposed sanctions on Abdullah Safi-Al-Din, Hizballah's representative to Iran, Mohammad Ibrahim Bazzi, a Hizballah financier, and blacklisted 5 of Mr. Bazzi's companies, including Belgian energy services conglomerate Global Trading Group NV;

Whereas, in October 2018, French police raided the Islamic Zahra Centre on suspicion of supporting Hizballah, froze the organization's funds, and seized illegal weapons;

Whereas, in September 2020, 4 former leaders of the Zahra Centre France were arrested on suspicion of continuing to run that organization and supporting Hizballah;

Whereas, in July 2019, the Department of the Treasury designated 2 Hizballah-backed members of Lebanese Parliament, Amin Sherri and Muhammad Hasan Ra'd, and Hizballah security official Wafiq Safa, stating that Hizballah uses its operatives in parliament to advance its violent activities;

Whereas, as of April 2021, officials of the Government of Germany estimated that 1,250 people with suspected links to Hizballah were living in Germany;

Whereas Europol's June 2022 European Union Terrorism Situation and Trend Report—

(1) outlined that Hizballah ''has been using the EU as a base for fundraising, recruitment, and criminal activities'';

(2) stated that Hizballah ''is suspected of managing the transportation and distribution of illegal drugs into the EU, dealing with firearms trafficking and running professional money laundering operations that include the provision of money laundering services for other criminal organizations'';

Whereas the United States-led Project Cassandra and Operation Cedar exposed the criminal-business wing of Hizballah, the Business Affairs Component (BAC) of Hizballah's External Security Organization;

Whereas, during Project Cassandra, Hizballah elements involved in drug trafficking were arrested in the United States, in South America, and in several European countries, including France, Belgium, Germany, and Italy;

Whereas Hizballah's criminal activities in Europe is run by the BAC, which reports to the External Security Organisation (also known as Unit 910) or the Islamic Jihad Organization, and Abdallah Safieddine, Hizballah's representative in Iran, is also involved in such criminal activities;

Whereas, in August 2020, United Nations Secretary General António Guterres called on Lebanon to disarm Hizballah, citing the terror group's persistent violation of United Nations Security Council Resolution 1701 (2006);

Whereas Iran, which is the prime sponsor of Hizballah, harbors, finances, trains, and arms the terrorist organization;

Whereas the Department of Treasury and the Department of State estimate that Iran provides as much as $700,000,000 each year to Hizballah in the form of financial and logistical support, weapons, and training;

Whereas Hizballah has an arsenal of approximately 150,000 missiles and rockets with increased sophistication, many of which can reach deep into Israel;

Whereas Hizballah fighters have been supporting the Assad regime in Syria and have often led operations in the conflict, which has left more than 500,000 dead;

Whereas Hizballah trains and provides weapons for militias in Iraq and Yemen, which further destabilizes the region, and perpetuates violence in those countries;

Whereas Hizballah activities continue to plague Lebanon with profound economic and political instability and violence;

Whereas Hizballah's cross-border illicit arms and drugs trafficking undermines the Lebanese Armed Forces, which is the legitimate security establishment of the country, as outlined in United Nations Security Council Resolution 1701 (2006);

Whereas, in October 2012, Hizballah Deputy Secretary General Naim Qassem stated that ''[Hizballah does not] have a military wing and a political one . . . Every element of Hizballah, from commanders to members as well as our various capabilities, are in the service of the resistance'';

Whereas the United States, Germany, the United Kingdom, the Netherlands, Estonia, Latvia, Lithuania, Slovenia, Serbia, and Kosovo, and other countries have declared Hizballah, in its entirety, a terrorist organization;

Whereas, in March 2016, the Gulf Cooperation Council formally branded Hizballah, in its entirety, a terrorist organization, and the League of Arab States adopted the same designation shortly thereafter;

Whereas the Department of the Treasury has diligently added persons and entities to the list of Specially Designated Global Terrorists who have provided material support to the Hizballah terrorist organization, thereby hampering its financing and logistical capabilities;

Whereas the European Union, in July 2013, designated Hizballah's so-called ''military wing'' a terrorist organization;

Whereas, despite restrictions put on Hizballah since the designation of its military wing as a terrorist organization, Hizballah continues to conduct illicit narcotrafficking, money laundering, and weapons trafficking throughout Europe and around the world; and

Whereas in July 2016, the United States Senate, through Senate Resolution 482, called on the European Union to designate Hizballah in its entirety as a terrorist organization: Now, therefore, be it

Resolved, That the Senate—

(1) applauds and expresses support for the continued, increased cooperation between the United States and the European Union in thwarting Hizballah's criminal and terrorist activities;

(2) supports transcontinental efforts within Europe to share intelligence information among police and security services to facilitate greater cooperation in tracking, apprehending, and prosecuting Hizballah operatives;

(3) encourages the European Union to implement sanctions against Hizballah-affiliated terrorists in tandem with the United States;

(4) recommends greater civil society engagement in both the United States and Europe to underscore Hizballah's malign regional influence; and

(5) urges the European Union to designate Hizballah in its entirety as a terrorist organization and to increase pressure on the group, including by—

(A) facilitating better cross-border cooperation between European Union members in combating Hizballah;

(B) issuing arrest warrants against members and active supporters of Hizballah;

(C) freezing Hizballah's assets in Europe, including assets controlled by organizations masquerading as charities; and

(D) prohibiting fundraising activities in support of Hizballah.

SENATE RESOLUTION 300—DESIGNATING JULY 14, 2023, AS ''COLLECTOR CAR APPRECIATION DAY'' AND RECOGNIZING THAT THE COLLECTION AND RESTORATION OF HISTORIC AND CLASSIC CARS IS AN IMPORTANT PART OF PRESERVING THE TECHNOLOGICAL ACHIEVEMENTS AND CULTURAL HERITAGE OF THE UNITED STATES

Mr. TESTER (for himself and Mr. MULLIN) submitted the following resolution; which was considered and agreed to:

S. RES. 300

Whereas many people in the United States maintain classic automobiles as a pastime and do so with great passion and as a means of individual expression;

Whereas the Senate recognizes the effect that the more than 100-year history of the automobile has had on the economic progress of the United States and supports wholeheartedly all activities involved in the restoration and exhibition of classic automobiles;

Whereas the collection, restoration, and preservation of automobiles is an activity shared across generations and across all segments of society;

Whereas thousands of local car clubs and related businesses are instrumental in preserving a historic part of the heritage of the United States by encouraging the restoration and exhibition of such vintage works of art;

Whereas automotive restoration provides well-paying, high-skilled jobs for people in all 50 States; and

Whereas automobiles provide inspiration for music, photography, cinema, fashion, and other artistic pursuits that are part of the popular culture of the United States: Now, therefore, be it

Resolved, That the Senate—

(1) designates July 14, 2023, as ''Collector Car Appreciation Day'';

(2) recognizes that the collection and restoration of historic and classic cars is an important part of preserving the technological achievements and cultural heritage of the United States;

(3) encourages the people of the United States to engage in events and commemorations of Collector Car Appreciation Day; and

(4) recognizes that Collector Car Appreciation Day events and commemorations create opportunities for collector car owners to educate young people about the importance of preserving the cultural heritage of the United States, including through the collection and restoration of collector cars.

SENATE RESOLUTION 301—EXPRESSING SUPPORT FOR THE DESIGNATION OF JOURNEYMAN LINEWORKERS RECOGNITION DAY

Ms. CORTEZ MASTO (for herself and Mr. CRAMER) submitted the following resolution; which was considered and agreed to:

S. RES. 301

Whereas the United States relies on safe, reliable, affordable, and clean electricity to power its economy, as well as homes, businesses, industries and manufacturers, colleges and universities, schools, hospitals, cities and communities, and so much more;

Whereas journeyman lineworkers play a critical role in keeping the United States energy grid running 24 hours a day, 7 days a week, 365 days a year;

Whereas journeyman lineworkers perform heroic services during national and regional disasters, including hurricanes, wildfires, tornadoes, and ice storms, while working long hours often under dangerous conditions to restore power;

Whereas journeyman lineworkers worked throughout the COVID-19 pandemic to keep the energy grid operational and implemented critical safety protocols to ensure they could continue to work in the field while keeping themselves, their fellow lineworkers, and the public safe;

Whereas journeyman lineworkers put their lives on the line every day to ensure the delivery of safe and reliable power for the United States;

Whereas July 10, 2023 marks the 127th anniversary of the death of Henry Miller, the first President of the International Brotherhood of Electrical Workers, who was killed in the line of duty while trying to restore electricity during an outage in Washington, D.C.; and

Whereas there should be a day to honor the hundreds of thousands of men and women who also have put their lives on the line over the past 127 years to provide skillful service in times of local or national crisis: Now, therefore, be it

Resolved, That the Senate—

(1) supports the designation of July 10, 2023, as Journeyman Lineworkers Recognition Day;

(2) honors and recognizes the contributions and sacrifices of countless journeyman lineworkers who often place themselves in harm's way to serve their customers and their communities; and

(3) encourages the people of the United States to observe Journeyman Lineworkers Recognition Day with appropriate reflection.

SENATE CONCURRENT RESOLUTION 14—EXPRESSING THE SENSE OF CONGRESS SUPPORTING THE STATE OF ISRAEL

Mr. COTTON (for himself, Mr. BOOZMAN, Mr. HAGERTY, Mr. DAINES, Mr. GRASSLEY, Mr. HOEVEN, Mr. GRAHAM, Mr. SCOTT of Florida, Mr. SCHMITT, Mr. CRAMER, Mr. BRAUN, Mr. TILLIS, Mr. VANCE, Ms. MURKOWSKI, Mr. CRUZ, Mrs. CAPITO, Mrs. BRITT, Mr. CRAPO, Mrs. BLACKBURN, Mr. SCOTT of South Carolina, Mr. KENNEDY, Ms. ERNST, Mrs. HYDE-SMITH, Mr. BARRASSO, Mr. SULLIVAN, Mrs. FISCHER, Mr. CORNYN, Mr. RUBIO, and Mr. CASSIDY) submitted the following concurrent resolution; which was referred to the Committee on Foreign Relations:

S. CON. RES. 14

Resolved by the Senate (the House of Representatives concurring), That it is the sense of Congress that—

(1) the State of Israel is not a racist or apartheid state;

(2) Congress rejects all forms of antisemitism and xenophobia; and

(3) the United States will always be a staunch partner and supporter of Israel.

SENATE CONCURRENT RESOLUTION 15—CALLING ON THE MEDIA TO ENGAGE IN RESPONSIBLE AND VOLUNTARY JOURNALISTIC PRACTICES TO DENY MASS PUBLIC MURDERERS THE ATTENTION THEY DESIRE AND MINIMIZE ANY POSSIBLE ''MEDIA CONTAGION EFFECT'' OF IRRESPONSIBLE AND SENSATIONALISTIC REPORTING PRACTICES

Mr. LEE submitted the following concurrent resolution; which was referred to the Committee on the Judiciary:

S. CON. RES. 15

Whereas all acts of mass public murder are shameful, cowardly, sickening, and hereby condemned;

Whereas many mass public murderers have openly stated their intention to commit mass murder to gain notoriety, infamy, and affect changes in public policy;

Whereas the United States media widely publicizes these murderers' names, photographs, life stories, motivations, social media posts, and manifestos, giving criminals the notoriety and infamy they desire;

Whereas media coverage of a mass public murderer routinely outweighs the coverage of the victims;

Whereas many mass public murderers have researched, studied, and idolized past acts of violence using the sensationalistic coverage provided by many media outlets;

Whereas peer reviewed research adds to a growing body of evidence suggesting that current media coverage practices concerning mass public shootings demonstrably increase the likelihood of future mass public murders, including—

(1) a 2016 study entitled ''Mass Shootings and the Media Contagion Effect'' published by the American Psychological Association, which suggests a media contagion effect;

(2) a 2017 study entitled ''Mass Shootings: The Role of the Media in Promoting Generalized Imitation'' published in the American Journal of Public Health, which suggests a generalized imitation effect; and

(3) a 2022 study entitled ''News coverage and mass shootings in the US'' published in the European Economic Review, which suggests a behavioral contagion mechanism;

Whereas research by the Violence Project suggests that mass public shootings are linked to and may be a form of suicide; and

Whereas the media has found ways to responsibly and voluntarily limit coverage of other sensitive topics such as suicide, kidnapping, and national security for the common good: Now, therefore, be it

Resolved by the Senate (the House of Representatives concurring), That Congress calls upon the media to voluntarily and responsibly—

(1) cover mass public murderers with the similar sensitivity as other forms of suicide completion, with the understanding that a media contagion effect may encourage additional tragedies;

(2) prioritize memorialization and coverage of the names, faces, and life stories of innocent victims killed or injured in a mass public murder;

(3) prioritize coverage of the heroism of any law enforcement, first responders, or bystanders that intervene, interrupt the attack, kill or subdue the mass public murderer, or otherwise assist the victims with critical medical assistance;

(4) minimize harm by implementing policies and procedures to deny mass public murderers the infamy, notoriety, and public platform they desire;

(5) deny mass public murderers their publicity-related motives and intended goals, such as the promotion of a particular ideology or public policy change;

(6) not name suspected public murderers, except when the alleged assailant is still at large and it would aid in the suspect's capture;

(7) not publish photos of a suspected public murderer, except when the alleged assailant is still at large and it would aid in the suspect's capture;

(8) avoid utilizing flattering social media profile pictures and other imagery the mass public murderer proudly took of themselves, shared with others, or posted on social media;

(9) refrain from naming mass public murderers in headlines and from displaying photos of mass public murderers above the fold of any print copy or at the top of any website's home page; and

(10) promote data and analysis in mental health, criminology, public safety, self-defense, security, and other relevant professions to support further steps to help eliminate the motivations behind mass public murder and deter future attacks.

AMENDMENTS SUBMITTED AND PROPOSED

SA 807. Mr. MENENDEZ submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table.

SA 808. Mr. MENENDEZ submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 809. Mr. SCHATZ (for himself, Mr. MORAN, and Ms. HIRONO) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 810. Mr. MANCHIN (for himself, Mr. BARRASSO, Ms. HIRONO, Mr. RISCH, Mr. HEINRICH, and Mr. WYDEN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 811. Mr. TESTER submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 812. Mr. KING (for himself and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 813. Mr. ROUNDS (for himself, Mr. TESTER, Mr. DAINES, Mr. KENNEDY, and Ms. LUMMIS) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 814. Mr. CORNYN (for himself, Mr. PETERS, Mr. YOUNG, and Mr. LEE) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 815. Mr. SULLIVAN submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 816. Mr. CORNYN (for himself and Mr. PADILLA) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 817. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 818. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 819. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 820. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 821. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 822. Mr. BARRASSO (for himself and Mr. CARDIN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 823. Mr. ROMNEY (for himself, Mr. VAN HOLLEN, Mr. SULLIVAN, Mr. CORNYN, Mr. SCOTT of South Carolina, and Mr. BRAUN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 824. Mr. DAINES submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 825. Mr. FETTERMAN submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 826. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 827. Mr. BROWN (for himself and Mr. VANCE) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 828. Mr. BROWN (for himself and Mr. COTTON) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 829. Mr. ROUNDS (for himself, Mr. SCHUMER, Mr. YOUNG, and Mr. HEINRICH) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 830. Mr. WICKER (for himself, Mr. SCOTT of South Carolina, Ms. ERNST, and Mr. GRAHAM) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 831. Mr. WELCH submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 832. Mr. WELCH (for himself, Mr. TILLIS, and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 833. Mr. REED (for himself and Mr. WICKER) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 834. Mrs. GILLIBRAND (for herself and Ms. WARREN) submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 835. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 836. Mr. SCHUMER (for himself, Mr. ROUNDS, Mr. RUBIO, Mrs. GILLIBRAND, Mr. YOUNG, and Mr. HEINRICH) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 837. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 838. Mr. HAWLEY (for himself and Mr. VANCE) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 839. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 840. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 841. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 842. Mr. YOUNG (for himself and Mr. CARPER) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 843. Mr. WYDEN (for himself, Mr. LEE, and Mr. DURBIN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 844. Mr. HAGERTY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 845. Mr. HAGERTY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 846. Mr. SULLIVAN (for himself and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 847. Mr. WARNOCK submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 848. Mrs. FEINSTEIN submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 849. Mr. GRASSLEY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 850. Ms. CORTEZ MASTO submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 851. Mr. DURBIN submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 852. Mr. DURBIN (for himself and Ms. WARREN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 853. Mr. DURBIN submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 854. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 855. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 856. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 857. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 858. Mr. TILLIS (for himself and Mr. BUDD) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 859. Mr. CRUZ submitted an amendment intended to be proposed by him to the

bill S. 2226, supra; which was ordered to lie on the table.

SA 860. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 861. Mr. KENNEDY (for himself, Mr. CASSIDY, and Ms. ROSEN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 862. Mr. MARSHALL (for himself, Mr. DURBIN, and Mr. WELCH) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 863. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 864. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 865. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 866. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 867. Mr. CARDIN (for himself and Mrs. SHAHEEN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 868. Mr. CARDIN (for himself and Mrs. SHAHEEN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 869. Ms. CANTWELL submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 870. Mrs. CAPITO (for herself and Mr. CARPER) submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 871. Mr. BRAUN (for himself and Ms. WARREN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 872. Ms. KLOBUCHAR (for herself, Mr. CRAMER, Mr. CARPER, and Mr. DAINES) submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 873. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 874. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 875. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 876. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 877. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 878. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 879. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 880. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 881. Mr. MERKLEY (for himself and Mr. CRAMER) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 882. Mr. MERKLEY (for himself and Mr. YOUNG) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 883. Mr. MERKLEY (for himself and Mr. VAN HOLLEN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 884. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 885. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 886. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 887. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 888. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 889. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 890. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 891. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 892. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 893. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 894. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 895. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 896. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 897. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 898. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 899. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 900. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 901. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 902. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 903. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 904. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 905. Mr. KENNEDY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 906. Mr. SCHMITT submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 907. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 908. Mr. OSSOFF (for himself and Ms. ERNST) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 909. Mr. OSSOFF (for himself and Mr. WARNOCK) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 910. Mr. PADILLA (for himself and Mr. CORNYN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 911. Ms. CANTWELL submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 912. Mr. WARNER submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 913. Mr. WARNER submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 914. Mr. WARNER submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 915. Mr. WARNER (for himself and Mr. BRAUN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 916. Mr. MORAN (for himself and Mr. WARNOCK) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 917. Mr. GRAHAM (for himself and Mr. BLUMENTHAL) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 918. Mr. OSSOFF (for himself and Mr. ROUNDS) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 919. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 920. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 921. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 922. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 923. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 924. Mr. RICKETTS submitted an amendment intended to be proposed by him

to the bill S. 2226, supra; which was ordered to lie on the table.

SA 925. Mr. TESTER (for himself and Mr. ROUNDS) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 926. Mr. CRUZ (for himself, Mr. MANCHIN, Ms. ERNST, and Mr. FETTERMAN) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 927. Mr. COTTON submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 928. Mrs. SHAHEEN (for herself and Mr. GRAHAM) submitted an amendment intended to be proposed by her to the bill S. 2226, supra; which was ordered to lie on the table.

SA 929. Mr. MURPHY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 930. Mr. MURPHY submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 931. Mr. CORNYN (for himself, Mr. CASEY, Mr. SULLIVAN, Ms. STABENOW, Mr. CRAMER, Mr. FETTERMAN, and Mr. RICKETTS) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 932. Mr. MENENDEZ (for himself and Mr. RISCH) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 933. Mr. MENENDEZ (for himself, Mr. KAINE, Mr. SCHATZ, and Mr. SCHUMER) submitted an amendment intended to be proposed by him to the bill S. 2226, supra; which was ordered to lie on the table.

SA 934. Mr. SCHUMER (for Mr. CORNYN) submitted an amendment intended to be proposed by Mr. Schumer to the bill S. 794, to require a pilot program on the participation of non-asset-based third-party logistics providers in the Customs-Trade Partnership Against Terrorism.

TEXT OF AMENDMENTS

SA 807. Mr. MENENDEZ submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

DIVISION F—INTERNATIONAL TRAFFICKING VICTIMS PROTECTION REAUTHORIZATION ACT OF 2023

SEC. 6001. SHORT TITLE.

This division may be cited as the ''International Trafficking Victims Protection Reauthorization Act of 2023''

TITLE LXI—COMBATING HUMAN TRAFFICKING ABROAD

SEC. 6101. UNITED STATES SUPPORT FOR INTEGRATION OF ANTI-TRAFFICKING IN PERSONS INTERVENTIONS IN MULTILATERAL DEVELOPMENT BANKS.

(a) REQUIREMENTS.—The Secretary of the Treasury, in consultation with the Secretary of State acting through the Ambassador-at-Large to Monitor and Combat Trafficking in Persons, shall instruct the United States Executive Director of each multilateral development bank (as defined in section 110(d) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(d))) to encourage the inclusion of a counter-trafficking strategy, including risk assessment and mitigation efforts as needed, in proposed projects in countries listed—

(1) on the Tier 2 Watch List (required under section 110(b)(2)(A) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)(2)(A)), as amended by section 104(a));

(2) under subparagraph (C) of section 110(b)(1) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)(1)) (commonly referred to as ''tier 3''); and

(3) as Special Cases in the most recent report on trafficking in persons required under such section (commonly referred to as the ''Trafficking in Persons Report'').

(b) BRIEFINGS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Treasury, in consultation with the Secretary of State, shall brief the appropriate congressional committees regarding the implementation of this section.

(c) GAO REPORT.—Not later than 2 years after the date of the enactment of this Act, the Comptroller General of the United States shall submit to the appropriate congressional committees a report that details the activities of the United States relating to combating human trafficking, including forced labor, within multilateral development projects.

(d) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(2) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

SEC. 6102. EXPANDING PREVENTION EFFORTS AT THE UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT.

(a) IN GENERAL.—In order to strengthen prevention efforts by the United States abroad, the Administrator of the United States Agency for International Development (referred to in this section as the ''Administrator'') shall, to the extent practicable and appropriate—

(1) encourage the integration of activities to counter trafficking in persons (referred to in this section as ''C-TIP'') into broader assistance programming;

(2) determine a reasonable definition for the term ''C-TIP Integrated Development Programs,'' which shall include any programming to address health, food security, economic development, education, democracy and governance, and humanitarian assistance that includes a sufficient C-TIP element; and

(3) ensure that each mission of the United States Agency for International Development (referred to in this section as ''USAID'')—

(A) integrates a C-TIP component into development programs, project design, and methods for program monitoring and evaluation, as necessary and appropriate, when addressing issues, including—

(i) health;

(ii) food security;

(iii) economic development;

(iv) education;

(v) democracy and governance; and

(vi) humanitarian assistance;

(B) continuously adapts, strengthens, and implements training and tools related to the integration of a C-TIP perspective into the work of development actors; and

(C) encourages USAID Country Development Cooperation Strategies to include C-TIP components in project design, implementation, monitoring, and evaluation, as necessary and appropriate.

(b) REPORTS AND BRIEFINGS REQUIRED.—

(1) IN GENERAL.—Not later than 1 year after the date of the enactment of an Act making appropriations for the Department of State, Foreign Operations, and Related Programs through fiscal year 2027, the Secretary of State, in consultation with the Administrator, shall submit to the appropriate congressional committees a report on obligations and expenditures of all funds managed by the Department of State and USAID in the prior fiscal year to combat human trafficking and forced labor, including integrated C-TIP activities.

(2) CONTENTS.—The report required by paragraph (1) shall include—

(A) a description of funding aggregated by program, project, and activity; and

(B) a description of the management structure at the Department of State and USAID used to manage such programs.

(3) BIENNIAL BRIEFING.—Not later than 6 months of after the date of the enactment of this Act, and every 2 years thereafter through fiscal year 2027, the Secretary of State, in consultation with the Administrator, shall brief the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives on the implementation of subsection (a).

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(2) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

SEC. 6103. COUNTER-TRAFFICKING IN PERSONS EFFORTS IN DEVELOPMENT COOPERATION AND ASSISTANCE POLICY.

The Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) is amended—

(1) in section 102(b)(4)(22 U.S.C. 2151–1(b)(4))—

(A) in subparagraph (F), by striking ''and'' at the end;

(B) in subparagraph (G), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(H) effective counter-trafficking in persons policies and programs.''; and

(2) in section 492(d)(1)(22 U.S.C. 2292a(d)(1))—

(A) by striking ''that the funds'' and inserting the following: ''that—

''(A) the funds'';

(B) in subparagraph (A), as added by subparagraph (A) of this paragraph, by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(B) in carrying out the provisions of this chapter, the President shall, to the greatest extent possible—

''(i) ensure that assistance made available under this section does not create or contribute to conditions that can be reasonably expected to result in an increase in trafficking in persons who are in conditions of heightened vulnerability as a result of natural and manmade disasters; and

''(ii) integrate appropriate protections into the planning and execution of activities authorized under this chapter.''.

SEC. 6104. TECHNICAL AMENDMENTS TO TIER RANKINGS.

(a) MODIFICATIONS TO TIER 2 WATCH LIST.—Section 110(b)(2) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)(2)), is amended—

(1) in the paragraph heading, by striking ''SPECIAL'' and inserting ''TIER 2''; and

(2) in subparagraph (A)—

(A) by striking ''of the following countries'' and all that follows through ''annual report, where—''and inserting ''of countries that have been listed pursuant to paragraph (1)(B) pursuant to the current annual report, in which—''; and

(B) by redesignating subclauses (I) and (II) as clauses (i) and (ii), respectively, and moving such clauses (as so redesignated) 2 ems to the left.

(b) MODIFICATION TO SPECIAL RULE FOR DOWNGRADED AND REINSTATED COUNTRIES.—Section 110(b)(2)(F) of such Act (22 U.S.C. 7107(b)(2)(F)) is amended—

(1) in the matter preceding clause (i), by striking ''special watch list described in subparagraph (A)(iii) for more than 1 consecutive year after the country'' and inserting ''Tier 2 watch list described in subparagraph (A) for more than one year immediately after the country consecutively'';

(2) in clause (i), in the matter preceding subclause (I), by striking ''special watch list described in subparagraph (A)(iii)'' and inserting ''Tier 2 watch list described in subparagraph (A)''; and

(3) in clause (ii), by inserting ''in the year following such waiver under subparagraph (D)(ii)'' after ''paragraph (1)(C)''.

(c) CONFORMING AMENDMENTS.—

(1) TRAFFICKING VICTIMS PROTECTION ACT OF 2000.—Section 110(b) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)), as amended by subsections (a) and (b), is further amended—

(A) in paragraph (2)—

(i) in subparagraph (B), by striking ''special watch list'' and inserting ''Tier 2 watch list'';

(ii) in subparagraph (C)—

(I) in the subparagraph heading, by striking ''SPECIAL WATCH LIST'' and inserting ''TIER 2 WATCH LIST''; and

(II) by striking ''special watch list'' and inserting ''Tier 2 watch list''; and

(iii) in subparagraph (D)—

(I) in the subparagraph heading, by striking ''SPECIAL WATCH LIST'' and inserting ''TIER 2 WATCH LIST''; and

(II) in clause (i), by striking ''special watch list'' and inserting ''Tier 2 watch list'';

(B) in paragraph (3)(B), in the matter preceding clause (i), by striking ''clauses (i), (ii), and (iii) of''; and

(C) in paragraph (4)—

(i) in subparagraph (A), in the matter preceding clause (i), by striking ''each country described in paragraph (2)(A)(ii)'' and inserting ''each country described in paragraph (2)(A)''; and

(ii) in subparagraph (D)(ii), by striking ''the Special Watch List'' and inserting ''the Tier 2 watch list''.

(2) FREDERICK DOUGLASS TRAFFICKING VICTIMS PREVENTION AND PROTECTION REAUTHORIZATION ACT OF 2018.—Section 204(b)(1) of the Frederick Douglass Trafficking Victims Prevention and Protection Reauthorization Act of 2018 (Public Law 115–425) is amended by striking ''special watch list'' and inserting ''Tier 2 watch list''.

SEC. 6105. MODIFICATIONS TO THE PROGRAM TO END MODERN SLAVERY.

(a) IN GENERAL.—Section 1298 of the National Defense Authorization Act for Fiscal Year 2017 (22 U.S.C. 7114) is amended—

(1) in subsection (a)(1), by striking ''Not later than 90 days after the date of the enactment of this Act'' and inserting ''Not later than 90 days after the date of the enactment of the International Trafficking Victims Protection Reauthorization Act of 2023'';

(2) in subsection (g)—

(A) by striking ''APPROPRIATIONS'' in the heading and all that follows through ''There is authorized'' and inserting ''APPROPRIATIONS .—There is authorized''; and

(B) by striking paragraph (2); and

(3) in subsection (h)(1), by striking ''Not later than September 30, 2018, and September 30, 2020'' and inserting ''Not later than September 30, 2023, and September 30, 2027''.

(b) ELIGIBILITY.—To be eligible for funding under the Program to End Modern Slavery of the Office to Monitor and Combat Trafficking in Persons, a grant recipient shall—

(1) publish the names of all subgrantee organizations on a publicly available website; or

(2) if the subgrantee organization expresses a security concern, the grant recipient shall relay such concerns to the Secretary of State, who shall transmit annually the names of all subgrantee organizations in a classified annex to the chairs of the appropriate congressional committees (as defined in section 1298(i) of the National Defense Authorization Act of 2017 (22 U.S.C. 7114(i))).

(c) AWARD OF FUNDS.—All grants issued under the program referred to in subsection (b) shall be—

(1) awarded on a competitive basis; and

(2) subject to the regular congressional notification procedures applicable with respect to grants made available under section 1298(b) of the National Defense Authorization Act of 2017 (22 U.S.C. 7114(b)).

SEC. 6106. CLARIFICATION OF NONHUMANITARIAN, NONTRADE-RELATED FOREIGN ASSISTANCE.

(a) CLARIFICATION OF SCOPE OF WITHHELD ASSISTANCE.—Section 110(d)(1) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(d)(1)) is amended to read as follows:

''(1) WITHHOLDING OF ASSISTANCE.—The President has determined that—

''(A) the United States will not provide nonhumanitarian, nontrade-related foreign assistance to the central government of the country or funding to facilitate the participation by officials or employees of such central government in educational and cultural exchange programs, for the subsequent fiscal year until such government complies with the minimum standards or makes significant efforts to bring itself into compliance; and

''(B) the President will instruct the United States Executive Director of each multilateral development bank and of the International Monetary Fund to vote against, and to use the Executive Director's best efforts to deny, any loan or other utilization of the funds of the respective institution to that country (other than for humanitarian assistance, for trade-related assistance, or for development assistance that directly addresses basic human needs, is not administered by the central government of the sanctioned country, and is not provided for the benefit of that government) for the subsequent fiscal year until such government complies with the minimum standards or makes significant efforts to bring itself into compliance.''.

(b) DEFINITION OF NON-HUMANITARIAN, NONTRADE RELATED ASSISTANCE.—Section 103(10) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102(10)) is amended to read as follows:

''(10) NONHUMANITARIAN, NONTRADE-RELATED FOREIGN ASSISTANCE.—

''(A) IN GENERAL.—The term 'nonhumanitarian, nontrade-related foreign assistance' means—

''(i) United States foreign assistance, other than—

''(I) with respect to the Foreign Assistance Act of 1961—

''(aa) assistance for international narcotics and law enforcement under chapter 8 of part I of such Act (22 U.S.C. 2291 et seq.);

''(bb) assistance for International Disaster Assistance under subsections (b) and (c) of section 491 of such Act (22 U.S.C. 2292);

''(cc) antiterrorism assistance under chapter 8 of part II of such Act (22 U.S.C. 2349aa et seq.); and

''(dd) health programs under chapters 1 and 10 of part I and chapter 4 of part II of such Act (22 U.S.C. 2151 et seq.);

''(II) assistance under the Food for Peace Act (7 U.S.C. 1691 et seq.);

''(III) assistance under sections 2(a), (b), and (c) of the Migration and Refugee Assistance Act of 1962 (22 U.S.C. 2601(a), (b), (c)) to meet refugee and migration needs;

''(IV) any form of United States foreign assistance provided through nongovernmental organizations, international organizations, or private sector partners—

''(aa) to combat human and wildlife trafficking;

''(bb) to promote food security;

''(cc) to respond to emergencies;

''(dd) to provide humanitarian assistance;

''(ee) to address basic human needs, including for education;

''(ff) to advance global health security; or

''(gg) to promote trade; and

''(V) any other form of United States foreign assistance that the President determines, by not later than October 1 of each fiscal year, is necessary to advance the security, economic, humanitarian, or global health interests of the United States without compromising the steadfast U.S. commitment to combatting human trafficking globally; or

''(ii) sales, or financing on any terms, under the Arms Export Control Act (22 U.S.C. 2751 et seq.), other than sales or financing provided for narcotics-related purposes following notification in accordance with the prior notification procedures applicable to reprogrammings pursuant to section 634A of the Foreign Assistance Act of 1961 (22 U.S.C. 2394–1).

''(B) EXCLUSIONS.—The term 'nonhumanitarian, nontrade-related foreign assistance' shall not include payments to or the participation of government entities necessary or incidental to the implementation of a program that is otherwise consistent with section 110.''.

SEC. 6107. EXPANDING PROTECTIONS FOR DOMESTIC WORKERS OF OFFICIAL AND DIPLOMATIC VISA HOLDERS.

Section 203(b) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1375c(b)) is amended by inserting after paragraph (4) the following:

''(5) NATIONAL EXPANSION OF IN-PERSON REGISTRATION PROGRAM.—The Secretary shall administer the Domestic Worker In-Person Registration Program for employees with A–3 visas or G–5 visas employed by accredited foreign mission members or international organization employees and shall expand this program nationally, which shall include—

''(A) after the arrival of each such employee in the United States, and annually during the course of such employee's employment, a description of the rights of such employee under applicable Federal and State law; and

''(B) provision of a copy of the pamphlet developed pursuant to section 202 to the employee with an A–3 visa or a G–5 visa; and

''(C) information on how to contact the National Human Trafficking Hotline.

''(6) MONITORING AND TRAINING OF A–3 AND G–5 VISA EMPLOYERS ACCREDITED TO FOREIGN MISSIONS AND INTERNATIONAL ORGANIZATIONS.—The Secretary shall—

''(A) inform embassies, international organizations, and foreign missions of the rights of A–3 and G–5 domestic workers under the applicable labor laws of the United States,

including the fair labor standards described in the pamphlet developed pursuant to section 202. Information provided to foreign missions, embassies, and international organizations should include material on labor standards and labor rights of domestic worker employees who hold A–3 and G–5 visas;

''(B) inform embassies, international organizations, and foreign missions of the potential consequences to individuals holding a nonimmigrant visa issued pursuant to subparagraph (A)(i), (A)(ii), (G)(i), (G)(ii), or (G)(iii) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)) who violate the laws described in subclause (I)(aa), including (at the discretion of the Secretary)—

''(i) the suspension of A–3 visas and G–5 visas;

''(ii) request for waiver of immunity;

''(iii) criminal prosecution;

''(iv) civil damages; and

''(v) permanent revocation of or refusal to renew the visa of the accredited foreign mission or international organization employee; and

''(C) require all accredited foreign mission and international organization employers of individuals holding A–3 visas or G–5 visas to report the wages paid to such employees on an annual basis.''.

SEC. 6108. EFFECTIVE DATES.

Sections 6104(b) and 6106 and the amendments made by those sections take effect on the date that is the first day of the first full reporting period for the report required by section 110(b)(1) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)(1)) after the date of the enactment of this Act.

TITLE LXII—AUTHORIZATION OF APPROPRIATIONS

SEC. 6201. EXTENSION OF AUTHORIZATIONS UNDER THE VICTIMS OF TRAFFICKING AND VIOLENCE PROTECTION ACT OF 2000.

Section 113 of the Victims of Trafficking and Violence Protection Act of 2000 (22 U.S.C. 7110) is amended—

(1) in subsection (a), by striking ''2018 through 2021, $13,822,000'' and inserting ''2024 through 2027, $17,000,000''; and

(2) in subsection (c)(1)—

(A) in the matter preceding subparagraph (A), by striking ''2018 through 2021, $65,000,000'' and inserting ''2024 through 2027, $102,500,000, of which $22,000,000 shall be made available each fiscal year to the United States Agency for International Development and the remainder of'';

(B) in subparagraph (C), by striking ''; and'' at the end and inserting a semicolon;

(C) in subparagraph (D), by striking the period at the end and inserting ''; and''; and

(D) by adding at the end the following:

''(E) to fund programs to end modern slavery, in an amount not to exceed $37,500,000 for each of the fiscal years 2024 through 2027.''.

SEC. 6202. EXTENSION OF AUTHORIZATIONS UNDER THE INTERNATIONAL MEGAN'S LAW.

Section 11 of the International Megan's Law to Prevent Child Exploitation and Other Sexual Crimes Through Advanced Notification of Traveling Sex Offenders (34 U.S.C. 21509) is amended by striking ''2018 through 2021'' and inserting ''2024 through 2027''.

TITLE LXIII—BRIEFINGS

SEC. 6301. BRIEFING ON ANNUAL TRAFFICKING IN PERSON'S REPORT.

Not later than 30 days after the public designation of country tier rankings and subsequent publishing of the Trafficking in Persons Report, the Secretary of State shall brief the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives on—

(1) countries that were downgraded or upgraded in the most recent Trafficking in Persons Report; and

(2) the efforts made by the United States to improve counter-trafficking efforts in those countries, including foreign government efforts to better meet minimum standards to eliminate human trafficking.

SEC. 6302. BRIEFING ON USE AND JUSTIFICATION OF WAIVERS.

Not later than 30 days after the President has determined to issue a waiver under section 110(d)(5) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(d)(5)), the Secretary of State shall brief the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives on—

(a) each country that received a waiver;

(b) the justification for each such waiver; and

(c) a description of the efforts made by each country to meet the minimum standards to eliminate human trafficking.

SA 808. Mr. MENENDEZ submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

Subtitle ____—Iran Sanctions

SEC. _____1. SHORT TITLES.

This subtitle may be cited as the ''Making Iran Sanctions Stick In Lieu of Expiration of Sanctions Act'' or the ''MISSILES Act''.

SEC. _____2. FINDINGS.

Congress makes the following findings:

(1) Annex B to United Nations Security Council Resolution 2231 (2015) restricts certain missile-related activities and transfers to and from Iran, including all items, materials, equipment, goods, and technology set out in the Missile Technology Control Regime Annex, absent advance, case-by-case approval from the United Nations Security Council.

(2) Iran has transferred Shahed and Mohajer drones, covered under the Missile Technology Control Regime Annex, to the Russian Federation, the Government of Ethiopia, and other Iran-aligned entities, including the Houthis in Yemen and militia units in Iraq, without prior authorization from the United Nations Security Council, in violation of the restrictions set forth in Annex B to United Nations Security Council Resolution 2231.

(3) Absent action by the United Nations Security Council, certain missile-related restrictions in Annex B to United Nations Security Council Resolution 2231 will expire in October 2023, removing international legal restrictions on missile-related activities and transfers to and from Iran.

SEC. _____3. STATEMENT OF POLICY.

It is the policy of the United States—

(1) to combat and deter the transfer of conventional and non-conventional arms, equipment, material, and technology to or from Iran, or involving the Government of Iran;

(2) to ensure countries, individuals, and entities engaged in, or attempting to engage in, the acquisition, facilitation, or development of arms and related components and technology and subject to restrictions under Annex B to United Nations Security Council Resolution 2231 are held to account under United States and international law, including through the application and enforcement of sanctions and use of export controls, regardless of whether the restrictions under Annex B to United Nations Security Council Resolution 2231 remain in effect following their anticipated expiration in October 2023;

(3) to urgently seek the extension of missile-related restrictions set forth in Annex B to United Nations Security Council Resolution 2231 (2015); and

(4) to use all available authorities to constrain Iran's domestic ballistic missile production capabilities.

SEC. _____4. DEFINITIONS.

In this subtitle:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations of the Senate;

(B) the Committee on Banking, Housing, and Urban Affairs of the Senate;

(C) the Committee on Foreign Affairs of the House of Representatives; and

(D) the Committee on the Judiciary of the House of Representatives.

(2) COVERED TECHNOLOGY.—The term ''covered technology'' means—

(A) any goods, technology, software, or related material specified in the Missile Technology Control Regime Annex, as in effect on the day before the date of the enactment of this Act; and

(B) any additional goods, technology, software, or related material added to the Missile Technology Control Regime Annex after the day before the date of the enactment of this Act.

(3) FOREIGN PERSON.—The term ''foreign person''—

(A) means an individual or entity that is not a United States person; and

(B) includes a foreign state (as such term is defined in section 1603 of title 28, United States Code).

(4) GOOD.—The term ''good'' means any article, natural or manmade substance, material, supply or manufactured product, including inspection and test equipment, and excluding technical data.

(5) GOVERNMENT OF IRAN.—The term ''Government of Iran'' has the meaning given such term in section 560.304 of title 31, Code of Federal Regulations, as such section was in effect on January 1, 2021.

(6) IRAN-ALIGNED ENTITY.—The term ''Iran-aligned entity'' means a foreign person that—

(A) is controlled or reports directly to the Government of Iran; and

(B) knowingly receives material or financial support from the Government of Iran, including Hezbollah, Ansar Allah, or another Iranian-backed proxy group.

(7) KNOWINGLY.—The term ''knowingly'' has the meaning given such term in section 14(13) of the Iran Sanctions Act of 1996 (50 U.S.C. 1701 note).

(8) MISSILE TECHNOLOGY CONTROL REGIME.—The term ''Missile Technology Control Regime'' means the policy statement between the United States, the United Kingdom, the Federal Republic of Germany, France, Italy, Canada, and Japan that was announced on April 16, 1987, to restrict sensitive missile-relevant transfers based on the Missile Technology Control Regime Annex, and any amendments thereto or expansions thereof, as in effect on the day before the date of the enactment of this Act.

(9) MISSILE TECHNOLOGY CONTROL REGIME ANNEX.—The term ''Missile Technology Control Regime Annex'' means the Guidelines and Equipment and Technology Annex of the Missile Technology Control Regime, and any amendments thereto or updates thereof, as

in effect on the day before the date of the enactment of this Act.

(10) UNITED STATES PERSON.—The terms ''United States person'' means—

(A) a United States citizen;

(B) a permanent resident alien of the United States;

(C) an entity organized under the laws of the United States or of any jurisdiction within the United States, including a foreign branch of such an entity; or

(D) a person in the United States.

SEC. _____5. DEPARTMENT OF STATE REPORT ON DIPLOMATIC STRATEGY AND OTHER ASPECTS OF UNITED NATIONS SECURITY COUNCIL RESOLUTION 2231 EXPIRATIONS.

Not later than 90 days after the date of the enactment of this Act, and annually thereafter for the following 4 years, the Secretary of State, in coordination with the heads of other relevant departments and agencies, shall submit to the appropriate congressional committees an unclassified report, with a classified annex, if necessary, that includes—

(1) a diplomatic strategy to secure the renewal of international restrictions on certain missile-related activities, including transfers to and from Iran set forth in Annex B to United Nations Security Council Resolution 2231 (2015) before October 2023;

(2) an analysis of how the expiration of missile-related restrictions set forth in Annex B to United Nations Security Council Resolution 2231 would impact the Government of Iran's arms proliferation and malign activities, including as the restrictions relate to cooperation with, and support for, Iran-aligned entities and allied countries;

(3) an assessment of the revenue, or non-cash benefits, to be accrued by the Government of Iran, or Iran-aligned entities, as a result of a lapse in missile-related restrictions set forth in Annex B to United Nations Security Council Resolution 2231;

(4) a detailed description of the United States strategy to deter, prevent, and disrupt the sale, purchase, or transfer of covered technology involving Iran absent restrictions set forth in Annex B to United Nations Security Council Resolution 2231;

(5) the identification of any foreign person engaging in, enabling, or otherwise facilitating any activity involving Iran restricted under Annex B to United Nations Security Council Resolution 2231, regardless of whether such restrictions remain in effect after October 2023;

(6) a description of actions by the United Nations and other multilateral organizations, including the European Union, to hold accountable foreign persons that have violated the restrictions set forth in Annex B to United Nations Security Council Resolution 2231, and efforts to prevent further violations of such restrictions;

(7) a description of actions by individual member states of the United Nations Security Council to hold accountable foreign persons that have violated restrictions set forth in Annex B to United Nations Security Council Resolution 2231 and efforts to prevent further violations of such restrictions;

(8) a description of actions taken by the People's Republic of China, the Russian Federation, or any other country to prevent, interfere with, or undermine efforts to hold accountable foreign persons that have violated the restrictions set forth in Annex B to United Nations Security Council Resolution 2231, including actions to restrict United Nations-led investigations into suspected violations of such restrictions, or limit funding to relevant United Nations offices or experts;

(9) an analysis of the foreign and domestic supply chains in Iran that directly or indirectly facilitate, support, or otherwise aid the Government of Iran's drone or missile program, including storage, transportation, or flight-testing of related goods, technology, or components;

(10) the identification of any foreign entity or entities that enables, supports, or otherwise facilitates the operations or maintenance of any Iranian airline subject to United States sanctions or export control restrictions;

(11) an assessment of how the continued operation of Iranian airlines subject to United States sanctions or export control restrictions impacts the Government of Iran's ability to transport or develop arms, including covered technology; and

(12) a description of actions taken by the People's Republic of China, the Russian Federation, or any other country that have violated the restrictions set forth in Annex B of United Nations Security Council Resolution 2231, including any purchase, transfer, or acquisition of covered technology or component parts.

SEC. _____6. COMBATING THE PROLIFERATION OF IRANIAN MISSILES.

(a) IN GENERAL.—The actions, including sanctions, described in subsection (b) shall apply to any foreign person the President determines, on or after the date of the enactment of this Act—

(1) knowingly engages in any effort to acquire, possess, develop, transport, transfer, or deploy covered technology to, from, or involving the Government of Iran or Iran-aligned entities, regardless of whether the restrictions set forth in Annex B to United Nations Security Council Resolution 2231 (2015) remain in effect after October 2023;

(2) knowingly provides entities owned or controlled by the Government of Iran or Iran-aligned entities with goods, technology, parts, or components, that may contribute to the development of covered technology;

(3) knowingly participates in joint missile or drone development, including development of covered technology, with the Government of Iran or Iran-aligned entities, including technical training, storage, and transport;

(4) knowingly imports, exports, or re-exports to, into, or from Iran, whether directly or indirectly, any significant arms or related materiel prohibited under paragraph (5) or (6) to Annex B of United Nations Security Council Resolution 2231 (2015) as of April 1, 2023; or

(5) knowingly provides significant financial, material, or technological support to, or knowingly engages in a significant transaction with, a foreign person subject to sanctions for conduct described in paragraph (1), (2), (3), or (4).

(b) SANCTIONS DESCRIBED.—The sanctions described in this subsection are the following:

(1) BLOCKING OF PROPERTY.—The President shall exercise all authorities granted under the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) to the extent necessary to block and prohibit all transactions in property and interests in property of the foreign person if such property and interests in property are in the United States, come within the United States, or come within the possession or control of a United States person.

(2) INELIGIBILITY FOR VISAS, ADMISSION, OR PAROLE.—

(A) VISAS, ADMISSION, OR PAROLE.—An alien described in subsection (a) shall be—

(i) inadmissible to the United States;

(ii) ineligible to receive a visa or other documentation to enter the United States; and

(iii) otherwise ineligible to be admitted or paroled into the United States or to receive any other benefit under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(B) CURRENT VISAS REVOKED.—

(i) IN GENERAL.—The visa or other entry documentation of any alien described in subsection (a) is subject to revocation regardless of the issue date of the visa or other entry documentation.

(ii) IMMEDIATE EFFECT.—A revocation under clause (i) shall, in accordance with section 221(i) of the Immigration and Nationality Act (8 U.S.C. 1201(i))—

(I) take effect immediately; and

(II) cancel any other valid visa or entry documentation that is in the possession of the alien.

(c) PENALTIES.—Any person that violates, or attempts to violate, subsection (a) or any regulation, license, or order issued pursuant to that subsection, shall be subject to the penalties set forth in subsections (b) and (c) of section 206 of the International Economic Powers Act (50 U.S.C. 1705) to the same extent as a person that commits an unlawful act described in subsection (a) of that section.

(d) WAIVER.—The President may waive the application of sanctions under this section with respect to a foreign person only if, not later than 15 days before the date on which the waiver is to take effect, the President submits to the appropriate congressional committees a written determination and justification that the waiver is in the vital national security interests of the United States.

(e) IMPLEMENTATION.—The President may exercise all the authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out the amendments made by this section.

(f) RULEMAKING.—

(1) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the President, in consultation with the Secretary of State, shall promulgate any regulations that are necessary to implement this subtitle and the amendments made by this subtitle.

(2) NOTIFICATION TO CONGRESS.—Not less than 10 days before the promulgation of regulations pursuant to paragraph (1), the President shall submit to the appropriate congressional committees—

(A) a copy of the proposed regulations; and

(B) a description of the specific provisions of this subtitle and the amendments made by this subtitle that such regulations are implementing.

(g) EXCEPTIONS.—

(1) EXCEPTION FOR INTELLIGENCE ACTIVITIES.—Sanctions authorized under this section shall not apply to any activity subject to the reporting requirements under title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.) or any authorized intelligence activities of the United States.

(2) EXCEPTION TO COMPLY WITH INTERNATIONAL OBLIGATIONS AND FOR LAW ENFORCEMENT ACTIVITIES.—Sanctions authorized under this section shall not apply with respect to an alien if admitting or paroling the alien into the United States is necessary—

(A) to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success June 26, 1947, and entered into force November 21, 1947, between the United Nations and the United States, or other applicable international obligations; or

(B) to carry out or assist authorized law enforcement activity in the United States.

(3) EXCEPTION RELATING TO IMPORTATION OF GOODS.—The authorities and requirements to impose sanctions authorized under this section shall not include the authority or a requirement to impose sanctions on the importation of goods.

(h) TERMINATION OF SANCTIONS.—This section shall cease to be effective beginning on

the date that is 30 days after the date on which the President certifies to the appropriate congressional committees that—

(1) the Government of Iran no longer provides support for international terrorism, as determined by the Secretary of State pursuant to—

(A) section 1754(c)(1)(A) of the Export Control Reform Act of 2018 (50 U.S.C. 4318(c)(1)(A));

(B) section 620A of the Foreign Assistance Act of 1961 (22 U.S.C. 2371);

(C) section 40 of the Arms Export Control Act (22 U.S.C. 2780); or

(D) any other provision of law; and

(2) Iran has ceased the pursuit, acquisition, and development of, and verifiably dismantled, its nuclear, biological, and chemical weapons and ballistic missiles and ballistic missile launch technology.

SA 809. Mr. SCHATZ (for himself, Mr. MORAN, and Ms. HIRONO) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, insert the following:

SEC. 10___. RED HILL HEALTH IMPACTS.

(a) REGISTRY FOR IMPACTED INDIVIDUALS OF THE RED HILL INCIDENT.—

(1) ESTABLISHMENT OF REGISTRY.—The Secretary of Health and Human Services (referred to in this subsection as the ''Secretary'') shall establish within the Agency for Toxic Substances and Disease Registry or the Centers for Disease Control and Prevention or through an award of a grant or contract, as the Secretary determines appropriate, a Red Hill Incident exposure registry to collect data on health implications of petroleum contaminated water for impacted individuals on a voluntary basis. Such registry shall be complementary to, and not duplicative of, the Red Hill Incident Report of the Defense Occupational and Environmental Health Readiness System.

(2) OTHER RESPONSIBILITIES.—

(A) IN GENERAL.—The Secretary, in coordination with the Director of the Centers for Disease Control and Prevention, and in consultation with the Secretary of Defense, the Secretary of Veterans Affairs, and such State and local authorities or other partners as the Secretary of Health and Human Services considers appropriate, shall—

(i) review the Federal programs and services available to individuals exposed to petroleum;

(ii) review current research on petroleum exposure in order to identify additional research needs; and

(iii) undertake any other review or activities that the Secretary determines to be appropriate.

(B) REPORT.—Not later than 1 year after the date of enactment of this Act, and annually thereafter for 6 additional years, the Secretary shall submit to the appropriate congressional committees a report on the review and activities undertaken under subparagraph (A) that includes—

(i) strategies for communicating and engaging with stakeholders on the Red Hill Incident;

(ii) the number of impacted and potentially impacted individuals enrolled in the registry established under paragraph (1);

(iii) measures and frequency of follow-up to collect data and specimens related to exposure, health, and developmental milestones as appropriate; and

(iv) a summary of data and analyses on exposure, health, and developmental milestones for impacted individuals.

(C) CONSULTATION.—In carrying out subparagraphs (A) and (B), the Secretary shall consult with non-Federal experts, including individuals with certification in epidemiology, toxicology, mental health, pediatrics, and environmental health, and members of the impacted community.

(3) FUNDING.—Without regard to section 2215 of title 10, United States Code, the Secretary of the Defense is authorized to provide, from amounts made available to such Secretary, such sums as may be necessary for each of fiscal years 2024 through 2030 for the Secretary of Health and Human Services to carry out this subsection.

(b) RED HILL EPIDEMIOLOGICAL HEALTH OUTCOMES STUDY.—

(1) CONTRACTS.—The Secretary of Health and Human Services may contract with independent research institutes or consultants, nonprofit or public entities, laboratories, or medical schools, as the Secretary considers appropriate, that are not part of the Federal Government to assist with the feasibility assessment required by paragraph (2).

(2) FEASIBILITY ASSESSMENT.—Not later than one year after the date of the enactment of this Act, the Secretary of Health and Human Services shall submit to the appropriate congressional committees the results of a feasibility assessment to inform the design of the epidemiological study or studies to assess health outcomes for impacted individuals, which may include—

(A) a strategy to recruit impacted individuals to participate in the study or studies, including incentives for participation;

(B) a description of protocols and methodologies to assess health outcomes from the Red Hill Incident, including data management protocols to secure the privacy and security of the personal information of impacted individuals; and

(C) the periodicity for data collection that takes into account the differences between health care practices among impacted individuals who are—

(i) members of the Armed Forces on active duty or spouses or dependents of such members;

(ii) members of the Armed Forces separating from active duty or spouses or dependents of such members;

(iii) veterans and other individuals with access to health care from the Department of Veterans Affairs; and

(iv) individuals without access to health care from the Department of Defense or the Department of Veterans Affairs;

(D) a description of methodologies to analyze data received from the study or studies to determine possible connections between exposure to water contaminated during the Red Hill Incident and adverse impacts to the health of impacted individuals;

(E) an identification of exposures resulting from the Red Hill Incident that may qualify individuals to be eligible for participation in the study or studies as a result of those exposures; and

(F) steps that will be taken to provide individuals impacted by the Red Hill Incident with information on available resources and services.

(3) NOTIFICATIONS; BRIEFINGS.—Not later than one year after the completion of the feasibility assessment under paragraph (2), the Secretary of Health and Human Services shall—

(A) notify impacted individuals on the interim findings of the study or studies; and

(B) brief the appropriate congressional committees on the interim findings of the study or studies.

(c) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Health, Education, Labor, and Pensions of the Senate;

(B) the Committee on Armed Services and the Subcommittee on Defense of the Committee on Appropriations of the Senate;

(C) the Committee on Veterans' Affairs of the Senate;

(D) the Committee on Energy and Commerce of the House of Representatives;

(E) the Committee on Armed Services and the Subcommittee on Defense of the Committee on Appropriations of the House of Representatives; and

(F) the Committee on Veterans' Affairs of the House of Representatives.

(2) IMPACTED INDIVIDUAL.—The term ''impacted individual'' means an individual who, at the time of the Red Hill Incident, lived or worked in a building or residence served by the community water system at Joint Base Pearl Harbor-Hickam, Oahu, Hawaii.

(3) RED HILL INCIDENT.—The term ''Red Hill Incident'' means the release of fuel from the Red Hill Bulk Fuel Storage Facility, Oahu, Hawaii, into the sole-source basal aquifer located 100 feet below the facility, contaminating the community water system at Joint Base Pearl Harbor-Hickam on November 20, 2021.

SA 810. Mr. MANCHIN (for himself, Mr. BARRASSO, Ms. HIRONO, Mr. RISCH, Mr. HEINRICH, and Mr. WYDEN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. 12____. SENSE OF CONGRESS ON THE RENEWAL OF THE COMPACTS OF FREE ASSOCIATION WITH THE REPUBLIC OF PALAU, THE FEDERATED STATES OF MICRONESIA, AND THE REPUBLIC OF THE MARSHALL ISLANDS.

(a) FINDINGS.—Congress finds that—

(1) in 1947, the United Nations entrusted the United States with the defense and security of the region that now comprises—

(A) the Republic of Palau;

(B) the Federated States of Micronesia; and

(C) the Republic of the Marshall Islands;

(2) in 1983, the United States signed Compacts of Free Association with the Federated States of Micronesia and the Republic of the Marshall Islands;

(3) in 1985, the United States signed a Compact of Free Association with the Republic of Palau;

(4) in 1986, Congress—

(A) enacted the Compact of Free Association Act of 1985 (48 U.S.C. 1901 note; Public Law 99–239), which approved the Compacts of Free Association with the Federated States of Micronesia and the Republic of the Marshall Islands; and

(B) enacted Public Law 99–658 (48 U.S.C. 1931 note), which approved the Compact of Free Association with the Republic of Palau;

(5) in 2003, Congress enacted the Compact of Free Association Amendments Act of 2003

(48 U.S.C. 1921 note; Public Law 108–188), which approved and renewed the Compacts of Free Association with the Federated States of Micronesia and the Republic of the Marshall Islands;

(6) in 2010, the United States and the Republic of Palau agreed to terms for renewing the Compact of Free Association with the Republic of Palau in the Palau Compact Review Agreement, which was approved by Congress in section 1259C of the National Defense Authorization Act for Fiscal Year 2018 (48 U.S.C. 1931 note; Public Law 115–91);

(7) on January 11, 2023, the United States signed a Memorandum of Understanding with the Republic of the Marshall Islands on funding priorities for the Compact of Free Association with the Republic of the Marshall Islands;

(8) on May 22, 2023, the United States signed the U.S.-Palau 2023 Agreement, following the Compact of Free Association Section 432 Review;

(9) on May 23, 2023, the United States signed 3 agreements relating to the U.S.-FSM Compact of Free Association, which included—

(A) an Agreement to Amend the Compact, as amended;

(B) a new fiscal procedures agreement; and

(C) a new trust fund agreement; and

(10) the United States is undergoing negotiations relating to the Compact of Free Association with the Republic of the Marshall Islands.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the close and strategic partnerships of the United States with the Republic of Palau, the Federated States of Micronesia, and the Republic of the Marshall Islands are vital to international peace and security in the Indo-Pacific region;

(2) the Compacts of Free Association with the Republic of Palau, the Federated States of Micronesia, and the Republic of the Marshall Islands form the political, economic, and security architecture that bolsters and sustains security and drives regional development and the prosperity of the larger Indo-Pacific community of nations;

(3) certain provisions of the current Compacts of Free Association with the Federated States of Micronesia and the Republic of the Marshall Islands expire on September 30, 2023;

(4) certain provisions of the Compact of Free Association with the Republic of Palau expire on September 30, 2024;

(5) it is in the national interest of the United States to successfully renegotiate and renew the Compacts of Free Association with the Republic of Palau, the Federated States of Micronesia, and the Republic of the Marshall Islands; and

(6) enacting legislation to approve amended Compacts of Free Association with the Republic of Palau, the Federated States of Micronesia, and the Republic of the Marshall Islands is the most important way for Congress to support United States strategic partnerships with the 3 countries.

SA 811. Mr. TESTER submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title XII, add the following:

SEC. 1299L. ASSESSMENT OF CERTAIN UNITED STATES-ORIGIN TECHNOLOGY USED BY FOREIGN ADVERSARIES.

(a) IN GENERAL.—The Director of National Intelligence shall conduct an assessment to evaluate the top five technologies that originate in the United States and are not currently subject to export controls as prioritized by the Director of National Intelligence, in order to identify and assess the risk from those specified technologies that could be or are being used by foreign adversaries in foreign espionage programs targeting the United States.

(b) REPORT REQUIRED.—Not later than 270 days after the date of the enactment of this Act, the Director shall submit a report on the assessment required by subsection (a) to—

(1) the Committee on Armed Services and the Select Committee on Intelligence of the Senate; and

(2) the Committee on Armed Services and the Permanent Select Committee on Intelligence of the House of Representatives.

SA 812. Mr. KING (for himself and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title III, add the following:

SEC. 345. BRIEFING ON ARCTIC WATCHTOWER RESEARCH.

(a) SENSE OF SENATE.—It is the sense of the Senate that—

(1) confronting and adapting to rapidly evolving challenges in the Arctic region, including coastal resilience, would benefit from increased place-based, forward operating research capacity;

(2) establishing strategically located, scalable watchtower field research centers known as Arctic Watchtowers to conduct on-the-ground research in Arctic gateways could improve the reliability and breadth of monitoring data to inform decision making of the Department of Defense, such as when defense operations impact mammalian habitat;

(3) locally-based, forward operating research benefits from robust partnerships with regional and local universities, Tribal communities, and international collaboration;

(4) on the ground, forward operating research data can complement satellite and other data on littoral meteorological or ecosystem changes;

(5) the National Strategy for the Arctic Region highlights the need to invest in research in such region and collaboration with Arctic communities for co-production of knowledge to advance monitoring and predictive capacity, such as—

(A) maritime domain awareness;

(B) operational oceanography;

(C) tracking shifts in sea ice flows;

(D) monitoring emerging trade routes; and

(E) reduction of data gaps where they exist; and

(6) the Secretary of Defense should consider investments in watchtower research efforts in the Arctic and near-Arctic region as part of the execution of such strategy.

(b) BRIEFING.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall provide to the Committees on Armed Services of the Senate and the House of Representatives a briefing on the potential benefits to be derived from, and the feasibility of, establishing watchtower field research centers in the Arctic and near-Arctic region.

SA 813. Mr. ROUNDS (for himself, Mr. TESTER, Mr. DAINES, Mr. KENNEDY, and Ms. LUMMIS) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, insert the following:

SEC. 1083. REVIEW OF AGRICULTURE-RELATED TRANSACTIONS BY COMMITTEE ON FOREIGN INVESTMENT IN THE UNITED STATES.

Section 721 of the Defense Production Act of 1950 (50 U.S.C. 4565) is amended—

(1) in subsection (a)—

(A) in paragraph (4)—

(i) in subparagraph (A)—

(I) in clause (i), by striking ''; and'' and inserting a semicolon;

(II) in clause (ii), by striking the period at the end and inserting ''; and''; and

(III) by adding at the end the following:

''(iii) any transaction described in clause (vi) or (vii) of subparagraph (B) proposed or pending on or after the date of the enactment of this clause.'';

(ii) in subparagraph (B), by adding at the end the following:

''(vi) Any other investment, subject to regulations prescribed under subparagraphs (D) and (E), by a foreign person in any unaffiliated United States business that is engaged in agriculture or biotechnology related to agriculture.

''(vii) Subject to subparagraphs (C) and (E), the purchase or lease by, or a concession to, a foreign person of private real estate that is—

''(I) located in the United States;

''(II) used in agriculture; and

''(III) more than 320 acres or valued in excess of $5,000,000.'';

(iii) in subparagraph (C)(i), by striking ''subparagraph (B)(ii)'' and inserting ''clause (ii) or (vii) of subparagraph (B)'';

(iv) in subparagraph (D)—

(I) in clause (i), by striking ''subparagraph (B)(iii)'' and inserting ''clauses (iii) and (vi) of subparagraph (B)'';

(II) in clause (iii)(I), by striking ''subparagraph (B)(iii)'' and inserting ''clauses (iii) and (vi) of subparagraph (B)'';

(III) in clause (iv)(I), by striking ''subparagraph (B)(iii)'' each place it appears and inserting ''clauses (iii) and (vi) of subparagraph (B)''; and

(IV) in clause (v), by striking ''subparagraph (B)(iii)'' and inserting ''clauses (iii) and (vi) of subparagraph (B)''; and

(v) in subparagraph (E), by striking ''clauses (ii) and (iii)'' and inserting ''clauses (ii), (iii), (iv), and (vii)''; and

(B) by adding at the end the following:

''(14) AGRICULTURE.—The term 'agriculture' has the meaning given such term in section 3 of the Fair Labor Standards Act of 1938 (29 U.S.C. 203).'';

(2) in subsection (k)(2)—

(A) by redesignating subparagraphs (H), (I), and (J), as subparagraphs (I), (J), and (K), respectively; and

(B) inserting after subparagraph (G) the following new subparagraph:

''(H) The Secretary of Agriculture (nonvoting, ex officio).''; and

(3) by adding at the end the following:

''(r) PROHIBITION WITH RESPECT TO AGRICULTURAL COMPANIES AND REAL ESTATE.—

''(1) IN GENERAL.—Notwithstanding any other provision of this section, if the Committee, in conducting a review and investigation under this section, determines that a transaction described in clause (i), (vi), or (vii) of subsection (a)(4)(B) would result in control by a covered foreign person of or investment by a covered foreign person in a United States business engaged in agriculture or private real estate used in agriculture, the President shall prohibit such transaction.

''(2) WAIVER.—The President may waive, on a case-by-case basis, the requirement to prohibit a transaction under paragraph (1), not less than 30 days after the President determines and reports to the relevant committees of jurisdiction that it is vital to the national security interests of the United States to waive such prohibition.

''(3) DEFINED TERMS.—In this subsection:

''(A) COVERED PERSON.—

''(i) IN GENERAL.—Except as provided by clause (ii), the term 'covered person'—

''(I) has the meaning given the term 'a person owned by, controlled by, or subject to the jurisdiction or direction of a foreign adversary' in section 7.2 of title 15, Code of Federal Regulations (as in effect on the date of the enactment of the National Defense Authorization Act for Fiscal Year 2024), except that each reference to 'foreign adversary' in that definition shall be deemed to be a reference to the government of a covered country; and

''(II) includes an entity that—

''(aa) is registered in or organized under the laws of a covered country;

''(bb) has a principal place of business in a covered country; or

''(cc) has a subsidiary with a principal place of business in a covered country.

''(ii) EXCLUSIONS.—The term 'covered person' does not include a United States citizen or an alien lawfully admitted for permanent residence to the United States.

''(B) COVERED COUNTRY.—The term 'covered country' means any of the following:

''(i) The People's Republic of China.

''(ii) The Russian Federation.

''(iii) The Islamic Republic of Iran.

''(iv) The Democratic People's Republic of Korea.''.

SA 814. Mr. CORNYN (for himself, Mr. PETERS, Mr. YOUNG, and Mr. LEE) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. PROHIBITION ON PROVISION OF AIRPORT IMPROVEMENT GRANT FUNDS TO CERTAIN ENTITIES THAT HAVE VIOLATED INTELLECTUAL PROPERTY RIGHTS OF UNITED STATES ENTITIES.

(a) IN GENERAL.—During the period beginning on the date that is 30 days after the date of the enactment of this section, amounts provided as project grants under subchapter I of chapter 471 of title 49, United States Code, may not be used to enter into a contract described in subsection (b) with any entity on the list required by subsection (c).

(b) CONTRACT DESCRIBED.—A contract described in this subsection is a contract or other agreement for the procurement of infrastructure or equipment for a passenger boarding bridge at an airport.

(c) LIST REQUIRED.—

(1) IN GENERAL.—Not later than 30 days after the date of enactment of this Act, and thereafter as required by paragraph (2), the United States Trade Representative, and the Administrator of the Federal Aviation Administration shall make available to the Administrator of the Federal Aviation Administration a publicly-available a list of entities manufacturing airport passenger boarding infrastructure or equipment that—

(A) are owned, directed by, or subsidized in whole, or in part by the People's Republic of China;

(B) have been determined by a Federal court to have misappropriated intellectual property or trade secrets from an entity organized under the laws of the United States or any jurisdiction within the United States;

(C) own or control, are owned or controlled by, are under common ownership or control with, or are successors to, an entity described in subparagraph (A);

(D) own or control, are under common ownership or control with, or are successors to, an entity described in subparagraph (A); or

(E) have entered into an agreement with or accepted funding from, whether in the form of minority investment interest or debt, have entered into a partnership with, or have entered into another contractual or other written arrangement with, an entity described in subparagraph (A).

(2) UPDATES TO LIST.—The United States Trade Representative shall update the list required by paragraph (1), based on information provided by the Administrator of the Federal Aviation Administration, in consultation with the Attorney General—

(A) not less frequently than every 90 days during the 180-day period following the initial publication of the list under paragraph (1); and

(B) not less frequently than annually thereafter.

(d) DEFINITIONS.—In this section, the definitions in section 47102 of title 49, United States Code, shall apply.

SA 815. Mr. SULLIVAN submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title X, add the following:

SEC. 1025. OVERSEAS MAINTENANCE OF CERTAIN NAVAL VESSELS.

(a) IN GENERAL.—Section 8680(a) of title 10, United States Code, is amended—

(1) in paragraph (1), by striking ''A naval vessel'' and inserting ''Except as provided in paragraphs (2) through (4), a naval vessel''; and

(2) by adding at the end the following:

''(4) Notwithstanding paragraph (1), any conventionally-powered surface naval vessel may be overhauled, repaired, or maintained in Japan if a delay of longer than 1 year is expected before a shipyard located in the United States or in Guam is available to perform such service on such vessel.''.

(b) SUNSET.—Paragraph (4) of section 8680(a) of title 10, United States Code, as added by subsection (a), shall remain in effect until the earlier of—

(1) the date on which necessary maintenance and repairs (including overhauls) on conventionally-powered surface naval vessels can be scheduled for service at a shipyard in the United States or Guam within 1 year after the date on which such service is requested; or

(2) the date that is 5 years after the date of the enactment of this Act.

SA 816. Mr. CORNYN (for himself and Mr. PADILLA) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EISENHOWER EXCHANGE FELLOWSHIP USE OF INCOME.

Section 6 of the Eisenhower Exchange Fellowship Act of 1990 (20 U.S.C. 5205) is amended by adding at the end the following:

''(e) STRATEGY TO INCREASE LATIN AMERICAN AND CARIBBEAN PARTICIPATION.—In order to increase the impact of the Eisenhower Exchange Fellowships program in developing societal leaders in Latin America and the Caribbean, the Department of State shall, not later than 180 days after the date of enactment of this subsection, publish a strategy for increasing the number of applications received from Latin American and Caribbean countries and the number of fellowships awarded to applicants from Latin America and the Caribbean.''.

SA 817. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle D of title XII, insert the following:

SEC. _____. NUCLEAR CONSULTATIVE GROUP.

(a) FINDINGS.—Congress finds the following:

(1) The United States extended deterrence commitment to the Republic of Korea is ironclad and enduring.

(2) Such extended deterrence relies on the full range of defense capabilities, including conventional and nuclear forces of the United States.

(3) The establishment of the Nuclear Consultative Group (referred to in this section as the ''Group'') between the United States and the Republic of Korea during President Yoon Suk Yeol's visit to the United States on April 26, 2023, reflected a recognition of the accelerating threat posed by the nuclear weapons and missile program of the Democratic People's Republic of Korea and a requirement to adjust the alliances approach to deterring the Democratic People's Republic of Korea.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the Group will strengthen the alliance between the governments of the United States and the Republic of Korea by deepening the ability of such governments to plan, consult, and conduct exercises on issues related to nuclear deterrence; and

(2) integrated deterrence requires a whole-of-government approach to deter adversaries and assure United States allies.

(c) REPORT ON THE IMPLEMENTATION OF THE NUCLEAR CONSULTATIVE GROUP.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense and the Secretary of State shall jointly submit to the congressional defense committees, the Committee on Foreign Relations of the Senate, and the Committee on Foreign Affairs of the House of Representatives a report that includes a description of each of the following:

(A) The organization of the Group, including co-chairs and interagency participants of the Group who are representatives of the United States.

(B) The scope of the activities of the Group and how such activities connect to the Security Consultative Mechanism and the Military Consultative Mechanism between the Republic of Korea and the United States.

(C) The relationship of the Group to existing extended deterrence mechanisms of the Republic of Korea and the United States, including the Korean Integrated Defense Dialogue, the Deterrence Strategy Committee, and the Extended Deterrence Consultative Group.

(D) The frequency and circumstances under which the Group convenes.

(E) The scope of activities the Group addresses, including strategic planning, crisis consultation, and exercises.

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(3) BRIEFING.—Not later than 180 days after date of the enactment of this Act, and every 180 days thereafter until December 31, 2026, the Secretary of State and the Secretary of Defense shall brief the Committee on Armed Services and the Committee on Foreign Relations of the Senate and the Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives on the outcomes of meetings of the Group.

SA 818. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. 1269. DEVELOPING ECONOMIC TOOLS TO DETER AGGRESSION AGAINST TAIWAN.

(a) SENSE OF CONGRESS.—It is the sense of Congress that the United States must be prepared to take immediate action to impose sanctions with respect to any military or nonmilitary entities owned, controlled, or acting at the direction of the Government of the People's Republic of China or the Chinese Communist Party and that are supporting actions by the Government of the People's Republic of China or the Chinese Communist Party—

(1) to overthrow or dismantle the governing institutions in Taiwan;

(2) to occupy any territory controlled or administered by Taiwan;

(3) to violate the territorial integrity of Taiwan; or

(4) to take significant action against Taiwan, including conducting a naval blockade, seizing Taiwan's outlying islands, or perpetrating a significant cyber attack on Taiwan.

(b) TASK FORCE.—Not later than 180 days after the date of the enactment of this Act, the head of the Office of the Sanctions Coordinator of the Department of State and the Director of the Office of Foreign Asset Control of the Department of the Treasury, in coordination with the Director of National Intelligence, shall establish an interagency task force to identify military and nonmilitary entities with respect to which sanctions could be imposed immediately following any action taken by the People's Republic of China that demonstrates an attempt to achieve or has the significant effect of achieving the physical or political control of Taiwan, including by—

(1) overthrowing or dismantling the governing institutions in Taiwan;

(2) occupying any territory controlled or administered by Taiwan as of the date of the enactment of this Act;

(3) violating the territorial integrity of Taiwan; or

(4) taking significant action against Taiwan, including—

(A) creation of a naval blockade of Taiwan;

(B) seizure of the outer lying islands of Taiwan; or

(C) initiation of a significant cyber attack that threatens civilian or military infrastructure of Taiwan.

(c) STRATEGY.—

(1) IN GENERAL.—Not later than 180 days after the establishment of the task force required by subsection (b), the task force shall submit to the appropriate congressional committees a strategy for identifying targets for the imposition of sanctions as described in subsection (b).

(2) ELEMENTS.—The strategy required by paragraph (1) shall—

(A) include an assessment of how existing sanctions regimes could be used in the case of an action by the People's Republic of China described in subsection (b);

(B) develop or propose, as appropriate, new sanctions authorities that might be required to impose sanctions on targets described in paragraph (1);

(C) analyze the potential economic consequences to the United States, and to allies and partners of the United States, of various types of sanctions and assess measures that could be taken to mitigate such consequences, including through the use of licenses, exemptions, carve-outs, and other forms of relief;

(D) develop a strategy for the United States to work with allies and partners—

(i) to leverage sanctions and other economic tools to deter or respond to aggression against to Taiwan;

(ii) to identify and resolve potential impediments to coordinating sanctions-related efforts with respect to responding to or deterring aggression against Taiwan; and

(iii) to identify industries, sectors, or goods and services with respect to which the United States and countries that are allies and partners of the United States can take coordinated action through sanctions or other economic tools that will have a significant negative impact on the economy of the People's Republic of China;

(E) assess the resource gaps and needs at the Departments of State, the Department of the Treasury, and other Federal agencies, as appropriate, to most effectively use sanctions and other economic tools to respond to the threat posed by the People's Republic of China;

(F) recommend how best to target sanctions and other economic tools against individuals, entities, and economic sectors in the People's Republic of China, taking into account the role of such individuals, entities, and economic sectors in supporting policies and activities of the Government of the People's Republic of China or the Chinese Communist Party that pose a threat to the national security or foreign policy interests of the United States, the negative economic implications for the People's Republic of China, including its ability to achieve its objectives with respect to Taiwan, and the potential impact of such sanctions on the stability of the global financial system, including with regard to—

(i) entities—

(I) owned or controlled by the Government of the People's Republic of China; and

(II) organized under the laws of or otherwise subject to the jurisdiction of that Government that are not formally owned or controlled by that Government;

(ii) officials of that Government; and

(iii) financial institutions associated with that Government; and

(G) identify any foreign military or nonmilitary entities that would likely be used in actions described in subsection (b), including entities in the following sectors:

(i) Shipping.

(ii) Logistics.

(iii) Energy, including oil and gas.

(iv) Aviation.

(v) Ground transportation.

(vi) Technology.

(d) REPORT REQUIRED.—

(1) IN GENERAL.—Not later 60 days after the submission of the strategy required by subsection (c), and every 180 days thereafter, the task force established under subsection (b) shall submit to the appropriate congressional committees a report that includes information regarding—

(A) any entities identified pursuant to subparagraph (G) of subsection (c)(2);

(B) any new authorities needed to impose sanctions with respect to individuals, entities, and economic sectors identified under subparagraph (D) of that subsection;

(C) potential economic impacts on the People's Republic of China and on the United States and allies and partners of the United States relating to sanctions imposed with respect to such individuals, entities, and economic sectors;

(D) mitigation measures that could be employed to limit deleterious impacts on the United States and allies and partners of the United States;

(E) the status of coordination with allies and partners of the United States with respect to the use of sanctions and other economic tools identified under this section;

(F) resource gaps and recommendations to enable the Department of State and the Department of the Treasury to use sanctions to more effectively to respond to the malign activities of the People's Republic of China; and

(G) any additional resources that may be necessary to carry out the strategy.

(2) FORM.—Each report required by subsection (b) shall be submitted in classified form.

(e) APPROPRIATE CONGRESSIONAL COMMITTEES.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, and the Committee on Commerce, Science and Transportation of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Financial Services, and the Committee on Energy and Commerce of the House of Representatives.

SA 819. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle F of title XII, add the following:

SEC. 1282. REPORT ON ACTIONS OF THE REPUBLIC OF SOUTH AFRICA THAT THREATEN UNITED STATES NATIONAL SECURITY INTERESTS.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of State and the heads of other relevant Federal departments and agencies, shall submit to the appropriate committees of Congress a report containing an assessment of the extent to which the foreign policy of the Republic of South Africa threatens United States national security interests, including as such foreign policy relates to—

(1) strategic military and economic engagement by the Republic of South Africa with the Russian Federation and People's Republic of China;

(2) actions taken by the Republic of South Africa, and actions of officials of the Republic of South Africa, to support, directly and indirectly, the Russian Federation in its war in Ukraine;

(3) actions taken by the Republic of South Africa to evade or enforce United States sanctions on Specially Designated Nationals conducting activities and transactions in the Republic of South Africa;

(4) actions taken by the Republic of South Africa to build alliances against the national interests of the United States with malign actors such as Iran, Cuba, and Venezuela;

(5) the scope and scale of financial and other forms of public corruption to support strategic alliances with malign actors; and

(6) the security and stability of the southern Africa region.

(b) FORM.—The report required by subsection (a) shall be submitted in classified form and shall include an unclassified summary.

(c) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on Armed Services and the Committee on Foreign Relations of the Senate; and

(2) the Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives.

SA 820. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle A of title XII, insert the following:

SEC. 12___. SENSE OF CONGRESS REGARDING THE HOST COUNTRY FOR THE 2023 AFRICAN GROWTH AND OPPORTUNITY ACT FORUM.

It is the sense of Congress that—

(1) the African Growth and Opportunity Act Forum (referred to in this section as the ''AGOA Forum''), which is required to be held annually under section 5 of the African Growth and Opportunity Act (19 U.S.C. 3704), is an important opportunity to foster close economic ties between the United States and sub-Saharan Africa;

(2) the country selected to host the 2023 AGOA Forum should reflect optimal adherence to the eligibility requirements set forth in section 104 (a)(2) of such Act (19 U.S.C. 3703(a)(2)) that the country ''not engage in activities that undermine United States national security or foreign policy interests'';

(3) the recent actions of the Republic of South Africa in contravention of United States national security and foreign policy interests make that country an inappropriate venue for the 2023 AGOA Forum; and

(4) the President should identify an alternative venue for the 2023 AGOA Forum that is consistent with the spirit and member eligibility criteria of the African Growth and Opportunity Act (19 U.S.C. 3701 et seq.).

SA 821. Mr. RISCH submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. REPORT ON UNITED STATES PRESENCE IN THE HORN OF AFRICA AND RED SEA REGION.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) increased United States engagement in the Horn of Africa and Red Sea region has presented an opportunity to build and strengthen security cooperation with key partners in that region;

(2) the Red Sea region includes a strategic maritime choke point, the Bab-al-Mandeb Strait, which connects the Red Sea to the Gulf of Aden, and is essential to support United States national security interests, including countering the flows of Iranian lethal aid to Yemen and facilitating the free flow of commerce;

(3) security cooperation in the Red Sea and Gulf of Aden region is critical—

(A) to maintaining a de facto ceasefire in Yemen; and

(B) to furthering a political resolution to the Yemeni conflict.

(4) Somaliland, which has a port and an airfield in Berbera—

(A) occupies a pivotal geographic location in the Horn of Africa;

(B) is adjacent to strategic maritime routes in the Red Sea and Gulf of Aden; and

(C) could contribute to United States military objectives given the evolving security situation in the region; and

(5) utilizing the port of Berbera as an access point to the Horn of Africa would provide flexibility with regards to the delivery of humanitarian assistance in the Horn of Africa region and beyond.

(b) DEFINED TERM.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Armed Services of the Senate;

(2) the Committee on Foreign Relations of the Senate;

(3) the Committee on Armed Services of the House of Representatives; and

(4) the Committee on Foreign Affairs of the House of Representatives.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of State and the heads of other relevant Federal departments and agencies, shall submit a classified report, along with an unclassified summary, to the appropriate congressional committees containing an assessment of the extent to which a sustained United States Government presence in Somaliland would—

(1) support United States policy focused on the Red Sea corridor, the Indo-Pacific region, and the Horn of Africa, including the promotion of conflict avoidance and resolution;

(2) improve cooperation on counterterrorism and intelligence sharing, including by—

(A) degrading and ultimately defeating the terrorist threat posed by Al-Shabaab, the Islamic State in Somalia, and other terrorist groups operating in Somalia; and

(B) countering the malign influence of the Iranian regime and its terror proxies;

(3) enhance cooperation on counter-trafficking, including the trafficking of humans, wildlife, weapons, and illicit goods;

(4) support trade and development in the region;

(5) facilitate the distribution of humanitarian assistance in the Horn of Africa; and

(6) counter the presence of the People's Republic of China (PRC) in the region, including by detailing—

(A) the PRC's interest in access to port facilities in Djibouti, Mombasa, Massawa, and Assab;

(B) the PRC's role in fomenting unrest in the Sool region of Somaliland; and

(C) the role played by the Republic of China (Taiwan) in checking the PRC's engagement with Somaliland.

SA 822. Mr. BARRASSO (for himself and Mr. CARDIN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. GLOBAL COOPERATIVE FRAMEWORK TO END HUMAN RIGHTS ABUSES IN SOURCING CRITICAL MINERALS.

(a) IN GENERAL.—The Secretary of State shall seek to convene a meeting of foreign leaders to establish a multilateral framework to end human rights abuses, including the exploitation of forced labor and child labor, related to the mining and sourcing of critical minerals.

(b) CERTIFICATION SCHEME.—The Secretary shall seek to ensure that the framework under subsection (a) includes a certification scheme, comprised of—

(1) minimum requirements for national legislation, institutions, and import and export controls related to the sourcing of critical minerals;

(2) measures to enforce transparency in the exchange of production, transportation, and end-use manufacturing data related to critical minerals, including through the use of blockchain technology, if feasible;

(3) prohibitions on the purchase or trade in critical minerals unless parties to the purchase or trade are certified under and in compliance with the framework; and

(4) measures to certify shipments as in compliance with the framework, including

requiring the provision of supporting documentation.

(c) IMPLEMENTATION REPORT.—The Secretary shall lead the development of an annual global report on the implementation of the framework under subsection (a), including progress and recommendations to fully end human rights abuses, including the exploitation of forced labor and child labor, related to the extraction of critical minerals around the world.

(d) EXTRACTIVE INDUSTRIES TRANSPARENCY INITIATIVE AND CERTAIN PROVISIONS OF THE DODD-FRANK WALL STREET REFORM AND CONSUMER PROTECTION ACT.—Nothing in this section shall—

(1) affect the authority of the President to take any action to join and subsequently comply with the terms and obligations of the Extractive Industries Transparency Initiative (EITI); or

(2) affect section 1502 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (15 U.S.C. 78m note), or subsection (q) of section 13 of the Securities Exchange Act of 1934 (15 U.S.C. 78m), as added by section 1504 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (Public Law 111–203; 124 Stat. 2220), or any rule prescribed under either such section.

(e) CRITICAL MINERAL DEFINED.—In this section, the term ''critical mineral'' has the meaning given the term in section 7002(a) of the Energy Act of 2020 (30 U.S.C. 1606(a)).

SA 823. Mr. ROMNEY (for himself, Mr. VAN HOLLEN, Mr. SULLIVAN, Mr. CORNYN, Mr. SCOTT of South Carolina, and Mr. BRAUN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. ENDING CHINA'S DEVELOPING NATION STATUS.

(a) SHORT TITLE.—This section may be cited as the ''Ending China's Developing Nation Status Act''.

(b) FINDING; STATEMENT OF POLICY.—

(1) FINDING.—Congress finds that the People's Republic of China is still classified as a developing nation under multiple treaties and international organization structures, even though China has grown to be the second largest economy in the world.

(2) STATEMENT OF POLICY.—It is the policy of the United States—

(A) to oppose the labeling or treatment of the People's Republic of China as a developing nation in current and future treaty negotiations and in each international organization of which the United States and the People's Republic of China are both current members;

(B) to pursue the labeling or treatment of the People's Republic of China as a developed nation in each international organization of which the United States and the People's Republic of China are both current members; and

(C) to work with allies and partners of the United States to implement the policies described in paragraphs (1) and (2).

(c) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives with respect to—

(i) reports produced by the Secretary of State; and

(ii) a waiver exercised pursuant to subsection (f)(2), except with respect to any international organization for which the United States Trade Representative is the chief representative of the United States; and

(B) the Committee on Finance of the Senate and the Committee on Ways and Means of the House of Representatives with respect to—

(i) reports produced by the United States Trade Representative; and

(ii) a waiver exercised pursuant to subsection (f)(2) with respect to any international organization for which the United States Trade Representative is the chief representative of the United States.

(2) SECRETARY.—

(A) IN GENERAL.—Except as provided in subparagraph (B), the term ''Secretary'' means the Secretary of State.

(B) EXCEPTION.—The term ''Secretary'' shall mean the United States Trade Representative with respect to any international organization for which the United States Trade Representative is the chief representative of the United States.

(d) REPORT ON DEVELOPMENT STATUS IN CURRENT TREATY NEGOTIATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate committees of Congress that—

(1) identifies all current treaty negotiations in which—

(A) the proposed treaty would provide for different treatment or standards for enforcement of the treaty based on respective development status of the states that are party to the treaty; and

(B) the People's Republic of China is actively participating in the negotiations, or it is reasonably foreseeable that the People's Republic of China would seek to become a party to the treaty; and

(2) for each treaty negotiation identified pursuant to paragraph (1), describes how the treaty under negotiation would provide different treatment or standards for enforcement of the treaty based on development status of the states parties.

(e) REPORT ON DEVELOPMENT STATUS IN EXISTING ORGANIZATIONS AND TREATIES.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate committees of Congress that—

(1) identifies all international organizations or treaties, of which the United States is a member, that provide different treatment or standards for enforcement based on the respective development status of the member states or states parties;

(2) describes the mechanisms for changing the country designation for each relevant treaty or organization; and

(3) for each of the organizations or treaties identified pursuant to paragraph (1)—

(A) includes a list of countries that—

(i) are labeled as developing nations or receive the benefits of a developing nation under the terms of the organization or treaty; and

(ii) meet the World Bank classification for upper middle income or high-income countries; and

(B) describes how the organization or treaty provides different treatment or standards for enforcement based on development status of the member states or states parties.

(f) MECHANISMS FOR CHANGING DEVELOPMENT STATUS.—

(1) IN GENERAL.—In any international organization of which the United States and the People's Republic of China are both current members, the Secretary, in consultation with allies and partners of the United States, shall pursue—

(A) changing the status of the People's Republic of China from developing nation to developed nation if a mechanism exists in such organization to make such status change; or

(B) proposing the development of a mechanism described in paragraph (1) to change the status of the People's Republic of China in such organization from developing nation to developed nation.

(2) WAIVER.—The President may waive the application of subparagraph (A) or (B) of paragraph (1) with respect to any international organization if the President notifies the appropriate committees of Congress that such a waiver is in the national interests of the United States.

SA 824. Mr. DAINES submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. CONFISCATION OF ASSETS OF RUSSIAN FEDERATION; USE TO OFFSET COSTS TO UNITED STATES OF AID TO UKRAINE.

(a) IN GENERAL.—The President shall—

(1) confiscate, through instructions or licenses or in such other manner as the President determines appropriate, funds of the Government of the Russian Federation that are subject to the jurisdiction of the United States; and

(2) deposit funds confiscated under paragraph (1) in the general fund of the Treasury to offset the costs of amounts appropriated by any Act making emergency supplemental appropriations for assistance for the situation in Ukraine for the fiscal year ending September 30, 2023.

(b) VESTING.—All right, title, and interest in funds confiscated under subsection (a) shall vest in the Government of the United States.

SA 825. Mr. FETTERMAN submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle A of title VII, insert the following:

SEC. 7_____. SENSE OF CONGRESS ON ACCESS TO MENTAL HEALTH SERVICES THROUGH TRICARE.

It is the sense of Congress that the Secretary of Defense should take all necessary steps to ensure members of the National Guard and the members of their families who are enrolled in TRICARE have timely access to mental and behavioral health care services through the TRICARE program.

SA 826. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for

military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XVI, insert the following:

SEC. 16___. CONTROL AND MANAGEMENT OF DEPARTMENT OF DEFENSE DATA AND ESTABLISHMENT OF CHIEF DIGITAL AND ARTIFICIAL INTELLIGENCE OFFICER GOVERNING COUNCIL.

(a) CONTROL AND MANAGEMENT OF DEPARTMENT OF DEFENSE DATA.—The Chief Digital and Artificial Intelligence Officer of the Department of Defense shall maintain the authority, but not the requirement, to access and control, on behalf of the Secretary of Defense, of all data collected, acquired, accessed, or utilized by Department of Defense components consistent with section 1513 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 10 U.S.C. 4001 note).

(b) CHIEF DIGITAL AND ARTIFICIAL INTELLIGENCE OFFICER GOVERNING COUNCIL.—Paragraph (3) of section 238(d) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. note prec. 4061) is amended to read as follows:

''(3) CHIEF DIGITAL AND ARTIFICIAL INTELLIGENCE OFFICER GOVERNING COUNCIL.—

''(A) ESTABLISHMENT.—(i) The Secretary shall establish a council to provide policy oversight to ensure the responsible, coordinated, and ethical employment of data and artificial intelligence capabilities across Department of Defense missions and operations.

''(ii) The council established pursuant to clause (i) shall be known as the 'Chief Digital and Artificial Intelligence Officer Governing Council' (in this paragraph the 'Council').

''(B) MEMBERSHIP.—The Council shall be composed of the following:

''(i) Joint Staff J–6.

''(ii) The Under Secretary of Defense for Acquisition and Sustainment.

''(iii) The Under Secretary of Defense for Research and Evaluation.

''(iv) The Under Secretary of Defense for Intelligence and Security.

''(v) The Under Secretary of Defense for Policy.

''(vi) The Director of Cost Analysis and Program Evaluation.

''(vii) The Chief Information Officer of the Department.

''(viii) The Director of Administration and Management.

''(ix) The service acquisition executives of each of the military departments.

''(C) HEAD OF COUNCIL.—The Council shall be headed by the Chief Digital and Artificial Intelligence Officer of the Department.

''(D) MEETINGS.—The Council shall meet not less frequently than twice each fiscal year.

''(E) DUTIES OF COUNCIL.—The duties of the Council are as follows:

''(i) To streamline the organizational structure of the Department as it relates to artificial intelligence development, implementation, and oversight.

''(ii) To improve coordination on artificial intelligence governance with the defense industry sector.

''(iii) To establish and oversee artificial intelligence guidance on ethical requirements and protections for usage of artificial intelligence supported by Department funding and reduces or mitigates instances of unintended bias in artificial intelligence algorithms.

''(iv) To identify, monitor, and periodically update appropriate recommendations for operational usage of artificial intelligence.

''(v) To review, as the head of the Council considers necessary, artificial intelligence program funding to ensure that any Department investment in an artificial intelligence tool, system, or algorithm adheres to all Department established policy related to artificial intelligence.

''(vi) To provide periodic status updates on the efforts of the Department to develop and implement artificial intelligence into existing Department programs and processes.

''(vii) To provide guidance on access and distribution restrictions relating to data, models, tool sets, or testing or validation infrastructure.

''(viii) to implement and oversee a data and artificial intelligence educational program for the purpose of familiarizing the Department at all levels on the applications of artificial intelligence in their operations.

''(ix) To implement and oversee a data decree scorecard.

''(x) Such other duties as the Council determines appropriate.

''(F) PERIODIC REPORTS.—Not later than 180 days after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2024 and not less frequently than once every 18 months thereafter, the Council shall submit to the Secretary and the congressional defense committees a report on the activities of the Council during the period covered by the report.''.

SA 827. Mr. BROWN (for himself and Mr. VANCE) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XVI, insert the following:

SEC. 16___. CONGRESSIONAL BRIEFING ON DEPARTMENT OF DEFENSE CYBERSECURITY WORKFORCE MONITORING.

Not later than 60 days after the date of the enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees a briefing on how the Cyber Workforce Qualification Program of the Department of Defense is using the 8140.03 manual in program implementation.

SA 828. Mr. BROWN (for himself and Mr. COTTON) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title II, insert the following:

SEC. 2___. RAPID RESPONSE TO EMERGENT TECHNOLOGY ADVANCEMENTS OR THREATS.

(a) AUTHORITIES.—Upon approval by the Secretary of Defense of a determination described in subsection (b), the Secretary of a military department may use the rapid acquisition and funding authorities established pursuant to section 3601 of title 10, United States Code, to initiate urgent or emerging operational development activities for a period of up to one year, in order to—

(1) leverage an emergent technological advancement of value to the national defense to address a specific need of a military department; or

(2) provide a rapid response to an emerging threat identified by a military department.

(b) DETERMINATION.—A determination described in this subsection is a determination by the Secretary of a military department submitted in writing to the Secretary of Defense that provides the following:

(1) Identification of a compelling urgent or emergency national security need to immediately initiate development activity in anticipation of a programming or budgeting action, in order to leverage an emergent technological advancement or provide a rapid response to an emerging threat.

(2) Justification for why the effort cannot be delayed until the next submission of the budget of the President (under section 1105(a) of title 31, United States Code) without harming the national defense.

(3) Funding is identified for the effort in the current fiscal year to initiative the activity.

(4) An appropriate acquisition pathway and programmed funding for transition to continued development, integration, or sustainment is identified to on-ramp this activity within two years.

(c) ADDITIONAL PROCEDURES.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall amend the procedures for the rapid acquisition and deployment of capabilities needed in response to urgent operational needs prescribed pursuant to such section 3601 to carry out this section.

(2) REQUIREMENTS TO BE INCLUDED.—The procedures amended under paragraph (1) shall include the following requirements:

(A) FUNDING.—(i) Subject to clause (ii), in any fiscal year in which a determination described in subsection (b) is made, the Secretary of the military department making the determination may initiate the activities authorized under subsection (a) using any funds available to the Secretary for such fiscal year for—

(I) procurement; or

(II) research, development, test, and evaluation.

(ii) The total cost of all developmental activities within the Department of Defense, funded under this section, may not exceed $100,000,000 for any fiscal year.

(B) WAIVER AUTHORITY.—(i) Subject to clause (ii), the Secretary of the military department making a determination under subsection (b) may issue a waiver under subsection (d) of such section 3601.

(ii) Chapter 221 of title 10, United States Code, may not be waived pursuant to clause (i).

(C) TRANSITION.—(i) Any acquisition initiated under subsection (a) shall transition to an appropriate acquisition pathway for transition and integration of the development activity, or be transitioned to a newly established program element or procurement line for completion of such activity.

(ii)(I) Transition shall be completed within one year of initiation, but may be extended one time only at the discretion of the Secretary of the military department for one additional year.

(II) In the event an extension determination is made under subclause (I), the affected Secretary of the military department shall

submit to the congressional defense committees, not later than 30 days before the extension takes effect, notification of the extension with a justification for the extension.

(3) SUBMITTAL TO CONGRESS.—Concurrent with promulgation to the Department of the amendments to the procedures under paragraph (1), the Secretary shall submit to the congressional defense committees the procedures update by such amendments.

(d) CONGRESSIONAL NOTIFICATION.—Within 15 days after the Secretary of Defense approves a determination described in subsection (b), the Secretary of the military department making the determination shall provide written notification of such determination to the congressional defense committees following the procedures for notification in subsections (c)(4)(D) and (c)(4)(F) of such section 3601. A notice under this subsection shall be sufficient to fulfill any requirement to provide notification to Congress for a new start program.

SA 829. Mr. ROUNDS (for himself, Mr. SCHUMER, Mr. YOUNG, and Mr. HEINRICH) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title X, insert the following:

Subtitle ____—Additional Matters Relating to Artificial Intelligence

SEC. ____. REPORT ON ARTIFICIAL INTELLIGENCE REGULATION IN FINANCIAL SERVICES INDUSTRY.

(a) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, each of the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, the Office of the Comptroller of the Currency, the National Credit Union Administration, and the Bureau of Consumer Financial Protection shall submit to the Committee on Banking, Housing and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report on its gap in knowledge relating to artificial intelligence, including an analysis on—

(1) which tasks are most frequently being assisted or completed with artificial intelligence in the institutions the agency regulates;

(2) current governance standards in place for artificial intelligence use at the agency and current standards in place for artificial intelligence oversight by the agency;

(3) potentially additional regulatory authorities required by the agency to continue to successfully execute its mission;

(4) where artificial intelligence may lead to overlapping regulatory issues between agencies that require clarification;

(5) how the agency is currently using artificial intelligence, how the agency plans to use such artificial intelligence the next 3 years, and the expected impact, including fiscal and staffing, of those plans; and

(6) what resources, monetary or other resources, if any, the agency requires to both adapt to the changes that artificial intelligence will bring to the regulatory landscape and to adequately adopt and oversee the use of artificial intelligence across its operations described in paragraph (5).

(b) RULE OF CONSTRUCTION.—Nothing in this section may be construed to require an agency to include confidential supervisory information or pre-decisional or deliberative non-public information in a report under this section.

SEC. ____. ARTIFICIAL INTELLIGENCE BUG BOUNTY PROGRAMS.

(a) PROGRAM FOR FOUNDATIONAL ARTIFICIAL INTELLIGENCE PRODUCTS BEING INCORPORATED BY DEPARTMENT OF DEFENSE.—

(1) DEVELOPMENT REQUIRED.—Not later than 180 days after the date of the enactment of this Act and subject to the availability of appropriations, the Chief Data and Artificial Intelligence Officer of the Department of Defense shall develop a bug bounty program for foundational artificial intelligence models being integrated into Department of Defense missions and operations.

(2) COLLABORATION.—In developing the program required by paragraph (1), the Chief may collaborate with the heads of other government agencies that have expertise in cybersecurity and artificial intelligence.

(3) IMPLEMENTATION AUTHORIZED.—The Chief may carry out the program developed pursuant to subsection (a).

(4) CONTRACTS.—The Secretary of Defense shall ensure, as may be appropriate, that whenever the Department of Defense enters into any contract, the contract allows for participation in the bug bounty program developed pursuant to paragraph (1).

(5) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to require—

(A) the use of any foundational artificial intelligence model; or

(B) the implementation of the program developed pursuant to paragraph (1) in order for the Department to incorporate a foundational artificial intelligence model.

(b) BRIEFING.—Not later than one year after the date of the enactment of this Act, the Chief shall provide the congressional defense committees a briefing on—

(1) the development and implementation of bug bounty programs the Chief considers relevant to the matters covered by this section; and

(2) long-term plans of the Chief with respect to such bug bounty programs.

(c) DEFINITION OF FOUNDATIONAL ARTIFICIAL INTELLIGENCE MODEL.—In this section, the term ''foundational artificial intelligence model'' means an adaptive generative model that is trained on a broad set of unlabeled data sets that can be used for different tasks, with minimal fine-tuning.

SEC. ____. VULNERABILITY ANALYSIS STUDY FOR ARTIFICIAL INTELLIGENCE-ENABLED MILITARY APPLICATIONS.

(a) STUDY REQUIRED.—Not later than one year after the date of the enactment of this Act, the Chief Digital and Artificial Intelligence Officer (CDAO) of the Department of Defense shall complete a study analyzing the vulnerabilities to the privacy, security, and accuracy of, and capacity to assess, artificial intelligence-enabled military applications, as well as research and development needs for such applications.

(b) ELEMENTS.—The study required by subsection (a) shall cover the following:

(1) Research and development needs and transition pathways to advance explainable and interpretable artificial intelligence-enabled military applications, including the capability to assess the underlying algorithms and data models of such applications.

(2) Assessing the potential risks to the privacy, security, and accuracy of underlying architectures and algorithms of artificial intelligence-enabled military applications, including the following:

(A) Individual foundational artificial intelligence models, including the adequacy of existing testing, training, and auditing for such models to ensure models can be properly assessed over time.

(B) The interactions of multiple artificial intelligence-enabled military applications, and the ability to detect and assess new, complex, and emergent behavior amongst individual agents, as well as the collective impact, including how such changes may affect risk to privacy, security, and accuracy over time.

(C) The impact of increased agency in artificial intelligence-enabled military applications and how such increased agency may affect the ability to detect and assess new, complex, and emergent behavior, as well risks to the privacy, security, and accuracy of such applications over time.

(3) Assessing the survivability and traceability of decision support systems that are integrated with artificial intelligence-enabled military applications and used in a contested environment, including—

(A) potential benefits and risks to Department of Defense missions and operations of implementing such applications; and

(B) other technical or operational constraints to ensure such decision support systems that are integrated with artificial intelligence-enabled military applications are able to adhere to the Department of Defense Ethical Principles for Artificial Intelligence.

(4) Identification of existing artificial intelligence metrics, developmental, testing and audit capabilities, personnel, and infrastructure within the Department of Defense, including test and evaluation facilities, needed to enable ongoing identification and assessment under paragraphs (1) through (3), and other factors such as—

(A) implications for deterrence systems based on systems warfare; and

(B) vulnerability to systems confrontation on the system and system-of-systems level.

(5) Identification of gaps or research needs to sufficiently respond to the elements outlined in this subsection that are not currently, or not sufficiently, funded within the Department of Defense.

(c) COORDINATION.—In carrying out the study required by subsection (a), the Chief Digital and Artificial Intelligence Officer shall coordinate with the following:

(1) The Director of the Defense Advanced Research Projects Agency (DARPA).

(2) The Under Secretary of Defense for Research and Evaluation.

(3) The Under Secretary of Defense for Policy.

(4) The Director for Operational Test and Evaluation (DOT&E) of the Department.

(5) As the Chief Digital and Artificial Intelligence Officer considers appropriate, the following:

(A) The Secretary of Energy.

(B) The Director of the National Institute of Standards and Technology.

(C) The Director of the National Science Foundation.

(D) The head of the National Artificial Intelligence Initiative Office of the Office of Science and Technology Policy.

(E) Members and representatives of industry.

(F) Members and representatives of academia.

(d) INTERIM BRIEFING.—Not later than 180 days after the date of the enactment of this Act, the Chief Digital and Artificial Intelligence Officer shall provide the congressional defense committees a briefing on the interim findings of the Chief Digital and Artificial Intelligence Officer with respect to the study being conducted pursuant to subsection (a).

(e) FINAL REPORT.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Chief Digital and Artificial Intelligence

Officer shall submit to the congressional defense committees a final report on the findings of the Chief Digital and Artificial Intelligence Officer with respect to the study conducted pursuant to subsection (a).

(2) FORM.—The final report submitted pursuant to paragraph (1) shall be submitted in unclassified for, but may include a classified annex.

(f) DEFINITION OF FOUNDATIONAL ARTIFICIAL INTELLIGENCE MODEL.—In this section, the term ''foundational artificial intelligence model'' means an adaptive generative model that is trained on a broad set of unlabeled data sets that can be used for different tasks, with minimal fine-tuning.

SEC. _____. REPORT ON DATA SHARING AND COORDINATION.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on ways to improve data sharing, interoperability, and quality, as may be appropriate, across the Department of Defense.

(b) CONTENTS.—The report submitted pursuant to subsection (a) shall include the following:

(1) A description of policies, practices, and cultural barriers that impede data sharing and interoperability, and lead to data quality issues, among components of the Department.

(2) The impact a lack of appropriate levels of data sharing, interoperability, and quality has on Departmental collaboration, efficiency, interoperability, and joint-decision-making.

(3) A review of current efforts to promote appropriate data sharing, including to centralize data management, such as the AVANA program.

(4) A description of near-, mid-, and long-term efforts that the Office of the Secretary of Defense plans to implement to promote data sharing and interoperability, including efforts to improve data quality.

(5) A detailed plan to implement a data sharing and interoperability strategy that supports effective development and employment of artificial intelligence-enabled military applications.

(6) A detailed assessment of the implementation of the Department of Defense Data Strategy issued in 2020, as well as the use of data decrees to improve management rigor in the Department when it comes to data sharing and interoperability.

(7) Any recommendations for Congress with respect to assisting the Department in these efforts.

SA 830. Mr. WICKER (for himself, Mr. SCOTT of South Carolina, Ms. ERNST, and Mr. GRAHAM) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title X, add the following:

SEC. 1035. ESTABLISHING A COORDINATOR FOR COUNTERING MEXICO'S CRIMINAL CARTELS.

(a) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, the President, in consultation with the Secretary of Defense, the Secretary of State, the Secretary of Homeland Security, the Attorney General, and the Secretary of the Treasury, shall designate an existing official within the executive branch to serve as senior-level coordinator to coordinate, in conjunction with other relevant agencies, all defense, diplomatic, intelligence, financial, and legal efforts to counter the drug- and human-trafficking activities of Mexico's criminal cartels.

(b) RETENTION OF AUTHORITY.—The designation of a coordinator under subsection (a) shall not deprive any agency of any authority to independently perform functions of that agency.

(c) QUARTERLY REPORTS.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and every 90 days thereafter through January 31, 2029, the coordinator designated under subsection (a) shall submit to the appropriate committees of Congress a detailed report on the following:

(A) Efforts taken during the previous quarter to bolster defense cooperation with the Government of Mexico against Mexico's criminal cartels, and any other activities of the Department of Defense with respect to countering the cartels, including in cooperation with the Government of Mexico or interagency partners.

(B) Diplomatic efforts, including numbers of demarches and meetings, taken during the previous quarter to highlight and counter the human rights abuses of Mexico's criminal cartels, including human trafficking, sex trafficking, other exploitation of migrants, endangerment of children, and other abuses.

(C) Diplomatic efforts taken during the previous quarter to improve cooperation with the Government of Mexico in countering Mexico's criminal cartels, and a detailed list and assessment of any actions that the Government of Mexico has taken during the previous quarter to counter the cartels.

(D) Diplomatic efforts taken during the previous quarter to improve cooperation with partners and allies in countering Mexico's criminal cartels.

(E) Efforts taken during the previous quarter to bolster the screening process at ports of entry to prevent members and associates of Mexico's criminal cartels, and individuals who are working for the cartels, from entering or trafficking drugs, humans, and contraband into the United States.

(F) Efforts taken during the previous quarter to encourage the Government of Mexico to improve its screening process along its own ports of entry in order to prevent illicit cash, weapons, and contraband that is destined for Mexico's criminal cartels from entering Mexico.

(G) Efforts taken during the previous quarter to investigate and prosecute members and associates of Mexico's criminal cartels, including members and associates operating from within the United States.

(H) Efforts taken during the previous quarter to encourage the Government of Mexico to increase its investigation and prosecution of leaders, members, and associates of Mexcio's criminal cartels within Mexico.

(I) Efforts taken during the previous quarter to initiate or improve the sharing of intelligence with allies and partners, including the Government of Mexico, for the purpose of countering Mexico's criminal cartels.

(J) Efforts taken during the previous quarter to impose sanctions with respect to—

(i) leaders, members, and associates of Mexico's criminal cartels; and

(ii) any companies, banks, or other institutions that facilitate the cartels' human-trafficking, drug-trafficking, and other criminal enterprises.

(K) The total number of personnel and resources in the Department of Defense, the Department of State, the Department of Homeland Security, the Department of Justice, and the Department of the Treasury focused on countering Mexico's criminal cartels.

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(d) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Armed Services, the Committee on Foreign Relations, the Committee on the Judiciary, the Committee on Homeland Security and Governmental Affairs, and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

(B) the Committee on Armed Services, the Committee on Foreign Affairs, the Committee on the Judiciary, the Committee on Homeland Security, and the Committee on Financial Services of the House of Representatives.

(2) MEXICO'S CRIMINAL CARTELS.—The term ''Mexico's criminal cartels'' means the following:

(A) Criminal organizations the operations of which include human-trafficking, drug-trafficking, and other types of smuggling operations across the southwest border of the United States and take place largely within Mexico, including the following:

(i) The Sinaloa Cartel.
(ii) The Jalisco New Generation Cartel.
(iii) The Gulf Cartel.
(iv) The Los Zetas Cartel.
(v) The Northeast Cartel.
(vi) The Juarez Cartel.
(vii) The Tijuana Cartel.
(viii) The Beltran-Leyva Cartel.
(ix) The La Familia Michoacana, also known as the Knights Templar Cartel.
(x) Las Moicas.
(xi) La Empresa Nueva.
(xii) MS–13.
(xiii) The Medellin Cartel.

(B) Any successor organization to an organization described in subparagraph (A).

SA 831. Mr. WELCH submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title V, insert the following:

SEC. ___. ESTABLISHMENT OF ADDITIONAL SKILL IDENTIFIERS (ASI) AND SKILL IDENTIFIERS (SI) FOR ARMY MOUNTAIN WARFARE SCHOOL COURSES.

(a) ADDITIONAL SKILL IDENTIFIERS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Army shall submit to the congressional defense committees a report on the feasibility and advisability of assigning Additional Skill Identifiers (ASIs) for the following courses at the Army Mountain Warfare School (AMWS):

(1) Advanced Military Mountaineer Course (Summer).

(2) Advanced Military Mountaineer Course (Winter).

(3) Rough Terrain Evacuation Course.

(4) Mountain Planner Course.

(5) Mountain Rifleman Course.

(b) SKILL IDENTIFIERS.—The report required under subsection (a) shall also include the feasibility and advisability of assigning

Skill Identifiers (SIs) for officers and warrant officers who complete the following courses at the AMWS:

(1) Basic Military Mountaineer Course.

(2) Mountain Planner Course.

SA 832. Mr. WELCH (for himself, Mr. TILLIS, and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title III, add the following:

SEC. 345. REPORT BY DEPARTMENT OF DEFENSE ON ALTERNATIVES TO BURN PITS.

Not later than 60 days after the date of the enactment of this Act, the Under Secretary of Defense for Acquisition and Sustainment shall submit to Congress a report on incinerators and waste-to-energy waste disposal alternatives to burn pits.

SA 833. Mr. REED (for himself and Mr. WICKER) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EXPANSION OF DOULA CARE FURNISHED BY DEPARTMENT OF DEFENSE.

The text of section 706 is hereby deemed to read as follows:

"SEC. 706 EXPANSION OF DOULA CARE FURNISHED BY DEPARTMENT OF DEFENSE.

''(a) EXPANSION OF EXTRAMEDICAL MATERNAL HEALTH PROVIDERS DEMONSTRATION PROJECT.—Section 746 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 1073 note) is amended—

''(1) by redesignating subsections (e) through (h) as subsections (f) through (i), respectively; and

''(2) by inserting after subsection (d) the following new subsection (e):

'' ''(e) COVERAGE OF DOULA CARE.—The Secretary may add coverage of labor doula care to the demonstration project, or reimbursement for such care, for all beneficiaries under the TRICARE program, including access—

'' ''(1) by members of the Armed Forces on active duty;

'' ''(2) by beneficiaries outside the continental United States; and

'' ''(3) at military medical treatment facilities.'.

''(b) HIRING OF DOULAS.—The hiring authority for each military medical treatment facility may hire a team of doulas to work in coordination with lactation support personnel or labor and delivery units at such facility.''.

SA 834. Mrs. GILLIBRAND (for herself and Ms. WARREN) submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title X, add the following:

SEC. 543. MODIFICATION OF RULE 513 OF THE MILITARY RULES OF EVIDENCE, RELATING TO THE PRIVILEGE AGAINST DISCLOSURE OF COMMUNICATIONS BETWEEN PSYCHOTHERAPISTS AND PATIENTS.

Not later than 180 days after the date of the enactment of this Act, Rule 513 of the Military Rules of Evidence shall be modified—

(1) to amend subsection (a) of the rule to add ''A patient furthermore has a privilege to refuse to disclose, and to prevent any other person from disclosing, records made for the purpose of diagnosis and treatment of the patient's mental or emotional condition, including any diagnosis made, advice given, or treatment provided or prescribed by a psychotherapist or an assistant to a psychotherapist in a case arising under the Uniform Code of Military Justice.'';

(2) to add to subsection (b) of the rule a new paragraph (6) stating, ''This privilege applies to records, including diagnoses and treatments, regardless of prior disclosure of those records pursuant to Federal law, state law, or service regulation. This privilege applies to production for the purpose of courts-martial under the Uniform Code of Military Justice and admissibility therein, but shall not independently prohibit the disclosure of diagnoses, treatments, or communications the disclosure of which is required to ensure the safety and security of military personnel, military dependents, military property, classified information, or the accomplishment of a military mission.'';

(3) in subsection (d)(2), to strike '', or in a proceeding in which one spouse is charged with a crime against a child of either spouse'';

(4) to strike subsection (d)(3), renumber (d)(4) as (d)(3), and renumber (d)(5) as (d)(4);

(5) to strike subsection (d)(6) and renumber subparagraph (d)(7) as (d)(5); and

(6) to amend subsection (e)(2) to add the following language: ''Prior to ordering the production or admission of evidence of a patient's records as described in subsection (a) or communications, the judge must make a ruling that the party seeking production or admission of such records has demonstrated: (A) a specific factual basis demonstrating a reasonable likelihood that the records or communications will yield evidence admissible under an exception to the privilege; (B) by a preponderance of the evidence that the requested information meets one of the enumerated exceptions to the privilege or is constitutionally required; (C) that the information sought is not merely cumulative of other information available; and (D) that the party made reasonable efforts to obtain the same or substantially similar information through non-privileged sources.''.

SA 835. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title VIII, add the following:

Subtitle F—Time to Choose Act of 2023

SEC. 871. SHORT TITLE.

This subtitle may be cited as the ''Time to Choose Act of 2022''.

SEC. 872. FINDINGS.

Congress makes the following findings:

(1) The Department of Defense and other agencies in the United States Government regularly award contracts to firms such as Deloitte, McKinsey & Company, and others who are simultaneously providing consulting services to the Government of the People's Republic of China and proxies or affiliates thereof.

(2) The provision of such consulting services by firms like Deloitte, McKinsey & Company, and others to entities in the People's Republic of China directly supports efforts by that nation's government to generate economic and military power that it can then use to undermine the economic and national security of the American people, including through economic coercion and by threatening or using military force against us.

(3) It is a conflict of interest for firms like Deloitte, McKinsey & Company, and others to simultaneously aid in the efforts of the Government of the People's Republic of China to undermine the economic and national security of the United States while they are simultaneously contracting with the Department of Defense and other United States Government agencies responsible for defending the United States from foreign threats, above all from China.

(4) Firms like Deloitte, McKinsey & Company, and others should no longer be allowed to engage in such a conflict of interest and should instead be required to choose between aiding the efforts of the Government of the People's Republic of China to harm the United States or helping the United States Government to defend its citizens against such foreign coercion.

SEC. 873. PROHIBITION ON FEDERAL CONTRACTING WITH ENTITIES THAT ARE SIMULTANEOUSLY AIDING IN THE EFFORTS OF THE PEOPLE'S REPUBLIC OF CHINA TO HARM THE UNITED STATES.

In order to end conflict of interests in Federal contracting among consulting firms that simultaneously contract with the United States Government and covered foreign entities, the Federal Acquisition Regulatory Council shall, not later than 180 days after the date of the enactment of this Act, amend the Federal Acquisition Regulation—

(1) to require any entity that provides the services described in the North American Industry Classification System's Industry Group code 5416, prior to entering into a Federal contract, to certify that neither it nor any of its subsidiaries or affiliates hold a contract with one or more covered foreign entities; and

(2) to prohibit Federal contracts from being awarded to an entity that provides the services described under the North American Industry Classification System's Industry Group code 5416 if the entity or any of its subsidiaries or affiliates are determined, based on the self-certification required under paragraph (1) or other information, to be a contractor of, or otherwise providing services to, a covered foreign entity.

SEC. 874. PENALTIES FOR FALSE INFORMATION ON CONTRACTING WITH THE PEOPLE'S REPUBLIC OF CHINA.

(a) TERMINATION, SUSPENSION, AND DEBARMENT.—If the head of an executive agency determines that a consulting firm described in section 3 has knowingly submitted a false certification or information on or after the

date on which the Federal Acquisition Regulatory Council amends the Federal Acquisition Regulation pursuant to such section, the head of the executive agency shall terminate the contract with the consulting firm and consider suspending or debarring the firm from eligibility for future Federal contracts in accordance with subpart 9.4 of the Federal Acquisition Regulation.

(b) FALSE CLAIMS ACT.—A consulting firm described in section 873 that, for the purposes of the False Claims Act, intentionally hides or misrepresents one or more contracts with covered foreign entities shall be subject to the penalties and corrective actions described in the False Claims Act, including liability for three times the amount of damages which the United States Government sustains, including funds or other resources expended on or in support of the solicitation, selection, and performance of such contracts.

SEC. 875. DEFINITIONS.

In this subtitle:

(1) COVERED FOREIGN ENTITY.—The term ''covered foreign entity'' means—

(A) a person, business trust, business association, company, institution, government agency, university, partnership, limited liability company, corporation, or any other individual or organization that can legally enter into contracts, own properties, or pay taxes on behalf of, the Government of the People's Republic of China;

(B) the Chinese Communist Party;

(C) the People's Republic of China's United Front;

(D) an entity owned or controlled by, or that performs activities on behalf of, a person or entity described in subparagraph (A), (B), or (C); and

(E) an individual that is a member of the board of directors, an executive officer, or a senior official of an entity described in subparagraph (A), (B), (C), or (D).

(2) EXECUTIVE AGENCY.—The term ''executive agency'' has the meaning given the term in section 133 of title 41, United States Code.

(3) FALSE CLAIMS ACT.—The term ''False Claims Act'' means sections 3729 through 3733 of title 31, United States Code

(4) NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM'S INDUSTRY GROUP CODE 5416.—The term ''North American Industry Classification System's Industry Group code 5416'' refers to the North American Industry Classification System category that covers Management, Scientific, and Technical Consulting Services as Industry Group code 5416, including industry codes 54151, 541611, 541612, 541613, 541614, 541618, 54162, 541620, 54169, 541690.

SA 836. Mr. SCHUMER (for himself, Mr. ROUNDS, Mr. RUBIO, Mrs. GILLIBRAND, Mr. YOUNG, and Mr. HEINRICH) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE __—UNIDENTIFIED ANOMALOUS PHENOMENA DISCLOSURE

SEC. ___01. SHORT TITLE.

This title may be cited as the ''Unidentified Anomalous Phenomena Disclosure Act of 2023'' or the ''UAP Disclosure Act of 2023''.

SEC. ___02. FINDINGS, DECLARATIONS, AND PURPOSES.

(a) FINDINGS AND DECLARATIONS.—Congress finds and declares the following:

(1) All Federal Government records related to unidentified anomalous phenomena should be preserved and centralized for historical and Federal Government purposes.

(2) All Federal Government records concerning unidentified anomalous phenomena should carry a presumption of immediate disclosure and all records should be eventually disclosed to enable the public to become fully informed about the history of the Federal Government's knowledge and involvement surrounding unidentified anomalous phenomena.

(3) Legislation is necessary to create an enforceable, independent, and accountable process for the public disclosure of such records.

(4) Legislation is necessary because credible evidence and testimony indicates that Federal Government unidentified anomalous phenomena records exist that have not been declassified or subject to mandatory declassification review as set forth in Executive Order 13526 (50 U.S.C. 3161 note; relating to classified national security information) due in part to exemptions under the Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.), as well as an over-broad interpretation of ''transclassified foreign nuclear information'', which is also exempt from mandatory declassification, thereby preventing public disclosure under existing provisions of law.

(5) Legislation is necessary because section 552 of title 5, United States Code (commonly referred to as the ''Freedom of Information Act''), as implemented by the Executive branch of the Federal Government, has proven inadequate in achieving the timely public disclosure of Government unidentified anomalous phenomena records that are subject to mandatory declassification review.

(6) Legislation is necessary to restore proper oversight over unidentified anomalous phenomena records by elected officials in both the executive and legislative branches of the Federal Government that has otherwise been lacking as of the enactment of this Act.

(7) Legislation is necessary to afford complete and timely access to all knowledge gained by the Federal Government concerning unidentified anomalous phenomena in furtherance of comprehensive open scientific and technological research and development essential to avoiding or mitigating potential technological surprise in furtherance of urgent national security concerns and the public interest.

(b) PURPOSES.—The purposes of this title are—

(1) to provide for the creation of the unidentified anomalous phenomena Records Collection at the National Archives and Records Administration; and

(2) to require the expeditious public transmission to the Archivist and public disclosure of such records.

SEC. ___03. DEFINITIONS.

In this title:

(1) ARCHIVIST.—The term ''Archivist'' means the Archivist of the United States.

(2) CLOSE OBSERVER.—The term ''close observer'' means anyone who has come into close proximity to unidentified anomalous phenomena or non-human intelligence.

(3) COLLECTION.—The term ''Collection'' means the Unidentified Anomalous Phenomena Records Collection established under section ___04.

(4) CONTROLLED DISCLOSURE CAMPAIGN PLAN.—The term ''Controlled Disclosure Campaign Plan'' means the Controlled Disclosure Campaign Plan required by section ___09(c)(3).

(5) CONTROLLING AUTHORITY.—The term ''controlling authority'' means any Federal, State, or local government department, office, agency, committee, commission, commercial company, academic institution, or private sector entity in physical possession of technologies of unknown origin or biological evidence of non-human intelligence.

(6) DIRECTOR.—The term ''Director'' means the Director of the Office of Government Ethics.

(7) EXECUTIVE AGENCY.—The term ''Executive agency'' means an Executive agency, as defined in subsection 552(f) of title 5, United States Code.

(8) GOVERNMENT OFFICE.—The term ''Government office'' means any department, office, agency, committee, or commission of the Federal Government and any independent office or agency without exception that has possession or control, including via contract or other agreement, of unidentified anomalous phenomena records.

(9) IDENTIFICATION AID.—The term ''identification aid'' means the written description prepared for each record, as required in section ___04.

(10) LEADERSHIP OF CONGRESS.—The term ''leadership of Congress'' means—

(A) the majority leader of the Senate;

(B) the minority leader of the Senate;

(C) the Speaker of the House of Representatives; and

(D) the minority leader of the House of Representatives.

(11) LEGACY PROGRAM.—The term ''legacy program'' means all Federal, State, and local government, commercial industry, academic, and private sector endeavors to collect, exploit, or reverse engineer technologies of unknown origin or examine biological evidence of living or deceased non-human intelligence that pre-dates the date of the enactment of this Act.

(12) NATIONAL ARCHIVES.—The term ''National Archives'' means the National Archives and Records Administration and all components thereof, including presidential archival depositories established under section 2112 of title 44, United States Code.

(13) NON-HUMAN INTELLIGENCE.—The term ''non-human intelligence'' means any sentient intelligent non-human lifeform regardless of nature or ultimate origin that may be presumed responsible for unidentified anomalous phenomena or of which the Federal Government has become aware.

(14) ORIGINATING BODY.—The term ''originating body'' means the Executive agency, Federal Government commission, committee of Congress, or other Governmental entity that created a record or particular information within a record.

(15) PROSAIC ATTRIBUTION.—The term ''prosaic attribution'' means having a human (either foreign or domestic) origin and operating according to current, proven, and generally understood scientific and engineering principles and established laws-of-nature and not attributable to non-human intelligence.

(16) PUBLIC INTEREST.—The term ''public interest'' means the compelling interest in the prompt public disclosure of unidentified anomalous phenomena records for historical and Governmental purposes and for the purpose of fully informing the people of the United States about the history of the Federal Government's knowledge and involvement surrounding unidentified anomalous phenomena.

(17) RECORD.—The term ''record'' includes a book, paper, report, memorandum, directive, email, text, or other form of communication, or map, photograph, sound or video recording, machine-readable material, computerized, digitized, or electronic information, including intelligence, surveillance, reconnaissance, and target acquisition sensor

data, regardless of the medium on which it is stored, or other documentary material, regardless of its physical form or characteristics.

(18) REVIEW BOARD.—The term ''Review Board'' means the Unidentified Anomalous Phenomena Records Review Board established by section ___07.

(19) TECHNOLOGIES OF UNKNOWN ORIGIN.—The term ''technologies of unknown origin'' means any materials or meta-materials, ejecta, crash debris, mechanisms, machinery, equipment, assemblies or sub-assemblies, engineering models or processes, damaged or intact aerospace vehicles, and damaged or intact ocean-surface and undersea craft associated with unidentified anomalous phenomena or incorporating science and technology that lacks prosaic attribution or known means of human manufacture.

(20) TEMPORARILY NON-ATTRIBUTED OBJECTS.—

(A) IN GENERAL.—The term ''temporarily non-attributed objects'' means the class of objects that temporarily resist prosaic attribution by the initial observer as a result of environmental or system limitations associated with the observation process that nevertheless ultimately have an accepted human origin or known physical cause. Although some unidentified anomalous phenomena may at first be interpreted as temporarily non-attributed objects, they are not temporarily non-attributed objects, and the two categories are mutually exclusive.

(B) INCLUSION.—The term ''temporarily non-attributed objects'' includes—

(i) natural celestial, meteorological, and undersea weather phenomena;

(ii) mundane human-made airborne objects, clutter, and marine debris;

(iii) Federal, State, and local government, commercial industry, academic, and private sector aerospace platforms;

(iv) Federal, State, and local government, commercial industry, academic, and private sector ocean-surface and undersea vehicles; and

(v) known foreign systems.

(21) THIRD AGENCY.—The term ''third agency'' means a Government agency that originated a unidentified anomalous phenomena record that is in the possession of another Government agency.

(22) UNIDENTIFIED ANOMALOUS PHENOMENA.—

(A) IN GENERAL.—The term ''unidentified anomalous phenomena'' means any object operating or judged capable of operating in outer-space, the atmosphere, ocean surfaces, or undersea lacking prosaic attribution due to performance characteristics and properties not previously known to be achievable based upon commonly accepted physical principles. Unidentified anomalous phenomena are differentiated from both attributed and temporarily non-attributed objects by one or more of the following observables:

(i) Instantaneous acceleration absent apparent inertia.

(ii) Hypersonic velocity absent a thermal signature and sonic shockwave.

(iii) Transmedium (such as space-to-ground and air-to-undersea) travel.

(iv) Positive lift contrary to known aerodynamic principles.

(v) Multispectral signature control.

(vi) Physical or invasive biological effects to close observers and the environment.

(B) INCLUSIONS.—The term ''unidentified anomalous phenomena'' includes what were previously described as—

(i) flying discs;

(ii) flying saucers;

(iii) unidentified aerial phenomena;

(iv) unidentified flying objects (UFOs); and

(v) unidentified submerged objects (USOs).

(23) UNIDENTIFIED ANOMALOUS PHENOMENA RECORD.—The term ''unidentified anomalous phenomena record'' means a record that is related to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence (and all equivalent subjects by any other name with the specific and sole exclusion of temporarily non-attributed objects) that was created or made available for use by, obtained by, or otherwise came into the possession of—

(A) the Executive Office of the President;

(B) the Department of Defense and its progenitors, the Department of War and the Department of the Navy;

(C) the Department of the Army;

(D) the Department of the Navy;

(E) the Department of the Air Force, specifically the Air Force Office of Special Investigations;

(F) the Department of Energy and its progenitors, the Manhattan Project, the Atomic Energy Commission, and the Energy Research and Development Administration;

(G) the Office of the Director of National Intelligence;

(H) the Central Intelligence Agency and its progenitor, the Office of Strategic Services;

(I) the National Reconnaissance Office;

(J) the Defense Intelligence Agency;

(K) the National Security Agency;

(L) the National Geospatial-Intelligence Agency;

(M) the National Aeronautics and Space Administration:

(N) the Federal Bureau of Investigation;

(O) the Federal Aviation Administration;

(P) the National Oceanic and Atmospheric Administration;

(Q) the Library of Congress;

(R) the National Archives and Records Administration;

(S) any Presidential library;

(T) any Executive agency;

(U) any independent office or agency;

(V) any other department, office, agency, committee, or commission of the Federal Government;

(W) any State or local government department, office, agency, committee, or commission that provided support or assistance or performed work, in connection with a Federal inquiry into unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence; and

(X) any private sector person or entity formerly or currently under contract or some other agreement with the Federal Government.

SEC. ___04. UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS COLLECTION AT THE NATIONAL ARCHIVES AND RECORDS ADMINISTRATION.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—(A) Not later than 60 days after the date of the enactment of this Act, the Archivist shall commence establishment of a collection of records in the National Archives to be known as the ''Unidentified Anomalous Phenomena Records Collection''.

(B) In carrying out subparagraph (A), the Archivist shall ensure the physical integrity and original provenance (or if indeterminate, the earliest historical owner) of all records in the Collection.

(C) The Collection shall consist of record copies of all Government, Government-provided, or Government-funded records relating to unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence (or equivalent subjects by any other name with the specific and sole exclusion of temporarily non-attributed objects), which shall be transmitted to the National Archives in accordance with section 2107 of title 44, United States Code.

(D) The Archivist shall prepare and publish a subject guidebook and index to the Collection.

(2) CONTENTS.—The Collection shall include the following:

(A) All unidentified anomalous phenomena records, regardless of age or date of creation—

(i) that have been transmitted to the National Archives or disclosed to the public in an unredacted form prior to the date of the enactment of this Act;

(ii) that are required to be transmitted to the National Archives; and

(iii) that the disclosure of which is postponed under this Act.

(B) A central directory comprised of identification aids created for each record transmitted to the Archivist under section ___05.

(C) All Review Board records as required by this Act.

(b) DISCLOSURE OF RECORDS.—All unidentified anomalous phenomena records transmitted to the National Archives for disclosure to the public shall—

(1) be included in the Collection; and

(2) be available to the public—

(A) for inspection and copying at the National Archives within 30 days after their transmission to the National Archives; and

(B) digitally via the National Archives online database within a reasonable amount of time not to exceed 180 days thereafter.

(c) FEES FOR COPYING.—

(1) IN GENERAL.—The Archivist shall—

(A) charge fees for copying unidentified anomalous phenomena records; and

(B) grant waivers of such fees pursuant to the standards established by section 552(a)(4) of title 5, United States Code.

(2) AMOUNT OF FEES.—The amount of a fee charged by the Archivist pursuant to paragraph (1)(A) for the copying of an unidentified anomalous phenomena record shall be such amount as the Archivist determines appropriate to cover the costs incurred by the National Archives in making and providing such copy, except that in no case may the amount of the fee charged exceed the actual expenses incurred by the National Archives in making and providing such copy.

(d) ADDITIONAL REQUIREMENTS.—

(1) USE OF FUNDS.—The Collection shall be preserved, protected, archived, digitized, and made available to the public at the National Archives and via the official National Archives online database using appropriations authorized, specified, and restricted for use under the terms of this Act.

(2) SECURITY OF RECORDS.—The National Security Program Office at the National Archives, in consultation with the National Archives Information Security Oversight Office, shall establish a program to ensure the security of the postponed unidentified anomalous phenomena records in the protected, and yet-to-be disclosed or classified portion of the Collection.

(e) OVERSIGHT.—

(1) SENATE.—The Committee on Homeland Security and Governmental Affairs of the Senate shall have continuing legislative oversight jurisdiction in the Senate with respect to the Collection.

(2) HOUSE OF REPRESENTATIVES.—The Committee on Oversight and Accountability of the House of Representatives shall have continuing legislative oversight jurisdiction in the House of Representatives with respect to the Collection.

SEC. ___05. REVIEW, IDENTIFICATION, TRANSMISSION TO THE NATIONAL ARCHIVES, AND PUBLIC DISCLOSURE OF UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS BY GOVERNMENT OFFICES.

(a) IDENTIFICATION, ORGANIZATION, AND PREPARATION FOR TRANSMISSION.—

(1) IN GENERAL.—As soon as practicable after the date of the enactment of this Act, each head of a Government office shall—

(A) identify and organize records in the possession of the Government office or under the control of the Government office relating to unidentified anomalous phenomena; and

(B) prepare such records for transmission to the Archivist for inclusion in the Collection.

(2) PROHIBITIONS.—(A) No unidentified anomalous phenomena record shall be destroyed, altered, or mutilated in any way.

(B) No unidentified anomalous phenomena record made available or disclosed to the public prior to the date of the enactment of this Act may be withheld, redacted, postponed for public disclosure, or reclassified.

(C) No unidentified anomalous phenomena record created by a person or entity outside the Federal Government (excluding names or identities consistent with the requirements of section ___06) shall be withheld, redacted, postponed for public disclosure, or reclassified.

(b) CUSTODY OF UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS PENDING REVIEW.—During the review by the heads of Government offices under subsection (c) and pending review activity by the Review Board, each head of a Government office shall retain custody of the unidentified anomalous phenomena records of the office for purposes of preservation, security, and efficiency, unless—

(1) the Review Board requires the physical transfer of the records for purposes of conducting an independent and impartial review;

(2) transfer is necessary for an administrative hearing or other Review Board function; or

(3) it is a third agency record described in subsection (c)(2)(C).

(c) REVIEW BY HEADS OF GOVERNMENT OFFICES.—

(1) IN GENERAL.—Not later than 300 days after the date of the enactment of this Act, each head of a Government office shall review, identify, and organize each unidentified anomalous phenomena record in the custody or possession of the office for—

(A) disclosure to the public;

(B) review by the Review Board; and

(C) transmission to the Archivist.

(2) REQUIREMENTS.—In carrying out paragraph (1), the head of a Government office shall—

(A) determine which of the records of the office are unidentified anomalous phenomena records;

(B) determine which of the unidentified anomalous phenomena records of the office have been officially disclosed or made publicly available in a complete and unredacted form;

(C)(i) determine which of the unidentified anomalous phenomena records of the office, or particular information contained in such a record, was created by a third agency or by another Government office; and

(ii) transmit to a third agency or other Government office those records, or particular information contained in those records, or complete and accurate copies thereof;

(D)(i) determine whether the unidentified anomalous phenomena records of the office or particular information in unidentified anomalous phenomena records of the office are covered by the standards for postponement of public disclosure under this title; and

(ii) specify on the identification aid required by subsection (d) the applicable postponement provision contained in section ___06;

(E) organize and make available to the Review Board all unidentified anomalous phenomena records identified under subparagraph (D) the public disclosure of, which in-whole or in-part, may be postponed under this title;

(F) organize and make available to the Review Board any record concerning which the office has any uncertainty as to whether the record is an unidentified anomalous phenomena record governed by this title;

(G) give precedence of work to—

(i) the identification, review, and transmission of unidentified anomalous phenomena records not already publicly available or disclosed as of the date of the enactment of this Act;

(ii) the identification, review, and transmission of all records that most unambiguously and definitively pertain to unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence;

(iii) the identification, review, and transmission of unidentified anomalous phenomena records that on the date of the enactment of this Act are the subject of litigation under section 552 of title 5, United States Code; and

(iv) the identification, review, and transmission of unidentified anomalous phenomena records with earliest provenance when not inconsistent with clauses (i) through (iii) and otherwise feasible; and

(H) make available to the Review Board any additional information and records that the Review Board has reason to believe the Review Board requires for conducting a review under this title.

(3) PRIORITY OF EXPEDITED REVIEW FOR DIRECTORS OF CERTAIN ARCHIVAL DEPOSITORIES.—The Director of each archival depository established under section 2112 of title 44, United States Code, shall have as a priority the expedited review for public disclosure of unidentified anomalous phenomena records in the possession and custody of the depository, and shall make such records available to the Review Board as required by this title.

(d) IDENTIFICATION AIDS.—

(1) IN GENERAL.—(A) Not later than 45 days after the date of the enactment of this Act, the Archivist, in consultation with the heads of such Government offices as the Archivist considers appropriate, shall prepare and make available to all Government offices a standard form of identification, or finding aid, for use with each unidentified anomalous phenomena record subject to review under this title whether in hardcopy (physical), softcopy (electronic), or digitized data format as may be appropriate.

(B) The Archivist shall ensure that the identification aid program is established in such a manner as to result in the creation of a uniform system for cataloging and finding every unidentified anomalous phenomena record subject to review under this title where ever and how ever stored in hardcopy (physical), softcopy (electronic), or digitized data format.

(2) REQUIREMENTS FOR GOVERNMENT OFFICES.—Upon completion of an identification aid using the standard form of identification prepared and made available under subparagraph (A) of paragraph (1) for the program established pursuant to subparagraph (B) of such paragraph, the head of a Government office shall—

(A) attach a printed copy to each physical unidentified anomalous phenomena record, and an electronic copy to each softcopy or digitized data unidentified anomalous phenomena record, the identification aid describes;

(B) transmit to the Review Board a printed copy for each physical unidentified anomalous phenomena record and an electronic copy for each softcopy or digitized data unidentified anomalous phenomena record the identification aid describes; and

(C) attach a printed copy to each physical unidentified anomalous phenomena record, and an electronic copy to each softcopy or digitized data unidentified anomalous phenomena record the identification aid describes, when transmitted to the Archivist.

(3) RECORDS OF THE NATIONAL ARCHIVES THAT ARE PUBLICLY AVAILABLE.—Unidentified anomalous phenomena records which are in the possession of the National Archives on the date of the enactment of this Act, and which have been publicly available in their entirety without redaction, shall be made available in the Collection without any additional review by the Review Board or another authorized office under this title, and shall not be required to have such an identification aid unless required by the Archivist.

(e) TRANSMISSION TO THE NATIONAL ARCHIVES.—Each head of a Government office shall—

(1) transmit to the Archivist, and make immediately available to the public, all unidentified anomalous phenomena records of the Government office that can be publicly disclosed, including those that are publicly available on the date of the enactment of this Act, without any redaction, adjustment, or withholding under the standards of this title; and

(2) transmit to the Archivist upon approval for postponement by the Review Board or upon completion of other action authorized by this title, all unidentified anomalous phenomena records of the Government office the public disclosure of which has been postponed, in whole or in part, under the standards of this title, to become part of the protected, yet-to-be disclosed, or classified portion of the Collection.

(f) CUSTODY OF POSTPONED UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS.—An unidentified anomalous phenomena record the public disclosure of which has been postponed shall, pending transmission to the Archivist, be held for reasons of security and preservation by the originating body until such time as the information security program has been established at the National Archives as required in section ___04(d)(2).

(g) PERIODIC REVIEW OF POSTPONED UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS.—

(1) IN GENERAL.—All postponed or redacted records shall be reviewed periodically by the originating agency and the Archivist consistent with the recommendations of the Review Board in the Controlled Disclosure Campaign Plan under section ___09(c)(3)(B).

(2) REQUIREMENTS.—(A) A periodic review under paragraph (1) shall address the public disclosure of additional unidentified anomalous phenomena records in the Collection under the standards of this title.

(B) All postponed unidentified anomalous phenomena records determined to require continued postponement shall require an unclassified written description of the reason for such continued postponement relevant to these specific records. Such description shall be provided to the Archivist and published in the Federal Register upon determination.

(C) The time and release requirements specified in the Controlled Disclosure Campaign Plan shall be revised or amended only if the Review Board is still in session and concurs with the rationale for postponement, subject to the limitations in section ___09(d)(1).

(D) The periodic review of postponed unidentified anomalous phenomena records shall serve to downgrade and declassify security classified information.

(E) Each unidentified anomalous phenomena record shall be publicly disclosed in

full, and available in the Collection, not later than the date that is 25 years after the date of the first creation of the record by the originating body, unless the President certifies, as required by this title, that—

(i) continued postponement is made necessary by an identifiable harm to the military defense, intelligence operations, law enforcement, or conduct of foreign relations; and

(ii) the identifiable harm is of such gravity that it outweighs the public interest in disclosure.

(h) REQUIREMENTS FOR EXECUTIVE AGENCIES.—

(1) IN GENERAL.—Executive agencies shall—

(A) transmit digital records electronically in accordance with section 2107 of title 44, United States Code;

(B) charge fees for copying unidentified anomalous phenomena records; and

(C) grant waivers of such fees pursuant to the standards established by section 552(a)(4) of title 5, United States Code.

(2) AMOUNT OF FEES.—The amount of a fee charged by the head of an Executive agency pursuant to paragraph (1)(B) for the copying of an unidentified anomalous phenomena record shall be such amount as the head determines appropriate to cover the costs incurred by the Executive agency in making and providing such copy, except that in no case may the amount of the fee charged exceed the actual expenses incurred by the Executive agency in making and providing such copy.

SEC. ___06. GROUNDS FOR POSTPONEMENT OF PUBLIC DISCLOSURE OF UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS.

Disclosure of unidentified anomalous phenomena records or particular information in unidentified anomalous phenomena records to the public may be postponed subject to the limitations of this title if there is clear and convincing evidence that—

(1) the threat to the military defense, intelligence operations, or conduct of foreign relations of the United States posed by the public disclosure of the unidentified anomalous phenomena record is of such gravity that it outweighs the public interest in disclosure, and such public disclosure would reveal—

(A) an intelligence agent whose identity currently requires protection;

(B) an intelligence source or method which is currently utilized, or reasonably expected to be utilized, by the Federal Government and which has not been officially disclosed, the disclosure of which would interfere with the conduct of intelligence activities; or

(C) any other matter currently relating to the military defense, intelligence operations, or conduct of foreign relations of the United States, the disclosure of which would demonstrably and substantially impair the national security of the United States;

(2) the public disclosure of the unidentified anomalous phenomena record would reveal the name or identity of a living person who provided confidential information to the Federal Government and would pose a substantial risk of harm to that person;

(3) the public disclosure of the unidentified anomalous phenomena record could reasonably be expected to constitute an unwarranted invasion of personal privacy, and that invasion of privacy is so substantial that it outweighs the public interest; or

(4) the public disclosure of the unidentified anomalous phenomena record would compromise the existence of an understanding of confidentiality currently requiring protection between a Federal Government agent and a cooperating individual or a foreign government, and public disclosure would be so harmful that it outweighs the public interest.

SEC. ___07. ESTABLISHMENT AND POWERS OF THE UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS REVIEW BOARD.

(a) ESTABLISHMENT.—There is established as an independent agency a board to be known as the ''Unidentified Anomalous Phenomena Records Review Board''.

(b) APPOINTMENT.—

(1) IN GENERAL.—The President, by and with the advice and consent of the Senate, shall appoint, without regard to political affiliation, 9 citizens of the United States to serve as members of the Review Board to ensure and facilitate the review, transmission to the Archivist, and public disclosure of government records relating to unidentified anomalous phenomena.

(2) PERIOD FOR NOMINATIONS.—(A) The President shall make nominations to the Review Board not later than 90 calendar days after the date of the enactment of this Act.

(B) If the Senate votes not to confirm a nomination to the Review Board, the President shall make an additional nomination not later than 30 days thereafter.

(3) CONSIDERATION OF RECOMMENDATIONS.—(A) The President shall make nominations to the Review Board after considering persons recommended by the following:

(i) The majority leader of the Senate.

(ii) The minority leader of the Senate.

(iii) The Speaker of the House of Representatives.

(iv) The minority leader of the House of Representatives.

(v) The Secretary of Defense.

(vi) The National Academy of Sciences.

(vii) Established nonprofit research organizations relating to unidentified anomalous phenomena.

(viii) The American Historical Association.

(ix) Such other persons and organizations as the President considers appropriate.

(B) If an individual or organization described in subparagraph (A) does not recommend at least 2 nominees meeting the qualifications stated in paragraph (5) by the date that is 45 days after the date of the enactment of this Act, the President shall consider for nomination the persons recommended by the other individuals and organizations described in such subparagraph.

(C) The President may request an individual or organization described in subparagraph (A) to submit additional nominations.

(4) QUALIFICATIONS.—Persons nominated to the Review Board—

(A) shall be impartial citizens, none of whom shall have had any previous or current involvement with any legacy program or controlling authority relating to the collection, exploitation, or reverse engineering of technologies of unknown origin or the examination of biological evidence of living or deceased non-human intelligence;

(B) shall be distinguished persons of high national professional reputation in their respective fields who are capable of exercising the independent and objective judgment necessary to the fulfillment of their role in ensuring and facilitating the review, transmission to the public, and public disclosure of records related to the government's understanding of, and activities associated with unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence and who possess an appreciation of the value of such material to the public, scholars, and government; and

(C) shall include at least—

(i) 1 current or former national security official;

(ii) 1 current or former foreign service official;

(iii) 1 scientist or engineer;

(iv) 1 economist;

(v) 1 professional historian; and

(vi) 1 sociologist.

(5) MANDATORY CONFLICTS OF INTEREST REVIEW.—

(A) IN GENERAL.—The Director shall conduct a review of each individual nominated and appointed to the position of member of the Review Board to ensure the member does not have any conflict of interest during the term of the service of the member.

(B) REPORTS.—During the course of the review under subparagraph (A), if the Director becomes aware that the member being reviewed possesses a conflict of interest to the mission of the Review Board, the Director shall, not later than 30 days after the date on which the Director became aware of the conflict of interest, submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives a report on the conflict of interest.

(c) SECURITY CLEARANCES.—

(1) IN GENERAL.—All Review Board nominees shall be granted the necessary security clearances and accesses, including any and all relevant Presidential, departmental, and agency special access programs, in an accelerated manner subject to the standard procedures for granting such clearances.

(2) QUALIFICATION FOR NOMINEES.—All nominees for appointment to the Review Board under subsection (b) shall qualify for the necessary security clearances and accesses prior to being considered for confirmation by the Committee on Homeland Security and Governmental Affairs of the Senate.

(d) CONSIDERATION BY THE SENATE.—Nominations for appointment under subsection (b) shall be referred to the Committee on Homeland Security and Governmental Affairs of the Senate for consideration.

(e) VACANCY.—A vacancy on the Review Board shall be filled in the same manner as specified for original appointment within 30 days of the occurrence of the vacancy.

(f) REMOVAL OF REVIEW BOARD MEMBER.—

(1) IN GENERAL.—No member of the Review Board shall be removed from office, other than—

(A) by impeachment and conviction; or

(B) by the action of the President for inefficiency, neglect of duty, malfeasance in office, physical disability, mental incapacity, or any other condition that substantially impairs the performance of the member's duties.

(2) NOTICE OF REMOVAL.—(A) If a member of the Review Board is removed from office, and that removal is by the President, not later than 10 days after the removal, the President shall submit to the leadership of Congress, the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Reform of the House of Representatives a report specifying the facts found and the grounds for the removal.

(B) The President shall publish in the Federal Register a report submitted under subparagraph (A), except that the President may, if necessary to protect the rights of a person named in the report or to prevent undue interference with any pending prosecution, postpone or refrain from publishing any or all of the report until the completion of such pending cases or pursuant to privacy protection requirements in law.

(3) JUDICIAL REVIEW.—(A) A member of the Review Board removed from office may obtain judicial review of the removal in a civil action commenced in the United States District Court for the District of Columbia.

(B) The member may be reinstated or granted other appropriate relief by order of the court.

(g) COMPENSATION OF MEMBERS.—

(1) IN GENERAL.—A member of the Review Board, other than the Executive Director under section ____08(c)(1), shall be compensated at a rate equal to the daily equivalent of the annual rate of basic pay prescribed for level IV of the Executive Schedule under section 5315 of title 5, United States Code, for each day (including travel time) during which the member is engaged in the performance of the duties of the Review Board.

(2) TRAVEL EXPENSES.—A member of the Review Board shall be allowed reasonable travel expenses, including per diem in lieu of subsistence, at rates for employees of agencies under subchapter I of chapter 57 of title 5, United States Code, while away from the member's home or regular place of business in the performance of services for the Review Board.

(h) DUTIES OF THE REVIEW BOARD.—

(1) IN GENERAL.—The Review Board shall consider and render decisions on a determination by a Government office to seek to postpone the disclosure of unidentified anomalous phenomena records.

(2) CONSIDERATIONS AND RENDERING OF DECISIONS.—In carrying out paragraph (1), the Review Board shall consider and render decisions—

(A) whether a record constitutes a unidentified anomalous phenomena record; and

(B) whether a unidentified anomalous phenomena record or particular information in a record qualifies for postponement of disclosure under this title.

(i) POWERS.—

(1) IN GENERAL.—The Review Board shall have the authority to act in a manner prescribed under this title, including authority—

(A) to direct Government offices to complete identification aids and organize unidentified anomalous phenomena records;

(B) to direct Government offices to transmit to the Archivist unidentified anomalous phenomena records as required under this title, including segregable portions of unidentified anomalous phenomena records and substitutes and summaries of unidentified anomalous phenomena records that can be publicly disclosed to the fullest extent;

(C)(i) to obtain access to unidentified anomalous phenomena records that have been identified and organized by a Government office;

(ii) to direct a Government office to make available to the Review Board, and if necessary investigate the facts surrounding, additional information, records, or testimony from individuals which the Review Board has reason to believe are required to fulfill its functions and responsibilities under this title; and

(iii) request the Attorney General to subpoena private persons to compel testimony, records, and other information relevant to its responsibilities under this title;

(D) require any Government office to account in writing for the destruction of any records relating to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence;

(E) receive information from the public regarding the identification and public disclosure of unidentified anomalous phenomena records;

(F) hold hearings, administer oaths, and subpoena witnesses and documents;

(G) use the Federal Acquisition Service in the same manner and under the same conditions as other Executive agencies; and

(H) use the United States mails in the same manner and under the same conditions as other Executive agencies.

(2) ENFORCEMENT OF SUBPOENA.—A subpoena issued under paragraph (1)(C)(iii) may be enforced by any appropriate Federal court acting pursuant to a lawful request of the Review Board.

(j) WITNESS IMMUNITY.—The Review Board shall be considered to be an agency of the United States for purposes of section 6001 of title 18, United States Code. Witnesses, close observers, and whistleblowers providing information directly to the Review Board shall also be afforded the protections provided to such persons specified under section 1673(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (50 U.S.C. 3373b(b)).

(k) OVERSIGHT.—

(1) SENATE.—The Committee on Homeland Security and Governmental Affairs of the Senate shall have continuing legislative oversight jurisdiction in the Senate with respect to the official conduct of the Review Board and the disposition of postponed records after termination of the Review Board, and shall have access to any records held or created by the Review Board.

(2) HOUSE OF REPRESENTATIVES.—Unless otherwise determined appropriate by the House of Representatives, the Committee on Oversight and Accountability of the House of Representatives shall have continuing legislative oversight jurisdiction in the House of Representatives with respect to the official conduct of the Review Board and the disposition of postponed records after termination of the Review Board, and shall have access to any records held or created by the Review Board.

(3) DUTY TO COOPERATE.—The Review Board shall have the duty to cooperate with the exercise of oversight jurisdiction described in this subsection.

(4) SECURITY CLEARANCES.—The Chairmen and Ranking Members of the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives, and staff of such committees designated by such Chairmen and Ranking Members, shall be granted all security clearances and accesses held by the Review Board, including to relevant Presidential and department or agency special access and compartmented access programs.

(l) SUPPORT SERVICES.—The Administrator of the General Services Administration shall provide administrative services for the Review Board on a reimbursable basis.

(m) INTERPRETIVE REGULATIONS.—The Review Board may issue interpretive regulations.

(n) TERMINATION AND WINDING DOWN.—

(1) IN GENERAL.—The Review Board and the terms of its members shall terminate not later than September 30, 2030, unless extended by Congress.

(2) REPORTS.—Upon its termination, the Review Board shall submit to the President and Congress reports, including a complete and accurate accounting of expenditures during its existence and shall complete all other reporting requirements under this title.

(3) TRANSFER OF RECORDS.—Upon termination and winding down, the Review Board shall transfer all of its records to the Archivist for inclusion in the Collection, and no record of the Review Board shall be destroyed.

SEC. ____08. UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS REVIEW BOARD PERSONNEL.

(a) EXECUTIVE DIRECTOR.—

(1) APPOINTMENT.—Not later than 45 days after the date of the enactment of this Act, the President shall appoint 1 citizen of the United States, without regard to political affiliation, to the position of Executive Director of the Review Board. This position counts as 1 of the 9 Review Board members under section ____07(b)(1).

(2) QUALIFICATIONS.—The person appointed as Executive Director shall be a private citizen of integrity and impartiality who—

(A) is a distinguished professional; and

(B) is not a present employee of the Federal Government; and

(C) has had no previous or current involvement with any legacy program or controlling authority relating to the collection, exploitation, or reverse engineering of technologies of unknown origin or the examination of biological evidence of living or deceased non-human intelligence.

(3) MANDATORY CONFLICTS OF INTEREST REVIEW.—

(A) IN GENERAL.—The Director shall conduct a review of each individual appointed to the position of Executive Director to ensure the Executive Director does not have any conflict of interest during the term of the service of the Executive Director.

(B) REPORTS.—During the course of the review under subparagraph (A), if the Director becomes aware that the Executive Director possesses a conflict of interest to the mission of the Review Board, the Director shall, not later than 30 days after the date on which the Director became aware of the conflict of interest, submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives a report on the conflict of interest.

(4) SECURITY CLEARANCES.—(A) A candidate for Executive Director shall be granted all the necessary security clearances and accesses, including to relevant Presidential and department or agency special access and compartmented access programs in an accelerated manner subject to the standard procedures for granting such clearances.

(B) A candidate shall qualify for the necessary security clearances and accesses prior to being appointed by the President.

(5) FUNCTIONS.—The Executive Director shall—

(A) serve as principal liaison to the Executive Office of the President and Congress;

(B) serve as Chairperson of the Review Board;

(C) be responsible for the administration and coordination of the Review Board's review of records;

(D) be responsible for the administration of all official activities conducted by the Review Board;

(E) exercise tie-breaking Review Board authority to decide or determine whether any record should be disclosed to the public or postponed for disclosure; and

(F) retain right-of-appeal directly to the President for decisions pertaining to executive branch unidentified anomalous phenomena records for which the Executive Director and Review Board members may disagree.

(6) REMOVAL.—The Executive Director shall not be removed for reasons other for cause on the grounds of inefficiency, neglect of duty, malfeasance in office, physical disability, mental incapacity, or any other condition that substantially impairs the performance of the responsibilities of the Executive Director or the staff of the Review Board.

(b) STAFF.—

(1) IN GENERAL.—The Review Board, without regard to the civil service laws, may appoint and terminate additional personnel as are necessary to enable the Review Board and its Executive Director to perform the duties of the Review Board.

(2) QUALIFICATIONS.—

(A) IN GENERAL.—Except as provided in subparagraph (B), a person appointed to the staff of the Review Board shall be a citizen of integrity and impartiality who has had no previous or current involvement with any legacy program or controlling authority relating to the collection, exploitation, or reverse engineering of technologies of unknown origin or the examination of biological evidence of living or deceased non-human intelligence.

(B) CONSULTATION WITH DIRECTOR OF THE OFFICE OF GOVERNMENT ETHICS.—In their consideration of persons to be appointed as staff of the Review Board under paragraph (1), the Review Board shall consult with the Director—

(i) to determine criteria for possible conflicts of interest of staff of the Review Board, consistent with ethics laws, statutes, and regulations for employees of the executive branch of the Federal Government; and

(ii) ensure that no person selected for such position of staff of the Review Board possesses a conflict of interests in accordance with the criteria determined pursuant to clause (i).

(3) SECURITY CLEARANCES.—(A) A candidate for staff shall be granted the necessary security clearances (including all necessary special access program clearances) in an accelerated manner subject to the standard procedures for granting such clearances.

(B)(i) The Review Board may offer conditional employment to a candidate for a staff position pending the completion of security clearance background investigations. During the pendency of such investigations, the Review Board shall ensure that any such employee does not have access to, or responsibility involving, classified or otherwise restricted unidentified anomalous phenomena record materials.

(ii) If a person hired on a conditional basis under clause (i) is denied or otherwise does not qualify for all security clearances necessary to carry out the responsibilities of the position for which conditional employment has been offered, the Review Board shall immediately terminate the person's employment.

(4) SUPPORT FROM NATIONAL DECLASSIFICATION CENTER.—The Archivist shall assign one representative in full-time equivalent status from the National Declassification Center to advise and support the Review Board disclosure postponement review process in a nonvoting staff capacity.

(c) COMPENSATION.—Subject to such rules as may be adopted by the Review Board, without regard to the provisions of title 5, United States Code, governing appointments in the competitive service and without regard to the provisions of chapter 51 and subchapter III of chapter 53 of that title relating to classification and General Schedule pay rates—

(1) the Executive Director shall be compensated at a rate not to exceed the rate of basic pay for level II of the Executive Schedule and shall serve the entire tenure as one full-time equivalent; and

(2) the Executive Director shall appoint and fix compensation of such other personnel as may be necessary to carry out this title.

(d) ADVISORY COMMITTEES.—

(1) AUTHORITY.—The Review Board may create advisory committees to assist in fulfilling the responsibilities of the Review Board under this title.

(2) FACA.—Any advisory committee created by the Review Board shall be subject to chapter 10 of title 5, United States Code.

(e) SECURITY CLEARANCE REQUIRED.—An individual employed in any position by the Review Board (including an individual appointed as Executive Director) shall be required to qualify for any necessary security clearance prior to taking office in that position, but may be employed conditionally in accordance with subsection (b)(3)(B) before qualifying for that clearance.

SEC. ___09. REVIEW OF RECORDS BY THE UNIDENTIFIED ANOMALOUS PHENOMENA RECORDS REVIEW BOARD.

(a) CUSTODY OF RECORDS REVIEWED BY REVIEW BOARD.—Pending the outcome of a review of activity by the Review Board, a Government office shall retain custody of its unidentified anomalous phenomena records for purposes of preservation, security, and efficiency, unless—

(1) the Review Board requires the physical transfer of records for reasons of conducting an independent and impartial review; or

(2) such transfer is necessary for an administrative hearing or other official Review Board function.

(b) STARTUP REQUIREMENTS.—The Review Board shall—

(1) not later than 90 days after the date of its appointment, publish a schedule in the Federal Register for review of all unidentified anomalous phenomena records;

(2) not later than 180 days after the date of the enactment of this Act, begin its review of unidentified anomalous phenomena records under this title; and

(3) periodically thereafter as warranted, but not less frequently than semiannually, publish a revised schedule in the Federal Register addressing the review and inclusion of any unidentified anomalous phenomena records subsequently discovered.

(c) DETERMINATIONS OF THE REVIEW BOARD.—

(1) IN GENERAL.—The Review Board shall direct that all unidentified anomalous phenomena records be transmitted to the Archivist and disclosed to the public in the Collection in the absence of clear and convincing evidence that—

(A) a Government record is not an unidentified anomalous phenomena record; or

(B) a Government record, or particular information within an unidentified anomalous phenomena record, qualifies for postponement of public disclosure under this title.

(2) REQUIREMENTS.—In approving postponement of public disclosure of a unidentified anomalous phenomena record, the Review Board shall seek to—

(A) provide for the disclosure of segregable parts, substitutes, or summaries of such a record; and

(B) determine, in consultation with the originating body and consistent with the standards for postponement under this title, which of the following alternative forms of disclosure shall be made by the originating body:

(i) Any reasonably segregable particular information in a unidentified anomalous phenomena record.

(ii) A substitute record for that information which is postponed.

(iii) A summary of a unidentified anomalous phenomena record.

(3) CONTROLLED DISCLOSURE CAMPAIGN PLAN.—With respect to unidentified anomalous phenomena records, particular information in unidentified anomalous phenomena records, recovered technologies of unknown origin, and biological evidence for non-human intelligence the public disclosure of which is postponed pursuant to section ___06, or for which only substitutions or summaries have been disclosed to the public, the Review Board shall create and transmit to the President, the Archivist, the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Oversight and Accountability of the House of Representatives a Controlled Disclosure Campaign Plan, with classified appendix, containing—

(A) a description of actions by the Review Board, the originating body, the President, or any Government office (including a justification of any such action to postpone disclosure of any record or part of any record) and of any official proceedings conducted by the Review Board with regard to specific unidentified anomalous phenomena records; and

(B) a benchmark-driven plan, based upon a review of the proceedings and in conformity with the decisions reflected therein, recommending precise requirements for periodic review, downgrading, and declassification as well as the exact time or specified occurrence following which each postponed item may be appropriately disclosed to the public under this title.

(4) NOTICE FOLLOWING REVIEW AND DETERMINATION.—(A) Following its review and a determination that a unidentified anomalous phenomena record shall be publicly disclosed in the Collection or postponed for disclosure and held in the protected Collection, the Review Board shall notify the head of the originating body of the determination of the Review Board and publish a copy of the determination in the Federal Register within 14 days after the determination is made.

(B) Contemporaneous notice shall be made to the President for Review Board determinations regarding unidentified anomalous phenomena records of the executive branch of the Federal Government, and to the oversight committees designated in this title in the case of records of the legislative branch of the Federal Government. Such notice shall contain a written unclassified justification for public disclosure or postponement of disclosure, including an explanation of the application of any standards contained in section ___06.

(d) PRESIDENTIAL AUTHORITY OVER REVIEW BOARD DETERMINATION.—

(1) PUBLIC DISCLOSURE OR POSTPONEMENT OF DISCLOSURE.—After the Review Board has made a formal determination concerning the public disclosure or postponement of disclosure of an unidentified anomalous phenomena record of the executive branch of the Federal Government or information within such a record, or of any information contained in a unidentified anomalous phenomena record, obtained or developed solely within the executive branch of the Federal Government, the President shall—

(A) have the sole and nondelegable authority to require the disclosure or postponement of such record or information under the standards set forth in section ___06; and

(B) provide the Review Board with both an unclassified and classified written certification specifying the President's decision within 30 days after the Review Board's determination and notice to the executive branch agency as required under this title, stating the justification for the President's decision, including the applicable grounds for postponement under section ___06, accompanied by a copy of the identification aid required under section ___04.

(2) PERIODIC REVIEW.—(A) Any unidentified anomalous phenomena record postponed by the President shall henceforth be subject to the requirements of periodic review, downgrading, declassification, and public disclosure in accordance with the recommended timeline and associated requirements specified in the Controlled Disclosure Campaign Plan unless these conflict with the standards set forth in section ___06.

(B) This paragraph supersedes all prior declassification review standards that may previously have been deemed applicable to unidentified anomalous phenomena records.

(3) RECORD OF PRESIDENTIAL POSTPONEMENT.—The Review Board shall, upon its receipt—

(A) publish in the Federal Register a copy of any unclassified written certification, statement, and other materials transmitted by or on behalf of the President with regard to postponement of unidentified anomalous phenomena records; and

(B) revise or amend recommendations in the Controlled Disclosure Campaign Plan accordingly.

(e) NOTICE TO PUBLIC.—Every 30 calendar days, beginning on the date that is 60 calendar days after the date on which the Review Board first approves the postponement of disclosure of a unidentified anomalous phenomena record, the Review Board shall publish in the Federal Register a notice that summarizes the postponements approved by the Review Board or initiated by the President, the Senate, or the House of Representatives, including a description of the subject, originating agency, length or other physical description, and each ground for postponement that is relied upon to the maximum extent classification restrictions permitting.

(f) REPORTS BY THE REVIEW BOARD.—

(1) IN GENERAL.—The Review Board shall report its activities to the leadership of Congress, the Committee on Homeland Security and Governmental Affairs of the Senate, the Committee on Oversight and Reform of the House of Representatives, the President, the Archivist, and the head of any Government office whose records have been the subject of Review Board activity.

(2) FIRST REPORT.—The first report shall be issued on the date that is 1 year after the date of enactment of this Act, and subsequent reports every 1 year thereafter until termination of the Review Board.

(3) CONTENTS.—A report under paragraph (1) shall include the following information:

(A) A financial report of the expenses for all official activities and requirements of the Review Board and its personnel.

(B) The progress made on review, transmission to the Archivist, and public disclosure of unidentified anomalous phenomena records.

(C) The estimated time and volume of unidentified anomalous phenomena records involved in the completion of the Review Board's performance under this title.

(D) Any special problems, including requests and the level of cooperation of Government offices, with regard to the ability of the Review Board to operate as required by this title.

(E) A record of review activities, including a record of postponement decisions by the Review Board or other related actions authorized by this title, and a record of the volume of records reviewed and postponed.

(F) Suggestions and requests to Congress for additional legislative authority needs.

(4) COPIES AND BRIEFS.—Coincident with the reporting requirements in paragraph (2), or more frequently as warranted by new information, the Review Board shall provide copies to, and fully brief, at a minimum the President, the Archivist, leadership of Congress, the Chairmen and Ranking Members of the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives, and the Chairs and Chairmen, as the case may be, and Ranking Members and Vice Chairmen, as the case may be, of such other committees as leadership of Congress determines appropriate on the Controlled Disclosure Campaign Plan, classified appendix, and postponed disclosures, specifically addressing—

(A) recommendations for periodic review, downgrading, and declassification as well as the exact time or specified occurrence following which specific unidentified anomalous phenomena records and material may be appropriately disclosed;

(B) the rationale behind each postponement determination and the recommended means to achieve disclosure of each postponed item;

(C) any other findings that the Review Board chooses to offer; and

(D) an addendum containing copies of reports of postponed records to the Archivist required under subsection (c)(3) made since the date of the preceding report under this subsection.

(5) NOTICE.—At least 90 calendar days before completing its work, the Review Board shall provide written notice to the President and Congress of its intention to terminate its operations at a specified date.

(6) BRIEFING THE ALL-DOMAIN ANOMALY RESOLUTION OFFICE.—Coincident with the provision in paragraph (5), if not accomplished earlier under paragraph (4), the Review Board shall brief the All-domain Anomaly Resolution Office established pursuant to section 1683 of the National Defense Authorization Act for Fiscal Year 2022 (50 U.S.C. 3373), or its successor, as subsequently designated by Act of Congress, on the Controlled Disclosure Campaign Plan, classified appendix, and postponed disclosures.

SEC. ___10. DISCLOSURE OF RECOVERED TECHNOLOGIES OF UNKNOWN ORIGIN AND BIOLOGICAL EVIDENCE OF NON-HUMAN INTELLIGENCE.

(a) EXERCISE OF EMINENT DOMAIN.—The Federal Government shall exercise eminent domain over any and all recovered technologies of unknown origin and biological evidence of non-human intelligence that may be controlled by private persons or entities in the interests of the public good.

(b) AVAILABILITY TO REVIEW BOARD.—Any and all such material, should it exist, shall be made available to the Review Board for personal examination and subsequent disclosure determination at a location suitable to the controlling authority of said material and in a timely manner conducive to the objectives of the Review Board in accordance with the requirements of this title.

(c) ACTIONS OF REVIEW BOARD.—In carrying out subsection (b), the Review Board shall consider and render decisions—

(1) whether the material examined constitutes technologies of unknown origin or biological evidence of non-human intelligence beyond a reasonable doubt;

(2) whether recovered technologies of unknown origin, biological evidence of non-human intelligence, or a particular subset of material qualifies for postponement of disclosure under this title; and

(3) what changes, if any, to the current disposition of said material should the Federal Government make to facilitate full disclosure.

(d) REVIEW BOARD ACCESS TO TESTIMONY AND WITNESSES.—The Review Board shall have access to all testimony from unidentified anomalous phenomena witnesses, close observers and legacy program personnel and whistleblowers within the Federal Government's possession as of and after the date of the enactment of this Act in furtherance of Review Board disclosure determination responsibilities in section ___07(h) and subsection (c) of this section.

(e) SOLICITATION OF ADDITIONAL WITNESSES.—The Review Board shall solicit additional unidentified anomalous phenomena witness and whistleblower testimony and afford protections under section 1673(b) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (50 U.S.C. 3373b(b)) if deemed beneficial in fulfilling Review Board responsibilities under this title.

SEC. ___11. DISCLOSURE OF OTHER MATERIALS AND ADDITIONAL STUDY.

(a) MATERIALS UNDER SEAL OF COURT.—

(1) INFORMATION HELD UNDER SEAL OF A COURT.—The Review Board may request the Attorney General to petition any court in the United States or abroad to release any information relevant to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence that is held under seal of the court.

(2) INFORMATION HELD UNDER INJUNCTION OF SECRETARY OF GRAND JURY.—(A) The Review Board may request the Attorney General to petition any court in the United States to release any information relevant to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence that is held under the injunction of secrecy of a grand jury.

(B) A request for disclosure of unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence materials under this title shall be deemed to constitute a showing of particularized need under rule 6 of the Federal Rules of Criminal Procedure.

(b) SENSE OF CONGRESS.—It is the sense of the Congress that—

(1) the Attorney General should assist the Review Board in good faith to unseal any records that the Review Board determines to be relevant and held under seal by a court or under the injunction of secrecy of a grand jury;

(2) the Secretary of State should contact any foreign government that may hold material relevant to unidentified anomalous phenomena, technologies of unknown origin, or non-human intelligence and seek disclosure of such material; and

(3) all heads of Executive agencies should cooperate in full with the Review Board to seek the disclosure of all material relevant to unidentified anomalous phenomena, technologies of unknown origin, and non-human intelligence consistent with the public interest.

SEC. ___12. RULES OF CONSTRUCTION.

(a) PRECEDENCE OVER OTHER LAW.—When this title requires transmission of a record to the Archivist or public disclosure, it shall take precedence over any other provision of law (except section 6103 of the Internal Revenue Code of 1986 specifying confidentiality and disclosure of tax returns and tax return information), judicial decision construing such provision of law, or common law doctrine that would otherwise prohibit such transmission or disclosure, with the exception of deeds governing access to or transfer or release of gifts and donations of records to the United States Government.

(b) FREEDOM OF INFORMATION ACT.—Nothing in this title shall be construed to eliminate or limit any right to file requests with any executive agency or seek judicial review of the decisions pursuant to section 552 of title 5, United States Code.

(c) JUDICIAL REVIEW.—Nothing in this title shall be construed to preclude judicial review, under chapter 7 of title 5, United States Code, of final actions taken or required to be taken under this title.

(d) EXISTING AUTHORITY.—Nothing in this title revokes or limits the existing authority of the President, any executive agency, the Senate, or the House of Representatives, or any other entity of the Federal Government to publicly disclose records in its possession.

(e) RULES OF THE SENATE AND HOUSE OF REPRESENTATIVES.—To the extent that any provision of this title establishes a procedure to be followed in the Senate or the House of Representatives, such provision is adopted—

(1) as an exercise of the rulemaking power of the Senate and House of Representatives, respectively, and is deemed to be part of the

rules of each House, respectively, but applicable only with respect to the procedure to be followed in that House, and it supersedes other rules only to the extent that it is inconsistent with such rules; and

(2) with full recognition of the constitutional right of either House to change the rules (so far as they relate to the procedure of that House) at any time, in the same manner, and to the same extent as in the case of any other rule of that House.

SEC. ___13. TERMINATION OF EFFECT OF TITLE.

(a) PROVISIONS PERTAINING TO THE REVIEW BOARD.—The provisions of this title that pertain to the appointment and operation of the Review Board shall cease to be effective when the Review Board and the terms of its members have terminated pursuant to section ___07(n).

(b) OTHER PROVISIONS.—(1) The remaining provisions of this title shall continue in effect until such time as the Archivist certifies to the President and Congress that all unidentified anomalous phenomena records have been made available to the public in accordance with this title.

(2) In facilitation of the provision in paragraph (1), the All-domain Anomaly Resolution Office established pursuant to section 1683 of the National Defense Authorization Act for Fiscal Year 2022 (50 U.S.C. 3373), or its successor as subsequently designated by Act of Congress, shall develop standardized unidentified anomalous phenomena declassification guidance applicable to any and all unidentified anomalous phenomena records generated by originating bodies subsequent to termination of the Review Board consistent with the requirements and intent of the Controlled Disclosure Campaign Plan with respect to unidentified anomalous phenomena records originated prior to Review Board termination.

SEC. ___14. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—There is authorized to be appropriated to carry out the provisions of this title $20,000,000 for fiscal year 2024.

(b) INTERIM FUNDING.—Until such time as funds are appropriated pursuant to subsection (a), the President may use such sums as are available for discretionary use to carry out this title.

SEC. ___15. SEVERABILITY.

If any provision of this title or the application thereof to any person or circumstance is held invalid, the remainder of this title and the application of that provision to other persons not similarly situated or to other circumstances shall not be affected by the invalidation.

SA 837. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. WITHDRAWAL OF NORMAL TRADE RELATIONS TREATMENT FROM THE PEOPLE'S REPUBLIC OF CHINA.

Notwithstanding title I of Public Law 106–286 (114 Stat. 880) or any other provision of law, effective on the date that is 2 years after the date of the enactment of this Act—

(1) normal trade relations treatment shall not apply pursuant to section 101 of that Act to the products of the People's Republic of China;

(2) normal trade relations treatment may not thereafter be extended to the products of the People's Republic of China under the provisions of chapter 1 of title IV of the Trade Act of 1974 (19 U.S.C. 2431 et seq.);

(3) the rates of duty set forth in column 2 of the Harmonized Tariff Schedule of the United States shall apply to all products of the People's Republic of China; and

(4) the President may proclaim increases in the rates of duty applicable to products of the People's Republic of China to rates that are higher than the rates described in paragraph (3).

SA 838. Mr. HAWLEY (for himself and Mr. VANCE) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title XII, add the following:

SEC. 1299L. CLARIFICATION OF THE TERM "AGGREGATE VALUE" FOR PURPOSES OF PRESIDENTIAL DRAWDOWN AUTHORITY.

The Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) is amended—

(1) in section 506(a)(1) (22 U.S.C. 2318(a)(1)), in the undesignated matter following subparagraph (B), by inserting after ''fiscal year.'' the following: ''For purposes of this paragraph, the term 'aggregate value' means—

''(A) in the case of defense articles, the greater of—

''(i) the original acquisition cost to the United States Government, plus the cost of improvements or other modifications made by or on behalf of the Government; or

''(ii) the replacement cost; and

''(B) in the case of defense services, the full cost to the Government of providing the services.''; and

(2) in section 644(m)(2) (22 U.S.C. 2403(m)(2)), by inserting ''except as provided in section 506(a)(1),'' before ''with respect to''.

SA 839. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XXVIII, insert the following:

Subtitle _____—Justice for Jana Elementary Act of 2023

SEC. _____. SHORT TITLE.

This subtitle may be cited as the ''Justice for Jana Elementary Act of 2023''.

SEC. _____. DEFINITIONS.

In this subtitle:

(1) COVERED SCHOOL.—The term ''covered school'' means a school that is part of the Hazelwood School District in the State of Missouri.

(2) FUND.—The term ''Fund'' means the Radioactive School Assistance Fund established under this subtitle.

(3) IMPACTED SCHOOL.—The term ''impacted school'' means a public elementary school or secondary school—

(A) that closed on or after January 1, 2020; and

(B) where the Formerly Utilized Sites Remedial Action Program of the Corps of Engineers detected radiation above background levels—

(i) on school property; or

(ii) otherwise, within 1000 feet of a building containing classrooms or other educational facilities of the school.

(4) JANA ELEMENTARY SCHOOL.—The term ''Jana Elementary School'' means the school located at 405 Jana Drive in Florissant, Missouri.

(5) LOCAL EDUCATIONAL AGENCY.—The term ''local educational agency'' has the meaning given the term in section 8101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(6) NATIONAL CONTINGENCY PLAN.—The term ''National Contingency Plan'' means the National Contingency Plan—

(A) prepared and published under section 311(d) of the Federal Water Pollution Control Act (33 U.S.C. 1321(d)); or

(B) revised under section 105 of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9605).

(7) PROGRAM.—The term ''Program'' means the Radioactive School Assistance Program established in accordance with this subtitle.

(8) SECRETARY.—The term ''Secretary'' means the Secretary of Energy.

(9) VICINITY PROPERTY.—The term ''vicinity property'' has the meaning given the term in the Engineer Regulation ER 200–1–4 of the Corps of Engineers entitled ''Formerly Utilized Sites Remedial Action Program'' and dated August 29, 2014 (or a successor document).

SEC. _____. REMEDIATION OF JANA ELEMENTARY SCHOOL.

Consistent with the requirements and obligations under the Formerly Utilized Sites Remedial Action Program of the Corps of Engineers, the Secretary of the Army shall—

(1) not later than 120 days after the date of the enactment of this Act, establish new remediation goals for Jana Elementary School that will result in the removal of all radioactive contamination at Jana Elementary School such that no portion of the site is subjected to radiation above background levels; and

(2) after establishing remediation goals under paragraph (1), carry out activities necessary to achieve those goals.

SEC. _____. FINANCIAL ASSISTANCE FOR SCHOOLS WITH RADIOACTIVE CONTAMINATION.

(a) RADIOACTIVE SCHOOL ASSISTANCE FUND.—

(1) ESTABLISHMENT.—There is established in the Treasury of the United States a fund to be known as the Radioactive School Assistance Fund to carry out the reimbursement program described in subsection (b).

(2) FUNDING.—The Fund shall consist of amounts appropriated pursuant to the authorization of appropriations under this subtitle.

(b) RADIOACTIVE SCHOOL ASSISTANCE PROGRAM.—Not later than 30 days after the date of the enactment of this Act, the Secretary shall establish and implement a program to be known as the ''Radioactive School Assistance Program'' to provide financial assistance in accordance with subsection (c) to local educational agencies that have been financially impacted by the presence of radioactive contaminants stemming from the atomic energy activities of the United States Government.

(c) APPLICATIONS FOR FINANCIAL ASSISTANCE.—

(1) REIMBURSEMENT FOR TESTING.—

(A) IN GENERAL.—The Secretary shall provide financial assistance to each local educational agency that submits to the Secretary an application that includes—

(i) a certification that the local educational agency incurred expenses while testing for radioactive contaminants at an impacted school;

(ii) proof of such expenses; and

(iii) proof that such testing—

(I) led to further testing under the Formerly Utilized Sites Remedial Action Program of the Corps of Engineers; or

(II) was undertaken following testing by a private entity that found radioactive contamination.

(B) LIMITATIONS.—Financial assistance provided to a local educational agency under this paragraph shall not exceed the amount expended by such local educational agency to test for radioactive contamination.

(2) FUNDING FOR CONSTRUCTION.—

(A) IN GENERAL.—The Secretary shall provide financial assistance for the construction of a new school building to each local educational agency that submits to the Secretary an application that includes the following:

(i) A plan for the construction of a new school building.

(ii) Documentation that a school under the jurisdiction of the local educational agency is an impacted school.

(iii) A budget for the construction of a new school building.

(iv) A certification that the local educational agency shall only use financial assistance provided under this paragraph for 1 or more of the following purposes:

(I) To purchase land for the construction of a new school building.

(II) To construct a new school building to replace an impacted school.

(B) LIMITATIONS.—

(i) AMOUNT OF FUNDING.—Financial assistance provided to a local educational agency under this paragraph shall not exceed $20,000,000 for each impacted school.

(ii) USE OF FUNDS.—A local educational agency that receives financial assistance under this paragraph may only use such financial assistance for 1 or more of the following purposes:

(I) To purchase land for the construction of a new school building.

(II) To construct a new school building to replace an impacted school.

(3) CONSIDERATIONS.—The Secretary may not reject an application submitted by a local educational agency for financial assistance under this subsection due to prior remediation by the Corps of Engineers or any other relevant Federal agency of an impacted school under the jurisdiction of such local educational agency.

(d) REPORTS.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall submit to Congress a report on the Program, which shall include—

(1) a description of the number of applications submitted under this section; and

(2) a description of the amount of financial assistance provided to local educational agencies under this section.

SEC. _____. INVESTIGATION OF SCHOOLS IN HAZELWOOD SCHOOL DISTRICT FOR CONTAMINATES.

(a) DESIGNATION.—Notwithstanding any other provision of law, each covered school shall be designated as a vicinity property of the St. Louis Airport Site of the Formerly Utilized Sites Remedial Action Program of the Corps of Engineers.

(b) INVESTIGATION.—

(1) IN GENERAL.—The Secretary of the Army shall investigate and characterize each covered school in accordance with the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601 et seq.) and the National Contingency Plan, including, at a minimum, carrying out a preliminary assessment and site inspection of each covered school.

(2) INCLUSION.—An investigation of a covered school under paragraph (1) shall include on-site investigatory efforts and sampling in accordance with section 300.420(c)(2) of title 40, Code of Federal Regulations (as in effect on the date of enactment of this Act).

(c) REPORTS.—The Secretary of the Army shall develop and make available to the public, for each covered school, a report that includes the results of the investigation under subsection (b), including—

(1) the results of the on-site investigatory efforts;

(2) a summary of the results of sampling under paragraph (2) of that subsection for contaminants of concern, including the average and highest detected levels of each contaminant of concern; and

(3) an evaluation of the danger posed to students and employees of the covered school by the levels of contamination.

(d) COMMUNITY RELATIONS.—In carrying out this section, the Secretary of the Army shall comply with all applicable requirements relating to community relations and public notification under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601 et seq.), section 311 of the Federal Water Pollution Control Act (33 U.S.C. 1321), and sections 300.415, 300.430, and 300.435 of title 40, Code of Federal Regulations (as in effect on the date of enactment of this Act).

SEC. _____. REVIEW AND REPORT OF RADIOACTIVE TESTING AT JANA ELEMENTARY SCHOOL.

(a) REVIEW.—Not later than 30 days after the date of the enactment of this Act, the Secretary shall review the methodology and results of all tests for radioactive contaminants conducted at Jana Elementary School, including—

(1) tests conducted by the Corps of Engineers;

(2) tests conducted by Boston Chemical Data Corporation; and

(3) tests commissioned by the Hazelwood School District in the State of Missouri.

(b) REPORT.—

(1) IN GENERAL.—Not later than 45 days after the date of the enactment of this Act, the Secretary shall submit to Congress a report on the review required by subsection (a).

(2) CONTENTS.—The report required by paragraph (1) shall include—

(A) for each test described in subsection (a), an evaluation of—

(i) the reliability of the methodology used—

(I) to conduct such test; and

(II) to evaluate the results of such test; and

(ii) the reliability of the opinions contained in any report summarizing the test; and

(B) an evaluation of the danger posed to children by any radioactive contaminants found at Jana Elementary School.

SEC. _____. AUTHORIZATION OF APPROPRIATIONS.

There is authorized to be appropriated for fiscal year 2023 $25,000,000 to carry out this subtitle.

SA 840. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title XII, add the following:

SEC. 1240A. SPECIAL INSPECTOR GENERAL FOR UKRAINE ASSISTANCE.

(a) PURPOSES.—The purposes of this section are as follows:

(1) To provide for the independent and objective conduct and supervision of audits and investigations, including within the territory of Ukraine, relating to the programs and operations funded with amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine.

(2) To provide for the independent and objective leadership and coordination of, and recommendations on, policies designed to prevent and detect waste, fraud, and abuse in such programs and operations described in paragraph (1).

(3) To provide for an independent and objective means of keeping the Secretary of State, the Secretary of Defense, and Congress fully and currently informed about problems and deficiencies relating to the administration of such programs and operations and the necessity for and progress on corrective action.

(b) OFFICE OF INSPECTOR GENERAL.—There is hereby established the Office of the Special Inspector General for Ukraine Assistance to carry out the purposes set forth in subsection (a).

(c) APPOINTMENT OF INSPECTOR GENERAL; REMOVAL.—

(1) APPOINTMENT.—The head of the Office of the Special Inspector General for Ukraine Assistance is the Special Inspector General for Ukraine Assistance (in this section referred to as the ''Inspector General''), who shall be appointed by the President with the advice and consent of the Senate.

(2) QUALIFICATIONS.—The appointment of the Inspector General shall be made solely on the basis of integrity and demonstrated ability in accounting, auditing, financial analysis, law, management analysis, public administration, or investigations.

(3) DEADLINE FOR APPOINTMENT.—The appointment of an individual as Inspector General shall be made not later than 30 days after the date of the enactment of this Act.

(4) COMPENSATION.—The annual rate of basic pay of the Inspector General shall be the annual rate of basic pay provided for positions at level IV of the Executive Schedule under section 5315 of title 5, United States Code.

(5) PROHIBITION ON POLITICAL ACTIVITIES.—For purposes of section 7324 of title 5, United States Code, the Inspector General shall not be considered an employee who determines policies to be pursued by the United States in the nationwide administration of Federal law.

(6) REMOVAL.—The Inspector General shall be removable from office in accordance with the provisions of section 403(b) of title 5, United States Code.

(d) ASSISTANT INSPECTORS GENERAL.—The Inspector General shall, in accordance with applicable laws and regulations governing the civil service—

(1) appoint an Assistant Inspector General for Auditing who shall have the responsibility for supervising the performance of auditing activities relating to programs and operations supported by amounts appropriated or otherwise made available for the

military and nonmilitary support of Ukraine; and

(2) appoint an Assistant Inspector General for Investigations who shall have the responsibility for supervising the performance of investigative activities relating to such programs and operations.

(e) SUPERVISION.—

(1) IN GENERAL.—Except as provided in paragraph (2), the Inspector General shall report directly to, and be under the general supervision of, the Secretary of State and the Secretary of Defense.

(2) INDEPENDENCE TO CONDUCT INVESTIGATIONS AND AUDITS.—No officer of the Department of Defense, the Department of State, or the United States Agency for International Development shall prevent or prohibit the Inspector General from initiating, carrying out, or completing any audit or investigation related to amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine or from issuing any subpoena during the course of any such audit or investigation.

(f) DUTIES.—

(1) OVERSIGHT OF MILITARY AND NONMILITARY SUPPORT OF UKRAINE.—It shall be the duty of the Inspector General to conduct, supervise, and coordinate audits and investigations of the treatment, handling, and expenditure of amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine, and of the programs, operations, and contracts carried out utilizing such funds, including—

(A) the oversight and accounting of the obligation and expenditure of such funds;

(B) the monitoring and review of contracts funded by such funds;

(C) the monitoring and review of the transfer of such funds and associated information between and among departments, agencies, and entities of the United States and private and nongovernmental entities;

(D) the maintenance of records on the use of such funds to facilitate future audits and investigations of the use of such funds;

(E) the investigation of overpayments such as duplicate payments or duplicate billing and any potential unethical or illegal actions of Federal employees, contractors, or affiliated entities and the referral of such reports, as necessary, to the Department of Justice to ensure further investigations, prosecutions, recovery of further funds, or other remedies;

(F) the monitoring and review of all military and nonmilitary activities funded by such funds; and

(G) the tracking and monitoring of all lethal and nonlethal security assistance provided by the United States, including a review of compliance with all applicable end-use certification requirements.

(2) OTHER DUTIES RELATED TO OVERSIGHT.—The Inspector General shall establish, maintain, and oversee such systems, procedures, and controls as the Inspector General considers appropriate to discharge the duties under paragraph (1).

(3) DUTIES AND RESPONSIBILITIES UNDER CHAPTER 4 OF TITLE 5, UNITED STATES CODE.—In addition to the duties specified in paragraphs (1) and (2), the Inspector General shall also have the duties and responsibilities of inspectors general under chapter 4 of title 5, United States Code.

(4) COORDINATION OF EFFORTS.—In carrying out the duties, responsibilities, and authorities of the Inspector General under this section, the Inspector General shall coordinate with, and receive the cooperation of each of the following:

(A) The Inspector General of the Department of Defense.

(B) The Inspector General of the Department of State.

(C) The Inspector General of the United States Agency for International Development.

(g) POWERS AND AUTHORITIES.—

(1) AUTHORITIES UNDER CHAPTER 4 OF TITLE 5, UNITED STATES CODE.—In carrying out the duties specified in subsection (f), the Inspector General shall have the authorities provided in section 406 of title 5, United States Code, including the authorities under subsection (e) of such section.

(2) AUDIT STANDARDS.—The Inspector General shall carry out the duties specified in subsection (f)(1) in accordance with section 404(b)(1) of title 5, United States Code.

(h) PERSONNEL, FACILITIES, AND OTHER RESOURCES.—

(1) PERSONNEL.—

(A) IN GENERAL.—The Inspector General may select, appoint, and employ such officers and employees as may be necessary for carrying out the duties of the Inspector General, subject to the provisions of title 5, United States Code, governing appointments in the competitive service, and the provisions of chapter 51 and subchapter III of chapter 53 of such title, relating to classification and General Schedule pay rates.

(B) ADDITIONAL AUTHORITIES.—

(i) IN GENERAL.—Subject to clause (ii), the Inspector General may exercise the authorities of subsections (b) through (i) of section 3161 of title 5, United States Code (without regard to subsection (a) of that section).

(ii) PERIODS OF APPOINTMENTS.—In exercising the employment authorities under subsection (b) of section 3161 of title 5, United States Code, as provided under clause (i) of this subparagraph—

(I) paragraph (2) of that subsection (relating to periods of appointments) shall not apply; and

(II) no period of appointment may exceed the date on which the Office of the Special Inspector General for Ukraine Assistance terminates under subsection (o).

(2) EMPLOYMENT OF EXPERTS AND CONSULTANTS.—The Inspector General may obtain services as authorized by section 3109 of title 5, United States Code, at daily rates not to exceed the equivalent rate prescribed for grade GS–15 of the General Schedule by section 5332 of such title.

(3) CONTRACTING AUTHORITY.—To the extent and in such amounts as may be provided in advance by appropriations Acts, the Inspector General may enter into contracts and other arrangements for audits, studies, analyses, and other services with public agencies and with private persons, and make such payments as may be necessary to carry out the duties of the Inspector General.

(4) RESOURCES.—The Secretary of State or the Secretary of Defense, as appropriate, shall provide the Inspector General with—

(A) appropriate and adequate office space at appropriate locations of the Department of State or the Department of Defense, as the case may be, in Ukraine or at an appropriate United States military installation in the European theater, together with such equipment, office supplies, and communications facilities and services as may be necessary for the operation of such offices, and shall provide necessary maintenance services for such offices and the equipment and facilities located therein; and

(B) appropriate and adequate support for audits, investigations, and related activities by the Inspector General or assigned personnel within the territory of Ukraine.

(5) ASSISTANCE FROM FEDERAL AGENCIES.—

(A) IN GENERAL.—Upon request of the Inspector General for information or assistance from any department, agency, or other entity of the Federal Government, the head of such entity shall, insofar as is practicable and not in contravention of any existing law, furnish such information or assistance to the Inspector General, or an authorized designee.

(B) REPORTING OF REFUSED ASSISTANCE.—Whenever information or assistance requested by the Inspector General is, in the judgment of the Inspector General, unreasonably refused or not provided, the Inspector General shall report the circumstances to the Secretary of State or the Secretary of Defense, as appropriate, and to the appropriate congressional committees without delay.

(i) REPORTS.—

(1) QUARTERLY REPORTS.—Not later than 30 days after the end of each fiscal-year quarter, the Inspector General shall submit to the appropriate congressional committees a report summarizing, for the period of that quarter and, to the extent possible, the period from the end of such quarter to the time of the submission of the report, the activities during such period of the Inspector General and the activities under programs and operations funded with amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine. Each report shall include, for the period covered by such report, a detailed statement of all obligations, expenditures, and revenues associated with military and nonmilitary support of Ukraine, including the following:

(A) Obligations and expenditures of appropriated funds.

(B) Operating expenses of agencies or entities receiving amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine.

(C) In the case of any contract, grant, agreement, or other funding mechanism described in paragraph (2)—

(i) the amount of the contract, grant, agreement, or other funding mechanism;

(ii) a brief discussion of the scope of the contract, grant, agreement, or other funding mechanism;

(iii) a discussion of how the department or agency of the United States Government involved in the contract, grant, agreement, or other funding mechanism identified, and solicited offers from, potential individuals or entities to perform the contract, grant, agreement, or other funding mechanism, together with a list of the potential individuals or entities that were issued solicitations for the offers; and

(iv) the justification and approval documents on which was based the determination to use procedures other than procedures that provide for full and open competition.

(D) An accounting comparison of—

(i) the military and nonmilitary support provided to Ukraine by the United States; and

(ii) the military and nonmilitary support provided to Ukraine by other North Atlantic Treaty Organization member countries, including allied contributions to Ukraine that are subsequently backfilled or subsidized using United States funds.

(E) An evaluation of the compliance of the Government of Ukraine with all requirements for receiving United States funds, including a description of any area of concern with respect to the ability of the Government of Ukraine to achieve such compliance.

(2) COVERED CONTRACTS, GRANTS, AGREEMENTS, AND FUNDING MECHANISMS.—A contract, grant, agreement, or other funding mechanism described in this paragraph is any major contract, grant, agreement, or other funding mechanism that is entered into by any department or agency of the United States Government that involves the use of amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine with any public

or private sector entity for any of the following purposes:

(A) To build or rebuild physical infrastructure of Ukraine.

(B) To establish or reestablish a political or societal institution of Ukraine.

(C) To provide products or services to the people of Ukraine.

(D) To provide lethal or nonlethal weaponry to Ukraine.

(E) To otherwise provide military or nonmilitary support to Ukraine.

(3) PUBLIC AVAILABILITY.—The Inspector General shall publish on a publicly available internet website each report under paragraph (1) of this subsection in English and other languages that the Inspector General determines are widely used and understood in Ukraine.

(4) FORM.—Each report required under this subsection shall be submitted in unclassified form, but may include a classified annex if the Inspector General considers it necessary.

(5) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to authorize the public disclosure of information that is—

(A) specifically prohibited from disclosure by any other provision of law;

(B) specifically required by Executive order to be protected from disclosure in the interest of national defense or national security or in the conduct of foreign affairs; or

(C) a part of an ongoing criminal investigation.

(j) REPORT COORDINATION.—

(1) SUBMISSION TO SECRETARIES OF STATE AND DEFENSE.—The Inspector General shall also submit each report required under subsection (i) to the Secretary of State and the Secretary of Defense.

(2) SUBMISSION TO CONGRESS.—

(A) IN GENERAL.—Not later than 30 days after receipt of a report under paragraph (1), the Secretary of State and the Secretary of Defense shall submit to the appropriate congressional committees any comments on the matters covered by the report. Such comments shall be submitted in unclassified form, but may include a classified annex if the Secretary of State or the Secretary of Defense, as the case may be, considers it necessary.

(B) ACCESS.—On request, any Member of Congress may view comments submitted under subparagraph (A), including the classified annex.

(k) TRANSPARENCY.—

(1) REPORT.—Not later than 60 days after submission to the appropriate congressional committees of a report under subsection (i), the Secretary of State and the Secretary of Defense shall jointly make copies of the report available to the public upon request, and at a reasonable cost.

(2) COMMENTS ON MATTERS COVERED BY REPORT.—Not later than 60 days after submission to the appropriate congressional committees under subsection (j)(2)(A) of comments on a report under subsection (i), the Secretary of State and the Secretary of Defense shall jointly make copies of the comments available to the public upon request, and at a reasonable cost.

(l) WAIVER.—

(1) AUTHORITY.—The President may waive the requirement under paragraph (1) or (2) of subsection (k) with respect to availability to the public of any element in a report under subsection (i), or any comment under subsection (j)(2)(A), if the President determines that the waiver is justified for national security reasons.

(2) NOTICE OF WAIVER.—The President shall publish a notice of each waiver made under this subsection in the Federal Register no later than the date on which a report required under subsection (i), or any comment under subsection (j)(2)(A), is submitted to the appropriate congressional committees. The report and comments shall specify whether waivers under this subsection were made and with respect to which elements in the report or which comments, as appropriate.

(3) SUBMISSION OF COMMENTS.—The President may not waive under this subsection subparagraphs (A) or (B) of subsection (j).

(m) DEFINITIONS.—In this section:

(1) AMOUNTS APPROPRIATED OR OTHERWISE MADE AVAILABLE FOR THE MILITARY AND NONMILITARY SUPPORT OF UKRAINE.—The term ''amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine'' means—

(A) amounts appropriated or otherwise made available on or after January 1, 2022, for—

(i) the Ukraine Security Assistance Initiative under section 1250 of the National Defense Authorization Act for Fiscal Year 2016 (Public Law 11492; 129 Stat. 1608);

(ii) any foreign military financing accessed by the Government of Ukraine;

(iii) the Presidential drawdown authority under section 506(a) of the Foreign Assistance Act of 1961 (22 U.S.C. 2318(a));

(iv) the defense institution building program under section 332 of title 10, United States Code;

(v) the building partner capacity program under section 333 of title 10, United States Code;

(vi) the International Military Education and Training program of the Department of State; and

(vii) the United States European Command; and

(B) amounts appropriated or otherwise made available on or after January 1, 2022, for the military, economic, reconstruction, or humanitarian support of Ukraine under any account or for any purpose not described in subparagraph (A).

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committees on Appropriations, the Committee on Armed Services, the Committee on Foreign Relations, and Committee on Homeland Security and Governmental Affairs of the Senate; and

(B) the Committees on Appropriations, the Committee on Armed Services, the Committee on Foreign Affairs, and the Committee on Oversight and Accountability of the House of Representatives.

(n) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There is authorized to be appropriated $70,000,000 for fiscal year 2023 to carry out this section.

(2) OFFSET.—The amount authorized to be appropriated for fiscal year 2023 for the Ukraine Security Assistance Initiative is hereby reduced by $70,000,000.

(o) TERMINATION.—

(1) IN GENERAL.—The Office of the Special Inspector General for Ukraine Assistance shall terminate 180 days after the date on which amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine that are unexpended are less than $250,000,000.

(2) FINAL REPORT.—The Inspector General shall, prior to the termination of the Office of the Special Inspector General for Ukraine Assistance under paragraph (1), prepare and submit to the appropriate congressional committees a final forensic audit report on programs and operations funded with amounts appropriated or otherwise made available for the military and nonmilitary support of Ukraine.

SA 841. Mr. HAWLEY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title X, add the following:

Subtitle H—No TikTok on United States Devices Act

SEC. 1091. SHORT TITLE.

This subtitle may be cited as the ''No TikTok on United States Devices Act''.

SEC. 1092. IMPOSITION OF SANCTIONS WITH RESPECT TO TIKTOK.

(a) BLOCKING OF PROPERTY.—On and after the date that is 30 days after the date of the enactment of this Act, the President shall exercise all the powers granted to the President under the International Emergency Economic Powers Act (50 U.S.C. 1701 et. seq.) to the extent necessary to block and prohibit all transactions in all property and interests in property of a covered company if such property and interests in property—

(1) are in the United States or come within the United States; or

(2) to the extent necessary to prevent commercial operation of the covered company in the United States, are or come within the possession or control of a United States person.

(b) INAPPLICABILITY OF NATIONAL EMERGENCY REQUIREMENT.—The requirements of section 202 of the International Emergency Economic Powers Act (50 U.S.C. 1701) shall not apply for purposes of this section.

(c) IMPLEMENTATION.—

(1) IN GENERAL.—Except as provided in paragraph (2), the President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out this section.

(2) EXCEPTIONS.—The exceptions under subsection (b) of section 203 of the International Emergency Economic Powers Act (50 U.S.C. 1702) shall not apply to the use by the President in carrying out this section of the authorities under such section 203.

(d) PENALTIES.—A person that violates, attempts to violate, conspires to violate, or causes a violation of this section or any regulation, license, or order issued to carry out this section shall be subject to the penalties set forth in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) to the same extent as a person that commits an unlawful act described in subsection (a) of that section.

(e) NATIONAL SECURITY AND RESEARCH EXCEPTIONS.—Sanctions under this section shall not apply with respect to law enforcement activities, national security interests and activities, and security research activities, as provided under the standards and guidelines developed by the Director of the Office of Management and Budget under section 102(b)(1) of the No TikTok on Government Devices Act (division R of Public Law 117–328).

(f) COVERED COMPANY DEFINED.—In this section, the term ''covered company'' means—

(1) ByteDance Limited, or any successor entity to ByteDance Limited, if ByteDance Limited or the successor entity—

(A) is involved in matters relating to the social networking service TikTok, or any successor service; or

(B) is involved in matters relating to any information, videos, or data associated with such service; or

(2) any entity owned by ByteDance Limited or the successor entity that—

(A) is involved in matters relating to the social networking service TikTok, or any successor service; or

(B) is involved in matters relating to any information, videos, or data associated with such service.

SEC. 1093. REPORT ON THREATS TO NATIONAL SECURITY POSED BY TIKTOK.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Director of National Intelligence, in consultation with the Secretary of Defense, the Director of the Cybersecurity and Infrastructure Security Agency, the Secretary of Homeland Security, and the Director of the Federal Bureau of Investigation, shall submit to Congress a report on the threats to national security posed by TikTok, including the following:

(1) The ability of the Government of the People's Republic of China to access, directly or indirectly, data of users in the United States via TikTok.

(2) The ability of the Government of the People's Republic of China to use data of users in the United States, including that of members of the Armed Forces, accessed via TikTok for intelligence or military purposes, including surveillance, microtargeting, deepfakes, or blackmail.

(3) Any ongoing efforts by the Government of the People's Republic of China to monitor or manipulate United States persons using data accessed via TikTok, including a detailed account of any data employed for those purposes.

(b) FORM.—The report required by subsection (a) shall be submitted in unclassified form, but may contain a classified annex.

SEC. 1094. BRIEFING.

Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall provide to Congress a classified briefing on the implementation of this subtitle, which shall include a briefing on the report required by section 1093(a).

SA 842. Mr. YOUNG (for himself and Mr. CARPER) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title XII, add the following:

SEC. 1299L. SENSE OF THE SENATE ON DIGITAL TRADE AND THE DIGITAL ECONOMY.

(a) FINDINGS.—Congress makes the following findings:

(1) Over half of the world's population, totaling more than 5,000,000,000 people, use the internet.

(2) The digital economy encompasses the economic and social activity from billions of online connections among people, businesses, devices, and data as a result of the internet, mobile technology, and the internet of things.

(3) The Bureau of Economic Analysis found that the digital economy contributed nearly 10.3 percent of United States gross domestic product and supported 8,000,000 United States jobs in 2020.

(4) The digital sector added 1,400,000 new jobs between 2019 and 2022.

(5) United States jobs supported by the digital economy have sustained annual wage growth at a rate of 5.9 percent since 2010, as compared to a 4.2 percent for all jobs.

(6) In 2021, United States exports of digital services surpassed $594,000,000,000, accounting for more than half of all United States services exports and generating a digital services trade surplus for the United States of $262,300,000,000.

(7) Digital trade bolsters the digital economy by enabling the sale of goods on the internet and the supply of online services across borders and depends on the free flow of data across borders to promote commerce, manufacturing, and innovation.

(8) Digital trade has become increasingly vital to United States workers and businesses of all sizes, including the countless small and medium-sized enterprises that use digital technology, data flows, and e-commerce to export goods and services across the world.

(9) Digital trade has advanced entrepreneurship opportunities for women, people of color, and individuals from otherwise underrepresented backgrounds and enabled the formation of innovative start-ups.

(10) International supply chains are becoming increasingly digitized and data driven and businesses in a variety of industries, such as construction, healthcare, transportation, and aerospace, invested heavily in digital supply chain technologies in 2020.

(11) United States Trade Representative Katherine Tai said, ''[T]here is no bright line separating digital trade from the digital economy—or the 'traditional' economy for that matter. Nearly every aspect of our economy has been digitized to some degree.''.

(12) Industries outside of the technology sector, such as manufacturing and agriculture, are integrating digital technology into their businesses in order to increase efficiency, improve safety, reach new customers, and remain globally competitive.

(13) The increasing reliance on digital technologies has modernized legacy processes, accelerated workflows, increased access to information and services, and strengthened security in a variety of industries, leading to better health, environmental, and safety outcomes.

(14) The COVID–19 pandemic has led to increased uptake and reliance on digital technologies, data flows, and e-commerce.

(15) Ninety percent of adults in the United States say that the internet has been essential or important for them personally during the COVID–19 pandemic.

(16) United States families, workers, and business owners have seen how vital access to the internet has been to daily life, as work, education, medicine, and communication with family and friends have shifted increasingly online.

(17) Many individuals and families, especially in rural and Tribal communities, struggle to participate in the digital economy because of a lack of access to a reliable internet connection.

(18) New developments in technology must be deployed with consideration to the unique access challenges of rural, urban underserved, and vulnerable communities.

(19) Digital trade has the power to help level the playing field and uplift those in traditionally unrepresented or underrepresented communities.

(20) Countries have negotiated international rules governing digital trade in various bilateral and plurilateral agreements, but those rules remain fragmented, and no multilateral agreement on digital trade exists within the World Trade Organization.

(21) The United States, through free trade agreements or other digital agreements, has been a leader in developing a set of rules and standards on digital governance and e-commerce that has helped allies and partners of the United States unlock the full economic and social potential of digital trade.

(22) Congress recognizes the need for agreements on digital trade, as indicated by its support for a robust digital trade chapter in the United States-Mexico-Canada Agreement.

(23) Other countries are operating under their own digital rules, some of which are contrary to democratic values shared by the United States and many allies and partners of the United States.

(24) Those countries are attempting to advance their own digital rules on a global scale.

(25) Examples of the plethora of nontariff barriers to digital trade that have emerged around the globe include—

(A) overly restrictive data localization requirements and limitations on cross border data flows that do not achieve legitimate public policy objectives;

(B) intellectual property rights infringement;

(C) policies that make market access contingent on forced technology transfers or voluntary transfers subject to coercive terms;

(D) web filtering;

(E) economic espionage;

(F) cybercrime exposure; and

(G) government-directed theft of trade secrets.

(26) Certain countries are pursuing or have implemented digital policies that unfairly discriminate against innovative United States technology companies and United States workers that create and deliver digital products and services.

(27) The Government of the People's Republic of China is currently advancing a model for digital governance and the digital economy domestically and abroad through its Digital Silk Road Initiative that permits censorship, surveillance, human and worker rights abuses, forced technology transfers, and data flow restrictions at the expense of human and worker rights, privacy, the free flow of data, and an open internet.

(28) The 2022 Country Reports on Human Rights Practices of the Department of State highlighted significant human rights issues committed by the People's Republic of China in the digital realm, including ''arbitrary interference with privacy including pervasive and intrusive technical surveillance and monitoring including the use of COVID–19 tracking apps for nonpublic-health purposes; punishment of family members for offenses allegedly committed by an individual; serious restrictions on free expression and media, including physical attacks on and criminal prosecution of journalists, lawyers, writers, bloggers, dissidents, petitioners, and others; serious restrictions on internet freedom, including site blocking''.

(29) The United States discourages digital authoritarianism, including practices that undermine human and worker rights and result in other social and economic coercion.

(30) Allies and trading partners of the United States in the Indo-Pacific region have urged the United States to deepen economic engagement in the region by negotiating rules on digital trade and technology standards.

(31) The digital economy has provided new opportunities for economic development, entrepreneurship, and growth in developing countries around the world.

(32) Negotiating strong digital trade principles and commitments with allies and partners across the globe enables the United States to unite like-minded economies around common standards and ensure that principles of democracy, rule of law, freedom of speech, human and worker rights, privacy, and a free and open internet are at the very core of digital governance.

(33) United States leadership and substantive engagement is necessary to ensure that global digital rules reflect United States values so that workers are treated fairly, small businesses can compete and win in the global economy, and consumers are guaranteed the right to privacy and security.

(34) The United States supports rules that reduce digital trade barriers, promote free expression and the free flow of information, enhance privacy protections, protect sensitive information, defend human and worker rights, prohibit forced technology transfer, and promote digitally enabled commerce.

(35) The United States supports efforts to cooperate with allies and trading partners to mitigate the risks of cyberattacks, address potentially illegal or deceptive business activities online, promote financial inclusion and digital workforce skills, and develop rules to govern the use of artificial intelligence and other emerging and future technologies.

(b) SENSE OF THE SENATE.—It is the sense of the Senate that—

(1) the United States should negotiate strong, inclusive, forward-looking, and enforceable rules on digital trade and the digital economy with like-minded countries as part of a broader trade and economic strategy to address digital barriers and ensure that the United States values of democracy, rule of law, freedom of speech, human and worker rights, privacy, and a free and open internet are at the very core of the digital world and advanced technology;

(2) in conducting such negotiations, the United States must—

(A) pursue digital trade rules that—

(i) serve the best interests of workers, consumers, and small and medium-sized enterprises;

(ii) empower United States workers;

(iii) fuel wage growth; and

(iv) lead to materially positive economic outcomes for all people in the United States;

(B) ensure that any future agreement prevents the adoption of non-democratic, coercive, or overly restrictive policies that would be obstacles to a free and open internet and harm the ability of the e-commerce marketplace to continue to grow and thrive;

(C) coordinate sufficient trade-related assistance to ensure that developing countries can improve their capacity and benefit from increased digital trade; and

(D) consult closely with all relevant stakeholders, including workers, consumers, small and medium-sized enterprises, civil society groups, and human rights advocates; and

(3) with respect to any negotiations for an agreement facilitating digital trade, the United States Trade Representative and the heads of other relevant Federal agencies must consult closely and on a timely basis with Congress.

SA 843. Mr. WYDEN (for himself, Mr. LEE, and Mr. DURBIN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title X, add the following:

Subtitle H—PRESS Act

SEC. 1091. SHORT TITLE.

This subtitle may be cited as the ''Protect Reporters from Exploitative State Spying Act'' or the ''PRESS Act''.

SEC. 1092. DEFINITIONS.

In this subtitle:

(1) COVERED JOURNALIST.—The term ''covered journalist'' means a person who regularly gathers, prepares, collects, photographs, records, writes, edits, reports, investigates, or publishes news or information that concerns local, national, or international events or other matters of public interest for dissemination to the public.

(2) COVERED SERVICE PROVIDER.—

(A) IN GENERAL.—The term ''covered service provider'' means any person that, by an electronic means, stores, processes, or transmits information in order to provide a service to customers of the person.

(B) INCLUSIONS.—The term ''covered service provider'' includes—

(i) a telecommunications carrier and a provider of an information service (as such terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153));

(ii) a provider of an interactive computer service and an information content provider (as such terms are defined in section 230 of the Communications Act of 1934 (47 U.S.C. 230));

(iii) a provider of remote computing service (as defined in section 2711 of title 18, United States Code); and

(iv) a provider of electronic communication service (as defined in section 2510 of title 18, United States Code) to the public.

(3) DOCUMENT.—The term ''document'' means writings, recordings, and photographs, as those terms are defined by Federal Rule of Evidence 1001 (28 U.S.C. App.).

(4) FEDERAL ENTITY.—The term ''Federal entity'' means an entity or employee of the judicial or executive branch or an administrative agency of the Federal Government with the power to issue a subpoena or issue other compulsory process.

(5) JOURNALISM.—The term ''journalism'' means gathering, preparing, collecting, photographing, recording, writing, editing, reporting, investigating, or publishing news or information that concerns local, national, or international events or other matters of public interest for dissemination to the public.

(6) PERSONAL ACCOUNT OF A COVERED JOURNALIST.—The term ''personal account of a covered journalist'' means an account with a covered service provider used by a covered journalist that is not provided, administered, or operated by the employer of the covered journalist.

(7) PERSONAL TECHNOLOGY DEVICE OF A COVERED JOURNALIST.—The term ''personal technology device of a covered journalist'' means a handheld communications device, laptop computer, desktop computer, or other internet-connected device used by a covered journalist that is not provided or administered by the employer of the covered journalist.

(8) PROTECTED INFORMATION.—The term ''protected information'' means any information identifying a source who provided information as part of engaging in journalism, and any records, contents of a communication, documents, or information that a covered journalist obtained or created as part of engaging in journalism.

(9) SPECIFIED OFFENSE AGAINST A MINOR.—The term ''specified offense against a minor'' has the meaning given that term in section 111(7) of the Adam Walsh Child Protection and Safety Act of 2006 (34 U.S.C. 20911(7)).

SEC. 1093. LIMITS ON COMPELLED DISCLOSURE FROM COVERED JOURNALISTS.

In any matter arising under Federal law, a Federal entity may not compel a covered journalist to disclose protected information, unless a court in the judicial district in which the subpoena or other compulsory process is, or will be, issued determines by a preponderance of the evidence, after providing notice and an opportunity to be heard to the covered journalist, that—

(1) disclosure of the protected information is necessary to prevent, or to identify any perpetrator of, an act of terrorism against the United States; or

(2) disclosure of the protected information is necessary to prevent a threat of imminent violence, significant bodily harm, or death, including specified offenses against a minor.

SEC. 1094. LIMITS ON COMPELLED DISCLOSURE FROM COVERED SERVICE PROVIDERS.

(a) CONDITIONS FOR COMPELLED DISCLOSURE.—In any matter arising under Federal law, a Federal entity may not compel a covered service provider to provide testimony or any document consisting of any record, information, or other communications stored by a covered provider on behalf of a covered journalist, including testimony or any document relating to a personal account of a covered journalist or a personal technology device of a covered journalist, unless a court in the judicial district in which the subpoena or other compulsory process is, or will be, issued determines by a preponderance of the evidence that there is a reasonable threat of imminent violence unless the testimony or document is provided, and issues an order authorizing the Federal entity to compel the disclosure of the testimony or document.

(b) NOTICE TO COURT.—A Federal entity seeking to compel the provision of testimony or any document described in subsection (a) shall inform the court that the testimony or document relates to a covered journalist.

(c) NOTICE TO COVERED JOURNALIST AND OPPORTUNITY TO BE HEARD.—

(1) IN GENERAL.—A court may authorize a Federal entity to compel the provision of testimony or a document under this section only after the Federal entity seeking the testimony or document provides the covered journalist on behalf of whom the testimony or document is stored pursuant to subsection (a)—

(A) notice of the subpoena or other compulsory request for such testimony or document from the covered service provider not later than the time at which such subpoena or request is issued to the covered service provider; and

(B) an opportunity to be heard before the court before the time at which the provision of the testimony or document is compelled.

(2) EXCEPTION TO NOTICE REQUIREMENT.—

(A) IN GENERAL.—Notice and an opportunity to be heard under paragraph (1) may be delayed for not more than 45 days if the court involved determines there is clear and convincing evidence that such notice would pose a clear and substantial threat to the integrity of a criminal investigation, or would present an imminent risk of death or serious bodily harm, including specified offenses against a minor.

(B) EXTENSIONS.—The 45-day period described in subparagraph (A) may be extended by the court for additional periods of not more than 45 days if the court involved makes a new and independent determination that there is clear and convincing evidence that providing notice to the covered journalist would pose a clear and substantial threat to the integrity of a criminal investigation, or would present an imminent risk of death or serious bodily harm, including specified offenses against a minor, under current circumstances.

SEC. 1095. LIMITATION ON CONTENT OF INFORMATION.

The content of any testimony, document, or protected information that is compelled under section 1093 or 1094 shall—

(1) not be overbroad, unreasonable, or oppressive, and, as appropriate, be limited to

the purpose of verifying published information or describing any surrounding circumstances relevant to the accuracy of such published information; and

(2) be narrowly tailored in subject matter and period of time covered so as to avoid compelling the production of peripheral, nonessential, or speculative information.

SEC. 1096. RULE OF CONSTRUCTION.

Nothing in this subtitle shall be construed to—

(1) apply to civil defamation, slander, or libel claims or defenses under State law, regardless of whether or not such claims or defenses, respectively, are raised in a State or Federal court; or

(2) prevent the Federal Government from pursuing an investigation of a covered journalist or organization that is—

(A) suspected of committing a crime;

(B) a witness to a crime unrelated to engaging in journalism;

(C) suspected of being an agent of a foreign power, as defined in section 101 of the Foreign Intelligence Surveillance Act of 1978 (50 U.S.C. 1801);

(D) an individual or organization designated under Executive Order 13224 (50 U.S.C. 1701 note; relating to blocking property and prohibiting transactions with persons who commit, threaten to commit, or support terrorism);

(E) a specially designated terrorist, as that term is defined in section 595.311 of title 31, Code of Federal Regulations (or any successor thereto); or

(F) a terrorist organization, as that term is defined in section 212(a)(3)(B)(vi)(II) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(3)(B)(vi)(II)).

SA 844. Mr. HAGERTY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. ___. STATEMENT OF POLICY AND ANNUAL REPORT RELATED TO UNITED STATES-PACIFIC ISLAND PARTNERSHIP.

(a) SHORT TITLE.—This section may be cited as the ''United States-Pacific Island Partnership Empowerment Act''.

(b) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Armed Services and the Committee on Foreign Relations of the Senate; and

(B) the Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives.

(2) EXCESS DEFENSE ARTICLES.—The term ''excess defense articles'' has the meaning given that term in section 644 of the Foreign Assistance Act of 1961 (22 U.S.C. 2403).

(3) UNITED STATES-PACIFIC ISLAND PARTNERSHIP.—The term ''United States-Pacific Island Partnership'' means the partnership between the United States and the Cook Islands, the Federated States of Micronesia, Fiji, French Polynesia, Nauru, New Caledonia, Palau, Papua New Guinea, the Republic of the Marshall Islands, Samoa, the Solomon Islands, Tonga, Tuvalu, Vanuatu, and such other states in the Pacific Islands as the President may identify.

(c) STATEMENT OF POLICY.—The United States supports expanding and deepening cooperation within the United States-Pacific Island Partnership to maintain free, open, and peaceful waterways in the Pacific in which the rights to the freedom of navigation and overflight are recognized and respected, trade flows are unimpeded, and geopolitical competition does not undermine the sovereignty and security of the Pacific Islands.

(d) ANNUAL REPORT ON TRANSFER OF EXCESS DEFENSE ARTICLES TO MEMBERS OF THE UNITED STATES-PACIFIC ISLAND PARTNERSHIP.—

(1) ANNUAL REPORT REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for a period of 5 years, the President shall submit to the appropriate congressional committees a report on the transfer of excess defense articles to members of the United States-Pacific Island Partnership.

(2) CONTENTS OF REPORT.—Each report required by paragraph (1) shall include the following:

(A) An overview of the transfer of excess defense articles to members of the United States-Pacific Island Partnership during the period covered by the report, including the quantity and types of articles transferred.

(B) A description of the prioritization process used by the Department of Defense to determine the allocation of nonlethal excess defense articles transferred to foreign countries.

(C) A description of—

(i) any challenges or constraints encountered in the process for transferring excess defense articles to members of the United States-Pacific Island Partnership; and

(ii) efforts undertaken to address those challenges or constraints.

(D) An assessment of the impact of excess defense articles transferred to members of the United States-Pacific Island Partnership on the capacity-building efforts, security cooperation, and interoperability of those members.

(E) A review of the effectiveness of the transfer of excess defense articles to members of the United States-Pacific Island Partnership in promoting regional stability, maritime security, and the sovereignty and security of the Pacific Islands.

(3) FORMATS; PUBLIC AVAILABILITY.—Each report required by paragraph (1) shall be submitted in both electronic and hard copy formats and made available to the public, consistent with applicable law.

SA 845. Mr. HAGERTY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PRIORITY FOR THE TRANSFER OF EXCESS DEFENSE ARTICLES.

Section 516(c)(2) of the Foreign Assistance Act of 1961 (22 U.S.C. 2321j(c)(2)) is amended—

(1) by striking ''Notwithstanding'' and inserting the following:

''(A) CERTAIN NATO COUNTRIES, TAIWAN, AND THE PHILIPPINES.—Notwithstanding''; and

(2) by adding at the end the following:

''(B) UNITED STATES-PACIFIC ISLAND PARTNERSHIP.—

''(i) IN GENERAL.—The delivery of excess defense articles, including office supplies, furniture, and other items except those described in paragraph (1) of section 644(d), under this section to members of the United States-Pacific Island Partnership shall be given priority to the maximum extent feasible over the delivery of such excess defense articles to other countries.

''(ii) DEFINITION.—In this subparagraph, the term 'United States-Pacific Island Partnership' means the partnership between the United States and the Cook Islands, the Federated States of Micronesia, Fiji, French Polynesia, Nauru, New Caledonia, Palau, Papua New Guinea, the Republic of the Marshall Islands, Samoa, the Solomon Islands, Tonga, Tuvalu, Vanuatu, and such other states in the Pacific Islands as the President may identify.''.

SA 846. Mr. SULLIVAN (for himself and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

In subtitle D of title XXXI, add at the end the following:

SEC. 31___. ADMINISTRATIVE EXPENSES FOR ALASKA NATURAL GAS PIPELINE ACT.

From amounts available for administrative expenses to make loan guarantees, the Secretary of Energy may use unobligated funds, regardless of the fiscal year for which such amounts are made available, for the purpose of administrative expenses associated with carrying out the loan guarantee program established in section 116 of the Alaska Natural Gas Pipeline Act (15 U.S.C. 720n).

SA 847. Mr. WARNOCK submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title VI, add the following:

SEC. 612. INCREASE IN BASIC HOUSING ALLOWANCE.

(a) INCREASED FUNDING.—The amount authorized to be appropriated by section 421 for military personnel, as specified in the funding table in section 4401, is hereby increased by $244,000,000, with the amount of such increase to be available for an increase in the basic allowance for housing (BAH) reabsorption.

(b) OFFSET.—The amount authorized to be appropriated for fiscal year 2024 by section 301 for operation and maintenance is hereby reduced by $244,000,000, with the amount of the reduction to be derived from Operation and Maintenance, Defense-wide, Administration and Service-wide Activities, for the Office of the Secretary of Defense (line 490), as specified in the funding table in section 4301.

SA 848. Mrs. FEINSTEIN submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for

military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title X, insert the following:

SEC. 10___. REPORT ON DEPARTMENT OF DEFENSE SECURITY CLEARANCE PROCESS UPDATES.

(a) STUDY REQUIRED.—No later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to Congress a report on the status of the updates the Secretary is carrying out to the security clearance process and the methods the Secretary is pursuing to ensure the security clearance process of the Department of Defense continues to protect national security.

(b) CONTENTS.—The report submitted pursuant to subsection (a) shall include the following:

(1) A review of the last 10 years of cases of those who held security clearances granted by the Department that were ultimately charged with terrorism, espionage, sabotage, sedition, or other related crimes.

(2) A review of any existing internal processes applicable to the suspension of security clearances for those individuals.

(3) Any policy that may address revocation of clearances of individuals who are found to pose a threat to other members of the Armed Forces or to national security after their clearance process has been adjudicated.

(4) Recommendations on enhancing existing security review processes and recommendations for future new processes to address any gaps identified and lessons learned from the review.

SA 849. Mr. GRASSLEY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title X, add the following:

Subtitle H—Fighting Post-traumatic Stress Disorder; Controlled Substance Act Amendments; Disclosure of Foreign Influence in Lobbying

SEC. 1091. FIGHTING POST-TRAUMATIC STRESS DISORDER.

(a) FINDINGS.—Congress finds the following:

(1) Public safety officers serve their communities with bravery and distinction in order to keep their communities safe.

(2) Public safety officers, including police officers, firefighters, emergency medical technicians, and 911 dispatchers, are on the front lines of dealing with situations that are stressful, graphic, harrowing, and life-threatening.

(3) The work of public safety officers puts them at risk for developing post-traumatic stress disorder and acute stress disorder.

(4) It is estimated that 30 percent of public safety officers develop behavioral health conditions at some point in their lifetimes, including depression and post-traumatic stress disorder, in comparison to 20 percent of the general population that develops such conditions.

(5) Victims of post-traumatic stress disorder and acute stress disorder are at a higher risk of dying by suicide.

(6) Firefighters have been reported to have higher suicide attempt and ideation rates than the general population.

(7) It is estimated that between 125 and 300 police officers die by suicide every year.

(8) In 2019, pursuant to section 2(b) of the Law Enforcement Mental Health and Wellness Act of 2017 (Public Law 115–113; 131 Stat. 2276), the Director of the Office of Community Oriented Policing Services of the Department of Justice developed a report (referred to in this section as the ''LEMHWA report'') that expressed that many law enforcement agencies do not have the capacity or local access to the mental health professionals necessary for treating their law enforcement officers.

(9) The LEMHWA report recommended methods for establishing remote access or regional mental health check programs at the State or Federal level.

(10) Individual police and fire departments generally do not have the resources to employ full-time mental health experts who are able to treat public safety officers with state-of-the-art techniques for the purpose of treating job-related post-traumatic stress disorder and acute stress disorder.

(b) PROGRAMMING FOR POST-TRAUMATIC STRESS DISORDER.—

(1) DEFINITIONS.—In this subsection:

(A) PUBLIC SAFETY OFFICER.—The term ''public safety officer''—

(i) has the meaning given the term in section 1204 of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10284); and

(ii) includes Tribal public safety officers.

(B) PUBLIC SAFETY TELECOMMUNICATOR.—The term ''public safety telecommunicator'' means an individual who—

(i) operates telephone, radio, or other communication systems to receive and communicate requests for emergency assistance at 911 public safety answering points and emergency operations centers;

(ii) takes information from the public and other sources relating to crimes, threats, disturbances, acts of terrorism, fires, medical emergencies, and other public safety matters; and

(iii) coordinates and provides information to law enforcement and emergency response personnel.

(2) REPORT.—Not later than 150 days after the date of enactment of this Act, the Attorney General, acting through the Director of the Office of Community Oriented Policing Services of the Department of Justice, shall submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report on—

(A) not fewer than 1 proposed program, if the Attorney General determines it appropriate and feasible to do so, to be administered by the Department of Justice for making state-of-the-art treatments or preventative care available to public safety officers and public safety telecommunicators with regard to job-related post-traumatic stress disorder or acute stress disorder by providing public safety officers and public safety telecommunicators access to evidence-based trauma-informed care, peer support, counselor services, and family supports for the purpose of treating or preventing post-traumatic stress disorder or acute stress disorder;

(B) a draft of any necessary grant conditions required to ensure that confidentiality is afforded to public safety officers on account of seeking the care or services described in subparagraph (A) under the proposed program;

(C) how each proposed program described in subparagraph (A) could be most efficiently administered throughout the United States at the State, Tribal, territorial, and local levels, taking into account in-person and telehealth capabilities;

(D) a draft of legislative language necessary to authorize each proposed program described in subparagraph (A); and

(E) an estimate of the amount of annual appropriations necessary for administering each proposed program described in subparagraph (A).

(3) DEVELOPMENT.—In developing the report required under paragraph (2), the Attorney General shall consult relevant stakeholders, including—

(A) Federal, State, Tribal, territorial, and local agencies employing public safety officers and public safety telecommunicators; and

(B) non-governmental organizations, international organizations, academies, or other entities, including organizations that support the interests of public safety officers and public safety telecommunicators and the interests of family members of public safety officers and public safety telecommunicators.

SEC. 1092. AMENDMENTS TO THE CONTROLLED SUBSTANCES ACT.

Section 102 of the Controlled Substances Act (21 U.S.C. 802) is amended—

(1) by redesignating paragraph (58) as paragraph (59);

(2) by redesignating the second paragraph designated as paragraph (57) (relating to the definition of ''serious drug felony'') as paragraph (58); and

(3) by moving paragraphs (57), (58) (as so redesignated), and (59) (as so redesignated) 2 ems to the left.

SEC. 1093. DISCLOSURE OF FOREIGN INFLUENCE IN LOBBYING.

Section 4(b) of the Lobbying Disclosure Act of 1995 (2 U.S.C. 1603(b)) is amended—

(1) in paragraph (6), by striking ''and'' at the end; and

(2) in paragraph (7), by striking ''the offense.'' and inserting the following: ''the offense; and

''(8) notwithstanding paragraph (4), the name and address of each government of a foreign country (including any agency or subdivision of a government of a foreign country, such as a regional or municipal unit of government) and foreign political party, other than the client, that participates in the direction, planning, supervision, or control of any lobbying activities of the registrant.''.

SA 850. Ms. CORTEZ MASTO submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 10___. SLOAN CANYON NATIONAL CONSERVATION AREA BOUNDARY ADJUSTMENT.

(a) DEFINITIONS.—In this section:

(1) CONSERVATION AREA.—The term ''Conservation Area'' means the Sloan Canyon National Conservation Area.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior (acting through the Director of the Bureau of Land Management).

(b) BOUNDARY ADJUSTMENT.—

(1) MAP.—Section 603(4) of the Sloan Canyon National Conservation Area Act (16

U.S.C. 460qqq–1(4)) is amended by striking ''map entitled 'Southern Nevada Public Land Management Act' and dated October 1, 2002'' and inserting ''map entitled 'Proposed Sloan Canyon Expansion' and dated June 7, 2023''.

(2) ACREAGE.—Section 604(b) of the Sloan Canyon National Conservation Area Act (16 U.S.C. 460qqq–2(b)) is amended by striking ''48,438'' and inserting ''57,728''.

(c) RIGHT-OF-WAY.—Section 605 of the Sloan Canyon National Conservation Area Act (16 U.S.C. 460qqq–3) is amended by adding at the end the following:

''(h) HORIZON LATERAL PIPELINE RIGHT-OF-WAY.—

''(1) IN GENERAL.—Notwithstanding sections 202 and 503 of the Federal Land Policy Management Act of 1976 (43 U.S.C. 1712, 1763) and subject to valid existing rights and paragraph (3), the Secretary of the Interior, acting through the Director of the Bureau of Land Management (referred to in this subsection as the 'Secretary'), shall, not later than 1 year after the date of enactment of this subsection, grant to the Southern Nevada Water Authority (referred to in this subsection as the 'Authority'), not subject to the payment of rents or other charges, the temporary and permanent water pipeline infrastructure, and outside the boundaries of the Conservation Area, powerline, facility, and access road rights-of-way depicted on the map for the purposes of—

''(A) performing geotechnical investigations within the rights-of-way; and

''(B) constructing and operating water transmission and related facilities.

''(2) EXCAVATION AND DISPOSAL.—

''(A) IN GENERAL.—The Authority may, without consideration, excavate and use or dispose of sand, gravel, minerals, or other materials from the tunneling of the water pipeline necessary to fulfill the purpose of the rights-of-way granted under paragraph (1).

''(B) MEMORANDUM OF UNDERSTANDING.—Not later than 30 days after the date on which the rights-of-way are granted under paragraph (1), the Secretary and the Authority shall enter into a memorandum of understanding identifying Federal land on which the Authority may dispose of materials under subparagraph (A) to further the interests of the Bureau of Land Management.

''(3) REQUIREMENTS.—A right-of-way issued under this subsection shall be subject to the following requirements:

''(A) The Secretary may include reasonable terms and conditions, consistent with section 505 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1765), as are necessary to protect Conservation Area resources.

''(B) Construction of the water pipeline shall not permanently adversely affect conservation area surface resources.

''(C) The right-of-way shall not be located through or under any area designated as wilderness.''.

(d) PRESERVATION OF TRANSMISSION AND UTILITY CORRIDORS AND RIGHTS-OF-WAY.—The expansion of the Conservation Area boundary under the amendment made by subsection (b)—

(1) shall be subject to valid existing rights, including land within a designated utility transmission corridor or a transmission line right-of-way grant approved by the Secretary in a record of decision issued before the date of enactment of this Act;

(2) shall not preclude—

(A) any activity authorized in accordance with a designated corridor or right-of-way referred to in paragraph (1), including the operation, maintenance, repair, or replacement of any authorized utility facility within the corridor or right-of-way; or

(B) the Secretary from authorizing the establishment of a new utility facility right-of-way within an existing designated transportation and utility corridor referred to in paragraph (1) in accordance with—

(i) the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and other applicable laws; and

(ii) subject to such terms and conditions as the Secretary determines to be appropriate; and

(3) except as provided in the amendment made by subsection (c), modifies the management of the Conservation Area pursuant to section 605 of the Sloan Canyon National Conservation Area Act (16 U.S.C. 460qqq–3).

SEC. 10___. APEX PROJECT, NEVADA LAND TRANSFER AND AUTHORIZATION ACT OF 1989.

(a) DEFINITIONS.—Section 2(b) of the Apex Project, Nevada Land Transfer and Authorization Act of 1989 (Public Law 101–67; 103 Stat. 169)—

(1) in the matter preceding paragraph (1), by striking ''As used in this Act, the following terms shall have the following meanings—'' and inserting ''In this Act:'';

(2) in each of paragraphs (1), (2), (4), and (5), by inserting a paragraph heading, the text of which comprises the term defined in that paragraph;

(3) in paragraph (3), by inserting ''COUNTY; CLARK COUNTY.—'' before ''The term'';

(4) in paragraph (6)—

(A) by inserting ''FLPMA TERMS.—'' before ''All''; and

(B) by inserting ''(43 U.S.C. 1701 et seq.)'' before the period at the end;

(5) by redesignating paragraphs (1), (2), (3), (4), (5), and (6) as paragraphs (7), (6), (4), (5), (2), and (8), respectively;

(6) by inserting before paragraph (2) (as so redesignated) the following:

''(1) APEX INDUSTRIAL PARK OWNERS ASSOCIATION.—The term 'Apex Industrial Park Owners Association' has the meaning given the term in the charter document for the entity entitled 'Apex Industrial Park Owners Association', which was formed on April 9, 2001, and any successor documents to the charter document, as on file with the Nevada Secretary of State.''; and

(7) by inserting after paragraph (2) (as so redesignated) the following:

''(3) CITY.—The term 'City' means the city of North Las Vegas, Nevada.''.

(b) KERR-MCGEE SITE TRANSFER.—Section 3(b) of the Apex Project, Nevada Land Transfer and Authorization Act of 1989 (Public Law 101–67; 103 Stat. 170) is amended—

(1) in the first sentence—

(A) by striking ''Clark County for the connection'' and inserting ''Clark County, the City, and the Apex Industrial Park Owners Association, individually or jointly, as appropriate, for the connection'';

(B) by striking ''Kerr-McGee Site'' and inserting ''Kerr-McGee Site and other land conveyed in accordance with this Act''; and

(C) by inserting ''(or any successor map prepared by the Secretary)'' after ''May 1989''; and

(2) in the third sentence, by inserting '', the City, or the Apex Industrial Park Owners Association, individually or jointly, as appropriate,'' after ''Clark County''.

(c) AUTHORIZATION FOR ADDITIONAL TRANSFERS.—Section 4 of the Apex Project, Nevada Land Transfer and Authorization Act of 1989 (Public Law 101–67; 103 Stat. 171)—

(1) in subsection (c), by striking ''Pursuant'' and all that follows through ''Clark County'' and inserting ''During any period in which the requirements of section 6 are met, pursuant to applicable law, the Secretary shall grant to Clark County, the City, and the Apex Industrial Park Owners Association''; and

(2) in subsection (e)—

(A) in paragraph (1), by striking the last sentence and inserting ''The withdrawal made by this subsection shall continue in perpetuity for all land transferred in accordance with this Act.''; and

(B) by adding at the end the following:

''(3) MINERAL MATERIALS SALE.—In the case of the sale of mineral materials resulting from grading, land balancing, or other activities on the surface of a parcel within the Apex Site for which the United States retains an interest in the minerals—

''(A) it shall be considered impracticable to obtain competition for purposes of section 3602.31(a)(2) of title 43, Code of Federal Regulations (as in effect on the date of enactment of the National Defense Authorization Act for Fiscal Year 2024); and

''(B) the sale shall be exempt from the quantity and term limitations imposed on noncompetitive sales under subpart 3602 of that title (as in effect on the date of enactment of the National Defense Authorization Act for Fiscal Year 2024).''.

(d) ENVIRONMENTAL CONSIDERATIONS.—Section 6 of the Apex Project, Nevada Land Transfer and Authorization Act of 1989 (Public Law 101–67; 103 Stat. 173) is amended by adding at the end the following:

''(d) COMPLIANCE WITH ENVIRONMENTAL ASSESSMENTS.—Each transfer by the United States of land or interest in lands within the Apex Site or rights-of-way issued pursuant to this Act shall be conditioned on the compliance with applicable Federal land laws, including the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.).''.

SA 851. Mr. DURBIN submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title XII, add the following:

SEC. 1299L. EXTENSION OF ANNUAL REPORT ON STRIKES UNDERTAKEN BY THE UNITED STATES AGAINST TERRORIST TARGETS OUTSIDE AREAS OF ACTIVE HOSTILITIES.

Section 1723 of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1811) is amended—

(1) in subsection (a), by striking ''until 2022'' and inserting ''until 2033'';

(2) in subsection (b)—

(A) in the matter preceding paragraph (1), by striking ''The report'' and inserting ''Each report''; and

(B) in paragraph (1), by striking the semicolon and inserting ''; and''; and

(3) in subsection (d), by striking ''The report'' and inserting ''Each report''.

SA 852. Mr. DURBIN (for himself and Ms. WARREN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title I, add the following:

SEC. 144. REPORT ON PROCUREMENT COSTS OF NONTACTICAL VEHICLES.

The Secretary of Defense, when conducting any action with the Government Services Administration relating to the procurement or requisition of a nontactical vehicle, shall submit to Congress a report that, at a minimum, identifies—

(1) types of vehicles by—

(A) size; and

(B) fuel source; and

(2) the total estimated cost savings and avoided emissions that result or would have resulted from the purchase or lease of a zero-emission vehicle instead of an internal combustion engine vehicle.

SA 853. Mr. DURBIN submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

On page 695, strike lines 1 through 5 and insert the following:

SEC. 1296. MODIFICATION OF AUTHORITY AND QUARTERLY REPORT REQUIREMENTS FOR CERTAIN PAYMENTS TO REDRESS INJURY AND LOSS.

(a) AUTHORITY.—Subsection (a) of section 1213 of the National Defense Authorization Act for Fiscal Year 2020 (10 U.S.C. 2731 note) is amended by striking ''$3,000,000 for each calendar year'' and inserting ''$10,000,000 for each calendar year, except in extraordinary circumstances at the discretion of the Secretary of Defense,''.

(b) QUARTERLY REPORT.—Subsection (h) of such section is amended—

SA 854. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. ___. REPORT ON MUNITIONS PROVIDED BY THE UNITED STATES TO UKRAINE.

Not later than 30 days after the date of the enactment of this Act, the President shall submit to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives a report that includes the following:

(1) A full list of the munitions provided to Ukraine by the United States between January 1, 2022 and the date of the enactment of this Act.

(2) An identification of the length of time of manufacturing rates, as of the date of the enactment of this Act, to replace United States stocks of the munitions described in paragraph (1).

SA 855. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle H of title V, add the following:

SEC. 584. DIGITAL AMBASSADOR PROGRAM OF THE NAVY: CESSATION; REPORT; RESTART.

(a) CESSATION.—The Secretary of the Navy shall cease all activities of the digital ambassador program of the Office of Information of the Department of the Navy. The Secretary shall notify each individual designated as a digital ambassador of such cessation and that the individual is not authorized to act as a digital ambassador of the Navy.

(b) RESTART.—The Secretary may not restart such program until 60 days after the date on which the Secretary submits to the Committees on Armed Services of the Senate and House of Representatives a report containing the following:

(1) All policies and documents of the program.

(2) The number of digital ambassadors designated.

(3) The process and criteria for such designation.

(4) The duties of a digital ambassador.

(5) The online platforms (including social media) on which an individual is authorized under such program to perform duties of a digital ambassador.

(6) The determination of the Secretary that such program complies with applicable laws, regulations, and guidance.

SA 856. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle B of title II, add the following:

SEC. ___. CERTAIN DISCLOSURE REQUIREMENTS FOR UNIVERSITY RESEARCH FUNDED BY THE DEPARTMENT OF DEFENSE.

(a) DISCLOSURES REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall require the principal investigator of any covered research program at an institution of higher education to accurately and completely disclose to the Department of Defense the following:

(1) At the time of application for funding from the Department of Defense for a covered research program, disclose, with respect to each researcher who is expected to participate in the program—

(A) date and place of birth, country of citizenship, and immigration status in the case of a foreign national;

(B) educational background from undergraduate education onwards;

(C) professional and employment background, as applicable, including any history of working for a foreign government or on foreign government sponsored projects;

(D) all previous and concurrent research, academic and corporate positions, ties, or relationships;

(E) past and current affiliation with foreign governments, including foreign political parties or organizations, and military ties, as applicable, in case of foreign national;

(F) past or current involvement in any foreign talent programs;

(G) memberships in foreign and United States academic and professional associations and organizations; and

(H) a list of all publications published anywhere in any language, peer reviewed or non-peer reviewed, including all mentions of foreign funding, research collaborations, and in kind support that supported the research and publication.

(2) Disclose the information specified in paragraph (1) with respect to any researcher who joins a covered research program after funding is awarded by the Department of Defense not later than 90 days after the researcher joins the program.

(3) Beginning not later than one year after funding is awarded by the Department of Defense for a covered research program, and annually thereafter through the end of the award period, disclose—

(A) any direct, indirect, formal, or informal collaboration that the principal investigator, either independently or as the lead of the covered research program, enters into with any third-party persons or entities, including the identity and nationality of the third party collaborator, the nature of the collaboration (whether direct, indirect, formal or informal) and the terms and conditions of such collaboration; and

(B) any change of status with regard to a researcher who was the subject of a disclosure under paragraphs (1) or (2), including any departure of such researcher from the program, the terms of such departure, change of immigration status, and change in foreign ties and collaboration.

(b) FORM; PUBLIC AVAILABILITY OF INFORMATION.—Each disclosure under subsection (a) shall be submitted in unclassified form and shall be made available on a publicly accessible website of the Federal Government.

(c) DEFINITIONS.—In this section—

(1) the term ''covered research program'' means any research program, research project, or other research activity (including classified and unclassified research) that is—

(A) conducted by an institution of higher education; and

(B) funded, in whole or in part, by the Department of Defense;

(2) the term ''institution of higher education'' has the meaning given such term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002) and includes any department, program, project, faculty, researcher, or other individual, entity, or activity of such institution; and

(3) the term ''researcher'' means any person who has access to research information under a covered research program, including the principal investigator and any graduate students, post-doctoral fellows, or visiting scholars participating in such program.

SA 857. Mr. VANCE submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title XXVIII, add the following:

SEC. 2816. AUTHORIZATION OF APPROPRIATIONS FOR CONSTRUCTION OF UNPAVED ASSAULT RUNWAY FOR YOUNGSTOWN AIR RESERVE STATION, OHIO.

There are authorized to be appropriated to the Secretary of Defense $15,000,000 for fiscal

year 2024 to construct an unpaved assault runway for Youngstown Air Reserve Station, Ohio.

SA 858. Mr. TILLIS (for himself and Mr. BUDD) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle G of title X, insert the following:

SEC. 10_____. FEDERAL RECOGNITION.

The Act of June 7, 1956 (70 Stat. 254, chapter 375), is amended—

(1) by striking section 2;

(2) in the first sentence of the first section, by striking ''That the Indians'' and inserting the following:

''SEC. 3. DESIGNATION OF LUMBEE INDIANS.

''The Indians'';

(3) in the preamble—

(A) by inserting before the first undesignated clause the following:

''SECTION 1. FINDINGS.

''Congress finds that—'';

(B) by designating the undesignated clauses as paragraphs (1) through (4), respectively, and indenting appropriately;

(C) by striking ''Whereas'' each place it appears;

(D) by striking ''and'' after the semicolon at the end of each of paragraphs (1) and (2) (as so designated); and

(E) in paragraph (4) (as so designated), by striking '': Now, therefore,'' and inserting a period;

(4) by moving the enacting clause so as to appear before section 1 (as so designated);

(5) by striking the last sentence of section 3 (as designated by paragraph (2));

(6) by inserting before section 3 (as designated by paragraph (2)) the following:

''SEC. 2. DEFINITIONS.

''In this Act:

''(1) SECRETARY.—The term 'Secretary' means the Secretary of the Interior.

''(2) TRIBE.—The term 'Tribe' means the Lumbee Tribe of North Carolina or the Lumbee Indians of North Carolina.''; and

(7) by adding at the end the following:

''SEC. 4. FEDERAL RECOGNITION.

''(a) IN GENERAL.—Federal recognition is extended to the Tribe (as designated as petitioner number 65 by the Office of Federal Acknowledgment).

''(b) APPLICABILITY OF LAWS.—All laws and regulations of the United States of general application to Indians and Indian tribes shall apply to the Tribe and its members.

''(c) PETITION FOR ACKNOWLEDGMENT.—Notwithstanding section 3, any group of Indians in Robeson and adjoining counties, North Carolina, whose members are not enrolled in the Tribe (as determined under section 5(d)) may petition under part 83 of title 25 of the Code of Federal Regulations for acknowledgment of tribal existence.

''SEC. 5. ELIGIBILITY FOR FEDERAL SERVICES.

''(a) IN GENERAL.—The Tribe and its members shall be eligible for all services and benefits provided by the Federal Government to federally recognized Indian tribes.

''(b) SERVICE AREA.—For the purpose of the delivery of Federal services and benefits described in subsection (a), those members of the Tribe residing in Robeson, Cumberland, Hoke, and Scotland counties in North Carolina shall be deemed to be residing on or near an Indian reservation.

''(c) DETERMINATION OF NEEDS.—On verification by the Secretary of a tribal roll under subsection (d), the Secretary and the Secretary of Health and Human Services shall—

''(1) develop, in consultation with the Tribe, a determination of needs to provide the services for which members of the Tribe are eligible; and

''(2) after the tribal roll is verified, each submit to Congress a written statement of those needs.

''(d) TRIBAL ROLL.—

''(1) IN GENERAL.—For purpose of the delivery of Federal services and benefits described in subsection (a), the tribal roll in effect on the date of enactment of this section shall, subject to verification by the Secretary, define the service population of the Tribe.

''(2) VERIFICATION LIMITATION AND DEADLINE.—The verification by the Secretary under paragraph (1) shall—

''(A) be limited to confirming documentary proof of compliance with the membership criteria set out in the constitution of the Tribe adopted on November 16, 2001; and

''(B) be completed not later than 2 years after the submission of a digitized roll with supporting documentary proof by the Tribe to the Secretary.

''SEC. 6. AUTHORIZATION TO TAKE LAND INTO TRUST.

''(a) IN GENERAL.—Notwithstanding any other provision of law, the Secretary is hereby authorized to take land into trust for the benefit of the Tribe.

''(b) TREATMENT OF CERTAIN LAND.—An application to take into trust land located within Robeson County, North Carolina, under this section shall be treated by the Secretary as an 'on reservation' trust acquisition under part 151 of title 25, Code of Federal Regulations (or a successor regulation).

''SEC. 7. JURISDICTION OF STATE OF NORTH CAROLINA.

''(a) IN GENERAL.—With respect to land located within the State of North Carolina that is owned by, or held in trust by the United States for the benefit of, the Tribe, or any dependent Indian community of the Tribe, the State of North Carolina shall exercise jurisdiction over—

''(1) all criminal offenses that are committed; and

''(2) all civil actions that arise.

''(b) TRANSFER OF JURISDICTION.—

''(1) IN GENERAL.—Subject to paragraph (2), the Secretary may accept on behalf of the United States, after consulting with the Attorney General of the United States, any transfer by the State of North Carolina to the United States of any portion of the jurisdiction of the State of North Carolina described in subsection (a) over Indian country occupied by the Tribe pursuant to an agreement between the Tribe and the State of North Carolina.

''(2) RESTRICTION.—A transfer of jurisdiction described in paragraph (1) may not take effect until 2 years after the effective date of the agreement described in that paragraph.

''(c) EFFECT.—Nothing in this section affects the application of section 109 of the Indian Child Welfare Act of 1978 (25 U.S.C. 1919).

''SEC. 8. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated such sums as are necessary to carry out this Act.''.

SA 859. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title III, insert the following:

SEC. 3___. FUNDING FOR INFRASTRUCTURE AND FACILITIES PROJECTS FOR B–21 BOMBER AIRCRAFT AT DYESS AIR FORCE BASE.

(a) ADDITIONAL FUNDING.—The amount authorized to be appropriated for fiscal year 2024 by section 301 for operation and maintenance for the Air Force is hereby increased by $45,000,000, with the amount of the increase to be available for facilities sustainment to carry out infrastructure and facilities projects to make Dyess Air Force Base capable to receive nuclear-capable B–21 bomber aircraft, including—

(1) project 100012 (ADAL Traffic Lanes Tye Gate Entry);

(2) project 100009 (ADAL Traffic Lanes Main Gate Entry);

(3) project 203002 (Hazardous Cargo Pad); and

(4) project 033005 (Enlisted Dorm).

(b) OFFSET.—The amount authorized to be appropriated for fiscal year 2024 by section 201 for research, development, test, and evaluation for the Air Force is hereby decreased by $45,000,000, with the amount of the decrease to be taken from amounts available for research, development, test, and evaluation for the B–21 bomber program (PE 0604015F).

SA 860. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title II, insert the following:

SEC. 2___. STRATEGY ON SOLID ROCKET DEVELOPMENT.

(a) STRATEGY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall submit to Congress a strategy to ensure the United States remains at the forefront in solid rocket development.

(b) ELEMENTS.—The strategy submitted pursuant to subsection (a) shall include strategies for the following:

(1) Bringing new entrants into the solid rocket motor industrial base of the United States.

(2) Accelerating manufacturing technologies that can help meet the replenishment needs in critical munitions.

(3) Ensuring that competitive procurements are used and nontraditional providers are encouraged to compete and become qualified new entrants.

SA 861. Mr. KENNEDY (for himself, Mr. CASSIDY, and Ms. ROSEN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle C of title II, insert the following:

SEC. _____. ESTABLISHMENT OF TECHNOLOGY TRANSITION PROGRAM FOR STRATEGIC NUCLEAR DETERRENCE.

(a) IN GENERAL.—The Commander of Air Force Global Strike Command may, through the use of a partnership intermediary, establish a program—

(1) to carry out technology transition, digital engineering projects, and other innovation activities supporting the Air Force nuclear enterprise; and

(2) to discover capabilities that have the potential to generate life-cycle cost savings and provide data-driven approaches to resource allocation.

(b) TERMINATION.—The program established under subsection (a) shall terminate on September 30, 2029.

(c) PARTNERSHIP INTERMEDIARY DEFINED.—The term ''partnership intermediary'' has the meaning given the term in section 23(c) of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3715(c)).

SA 862. Mr. MARSHALL (for himself, Mr. DURBIN, and Mr. WELCH) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. CREDIT CARD COMPETITION.

(a) SHORT TITLE.—This section may be cited as the ''Credit Card Competition Act of 2023''.

(b) COMPETITION IN CREDIT CARD TRANSACTIONS.—

(1) IN GENERAL.—Section 921 of the Electronic Fund Transfer Act (15 U.S.C. 1693o–2) is amended—

(A) in subsection (b)—

(i) by redesignating paragraphs (2), (3), and (4) as paragraphs (3), (4), and (5), respectively; and

(ii) by inserting after paragraph (1) the following:

''(2) COMPETITION IN CREDIT CARD TRANSACTIONS.—

''(A) NO EXCLUSIVE NETWORK.—

''(i) IN GENERAL.—Not later than 1 year after the date of enactment of the Credit Card Competition Act of 2023, the Board shall prescribe regulations providing that a covered card issuer or payment card network shall not directly or through any agent, processor, or licensed member of a payment card network, by contract, requirement, condition, penalty, technological specification, or otherwise, restrict the number of payment card networks on which an electronic credit transaction may be processed to—

''(I) 1 such network;

''(II) 2 or more such networks, if—

''(aa) each such network is owned, controlled, or otherwise operated by—

''(AA) affiliated persons; or

''(BB) networks affiliated with such issuer; or

''(bb) any such network is identified on the list established and updated under subparagraph (D); or

''(III) subject to clause (ii), the 2 such networks that hold the 2 largest market shares with respect to the number of credit cards issued in the United States by licensed members of such networks (and enabled to be processed through such networks), as determined by the Board on the date on which the Board prescribes the regulations.

''(ii) DETERMINATIONS BY BOARD.—

''(I) IN GENERAL.—The Board, not later than 3 years after the date on which the regulations prescribed under clause (i) take effect, and not less frequently than once every 3 years thereafter, shall determine whether the 2 networks identified under clause (i)(III) have changed, as compared with the most recent such determination by the Board.

''(II) EFFECT OF DETERMINATION.—If the Board, under subclause (I), determines that the 2 networks described in clause (i)(III) have changed (as compared with the most recent such determination by the Board), clause (i)(III) shall no longer have any force or effect.

''(B) NO ROUTING RESTRICTIONS.—Not later than 1 year after the date of enactment of the Credit Card Competition Act of 2023, the Board shall prescribe regulations providing that a covered card issuer or payment card network shall not—

''(i) directly or through any agent, processor, or licensed member of the network, by contract, requirement, condition, penalty, or otherwise—

''(I) inhibit the ability of any person who accepts credit cards for payments to direct the routing of electronic credit transactions for processing over any payment card network that—

''(aa) may process such transactions; and

''(bb) is not on the list established and updated by the Board under subparagraph (D);

''(II) require any person who accepts credit cards for payments to exclusively use, for transactions associated with a particular credit card, an authentication, tokenization, or other security technology that cannot be used by all of the payment card networks that may process electronic credit transactions for that particular credit card; or

''(III) inhibit the ability of another payment card network to handle or process electronic credit transactions using an authentication, tokenization, or other security technology for the processing of those electronic credit transactions; or

''(ii) impose any penalty or disadvantage, financial or otherwise, on any person for—

''(I) choosing to direct the routing of an electronic credit transaction over any payment card network on which the electronic credit transaction may be processed; or

''(II) failing to ensure that a certain number, or aggregate dollar amount, of electronic credit transactions are handled by a particular payment card network.

''(C) APPLICABILITY.—The regulations prescribed under subparagraphs (A) and (B) shall not apply to a credit card issued in a 3-party payment system model.

''(D) DESIGNATION OF NATIONAL SECURITY RISKS.—

''(i) IN GENERAL.—Not later than 1 year after the date of enactment of the Credit Card Competition Act of 2023, the Board, in consultation with the Secretary of the Treasury, shall prescribe regulations to establish a public list of any payment card network—

''(I) the processing of electronic credit transactions by which is determined by the Board to pose a risk to the national security of the United States; or

''(II) that is owned, operated, or sponsored by a foreign state entity.

''(ii) UPDATING OF LIST.—Not less frequently than once every 2 years after the date on which the Board establishes the public list required under clause (i), the Board, in consultation with the Secretary of the Treasury, shall update that list.

''(E) DEFINITIONS.—In this paragraph—

''(i) the terms 'card issuer' and 'creditor' have the meanings given the terms in section 103 of the Truth in Lending Act (15 U.S.C. 1602);

''(ii) the term 'covered card issuer' means a card issuer that, together with the affiliates of the card issuer, has assets of more than $100,000,000,000;

''(iii) the term 'credit card issued in a 3-party payment system model' means a credit card issued by a card issuer that is—

''(I) the payment card network with respect to the credit card; or

''(II) under common ownership with the payment card network with respect to the credit card;

''(iv) the term 'electronic credit transaction'—

''(I) means a transaction in which a person uses a credit card; and

''(II) includes a transaction in which a person does not physically present a credit card for payment, including a transaction involving the entry of credit card information onto, or use of credit card information in conjunction with, a website interface or a mobile telephone application; and

''(v) the term 'licensed member' includes, with respect to a payment card network—

''(I) a creditor or card issuer that is authorized to issue credit cards bearing any logo of the payment card network; and

''(II) any person, including any financial institution and any person that may be referred to as an 'acquirer', that is authorized to—

''(aa) screen and accept any person into any program under which that person may accept, for payment for goods or services, a credit card bearing any logo of the payment card network;

''(bb) process transactions on behalf of any person who accepts credit cards for payments; and

''(cc) complete financial settlement of any transaction on behalf of a person who accepts credit cards for payments.''; and

(B) in subsection (d)(1), by inserting '', except that the Bureau shall not have authority to enforce the requirements of this section or any regulations prescribed by the Board under this section'' after ''section 918''.

(2) EFFECTIVE DATE.—Each set of regulations prescribed by the Board of Governors of the Federal Reserve System under paragraph (2) of section 921(b) of the Electronic Fund Transfer Act (15 U.S.C. 1693o–2(b)), as amended by this section, shall take effect on the date that is 180 days after the date on which the Board prescribes the final version of that set of regulations.

SA 863. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. REPORT ON IRANIAN INVOLVEMENT IN REGIONAL NARCOTICS TRADE.

(a) SENSE OF CONGRESS.—It is the sense of Congress that the Middle East narcotics trade continues to evolve, including through expanding volumes and routes facilitating the sale, supply, or transfer of captagon and methamphetamines throughout the region.

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in coordination with the Secretary of State and the Director of

National Intelligence, shall submit to the congressional defense committees, the Committee on Foreign Affairs and the Permanent Select Committee on Intelligence in the House of Representatives, and the Committee on Foreign Relations and the Select Committee on Intelligence in the Senate a report on Iranian involvement in the narcotics trade in the Middle East region. Such report shall include each of the following:

(1) An assessment of any element of the Government of Iran, including the Islamic Revolutionary Guard Corps (in this section referred to as the ''IRGC'') and any Iran-backed group operating in Iraq, Syria, Lebanon, or Yemen, that supports the sale, supply, or transfer of narcotics in the Middle East region.

(2) An assessment of the benefits accrued from the sale, supply, and transfer of narcotics in the region by any element of the Government of Iran, including the IRGC and any Iran-backed groups operating in Iraq, Syria, Lebanon, or Yemen.

(3) An assessment of all foreign terrorist organizations to or for which the IRGC, or any person owned or controlled by the IRGC, provides material support in the sale, supply, transfer, or production of captagon or other related narcotics or precursors in the Middle East and North Africa.

(4) An assessment of activities conducted by the IRGC in Afghanistan related to the trade of methamphetamine or opiates, including synthetic opiates.

(5) A detailed account of intercepted transfers involving the United States Fifth Fleet of narcotics from Iran or involving Iranian nationals or persons acting, or purporting to act, for or on behalf of the Government of Iran, including the IRGC.

(c) FORM.—The report required under subsection (b) shall be submitted in unclassified form, but may contain a classified annex.

SA 864. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle B of title X, add the following:

SEC. 1015. THREAT ANALYSIS REGARDING FENTANYL CRISIS.

(a) THREAT ANALYSIS.—The Secretary of Defense, in consultation with the Director of the Defense Threat Reduction Agency and the Office of the Deputy Assistant Secretary of Defense for Counternarcotics and Stabilization Policy, shall conduct an analysis of—

(1) any potential threats the illicit fentanyl drug trade poses to the defense interests of the United States;

(2) the illicit fentanyl drug trade, including the manufacture, distribution, and sale or trade, and trans-shipment of fentanyl and fentanyl-related substances;

(3) new or emerging techniques or technologies that are likely to affect the evolution of the illicit fentanyl drug trade; and

(4) United States laws, executive orders, secretarial orders, and agency actions that are likely affecting the evolution of the illicit fentanyl drug trade across the southern border of the United States.

(b) REPORT.—Not later than March 31, 2024, the Secretary of Defense shall submit to the congressional defense committees a report that includes—

(1) the threat analysis required under subsection (a), including any recommendations of the Secretary for any related actions;

(2) any actions the Department of Defense has taken in response to such threat analysis; and

(3) any other matter the Secretary of Defense determines to be appropriate.

SA 865. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. DEPARTMENT OF HOMELAND SECURITY FUNDING RESTRICTIONS ON INSTITUTIONS OF HIGHER EDUCATION THAT HAVE A RELATIONSHIP WITH CONFUCIUS INSTITUTES.

(a) RESTRICTIONS ON INSTITUTIONS OF HIGHER EDUCATION.—Beginning with the first fiscal year that begins after the date that is 12 months after the date of the enactment of this Act, the Secretary of Homeland Security shall ensure that an institution of higher education (referred to in this section as an ''institution'') which has a relationship with a Confucius Institute or Chinese entity of concern is ineligible to receive any funds from the Department of Homeland Security, unless the institution terminates the relationship between the institution and such Confucius Institute or Chinese entity of concern, as the case may be. Upon the termination of such a relationship, the institution at issue shall be eligible to receive funds from the Department of Homeland Security.

(b) DEFINITIONS.—In this section:

(1) CHINESE ENTITY OF CONCERN.—The term ''Chinese entity of concern'' means any university or college in the People's Republic of China that—

(A) is involved in the implementation of military-civil fusion;

(B) participates in the Chinese defense industrial base;

(C) is affiliated with the Chinese State Administration for Science, Technology and Industry for the National Defense;

(D) receives funding from any organization subordinate to the Central Military Commission of the Chinese Communist Party; or

(E) provides support to any security, defense, police, or intelligence organization of the Government of the People's Republic of China or the Chinese Communist Party.

(2) CONFUCIUS INSTITUTE.—The term ''Confucius Institute'' means a cultural institute funded by the Government of the People's Republic of China.

(3) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given such term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002).

(4) RELATIONSHIP.—The term ''relationship'' means, with respect to an institution of higher education, any contract awarded, or agreement entered into, as well as any in-kind donation or gift, received from a Confucius Institute or Chinese entity of concern.

SA 866. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. OFFICE OF STRATEGIC CAPITAL CHINESE COMPANY INVESTMENT PROHIBITION.

Beginning on the date of the enactment of this Act, the Office of Strategic Capital in the Office of the Under Secretary of Defense for Research and Engineering may not invest in or guarantee or otherwise facilitate any investment in any entity—

(1) incorporated under the laws of the People's Republic of China; or

(2) of which more than 50 percent is owned, directly or indirectly, by—

(A) citizens of the People's Republic of China;

(B) entities incorporated under the laws of the People's Republic of China; or

(C) any combination of the individuals and entities described in subparagraphs (A) and (B).

SA 867. Mr. CARDIN (for himself and Mrs. SHAHEEN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XI, insert the following:

SEC. ___. RECEIPT OF GRANT FUNDS BY UNITED STATES NAVAL ACADEMY EMPLOYEES.

Section 8452 of title 10, United States Code, is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following new subsection (d):

''(d) Notwithstanding section 5533 of title 5, employees of the Naval Academy who are on leave without pay, due to the regular 10-month pay schedule and not due to discipline or other reasons, are eligible to receive funds, including for salary and fringe benefit payments, from grant funds provided by Federal agencies other than the Naval Academy, including the National Institutes of Health, the National Science Foundation, the Office of Naval Research, the Department of Energy, and the National Aeronautics and Space Administration.''.

SA 868. Mr. CARDIN (for himself and Mrs. SHAHEEN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XI, insert the following:

SEC. ___. RECEIPT OF GRANT FUNDS BY UNITED STATES NAVAL ACADEMY EMPLOYEES.

Section 8452 of title 10, United States Code, is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following new subsection (d):

''(d) Employees of the Naval Academy who are on leave without pay, due to the regular 10-month pay schedule and not due to discipline or other reasons, are eligible to receive funds, including for salary and fringe benefit payments, from grant funds provided by Federal agencies other than the Naval Academy, including the National Institutes of Health, the National Science Foundation, the Office of Naval Research, the Department of Energy, and the National Aeronautics and Space Administration.''.

SA 869. Ms. CANTWELL submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. _____. STEM APPRENTICESHIPS.

(a) DEFINITIONS.—In this section:

(1) COVERED ENTITY.—The term ''covered entity'' has the meaning given the term in section 9901(2) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (15 U.S.C. 4651(2)).

(2) ELIGIBLE RECIPIENT.—The term ''eligible recipient'' has the meaning given the term in section 30(b) of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3723(b)).

(3) LABOR ORGANIZATION.—The term ''labor organization'' has the meaning given the term in section 2(5) of the National Labor Relations Act (29 U.S.C. 152(5)), except that such term shall also include—

(A) any organization composed of labor organizations, such as a labor union federation or a State or municipal labor body; and

(B) any organization which would be included in the definition for such term under such section 2(5) but for the fact that the organization represents—

(i) individuals employed by the United States, any wholly owned Government corporation, any Federal Reserve Bank, or any State or political subdivision thereof;

(ii) individuals employed by persons subject to the Railway Labor Act (45 U.S.C. 151 et seq.); or

(iii) individuals employed as agricultural laborers.

(4) SECRETARY.—The term ''Secretary'' means the Secretary of Commerce.

(5) STEM.—The term ''STEM'' means the fields of science, technology, engineering, and mathematics, including computer science.

(b) CHIPS STEM APPRENTICESHIPS.—The Secretary shall make awards to covered entities to develop and expand STEM apprenticeship programs.

(c) STEM APPRENTICESHIPS FOR KEY TECHNOLOGY FOCUS AREAS.—The Secretary shall make awards to eligible recipients and labor organizations to develop and expand STEM apprenticeship programs, including programs focused on the key technology focus areas identified under section 10387 of Public Law 117–167 (commonly known as the ''CHIPS and Science Act of 2022'') (42 U.S.C. 19107).

(d) ADDITIONAL USE OF FUNDS.—In making awards under subsections (b) and (c) the Secretary may also make awards to—

(1) develop and disseminate best practices for STEM apprenticeship programs; and

(2) identify national and regional workforce needs that can be addressed through STEM apprenticeship programs.

(e) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary to carry out this section $2,000,000,000, which shall remain available until expended, of which—

(1) $1,000,000,000 is authorized for awards made under subsection (b); and

(2) $1,000,000,000 is authorized for awards made under subsection (c).

SA 870. Mrs. CAPITO (for herself and Mr. CARPER) submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XXXI, insert the following:

SEC. 31____. ACCELERATING DEPLOYMENT OF VERSATILE, ADVANCED NUCLEAR FOR CLEAN ENERGY.

(a) SHORT TITLE.—This section may be cited as the ''Accelerating Deployment of Versatile, Advanced Nuclear for Clean Energy Act of 2023'' or the ''ADVANCE Act of 2023''.

(b) DEFINITIONS.—In this section:

(1) ACCIDENT TOLERANT FUEL.—The term ''accident tolerant fuel'' has the meaning given the term in section 107(a) of the Nuclear Energy Innovation and Modernization Act (Public Law 115–439; 132 Stat. 5577).

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Environmental Protection Agency.

(3) ADVANCED NUCLEAR FUEL.—The term ''advanced nuclear fuel'' means—

(A) advanced nuclear reactor fuel; and

(B) accident tolerant fuel.

(4) ADVANCED NUCLEAR REACTOR.—The term ''advanced nuclear reactor'' has the meaning given the term in section 3 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215 note; Public Law 115–439).

(5) ADVANCED NUCLEAR REACTOR FUEL.—The term ''advanced nuclear reactor fuel'' has the meaning given the term in section 3 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215 note; Public Law 115–439).

(6) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Environment and Public Works of the Senate; and

(B) the Committee on Energy and Commerce of the House of Representatives.

(7) COMMISSION.—The term ''Commission'' means the Nuclear Regulatory Commission.

(8) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given the term in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)).

(9) NATIONAL LABORATORY.—The term ''National Laboratory'' has the meaning given the term in section 2 of the Energy Policy Act of 2005 (42 U.S.C. 15801).

(c) INTERNATIONAL NUCLEAR REACTOR EXPORT AND INNOVATION ACTIVITIES.—

(1) COORDINATION.—

(A) IN GENERAL.—The Commission shall—

(i) coordinate all work of the Commission relating to—

(I) nuclear reactor import and export licensing; and

(II) international regulatory cooperation and assistance relating to nuclear reactors, including with countries that are members of—

(aa) the Organisation for Economic Co-operation and Development; or

(bb) the Nuclear Energy Agency; and

(ii) support interagency and international coordination with respect to—

(I) the consideration of international technical standards to establish the licensing and regulatory basis to assist the design, construction, and operation of nuclear systems;

(II) efforts to help build competent nuclear regulatory organizations and legal frameworks in countries seeking to develop nuclear power; and

(III) exchange programs and training provided, in coordination with the Secretary of State, to other countries relating to nuclear regulation and oversight to improve nuclear technology licensing, in accordance with subparagraph (B).

(B) EXCHANGE PROGRAMS AND TRAINING.—With respect to the exchange programs and training described in subparagraph (A)(ii)(III), the Commission shall coordinate, as applicable, with—

(i) the Secretary of Energy;

(ii) the Secretary of State;

(iii) National Laboratories;

(iv) the private sector; and

(v) institutions of higher education.

(2) AUTHORITY TO ESTABLISH BRANCH.—The Commission may establish within the Office of International Programs a branch, to be known as the ''International Nuclear Reactor Export and Innovation Branch'', to carry out such international nuclear reactor export and innovation activities as the Commission determines to be appropriate and within the mission of the Commission.

(3) EXCLUSION OF INTERNATIONAL ACTIVITIES FROM THE FEE BASE.—

(A) IN GENERAL.—Section 102 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215) is amended—

(i) in subsection (a), by adding at the end the following:

''(4) INTERNATIONAL NUCLEAR REACTOR EXPORT AND INNOVATION ACTIVITIES.—The Commission shall identify in the annual budget justification international nuclear reactor export and innovation activities described in subsection (c)(1) of the ADVANCE Act of 2023.''; and

(ii) in subsection (b)(1)(B), by adding at the end the following:

''(iv) Costs for international nuclear reactor export and innovation activities described in subsection (c)(1) of the ADVANCE Act of 2023.''.

(B) EFFECTIVE DATE.—The amendments made by subparagraph (A) shall take effect on October 1, 2024.

(4) COORDINATION.—The Commission shall coordinate all international activities under this subsection with the Secretary of State and other applicable agencies, as appropriate.

(5) SAVINGS CLAUSE.—Nothing in this subsection alters the authority of the Commission to license and regulate the civilian use of radioactive materials.

(d) DENIAL OF CERTAIN DOMESTIC LICENSES FOR NATIONAL SECURITY PURPOSES.—

(1) DEFINITION OF COVERED FUEL.—In this subsection, the term ''covered fuel'' means enriched uranium that is fabricated into fuel assemblies for nuclear reactors by an entity that—

(A) is owned or controlled by the Government of the Russian Federation or the Government of the People's Republic of China; or

(B) is organized under the laws of, or otherwise subject to the jurisdiction of, the Russian Federation or the People's Republic of China.

(2) PROHIBITION ON UNLICENSED POSSESSION OR OWNERSHIP OF COVERED FUEL.—Unless specifically authorized by the Commission in a license issued under section 53 of the Atomic Energy Act of 1954 (42 U.S.C. 2073) and part 70 of title 10, Code of Federal Regulations (or successor regulations), no person subject to the jurisdiction of the Commission may possess or own covered fuel.

(3) LICENSE TO POSSESS OR OWN COVERED FUEL.—

(A) CONSULTATION REQUIRED PRIOR TO ISSUANCE.—The Commission shall not issue a license to possess or own covered fuel under section 53 of the Atomic Energy Act of 1954 (42 U.S.C. 2073) and part 70 of title 10, Code of Federal Regulations (or successor regulations), unless the Commission has first consulted with the Secretary of Energy and the Secretary of State before issuing the license.

(B) PROHIBITION ON ISSUANCE OF LICENSE.—

(i) IN GENERAL.—Subject to clause (iii), a license to possess or own covered fuel shall not be issued if the Secretary of Energy and the Secretary of State make the determination described in clause (ii)(I)(aa).

(ii) DETERMINATION.—

(I) IN GENERAL.—The determination referred to in clause (i) is a determination that possession or ownership, as applicable, of covered fuel—

(aa) poses a threat to the national security of the United States, including because of an adverse impact on the physical and economic security of the United States; or

(bb) does not pose a threat to the national security of the United States.

(II) JOINT DETERMINATION.—A determination described in subclause (I) shall be jointly made by the Secretary of Energy and the Secretary of State.

(III) TIMELINE.—

(aa) NOTICE OF APPLICATION.—Not later than 30 days after the date on which the Commission receives an application for a license to possess or own covered fuel, the Commission shall notify the Secretary of Energy and the Secretary of State of the application.

(bb) DETERMINATION.—The Secretary of Energy and the Secretary of State shall have a period of 180 days, beginning on the date on which the Commission notifies the Secretary of Energy and the Secretary of State under item (aa) of an application for a license to possess or own covered fuel, in which to make the determination described in subclause (I).

(cc) COMMISSION NOTIFICATION.—On making the determination described in subclause (I), the Secretary of Energy and the Secretary of State shall immediately notify the Commission.

(dd) CONGRESSIONAL NOTIFICATION.—Not later than 30 days after the date on which the Secretary of Energy and the Secretary of State notify the Commission under item (cc), the Commission shall notify the appropriate committees of Congress, the Committee on Foreign Relations of the Senate, the Committee on Energy and Natural Resources of the Senate, and the Committee on Foreign Affairs of the House of Representatives of the determination.

(ee) PUBLIC NOTICE.—Not later than 15 days after the date on which the Commission notifies Congress under item (dd) of a determination made under subclause (I), the Commission shall make that determination publicly available.

(iii) EFFECT OF NO DETERMINATION.—The Commission shall not issue a license if the Secretary of Energy and the Secretary of State have not made a determination described in clause (ii).

(4) SAVINGS CLAUSE.—Nothing in this subsection alters any treaty or international agreement in effect on the date of enactment of this Act or that enters into force after the date of enactment of this Act.

(e) EXPORT LICENSE REQUIREMENTS.—

(1) DEFINITION OF LOW-ENRICHED URANIUM.—In this subsection, the term ''low-enriched uranium'' means uranium enriched to less than 20 percent of the uranium-235 isotope.

(2) REQUIREMENT.—The Commission shall not issue an export license for the transfer of any item described in paragraph (4) to a country described in paragraph (3) unless the Commission, in consultation with the Secretary of State and any other relevant agencies, makes a determination that such transfer will not be inimical to the common defense and security of the United States.

(3) COUNTRIES DESCRIBED.—A country referred to in paragraph (2) is a country that—

(A) has not concluded and ratified an Additional Protocol to its safeguards agreement with the International Atomic Energy Agency; or

(B) has not ratified or acceded to the amendment to the Convention on the Physical Protection of Nuclear Material, adopted at Vienna October 26, 1979, and opened for signature at New York March 3, 1980 (TIAS 11080), described in the information circular of the International Atomic Energy Agency numbered INFCIRC/274/Rev.1/Mod.1 and dated May 9, 2016 (TIAS 16–508).

(4) ITEMS DESCRIBED.—An item referred to in paragraph (2) includes—

(A) unirradiated nuclear fuel containing special nuclear material (as defined in section 11 of the Atomic Energy Act of 1954 (42 U.S.C. 2014)), excluding low-enriched uranium;

(B) a nuclear reactor that uses nuclear fuel described in subparagraph (A); and

(C) any plant or component listed in Appendix I to part 110 of title 10, Code of Federal Regulations (or successor regulations), that is involved in—

(i) the reprocessing of irradiated nuclear reactor fuel elements;

(ii) the separation of plutonium; or

(iii) the separation of the uranium-233 isotope.

(5) NOTIFICATION.—If the Commission, in consultation with the Secretary of State and any other relevant agencies, makes a determination, in accordance with applicable laws and regulations, under paragraph (2) that the transfer of any item described in paragraph (4) to a country described in paragraph (3) will not be inimical to the common defense and security of the United States, the Commission shall notify the appropriate committees of Congress, the Committee on Foreign Relations of the Senate, the Committee on Energy and Natural Resources of the Senate, and the Committee on Foreign Affairs of the House of Representatives.

(f) FEES FOR ADVANCED NUCLEAR REACTOR APPLICATION REVIEW.—

(1) DEFINITIONS.—Section 3 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215 note; Public Law 115–439) is amended—

(A) by redesignating paragraphs (2) through (15) as paragraphs (3), (6), (7), (8), (9), (10), (12), (15), (16), (17), (18), (19), (20), and (21), respectively;

(B) by inserting after paragraph (1) the following:

''(2) ADVANCED NUCLEAR REACTOR APPLICANT.—The term 'advanced nuclear reactor applicant' means an entity that has submitted to the Commission an application to receive a license for an advanced nuclear reactor under the Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.).'';

(C) by inserting after paragraph (3) (as so redesignated) the following:

''(4) ADVANCED NUCLEAR REACTOR PRE-APPLICANT.—The term 'advanced nuclear reactor pre-applicant' means an entity that has submitted to the Commission a licensing project plan for the purposes of submitting a future application to receive a license for an advanced nuclear reactor under the Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.).

''(5) AGENCY SUPPORT.—The term 'agency support' means the resources of the Commission that are located in executive, administrative, and other support offices of the Commission, as described in the document of the Commission entitled 'FY 2023 Final Fee Rule Work Papers' (or a successor document).'';

(D) by inserting after paragraph (10) (as so redesignated) the following:

''(11) HOURLY RATE FOR MISSION-DIRECT PROGRAM SALARIES AND BENEFITS FOR THE NUCLEAR REACTOR SAFETY PROGRAM.—The term 'hourly rate for mission-direct program salaries and benefits for the Nuclear Reactor Safety Program' means the quotient obtained by dividing—

''(A) the full-time equivalent rate (within the meaning of the document of the Commission entitled 'FY 2023 Final Fee Rule Work Papers' (or a successor document)) for mission-direct program salaries and benefits for the Nuclear Reactor Safety Program (as determined by the Commission) for a fiscal year; by

''(B) the productive hours assumption for that fiscal year, determined in accordance with the formula established in the document referred to in subparagraph (A) (or a successor document).''; and

(E) by inserting after paragraph (12) (as so redesignated) the following:

''(13) MISSION-DIRECT PROGRAM SALARIES AND BENEFITS FOR THE NUCLEAR REACTOR SAFETY PROGRAM.—The term 'mission-direct program salaries and benefits for the Nuclear Reactor Safety Program' means the resources of the Commission that are allocated to the Nuclear Reactor Safety Program (as determined by the Commission) to perform core work activities committed to fulfilling the mission of the Commission, as described in the document of the Commission entitled 'FY 2023 Final Fee Rule Work Papers' (or a successor document).

''(14) MISSION-INDIRECT PROGRAM SUPPORT.—The term 'mission-indirect program support' means the resources of the Commission that support the core mission-direct activities for the Nuclear Reactor Safety Program of the Commission (as determined by the Commission), as described in the document of the Commission entitled 'FY 2023 Final Fee Rule Work Papers' (or a successor document).''.

(2) EXCLUDED ACTIVITIES.—Section 102(b)(1)(B) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215(b)(1)(B)) (as amended by subsection (c)(3)(A)(ii)) is amended by adding at the end the following:

''(v) The total costs of mission-indirect program support and agency support that, under paragraph (2)(B), may not be included in the hourly rate charged for fees assessed to advanced nuclear reactor applicants.

''(vi) The total costs of mission-indirect program support and agency support that, under paragraph (2)(C), may not be included in the hourly rate charged for fees assessed to advanced nuclear reactor pre-applicants.''.

(3) FEES FOR SERVICE OR THING OF VALUE.—Section 102(b) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215(b)) is amended by striking paragraph (2) and inserting the following:

''(2) FEES FOR SERVICE OR THING OF VALUE.—

''(A) IN GENERAL.—In accordance with section 9701 of title 31, United States Code, the

Commission shall assess and collect fees from any person who receives a service or thing of value from the Commission to cover the costs to the Commission of providing the service or thing of value.

''(B) ADVANCED NUCLEAR REACTOR APPLICANTS.—The hourly rate charged for fees assessed to advanced nuclear reactor applicants under this paragraph relating to the review of a submitted application described in section 3(1) shall not exceed the hourly rate for mission-direct program salaries and benefits for the Nuclear Reactor Safety Program.

''(C) ADVANCED NUCLEAR REACTOR PRE-APPLICANTS.—The hourly rate charged for fees assessed to advanced nuclear reactor pre-applicants under this paragraph relating to the review of submitted materials as described in the licensing project plan of an advanced nuclear reactor pre-applicant shall not exceed the hourly rate for mission-direct program salaries and benefits for the Nuclear Reactor Safety Program.''.

(4) SUNSET.—Section 102 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215) is amended by adding at the end the following:

''(g) CESSATION OF EFFECTIVENESS.—Paragraphs (1)(B)(vi) and (2)(C) of subsection (b) shall cease to be effective on September 30, 2029.''.

(5) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on October 1, 2024.

(g) ADVANCED NUCLEAR REACTOR PRIZES.—Section 103 of the Nuclear Energy Innovation and Modernization Act (Public Law 115–439; 132 Stat. 5571) is amended by adding at the end the following:

''(f) PRIZES FOR ADVANCED NUCLEAR REACTOR LICENSING.—

''(1) DEFINITION OF ELIGIBLE ENTITY.—In this subsection, the term 'eligible entity' means—

''(A) a non-Federal entity; and

''(B) the Tennessee Valley Authority.

''(2) PRIZE FOR ADVANCED NUCLEAR REACTOR LICENSING.—

''(A) IN GENERAL.—Notwithstanding section 169 of the Atomic Energy Act of 1954 (42 U.S.C. 2209) and subject to the availability of appropriations, the Secretary is authorized to make, with respect to each award category described in subparagraph (C), an award in an amount described in subparagraph (B) to the first eligible entity—

''(i) to which the Commission issues an operating license for an advanced nuclear reactor under part 50 of title 10, Code of Federal Regulations (or successor regulations), for which an application has not been approved by the Commission as of the date of enactment of this subsection; or

''(ii) for which the Commission makes a finding described in section 52.103(g) of title 10, Code of Federal Regulations (or successor regulations), with respect to a combined license for an advanced nuclear reactor—

''(I) that is issued under subpart C of part 52 of that title (or successor regulations); and

''(II) for which an application has not been approved by the Commission as of the date of enactment of this subsection.

''(B) AMOUNT OF AWARD.—An award under subparagraph (A) shall be in an amount equal to the total amount assessed by the Commission and collected under section 102(b)(2) from the eligible entity receiving the award for costs relating to the issuance of the license described in that subparagraph, including, as applicable, costs relating to the issuance of an associated construction permit described in section 50.23 of title 10, Code of Federal Regulations (or successor regulations), or early site permit (as defined in section 52.1 of that title (or successor regulations)).

''(C) AWARD CATEGORIES.—An award under subparagraph (A) may be made for—

''(i) the first advanced nuclear reactor for which the Commission—

''(I) issues a license in accordance with clause (i) of subparagraph (A); or

''(II) makes a finding in accordance with clause (ii) of that subparagraph;

''(ii) an advanced nuclear reactor that—

''(I) uses isotopes derived from spent nuclear fuel (as defined in section 2 of the Nuclear Waste Policy Act of 1982 (42 U.S.C. 10101)) or depleted uranium as fuel for the advanced nuclear reactor; and

''(II) is the first advanced nuclear reactor described in subclause (I) for which the Commission—

''(aa) issues a license in accordance with clause (i) of subparagraph (A); or

''(bb) makes a finding in accordance with clause (ii) of that subparagraph;

''(iii) an advanced nuclear reactor that—

''(I) is a nuclear integrated energy system—

''(aa) that is composed of 2 or more co-located or jointly operated subsystems of energy generation, energy storage, or other technologies;

''(bb) in which not fewer than 1 subsystem described in item (aa) is a nuclear energy system; and

''(cc) the purpose of which is—

''(AA) to reduce greenhouse gas emissions in both the power and nonpower sectors; and

''(BB) to maximize energy production and efficiency; and

''(II) is the first advanced nuclear reactor described in subclause (I) for which the Commission—

''(aa) issues a license in accordance with clause (i) of subparagraph (A); or

''(bb) makes a finding in accordance with clause (ii) of that subparagraph;

''(iv) an advanced reactor that—

''(I) operates flexibly to generate electricity or high temperature process heat for nonelectric applications; and

''(II) is the first advanced nuclear reactor described in subclause (I) for which the Commission—

''(aa) issues a license in accordance with clause (i) of subparagraph (A); or

''(bb) makes a finding in accordance with clause (ii) of that subparagraph; and

''(v) the first advanced nuclear reactor for which the Commission grants approval to load nuclear fuel pursuant to the technology-inclusive regulatory framework established under subsection (a)(4).

''(3) FEDERAL FUNDING LIMITATIONS.—

''(A) EXCLUSION OF TVA FUNDS.—In this paragraph, the term 'Federal funds' does not include funds received under the power program of the Tennessee Valley Authority.

''(B) LIMITATION ON AMOUNTS EXPENDED.—An award under this subsection shall not exceed the total amount expended (excluding any expenditures made with Federal funds received for the applicable project and an amount equal to the minimum cost-share required under section 988 of the Energy Policy Act of 2005 (42 U.S.C. 16352)) by the eligible entity receiving the award for licensing costs relating to the project for which the award is made.

''(C) REPAYMENT AND DIVIDENDS NOT REQUIRED.—Notwithstanding section 9104(a)(4) of title 31, United States Code, or any other provision of law, an eligible entity that receives an award under this subsection shall not be required—

''(i) to repay that award or any part of that award; or

''(ii) to pay a dividend, interest, or other similar payment based on the sum of that award.''.

(h) REPORT ON UNIQUE LICENSING CONSIDERATIONS RELATING TO THE USE OF NUCLEAR ENERGY FOR NONELECTRIC APPLICATIONS.—

(1) IN GENERAL.—Not later than 270 days after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress a report (referred to in this subsection as the ''report'') addressing any unique licensing issues or requirements relating to—

(A) the flexible operation of nuclear reactors, such as ramping power output and switching between electricity generation and nonelectric applications;

(B) the use of advanced nuclear reactors exclusively for nonelectric applications; and

(C) the colocation of nuclear reactors with industrial plants or other facilities.

(2) STAKEHOLDER INPUT.—In developing the report, the Commission shall seek input from—

(A) the Secretary of Energy;

(B) the nuclear energy industry;

(C) technology developers;

(D) the industrial, chemical, and medical sectors;

(E) nongovernmental organizations; and

(F) other public stakeholders.

(3) CONTENTS.—

(A) IN GENERAL.—The report shall describe—

(i) any unique licensing issues or requirements relating to the matters described in subparagraphs (A) through (C) of paragraph (1), including, with respect to the nonelectric applications referred to in subparagraphs (A) and (B) of that paragraph, any licensing issues or requirements relating to the use of nuclear energy in—

(I) hydrogen or other liquid and gaseous fuel or chemical production;

(II) water desalination and wastewater treatment;

(III) heat for industrial processes;

(IV) district heating;

(V) energy storage;

(VI) industrial or medical isotope production; and

(VII) other applications, as identified by the Commission;

(ii) options for addressing those issues or requirements—

(I) within the existing regulatory framework of the Commission;

(II) as part of the technology-inclusive regulatory framework required under subsection (a)(4) of section 103 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2133 note; Public Law 115–439) or described in the report required under subsection (e) of that section (Public Law 115–439; 132 Stat. 5575); or

(III) through a new rulemaking; and

(iii) the extent to which Commission action is needed to implement any matter described in the report.

(B) COST ESTIMATES, BUDGETS, AND TIMEFRAMES.—The report shall include cost estimates, proposed budgets, and proposed timeframes for implementing risk-informed and performance-based regulatory guidance in the licensing of nuclear reactors for nonelectric applications.

(i) ENABLING PREPARATIONS FOR THE DEMONSTRATION OF ADVANCED NUCLEAR REACTORS ON DEPARTMENT OF ENERGY SITES OR CRITICAL NATIONAL SECURITY INFRASTRUCTURE SITES.—

(1) IN GENERAL.—Section 102(b)(1)(B) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215(b)(1)(B)) (as amended by subsection (f)(2)) is amended by adding at the end the following:

''(vii) Costs for—

''(I) activities to review and approve or disapprove an application for an early site permit (as defined in section 52.1 of title 10, Code of Federal Regulations (or a successor

regulation)) to demonstrate an advanced nuclear reactor on a Department of Energy site or critical national security infrastructure (as defined in section 327(d) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 132 Stat. 1722)) site; and

''(II) pre-application activities relating to an early site permit (as defined in section 52.1 of title 10, Code of Federal Regulations (or a successor regulation)) to demonstrate an advanced nuclear reactor on a Department of Energy site or critical national security infrastructure (as defined in section 327(d) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 132 Stat. 1722)) site.''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect on October 1, 2024.

(j) CLARIFICATION ON FUSION REGULATION.—Section 103(a)(4) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2133 note; Public Law 115–439) is amended—

(1) by striking ''Not later'' and inserting the following:

''(A) IN GENERAL.—Not later''; and

(2) by adding at the end the following:

''(B) EXCLUSION OF FUSION REACTORS.—For purposes of subparagraph (A), the term 'advanced reactor applicant' does not include an applicant seeking a license for a fusion reactor.''.

(k) REGULATORY ISSUES FOR NUCLEAR FACILITIES AT BROWNFIELD SITES.—

(1) DEFINITIONS.—

(A) BROWNFIELD SITE.—The term ''brownfield site'' has the meaning given the term in section 101 of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601).

(B) PRODUCTION FACILITY.—The term ''production facility'' has the meaning given the term in section 11 of the Atomic Energy Act of 1954 (42 U.S.C. 2014).

(C) RETIRED FOSSIL FUEL SITE.—The term ''retired fossil fuel site'' means the site of 1 or more fossil fuel electric generation facilities that are retired or scheduled to retire, including multi-unit facilities that are partially shut down.

(D) UTILIZATION FACILITY.—The term ''utilization facility'' has the meaning given the term in section 11 of the Atomic Energy Act of 1954 (42 U.S.C. 2014).

(2) IDENTIFICATION OF REGULATORY ISSUES.—

(A) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Commission shall evaluate the extent to which modification of regulations, guidance, or policy is needed to enable timely licensing reviews for, and to support the oversight of, production facilities or utilization facilities at brownfield sites.

(B) REQUIREMENT.—In carrying out subparagraph (A), the Commission shall consider how licensing reviews for production facilities or utilization facilities at brownfield sites may be expedited by considering matters relating to siting and operating a production facility or a utilization facility at or near a retired fossil fuel site to support—

(i) the reuse of existing site infrastructure, including—

(I) electric switchyard components and transmission infrastructure;

(II) heat-sink components;

(III) steam cycle components;

(IV) roads;

(V) railroad access; and

(VI) water availability;

(ii) the use of early site permits;

(iii) the utilization of plant parameter envelopes or similar standardized site parameters on a portion of a larger site; and

(iv) the use of a standardized application for similar sites.

(C) REPORT.—Not later than 14 months after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress a report describing any regulations, guidance, and policies identified under subparagraph (A).

(3) LICENSING.—

(A) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Commission shall—

(i) develop and implement strategies to enable timely licensing reviews for, and to support the oversight of, production facilities or utilization facilities at brownfield sites, including retired fossil fuel sites; or

(ii) initiate a rulemaking to enable timely licensing reviews for, and to support the oversight of, of production facilities or utilization facilities at brownfield sites, including retired fossil fuel sites.

(B) REQUIREMENTS.—In carrying out subparagraph (A), consistent with the mission of the Commission, the Commission shall consider matters relating to—

(i) the use of existing site infrastructure;

(ii) existing emergency preparedness organizations and planning;

(iii) the availability of historical site-specific environmental data;

(iv) previously approved environmental reviews required by the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.);

(v) activities associated with the potential decommissioning of facilities or decontamination and remediation at brownfield sites; and

(vi) community engagement and historical experience with energy production.

(4) REPORT.—Not later than 3 years after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress a report describing the actions taken by the Commission under paragraph (3).

(l) APPALACHIAN REGIONAL COMMISSION NUCLEAR ENERGY DEVELOPMENT.—

(1) IN GENERAL.—Subchapter I of chapter 145 of subtitle IV of title 40, United States Code, is amended by adding at the end the following:

''§ 14512. Appalachian Regional Commission nuclear energy development

''(a) DEFINITIONS.—In this section:

''(1) BROWNFIELD SITE.—The term 'brownfield site' has the meaning given the term in section 101 of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601).

''(2) PRODUCTION FACILITY.—The term 'production facility' has the meaning given the term in section 11 of the Atomic Energy Act of 1954 (42 U.S.C. 2014).

''(3) RETIRED FOSSIL FUEL SITE.—The term 'retired fossil fuel site' means the site of 1 or more fossil fuel electric generation facilities that are retired or scheduled to retire, including multi-unit facilities that are partially shut down.

''(4) UTILIZATION FACILITY.—The term 'utilization facility' has the meaning given the term in section 11 of the Atomic Energy Act of 1954 (42 U.S.C. 2014).

''(b) AUTHORITY.—The Appalachian Regional Commission may provide technical assistance to, make grants to, enter into contracts with, or otherwise provide amounts to individuals or entities in the Appalachian region for projects and activities—

''(1) to conduct research and analysis regarding the economic impact of siting, constructing, and operating a production facility or a utilization facility at a brownfield site, including a retired fossil fuel site;

''(2) to assist with workforce training or retraining to perform activities relating to the siting and operation of a production facility or a utilization facility at a brownfield site, including a retired fossil fuel site; and

''(3) to engage with the Nuclear Regulatory Commission, the Department of Energy, and other Federal agencies with expertise in civil nuclear energy.

''(c) LIMITATION ON AVAILABLE AMOUNTS.—Of the cost of any project or activity eligible for a grant under this section—

''(1) except as provided in paragraphs (2) and (3), not more than 50 percent may be provided from amounts made available to carry out this section;

''(2) in the case of a project or activity to be carried out in a county for which a distressed county designation is in effect under section 14526, not more than 80 percent may be provided from amounts made available to carry out this section; and

''(3) in the case of a project or activity to be carried out in a county for which an at-risk county designation is in effect under section 14526, not more than 70 percent may be provided from amounts made available to carry out this section.

''(d) SOURCES OF ASSISTANCE.—Subject to subsection (c), a grant provided under this section may be provided from amounts made available to carry out this section, in combination with amounts made available—

''(1) under any other Federal program; or

''(2) from any other source.

''(e) FEDERAL SHARE.—Notwithstanding any provision of law limiting the Federal share under any other Federal program, amounts made available to carry out this section may be used to increase that Federal share, as the Appalachian Regional Commission determines to be appropriate.''.

(2) AUTHORIZATION OF APPROPRIATIONS.—Section 14703 of title 40, United States Code, is amended—

(A) by redesignating subsections (e) and (f) as subsections (f) and (g), respectively; and

(B) by inserting after subsection (d) the following:

''(e) APPALACHIAN REGIONAL COMMISSION NUCLEAR ENERGY DEVELOPMENT.—Of the amounts made available under subsection (a), $5,000,000 may be used to carry out section 14512 for each of fiscal years 2023 through 2026.''.

(3) CLERICAL AMENDMENT.—The analysis for subchapter I of chapter 145 of subtitle IV of title 40, United States Code, is amended by striking the item relating to section 14511 and inserting the following:

''14511. Appalachian regional energy hub initiative.
''14512. Appalachian Regional Commission nuclear energy development.''.

(m) FOREIGN OWNERSHIP.—

(1) IN GENERAL.—The prohibitions against issuing certain licenses for utilization facilities to certain corporations and other entities described in the second sentence of section 103 d. of the Atomic Energy Act of 1954 (42 U.S.C. 2133(d)) and the second sentence of section 104 d. of that Act (42 U.S.C. 2134(d)) shall not apply to an entity described in paragraph (2) if the Commission determines that issuance of the applicable license to that entity is not inimical to—

(A) the common defense and security; or

(B) the health and safety of the public.

(2) ENTITIES DESCRIBED.—

(A) IN GENERAL.—An entity referred to in paragraph (1) is a corporation or other entity that is owned, controlled, or dominated by—

(i) the government of—

(I) a country that is a member of the Organisation for Economic Co-operation and Development on the date of enactment of this Act, subject to subparagraph (B); or

(II) the Republic of India;

(ii) a corporation that is incorporated in a country described in subclause (I) or (II) of clause (i); or

(iii) an alien who is a national of a country described in subclause (I) or (II) of clause (i).

(B) EXCLUSION.—An entity described in subparagraph (A)(i)(I) is not an entity referred to in paragraph (1), and paragraph (1) shall not apply to that entity, if, on the date of enactment of this Act—

(i) the entity (or any department, agency, or instrumentality of the entity) is a person subject to sanctions under section 231 of the Countering America's Adversaries Through Sanctions Act (22 U.S.C. 9525); or

(ii) any citizen of the entity, or any entity organized under the laws of, or otherwise subject to the jurisdiction of, the entity, is a person subject to sanctions under that section.

(3) TECHNICAL AMENDMENT.—Section 103 d. of the Atomic Energy Act of 1954 (42 U.S.C. 2133(d)) is amended, in the second sentence, by striking ''any any'' and inserting ''any''.

(4) SAVINGS CLAUSE.—Nothing in this subsection affects the requirements of section 721 of the Defense Production Act of 1950 (50 U.S.C. 4565).

(n) EXTENSION OF THE PRICE-ANDERSON ACT.—

(1) EXTENSION.—Section 170 of the Atomic Energy Act of 1954 (42 U.S.C. 2210) (commonly known as the ''Price-Anderson Act'') is amended by striking ''December 31, 2025'' each place it appears and inserting ''December 31, 2045''.

(2) LIABILITY.—Section 170 of the Atomic Energy Act of 1954 (42 U.S.C. 2210) (commonly known as the ''Price-Anderson Act'') is amended—

(A) in subsection d. (5), by striking ''$500,000,000'' and inserting ''$2,000,000,000''; and

(B) in subsection e. (4), by striking ''$500,000,000'' and inserting ''$2,000,000,000''.

(3) REPORT.—Section 170 p. of the Atomic Energy Act of 1954 (42 U.S.C. 2210(p)) (commonly known as the ''Price-Anderson Act'') is amended by striking ''December 31, 2021'' and inserting ''December 31, 2041''.

(4) DEFINITION OF NUCLEAR INCIDENT.—Section 11 q. of the Atomic Energy Act of 1954 (42 U.S.C. 2014(q)) is amended, in the second proviso, by striking ''if such occurrence'' and all that follows through ''United States:'' and inserting a colon.

(o) REPORT ON ADVANCED METHODS OF MANUFACTURING AND CONSTRUCTION FOR NUCLEAR ENERGY APPLICATIONS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress a report (referred to in this subsection as the ''report'') on manufacturing and construction for nuclear energy applications.

(2) STAKEHOLDER INPUT.—In developing the report, the Commission shall seek input from—

(A) the Secretary of Energy;

(B) the nuclear energy industry;

(C) National Laboratories;

(D) institutions of higher education;

(E) nuclear and manufacturing technology developers;

(F) the manufacturing and construction industries, including manufacturing and construction companies with operating facilities in the United States;

(G) standards development organizations;

(H) labor unions;

(I) nongovernmental organizations; and

(J) other public stakeholders.

(3) CONTENTS.—

(A) IN GENERAL.—The report shall—

(i) examine any unique licensing issues or requirements relating to the use of innovative—

(I) advanced manufacturing processes;

(II) advanced construction techniques; and

(III) rapid improvement or iterative innovation processes;

(ii) examine—

(I) the requirements for nuclear-grade components in manufacturing and construction for nuclear energy applications;

(II) opportunities to use standard materials, parts, or components in manufacturing and construction for nuclear energy applications;

(III) opportunities to use standard materials that are in compliance with existing codes to provide acceptable approaches to support or encapsulate new materials that do not yet have applicable codes; and

(IV) requirements relating to the transport of a fueled advanced nuclear reactor core from a manufacturing licensee to a licensee that holds a license to construct and operate a facility at a particular site;

(iii) identify any safety aspects of innovative advanced manufacturing processes and advanced construction techniques that are not addressed by existing codes and standards, so that generic guidance may be updated or created, as necessary;

(iv) identify options for addressing the issues, requirements, and opportunities examined under clauses (i) and (ii)—

(I) within the existing regulatory framework; or

(II) through a new rulemaking;

(v) identify how addressing the issues, requirements, and opportunities examined under clauses (i) and (ii) will impact opportunities for domestic nuclear manufacturing and construction developers; and

(vi) describe the extent to which Commission action is needed to implement any matter described in the report.

(B) COST ESTIMATES, BUDGETS, AND TIMEFRAMES.—The report shall include cost estimates, proposed budgets, and proposed timeframes for implementing risk-informed and performance-based regulatory guidance for manufacturing and construction for nuclear energy applications.

(p) NUCLEAR ENERGY TRAINEESHIP.—Section 313 of division C of the Omnibus Appropriations Act, 2009 (42 U.S.C. 16274a), is amended—

(1) in subsection (a), by striking ''Nuclear Regulatory'';

(2) in subsection (b)(1), in the matter preceding subparagraph (A), by inserting ''and subsection (c)'' after ''paragraph (2)'';

(3) in subsection (c)—

(A) by redesignating paragraph (2) as paragraph (5); and

(B) by striking paragraph (1) and inserting the following:

''(1) ADVANCED NUCLEAR REACTOR.—The term 'advanced nuclear reactor' has the meaning given the term in section 951(b) of the Energy Policy Act of 2005 (42 U.S.C. 16271(b)).

''(2) COMMISSION.—The term 'Commission' means the Nuclear Regulatory Commission.

''(3) INSTITUTION OF HIGHER EDUCATION.—The term 'institution of higher education' has the meaning given the term in section 2 of the Energy Policy Act of 2005 (42 U.S.C. 15801).

''(4) NATIONAL LABORATORY.—The term 'National Laboratory' has the meaning given the term in section 951(b) of the Energy Policy Act of 2005 (42 U.S.C. 16271(b)).'';

(4) in subsection (d)(2), by striking ''Nuclear Regulatory'';

(5) by redesignating subsections (c) and (d) as subsections (d) and (e), respectively; and

(6) by inserting after subsection (b) the following:

''(c) NUCLEAR ENERGY TRAINEESHIP SUBPROGRAM.—

''(1) IN GENERAL.—The Commission shall establish, as a subprogram of the Program, a nuclear energy traineeship subprogram under which the Commission, in coordination with institutions of higher education and trade schools, shall competitively award traineeships that provide focused training to meet critical mission needs of the Commission and nuclear workforce needs, including needs relating to the nuclear tradecraft workforce.

''(2) REQUIREMENTS.—In carrying out the nuclear energy traineeship subprogram described in paragraph (1), the Commission shall—

''(A) coordinate with the Secretary of Energy to prioritize the funding of traineeships that focus on—

''(i) nuclear workforce needs; and

''(ii) critical mission needs of the Commission;

''(B) encourage appropriate partnerships among—

''(i) National Laboratories;

''(ii) institutions of higher education;

''(iii) trade schools;

''(iv) the nuclear energy industry; and

''(v) other entities, as the Commission determines to be appropriate; and

''(C) on an annual basis, evaluate nuclear workforce needs for the purpose of implementing traineeships in focused topical areas that—

''(i) address the workforce needs of the nuclear energy community; and

''(ii) support critical mission needs of the Commission.''.

(q) REPORT ON COMMISSION READINESS AND CAPACITY TO LICENSE ADDITIONAL CONVERSION AND ENRICHMENT CAPACITY TO REDUCE RELIANCE ON URANIUM FROM RUSSIA.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress, the Committee on Foreign Relations of the Senate, the Committee on Energy and Natural Resources of the Senate, and the Committee on Foreign Affairs of the House of Representatives a report on the readiness and capacity of the Commission to license additional conversion and enrichment capacity at existing and new fuel cycle facilities to reduce reliance on nuclear fuel that is recovered, converted, enriched, or fabricated by an entity that—

(A) is owned or controlled by the Government of the Russian Federation; or

(B) is organized under the laws of, or otherwise subject to the jurisdiction of, the Russian Federation.

(2) CONTENTS.—The report required under paragraph (1) shall analyze how the capacity of the Commission to license additional conversion and enrichment capacity at existing and new fuel cycle facilities may conflict with or restrict the readiness of the Commission to review advanced nuclear reactor applications.

(r) ANNUAL REPORT ON THE SPENT NUCLEAR FUEL AND HIGH-LEVEL RADIOACTIVE WASTE INVENTORY IN THE UNITED STATES.—

(1) DEFINITIONS.—In this subsection:

(A) HIGH-LEVEL RADIOACTIVE WASTE.—The term ''high-level radioactive waste'' has the meaning given the term in section 2 of the Nuclear Waste Policy Act of 1982 (42 U.S.C. 10101).

(B) SPENT NUCLEAR FUEL.—The term ''spent nuclear fuel'' has the meaning given the term in section 2 of the Nuclear Waste Policy Act of 1982 (42 U.S.C. 10101).

(C) STANDARD CONTRACT.—The term ''standard contract'' has the meaning given the term ''contract'' in section 961.3 of title 10, Code of Federal Regulations (or a successor regulation).

(2) REPORT.—Not later than January 1, 2025, and annually thereafter, the Secretary of Energy shall submit to Congress a report that describes—

(A) the annual and cumulative amount of payments made by the United States to the holder of a standard contract due to a partial breach of contract under the Nuclear Waste Policy Act of 1982 (42 U.S.C. 10101 et seq.) resulting in financial damages to the holder;

(B) the cumulative amount spent by the Department of Energy since fiscal year 2008 to reduce future payments projected to be made by the United States to any holder of a standard contract due to a partial breach of contract under the Nuclear Waste Policy Act of 1982 (42 U.S.C. 10101 et seq.);

(C) the cumulative amount spent by the Department of Energy to store, manage, and dispose of spent nuclear fuel and high-level radioactive waste in the United States as of the date of the report;

(D) the projected lifecycle costs to store, manage, transport, and dispose of the projected inventory of spent nuclear fuel and high-level radioactive waste in the United States, including spent nuclear fuel and high-level radioactive waste expected to be generated from existing reactors through 2050;

(E) any mechanisms for better accounting of liabilities for the lifecycle costs of the spent nuclear fuel and high-level radioactive waste inventory in the United States;

(F) any recommendations for improving the methods used by the Department of Energy for the accounting of spent nuclear fuel and high-level radioactive waste costs and liabilities;

(G) any actions taken in the previous fiscal year by the Department of Energy with respect to interim storage; and

(H) any activities taken in the previous fiscal year by the Department of Energy to develop and deploy nuclear technologies and fuels that enhance the safe transportation or storage of spent nuclear fuel or high-level radioactive waste, including technologies to protect against seismic, flooding, and other extreme weather events.

(s) AUTHORIZATION OF APPROPRIATIONS FOR SUPERFUND ACTIONS AT ABANDONED MINING SITES ON TRIBAL LAND.—

(1) DEFINITIONS.—In this subsection:

(A) ELIGIBLE NON-NPL SITE.—The term ''eligible non-NPL site'' means a site—

(i) that is not on the National Priorities List; but

(ii) with respect to which the Administrator determines that—

(I) the site would be eligible for listing on the National Priorities List based on the presence of hazards from contamination at the site, applying the hazard ranking system described in section 105(c) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9605(c)); and

(II) for removal site evaluations, engineering evaluations/cost analyses, remedial planning activities, remedial investigations and feasibility studies, and other actions taken pursuant to section 104(b) of that Act (42 U.S.C. 9604), the site—

(aa) has undergone a pre-CERCLA screening; and

(bb) is included in the Superfund Enterprise Management System.

(B) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(C) NATIONAL PRIORITIES LIST.—The term ''National Priorities List'' means the National Priorities List developed by the President in accordance with section 105(a)(8)(B) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9605(a)(8)(B)).

(D) REMEDIAL ACTION; REMOVAL; RESPONSE.—The terms ''remedial action'', ''removal'', and ''response'' have the meanings given those terms in section 101 of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601).

(E) TRIBAL LAND.—The term ''Tribal land'' has the meaning given the term ''Indian country'' in section 1151 of title 18, United States Code.

(2) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated for each of fiscal years 2023 through 2032, to remain available until expended—

(A) $97,000,000 to the Administrator to carry out this subsection (except for paragraph (4)); and

(B) $3,000,000 to the Administrator of the Agency for Toxic Substances and Disease Registry to carry out paragraph (4).

(3) USES OF AMOUNTS.—Amounts appropriated under paragraph (2)(A) shall be used by the Administrator—

(A) to carry out removal actions on abandoned mine land located on Tribal land;

(B) to carry out response actions, including removal and remedial planning activities, removal and remedial studies, remedial actions, and other actions taken pursuant to section 104(b) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9604(b)) on abandoned mine land located on Tribal land at—

(i) eligible non-NPL sites; and

(ii) sites listed on the National Priorities List; and

(C) to make grants under paragraph (5).

(4) HEALTH ASSESSMENTS.—Subject to the availability of appropriations, the Agency for Toxic Substances and Disease Registry, in coordination with Tribal health authorities, shall perform 1 or more health assessments at each eligible non-NPL site that is located on Tribal land, in accordance with section 104(i)(6) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9604(i)(6)).

(5) TRIBAL GRANTS.—

(A) IN GENERAL.—The Administrator may use amounts appropriated under paragraph (2)(A) to make grants to eligible entities described in subparagraph (B) for the purposes described in subparagraph (C).

(B) ELIGIBLE ENTITIES DESCRIBED.—An eligible entity referred to in subparagraph (A) is—

(i) the governing body of an Indian Tribe; or

(ii) a legally established organization of Indians that—

(I) is controlled, sanctioned, or chartered by the governing bodies of 2 or more Indian Tribes to be served, or that is democratically elected by the adult members of the Indian community to be served, by that organization; and

(II) includes the maximum participation of Indians in all phases of the activities of that organization.

(C) USE OF GRANT FUNDS.—A grant under this paragraph shall be used—

(i) in accordance with the second sentence of section 117(e)(1) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9617(e)(1));

(ii) for obtaining technical assistance in carrying out response actions under clause (iii); or

(iii) for carrying out response actions, if the Administrator determines that the Indian Tribe has the capability to carry out any or all of those response actions in accordance with the criteria and priorities established pursuant to section 105(a)(8) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9605(a)(8)).

(D) APPLICATIONS.—An eligible entity desiring a grant under this paragraph shall submit to the Administrator an application at such time, in such manner, and containing such information as the Administrator may require.

(E) LIMITATIONS.—A grant under this paragraph shall be governed by the rules, procedures, and limitations described in section 117(e)(2) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9617(e)(2)), except that—

(i) ''Administrator of the Environmental Protection Agency'' shall be substituted for ''President'' each place it appears in that section; and

(ii) in the first sentence of that section, ''under subsection (s) of the ADVANCE Act of 2023'' shall be substituted for ''under this subsection''.

(6) STATUTE OF LIMITATIONS.—If a remedial action described in paragraph (3)(B) is scheduled at an eligible non-NPL site, no action may be commenced for damages (as defined in section 101 of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601)) with respect to that eligible non-NPL site unless the action is commenced within the timeframe provided for such actions with respect to facilities on the National Priorities List in the first sentence of the matter following subparagraph (B) of section 113(g)(1) of that Act (42 U.S.C. 9613(g)(1)).

(7) COORDINATION.—The Administrator shall coordinate with the Indian Tribe on whose land the applicable site is located in—

(A) selecting and prioritizing sites for response actions under subparagraphs (A) and (B) of paragraph (3); and

(B) carrying out those response actions.

(t) DEVELOPMENT, QUALIFICATION, AND LICENSING OF ADVANCED NUCLEAR FUEL CONCEPTS.—

(1) IN GENERAL.—The Commission shall establish an initiative to enhance preparedness and coordination with respect to the qualification and licensing of advanced nuclear fuel.

(2) AGENCY COORDINATION.—Not later than 180 days after the date of enactment of this Act, the Commission and the Secretary of Energy shall enter into a memorandum of understanding—

(A) to share technical expertise and knowledge through—

(i) enabling the testing and demonstration of accident tolerant fuels for existing commercial nuclear reactors and advanced nuclear reactor fuel concepts to be proposed and funded, in whole or in part, by the private sector;

(ii) operating a database to store and share data and knowledge relevant to nuclear science and engineering between Federal agencies and the private sector;

(iii) leveraging expertise with respect to safety analysis and research relating to advanced nuclear fuel; and

(iv) enabling technical staff to actively observe and learn about technologies, with an emphasis on identification of additional information needed with respect to advanced nuclear fuel; and

(B) to ensure that—

(i) the Department of Energy has sufficient technical expertise to support the timely research, development, demonstration, and commercial application of advanced nuclear fuel;

(ii) the Commission has sufficient technical expertise to support the evaluation of applications for licenses, permits, and design certifications and other requests for regulatory approval for advanced nuclear fuel;

(iii)(I) the Department of Energy maintains and develops the facilities necessary to enable the timely research, development, demonstration, and commercial application

by the civilian nuclear industry of advanced nuclear fuel; and

(II) the Commission has access to the facilities described in subclause (I), as needed; and

(iv) the Commission consults, as appropriate, with the modeling and simulation experts at the Office of Nuclear Energy of the Department of Energy, at the National Laboratories, and within industry fuel vendor teams in cooperative agreements with the Department of Energy to leverage physics-based computer modeling and simulation capabilities.

(3) REPORT.—

(A) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress a report describing the efforts of the Commission under paragraph (1), including—

(i) an assessment of the preparedness of the Commission to review and qualify for use—

(I) accident tolerant fuel;

(II) ceramic cladding materials;

(III) fuels containing silicon carbide;

(IV) high-assay, low-enriched uranium fuels;

(V) molten-salt based liquid fuels;

(VI) fuels derived from spent nuclear fuel or depleted uranium; and

(VII) other related fuel concepts, as determined by the Commission;

(ii) activities planned or undertaken under the memorandum of understanding described in paragraph (2);

(iii) an accounting of the areas of research needed with respect to advanced nuclear fuel; and

(iv) any other challenges or considerations identified by the Commission.

(B) CONSULTATION.—In developing the report under subparagraph (A), the Commission shall seek input from—

(i) the Secretary of Energy;

(ii) National Laboratories;

(iii) the nuclear energy industry;

(iv) technology developers;

(v) nongovernmental organizations; and

(vi) other public stakeholders.

(u) COMMISSION WORKFORCE.—

(1) DEFINITION OF CHAIRMAN.—In this subsection, the term ''Chairman'' means the Chairman of the Commission.

(2) HIRING BONUS AND APPOINTMENT AUTHORITY.—

(A) IN GENERAL.—Notwithstanding section 161 d. of the Atomic Energy Act of 1954 (42 U.S.C. 2201(d)), any provision of Reorganization Plan No. 1 of 1980 (94 Stat. 3585; 5 U.S.C. app.), and any provision of title 5, United States Code, governing appointments and General Schedule classification and pay rates, the Chairman may, subject to the limitations described in subparagraph (C), and without regard to the civil service laws—

(i) establish the positions described in subparagraph (B); and

(ii) appoint persons to the positions established under clause (i).

(B) POSITIONS DESCRIBED.—The positions referred to in subparagraph (A)(i) are—

(i) permanent or term-limited positions with highly specialized scientific, engineering, and technical competencies to address a critical licensing or regulatory oversight need for the Commission, including—

(I) health physicist;

(II) reactor operations engineer;

(III) human factors analyst or engineer;

(IV) risk and reliability analyst or engineer;

(V) licensing project manager;

(VI) reactor engineer for severe accidents;

(VII) geotechnical engineer;

(VIII) structural engineer;

(IX) reactor systems engineer;

(X) reactor engineer;

(XI) radiation scientist;

(XII) seismic engineer; and

(XIII) electronics engineer; or

(ii) permanent or term-limited positions to be filled by exceptionally well-qualified individuals that the Chairman, subject to paragraph (5), determines are necessary to fulfill the mission of the Commission.

(C) LIMITATIONS.—

(i) IN GENERAL.—Appointments under subparagraph (A)(ii) may be made to not more than—

(I)(aa) 15 permanent positions described in subparagraph (B)(i) during fiscal year 2024; and

(bb) 10 permanent positions described in subparagraph (B)(i) during each fiscal year thereafter;

(II)(aa) 15 term-limited positions described in subparagraph (B)(i) during fiscal year 2024; and

(bb) 10 term-limited positions described in subparagraph (B)(i) during each fiscal year thereafter;

(III)(aa) 15 permanent positions described in subparagraph (B)(ii) during fiscal year 2024; and

(bb) 10 permanent positions described in subparagraph (B)(ii) during each fiscal year thereafter; and

(IV)(aa) 15 term-limited positions described in subparagraph (B)(ii) during fiscal year 2024; and

(bb) 10 term-limited positions described in subparagraph (B)(ii) during each fiscal year thereafter.

(ii) TERM OF TERM-LIMITED APPOINTMENT.—If a person is appointed to a term-limited position described in clause (i) or (ii) of subparagraph (B), the term of that appointment shall not exceed 4 years.

(iii) STAFF POSITIONS.—Subject to paragraph (5), appointments made to positions established under this paragraph shall be to a range of staff positions that are of entry, mid, and senior levels, to the extent practicable.

(D) HIRING BONUS.—The Commission may pay a person appointed under subparagraph (A) a 1-time hiring bonus in an amount not to exceed the least of—

(i) $25,000;

(ii) the amount equal to 15 percent of the annual rate of basic pay of the employee; and

(iii) the amount of the limitation that is applicable for a calendar year under section 5307(a)(1) of title 5, United States Code.

(3) COMPENSATION AND APPOINTMENT AUTHORITY.—

(A) IN GENERAL.—Notwithstanding section 161 d. of the Atomic Energy Act of 1954 (42 U.S.C. 2201(d)), any provision of Reorganization Plan No. 1 of 1980 (94 Stat. 3585; 5 U.S.C. app.), and chapter 51, and subchapter III of chapter 53, of title 5, United States Code, the Chairman, subject to the limitations described in subparagraph (C) and without regard to the civil service laws, may—

(i) establish and fix the rates of basic pay for the positions described in subparagraph (B); and

(ii) appoint persons to the positions established under clause (i).

(B) POSITIONS DESCRIBED.—The positions referred to in subparagraph (A)(i) are—

(i) positions with highly specialized scientific, engineering, and technical competencies to address a critical need for the Commission, including—

(I) health physicist;

(II) reactor operations engineer;

(III) human factors analyst or engineer;

(IV) risk and reliability analyst or engineer;

(V) licensing project manager;

(VI) reactor engineer for severe accidents;

(VII) geotechnical engineer;

(VIII) structural engineer;

(IX) reactor systems engineer;

(X) reactor engineer;

(XI) radiation scientist;

(XII) seismic engineer; and

(XIII) electronics engineer; or

(ii) positions to be filled by exceptionally well-qualified persons that the Chairman, subject to paragraph (5), determines are necessary to fulfill the mission of the Commission.

(C) LIMITATIONS.—

(i) IN GENERAL.—The annual rate of basic pay for a position described in subparagraph (B) may not exceed the per annum rate of salary payable for level III of the Executive Schedule under section 5314 of title 5, United States Code.

(ii) NUMBER OF POSITIONS.—Appointments under subparagraph (A)(ii) may be made to not more than—

(I) 10 positions described in subparagraph (B)(i) per fiscal year, not to exceed a total of 50 positions; and

(II) 10 positions described in subparagraph (B)(ii) per fiscal year, not to exceed a total of 50 positions.

(D) PERFORMANCE BONUS.—

(i) IN GENERAL.—Subject to clauses (ii) and (iii), an employee may be paid a 1-time performance bonus in an amount not to exceed the least of—

(I) $25,000;

(II) the amount equal to 15 percent of the annual rate of basic pay of the person; and

(III) the amount of the limitation that is applicable for a calendar year under section 5307(a)(1) of title 5, United States Code.

(ii) PERFORMANCE.—Any 1-time performance bonus under clause (i) shall be made to a person who demonstrated exceptional performance in the applicable fiscal year, including—

(I) leading a project team in a timely, efficient, and predictable licensing review to enable the safe use of nuclear technology;

(II) making significant contributions to a timely, efficient, and predictable licensing review to enable the safe use of nuclear technology;

(III) the resolution of novel or first-of-a-kind regulatory issues;

(IV) developing or implementing licensing or regulatory oversight processes to improve the effectiveness of the Commission; and

(V) other performance, as determined by the Chairman, subject to paragraph (5).

(iii) LIMITATIONS.—The Commission may pay a 1-time performance bonus under clause (i) for not more than 15 persons per fiscal year, and a person who receives a 1-time performance bonus under that clause may not receive another 1-time performance bonus under that clause for a period of 5 years thereafter.

(4) ANNUAL SOLICITATION FOR NUCLEAR REGULATOR APPRENTICESHIP NETWORK APPLICATIONS.—The Chairman, on an annual basis, shall solicit applications for the Nuclear Regulator Apprenticeship Network.

(5) APPLICATION OF MERIT SYSTEM PRINCIPLES.—To the maximum extent practicable, appointments under paragraphs (2)(A) and (3)(A) and any 1-time performance bonus under paragraph (3)(D) shall be made in accordance with the merit system principles set forth in section 2301 of title 5, United States Code.

(6) DELEGATION.—Pursuant to Reorganization Plan No. 1 of 1980 (94 Stat. 3585; 5 U.S.C. app.), the Chairman shall delegate, subject to the direction and supervision of the Chairman, the authority provided by paragraphs (2), (3), and (4) to the Executive Director for Operations of the Commission.

(7) ANNUAL REPORT.—The Commission shall include in the annual budget justification of the Commission—

(A) information that describes—

(i) the total number of and the positions of the persons appointed under the authority provided by paragraph (2);

(ii) the total number of and the positions of the persons paid at the rate determined under the authority provided by paragraph (3)(A);

(iii) the total number of and the positions of the persons paid a 1-time performance bonus under the authority provided by paragraph (3)(D);

(iv) how the authority provided by paragraphs (2) and (3) is being used, and has been used during the previous fiscal year, to address the hiring and retention needs of the Commission with respect to the positions described in those subsections to which that authority is applicable;

(v) if the authority provided by paragraphs (2) and (3) is not being used, or has not been used, the reasons, including a justification, for not using that authority; and

(vi) the attrition levels with respect to the term-limited appointments made under paragraph (2), including, with respect to persons leaving a position before completion of the applicable term of service, the average length of service as a percentage of the term of service;

(B) an assessment of—

(i) the current critical workforce needs of the Commission, including any critical workforce needs that the Commission anticipates in the subsequent 5 fiscal years; and

(ii) further skillsets that are or will be needed for the Commission to fulfill the licensing and oversight responsibilities of the Commission; and

(C) the plans of the Commission to assess, develop, and implement updated staff performance standards, training procedures, and schedules.

(8) REPORT ON ATTRITION AND EFFECTIVENESS.—Not later than September 30, 2032, the Commission shall submit to the Committees on Appropriations and Environment and Public Works of the Senate and the Committees on Appropriations and Energy and Commerce of the House of Representatives a report that—

(A) describes the attrition levels with respect to the term-limited appointments made under paragraph (2), including, with respect to persons leaving a position before completion of the applicable term of service, the average length of service as a percentage of the term of service;

(B) provides the views of the Commission on the effectiveness of the authorities provided by paragraphs (2) and (3) in helping the Commission fulfill the mission of the Commission; and

(C) makes recommendations with respect to whether the authorities provided by paragraphs (2) and (3) should be continued, modified, or discontinued.

(v) COMMISSION CORPORATE SUPPORT FUNDING.—

(1) REPORT.—Not later than 3 years after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress and make publicly available a report that describes—

(A) the progress on the implementation of section 102(a)(3) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215(a)(3)); and

(B) whether the Commission is meeting and is expected to meet the total budget authority caps required for corporate support under that section.

(2) LIMITATION ON CORPORATE SUPPORT COSTS.—Section 102(a)(3) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215(a)(3)) is amended by striking subparagraphs (B) and (C) and inserting the following:

''(B) 30 percent for fiscal year 2024 and each fiscal year thereafter.''.

(3) CORPORATE SUPPORT COSTS CLARIFICATION.—Paragraph (9) of section 3 of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215 note; Public Law 115–439) (as redesignated by subsection (f)(1)(A)) is amended—

(A) by striking ''The term'' and inserting the following:

''(A) IN GENERAL.—The term''; and

(B) by adding at the end the following:

''(B) EXCLUSIONS.—The term 'corporate support costs' does not include—

''(i) costs for rent and utilities relating to any and all space in the Three White Flint North building that is not occupied by the Commission; or

''(ii) costs for salaries, travel, and other support for the Office of the Commission.''.

(w) PERFORMANCE AND REPORTING UPDATE.—Section 102(c) of the Nuclear Energy Innovation and Modernization Act (42 U.S.C. 2215(c)) is amended—

(1) in paragraph (3)—

(A) in the paragraph heading, by striking ''180'' and inserting ''90''; and

(B) by striking ''180'' and inserting ''90''; and

(2) by adding at the end the following:

''(4) PERIODIC UPDATES TO METRICS AND SCHEDULES.—

''(A) REVIEW AND ASSESSMENT.—Not less frequently than once every 3 years, the Commission shall review and assess, based on the licensing and regulatory activities of the Commission, the performance metrics and milestone schedules established under paragraph (1).

''(B) REVISIONS.—After each review and assessment under subparagraph (A), the Commission shall revise and improve, as appropriate, the performance metrics and milestone schedules described in that subparagraph to provide the most efficient metrics and schedules reasonably achievable.''.

(x) NUCLEAR CLOSURE COMMUNITIES.—

(1) DEFINITIONS.—In this subsection:

(A) COMMUNITY ADVISORY BOARD.—The term ''community advisory board'' means a community committee or other advisory organization that aims to foster communication and information exchange between a licensee planning for and involved in decommissioning activities and members of the community that decommissioning activities may affect.

(B) DECOMMISSION.—The term ''decommission'' has the meaning given the term in section 50.2 of title 10, Code of Federal Regulations (or successor regulations).

(C) ELIGIBLE RECIPIENT.—The term ''eligible recipient'' has the meaning given the term in section 3 of the Public Works and Economic Development Act of 1965 (42 U.S.C. 3122).

(D) LICENSEE.—The term ''licensee'' has the meaning given the term in section 50.2 of title 10, Code of Federal Regulations (or successor regulations).

(E) NUCLEAR CLOSURE COMMUNITY.—The term ''nuclear closure community'' means a unit of local government, including a county, city, town, village, school district, or special district, that has been impacted, or reasonably demonstrates to the satisfaction of the Secretary that it will be impacted, by a nuclear power plant licensed by the Commission that—

(i) is not co-located with an operating nuclear power plant;

(ii) is at a site with spent nuclear fuel; and

(iii) as of the date of enactment of this Act—

(I) has ceased operations; or

(II) has provided a written notification to the Commission that it will cease operations.

(F) SECRETARY.—The term ''Secretary'' means the Secretary of Commerce, acting through the Assistant Secretary of Commerce for Economic Development.

(2) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall establish a grant program to provide grants to eligible recipients—

(A) to assist with economic development in nuclear closure communities; and

(B) to fund community advisory boards in nuclear closure communities.

(3) REQUIREMENT.—In carrying out this subsection, to the maximum extent practicable, the Secretary shall implement the recommendations described in the report submitted to Congress under section 108 of the Nuclear Energy Innovation and Modernization Act (Public Law 115–439; 132 Stat. 5577) entitled ''Best Practices for Establishment and Operation of Local Community Advisory Boards Associated with Decommissioning Activities at Nuclear Power Plants''.

(4) DISTRIBUTION OF FUNDS.—The Secretary shall establish a formula to ensure, to the maximum extent practicable, geographic diversity among grant recipients under this subsection.

(5) AUTHORIZATION OF APPROPRIATIONS.—

(A) IN GENERAL.—There are authorized to be appropriated to the Secretary—

(i) to carry out paragraph (2)(A), $35,000,000 for each of fiscal years 2023 through 2028; and

(ii) to carry out paragraph (2)(B), $5,000,000 for each of fiscal years 2023 through 2025.

(B) AVAILABILITY.—Amounts made available under this subsection shall remain available for a period of 5 years beginning on the date on which the amounts are made available.

(C) NO OFFSET.—None of the funds made available under this subsection may be used to offset the funding for any other Federal program.

(y) TECHNICAL CORRECTION.—Section 104 c. of the Atomic Energy Act of 1954 (42 U.S.C. 2134(c)) is amended—

(1) by striking the third sentence and inserting the following:

''(3) LIMITATION ON UTILIZATION FACILITIES.—The Commission may issue a license under this section for a utilization facility useful in the conduct of research and development activities of the types specified in section 31 if—

''(A) not more than 75 percent of the annual costs to the licensee of owning and operating the facility are devoted to the sale, other than for research and development or education and training, of—

''(i) nonenergy services;

''(ii) energy; or

''(iii) a combination of nonenergy services and energy; and

''(B) not more than 50 percent of the annual costs to the licensee of owning and operating the facility are devoted to the sale of energy.'';

(2) in the second sentence, by striking ''The Commission'' and inserting the following:

''(2) REGULATION.—The Commission''; and

(3) by striking ''c. The Commission'' and inserting the following:

''c. RESEARCH AND DEVELOPMENT ACTIVITIES.—

''(1) IN GENERAL.—Subject to paragraphs (2) and (3), the Commission''.

(z) REPORT ON ENGAGEMENT WITH THE GOVERNMENT OF CANADA WITH RESPECT TO NUCLEAR WASTE ISSUES IN THE GREAT LAKES BASIN.—Not later than 1 year after the date of enactment of this Act, the Commission shall submit to the appropriate committees of Congress, the Committee on Foreign Relations of the Senate, the Committee on Energy and Natural Resources of the Senate,

and the Committee on Foreign Affairs of the House of Representatives a report describing any engagement between the Commission and the Government of Canada with respect to nuclear waste issues in the Great Lakes Basin.

(aa) SAVINGS CLAUSE.—Nothing in this section affects authorities of the Department of State.

SA 871. Mr. BRAUN (for himself and Ms. WARREN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title VIII, insert the following:

SEC. 8_____. MODIFICATIONS TO RIGHTS IN TECHNICAL DATA.

Section 3771(b) of title 10, United States Code, is amended—

(1) in paragraph (3)(C), by inserting ''for which the United States shall have government purpose rights, unless the Government and the contractor negotiate different license rights'' after ''component)''; and

(2) in paragraph (4)(A)—

(A) in clause (ii), by striking ''; or'' and inserting a semicolon;

(B) by redesignating clause (iii) as clause (iv); and

(C) by inserting after clause (ii) the following new clause (iii):

''(iii) is a release, disclosure, or use of detailed manufacturing or process data—

''(I) that is necessary for operation, maintenance, installation, or training and shall be used only for operation, maintenance, installation, or training purposes supporting wartime operations or contingency operations; and

''(II) for which the head of an agency determines that the original supplier of such data will be unable to satisfy military readiness or operational requirements for such operations; or''.

SA 872. Ms. KLOBUCHAR (for herself, Mr. CRAMER, Mr. CARPER, and Mr. DAINES) submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. CREDIT MONITORING.

(a) IN GENERAL.—The Fair Credit Reporting Act (15 U.S.C. 1681 et seq.) is amended—

(1) in section 605A(k) (15 U.S.C. 1681c–1(k)) is amended—

(A) by amending paragraph (1) to read as follows:

''(1) DEFINITIONS.—In this subsection:

''(A) UNIFORMED SERVICES.—The term 'uniformed services' has the meaning given the term in section 101(a) of title 10, United States Code.

''(B) UNIFORMED SERVICES MEMBER CONSUMER.—The term 'uniformed services member consumer' means a consumer who, regardless of duty status, is—

''(i) a member of the uniformed services; or

''(ii) a spouse, or a dependent who is not less than 18 years old, of a member of the uniformed services.''; and

(B) in paragraph (2)(A), by striking ''active duty military consumer'' and inserting ''uniformed services member consumer''; and

(2) in section 625 (15 U.S.C. 1681t(b)(1)(K)), by striking ''active duty military consumers'' and inserting ''uniformed services member consumer''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect on the date that is 1 year after the date on which the appropriate agency updates existing rules to implement the amendments made by subsection (a).

SA 873. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle G of title X, insert the following:

SEC. 10___. PUBLIC BUILDING PROHIBITIONS BASED ON LEGALITY OR AVAILABILITY OF ABORTION.

(a) ACQUISITION OF BUILDINGS AND SITES.—Section 3304 of title 40, United States Code, is amended—

(1) in subsection (a), by inserting ''(referred to in this section as the 'Administrator')'' after ''Administrator of General Services''; and

(2) by adding at the end the following:

''(e) NO CONSIDERATION OF LEGALITY OR AVAILABILITY OF ABORTION.—In acquiring a building or site under this section, the Administrator shall not consider the legality or availability of abortion.''.

(b) CONSTRUCTION AND ALTERATION OF BUILDINGS.—Section 3305 of title 40, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (1), in the first sentence, by inserting ''(referred to in this section as the 'Administrator')'' after ''Administrator of General Services''; and

(B) by adding at the end the following:

''(4) NO CONSIDERATION OF LEGALITY OR AVAILABILITY OF ABORTION.—In acquiring a site to construct a public building under paragraph (1), including through exchange, the Administrator shall not consider the legality or availability of abortion.''; and

(2) in subsection (b)(1)(B), by striking ''section 3304(b)-(d) of this title'' and inserting ''subsections (b) through (e) of section 3304''.

(c) LEASE OF BUILDINGS.—Section 1302 of title 40, United States Code, is amended by adding at the end the following: ''The leasing of buildings and property of the Federal Government shall not be based on the consideration of the legality or availability of abortion.''.

(d) LEASE AGREEMENTS.—Section 585 of title 40, United States Code, is amended—

(1) in subsection (a)(1), in the first sentence, by inserting ''(referred to in this section as the 'Administrator')'' after ''Administrator of General Services''; and

(2) by adding at the end the following:

''(e) NO CONSIDERATION OF LEGALITY OR AVAILABILITY OF ABORTION.—In entering into a lease agreement under this section, the Administrator shall not consider the legality or availability of abortion.''.

SA 874. Mr. MARSHALL submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. ___. PROHIBITION ON FLAGS OTHER THAN THE FLAG OF THE UNITED STATES.

(a) DEFINITIONS.—In this section:

(1) FLAG OF THE UNITED STATES.—The term ''flag of the United States'' has the meaning given the term in section 700(b) of title 18, United States Code.

(2) PUBLIC BUILDING.—

(A) IN GENERAL.—Except as provided in subparagraph (B), the term ''public building'' has the meaning given the term in section 3301(a) of title 40, United States Code.

(B) INCLUSION.—The term ''public building'' includes—

(i) a military installation (as defined in section 2801(c) of title 10, United States Code); and

(ii) any embassy or consulate of the United States.

(b) PROHIBITIONS.—Notwithstanding any other provision of law and except as provided in subsection (c), no flag that is not the flag of the United States may be flown, draped, or otherwise displayed—

(1) on the exterior of a public building; or

(2) in the hallway of a public building.

(c) EXCEPTIONS.—The prohibitions under subsection (b) shall not apply to—

(1) a National League of Families POW/MIA flag (as designated by section 902 of title 36, United States Code);

(2) any flag that represents the nation of a visiting diplomat;

(3) the State flag of the State represented by a member of Congress, outside or within the office of the member;

(4) in the case of a military installation, any flag that represents a unit or branch of the Armed Forces;

(5) any flag that represents an Indian Tribe (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304)); or

(6) any flag that represents the State, territory, county, city, or local jurisdiction in which the public building is located.

SA 875. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

DIVISION F—CALIFORNIA PUBLIC LAND

TITLE LXI—NORTHWEST CALIFORNIA WILDERNESS, RECREATION, AND WORKING FORESTS

SEC. 6101. DEFINITIONS.

In this title:

(1) SECRETARY.—The term ''Secretary'' means—

(A) with respect to land under the jurisdiction of the Secretary of Agriculture, the Secretary of Agriculture; and

(B) with respect to land under the jurisdiction of the Secretary of the Interior, the Secretary of the Interior.

(2) STATE.—The term ''State'' means the State of California.

Subtitle A—Restoration and Economic Development

SEC. 6111. SOUTH FORK TRINITY-MAD RIVER RESTORATION AREA.

(a) DEFINITIONS.—In this section:

(1) COLLABORATIVELY DEVELOPED.—The term ''collaboratively developed'' means, with respect to a restoration project, the development and implementation of the restoration project through a collaborative process that—

(A) includes—

(i) appropriate Federal, State, and local agencies; and

(ii) multiple interested persons representing diverse interests; and

(B) is transparent and nonexclusive.

(2) PLANTATION.—The term ''plantation'' means a forested area that has been artificially established by planting or seeding.

(3) RESTORATION.—The term ''restoration'' means the process of assisting the recovery of an ecosystem that has been degraded, damaged, or destroyed by establishing the composition, structure, pattern, and ecological processes necessary to facilitate terrestrial and aquatic ecosystem sustainability, resilience, and health under current and future conditions.

(4) RESTORATION AREA.—The term ''restoration area'' means the South Fork Trinity-Mad River Restoration Area established by subsection (b).

(5) SHADED FUEL BREAK.—The term ''shaded fuel break'' means a vegetation treatment that—

(A) effectively addresses all slash generated by a project; and

(B) retains, to the maximum extent practicable—

(i) adequate canopy cover to suppress plant regrowth in the forest understory following treatment;

(ii) the longest living trees that provide the most shade over the longest period of time;

(iii) the healthiest and most vigorous trees with the greatest potential for crown growth in—

(I) plantations; and

(II) natural stands adjacent to plantations; and

(iv) mature hardwoods.

(6) STEWARDSHIP CONTRACT.—The term ''stewardship contract'' means an agreement or contract entered into under section 604 of the Healthy Forests Restoration Act of 2003 (16 U.S.C. 6591c).

(7) WILDLAND-URBAN INTERFACE.—The term ''wildland-urban interface'' has the meaning given the term in section 101 of the Healthy Forests Restoration Act of 2003 (16 U.S.C. 6511).

(b) ESTABLISHMENT.—Subject to valid existing rights, there is established the South Fork Trinity-Mad River Restoration Area, comprising approximately 871,414 acres of Federal land administered by the Forest Service and the Bureau of Land Management, as generally depicted on the map entitled ''South Fork Trinity-Mad River Restoration Area'' and dated May 15, 2020.

(c) PURPOSES.—The purposes of the restoration area are—

(1) to establish, restore, and maintain fire-resilient late successional forest structures characterized by large trees and multistoried canopies, as ecologically appropriate, in the restoration area;

(2) to protect late successional reserves in the restoration area;

(3) to enhance the restoration of Federal land in the restoration area;

(4) to reduce the threat posed by wildfires to communities in or in the vicinity of the restoration area;

(5) to protect and restore aquatic habitat and anadromous fisheries;

(6) to protect the quality of water within the restoration area; and

(7) to allow visitors to enjoy the scenic, recreational, natural, cultural, and wildlife values of the restoration area.

(d) MANAGEMENT.—

(1) IN GENERAL.—The Secretary shall manage the restoration area—

(A) in a manner—

(i) consistent with the purposes described in subsection (c); and

(ii) in the case of the Forest Service, that prioritizes the restoration of the restoration area over other nonemergency vegetation management projects on the portions of the Six Rivers and Shasta-Trinity National Forests in Humboldt and Trinity Counties, California;

(B) in accordance with an agreement entered into by the Chief of the Forest Service and the Director of the United States Fish and Wildlife Service—

(i) for cooperation to ensure the timely consultation required under section 7 of the Endangered Species Act of 1973 (16 U.S.C. 1536) on restoration projects within the restoration area; and

(ii) to maintain and exchange information on planning schedules and priorities with respect to the restoration area on a regular basis;

(C) in accordance with—

(i) the laws (including regulations) and rules applicable to the National Forest System, with respect to land managed by the Forest Service;

(ii) the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.), with respect to land managed by the Bureau of Land Management;

(iii) this title; and

(iv) any other applicable law (including regulations); and

(D) in a manner consistent with congressional intent that consultation for restoration projects within the restoration area be completed in a timely and efficient manner.

(2) CONFLICT OF LAWS.—

(A) IN GENERAL.—The establishment of the restoration area shall not modify the management status of any land or water that is designated as a component of the National Wilderness Preservation System or the National Wild and Scenic Rivers System, including land or water designated as a component of the National Wilderness Preservation System or the National Wild and Scenic Rivers System by this title (including an amendment made by this title).

(B) RESOLUTION OF CONFLICT.—If there is a conflict between a law applicable to a component described in subparagraph (A) and this section, the more restrictive provision shall control.

(3) USES.—

(A) IN GENERAL.—The Secretary shall only allow uses of the restoration area that the Secretary determines would further the purposes described in subsection (c).

(B) PRIORITY.—The Secretary shall give priority to restoration activities within the restoration area.

(C) LIMITATION.—Nothing in this section limits the ability of the Secretary to plan, approve, or prioritize activities outside of the restoration area.

(4) WILDLAND FIRE.—

(A) IN GENERAL.—Nothing in this section prohibits the Secretary, in cooperation with Federal, State, and local agencies, as appropriate, from conducting wildland fire operations in the restoration area, consistent with the purposes of this section.

(B) PRIORITY.—To the maximum extent practicable, the Secretary may use prescribed burning and managed wildland fire to achieve the purposes of this section.

(5) ROAD DECOMMISSIONING.—

(A) DEFINITION OF DECOMMISSION.—In this paragraph, the term ''decommission'' means, with respect to a road—

(i) to reestablish vegetation on the road; and

(ii) to restore any natural drainage, watershed function, or other ecological process that is disrupted or adversely impacted by the road by removing or hydrologically disconnecting the road prism.

(B) DECOMMISSIONING.—To the maximum extent practicable, the Secretary shall decommission any unneeded National Forest System road or any unauthorized road identified for decommissioning within the restoration area—

(i) subject to appropriations;

(ii) consistent with the analysis required under subparts A and B of part 212 of title 36, Code of Federal Regulations (or successor regulations); and

(iii) in accordance with existing law.

(C) ADDITIONAL REQUIREMENT.—In making determinations with respect to the decommissioning of a road under subparagraph (B), the Secretary shall consult with—

(i) appropriate State, Tribal, and local governmental entities; and

(ii) members of the public.

(6) VEGETATION MANAGEMENT.—

(A) IN GENERAL.—Subject to subparagraphs (B), (C), and (D), the Secretary may carry out any vegetation management projects in the restoration area that the Secretary determines to be necessary—

(i) to maintain or restore the characteristics of ecosystem composition and structure;

(ii) to reduce wildfire risk to the community by promoting forests that are fire resilient;

(iii) to improve the habitat of threatened species, endangered species, or sensitive species;

(iv) to protect or improve water quality; or

(v) to enhance the restoration of land within the restoration area.

(B) ADDITIONAL REQUIREMENTS.—

(i) SHADED FUEL BREAKS.—In carrying out subparagraph (A), the Secretary shall prioritize, as practicable, the establishment in the restoration area of a network of shaded fuel breaks within—

(I) any portion of the wildland-urban interface that is within 150 feet of private property contiguous to Federal land;

(II) on the condition that the Secretary includes vegetation treatments within a minimum of 25 feet of a road that is open to motorized vehicles as of the date of enactment of this Act if practicable, feasible, and appropriate as part of any shaded fuel break—

(aa) 150 feet of the road; or

(bb) as topography or other conditions require, 275 feet of the road, if the combined total width of the shaded fuel breaks for both sides of the road does not exceed 300 feet; or

(III) 150 feet of any plantation.

(ii) PLANTATIONS; RIPARIAN RESERVES.—The Secretary may carry out vegetation management projects—

(I) in an area within the restoration area in which a fish or wildlife habitat is significantly compromised as a result of past management practices (including plantations); and

(II) in designated riparian reserves in the restoration area, as the Secretary determines to be necessary—

(aa) to maintain the integrity of fuel breaks; or

(bb) to enhance fire resilience.

(C) APPLICABLE LAW.—The Secretary shall carry out vegetation management projects in the restoration area—

(i) in accordance with—
(I) this section; and
(II) applicable law (including regulations);
(ii) after providing an opportunity for public comment; and
(iii) subject to appropriations.
(D) BEST AVAILABLE SCIENCE.—The Secretary shall use the best available science in planning and carrying out vegetation management projects in the restoration area.
(7) GRAZING.—
(A) EXISTING GRAZING.—The grazing of livestock in the restoration area, where established before the date of enactment of this Act, shall be permitted to continue—
(i) subject to such reasonable regulations, policies, and practices as the Secretary considers to be necessary;
(ii) in accordance with applicable law (including regulations); and
(iii) in a manner consistent with the purposes described in subsection (c).
(B) TARGETED NEW GRAZING.—The Secretary may issue annual targeted grazing permits for the grazing of livestock in an area of the restoration area in which the grazing of livestock is not authorized before the date of enactment of this Act to control noxious weeds, aid in the control of wildfire within the wildland-urban interface, or provide other ecological benefits—
(i) subject to such reasonable regulations, policies, and practices as the Secretary considers to be necessary; and
(ii) in a manner consistent with the purposes described in subsection (c).
(C) BEST AVAILABLE SCIENCE.—The Secretary shall use the best available science in determining whether to issue targeted grazing permits under subparagraph (B) within the restoration area.
(e) WITHDRAWAL.—Subject to valid existing rights, the restoration area is withdrawn from—
(1) all forms of entry, appropriation, and disposal under the public land laws;
(2) location, entry, and patent under the mining laws; and
(3) disposition under all laws relating to mineral and geothermal leasing or mineral materials.
(f) USE OF STEWARDSHIP CONTRACTS.—To the maximum extent practicable, the Secretary shall—
(1) use stewardship contracts to carry out this section; and
(2) use revenue derived from stewardship contracts under paragraph (1) to carry out restoration and other activities within the restoration area, including staff and administrative costs to support timely consultation activities for restoration projects.
(g) COLLABORATION.—In developing and carrying out restoration projects in the restoration area, the Secretary shall consult with collaborative groups with an interest in the restoration area.
(h) ENVIRONMENTAL REVIEW.—A collaboratively developed restoration project within the restoration area may be carried out in accordance with the provisions for hazardous fuel reduction projects in sections 104, 105, and 106 of the Healthy Forests Restoration Act of 2003 (16 U.S.C. 6514, 6515, 6516), as applicable.
(i) MULTIPARTY MONITORING.—The Secretary of Agriculture shall—
(1) in collaboration with the Secretary of the Interior and interested persons, use a multiparty monitoring, evaluation, and accountability process to assess the positive or negative ecological, social, and economic effects of restoration projects within the restoration area; and
(2) incorporate the monitoring results into the management of the restoration area.
(j) AVAILABLE AUTHORITIES.—The Secretary shall use any available authorities to secure the funding necessary to fulfill the purposes of the restoration area.
(k) FOREST RESIDUES UTILIZATION.—
(1) IN GENERAL.—In accordance with applicable law (including regulations) and this section, the Secretary may use forest residues from restoration projects, including shaded fuel breaks, in the restoration area for research and development of biobased products that result in net carbon sequestration.
(2) PARTNERSHIPS.—In carrying out paragraph (1), the Secretary may enter into partnerships with institutions of higher education, nongovernmental organizations, industry, Tribes, and Federal, State, and local governmental agencies.

SEC. 6112. REDWOOD NATIONAL AND STATE PARKS RESTORATION.

(a) PARTNERSHIP AGREEMENTS.—The Secretary of the Interior may carry out initiatives to restore degraded redwood forest ecosystems in Redwood National and State Parks in partnership with the State, local agencies, and nongovernmental organizations.
(b) APPLICABLE LAW.—In carrying out an initiative under subsection (a), the Secretary of the Interior shall comply with applicable law.

SEC. 6113. CALIFORNIA PUBLIC LAND REMEDIATION PARTNERSHIP.

(a) DEFINITIONS.—In this section:
(1) PARTNERSHIP.—The term ''partnership'' means the California Public Land Remediation Partnership established by subsection (b).
(2) PRIORITY LAND.—The term ''priority land'' means Federal land in the State that is determined by the partnership to be a high priority for remediation.
(3) REMEDIATION.—
(A) IN GENERAL.—The term ''remediation'' means to facilitate the recovery of land or water that has been degraded, damaged, or destroyed by illegal marijuana cultivation or another illegal activity.
(B) INCLUSIONS.—The term ''remediation'' includes—
(i) the removal of trash, debris, or other material; and
(ii) establishing the composition, structure, pattern, and ecological processes necessary to facilitate terrestrial or aquatic ecosystem sustainability, resilience, or health under current and future conditions.
(b) ESTABLISHMENT.—There is established the California Public Land Remediation Partnership.
(c) PURPOSES.—The purposes of the partnership are to support coordination of activities among Federal, State, Tribal, and local authorities and the private sector in the remediation of priority land in the State affected by illegal marijuana cultivation or another illegal activity.
(d) MEMBERSHIP.—The members of the partnership shall include the following:
(1) The Secretary of Agriculture (or a designee) to represent the Forest Service.
(2) The Secretary of the Interior (or a designee) to represent—
(A) the United States Fish and Wildlife Service;
(B) the Bureau of Land Management; and
(C) the National Park Service.
(3) The Director of the Office of National Drug Control Policy (or a designee).
(4) The Secretary of the State Natural Resources Agency (or a designee) to represent the California Department of Fish and Wildlife.
(5) A designee of the California State Water Resources Control Board.
(6) A designee of the California State Sheriffs' Association.
(7) 1 member to represent federally recognized Indian Tribes, to be appointed by the Secretary of Agriculture.
(8) 1 member to represent nongovernmental organizations with an interest in Federal land remediation, to be appointed by the Secretary of Agriculture.
(9) 1 member to represent local governmental interests, to be appointed by the Secretary of Agriculture.
(10) A law enforcement official from each of the following:
(A) The Department of the Interior.
(B) The Department of Agriculture.
(11) A subject matter expert to provide expertise and advice on methods needed for remediation efforts, to be appointed by the Secretary of Agriculture.
(12) A designee of the National Guard Counterdrug Program.
(13) Any other members that are determined to be appropriate by the partnership.
(e) DUTIES.—To further the purposes of this section and subject to subsection (f), the partnership shall—
(1) identify priority land for remediation in the State;
(2) secure voluntary contributions of resources from Federal sources and non-Federal sources for remediation of priority land in the State;
(3) support efforts by Federal, State, Tribal, and local agencies and nongovernmental organizations in carrying out remediation of priority land in the State;
(4) support research and education on the impacts of, and solutions to, illegal marijuana cultivation and other illegal activities on priority land in the State;
(5) involve other Federal, State, Tribal, and local agencies, nongovernmental organizations, and the public in remediation efforts on priority land in the State, to the maximum extent practicable; and
(6) carry out any other administrative or advisory activities necessary to address remediation of priority land in the State.
(f) LIMITATION.—Nothing in this section limits the authorities of the Federal, State, Tribal, and local entities that comprise the partnership.
(g) AUTHORITIES.—Subject to the prior approval of the Secretary of Agriculture and consistent with applicable law (including regulations), the partnership may—
(1) provide grants to the State, political subdivisions of the State, nonprofit organizations, and other persons;
(2) enter into cooperative agreements with or provide technical assistance to Federal agencies, the State, political subdivisions of the State, nonprofit organizations, and other interested persons;
(3) identify opportunities for collaborative efforts among members of the partnership;
(4) hire and compensate staff;
(5) obtain funds or services from any source, including—
(A) Federal funds (including funds and services provided under any other Federal law or program); and
(B) non-Federal funds;
(6) coordinate to identify sources of funding or services that may be available for remediation activities;
(7) seek funds or services from any source, including—
(A) Federal funds (including funds and services provided under any other Federal law or program); and
(B) non-Federal funds; and
(8) support—
(A) activities of partners; and
(B) any other activities that further the purposes of this section.
(h) PROCEDURES.—The partnership shall establish any internal administrative procedures for the partnership that the partnership determines to be necessary or appropriate.

(i) LOCAL HIRING.—The partnership shall, to the maximum extent practicable and in accordance with existing law, give preference to local entities and individuals in carrying out this section.

(j) SERVICE WITHOUT COMPENSATION.—A member of the partnership shall serve without pay.

(k) DUTIES AND AUTHORITIES OF THE SECRETARIES.—

(1) IN GENERAL.—The Secretary of Agriculture shall convene the partnership on a regular basis to carry out this section.

(2) TECHNICAL AND FINANCIAL ASSISTANCE.—The Secretary of Agriculture and the Secretary of the Interior may provide technical and financial assistance, on a reimbursable or nonreimbursable basis, as determined to be appropriate by the Secretary of Agriculture or the Secretary of the Interior, as applicable, to the partnership or any members of the partnership to carry out this section.

(3) COOPERATIVE AGREEMENTS.—The Secretary of Agriculture and the Secretary of the Interior may enter into cooperative agreements with the partnership, any member of the partnership, or other public or private entities to provide technical, financial, or other assistance to carry out this section.

SEC. 6114. TRINITY LAKE VISITOR CENTER.

(a) IN GENERAL.—The Secretary of Agriculture, acting through the Chief of the Forest Service (referred to in this section as the ''Secretary''), may establish, in cooperation with any other public or private entity that the Secretary determines to be appropriate, a visitor center in Weaverville, California—

(1) to serve visitors; and

(2) to assist in fulfilling the purposes of the Whiskeytown-Shasta-Trinity National Recreation Area.

(b) REQUIREMENTS.—The Secretary shall ensure that the visitor center authorized under subsection (a) is designed to provide for the interpretation of the scenic, biological, natural, historical, scientific, paleontological, recreational, ecological, wilderness, and cultural resources of the Whiskeytown-Shasta-Trinity National Recreation Area and other Federal land in the vicinity of the visitor center.

(c) COOPERATIVE AGREEMENTS.—In a manner consistent with this section, the Secretary may enter into cooperative agreements with the State and any other appropriate institutions and organizations to carry out the purposes of this section.

SEC. 6115. DEL NORTE COUNTY VISITOR CENTER.

(a) IN GENERAL.—The Secretary of Agriculture and the Secretary of the Interior, acting jointly or separately (referred to in this section as the ''Secretaries''), may establish, in cooperation with any other public or private entity that the Secretaries determine to be appropriate, a visitor center in Del Norte County, California—

(1) to serve visitors; and

(2) to assist in fulfilling the purposes of Redwood National and State Parks, the Smith River National Recreation Area, and any other Federal land in the vicinity of the visitor center.

(b) REQUIREMENTS.—The Secretaries shall ensure that the visitor center authorized under subsection (a) is designed to interpret the scenic, biological, natural, historical, scientific, paleontological, recreational, ecological, wilderness, and cultural resources of Redwood National and State Parks, the Smith River National Recreation Area, and any other Federal land in the vicinity of the visitor center.

SEC. 6116. LAND AND RESOURCE MANAGEMENT PLANS.

In revising the land and resource management plan for each of the Shasta-Trinity, Six Rivers, Klamath, and Mendocino National Forests, the Secretary shall consider the purposes of the South Fork Trinity-Mad River Restoration Area established by section 6111(b).

SEC. 6117. ANNUAL FIRE MANAGEMENT PLANS.

In revising the fire management plan for a wilderness area or wilderness addition designated by section 6131(a), the Secretary shall—

(1) develop spatial fire management plans in accordance with—

(A) the Guidance for Implementation of Federal Wildland Fire Management Policy, dated February 13, 2009, including any amendments to the guidance; and

(B) other appropriate policies;

(2) ensure that a fire management plan—

(A) considers how prescribed or managed fire can be used to achieve ecological management objectives of wilderness and other natural or primitive areas; and

(B) in the case of a wilderness area to which land is added under section 6131, provides consistent direction regarding fire management to the entire wilderness area, including the wilderness addition;

(3) consult with—

(A) appropriate State, Tribal, and local governmental entities; and

(B) members of the public; and

(4) comply with applicable law (including regulations).

SEC. 6118. STUDY; PARTNERSHIPS RELATED TO OVERNIGHT ACCOMMODATIONS.

(a) STUDY.—The Secretary of the Interior (referred to in this section as the ''Secretary''), in consultation with interested Federal, State, Tribal, and local entities and private and nonprofit organizations, shall conduct a study to evaluate the feasibility and suitability of establishing overnight accommodations near Redwood National and State Parks on—

(1) Federal land that is—

(A) at the northern boundary of Redwood National and State Parks; or

(B) on land within 20 miles of the northern boundary of Redwood National and State Parks; and

(2) Federal land that is—

(A) at the southern boundary of Redwood National and State Parks; or

(B) on land within 20 miles of the southern boundary of Redwood National and State Parks.

(b) PARTNERSHIPS.—

(1) AGREEMENTS AUTHORIZED.—If the Secretary determines, based on the study conducted under subsection (a), that establishing the accommodations described in that subsection is suitable and feasible, the Secretary may, in accordance with applicable law, enter into 1 or more agreements with qualified private and nonprofit organizations for the development, operation, and maintenance of the accommodations.

(2) CONTENTS.—Any agreement entered into under paragraph (1) shall clearly define the role and responsibility of the Secretary and the private or nonprofit organization entering into the agreement.

(3) EFFECT.—Nothing in this subsection—

(A) reduces or diminishes the authority of the Secretary to manage land and resources under the jurisdiction of the Secretary; or

(B) amends or modifies the application of any law (including regulations) applicable to land under the jurisdiction of the Secretary.

Subtitle B—Recreation

SEC. 6121. HORSE MOUNTAIN SPECIAL MANAGEMENT AREA.

(a) ESTABLISHMENT.—Subject to valid existing rights, there is established the Horse Mountain Special Management Area (referred to in this section as the ''special management area'') comprising approximately 7,482 acres of Federal land administered by the Forest Service in Humboldt County, California, as generally depicted on the map entitled ''Horse Mountain Special Management Area'' and dated May 15, 2020.

(b) PURPOSE.—The purpose of the special management area is to enhance the recreational and scenic values of the special management area while conserving the plants, wildlife, and other natural resource values of the area.

(c) MANAGEMENT PLAN.—

(1) IN GENERAL.—Not later than 5 years after the date of enactment of this Act and in accordance with paragraph (2), the Secretary of Agriculture (referred to in this section as the ''Secretary'') shall develop a comprehensive plan for the long-term management of the special management area.

(2) CONSULTATION.—In developing the management plan required under paragraph (1), the Secretary shall consult with—

(A) appropriate State, Tribal, and local governmental entities; and

(B) members of the public.

(3) ADDITIONAL REQUIREMENT.—The management plan required under paragraph (1) shall ensure that recreational use within the special management area does not cause significant adverse impacts on the plants and wildlife of the special management area.

(d) MANAGEMENT.—

(1) IN GENERAL.—The Secretary shall manage the special management area—

(A) in furtherance of the purpose described in subsection (b); and

(B) in accordance with—

(i) the laws (including regulations) generally applicable to the National Forest System;

(ii) this section; and

(iii) any other applicable law (including regulations).

(2) RECREATION.—The Secretary shall continue to authorize, maintain, and enhance the recreational use of the special management area, including hunting, fishing, camping, hiking, hang gliding, sightseeing, nature study, horseback riding, rafting, mountain bicycling, motorized recreation on authorized routes, and other recreational activities, if the recreational use is consistent with—

(A) the purpose of the special management area;

(B) this section;

(C) other applicable law (including regulations); and

(D) any applicable management plans.

(3) MOTORIZED VEHICLES.—

(A) IN GENERAL.—Except as provided in subparagraph (B), the use of motorized vehicles in the special management area shall be permitted only on roads and trails designated for the use of motorized vehicles.

(B) USE OF SNOWMOBILES.—The winter use of snowmobiles shall be allowed in the special management area—

(i) during periods of adequate snow coverage during the winter season; and

(ii) subject to any terms and conditions determined to be necessary by the Secretary.

(4) NEW TRAILS.—

(A) IN GENERAL.—The Secretary may construct new trails for motorized or nonmotorized recreation within the special management area in accordance with—

(i) the laws (including regulations) generally applicable to the National Forest System;

(ii) this section; and

(iii) any other applicable law (including regulations).

(B) PRIORITY.—In establishing new trails within the special management area, the Secretary shall—

(i) prioritize the establishment of loops that provide high-quality, diverse recreational experiences; and

(ii) consult with members of the public.

(e) WITHDRAWAL.—Subject to valid existing rights, the special management area is withdrawn from—

(1) all forms of appropriation or disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) disposition under laws relating to mineral and geothermal leasing.

SEC. 6122. BIGFOOT NATIONAL RECREATION TRAIL.

(a) FEASIBILITY STUDY.—

(1) IN GENERAL.—Not later than 5 years after the date of enactment of this Act, the Secretary of Agriculture (referred to in this section as the ''Secretary''), in cooperation with the Secretary of the Interior, shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a study that describes the feasibility of establishing a nonmotorized Bigfoot National Recreation Trail that follows the route described in paragraph (2).

(2) ROUTE.—The route referred to in paragraph (1) shall extend from the Ides Cove Trailhead in the Mendocino National Forest to Crescent City, California, following the route as generally depicted on the map entitled ''Bigfoot National Recreation Trail—Proposed'' and dated July 25, 2018.

(3) ADDITIONAL REQUIREMENT.—In completing the study required under paragraph (1), the Secretary shall consult with—

(A) appropriate Federal, State, Tribal, regional, and local agencies;

(B) private landowners;

(C) nongovernmental organizations; and

(D) members of the public.

(b) DESIGNATION.—

(1) IN GENERAL.—On a determination by the Secretary that the Bigfoot National Recreation Trail is feasible and meets the requirements for a National Recreation Trail under section 4 of the National Trails System Act (16 U.S.C. 1243), the Secretary shall designate the Bigfoot National Recreation Trail (referred to in this section as the ''trail'') in accordance with—

(A) the National Trails System Act (16 U.S.C. 1241 et seq.)

(B) this title; and

(C) other applicable law (including regulations).

(2) ADMINISTRATION.—On designation by the Secretary, the trail shall be administered by the Secretary, in consultation with—

(A) other Federal, State, Tribal, regional, and local agencies;

(B) private landowners; and

(C) other interested organizations.

(3) PRIVATE PROPERTY RIGHTS.—

(A) IN GENERAL.—No portions of the trail may be located on non-Federal land without the written consent of the landowner.

(B) PROHIBITION.—The Secretary shall not acquire for the trail any land or interest in land outside the exterior boundary of any federally managed area without the consent of the owner of the land or interest in the land.

(C) EFFECT.—Nothing in this section—

(i) requires any private property owner to allow public access (including Federal, State, or local government access) to private property; or

(ii) modifies any provision of Federal, State, or local law with respect to public access to or use of private land.

(c) COOPERATIVE AGREEMENTS.—In carrying out this section, the Secretary may enter into cooperative agreements with State, Tribal, and local government entities and private entities—

(1) to complete necessary trail construction, reconstruction, realignment, or maintenance; or

(2) carry out education projects relating to the trail.

(d) MAP.—

(1) MAP REQUIRED.—On designation of the trail, the Secretary shall prepare a map of the trail.

(2) PUBLIC AVAILABILITY.—The map referred to in paragraph (1) shall be on file and available for public inspection in the appropriate offices of the Forest Service.

SEC. 6123. ELK CAMP RIDGE RECREATION TRAIL.

(a) DESIGNATION.—

(1) IN GENERAL.—In accordance with paragraph (2), the Secretary of Agriculture (referred to in this section as the ''Secretary''), after providing an opportunity for public comment, shall designate a trail (which may include a system of trails)—

(A) for use by off-highway vehicles, mountain bicycles, or both; and

(B) to be known as the ''Elk Camp Ridge Recreation Trail'' (referred to in this section as the ''trail'').

(2) REQUIREMENTS.—In designating the trail under paragraph (1), the Secretary shall only include routes that are—

(A) as of the date of enactment of this Act, authorized for use by off-highway vehicles, mountain bicycles, or both; and

(B) located on land that is managed by the Forest Service in Del Norte County in the State.

(3) MAP.—A map that depicts the trail shall be on file and available for public inspection in the appropriate offices of the Forest Service.

(b) MANAGEMENT.—

(1) IN GENERAL.—The Secretary shall manage the trail—

(A) in accordance with applicable law (including regulations);

(B) in a manner that ensures the safety of citizens who use the trail; and

(C) in a manner that minimizes any damage to sensitive habitat or cultural resources.

(2) MONITORING; EVALUATION.—To minimize the impacts of the use of the trail on environmental and cultural resources, the Secretary shall annually assess the effects of the use of off-highway vehicles and mountain bicycles on—

(A) the trail;

(B) land located in proximity to the trail; and

(C) plants, wildlife, and wildlife habitat.

(3) CLOSURE.—The Secretary, in consultation with the State and Del Norte County in the State and subject to paragraph (4), may temporarily close or permanently reroute a portion of the trail if the Secretary determines that—

(A) the trail is having an adverse impact on—

(i) wildlife habitat;

(ii) natural resources;

(iii) cultural resources; or

(iv) traditional uses;

(B) the trail threatens public safety; or

(C) closure of the trail is necessary—

(i) to repair damage to the trail; or

(ii) to repair resource damage.

(4) REROUTING.—Any portion of the trail that is temporarily closed by the Secretary under paragraph (3) may be permanently rerouted along any road or trail—

(A) that is—

(i) in existence as of the date of the closure of the portion of the trail;

(ii) located on public land; and

(iii) open to motorized or mechanized use; and

(B) if the Secretary determines that rerouting the portion of the trail would not significantly increase or decrease the length of the trail.

(5) NOTICE OF AVAILABLE ROUTES.—The Secretary shall ensure that visitors to the trail have access to adequate notice relating to the availability of trail routes through—

(A) the placement of appropriate signage along the trail; and

(B) the distribution of maps, safety education materials, and other information that the Secretary determines to be appropriate.

(c) EFFECT.—Nothing in this section affects the ownership, management, or other rights relating to any non-Federal land (including any interest in any non-Federal land).

SEC. 6124. TRINITY LAKE TRAIL.

(a) TRAIL CONSTRUCTION.—

(1) FEASIBILITY STUDY.—Not later than 3 years after the date of enactment of this Act, the Secretary shall study the feasibility and public interest of constructing a recreational trail for nonmotorized uses around Trinity Lake (referred to in this section as the ''trail'').

(2) CONSTRUCTION.—

(A) CONSTRUCTION AUTHORIZED.—Subject to appropriations, and in accordance with paragraph (3), if the Secretary determines under paragraph (1) that the construction of the trail is feasible and in the public interest, the Secretary may provide for the construction of the trail.

(B) USE OF VOLUNTEER SERVICES AND CONTRIBUTIONS.—The trail may be constructed under this section through the acceptance of volunteer services and contributions from non-Federal sources to reduce or eliminate the need for Federal expenditures to construct the trail.

(3) COMPLIANCE.—In carrying out this section, the Secretary shall comply with—

(A) the laws (including regulations) generally applicable to the National Forest System; and

(B) this title.

(b) EFFECT.—Nothing in this section affects the ownership, management, or other rights relating to any non-Federal land (including any interest in any non-Federal land).

SEC. 6125. TRAILS STUDY.

(a) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Secretary of Agriculture, in accordance with subsection (b) and in consultation with interested parties, shall conduct a study to improve motorized and nonmotorized recreation trail opportunities (including mountain bicycling) on land not designated as wilderness within the portions of the Six Rivers, Shasta-Trinity, and Mendocino National Forests located in Del Norte, Humboldt, Trinity, and Mendocino Counties in the State.

(b) CONSULTATION.—In carrying out the study under subsection (a), the Secretary of Agriculture shall consult with the Secretary of the Interior regarding opportunities to improve, through increased coordination, recreation trail opportunities on land under the jurisdiction of the Secretary of the Interior that shares a boundary with the National Forest System land described in subsection (a).

SEC. 6126. CONSTRUCTION OF MOUNTAIN BICYCLING ROUTES.

(a) TRAIL CONSTRUCTION.—

(1) FEASIBILITY STUDY.—Not later than 3 years after the date of enactment of this Act, the Secretary of Agriculture (referred to in this section as the ''Secretary'') shall study the feasibility and public interest of constructing recreational trails for mountain bicycling and other nonmotorized uses on the routes as generally depicted in the report entitled ''Trail Study for Smith River National Recreation Area Six Rivers National Forest'' and dated 2016.

(2) CONSTRUCTION.—

(A) CONSTRUCTION AUTHORIZED.—Subject to appropriations and in accordance with paragraph (3), if the Secretary determines under paragraph (1) that the construction of 1 or more routes described in that paragraph is feasible and in the public interest, the Secretary may provide for the construction of the routes.

(B) MODIFICATIONS.—The Secretary may modify the routes, as determined to be necessary by the Secretary.

(C) USE OF VOLUNTEER SERVICES AND CONTRIBUTIONS.—Routes may be constructed under this section through the acceptance of volunteer services and contributions from non-Federal sources to reduce or eliminate the need for Federal expenditures to construct the route.

(3) COMPLIANCE.—In carrying out this section, the Secretary shall comply with—

(A) the laws (including regulations) generally applicable to the National Forest System; and

(B) this title.

(b) EFFECT.—Nothing in this section affects the ownership, management, or other rights relating to any non-Federal land (including any interest in any non-Federal land).

SEC. 6127. PARTNERSHIPS.

(a) AGREEMENTS AUTHORIZED.—The Secretary may enter into agreements with qualified private and nonprofit organizations to carry out the following activities on Federal land in Mendocino, Humboldt, Trinity, and Del Norte Counties in the State:

(1) Trail and campground maintenance.

(2) Public education, visitor contacts, and outreach.

(3) Visitor center staffing.

(b) CONTENTS.—An agreement entered into under subsection (a) shall clearly define the role and responsibility of the Secretary and the private or nonprofit organization.

(c) COMPLIANCE.—The Secretary shall enter into agreements under subsection (a) in accordance with existing law.

(d) EFFECT.—Nothing in this section—

(1) reduces or diminishes the authority of the Secretary to manage land and resources under the jurisdiction of the Secretary; or

(2) amends or modifies the application of any existing law (including regulations) applicable to land under the jurisdiction of the Secretary.

Subtitle C—Conservation

SEC. 6131. DESIGNATION OF WILDERNESS.

(a) IN GENERAL.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.), the following areas in the State are designated as wilderness areas and as components of the National Wilderness Preservation System:

(1) BLACK BUTTE RIVER WILDERNESS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 11,155 acres, as generally depicted on the map entitled ''Black Butte Wilderness—Proposed'' and dated May 15, 2020, which shall be known as the ''Black Butte River Wilderness''.

(2) CHANCHELULLA WILDERNESS ADDITIONS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 6,382 acres, as generally depicted on the map entitled ''Chanchelulla Wilderness Additions—Proposed'' and dated May 15, 2020, which is incorporated in, and considered to be a part of, the Chanchelulla Wilderness designated by section 101(a)(4) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1619).

(3) CHINQUAPIN WILDERNESS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 27,164 acres, as generally depicted on the map entitled ''Chinquapin Wilderness—Proposed'' and dated May 15, 2020, which shall be known as the ''Chinquapin Wilderness''.

(4) ELKHORN RIDGE WILDERNESS ADDITION.—Certain Federal land managed by the Bureau of Land Management in the State, comprising approximately 37 acres, as generally depicted on the map entitled ''Proposed Elkhorn Ridge Wilderness Additions'' and dated February 2, 2022, which is incorporated in, and considered to be a part of, the Elkhorn Ridge Wilderness designated by section 6(d) of the Northern California Coastal Wild Heritage Wilderness Act (16 U.S.C. 1132 note; Public Law 109–362; 120 Stat. 2070).

(5) ENGLISH RIDGE WILDERNESS.—Certain Federal land managed by the Bureau of Land Management in the State, comprising approximately 6,204 acres, as generally depicted on the map entitled ''English Ridge Wilderness—Proposed'' and dated February 2, 2022, which shall be known as the ''English Ridge Wilderness''.

(6) HEADWATERS FOREST WILDERNESS.—Certain Federal land managed by the Bureau of Land Management in the State, comprising approximately 4,360 acres, as generally depicted on the map entitled ''Headwaters Forest Wilderness—Proposed'' and dated October 15, 2019, which shall be known as the ''Headwaters Forest Wilderness''.

(7) MAD RIVER BUTTES WILDERNESS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 6,097 acres, as generally depicted on the map entitled ''Mad River Buttes Wilderness—Proposed'' and dated May 15, 2020, which shall be known as the ''Mad River Buttes Wilderness''.

(8) MOUNT LASSIC WILDERNESS ADDITION.—Certain Federal land managed by the Forest Service in the State, comprising approximately 1,288 acres, as generally depicted on the map entitled ''Mt. Lassic Wilderness Additions—Proposed'' and dated May 15, 2020, which is incorporated in, and considered to be a part of, the Mount Lassic Wilderness designated by section 3(6) of the Northern California Coastal Wild Heritage Wilderness Act (16 U.S.C. 1132 note; Public Law 109–362; 120 Stat. 2065).

(9) NORTH FORK WILDERNESS ADDITION.—Certain Federal land managed by the Forest Service and the Bureau of Land Management in the State, comprising approximately 16,342 acres, as generally depicted on the map entitled ''North Fork Eel Wilderness Additions'' and dated May 15, 2020, which is incorporated in, and considered to be a part of, the North Fork Wilderness designated by section 101(a)(19) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1621).

(10) PATTISON WILDERNESS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 29,451 acres, as generally depicted on the map entitled ''Pattison Wilderness—Proposed'' and dated May 15, 2020, which shall be known as the ''Pattison Wilderness''.

(11) SISKIYOU WILDERNESS ADDITION.—Certain Federal land managed by the Forest Service in the State, comprising approximately 23,913 acres, as generally depicted on the maps entitled ''Siskiyou Wilderness Additions—Proposed (North)'' and ''Siskiyou Wilderness Additions—Proposed (South)'' and dated May 15, 2020, which is incorporated in, and considered to be a part of, the Siskiyou Wilderness, as designated by section 101(a)(30) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1623).

(12) SOUTH FORK EEL RIVER WILDERNESS ADDITION.—Certain Federal land managed by the Bureau of Land Management in the State, comprising approximately 603 acres, as generally depicted on the map entitled ''South Fork Eel River Wilderness Additions—Proposed'' and dated October 24, 2019, which is incorporated in, and considered to be a part of, the South Fork Eel River Wilderness designated by section 3(10) of the Northern California Coastal Wild Heritage Wilderness Act (16 U.S.C. 1132 note; Public Law 109–362; 120 Stat. 2066).

(13) SOUTH FORK TRINITY RIVER WILDERNESS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 26,115 acres, as generally depicted on the map entitled ''South Fork Trinity River Wilderness Additions—Proposed'' and dated May 15, 2020, which shall be known as the ''South Fork Trinity River Wilderness''.

(14) TRINITY ALPS WILDERNESS ADDITION.—Certain Federal land managed by the Forest Service in the State, comprising approximately 61,187 acres, as generally depicted on the maps entitled ''Trinity Alps Proposed Wilderness Additions EAST'' and ''Trinity Alps Wilderness Additions West—Proposed'' and dated May 15, 2020, which is incorporated in, and considered to be a part of, the Trinity Alps Wilderness designated by section 101(a)(34) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1623).

(15) UNDERWOOD WILDERNESS.—Certain Federal land managed by the Forest Service in the State, comprising approximately 15,068 acres, as generally depicted on the map entitled ''Underwood Wilderness—Proposed'' and dated May 15, 2020, which shall be known as the ''Underwood Wilderness''.

(16) YOLLA BOLLY-MIDDLE EEL WILDERNESS ADDITIONS.—Certain Federal land managed by the Forest Service and the Bureau of Land Management in the State, comprising approximately 11,243 acres, as generally depicted on the maps entitled ''Yolla Bolly Wilderness Proposed—NORTH'', ''Yolla Bolly Wilderness Proposed—SOUTH'', and ''Yolla Bolly Wilderness Proposed—WEST'' and dated May 15, 2020, which is incorporated in, and considered to be a part of, the Yolla Bolly-Middle Eel Wilderness designated by section 3 of the Wilderness Act (16 U.S.C. 1132).

(17) YUKI WILDERNESS ADDITION.—Certain Federal land managed by the Forest Service and the Bureau of Land Management in the State, comprising approximately 11,076 acres, as generally depicted on the map entitled ''Yuki Wilderness Additions—Proposed'' and dated February 7, 2022, which is incorporated in, and considered to be a part of, the Yuki Wilderness designated by section 3(3) of the Northern California Coastal Wild Heritage Wilderness Act (16 U.S.C. 1132 note; Public Law 109–362; 120 Stat. 2065).

(b) REDESIGNATION OF NORTH FORK WILDERNESS AS NORTH FORK EEL RIVER WILDERNESS.—

(1) IN GENERAL.—Section 101(a)(19) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1621) is amended by striking ''which shall be known as the North Fork Wilderness'' and inserting ''which shall be known as the 'North Fork Eel River Wilderness' ''.

(2) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the ''North Fork Wilderness'' shall be considered to be a reference to the ''North Fork Eel River Wilderness''.

(c) ELKHORN RIDGE WILDERNESS MODIFICATION.—The boundary of the Elkhorn Ridge Wilderness established by section 6(d) of the Northern California Coastal Wild Heritage Wilderness Act (16 U.S.C. 1132 note; Public Law 109–362; 120 Stat. 2070) is modified by removing approximately 30 acres of Federal land, as generally depicted on the map entitled ''Proposed Elkhorn Ridge Wilderness Additions'' and dated October 24, 2019.

SEC. 6132. ADMINISTRATION OF WILDERNESS.

(a) IN GENERAL.—Subject to valid existing rights, a wilderness area or wilderness addition established by section 6131(a) (referred to in this section as a ''wilderness area or addition'') shall be administered by the Secretary in accordance with this subtitle and the Wilderness Act (16 U.S.C. 1131 et seq.), except that—

(1) any reference in the Wilderness Act to the effective date of that Act shall be considered to be a reference to the date of enactment of this Act; and

(2) any reference in that Act to the Secretary of Agriculture shall be considered to be a reference to the Secretary.

(b) FIRE MANAGEMENT AND RELATED ACTIVITIES.—

(1) IN GENERAL.—The Secretary may carry out any activities in a wilderness area or addition as are necessary for the control of fire, insects, or disease in accordance with—

(A) section 4(d)(1) of the Wilderness Act (16 U.S.C. 1133(d)(1)); and

(B) the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 1437 of the 98th Congress (House Report 98–40).

(2) FUNDING PRIORITIES.—Nothing in this subtitle limits funding for fire or fuels management in a wilderness area or addition.

(3) ADMINISTRATION.—In accordance with paragraph (1) and any other applicable Federal law, to ensure a timely and efficient response to a fire emergency in a wilderness area or addition, the Secretary of Agriculture shall—

(A) not later than 1 year after the date of enactment of this Act, establish agency approval procedures (including appropriate delegations of authority to the Forest Supervisor, District Manager, or other agency officials) for responding to fire emergencies; and

(B) enter into agreements with appropriate State or local firefighting agencies.

(c) GRAZING.—The grazing of livestock in a wilderness area or addition, if established before the date of enactment of this Act, shall be administered in accordance with—

(1) section 4(d)(4) of the Wilderness Act (16 U.S.C. 1133(d)(4)); and

(2)(A) for land under the jurisdiction of the Secretary of Agriculture, the guidelines set forth in the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 5487 of the 96th Congress (H. Rept. 96–617); and

(B) for land under the jurisdiction of the Secretary of the Interior, the guidelines set forth in Appendix A of the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 2570 of the 101st Congress (H. Rept. 101–405).

(d) FISH AND WILDLIFE.—

(1) IN GENERAL.—In accordance with section 4(d)(7) of the Wilderness Act (16 U.S.C. 1133(d)(7)), nothing in this subtitle affects the jurisdiction or responsibilities of the State with respect to fish and wildlife on public land in the State.

(2) MANAGEMENT ACTIVITIES.—In support of the purposes and principles of the Wilderness Act (16 U.S.C. 1131 et seq.), the Secretary may conduct any management activity that the Secretary determines to be necessary to maintain or restore a fish, wildlife, or plant population or habitat in a wilderness area or addition, if the management activity is conducted in accordance with—

(A) an applicable wilderness management plan;

(B) the Wilderness Act (16 U.S.C. 1131 et seq.); and

(C) appropriate policies, such as the policies established in Appendix B of the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 2570 of the 101st Congress (H. Rept. 101–405).

(e) BUFFER ZONES.—

(1) IN GENERAL.—Nothing in this subtitle establishes a protective perimeter or buffer zone around a wilderness area or addition.

(2) OUTSIDE ACTIVITIES OR USES.—The fact that a nonwilderness activity or use can be seen or heard from within a wilderness area or addition shall not preclude the activity or use outside the boundary of the wilderness area or addition.

(f) MILITARY ACTIVITIES.—Nothing in this subtitle precludes—

(1) low-level overflights of military aircraft over a wilderness area or addition;

(2) the designation of a new unit of special airspace over a wilderness area or addition; or

(3) the use or establishment of a military flight training route over a wilderness area or addition.

(g) HORSES.—Nothing in this subtitle precludes horseback riding in, or the entry of recreational or commercial saddle or pack stock into, a wilderness area or addition—

(1) in accordance with section 4(d)(5) of the Wilderness Act (16 U.S.C. 1133(d)(5)); and

(2) subject to any terms and conditions determined to be necessary by the Secretary.

(h) WITHDRAWAL.—Subject to valid existing rights, the wilderness areas and additions are withdrawn from—

(1) all forms of entry, appropriation, and disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) operation of the mineral materials and geothermal leasing laws.

(i) USE BY MEMBERS OF INDIAN TRIBES.—

(1) ACCESS.—In recognition of the past use of wilderness areas and additions by members of Indian Tribes for traditional cultural and religious purposes, the Secretary shall ensure that Indian Tribes have access to the wilderness areas and additions for traditional cultural and religious purposes.

(2) TEMPORARY CLOSURES.—

(A) IN GENERAL.—In carrying out this section, the Secretary, on request of an Indian Tribe, may temporarily close to the general public 1 or more specific portions of a wilderness area or addition to protect the privacy of the members of the Indian Tribe in the conduct of the traditional cultural and religious activities in the wilderness area or addition.

(B) REQUIREMENT.—Any closure under subparagraph (A) shall be made in such a manner as to affect the smallest practicable area for the minimum period of time necessary for the activity to be carried out.

(3) APPLICABLE LAW.—Access to the wilderness areas and wilderness additions under this subsection shall be in accordance with—

(A) Public Law 95–341 (commonly known as the ''American Indian Religious Freedom Act'') (42 U.S.C. 1996 et seq.); and

(B) the Wilderness Act (16 U.S.C. 1131 et seq.).

(j) INCORPORATION OF ACQUIRED LAND AND INTERESTS.—Any land within the boundary of a wilderness area or addition that is acquired by the United States shall—

(1) become part of the wilderness area or addition in which the land is located;

(2) be withdrawn in accordance with subsection (h); and

(3) be managed in accordance with—

(A) this section;

(B) the Wilderness Act (16 U.S.C. 1131 et seq.); and

(C) any other applicable law.

(k) CLIMATOLOGICAL DATA COLLECTION.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.) and subject to such terms and conditions as the Secretary may prescribe, the Secretary may authorize the installation and maintenance of hydrologic, meteorologic, or climatological collection devices in a wilderness area or addition if the Secretary determines that the devices and access to the devices are essential to a flood warning, flood control, or water reservoir operation activity.

(l) AUTHORIZED EVENTS.—The Secretary may continue to authorize the competitive equestrian event permitted since 2012 in the Chinquapin Wilderness established by section 6131(a)(3) in a manner compatible with the preservation of the area as wilderness.

(m) RECREATIONAL CLIMBING.—Nothing in this title prohibits recreational rock climbing activities in the wilderness areas or additions, such as the placement, use, and maintenance of fixed anchors, including any fixed anchor established before the date of enactment of this Act—

(1) in accordance with the Wilderness Act (16 U.S.C. 1131 et seq.); and

(2) subject to any terms and conditions determined to be necessary by the Secretary.

SEC. 6133. DESIGNATION OF POTENTIAL WILDERNESS.

(a) DESIGNATION.—In furtherance of the purposes of the Wilderness Act (16 U.S.C. 1131 et seq.), the following areas in the State are designated as potential wilderness areas:

(1) Certain Federal land managed by the Forest Service, comprising approximately 4,005 acres, as generally depicted on the map entitled ''Chinquapin Proposed Potential Wilderness'' and dated May 15, 2020.

(2) Certain Federal land administered by the National Park Service, compromising approximately 31,000 acres, as generally depicted on the map entitled ''Redwood National Park—Potential Wilderness'' and dated October 9, 2019.

(3) Certain Federal land managed by the Forest Service, comprising approximately 5,681 acres, as generally depicted on the map entitled ''Siskiyou Proposed Potential Wildernesses'' and dated May 15, 2020.

(4) Certain Federal land managed by the Forest Service, comprising approximately 446 acres, as generally depicted on the map entitled ''South Fork Trinity River Proposed Potential Wilderness'' and dated May 15, 2020.

(5) Certain Federal land managed by the Forest Service, comprising approximately 1,256 acres, as generally depicted on the map entitled ''Trinity Alps Proposed Potential Wilderness'' and dated May 15, 2020.

(6) Certain Federal land managed by the Forest Service, comprising approximately 4,386 acres, as generally depicted on the map entitled ''Yolla Bolly Middle-Eel Proposed Potential Wilderness'' and dated May 15, 2020.

(7) Certain Federal land managed by the Forest Service, comprising approximately 2,918 acres, as generally depicted on the map entitled ''Yuki Proposed Potential Wilderness'' and dated May 15, 2020.

(b) MANAGEMENT.—Except as provided in subsection (c) and subject to valid existing rights, the Secretary shall manage each potential wilderness area designated by subsection (a) (referred to in this section as a ''potential wilderness area'') as wilderness until the date on which the potential wilderness area is designated as wilderness under subsection (d).

(c) ECOLOGICAL RESTORATION.—

(1) IN GENERAL.—For purposes of ecological restoration (including the elimination of nonnative species, removal of illegal, unused, or decommissioned roads, repair of skid tracks, and any other activities necessary to restore the natural ecosystems in a potential wilderness area and consistent with paragraph (2)), the Secretary may use motorized equipment and mechanized transport in a potential wilderness area until the

date on which the potential wilderness area is designated as wilderness under subsection (d).

(2) LIMITATION.—To the maximum extent practicable, the Secretary shall use the minimum tool or administrative practice necessary to accomplish ecological restoration with the least amount of adverse impact on wilderness character and resources.

(d) WILDERNESS DESIGNATION.—A potential wilderness area shall be designated as wilderness and as a component of the National Wilderness Preservation System on the earlier of—

(1) the date on which the Secretary publishes in the Federal Register notice that the conditions in the potential wilderness area that are incompatible with the Wilderness Act (16 U.S.C. 1131 et seq.) have been removed; and

(2) the date that is 10 years after the date of enactment of this Act, in the case of a potential wilderness area located on land managed by the Forest Service.

(e) ADMINISTRATION AS WILDERNESS.—

(1) IN GENERAL.—On the designation of a potential wilderness area as wilderness under subsection (d), the wilderness shall be administered in accordance with—

(A) section 6132; and

(B) the Wilderness Act (16 U.S.C. 1131 et seq.).

(2) DESIGNATION.—On the designation as wilderness under subsection (d)—

(A) the land described in subsection (a)(1) shall be incorporated in, and considered to be a part of, the Chinquapin Wilderness established by section 6131(a)(3);

(B) the land described in subsection (a)(3) shall be incorporated in, and considered to be a part of, the Siskiyou Wilderness designated by section 101(a)(30) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1623);

(C) the land described in subsection (a)(4) shall be incorporated in, and considered to be a part of, the South Fork Trinity River Wilderness established by section 6131(a)(13);

(D) the land described in subsection (a)(5) shall be incorporated in, and considered to be a part of, the Trinity Alps Wilderness designated by section 101(a)(34) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1623);

(E) the land described in subsection (a)(6) shall be incorporated in, and considered to be a part of, the Yolla Bolly-Middle Eel Wilderness designated by section 3 of the Wilderness Act (16 U.S.C. 1132); and

(F) the land described in subsection (a)(7) shall be incorporated in, and considered to be a part of, the Yuki Wilderness designated by section 3(3) of the Northern California Coastal Wild Heritage Wilderness Act (16 U.S.C. 1132 note; Public Law 109–362; 120 Stat. 2065) and expanded by section 6131(a)(17).

(f) REPORT.—Not later than 3 years after the date of enactment of this Act, and every 3 years thereafter until the date on which the potential wilderness areas are designated as wilderness under subsection (d), the Secretary shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a report that describes—

(1) the status of ecological restoration within the potential wilderness areas; and

(2) the progress toward the eventual designation of the potential wilderness areas as wilderness under subsection (d).

SEC. 6134. DESIGNATION OF WILD AND SCENIC RIVERS.

Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by adding at the end the following:

''(233) SOUTH FORK TRINITY RIVER.—The following segments from the source tributaries in the Yolla Bolly-Middle Eel Wilderness, to be administered by the Secretary of Agriculture:

''(A) The 18.3-mile segment from its multiple source springs in the Cedar Basin of the Yolla Bolly-Middle Eel Wilderness in sec. 15, T. 27 N., R. 10 W., to 0.25 miles upstream of the Wild Mad Road, as a wild river.

''(B) The 0.65-mile segment from 0.25 miles upstream of Wild Mad Road to the confluence with the unnamed tributary approximately 0.4 miles downstream of the Wild Mad Road in sec. 29, T. 28 N., R. 11 W., as a scenic river.

''(C) The 9.8-mile segment from 0.75 miles downstream of Wild Mad Road to Silver Creek, as a wild river.

''(D) The 5.4-mile segment from Silver Creek confluence to Farley Creek, as a scenic river.

''(E) The 3.6-mile segment from Farley Creek to Cave Creek, as a recreational river.

''(F) The 5.6-mile segment from Cave Creek to the confluence of the unnamed creek upstream of Hidden Valley Ranch in sec. 5, T. 15, R. 7 E., as a wild river.

''(G) The 2.5-mile segment from the unnamed creek confluence upstream of Hidden Valley Ranch to the confluence with the unnamed creek flowing west from Bear Wallow Mountain in sec. 29, T. 1 N., R. 7 E., as a scenic river.

''(H) The 3.8-mile segment from the unnamed creek confluence in sec. 29, T. 1 N., R. 7 E., to Plummer Creek, as a wild river.

''(I) The 1.8-mile segment from Plummer Creek to the confluence with the unnamed tributary north of McClellan Place in sec. 6, T. 1 N., R. 7 E., as a scenic river.

''(J) The 5.4-mile segment from the unnamed tributary confluence in sec. 6, T. 1 N., R. 7 E., to Hitchcock Creek, as a wild river.

''(K) The 7-mile segment from Eltapom Creek to the Grouse Creek, as a scenic river.

''(L) The 5-mile segment from Grouse Creek to Coon Creek, as a wild river.

''(234) EAST FORK SOUTH FORK TRINITY RIVER.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 8.4-mile segment from its source in the Pettijohn Basin in the Yolla Bolly-Middle Eel Wilderness in sec. 10, T. 3 S., R. 10 W., to 0.25 miles upstream of the Wild Mad Road, as a wild river.

''(B) The 3.4-mile segment from 0.25 miles upstream of the Wild Mad Road to the South Fork Trinity River, as a recreational river.

''(235) RATTLESNAKE CREEK.—The 5.9-mile segment from the confluence with the unnamed tributary in the southeast corner of sec. 5, T. 1 S., R. 12 W., to the South Fork Trinity River, to be administered by the Secretary of Agriculture as a recreational river.

''(236) BUTTER CREEK.—The 7-mile segment from 0.25 miles downstream of the Road 3N08 crossing to the South Fork Trinity River, to be administered by the Secretary of Agriculture as a scenic river.

''(237) HAYFORK CREEK.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 3.2-mile segment from Little Creek to Bear Creek, as a recreational river.

''(B) The 13.2-mile segment from Bear Creek to the northern boundary of sec. 19, T. 3 N., R. 7 E., as a scenic river.

''(238) OLSEN CREEK.—The 2.8-mile segment from the confluence of its source tributaries in sec. 5, T. 3 N., R. 7 E., to the northern boundary of sec. 24, T. 3 N., R. 6 E., to be administered by the Secretary of the Interior as a scenic river.

''(239) RUSCH CREEK.—The 3.2-mile segment from 0.25 miles downstream of the 32N11 Road crossing to Hayfork Creek, to be administered by the Secretary of Agriculture as a recreational river.

''(240) ELTAPOM CREEK.—The 3.4-mile segment from Buckhorn Creek to the South Fork Trinity River, to be administered by the Secretary of Agriculture as a wild river.

''(241) GROUSE CREEK.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 3.9-mile segment from Carson Creek to Cow Creek, as a scenic river.

''(B) The 7.4-mile segment from Cow Creek to the South Fork Trinity River, as a recreational river.

''(242) MADDEN CREEK.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 6.8-mile segment from the confluence of Madden Creek and its unnamed tributary in sec. 18, T. 5 N., R. 5 E., to Fourmile Creek, as a wild river.

''(B) The 1.6-mile segment from Fourmile Creek to the South Fork Trinity River, as a recreational river.

''(243) CANYON CREEK.—The following segments, to be administered by the Secretary of Agriculture and the Secretary of the Interior:

''(A) The 6.6-mile segment from the outlet of lower Canyon Creek Lake to Bear Creek upstream of Ripstein, as a wild river.

''(B) The 11.2-mile segment from Bear Creek upstream of Ripstein to the southern boundary of sec. 25, T. 34 N., R. 11 W., as a recreational river.

''(244) NORTH FORK TRINITY RIVER.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 12-mile segment from the confluence of source tributaries in sec. 24, T. 8 N., R. 12 W., to the Trinity Alps Wilderness boundary upstream of Hobo Gulch, as a wild river.

''(B) The 0.5-mile segment from where the river leaves the Trinity Alps Wilderness to where it fully reenters the Trinity Alps Wilderness downstream of Hobo Gulch, as a scenic river.

''(C) The 13.9-mile segment from where the river fully reenters the Trinity Alps Wilderness downstream of Hobo Gulch to the Trinity Alps Wilderness boundary upstream of the County Road 421 crossing, as a wild river.

''(D) The 1.3-mile segment from the Trinity Alps Wilderness boundary upstream of the County Road 421 crossing to the Trinity River, as a recreational river.

''(245) EAST FORK NORTH FORK TRINITY RIVER.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 9.5-mile segment from the source north of Mt. Hilton in sec. 19, T. 36 N., R. 10 W., to the end of Road 35N20 approximately 0.5 miles downstream of the confluence with the East Branch East Fork North Fork Trinity River, as a wild river.

''(B) The 3.25-mile segment from the end of Road 35N20 to 0.25 miles upstream of Coleridge, as a scenic river.

''(C) The 4.6-mile segment from 0.25 miles upstream of Coleridge to the confluence of Fox Gulch, as a recreational river.

''(246) NEW RIVER.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 12.7-mile segment of Virgin Creek from its source spring in sec. 22, T. 9 N., R. 7 E., to Slide Creek, as a wild river.

''(B) The 2.3-mile segment of the New River where it begins at the confluence of Virgin and Slide Creeks to Barron Creek, as a wild river.

''(247) MIDDLE EEL RIVER.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 37.7-mile segment from its source in Frying Pan Meadow to Rose Creek, as a wild river.

''(B) The 1.5-mile segment from Rose Creek to the Black Butte River, as a recreational river.

''(C) The 10.5-mile segment of Balm of Gilead Creek from its source in Hopkins Hollow to the Middle Eel River, as a wild river.

''(D) The 13-mile segment of the North Fork Middle Fork Eel River from the source on Dead Puppy Ridge in sec. 11, T. 26 N., R. 11 W., to the confluence of the Middle Eel River, as a wild river.

''(248) NORTH FORK EEL RIVER, CALIFORNIA.—The 14.3-mile segment from the confluence with Gilman Creek to the Six Rivers National Forest boundary, to be administered by the Secretary of Agriculture as a wild river.

''(249) RED MOUNTAIN CREEK, CALIFORNIA.—The following segments, to be administered by the Secretary of Agriculture:

''(A) The 5.25-mile segment from its source west of Mike's Rock in sec. 23, T. 26 N., R. 12 E., to the confluence with Littlefield Creek, as a wild river.

''(B) The 1.6-mile segment from the confluence with Littlefield Creek to the confluence with the unnamed tributary in sec. 32, T. 26 N., R. 8 E., as a scenic river.

''(C) The 1.25-mile segment from the confluence with the unnamed tributary in sec. 32, T. 4 S., R. 8 E., to the confluence with the North Fork Eel River, as a wild river.

''(250) REDWOOD CREEK.—The following segments, to be administered by the Secretary of the Interior:

''(A) The 6.2-mile segment from the confluence with Lacks Creek to the confluence with Coyote Creek, as a scenic river, on publication by the Secretary of the Interior of a notice in the Federal Register that sufficient land or interests in land within the boundaries of the segments have been acquired in fee title or as a scenic easement to establish a manageable addition to the National Wild and Scenic Rivers System.

''(B) The 19.1-mile segment from the confluence with Coyote Creek in sec. 2, T. 8 N., R. 2 E., to the Redwood National Park boundary upstream of Orick in sec. 34, T. 11 N., R. 1 E., as a scenic river.

''(C) The 2.3-mile segment of Emerald Creek (also known as Harry Weir Creek) from its source in sec. 29, T. 10 N., R. 2 E., to the confluence with Redwood Creek, as a scenic river.

''(251) LACKS CREEK.—The following segments, to be administered by the Secretary of the Interior:

''(A) The 5.1-mile segment from the confluence with 2 unnamed tributaries in sec. 14, T. 7 N., R. 3 E., to Kings Crossing in sec. 27, T. 8 N., R. 3 E., as a wild river.

''(B) The 2.7-mile segment from Kings Crossing to the confluence with Redwood Creek, as a scenic river, on publication by the Secretary of a notice in the Federal Register that sufficient inholdings within the segment have been acquired in fee title or as scenic easements to establish a manageable addition to the National Wild and Scenic Rivers System.

''(252) LOST MAN CREEK.—The following segments, to be administered by the Secretary of the Interior:

''(A) The 6.4-mile segment of Lost Man Creek from its source in sec. 5, T. 10 N., R. 2 E., to 0.25 miles upstream of the Prairie Creek confluence, as a recreational river.

''(B) The 2.3-mile segment of Larry Damm Creek from its source in sec. 8, T. 11 N., R. 2 E., to the confluence with Lost Man Creek, as a recreational river.

''(253) LITTLE LOST MAN CREEK.—The 3.6-mile segment of Little Lost Man Creek from its source in sec. 6, T. 10 N., R. 2 E., to 0.25 miles upstream of the Lost Man Creek road crossing, to be administered by the Secretary of the Interior as a wild river.

''(254) SOUTH FORK ELK RIVER.—The following segments, to be administered by the Secretary of the Interior through a cooperative management agreement with the State of California:

''(A) The 3.6-mile segment of the Little South Fork Elk River from the source in sec. 21, T. 3 N., R. 1 E., to the confluence with the South Fork Elk River, as a wild river.

''(B) The 2.2-mile segment of the unnamed tributary of the Little South Fork Elk River from its source in sec. 15, T. 3 N., R. 1 E., to the confluence with the Little South Fork Elk River, as a wild river.

''(C) The 3.6-mile segment of the South Fork Elk River from the confluence of the Little South Fork Elk River to the confluence with Tom Gulch, as a recreational river.

''(255) SALMON CREEK.—The 4.6-mile segment from its source in sec. 27, T. 3 N., R. 1 E., to the Headwaters Forest Reserve boundary in sec. 18, T. 3 N., R. 1 E., to be administered by the Secretary of the Interior as a wild river through a cooperative management agreement with the State of California.

''(256) SOUTH FORK EEL RIVER.—The following segments, to be administered by the Secretary of the Interior:

''(A) The 6.2-mile segment from the confluence with Jack of Hearts Creek to the southern boundary of the South Fork Eel Wilderness in sec. 8, T. 22 N., R. 16 W., as a recreational river to be administered by the Secretary through a cooperative management agreement with the State of California.

''(B) The 6.1-mile segment from the southern boundary of the South Fork Eel Wilderness to the northern boundary of the South Fork Eel Wilderness in sec. 29, T. 23 N., R. 16 W., as a wild river.

''(257) ELDER CREEK.—The following segments, to be administered by the Secretary of the Interior through a cooperative management agreement with the State of California:

''(A) The 3.6-mile segment from its source north of Signal Peak in sec. 6, T. 21 N., R. 15 W., to the confluence with the unnamed tributary near the center of sec. 28, T. 22 N., R. 16 W., as a wild river.

''(B) The 1.3-mile segment from the confluence with the unnamed tributary near the center of sec. 28, T. 22 N., R. 15 W., to the confluence with the South Fork Eel River, as a recreational river.

''(C) The 2.1-mile segment of Paralyze Canyon from its source south of Signal Peak in sec. 7, T. 21 N., R. 15 W., to the confluence with Elder Creek, as a wild river.

''(258) CEDAR CREEK.—The following segments, to be administered as a wild river by the Secretary of the Interior:

''(A) The 7.7-mile segment from its source in sec. 22, T. 24 N., R. 16 W., to the southern boundary of the Red Mountain unit of the South Fork Eel Wilderness.

''(B) The 1.9-mile segment of North Fork Cedar Creek from its source in sec. 28, T. 24 N., R. 16 E., to the confluence with Cedar Creek.

''(259) EAST BRANCH SOUTH FORK EEL RIVER.—The following segments, to be administered by the Secretary of the Interior as a scenic river on publication by the Secretary of a notice in the Federal Register that sufficient inholdings within the boundaries of the segments have been acquired in fee title or as scenic easements to establish a manageable addition to the National Wild and Scenic Rivers System:

''(A) The 2.3-mile segment of Cruso Cabin Creek from the confluence of 2 unnamed tributaries in sec. 18, T. 24 N., R. 15 W., to the confluence with Elkhorn Creek.

''(B) The 1.8-mile segment of Elkhorn Creek from the confluence of 2 unnamed tributaries in sec. 22, T. 24 N., R. 16 W., to the confluence with Cruso Cabin Creek.

''(C) The 14.2-mile segment of the East Branch South Fork Eel River from the confluence of Cruso Cabin and Elkhorn Creeks to the confluence with Rays Creek.

''(D) The 1.7-mile segment of the unnamed tributary from its source on the north flank of Red Mountain's north ridge in sec. 2, T. 24 N., R. 17 W., to the confluence with the East Branch South Fork Eel River.

''(E) The 1.3-mile segment of the unnamed tributary from its source on the north flank of Red Mountain's north ridge in sec. 1, T. 24 N., R. 17 W., to the confluence with the East Branch South Fork Eel River.

''(F) The 1.8-mile segment of Tom Long Creek from the confluence with the unnamed tributary in sec. 12, T. 5 S., R. 4 E., to the confluence with the East Branch South Fork Eel River.

''(260) MATTOLE RIVER ESTUARY.—The 1.5-mile segment from the confluence of Stansberry Creek to the Pacific Ocean, to be administered as a recreational river by the Secretary of the Interior.

''(261) HONEYDEW CREEK.—The following segments, to be administered as a wild river by the Secretary of the Interior:

''(A) The 5.1-mile segment of Honeydew Creek from its source in the southwest corner of sec. 25, T. 3 S., R. 1 W., to the eastern boundary of the King Range National Conservation Area in sec. 18, T. 3 S., R. 1 E.

''(B) The 2.8-mile segment of West Fork Honeydew Creek from its source west of North Slide Peak to the confluence with Honeydew Creek.

''(C) The 2.7-mile segment of Upper East Fork Honeydew Creek from its source in sec. 23, T. 3 S., R. 1 W., to the confluence with Honeydew Creek.

''(262) BEAR CREEK.—The following segments, to be administered by the Secretary of the Interior:

''(A) The 1.9-mile segment of North Fork Bear Creek from the confluence with the unnamed tributary immediately downstream of the Horse Mountain Road crossing to the confluence with the South Fork, as a scenic river.

''(B) The 6.1-mile segment of South Fork Bear Creek from the confluence in sec. 2, T. 5 S., R. 1 W., with the unnamed tributary flowing from the southwest flank of Queen Peak to the confluence with the North Fork, as a scenic river.

''(C) The 3-mile segment of Bear Creek from the confluence of the North and South Forks to the southern boundary of sec. 11, T. 4 S., R. 1 E., as a wild river.

''(263) GITCHELL CREEK.—The 3-mile segment of Gitchell Creek from its source near Saddle Mountain to the Pacific Ocean, to be administered by the Secretary of the Interior as a wild river.

''(264) BIG FLAT CREEK.—The following segments, to be administered by the Secretary of the Interior as a wild river:

''(A) The 4-mile segment of Big Flat Creek from its source near King Peak in sec. 36, T. 3 S., R. 1 W., to the Pacific Ocean.

''(B) The 0.8-mile segment of the unnamed tributary from its source in sec. 35, T. 3 S., R. 1 W., to the confluence with Big Flat Creek.

''(C) The 2.7-mile segment of North Fork Big Flat Creek from the source in sec. 34, T. 3 S., R. 1 W., to the confluence with Big Flat Creek.

''(265) BIG CREEK.—The following segments, to be administered by the Secretary of the Interior as a wild river:

''(A) The 2.7-mile segment of Big Creek from its source in sec. 26, T. 3 S., R. 1 W., to the Pacific Ocean.

''(B) The 1.9-mile unnamed southern tributary from its source in sec. 25, T. 3 S., R. 1 W., to the confluence with Big Creek.

''(266) ELK CREEK.—The 11.4-mile segment from its confluence with Lookout Creek to its confluence with Deep Hole Creek, to be jointly administered by the Secretaries of Agriculture and the Interior as a wild river.

''(267) EDEN CREEK.—The 2.7-mile segment from the private property boundary in the northwest quarter of sec. 27, T. 21 N., R. 12 W., to the eastern boundary of sec. 23, T. 21 N., R. 12 W., to be administered by the Secretary of the Interior as a wild river.

''(268) DEEP HOLE CREEK.—The 4.3-mile segment from the private property boundary in the southwest quarter of sec. 13, T. 20 N., R. 12 W., to the confluence with Elk Creek, to be administered by the Secretary of the Interior as a wild river.

''(269) INDIAN CREEK.—The 3.3-mile segment from 300 feet downstream of the jeep trail in sec. 13, T. 20 N., R. 13 W., to the confluence with the Eel River, to be administered by the Secretary of the Interior as a wild river.

''(270) FISH CREEK.—The 4.2-mile segment from the source at Buckhorn Spring to the confluence with the Eel River, to be administered by the Secretary of the Interior as a wild river.''.

SEC. 6135. SANHEDRIN SPECIAL CONSERVATION MANAGEMENT AREA.

(a) ESTABLISHMENT.—Subject to valid existing rights, there is established the Sanhedrin Special Conservation Management Area (referred to in this section as the ''conservation management area''), comprising approximately 12,254 acres of Federal land administered by the Forest Service in Mendocino County, California, as generally depicted on the map entitled ''Sanhedrin Conservation Management Area'' and dated May 15, 2020.

(b) PURPOSES.—The purposes of the conservation management area are—

(1) to conserve, protect, and enhance for the benefit and enjoyment of present and future generations the ecological, scenic, wildlife, recreational, roadless, cultural, historical, natural, educational, and scientific resources of the conservation management area;

(2) to protect and restore late-successional forest structure, oak woodlands and grasslands, aquatic habitat, and anadromous fisheries within the conservation management area;

(3) to protect and restore the undeveloped character of the conservation management area; and

(4) to allow visitors to enjoy the scenic, natural, cultural, and wildlife values of the conservation management area.

(c) MANAGEMENT.—

(1) IN GENERAL.—The Secretary shall manage the conservation management area—

(A) in a manner consistent with the purposes described in subsection (b); and

(B) in accordance with—

(i) the laws (including regulations) generally applicable to the National Forest System;

(ii) this section; and

(iii) any other applicable law (including regulations).

(2) USES.—The Secretary shall only allow uses of the conservation management area that the Secretary determines would further the purposes described in subsection (b).

(d) MOTORIZED VEHICLES.—

(1) IN GENERAL.—Except as provided in paragraph (3), the use of motorized vehicles in the conservation management area shall be permitted only on existing roads, trails, and areas designated for use by such vehicles as of the date of enactment of this Act.

(2) NEW OR TEMPORARY ROADS.—Except as provided in paragraph (3), no new or temporary roads shall be constructed within the conservation management area.

(3) EXCEPTIONS.—Nothing in paragraph (1) or (2) prevents the Secretary from—

(A) rerouting or closing an existing road or trail to protect natural resources from degradation, or to protect public safety, as determined to be appropriate by the Secretary;

(B) designating routes of travel on land acquired by the Secretary and incorporated into the conservation management area if the designations are—

(i) consistent with the purposes described in subsection (b); and

(ii) completed, to the maximum extent practicable, not later than 3 years after the date of acquisition;

(C) constructing a temporary road on which motorized vehicles are permitted as part of a vegetation management project carried out in accordance with paragraph (4);

(D) authorizing the use of motorized vehicles for administrative purposes; or

(E) responding to an emergency.

(4) DECOMMISSIONING OF TEMPORARY ROADS.—

(A) DEFINITION OF DECOMMISSION.—In this paragraph, the term ''decommission'' means, with respect to a road—

(i) to reestablish vegetation on the road; and

(ii) to restore any natural drainage, watershed function, or other ecological processes that are disrupted or adversely impacted by the road by removing or hydrologically disconnecting the road prism.

(B) REQUIREMENT.—Not later than 3 years after the date on which the applicable vegetation management project is completed, the Secretary shall decommission any temporary road constructed under paragraph (3)(C).

(e) TIMBER HARVEST.—

(1) IN GENERAL.—Except as provided in paragraph (2), no harvesting of timber shall be allowed within the conservation management area.

(2) EXCEPTIONS.—The Secretary may authorize harvesting of timber in the conservation management area—

(A) if the Secretary determines that the harvesting is necessary to further the purposes of the conservation management area;

(B) in a manner consistent with the purposes described in subsection (b); and

(C) subject to—

(i) such reasonable regulations, policies, and practices as the Secretary determines to be appropriate; and

(ii) all applicable laws (including regulations).

(f) GRAZING.—The grazing of livestock in the conservation management area, where established before the date of enactment of this Act, shall be permitted to continue—

(1) subject to—

(A) such reasonable regulations, policies, and practices as the Secretary considers necessary; and

(B) applicable law (including regulations); and

(2) in a manner consistent with the purposes described in subsection (b).

(g) WILDFIRE, INSECT, AND DISEASE MANAGEMENT.—Consistent with this section, the Secretary may carry out any activities within the conservation management area that the Secretary determines to be necessary to control fire, insects, or diseases, including the coordination of those activities with a State or local agency.

(h) ACQUISITION AND INCORPORATION OF LAND AND INTERESTS IN LAND.—

(1) ACQUISITION AUTHORITY.—In accordance with applicable laws (including regulations), the Secretary may acquire any land or interest in land within or adjacent to the boundaries of the conservation management area by purchase from a willing seller, donation, or exchange.

(2) INCORPORATION.—Any land or interest in land acquired by the Secretary under paragraph (1) shall be—

(A) incorporated into, and administered as part of, the conservation management area; and

(B) withdrawn in accordance with subsection (i).

(i) WITHDRAWAL.—Subject to valid existing rights, all Federal land located in the conservation management area is withdrawn from—

(1) all forms of entry, appropriation, and disposal under the public land laws;

(2) location, entry, and patenting under the mining laws; and

(3) operation of the mineral leasing, mineral materials, and geothermal leasing laws.

SEC. 6136. RELEASE OF WILDERNESS STUDY AREA.

(a) FINDING.—Congress finds that, for purposes of section 603 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1782), any portion of the Eden Valley Wilderness Study Area that is not designated as a wilderness area or wilderness addition by section 6131(a) has been adequately studied for wilderness designation.

(b) RELEASE.—Any portion of a wilderness study area described in subsection (a) that is not designated as a wilderness area or wilderness addition by section 6131(a) is no longer subject to section 603(c) of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1782(c)).

Subtitle D—Miscellaneous

SEC. 6141. MAPS AND LEGAL DESCRIPTIONS.

(a) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary shall prepare maps and legal descriptions of—

(1) the South Fork Trinity-Mad River Restoration Area established by section 6111(b);

(2) the Horse Mountain Special Management Area established by section 6121(a);

(3) the wilderness areas and wilderness additions designated by section 6131(a);

(4) the potential wilderness areas designated by section 6133(a); and

(5) the Sanhedrin Special Conservation Management Area established by section 6135(a).

(b) SUBMISSION OF MAPS AND LEGAL DESCRIPTIONS.—The Secretary shall file the maps and legal descriptions prepared under subsection (a) with—

(1) the Committee on Energy and Natural Resources of the Senate; and

(2) the Committee on Natural Resources of the House of Representatives.

(c) FORCE OF LAW.—The maps and legal descriptions prepared under subsection (a) shall have the same force and effect as if included in this title, except that the Secretary may correct any clerical and typographical errors in the maps and legal descriptions.

(d) PUBLIC AVAILABILITY.—The maps and legal descriptions prepared under subsection (a) shall be on file and available for public inspection in the appropriate offices of the Forest Service, the Bureau of Land Management, or the National Park Service, as applicable.

SEC. 6142. UPDATES TO LAND AND RESOURCE MANAGEMENT PLANS.

As soon as practicable after the date of enactment of this Act, in accordance with applicable law (including regulations), the Secretary shall incorporate the designations and studies required by this title into updated management plans for units covered by this title.

SEC. 6143. PACIFIC GAS AND ELECTRIC COMPANY UTILITY FACILITIES AND RIGHTS-OF-WAY.

(a) EFFECT OF TITLE.—Nothing in this title—

(1) affects any validly issued right-of-way for the customary operation, maintenance, upgrade, repair, relocation within an existing right-of-way, replacement, or other authorized activity (including the use of any mechanized vehicle, helicopter, and other aerial device) in a right-of-way acquired by or issued, granted, or permitted to Pacific Gas and Electric Company (including any predecessor or successor in interest or assign) that is located on land included in—

(A) the South Fork Trinity-Mad River Restoration Area established by section 6111(b);

(B) the Horse Mountain Special Management Area established by section 6121(a);

(C) the Bigfoot National Recreation Trail established under section 6122(b)(1);

(D) the Sanhedrin Special Conservation Management Area established by section 6135(a); or

(2) prohibits the upgrading or replacement of any—

(A) utility facilities of the Pacific Gas and Electric Company, including those utility facilities in existence on the date of enactment of this Act within—

(i) the South Fork Trinity-Mad River Restoration Area known as—

(I) ''Gas Transmission Line 177A or rights-of-way'';

(II) ''Gas Transmission Line DFM 1312-02 or rights-of-way'';

(III) ''Electric Transmission Line Bridgeville-Cottonwood 115 kV or rights-of-way'';

(IV) ''Electric Transmission Line Humboldt-Trinity 60 kV or rights-of-way'';

(V) ''Electric Transmission Line Humboldt-Trinity 115 kV or rights-of-way'';

(VI) ''Electric Transmission Line Maple Creek-Hoopa 60 kV or rights-of-way'';

(VII) ''Electric Distribution Line-Willow Creek 1101 12 kV or rights-of-way'';

(VIII) ''Electric Distribution Line-Willow Creek 1103 12 kV or rights-of-way'';

(IX) ''Electric Distribution Line-Low Gap 1101 12 kV or rights-of-way'';

(X) ''Electric Distribution Line-Fort Seward 1121 12 kV or rights-of-way'';

(XI) ''Forest Glen Border District Regulator Station or rights-of-way'';

(XII) ''Durret District Gas Regulator Station or rights-of-way'';

(XIII) ''Gas Distribution Line 4269C or rights-of-way'';

(XIV) ''Gas Distribution Line 43991 or rights-of-way'';

(XV) ''Gas Distribution Line 4993D or rights-of-way'';

(XVI) ''Sportsmans Club District Gas Regulator Station or rights-of-way'';

(XVII) ''Highway 36 and Zenia District Gas Regulator Station or rights-of-way'';

(XVIII) ''Dinsmore Lodge 2nd Stage Gas Regulator Station or rights-of-way'';

(XIX) ''Electric Distribution Line-Wildwood 1101 12kV or rights-of-way'';

(XX) ''Low Gap Substation'';

(XXI) ''Hyampom Switching Station''; or

(XXII) ''Wildwood Substation'';

(ii) the Bigfoot National Recreation Trail known as—

(I) ''Gas Transmission Line 177A or rights-of-way'';

(II) ''Electric Transmission Line Humboldt-Trinity 115 kV or rights-of-way'';

(III) ''Electric Transmission Line Bridgeville-Cottonwood 115 kV or rights-of-way''; or

(IV) ''Electric Transmission Line Humboldt-Trinity 60 kV or rights-of-way'';

(iii) the Sanhedrin Special Conservation Management Area known as ''Electric Distribution Line-Willits 1103 12 kV or rights-of-way''; or

(iv) the Horse Mountain Special Management Area known as ''Electric Distribution Line Willow Creek 1101 12 kV or rights-of-way''; or

(B) utility facilities of the Pacific Gas and Electric Company in rights-of-way issued, granted, or permitted by the Secretary adjacent to a utility facility referred to in subparagraph (A).

(b) PLANS FOR ACCESS.—Not later than the later of the date that is 1 year after the date of enactment of this Act or the date of issuance of a new utility facility right-of-way within the South Fork Trinity-Mad River Restoration Area, Bigfoot National Recreation Trail, Sanhedrin Special Conservation Management Area, or Horse Mountain Special Management Area, the Secretary, in consultation with the Pacific Gas and Electric Company, shall publish plans for regular and emergency access by the Pacific Gas and Electric Company to the inholdings and rights-of-way of the Pacific Gas and Electric Company.

TITLE LXII—CENTRAL COAST HERITAGE PROTECTION

SEC. 6201. DEFINITIONS.

In this title:

(1) SCENIC AREA.—The term ''scenic area'' means a scenic area designated by section 6207(a).

(2) SECRETARY.—The term ''Secretary'' means—

(A) with respect to land managed by the Bureau of Land Management, the Secretary of the Interior; and

(B) with respect to land managed by the Forest Service, the Secretary of Agriculture.

(3) STATE.—The term ''State'' means the State of California.

(4) WILDERNESS AREA.—The term ''wilderness area'' means a wilderness area or wilderness addition designated by section 6202(a).

SEC. 6202. DESIGNATION OF WILDERNESS.

(a) IN GENERAL.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.), the following areas in the State are designated as wilderness areas and as components of the National Wilderness Preservation System:

(1) Certain land in the Bakersfield Field Office of the Bureau of Land Management comprising approximately 35,116 acres, as generally depicted on the map entitled ''Proposed Caliente Mountain Wilderness'' and dated February 2, 2022, which shall be known as the ''Caliente Mountain Wilderness''.

(2) Certain land in the Bakersfield Field Office of the Bureau of Land Management comprising approximately 13,332 acres, as generally depicted on the map entitled ''Proposed Soda Lake Wilderness'' and dated June 25, 2019, which shall be known as the ''Soda Lake Wilderness''.

(3) Certain land in the Bakersfield Field Office of the Bureau of Land Management comprising approximately 12,585 acres, as generally depicted on the map entitled ''Proposed Temblor Range Wilderness'' and dated June 25, 2019, which shall be known as the ''Temblor Range Wilderness''.

(4) Certain land in the Los Padres National Forest comprising approximately 23,670 acres, as generally depicted on the map entitled ''Chumash Wilderness Area Additions—Proposed'' and dated March 29, 2019, which shall be incorporated into and managed as part of the Chumash Wilderness as designated by section 2(5) of the Los Padres Condor Range and River Protection Act (16 U.S.C. 1132 note; Public Law 102–301; 106 Stat. 243).

(5) Certain land in the Los Padres National Forest comprising approximately 54,036 acres, as generally depicted on the maps entitled ''Dick Smith Wilderness Area Additions—Proposed Map 1 of 2 (Bear Canyon and Cuyama Peak Units)'' and ''Dick Smith Wilderness Area Additions—Proposed Map 2 of 2 (Buckhorn and Mono Units)'' and dated November 14, 2019, which shall be incorporated into and managed as part of the Dick Smith Wilderness as designated by section 101(a)(6) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1620).

(6) Certain land in the Los Padres National Forest and the Bakersfield Field Office of the Bureau of Land Management comprising approximately 7,289 acres, as generally depicted on the map entitled ''Garcia Wilderness Area Additions—Proposed'' and dated March 29, 2019, which shall be incorporated into and managed as part of the Garcia Wilderness as designated by section 2(4) of the Los Padres Condor Range and River Protection Act (16 U.S.C. 1132 note; Public Law 102–301; 106 Stat. 243).

(7) Certain land in the Los Padres National Forest and the Bakersfield Field Office of the Bureau of Land Management comprising approximately 8,774 acres, as generally depicted on the map entitled ''Machesna Mountain Wilderness—Proposed Additions'' and dated October 30, 2019, which shall be incorporated into and managed as part of the Machesna Mountain Wilderness as designated by section 101(a)(38) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1624).

(8) Certain land in the Los Padres National Forest comprising approximately 30,184 acres, as generally depicted on the map entitled ''Matilija Wilderness Area Additions—Proposed'' and dated March 29, 2019, which shall be incorporated into and managed as part of the Matilija Wilderness as designated by section 2(2) of the Los Padres Condor Range and River Protection Act (16 U.S.C. 1132 note; Public Law 102–301; 106 Stat. 242).

(9) Certain land in the Los Padres National Forest comprising approximately 23,969 acres, as generally depicted on the map entitled ''San Rafael Wilderness Area Additions—Proposed'' and dated February 2, 2021, which shall be incorporated into and managed as part of the San Rafael Wilderness as designated by Public Law 90–271 (16 U.S.C. 1132 note; 82 Stat. 51).

(10) Certain land in the Los Padres National Forest comprising approximately 2,921 acres, as generally depicted on the map entitled ''Santa Lucia Wilderness Area Additions—Proposed'' and dated March 29, 2019, which shall be incorporated into and managed as part of the Santa Lucia Wilderness as designated by section 2(c) of the Endangered American Wilderness Act of 1978 (16 U.S.C. 1132 note; Public Law 95–237; 92 Stat. 41).

(11) Certain land in the Los Padres National Forest comprising approximately 14,313 acres, as generally depicted on the map entitled ''Sespe Wilderness Area Additions—Proposed'' and dated March 29, 2019, which shall be incorporated into and managed as part of the Sespe Wilderness as designated by section 2(1) of the Los Padres Condor Range and River Protection Act (16 U.S.C. 1132 note; Public Law 102–301; 106 Stat. 242).

(12) Certain land in the Los Padres National Forest comprising approximately 17,870 acres, as generally depicted on the map entitled ''Diablo Caliente Wilderness Area—Proposed'' and dated March 29, 2019, which shall be known as the ''Diablo Caliente Wilderness''.

(b) MAPS AND LEGAL DESCRIPTIONS.—

(1) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary shall file maps and legal descriptions of the wilderness areas with—

(A) the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(2) FORCE OF LAW.—The maps and legal descriptions filed under paragraph (1) shall have the same force and effect as if included in this title, except that the Secretary may correct any clerical and typographical errors in the maps and legal descriptions.

(3) PUBLIC AVAILABILITY.—The maps and legal descriptions filed under paragraph (1) shall be on file and available for public inspection in the appropriate offices of the Forest Service and Bureau of Land Management.

SEC. 6203. DESIGNATION OF THE MACHESNA MOUNTAIN POTENTIAL WILDERNESS.

(a) DESIGNATION.—In furtherance of the purposes of the Wilderness Act (16 U.S.C. 1131 et seq.), certain land in the Los Padres National Forest comprising approximately 2,359 acres, as generally depicted on the map entitled ''Machesna Mountain Potential Wilderness'' and dated March 29, 2019, is designated as the Machesna Mountain Potential Wilderness Area.

(b) MAP AND LEGAL DESCRIPTION.—

(1) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary shall file a map and legal description of the Machesna Mountain Potential Wilderness Area (referred to in this section as the ''potential wilderness area'') with—

(A) the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(2) FORCE OF LAW.—The map and legal description filed under paragraph (1) shall have the same force and effect as if included in this title, except that the Secretary may correct any clerical and typographical errors in the map and legal description.

(3) PUBLIC AVAILABILITY.—The map and legal description filed under paragraph (1) shall be on file and available for public inspection in the appropriate offices of the Forest Service.

(c) MANAGEMENT.—Except as provided in subsection (d) and subject to valid existing rights, the Secretary shall manage the potential wilderness area in accordance with the Wilderness Act (16 U.S.C. 1131 et seq.).

(d) TRAIL USE, CONSTRUCTION, RECONSTRUCTION, AND REALIGNMENT.—

(1) IN GENERAL.—In accordance with paragraph (2), the Secretary may reconstruct, realign, or reroute the Pine Mountain Trail.

(2) REQUIREMENT.—In carrying out the reconstruction, realignment, or rerouting under paragraph (1), the Secretary shall—

(A) comply with all existing laws (including regulations); and

(B) to the maximum extent practicable, use the minimum tool or administrative practice necessary to accomplish the reconstruction, realignment, or rerouting with the least amount of adverse impact on wilderness character and resources.

(3) MOTORIZED VEHICLES AND MACHINERY.—In accordance with paragraph (2), the Secretary may use motorized vehicles and machinery to carry out the trail reconstruction, realignment, or rerouting authorized by this subsection.

(4) MOTORIZED AND MECHANIZED VEHICLES.—The Secretary may permit the use of motorized and mechanized vehicles on the existing Pine Mountain Trail in accordance with existing law (including regulations) and this subsection until such date as the potential wilderness area is designated as wilderness in accordance with subsection (h).

(e) WITHDRAWAL.—Subject to valid existing rights, the Federal land in the potential wilderness area is withdrawn from all forms of—

(1) entry, appropriation, or disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) disposition under all laws pertaining to mineral and geothermal leasing or mineral materials.

(f) COOPERATIVE AGREEMENTS.—In carrying out this section, the Secretary may enter into cooperative agreements with State, Tribal, and local governmental entities and private entities to complete the trail reconstruction, realignment, or rerouting authorized by subsection (d).

(g) BOUNDARIES.—The Secretary shall modify the boundary of the potential wilderness area to exclude any area within 150 feet of the centerline of the new location of any trail that has been reconstructed, realigned, or rerouted under subsection (d).

(h) WILDERNESS DESIGNATION.—

(1) IN GENERAL.—The potential wilderness area, as modified under subsection (g), shall be designated as wilderness and as a component of the National Wilderness Preservation System on the earlier of—

(A) the date on which the Secretary publishes in the Federal Register notice that the trail reconstruction, realignment, or rerouting authorized by subsection (d) has been completed; and

(B) the date that is 20 years after the date of enactment of this Act.

(2) ADMINISTRATION OF WILDERNESS.—On designation as wilderness under this section, the potential wilderness area shall be—

(A) incorporated into the Machesna Mountain Wilderness Area, as designated by section 101(a)(38) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1624) and expanded by section 6202; and

(B) administered in accordance with—

(i) section 6204; and

(ii) the Wilderness Act (16 U.S.C. 1131 et seq.).

SEC. 6204. ADMINISTRATION OF WILDERNESS.

(a) IN GENERAL.—Subject to valid existing rights, the wilderness areas shall be administered by the Secretary in accordance with this title and the Wilderness Act (16 U.S.C. 1131 et seq.), except that—

(1) any reference in the Wilderness Act (16 U.S.C. 1131 et seq.) to the effective date of that Act shall be considered to be a reference to the date of enactment of this Act; and

(2) any reference in the Wilderness Act (16 U.S.C. 1131 et seq.) to the Secretary of Agriculture shall be considered to be a reference to the Secretary that has jurisdiction over the wilderness area.

(b) FIRE MANAGEMENT AND RELATED ACTIVITIES.—

(1) IN GENERAL.—The Secretary may take any measures in a wilderness area as are necessary for the control of fire, insects, and diseases in accordance with section 4(d)(1) of the Wilderness Act (16 U.S.C. 1133(d)(1)) and House Report 98–40 of the 98th Congress.

(2) FUNDING PRIORITIES.—Nothing in this title limits funding for fire and fuels management in the wilderness areas.

(3) REVISION AND DEVELOPMENT OF LOCAL FIRE MANAGEMENT PLANS.—As soon as practicable after the date of enactment of this Act, the Secretary shall amend the local information in the Fire Management Reference System or individual operational plan that applies to the land designated as a wilderness area.

(4) ADMINISTRATION.—Consistent with paragraph (1) and other applicable Federal law, to ensure a timely and efficient response to fire emergencies in the wilderness areas, the Secretary shall enter into agreements with appropriate State or local firefighting agencies.

(c) GRAZING.—The grazing of livestock in the wilderness areas, if established before the date of enactment of this Act, shall be permitted to continue, subject to any reasonable regulations as the Secretary considers necessary in accordance with—

(1) section 4(d)(4) of the Wilderness Act (16 U.S.C. 1133(d)(4));

(2) the guidelines set forth in Appendix A of House Report 101–405, accompanying H.R. 2570 of the 101st Congress for land under the jurisdiction of the Secretary of the Interior;

(3) the guidelines set forth in House Report 96–617, accompanying H.R. 5487 of the 96th Congress for land under the jurisdiction of the Secretary of Agriculture; and

(4) all other laws governing livestock grazing on Federal public land.

(d) FISH AND WILDLIFE.—

(1) IN GENERAL.—In accordance with section 4(d)(7) of the Wilderness Act (16 U.S.C. 1133(d)(7)), nothing in this title affects the jurisdiction or responsibilities of the State with respect to fish and wildlife on public land in the State.

(2) MANAGEMENT ACTIVITIES.—In furtherance of the purposes and principles of the Wilderness Act (16 U.S.C. 1131 et seq.), the Secretary may conduct any management activities that are necessary to maintain or restore fish and wildlife populations and habitats in the wilderness areas, if the management activities are—

(A) consistent with relevant wilderness management plans;

(B) conducted in accordance with appropriate policies, such as the policies established in Appendix B of House Report 101–405; and

(C) in accordance with memoranda of understanding between the Federal agencies and the State Department of Fish and Wildlife.

(e) BUFFER ZONES.—

(1) IN GENERAL.—Congress does not intend for the designation of wilderness areas by this title to lead to the creation of protective perimeters or buffer zones around each wilderness area.

(2) ACTIVITIES OR USES UP TO BOUNDARIES.—The fact that nonwilderness activities or uses can be seen or heard from within a wilderness area shall not, of itself, preclude the activities or uses up to the boundary of the wilderness area.

(f) MILITARY ACTIVITIES.—Nothing in this title precludes—

(1) low-level overflights of military aircraft over the wilderness areas;

(2) the designation of new units of special airspace over the wilderness areas; or

(3) the use or establishment of military flight training routes over wilderness areas.

(g) HORSES.—Nothing in this title precludes horseback riding in, or the entry of recreational saddle or pack stock into, a wilderness area—

(1) in accordance with section 4(d)(5) of the Wilderness Act (16 U.S.C. 1133(d)(5)); and

(2) subject to any terms and conditions determined to be necessary by the Secretary.

(h) WITHDRAWAL.—Subject to valid existing rights, the wilderness areas are withdrawn from—

(1) all forms of entry, appropriation, and disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) disposition under all laws pertaining to mineral and geothermal leasing or mineral materials.

(i) INCORPORATION OF ACQUIRED LAND AND INTERESTS.—Any land within the boundary of a wilderness area that is acquired by the United States shall—

(1) become part of the wilderness area in which the land is located; and

(2) be managed in accordance with—

(A) this section;

(B) the Wilderness Act (16 U.S.C. 1131 et seq.); and

(C) any other applicable law.

(j) TREATMENT OF EXISTING WATER DIVERSIONS IN THE SAN RAFAEL WILDERNESS ADDITIONS.—

(1) AUTHORIZATION FOR CONTINUED USE.—The Secretary of Agriculture may issue a special use authorization to the owners of the 2 existing water transport or diversion facilities, including administrative access roads (each referred to in this subsection as a ''facility''), located on National Forest System land in the San Rafael Wilderness Additions in the Moon Canyon unit (T. 11 N., R. 30 W., secs. 13 and 14) and the Peak Mountain unit (T. 10 N., R. 28 W., secs. 23 and 26) for the continued operation, maintenance, and reconstruction of the facility if the Secretary determines that—

(A) the facility was in existence on the date on which the land on which the facility is located was designated as part of the National Wilderness Preservation System (referred to in this subsection as ''the date of designation'');

(B) the facility has been in substantially continuous use to deliver water for the beneficial use on the non-Federal land of the owner since the date of designation;

(C) the owner of the facility holds a valid water right for use of the water on the non-Federal land of the owner under State law, with a priority date that predates the date of designation; and

(D) it is not practicable or feasible to relocate the facility to land outside of the wilderness and continue the beneficial use of water on the non-Federal land recognized under State law.

(2) TERMS AND CONDITIONS.—

(A) REQUIRED TERMS AND CONDITIONS.—In a special use authorization issued under paragraph (1), the Secretary may—

(i) allow use of motorized equipment and mechanized transport for operation, maintenance, or reconstruction of a facility, if the Secretary determines that—

(I) the use is the minimum necessary to allow the facility to continue delivery of water to the non-Federal land for the beneficial uses recognized by the water right held under State law; and

(II) the use of nonmotorized equipment and nonmechanized transport is impracticable or infeasible; and

(ii) preclude use of the facility for the diversion or transport of water in excess of the water right recognized by the State on the date of designation.

(B) DISCRETIONARY TERMS AND CONDITIONS.—In a special use authorization issued under paragraph (1), the Secretary may require or allow modification or relocation of the facility in the wilderness, as the Secretary determines necessary, to reduce impacts to wilderness values set forth in section 2 of the Wilderness Act (16 U.S.C. 1131) if the beneficial use of water on the non-Federal land is not diminished.

(k) TREATMENT OF EXISTING ELECTRICAL DISTRIBUTION LINE IN THE SAN RAFAEL WILDERNESS ADDITIONS.—

(1) AUTHORIZATION FOR CONTINUED USE.—The Secretary of Agriculture may issue a special use authorization to the owners of the existing electrical distribution line to the Plowshare Peak communication site (referred to in this subsection as a ''facility'') located on National Forest System land in the San Rafael Wilderness Additions in the Moon Canyon unit (T. 11 N., R. 30 W., secs. 2, 3 and 4) for the continued operation, maintenance, and reconstruction of the facility if the Secretary determines that—

(A) the facility was in existence on the date on which the land on which the facility is located was designated as part of the National Wilderness Preservation System (referred to in this subsection as ''the date of designation'');

(B) the facility has been in substantially continuous use to deliver electricity to the communication site; and

(C) it is not practicable or feasible to relocate the distribution line to land outside of the wilderness.

(2) TERMS AND CONDITIONS.—

(A) REQUIRED TERMS AND CONDITIONS.—In a special use authorization issued under paragraph (1), the Secretary may allow use of motorized equipment and mechanized transport for operation, maintenance, or reconstruction of the electrical distribution line, if the Secretary determines that the use of nonmotorized equipment and nonmechanized transport is impracticable or infeasible.

(B) DISCRETIONARY TERMS AND CONDITIONS.—In a special use authorization issued under paragraph (1), the Secretary may require or allow modification or relocation of the facility in the wilderness, as the Secretary determines necessary, to reduce impacts to wilderness values set forth in section 2 of the Wilderness Act (16 U.S.C. 1131).

(l) CLIMATOLOGICAL DATA COLLECTION.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.) and subject to terms and conditions as the Secretary may prescribe, the Secretary may authorize the installation and maintenance of hydrologic, meteorologic, or climatological collection devices in the wilderness areas if the Secretary determines that the facilities and access to the facilities are essential to flood warning, flood control, or water reservoir operation activities.

SEC. 6205. DESIGNATION OF WILD AND SCENIC RIVERS.

(a) INDIAN CREEK, MONO CREEK, AND MATILIJA CREEK, CALIFORNIA.—Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) (as amended by section 6134) is amended by adding at the end the following:

''(271) INDIAN CREEK, CALIFORNIA.—The following segments of Indian Creek in the State of California, to be administered by the Secretary of Agriculture:

''(A) The 9.5-mile segment of Indian Creek from its source in sec. 19, T. 7 N., R. 26 W., to the Dick Smith Wilderness boundary, as a wild river.

''(B) The 1-mile segment of Indian Creek from the Dick Smith Wilderness boundary to 0.25 miles downstream of Road 6N24, as a scenic river.

''(C) The 3.9-mile segment of Indian Creek from 0.25 miles downstream of Road 6N24 to the southern boundary of sec. 32, T. 6 N., R. 26 W., as a wild river.

''(272) MONO CREEK, CALIFORNIA.—The following segments of Mono Creek in the State of California, to be administered by the Secretary of Agriculture:

''(A) The 4.2-mile segment of Mono Creek from its source in sec. 1, T. 7 N., R. 26 W., to 0.25 miles upstream of Don Victor Fire Road in sec. 28, T. 7 N., R. 25 W., as a wild river.

''(B) The 2.1-mile segment of Mono Creek from 0.25 miles upstream of the Don Victor Fire Road in sec. 28, T. 7 N., R. 25 W., to 0.25 miles downstream of Don Victor Fire Road in sec. 34, T. 7 N., R. 25 W., as a recreational river.

''(C) The 14.7-mile segment of Mono Creek from 0.25 miles downstream of Don Victor Fire Road in sec. 34, T. 7 N., R. 25 W., to the Ogilvy Ranch private property boundary in sec. 22, T. 6 N., R. 26 W., as a wild river.

''(D) The 3.5-mile segment of Mono Creek from the Ogilvy Ranch private property boundary to the southern boundary of sec. 33, T. 6 N., R. 26 W., as a recreational river.

''(273) MATILIJA CREEK, CALIFORNIA.—The following segments of Matilija Creek in the State of California, to be administered by the Secretary of Agriculture:

''(A) The 7.2-mile segment of the Matilija Creek from its source in sec. 25, T. 6 N., R. 25 W., to the private property boundary in sec. 9, T. 5 N., R. 24 W., as a wild river.

''(B) The 7.25-mile segment of the Upper North Fork Matilija Creek from its source in sec. 36, T. 6 N., R. 24 W., to the Matilija Wilderness boundary, as a wild river.''.

(b) SESPE CREEK, CALIFORNIA.—Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by striking paragraph (142) and inserting the following:

''(142) SESPE CREEK, CALIFORNIA.—The following segments of Sespe Creek in the State of California, to be administered by the Secretary of Agriculture:

''(A) The 2.7-mile segment of Sespe Creek from the private property boundary in sec. 10, T. 6 N., R. 24 W., to the Hartman Ranch private property boundary in sec. 14, T. 6 N., R. 24 W., as a wild river.

''(B) The 15-mile segment of Sespe Creek from the Hartman Ranch private property boundary in sec. 14, T. 6 N., R. 24 W., to the western boundary of sec. 6, T. 5 N., R. 22 W., as a recreational river.

''(C) The 6.1-mile segment of Sespe Creek from the western boundary of sec. 6, T. 5 N., R. 22 W., to the confluence with Trout Creek, as a scenic river.

''(D) The 28.6-mile segment of Sespe Creek from the confluence with Trout Creek to the southern boundary of sec. 35, T. 5 N., R. 20 W., as a wild river.''.

(c) SISQUOC RIVER, CALIFORNIA.—Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by striking paragraph (143) and inserting the following:

''(143) SISQUOC RIVER, CALIFORNIA.—The following segments of the Sisquoc River and its tributaries in the State of California, to be administered by the Secretary of Agriculture:

''(A) The 33-mile segment of the main stem of the Sisquoc River extending from its origin downstream to the Los Padres Forest boundary, as a wild river.

''(B) The 4.2-mile segment of the South Fork Sisquoc River from its source northeast of San Rafael Mountain in sec. 2, T. 7 N., R. 28 W., to its confluence with the Sisquoc River, as a wild river.

''(C) The 10.4-mile segment of Manzana Creek from its source west of San Rafael Peak in sec. 4, T. 7 N., R. 28 W., to the San Rafael Wilderness boundary upstream of Nira Campground, as a wild river.

''(D) The 0.6-mile segment of Manzana Creek from the San Rafael Wilderness boundary upstream of the Nira Campground to the San Rafael Wilderness boundary downstream of the confluence of Davy Brown Creek, as a recreational river.

''(E) The 5.8-mile segment of Manzana Creek from the San Rafael Wilderness boundary downstream of the confluence of Davy Brown Creek to the private property boundary in sec. 1, T. 8 N., R. 30 W., as a wild river.

''(F) The 3.8-mile segment of Manzana Creek from the private property boundary in sec. 1, T. 8 N., R. 30 W., to the confluence of the Sisquoc River, as a recreational river.

''(G) The 3.4-mile segment of Davy Brown Creek from its source west of Ranger Peak in sec. 32, T. 8 N., R. 29 W., to 300 feet upstream of its confluence with Munch Canyon, as a wild river.

''(H) The 1.4-mile segment of Davy Brown Creek from 300 feet upstream of its confluence with Munch Canyon to its confluence with Manzana Creek, as a recreational river.

''(I) The 2-mile segment of Munch Canyon from its source north of Ranger Peak in sec. 33, T. 8 N., R. 29 W., to 300 feet upstream of

its confluence with Sunset Valley Creek, as a wild river.

''(J) The 0.5-mile segment of Munch Canyon from 300 feet upstream of its confluence with Sunset Valley Creek to its confluence with Davy Brown Creek, as a recreational river.

''(K) The 2.6-mile segment of Fish Creek from 500 feet downstream of Sunset Valley Road to its confluence with Manzana Creek, as a wild river.

''(L) The 1.5-mile segment of East Fork Fish Creek from its source in sec. 26, T. 8 N., R. 29 W., to its confluence with Fish Creek, as a wild river.''.

(d) PIRU CREEK, CALIFORNIA.—Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by striking paragraph (199) and inserting the following:

''(199) PIRU CREEK, CALIFORNIA.—The following segments of Piru Creek in the State of California, to be administered by the Secretary of Agriculture:

''(A) The 9.1-mile segment of Piru Creek from its source in sec. 3, T. 6 N., R. 22 W., to the private property boundary in sec. 4, T. 6 N., R. 21 W., as a wild river.

''(B) The 17.2-mile segment of Piru Creek from the private property boundary in sec. 4, T. 6 N., R. 21 W., to 0.25 miles downstream of the Gold Hill Road, as a scenic river.

''(C) The 4.1-mile segment of Piru Creek from 0.25 miles downstream of Gold Hill Road to the confluence with Trail Canyon, as a wild river.

''(D) The 7.25-mile segment of Piru Creek from the confluence with Trail Canyon to the confluence with Buck Creek, as a scenic river.

''(E) The 3-mile segment of Piru Creek from 0.5 miles downstream of Pyramid Dam at the first bridge crossing to the boundary of the Sespe Wilderness, as a recreational river.

''(F) The 13-mile segment of Piru Creek from the boundary of the Sespe Wilderness to the boundary of the Sespe Wilderness, as a wild river.

''(G) The 2.2-mile segment of Piru Creek from the boundary of the Sespe Wilderness to the upper limit of Piru Reservoir, as a recreational river.''.

(e) EFFECT.—The designation of additional miles of Piru Creek under subsection (d) shall not affect valid water rights in existence on the date of enactment of this Act.

(f) MOTORIZED USE OF TRAILS.—Nothing in this section (including the amendments made by this section) affects the motorized use of trails designated by the Forest Service for motorized use that are located adjacent to and crossing upper Piru Creek, if the use is consistent with the protection and enhancement of river values under the Wild and Scenic Rivers Act (16 U.S.C. 1271 et seq.).

SEC. 6206. DESIGNATION OF THE FOX MOUNTAIN POTENTIAL WILDERNESS.

(a) DESIGNATION.—In furtherance of the purposes of the Wilderness Act (16 U.S.C. 1131 et seq.), certain land in the Los Padres National Forest comprising approximately 41,082 acres, as generally depicted on the map entitled ''Fox Mountain Potential Wilderness Area'' and dated November 14, 2019, is designated as the Fox Mountain Potential Wilderness Area.

(b) MAP AND LEGAL DESCRIPTION.—

(1) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary of Agriculture shall file a map and a legal description of the Fox Mountain Potential Wilderness Area (referred to in this section as the ''potential wilderness area'') with—

(A) the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(2) FORCE OF LAW.—The map and legal description filed under paragraph (1) shall have the same force and effect as if included in this title, except that the Secretary of Agriculture may correct any clerical and typographical errors in the map and legal description.

(3) PUBLIC AVAILABILITY.—The map and legal description filed under paragraph (1) shall be on file and available for public inspection in the appropriate offices of the Forest Service.

(c) MANAGEMENT.—Except as provided in subsection (d) and subject to valid existing rights, the Secretary shall manage the potential wilderness area in accordance with the Wilderness Act (16 U.S.C. 1131 et seq.).

(d) TRAIL USE CONSTRUCTION, RECONSTRUCTION, AND REALIGNMENT.—

(1) IN GENERAL.—In accordance with paragraph (2), the Secretary of Agriculture may—

(A) construct a new trail for use by hikers, equestrians, and mechanized vehicles that connects the Aliso Park Campground to the Bull Ridge Trail; and

(B) reconstruct or realign—

(i) the Bull Ridge Trail; and

(ii) the Rocky Ridge Trail.

(2) REQUIREMENT.—In carrying out the construction, reconstruction, or alignment under paragraph (1), the Secretary shall—

(A) comply with all existing laws (including regulations); and

(B) to the maximum extent practicable, use the minimum tool or administrative practice necessary to accomplish the construction, reconstruction, or alignment with the least amount of adverse impact on wilderness character and resources.

(3) MOTORIZED VEHICLES AND MACHINERY.—In accordance with paragraph (2), the Secretary may use motorized vehicles and machinery to carry out the trail construction, reconstruction, or realignment authorized by this subsection.

(4) MECHANIZED VEHICLES.—The Secretary may permit the use of mechanized vehicles on the existing Bull Ridge Trail and Rocky Ridge Trail in accordance with existing law (including regulations) and this subsection until such date as the potential wilderness area is designated as wilderness in accordance with subsection (h).

(e) WITHDRAWAL.—Subject to valid existing rights, the Federal land in the potential wilderness area is withdrawn from all forms of—

(1) entry, appropriation, or disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) disposition under all laws pertaining to mineral and geothermal leasing or mineral materials.

(f) COOPERATIVE AGREEMENTS.—In carrying out this section, the Secretary may enter into cooperative agreements with State, Tribal, and local governmental entities and private entities to complete the trail construction, reconstruction, and realignment authorized by subsection (d).

(g) BOUNDARIES.—The Secretary shall modify the boundary of the potential wilderness area to exclude any area within 50 feet of the centerline of the new location of any trail that has been constructed, reconstructed, or realigned under subsection (d).

(h) WILDERNESS DESIGNATION.—

(1) IN GENERAL.—The potential wilderness area, as modified under subsection (g), shall be designated as wilderness and as a component of the National Wilderness Preservation System on the earlier of—

(A) the date on which the Secretary publishes in the Federal Register notice that the trail construction, reconstruction, or alignment authorized by subsection (d) has been completed; and

(B) the date that is 20 years after the date of enactment of this Act.

(2) ADMINISTRATION OF WILDERNESS.—On designation as wilderness under this section, the potential wilderness area shall be—

(A) incorporated into the San Rafael Wilderness, as designated by Public Law 90–271 (16 U.S.C. 1132 note; 82 Stat. 51) and expanded by section 6202; and

(B) administered in accordance with section 6204 and the Wilderness Act (16 U.S.C. 1131 et seq.).

SEC. 6207. DESIGNATION OF SCENIC AREAS.

(a) IN GENERAL.—Subject to valid existing rights, there are established the following scenic areas:

(1) CONDOR RIDGE SCENIC AREA.—Certain land in the Los Padres National Forest comprising approximately 18,666 acres, as generally depicted on the map entitled ''Condor Ridge Scenic Area—Proposed'' and dated March 29, 2019, which shall be known as the ''Condor Ridge Scenic Area''.

(2) BLACK MOUNTAIN SCENIC AREA.—Certain land in the Los Padres National Forest and the Bakersfield Field Office of the Bureau of Land Management comprising approximately 16,216 acres, as generally depicted on the map entitled ''Black Mountain Scenic Area—Proposed'' and dated March 29, 2019, which shall be known as the ''Black Mountain Scenic Area''.

(b) MAPS AND LEGAL DESCRIPTIONS.—

(1) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary of Agriculture and the Secretary of the Interior shall file a map and legal description of the Condor Ridge Scenic Area and Black Mountain Scenic Area with—

(A) the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(2) FORCE OF LAW.—The maps and legal descriptions filed under paragraph (1) shall have the same force and effect as if included in this title, except that the Secretary of Agriculture and the Secretary of the Interior may correct any clerical and typographical errors in the maps and legal descriptions.

(3) PUBLIC AVAILABILITY.—The maps and legal descriptions filed under paragraph (1) shall be on file and available for public inspection in the appropriate offices of the Forest Service and Bureau of Land Management.

(c) PURPOSE.—The purpose of the scenic areas is to conserve, protect, and enhance for the benefit and enjoyment of present and future generations the ecological, scenic, wildlife, recreational, cultural, historical, natural, educational, and scientific resources of the scenic areas.

(d) MANAGEMENT.—

(1) IN GENERAL.—The Secretary of Agriculture and the Secretary of the Interior shall administer the scenic areas—

(A) in a manner that conserves, protects, and enhances the resources of the scenic areas, and in particular the scenic character attributes of the scenic areas; and

(B) in accordance with—

(i) this section;

(ii) the Federal Land Policy and Management Act (43 U.S.C. 1701 et seq.) for land under the jurisdiction of the Secretary of the Interior;

(iii) any laws (including regulations) relating to the National Forest System, for land under the jurisdiction of the Secretary of Agriculture; and

(iv) any other applicable law (including regulations).

(2) USES.—The Secretary shall only allow those uses of the scenic areas that the Secretary determines would further the purposes described in subsection (c).

(e) WITHDRAWAL.—Subject to valid existing rights, the Federal land in the scenic areas is withdrawn from all forms of—

(1) entry, appropriation, or disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) disposition under all laws pertaining to mineral and geothermal leasing or mineral materials.

(f) PROHIBITED USES.—The following shall be prohibited on the Federal land within the scenic areas:

(1) Permanent roads.

(2) Permanent structures.

(3) Timber harvesting except when necessary for the purposes described in subsection (g).

(4) Transmission lines.

(5) Except as necessary to meet the minimum requirements for the administration of the scenic areas and to protect public health and safety—

(A) the use of motorized vehicles; or

(B) the establishment of temporary roads.

(6) Commercial enterprises, except as necessary for realizing the purposes of the scenic areas.

(g) WILDFIRE, INSECT, AND DISEASE MANAGEMENT.—Consistent with this section, the Secretary may take any measures in the scenic areas that the Secretary determines to be necessary to control fire, insects, and diseases, including, as the Secretary determines to be appropriate, the coordination of those activities with the State or a local agency.

(h) ADJACENT MANAGEMENT.—The fact that an otherwise authorized activity or use can be seen or heard within a scenic area shall not preclude the activity or use outside the boundary of the scenic area.

SEC. 6208. CONDOR NATIONAL SCENIC TRAIL.

(a) FINDING.—Congress finds that the Condor National Scenic Trail established under paragraph (33) of section 5(a) of the National Trails System Act (16 U.S.C. 1244(a)) is named after the California Condor, a critically endangered bird species that lives along the corridor of the Condor National Scenic Trail.

(b) PURPOSES.—The purposes of the Condor National Scenic Trail are—

(1) to provide a continual extended hiking corridor that connects the southern and northern portions of the Los Padres National Forest, spanning the entire length of the forest along the coastal mountains of southern and central California; and

(2) to provide for the public enjoyment of the nationally significant scenic, historic, natural, and cultural resources of the Los Padres National Forest.

(c) AMENDMENT.—Section 5(a) of the National Trails System Act (16 U.S.C. 1244(a)) is amended—

(1) by redesignating the second paragraph (31) (relating to the Butterfield Overland National Historic Trail) as paragraph (32); and

(2) by adding at the end the following:

''(33) CONDOR NATIONAL SCENIC TRAIL.—

''(A) IN GENERAL.—The Condor National Scenic Trail, a trail extending approximately 400 miles from Lake Piru in the southern portion of the Los Padres National Forest to the Bottchers Gap Campground in the northern portion of the Los Padres National Forest.

''(B) ADMINISTRATION.—The Condor National Scenic Trail shall be administered by the Secretary of Agriculture, in consultation with—

''(i) other Federal, State, Tribal, regional, and local agencies;

''(ii) private landowners; and

''(iii) other interested organizations.

''(C) RECREATIONAL USES.—Notwithstanding section 7(c), the use of motorized vehicles on roads or trails included in the Condor National Scenic Trail on which motorized vehicles are permitted as of the date of enactment of this paragraph may be permitted.

''(D) PRIVATE PROPERTY RIGHTS.—

''(i) PROHIBITION.—The Secretary shall not acquire for the Condor National Scenic Trail any land or interest in land outside the exterior boundary of any federally managed area without the consent of the owner of land or interest in land.

''(ii) EFFECT.—Nothing in this paragraph—

''(I) requires any private property owner to allow public access (including Federal, State, or local government access) to private property; or

''(II) modifies any provision of Federal, State, or local law with respect to public access to or use of private land.

''(E) REALIGNMENT.—The Secretary of Agriculture may realign segments of the Condor National Scenic Trail as necessary to fulfill the purposes of the Condor National Scenic Trail.''.

(d) STUDY.—

(1) STUDY REQUIRED.—Not later than 6 years after the date of enactment of this Act, in accordance with this subsection, the Secretary of Agriculture shall conduct a study that—

(A) addresses the feasibility of, and alternatives for, connecting the northern and southern portions of the Los Padres National Forest by establishing a trail across the applicable portions of the northern and southern Santa Lucia Mountains of the southern California Coastal Range; and

(B) considers realignment of the Condor National Scenic Trail or construction of new segments for the Condor National Scenic Trail to avoid existing segments of the Condor National Scenic Trail that allow motorized vehicles.

(2) CONTENTS.—In carrying out the study required under paragraph (1), the Secretary of Agriculture shall—

(A) comply with the requirements for studies for a national scenic trail described in section 5(b) of the National Trails System Act (16 U.S.C. 1244(b));

(B) provide for a continual hiking route through and connecting the southern and northern sections of the Los Padres National Forest;

(C) promote recreational, scenic, wilderness, and cultural values;

(D) enhance connectivity with the overall system of National Forest System trails;

(E) consider new connectors and realignment of existing trails;

(F) emphasize safe and continuous public access, dispersal from high-use areas, and suitable water sources; and

(G) to the extent practicable, provide all-year use.

(3) ADDITIONAL REQUIREMENT.—In completing the study required under paragraph (1), the Secretary of Agriculture shall consult with—

(A) appropriate Federal, State, Tribal, regional, and local agencies;

(B) private landowners;

(C) nongovernmental organizations; and

(D) members of the public.

(4) SUBMISSION.—The Secretary of Agriculture shall submit the study required under paragraph (1) to—

(A) the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(5) ADDITIONS AND ALTERATIONS TO THE CONDOR NATIONAL SCENIC TRAIL.—

(A) IN GENERAL.—On completion of the study required under paragraph (1), if the Secretary of Agriculture determines that additional or alternative trail segments are feasible for inclusion in the Condor National Scenic Trail, the Secretary of Agriculture shall include the segments in the Condor National Scenic Trail.

(B) EFFECTIVE DATE.—An addition or alteration to the Condor National Scenic Trail determined to be feasible under subparagraph (A) shall take effect on the date on which the Secretary of Agriculture publishes in the Federal Register notice that the additional or alternative segments are included in the Condor National Scenic Trail.

(e) COOPERATIVE AGREEMENTS.—In carrying out this section (including the amendments made by this section), the Secretary of Agriculture may enter into cooperative agreements with State, Tribal, and local government entities and private entities to complete necessary construction, reconstruction, and realignment projects authorized for the Condor National Scenic Trail under this section (including the amendments made by this section).

SEC. 6209. FOREST SERVICE STUDY.

Not later than 6 years after the date of enactment of this Act, the Secretary of Agriculture (acting through the Chief of the Forest Service) shall study the feasibility of opening a new trail, for vehicles measuring 50 inches or less, connecting Forest Service Highway 95 to the existing off-highway vehicle trail system in the Ballinger Canyon off-highway vehicle area.

SEC. 6210. NONMOTORIZED RECREATION OPPORTUNITIES.

Not later than 6 years after the date of enactment of this Act, the Secretary of Agriculture, in consultation with interested parties, shall conduct a study to improve nonmotorized recreation trail opportunities (including mountain bicycling) on land not designated as wilderness within the Santa Barbara, Ojai, and Mt. Pinos ranger districts.

SEC. 6211. USE BY MEMBERS OF INDIAN TRIBES.

(a) ACCESS.—The Secretary shall ensure that Indian Tribes have access, in accordance with the Wilderness Act (16 U.S.C. 1131 et seq.), to the wilderness areas, scenic areas, and potential wilderness areas designated by this title for traditional cultural and religious purposes.

(b) TEMPORARY CLOSURES.—

(1) IN GENERAL.—In carrying out this section, the Secretary, on request of an Indian Tribe, may temporarily close to the general public 1 or more specific portions of a wilderness area, scenic area, or potential wilderness area designated by this title to protect the privacy of the members of the Indian Tribe in the conduct of traditional cultural and religious activities.

(2) REQUIREMENT.—Any closure under paragraph (1) shall be—

(A) made in such a manner as to affect the smallest practicable area for the minimum period of time necessary for the activity to be carried out; and

(B) be consistent with—

(i) Public Law 95–341 (commonly known as the ''American Indian Religious Freedom Act'') (42 U.S.C. 1996 et seq.); and

(ii) the Wilderness Act (16 U.S.C. 1131 et seq.).

TITLE LXIII—SAN GABRIEL MOUNTAINS FOOTHILLS AND RIVERS PROTECTION

SEC. 6301. DEFINITIONS.

In this title:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(2) STATE.—The term ''State'' means the State of California.

(3) WILDERNESS AREA OR ADDITION.—The term ''wilderness area or addition'' means any wilderness area or wilderness addition designated by section 6303(a).

SEC. 6302. NATIONAL MONUMENT BOUNDARY MODIFICATION.

(a) IN GENERAL.—The San Gabriel Mountains National Monument established by Presidential Proclamation 9194 (54 U.S.C. 320301 note) (referred to in this section as the ''Monument'') is modified to include the approximately 109,167 acres of additional National Forest System land depicted as the ''Proposed San Gabriel Mountains National Monument Expansion'' on the map entitled ''Proposed San Gabriel Mountains National Monument Expansion'' and dated June 26, 2019.

(b) ADMINISTRATION.—The Secretary shall administer the Monument (including the land added to the Monument by subsection (a)), in accordance with—

(1) Presidential Proclamation Number 9194, dated October 10, 2014 (79 Fed. Reg. 62303);

(2) the laws generally applicable to the Monument; and

(3) this title.

(c) MANAGEMENT PLAN.—Not later than 3 years after the date of enactment of this Act, the Secretary shall consult with the State, local governments, and interested members of the public to update the San Gabriel Mountains National Monument Plan to provide management direction and protection for the land added to the Monument by subsection (a).

SEC. 6303. DESIGNATION OF WILDERNESS AREAS AND ADDITIONS.

(a) DESIGNATION.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.), the following parcels of National Forest System land in the State are designated as wilderness and as components of the National Wilderness Preservation System:

(1) CONDOR PEAK WILDERNESS.—Certain Federal land in the Angeles National Forest, comprising approximately 8,207 acres, as generally depicted on the map entitled ''Condor Peak Wilderness—Proposed'' and dated June 6, 2019, which shall be known as the ''Condor Peak Wilderness''.

(2) SAN GABRIEL WILDERNESS ADDITIONS.—Certain Federal land in the Angeles National Forest, comprising approximately 2,032 acres, as generally depicted on the map entitled ''San Gabriel Wilderness Additions'' and dated June 6, 2019, which is incorporated in, and considered to be a part of, the San Gabriel Wilderness designated by Public Law 90–318 (16 U.S.C. 1132 note; 82 Stat. 131).

(3) SHEEP MOUNTAIN WILDERNESS ADDITIONS.—Certain Federal land in the Angeles National Forest, comprising approximately 13,726 acres, as generally depicted on the map entitled ''Sheep Mountain Wilderness Additions'' and dated June 6, 2019, which is incorporated in, and considered to be a part of, the Sheep Mountain Wilderness designated by section 101(a)(29) of the California Wilderness Act of 1984 (16 U.S.C. 1132 note; Public Law 98–425; 98 Stat. 1623).

(4) YERBA BUENA WILDERNESS.—Certain Federal land in the Angeles National Forest, comprising approximately 6,694 acres, as generally depicted on the map entitled ''Yerba Buena Wilderness—Proposed'' and dated June 6, 2019, which shall be known as the ''Yerba Buena Wilderness''.

(b) MAP AND LEGAL DESCRIPTION.—

(1) IN GENERAL.—As soon as practicable after the date of enactment of this Act, the Secretary shall file a map and a legal description of the wilderness areas and additions with—

(A) the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(2) FORCE OF LAW.—The map and legal description filed under paragraph (1) shall have the same force and effect as if included in this title, except that the Secretary may correct any clerical or typographical error in the map or legal description.

(3) PUBLIC AVAILABILITY.—The map and legal description filed under paragraph (1) shall be on file and available for public inspection in the appropriate offices of the Forest Service.

SEC. 6304. ADMINISTRATION OF WILDERNESS AREAS AND ADDITIONS.

(a) IN GENERAL.—Subject to valid existing rights, the wilderness areas and additions shall be administered by the Secretary in accordance with this section and the Wilderness Act (16 U.S.C. 1131 et seq.), except that any reference in that Act to the effective date of that Act shall be considered to be a reference to the date of enactment of this Act.

(b) FIRE MANAGEMENT AND RELATED ACTIVITIES.—

(1) IN GENERAL.—The Secretary may carry out such activities in a wilderness area or addition as are necessary for the control of fire, insects, or diseases in accordance with—

(A) section 4(d)(1) of the Wilderness Act (16 U.S.C. 1133(d)(1)); and

(B) House Report 98–40 of the 98th Congress.

(2) FUNDING PRIORITIES.—Nothing in this title limits funding for fire or fuels management in a wilderness area or addition.

(3) REVISION AND DEVELOPMENT OF LOCAL FIRE MANAGEMENT PLANS.—As soon as practicable after the date of enactment of this Act, the Secretary shall amend, as applicable, any local fire management plan that applies to a wilderness area or addition.

(4) ADMINISTRATION.—In accordance with paragraph (1) and any other applicable Federal law, to ensure a timely and efficient response to a fire emergency in a wilderness area or addition, the Secretary shall—

(A) not later than 1 year after the date of enactment of this Act, establish agency approval procedures (including appropriate delegations of authority to the Forest Supervisor, District Manager, or other agency officials) for responding to fire emergencies; and

(B) enter into agreements with appropriate State or local firefighting agencies.

(c) GRAZING.—The grazing of livestock in a wilderness area or addition, if established before the date of enactment of this Act, shall be administered in accordance with—

(1) section 4(d)(4) of the Wilderness Act (16 U.S.C. 1133(d)(4)); and

(2) the guidelines contained in Appendix A of the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 2570 of the 101st Congress (H. Rept. 101–405).

(d) FISH AND WILDLIFE.—

(1) IN GENERAL.—In accordance with section 4(d)(7) of the Wilderness Act (16 U.S.C. 1133(d)(7)), nothing in this title affects the jurisdiction or responsibility of the State with respect to fish or wildlife on public land in the State.

(2) MANAGEMENT ACTIVITIES.—

(A) IN GENERAL.—In support of the purposes and principles of the Wilderness Act (16 U.S.C. 1131 et seq.), the Secretary may conduct any management activity that the Secretary determines to be necessary to maintain or restore a fish or wildlife population or habitat in a wilderness area or addition, if the activity is conducted in accordance with—

(i) applicable wilderness management plans; and

(ii) appropriate policies, such as the policies established in Appendix B of the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 2570 of the 101st Congress (H. Rept. 101–405).

(B) INCLUSIONS.—A management activity under subparagraph (A) may include the occasional and temporary use of motorized vehicles, if the use, as determined by the Secretary—

(i) would maintain or improve the wilderness character of the wilderness area or addition;

(ii) is impracticable to accomplish by nonmotorized methods; and

(iii) is in accordance with memoranda of understanding between the applicable Federal agencies and the State Department of Fish and Wildlife.

(C) EXISTING ACTIVITIES.—In accordance with section 4(d)(1) of the Wilderness Act (16 U.S.C. 1133(d)(1)) and other appropriate policies (such as the policies established in Appendix B of the report of the Committee on Interior and Insular Affairs of the House of Representatives accompanying H.R. 2570 of the 101st Congress (H. Rept. 101–405)), the State may use aircraft (including helicopters) in a wilderness area or addition to survey, capture, transplant, monitor, or provide water for a wildlife population, including bighorn sheep, if the activity, as determined by the Secretary—

(i) is impracticable to accomplish without use of aircraft; and

(ii) is in accordance with memoranda of understanding between the applicable Federal agencies and the State Department of Fish and Wildlife.

(e) BUFFER ZONES.—

(1) IN GENERAL.—Nothing in this title establishes any protective perimeter or buffer zone around a wilderness area or addition.

(2) ACTIVITIES OR USES UP TO BOUNDARIES.—The fact that a nonwilderness activity or use can be seen or heard from within a wilderness area or addition shall not preclude the activity or use up to the boundary of the wilderness area or addition.

(f) MILITARY ACTIVITIES.—Nothing in this title precludes—

(1) low-level overflights of military aircraft over a wilderness area or addition;

(2) the designation of a new unit of special airspace over a wilderness area or addition; or

(3) the use or establishment of a military flight training route over a wilderness area or addition.

(g) HORSES.—Nothing in this title precludes horseback riding in, or the entry of recreational or commercial saddle or pack stock into, a wilderness area or addition—

(1) in accordance with section 4(d)(5) of the Wilderness Act (16 U.S.C. 1133(d)(5)); and

(2) subject to such terms and conditions as the Secretary determines to be necessary.

(h) LAW ENFORCEMENT.—Nothing in this title precludes any law enforcement or drug interdiction effort within a wilderness area or addition, in accordance with the Wilderness Act (16 U.S.C. 1131 et seq.).

(i) WITHDRAWAL.—Subject to valid existing rights, the wilderness areas and additions are withdrawn from—

(1) all forms of entry, appropriation, and disposal under the public land laws;

(2) location, entry, and patent under the mining laws; and

(3) operation of the mineral materials and geothermal leasing laws.

(j) INCORPORATION OF ACQUIRED LAND AND INTERESTS.—Any land within the boundary of a wilderness area or addition that is acquired by the United States shall—

(1) become part of the wilderness area or addition in which the land is located; and

(2) be managed in accordance with this section, the Wilderness Act (16 U.S.C. 1131 et seq.), and any other applicable law (including regulations).

(k) CLIMATOLOGICAL DATA COLLECTION.—In accordance with the Wilderness Act (16 U.S.C. 1131 et seq.) and subject to such terms

and conditions as the Secretary may prescribe, the Secretary may authorize the installation and maintenance of hydrologic, meteorologic, or climatological collection devices in a wilderness area or addition if the Secretary determines that the device and access to the device is essential to a flood warning, flood control, or water reservoir operation activity.

(l) AUTHORIZED EVENT.—The Secretary may authorize the Angeles Crest 100 competitive running event to continue in substantially the same manner in which the event was operated and permitted in 2015 within the land added to the Sheep Mountain Wilderness by section 6303(a)(3) and the Pleasant View Ridge Wilderness Area designated by section 1802(8) of the Omnibus Public Land Management Act of 2009 (16 U.S.C. 1132 note; Public Law 111–11; 123 Stat. 1054), if the event is authorized and conducted in a manner compatible with the preservation of the areas as wilderness.

SEC. 6305. DESIGNATION OF WILD AND SCENIC RIVERS.

(a) DESIGNATION.—Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) (as amended by section 6205(a)) is amended by adding at the end the following:

''(274) EAST FORK SAN GABRIEL RIVER, CALIFORNIA.—The following segments of the East Fork San Gabriel River, to be administered by the Secretary of Agriculture in the following classes:

''(A) The 10-mile segment from the confluence of the Prairie Fork and Vincent Gulch to 100 yards upstream of the Heaton Flats trailhead and day use area, as a wild river.

''(B) The 2.7-mile segment from 100 yards upstream of the Heaton Flats trailhead and day use area to 100 yards upstream of the confluence with Williams Canyon, as a recreational river.

''(275) NORTH FORK SAN GABRIEL RIVER, CALIFORNIA.—The 4.3-mile segment of the North Fork San Gabriel River from the confluence with Cloudburst Canyon to 0.25 miles upstream of the confluence with the West Fork San Gabriel River, to be administered by the Secretary of Agriculture as a recreational river.

''(276) WEST FORK SAN GABRIEL RIVER, CALIFORNIA.—The following segments of the West Fork San Gabriel River, to be administered by the Secretary of Agriculture in the following classes:

''(A) The 6.7-mile segment from 0.25 miles downstream of its source near Red Box Gap in sec. 14, T. 2 N., R. 12 W., to the confluence with the unnamed tributary 0.25 miles downstream of the power lines in sec. 22, T. 2 N., R. 11 W., as a recreational river.

''(B) The 1.6-mile segment of the West Fork from 0.25 miles downstream of the power lines in sec. 22, T. 2 N., R. 11 W., to the confluence with Bobcat Canyon, as a wild river.

''(277) LITTLE ROCK CREEK, CALIFORNIA.—The following segments of Little Rock Creek and tributaries, to be administered by the Secretary of Agriculture in the following classes:

''(A) The 10.3-mile segment from its source on Mt. Williamson in sec. 6, T. 3 N., R. 9 W., to 100 yards upstream of the confluence with the South Fork Little Rock Creek, as a wild river.

''(B) The 6.6-mile segment from 100 yards upstream of the confluence with the South Fork Little Rock Creek to the confluence with Santiago Canyon, as a recreational river.

''(C) The 1-mile segment of Cooper Canyon Creek from 0.25 miles downstream of Highway 2 to 100 yards downstream of Cooper Canyon Campground, as a scenic river.

''(D) The 1.3-mile segment of Cooper Canyon Creek from 100 yards downstream of Cooper Canyon Campground to the confluence with Little Rock Creek, as a wild river.

''(E) The 1-mile segment of Buckhorn Creek from 100 yards downstream of the Buckhorn Campground to its confluence with Cooper Canyon Creek, as a wild river.''.

(b) WATER RESOURCE FACILITIES; WATER USE.—

(1) WATER RESOURCE FACILITIES.—

(A) DEFINITIONS.—In this paragraph:

(i) WATER RESOURCE FACILITY.—The term ''water resource facility'' means—

(I) an irrigation or pumping facility;

(II) a dam or reservoir;

(III) a flood control facility;

(IV) a water conservation works (including a debris protection facility);

(V) a sediment placement site;

(VI) a rain gauge or stream gauge;

(VII) a water quality facility;

(VIII) a recycled water facility or water pumping, conveyance, or distribution system;

(IX) a water storage tank or reservoir;

(X) a water treatment facility;

(XI) an aqueduct, canal, ditch, pipeline, well, hydropower project, or transmission or other ancillary facility;

(XII) a groundwater recharge facility;

(XIII) a water filtration plant; and

(XIV) any other water diversion, conservation, storage, or carriage structure.

(ii) WILD AND SCENIC RIVER SEGMENT.—The term ''wild and scenic river segment'' means a component of the national wild and scenic rivers system designated by paragraph (274), (275), (276), or (277) of section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) (as added by subsection (a)).

(B) NO EFFECT ON EXISTING WATER RESOURCE FACILITIES.—Nothing in this section alters, modifies, or affects—

(i) the use, operation, maintenance, repair, construction, destruction, reconfiguration, expansion, relocation, or replacement of a water resource facility downstream of a wild and scenic river segment, subject to the condition that the physical structures of such a facility or reservoir shall not be located within the wild and scenic river segment; or

(ii) access to a water resource facility downstream of a wild and scenic river segment.

(C) NO EFFECT ON NEW WATER RESOURCE FACILITIES.—Nothing in this section precludes the establishment of a new water resource facility (including instream sites, routes, and areas) downstream of a wild and scenic river segment.

(2) LIMITATION.—Any new reservation of water or new use of water pursuant to existing water rights held by the United States to advance the purposes of the National Wild and Scenic Rivers Act (16 U.S.C. 1271 et seq.) shall be for nonconsumptive instream use only within the wild and scenic river segments (as defined in paragraph (1)(A)).

(3) EXISTING LAW.—Nothing in this section affects the implementation of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

SEC. 6306. WATER RIGHTS.

(a) STATUTORY CONSTRUCTION.—Nothing in this title, and no action carried out pursuant to this title—

(1) constitutes an express or implied reservation of any water or water right, or authorizes an expansion of water use pursuant to existing water rights held by the United States, with respect to—

(A) the San Gabriel Mountains National Monument;

(B) the wilderness areas and additions; and

(C) the components of the national wild and scenic rivers system designated by paragraphs (274), (275), (276), and (277) of section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) (as added by section 6305(a)) and land adjacent to the components;

(2) affects, alters, modifies, or conditions any water right in the State in existence on the date of enactment of this Act, including any water rights held by the United States;

(3) establishes a precedent with respect to any designation of wilderness or wild and scenic rivers after the date of enactment of this Act;

(4) affects, alters, or modifies the interpretation of, or any designation, decision, adjudication, or action carried out pursuant to, any other Act; or

(5) limits, alters, modifies, or amends any interstate compact or equitable apportionment decree that apportions water among or between the State and any other State.

(b) STATE WATER LAW.—The Secretary shall comply with applicable procedural and substantive requirements under State law to obtain and hold any water rights not in existence on the date of enactment of this Act with respect to—

(1) the San Gabriel Mountains National Monument;

(2) the wilderness areas and additions; and

(3) the components of the national wild and scenic rivers system designated by paragraphs (274), (275), (276), or (277) of section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) (as added by section 6305(a)).

SEC. 6307. REAUTHORIZATION OF EXISTING WATER FACILITIES IN PLEASANT VIEW RIDGE WILDERNESS.

(a) AUTHORIZATION FOR CONTINUED USE.—The Secretary may issue a special use authorization to the owners of a water transport or diversion facility (referred to in this section as a ''facility'') located on National Forest System land in the Pleasant View Ridge Wilderness for the continued operation, maintenance, and reconstruction of the facility if the Secretary determines that—

(1) the facility was in existence on the date on which the land on which the facility is located was designated as part of the National Wilderness Preservation System (referred to in this section as ''the date of designation'');

(2) the facility has been in substantially continuous use to deliver water for the beneficial use on the non-Federal land of the owner since the date of designation;

(3) the owner of the facility holds a valid water right for use of the water on the non-Federal land of the owner under State law, with a priority date that predates the date of designation; and

(4) it is not practicable or feasible to relocate the facility to land outside of the Pleasant View Ridge Wilderness and continue the beneficial use of water on the non-Federal land recognized under State law.

(b) TERMS AND CONDITIONS.—

(1) REQUIRED TERMS AND CONDITIONS.—In a special use authorization issued under subsection (a), the Secretary may—

(A) allow use of motorized equipment and mechanized transport for operation, maintenance, or reconstruction of a facility, if the Secretary determines that—

(i) the use is the minimum necessary to allow the facility to continue delivery of water to the non-Federal land for the beneficial uses recognized by the water right held under State law; and

(ii) the use of nonmotorized equipment and nonmechanized transport is impracticable or infeasible; and

(B) prohibit use of the facility for the diversion or transport of water in excess of the water right recognized by the State on the date of designation.

(2) DISCRETIONARY TERMS AND CONDITIONS.—In a special use authorization issued under subsection (a), the Secretary may require or

allow modification or relocation of the facility in the wilderness, as the Secretary determines necessary, to reduce impacts to wilderness values set forth in section 2 of the Wilderness Act (16 U.S.C. 1131) if the beneficial use of water on the non-Federal land is not diminished.

SA 876. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 10_____. BERRYESSA SNOW MOUNTAIN NATIONAL MONUMENT BOUNDARY MODIFICATION.

(a) DEFINITIONS.—In this section:

(1) BOARD.—The term ''Board'' means the Board on Geographic Names established by section 2 of the Act of July 25, 1947 (61 Stat. 456, chapter 330; 43 U.S.C. 364a).

(2) MAP.—The term ''Map'' means the map entitled ''Proposed Walker Ridge (Molok Luyuk) Addition Berryessa Snow Mountain National Monument'' and dated October 26, 2021.

(3) MOLOK LUYUK.—The term ''Molok Luyuk'' means Condor Ridge (in the Patwin language).

(4) NATIONAL MONUMENT.—The term ''National Monument'' means the Berryessa Snow Mountain National Monument established by Presidential Proclamation 9298, dated July 10, 2015 (80 Fed. Reg. 41975), including all land, interests in the land, and objects on the land identified in that Presidential Proclamation.

(5) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(6) WALKER RIDGE (MOLOK LUYUK) ADDITION.—The term ''Walker Ridge (Molok Luyuk) Addition'' means the approximately 3,925 acres of Federal land (including any interests in, or objects on, the land) administered by the Bureau of Land Management in Lake County, California, and identified as ''Proposed Walker Ridge (Molok Luyuk) Addition'' on the Map.

(b) BOUNDARY MODIFICATION.—The boundary of the National Monument is modified to include the Walker Ridge (Molok Luyuk) Addition.

(c) MAP.—

(1) CORRECTIONS.—The Secretary may make clerical and typographical corrections to the Map.

(2) PUBLIC AVAILABILITY; EFFECT.—The Map and any corrections to the Map under paragraph (1) shall—

(A) be publicly available on the website of the Bureau of Land Management; and

(B) have the same force and effect as if included in this section.

(d) ADMINISTRATION.—Subject to valid existing rights, the Secretary shall administer the Walker Ridge (Molok Luyuk) Addition—

(1) as part of the National Monument;

(2) in accordance with Presidential Proclamation 9298, dated July 10, 2015 (80 Fed. Reg. 41975); and

(3) in accordance with applicable laws (including regulations).

(e) MANAGEMENT PLAN.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary and the Secretary of Agriculture shall jointly develop a comprehensive management plan for the National Monument in accordance with, and in a manner that fulfills the purposes described in, Presidential Proclamation 9298, dated July 10, 2015 (80 Fed. Reg. 41975).

(2) TRIBAL CONSULTATION.—The Secretary and the Secretary of Agriculture shall consult with affected federally recognized Indian Tribes in—

(A) the development of the management plan under paragraph (1); and

(B) making management decisions relating to the National Monument.

(3) CONTINUED ENGAGEMENT WITH INDIAN TRIBES.—The management plan developed under paragraph (1) shall set forth parameters for continued meaningful engagement with affected federally recognized Indian Tribes in the implementation of the management plan.

(4) EFFECT.—Nothing in this section affects the conduct of fire mitigation or suppression activities at the National Monument, including through the use of existing agreements.

(f) AGREEMENTS AND PARTNERSHIPS.—To the maximum extent practicable and in accordance with applicable laws, on request of an affected federally recognized Indian Tribe, the Secretary (acting through the Director of the Bureau of Land Management) and the Secretary of Agriculture (acting through the Chief of the Forest Service) shall enter into agreements, contracts, and other cooperative and collaborative partnerships with the federally recognized Indian Tribe regarding management of the National Monument under relevant Federal authority, including—

(1) the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5301 et seq.);

(2) the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.);

(3) the Tribal Self-Governance Act of 1994 (25 U.S.C. 5361 et seq.);

(4) the Tribal Forest Protection Act of 2004 (25 U.S.C. 3115a et seq.);

(5) the good neighbor authority under section 8206 of the Agricultural Act of 2014 (16 U.S.C. 2113a);

(6) Executive Order 13175 (25 U.S.C. 5301 note; relating to consultation and coordination with Indian Tribal governments);

(7) Secretarial Order 3342, issued by the Secretary on October 21, 2016 (relating to identifying opportunities for cooperative and collaborative partnerships with federally recognized Indian Tribes in the management of Federal lands and resources); and

(8) Joint Secretarial Order 3403, issued by the Secretary and the Secretary of Agriculture on November 15, 2021 (relating to fulfilling the trust responsibility to Indian Tribes in the stewardship of Federal lands and waters).

(g) DESIGNATION OF CONDOR RIDGE (MOLOK LUYUK) IN LAKE AND COLUSA COUNTIES, CALIFORNIA.—

(1) IN GENERAL.—The parcel of Federal land administered by the Bureau of Land Management located in Lake and Colusa Counties in the State of California and commonly referred to as ''Walker Ridge'' shall be known and designated as ''Condor Ridge (Molok Luyuk)''.

(2) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the parcel of Federal land described in paragraph (1) shall be deemed to be a reference to ''Condor Ridge (Molok Luyuk)''.

(3) MAP AND LEGAL DESCRIPTION.—

(A) PREPARATION.—

(i) INITIAL MAP.—The Board shall prepare a map and legal description of the parcel of Federal land designated by paragraph (1).

(ii) CORRECTIONS.—The Board and the Director of the Bureau of Land Management may make clerical and typographical corrections to the map and legal description prepared under clause (i).

(B) CONSULTATION.—In preparing the map and legal description under subparagraph (A)(i), the Board shall consult with—

(i) the Director of the Bureau of Land Management; and

(ii) affected federally recognized Indian Tribes.

(C) PUBLIC AVAILABILITY; EFFECT.—The map and legal description prepared under subparagraph (A)(i) and any correction to the map or legal description made under subparagraph (A)(ii) shall—

(i) be publicly available on the website of the Board, the Bureau of Land Management, or both;

(ii) be subject to a public notice and comment period of not less than 30 days; and

(iii) have the same force and effect as if included in this section.

SA 877. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. ___. SUPERCOMPUTING FOR SAFER CHEMICALS (SUPERSAFE) CONSORTIUM.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—The Administrator of the Environmental Protection Agency (referred to in this section as the ''Administrator''), in consultation with the heads of relevant Federal agencies, shall form a consortium, to be known as the ''Supercomputing for Safer Chemicals (SUPERSAFE) Consortium'' (referred to in this section as the ''Consortium''). The Consortium shall include the National Laboratories of the Department of Energy, academic and other research institutions, and other entities, as determined by the Administrator, to carry out the activities described in subsection (b).

(2) INCLUSION OF STATE AGENCIES.—The Administrator shall allow the head of a relevant State agency to join the Consortium on request of the State agency.

(b) CONSORTIUM ACTIVITIES.—

(1) IN GENERAL.—The Consortium shall use supercomputing, machine learning, and other similar capabilities—

(A) to establish rapid approaches for large-scale identification of toxic substances and the development of safer alternatives to toxic substances by developing and validating computational toxicology methods based on unique high-performance computing, artificial intelligence, machine learning, and precision measurements;

(B) to address the need to identify safe chemicals for use in consumer and industrial products and in their manufacture to support the move away from toxic substances and toward safe-by-design alternatives; and

(C) to make recommendations on how the information produced can be applied in risk assessments and other characterizations for use by the Environmental Protection Agency and other agencies in regulatory decisions, and by industry in identifying toxic and safer chemicals.

(2) MODELS.—In carrying out paragraph (1), the Consortium—

(A) shall use supercomputers and other virtual tools to develop, validate, and run models to predict adverse health effects caused by toxic substances and to identify safe

chemicals for use in products and manufacturing; and

(B) may utilize, as needed, appropriate biological test systems to test and evaluate approaches and improve their predictability and reliability in industrial and regulatory applications.

(c) PUBLIC RESULTS.—The Consortium shall make model predictions, along with supporting documentation, available to the public in an accessible format.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Administrator to carry out this section—

(1) for fiscal year 2023, $20,000,000;

(2) for fiscal year 2024, $30,000,000; and

(3) for each of fiscal years 2025 through 2027, $35,000,000.

SA 878. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 10_____. OUTDOOR RECREATION LEGACY PARTNERSHIP PROGRAM.

(a) DEFINITIONS.—In this section:

(1) ELIGIBLE ENTITY.—The term ''eligible entity'' means an entity that represents or otherwise serves a qualifying area.

(2) ELIGIBLE NONPROFIT ORGANIZATION.—The term ''eligible nonprofit organization'' means an organization that is described in section 501(c)(3) of the Internal Revenue Code of 1986 and is exempt from taxation under section 501(a) of such code.

(3) ENTITY.—The term ''entity'' means—

(A) a State;

(B) a political subdivision of a State, including—

(i) a city;

(ii) a county; and

(iii) a special purpose district that manages open space, including a park district; and

(C) an Indian Tribe, urban Indian organization, or Alaska Native or Native Hawaiian community or organization.

(4) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(5) LOW-INCOME COMMUNITY.—The term ''low-income community'' means any census block group in which 30 percent or more of the population are individuals with an annual household equal to, or less than, the greater of—

(A) an amount equal to 80 percent of the median income of the area in which the household is located, as reported by the Department of Housing and Urban Development; and

(B) an amount equal to 200 percent of the Federal poverty line.

(6) OUTDOOR RECREATION LEGACY PARTNERSHIP PROGRAM.—The term ''Outdoor Recreation Legacy Partnership Program'' means the program established under subsection (b)(1).

(7) QUALIFYING AREA.—The term ''qualifying area'' means—

(A) an urbanized area or urban cluster that has a population of 25,000 or more in the most recent census;

(B) 2 or more adjacent urban clusters with a combined population of 25,000 or more in the most recent census; or

(C) an area administered by an Indian Tribe or an Alaska Native or Native Hawaiian community organization.

(8) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(9) STATE.—The term ''State'' means each of the several States, the District of Columbia, and each territory of the United States.

(b) ESTABLISHMENT OF PROGRAM.—

(1) IN GENERAL.—The Secretary shall establish an outdoor recreation legacy partnership program under which the Secretary may award grants to eligible entities for projects—

(A) to acquire land and water for parks and other outdoor recreation purposes in qualifying areas; and

(B) to develop new or renovate existing outdoor recreation facilities that provide outdoor recreation opportunities to the public in qualifying areas.

(2) PRIORITY.—In awarding grants to eligible entities under paragraph (1), the Secretary shall give priority to projects that—

(A) create or significantly enhance access to park and recreational opportunities in an urban neighborhood or community;

(B) engage and empower underserved communities and youth;

(C) provide employment or job training opportunities for youth or underserved communities;

(D) establish or expand public-private partnerships, with a focus on leveraging resources; and

(E) take advantage of coordination among various levels of government.

(c) MATCHING REQUIREMENT.—

(1) IN GENERAL.—As a condition of receiving a grant under subsection (b), an eligible entity shall provide matching funds in the form of cash or an in-kind contribution in an amount equal to not less than 100 percent of the amounts made available under the grant.

(2) WAIVER.—The Secretary may waive all or part of the matching requirement under paragraph (1) if the Secretary determines that—

(A) no reasonable means are available through which the eligible entity can meet the matching requirement; and

(B) the probable benefit of the project outweighs the public interest in the matching requirement.

(3) ADMINISTRATIVE EXPENSES.—Not more than 10 percent of funds provided to an eligible entity under a grant awarded under subsection (b) may be used for administrative expenses.

(d) CONSIDERATIONS.—In awarding grants to eligible entities under subsection (b), the Secretary shall consider the extent to which a project would—

(1) provide recreation opportunities in underserved communities in which access to parks is not adequate to meet local needs;

(2) provide opportunities for outdoor recreation and public land volunteerism;

(3) support innovative or cost-effective ways to enhance parks and other recreation—

(A) opportunities; or

(B) delivery of services;

(4) support park and recreation programming provided by cities, including cooperative agreements with community-based eligible nonprofit organizations;

(5) develop Native American event sites and cultural gathering spaces; and

(6) provide benefits such as community resilience, reduction of urban heat islands, enhanced water or air quality, or habitat for fish or wildlife.

(e) ELIGIBLE USES.—

(1) IN GENERAL.—Subject to paragraph (2), a grant recipient may use a grant awarded under subsection (b) for a project described in paragraph (1) or (2) of that subsection.

(2) LIMITATIONS ON USE.—A grant recipient may not use grant funds for—

(A) incidental costs related to land acquisition, including appraisal and titling;

(B) operation and maintenance activities;

(C) facilities that support semiprofessional or professional athletics;

(D) indoor facilities, such as recreation centers or facilities that support primarily non-outdoor purposes; or

(E) acquisition of land or interests in land that restrict access to specific persons.

(f) REVIEW AND EVALUATION REQUIREMENTS.—In carrying out the Outdoor Recreation Legacy Partnership Program, the Secretary shall—

(1) conduct an initial screening and technical review of applications received;

(2) evaluate and score all qualifying applications; and

(3) provide culturally and linguistically appropriate information to eligible entities (including low-income communities and eligible entities serving low-income communities) on—

(A) the opportunity to apply for grants under this section;

(B) the application procedures by which eligible entities may apply for grants under this section; and

(C) eligible uses for grants under this section.

(g) REPORTING.—

(1) ANNUAL REPORTS.—Not later than 30 days after the last day of each report period, each State lead agency that receives a grant under this section shall annually submit to the Secretary performance and financial reports that—

(A) summarize project activities conducted during the report period; and

(B) provide the status of the project.

(2) FINAL REPORTS.—Not later than 90 days after the earlier of the date of expiration of a project period or the completion of a project, each State lead agency that receives a grant under this section shall submit to the Secretary a final report containing such information as the Secretary may require.

SA 879. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 10_____. GRANTS TO STATES AND INDIAN TRIBES FOR MULTIBENEFIT PROGRAMS TO VOLUNTARILY REPURPOSE AGRICULTURAL LAND TO REDUCE CONSUMPTIVE WATER USE.

(a) AUTHORIZATION OF GRANTS.—

(1) IN GENERAL.—Section 101 of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2211) is amended—

(A) by redesignating subsections (b) through (d) as subsections (c) through (e), respectively; and

(B) by inserting after subsection (a) the following:

''(b) GRANTS TO STATES AND INDIAN TRIBES FOR MULTIBENEFIT PROGRAMS TO VOLUNTARILY REPURPOSE AGRICULTURAL LAND.—

''(1) DEFINITIONS.—In this subsection:

''(A) BASIN-SCALE.—The term 'basin-scale' means an eligible landscape area or subbasin that—

''(i) includes multiple water users; or

''(ii) aligns with the boundaries of a State, Tribal, regional, or local land or water management agency.

''(B) COVERED PROGRAM.—The term 'covered program' means an existing program of an eligible entity or a pilot program proposed to be carried out by an eligible entity, the purpose of which is to voluntarily repurpose or provide for the transition of, over a period of years, irrigated agricultural land to reduce consumptive water use, while providing community health, economic wellbeing, water supply, habitat, and climate benefits.

''(C) ELIGIBLE ENTITY.—The term 'eligible entity' means—

''(i) a State (including a designated State agency); or

''(ii) a Tribal government.

''(2) AUTHORIZATION OF GRANTS.—The Secretary shall carry out a program under which the Secretary shall provide competitive matching grants to eligible entities, in accordance with this subsection, to carry out covered programs.

''(3) ELIGIBLE PROGRAMS.—To be eligible for a grant under paragraph (2), a covered program shall—

''(A) be basin-scale;

''(B) reduce consumptive water use;

''(C) repurpose or transition irrigated agricultural land for not less than 10 years;

''(D) provide, for not less than 10 years, 1 or more other measurable benefits to the environment or community in which the program is being carried out, including—

''(i) restoring upland habitat;

''(ii) restoring riparian habitat;

''(iii) creating pollinator habitat;

''(iv) restoring flood plains connection to stream or river channels;

''(v) creating dedicated multibenefit recharge areas;

''(vi) dry-land farming or planting non-irrigated or water-saving cover crops;

''(vii) switching from irrigated agriculture to non-irrigated rangeland;

''(viii) creating park or community recreation areas;

''(ix) acquiring a conservation easement on land taken out of irrigated agricultural production to permanently protect a new use of the land;

''(x) facilitation of renewable energy projects that have an overall greenhouse gas reduction; and

''(xi) reestablishment of Tribal land uses.

''(4) APPLICATION.—To be eligible for a grant under paragraph (2), an eligible entity shall submit to the Secretary an application in such form, at such time, and containing such information as the Secretary may require, including a description of the manner in which the eligible entity would use the grant funds to carry out projects under the covered program that reduce consumptive water use by converting irrigated agricultural land to a new use that—

''(A) reduces groundwater withdrawals or consumptive water use for not less than 10 years; and

''(B) provides other measurable benefits to the environment or communities in which the covered program is being carried out.

''(5) PRIORITY.—In providing grants under paragraph (2), the Secretary shall give priority to covered programs that—

''(A) provide direct benefits to disadvantaged communities; or

''(B) were developed through a multistakeholder planning process.

''(6) VOLUNTARY CONSERVATION AGREEMENTS.—

''(A) IN GENERAL.—Subject to subparagraph (C), the Secretary (acting through the Director of the United States Fish and Wildlife Service) or the Secretary of Commerce (acting through the Director of the National Marine Fisheries Service), as applicable, shall seek to enter into voluntary conservation agreements, with the individuals and entities described in subparagraph (B), under which the individuals and entities entering into the agreements would carry out on formerly irrigated agricultural land converted under a covered program carried out under this subsection or on associated aquatic resources actions that contribute to the recovery of species listed as endangered or threatened under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

''(B) ENTITIES AND INDIVIDUALS DESCRIBED.—The individuals and entities referred to in subparagraph (A) are the following:

''(i) Eligible entities provided grants to carry out a covered program under paragraph (2).

''(ii) Owners of irrigated agricultural land converted under a covered program carried out under this subsection.

''(iii) Owners of land adjacent to irrigated agricultural land converted under a covered program carried out under this subsection.

''(7) ANNUAL REPORT TO CONGRESS.—Annually, the Secretary shall submit to the appropriate committees of Congress a report that describes the status of covered programs for which grant funds have been provided under this subsection during the period covered by the report, including a description of—

''(A) the achievements and effectiveness of each covered program with respect to reducing groundwater withdrawals and reducing consumptive water use;

''(B) the quantity of groundwater or surface water that was conserved; and

''(C) the community agricultural sustainability or environmental benefits that were achieved under each covered program.

''(8) AUTHORIZATION OF APPROPRIATIONS.—

''(A) IN GENERAL.—There is authorized to be appropriated to carry out this subsection $250,000,000 for the period of fiscal years 2024 through 2028.

''(B) RESERVATION OF FUNDS.—Of the amounts made available for a fiscal year under subparagraph (A), 50 percent shall be used—

''(i) to provide grants for covered programs that are pilot programs; or

''(ii) if no applications for grants for a pilot program for the applicable fiscal year are submitted, to provide grants to eligible covered programs that are existing programs.''.

(2) CONFORMING AMENDMENTS.—

(A) Section 102(c) of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2212) is amended, in the first sentence of the matter preceding paragraph (1), by striking ''section 101(c)'' and inserting ''section 101(d)''.

(B) Section 301 of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2241) is amended by striking ''section 303 of this Act'' and inserting ''section 101(b)(7)(A) or 303''.

(b) APPLICABLE PERIOD OF DROUGHT PROGRAM.—Section 104 of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2214) is amended by striking subsection (a) and inserting the following:

''(a) IN GENERAL.—The programs and authorities established under this title shall only become operative in a Reclamation State or in the State of Hawaii if—

''(1)(A) the Governor of the affected State, or the governing body of the affected Indian Tribe with respect to a reservation, has made a request for temporary drought assistance; and

''(B) the Secretary has determined that the temporary assistance is merited;

''(2) a drought emergency has been declared by the Governor of the affected State;

''(3) a drought contingency plan has been approved in accordance with title II;

''(4) for purposes of subsection (b) of section 101, the affected State has implemented a covered program under that subsection; or

''(5) in the case of a Colorado River Basin State, by operation of the Colorado River Basin Drought Contingency Plan executed in accordance with the Colorado River Drought Contingency Plan Authorization Act (Public Law 116–14; 133 Stat. 850).''.

SEC. 10___. GRANTS TO SUPPORT AGRICULTURAL SUSTAINABILITY TO REDUCE RELIANCE ON GROUNDWATER AND REDUCE CONSUMPTIVE WATER USE.

Section 9504(a) of the Omnibus Public Land Management Act of 2009 (42 U.S.C. 10364(a)) is amended—

(1) in paragraph (1)(J)—

(A) in clause (ii), by striking ''or'' at the end;

(B) in clause (iii), by striking the period at the end and inserting ''; or''; and

(C) by adding at the end the following:

''(iv) to reduce groundwater withdrawals and otherwise reduce consumptive water use to respond to drought.'';

(2) in paragraph (2)(B)—

(A) in clause (i), by striking ''and'' at the end;

(B) in clause (ii)(II), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(iii) for a project to carry out on an activity described in paragraph (1)(J)(iv)—

''(I) a proposal to repurpose irrigated agricultural land for not less than 10 years to reduce consumptive water use, while providing community health, economic wellbeing, water supply, habitat, and climate resilience benefits, including—

''(aa) restoring upland habitat;

''(bb) restoring riparian habitat;

''(cc) creating pollinator habitat;

''(dd) restoring the connection of floodplains to stream or river channels;

''(ee) creating dedicated multi-benefit recharge areas;

''(ff) dry-land farming or planting nonirrigated cover crops;

''(gg) switching from irrigated agriculture to nonirrigated rangeland;

''(hh) creating park or community recreation areas;

''(ii) acquiring a conservation easement on land taken out of irrigated agricultural production to permanently protect any of the new uses;

''(jj) facilitation of renewable energy projects that have an overall greenhouse gas reduction; and

''(kk) reestablishment of Tribal land uses; and

''(II) a demonstration of the manner in which the proposed activity would—

''(aa) reduce groundwater withdrawals or consumptive water use for not less than 10 years; and

''(bb) provide other measurable benefits to the environment or disadvantaged communities.''; and

(3) in paragraph (4)—

(A) by striking ''In providing'' and inserting the following:

''(A) IN GENERAL.—In providing''; and

(B) by adding at the end the following:

''(B) GRANTS TO REPURPOSE AGRICULTURAL LAND.—For purposes of evaluating applications for grants described in paragraph (2)(B)(iii), the Secretary shall give priority to applications for proposals that provide direct benefits to disadvantaged communities.''.

SA 880. Mr. PADILLA submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for

military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 10_____. CÉSAR E. CHÁVEZ AND THE FARMWORKER MOVEMENT NATIONAL HISTORICAL PAR.

(a) PURPOSE.—The purpose of this section is to establish the César E. Chávez and the Farmworker Movement National Historical Park—

(1) to help preserve, protect, and interpret the nationally significant resources associated with César Chávez and the farmworker movement;

(2) to interpret and provide for a broader understanding of the extraordinary achievements and contributions to the history of the United States made by César Chávez and the farmworker movement; and

(3) to support and enhance the network of sites and resources associated with César Chávez and the farmworker movement.

(b) DEFINITIONS.—In this section:

(1) HISTORICAL PARK.—The term ''historical park'' means the César E. Chávez and the Farmworker Movement National Historical Park established by subsection (c).

(2) MAP.—The term ''map'' means the map entitled ''Cesar E. Chávez and the Farmworker Movement National Historical Park Proposed Boundary'', numbered 502/179857B, and dated September 2022.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(4) STATES.—The term ''States'' means—

(A) the State of California; and

(B) the State of Arizona.

(5) STUDY.—The term ''Study'' means the study conducted by the National Park Service entitled ''César Chávez Special Resource Study and Environmental Assessment'' and submitted to Congress on October 24, 2013.

(c) CÉSAR E. CHÁVEZ AND THE FARMWORKER MOVEMENT NATIONAL HISTORICAL PARK.—

(1) REDESIGNATION OF CÉSAR E. CHÁVEZ NATIONAL MONUMENT.—

(A) IN GENERAL.—The César E. Chávez National Monument established on October 8, 2012, by Presidential Proclamation 8884 (54 U.S.C. 320301 note) is redesignated as the ''César E. Chávez and the Farmworker Movement National Historical Park''.

(B) AVAILABILITY OF FUNDS.—Any funds available for the purposes of the monument referred to in subparagraph (A) shall be available for the purposes of the historical park.

(C) REFERENCES.—Any reference in a law, regulation, document, record, map, or other paper of the United States to the monument referred to in subparagraph (A) shall be considered to be a reference to the ''César E. Chávez and the Farmworker Movement National Historical Park''.

(2) BOUNDARY.—

(A) IN GENERAL.—The boundary of the historical park shall include the area identified as ''César E. Chávez National Monument'' in Keene, California, as generally depicted on the map.

(B) INCLUSION OF ADDITIONAL SITES.—Subject to subparagraph (C), the Secretary may include within the boundary of the historical park the following sites, as generally depicted on the map:

(i) The Forty Acres in Delano, California.

(ii) Santa Rita Center in Phoenix, Arizona.

(iii) McDonnell Hall in San Jose, California.

(C) CONDITIONS FOR INCLUSION.—A site described in subparagraph (B) shall not be included in the boundary of the historical park until—

(i) the date on which the Secretary acquires the land or an interest in the land at the site; or

(ii) the date on which the Secretary enters into a written agreement with the owner of the site providing that the site shall be managed in accordance with this section.

(D) NOTICE.—Not later than 30 days after the date on which the Secretary includes a site described in subparagraph (B) in the historical park, the Secretary shall publish in the Federal Register notice of the addition to the historical park.

(3) AVAILABILITY OF MAP.—The map shall be available for public inspection in the appropriate offices of the National Park Service.

(4) LAND ACQUISITION.—The Secretary may acquire land and interests in land within the area generally depicted on the map as ''Proposed NPS Boundary'' by donation, purchase from a willing seller with donated or appropriated funds, or exchange.

(5) ADMINISTRATION.—

(A) IN GENERAL.—The Secretary shall administer the historical park in accordance with—

(i) this subsection; and

(ii) the laws generally applicable to units of the National Park System, including—

(I) section 100101(a), chapter 1003, and sections 100751(a), 100752, 100753, and 102101 of title 54, United States Code; and

(II) chapter 3201 of title 54, United States Code.

(B) INTERPRETATION.—The Secretary may provide technical assistance and public interpretation of historic sites, museums, and resources on land not administered by the Secretary relating to the life of César E. Chávez and the history of the farmworker movement.

(C) COOPERATIVE AGREEMENTS.—The Secretary may enter into cooperative agreements with the States, local governments, public and private organizations, and individuals to provide for the preservation, development, interpretation, and use of the historical park.

(6) GENERAL MANAGEMENT PLAN.—

(A) IN GENERAL.—Not later than 3 years after the date on which funds are made available to carry out this paragraph, the Secretary shall prepare a general management plan for the historical park in accordance with section 100502 of title 54, United States Code.

(B) ADDITIONAL SITES.—

(i) IN GENERAL.—The general management plan prepared under subparagraph (A) shall include a determination of whether there are—

(I) sites located in the Coachella Valley in the State of California that were reviewed in the Study that should be added to the historical park;

(II) additional representative sites in the States that were reviewed in the Study that should be added to the historical park; or

(III) sites outside of the States in the United States that relate to the farmworker movement that should be linked to, and interpreted at, the historical park.

(ii) RECOMMENDATION.—On completion of the preparation of the general management plan under subparagraph (A), the Secretary shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives any recommendations for additional sites to be included in the historical park.

(C) CONSULTATION.—The general management plan under subparagraph (A) shall be prepared in consultation with—

(i) any owner of land that is included within the boundaries of the historical park; and

(ii) appropriate Federal, State, and Tribal agencies, public and private organizations, and individuals, including—

(I) the National Chávez Center; and

(II) the César Chávez Foundation.

(d) FARMWORKER PEREGRINACIÓN NATIONAL HISTORICAL TRAIL STUDY.—Section 5(c) of the National Trails System Act (16 U.S.C. 1244(c)) is amended by adding at the end the following:

''(50) FARMWORKER PEREGRINACIÓN NATIONAL HISTORIC TRAIL.—The Farmworker Peregrinación National Historic Trail, a route of approximately 300 miles taken by farmworkers between Delano and Sacramento, California, in 1966, as generally depicted as 'Alternative C' in the study conducted by the National Park Service entitled 'César Chávez Special Resource Study and Environmental Assessment' and submitted to Congress on October 24, 2013.''.

SA 881. Mr. MERKLEY (for himself and Mr. CRAMER) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

Subtitle ____—Transnational Repression

SECTION 12__1. SHORT TITLE.

This subtitle may be cited as the ''Transnational Repression Policy Act''.

SEC. 12__2. FINDINGS.

Congress finds the following:

(1) Transnational repression against individuals who live outside their countries of origin, prominent or vocal anti-regime figures, and persons who provide aid and support to dissidents—

(A) is a human rights violation that seeks to stifle dissent and enhance control over exile, activist, emigrant, and diaspora communities; and

(B) can take the form of—

(i) extrajudicial killings;

(ii) physical assaults and intimidation;

(iii) unlawful detentions;

(iv) unlawful renditions;

(v) unlawful deportations;

(vi) unexplained or enforced disappearances;

(vii) physical or online surveillance or stalking;

(viii) unwarranted passport cancellation or control over other identification documents;

(ix) INTERPOL abuse;

(x) intimidation by diplomatic personnel, government officials, or proxies;

(xi) unlawful asset freezes;

(xii) digital threats, such as cyberattacks, targeted surveillance and spyware, online harassment, and intimidation;

(xiii) coercion by proxy, such as harassment of, or threats or harm to, family and associates of such private individuals who remain in the country of origin; and

(xiv) slander and libel to discredit individuals.

(2) Governments perpetrating transnational repression often pressure host countries, especially—

(A) through threats to condition foreign assistance or other pressure campaigns on lawmakers in host countries, such as threats—

(i) to withdraw foreign students from their universities; and

(ii) to induce them to enact policies that repress emigrant and diaspora communities; and

(B) by offering financial and material assistance to host countries to harass and intimidate emigrant and diaspora communities.

(3) Transnational repression is a threat to individuals, democratic institutions, the exercise of rights and freedoms, and national security and sovereignty.

(4) Authoritarian governments increasingly rely on transnational repression as their consolidation of control at home pushes dissidents abroad.

(5) The spread of digital technologies provides new tools for censoring, surveilling, and targeting individuals deemed to be threats across international borders, especially dissidents pushed abroad who themselves rely on communications technology to amplify their messages, which can often lead to physical attacks and coercion by proxy.

(6) Many acts of transnational repression are undertaken through cooperation of, or cooperation with, authorities in the host country, most notably by taking advantage of other States' concerns about terrorism to accuse the targeted individual of terrorism or extremism.

(7) Authoritarian actors routinely attempt to deter and silence the voices of dissident and exile communities at international fora, as documented by the United Nations Assistant Secretary-General for Human Rights in the Secretary-General's annual report on reprisals to the United Nations Human Rights Council.

(8) The principle of non-refoulement, which is explicitly included in the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, done at New York December 10, 1984—

(A) forms an essential protection under international law; and

(B) prohibits countries from expelling or returning an individual to another country where the individual's life or freedom would be threatened on account of the individual's race, religion, nationality, membership in a particular social group, or political opinion, or due to substantial grounds for believing that the individual would be at risk of torture.

SEC. 12__3. STATEMENT OF POLICY.

It is the policy of the United States—

(1) to protect persons in the United States and United States persons outside of the United States from undue foreign harassment, intimidation, coercion, and surveillance in accordance with section 6 of the Arms Export Control Act (22 U.S.C. 2756);

(2) to pursue criminal prosecutions, as appropriate, and carry out other steps, such as facilitating mutual legal assistance and other forms of international cooperation with like-minded partners, in accordance with United States law, to hold foreign governments and individuals accountable when they stalk, publish false narratives online with the intent to unlawfully intimidate, harass, coerce, or assault people in the United States or United States persons outside of the United States or collect information while acting as a foreign agent in the United States without notifying United States authorities; and

(3) to prohibit the arrest or seizure of assets of any individual based solely on an INTERPOL Red Notice or Diffusion issued by another INTERPOL member country for such individual because such notices do not meet the requirements of the Fourth Amendment to the Constitution of the United States.

SEC. 12__4. AMENDMENTS TO ANNUAL COUNTRY REPORTS ON HUMAN RIGHTS PRACTICES.

Section 116 of the Foreign Assistance Act of 1961 (22 U.S.C. 2151n) is amended by adding at the end the following:

''(h) USE OF TRANSNATIONAL REPRESSION.—The country reports required under subsection (d) shall, as applicable—

''(1) describe incidents in which a government has harassed, intimidated, or killed individuals outside of their internationally recognized borders and document patterns of such repression among repeat offenders;

''(2) identify the countries in which such repression occurs and the roles of the host government in enabling, preventing, mitigating, and responding to such acts;

''(3) describe the tactics used by the countries identified pursuant to paragraph (2), including the actions identified in section 2(1) and any new techniques observed; and

''(4) in the case of digital surveillance and harassment, specify the type of technology or platform, including social media, smart city technology, health tracking systems, general surveillance technology, and data access, transfer, and storage procedures, used by the countries for such actions.''.

SEC. 12__5. INTERAGENCY STRATEGY TO ADDRESS TRANSNATIONAL REPRESSION IN UNITED STATES AND ABROAD.

(a) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act, the Secretary of State, in coordination with the heads of other appropriate Federal departments and agencies, shall submit a report to the Committee on Foreign Relations of the Senate, the Committee on the Judiciary of the Senate, the Committee on Homeland Security and Governmental Affairs of the Senate, the Committee on Foreign Affairs of the House of Representatives, the Committee on the Judiciary of the House of Representatives, and the Committee on Homeland Security of the House of Representatives that contains a United States strategy to promote initiatives that will—

(1) enhance international awareness of transnational repression;

(2) address transnational repression, including through raising the costs of such activities for perpetrating governments and protecting targeted individuals and groups;

(3) conduct regular outreach (whether through government agencies or civil society organizations) with diaspora communities and other people who have been targeted by foreign governments regarding the transnational threats they face within the United States and around the world and the resources available to them without putting them at further risk; and

(4) develop policy and programmatic-related responses based on input from the communities and people referred to in paragraph (3) and regularly seek and consider credible information obtained by nongovernmental organizations working on issues of transnational repression.

(b) MATTERS TO BE INCLUDED.—

(1) DIPLOMACY.—The strategy required under subsection (a) shall include—

(A) a plan developed in consultation with like-minded partner governments, civil society, the business community, and other entities for advancing and promoting—

(i) the rule of law and human rights globally with respect to the use of surveillance technology and export licensing policy regarding such technology; and

(ii) safeguards to prevent the access, use, and storage of personal digital data by governments and technology companies for the purposes of transnational repression;

(B) public affairs, public diplomacy, and counter-messaging efforts, including through the use of the voice, vote, and influence of the United States at international bodies—

(i) to promote awareness;

(ii) to develop a common understanding; and

(iii) to draw critical attention to and oppose acts of transnational repression;

(C) a plan for establishing or strengthening regional and international coalitions—

(i) to monitor cases of transnational repression, including reprisals when human rights defenders and other activists face reprisals for engaging at multilateral organizations, such as the United Nations; and

(ii) to create or strengthen emergency alert mechanisms for key stakeholders within the international community that can engage in public or private diplomacy to address emergency cases of transnational repression, including cases involving individuals and their family members who are at serious risk of rendition, disappearance, unlawful deportation, refoulement, or other actions;

(D) an analysis of the advantages and disadvantages of working with partners and allies to push for the establishment of a special rapporteur for transnational repression at the United Nations; and

(E) a plan for engaging with diplomats and consular officials who abuse their positions by intimidating, threatening, attacking, or otherwise undermining the human rights and fundamental freedoms of exiles and members of diasporas in the United States.

(2) ASSISTANCE PROGRAMMING.—The strategy required under subsection (a) shall include—

(A) ways in which the United States Government has previously and will continue to provide support to civil society organizations in the United States and in countries in which transnational repression occurs—

(i) to improve the documentation, investigation, and research of cases, trends, and tactics of transnational repression, including—

(I) any potential for misusing security tools to target individual dissidents, activists, or journalists; and

(II) ramifications of transnational repression in undermining United States policy or assistance efforts to promote internationally recognized human rights and democracy overseas; and

(ii) to promote the transparency of the host country decision-making processes, including instances in which law enforcement actions against victims of transnational repression occurred because of INTERPOL red notices or extradition treaties; and

(B) a description of new or existing emergency assistance mechanisms, including the Fundamental Freedoms Fund and the Lifeline Embattled CSO Assistance Fund, to aid at-risk groups, communities, and individuals, and victims of transnational repression in the United States and in countries in which transnational repression occurs to address—

(i) physical security installation and support;

(ii) operational support of organizations providing assistance to at-risk groups, communities, and individuals;

(iii) psychosocial and psycho-emotional support;

(iv) medical assistance, subject to the limitations of the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.);

(v) digital security installation and support;

(vi) support and training beyond basic digital hygiene training, including emergency response to cyberattacks and enhanced capacity to deter surveillance and monitoring by malicious actors;

(vii) relocation support;

(viii) legal advice and assistance; and

(ix) trainings to build on their existing capacities so they can continue their activism.

(3) LAW ENFORCEMENT IN THE UNITED STATES.—The strategy required under subsection (a) shall include—

(A) the consideration of updates to United States law to directly address certain tactics of transnational repression, including—

(i) the criminalization of the gathering of information about private individuals in diaspora and exile communities on behalf of a foreign power that is intending to harass, intimidate, or harm an individual in order to prevent their exercise of internationally recognized human rights; and

(ii) the expansion of the definition of foreign agents under the Foreign Registrations Act of 1938 (22 U.S.C. 611 et seq.) and section 951 of title 18, United States Code;

(B) ways in which the Federal Bureau of Investigation coordinates with the Department of State, the Department of Homeland Security, United States intelligence agencies, and domestic law enforcement agencies in partner countries in responding to transnational repression;

(C) full consideration of unintended negative impacts of such expanded legal authorities on the civil liberties of communities targeted by transnational repression, taking into account the views of such affected communities;

(D) the development of specific outreach strategies to connect law enforcement, other agencies, and local municipal officials with targeted diaspora communities to ensure that individuals who are vulnerable to transnational repression are aware of the Federal and local resources available to them without putting them at further risk; and

(E) examining and reviewing the steps taken to address the legality of foreign governments establishing overseas police stations to monitor members of the diaspora.

(c) ADDITIONAL MATTERS TO BE INCLUDED.—In addition to the matters set forth in subsection (b), the report required under subsection (a) shall include—

(1) to the extent practicable, a list of—

(A) the governments that perpetrate transnational repression most often and the host countries that such governments are targeting most often;

(B) the host governments that cooperate most often with the governments on transnational repression actions referred to in subparagraph (A);

(C) any individuals, whether United States citizens or foreign nationals, who are complicit in transnational repression as agents of a foreign government referred to in subparagraph (A) who are operating in the United States;

(D) refugees, asylum seekers, and populations that are most vulnerable to transnational repression in the United States and, to the extent possible, in foreign countries;

(E) entities that are exporting dual-use spyware technology to any of the governments referred to in subparagraph (A);

(F) entities that are buying and selling personally identifiable information that can be used to track and surveil potential victims; and

(G) entities that are exporting items on the Commerce Control List (as set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations) to any governments referred to in subparagraph (a) that can be misused for human rights abuses;

(2) an assessment of how data that is purchased by governments most often perpetrating transnational repression is utilized; and

(3) a description of any actions taken by the United States Government to address transnational repression under existing law, including—

(A) section 212(a)(3)(C) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(3)(C));

(B) section 1263 of the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 2656 note);

(C) the interim final rule issued by the Bureau of Industry and Security of the Department of Commerce relating to ''Information Security Controls: Cybersecurity Items'' (86 Fed. Reg. 58205; October 21, 2021; 87 Fed. Reg. 1670, effective March 7, 2022);

(D) section 7031(c) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2020 (division G of Public Law 116–94; 8 U.S.C. 1182 note);

(E) prosecutions and the statutory authority authorizing such prosecutions;

(F) establishing specific bureaucratic structures focused on transnational repression;

(G) which agencies are conducting outreach to victims of transnational repression and the form of such outreach;

(H) the challenges of intelligence agencies in identifying transnational repression threats and perpetrators; and

(I) United States technology companies that knowingly or unknowingly employ, or provide access to information to, foreign intelligence officers.

(d) FORM.—The report required under subsection (a) shall be submitted in unclassified form, but may include a classified annex, if necessary.

(e) UPDATES.—The Secretary of State shall provide the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives with annual updates of the strategy required under subsection (a).

SEC. 12__6. TRAINING.

(a) DEPARTMENT OF STATE PERSONNEL.—

(1) IN GENERAL.—In order to provide United States diplomats and personnel stationed around the world with the level of understanding to recognize and combat transnational repression, the Secretary of State, in consultation with civil society and the business community, shall provide training to such members of the Foreign Service, including chiefs of mission, regarding transnational repression, including training on—

(A) how to identify different tactics of transnational repression in physical and nonphysical forms;

(B) which governments are known to employ transnational repression most frequently;

(C) which governments are most likely to cooperate with governments on transnational repression-related actions referred to in subparagraph (B); and

(D) tools of digital surveillance and other cyber tools used to carry out transnational repression activities.

(2) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $1,000,000 for each of the fiscal years 2024 through 2027, to develop and implement the curriculum described in paragraph (1).

(b) UNITED STATES OFFICIALS RESPONSIBLE FOR DOMESTIC THREATS OF TRANSNATIONAL REPRESSION.—

(1) IN GENERAL.—In order to achieve an adequate level of understanding to recognize and combat transnational repression, the Attorney General, in consultation with the Secretary of Homeland Security, the Director of National Intelligence, civil society, and the business community, shall provide the training recipients referred to in paragraph (2) with training regarding transnational repression, including training on—

(A) how to identify different tactics of transnational repression in physical and nonphysical forms;

(B) which governments are known to employ transnational repression most frequently;

(C) which communities and locations in the United States are most vulnerable to transnational repression;

(D) tools of digital surveillance and other cyber tools used to carry out transnational repression activities;

(E) espionage and foreign agent laws; and

(F) how foreign governments may try to coopt the immigration system.

(2) TRAINING RECIPIENTS.—The training recipients referred to in this paragraph include, to the extent deemed appropriate and necessary by their respective agency heads in the case of any Federal employee—

(A) employees of—

(i) the Department of Homeland Security, including U.S. Customs and Border Protection, U.S. Citizenship and Immigration Services, and U.S. Immigration and Customs Enforcement;

(ii) the Department of Justice, including the Federal Bureau of Investigation; and

(iii) the Office of Refugee Resettlement of the Department of Health and Human Services;

(B) other Federal, State, and local law enforcement and municipal officials receiving instruction at the Federal Law Enforcement Training Center; and

(C) appropriate private sector and community partners of the Federal Bureau of Investigation.

(3) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $1,000,000 for each of the fiscal years 2024 through 2027, to develop and provide the curriculum and training described in paragraph (1).

SEC. 12__7. INTELLIGENCE GATHERING.

The intelligence community (as defined in section 3 of the National Security Act of 1947 (50 U.S.C. 3003) shall devote significant resources—

(1) to prioritize, to the extent feasible, the identification of individuals, networks, and tools that are used for perpetrating transnational repression against communities in the United States on behalf of foreign governments;

(2) to share relevant and appropriate information with like-minded partners; and

(3) to effectively coordinate such efforts with the Federal Bureau of Investigation, the Department of Homeland Security, the Office of the Director of National Intelligence, and the Department of State.

SEC. 12__8. DEPARTMENT OF HOMELAND SECURITY AND DEPARTMENT OF JUSTICE INITIATIVES TO COMBAT TRANSNATIONAL REPRESSION IN THE UNITED STATES.

(a) IN GENERAL.—The Secretary of Homeland Security and the Attorney General, in consultation with the Director of the Federal Bureau of Investigation, shall—

(1) dedicate resources to ensure that a tip line for victims and witnesses of transnational repression—

(A) is staffed by people who are—

(i) equipped with cultural and linguistic ability to communicate effectively with diaspora and exile communities; and

(ii) knowledgeable of the tactics of transnational repression;

(B) is encrypted and, to the maximum extent practicable, protects the confidentiality of the identifying information of individuals who may call the tip line;

(2) not later than 270 days after the date of the enactment of this Act—

(A) identify existing Federal resources to assist and protect individuals and communities targeted by transnational repression in the United States; and

(B) in cooperation with the Secretary of Health and Human Services and the heads of other Federal agencies, publish such resources in a toolkit or guide;

(3) continue to conduct proactive outreach so that individuals in targeted communities—

(A) are aware of the tip line described in paragraph (1); and

(B) are informed about the types of incidents that should be reported to the Federal Bureau of Investigation;

(4) support data collection and analysis undertaken by Federal research and development centers regarding the needs of targeted communities in the United States, with the goal of identifying priority needs and developing solutions and assistance mechanisms, while recognizing that such mechanisms may differ depending on geographic location of targeted communities, language, and other factors;

(5) continue to issue advisories to, and engage regularly with, communities that are at particular risk of transnational repression, including specific diaspora communities—

(A) to explain what transnational repression is and clarify the threshold at which incidents of transnational repression constitute a crime; and

(B) to identify the resources available to individuals in targeted communities to facilitate their reporting of, and to protect them from, transnational repression, without placing such individuals at additional risk; and

(6) conduct annual trainings with caseworker staff in congressional offices regarding the tactics of transnational repression and the resources available to their constituents.

(b) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $1,000,000 for each of the fiscal years 2024 through 2027, for the research, development, outreach, and training activities described in subsection (a).

SEC. 12__9. IMPOSITION OF SANCTIONS RELATING TO TRANSNATIONAL REPRESSION.

(a) DEFINITIONS.—In this section:

(1) ADMISSION; ADMITTED; ALIEN; LAWFULLY ADMITTED FOR PERMANENT RESIDENCE.—The terms ''admission'', ''admitted'', ''alien'', and ''lawfully admitted for permanent residence'' have the meanings given such terms in section 101 of the Immigration and Nationality Act (8 U.S.C. 1101).

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations of the Senate;

(B) the Committee on Banking, Housing, and Urban Affairs of the Senate;

(C) the Committee on Foreign Affairs of the House of Representatives; and

(D) the Committee on Financial Services of the House of Representatives.

(3) FOREIGN PERSON.—The term ''foreign person'' means an individual or entity that is not a United States person.

(4) TRANSNATIONAL REPRESSION.—The term ''transnational repression'' means actions of a foreign government, or agents of a foreign government, involving the transgression of national borders through physical, digital, or analog means to intimidate, silence, coerce, harass, or harm members of diaspora and exile communities in order to prevent their exercise of internationally recognized human rights.

(5) UNITED STATES PERSON.—The term ''United States person'' means—

(A) a United States citizen or an alien lawfully admitted for permanent residence to the United States;

(B) an entity organized under the laws of the United States or the laws of any jurisdiction within the United States, including a foreign branch of such an entity; and

(C) any person who is physically present in the United States.

(b) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and not less frequently than annually thereafter, the Secretary of State shall submit a report to the appropriate congressional committees that, except as provided in paragraph (2), identifies each foreign person that the President determines has, on or after the date of the enactment of this Act, whether knowingly or unknowingly, directly engaged in transnational repression.

(2) EXCEPTION.—The report required under paragraph (1) shall not identify individuals if such identification would interfere with law enforcement efforts.

(3) EXPLANATION.—If a foreign person identified in the report required under paragraph (1) is not subject to sanctions under subsection (c), the report shall explain, to the extent practicable, the reasons such sanctions were not imposed on such person.

(4) FORM.—The report required under paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(c) IMPOSITION OF SANCTIONS.—Except as provided in subsection (b)(3), the President shall impose 1 or more of the sanctions described in subsection (d) with respect to each foreign person identified in the report required under subsection (b)(1).

(d) SANCTIONS DESCRIBED.—The sanctions described in this subsection are the following:

(1) PROPERTY BLOCKING.—The President shall exercise all of the powers granted to the President under section 203 through 207 of the International Emergency Economic Powers Act (50 U.S.C. 1702 et seq.) to the extent necessary to block and prohibit all transactions in property and interests in property of a foreign person identified in the report required under subsection (b)(1) if such property and interests in property are in the United States, come within the United States, or are or come within the possession or control of a United States person.

(2) INELIGIBILITY FOR VISAS, ADMISSION, OR PAROLE.—

(A) VISAS, ADMISSION, OR PAROLE.—An alien described in subsection (b)(1) is—

(i) inadmissible to the United States;

(ii) ineligible to receive a visa or other documentation to enter the United States; and

(iii) otherwise ineligible to be admitted or paroled into the United States or to receive any other benefit under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(B) CURRENT VISAS REVOKED.—

(i) IN GENERAL.—An alien described in subsection (b)(1) is subject to revocation of any visa or other entry documentation of the alien, regardless of when the visa or other entry documentation is or was issued.

(ii) IMMEDIATE EFFECT.—A revocation under clause (i) shall, in accordance with section 221(i) of the Immigration and Nationality Act, 8 U.S.C. 1201(i)—

(I) take effect immediately; and

(II) automatically cancel any other valid visa or entry documentation that is in the alien's possession.

(e) IMPLEMENTATION; PENALTIES.—

(1) IMPLEMENTATION.—The President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out this section.

(2) PENALTIES.—A person that violates, attempts to violate, conspires to violate, or causes a violation of this section or any regulation, license, or order issued to carry out this section shall be subject to the penalties set forth in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) to the same extent as a person that commits an unlawful act described in subsection (a) of such section.

(f) SANCTIONS.—The President is authorized to impose sanctions as provided under the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 10101 et seq.) against any foreign person who the President, based on credible evidence, determines is responsible for the rendition of journalists, activists, or other individuals to a country in which the person would be at risk of irreparable harm upon return, including extrajudicial killings, torture, or other gross violations of internationally recognized human rights.

(g) WAIVER.—

(1) IN GENERAL.—The President may waive the application of sanctions authorized under this section with respect to a foreign person if the President determines and certifies to the appropriate congressional committees that such a waiver is in the national interests of the United States.

(2) ANNUAL REPORT.—The President shall provide an annual report to Congress that—

(A) lists every waiver granted under paragraph (1); and

(B) provides a justification for each such waiver.

(h) EXCEPTIONS.—

(1) EXCEPTION FOR INTELLIGENCE ACTIVITIES.—Sanctions under this section shall not apply to any activity subject to the reporting requirements under title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.) or any authorized intelligence activities of the United States.

(2) EXCEPTION TO COMPLY WITH INTERNATIONAL OBLIGATIONS AND FOR LAW ENFORCEMENT ACTIVITIES.—Sanctions under subsection (d)(2) shall not apply with respect to an alien if admitting or paroling the alien into the United States is necessary—

(A) to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success June 26, 1947, and entered into force November 21, 1947, between the United Nations and the United States, or other applicable international obligations; or

(B) to carry out or assist law enforcement activity in the United States.

(3) EXCEPTION RELATING TO IMPORTATION OF GOODS.—

(A) IN GENERAL.—The requirement to impose sanctions under this section shall not include the authority or a requirement to impose sanctions on the importation of goods.

(B) GOOD DEFINED.—In this paragraph, the term ''good'' means any article, natural or manmade substance, material, supply, or manufactured product, including inspection and test equipment, and excluding technical data.

(i) SUNSET.—This section, and any sanctions imposed under this section, shall terminate on the date that is 5 years after the date of the enactment of this Act.

SA 882. Mr. MERKLEY (for himself and Mr. YOUNG) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of

Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle F of title XII, add the following:

SEC. 1282. REPORT ON PARTNER FORCES UTILIZING UNITED STATES SECURITY ASSISTANCE IDENTIFIED AS USING HUNGER AS A WEAPON OF WAR.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States recognizes the link between armed conflict and conflict-induced food insecurity;

(2) Congress recognizes and condemns the role of nefarious security actors, including state and non-state armed groups, who have utilized hunger as a weapon of war, including through the unanimous adoption of House of Representatives Resolution 922 and Senate Resolution 669 relating to ''[c]ondemning the use of hunger as a weapon of war and recognizing the effect of conflict on global food security and famine'';

(3) United Nations Security Council Resolution 2417 articulates principles that should serve as important framework for holding perpetrators that use hunger as a weapon of war accountable; and

(4) the United States should use the diplomatic and humanitarian tools at our disposal to not only fight global hunger, mitigate the spread of conflict, and promote critical, lifesaving assistance, but also hold perpetrators using hunger as a weapon of war to account.

(b) DEFINITIONS.—In this section:

(1) HUNGER AS A WEAPON OF WAR.—The term ''hunger as a weapon of war'' means—

(A) intentional starvation of civilians;

(B) intentional and reckless destruction, removal, looting, or rendering useless objects necessary for food production and distribution, such as farmland, markets, mills, food processing and storage facilities, food stuffs, crops, livestock, agricultural assets, waterways, water systems, drinking water facilities and supplies, and irrigation networks;

(C) undue denial of humanitarian access and deprivation of objects indispensable to people's survival, such as food supplies and nutrition resources; and

(D) willful interruption of market systems for populations in need, including through the prevention of travel and manipulation of currency exchange.

(2) SECURITY ASSISTANCE.—The term ''security assistance'' means assistance meeting the definition of ''security assistance'' under section 502B of the Foreign Assistance Act of 1961 (22 U.S.C. 2304).

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary, in consultation with the Administrator of the United States Agency for International Development, and the Secretary of Defense shall submit a report to the appropriate congressional committees regarding—

(1) United States-funded security assistance and cooperation; and

(2) whether the governments and entities receiving such assistance have or are currently using hunger as a weapon of war.

(d) ELEMENTS.—The report required under subsection (c) shall—

(1) identify countries receiving United States-funded security assistance or participating in security programs and activities, including in coordination with the Department of Defense, that are currently experiencing famine-like conditions as a result of conflict;

(2) describe the actors and actions taken by such actors in the countries identified pursuant to paragraph (1) who are utilizing hunger as a weapon of war; and

(3) describe any current or existing plans to continue providing United States-funded security assistance to recipient countries.

(e) FORM.—The report required under subsection (c) shall be submitted in unclassified form, but may include a classified annex.

SA 883. Mr. MERKLEY (for himself and Mr. VAN HOLLEN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle F of title X, add the following:

SEC. 1282. REPORT ON ISRAELI SETTLEMENT ACTIVITY IN OCCUPIED WEST BANK.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter, the Secretary of State shall submit to the appropriate committees of Congress a report that assesses the status of Israeli settlement activity in the occupied West Bank.

(b) ELEMENTS.—The report required under subsection (a) shall include the following with respect to Israeli settlement activity in the West Bank:

(1) The number of permits, tenders, and housing starts approved by the Government of Israel for settlement construction and the locations concerned.

(2) The number and locations of new outposts established without the approval of the Government of Israel.

(3) The number and locations of outposts established without the approval of the Government of Israel that were retroactively legalized by Israeli authorities.

(4) The number and locations of settlements and outposts that are situated, in whole or in part, on land owned by Palestinians.

(5) An analysis of new infrastructure approved or built in the West Bank and which populations it will benefit from its use.

(6) An assessment of the impact of settlements and outposts on—

(A) the freedom of movement, livelihoods, and quality of life of Palestinians; and

(B) the potential for establishing in the future a viable Palestinian state.

(7) The number and locations of demolitions of homes, schools, businesses, agricultural holdings, infrastructure, or other property owned by, or primarily serving, Palestinians.

(8) The number and locations of evictions of Palestinians from their places of residence.

(9) The number of building permits issued for Palestinians in East Jerusalem and the West Bank territory designated under the Oslo Accords as ''Area C'', as well as the number of building permits requested by Palestinians in those areas.

(10) A description of any changes made to Israel's administration of the occupied territory and an analysis of the compatibility of these changes with international law governing military occupation.

(11) The amount of money budgeted by Israeli authorities for settlements and the infrastructure that serves them.

(12) An analysis of the impact any change in the matters described in paragraphs (1) through (11) would have on—

(A) the potential for establishing a viable, contiguous Palestinian state alongside Israel;

(B) the diplomatic posture of the United States globally; and

(C) the national security of the United States.

(c) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on Foreign Relations, the Committee on Armed Services, and the Select Committee on Intelligence of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Armed Services, and the Permanent Select Committee on Intelligence of the House of Representatives.

SA 884. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

Subtitle _____—Stop Harboring Iranian Petroleum Act of 2023

SEC. _____. SHORT TITLE.

This subtitle may be cited as the ''Stop Harboring Iranian Petroleum Act of 2023''.

SEC. _____. DEFINITIONS.

In this subtitle:

(1) ALIEN.—The term ''alien'' has the meaning given that term in section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)).

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives.

(3) FAMILY MEMBER.—The term ''family member'' means, with respect to an individual, a spouse, child, parent, sibling, grandchild, or grandparent of the individual.

(4) FOREIGN PERSON.—The term ''foreign person'' means an individual or entity that is not a United States person.

(5) FOREIGN PORT.—The term ''foreign port'' means any harbor, marine terminal, or other shore side facility outside of the United States used principally for the movement of goods on the water.

(6) KNOWINGLY.—The term ''knowingly'', with respect to conduct, a circumstance, or a result, means that a person has actual knowledge, or should have known, of the conduct, the circumstance, or the result.

(7) MATERIAL SUPPORT.—The term ''material support'' has the meaning given the term ''material support or resources'' in section 2339A of title 18, United States Code.

(8) UNITED STATES PERSON.—The term ''United States person'' means—

(A) a United States citizen or an alien lawfully admitted for permanent residence to the United States; or

(B) an entity organized under the laws of the United States or any jurisdiction within the United States, including a foreign branch of such an entity.

(9) VESSEL.—The term ''vessel'' means any watercraft or aircraft capable of being used as a means of transportation on, under, or over water.

SEC. _____. STATEMENT OF POLICY.

It is the policy of the United States—

(1) to deny the Islamic Republic of Iran the ability to engage in destabilizing activities, support international terrorism, fund the development and acquisition of weapons of mass destruction and the means to deliver such weapons by limiting export of petroleum and petroleum products by the Islamic Republic of Iran;

(2) to deny the Islamic Republic of Iran funds to oppress and commit human rights violations against the Iranian people who are assembling peacefully to redress the Iranian regime;

(3) to sanction entities that violate the laws of the United States by providing support to the Iranian energy sector; and

(4) that the actions of the Islamic Republic of Iran to finance and facilitate the participation of foreign terrorist organizations in ongoing conflicts and illicit activities is detrimental to the national security interests of the United States.

SEC. _____. SANCTIONS WITH RESPECT TO FOREIGN PERSONS THAT ENGAGE IN CERTAIN TRANSACTIONS.

(a) IMPOSITION OF SANCTIONS.—

(1) IN GENERAL.—On and after the date that is 90 days after the date of the enactment of this Act, the President shall impose the sanctions described in subsection (b) with respect to a foreign person that the President determines knowingly engaged, on or after such date of enactment, in an activity described in paragraph (2).

(2) ACTIVITIES DESCRIBED.—A foreign person engages in an activity described in this paragraph if the foreign person—

(A) owns or operates a foreign port that, on or after the date of the enactment of this Act, permitted to dock at such foreign port a vessel—

(i) that is included on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury for transporting Iranian crude oil; or

(ii) of which the operator or owner of such vessel otherwise knowingly engages in a significant transaction to transport, offload, or deal in condensate, refined, or unrefined petroleum products, or other petrochemical products originating from the Islamic Republic of Iran;

(B) owns or operates a vessel that conducts a sea-to-sea transfer involving a significant transaction of any petroleum product originating from the Islamic Republic of Iran;

(C) owns or operates a refinery that engages in a significant transaction to process, refine, or otherwise deal in any petroleum product originating from the Islamic Republic of Iran;

(D) is a family member of a foreign person described in subparagraph (A), (B), or (C);

(E) is owned or controlled by a foreign person described in subparagraph (A), (B), (C), or (D); or

(F) engages in a significant transaction with, or provides material support to, a foreign person described in subparagraph (A), (B), (C), (D), or (E).

(b) SANCTIONS DESCRIBED.—The sanctions described in this subsection are the following:

(1) SANCTIONS ON FOREIGN VESSELS.—Subject to such regulations as the President may prescribe, the President may prohibit a vessel described in subsection (a)(2)(A) or (a)(2)(B) from landing at any port in the United States—

(A) with respect to a vessel described in subsection (a)(2)(A), for a period of not more than 2 years beginning on the date on which the President imposes sanctions with respect to a related foreign port described in subsection (a)(2)(A); and

(B) with respect to a vessel described in subsection (a)(2)(B), for a period of not more than 2 years.

(2) PROPERTY BLOCKING.—The President shall exercise all of the powers granted to the President under the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) to the extent necessary to block and prohibit all transactions in property and interests in property of the foreign person if such property and interests in property are in the United States, come within the United States, or are or come within the possession or control of a United States person.

(3) INELIGIBILITY FOR VISAS, ADMISSION, OR PAROLE.—

(A) VISAS, ADMISSION, OR PAROLE.—In the case of an alien, the alien is—

(i) inadmissible to the United States;

(ii) ineligible to receive a visa or other documentation to enter the United States; and

(iii) otherwise ineligible to be admitted or paroled into the United States or to receive any other benefit under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(B) CURRENT VISAS REVOKED.—

(i) IN GENERAL.—The visa or other entry documentation of an alien described in subparagraph (A) shall be revoked, regardless of when such visa or other entry documentation was issued.

(ii) IMMEDIATE EFFECT.—A revocation under clause (i) shall—

(I) take effect immediately;

(II) automatically cancel any other valid visa or entry documentation that is in the alien's possession; and

(III) be implemented in accordance with section 221(i) of the Immigration and Nationality Act (8 U.S.C. 1201(i)).

(4) IMPLEMENTATION; PENALTIES.—

(A) IMPLEMENTATION.—The President—

(i) may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out this section; and

(ii) not later than 180 days after the date of the enactment of this Act, shall prescribe such regulations as necessary to carry out this subtitle.

(B) NOTIFICATION TO CONGRESS.—Not later than 10 days before the effective date of any regulation prescribed under subparagraph (A)(ii), the President shall brief the appropriate congressional committees on the proposed regulations and the provisions of this Act relating to such regulations.

(C) PENALTIES.—A person that violates, attempts to violate, conspires to violate, or causes a violation of this section or any regulation, license, or order issued to carry out this section shall be subject to the penalties set forth in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) to the same extent as a person that commits an unlawful act described in subsection (a) of that section.

(c) EXCEPTIONS.—

(1) EXCEPTION RELATING TO IMPORTATION OF GOODS.—

(A) IN GENERAL.—A requirement to block and prohibit all transactions in all property and interests in property under this section shall not include the authority or a requirement to impose sanctions on the importation of goods.

(B) GOOD.—In this paragraph, the term ''good'' means any article, natural or manmade substance, material, supply or manufactured product, including inspection and test equipment, and excluding technical data.

(2) EXCEPTION TO COMPLY WITH UNITED NATIONS HEADQUARTERS AGREEMENT AND LAW ENFORCEMENT ACTIVITIES.—Sanctions under subsection (b)(3) shall not apply with respect to an alien if admitting or paroling the alien into the United States is necessary to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success June 26, 1947, and entered into force November 21, 1947, between the United Nations and the United States, or other applicable international obligations of the United States.

(3) EXCEPTION TO COMPLY WITH INTELLIGENCE, LAW ENFORCEMENT, AND OTHER NATIONAL SECURITY ACTIVITIES.—Sanctions under subsection (b) shall not apply with respect to a foreign person if such foreign person is a subject or target of, or otherwise involved in, an intelligence, law enforcement, or national security activity of the United States, as determined by the President.

(d) WAIVERS.—

(1) IN GENERAL.—The President may waive the application of sanctions under this section with respect to a foreign person for a period not to exceed 180 days if the President—

(A) determines that such a waiver is vital to the national interests of the United States; and

(B) not less than 15 days before the granting of the waiver, submits to the appropriate congressional committees a notice of and justification for the waiver.

(2) SPECIAL RULE.—

(A) IN GENERAL.—The President may waive the application of sanctions under this section with respect to a foreign person if the President certifies in writing to the appropriate congressional committees that—

(i) the foreign person—

(I) has ceased engaging in activities described in subsection (b); or

(II) has taken and is continuing to take significant verifiable steps toward ceasing such activities; and

(ii) the President has received reliable assurances from the government of the foreign country that such foreign person will not resume engaging in any activity described in subsection (b).

(B) SUNSET.—The authority to grant a waiver under this paragraph shall terminate on the date that is 5 years after the date of the enactment of this Act.

SEC. _____. REPORT ON PETROLEUM AND PETROLEUM PRODUCT EXPORTS FROM IRAN.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Administrator of the Energy Information Administration shall submit to the appropriate congressional committees a report on the increase exports of petroleum and petroleum products by the Islamic Republic of Iran.

(b) CONTENTS.—The report required by subsection (a) shall include the following:

(1) An analysis of the export and sale of petroleum and petroleum products by the Islamic Republic of Iran since 2018, including—

(A) an estimate of the annual revenue of the export and sale of petroleum by the Islamic Republic of Iran, disaggregated by year;

(B) an estimate of the annual revenue of the export and sale of petroleum to the People's Republic of China by the Islamic Republic of Iran, disaggregated by year;

(C) the number of petroleum and crude oil barrels annually exported by the Islamic Republic of Iran, disaggregated by year;

(D) the number of petroleum and crude oil barrels annually exported to the People's Republic of China by the Islamic Republic of Iran, disaggregated by year;

(E) the number of petroleum and crude oil barrels annually exported to countries other than the People's Republic of China by the Islamic Republic of Iran, disaggregated by year;

(F) the average price per petroleum and crude oil barrel annually exported by the Islamic Republic of Iran, disaggregated by year; and

(G) the average price per petroleum and crude oil barrel annually exported to the People's Republic of China by the Islamic Republic of Iran, disaggregated by year.

(2) An analysis of the labeling practices of the Islamic Republic of Iran with respect to exported petroleum and petroleum products.

(3) A description of persons involved in the export and sale of petroleum and petroleum products from the Islamic Republic of Iran.

(4) A description of vessels involved in the export and sale of petroleum and petroleum products from the Islamic Republic of Iran.

(5) A description of foreign ports involved in the export and sale of petroleum and petroleum products from the Islamic Republic of Iran.

(c) FORM.—The report required by subsection (a) shall be submitted in unclassified form but may include a classified annex.

(d) PUBLICATION.—The unclassified portion of the report required by subsection (a) shall be posted on a publicly available website of the Energy Information Administration.

SA 885. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle G of title X, insert the following:

SEC. 10_____. NATURAL GAS EXPORTS TO ALLIES AND STRATEGIC PARTNERS.

(a) FINDING.—Congress finds that expediting the approval of natural gas export applications for projects intended to increase the capacity of the United States to export natural gas to allies and strategic partners will—

(1) empower United States natural gas exporters to better assist the strategic and national security interests of the United States and allies and strategic partners of the United States; and

(2) lead to job growth, economic development, and energy security.

(b) NATURAL GAS EXPORTS.—Section 3(c) of the Natural Gas Act (15 U.S.C. 717b(c)) is amended—

(1) by striking ''(c) For purposes'' and inserting the following:

''(c) EXPEDITED APPLICATION AND APPROVAL PROCESS.—

''(1) DEFINITION OF COVERED NATION.—

''(A) IN GENERAL.—In this subsection, the term 'covered nation'—

''(i) means an ally described in section 3(b)(2) of the Arms Export Control Act (22 U.S.C. 2753(b)(2)); and

''(ii) during the period described in subparagraph (B), includes Cyprus, Moldova, Sweden, Taiwan, and Ukraine.

''(B) PERIOD DESCRIBED.—The period described in this subparagraph is the period—

''(i) beginning on the date of enactment of the National Defense Authorization Act for Fiscal Year 2024; and

''(ii) ending on December 31, 2030, or such later date as the President determines is in the interest of national defense (as defined in section 702 of the Defense Production Act of 1950 (50 U.S.C. 4552)) or is otherwise in the interests of the United States.

''(2) EXPEDITED APPROVAL.—Except as provided in paragraph (3), for purposes'';

(2) in paragraph (2) (as so designated), by inserting ''the exportation of natural gas to a covered nation,'' before ''or the exportation''; and

(3) by adding at the end the following:

''(3) EXCLUSIONS.—

''(A) NATIONS SUBJECT TO SANCTIONS.—The Commission shall not grant expedited approval under paragraph (2) of an application for exportation of natural gas to any nation that is subject to sanctions or trade restrictions imposed by the United States.

''(B) NATIONS DESIGNATED BY CONGRESS.—The Commission shall not grant expedited approval under paragraph (2) of an application for exportation of natural gas to any nation designated by an Act of Congress as excluded from such expedited approval for reasons of national security.''.

(c) EFFECT.—The amendments made by subsection (b) shall not affect any Federal authorization to export natural gas from the United States to a foreign nation or to import natural gas into the United States from a foreign nation that is in effect on the date of enactment of this Act.

SA 886. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. PROHIBITION ON IMPORTATION OF CRUDE OIL, PETROLEUM, PETROLEUM PRODUCTS, AND LIQUEFIED NATURAL GAS FROM VENEZUELA AND IRAN.

(a) FINDINGS.—Congress makes the following findings:

(1) Article XXI of the General Agreement on Tariffs and Trade provides for security exceptions to the rules of the World Trade Organization to allow a member of the World Trade Organization to take actions ''necessary for the protection of its essential security interests'' during ''time of war or other emergency in international relations'' or ''to prevent any contracting party from taking any action in pursuance of its obligations under the United Nations Charter for the maintenance of international peace and security''.

(2) The actions of the Bolivarian Republic of Venezuela and the Islamic Republic of Iran to finance and facilitate the participation of foreign terrorist organizations in ongoing conflicts and illicit activities, in a manner that is detrimental to the security interests of the United States, warrants taking action under that Article.

(b) PROHIBITION.—The importation of crude oil, petroleum, petroleum products, and liquefied natural gas from Venezuela and Iran is prohibited.

(c) EXCEPTION.—The prohibition under subsection (b) does not apply with respect to crude oil, petroleum, petroleum products, or liquefied natural gas seized by the United States Government for violations of sanctions imposed by the United States.

(d) EFFECTIVE DATE.—The prohibition under subsection (b) applies with respect to articles entered, or withdrawn from warehouse for consumption, on or after the date that is 15 days after the date of the enactment of this Act.

SA 887. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle D of title XXXI, insert the following:

SEC. 31_____. PROHIBITION ON EXPORT OF CRUDE AND REFINED OIL AND CERTAIN PETROLEUM PRODUCTS TO THE PEOPLE'S REPUBLIC OF CHINA.

(a) IN GENERAL.—The Energy Policy and Conservation Act (42 U.S.C. 6201 et seq.) is amended by inserting after section 101 the following:

''SEC. 102. PROHIBITION ON EXPORT OF CERTAIN PETROLEUM PRODUCTS TO THE PEOPLE'S REPUBLIC OF CHINA.

''(a) IN GENERAL.—Notwithstanding any other provision of law, no petroleum product described in subsection (b) that is produced in the United States may be exported from the United States to the People's Republic of China.

''(b) PETROLEUM PRODUCT DESCRIBED.—A petroleum product referred to in subsection (a) is—

''(1) crude oil;

''(2) refined oil or a refined oil product;

''(3) residual fuel oil; or

''(4) any other petroleum product (other than natural gas or any natural gas liquid product).

''(c) APPLICABILITY.—

''(1) PETROLEUM PRODUCTS IN TRANSPORT.—Subsection (a) shall not apply to any petroleum product described in subsection (b) that is in the process of being transported from the United States to the People's Republic of China as of the date on which the prohibition under that subsection takes effect pursuant to subsection (d).

''(2) NATURAL GAS.—Subsection (a) does not apply to natural gas or any natural gas liquid product.

''(d) EFFECTIVE DATE.—The prohibition described in subsection (a) shall take effect on the date that is 10 days after the date of enactment of the China Oil Export Prohibition Act of 2023.''.

(b) CLERICAL AMENDMENT.—The table of contents for the Energy Policy and Conservation Act (Public Law 94–163; 89 Stat. 871; 114 Stat. 2034) is amended by inserting after the item relating to section 101 the following:

''Sec. 102. Prohibition on export of certain petroleum products to the People's Republic of China.''.

(c) CONFORMING AMENDMENT.—Section 101(b) of division O of the Consolidated Appropriations Act, 2016 (42 U.S.C. 6212a(b)) is amended by inserting ''and section 102 of the Energy Policy and Conservation Act'' after ''subsections (c) and (d)''.

SA 888. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

DIVISION E—FAIR TRADE WITH CHINA ENFORCEMENT ACT

SEC. 6001. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This division may be cited as the ''Fair Trade with China Enforcement Act''.

(b) TABLE OF CONTENTS.—The table of contents for this division is as follows:

Sec. 6001. Short title; table of contents.
Sec. 6002. Sense of Congress.
Sec. 6003. Statement of policy.
TITLE I—SAFEGUARDS AGAINST FOREIGN INFLUENCE IN UNITED STATES NATIONAL AND ECONOMIC SECURITY BY THE PEOPLE'S REPUBLIC OF CHINA
Sec. 6011. Establishment of list of certain products receiving support from Government of People's Republic of China pursuant to Made in China 2025 policy.
Sec. 6012. Prohibition on export to People's Republic of China of national security sensitive technology and intellectual property.
Sec. 6013. Imposition of shareholder cap on Chinese investors in United States entities.
Sec. 6014. Prohibition on use of certain telecommunications services or equipment.
TITLE II—FAIR TRADE ENFORCEMENT ACTIONS WITH RESPECT TO THE PEOPLE'S REPUBLIC OF CHINA
Sec. 6021. Countervailing duties with respect to certain industries in the People's Republic of China.
Sec. 6022. Repeal of reduced withholding rates for residents of China.
Sec. 6023. Taxation of obligations of the United States held by the Government of the People's Republic of China.

SEC. 6002. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) since joining the World Trade Organization in 2001, the People's Republic of China has offered the United States a contradictory bargain, which promised openness in the global trade order, but through state mercantilism delivered a severely imbalanced trading relationship;

(2) it was erroneous for the United States Government to have ignored the contradictions and risks of free trade with the People's Republic of China on the assumption that the People's Republic of China would liberalize economically and politically;

(3) benefiting enormously from a more open global economy to drive its own industries, the Government of the People's Republic of China and the Communist Party of the People's Republic of China have only tightened their grip on power, brutally suppressing dissent at home and pursuing policies abroad that are a far cry from being a responsible global stakeholder;

(4) malevolent economic behavior by persons in the People's Republic of China is made clear by the theft of intellectual property from the United States, as Chinese theft of United States intellectual property alone costs the United States nearly $600,000,000,000 annually, according to the United States Trade Representative;

(5) stealing United States intellectual property advances the Made in China 2025 initiative of the Government of the People's Republic of China to eventually dominate global exports in 10 critical sectors, namely artificial intelligence and next-generation information technology, robotics, new-energy vehicles, biotechnology, energy and power generation, aerospace, high-tech shipping, advanced railway, new materials, and agricultural machinery, among others;

(6) the targets of the Made in China 2025 initiative reveal the goal of the People's Republic of China for the near-total displacement of advanced manufacturing in the United States; and

(7) the United States Government should act to strengthen the position of the United States in its policy toward the People's Republic of China in order to create a more balanced economic relationship by safeguarding strategic assets from Chinese influence, reducing Chinese involvement in the United States economy, and encouraging United States companies to produce domestically, instead of in the People's Republic of China.

SEC. 6003. STATEMENT OF POLICY.

It is the policy of the United States—

(1) to impose restrictions on Chinese investment in the United States in strategic industries targeted by the Made in China 2025 initiative set forth by the Government of the People's Republic of China;

(2) to tax Chinese investment in the United States due to its negative effect on the United States trade deficit and wages of workers in the United States;

(3) to increase the cost of transnational production operations in the People's Republic of China in a manner consistent with the economic cost of the risk of loss of unique access by the United States to intellectual property, technology, and industrial base; and

(4) to support democratization in and the human rights of the people of Hong Kong, including the findings and declarations set forth under section 2 of the United States-Hong Kong Policy Act of 1992 (22 U.S.C. 5701).

TITLE I—SAFEGUARDS AGAINST FOREIGN INFLUENCE IN UNITED STATES NATIONAL AND ECONOMIC SECURITY BY THE PEOPLE'S REPUBLIC OF CHINA

SEC. 6011. ESTABLISHMENT OF LIST OF CERTAIN PRODUCTS RECEIVING SUPPORT FROM GOVERNMENT OF PEOPLE'S REPUBLIC OF CHINA PURSUANT TO MADE IN CHINA 2025 POLICY.

(a) IN GENERAL.—Chapter 8 of title I of the Trade Act of 1974 (19 U.S.C. 2241 et seq.) is amended by adding at the end the following:

''SEC. 183. LIST OF CERTAIN PRODUCTS RECEIVING SUPPORT FROM GOVERNMENT OF PEOPLE'S REPUBLIC OF CHINA.

''(a) IN GENERAL.—Not later than 120 days after the date of the enactment of the Fair Trade with China Enforcement Act, and every year thereafter, the United States Trade Representative shall set forth a list of products manufactured or produced in, or exported from, the People's Republic of China that are determined by the Trade Representative to receive support from the Government of the People's Republic of China pursuant to the Made in China 2025 industrial policy of that Government.

''(b) CRITERIA FOR LIST.—

''(1) IN GENERAL.—The Trade Representative shall include in the list required by subsection (a) the following products:

''(A) Any product specified in the following documents set forth by the Government of the People's Republic of China:

''(i) Notice on Issuing Made in China 2025.

''(ii) China Manufacturing 2025.

''(iii) Notice on Issuing the 13th Five-year National Strategic Emerging Industries Development Plan.

''(iv) Guiding Opinion on Promoting International Industrial Capacity and Equipment Manufacturing Cooperation.

''(v) Any other document that expresses a national strategy or stated goal in connection with the Made in China 2025 industrial policy set forth by the Government of the People's Republic of China, the Communist Party of China, or another entity or individual capable of impacting the national strategy of the People's Republic of China.

''(B) Any product receiving support from the Government of the People's Republic of China that has or will in the future displace net exports of like products by the United States, as determined by the Trade Representative.

''(2) INCLUDED PRODUCTS.—In addition to such products as the Trade Representative shall include pursuant to paragraph (1) in the list required by subsection (a), the Trade Representative shall include products in the following industries:

''(A) Civil aircraft.
''(B) Motor car and vehicle.
''(C) Advanced medical equipment.
''(D) Advanced construction equipment.
''(E) Agricultural machinery.
''(F) Railway equipment.
''(G) Diesel locomotive.
''(H) Moving freight.
''(I) Semiconductor.
''(J) Lithium battery manufacturing.
''(K) Artificial intelligence.
''(L) High-capacity computing.
''(M) Quantum computing.
''(N) Robotics.
''(O) Biotechnology.''.

(b) CLERICAL AMENDMENT.—The table of contents for the Trade Act of 1974 is amended by inserting after the item relating to section 182 the following:

''Sec. 183. List of certain products receiving support from Government of People's Republic of China.''.

SEC. 6012. PROHIBITION ON EXPORT TO PEOPLE'S REPUBLIC OF CHINA OF NATIONAL SECURITY SENSITIVE TECHNOLOGY AND INTELLECTUAL PROPERTY.

(a) IN GENERAL.—The Secretary of Commerce shall prohibit the export to the People's Republic of China of any national security sensitive technology or intellectual property subject to the jurisdiction of the United States or exported by any person subject to the jurisdiction of the United States.

(b) DEFINITIONS.—In this section:

(1) INTELLECTUAL PROPERTY.—The term ''intellectual property'' includes patents, copyrights, trademarks, or trade secrets.

(2) NATIONAL SECURITY SENSITIVE TECHNOLOGY OR INTELLECTUAL PROPERTY.—The term ''national security sensitive technology or intellectual property'' includes the following:

(A) Technology or intellectual property that would make a significant contribution to the military potential of the People's Republic of China that would prove detrimental to the national security of the United States.

(B) Technology or intellectual property necessary to protect the economy of the United States from the excessive drain of scarce materials and to reduce the serious inflationary impact of demand from the People's Republic of China.

(C) Technology or intellectual property that is a component of the production of products included in the most recent list required under section 183 of the Trade Act of 1974, as added by section 6011(a), determined in consultation with the United States Trade Representative.

(3) TECHNOLOGY.—The term ''technology'' includes goods or services relating to information systems, internet-based services, production-enhancing logistics, robotics, artificial intelligence, biotechnology, or computing.

SEC. 6013. IMPOSITION OF SHAREHOLDER CAP ON CHINESE INVESTORS IN UNITED STATES ENTITIES.

Section 13(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(d)) is amended by adding at the end the following:

''(7)(A) In this paragraph, the term 'covered issuer' means any issuer—

''(i) that produces components that—

''(I) may be used in the production of goods manufactured or produced in, or exported from, the People's Republic of China; and

''(II) are included in the most recent list required under section 183 of the Trade Act of 1974, determined in consultation with the United States Trade Representative; and

''(ii)(I) that is incorporated under the laws of a State; or

''(II) the principal place of business of which is in a State.

''(B) Notwithstanding any other provision of this subsection, no person, the principal place of business of which is in the People's Republic of China, may be the beneficial owner, directly or indirectly, of more than 50 per centum of any class of equity security of a covered issuer that is registered pursuant to section 12.

''(C) The prohibition in subparagraph (B) shall apply to any acquisition on or after the date of enactment of this paragraph.''.

SEC. 6014. PROHIBITION ON USE OF CERTAIN TELECOMMUNICATIONS SERVICES OR EQUIPMENT.

(a) FINDINGS.—Congress makes the following findings:

(1) In its 2011 ''Annual Report to Congress on Military and Security Developments Involving the People's Republic of China'', the Department of Defense stated, ''China's defense industry has benefited from integration with a rapidly expanding civilian economy and science and technology sector, particularly elements that have access to foreign technology. Progress within individual defense sectors appears linked to the relative integration of each, through China's civilian economy, into the global production and R&D chain . . . Information technology companies in particular, including Huawei, Datang, and Zhongxing, maintain close ties to the PLA.''.

(2) In a 2011 report titled ''The National Security Implications of Investments and Products from the People's Republic of China in the Telecommunications Sector'', the United States China Economic and Security Review Commission stated that ''[n]ational security concerns have accompanied the dramatic growth of China's telecom sector. . . . Additionally, large Chinese companies—particularly those 'national champions' prominent in China's 'going out' strategy of overseas expansion—are directly subject to direction by the Chinese Communist Party, to include support for PRC state policies and goals.''.

(3) The Commission further stated in its report that ''[f]rom this point of view, the clear economic benefits of foreign investment in the U.S. must be weighed against the potential security concerns related to infrastructure components coming under the control of foreign entities. This seems particularly applicable in the telecommunications industry, as Chinese companies continue systematically to acquire significant holdings in prominent global and U.S. telecommunications and information technology companies.''.

(4) In its 2011 Annual Report to Congress, the United States China Economic and Security Review Commission stated that ''[t]he extent of the state's control of the Chinese economy is difficult to quantify. . . . There is also a category of companies that, though claiming to be private, are subject to state influence. Such companies are often in new markets with no established SOE leaders and enjoy favorable government policies that support their development while posing obstacles to foreign competition. Examples include Chinese telecoms giant Huawei and such automotive companies as battery maker BYD and vehicle manufacturers Geely and Chery.''.

(5) In the bipartisan ''Investigative Report on the United States National Security Issues Posed by Chinese Telecommunication Companies Huawei and ZTE'' released in 2012 by the Permanent Select Committee on Intelligence of the House of Representatives, it was recommended that ''U.S. government systems, particularly sensitive systems, should not include Huawei or ZTE equipment, including in component parts. Similarly, government contractors—particularly those working on contracts for sensitive U.S. programs—should exclude ZTE or Huawei equipment in their systems.''.

(6) General Michael Hayden, who served as Director of the Central Intelligence Agency and Director of the National Security Agency, stated in July 2013 that Huawei had ''shared with the Chinese state intimate and extensive knowledge of foreign telecommunications systems it is involved with''.

(7) The Federal Bureau of Investigation, in a February 2015 Counterintelligence Strategy Partnership Intelligence Note, stated that, ''[w]ith the expanded use of Huawei Technologies Inc. equipment and services in U.S. telecommunications service provider networks, the Chinese Government's potential access to U.S. business communications is dramatically increasing. Chinese Government-supported telecommunications equipment on U.S. networks may be exploited through Chinese cyber activity, with China's intelligence services operating as an advanced persistent threat to U.S. networks.''.

(8) The Federal Bureau of Investigation further stated in its February 2015 counterintelligence note that ''China makes no secret that its cyber warfare strategy is predicated on controlling global communications network infrastructure''.

(9) At a hearing before the Committee on Armed Services of the House of Representatives on September 30, 2015, Deputy Secretary of Defense Robert Work, responding to a question about the use of Huawei telecommunications equipment, stated, ''In the Office of the Secretary of Defense, absolutely not. And I know of no other—I don't believe we operate in the Pentagon, any [Huawei] systems in the Pentagon.''.

(10) At that hearing, the Commander of the United States Cyber Command, Admiral Mike Rogers, responding to a question about why such Huawei telecommunications equipment is not used, stated, ''As we look at supply chain and we look at potential vulnerabilities within the system, that it is a risk we felt was unacceptable.''.

(11) In March 2017, ZTE Corporation pled guilty to conspiring to violate the International Emergency Economic Powers Act by illegally shipping United States-origin items to Iran, paying the United States Government a penalty of $892,360,064 for activity between January 2010 and January 2016.

(12) The Office of Foreign Assets Control of the Department of the Treasury issued a subpoena to Huawei as part of a Federal investigation of alleged violations of trade restrictions on Cuba, Iran, and Sudan.

(b) PROHIBITION ON AGENCY USE OR PROCUREMENT.—The head of an agency may not procure or obtain, may not extend or renew a contract to procure or obtain, and may not enter into a contract (or extend or renew a contract) with an entity that uses, or contracts with any other entity that uses, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) REPORT.—Not later than one year after the date of the enactment of this Act, and annually thereafter, the Secretary of Commerce, in consultation with the Secretary of Defense and the United States Trade Representative, shall submit to Congress a report on sales by the Government of the People's Republic of China of covered telecommunications equipment or services through partial ownership or any other methods.

(d) DEFINITIONS.—In this section:

(1) AGENCY.—The term ''agency'' has the meaning given that term in section 551 of title 5, United States Code.

(2) COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES.—The term ''covered telecommunications equipment or services'' means any of the following:

(A) Telecommunications equipment produced by Huawei Technologies Company, ZTE Corporation, or any other Chinese telecom entity identified by the Director of National Intelligence, the Secretary of Defense, or the Director of the Federal Bureau of Investigation as a security concern (or any subsidiary or affiliate of any such entity).

(B) Telecommunications services provided by such entities or using such equipment.

(C) Telecommunications equipment or services produced or provided by an entity that the head of the relevant agency reasonably believes to be an entity owned or controlled by, or otherwise connected to, the Government of the People's Republic of China.

TITLE II—FAIR TRADE ENFORCEMENT ACTIONS WITH RESPECT TO THE PEOPLE'S REPUBLIC OF CHINA

SEC. 6021. COUNTERVAILING DUTIES WITH RESPECT TO CERTAIN INDUSTRIES IN THE PEOPLE'S REPUBLIC OF CHINA.

(a) POLICY.—It is the policy of the United States—

(1) to reduce the import of finished goods from the People's Republic of China relating to the Made in China 2025 plan set forth by the Government of the People's Republic of China; and

(2) to encourage allies of the United States to reduce the import of finished goods from the People's Republic of China relating to the Made in China 2025 plan.

(b) INCLUSION OF MADE IN CHINA 2025 PRODUCTS IN DEFINITION OF COUNTERVAILABLE SUBSIDY.—Paragraph (5) of section 771 of the Tariff Act of 1930 (19 U.S.C. 1677) is amended by adding at the end the following:

''(G) TREATMENT OF CERTAIN CHINESE MERCHANDISE.—Notwithstanding any other provision of this title, if a person presents evidence in a petition filed under section 702(b) that merchandise covered by the petition is manufactured or produced in, or exported from, the People's Republic of China and included in the most recent list required under section 183 of the Trade Act of 1974, determined in consultation with the United States Trade Representative, the administrating authority shall determine that a countervailable subsidy is being provided with respect to that merchandise.''.

(c) INCLUSION OF MADE IN CHINA 2025 PRODUCTS IN DEFINITION OF MATERIAL INJURY.—Paragraph (7)(F) of such section is amended by adding at the end the following:

''(iv) TREATMENT OF CERTAIN CHINESE MERCHANDISE.—Notwithstanding any other provision of this title, if a petition filed under section 702(b) alleges that an industry in the United States is materially injured or threatened with material injury or that the establishment of an industry in the United States is materially retarded by reason of imports of merchandise manufactured or produced in, or exported from, the People's Republic of China and included in the most recent list required under section 183 of the Trade Act of 1974, determined in consultation with the United States Trade Representative, the Commission shall determine that material injury or such a threat exists.''.

SEC. 6022. REPEAL OF REDUCED WITHHOLDING RATES FOR RESIDENTS OF CHINA.

(a) IN GENERAL.—Section 894 of the Internal Revenue Code of 1986 is amended—

(1) by striking ''The provisions of'' in subsection (a)(1) and inserting ''Except as otherwise provided in this section, the provisions of''; and

(2) by adding at the end the following new subsection:

''(d) EXCEPTION FOR PEOPLE'S REPUBLIC OF CHINA.—

''(1) IN GENERAL.—The rates of tax imposed under sections 871 and 881, and the rates of withholding tax imposed under chapter 3, with respect to any resident of the People's Republic of China shall be determined without regard to any provision of the Agreement between the Government of the United States of America and the Government of the People's Republic of China for the Avoidance of Double Taxation and the Prevention of Tax Evasion with Respect to Taxes on Income, signed at Beijing on April 30, 1984.

''(2) REGULATIONS.—The Secretary shall promulgate regulations to prevent the avoidance of the purposes of this subsection through the use of foreign entities.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to income received after the date of the enactment of this Act.

SEC. 6023. TAXATION OF OBLIGATIONS OF THE UNITED STATES HELD BY THE GOVERNMENT OF THE PEOPLE'S REPUBLIC OF CHINA.

(a) IN GENERAL.—Section 892 of the Internal Revenue Code of 1986 is amended by redesignating subsection (c) as subsection (d) and by inserting after subsection (b) the following new subsection:

''(c) EXCEPTION.—This section shall not apply to the Government of the People's Republic of China.''.

(b) CENTRAL BANK.—Section 895 of the Internal Revenue Code of 1986 is amended—

(1) by striking ''Income'' and inserting the following:

''(a) IN GENERAL.—Income''; and

(2) by adding at the end the following new subsection:

''(b) EXCEPTION.—This section shall not apply to the any central bank of the People's Republic of China.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to income received or derived after the date of the enactment of this Act.

SA 889. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title X of division A, add the following:

Subtitle H—National Development Strategy and Coordination Act of 2023

SEC. 1091. SHORT TITLE.

This subtitle may be cited as the ''National Development Strategy and Coordination Act of 2023''.

SEC. 1092. DEFINITIONS.

In this subtitle:

(1) APPROPRIATE CONGRESSIONAL COMMITTEE.—The term ''appropriate congressional committee'' means—

(A) the Committee on Banking, Housing, and Urban Affairs, the Committee on Finance, the Committee on Commerce, Science, and Transportation, and the Select Committee on Intelligence of the Senate; and

(B) the Committee on Financial Services, the Committee on Energy and Commerce, and the Permanent Select Committee on Intelligence of the House of Representatives.

(2) COUNTRY OF CONCERN.—The term ''country of concern'' means—

(A) the People's Republic of China and any other foreign government or foreign non-government person determined to be a foreign adversary under section 7.4 of title 15, Code of Federal Regulations, or any successor regulation; or

(B) any country determined by the Secretary of Commerce, in consultation with the United States Trade Representative, the Secretary of Defense, and the Director of National Intelligence, to have inadequate safeguards in place to protect United States funds (or intellectual property developed using such funds) from theft or transfer to a foreign government or foreign non-government person described in subparagraph (A).

(3) ENTITY OF CONCERN.—The term ''entity of concern'' means—

(A) an entity headquartered in a country of concern;

(B) an entity that is more than 25-percent owned by individuals or entities in countries of concern;

(C) an entity on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury (commonly referred to as the ''SDN list'');

(D) an entity on the Non-SDN Chinese Military-Industrial Complex Companies List—

(i) established pursuant to Executive Order 13959 (50 U.S.C. 1701 note; relating to addressing the threat from securities investments that finance Communist Chinese military companies), as amended before, on, or after the date of the enactment of this Act; and

(ii) maintained by the Office of Foreign Assets Control;

(E) a Chinese military company on the list required by section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 113 note);

(F) an entity on the Entity List maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations, or any successor regulation;

(G) an entity that produces equipment or services on the list of communications equipment and services that pose an unacceptable risk to the national security of the United States or the security and safety of United States persons maintained by the Federal Communications Commission under section 2 of the Secure and Trusted Communications Networks Act of 2019 (47 U.S.C. 1601); or

(H) any entity that is majority owned or controlled by, or under common ownership or control with, an entity described in any of subparagraphs (A) through (G).

SEC. 1093. ESTABLISHMENT OF THE INTERAGENCY COMMITTEE FOR THE COORDINATION OF NATIONAL DEVELOPMENT FINANCING PROGRAMS.

(a) ESTABLISHMENT.—There is established in the Executive Office of the President a Committee to be known as the Interagency Committee for the Coordination of National Development Financing Programs (referred to in this subtitle as the ''Committee'').

(b) MEMBERSHIP.—

(1) COMPOSITION.—The Committee shall consist of the following members:

(A) The Secretary of Transportation or a designee of the Secretary.

(B) The Secretary of Energy or a designee of the Secretary.

(C) The Secretary of Commerce or a designee of the Secretary.

(D) The Secretary of Labor or a designee of the Secretary.

(E) The Secretary of the Treasury or a designee of the Secretary.

(F) The Administrator of the Small Business Administration or a designee of the Administrator.

(G) The Secretary of Defense or a designee of the Secretary.

(H) The Director of National Intelligence or a designee of the Director.

(I) The Secretary of Agriculture or a designee of the Secretary.

(J) The United States Trade Representative or their designee.

(K) The Chair of the Board of Governors of the Federal Reserve or a designee of the Chair, who shall serve as a nonvoting member.

(L) The Secretary of the Treasury or a designee of the Secretary, who shall serve as the chair of the Committee.

(2) TIE VOTE.—In the event of a tie vote, the vote of the chair of the Committee shall serve as the tie-breaker.

(c) DUTIES.—The Committee—

(1) shall submit to Congress the National Development Strategy described in subsection (d);

(A) not later than 1 year after the date of enactment of this Act; and

(B) not later than 1 year after January 20, 2025, and every 4 years thereafter, and in each such year not earlier than the latest date on which the budget of the President may be submitted to Congress under section 1105(a) of title 31, United States Code, submit to Congress the National Development Strategy described in subsection (d); and

(2) shall identify economic sectors of the United States, regions of the United States, and, as necessary and supported by substantial evidence, projects or partnerships that advance the goals of the National Development Strategy described in subsection (d), to which financing assistance should be prioritized by member agencies of the Committee and should be provided or supported by the Federal Financing Bank.

(d) NATIONAL DEVELOPMENT STRATEGY.—The Committee shall develop a publicly available (except for an allowable classified annex) National Development Strategy, which shall—

(1) identify and address vulnerabilities in United States supply chains in industries critical to national security;

(2) identify and address vulnerabilities and shortfalls in domestic manufacturing capabilities that threaten the ability of the United States to maintain a global advantage in innovation and manufacturing;

(3) identify weaknesses and discuss opportunities to strengthen the broad industrial base of the United States, which may include—

(A) strengthening supply chain resiliency;

(B) supporting industries critical for the national security;

(C) developing technologies that provide scientific or commercial value to the United States;

(D) supporting job growth and development of critical manufacturing capabilities within the United States workforce;

(E) supporting the development and adoption of innovative resource extraction technologies, including for renewable energy; and

(F) supporting job growth and economic development in critical industries in communities designated as qualified opportunity zones under section 1400Z–1 of the Internal Revenue Code of 1986;

(4) identify industries and regions in the United States that require assistance in order to address vulnerabilities and advance the goals described in paragraphs (1), (2), and (3); and

(5) outline a strategic plan to promote investment in the industries described in paragraph (4), which shall include—

(A) an estimate of the amount and nature of public financing needed to achieve the goals and address vulnerabilities described in paragraphs (1), (2), and (3);

(B) an inventory of all Federal programs in existence as of the date of the National Development Strategy that are capable of providing the financing described in subparagraph (A), the level of investment from each such Federal program in the preceding 5-year period, and a detailed description of how each such program is advancing development goals in the United States;

(C) recommendations as to how Federal agencies may, under existing Federal authorities, leverage and attract private investment to accomplish the goals described in this subsection;

(D) recommendations, if applicable, on any changes to Federal financing programs, including changes to how financing decisions are prioritized or creation of new financing programs, that may be needed to advance the goals of the National Development Strategy;

(E) directives to the Federal Financing Bank to accomplish the goals of the National Development Strategy; and

(F) performance metrics to evaluate and monitor projects supported by the Federal Financing Bank in alignment with the National Development Strategy.

(e) ADVICE AND INPUT.—The Committee shall seek the advice and input of industry partners, manufacturing policy experts, State and local development officials, and manufacturing worker interests when preparing the National Development Strategy described in subsection (d), including by—

(1) holding not less than 4 public hearings per year, either virtually or in-person, during which industry representatives, worker groups, and regional representatives can provide insight into strategic development prioritization; and

(2) establishing an Industry Advisory Board of not more than 10 members appointed by the President, which shall include—

(A) an expert in industry competitiveness and national security;

(B) a manufacturing trade association representative;

(C) a representative of small business government contractors;

(D) a manufacturing worker representative;

(E) a representative from a private investment firm investing in critical industries and frontier technology; and

(F) such other representatives as the President may appoint.

(f) ASSESSMENT OF NATIONAL DEVELOPMENT STRATEGY.—In January of each year in which the Committee does not submit a new National Development Strategy as required under subsection (d), the Committee shall submit to the appropriate congressional committees an assessment of the most recently published National Development Strategy, which shall include—

(1) an accounting of any new investments made by the Federal Financing Bank or member agencies of the Committee in the preceding year, including ZIP Code, North American Industry Classification System code, and financing stage;

(2) the performance of such investments, in accordance with performance metrics established by the Committee;

(3) an assessment of the implementation of the National Development Strategy, including an assessment by each agency represented on the Committee, supported by sufficient evidence, of steps taken to align such agencies' financing, research, and development activities with the goals of the National Development Strategy; and

(4) a determination on whether or not an update is needed to the National Development Strategy as a result of a change in assumptions, geopolitical dynamics, or other factors.

(g) MEMORANDUM OF COORDINATION WITH FEDERAL AGENCIES ENGAGED IN INVESTMENT AND FINANCING ACTIVITIES.—Not later than 1 year after the date of enactment of this Act, the Committee shall negotiate a memorandum of understanding among the Federal agencies represented on the Committee, which shall—

(1) establish procedures for—

(A) aligning their respective investment and financing authorities to ensure maximum efficiency and comply with the goals of the National Development Strategy;

(B) resolving conflicts in cases of overlapping jurisdiction between their respective agencies; and

(C) avoiding conflicting or duplicative operation of services.

(2) be reviewed and updated annually in coordination with the submission of the assessment outlined in subsection (f).

(h) MEETINGS.—The Committee shall meet regularly and as required by the President, but not less frequently than annually.

(i) STRATEGIC ALIGNMENT.—Each Federal agency represented on the Committee shall—

(1) consult on a regular basis the most recently published National Development Strategy described in subsection (d); and

(2) to the extent practicable, give priority consideration to projects that align with the goals of the National Development Strategy when engaged in financing, research, and development activities.

SEC. 1094. REQUIREMENTS OF THE FEDERAL FINANCING BANK RELATING TO THE NATIONAL DEVELOPMENT STRATEGY.

(a) IN GENERAL.—The Federal Financing Bank Act of 1973 (12 U.S.C. 2281 et seq.) is amended by adding at the end the following:

''SEC. 21. FUNCTIONS WITH RESPECT TO THE COMMITTEE.

''(a) IN GENERAL.—The Bank shall carry out any directives made to the Bank by the Interagency Committee for the Coordination of National Development Financing Programs pursuant to subsections (c)(2) and (d)(5)(E) of section 3 of the National Development Strategy and Coordination Act of 2023.

''(b) ACTIVITIES.—Pursuant to subsection (a), the Bank is authorized, upon direction by the Interagency Committee for the Coordination of National Development Financing Programs, to—

''(1) issue securities that are backed by financing assistance through any member agency of the Committee;

''(2) purchase from the private market loans or other debt or equity instruments guaranteed in whole or in part by any member agency of the Committee; and

''(3) participate in agency loans or loan guarantees in an amount less than 100 percent of the principal amount of financing.

''(c) PURCHASE NOT FOR RESALE.—As directed by the Interagency Committee for the Coordination of National Development Financing Programs in accordance with the National Development Strategy established under section 3(d) of the National Development Strategy and Coordination Act of 2023, the Bank may, as necessary, purchase not for resale to the private market any loans or other debt or equity instruments described in subsection (b)(2).

''SEC. 22. SECONDARY MARKET OPERATIONS.

''Except as otherwise provided in the National Development Strategy and Coordination Act of 2023, obligations purchased by the Bank may be resold in the secondary market in a similar manner to secondary market sales of Treasury notes.

''SEC. 23. OMBUDSMAN.

''The Board of Directors of the Bank shall designate an official as the Ombudsman who shall—

''(1) review investments made by the Bank on projects or partnerships identified by the Interagency Committee for the Coordination of National Development Financing Programs;

''(2) review the risk profiles and performance of any such projects or partnerships;

''(3) provide oversight relating to any such projects or partnerships; and

''(4) provide annually to the appropriate congressional committees a report detailing investments made by the Bank in projects or partnerships identified by the Committee described in paragraph (1), the performance of such investments, and any new or existing investments that may present cause for concern regarding the potential of repayment or lack of alignment with strategic directives.''.

(b) FEDERAL CREDIT REFORM ACT.—If the Committee determines that a project or partnership receiving financial assistance through any member agency is investing in frontier technologies for which no reasonable market comparison exists, obligations purchased in connection with such project or partnership by the Federal Financing Bank under section 21 of the Federal Financing Bank Act of 1973, as added by subsection (a) of this section, shall not be subject to the Federal Credit Reform Act of 1990 (2 U.S.C. 661 et seq.).

SEC. 1095. AUTHORIZATION OF APPROPRIATIONS FOR THE FEDERAL FINANCING BANK.

(a) IN GENERAL.—There is authorized to be appropriated to the Federal Financing Bank, to remain available for 10 years after the date of distribution, to carry out projects and partnerships selected by the National Development Strategy established under section 1093(d) of this subtitle—

(1) for fiscal year 2024, $5,000,000,000;

(2) for fiscal year 2025, $5,000,000,000;

(3) for fiscal year 2026, $5,000,000,000; and

(4) for fiscal year 2027, $5,000,000,000;

(b) SET ASIDE.—Not more than 2 percent of funds appropriated under this section shall be utilized for administrative costs, including the hiring of new staff to oversee and accomplish the functions of the Federal Financing Bank.

(c) SENSE OF CONGRESS.—It is the sense of Congress that the Federal Financing Bank should use amounts appropriated under this section as soon as possible.

SEC. 1096. PROHIBITIONS AND POLICY.

(a) PROHIBITION.—No funding or authorities provided under this subtitle may be used to support projects or partnerships with any entity of concern.

(b) POLICIES.—Not later than 180 days after the date of enactment of this Act, the Committee shall establish policies to ensure that any support to projects or partnerships provided by the Federal Financing Bank in accordance with this subtitle—

(1) includes assurances that no support provided in such project or partnership shall be used to expand operations in a country of concern;

(2) includes protections to ensure against transfer of intellectual property to countries of concern; and

(3) includes requirements that any firm participating in a project or partnership

funded by this subtitle disclose any affiliate, parent company, or subsidiary located in a country of concern.

SA 890. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. AMERICAN FINANCIAL MARKETS INTEGRITY AND SECURITY.

(a) SHORT TITLE.—This section may be cited as the ''American Financial Markets Integrity and Security Act''.

(b) PROHIBITIONS RELATING TO CERTAIN COMMUNIST CHINESE MILITARY COMPANIES.—

(1) DEFINITIONS.—In this subsection:

(A) COMMISSION.—The term ''Commission'' means the Securities and Exchange Commission.

(B) CONTROL; INSURANCE COMPANY.—The terms ''control'' and ''insurance company'' have the meanings given the terms in section 2(a) of the Investment Company Act of 1940 (15 U.S.C. 80a–2(a)).

(C) COVERED ENTITY.—

(i) IN GENERAL.—The term ''covered entity'' means any of the following:

(I) An entity on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury (commonly referred to as the ''SDN list'').

(II) An entity on the Non-SDN Chinese Military-Industrial Complex Companies List—

(aa) established pursuant to Executive Order 13959 (50 U.S.C. 1701 note; relating to addressing the threat from securities investments that finance Communist Chinese military companies), as amended before, on, or after the date of enactment of this Act; and

(bb) maintained by the Office of Foreign Assets Control of the Department of the Treasury.

(III) A Chinese military company on the list required under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 113 note).

(IV) An entity on the entity list maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations.

(V) Any entity that is a parent, subsidiary, or affiliate of, or an entity controlled by, an entity described in any of clauses (i) through (iv).

(ii) GRACE PERIOD.—For the purposes of this section and the amendments made by this section, an entity shall be considered to be a covered entity beginning on the date that is 1 year after the date on which the entity first qualifies under the applicable provision of clause (i).

(D) EXCHANGE; SECURITY.—The terms ''exchange'' and ''security'' have the meanings given those terms in section 3(a) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)).

(2) PROHIBITIONS.—

(A) LISTING ON EXCHANGE.—Beginning on the date that is 1 year after the date of enactment of this Act, the Commission shall prohibit a covered entity from offering to sell or selling on an exchange (or through any other method that is within the jurisdiction of the Commission to regulate, including through the method of trading that is commonly referred to as the ''over-the-counter'' trading of securities) securities issued by the covered entity, including pursuant to an exemption to section 5 of the Securities Act of 1933 (15 U.S.C. 77e).

(B) INVESTMENTS; LIMITATION ON ACTIONS.—

(i) IN GENERAL.—The Investment Company Act of 1940 (15 U.S.C. 80a–1 et seq.) is amended—

(I) in section 12(d) (15 U.S.C. 80a–12(d)), by adding at the end the following:

''(4)(A) It shall be unlawful for any investment company, or any person that would be an investment company but for the application of paragraph (1) or (7) of section 3(c), to invest in a covered entity.

''(B) In this paragraph, the term 'covered entity' has the meaning given the term in subsection (b)(1) of the American Financial Markets Integrity and Security Act.''; and

(II) in section 13(c)(1) (15 U.S.C. 80a–13(c)(1))—

(aa) in subparagraph (A), by striking ''or'' at the end;

(bb) in subparagraph (B), by striking the period at the end and inserting ''or''; and

(cc) by adding at the end the following:

''(C) are covered entities, as that term is defined in section 12(d)(4)(B).''.

(ii) EFFECTIVE DATE.—The amendments made by clause (i) shall take effect on the date that is 1 year after the date of enactment of this Act.

(C) FEDERAL FUNDS.—

(i) IN GENERAL.—Except as provided in clause (ii), on and after the date that is 180 days after the date of enactment of this Act, no Federal funds may be used to enter into, extend, or renew a contract or purchasing agreement with a covered entity.

(ii) WAIVER.—The head of a Federal agency may issue a national security waiver to the prohibition in clause (i) for a period of not more than 2 years with respect to a covered entity if the agency head submits to Congress a notification that includes—

(I) a written justification for the waiver; and

(II) a plan for a phase-out of the goods or services provided by the covered entity.

(D) INVESTMENTS BY INSURANCE COMPANIES.—

(i) IN GENERAL.—On and after the date of enactment of this Act, an insurance company may not invest in a covered entity.

(ii) CERTIFICATION OF COMPLIANCE.—

(I) IN GENERAL.—Each insurance company shall, on an annual basis, submit to the Secretary of the Treasury a certification of compliance with clause (i).

(II) RESPONSIBILITIES OF THE SECRETARY.—The Secretary of the Treasury shall create a form for the submission required under subclause (I) in such a manner that minimizes the reporting burden on an insurance company making the submission.

(iii) SHARING INFORMATION.—The Secretary of the Treasury, acting through the Federal Insurance Office, shall share the information received under clause (ii) and coordinate verification of compliance with State insurance offices.

(3) QUALIFIED TRUSTS, ETC.—

(A) IN GENERAL.—Subsection (a) of section 401 of the Internal Revenue Code of 1986 is amended by inserting after paragraph (39) the following new paragraph:

''(40) PROHIBITED INVESTMENTS.—A trust which is part of a plan shall not be treated as a qualified trust under this subsection unless the plan provides that no part of the plan's assets will be invested in any covered entity (as defined in section 12(d)(4)(B) of the Investment Company Act of 1940).''.

(B) IRAS.—Paragraph (3) of section 408(a) of such Code is amended by striking ''contracts'' and inserting ''contracts or in any covered entity (as defined in section 12(d)(6)(B) of the Investment Company Act of 1940)''.

(C) FIDUCIARY DUTY.—Section 404 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1104) is amended by adding at the end the following new subsection:

''(f) PROHIBITED INVESTMENTS.—No fiduciary shall cause any assets of a plan to be invested in any covered entity (as defined in section 12(d)(4)(B) of the Investment Company Act of 1940 (15 U.S.C. 80a–12(d)(4)(B))).''.

(D) EFFECTIVE DATE.—

(i) IN GENERAL.—Except as provided in clause (ii), the amendments made by this paragraph shall apply to plan years beginning after the date which is 180 days after the date of the enactment of this Act.

(ii) PLAN AMENDMENTS.—If clause (iii) applies to any retirement plan or contract amendment—

(I) such plan or contract shall not fail to be treated as being operated in accordance with the terms of the plan during the period described in clause (iii)(II) solely because the plan operates in accordance with the amendments made by this subsection, and

(II) except as provided by the Secretary of the Treasury (or the Secretary's delegate), such plan or contract shall not fail to meet the requirements of the Internal Revenue Code of 1986 or the Employee Retirement Income Security Act of 1974 by reason of such amendment.

(iii) AMENDMENTS TO WHICH CLAUSE APPLIES.—

(I) IN GENERAL.—This clause shall apply to any amendment to any plan or annuity contract which—

(aa) is made pursuant to the provisions of this paragraph, and

(bb) is made on or before the last day of the first plan year beginning on or after the date which is 2 years after the date of the enactment of this Act (4 years after such date of enactment, in the case of a governmental plan).

(II) CONDITIONS.—This clause shall not apply to any amendment unless—

(aa) during the period beginning on the date which is 180 days after the date of the enactment of this Act, and ending on the date described in subclause (I)(bb) (or, if earlier, the date the plan or contract amendment is adopted), the plan or contract is operated as if such plan or contract amendment were in effect, and

(bb) such plan or contract amendment applies retroactively for such period.

(iv) SUBSEQUENT AMENDMENTS.—Rules similar to the rules of clauses (ii) and (iii) shall apply in the case of any amendment to any plan or annuity contract made pursuant to any update of the list of Communist Chinese military companies required by section 1237(b) of the Strom Thurmond National Defense Authorization Act for Fiscal Year 1999 (Public Law 105–261; 50 U.S.C. 1701 note) which is made after the effective date of the amendments made by this paragraph.

(c) MODIFICATION OF REQUIREMENTS FOR LIST OF COMMUNIST CHINESE MILITARY COMPANIES.—Section 1237(b) of the Strom Thurmond National Defense Authorization Act for Fiscal Year 1999 (Public Law 105–261; 50 U.S.C. 1701 note) is amended—

(1) by striking paragraph (2) and inserting the following:

''(2) REVISIONS TO THE LIST.—

''(A) ADDITIONS.—The Secretary of Defense, the Secretary of Commerce, or the Director of National Intelligence may add a person to the list required by paragraph (1) at any time.

''(B) REMOVALS.—A person may be removed from the list required by paragraph (1) if the

Secretary of Defense, the Secretary of Commerce, and the Director of National Intelligence agree to remove the person from the list.

''(C) SUBMISSION OF UPDATES TO CONGRESS.—Not later than February 1 of each year, the Secretary of Defense shall submit a version of the list required in paragraph (1), updated to include any additions or removals under this paragraph, to the committees and officers specified in paragraph (1).'';

(2) by striking paragraph (3) and inserting the following:

''(3) CONSULTATION.—In carrying out paragraphs (1) and (2), the Secretary of Defense, the Secretary of Commerce, and the Director of National Intelligence shall consult with each other, the Attorney General, and the Director of the Federal Bureau of Investigation.''; and

(3) in paragraph (4), in the matter preceding subparagraph (A), by striking ''making the determination required by paragraph (1) and of carrying out paragraph (2)'' and inserting ''this section''.

(d) ANALYSIS OF FINANCIAL AMBITIONS OF THE GOVERNMENT OF THE PEOPLE'S REPUBLIC OF CHINA.—

(1) ANALYSIS REQUIRED.—The Director of the Office of Commercial and Economic Analysis of the Air Force shall conduct an analysis of—

(A) the strategic importance to the Government of the People's Republic of China of inflows of United States dollars through capital markets to the People's Republic of China;

(B) the methods by which that Government seeks to manage such inflows;

(C) how the inclusion of the securities of Chinese entities in stock or bond indexes affects such inflows and serves the financial ambitions of that Government; and

(D) how the listing of the securities of Chinese entities on exchanges in the United States assists in—

(i) meeting the strategic goals of that Government, including defense, surveillance, and intelligence goals; and

(ii) the fusion of the civilian and military components of that Government.

(2) SUBMISSION TO CONGRESS.—The Director of the Office of Commercial and Economic Analysis of the Air Force shall submit to Congress a report—

(A) setting forth the results of the analysis conducted under paragraph (1); and

(B) based on that analysis, making recommendations for best practices to mitigate any national security and economic risks to the United States relating to the financial ambitions of the Government of the People's Republic of China.

SA 891. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. COUNTERING CORPORATE CORRUPTION IN THE PEOPLE'S REPUBLIC OF CHINA.

(a) FINDINGS.—Congress finds the following:

(1) In section 1 of the National Security Study Memorandum issued on June 3, 2021 (relating to establishing the fight against corruption as a core United States national security interest), President Joseph R. Biden, Jr., established countering corruption as a core United States national security interest.

(2) The practices of the Chinese Communist Party, the Government of the People's Republic of China, and instrumentalities of the Government of the People's Republic of China pose a unique challenge to the enforcement of section 30A of the Securities Exchange Act of 1934 (15 U.S.C. 78dd–1) and sections 104 and 104A of the Foreign Corrupt Practices Act of 1977 (15 U.S.C. 78dd–2, 78dd–3) (referred to collectively in this subsection as the ''corporate anti-corruption laws'').

(3) The Chinese Communist Party, the Government of the People's Republic of China, and instrumentalities of the Government of the People's Republic of China routinely frustrate the enforcement of the corporate anti-corruption laws by leveraging access to the markets of the People's Republic of China to cause companies that are subject to the corporate anti-corruption laws to improperly provide valuable benefits to those entities in the form of principally nonmonetary actions (referred to collectively in this subsection as ''corporate actions currying favor with the Chinese Communist Party''), which include—

(A) the hiring, promotion, or retention of Chinese Communist Party officials and children of those officials, such as the unlawful practices admitted to by certain entities subject to the corporate anti-corruption laws in what are commonly known as the ''princelings'' settlements;

(B) political advocacy on behalf of the goals and policies of the Chinese Communist Party in the People's Republic of China, the United States, and the rest of the world, including by—

(i) assisting in the denial, obfuscation, or excusal of—

(I) genocide and other atrocities committed by the Chinese Communist Party, the Government of the People's Republic of China, and instrumentalities of the Government of the People's Republic of China;

(II) the extrajudicial detainment, subjection to forced labor, torture, and political indoctrination of, and other severe human rights abuses with respect to, Uyghurs, Kazakhs, Kyrgyz, and members of other predominantly Muslim ethnic groups by the Government of the People's Republic of China in the Xinjiang Uyghur Autonomous Region of China (or comparable treatment of members of other ethnic, religious, and political groups who reside elsewhere in the People's Republic of China);

(III) censorship or other activities with respect to Hong Kong that—

(aa) prohibit, limit, or penalize the exercise of freedom of expression or assembly by the citizens of Hong Kong; or

(bb) limit access to free and independent print, online, or broadcast media; and

(IV) the extrajudicial rendition, arbitrary detention, or torture of any individual in Hong Kong or other gross violations of internationally recognized human rights in Hong Kong; and

(ii) supporting, legitimizing, or recognizing the unlawful territorial claims of the Government of the People's Republic of China in Taiwan, Tibet, Korea, the South China Sea, the East China Sea, and other locations in which such claims are contested; and

(C) investments without reasonable business purposes in industries targeted for support by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China, including by entering into a joint venture with such an instrumentality or an entity affiliated with such an instrumentality.

(4) Corporate actions currying favor with the Chinese Communist Party are valuable to officials of the Chinese Communist Party, the Government of the People's Republic of China, and instrumentalities of the Government of the People's Republic of China, and constitute payments of value for the purposes of subsection (a) of each of the corporate anti-corruption laws, because those actions are—

(A) directly or indirectly financially valuable to those officials due to—

(i) the extent of corruption in the People's Republic of China;

(ii) the reliance of the economy of the People's Republic of China on state-owned enterprises; and

(iii) the integration of the party-state with business enterprises in the People's Republic of China; and

(B) valuable to the interests of the Chinese Communist Party, and officials of that Party, in a manner that is distinct from any independent economic or public interest rationale for those actions.

(5) Corporate actions currying favor with the Chinese Communist Party are taken corruptly for the purposes of each of the corporate anti-corruption laws because those actions—

(A) have no reasonable business purpose unrelated to obtaining or retaining business within the People's Republic of China and instead relate to—

(i) accessing markets within the jurisdiction of the People's Republic of China; or

(ii) avoiding injury threatened by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China; and

(B) are morally wrongful to the extent that those actions contribute to denying, obfuscating, or excusing—

(i) genocide and other atrocities; and

(ii) the extrajudicial detainment, subjection to forced labor, torture, and political indoctrination of, and other severe human rights abuses with respect to, individuals by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China.

(6) Despite the public and prominent undertaking of corporate actions currying favor with the Chinese Communist Party by individuals and entities that are subject to the corporate anti-corruption laws, the Federal Government has undertaken little enforcement with respect to those corporate actions due to an apparent difficulty in demonstrating that the actions are corrupt, or of value to a foreign official, because of the principally nonmonetary nature of those actions.

(7) In addition to undermining the public interest in the enforcement of the corporate anti-corruption laws in the manner described in paragraphs (2) through (6), corporate actions currying favor with the Chinese Communist Party undermine the public interest in the enforcement of the laws of the United States, including—

(A) sections 4 and 5 of the Act entitled ''An Act to ensure that goods made with forced labor in the Xinjiang Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes'', approved December 23, 2021 (Public Law 117–78; 135 Stat. 1525) (referred to in this subsection as the ''Uyghur Forced Labor Prevention Act'') (including the amendment made by section 5 of that Act), by—

(i) reducing the awareness of entities subject to, or potentially subject to, that Act regarding the application of that Act to activities in the Xinjiang Autonomous Region

of the People's Republic of China or elsewhere in the People's Republic of China;

(ii) aiding and abetting violations of that Act; and

(iii) reducing the information available to law enforcement officials in the United States regarding the activities described in clause (i); and

(B) United States sanctions laws with respect to persons and entities in the People's Republic of China (collectively referred to in this subsection as the ''sanctions laws of the United States'')—

(i) including—

(I) section 1237 of the Strom Thurmond National Defense Authorization Act for Fiscal Year 1999 (Public Law 105–261; 50 U.S.C. 1701 note);

(II) sections 4 and 5 of the Uyghur Forced Labor Prevention Act (including the amendment made by section 5 of that Act);

(III) the Global Magnitsky Human Rights Accountability Act (subtitle F of title XII of Public Law 114–328; 22 U.S.C. 2656 note);

(IV) Executive Order 13818 (50 U.S.C. 1701 note; relating to blocking the property of persons involved in serious human rights abuse or corruption), as amended on or after the date of enactment of this Act;

(V) Executive Order 13959 (50 U.S.C. 1701 note; relating to addressing the threat from securities investments that finance Communist Chinese military companies), as amended before, on, or after the date of enactment of this Act and as superseded in part before, on, or after the date of enactment of this Act; and

(VI) Executive Order 14032 (50 U.S.C. 1701 note; relating to addressing the threat from securities investments that finance certain companies of the People's Republic of China), as amended before, on, or after the date of enactment of this Act; and

(ii) by facilitating investment in, or transactions with, entities in which investment is, or with which transactions are, prohibited under the sanctions laws of the United States by—

(I) providing principally nonmonetary benefits of value to those entities, which, in turn, become financially valuable to those entities in a manner that is directly traceable to those benefits, such as with respect to raising capital from international capital markets;

(II) investing in, or transacting with, entities not subject to the sanctions laws of the United States under circumstances that suggest that those entities will, in turn, invest in or transact with other entities that are subject to the sanctions laws of the United States; and

(III) reducing the information available to law enforcement officials in the United States for the purpose of enforcing the sanctions laws of the United States.

(8) The requirements of this section, and the amendments made by this section, are justified by—

(A) the public interest in mitigating the threats to the enforcement of the corporate anti-corruption laws, and the sanctions laws of the United States, that are posed by the Chinese Communist Party, the Government of the People's Republic of China, and instrumentalities of the Government of the People's Republic of China;

(B) the foreign policy interests achieved by this section and the amendments made by this section; and

(C) the fact that those requirements—

(i) are confined to the specific conduct of entities and persons subject to the corporate anti-corruption laws based on observable patterns of behavior demonstrated by those entities and persons; and

(ii) do not subject any entity or person described in clause (i) to any criminal penalty.

(b) AMENDMENTS REGARDING PROHIBITED FOREIGN TRADE PRACTICES.—

(1) ISSUERS.—

(A) IN GENERAL.—Section 30A of the Securities Exchange Act of 1934 (15 U.S.C. 78dd–1) is amended—

(i) in subsection (f), by adding at the end the following:

''(4) The term 'covered investment'—

''(A) means any direct or indirect contribution or commitment of assets, including any—

''(i) acquisition of an equity interest or convertible equity interest; or

''(ii) loan or other debt interest; and

''(B) does not include a transaction in goods or services, or any related party transaction, with a wholly owned subsidiary of an entity—

''(i) that is incorporated in a jurisdiction of the United States; or

''(ii) the principal place of business of which is in the United States.''; and

(ii) by adding at the end the following:

''(h) APPLICATION.—For the purposes of this section—

''(1) an action that is taken corruptly includes an action that serves to—

''(A) deny, obfuscate, or excuse that a third party has committed, or assist a third party in committing—

''(i) the extrajudicial detainment, subjection to forced labor, torture, and political indoctrination of, and other severe human rights abuses with respect to, Uyghurs, Kazakhs, Kyrgyz, and members of other predominantly Muslim ethnic groups by the Government of the People's Republic of China in the Xinjiang Uyghur Autonomous Region of China (or comparable treatment of members of other ethnic, religious, and political groups who reside elsewhere in the People's Republic of China);

''(ii) censorship, or another activity, by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China with respect to Hong Kong that—

''(I) prohibits, limits, or penalizes the exercise of freedom of expression or assembly by citizens of Hong Kong; or

''(II) limits access to free and independent print, online, or broadcast media; or

''(iii) the extrajudicial rendition, arbitrary detention, or torture of any individual in Hong Kong or other gross violations of internationally recognized human rights in Hong Kong;

''(B) support, legitimize, or recognize the territorial claims of the Government of the People's Republic of China in Taiwan, Tibet, Korea, the South China Sea, the East China Sea, or another location in which such a claim is contested;

''(C) express political advocacy in favor of the Chinese Communist Party, the system of governance of that Party, or any official of that Party; or

''(D) make a covered investment—

''(i) in partnership with the Belt and Road Initiative of the Government of the People's Republic of China; or

''(ii) in any entity (including a parent, subsidiary, or affiliate of, or another entity controlled by an entity) that is—

''(I)(aa) affiliated with the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China; and

''(bb) involved in the development, production, or sale of emerging or foundational technology identified pursuant to section 1758 of the Export Controls Act of 2018 (50 U.S.C. 4817); or

''(II) on the Entity List maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations; and

''(2) an action described in paragraph (1) is made with respect to a foreign official, or any foreign political party or official thereof, if, among other reasons, the action is taken in response to—

''(A) a request of any foreign official, or any foreign political party or official thereof, as applicable;

''(B) an injury or threat of injury, by means of economic coercion, to the applicable issuer, or to an officer, director, employee, or agent of the applicable issuer, made by any foreign official or any foreign political party or official thereof; or

''(C) a material action or announcement, including with respect to policy, by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China from which the action would rationally follow.

''(i) SPECIAL RULES.—Notwithstanding any other provision of this section, with respect to a violation of subsection (a) or (g) that is based on an action taken corruptly as described in any of subparagraphs (A) through (D) of subsection (h)(1)—

''(1) the affirmative defenses under subsection (c) shall not be available;

''(2) it shall be an affirmative defense to actions under subsection (a) or (g) that the payment, gift, offer, or promise of anything of value that was made, as of the date on which it was made, had a reasonable business purpose, which does not include a purpose relating to—

''(A) advertising, marketing, or public relations; or

''(B) entering into or obtaining any agreement, license, permit, or other arrangement with respect to market access to a jurisdiction of a government;

''(3) notwithstanding section 32—

''(A) only a penalty described in subsection (c)(1)(B) or (c)(2)(B) of that section may apply with respect to the violation; and

''(B) the minimum amount of the civil penalty assessed for the violation shall be 3 times the amount of the penalty described in subsection (c)(1)(B) or (c)(2)(B) of that section, as applicable; and

''(4) in an action brought with respect to the violation, evidence that the action taken by the applicable issuer (or the officer, director, employee, or agent of the issuer, or stockholder acting on behalf of such issuer) was directly or indirectly inconsistent with the policies of the issuer, including any representation to the Federal Government by the issuer, shall be admissible to prove that the action taken by the issuer (or officer, director, employee, agent, or stockholder) was taken corruptly for the purposes of subsection (a) or (g), as applicable.''.

(B) RULE OF CONSTRUCTION.—Nothing in subsection (h) of section 30A of the Securities Exchange Act of 1934 (15 U.S.C. 78dd–1), as added by subparagraph (A) of this paragraph, may be construed to expand the meaning of the term ''corruptly'', ''to any foreign official'', or ''to any foreign political party or official thereof'' for the purposes of such section 30A, except for the clarification that the term includes an action that is taken as described in paragraph (1) or (2) of such subsection (h), as applicable.

(2) DOMESTIC CONCERNS.—

(A) IN GENERAL.—Section 104 of the Foreign Corrupt Practices Act of 1977 (15 U.S.C. 78dd–2) is amended—

(i) in subsection (h), by adding at the end the following:

''(6) The term 'covered investment'—

''(A) means any direct or indirect contribution or commitment of assets, including any—

''(i) acquisition of an equity interest or convertible equity interest; or

''(ii) loan or other debt interest; and

''(B) does not include a transaction in goods or services, or any related party transaction, with a wholly owned subsidiary of an entity—

''(i) that is incorporated in a jurisdiction of the United States; or

''(ii) the principal place of business of which is in the United States.''; and

(ii) by adding at the end the following:

''(j) APPLICATION.—For the purposes of this section—

''(1) an action that is taken corruptly includes an action that serves to—

''(A) deny, obfuscate, or excuse that a third party has committed, or assist a third party in committing—

''(i) the extrajudicial detainment, subjection to forced labor, torture, and political indoctrination of, and other severe human rights abuses with respect to, Uyghurs, Kazakhs, Kyrgyz, and members of other predominantly Muslim ethnic groups by the Government of the People's Republic of China in the Xinjiang Uyghur Autonomous Region of China (or comparable treatment of members of other ethnic, religious, and political groups who reside elsewhere in the People's Republic of China);

''(ii) censorship, or another activity, by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China with respect to Hong Kong that—

''(I) prohibits, limits, or penalizes the exercise of freedom of expression or assembly by citizens of Hong Kong; or

''(II) limits access to free and independent print, online, or broadcast media; or

''(iii) the extrajudicial rendition, arbitrary detention, or torture of any individual in Hong Kong or other gross violations of internationally recognized human rights in Hong Kong;

''(B) support, legitimize, or recognize the territorial claims of the Government of the People's Republic of China in Taiwan, Tibet, Korea, the South China Sea, the East China Sea, or another location in which such a claim is contested;

''(C) express political advocacy in favor of the Chinese Communist Party, the system of governance of that Party, or any official of that Party; or

''(D) make a covered investment—

''(i) in partnership with the Belt and Road Initiative of the Government of the People's Republic of China; or

''(ii) in any entity (including a parent, subsidiary, or affiliate of, or another entity controlled by an entity) that is—

''(I)(aa) affiliated with the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China; and

''(bb) involved in the development, production, or sale of emerging or foundational technology identified pursuant to section 1758 of the Export Controls Act of 2018 (50 U.S.C. 4817); or

''(II) on the Entity List maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations; and

''(2) an action described in paragraph (1) is made with respect to a foreign official, or any foreign political party or official thereof, if, among other reasons, the action is taken in response to—

''(A) a request of any foreign official, or any foreign political party or official thereof, as applicable;

''(B) an injury or threat of injury, by means of economic coercion, to the applicable domestic concern, or to an officer, director, employee, or agent of the applicable domestic concern, made by any foreign official or any foreign political party or official thereof; or

''(C) a material action or announcement, including with respect to policy, by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China from which the action would rationally follow.

''(k) SPECIAL RULES.—Notwithstanding any other provision of this section, with respect to a violation of subsection (a) or (i) that is based on an action taken corruptly as described in any of subparagraphs (A) through (D) of subsection (j)(1)—

''(1) the affirmative defenses under subsection (c) shall not be available;

''(2) it shall be an affirmative defense to actions under subsection (a) or (i) that the payment, gift, offer, or promise of anything of value that was made, as of the date on which it was made, had a reasonable business purpose, which does not include a purpose relating to—

''(A) advertising, marketing, or public relations; or

''(B) entering into or obtaining any agreement, license, permit, or other arrangement with respect to market access to a jurisdiction of a government;

''(3) notwithstanding any provision of subsection (g)—

''(A) only a penalty described in paragraph (1)(B) or (2)(B) of that subsection may apply with respect to the violation; and

''(B) the minimum amount of the civil penalty assessed for the violation shall be 3 times the amount of the penalty described in paragraph (1)(B) or (2)(B) of that subsection, as applicable; and

''(4) in an action brought with respect to the violation, evidence that the action taken by the applicable domestic concern (or the officer, director, employee, or agent of the domestic concern, or stockholder acting on behalf of such domestic concern) was directly or indirectly inconsistent with the policies of the domestic concern, including any representation to the Federal Government by the domestic concern, shall be admissible to prove that the action taken by the domestic concern (or officer, director, employee, agent, or stockholder) was taken corruptly for the purposes of subsection (a) or (i), as applicable.''.

(B) RULE OF CONSTRUCTION.—Nothing in subsection (j) of section 104 of the Foreign Corrupt Practices Act of 1977 (15 U.S.C. 78dd–2), as added by subparagraph (A) of this paragraph, may be construed to expand the meaning of the term ''corruptly'', ''to any foreign official'', or ''to any foreign political party or official thereof'' for the purposes of such section 104, except for the clarification that the term includes an action that is taken as described in paragraph (1) or (2) of such subsection (j), as applicable.

(3) PERSONS OTHER THAN ISSUERS OR DOMESTIC CONCERNS.—

(A) IN GENERAL.—Section 104A of the Foreign Corrupt Practices Act of 1977 (15 U.S.C. 78dd–3) is amended—

(i) in subsection (f), by adding at the end the following:

''(6) The term 'covered investment'—

''(A) means any direct or indirect contribution or commitment of assets, including any—

''(i) acquisition of an equity interest or convertible equity interest; or

''(ii) loan or other debt interest; and

''(B) does not include a transaction in goods or services, or any related party transaction, with a wholly owned subsidiary of an entity—

''(i) that is incorporated in a jurisdiction of the United States; or

''(ii) the principal place of business of which is in the United States.''; and

(ii) by adding at the end the following:

''(g) APPLICATION.—For the purposes of this section—

''(1) an action that is taken corruptly includes an action that serves to—

''(A) deny, obfuscate, or excuse that a third party has committed, or assist a third party in committing—

''(i) the extrajudicial detainment, subjection to forced labor, torture, and political indoctrination of, and other severe human rights abuses with respect to, Uyghurs, Kazakhs, Kyrgyz, and members of other predominantly Muslim ethnic groups by the Government of the People's Republic of China in the Xinjiang Uyghur Autonomous Region of China (or comparable treatment of members of other ethnic, religious, and political groups who reside elsewhere in the People's Republic of China);

''(ii) censorship, or another activity, by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China with respect to Hong Kong that—

''(I) prohibits, limits, or penalizes the exercise of freedom of expression or assembly by citizens of Hong Kong; or

''(II) limits access to free and independent print, online, or broadcast media; or

''(iii) the extrajudicial rendition, arbitrary detention, or torture of any individual in Hong Kong or other gross violations of internationally recognized human rights in Hong Kong;

''(B) support, legitimize, or recognize the territorial claims of the Government of the People's Republic of China in Taiwan, Tibet, Korea, the South China Sea, the East China Sea, or another location in which such a claim is contested;

''(C) express political advocacy in favor of the Chinese Communist Party, the system of governance of that Party, or any official of that Party; or

''(D) make a covered investment—

''(i) in partnership with the Belt and Road Initiative of the Government of the People's Republic of China; or

''(ii) in any entity (including a parent, subsidiary, or affiliate of, or another entity controlled by an entity) that is—

''(I)(aa) affiliated with the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China; and

''(bb) involved in the development, production, or sale of emerging or foundational technology identified pursuant to section 1758 of the Export Controls Act of 2018 (50 U.S.C. 4817); or

''(II) on the Entity List maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations; and

''(2) an action described in paragraph (1) is made with respect to a foreign official, or any foreign political party or official thereof, if, among other reasons, the action is taken in response to—

''(A) a request of any foreign official, or any foreign political party or official thereof, as applicable;

''(B) an injury or threat of injury, by means of economic coercion, to the applicable person, or to an officer, director, employee, or agent of the applicable person, made by any foreign official or any foreign political party or official thereof; or

''(C) a material action or announcement, including with respect to policy, by the Chinese Communist Party, the Government of the People's Republic of China, or instrumentalities of the Government of the People's Republic of China from which the action would rationally follow.

''(h) SPECIAL RULES.—Notwithstanding any other provision of this section, with respect to a violation of subsection (a) that is based on an action taken corruptly as described in any of subparagraphs (A) through (D) of subsection (g)(1)—

''(1) the affirmative defenses under subsection (c) shall not be available;

''(2) it shall be an affirmative defense to actions under subsection (a) that the payment, gift, offer, or promise of anything of value that was made, as of the date on which it was made, had a reasonable business purpose, which does not include a purpose relating to—

''(A) advertising, marketing, or public relations; or

''(B) entering into or obtaining any agreement, license, permit, or other arrangement with respect to market access to a jurisdiction of a government;

''(3) notwithstanding any provision of subsection (e)—

''(A) only a penalty described in paragraph (1)(B) or (2)(B) of that subsection may apply with respect to the violation; and

''(B) the minimum amount of the civil penalty assessed for the violation shall be 3 times the amount of the penalty described in paragraph (1)(B) or (2)(B) of that subsection, as applicable; and

''(4) in an action brought with respect to the violation, evidence that the action taken by the applicable person was directly or indirectly inconsistent with the policies of the person, including any representation to the Federal Government by the person, shall be admissible to prove that the action taken by the person was taken corruptly for the purposes of subsection (a).''.

(B) RULE OF CONSTRUCTION.—Nothing in subsection (g) of section 104A of the Foreign Corrupt Practices Act of 1977 (15 U.S.C. 78dd–3), as added by subparagraph (A) of this paragraph, may be construed to expand the meaning of the term ''corruptly'', ''to any foreign official'', or ''to any foreign political party or official thereof'' for the purposes of such section 104A, except for the clarification that the term includes an action that is taken as described in paragraph (1) or (2) of such subsection (g), as applicable.

SA 892. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. FEDERAL OVERSIGHT OF FOREIGN FUNDING IN EDUCATION.

(a) IN GENERAL.—Section 117 of the Higher Education Act of 1965 (20 U.S.C. 1011f) is amended—

(1) in subsection (a), by inserting '', including a member of the faculty, professional staff, or other staff engaged in research and development,'' after ''Whenever any institution'';

(2) by redesignating subsections (b) through (g), and subsection (h), as subsections (c) through (h), and subsection (k), respectively;

(3) by inserting after subsection (a) the following:

''(b) DISCLOSURES OF GIFTS AND CONTRACTS FROM DESIGNATED FOREIGN ADVERSARY SOURCES.—

''(1) IN GENERAL.—Notwithstanding subsection (a), whenever any institution, including a member of the faculty, professional staff, or other staff engaged in research and development, receives a gift from or enters into a contract with a designated foreign adversary source, the value of which is $50,000 or more, considered alone or in combination with all other gifts from or contracts with that designated foreign adversary source within a calendar year, the institution shall file a disclosure report with the Secretary not later than 30 days after the date of the receipt of the gift or entry into the contract.

''(2) LIST OF DESIGNATED FOREIGN ADVERSARY SOURCES.—In consultation with Congress, the Secretary of State may add countries to the list of adversarial foreign governments in subsection (k) but may not remove countries from that list.'';

(4) in subsection (d) (as redesignated), by striking ''subsection (b)'' and inserting ''subsection (c)'';

(5) in subsection (e) (as redesignated), by striking ''subsection (a)'' each place it appears and inserting ''subsection (a) or (b)'';

(6) in subsection (k) (as redesignated)—

(A) by redesignating paragraph (1) and paragraphs (2) through (5) as paragraph (2) and paragraphs (4) through (7), respectively;

(B) by inserting before paragraph (2) (as redesignated) the following:

''(1) the term 'adversarial foreign government' means—

''(A) the People's Republic of China;

''(B) the Russian Federation;

''(C) the Democratic People's Republic of Korea;

''(D) the Islamic Republic of Iran;

''(E) the Republic of Cuba;

''(F) the Syrian Arab Republic;

''(G) the regime of Nicolás Maduro in Venezuela; and

''(H) the government of any other country designated as an adversarial foreign government for purposes of this section by the Secretary of State, in accordance with subsection (b)(2);''; and

(C) by inserting after paragraph (2) (as redesignated) the following:

''(3) the term 'designated foreign adversary source' means—

''(A) an adversarial foreign government, including an agency of an adversarial foreign government;

''(B) a legal entity, governmental or otherwise, organized solely under the laws of a country described in paragraph (1);

''(C) an individual who is a citizen or national of such a country; and

''(D) an agent, including a subsidiary or affiliate of a legal entity of an adversarial foreign government, acting on behalf of an adversarial foreign government;''; and

(7) by inserting after subsection (h) (as redesignated) the following:

''(i) PUBLICATION OF FOREIGN GIFT DISCLOSURES.—

''(1) DISCLOSURE OF GIFTS OR CONTRACTS FROM FOREIGN SOURCES.—Not later than 30 days after the deadline for submission of a disclosure report under subsection (a), the Secretary shall make the contents of the disclosure report available online.

''(2) DISCLOSURE OF GIFTS OR CONTRACTS FROM DESIGNATED FOREIGN ADVERSARY SOURCES.—Not later than 30 days after receipt of a disclosure report submitted under subsection (b), the Secretary shall make the contents of the disclosure report available online.

''(j) AGENCY COORDINATION.—The Secretary shall coordinate with other Federal agencies, as appropriate, to ensure that other Federal agencies have access to disclosure reports submitted under this section and any information or documentation relating to disclosure reports submitted under this section.''.

(b) ENSURING COMPLIANCE WITH REPORTING REQUIREMENTS.—

(1) IN GENERAL.—Each Federal agency shall ensure that no Federal funds under the jurisdiction of that agency are distributed to an institution that is knowingly or willfully in violation of section 117 of the Higher Education Act of 1965 (20 U.S.C. 1011f), as determined by the head of the relevant agency.

(2) DEPARTMENT OF EDUCATION.—An institution that is knowingly or willfully in violation of section 117 of the Higher Education Act of 1965 (20 U.S.C. 1011f), as determined by the Secretary of Education, shall not be eligible to receive Federal funds distributed by the Department of Education, except funds provided under title IV of the Higher Education Act of 1965.

(3) DEFINITION OF INSTITUTION.—In this subsection, the term ''institution'' has the meaning given that term in section 117 of the Higher Education Act of 1965 (20 U.S.C. 1011f).

(c) EFFECTIVE DATE.—This section and the amendments made by this section take effect on June 30 of the year following the year of enactment of this section.

SA 893. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. PRESUMPTION OF DENIAL FOR LICENSES FOR EXPORT, REEXPORT, OR IN-COUNTRY TRANSFER OF TECHNOLOGY TO END USERS IN THE PEOPLE'S REPUBLIC OF CHINA OR THE RUSSIAN FEDERATION.

Section 1756 of the Export Control Reform Act of 2018 (50 U.S.C. 4815) is amended by adding at the end the following:

''(e) PRESUMPTION OF DENIAL FOR LICENSES FOR EXPORT, REEXPORT, OR IN-COUNTRY TRANSFER OF TECHNOLOGY TO END USERS IN THE PEOPLE'S REPUBLIC OF CHINA OR THE RUSSIAN FEDERATION.—

''(1) IN GENERAL.—Except as provided by paragraph (2), the Secretary shall deny an application for a license or other authorization for the export, reexport, or in-country transfer of technology if the end user of the technology is a covered person.

''(2) CONGRESSIONAL NOTIFICATION AND REVIEW PROCESS.—

''(A) IN GENERAL.—Before approving an application for a license or other authorization described in paragraph (1), the Secretary shall submit to the appropriate congressional committees a report—

''(i) specifying the intended end user of the technology that is the subject of the application;

''(ii) specifying the dollar value of the technology;

''(iii) describing the technology;

''(iv) describing the proposed end use of the technology;

''(v) describing how authorizing the export, reexport, or in-country transfer of the technology to the specific end user advances the national security interests of the United States; and

''(vi) describing how authorizing the export, reexport, or in-country transfer of the technology to the specific user does not advance the national security interests of a covered country, including—

''(I) the Made in China 2025 industrial strategy of the People's Republic of China;

''(II) the military-civil fusion national strategy of the People's Republic of China, including transfer of technology to any entity identified as part of that strategy, including—

''(aa) any college or university known as one of the 'Seven Sons of National Defense';

''(bb) any college or university that receives funding from—

''(AA) the People's Liberation Army; or

''(BB) the Equipment Development Department, or the Science and Technology Commission, of the Central Military Commission of the People's Republic of China;

''(cc) any college or university in the People's Republic of China involved in military training and education, including any such college or university in partnership with the People's Liberation Army;

''(dd) any college or university in the People's Republic of China that conducts military research or hosts dedicated military initiatives or laboratories, including such a college or university designated under the 'double first-class university plan';

''(ee) any college or university in the People's Republic of China that is designated by the State Administration for Science, Technology, and Industry for the National Defense to host 'joint construction' programs;

''(ff) any college or university in the People's Republic of China that has launched a platform for military-civil fusion or created national defense laboratories;

''(gg) any college or university in the People's Republic of China that conducts research or hosts dedicated initiatives or laboratories for any other related security entity beyond the People's Liberation Army, including the People's Armed Police, the Ministry of Public Security, and the Ministry of State Security;

''(hh) any enterprise for which the majority shareholder or ultimate parent entity is the Government of the People's Republic of China at any level of that government;

''(ii) any privately owned company in the People's Republic of China that—

''(AA) has received a military production license, such as the Weapons and Equipment Research and Production Certificate, the Equipment Manufacturing Unit Qualification, the Weapons and Equipment Quality Management System Certificate, or the Weapons and Equipment Research and Production Unit Classified Qualification Permit;

''(BB) is otherwise known to materially support the military initiatives of the People's Republic of China;

''(CC) has a history of subcontracting for the People's Liberation Army or its affiliates;

''(DD) is participating in, or receiving benefits under, a military-civil fusion demonstration base; or

''(EE) has an owner, director, or a senior management official who has served as a delegate to the National People's Congress, a member of the Chinese People's Political Consultative Conference, or a member of the Central Committee of the Chinese Communist Party; or

''(III) the Science and Technology Foresight 2030 policy of the Russian Federation, including transfer of technology to any entity identified as part of that strategy, including—

''(aa) the Advanced Research Foundation;

''(bb) the Era Military Innovation Technopolis;

''(cc) any college or university that receives funding from the Ministry of Defense of the Russian Federation;

''(dd) any entity for which the majority shareholder or ultimate parent entity is the Government of the Russian Federation at any level of that government; or

''(ee) any privately owned company in the Russian Federation that—

''(AA) is otherwise known to materially support the military initiatives of the Russian Federation; or

''(BB) has subcontracted for the Ministry of Defense of the Russian Federation or its affiliates.

''(B) LIMITATION ON APPROVAL DURING REVIEW PERIOD.—The Secretary may not approve an application for a license or other authorization described in paragraph (1) during the 30-day period beginning on the date on which the appropriate congressional committees receive the report required by subparagraph (A) unless the Secretary, in the report—

''(i) states that the Secretary has determined that a pressing national security imperative exists, such that the national security interests of the United States necessitate the immediate approval of the license or other authorization; and

''(ii) provides a detailed justification for that determination, including—

''(I) a description of the emergency circumstances that necessitate the immediate approval of the license or other authorization; and

''(II) a discussion of the national security interests involved.

''(C) PROHIBITION ON APPROVAL IF JOINT RESOLUTION OF DISAPPROVAL ENACTED.—The Secretary may not approve an application for a license or other authorization described in paragraph (1) if, during the 30-day period described in subparagraph (B), there is enacted into law a joint resolution prohibiting the approval of the application.

''(D) CONSIDERATION OF JOINT RESOLUTION.—

''(i) SENATE.—Any joint resolution under this paragraph shall be considered in the Senate in accordance with the provisions of section 601(b) of the International Security Assistance and Arms Export Control Act of 1976 (Public Law 94–329; 90 Stat. 765).

''(ii) HOUSE OF REPRESENTATIVES.—For the purpose of expediting the consideration and enactment of joint resolutions under this paragraph, a motion to proceed to the consideration of any such joint resolution after it has been reported by the appropriate committee shall be treated as highly privileged in the House of Representatives.

''(iii) RULES OF HOUSE OF REPRESENTATIVES AND SENATE.—This subparagraph is enacted by Congress—

''(I) as an exercise of the rulemaking power of the Senate and the House of Representatives, respectively, and as such is deemed a part of the rules of each House, respectively, and supersedes other rules only to the extent that it is inconsistent with such rules; and

''(II) with full recognition of the constitutional right of either House to change the rules (so far as relating to the procedure of that House) at any time, in the same manner, and to the same extent as in the case of any other rule of that House.

''(3) DEFINITIONS.—In this subsection:

''(A) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' means—

''(i) the Committee on Banking, Housing, and Urban Affairs, the Committee on Foreign Relations, and the Select Committee on Intelligence of the Senate; and

''(ii) the Committee on Financial Services, the Committee on Foreign Affairs, and the Permanent Select Committee on Intelligence of the House of Representatives.

''(B) COVERED COUNTRY.—The term 'covered country' means—

''(i) the People's Republic of China (including the Hong Kong Special Administrative Region and the Macau Special Administrative Region); and

''(ii) the Russian Federation.

''(C) COVERED PERSON.—The term 'covered person' means—

''(i) an individual who is a citizen or national of a covered country; or

''(ii) an entity organized under the laws of a covered country or otherwise subject to the jurisdiction of the government of a covered country.''.

SEC. 1084. EXPORT CONTROL TREATMENT OF SUBSIDIARIES OF ENTITIES ON THE ENTITY LIST.

(a) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, the Secretary of Commerce shall revise part 744 of title 15, Code of Federal Regulations, to ensure that the same requirements and restrictions that apply to an entity on the Entity List apply to an entity owned or controlled by an entity on the Entity List, including an entity—

(1) 50 percent or more of the ownership interest in which is held in the aggregate, directly or indirectly, by one or more entities on the Entity List; or

(2) that the Secretary of Commerce considers to have an interest in all property and interests in property of an entity in which 50 percent or more of the ownership interest is held in the aggregate, directly or indirectly, by one or more entities on the Entity List.

(b) ENTITY LIST DEFINED.—In this section, the term ''Entity List'' means the list maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations.

SA 894. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. LIMITING EXEMPTION FROM FOREIGN AGENT REGISTRATION REQUIREMENT; DISCLOSURES OF FOREIGN GIFTS AND AGREEMENTS.

(a) LIMITING EXEMPTION FROM FOREIGN AGENT REGISTRATION REQUIREMENT FOR PERSONS ENGAGING IN ACTIVITIES IN FURTHERANCE OF CERTAIN PURSUITS TO ACTIVITIES NOT PROMOTING POLITICAL AGENDA OF FOREIGN GOVERNMENTS.—

(1) LIMITATION ON EXEMPTION.—Section 3(e) of the Foreign Agents Registration Act of 1938 (22 U.S.C. 613(e)) is amended by striking the semicolon at the end and inserting the following: '', but only if the activities do not promote the political agenda of a government of a foreign country;''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall apply with respect to activities carried out on or after the date of the enactment of this section.

(b) DISCLOSURES OF FOREIGN GIFTS AND AGREEMENTS.—

(1) IN GENERAL.—Section 117 of the Higher Education Act of 1965 (20 U.S.C. 1011f) is amended—

(A) in the section heading, by adding ''**AND AGREEMENTS**'' at the end;

(B) in subsection (a), by striking ''$250,000'' and inserting ''$50,000'';

(C) in subsection (b)—

(i) in paragraph (1), in the first sentence, by inserting before the period at the end the following: '', including the content of each such contract''; and

(ii) in paragraph (2), by inserting before the period the following: '', including the content of each such contract'';

(D) in subsection (e), by inserting '', including the contents of any contracts,'' after ''reports'';

(E) by redesignating subsections (e), (f), (g), and (h) as subsections (f), (g), (h), and (i), respectively;

(F) by inserting after subsection (d) the following:

''(e) CONFUCIUS INSTITUTE AGREEMENTS.—

''(1) DEFINED TERM.—In this subsection, the term 'Confucius Institute' means a cultural institute directly or indirectly funded by the Government of the People's Republic of China.

''(2) DISCLOSURE REQUIREMENT.—Any institution that has entered into an agreement with a Confucius Institute shall immediately make the full text of such agreement available—

''(A) on the publicly accessible website of the institution;

''(B) to the Department of Education;

''(C) to the Committee on Health, Education, Labor, and Pensions of the Senate; and

''(D) to the Committee on Education and Labor of the House of Representatives.''; and

(G) in subsection (i), as redesignated—

(i) in paragraph (2), by amending subparagraph (A) to read as follows:

''(A) a foreign government, including—

''(i) any agency of a foreign government, and any other unit of foreign governmental authority, including any foreign national, State, local, and municipal government;

''(ii) any international or multinational organization whose membership is composed of any unit of foreign government described in clause (i); and

''(iii) any agent or representative of any such unit or such organization, while acting as such;''; and

(ii) in paragraph (3), by inserting before the semicolon at the end the following: '', or the fair market value of an in-kind gift''.

(2) EFFECT OF NONCOMPLIANCE WITH DISCLOSURE REQUIREMENT.—Any institution of higher education (as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001)) that is not in compliance with the disclosure requirements set forth in section 117 of such Act (20 U.S.C. 1011f) shall be ineligible to enroll foreign students under the Student and Exchange Visitor Program.

(3) EFFECTIVE DATE.—The amendments made by subsection (b) shall apply with respect to gifts received or contracts or agreements entered into, or other activities carried out, on or after the date of the enactment of this section.

SA 895. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. PROHIBITION AGAINST UNITED STATES CONTRIBUTIONS TO INTERNATIONAL ORGANIZATIONS THAT ADVOCATE FOR SEXUAL ACTIVITY AMONG MINORS.

Chapter 1 of part I of the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) is amended by inserting after section 113 the following:

''SEC. 114. PROHIBITION AGAINST UNITED STATES CONTRIBUTIONS TO INTERNATIONAL ORGANIZATIONS THAT ADVOCATE FOR SEXUAL ACTIVITY AMONG MINORS.

''Notwithstanding any other provision of law, no assistance may be provided under this part to—

''(1) any international organization that supports, advocates for, or seeks to decriminalize sexual relations or sexual conduct by persons who are younger than the minimum age of consent (as defined by the national government of the country in which such persons reside), or condemns laws prohibiting such behavior; or

''(2) any entity or organization that—

''(A) supports or advocates for the belief that sexual activity involving persons below the domestically prescribed minimum age of consent to sex may be consensual in fact even when it is not consensual under law; or

''(B) opposes any statute that recognizes that persons below the prescribed age of consent do not have the capacity to engage in consensual sex under any circumstance.''.

SA 896. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. 1269. MODIFICATION OF LIMITATION ON MILITARY-TO-MILITARY EXCHANGES AND CONTACTS WITH CHINESE PEOPLE'S LIBERATION ARMY.

Section 1201 of the National Defense Authorization Act for Fiscal Year 2000 (Public Law 106–65; 10 U.S.C. 168 note) is amended—

(1) in subsection (b)(4), by striking ''Advanced logistical operations'' and inserting ''Logistical operations''; and

(2) by striking subsection (c).

SA 897. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _. COUNTERING THE MILITARY-CIVIL FUSION STRATEGY OF THE CHINESE COMMUNIST PARTY.

(a) DEFINITIONS.—In this section:

(1) CHINESE ENTITY OF CONCERN.—The term ''Chinese entity of concern'' means—

(A) any college or university in the People's Republic of China that is determined by the Secretary of Defense to be involved in the implementation of the military-civil fusion strategy, including—

(i) any college or university known as the ''Seven Sons of National Defense'';

(ii) any college or university that receives funding from—

(I) the People's Liberation Army; or

(II) the Equipment Development Department, or the Science and Technology Commission, of the Central Military Commission;

(iii) any college or university in the People's Republic of China involved in military training and education, including any such college or university in partnership with the People's Liberation Army;

(iv) any college or university in the People's Republic of China that conducts military research or hosts dedicated military initiatives or laboratories, including such a college or university designated under the ''double first-class university plan'';

(v) any college or university in the People's Republic of China that is designated by the State Administration for Science, Technology, and Industry for the National Defense to host ''joint construction'' programs;

(vi) any college or university in the People's Republic of China that has launched a platform for military-civil fusion or created national defense laboratories; and

(vii) any college or university in the People's Republic of China that conducts research or hosts dedicated initiatives or laboratories for any other related security entity beyond the People's Liberation Army, including the People's Armed Police, the Ministry of Public Security, and the Ministry of State Security;

(B) any enterprise for which the majority shareholder or ultimate parent entity is the Government of the People's Republic of China at any level of that government;

(C) any privately owned company in the People's Republic of China—

(i) that has received a military production license, such as the Weapons and Equipment Research and Production Certificate, the Equipment Manufacturing Unit Qualification, the Weapons and Equipment Quality Management System Certificate, or the Weapons and Equipment Research and Production Unit Classified Qualification Permit;

(ii) that is otherwise known to have set up mechanisms for engaging in activity in support of military initiatives;

(iii) that has a history of subcontracting for the People's Liberation Army or its affiliates;

(iv) that is participating in, or receiving benefits under, a military-civil fusion demonstration base; or

(v) that has an owner, director, or a senior management official who has served as a delegate to the National People's Congress, a member of the Chinese People's Political Consultative Conference, or a member of the Central Committee of the Chinese Communist Party; and

(D) any entity that—

(i) is identified by the Secretary of Defense under section 1260H(a) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note) as a Chinese military company; and

(ii) is included in the Non-SDN Chinese Military-Industrial Complex Companies List published by the Department of the Treasury.

(2) COVERED ENTITY.—The term ''covered entity'' means—

(A) any Federal agency that engages in research or provides funding for research, including the National Science Foundation and the National Institutes of Health;

(B) any institution of higher education, or any other private research institution, that

receives any Federal financial assistance; and

(C) any private company headquartered in the United States that receives Federal financial assistance.

(3) FEDERAL FINANCIAL ASSISTANCE.—The term ''Federal financial assistance'' has the meaning given the term in section 200.1 of title 2, Code of Federal Regulations (or successor regulations).

(4) MILITARY-CIVIL FUSION STRATEGY.—The term ''military-civil fusion strategy'' means the strategy of the Chinese Communist Party aiming to mobilize non-military resources and expertise for military application, including the development of technology, improvements in logistics, and other uses by the People's Liberation Army.

(b) PROHIBITIONS.—

(1) IN GENERAL.—No covered entity may engage with a Chinese entity of concern in any scientific research or technical exchange that has a direct bearing on, or the potential for dual use in, the development of technologies that the Chinese Communist Party has identified as a priority of its national strategy of military-civil fusion and that are listed on the website under subsection (c)(1)(A).

(2) PRIVATE PARTNERSHIPS.—No covered entity described in subsection (a)(2)(C) may form a partnership or joint venture with another such covered entity for the purpose of engaging in any scientific research or technical exchange described in paragraph (1).

(c) WEBSITE.—

(1) IN GENERAL.—The Secretary of Defense, in consultation with the Secretary of State, the Director of National Intelligence, the Director of the Federal Bureau of Investigation, the Secretary of Energy, the Secretary of Education, the Secretary of the Treasury, and the Secretary of Commerce, shall establish, and periodically update not less than twice a year, a website that includes—

(A) a list of the specific areas of scientific research or technical exchange for which the prohibitions under subsection (b) apply, which shall initially include some or all aspects of the fields of quantum computing, photonics and lasers, robotics, big data analytics, semiconductors, new and advanced materials, biotechnology (including synthetic biology and genetic engineering), 5G and all future generations of telecommunications, advanced nuclear technology (including nuclear power and energy storage), aerospace technology, and artificial intelligence; and

(B) to the extent practicable, a list of all Chinese entities of concern.

(2) LIST OF SPECIFIC AREAS.—In developing the list under paragraph (1)(A), the Secretary of Defense shall monitor and consider the fields identified by the State Administration for Science, Technology, and Industry for the National Defense of the People's Republic of China as defense-relevant and consider, including the more than 280 fields of study designated as of the date of enactment of this Act, and any others designated thereafter, as disciplines with national defense characteristics that have the potential to support military-civil fusion.

(3) RESOURCES.—In establishing the website under paragraph (1), the Secretary of Defense may use as a model any existing resources, such as the China Defense Universities Tracker maintained by the Australian Strategic Policy Institute, subject to any other laws applicable to such resources.

(d) EXCEPTION.—The prohibitions under subsection (b) shall not apply to any collaborative study or research project in fields involving information that would not contribute substantially to the goals of the military-civil fusion strategy, as determined by regulations issued by the Secretary of Defense.

(e) ANNUAL REPORTING REQUIREMENTS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, and December 31 of each year thereafter, each covered entity shall submit to the Secretary of Defense a report that discloses—

(A) any research relationships the covered entity has with a Chinese entity of concern or has had during the previous year;

(B) any research relationships the covered entity has considered with a Chinese entity of concern during the previous year and declined; and

(C) any research relationships the covered entity has terminated with a Chinese entity of concern during the previous year because the relationship violates subsection (b) or as a result of related concerns.

(2) AUDIT.—The Secretary of Defense may enter into a contract with an independent entity to conduct an audit of any report submitted under paragraph (1) to ensure compliance with the requirements of such paragraph.

(f) ENFORCEMENT.—

(1) IN GENERAL.—Notwithstanding any other provision of law, a covered entity described in subparagraph (B) or (C) of subsection (a)(2) that violates a prohibition under subsection (b), or violates subsection (e), on or after the date of enactment of this Act shall be precluded from receiving any Federal financial assistance on or after the date of such violation.

(2) REGULATIONS.—The Secretary of Defense, in consultation with the Secretary of State, the Director of National Intelligence, the Director of the Federal Bureau of Investigation, the Secretary of Energy, the Secretary of Education, the Secretary of the Treasury, and the Secretary of Commerce, shall—

(A) promulgate regulations to enforce the prohibitions under subsection (b), the auditing requirements under subsection (e), and the requirement under paragraph (1); and

(B) coordinate with the heads of other Federal agencies to ensure the enforcement of such prohibitions and requirements.

SA 898. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title XII, add the following:

Subtitle H—Taiwan Peace Through Strength Act of 2023

SEC. 1299O. SHORT TITLE.

This subtitle may be cited as the ''Taiwan Peace through Strength Act of 2023''.

SEC. 1299P. ANTICIPATORY POLICY PLANNING AND ANNUAL REVIEW OF UNITED STATES WAR PLANS TO DEFEND TAIWAN.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter, the Secretary of Defense shall conduct a classified review of United States war plans to defend Taiwan and share the results of the review with the Chairman and Ranking Member of the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives.

(b) ELEMENTS.—The review conducted under subsection (a) shall include the following elements:

(1) An assessment of Taiwan's current and near-term capabilities and United State force readiness and the adequacy of United States conflict contingency plans.

(2) A comprehensive assessment of risks to the United States and United States interests, including readiness shortfalls that pose strategic risk.

(3) A review of indicators of the near-term likelihood of the use of force by the People's Liberation Army against Taiwan.

(4) The compilation of a pre-approved list of military capabilities, including both asymmetric and traditional capabilities selected to suit the operational environment and to allow Taiwan to respond effectively to a variety of contingencies across all phases of conflict involving the People's Liberation Army, that the Secretary of Defense has precleared for Taiwan to acquire, and that would reduce the threat of conflict, thwart an invasion, and mitigate other risks to the United States and Taiwan.

SEC. 1299Q. FAST-TRACKING SALES TO TAIWAN UNDER FOREIGN MILITARY SALES PROGRAM.

(a) PRECLEARANCE OF CERTAIN FOREIGN MILITARY SALES ITEMS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and annually thereafter, the Secretary of State, in coordination with the Secretary of Defense and in conjunction with relevant coordinating entities, such as the National Disclosure Policy Committee and the Arms Transfer and Technology Release Senior Steering Group, shall—

(A) compile and submit to the relevant congressional committees a list of available and emerging military platforms, technologies, and equipment; and

(B) upon listing such platforms, technologies, and equipment, pre-clear and prioritize for sale and release to Taiwan through the Foreign Military Sales program such platforms, technologies, and equipment.

(2) SELECTION OF ITEMS.—The items precleared for sale pursuant to paragraph (1)—

(A) shall represent a full-range of asymmetric capabilities as well as the conventional capabilities informed by United States readiness and risk assessments and determined by Taiwan to be required for various wartime scenarios and peacetime duties; and

(B) shall include each item on the list of approved items compiled by the Secretary of Defense pursuant to section 1299P(b)(4).

(3) EXCEPTION.—The Secretary of State may exclude an item from the list described in paragraph (1)(A) if the Secretary of State submits to the appropriate congressional committees a determination that the costs of providing such items, including the potential costs of technology slippage, exceeds the costs to the United States of failing to arm Taiwan with such items, including the likelihood of being drawn into conflict with the People's Republic of China.

(4) RULE OF CONSTRUCTION.—The list compiled pursuant to section 1299P(b)(4) shall not be construed as limiting the type, timing, or quantity of items that may be requested by, or sold to, Taiwan under the Foreign Military Sales program.

(5) FINAL DETERMINATION OF DISPUTES.—The Department of Defense shall serve as the lead Federal agency for purposes of making final determinations when disputes arise between agencies about the appropriateness of specific items for sale to Taiwan.

(b) PRIORITIZED PROCESSING OF FOREIGN MILITARY SALES REQUESTS FROM TAIWAN.—

(1) REQUIREMENT.—The Secretary of Defense and the Secretary of State shall

prioritize and expedite the processing of requests from Taiwan under the Foreign Military Sales program, and may not delay the processing of requests for bundling purposes.

(2) DURATION.—The requirement under paragraph (1) shall continue until the Secretary of Defense determines and certifies to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives that the threat to Taiwan has significantly abated.

(3) ANNUAL REPORT.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for 10 years, the Secretary of Defense shall submit to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives a report describing steps taken to implement the requirement under paragraph (1).

(c) PRIORITY PRODUCTION.—

(1) REQUIREMENT.—The Secretary of Defense shall require that contractors awarded Department of Defense contracts to provide items for sale to Taiwan under the Foreign Military Sales program shall, as a condition of receiving such contracts, expedite and prioritize the production of such items above the production of other Foreign Military Sales items regardless of the order in which contracts were signed.

(2) DURATION.—The requirement under paragraph (1) shall continue until the Secretary of Defense determines and certifies to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives that the threat to Taiwan has significantly abated.

(3) ANNUAL REPORT.—Contractors covered under paragraph (1) shall be required to report annually to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives on efforts to expedite and prioritize production as required under such paragraph.

(d) INTERAGENCY POLICY.—The Secretary of State and the Secretary of Defense shall jointly review and update interagency policies and implementation guidance related to Foreign Military Sales requests from Taiwan, including incorporating the preclearance and prioritization provisions of this section.

SEC. 1299R. AMENDMENTS TO TAIWAN RELATIONS ACT.

(a) POLICY.—Section 2(b)(5) of the Taiwan Relations Act (22 U.S.C. 3301(b)(5)) is amended by striking ''arms of a defensive character'' and inserting ''arms conducive to the deterrence of acts of aggression by the People's Liberation Army''.

(b) PROVISION OF DEFENSE ARTICLES AND SERVICES.—Section 3(a) of the Taiwan Relations Act (22 U.S.C. 3302(a)) is amended by striking ''such defense articles and defense services in such quantity as may be necessary to enable Taiwan to maintain a sufficient self-defense capability'' and inserting ''such defense articles and defense services in such quantity as may be necessary to enable Taiwan to implement a strategy to deter acts of aggression by the People's Liberation Army and to deny an invasion of Taiwan by the People's Liberation Army''.

(c) RULE OF CONSTRUCTION.—Section 4 of the Taiwan Relations Act (22 U.S.C. 3303) is amended by adding at the end the following new subsection:

''(e) SECURITY COOPERATION AND DETERRENCE OF USE OF FORCE BY PEOPLE'S LIBERATION ARMY.—Nothing in this Act, nor the facts of the President's action in extending diplomatic recognition to the People's Republic of China, the absence of diplomatic relations between the people of Taiwan and the United States, or the lack of formal recognition by the United States, and attendant circumstances thereto, shall be construed to constitute a legal or practical obstacle to any otherwise lawful action of the President or of any United States Government agency that is needed to advance or protect United States interests pertaining to Taiwan, including actions intended to strengthen security cooperation between the United States and Taiwan or to otherwise deter the use of force against Taiwan by the People's Liberation Army.''.

SEC. 1299S. MILITARY PLANNING MECHANISM.

The Secretary of Defense shall establish a high-level military planning mechanism between the United States and Taiwan to oversee a Joint and Combined Exercise Program and coordinate International Military Education and Training assistance and professional exchanges aimed at determining and coordinating the acquisition of capabilities for both United States and Taiwan military forces to address the needs of currently anticipated and future contingencies. The mechanism may be modeled after the Joint United States Military Advisory Group Thailand, or any such similar existing arrangement, as determined by the Secretary of Defense.

SEC. 1299T. PROHIBITION ON DOING BUSINESS IN CHINA.

(a) REQUIREMENT.—The Secretary of Defense shall require any contractor awarded a Department of Defense contract, as a condition of receiving such contract, not to conduct any business in the People's Republic of China with any entity that is owned by or controlled by the Government of the People's Republic of China or the Chinese Communist Party, or any subsidiary of such a company.

(b) DETERMINATION OF NONCOMPLIANCE.—If the Secretary of Defense determines that a Department of Defense contractor is noncompliant with the requirement in subsection (a)—

(1) such noncompliance shall be considered grounds for termination of the contract; and

(2) the Secretary of Defense shall terminate the contract.

SEC. 1299U. TAIWAN CRITICAL MUNITIONS ACQUISITION FUND.

(a) ESTABLISHMENT.—There shall be established in the Treasury of the United States a revolving fund to be known as the ''Taiwan Critical Munitions Acquisition Fund'' (in this section referred to as the ''Fund'').

(b) PURPOSE.—Subject to the availability of appropriations, amounts in the Fund shall be made available by the Secretary of Defense—

(1) to ensure that adequate stocks of critical munitions necessary for a denial defense are available to allies and partners of the United States in advance of a potential operation to defend the autonomy and territory of Taiwan; and

(2) to finance the acquisition of critical munitions necessary for a denial defense in advance of the transfer of such munitions to foreign countries for such a potential operation.

(c) ADDITIONAL AUTHORITY.—Subject to the availability of appropriations, the Secretary of Defense may also use amounts made available to the Fund—

(1) to keep on continuous order munitions that the Secretary of Defense considers critical due to a reduction in current stocks as a result of the drawdown of stocks provided to the government of one or more foreign countries; or

(2) with the concurrence of the Secretary of State, to procure munitions identified as having a high-use rate.

(d) DEPOSITS.—

(1) IN GENERAL.—The Fund shall consist of each of the following:

(A) Collections from sales made under letters of offer (or transfers made under the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.)) of munitions acquired using amounts made available from the Fund pursuant to this section, representing the value of such items calculated, as applicable, in accordance with—

(i) subparagraph (B) or (C) of section 21(a)(1) of the Arms Export Control Act (22 U.S.C. 2761(a)(1));

(ii) section 22 of the Arms Export Control Act (22 U.S.C. 2762); or

(iii) section 644(m) of the Foreign Assistance Act of 1961 (22 U.S.C. 2403(m)).

(B) Such amounts as may be appropriated pursuant to the authorization under this section or otherwise made available for the purposes of the Fund.

(C) Not more than $2,000,000,000 may be transferred to the Fund for any fiscal year, in accordance with subsection (e), from amounts authorized to be appropriated for the Department of Defense in such amounts as the Secretary of Defense determines necessary to carry out the purposes of this section, which shall remain available until expended. The transfer authority provided under this subparagraph is in addition to any other transfer authority available to the Secretary of Defense.

(2) CONTRIBUTIONS FROM FOREIGN GOVERNMENTS.—

(A) IN GENERAL.—Subject to subparagraph (B), the Secretary of Defense may accept contributions of amounts to the Fund from any foreign government or international organization. Any amounts so accepted shall be credited to the Taiwan Critical Munitions Acquisition Fund and shall be available for use as authorized under subsection (b).

(B) LIMITATION.—The Secretary of Defense may not accept a contribution under this paragraph if the acceptance of the contribution would compromise, or appear to compromise, the integrity of any program of the Department of Defense.

(C) NOTIFICATION.—If the Secretary of Defense accepts any contribution under this paragraph, the Secretary shall notify the appropriate committees of Congress. The notice shall specify the source and amount of any contribution so accepted and the use of any amount so accepted.

(e) NOTIFICATION.—

(1) IN GENERAL.—No amount may be transferred pursuant to subsection (d)(1)(C) until the date that is 15 days after the date on which the Secretary of Defense submits to the appropriate committees of Congress—

(A) notice in writing of the amount and purpose of the proposed transfer; and

(B) in the case of an authorization pursuant to subsection (f)(1)(A), a description of the manner in which the use of critical munitions is necessary to meet national defense requirements.

(2) AMMUNITION PURCHASES.—No amounts in the Fund may be used to purchase ammunition, as authorized by this section, until the date that is 15 days after the date on which the Secretary of Defense notifies the appropriate committees of Congress in writing of the amount and purpose of the proposed purchase.

(3) FOREIGN TRANSFERS.—No munition purchased using amounts in the Fund may be transferred to a foreign country until the date that is 15 days after the date on which the Secretary of Defense notifies the appropriate committees of Congress in writing of the proposed transfer.

(f) LIMITATIONS.—

(1) LIMITATION ON TRANSFER.—No munition acquired by the Secretary of Defense using amounts made available from the Fund pursuant to this section may be transferred to any foreign country unless such transfer is

authorized by the Arms Export Control Act (22 U.S.C. 2751 et seq.), the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.), or other applicable law, except as follows:

(A) The Secretary of Defense, with the concurrence of the Secretary of State, may authorize the use by the Department of Defense of munitions acquired under this section prior to transfer to a foreign country, if such use is necessary to meet national defense requirements and the Department bears the costs of replacement and transport, maintenance, storage, and other such associated costs of such munitions.

(B) Except as required by subparagraph (A), amounts made available to the Fund may be used to pay for storage, maintenance, and other costs related to the storage, preservation, and preparation for transfer of munitions acquired under this section prior to their transfer, and the administrative costs of the Department of Defense incurred in the acquisition of such items, to the extent such costs are not eligible for reimbursement pursuant to section 43(b) of the Arms Export Control Act (22 U.S.C. 2792(b)).

(2) CERTIFICATION REQUIREMENT.—

(A) IN GENERAL.—No amounts in the Fund may be used pursuant to this section unless the President—

(i) certifies to the appropriate committees of Congress that the Special Defense Acquisition Fund established pursuant to chapter 5 of the Arms Export Control Act (22 U.S.C. 2795 et seq.) cannot be used to fulfill the same functions and objectives for which such amounts to be made available from the Fund are to be used; and

(ii) includes in such certification a justification for the certification, which may be included in a classified annex, if necessary.

(B) NONDELEGATION.—The President may not delegate any responsibility of the President under subparagraph (A).

(g) TERMINATION.—The authority for the Fund under this section shall expire on December 31, 2040.

(h) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on Armed Services, the Committee on Appropriations, and the Committee on Foreign Relations of the Senate; and

(2) the Committee on Armed Services, the Committee on Appropriations, and the Committee on Foreign Affairs of the House of Representatives.

SEC. 1299V. INCREASING PRODUCTION CAPACITY FOR WEAPONS FOR UNITED STATES STOCKPILES.

(a) REPORT REQUIREMENT RELATING TO INCREASE IN CONTRACTED ENTITIES.—Section 222c(e) of title 10, United States Code, as amended by section 1701(c) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263), is further amended by adding at the end the following new paragraph:

''(4) Steps taken to increase the number of entities contracted to supply each class of weapons described in section 1705(c) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) in order to produce redundancy in the supply of such weapons.''.

(b) MODIFICATION TO QUARTERLY BRIEFINGS ON REPLENISHMENT AND REVITALIZATION OF WEAPONS PROVIDED TO UKRAINE AND TAIWAN.—Section 1703 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) is amended—

(1) in the section heading, by inserting ''**AND TAIWAN**'' after ''**UKRAINE**'';

(2) in subsection (a), by inserting '', the Committee on Foreign Relations of the Senate, and the Committee on Foreign Affairs of the House of Representatives'' after ''congressional defense committees'';

(3) in subsection (d)(2), by inserting ''or Taiwan'' after ''Ukraine'';

(4) in subsection (e), by striking ''December 31, 2026'' and inserting ''December 31, 2040''; and

(5) by striking subsection (f) and inserting the following:

''(f) COVERED SYSTEM.—In this section, the term 'covered system' means—

''(1) any system provided to the Government of Ukraine or the Government of Taiwan pursuant to—

''(A) section 506 of the Foreign Assistance Act of 1961 (22 U.S.C. 2318); or

''(B) section 614 of the Foreign Assistance Act of 1961 (22 U.S.C. 2364);

''(2) any system provided to the Government of Ukraine pursuant to the Ukraine Security Assistance Initiative established under section 1250 of the National Defense Authorization Act for Fiscal Year 2016 (Public Law 114–92), including as amended by this Act, if such system was provided to Ukraine after February 24, 2022; or

''(3) any system provided to the Government of Taiwan—

''(A) pursuant to section 5502(b) of this Act; or

''(B) that is necessary for a denial defense of Taiwan.''.

(c) ASSESSMENT ON EXPANDING NATIONAL TECHNOLOGY AND INDUSTRIAL BASE.—Section 222d(b) of title 10, United States Code, as added by section 1701(d)(1) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263), is amended by adding at the end the following new paragraph:

''(13) An assessment of the feasibility and advisability of expanding the national technology and industrial base (as defined in section 4801 of this title) to include entities outside of the United States, Canada, the United Kingdom, New Zealand, Israel, and Australia in order to increase the number of suppliers of weapons described in section 1705(c) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263), with particular attention to member states of the North Atlantic Treaty Organization, treaty allies of the United States in the Indo-Pacific, and members of the Quadrilateral Security Dialogue.''.

(d) MINIMUM ANNUAL PRODUCTION LEVELS.—The Secretary of Defense shall include minimum annual production levels for weapons described in section 1705(c) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263) in any contract for the procurement of such weapons entered into on or after the date of the enactment of this Act.

SA 899. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. 12___. ASSISTANCE FOR COLOMBIA.

Section 1021 of the Ronald W. Reagan National Defense Authorization Act for Fiscal Year 2005 (Public Law 108–375; 118 Stat. 2042) is amended—

(1) by striking subsection (c) and inserting the following:

''(c) LIMITATION ON ASSIGNMENT OF UNITED STATES PERSONNEL.—

''(1) DEFINED TERM.—In this section, the term 'covered organization' means any foreign terrorist organization or non-state armed group that—

''(A) promotes elicit economies;

''(B) employs violence to protect its interests;

''(C) has a military type structure, tactics, and weapons that provide it the ability to carry out large-scale violence;

''(D) challenges the security response capacity of Colombia; and

''(E) has the capability to control territory.

''(2) LIMITATION.—None of the funding authorized to be expended under subsection (a) may be provided to a current or former member of—

''(A) a covered organization;

''(B) the Revolutionary Armed Forces of Colombia (FARC); or

''(C) any affiliates of, or successor organizations to, FARC.''; and

(2) by adding at the end the following:

''(i) CERTIFICATION OF COLOMBIAN COOPERATION FOR A UNIFIED COUNTERDRUG AND COUNTERTERRORISM CAMPAIGN IN COLOMBIA.—Not later than 90 days after the date of the enactment of the National Defense Authorization Act for Fiscal Year 2024, and quarterly thereafter, the Secretary of Defense, in consultation with the Secretary of State and the Attorney General, shall certify to the congressional defense committees, the Committee on Foreign Relations of the Senate, and the Committee on Foreign Affairs of the House of Representatives that the Government of Colombia—

''(1) is in full compliance with Treaty of Extradition Between the United States of America and the Republic of Colombia, done at Washington September 14, 1979, with regard to members of covered organizations;

''(2) is not undertaking joint exercises with, or hosting military facilities of, the People's Liberation Army; and

''(3) is not allowing officials or agents of the Chinese Communist Party or the People's Republic of China to establish overseas police stations.

''(j) EFFECT OF NON-CERTIFICATION.—Not later than 30 days after the Secretary of Defense fails to submit a timely certification to Congress in accordance with subsection (i), the Secretary shall terminate all assistance authorized under subsection (a).''.

SA 900. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle G of title X, insert the following:

SEC. 10_____. MORATORIUM ON ENERGY DEVELOPMENT IN CERTAIN AREAS OF GULF OF MEXICO.

(a) DEFINITIONS.—In this section:

(1) MILITARY MISSION LINE.—The term ''Military Mission Line'' has the meaning given the term in section 102 of the Gulf of Mexico Energy Security Act of 2006 (43 U.S.C. 1331 note; Public Law 109–432).

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(b) MORATORIUM.—Effective during the period beginning on the date of enactment of this Act and ending on June 30, 2032, the Secretary shall not offer for leasing, preleasing, or any related activity for energy development of any kind—

(1) any area east of the Military Mission Line in the Gulf of Mexico; or

(2) any area of the outer Continental Shelf described in subparagraph (A), (B), or (C) of paragraph (2) of subsection (d), if oil, gas, wind, or any other form of energy exploration, leasing, or development in that area has been identified in a report under that subsection as having any adverse effect on the national security of the United States or the military readiness or testing capabilities of the Department of Defense.

(c) ENVIRONMENTAL EXCEPTIONS.—Notwithstanding subsection (b), the Secretary may issue leases in areas described in that subsection for environmental conservation purposes, including the purposes of shore protection, beach nourishment and restoration, wetlands restoration, and habitat protection.

(d) REPORTS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, and not later than June 30, 2031, the Secretary of Defense shall submit to the Committees on Appropriations and Armed Services of the Senate and the Committees on Appropriations and Armed Services of the House of Representatives a report that describes the impact of oil, gas, wind, and any other form of energy exploration, leasing, or development in areas of the outer Continental Shelf described in paragraph (2) on the national security of the United States and the military readiness and testing capabilities of the Department of Defense.

(2) AREAS DESCRIBED.—The areas of the outer Continental Shelf referred to in paragraph (1) are the following:

(A) Any area west of the Military Mission Line in the Eastern Gulf of Mexico Planning Area.

(B) The South Atlantic Planning Area.

(C) The Straits of Florida Planning Area.

SA 901. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title IX, add the following:

SEC. 910. ELIMINATION OF THE CHIEF DIVERSITY OFFICER OF THE DEPARTMENT OF DEFENSE.

(a) IN GENERAL.—

(1) REPEAL OF POSITION.—

(A) IN GENERAL.—Section 147 of title 10, United States Code, is repealed.

(B) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 4 of such title is amended by striking the item relating to section 147.

(2) CONFORMING REPEAL.—Section 913 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 3802) is repealed.

(b) PROHIBITION ON ESTABLISHMENT OF SIMILAR POSITIONS.—No Federal funds may be obligated or expended to establish a position within the Department of Defense that is the same as or substantially similar to—

(1) the position of Chief Diversity Officer, as described in section 147 of title 10, United States Code, as such section was in effect on the day before the date of the enactment of this Act; or

(2) the position of Senior Advisor for Diversity and Inclusion, as described in section 913(b) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 3803), as such section was in effect on the day before the date of the enactment of this Act.

SA 902. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

Subtitle J—Ensuring Military Readiness Act of 2023

SEC. 595. SHORT TITLE.

This subtitle may be cited as the ''Ensuring Military Readiness Act of 2023''.

SEC. 596. LIMITATIONS ON MILITARY SERVICE BY INDIVIDUALS WHO IDENTIFY AS TRANSGENDER.

Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall prescribe regulations regarding service of individuals who identify as transgender as follows:

(1) Persons who identify as transgender with a history of diagnosis of gender dysphoria are disqualified from military service except under the following limited circumstances:

(A) Individuals may serve in the Armed Forces if they have been stable for 36 consecutive months in their biological sex prior to accession.

(B) Members of the Armed Forces diagnosed with gender dysphoria after entering into service may be retained if they do not undergo gender transition procedures and remain deployable within applicable retention standards for their biological sex.

(C) Members of the Armed Forces serving as of the date of the enactment of this Act who have been diagnosed with gender dysphoria may continue to serve only in their biological sex, irrespective of any changes previously made to their gender marker in the Defense Enrollment Eligibility Reporting System (DEERS), and receive medically necessary treatment for gender dysphoria. Such treatment may not include gender transition procedures.

(2) Persons who identify as transgender who seek or have undergone gender transition are disqualified from military service.

(3) Persons who identify as transgender without a history or diagnosis of gender dysphoria, who are otherwise qualified for service and meet all physical and mental requirements, may serve in the Armed Forces in their biological sex.

SEC. 597. REVISED REGULATIONS REGARDING GENDER MARKINGS.

Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall prescribe regulations updating the Defense Enrollment Eligibility Reporting System (DEERS) to require the gender markers for members of the Armed Forces to match their biological sex, irrespective of any previous changes allowed.

SEC. 598. DEFINITIONS.

In this subtitle:

(1) CROSS-SEX HORMONES.—The term ''cross-sex hormones'' means testosterone or other androgens given to biological females at doses that are profoundly larger or more potent than would normally occur naturally in healthy biological females, or estrogen given to biological males at doses that are profoundly larger or more potent than would normally occur naturally in healthy biological males.

(2) GENDER.—The term ''gender'' means the psychological, behavioral, social, and cultural aspects of being male or female.

(3) GENDER DYSPHORIA.—The term ''gender dysphoria'' means a marked incongruence between one's experienced or expressed gender and biological sex.

(4) GENDER TRANSITION.—The term ''gender transition'' means the process by which a person goes from identifying with and living as a gender that corresponds to his or her biological sex to identifying with and living as a gender different from his or her biological sex, and may involve social, legal, or physical changes.

(5) GENDER TRANSITION PROCEDURES.—The term ''gender transition procedures''—

(A) means—

(i) any medical or surgical intervention, including physician's services, inpatient and outpatient hospital services, or prescribed drugs related to gender transition, that seeks to alter or remove physical or anatomical characteristics or features that are typical for the individual's biological sex or to instill or create physiological or anatomical characteristics that resemble a sex different from the individual's birth sex, including medical services that provide puberty-blocking drugs, cross-sex hormones, or other mechanisms to promote the development of feminizing or masculinizing features (in the opposite sex); and

(ii) genital or non-genital gender transition surgery performed for the purpose of assisting an individual with a gender transition; and

(B) does not include—

(i) services to those born with a medically verifiable disorder of sex development, including a person with external biological sex characteristics that are irresolvably ambiguous, such as those born with 46 XX chromosomes with virilization, 46 XY chromosomes with undervirilization, or having both ovarian and testicular tissue;

(ii) services provided when a physician has otherwise diagnosed a disorder of sexual development, in which the physician has determined through genetic or biochemical testing that the person does not have normal sex chromosome structure, sex steroid hormone production, or sex steroid hormone action for a biological male or biological female; or

(iii) the treatment of any infection, injury, disease, or disorder that has been caused by or exacerbated by the performance of gender transition procedures, whether or not the gender transition procedure was performed in accordance with State and Federal law or whether or not funding for the gender transition procedure is permissible.

(6) GENDER TRANSITION SURGERY.—The term ''gender transition surgery'' means any medical or surgical service that seeks to surgically alter or remove healthy physical or anatomical characteristics or features that are typical for the individual's biological sex in order to instill or create physiological or anatomical characteristics that resemble a sex different from the individual's birth sex, including genital or non-genital gender reassignment surgery performed for the purpose of assisting an individual with a gender transition.

(7) GENITAL GENDER TRANSITION SURGERY.—The term ''genital gender transition surgery'' includes surgical procedures such as penectomy, orchiectomy, vaginoplasty, clitoroplasty, or vulvoplasty for biologically male patients or hysterectomy, ovariectomy, reconstruction of the fixed part of the urethra with or without a metoidioplasty or a phalloplasty, vaginectomy, scrotoplasty, or implantation of erection or testicular prostheses for biologically

female patients, when performed for the purpose of assisting an individual with a gender transition.

(8) NON-GENITAL GENDER TRANSITION SURGERY.—The term ''non-genital gender transition surgery''—

(A) includes, when performed for the purpose of assisting an individual with a gender transition—

(i) surgical procedures such as augmentation mammoplasty, facial feminization surgery, liposuction, lipofilling, voice surgery, thyroid cartilage reduction, gluteal augmentation (implants or lipofilling), hair reconstruction, or various aesthetic procedures for biologically male patients; or

(ii) subcutaneous mastectomy, voice surgery, liposuction, lipofilling, pectoral implants or various aesthetic procedures for biologically female patients; and

(B) does not include any procedure undertaken because the individual suffers from a physical disorder, physical injury, or physical illness that would, as certified by a physician, place the individual in imminent danger of death or impairment of major bodily function unless surgery is performed, unless the procedure is for the purpose of a gender transition.

(9) PUBERTY-BLOCKING DRUGS.—The term ''puberty-blocking drugs'' means, when used to delay or suppress pubertal development in children for the purpose of assisting an individual with a gender transition—

(A) Gonadotropin-releasing hormone (GnRH) analogues or other synthetic drugs used in biological males to stop luteinizing hormone secretion and therefore testosterone secretion; and

(B) synthetic drugs used in biological females that stop the production of estrogen and progesterone.

(10) SEX; BIRTH SEX; BIOLOGICAL SEX.—The terms ''sex'', ''birth sex,'' and ''biological sex'' refer to the biological indication of male and female in the context of reproductive potential or capacity, such as sex chromosomes, naturally occurring sex hormones, gonads, and non-ambiguous internal and external genitalia present at birth, without regard to an individual's psychological, chosen, or subjective experience of gender.

SA 903. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of division A, add the following:

TITLE XVIII—UYGHUR GENOCIDE ACCOUNTABILITY AND SANCTIONS ACT OF 2023

SEC. 1801. SHORT TITLE.

This title may be cited as the ''Uyghur Genocide Accountability and Sanctions Act of 2023''.

SEC. 1802. EXPANSION OF SANCTIONS UNDER UYGHUR HUMAN RIGHTS POLICY ACT OF 2020.

(a) IN GENERAL.—Section 6 of the Uyghur Human Rights Policy Act of 2020 (Public Law 116–145; 22 U.S.C. 6901 note) is amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) in the matter preceding subparagraph (A), by striking ''persons in Xinjiang Uyghur Autonomous Region'' and inserting ''persons residing in the Xinjiang Uyghur Autonomous Region or members of those groups in countries outside of the People's Republic of China'';

(ii) by inserting after subparagraph (F) the following:

''(G) Systematic rape, coercive abortion, forced sterilization, or involuntary contraceptive implantation policies and practices.

''(H) Human trafficking for the purpose of organ removal.

''(I) Forced separation of children from their parents to be placed in boarding schools.

''(J) Forced deportation or refoulement to the People's Republic of China.'';

(B) by redesignating paragraph (2) as paragraph (3); and

(C) by inserting after paragraph (1) the following:

''(2) ADDITIONAL MATTERS TO BE INCLUDED.—The President shall include in the report required by paragraph (1) an identification of—

''(A) each foreign person that knowingly provides significant goods, services, or technology to or for a person identified in the report; and

''(B) each foreign person that knowingly engages in a significant transaction relating to any of the acts described in subparagraphs (A) through (J) of paragraph (1).'';

(2) in subsection (b), by striking ''subsection (a)(1)'' and inserting ''subsection (a)''; and

(3) by amending subsection (d) to read as follows:

''(d) IMPLEMENTATION; REGULATORY AUTHORITY.—

''(1) IMPLEMENTATION.—The President may exercise all authorities provided under section 203 of the International Emergency Economic Powers Act (50 U.S.C. 1702) to carry out this section.

''(2) REGULATORY AUTHORITY.—The President shall issue such regulations, licenses, and orders as necessary to carry out this section.''.

(b) EFFECTIVE DATE; APPLICABILITY.—The amendments made by this section—

(1) take effect on the date of the enactment of this Act; and

(2) apply with respect to the first report required by section 6(a)(1) of the Uyghur Human Rights Policy Act of 2020 submitted after such date of enactment.

SEC. 1803. SENSE OF CONGRESS ON APPLICATION OF SANCTIONS UNDER UYGHUR HUMAN RIGHTS POLICY ACT OF 2020.

(a) FINDING.—Congress finds that, as of the date of the enactment of this Act—

(1) the report required by section 6(a)(1) of the Uyghur Human Rights Policy Act of 2020 (Public Law 116–145; 22 U.S.C. 6901 note) has not been submitted to Congress; and

(2) the sanctions provided for under that Act have not been employed.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the President should employ the sanctions provided for under the Uyghur Human Rights Policy Act of 2020—

(1) to address ongoing atrocities, in particular the use of forced labor, in the Xinjiang Uyghur Autonomous Region of the People's Republic of China; and

(2) to hold officials of the People's Republic of China accountable for those ongoing atrocities.

SEC. 1804. DENIAL OF UNITED STATES ENTRY FOR INDIVIDUALS COMPLICIT IN FORCED ABORTIONS OR FORCED STERILIZATIONS.

Section 801 of the Admiral James W. Nance and Meg Donovan Foreign Relations Authorization Act, Fiscal Years 2000 and 2001 (Public Law 106–113; 8 U.S.C. 1182e) is amended—

(1) in subsection (a), by striking ''may not'' each place it appears and inserting ''shall not'';

(2) by striking subsection (c) and inserting the following:

''(c) WAIVER.—The Secretary of State may waive the prohibitions in subsection (a) with respect to a foreign national if the Secretary—

''(1) determines that—

''(A) the foreign national is not directly complicit in atrocities, specifically the oversight of programs or policies the intent of which is to destroy, in whole or in part, a national, ethnic, racial, or religious group through the use of forced sterilization, forced abortion, or other egregious population control policies;

''(B) admitting or paroling the foreign national into the United States is necessary—

''(i) to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success on June 26, 1947, and entered into force November 21, 1947, between the United Nations and the United States, or other applicable international obligations of the United States; or

''(ii) to carry out or assist law enforcement activity of the United States; and

''(C) it is important to the national security interest of the United States to admit or parole the foreign national into the United States; and

''(2) provides written notification to the appropriate congressional committees containing a justification for the waiver.

''(d) NOTICE.—The Secretary of State shall make a public announcement whenever the prohibitions under subsection (a) are imposed under this section.

''(e) INFORMATION REQUESTED BY CONGRESS.—The Secretary of State, upon the request of a Member of Congress, shall provide—

''(1) information about the use of the prohibitions under subsection (a), including the number of times such prohibitions were imposed, disaggregated by country and by year; or

''(2) a classified briefing that includes information about the individuals subject to such prohibitions or subject to sanctions under any other Act authorizing the imposition of sanctions with respect to the conduct of such individuals.''.

SEC. 1805. PHYSICAL AND PSYCHOLOGICAL SUPPORT FOR UYGHURS, KAZAKHS, AND OTHER ETHNIC GROUPS.

(a) AUTHORIZATION.—

(1) IN GENERAL.—Using funds appropriated to the Department of State in annual appropriations bills under the heading ''DEVELOPMENT ASSISTANCE'', the Secretary of State, in conjunction and in consultation with the Administrator of the United States Agency for International Development, is authorized, subject to the requirements under chapters 1 and 10 of part I of the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) and section 634A of such Act (22 U.S.C. 2394–1)—

(A) to provide the assistance described in paragraph (2) to individuals who—

(i) belong to the Uyghur, Kazakh, Kyrgyz, or another oppressed ethnic group in the People's Republic of China;

(ii) experienced torture, forced sterilization, rape, forced abortion, forced labor, or other atrocities in the People's Republic of China; and

(iii) are residing outside of the People's Republic of China; and

(B) to build local capacity for the care described in subparagraph (A) through—

(i) grants to treatment centers and programs in foreign countries in accordance with section 130(b) of the Foreign Assistance Act of 1961 (22 U.S.C. 2152(b)); and

(ii) research and training to health care providers outside of such treatment centers or programs in accordance with section 130(c)(2) of such Act.

(2) AUTHORIZED ASSISTANCE.—The assistance described in this paragraph is—

(A) medical care;

(B) physical therapy; and

(C) psychological support.

(b) REPORT.—Not later than 1 year after the date of the enactment of this Act, the Secretary of State shall submit a report to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives that describes—

(1) the direct care or services provided in foreign countries for individuals described in subsection (a)(1)(A); and

(2) any projects started or supported in foreign countries to provide the care or services described in paragraph (1).

(c) FEDERAL SHARE.—Not more than 50 percent of the costs of providing the assistance authorized under subsection (a) may be paid by the United States Government.

SEC. 1806. PRESERVATION OF CULTURAL AND LINGUISTIC HERITAGE OF ETHNIC GROUPS OPPRESSED BY THE PEOPLE'S REPUBLIC OF CHINA.

(a) FINDING.—Congress finds that the genocide perpetrated by officials of the Government of the People's Republic of China in the Xinjiang Uyghur Autonomous Region aims to erase the distinct cultural and linguistic heritage of oppressed ethnic groups.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the United States Government should use its diplomatic, development, and cultural activities to promote the preservation of cultural and linguistic heritages of ethnic groups in the People's Republic of China threatened by the Chinese Communist Party.

(c) REPORT REQUIRED.—Not later than one year after the date of the enactment of this Act, the Secretary of State, in consultation with the Administrator of the United States Agency for International Development, shall submit to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report that assesses the feasibility of establishing a grant program to assist communities facing threats to their cultural and linguistic heritage from officials of the Government of the People's Republic of China.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $2,000,000 for each of fiscal years 2024 through 2027, to support the establishment of a Repressed Cultures Preservation Initiative within the Smithsonian Institution to pool Institution-wide efforts toward research, exhibitions, and education related to the cultural and linguistic heritage of ethnic and religious groups the cultures of which are threatened by repressive regimes, including the Chinese Communist Party.

SEC. 1807. DETERMINATION OF WHETHER ACTIONS OF CERTAIN CHINESE ENTITIES MEET CRITERIA FOR IMPOSITION OF SANCTIONS.

(a) IN GENERAL.—Not later than 60 days after the date of the enactment of this Act, the Secretary of the Treasury, in consultation with the Secretary of State and the Attorney General, shall—

(1) determine whether any entity specified in subsection (b)—

(A) is responsible for or complicit in, or has directly or indirectly engaged in, serious human rights abuses against Uyghurs or other predominantly Muslim ethnic groups in the Xinjiang Uyghur Autonomous Region of the People's Republic of China; or

(B) meets the criteria for the imposition of sanctions under—

(i) the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 10101 et seq.);

(ii) section 6 of the Uyghur Human Rights Policy Act of 2020 (Public Law 116–145; 22 U.S.C. 6901 note);

(iii) section 105, 105A, 105B, or 105C of the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8514, 8514a, 8514b, and 8514c);

(iv) Executive Order 13818 (50 U.S.C. 1701 note; relating to blocking the property of persons involved in serious human rights abuse or corruption), as amended on or after the date of the enactment of this Act; or

(v) Executive Order 13553 (50 U.S.C. 1701 note; relating to blocking property of certain persons with respect to serious human rights abuses by the Government of Iran and taking certain other actions), as amended on or after the date of the enactment of this Act;

(2) if the Secretary of the Treasury determines under paragraph (1) that an entity is responsible for or complicit in, or has directly or indirectly engaged in, serious human rights abuses described in subparagraph (A) of that paragraph or meets the criteria for the imposition of sanctions described in subparagraph (B) of that paragraph, include the entity on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control; and

(3) submit to Congress a report on that determination that includes the reasons for the determination.

(b) ENTITIES SPECIFIED.—An entity specified in this subsection is any of the following:

(1) Hangzhou Hikvision Digital Technology Co., Ltd.

(2) Shenzhen Huada Gene Technology Co., Ltd. (BGI Group).

(3) Tiandy Technologies Co., Ltd.

(4) Zhejiang Dahua Technology Co., Ltd.

(5) China Electronics Technology Group Co.

(6) Zhejiang Uniview Technologies Co., Ltd.

(7) ByteDance Ltd.

(c) FORM OF REPORT.—The report required by subsection (a)(3) shall be submitted in unclassified form, but may include a classified annex.

SEC. 1808. COUNTERING PROPAGANDA FROM THE PEOPLE'S REPUBLIC OF CHINA ABOUT GENOCIDE.

(a) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, the Secretary of State, in conjunction with the United States Agency for Global Media, shall submit a strategy to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives for countering propaganda and other messaging from news and information sources associated with the Government of the People's Republic of China or entities associated with the Chinese Communist Party or influenced by the Chinese Communist Party or the Government of the People's Republic of China that—

(1) deny the genocide, crimes against humanity, and other egregious human rights abuses experienced by Uyghurs and other predominantly Muslim ethnic groups in the Xinjiang Uyghur Autonomous Region;

(2) spread propaganda regarding the role of the United States Government in imposing economic and reputational costs on the Chinese Communist Party or the Government of the People's Republic of China for its ongoing genocide;

(3) target Uyghurs and other people who publicly oppose the Government of the People's Republic of China's genocidal policies and forced labor practices, including the detention and intimidation of their family members; or

(4) increase pressure on member countries of the United Nations to deny or defend genocide or other egregious violations of internationally recognized human rights in the People's Republic of China within international organizations and multilateral fora, including at the United Nations Human Rights Council.

(b) STRATEGY ELEMENTS.—The strategy required under subsection (a) shall include—

(1) existing messaging strategies and specific broadcasting efforts to counter the propaganda described in paragraphs (1) and (2) of subsection (a) and the reach of such strategies and efforts to audiences targeted by such propaganda;

(2) specific metrics used for determining the success or failure of the messaging strategies and broadcasting efforts described in paragraph (1) and an analysis of the impact of such strategies and efforts;

(3) a description of any new or pilot messaging strategies and broadcasting efforts expected to be implemented during the 12-month period beginning on the date of the enactment of this Act and an explanation of the need for such strategies and efforts;

(4) measurable goals to be completed during the 12-month period beginning on the date of the enactment of this Act and tangible outcomes for expanding broadcasting efforts and countering propaganda; and

(5) estimates of additional funding needed to counter the propaganda described in paragraphs (1) and (2) of subsection (a).

(c) FUNDING.—The Secretary of State is authorized to use amounts made available for the Countering PRC Influence Fund under section 7043(c)(2) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2022 (division K of Public Law 117–103) to develop and carry out the strategy required under subsection (a).

SEC. 1809. DOCUMENTING ATROCITIES IN THE XINJIANG UYGHUR AUTONOMOUS REGION.

The Secretary of State and the Administrator of the United States Agency for International Development may provide assistance, including financial and technical assistance, as necessary and appropriate, to support the efforts of entities, including nongovernmental organizations with expertise in international criminal investigations and law, to address genocide, crimes against humanity, and their constituent crimes by the Government of the People's Republic of China by—

(1) collecting, documenting, and archiving evidence, including the testimonies of victims and visuals from social media, and preserving the chain of custody for such evidence;

(2) identifying suspected perpetrators of genocide and crimes against humanity;

(3) conducting criminal investigations of atrocity crimes, including by developing indigenous investigative and judicial skills through partnerships, direct mentoring, and providing the necessary equipment and infrastructure to effectively adjudicate cases for use in prosecutions in domestic courts, hybrid courts, and internationalized domestic courts;

(4) supporting investigations conducted by foreign countries, civil society groups, and multilateral organizations, such as the United Nations; and

(5) supporting and protecting witnesses participating in such investigations.

SEC. 1810. PROHIBITION ON CERTAIN UNITED STATES GOVERNMENT AGENCY CONTRACTS.

(a) PROHIBITION.—The head of an executive agency may not enter into a contract for the procurement of goods or services with or for any of the following:

(1) Any person identified in the report required by section 6(a)(1) of the Uyghur Human Rights Policy Act of 2020 (Public Law 116–145; 22 U.S.C. 6901 note).

(2) Any person that mined, produced, or manufactured goods, wares, articles, and merchandise detained and denied entry into

the United States by U.S. Customs and Border Protection pursuant to section 3 of the Act entitled ''An Act to ensure that goods made with forced labor in the Xinjiang Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes'', approved December 23, 2021 (Public Law 117–78; 22 U.S.C. 6901 note) (commonly referred to as the ''Uyghur Forced Labor Prevention Act'').

(3) Any person that the head of the executive agency determines, with the concurrence of the Secretary of State, facilitates the genocide and human rights abuses occurring in the Xinjiang Uyghur Autonomous Region of the People's Republic of China.

(4) Any person, program, project, or activity that—

(A) contributes to forced labor, particularly through the procurement of any goods, wares, articles, and merchandise mined, produced, or manufactured wholly, or in part, in the Xinjiang Uyghur Autonomous Region or by the forced labor of ethnic Uyghurs or other persecuted individuals or groups in the People's Republic of China; or

(B) violates internationally recognized labor rights of individuals or groups in the People's Republic of China.

(b) CONSULTATIONS.—The head of each executive agency shall consult with the Forced Labor Enforcement Task Force, established under section 741 of the United States-Mexico-Canada Agreement Implementation Act (19 U.S.C. 4681), with respect to the implementation of subsection (a)(2).

(c) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the President shall submit a report on the implementation of this section to—

(1) the Committee on Finance, the Committee on Foreign Relations, and the Committee on Homeland Security and Governmental Affairs of the Senate; and

(2) the Committee on Ways and Means, the Committee on Foreign Affairs, and the Committee on Oversight and Accountability of the House of Representatives.

(d) EXECUTIVE AGENCY DEFINED.—In this section, the term ''executive agency'' has the meaning given the term in section 133 of title 41, United States Code.

SEC. 1811. DISCLOSURES TO SECURITIES AND EXCHANGE COMMISSION OF CERTAIN ACTIVITIES RELATED TO XINJIANG UYGHUR AUTONOMOUS REGION.

(a) AMENDMENT OF REQUIREMENTS FOR APPLICATIONS TO REGISTER ON NATIONAL SECURITIES EXCHANGES.—Section 12 of the Securities Exchange Act of 1934 (15 U.S.C. 781) is amended by adding at the end the following:

''(m) REPORTING OF CERTAIN ACTIVITIES RELATING TO THE XINJIANG UYGHUR AUTONOMOUS REGION.—

''(1) DEFINITION.—In this subsection, the term 'covered entity' means any entity that is—

''(A) engaged in providing technology or other assistance to create mass-population surveillance systems in the Xinjiang Uyghur Autonomous Region of the People's Republic of China;

''(B) an entity operating in the People's Republic of China that is on the Entity List maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of title 15, Code of Federal Regulations;

''(C) an individual residing in the People's Republic of China or an entity operating in the People's Republic of China that is on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury;

''(D) constructing or operating detention facilities for Uyghurs in the Xinjiang Uyghur Autonomous Region;

''(E) a foreign person identified in the report submitted under section 5(c) of the Act entitled 'An Act to ensure that goods made with forced labor in the Xinjiang Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes', approved December 23, 2021 (Public Law 117–78; 22 U.S.C. 6901 note) (commonly referred to, and referred to in this subsection, as the 'Uyghur Forced Labor Prevention Act');

''(F) engaged in the 'pairing assistance' program that subsidizes the establishment of manufacturing facilities in the Xinjiang Uyghur Autonomous Region;

''(G) the Xinjiang Production and Construction Corps;

''(H) operating in the People's Republic of China and producing goods subject to a withhold release order issued by U.S. Customs and Border Protection pursuant to section 307 of the Tariff Act of 1930 (19 U.S.C. 1307);

''(I) on a list required by clause (i), (ii), (iv), or (v) of section 2(d)(2)(B) of the Uyghur Forced Labor Prevention Act;

''(J) any person the property and interests in property of which have been blocked, pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) or any other provision of law, for actions relating to the detention or abuse of Uyghurs and other predominantly Muslim ethnic groups in the Xinjiang Uyghur Autonomous Region;

''(K) an individual residing in the People's Republic of China, or an entity operating in the People's Republic of China, the property and interests in property of which have been blocked pursuant to section 1263 of the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 10102);

''(L) any person responsible for, or complicit in, the commission of atrocities in the Xinjiang Uyghur Autonomous Region; or

''(M) an affiliate of an entity described in any of subparagraphs (A) through (L).

''(2) ISSUANCE OF RULES.—Not later than 180 days after the date of enactment of this subsection, the Commission shall issue rules—

''(A) to require an issuer filing an application to register a security with a national securities exchange—

''(i) to include in the application the documentation described in paragraph (3); and

''(ii) to file the application and documentation with the Commission;

''(B) to require an issuer to file a report with the Commission containing the documentation described in paragraph (3) if the securities of the issuer are not listed on a national securities exchange and merges with another issuer, the securities of which are listed on such an exchange; and

''(C) to require an issuer filing a registration statement under subsection (g) to include with that statement the documentation described in paragraph (3).

''(3) DOCUMENTATION REQUIRED.—

''(A) SIGNIFICANT TRANSACTIONS.—With respect to an issuer, the documentation described in this paragraph is documentation showing that neither the issuer nor any affiliate of the issuer, directly or indirectly, has engaged in a significant transaction with a covered entity.

''(B) TRANSPARENT DOCUMENTATION OF SUPPLY CHAIN LINKS.—In issuing rules under paragraph (2), in addition to the documentation required under subparagraph (A), the Commission shall also require an issuer to which those rules apply to document the name (in English and in the most commonly spoken language of the country in which the issuer is incorporated, if other than English) and address of, and sourcing quantities from, each smelter, refinery, farm, or manufacturing facility (as appropriate)—

''(i) with which the issuer has a business relationship; and

''(ii) that is owned or operated by—

''(I) a person located in the Xinjiang Uyghur Autonomous Region; or

''(II) a person working with the government of the Xinjiang Uyghur Autonomous Region to recruit, transport, transfer, harbor, or receive labor of Uyghurs, Kazakhs, Kyrgyz, or members of other persecuted groups out of the Xinjiang Uyghur Autonomous Region.

''(4) INDEPENDENT VERIFICATION OF DOCUMENTATION.—In issuing rules under paragraph (1), the Commission shall—

''(A) require an issuer to obtain independent verification of the documentation described in paragraph (3) by a third-party auditor approved by the Commission, before the filing of an application, report, or registration statement containing the documentation; and

''(B) require that the identity of the third-party auditor described in subparagraph (A) remain confidential.

''(5) PUBLIC AVAILABILITY OF DOCUMENTATION.—The Commission shall make all documentation received under this subsection available to the public.

''(6) PENALTY.—With respect to an application or report described in paragraph (2), if an issuer fails to comply with the requirements of this subsection (including any misrepresentation of the information described in paragraph (3))—

''(A) in the case of an application described in paragraph (2)(A)—

''(i) the applicable national securities exchange may not approve the application; and

''(ii) the issuer may not refile the application for 1 year; and

''(B) in the case of a report described in paragraph (1)(B) or a registration statement described in paragraph (1)(C)—

''(i) the President shall—

''(I) make a determination with respect to whether—

''(aa) the Secretary of the Treasury should initiate an investigation with respect to the imposition of sanctions under the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 10101 et seq.); or

''(bb) the Attorney General should initiate an investigation under any provision of law intended to hold accountable individuals or entities involved in the importation of goods produced using forced labor, including section 545, 1589, or 1761 of title 18, United States Code; and

''(II) not later than 180 days after initiating an investigation described in subclause (I), make a determination with respect to whether—

''(aa) to impose sanctions under the Global Magnitsky Human Rights Accountability Act with respect to the issuer or affiliate of the issuer (as the case may be); or

''(bb) to refer the case to the Department of Justice or another relevant Federal agency for further investigation.

''(7) REPORTS.—

''(A) ANNUAL REPORT TO CONGRESS.—The Commission shall—

''(i) conduct an annual assessment of the compliance of issuers with the requirements of this subsection; and

''(ii) submit to Congress a report containing the results of each assessment conducted under clause (i).

''(B) GOVERNMENT ACCOUNTABILITY OFFICE REPORT.—The Comptroller General of the United States shall periodically evaluate and report to Congress on the effectiveness of the oversight by the Commission of the requirements of this subsection.

''(8) SUNSET.—The provisions of this subsection shall terminate on the date that is 30 days after the date on which the President

submits the determination described in section 6(2) of the Uyghur Forced Labor Prevention Act.''.

(b) AMENDMENTS OF PERIODICAL REPORTING REQUIREMENTS FOR ISSUERS ON NATIONAL SECURITIES EXCHANGES.—Section 13 of the Securities Exchange Act of 1934 (15 U.S.C. 78m) is amended by adding at the end the following:

''(t) DISCLOSURE OF CERTAIN ACTIVITIES RELATING TO XINJIANG UYGHUR AUTONOMOUS REGION OF THE PEOPLE'S REPUBLIC OF CHINA.—

''(1) IN GENERAL.—Each issuer required to file an annual or quarterly report under subsection (a) shall disclose in that report the information required by paragraph (2) if, during the period covered by the report, the issuer or any affiliate of the issuer engaged, directly or indirectly, in an activity (including through a business relationship, ownership interest, or other financial or personal interest) with a covered entity, as defined in section 12(m).

''(2) INFORMATION REQUIRED.—If an issuer or an affiliate of an issuer has engaged, directly or indirectly, in any activity described in paragraph (1), the issuer shall disclose a detailed description of each such activity, including—

''(A) the nature and extent of the activity;

''(B) the gross revenues and net profits, if any, attributable to the activity; and

''(C) whether the issuer or the affiliate of the issuer (as the case may be) intends to continue the activity.

''(3) NOTICE OF DISCLOSURES.—If an issuer reports under paragraph (1) that the issuer or an affiliate of the issuer has engaged in any activity described in that paragraph, the issuer shall separately file with the Commission, concurrently with the annual or quarterly report under subsection (a), a notice that the disclosure of that activity has been included in that annual or quarterly report that identifies the issuer and contains the information required under paragraph (2).

''(4) PUBLIC DISCLOSURE OF INFORMATION.—Upon receiving a notice under paragraph (3) that an annual or quarterly report includes a disclosure of an activity described in paragraph (1), the Commission shall promptly—

''(A) transmit the report to—

''(i) the President;

''(ii) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

''(iii) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives; and

''(B) make the information provided in the disclosure and the notice available to the public by posting the information on the internet website of the Commission.

''(5) INVESTIGATIONS.—Upon receiving a report under paragraph (4) that includes a disclosure of an activity described in paragraph (1) by an issuer or an affiliate of the issuer, the President shall—

''(A) make a determination with respect to whether—

''(i) the Secretary of the Treasury should initiate an investigation with respect to the imposition of sanctions under the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 10101 et seq.); or

''(ii) the Attorney General should initiate an investigation under any provision of law intended to hold accountable individuals or entities involved in the importation of goods produced using forced labor, including section 545, 1589, or 1761 of title 18, United States Code; and

''(B) not later than 180 days after initiating such an investigation, make a determination with respect to whether—

''(i) to impose sanctions under the Global Magnitsky Human Rights Accountability Act with respect to the issuer or affiliate of the issuer (as the case may be); or

''(ii) to refer the case to the Department of Justice or another relevant Federal agency for further investigation.

''(6) SUNSET.—The provisions of this subsection shall terminate on the date that is 30 days after the date on which the President submits the determination described in section 6(2) of the Act entitled 'An Act to ensure that goods made with forced labor in the Xinjiang Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes', approved December 23, 2021 (Public Law 117–78; 22 U.S.C. 6901 note).''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take apply with respect to any application, registration statement, or report required to be filed with the Securities and Exchange Commission after the date that is 180 days after the date of enactment of this Act.

SA 904. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. PROTECTING AMERICANS FROM SOCIAL MEDIA COMPANIES CONTROLLED BY COUNTRIES OF CONCERN.

(a) PROHIBITED COMMERCIAL TRANSACTIONS.—On and after the date that is 30 days after the date of the enactment of this Act, the President shall exercise all the powers granted to the President under the International Emergency Economic Powers Act (50 U.S.C. 1701 et. seq.) to the extent necessary to block and prohibit all transactions in all property and interests in property of a social media company described in subsection (b) if such property and interests in property—

(1) are in the United States or come within the United States; or

(2) to the extent necessary to prevent commercial operation of the social media company in the United States, are or come within the possession or control of a United States person.

(b) SOCIAL MEDIA COMPANY DESCRIBED.—

(1) IN GENERAL.—A social media company described in this subsection is a social media company that meets one or more of the following conditions:

(A) The company is domiciled in, headquartered in, has its principal place of business in, or is organized under the laws of a country of concern.

(B) A country of concern, entity of concern, or some combination thereof, directly or indirectly owns, controls with the ability to decide important matters, or holds with power to vote, 20 percent or more of the outstanding voting stock or shares of the company.

(C) The company employs software or algorithms controlled or whose export is restricted by a country of concern or entity of concern.

(D) The company is subject to substantial influence, directly or indirectly, from a country of concern or entity of concern owing to which—

(i) the company shares or could be compelled to share data on United States citizens with a country of concern or entity of concern; or

(ii) the content moderation practices of the company are subject to substantial influence from a country of concern or entity of concern.

(2) DEEMED COMPANIES.—The following companies shall be deemed to be social media companies described in this subsection as of the date of the enactment of this Act unless and until the date on which the President certifies to Congress that the company no longer meets any of the conditions described in paragraph (1):

(A) Bytedance, Ltd.

(B) TikTok.

(C) A subsidiary of or a successor company to a company listed in subparagraph (A) or (B).

(D) A company owned or controlled directly or indirectly by a company listed in subparagraph (A) or (B).

(c) EXCEPTIONS.—

(1) INTELLIGENCE ACTIVITIES.—Sanctions under this section shall not apply to any activity subject to the reporting requirements under title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.) or any authorized intelligence activities of the United States.

(2) IMPORTATION OF GOODS.—

(A) IN GENERAL.—The authorities and requirements to impose sanctions under this section shall not include the authority or requirement to impose sanctions on the importation of goods.

(B) GOOD DEFINED.—In this paragraph, the term ''good'' means any article, natural or manmade substance, material, supply or manufactured product, including inspection and test equipment, and excluding technical data.

(d) IMPLEMENTATION, PENALTIES, AND INAPPLICABILITY OF CERTAIN PROVISIONS.—

(1) IMPLEMENTATION.—The President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out this section.

(2) PENALTIES.—A person that violates, attempts to violate, or causes a violation of subsection (a) or any regulation, license, or order issued to carry out that subsection shall be subject to the penalties set forth in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) to the same extent as a person that commits an unlawful act described in subsection (a) of that section.

(3) INAPPLICABILITY OF CERTAIN PROVISIONS.—The requirements under section 202 and the limitations under section 203(b) of the International Emergency Economic Powers Act (50 U.S.C. 1701 and 1702(b)) shall not apply for purposes of this section.

(e) SEVERABILITY.—If any provision of this section or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this section that can be given effect without the invalid provision or application, and to this end the provisions of this section are severable.

(f) DEFINITIONS.—In this section:

(1) COUNTRY OF CONCERN.—The term ''country of concern''—

(A) has the meaning given the term ''foreign adversary'' in section 8(c)(2) of the Secure and Trusted Communications Networks Act of 2019 (47 U.S.C. 1607(c)(2)); and

(B) includes the People's Republic of China (including the Special Administrative Regions of China, including Hong Kong and Macau), Russia, Iran, North Korea, Cuba, and Venezuela.

(2) ENTITY OF CONCERN.—The term ''entity of concern'' means—

(A) a governmental body at any level in a country of concern;

(B) the Armed Forces of a country of concern;

(C) the leading political party of a country of concern;

(D) an individual who is—

(i) a national of a country of concern;

(ii) domiciled and living in a country of concern; and

(iii) subject to substantial influence, directly or indirectly, from an entity specified under any of subparagraphs (A) through (C); or

(E) a private business or a state-owned enterprise that is—

(i) domiciled in a country of concern or owned or controlled by a private business or State-owned enterprise domiciled in a country of concern; and

(ii) subject to substantial influence, directly or indirectly, from an entity specified under any of subparagraphs (A) through (C).

(3) SOCIAL MEDIA COMPANY.—The term ''social media company''—

(A) means any entity that operates, directly or indirectly, including through its parent company, subsidiaries, or affiliates, a website, desktop application, or mobile application that—

(i) permits an individual or entity to create an account or profile for the purpose of generating, sharing, and viewing user-generated content through such account or profile;

(ii) sells digital advertising space;

(iii) has more than 1,000,000 monthly active users for a majority of months during the preceding 12 months;

(iv) enables one or more users to generate content that can be viewed by other users of the website, desktop application, or mobile application; and

(v) enables users to view content generated by other users of the website, desktop application, or mobile application; and

(B) does not include an entity if the entity does not operate a website, desktop application, or mobile application except for a website, desktop application, or mobile application the primary purpose of which is—

(i) to allow users to post product reviews, business reviews, or travel information and reviews; or

(ii) to provide emergency alert services.

SA 905. Mr. KENNEDY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. NO FEDERAL FUNDS FOR DEPARTMENT OF JUSTICE RULE ON STABILIZING BRACES.

No Federal funds may be used to implement, administer, or enforce the rule of the Department of Justice entitled ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces' ''.

SA 906. Mr. SCHMITT submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title I, insert the following:

SEC. ___. SENSE OF SENATE ON PROCUREMENT OF OUTSTANDING F/A–18 SUPER HORNET PLATFORMS.

(a) FINDINGS.—Congress finds that Congress appropriated funds for twelve F/A–18 Super Hornet platforms in fiscal year 2022 and eight F/A–18 Super Hornet platforms in fiscal year 2023, but the Navy has yet to enter into any contracts for the procurement of such platforms.

(b) SENSE OF SENATE.—It is the sense of the Senate that—

(1) the Secretary of the Navy and the contractor team should expeditiously enter into contractual agreements to procure the twenty F/A–18 Super Hornet platforms for which funds have been appropriated; and

(2) the Senate urges the Secretary of the Navy and the contractor team to comply with congressional intent and applicable law with appropriate expediency to bolster the Navy's fleet of strike fighter aircraft and avoid further disruption to the defense industrial base.

SA 907. Mr. RUBIO submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SECTION 12___. ESTABLISHMENT OF UNITED STATES-ISRAEL ARTIFICIAL INTELLIGENCE CENTER.

(a) SHORT TITLE.—This section may be cited as the ''United States–Israel Artificial Intelligence Center Act''.

(b) DEFINED TERM.—In this section, the term ''foreign country of concern'' means—

(1) the People's Republic of China;

(2) the Democratic People's Republic of Korea;

(3) the Russian Federation;

(4) the Islamic Republic of Iran; and

(5) any other country that the Secretary of State determines to be a country of concern.

(c) IN GENERAL.—The Secretary of State, in consultation with the Secretary of Commerce and the heads of other relevant Federal agencies, shall establish the United States–Israel Artificial Intelligence Center (referred to in this section as the ''Center'') in the United States.

(d) PURPOSES.—The purposes of the Center shall be to leverage the experience, knowledge, and expertise of institutions of higher education and private sector entities in the United States and Israel to develop more robust commercially relevant technology development cooperation in the areas of—

(1) machine learning;

(2) image classification;

(3) object detection;

(4) speech recognition;

(5) natural language processing;

(6) data labeling;

(7) computer vision; and

(8) model explainability and interpretability.

(e) ARTIFICIAL INTELLIGENCE PRINCIPLES.—In carrying out the purposes set forth in subsection (d), the Center shall adhere to the principles for the use of artificial intelligence in the Federal Government set forth in section 3 of Executive Order 13960 (85 Fed. Reg. 78939; relating to promoting the use of trustworthy artificial intelligence in Government), including to ''design, develop, acquire, and use AI in a manner that exhibits due respect for our Nation's values and is consistent with the Constitution and all other applicable laws and policies, including those addressing privacy, civil rights, and civil liberties''.

(f) INTERNATIONAL PARTNERSHIPS.—

(1) IN GENERAL.—The Secretary of State and the heads of other relevant Federal agencies, subject to the availability of appropriations, may enter into cooperative agreements supporting and enhancing dialogue and planning involving international partnerships between the Department of State or such other agencies and the Government of Israel and its ministries, offices, and institutions.

(2) FEDERAL SHARE.—Not more than 50 percent of the costs of implementing the agreements entered into pursuant to paragraph (1) may be paid by the United States Government.

(g) MULTILATERAL PARTNERSHIP.—Not later than 1 year after establishing the Center pursuant to this section, the Secretary of State, in consultation with relevant Federal agencies, shall submit a report to Congress that describes opportunities for expanding the participation in the Center to include other United States partners and allies.

(h) LIMITATIONS.—All of the following individuals and entities are prohibited from investing in, partnering with, or receiving or participating in, any grant, award, contract, program, support, benefit or other activity of the Center:

(1) Any individual or entity on the list under section 1237(b) of the Strom Thurmond National Defense Authorization Act for Fiscal Year 1999 (Public Law 105–261; 50 U.S.C. 1701 note).

(2) Any entity identified under section 1260h of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 10 U.S.C. 113 note).

(3) Any academic institution on the list developed under section 1286(c)(8) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. 4001 note) and any participants in a foreign talent recruitment program on the list developed under section 1286(c)(9) of such Act.

(4) Any malign foreign talent recruitment program (as defined under section 10638 of the CHIPS and Science Act of 2022 (Public Law 117–167).

(5) Any entity owned by, controlled by, or subject to the direction of with the Chinese Communist Party or the People's Republic of China, or in which the government of a foreign country of concern has an ownership interest.

(6) Any entity on the Entity List that is maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 to part 744 of the Export Administration Regulations.

(i) APPLICABILITY OF EXPORT CONTROLS TO CENTER.—All activities of the Center, including the development, production, or use of goods, technology, software, knowledge, or source code, are subject to the Export Control Reform Act of 2018 (50 U.S.C. 4801 et seq.), the Export Administration Regulations (as defined in subsection (h)(3)(B)), the licensing policy described in subsection (j), the Arms Export Control Act (22 U.S.C. 2751 et seq.), and any other applicable Federal laws relating to export controls.

(j) DENIAL OF EXPORT LICENSES FOR UNITED STATES ARMS EMBARGOED COUNTRIES.—

(1) IN GENERAL.—The Secretary of Commerce shall deny a license for the export (including deemed export), reexport, or in-country transfer of any item subject to the Export Administration Regulations to or in a country listed in Country Group D:5 in Supplement No. 1 to part 740 of the Export Administration Regulations.

(2) MONTHLY CONGRESSIONAL NOTIFICATION.—Not less frequently than every 30 days, the Under Secretary of Commerce for Industry and Security shall notify the appropriate congressional committees of all applications for licenses described in paragraph (1) that were submitted during the 30-day period preceding the notification.

(3) DEFINITIONS.—In this subsection:

(A) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(i) the Committee on Foreign Relations of the Senate;

(ii) the Select Committee on Intelligence of the Senate;

(iii) the Committee on Foreign Affairs of the House of Representatives; and

(iv) the Permanent Select Committee on Intelligence of the House of Representatives.

(B) EXPORT; EXPORT ADMINISTRATION REGULATIONS; IN-COUNTRY TRANSFER; ITEM; REEXPORT.—The terms ''export'', ''Export Administration Regulations'', ''in-country transfer'', ''item'', and ''reexport'' have the meanings given such terms in section 1742 of the Export Control Reform Act of 2018 (50 U.S.C. 4801).

(C) SUBJECT TO THE EXPORT ADMINISTRATION REGULATIONS.—The term ''subject to the Export Administration Regulations'', with respect to an item, has the meaning given the term ''subject to the EAR'' in section 734.3 of the Export Administration Regulations.

(k) CLASSIFICATION.—All activities of the Center shall not be considered fundamental research, open source, or standards-related activities.

(l) COUNTERINTELLIGENCE SCREENING.—Not later than 180 days after the date of the enactment of this Act, and not later than each December 31 thereafter, Director of National Intelligence, in collaboration with the Director of the National Counterintelligence and Security Center and the Director of the Federal Bureau of Investigation, shall—

(1) assess—

(A) whether the Center or its participant institutions pose a counterintelligence threat to the United States;

(B) what specific measures the Center has implemented to ensure that intellectual property developed with the assistance of the Center has sufficient protections in place to ensure adherence to the principles described in subsection (e) in the use of United States intellectual property, research and development, and innovation efforts; and

(C) other threats from a foreign country of concern and other entities; and

(2) submit a report to Congress containing the results of the assessment described in paragraph (1).

(m) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $10,000,000 for the Center for each of the fiscal years 2024 through 2028.

SA 908. Mr. OSSOFF (for himself and Ms. ERNST) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. INCREASE IN GOVERNMENTWIDE GOAL FOR PARTICIPATION IN FEDERAL CONTRACTS BY SMALL BUSINESS CONCERNS OWNED AND CONTROLLED BY SERVICE-DISABLED VETERANS.

Section 15(g)(1)(A)(ii) of the Small Business Act (15 U.S.C. 644(g)(1)(A)(ii)) is amended by striking ''3 percent'' and inserting ''5 percent''.

SA 909. Mr. OSSOFF (for himself and Mr. WARNOCK) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XXVIII, insert the following:

SEC. 28____. LIMITATION ON USE OF FUNDS FOR CLOSURE OF COMBAT READINESS TRAINING CENTERS.

(a) LIMITATION.—None of the funds authorized to be appropriated by this Act for fiscal year 2024 for the Air Force or the Air National Guard may be obligated or expended to close, or prepare to close, any combat readiness training center.

(b) WAIVER.—The Secretary of the Air Force may waive the limitation under subsection (a) with respect to a combat readiness training center if the Secretary submits to the congressional defense committees the following:

(1) A certification that—

(A) the closure of the center would not be in violation of section 2687 of title 10, United States Code; and

(B) the support capabilities provided by the center will not be diminished as a result of the closure of the center.

(2) A report that includes—

(A) a detailed business case analysis for the closure of the center; and

(B) an assessment of the effects the closure of the center would have on training units of the Armed Forces, including any active duty units that may use the center.

SA 910. Mr. PADILLA (for himself and Mr. CORNYN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. CONDUCT OF WINTER SEASON RECONNAISSANCE OF ATMOSPHERIC RIVERS IN THE WESTERN UNITED STATES.

(a) CONDUCT OF RECONNAISSANCE.—

(1) IN GENERAL.—Subject to the availability of appropriations, the 53rd Weather Reconnaissance Squadron of the Air Force Reserve Command and the Administrator of the National Oceanic and Atmospheric Administration may use aircraft, personnel, and equipment necessary to meet the mission requirements of the 53rd Weather Reconnaissance Squadron of the Air Force Reserve Command and the National Oceanic and Atmospheric Administration if those aircraft, personnel, and equipment are not otherwise needed for hurricane monitoring and response.

(2) ACTIVITIES.—In carrying out paragraph (1), the 53rd Weather Reconnaissance Squadron of the Air Force Reserve Command, in consultation with the Administrator of the National Oceanic and Atmospheric Administration and appropriate line offices of the National Oceanic and Atmospheric Administration, may—

(A) improve the accuracy and timeliness of observations to support the forecast and warning services of the National Weather Service for the coasts of the United States;

(B) collect data in data-sparse regions where conventional, upper-air observations are lacking;

(C) support water management decisions and flood forecasting through the execution of targeted airborne dropsonde, buoys, autonomous platform observations, satellite observations, remote sensing observations, and other observation platforms as appropriate, including enhanced assimilation of the data from those observations over the eastern, central, and western north Pacific Ocean, the Gulf of Mexico, and the western Atlantic Ocean to improve forecasts of large storms for civil authorities and military decision makers;

(D) participate in the research and operations partnership that guides flight planning and uses research methods to improve and expand the capabilities and effectiveness of weather reconnaissance over time; and

(E) undertake such other additional activities as the Administrator of the National Oceanic and Atmospheric Administration, in collaboration with the 53rd Weather Reconnaissance Squadron, considers appropriate to further prediction of dangerous weather events.

(b) REPORTS.—

(1) AIR FORCE.—

(A) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of the Air Force, in consultation with the Administrator of the National Oceanic and Atmospheric Administration, shall submit to the appropriate committees of Congress a comprehensive report on the resources necessary for the 53rd Weather Reconnaissance Squadron of the Air Force Reserve Command to continue to support, through December 31, 2035—

(i) the National Hurricane Operations Plan;

(ii) the National Winter Season Operations Plan; and

(iii) any other operational requirements relating to weather reconnaissance.

(B) APPROPRIATE COMMITTEES OF CONGRESS.—In this paragraph, the term ''appropriate committees of Congress'' means—

(i) the Committee on Armed Services of the Senate;

(ii) the Subcommittee on Defense of the Committee on Appropriations of the Senate;

(iii) the Committee on Commerce, Science, and Transportation of the Senate;

(iv) the Committee on Science, Space, and Technology of the House of Representatives;

(v) the Committee on Armed Services of the House of Representatives; and

(vi) the Subcommittee on Defense of the Committee on Appropriations of the House of Representatives.

(2) COMMERCE.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Commerce shall submit to the Committee on Commerce, Science, and

Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives a comprehensive report on the resources necessary for the National Oceanic and Atmospheric Administration to continue to support, through December 31, 2035—

(A) the National Hurricane Operations Plan;

(B) the National Winter Season Operations Plan; and

(C) any other operational requirements relating to weather reconnaissance.

SA 911. Ms. CANTWELL submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle G of title X, insert the following:

SEC. ___. FLIGHT EDUCATION ACCESS ACT.

(a) SHORT TITLE.—This section may be cited as the ''Flight Education Access Act''.

(b) INCREASE IN FEDERAL STUDENT LOAN LIMITS FOR STUDENTS IN FLIGHT EDUCATION AND TRAINING PROGRAMS.—Section 455 of the Higher Education Act of 1965 (20 U.S.C. 1087e) is amended—

(1) in subsection (p)—

(A) by striking ''Each institution'' and inserting the following:

''(1) IN GENERAL.—Each institution''; and

(B) in paragraph (1) (as designated by subparagraph (A)), by inserting before the period at the end the following: ''and, shall, with respect to Federal Direct Unsubsidized Stafford Loans made after the date of enactment of the Flight Education Access Act to an eligible student (as defined in subsection (r)), comply with the requirements of paragraph (2)''; and

(C) by adding at the end the following:

''(2) ADDITIONAL DISCLOSURES.—At or prior to the disbursement of a Federal Direct Unsubsidized Stafford Loan after the date of enactment of the Flight Education Access Act to an eligible student (as defined in subsection (r)), the following shall be disclosed:

''(A) The principal amount of the loan, the stated interest rate on the loan, the number of required monthly payments to be made on the loan (which shall be based on a standard repayment plan), and the estimated number of months before the start of the repayment period for the loan (based on the expected date on which the repayment period is to begin or the deferment period is to end, as applicable).

''(B) The estimated balance to be owed by the borrower on such loan (including, if applicable, the estimated amount of interest to be capitalized) as of the scheduled date on which the repayment period is to begin or the deferment period is to end, as applicable, and an estimate of the projected monthly payment.

''(C) An estimate of the aggregate amount the borrower will pay for the loan, including the total amount of monthly payments made over the life of the loan plus the amount of any charges for the loan, such as an origination fee.''; and

(2) by adding at the end the following:

''(r) INCREASE IN LOAN LIMITS FOR STUDENTS IN FLIGHT EDUCATION AND TRAINING PROGRAMS.—

''(1) IN GENERAL.—Notwithstanding any other provision of this Act, the loan limits for Federal Direct Unsubsidized Stafford Loans made after the date of enactment of the Flight Education Access Act with respect to eligible students shall be subject to this subsection.

''(2) DEFINITIONS.—In this section:

''(A) ELIGIBLE STUDENT.—The term 'eligible student' means a student who is enrolled in an eligible undergraduate flight education and training program.

''(B) ELIGIBLE UNDERGRADUATE FLIGHT EDUCATION AND TRAINING PROGRAM.—The term 'eligible undergraduate flight education and training program' means an undergraduate flight education and training program that offers training for applicants seeking a commercial pilot certificate and—

''(i) during the period beginning on the date of enactment of the Flight Education Access Act and ending on the date on which 3 years of data has been collected pursuant to paragraph (3)(C), that meets all the applicable requirements of this Act; and

''(ii) beginning on the date on which 3 years of data has been collected pursuant to paragraph (3)(C), that meets all the applicable requirements of this Act and has a completion rate averaged over a 3-year period, as calculated under paragraph (3)(C) that is equal to or greater than 70 percent.

''(C) UNDERGRADUATE FLIGHT EDUCATION AND TRAINING PROGRAM.—The term 'undergraduate flight education and training program'—

''(i) has the meaning given the term by the Secretary, in consultation with the Administrator of the Federal Aviation Administration;

''(ii) shall include a flight education and training program offered by an eligible institution that is accredited by an accrediting agency recognized by the Secretary, that—

''(I) awards undergraduate certificates or associate or bachelor degrees; and

''(II) provides pilot training in accordance with part 141 of title 14, Code of Federal Regulations, or any successor regulation; and

''(iii) shall not include a flight education and training program certified under part 61 of title 14, Code of Federal Regulations, or any successor regulation.

''(3) LOAN LIMITS FOR ELIGIBLE UNDERGRADUATE FLIGHT EDUCATION AND TRAINING PROGRAMS.—

''(A) LIMITS FOR ELIGIBLE STUDENTS WHO ARE DEPENDENT STUDENTS.—

''(i) ANNUAL LIMITS.—The maximum annual amount of Federal Direct Unsubsidized Stafford Loans an eligible student who is a dependent student may borrow in any academic year (as defined in section 481(a)(2)) or its equivalent shall be—

''(I) in the case of an eligible student at an eligible institution who has not successfully completed the first year of an eligible undergraduate flight education and training program—

''(aa) $13,500, if such student is enrolled in such a program whose length is at least one academic year in length; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year;

''(II) in the case of an eligible student at an eligible institution who has successfully completed the first year of an eligible undergraduate flight education and training program but has not yet successfully completed the remainder of such program—

''(aa) $15,500; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year;

''(III) in the case of a student at an eligible institution who has successfully completed the first year and second years of an eligible undergraduate flight education and training program but has not yet successfully completed the remainder of such program—

''(aa) $16,500; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year; and

''(IV) in the case of a student at an eligible institution who has successfully completed the first, second, and third years of an eligible undergraduate flight education and training program but has not yet successfully completed the remainder of such program—

''(aa) $15,500; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year.

''(ii) AGGREGATE LIMITS.—The maximum aggregate amount of Federal Direct Unsubsidized Stafford Loans an eligible student who is a dependent student may borrow shall be $65,000.

''(B) LIMITS FOR ELIGIBLE STUDENTS WHO ARE INDEPENDENT STUDENTS.—

''(i) ANNUAL LIMITS.—The maximum annual amount of Federal Direct Unsubsidized Stafford Loans an eligible student who is an independent student may borrow in any academic year (as defined in section 481(a)(2)) or its equivalent shall be—

''(I) in the case of an eligible student at an eligible institution who has not successfully completed the first year of an eligible undergraduate flight education and training program—

''(aa) $21,500, if such student is enrolled in such a program whose length is at least one academic year in length; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year;

''(II) in the case of an eligible student at an eligible institution who has successfully completed the first year of an eligible undergraduate flight education and training program but has not yet successfully completed the remainder of such program—

''(aa) $25,500; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year;

''(III) in the case of a student at an eligible institution who has successfully completed the first year and second years of an eligible

undergraduate flight education and training program but has not yet successfully completed the remainder of such program—

''(aa) $25,500; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year; and

''(IV) in the case of a student at an eligible institution who has successfully completed the first, second, and third years of an eligible undergraduate flight education and training program but has not yet successfully completed the remainder of such program—

''(aa) $22,500; or

''(bb) if such student is enrolled in such a program that is less than one academic year, the maximum annual loan amount that such student may receive may not exceed the amount that bears the same ratio to the amount specified in item (aa) as the length of such program measured in semester, trimester, quarter, or clock hours bears to one academic year.

''(ii) AGGREGATE LIMITS.—The maximum aggregate amount of Federal Direct Unsubsidized Stafford Loans an eligible student who is an independent student may borrow shall be $107,500.

''(C) DATA COLLECTION ON, AND CALCULATION OF, COMPLETION RATES.—

''(i) IN GENERAL.—The Secretary shall annually calculate the completion rate of each undergraduate flight education and training program at each eligible institution based on the information collected under clause (ii).

''(ii) COLLECTION OF INFORMATION.—The Secretary shall annually collect information, for each academic year, on—

''(I) the total number of students enrolled in an undergraduate flight education and training program at an eligible institution; and

''(II) those students who complete such program—

''(aa) who earn a private pilot's certificate for an airplane category rating with a single-engine class rating while enrolled in such program; or

''(bb) who at the time of enrollment, possess such a certificate.

''(iii) CALCULATION OF COMPLETION RATE.—To calculate the completion rate described in clause (i), the Secretary shall—

''(I) consider as having completed, those students who earn a private pilot's certificate for an airplane category rating with a single-engine class rating, or who at the time of enrollment possess such a certificate, and complete the undergraduate flight education and training program at an eligible institution—

''(aa) that predominantly awards associate degrees, within 200 percent of the normal time for completion;

''(bb) that predominantly awards bachelor degrees, within 150 percent of the normal time for completion; and

''(cc) that predominantly awards undergraduate certificates, within 200 percent of the normal time for completion;

''(II) consider as not having completed, those students who earn a private pilot's certificate for an airplane category rating with a single-engine class rating, or who at the time of enrollment possess such a certificate, and who transfer out of the undergraduate flight education and training program to another program at the eligible institution that is not an undergraduate flight education and training program or to a program that is not an undergraduate flight education and training program at another eligible institution; and

''(III) not include in the calculation, any student who—

''(aa) is a foreign national;

''(bb) earns a private pilot's certificate for an airplane category rating with a single-engine class rating and transfers out of the undergraduate flight education and training program to another undergraduate flight education and training program at a different eligible institution; or

''(cc) is enrolled in an undergraduate flight education and training program and never earns a private pilot's certificate for an airplane category rating with a single-engine class rating.

''(D) REPORTING REQUIREMENTS.—

''(i) IN GENERAL.—The Secretary shall require each undergraduate flight education and training program that enrolls students who receive assistance under this part to provide the data described in this subparagraph that is necessary for the completion of the reporting requirements described in this subparagraph.

''(ii) FORM OF DATA COLLECTION.—The Secretary shall prescribe the form and format of the data required to be provided under this subparagraph and include, at a minimum, the following data elements:

''(I) Student data elements necessary to calculate student enrollment, persistence, retention, transfer, and completion rates.

''(II) Information disaggregated by gender, race, ethnicity, and socioeconomic status.

''(iii) REPORT TO CONGRESS.—Not later than 9 months after the date of enactment of the Flight Education Access Act and biennially thereafter, the Secretary shall submit a report to the Committee on Health, Education, Labor, and Pensions of the Senate, the Committee on Commerce, Science, and Transportation of the Senate, the Committee on Education and the Workforce of the House of Representatives, and the Committee on Transportation and Infrastructure of the House of Representatives, analyzing and assessing the data collected pursuant to this subparagraph and conforming to the requirements of this subparagraph that shall include the following:

''(I) An assessment of the effectiveness of the requirements under this subsection.

''(II) Information on enrollment, persistence, retention, transfer, completion, utilization of Federal financial aid, and unmet financial need, including information on applicable institutions.

''(III) Information on the gender, race, ethnicity, and socioeconomic status of students enrolled in an undergraduate flight education and training program.''.

(c) GAO REPORT.—Not later than 2 years after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) examine and review the implementation of this section and the amendments made by this section, which review shall include—

(A) the number of participating institutions offering undergraduate flight education and training programs (as defined in section 455(r) of the Higher Education Act of 1965 (20 U.S.C. 1087e(r)), as amended by this section);

(B) the number of students enrolled in such undergraduate flight education and training programs, and demographic data regarding such students;

(C) the level of such students' participation in the loan program under part D of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq.), including demographic data as appropriate; and

(D) feedback from participating institutions regarding the implementation of this section and the amendments made by this section;

(2) develop recommendations to the Department of Education on any changes that should be made to improve the implementation of this section and the amendments made by this section; and

(3) prepare and submit a report on the findings and recommendations under paragraphs (1) and (2) to—

(A) the Committee on Health, Education, Labor, and Pensions and the Committee on Commerce, Science, and Transportation of the Senate; and

(B) the Committee on Education and the Workforce and the Committee on Transportation and Infrastructure of the House of Representatives.

(d) RULE OF CONSTRUCTION.—Nothing in this section, or an amendment made by this section, shall be construed to repeal, amend, supersede, or affect any pilot training or qualification provision under existing law.

(e) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary of Education, in addition to any amounts otherwise available, to carry out the amendments made by this section, $3,000,000 for each of fiscal years 2024 through 2033. Such funds shall be available until expended.

SEC. ___. REGIONAL AIR CARRIER PILOT TRAINING AND DEVELOPMENT PROGRAM.

(a) IN GENERAL.—Subject to the availability of appropriations, not later than 90 days after the date of enactment of this section, the Secretary of Transportation (in this section referred to as the ''Secretary'') shall establish a pilot program to award grants to eligible applicants to support payment of costs—

(1) related to required flight education and training for aspiring pilots to become employed by a certificate holder under part 119 of title 14, Code of Federal Regulations, which conducts scheduled operations under part 135 or 121 of that title exclusively with aircraft having a seating capacity of not more than 80 passengers; and

(2) for the training and retention of pilots employed by a certificate holder that conducts operations described in paragraph (1).

(b) ELIGIBLE APPLICANTS.—An application for a grant under this section shall be submitted in such form as the Secretary may require, by an eligible applicant pursuing flight education or training, including flight training on regional aircraft, who demonstrates to the Secretary—

(1) documentation of enrollment in an eligible pilot development program described in subsection (g); and

(2) receipt of direct financial assistance from a certificate holder for costs described in subsection (a) relating to flight education and training to participate in such pilot development program.

(c) MATCHING FUNDS.—In carrying out the pilot program established under this section, the Secretary shall award grants to support the flight education and training of an eligible applicant by issuing matching funds for amounts equal to the amount of direct financial assistance provided by a certificate holder that conducts operations described in subsection (a)(1) for the purposes of participation in an eligible pilot development program, provided that an individual grant for an eligible applicant provided under this subsection does not exceed $30,000. An eligible applicant may receive no more than one grant under the pilot program. The Secretary may reserve up to 5 percent of the funds made available under subsection (j) per fiscal year to carry out this section and provide oversight of the program by the Secretary.

(d) USE OF FUNDS.—

(1) IN GENERAL.—A grant awarded under this section shall be used to support the costs of an eligible applicant's—

(A) flight training services;

(B) program tuition;

(C) training materials;

(D) equipment; or

(E) any other cost associated with expenses incurred by an eligible applicant for purposes of receiving flight education and training, including aircraft type training on regional jet aircraft or simulation equipment, through an eligible pilot development program.

(2) RETURN OF GRANT FUNDS.—Any grant funds disbursed to an eligible applicant by the Secretary pursuant to subsection (c) that are used in violation of paragraph (1), or are not expended as of the earlier of the date of termination of the eligible applicant's participation in, or the expiration of, the pilot program established in subsection (a), shall be returned to the Secretary not later than 30 days after the Secretary issues a written determination to the eligible applicant stating the necessity for and compelling the return of such grant funds. The Secretary may investigate any eligible applicants who use grant funds in violation of paragraph (1).

(e) PREFERENCE FOR EMPLOYMENT WITH REGIONAL AIR CARRIERS.—In awarding grants under subsection (c) to an eligible applicant, the Secretary shall give preferential consideration to an eligible applicant who demonstrates a documented commitment, on a voluntary basis, to initiate or continue employment with a certificate holder that conducts operations described in subsection (a)(1) until such time as the eligible applicant attains the position of captain and serves in such position for at least 2 years.

(f) CONSIDERATIONS.—In carrying out the pilot program established under this section, the Secretary shall consider the following:

(1) Ensuring the issuance of awards reflects equal consideration of all eligible pilot development programs operated by certificate holders that conducts operations described in subsection (a)(1) from which eligible applicants could be enrolled in and receive direct financial assistance for flight education and training.

(2) Developing and issuing policies, in coordination with eligible pilot development programs described in subsection (g) that are operated by such certificate holders, to verify the use of awarded grant funds by eligible applicants to support costs related to flight education and training.

(g) ELIGIBLE PILOT DEVELOPMENT PROGRAM.—For purposes of the pilot program established under this section, an eligible pilot development program shall meet the following criteria:

(1) The program shall be operated in conjunction with an eligible institution that is accredited by an accrediting agency recognized by the Secretary that—

(A) awards undergraduate certificates or associate or bachelor's degrees; or

(B) provides pilot training in accordance with part 141 of title 14, Code of Federal Regulations, or any successor regulation.

(2) The program shall be able to facilitate an eligible applicant's ability to fulfill necessary flight education and training requirements, as determined by the Administrator of the Federal Aviation Administration, to obtain a restricted airline transport pilot certificate.

(3) The program provides direct financial assistance to an enrolled eligible applicant or reimburses an enrolled eligible applicant for costs associated with expenses incurred by an enrolled eligible applicant for purposes of receiving pilot training necessary to fulfill the certification described in paragraph (2).

(4) The program shall be operated by, affiliated with, or have an agreement with, a certificate holder that conducts operations described in subsection (a)(1) for the purposes of conducting flight education and training and developing pilots for employment with the certificate holder.

(h) CONSOLIDATION OF INFORMATION.—The Secretary shall provide, in a readily accessible web-based format, consolidated information on grants available under the pilot program established under this section.

(i) REPORT TO CONGRESS.—No later than 5 years after the establishment of the pilot program under this section, the Secretary shall submit a report (and provide a briefing) to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives on the progress of the pilot program under this section, including—

(1) any detailed metrics associated with the implementation of the pilot program;

(2) the resulting impact on the domestic regional carrier pilot workforce; and

(3) any related recommendations for future action to improve the recruitment and retention of pilots at domestic regional carriers.

(j) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section $21,000,000 for each of fiscal years 2024 through 2026, to remain available until expended.

SA 912. Mr. WARNER submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title V, insert the following:

SEC. _____. FOOD INSECURITY AMONG MEMBERS OF THE ARMED FORCES TRANSITIONING OUT OF ACTIVE DUTY SERVICE.

(a) STUDY; EDUCATION AND OUTREACH EFFORTS.—

(1) STUDY.—The Secretary of Defense shall, in conjunction with the Secretary of Veterans Affairs and other Federal officials, as appropriate, conduct a study to identify the means by which members of the Armed Forces are provided information about the availability of Federal nutrition assistance programs as they transition out of active duty service.

(2) EDUCATION AND OUTREACH EFFORTS.—The Secretary of Defense, working with the Secretary of Veterans Affairs and other Federal officials, as appropriate, shall increase education and outreach efforts to members of the Armed Forces who are transitioning out of active duty service, particularly those members identified as being at-risk for food insecurity, to increase awareness of the availability of Federal nutrition assistance programs and eligibility for those programs.

(3) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall—

(A) submit to the Committee on Armed Services of the Senate and the Committee on Armed Services of the House of Representatives a report on the results of the study conducted under paragraph (1); and

(B) publish such report on the website of the Department of Defense.

(b) WORKING GROUP.—

(1) IN GENERAL.—The Secretary of Defense, in consultation with the Secretary of Veterans Affairs and the Secretary of Agriculture, shall establish a working group to address, across the Department of Defense, the Department of Veterans Affairs, and the Department of Agriculture, coordination, data sharing, and evaluation efforts on underlying factors contributing to food insecurity among members of the Armed Forces transitioning out of active duty service, including estimates of future earnings of such members (in this subsection referred to as the ''working group'').

(2) MEMBERSHIP.—The working group be composed of—

(A) representatives from the Department of Defense, the Department of Veterans Affairs, the Department of Agriculture;

(B) other relevant Federal officials, including those connected to veteran transition programs; and

(C) other relevant stakeholders as determined by the Secretary of Defense, the Secretary of Veterans Affairs, and the Secretary of Agriculture.

(3) REPORT.—

(A) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the working group shall submit to each congressional committee with jurisdiction over the Department of Defense, the Department of Veterans Affairs, and the Department of Agriculture a report on the coordination, data sharing, and evaluation efforts described in paragraph (1).

(B) ELEMENTS.—The report required by paragraph (1) shall include the following:

(i) An accounting of the funding each department referred to in subparagraph (A) has obligated toward research relating to food insecurity among members of the Armed Forces or veterans.

(ii) An outline of methods of comparing programs and sharing best practices for addressing food insecurity by each such department.

(iii) An outline of—

(I) the plan each such department has to achieve greater government efficiency and cross-agency coordination, data sharing, and evaluation in addressing food insecurity among members transitioning out of the Armed Forces; and

(II) efforts that the departments can undertake to improve coordination to better address food insecurity as it impacts members during and after their active duty service.

(iv) An identification of—

(I) any legal, technological, or administrative barriers to increased coordination and data sharing in addressing food insecurity among members transitioning out of the Armed Forces; and

(II) any additional authorities needed to increase such coordination and data sharing.

(v) Any other information the Secretary of Defense, the Secretary of Veterans Affairs, or the Secretary of Agriculture determines to be appropriate.

SA 913. Mr. WARNER submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title II, insert the following:

SEC. 2___. REVIEW OF ARTIFICIAL INTELLIGENCE INVESTMENT.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall—

(1) review the current investment into applications of artificial intelligence to the platforms, processes, and operations of the Department of Defense; and

(2) categorize the types of artificial intelligence investments by categories including but not limited to the following:

(A) Automation.

(B) Machine learning.

(C) Autonomy.

(D) Robotics.

(E) Deep learning and neural network.

(F) Natural language processing.

(b) REPORT TO CONGRESS.—Not later than 120 days after the completion of the review and categorization required by subsection (a), the Secretary of Defense shall submit to the congressional defense committees a report on—

(1) the findings of the Secretary with respect to the review and any action taken or proposed to be taken by the Secretary to address such findings; and

(2) an evaluation of how the findings of the Secretary align with stated strategies of the Department of Defense with regard to artificial intelligence and performance objectives established in the Department of Defense Data, Analytics, and Artificial Intelligence Adoption Strategy.

SA 914. Mr. WARNER submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle F of title V, add the following:

SEC. 565. PROMOTION OF CERTAIN FOOD AND NUTRITION ASSISTANCE PROGRAMS.

(a) IN GENERAL.—Each Secretary concerned shall promote, to members of the Armed Forces under the jurisdiction of the Secretary, awareness of food and nutrition assistance programs administered by the Department of Defense.

(b) REPORTING.—Not later than one year after the date of the enactment of this Act, each Secretary concerned shall submit to the congressional defense committees a report summarizing activities taken by the Secretary to carry out subsection (a).

(c) SECRETARY CONCERNED DEFINED.—In this section, the term ''Secretary concerned'' has the meaning given that term in section 101 of title 10, United States Code.

SA 915. Mr. WARNER (for himself and Mr. BRAUN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. ___. RELEASE OF EDUCATION RECORDS TO FACILITATE THE AWARD OF A RECOGNIZED POSTSECONDARY CREDENTIAL.

Section 444(b)(1) of the General Education Provisions Act (20 U.S.C. 1232g(b)(1)) is amended—

(1) in subparagraph (K)(ii), by striking ''and'' after the semicolon;

(2) in subparagraph (L), by striking the period at the end and inserting ''; and'';

(3) by inserting after subparagraph (L) the following:

''(M) an institution of postsecondary education in which the student was previously enrolled, to which records of postsecondary coursework and credits completed by the student are disclosed for the purpose of applying such coursework and credits toward completion of a recognized postsecondary credential (as that term is defined in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102)).''; and

(4) by adding at the end of the flush matter at the end the following: ''An institution of postsecondary education in which a student was previously enrolled may not use disclosed records as described in subparagraph (M) to issue a student a recognized postsecondary credential unless the student provides such institution with the student's prior written consent to issue the student such credential.''.

SA 916. Mr. MORAN (for himself and Mr. WARNOCK) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. ACCESS TO COMMISSARY AND EXCHANGE PRIVILEGES FOR REMARRIED SPOUSES.

(a) BENEFITS.—Section 1062 of title 10, United States Code, is amended—

(1) by striking ''The Secretary of Defense'' and inserting the following:

''(a) CERTAIN UNREMARRIED FORMER SPOUSES.—The Secretary of Defense'';

(2) by striking ''commissary and exchange privileges'' and inserting ''use commissary stores and MWR retail facilities'';

(3) by adding at the end the following new subsection:

''(b) CERTAIN REMARRIED SURVIVING SPOUSES.—The Secretary of Defense shall prescribe such regulations as may be necessary to provide that a surviving spouse of a deceased member of the armed forces, regardless of the marital status of the surviving spouse, is entitled to use commissary stores and MWR retail facilities to the same extent and on the same basis as an unremarried surviving spouse of a member of the uniformed services.''; and

(4) by adding at the end the following new subsection:

''(c) MWR RETAIL FACILITIES DEFINED.—In this section, the term 'MWR retail facilities' has the meaning given that term in section 1063(e) of this title.''.

(b) CLERICAL AMENDMENTS.—

(1) SECTION HEADING.—The heading of section 1062 of title 10, United States Code, is amended to read as follows:

''§ 1062. Certain former spouses and surviving spouses''.

(2) TABLE OF SECTIONS.—The table of sections at the beginning of chapter 54 of title 10, United States Code, is amended by striking the item relating to section 1062 and inserting the following new item:

''1062. Certain former spouses and surviving spouses.''.

SA 917. Mr. GRAHAM (for himself and Mr. BLUMENTHAL) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle B of title XV, insert the following:

SEC. _____. MONITORING IRANIAN ENRICHMENT.

(a) SIGNIFICANT ENRICHMENT ACTIVITY DEFINED.—In this section, the term ''significant enrichment activity'' means—

(1) any enrichment of any amount of uranium–235 to a purity percentage that is 5 percent higher than the purity percentage indicated in the prior submission to Congress under subsection (b)(1); or

(2) any enrichment of uranium–235 in a quantity exceeding 10 kilograms.

(b) SUBMISSION TO CONGRESS.—

(1) IN GENERAL.—Not later than 48 hours after the Director of National Intelligence assesses that the Islamic Republic of Iran has produced or possesses any amount of uranium–235 enriched to greater than 60 percent purity or has engaged in significant enrichment activity, the Director of National Intelligence shall submit to Congress such assessment, consistent with the protection of intelligence sources and methods.

(2) DUPLICATION.—For any submission required by this subsection, the Director of National Intelligence may rely upon existing products that reflect the current analytic judgment of the intelligence community, including reports or products produced in response to congressional mandate or requests from executive branch officials.

SA 918. Mr. OSSOFF (for himself and Mr. ROUNDS) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title V, insert the following:

SEC. 5___. PROVISION OF FOOD ASSISTANCE PROGRAM INFORMATION AS PART OF TRANSITION ASSISTANCE PROGRAM.

Section 1142(b) of title 10, United States Code, is amended by adding at the end the following new paragraph:

''(20) Information, counseling, and application assistance, developed and provided in consultation with the Secretary of Agriculture, regarding Federal food and nutrition assistance programs, including the supplemental nutrition assistance program established under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.) and the special supplemental nutrition program for women, infants, and children established by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786).''.

SA 919. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title V, add the following:

SEC. 560A. INCLUSION OF INSTRUCTION REGARDING PREPARATION FOR AGRICULTURE IN TRANSITION ASSISTANCE PROGRAM.

Section 1144(f)(1)(D) of title 10, United States Code, is amended—

(1) by redesignating clause (v) as clause (vi); and

(2) by inserting after clause (iv) the following new clause (v):

''(v) Preparation for agriculture.''.

SA 920. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle B of title III, add the following:

SEC. 316. ADDITIONAL COST ANALYSIS REQUIRED RELATING TO LIMITATION ON REPLACEMENT OF NON-TACTICAL VEHICLE FLEET OF DEPARTMENT OF DEFENSE WITH CERTAIN ELECTRIC AND OTHER VEHICLES.

Section 328(b)(1) of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 2520) is amended—

(1) by redesignating subparagraphs (D) and (E) as subparagraphs (E) and (F), respectively; and

(2) by inserting after subparagraph (C) the following new subparagraph (D):

''(D) a cost analysis of replacing vehicles that are fueled by gasoline in the non-tactical vehicle fleet of the Department with vehicles fueled by a blend of gasoline and ethanol (commonly referred to as 'flex-fuel' vehicles).''.

SA 921. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. 1269. REPORT ON DEFENSE SUPPORT FOR TAIWAN.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of State, shall submit to the appropriate committees of Congress a report containing an evaluation of the Foreign Military Sales (FMS) processes across all military services for the provision of defense articles, defense services, and training to Taiwan pursuant to the Taiwan Relations Act (22 U.S.C. 3301 et seq.).

(b) MATTERS TO BE INCLUDED.—Such report shall contain the following:

(1) A description of price and availability data with respect to the provision of defense articles, defense services, and training requested by Taiwan during the two-year period preceding the date on which the report is submitted.

(2) A description of timelines from price and availability data requested to price and availability data provided to Taiwan of articles, services, and training described in paragraph (1), including an identification of the specific service lead associated with the provision of such articles, services, and training.

(3) A description of when articles, services, and training described in paragraph (1) were provided to the Department of State for FMS authorization.

(4) An evaluation of military training activities conducted with Taiwan during the two-year period preceding the date on which the report is submitted report, including—

(A) the objectives of such training activities;

(B) funding authority, unless national funds were applied; and

(C) an evaluation of the effectiveness of such training activities, including the strengths and weaknesses in Taiwan's capacity to absorb the training provided.

(5) A description of the articles, services, and training described in paragraph (1) planned to be provided to Taiwan during the one-year period after the period covered by the report.

(6) A description of the timeframe from Department of State authorization to Taiwan signature on the Letter of Offer and Acceptance of articles, services, and training described in paragraph (1) and information on delays in concluding a Letter of Offer and Acceptance.

(7) A description of timelines the Department of Defense took to work with United States industry in entering into contracts associated articles, services, and training described in paragraph (1), including a description of the average timeframes for Letters of Offer and Acceptance.

(8) A description of the timeliness of Department of Defense components' reporting of deliveries articles, services, and training described in paragraph (1).

(9) A description on cooperation across agencies in identifying priority articles, services, and training described in paragraph (1) and cooperation with United States industry to address delivery delays.

(10) An update on the Department of Defense's efforts to work with industry and the Defense Advanced Research Projects Agency to introduce innovative technology to the Department of Defense to address delivery delays resulting from supply chain issues and long-lead manufacturing timelines for articles, services, and training described in paragraph (1).

(c) FORM.—The report required by subsection (a) may include a classified annex.

(d) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on Armed Services and the Committee on Foreign Relations of the Senate; and

(2) the Committee on Armed Services and the Committee on Foreign Affairs of the House of Representatives.

SA 922. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. ___. WAR RESERVE STOCK PROGRAM FOR TAIWAN.

(a) IN GENERAL.—Notwithstanding section 514 of the Foreign Assistance Act of 1961 (22 U.S.C. 2321h), the President may transfer to Taiwan any or all of the items described in subsection (b).

(b) ITEMS DESCRIBED.—The items referred to in subsection (a) are armor, artillery, automatic weapons ammunition, missiles, and other munitions that—

(1) are obsolete or surplus items;

(2) are in the inventory of the Department of Defense;

(3) are intended for use as reserve stocks for Taiwan; and

(4) are located in a stockpile in Taiwan.

(c) CONGRESSIONAL NOTIFICATION.—Not later than 30 days before making a transfer under the authority of this section, the President shall transmit a notification of the proposed transfer to the Committee on Foreign Relations and the Committee on Armed Services of the Senate and the Committee on Foreign Affairs and the Committee on Armed Services of the House of Representatives. The notification shall identify the items to be transferred and the concessions to be received.

SA 923. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. 1269. REPORT ON JOINT POLICE PATROL ACTIVITIES OF CHINA.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, in consultation with the Secretary of State, the Secretary of Homeland Security, the Director of National Intelligence, and the Director of the Federal Bureau of Investigation, shall submit to the appropriate congressional committees a report that includes—

(1) a comprehensive assessment of government, military, security, and police entities directly or indirectly funded by the national or any subnational government of the People's Republic of China or the Chinese Communist Party that support or participate in any activities undertaken by illicit Overseas Chinese Service Centers;

(2) a list of all countries that conduct joint police patrols, host law enforcement training or exchanges, or have concluded binding internal security agreements with the national or any subnational government of the People's Republic of China or the Chinese Communist Party;

(3) an assessment of the risks such training, exchanges, agreements, initiatives, or centers pose to United States national security interests and personnel in those countries; and

(4) a description of United States Government policies and measures, including engagements with foreign governments on law enforcement training or exchanges, joint police patrols, or working with civil society organizations to identify illicit Overseas Chinese Service Centers, adopted to reduce such risks.

(b) FORM.—The report required by subsection (a)—

(1) shall be submitted in unclassified form but may contain a classified annex; and

(2) shall be made publicly available, other than the classified annex portion of the report.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Relations, the Committee on Armed Services, the Committee on Homeland Security and Governmental Affairs, the Committee on the Judiciary, and the Select Committee on Intelligence of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Armed Services, the Committee on Homeland Security, the Committee on the Judiciary, and the Permanent Select Committee on Intelligence of the House of Representatives.

SA 924. Mr. RICKETTS submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title XII, add the following:

SEC. 1269. MODIFICATION OF ANNUAL REPORT ON MILITARY AND SECURITY DEVELOPMENTS INVOLVING THE PEOPLE'S REPUBLIC OF CHINA.

Subparagraph (C) of section 1202(b)(3) of the National Defense Authorization Act for Fiscal Year 2000 (10 U.S.C. 113 note) is amended to read as follows:

''(C) With respect to security and military matters, relations between—

''(i) the People's Republic of China and the Russian Federation, including—

''(I) lessons learned by the People's Republic of China from the Russian Federation with respect to security and military matters;

''(II) the People's Republic of China support for the invasion of Ukraine by the Russian Federation; and

''(III) any arms or related materiel or dual-use goods, services, or technology the People's Republic of China otherwise exports to the Russian Federation for use in weapons systems in Ukraine; and

''(ii) the People's Republic of China and Iran.''.

SA 925. Mr. TESTER (for himself and Mr. ROUNDS) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, insert the following:

SEC. 1083. REVIEW OF AGRICULTURE-RELATED TRANSACTIONS BY COMMITTEE ON FOREIGN INVESTMENT IN THE UNITED STATES.

Section 721 of the Defense Production Act of 1950 (50 U.S.C. 4565) is amended—

(1) in subsection (a)—

(A) in paragraph (4)—

(i) in subparagraph (A)—

(I) in clause (i), by striking ''; and'' and inserting a semicolon;

(II) in clause (ii), by striking the period at the end and inserting ''; and''; and

(III) by adding at the end the following:

''(iii) any transaction described in clause (vi) or (vii) of subparagraph (B) proposed or pending on or after the date of the enactment of this clause.'';

(ii) in subparagraph (B), by adding at the end the following:

''(vi) Any other investment, subject to regulations prescribed under subparagraphs (D) and (E), by a foreign person in any unaffiliated United States business that is engaged in agriculture or biotechnology related to agriculture.

''(vii) Subject to subparagraphs (C) and (E), the purchase or lease by, or a concession to, a foreign person of private real estate that is—

''(I) located in the United States;

''(II) used in agriculture; and

''(III) more than 320 acres or valued in excess of $5,000,000.'';

(iii) in subparagraph (C)(i), by striking ''subparagraph (B)(ii)'' and inserting ''clause (ii) or (vii) of subparagraph (B)'';

(iv) in subparagraph (D)—

(I) in clause (i), by striking ''subparagraph (B)(iii)'' and inserting ''clauses (iii) and (vi) of subparagraph (B)'';

(II) in clause (iii)(I), by striking ''subparagraph (B)(iii)'' and inserting ''clauses (iii) and (vi) of subparagraph (B)'';

(III) in clause (iv)(I), by striking ''subparagraph (B)(iii)'' each place it appears and inserting ''clauses (iii) and (vi) of subparagraph (B)''; and

(IV) in clause (v), by striking ''subparagraph (B)(iii)'' and inserting ''clauses (iii) and (vi) of subparagraph (B)''; and

(v) in subparagraph (E), by striking ''clauses (ii) and (iii)'' and inserting ''clauses (ii), (iii), (iv), and (vii)''; and

(B) by adding at the end the following:

''(14) AGRICULTURE.—The term 'agriculture' has the meaning given such term in section 3 of the Fair Labor Standards Act of 1938 (29 U.S.C. 203).'';

(2) in subsection (k)(2)—

(A) by redesignating subparagraphs (H), (I), and (J), as subparagraphs (I), (J), and (K), respectively; and

(B) inserting after subparagraph (G) the following new subparagraph:

''(H) The Secretary of Agriculture (nonvoting, ex officio).''; and

(3) by adding at the end the following:

''(r) PROHIBITION WITH RESPECT TO AGRICULTURAL COMPANIES AND REAL ESTATE.—

''(1) IN GENERAL.—Notwithstanding any other provision of this section, if the Committee, in conducting a review and investigation under this section, determines that a transaction described in clause (i), (vi), or (vii) of subsection (a)(4)(B) would result in control by a covered foreign person of or investment by a covered foreign person in a United States business engaged in agriculture or private real estate used in agriculture, the President shall prohibit such transaction.

''(2) WAIVER.—The President may waive, on a case-by-case basis, the requirement to prohibit a transaction under paragraph (1), not less than 30 days after the President determines and reports to the relevant committees of jurisdiction that it is vital to the national security interests of the United States to waive such prohibition.

''(3) DEFINED TERMS.—In this subsection:

''(A) COVERED PERSON.—

''(i) IN GENERAL.—Except as provided by clause (ii), the term 'covered person'—

''(I) has the meaning given the term 'a person owned by, controlled by, or subject to the jurisdiction or direction of a foreign adversary' in section 7.2 of title 15, Code of Federal Regulations (as in effect on the date of the enactment of the National Defense Authorization Act for Fiscal Year 2024), except that each reference to 'foreign adversary' in that definition shall be deemed to be a reference to the government of a covered country; and

''(II) includes an entity that—

''(aa) is registered in or organized under the laws of a covered country;

''(bb) has a principal place of business in a covered country; or

''(cc) has a subsidiary with a principal place of business in a covered country.

''(ii) EXCLUSIONS.—The term 'covered person' does not include a United States citizen or an alien lawfully admitted for permanent residence to the United States.

''(B) COVERED COUNTRY.—The term 'covered country' means any of the following:

''(i) The People's Republic of China.

''(ii) The Russian Federation.

''(iii) The Islamic Republic of Iran.

''(iv) The Democratic People's Republic of Korea.''.

SA 926. Mr. CRUZ (for himself, Mr. MANCHIN, Ms. ERNST, and Mr. FETTERMAN) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle D of title XXXI, insert the following:

SEC. 31_____. PROHIBITION ON SALES OF PETROLEUM PRODUCTS FROM THE STRATEGIC PETROLEUM RESERVE TO CERTAIN COUNTRIES.

(a) PROHIBITIONS.—Notwithstanding any other provision of law, unless a waiver has been issued under subsection (b), the Secretary of Energy shall not draw down and sell petroleum products from the Strategic Petroleum Reserve—

(1) to any entity that is under the ownership or control of the Chinese Communist Party, the People's Republic of China, the Russian Federation, the Democratic People's Republic of Korea, or the Islamic Republic of Iran; or

(2) except on the condition that such petroleum products will not be exported to the People's Republic of China, the Russian Federation, the Democratic People's Republic of Korea, or the Islamic Republic of Iran.

(b) WAIVER.—

(1) IN GENERAL.—On application by a bidder, the Secretary of Energy may waive, prior to the date of the applicable auction, the prohibitions described in subsection (a) with respect to the sale of crude oil to that bidder at that auction.

(2) REQUIREMENT.—The Secretary of Energy may issue a waiver under this subsection only if the Secretary determines that the waiver is in the interest of the national security of the United States.

(3) APPLICATIONS.—A bidder seeking a waiver under this subsection shall submit to

the Secretary of Energy an application by such date, in such form, and containing such information as the Secretary of Energy may require.

(4) NOTICE TO CONGRESS.—Not later than 15 days after issuing a waiver under this subsection, the Secretary of Energy shall provide a copy of the waiver to the Committee on Energy and Natural Resources of the Senate and the Committee on Energy and Commerce of the House of Representatives.

SA 927. Mr. COTTON submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PROHIBITION ON IMPLEMENTATION OF RECOMMENDATIONS RELATED TO THE RENAMING OF ITEMS IN ARLINGTON NATIONAL CEMETERY.

The Secretary of Defense may not take any action to implement any recommendation of the commission established under section 370 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (10 U.S.C. 113 note; Public Law 116–283) that concerns any item within the grounds of Arlington National Cemetery, Virginia.

SA 928. Mrs. SHAHEEN (for herself and Mr. GRAHAM) submitted an amendment intended to be proposed by her to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle B of title XII, add the following:

SEC. 1225. MODIFICATION OF ESTABLISHMENT OF COORDINATOR FOR DETAINED ISIS MEMBERS AND RELEVANT POPULATIONS IN SYRIA.

(a) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Armed Services, the Committee on Foreign Relations, the Committee on the Judiciary, the Committee on Banking, Housing, and Urban Affairs, the Select Committee on Intelligence, and the Committee on Appropriations of the Senate; and

(B) the Committee on Armed Services, the Committee on Foreign Affairs, the Committee on the Judiciary, the Committee on Financial Services, the Permanent Select Committee on Intelligence, and the Committee on Appropriations of the House of Representatives.

(2) ISIS MEMBER.—The term ''ISIS member'' means a person who was part of, or substantially supported, the Islamic State in Iraq and Syria.

(3) SENIOR COORDINATOR.—The term ''Senior Coordinator'' means the coordinator for detained ISIS members and relevant displaced populations in Syria designated under subsection (a) of section 1224 of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1642), as amended by subsection (d).

(b) SENSE OF CONGRESS.—

It is the sense of Congress that—

(A) ISIS detainees held by the Syrian Democratic Forces and ISIS-affiliated individuals located within displaced persons camps in Syria pose a significant and growing humanitarian challenge and security threat to the region;

(B) the vast majority of individuals held in displaced persons camps in Syria are women and children, approximately 50 percent of whom are under the age of 12 at the al-Hol camp, and they face significant threats of violence and radicalization, as well as lacking access to adequate sanitation and health care facilities;

(C) there is an urgent need to seek a sustainable solution to such camps through repatriation and reintegration of the inhabitants;

(D) the United States should work closely with international allies and partners to facilitate the repatriation and reintegration efforts required to provide a long-term solution for such camps and prevent the resurgence of ISIS; and

(E) if left unaddressed, such camps will continue to be drivers of instability that jeopardize the long-term prospects for peace and stability in the region.

(c) STATEMENT OF POLICY.—It is the policy of the United States that—

(1) ISIS-affiliated individuals located within displacement camps in Syria, and other inhabitants of displacement camps in Syria, be repatriated and, where appropriate, prosecuted, or where possible, reintegrated into their country of origin, consistent with all relevant domestic laws and applicable international laws prohibiting refoulement; and

(2) the camps will be closed as soon as is practicable.

(d) MODIFICATION OF ESTABLISHMENT OF COORDINATOR FOR DETAINED ISIS MEMBERS AND RELEVANT DISPLACED POPULATIONS IN SYRIA.—Section 1224 of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92; 133 Stat. 1642) is amended—

(1) by striking subsection (a);

(2) by amending subsection (b) to read as follows:

''(a) DESIGNATION.—

''(1) IN GENERAL.—The President, in consultation with the Secretary of Defense, the Secretary of State, the Director of National Intelligence, the Secretary of the Treasury, the Administrator of the United States Agency for International Development, and the Attorney General, shall designate an existing official to serve within the executive branch as senior-level coordinator to coordinate, in conjunction with other relevant agencies, matters related to ISIS members who are in the custody of the Syrian Democratic Forces and other relevant displaced populations in Syria, including—

''(A) by engaging foreign partners to support the repatriation and disposition of such individuals, including by encouraging foreign partners to repatriate, transfer, investigate, and prosecute such ISIS members, and share information;

''(B) coordination of all multilateral and international engagements led by the Department of State and other agencies that are related to the current and future handling, detention, and prosecution of such ISIS members;

''(C) the funding and coordination of the provision of technical and other assistance to foreign countries to aid in the successful investigation and prosecution of such ISIS members, as appropriate, in accordance with relevant domestic laws, international humanitarian law, and other internationally recognized human rights and rule of law standards;

''(D) coordination of all multilateral and international engagements related to humanitarian access and provision of basic services to, and freedom of movement and security and safe return of, displaced persons at camps or facilities in Syria that hold family members of such ISIS members;

''(E) coordination with relevant agencies on matters described in this section; and

''(F) any other matter the President considers relevant.

''(2) RULE OF CONSTRUCTION.—If, on the date of the enactment of the National Defense Authorization Act for Fiscal Year 2024, an individual has already been designated, consistent with the requirements and responsibilities described in paragraph (1), the requirements under that paragraph shall be considered to be satisfied with respect to such individual until the date on which such individual no longer serves as the Senior Coordinator.'';

(3) in subsection (c), by striking ''subsection (b)'' and inserting ''subsection (a)'';

(4) in subsection (d), by striking ''subsection (b)'' and inserting ''subsection (a)'';

(5) in subsection (e), by striking ''January 31, 2021'' and inserting ''January 31, 2025'';

(6) in subsection (f)—

(A) by redesignating paragraph (2) as paragraph (3);

(B) by inserting after paragraph (1) the following new paragraph (2):

''(2) SENIOR COORDINATOR.—The term 'Senior Coordinator' means the individual designated under subsection (a).''; and

(C) by adding at the end the following new paragraph:

''(4) RELEVANT AGENCIES.—The term 'relevant agencies' means—

''(A) the Department of State;

''(B) the Department of Defense;

''(C) the Department of the Treasury;

''(D) the Department of Justice;

''(E) the United States Agency for International Development;

''(F) the Office of the Director of National Intelligence; and

''(G) any other agency the President considers relevant.''; and

(7) by redesignating subsections (c) through (f) as subsections (b) through (e), respectively.

(e) STRATEGY ON ISIS-RELATED DETAINEE AND DISPLACEMENT CAMPS IN SYRIA.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of State, in coordination with the Secretary of Defense, the Director of National Intelligence, the Secretary of the Treasury, the Administrator of the United States Agency for International Development, and the Attorney General, shall submit to the appropriate committees of Congress an interagency strategy with respect to ISIS-affiliated individuals and ISIS-related detainee and other displaced persons camps in Syria.

(2) ELEMENTS.—The strategy required by paragraph (1) shall include—

(A) methods to address—

(i) disengagement from and prevention of recruitment into violence, violent extremism, and other illicit activity in such camps;

(ii) efforts to encourage and facilitate repatriation and, as appropriate, investigation and prosecution of foreign nationals from such camps, consistent with all relevant domestic and applicable international laws;

(iii) the return and reintegration of displaced Syrian and Iraqi women and children into their communities of origin;

(iv) international engagement to develop processes for repatriation and reintegration of foreign nationals from such camps;

(v) contingency plans for the relocation of detained and displaced persons who are not able to be repatriated from such camps;

(vi) efforts to improve the humanitarian conditions in such camps, including through the delivery of medicine, psychosocial support, clothing, education, and improved housing; and

(vii) assessed humanitarian and security needs of all camps and detainment facilities based on prioritization of such camps and facilities most at risk of humanitarian crises, external attacks, or internal violence;

(B) an assessment of—

(i) rehabilitation centers in northeast Syria, including humanitarian conditions and processes for admittance and efforts to improve both humanitarian conditions and admittance processes for such centers and camps, as well as on the prevention of youth radicalization; and

(ii) processes for being sent to, and resources directed towards, rehabilitation centers and programs in countries that receive returned ISIS affiliated individuals, with a focus on the prevention of radicalization of minor children;

(C) a plan to improve, in such camps—

(i) security conditions, including by training of personnel and through construction; and

(ii) humanitarian conditions;

(D) a framework for measuring progress of humanitarian, security, and repatriation efforts with the goal of closing such camps; and

(E) any other matter the Secretary of State considers appropriate.

(3) FORM.—The strategy required by paragraph (1) shall be submitted in unclassified form but may include a classified annex that is transmitted separately.

(f) ANNUAL INTERAGENCY REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and not less frequently than annually thereafter through January 31, 2025, the Senior Coordinator, in coordination with the relevant agencies, shall submit to the appropriate committees of Congress a detailed report that includes the following:

(A) A detailed description of the facilities and camps where detained ISIS members, and families with perceived ISIS affiliation, are being held and housed, including—

(i) a description of the security and management of such facilities and camps;

(ii) an assessment of resources required for the security of such facilities and camps;

(iii) an assessment of the adherence by the operators of such facilities and camps to international humanitarian law standards; and

(iv) an assessment of children held within such facilities and camps that may be used as part of smuggling operations to evade security at the facilities and camps.

(B) A description of all efforts undertaken by, and the resources needed for, the United States Government to address deficits in the humanitarian environment and security of such facilities and camps.

(C) A description of all multilateral and international engagements related to humanitarian access and provision of basic services to, and freedom of movement and security and safe return of, displaced persons at camps or facilities in Iraq, Syria, and any other area affected by ISIS activity, including a description of—

(i) support for efforts by the Syrian Democratic Forces to facilitate the return and reintegration of displaced people from Iraq and Syria;

(ii) repatriation efforts with respect to displaced women and children and male children aging into adults while held in these facilities and camps;

(iii) any current or future potential threat to United States national security interests posed by detained ISIS members or displaced families, including an analysis of the al-Hol camp and annexes; and

(iv) United States Government plans and strategies to respond to any threat identified under clause (iii).

(D) The number of individuals repatriated from the custody of the Syrian Democratic Forces.

(E) An analysis of factors on the ground in Syria and Iraq that may result in the unintended release of detained or displaced ISIS members, and an assessment of any measures available to mitigate such releases.

(F) A detailed description of efforts to encourage the final disposition and security of detained or displaced ISIS members with other countries and international organizations.

(G) A description of foreign repatriation and rehabilitation programs deemed successful systems to model, and an analysis of the long-term results of such programs.

(H) A description of the manner in which the United States Government communicates regarding repatriation and disposition efforts with the families of United States citizens believed to have been victims of a criminal act by a detained or displaced ISIS member, in accordance with section 503(c) of the Victims' Rights and Restitution Act of 1990 (34 U.S.C. 20141(c)) and section 3771 of title 18, United States Code.

(I) An analysis of all efforts between the United States and partner countries within the Global Coalition to Defeat ISIS or other countries to share related information that may aid in resolving the final disposition of ISIS members, and any obstacles that may hinder such efforts.

(J) Any other matter the Coordinator considers appropriate.

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form but may include a classified annex that is transmitted separately.

(g) RULE OF CONSTRUCTION.—Nothing in this section, or an amendment made by this section, may be construed—

(1) to limit the authority of any Federal agency to independently carry out the authorized functions of such agency; or

(2) to impair or otherwise affect the activities performed by that agency as granted by law.

SA 929. Mr. MURPHY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title XII, insert the following:

SEC. _____. MODIFICATION OF TERMINATION DATE OF GLOBAL ENGAGEMENT CENTER.

Section 1287(j) of the National Defense Authorization Act for Fiscal Year 2017 (22 U.S.C. 4 2656 note; Public Law 114–328) is amended by striking ''on the date that is 8 years after the date of the enactment of this Act'' and inserting ''on September 30, 2033''.

SA 930. Mr. MURPHY submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in subtitle G of title X, insert the following:

SEC. _____. ESTABLISHMENT OF OFFICE OF THE SPECIAL REPRESENTATIVE FOR CITY AND STATE DIPLOMACY.

Section 1 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2651a) is amended by adding at the end the following new subsection:

''(n) OFFICE OF SPECIAL REPRESENTATIVE FOR CITY AND STATE DIPLOMACY.—

''(1) IN GENERAL.—There is established within the Office of Global Partnerships of the Department of State an Office of the Special Representative for City and State Diplomacy (in this subsection referred to as the 'Office').

''(2) HEAD.—The head of the Office shall be the Special Representative for City and State Diplomacy, who shall be responsible for developing strategies to advise and enhance subnational diplomacy throughout the United States.

''(3) DUTIES.—

''(A) PRINCIPAL DUTY.—The principal duty of the Special Representative shall be providing the overall strategic guidance of Department of State support for subnational engagements by State and municipal governments with foreign governments. The Special Representative shall be the principal adviser to the Secretary of State on subnational engagements, the principal official on such matters within the senior management of the Department of State, and lead coordinator on such matters for other relevant Federal agencies.

''(B) ADDITIONAL DUTIES.—The additional duties of the Special Representative shall include the following:

''(i) Providing strategic guidance for overall Department of State policy and programs in support of subnational engagements by State and municipal governments with foreign governments, including with respect to the following:

''(I) Identifying policy, program, and funding discrepancies among relevant Federal agencies regarding subnational diplomacy engagement.

''(II) Advising on efforts to better align the Department of State and other Federal agencies in support of such engagements.

''(ii) Identifying areas of alignment between United States foreign policy and State and municipal goals.

''(iii) Facilitating tools for State and municipal officials to communicate with the United States public regarding the breadth of international engagement by subnational actors and the impact of diplomacy across the United States.

''(iv) Facilitating linkages and networks among State and municipal governments, and between State and municipal governments and their foreign counterparts.

''(v) Under the direction of the Secretary, negotiating agreements and memoranda of understanding with foreign governments related to subnational engagements and priorities.

''(vi) Supporting United States economic interests through subnational engagements, in consultation and coordination with the Department of Commerce, the Department of the Treasury, and the Office of the United States Trade Representative.

''(4) COORDINATION.—With respect to matters involving trade promotion and inward investment facilitation, the Office shall coordinate with and support the International

Trade Administration of the Department of Commerce as the lead Federal agency for trade promotion and facilitation of business investment in the United States.

''(5) DETAILEES.—

''(A) IN GENERAL.—The Secretary of State, with respect to employees of the Department of State, is authorized to detail a member of the civil service or Foreign Service to State and municipal governments on a reimbursable or nonreimbursable basis. Such details shall be for a period not to exceed two years, and shall be without interruption or loss of status or privilege.

''(B) RESPONSIBILITIES.—Detailees under subparagraph (A) should carry out the following responsibilities:

''(i) Supporting the mission and objectives of the host subnational government office.

''(ii) Advising State and municipal government officials regarding questions of global affairs, foreign policy, cooperative agreements, and public diplomacy.

''(iii) Coordinating activities relating to State and municipal government subnational engagements with the Department of State, including the Office, Department leadership, and regional and functional bureaus of the Department, as appropriate.

''(iv) Engaging Federal agencies regarding security, public health, trade promotion, and other programs executed at the State or municipal government level.

''(v) Any other duties requested by State and municipal governments and approved by the Office.

''(C) ADDITIONAL PERSONNEL SUPPORT FOR SUBNATIONAL ENGAGEMENT.—For the purposes of this subsection, the Secretary of State—

''(i) is authorized to employ individuals by contract;

''(ii) is encouraged to make use of the rehired annuitants authority under section 3323 of title 5, United States Code, particularly for annuitants who are already residing across the United States who may have the skills and experience to support subnational governments; and

''(iii) is encouraged to make use of authorities under the Intergovernmental Personnel Act of 1970 (42 U.S.C. 4701 et seq.) to temporarily assign State and local government officials to the Department of State or overseas missions to increase their international experience and add their perspectives on United States priorities to the Department.

''(6) REPORT AND BRIEFING.—

''(A) REPORT.—Not later than one year after the date of the enactment of this subsection, the Special Representative shall submit to the Committee on Foreign Relations and the Committee on Appropriations of the Senate and the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives a report that includes information relating to the following:

''(i) The staffing plan (including permanent and temporary staff) for the Office and a justification for the location of the Office within the Department of State's organizational structure.

''(ii) The funding level provided to the Office for the Office, together with a justification relating to such level.

''(iii) The rank and title granted to the Special Representative, together with a justification relating to such decision and an analysis of whether the rank and title is required to fulfill the duties of the Office.

''(iv) A strategic plan for the Office, including relating to—

''(I) supporting subnational engagements to improve United States foreign policy effectiveness;

''(II) enhancing the awareness, understanding, and involvement of United States citizens in the foreign policy process; and

''(III) better engaging with foreign subnational governments to strengthen diplomacy.

''(v) Any other matters as determined relevant by the Special Representative.

''(B) BRIEFINGS.—Not later than 30 days after the submission of the report required under subparagraph (A) and annually thereafter, the Special Representative shall brief the Committee on Foreign Relations and the Committee on Appropriations of the Senate and the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives on the work of the Office and any changes made to the organizational structure or funding of the Office.

''(7) RULE OF CONSTRUCTION.—Nothing in this subsection may be construed as precluding—

''(A) the Office from being elevated to a bureau within the Department of State; or

''(B) the Special Representative from being elevated to an Assistant Secretary, if such an Assistant Secretary position does not increase the number of Assistant Secretary positions at the Department above the number authorized under subsection (c)(1).

''(8) DEFINITIONS.—In this subsection:

''(A) MUNICIPAL.—The term 'municipal' means, with respect to the government of a municipality in the United States, a municipality with a population of not fewer than 100,000 people.

''(B) STATE.—The term 'State' means the 50 States, the District of Columbia, and any territory or possession of the United States.

''(C) SUBNATIONAL ENGAGEMENT.—The term 'subnational engagement' means formal meetings or events between elected officials of State or municipal governments and their foreign counterparts.''.

SA 931. Mr. CORNYN (for himself, Mr. CASEY, Mr. SULLIVAN, Ms. STABENOW, Mr. CRAMER, Mr. FETTERMAN, and Mr. RICKETTS) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1083. PROTECTION OF COVERED SECTORS.

The Defense Production Act of 1950 (50 U.S.C. 4501 et seq.) is amended by adding at the end the following:

''TITLE VIII—PROTECTION OF COVERED SECTORS

''SEC. 801. DEFINITIONS.

''In this title:

''(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' means—

''(A) the Committee on Armed Services, the Committee on Finance, the Committee on Banking, Housing, and Urban Affairs, the Select Committee on Intelligence, and the Committee on Foreign Relations of the Senate; and

''(B) the Committee on Armed Services, the Committee on Ways and Means, the Committee on Financial Services, the Permanent Select Committee on Intelligence, and the Committee on Foreign Affairs of the House of Representatives.

''(2) COUNTRY OF CONCERN.—The term 'country of concern' means, subject to such regulations as may be prescribed in accordance with section 806, a country specified in section 4872(d)(2) of title 10, United States Code.

''(3) COVERED ACTIVITY.—

''(A) IN GENERAL.—Subject to such regulations as may be prescribed in accordance with section 806, and except as provided in subparagraph (B), the term 'covered activity' means any activity engaged in by a United States person in a related to a covered sector that involves—

''(i) an acquisition by such United States person of an equity interest or contingent equity interest, or monetary capital contribution, in a covered foreign entity, directly or indirectly, by contractual commitment or otherwise, with the goal of generating income or gain;

''(ii) an arrangement for an interest held by such United States person in the short- or long-term debt obligations of a covered foreign entity that includes governance rights that are characteristic of an equity investment, management, or other important rights, as defined in regulations prescribed in accordance with section 806;

''(iii) the establishment of a wholly owned subsidiary in a country of concern, such as a greenfield investment, for the purpose of production, design, testing, manufacturing, fabrication, or development related to one or more covered sectors;

''(iv) the establishment by such United States person of a joint venture in a country of concern or with a covered foreign entity for the purpose of production, design, testing, manufacturing, fabrication, or research involving one or more covered sectors, or other contractual or other commitments involving a covered foreign entity to jointly research and develop new innovation, including through the transfer of capital or intellectual property or other business proprietary information; or

''(v) the acquisition by a United States person with a covered foreign entity of—

''(I) operational cooperation, such as through supply or support arrangements;

''(II) the right to board representation (as an observer, even if limited, or as a member) or an executive role (as may be defined through regulation) in a covered foreign entity;

''(III) the ability to direct or influence such operational decisions as may be defined through such regulations;

''(IV) formal governance representation in any operating affiliate, like a portfolio company, of a covered foreign entity; or

''(V) a new relationship to share or provide business services, such as but not limited to financial services, marketing services, maintenance, or assembly functions, related to a covered sectors.

''(B) EXCEPTIONS.—The term 'covered activity' does not include—

''(i) any transaction the value of which the Secretary of the Treasury determines is de minimis, as defined in regulations prescribed in accordance with section 806;

''(ii) any category of transactions that the Secretary determines is in the national interest of the United States, as may be defined in regulations prescribed in accordance with section 806; or

''(iii) any ordinary or administrative business transaction as may be defined in such regulations.

''(4) COVERED FOREIGN ENTITY.—

''(A) IN GENERAL.—Subject to regulations prescribed in accordance with section 806, and except as provided in subparagraph (B), the term 'covered foreign entity' means—

''(i) any entity that is incorporated in, has a principal place of business in, or is organized under the laws of a country of concern;

''(ii) any entity the equity securities of which are primarily traded in the ordinary

course of business on one or more exchanges in a country of concern;

''(iii) any entity in which any entity described in subclause (i) or (ii) holds, individually or in the aggregate, directly or indirectly, an ownership interest of greater than 50 percent; or

''(iv) any other entity that is not a United States person and that meets such criteria as may be specified by the Secretary of the Treasury in such regulations.

''(B) EXCEPTION.—The term 'covered foreign entity' does not include any entity described in subparagraph (A) that can demonstrate that a majority of the equity interest in the entity is ultimately owned by—

''(i) nationals of the United States; or

''(ii) nationals of such countries (other than countries of concern) as are identified for purposes of this subparagraph pursuant to regulations prescribed in accordance with section 806.

''(5) COVERED SECTORS.—Subject to regulations prescribed in accordance with section 806, the term 'covered sectors' includes sectors within the following areas, as specified in such regulations:

''(A) Advanced semiconductors and microelectronics.

''(B) Artificial intelligence.

''(C) Quantum information science and technology.

''(D) Hypersonics.

''(E) Satellite-based communications.

''(F) Networked laser scanning systems with dual-use applications.

''(6) PARTY.—The term 'party', with respect to an activity, has the meaning given that term in regulations prescribed in accordance with section 806.

''(7) UNITED STATES.—The term 'United States' means the several States, the District of Columbia, and any territory or possession of the United States.

''(8) UNITED STATES PERSON.—The term 'United States person' means—

''(A) an individual who is a citizen or national of the United States or an alien lawfully admitted for permanent residence in the United States; and

''(B) any corporation, partnership, or other entity organized under the laws of the United States or the laws of any jurisdiction within the United States.

''SEC. 802. ADMINISTRATION OF UNITED STATES INVESTMENT NOTIFICATION.

''(a) IN GENERAL.—The President shall delegate the authorities and functions under this title to the Secretary of the Treasury.

''(b) COORDINATION.—In carrying out the duties of the Secretary under this title, the Secretary shall—

''(1) coordinate with the Secretary of Commerce; and

''(2) consult with the United States Trade Representative, the Secretary of Defense, the Secretary of State, and the Director of National Intelligence.

''SEC. 803. MANDATORY NOTIFICATION OF COVERED ACTIVITIES.

''(a) MANDATORY NOTIFICATION.—

''(1) IN GENERAL.—Subject to regulations prescribed in accordance with section 806, beginning on the date that is 90 days after such regulations take effect, a United States person that plans to engage in a covered activity shall—

''(A) if such covered activity is not a secured transaction, submit to the Secretary of the Treasury a complete written notification of the activity not later than 14 days before the anticipated completion date of the activity; and

''(B) if such covered activity is a secured transaction, submit to the Secretary of the Treasury a complete written notification of the activity not later than 14 days after the completion date of the activity.

''(2) CIRCULATION OF NOTIFICATION.—

''(A) IN GENERAL.—The Secretary shall, upon receipt of a notification under paragraph (1), promptly inspect the notification for completeness.

''(B) INCOMPLETE NOTIFICATIONS.—If a notification submitted under paragraph (1) is incomplete, the Secretary shall promptly inform the United States person that submits the notification that the notification is not complete and provide an explanation of relevant material respects in which the notification is not complete.

''(3) IDENTIFICATION OF NON-NOTIFIED ACTIVITY.—The Secretary shall establish a process to identify covered activity for which—

''(A) a notification is not submitted to the Secretary under paragraph (1); and

''(B) information is reasonably available.

''(b) CONFIDENTIALITY OF INFORMATION.—

''(1) IN GENERAL.—Except as provided in paragraph (2), any information or documentary material filed with the Secretary of the Treasury pursuant to this section shall be exempt from disclosure under section 552 of title 5, United States Code, and no such information or documentary material may be made public by any government agency or Member of Congress.

''(2) EXCEPTIONS.—The exemption from disclosure provided by paragraph (1) shall not prevent the disclosure of the following:

''(A) Information relevant to any administrative or judicial action or proceeding.

''(B) Information provided to Congress or any of the appropriate congressional committees.

''(C) Information important to the national security analysis or actions of the President to any domestic governmental entity, or to any foreign governmental entity of an ally or partner of the United States, under the direction and authorization of the President or the Secretary, only to the extent necessary for national security purposes, and subject to appropriate confidentiality and classification requirements.

''(D) Information that the parties have consented to be disclosed to third parties.

''SEC. 804. REPORTING REQUIREMENTS.

''(a) IN GENERAL.—Not later than 360 days after the date on which the regulations prescribed under section 806 take effect, and not less frequently than annually thereafter, the Secretary of the Treasury shall submit to the appropriate congressional committees a report that—

''(1) lists all notifications submitted under section 803(a) during the year preceding submission of the report and includes, with respect to each such notification—

''(A) basic information on each party to the covered activity with respect to which the notification was submitted; and

''(B) the nature of the covered activity that was the subject to the notification, including the elements of the covered activity that necessitated a notification;

''(2) includes a summary of those notifications, disaggregated by sector, by covered activity, and by country of concern;

''(3) provides additional context and information regarding trends in the sectors, the types of covered activities, and the countries involved in those notifications;

''(4) includes a description of the national security risks associated with—

''(A) the covered activities with respect to which those notifications were submitted; or

''(B) categories of such activities; and

''(5) assesses the overall impact of those notifications, including recommendations for—

''(A) expanding existing Federal programs to support the production or supply of covered sectors in the United States, including the potential of existing authorities to address any related national security concerns;

''(B) investments needed to enhance covered sectors and reduce dependence on countries of concern regarding those sectors; and

''(C) the continuation, expansion, or modification of the implementation and administration of this title, including recommendations with respect to whether the definition of 'country of concern' under section 801(2) should be amended to add or remove countries.

''(b) FORM OF REPORT.—Each report required by this section shall be submitted in unclassified form, but may include a classified annex.

''(c) TESTIMONY REQUIRED.—Not later than one year after the date of enactment of this title, and annually thereafter, the Secretary of the Treasury and the Secretary of Commerce shall each provide to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives testimony with respect to the national security threats relating to investments by the United States persons in countries of concern and broader international capital flows.

''SEC. 805. PENALTIES AND ENFORCEMENT.

''(a) PENALTIES WITH RESPECT TO UNLAWFUL ACTS.—Subject to regulations prescribed in accordance with section 806, it shall be unlawful—

''(1) to fail to submit a notification under subsection (a) of section 803 with respect to a covered activity or to submit other information as required by the Secretary of the Treasury; or

''(2) to make a material misstatement or to omit a material fact in any information submitted to the Secretary under this title.

''(b) ENFORCEMENT.—The President may direct the Attorney General to seek appropriate relief in the district courts of the United States, in order to implement and enforce this title.

''SEC. 806. REQUIREMENT FOR REGULATIONS.

''(a) IN GENERAL.—Not later than 360 days after the date of the enactment of this title, the Secretary of the Treasury shall finalize regulations to carry out this title.

''(b) ELEMENTS.—Regulations prescribed to carry out this title shall include specific examples of the types of—

''(1) activities that will be considered to be covered activities; and

''(2) the specific sectors and subsectors that may be considered to be covered sectors.

''(c) REQUIREMENTS FOR CERTAIN REGULATIONS.—The Secretary of the Treasury shall prescribe regulations further defining the terms used in this title, including 'covered activity', 'covered foreign entity', and 'party', in accordance with subchapter II of chapter 5 and chapter 7 of title 5 (commonly known as the 'Administrative Procedure Act').

''(d) PUBLIC PARTICIPATION IN RULEMAKING.—The provisions of section 709 shall apply to any regulations issued under this title.

''(e) LOW-BURDEN REGULATIONS.—In prescribing regulations under this section, the Secretary of the Treasury shall structure the regulations—

''(1) to minimize the cost and complexity of compliance for affected parties;.

''(2) to ensure the benefits of the regulations outweigh their costs;

''(3) to adopt the least burdensome alternative that achieves regulatory objectives;

''(4) to prioritize transparency and stakeholder involvement in the process of prescribing the regulations; and

''(5) to regularly review and streamline existing regulations to reduce redundancy and complexity.

''SEC. 807. MULTILATERAL ENGAGEMENT AND COORDINATION.

''(a) IN GENERAL.—The President shall delegate the authorities and functions under this section to the Secretary of State.

''(b) AUTHORITIES.—The Secretary of State, in coordination with the Secretary of the Treasury, the Secretary of Commerce, the United States Trade Representative, and the Director of National Intelligence, shall—

''(1) conduct bilateral and multilateral engagement with the governments of countries that are allies and partners of the United States to ensure coordination of protocols and procedures with respect to covered activities with countries of concern and covered foreign entities; and

''(2) upon adoption of protocols and procedures described in paragraph (1), work with those governments to establish mechanisms for sharing information, including trends, with respect to such activities.

''(c) STRATEGY FOR DEVELOPMENT OF OUTBOUND INVESTMENT SCREENING MECHANISMS.—The Secretary of State, in coordination with the Secretary of the Treasury and in consultation with the Attorney General, shall—

''(1) develop a strategy to work with countries that are allies and partners of the United States to develop mechanisms comparable to this title for the notification of covered activities; and

''(2) provide technical assistance to those countries with respect to the development of those mechanisms.

''(d) REPORT.—Not later than 90 days after the development of the strategy required by subsection (b), and annually thereafter for a period of 5 years, the Secretary of State shall submit to the appropriate congressional committees a report that includes the strategy, the status of implementing the strategy, and a description of any impediments to the establishment of mechanisms comparable to this title by allies and partners,

''SEC. 808. AUTHORIZATION OF APPROPRIATIONS.

''(a) IN GENERAL.—There are authorized to be appropriated such sums as may be necessary to carry out this title, including to provide outreach to industry and persons affected by this title.

''(b) HIRING AUTHORITY.—The head of any agency designated as a lead agency under section 802(b) may appoint, without regard to the provisions of sections 3309 through 3318 of title 5, United States Code, not more than 25 candidates directly to positions in the competitive service (as defined in section 2102 of that title) in that agency. The primary responsibility of individuals in positions authorized under the preceding sentence shall be to administer this title.

''SEC. 809. RULE OF CONSTRUCTION WITH RESPECT TO FREE AND FAIR COMMERCE.

''Nothing in this title may be construed to restrain or deter foreign investment in the United States, United States investment abroad, or trade in goods or services, if such investment and trade do not pose a risk to the national security of the United States.''.

SA 932. Mr. MENENDEZ (for himself and Mr. RISCH) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

DIVISION F—DEPARTMENT OF STATE AUTHORIZATION ACT OF 2023

SEC. 6001. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This division may be cited as the ''Department of State Authorization Act of 2023''.

(b) TABLE OF CONTENTS.—The table of contents for this division is as follows:

DIVISION F—DEPARTMENT OF STATE AUTHORIZATION ACT OF 2023

Sec. 6001. Short title; table of contents.
Sec. 6002. Definitions.

TITLE LXI—DIPLOMATIC SECURITY AND CONSULAR AFFAIRS

Sec. 6101. Special hiring authority for passport services.
Sec. 6102. Quarterly report on passport wait times.
Sec. 6103. Passport travel advisories.
Sec. 6104. Strategy to ensure access to passport services for all Americans.
Sec. 6105. Strengthening the National Passport Information Center.
Sec. 6106. Strengthening passport customer visibility and transparency.
Sec. 6107. Annual Office of Authentications report.
Sec. 6108. Increased accountability in assignment restrictions and reviews.
Sec. 6109. Suitability reviews for Foreign Service Institute instructors.
Sec. 6110. Diplomatic security fellowship programs.

TITLE LXII—PERSONNEL MATTERS

Subtitle A—Hiring, Promotion, and Development

Sec. 6201. Adjustment to promotion precepts.
Sec. 6202. Hiring authorities.
Sec. 6203. Extending paths to service for paid student interns.
Sec. 6204. Lateral Entry Program.
Sec. 6205. Mid-Career Mentoring Program.
Sec. 6206. Report on the Foreign Service Institute's language program .
Sec. 6207. Consideration of career civil servants as chiefs of missions.
Sec. 6208. Civil service rotational program.
Sec. 6209. Reporting requirement on chiefs of mission.
Sec. 6210. Report on chiefs of mission and deputy chiefs of mission.
Sec. 6211. Protection of retirement annuity for reemployment by Department.
Sec. 6212. Efforts to improve retention and prevent retaliation.
Sec. 6213. National advertising campaign.
Sec. 6214. Expansion of diplomats in residence programs.

Subtitle B—Pay, Benefits, and Workforce Matters

Sec. 6221. Education allowance.
Sec. 6222. Per diem allowance for newly hired members of the Foreign Service.
Sec. 6223. Improving mental health services for foreign and civil servants.
Sec. 6224. Emergency back-up care.
Sec. 6225. Authority to provide services to non-chief of mission personnel.
Sec. 6226. Exception for government-financed air transportation.
Sec. 6227. Enhanced authorities to protect locally employed staff during emergencies.
Sec. 6228. Internet at hardship posts.
Sec. 6229. Competitive local compensation plan.
Sec. 6230. Supporting tandem couples in the Foreign Service.
Sec. 6231. Accessibility at diplomatic missions.
Sec. 6232. Report on breastfeeding accommodations overseas.
Sec. 6233. Determining the effectiveness of knowledge transfers between Foreign Service Officers.
Sec. 6234. Education allowance for dependents of Department of State employees located in United States territories.

TITLE LXIII—INFORMATION SECURITY AND CYBER DIPLOMACY

Sec. 6301. Data-informed diplomacy.
Sec. 6302. Establishment and expansion of the Bureau Chief Data Officer Program.
Sec. 6303. Establishment of the Chief Artificial Intelligence Officer of the Department of State.
Sec. 6304. Strengthening the Chief Information Officer of the Department of State.
Sec. 6305. Sense of Congress on strengthening enterprise governance.
Sec. 6306. Digital connectivity and cybersecurity partnership.
Sec. 6307. Establishment of a cyberspace, digital connectivity, and related technologies (CDT) fund.
Sec. 6308. Cyber protection support for personnel of the Department of State in positions highly vulnerable to cyber attack.

TITLE LXIV—ORGANIZATION AND OPERATIONS

Sec. 6401. Personal services contractors.
Sec. 6402. Hard-to-fill posts.
Sec. 6403. Enhanced oversight of the Office of Civil Rights.
Sec. 6404. Crisis response operations.
Sec. 6405. Special Envoy to the Pacific Islands Forum.
Sec. 6406. Special Envoy for Belarus.
Sec. 6407. Overseas placement of special appointment positions.
Sec. 6408. Resources for United States nationals unlawfully or wrongfully detained abroad.

TITLE LXV—ECONOMIC DIPLOMACY

Sec. 6501. Report on recruitment, retention, and promotion of Foreign Service economic officers.
Sec. 6502. Mandate to revise Department of State metrics for successful economic and commercial diplomacy.
Sec. 6503. Chief of mission economic responsibilities.
Sec. 6504. Direction to embassy deal teams.
Sec. 6505. Establishment of a ''Deal Team of the Year'' award.

TITLE LXVI—PUBLIC DIPLOMACY

Sec. 6601. Public diplomacy outreach.
Sec. 6602. Modification on use of funds for Radio Free Europe/Radio Liberty.
Sec. 6603. International broadcasting.
Sec. 6604. John Lewis Civil Rights Fellowship program.
Sec. 6605. Domestic engagement and public affairs.
Sec. 6606. Extension of Global Engagement Center.
Sec. 6607. Paperwork Reduction Act.
Sec. 6608. Modernization and enhancement strategy.

TITLE LXVII—OTHER MATTERS

Sec. 6701. Internships of United States nationals at international organizations.
Sec. 6702. Training for international organizations.
Sec. 6703. Modification to transparency on international agreements and non-binding instruments.
Sec. 6704. Report on partner forces utilizing United States security assistance identified as using hunger as a weapon of war.

Sec. 6705. Infrastructure projects and investments by the United States and People's Republic of China.
Sec. 6706. Special envoys.
Sec. 6707. US-ASEAN Center.
Sec. 6708. Briefings on the United States-European Union Trade and Technology Council.
Sec. 6709. Modification and repeal of reports.
Sec. 6710. Modification of Build Act of 2018 to prioritize projects that advance national security.
Sec. 6711. Permitting for international bridges.

TITLE LXVIII—AUKUS MATTERS

Sec. 6801. Definitions.

Subtitle A—Outlining the AUKUS Partnership

Sec. 6811. Statement of policy on the AUKUS partnership.
Sec. 6812. Senior Advisor for the AUKUS partnership at the Department of State.

Subtitle B—Authorization for AUKUS Submarine Training

Sec. 6823. Australia, United Kingdom, and United States submarine security training.

Subtitle C—Streamlining and Protecting Transfers of United States Military Technology From Compromise

Sec. 6831. Priority for Australia and the United Kingdom in Foreign Military Sales and Direct Commercial Sales.
Sec. 6832. Identification and pre-clearance of platforms, technologies, and equipment for sale to Australia and the United Kingdom through Foreign Military Sales and Direct Commercial Sales.
Sec. 6833. Export control exemptions and standards.
Sec. 6834. Expedited review of export licenses for exports of advanced technologies to Australia, the United Kingdom, and Canada.
Sec. 6835. United States Munitions List.

Subtitle D—Other AUKUS Matters

Sec. 6841. Reporting related to the AUKUS partnership.

SEC. 6002. DEFINITIONS.

In this division:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives.

(2) DEPARTMENT.—The term ''Department'' means the Department of State.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of State.

TITLE LXI—DIPLOMATIC SECURITY AND CONSULAR AFFAIRS

SEC. 6101. SPECIAL HIRING AUTHORITY FOR PASSPORT SERVICES.

During the 3-year period beginning on the date of the enactment of this Act, the Secretary of State, without regard to the provisions under sections 3309 through 3318 of title 5, United States Code, may directly appoint up to 80 candidates to positions in the competitive service (as defined in section 2102 of such title) at the Department in the Passport and Visa Examining Series 0967.

SEC. 6102. QUARTERLY REPORT ON PASSPORT WAIT TIMES.

Not later than 30 days after the date of the enactment of this Act, and quarterly thereafter for the following 3 years, the Secretary shall submit a report to the appropriate congressional committees that describes—

(1) the current estimated wait times for passport processing;

(2) the steps that have been taken by the Department to reduce wait times to a reasonable time;

(3) efforts to improve the rollout of the online passport renewal processing program, including how much of passport revenues the Department is spending on consular systems modernization;

(4) the demand for urgent passport services by major metropolitan area;

(5) the steps that have been taken by the Department to reduce and meet the demand for urgent passport services, particularly in areas that are greater than 5 hours driving time from the nearest passport agency; and

(6) how the Department details its staff and resources to passport services programs.

SEC. 6103. PASSPORT TRAVEL ADVISORIES.

Not later than 180 days after the date of the enactment of this Act, the Department shall make prominently available in United States regular passports, on the first three pages of the passport, the following information:

(1) A prominent, clear advisory for all travelers to check travel.state.gov for updated travel warnings and advisories.

(2) A prominent, clear notice urging all travelers to register with the Department prior to overseas travel.

(3) A prominent, clear advisory—

(A) noting that many countries deny entry to travelers during the last 6 months of their passport validity period; and

(B) urging all travelers to renew their passport not later than 1 year prior to its expiration.

SEC. 6104. STRATEGY TO ENSURE ACCESS TO PASSPORT SERVICES FOR ALL AMERICANS.

Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a strategy to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives for ensuring reasonable access to passport services for all Americans, which shall include—

(1) a detailed strategy describing how the Department could—

(A) by not later than 1 year after submission of the strategy, reduce passport processing times to an acceptable average for renewals and for expedited service; and

(B) by not later than 2 years after the submission of the strategy, provide United States residents living in a significant population center more than a 5-hour drive from a passport agency with urgent, in-person passport services, including the possibility of building new passport agencies; and

(2) a description of the specific resources required to implement the strategy.

SEC. 6105. STRENGTHENING THE NATIONAL PASSPORT INFORMATION CENTER.

(a) SENSE OF CONGRESS.—It is the sense of Congress that passport wait times since 2021 have been unacceptably long and have created frustration among those seeking to obtain or renew passports.

(b) ONLINE CHAT FEATURE.—The Department should develop an online tool with the capability for customers to correspond with customer service representatives regarding questions and updates pertaining to their application for a passport or for the renewal of a passport.

(c) GAO REPORT.—Not later than 90 days after the date of the enactment of this Act, the Comptroller General of the United States shall initiate a review of NPIC operations, which shall include an analysis of the extent to which NPIC—

(1) responds to constituent inquiries by telephone, including how long constituents are kept on hold and their ability to be placed in a queue;

(2) provides personalized customer service;

(3) maintains its telecommunications infrastructure to ensure it effectively handles call volumes; and

(4) other relevant issues the Comptroller General deems appropriate.

SEC. 6106. STRENGTHENING PASSPORT CUSTOMER VISIBILITY AND TRANSPARENCY.

(a) ONLINE STATUS TOOL.—Not later than 2 years after the date of the enactment of this Act, the Department should modernize the online passport application status tool to include, to the greatest extent possible, step by step updates on the status of their application, including with respect to the following stages:

(1) Submitted for processing.

(2) In process at a lockbox facility.

(3) Awaiting adjudication.

(4) In process of adjudication.

(5) Adjudicated with a result of approval or denial.

(6) Materials shipped.

(b) ADDITIONAL INFORMATION.—The tool pursuant to subsection (a) should include a display that informs each passport applicant of—

(1) the date on which his or her passport application was received; and

(2) the estimated wait time remaining in the passport application process.

(c) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Assistant Secretary of State for Consular Affairs shall submit a report to the appropriate congressional committees that outlines a plan for coordinated comprehensive public outreach to increase public awareness and understanding of—

(1) the online status tool required under subsection (a);

(2) passport travel advisories required under section 6103; and

(3) passport wait times.

SEC. 6107. ANNUAL OFFICE OF AUTHENTICATIONS REPORT.

(a) REPORT.—The Assistant Secretary of State for Consular Affairs shall submit an annual report for 5 years to the appropriated congressional committees that describes—

(1) the number of incoming authentication requests, broken down by month and type of request, to show seasonal fluctuations in demand;

(2) the average time taken by the Office of Authentications of the Department of State to authenticate documents, broken down by month to show seasonal fluctuations in wait times;

(3) how the Department of State details staff to the Office of Authentications; and

(4) the impact that hiring additional, permanent, dedicated staff for the Office of Authentications would have on the processing times referred to in paragraph (2).

(b) AUTHORIZATION.—The Secretary of State is authorized to hire additional, permanent, dedicated staff for the Office of Authentications.

SEC. 6108. INCREASED ACCOUNTABILITY IN ASSIGNMENT RESTRICTIONS AND REVIEWS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the use of policies to restrict personnel from serving in certain assignments may undermine the Department's ability to deploy relevant cultural and linguistic skills at diplomatic posts abroad if not applied judiciously; and

(2) the Department should continuously evaluate all processes relating to assignment restrictions, assignment reviews, and preclusions at the Department.

(b) NOTIFICATION OF STATUS.—Beginning not later than 90 days after the date of the enactment of this Act, the Secretary shall—

(1) provide a status update for all Department personnel who, prior to such date of enactment, were subject to a prior assignment restriction, assignment review, or preclusion for whom a review or decision related to assignment is pending; and

(2) on an ongoing basis, provide a status update for any Department personnel who has been the subject of a pending assignment restriction or pending assignment review for more than 30 days.

(c) NOTIFICATION CONTENT.—The notification required under subsection (b) shall inform relevant personnel, as of the date of the notification—

(1) whether any prior assignment restriction has been lifted;

(2) if their assignment status is subject to ongoing review, and an estimated date for completion; and

(3) if they are subject to any other restrictions on their ability to serve at posts abroad.

(d) ADJUDICATION OF ONGOING ASSIGNMENT REVIEWS.—

(1) TIME LIMIT.—The Department shall establish a reasonable time limit for the Department to complete an assignment review and establish a deadline by which it must inform personnel of a decision related to such a review.

(2) APPEALS.—For any personnel the Department determines are ineligible to serve in an assignment due to an assignment restriction or assignment review, a Security Appeal Panel shall convene not later than 120 days of an appeal being filed.

(3) ENTRY-LEVEL BIDDING PROCESS.—The Department shall include a description of the assignment review process and critical human intelligence threat posts in a briefing to new officers as part of their entry-level bidding process.

(4) POINT OF CONTACT.—The Department shall designate point of contacts in the Bureau of Diplomatic Security and Bureau of Global Talent Management to answer employee and Career Development Officer questions about assignment restrictions, assignment reviews, and preclusions.

(e) SECURITY APPEAL PANEL.—Not later than 90 days after the date of the enactment of this Act, the Security Appeal Panel shall be comprised of—

(1) the head of an office responsible for human resources or discrimination who reports directly to the Secretary;

(2) the Principal Deputy Assistant Secretary for the Bureau of Global Talent Management;

(3) the Principal Deputy Assistant Secretary for the Bureau of Intelligence and Research;

(4) an Assistant Secretary or Deputy, or equivalent, from a third bureau as designated by the Under Secretary for Management;

(5) a representative from the geographic bureau to which the restriction applies; and

(6) a representative from the Office of the Legal Adviser and a representative from the Bureau of Diplomatic Security, who shall serve as non-voting advisors.

(f) APPEAL RIGHTS.—Section 414(a) of the Department of State Authorities Act, Fiscal Year 2017 (22 U.S.C. 2734c(a)) is amended by striking the first two sentences and inserting ''The Secretary shall establish and maintain a right and process for employees to appeal a decision related to an assignment, based on a restriction, review, or preclusion. Such right and process shall ensure that any such employee shall have the same appeal rights as provided by the Department regarding denial or revocation of a security clearance.''.

(g) FAM UPDATE.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall amend all relevant provisions of the Foreign Service Manual, and any associated or related policies of the Department, to comply with this section.

SEC. 6109. SUITABILITY REVIEWS FOR FOREIGN SERVICE INSTITUTE INSTRUCTORS.

The Secretary shall ensure that all instructors at the Foreign Service Institute, including direct hires and contractors, who provide language instruction are—

(1) subject to suitability reviews and background investigations; and

(2) subject to continuous vetting or reinvestigations to the extend consistent with Department and Executive policy for other Department personnel.

SEC. 6110. DIPLOMATIC SECURITY FELLOWSHIP PROGRAMS.

(a) IN GENERAL.—Section 47 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2719) is amended—

(1) by striking ''The Secretary'' and inserting the following:

''(a) IN GENERAL.—The Secretary''; and

(2) by adding at the end the following new subsection:

''(b) DIPLOMATIC SECURITY FELLOWSHIP PROGRAMS.—

''(1) ESTABLISHMENT.—The Secretary of State, working through the Assistant Secretary for Diplomatic Security, is authorized to establish Diplomatic Security fellowship programs to provide grants to United States nationals pursuing undergraduate studies who commit to pursuing a career as a special agent, security engineering officer, or in the civil service in the Bureau of Diplomatic Security.

''(2) RULEMAKING.—The Secretary is authorized to promulgate regulations for the administration of Diplomatic Security fellowship programs that set forth—

''(A) the eligibility requirements for receiving a grant under this subsection;

''(B) the process by which eligible applicants may request such a grant;

''(C) the maximum amount of such a grant; and

''(D) the educational progress to which all grant recipients are obligated.''.

(b) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $2,000,000 for each of fiscal years 2024 through 2028 to carry out this section.

TITLE LXII—PERSONNEL MATTERS

Subtitle A—Hiring, Promotion, and Development

SEC. 6201. ADJUSTMENT TO PROMOTION PRECEPTS.

Section 603(b) of the Foreign Service Act of 1980 (22 U.S.C. 4003(b)) is amended—

(1) by redesignating paragraph (2), (3), and (4) as paragraphs (7), (8), and (9), respectively; and

(2) by inserting after paragraph (1) the following new paragraphs:

''(2) experience serving at an international organization, multilateral institution, or engaging in multinational negotiations;

''(3) willingness to serve in hardship posts overseas or across geographically distinct regions;

''(4) experience advancing policies or developing expertise that enhance the United States' competitiveness with regard to critical and emerging technologies;

''(5) willingness to participate in appropriate and relevant professional development opportunities offered by the Foreign Service Institute or other educational institutions associated with the Department;

''(6) willingness to enable and encourage subordinates at various levels to avail themselves of appropriate and relevant professional development opportunities offered by the Foreign Service Institute or other educational institutions associated with the Department;''.

SEC. 6202. HIRING AUTHORITIES.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the Department should possess hiring authorities to enable recruitment of individuals representative of the nation with special skills needed to address 21st century diplomacy challenges; and

(2) the Secretary shall conduct a survey of hiring authorities held by the Department to identify—

(A) hiring authorities already authorized by Congress;

(B) others authorities granted through Presidential decree or executive order; and

(C) any authorities needed to enable recruitment of individuals with the special skills described in paragraph (1).

(b) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees, the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committee on Homeland Security of the House of Representatives a report that includes a description of all existing hiring authorities and legislative proposals on any new needed authorities.

(c) SPECIAL HIRING AUTHORITY.—For an initial period of not more than 3 years after the date of the enactment of this Act, the Secretary may appoint, without regard to the provisions of sections 3309 through 3318 of title 5, United States Code, up to 80 candidates directly to positions in the competitive service at the Department, as defined in section 2102 of that title, in the following occupational series: 25 candidates under 1560 Data Science, 25 candidates under 2210 Information Technology Management, and 30 candidates under 0201 Human Resources Management.

SEC. 6203. EXTENDING PATHS TO SERVICE FOR PAID STUDENT INTERNS.

For up to 2 years following the end of a compensated internship at the Department, the Department may offer employment to up to 25 such interns and appoint them directly to positions in the competitive service, as defined in section 2102 of title 5, United States Code, without regard to the provisions of sections 3309 through 3318 of such title.

SEC. 6204. LATERAL ENTRY PROGRAM.

(a) IN GENERAL.—Section 404 of the Department of State Authorities Act, Fiscal Year 2017 (Public Law 114–323; 130 Stat. 1928) is amended—

(1) in subsection (b)—

(A) in the matter preceding paragraph (1), by striking ''3-year'' and inserting ''5-year'';

(B) in paragraph (5), by striking ''; and'';

(C) in paragraph (6), by striking the period at the end and inserting a semicolon; and

(D) by adding at the end the following new paragraphs:

''(7) does not include the use of Foreign Service-Limited or other noncareer Foreign Service hiring authorities; and

''(8) includes not fewer than 30 participants for each year of the pilot program.''; and

(2) by adding at the end the following new subsection:

''(e) CERTIFICATION.—If the Secretary does not commence the lateral entry program within 180 days after the date of the enactment of this subsection, the Secretary shall submit a report to the appropriate congressional committees—

''(1) certifying that progress is being made on implementation of the pilot program and describing such progress, including the date on which applicants will be able to apply;

''(2) estimating the date by which the pilot program will be fully implemented;

''(3) outlining how the Department will use the Lateral Entry Program to fill needed

skill sets in key areas such as cyberspace, emerging technologies, economic statecraft, multilateral diplomacy, and data and other sciences.''.

SEC. 6205. MID-CAREER MENTORING PROGRAM.

(a) AUTHORIZATION.—The Secretary, in collaboration with the Director of the Foreign Service Institute, is authorized to establish a Mid-Career Mentoring Program (referred to in this section as the ''Program'') for employees who have demonstrated outstanding service and leadership.

(b) SELECTION.—

(1) NOMINATIONS.—The head of each bureau shall semiannually nominate participants for the Program from a pool of applicants in the positions described in paragraph (2)(B), including from posts both domestically and abroad.

(2) SUBMISSION OF SLATE OF NOMINEES TO SECRETARY.—The Director of the Foreign Service Institute, in consultation with the Director General of the Foreign Service, shall semiannually—

(A) vet the nominees most recently nominated pursuant to paragraph (1); and

(B) submit to the Secretary a slate of applicants to participate in the Program, who shall consist of at least—

(i) 10 Foreign Service Officers and specialists classified at the FS-03 or FS-04 level of the Foreign Service Salary Schedule;

(ii) 10 Civil Service employees classified at GS-12 or GS-13 of the General Schedule; and

(iii) 5 Foreign Service Officers from the United States Agency for International Development.

(3) FINAL SELECTION.—The Secretary shall select the applicants who will be invited to participate in the Program from the slate received pursuant to paragraph (2)(B) and extend such an invitation to each selected applicant.

(4) MERIT PRINCIPLES.—Section 105 of the Foreign Service Act of 1980 (22 U.S.C. 3905) shall apply to nominations, submissions to the Secretary, and selections for the Program under this section.

(c) PROGRAM SESSIONS.—

(1) FREQUENCY; DURATION.—All of the participants who accept invitations extended pursuant to subsection (b)(3) shall meet 3 to 4 times per year for training sessions with high-level leaders of the Department and USAID, including private group meetings with the Secretary and the Administrator of the United States Agency for International Development.

(2) THEMES.—Each session referred to in paragraph (1) shall focus on specific themes developed jointly by the Foreign Service Institute and the Executive Secretariat focused on substantive policy issues and leadership practices.

(d) MENTORING PROGRAM.—The Secretary and the Administrator each is authorized to establish a mentoring and coaching program that pairs a senior leader of the Department or USAID with each of the program participants who complete the Program during the 1-year period immediately following their participation in the Program.

(e) ANNUAL REPORT.—Not later than one year after the date of the enactment of this Act, and annually thereafter for three years, the Secretary shall submit a report to the appropriate congressional committees that describes the activities of the Program during the most recent year and includes disaggregated demographic data on participants in the Program.

SEC. 6206. REPORT ON THE FOREIGN SERVICE INSTITUTE'S LANGUAGE PROGRAM .

Not later than 60 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate congressional committees that includes—

(1) the average pass and fail rates for language programs at the Foreign Service Institute disaggregated by language during the 5-year period immediately preceding the date of the enactment of this Act;

(2) the number of language instructors at the Foreign Service Institute, and a comparison of the instructor/student ratio in the language programs at the Foreign Service Institute disaggregated by language;

(3) salaries for language instructors disaggregated by language, and a comparison to salaries for instructors teaching languages in comparable employment;

(4) recruitment and retention plans for language instructors, disaggregated by language where necessary and practicable; and

(5) any plans to increase pass rates for languages with high failure rates.

SEC. 6207. CONSIDERATION OF CAREER CIVIL SERVANTS AS CHIEFS OF MISSIONS.

Section 304(b) of the Foreign Service Act of 1980 (22 U.S.C. 3944) is amended—

(1) by redesignating paragraph (2) as paragraph (3); and

(2) by inserting after paragraph (1) the following new paragraph:

''(2) The Secretary shall also furnish to the President, on an annual basis and to assist the President in selecting qualified candidates for appointments or assignments as chief of mission, the names of between 5 and 10 career civil servants serving at the Department of State or the United States Agency for International Development who are qualified to serve as chiefs of mission, together with pertinent information about such individuals.''.

SEC. 6208. CIVIL SERVICE ROTATIONAL PROGRAM.

(a) ESTABLISHMENT OF PILOT ROTATIONAL PROGRAM FOR CIVIL SERVICE.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall establish a program to provide qualified civil servants serving at the Department an opportunity to serve at a United States embassy, including identifying criteria and an application process for such program.

(b) PROGRAM.—The program established under this section shall—

(1) provide at least 20 career civil servants the opportunity to serve for 2 to 3 years at a United States embassy to gain additional skills and experience;

(2) offer such civil servants the opportunity to serve in a political or economic section at a United States embassy; and

(3) include clear and transparent criteria for eligibility and selection, which shall include a minimum of 5 years of service at the Department.

(c) SUBSEQUENT POSITION AND PROMOTION.—Following a rotation at a United States embassy pursuant to the program established by this section, participants in the program must be afforded, at minimum, a position equivalent in seniority, compensation, and responsibility to the position occupied prior serving in the program. Successful completion of a rotation at a United States embassy shall be considered favorably with regard to applications for promotion in civil service jobs at the Department.

(d) IMPLEMENTATION.—Not later than 2 years after the date of the enactment of this Act, the Secretary shall identify not less than 20 positions in United States embassies for the program established under this section and offered at least 20 civil servants the opportunity to serve in a rotation at a United States embassy pursuant to this section.

SEC. 6209. REPORTING REQUIREMENT ON CHIEFS OF MISSION.

Not later than 30 days following the end of each calendar quarter, the Secretary shall submit to the appropriate congressional committees—

(1) a list of every chief of mission or United States representative overseas with the rank of Ambassador who, during the prior quarter, was outside a country of assignment for more than 14 cumulative days for purposes other than official travel or temporary duty orders; and

(2) the number of days each such chief of mission or United States representative overseas with the rank of Ambassador was outside a country of assignment during the previous quarter for purposes other than official travel or temporary duty orders.

SEC. 6210. REPORT ON CHIEFS OF MISSION AND DEPUTY CHIEFS OF MISSION.

Not later than April 1, 2024, and annually thereafter for the next 4 years, the Secretary shall submit to the appropriate congressional committees a report that includes—

(1) the Foreign Service cone of each current chief of mission and deputy chief of mission (or whoever is acting in the capacity of chief or deputy chief if neither is present) for each United States embassy at which there is a Foreign Service office filling either of those positions; and

(2) aggregated data for all chiefs of mission and deputy chiefs of mission described in paragraph (1), disaggregated by cone.

SEC. 6211. PROTECTION OF RETIREMENT ANNUITY FOR REEMPLOYMENT BY DEPARTMENT.

(a) NO TERMINATION OR REDUCTION OF RETIREMENT ANNUITY OR PAY FOR REEMPLOYMENT.—Notwithstanding section 824 of the Foreign Service Act of 1980 (22 U.S.C. 4064), if a covered annuitant becomes employed by the Department—

(1) the payment of any retirement annuity, retired pay, or retainer pay otherwise payable to the covered annuitant shall not terminate; and

(2) the amount of the retirement annuity, retired pay, or retainer pay otherwise payable to the covered annuitant shall not be reduced.

(b) COVERED ANNUITANT DEFINED.—In this section, the term ''covered annuitant'' means any individual who is receiving a retirement annuity under—

(1) the Foreign Service Retirement and Disability System under subchapter I of chapter 8 of title I of the Foreign Service Act of 1980 (22 U.S.C. 4041 et seq.); or

(2) the Foreign Service Pension System under subchapter II of such chapter (22 U.S.C. 4071 et seq.).

SEC. 6212. EFFORTS TO IMPROVE RETENTION AND PREVENT RETALIATION.

(a) STREAMLINED REPORTING.—Not later than one year after the date of the enactment of this Act, the Secretary shall establish a single point of initial reporting for allegations of discrimination, bullying, and harassment that provides an initial review of the allegations and, if necessary, the ability to file multiple claims based on a single complaint.

(b) CLIMATE SURVEYS OF EMPLOYEES OF THE DEPARTMENT.—

(1) REQUIRED BIENNIAL SURVEYS.—Not later than 180 days after the date of the enactment of this Act and every 2 years thereafter, the Secretary shall conduct a Department-wide survey of all Department personnel regarding harassment, discrimination, bullying, and related retaliation that includes workforce perspectives on the accessibility and effectiveness of the Bureau of Global Talent Management and Office of Civil Rights in the efforts and processes to address these issues.

(2) REQUIRED ANNUAL SURVEYS.—

(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter, the Secretary shall

conduct an annual employee satisfaction survey to assess the level of job satisfaction, work environment, and overall employee experience within the Department.

(B) OPEN-ENDED RESPONSES.—The survey required under subparagraph (A) shall include options for open-ended responses.

(C) SURVEY QUESTIONS.—The survey shall include questions regarding—

(i) work-life balance;

(ii) compensation and benefits;

(iii) career development opportunities;

(iv) the performance evaluation and promotion process, including fairness and transparency;

(v) communication channels and effectiveness;

(vi) leadership and management;

(vii) organizational culture;

(viii) awareness and effectiveness of complaint measures;

(ix) accessibility and accommodations;

(x) availability of transportation to and from a work station;

(xi) information technology infrastructure functionality and accessibility;

(xii) the employee's understanding of the Department's structure, mission, and goals;

(xiii) alignment and relevance of work to the Department's mission; and

(xiv) sense of empowerment to affect positive change.

(3) REQUIRED EXIT SURVEYS.—

(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall develop and implement a standardized, confidential exit survey process that includes anonymous feedback and exit interviews with employees who voluntarily separate from the Department, whether through resignation, retirement, or other means.

(B) SCOPE.—The exit surveys conducted pursuant to subparagraph (A)shall—

(i) be designed to gather insights and feedback from departing employees regarding—

(I) their reasons for leaving, including caretaking responsibilities, career limitations for partner or spouse, and discrimination, harassment, bullying, or retaliation;

(II) their overall experience with the Department; and

(III) any suggestions for improvement; and

(ii) include questions related to—

(I) the employee's reasons for leaving;

(II) job satisfaction;

(III) work environment;

(IV) professional growth opportunities;

(V) leadership effectiveness;

(VI) suggestions for enhancing the Department's performance; and

(VII) if applicable, the name and industry of the employee's future employer.

(C) COMPILATION OF RESULTS.—The Secretary shall compile and analyze the anonymized exit survey data collected pursuant to this paragraph to identify trends, common themes, and areas needing improvement within the Department.

(4) PILOT SURVEYS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall conduct a Department-wide survey for Locally Employed Staff regarding retention, training, promotion, and other matters, including harassment, discrimination, bullying, and related retaliation, that includes workforce perspectives on the accessibility and effectiveness of complaint measures.

(5) REPORT.—Not later than 60 days after the conclusion of each survey conducted pursuant to this subsection, the Secretary shall make the key findings available to the Department workforce and shall submit them to the appropriate congressional committees.

(c) RETALIATION PREVENTION EFFORTS.—

(1) EMPLOYEE EVALUATION.—

(A) IN GENERAL.—If there is a pending investigation of discrimination, bullying, or harassment against a superior who is responsible for rating or reviewing the complainant employee, the complainant shall be reviewed by the superior's supervisor.

(B) EFFECTIVE DATE.—This paragraph shall take effect 90 days after the date of the enactment of this Act.

(2) RETALIATION PREVENTION GUIDANCE.—Any Department employee against whom an allegation of discrimination, bullying, or harassment has been made shall receive written guidance (a ''retaliation hold'') on the types of actions that can be considered retaliation against the complainant employee. The employee's immediate supervisor shall also receive the retaliation hold guidance.

SEC. 6213. NATIONAL ADVERTISING CAMPAIGN.

Not later than 270 days after the date of the enactment of this Act, the Secretary shall submit a strategy to the appropriate congressional committees that assesses the potential benefits and costs of a national advertising campaign to improve the recruitment in the Civil Service and the Foreign Service by raising public awareness of the important accomplishments of the Department.

SEC. 6214. EXPANSION OF DIPLOMATS IN RESIDENCE PROGRAMS.

Not later than two years after the date of the enactment of this Act—

(1) the Secretary is authorized to increase the number of diplomats in the Diplomats in Residence Program from 17 to at least 20; and

(2) the Administrator of the United States Agency for International Development is authorized to increase the number of development diplomats in the Diplomats in Residence Program from 1 to at least 3.

Subtitle B—Pay, Benefits, and Workforce Matters

SEC. 6221. EDUCATION ALLOWANCE.

(a) IN GENERAL.—Chapter 9 of title I of the Foreign Service Act of 1980 (22 U.S.C. 4081 et seq.) is amended by adding at the end the following new section:

''SEC. 908. EDUCATION ALLOWANCE.

''A Department employee who is on leave to perform service in the uniformed services (as defined in section 4303(13) of title 38, United States Code) may receive an education allowance if the employee would, if not for such service, be eligible to receive the education allowance.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 2 of the Foreign Service Act of 1980 (22 U.S.C. 3901 note) is amended by inserting after the item relating to section 907 the following:

''Sec. 908. Education allowance''.

SEC. 6222. PER DIEM ALLOWANCE FOR NEWLY HIRED MEMBERS OF THE FOREIGN SERVICE.

(a) PER DIEM ALLOWANCE.—

(1) IN GENERAL.—Except as provided in paragraph (2), any newly hired Foreign Service employee who is in initial orientation training, or any other training expected to last less than 6 months before transferring to the employee's first assignment, in the Washington, D.C., area shall, for the duration of such training, receive a per diem allowance at the levels prescribed under subchapter I of chapter 57 of title 5, United States Code.

(2) LIMITATION ON LODGING EXPENSES.—A newly hired Foreign Service employee may not receive any lodging expenses under the applicable per diem allowance pursuant to paragraph (1) if that employee—

(A) has a permanent residence in the Washington, D.C., area (not including Government-supplied housing during such orientation training or other training); and

(B) does not vacate such residence during such orientation training or other training.

(b) DEFINITIONS.—In this section—

(1) the term ''per diem allowance'' has the meaning given that term under section 5701 of title 5, United States Code; and

(2) the term ''Washington, D.C., area'' means the geographic area within a 50 mile radius of the Washington Monument.

SEC. 6223. IMPROVING MENTAL HEALTH SERVICES FOR FOREIGN AND CIVIL SERVANTS.

(a) ADDITIONAL PERSONNEL TO ADDRESS MENTAL HEALTH.—

(1) IN GENERAL.—The Secretary shall seek to increase the number of personnel within the Bureau of Medical Services to address mental health needs for both foreign and civil servants.

(2) EMPLOYMENT TARGETS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall seek to employ not fewer than 15 additional personnel in the Bureau of Medical Services, compared to the number of personnel employed as of the date of the enactment of this Act.

(b) STUDY.—The Secretary shall conduct a study on the accessibility of mental health care providers and services available to Department personnel, including an assessment of—

(1) the accessibility of mental health care providers at diplomatic posts and in the United States;

(2) the accessibility of inpatient services for mental health care for Department personnel;

(3) steps that may be taken to improve such accessibility;

(4) the impact of the COVID–19 pandemic on the mental health of Department personnel, particularly those who served abroad between March 1, 2020, and December 31, 2022, and Locally Employed Staff, where information is available;

(5) recommended steps to improve the manner in which the Department advertises mental health services to the workforce; and

(6) additional authorities and resources needed to better meet the mental health needs of Department personnel.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to appropriate congressional committees a report containing the findings of the study under subsection (b).

SEC. 6224. EMERGENCY BACK-UP CARE.

(a) IN GENERAL.—The Secretary and the Administrator for the United States Agency for International Development are authorized to provide for unanticipated non-medical care, including childcare, eldercare, and essential services directly related to caring for an acute injury or illness, for USAID and Department employees and their family members, including through the provision of such non-medical services, referrals to care providers, and reimbursement of reasonable expenses for such services.

(b) LIMITATION.—Services provided pursuant to this section shall not exceed $2,000,000 per fiscal year.

SEC. 6225. AUTHORITY TO PROVIDE SERVICES TO NON-CHIEF OF MISSION PERSONNEL.

Section 904 of the Foreign Service Act of 1980 (22 U.S.C. 4084) is amended—

(1) in subsection (g), by striking ''abroad for employees and eligible family members'' and inserting ''under this section''; and

(2) by adding at the end the following new subsection:

''(a) PHYSICAL AND MENTAL HEALTH CARE SERVICES IN SPECIAL CIRCUMSTANCES.—

''(1) IN GENERAL.—The Secretary is authorized to direct health care providers employed under subsection (c) of this section to furnish physical and mental health care services to an individual otherwise ineligible for services under this section if necessary to preserve life or limb or if intended to facilitate an overseas evacuation, recovery, or return. Such services may be provided incidental to the following activities:

''(A) Activities undertaken abroad pursuant to section 3 and section 4 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2670, 2671).

''(B) Recovery of hostages or of wrongfully or unlawfully detained individuals abroad, including pursuant to section 302 of the Robert Levinson Hostage Recovery and Hostage-Taking Accountability Act (22 U.S.C. 1741).

''(C) Secretarial dispatches to international disaster sites deployed pursuant to section 207 of the Aviation Security Improvement Act of 1990 (22 U.S.C. 5506).

''(D) Deployments undertaken pursuant to section 606(a)(6)(A)(iii) of the Secure Embassy Construction and Counterterrorism Act of 1999 (22 U.S.C. 4865(a)(6)(A)(iii)).

''(2) PRIORITIZATION OF OTHER FUNCTIONS.—The Secretary shall prioritize the allocation of Department resources to the health care program described in subsections (a) through (g) above the functions described in paragraph (1).

''(3) REGULATIONS.—The Secretary should prescribe applicable regulations to implement this section, taking into account the prioritization in paragraph (2) and the activities described in paragraph (1).

''(4) REIMBURSABLE BASIS.—Services rendered under this subsection shall be provided on a reimbursable basis to the extent practicable.''.

SEC. 6226. EXCEPTION FOR GOVERNMENT-FINANCED AIR TRANSPORTATION.

(a) REDUCING HARDSHIP FOR TRANSPORTATION OF DOMESTIC ANIMALS.—

(1) IN GENERAL.—Notwithstanding subsections (a) and (c) of section 40118 of title 49, United States Code, the Department is authorized to pay for the transportation by a foreign air carrier of Department personnel and any in-cabin or accompanying checked baggage or cargo if—

(A) no air carrier holding a certificate under section 41102 of such title is willing and able to transport up to 3 domestic animals accompanying such Federal personnel; and

(B) the transportation is from a place—

(i) outside the United States to a place in the United States;

(ii) in the United States to a place outside the United States; or

(iii) outside the United States to another place outside the United States.

(2) LIMITATION.—An amount paid pursuant to paragraph (1) for transportation by a foreign carrier may not be greater than the amount that would otherwise have been paid had the transportation been on an air carrier holding a certificate under section 41102 had that carrier been willing and able to provide such transportation. If the amount that would otherwise have been paid to such an air carrier is less than the cost of transportation on the applicable foreign carrier, the Department personnel may pay the difference of such amount.

(3) DOMESTIC ANIMAL DEFINED.—In this subsection, the term ''domestic animal'' means a dog or a cat.

SEC. 6227. ENHANCED AUTHORITIES TO PROTECT LOCALLY EMPLOYED STAFF DURING EMERGENCIES.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) locally employed staff provide essential contributions at United States diplomatic and consular posts around the world, including by providing—

(A) security to United States government personnel serving in the country;

(B) advice, expertise, and other services for the promotion of political, economic, public affairs, commercial, security, and other interests of critical importance to the United States;

(C) a wide range of logistical and administrative support to every office in each mission working to advance United States interests around the world, including services and support vital to the upkeep and maintenance of United States missions;

(D) consular services to support the welfare and well-being of United States citizens and to provide for the expeditious processing of visa applications;

(E) institutional memory on a wide range of embassy engagements on bilateral issues; and

(F) enduring connections to host country contacts, both inside and outside the host government, including within media, civil society, the business community, academia, the armed forces, and elsewhere; and

(2) locally employed staff make important contributions that should warrant the United States Government to give due consideration for their security and safety when diplomatic missions face emergency situations.

(b) AUTHORIZATION TO PROVIDE EMERGENCY SUPPORT.—In emergency situations, in addition to other authorities that may be available in emergencies or other exigent circumstances, the Secretary is authorized to use funds made available to the Department to provide support to ensure the safety and security of locally employed staff and their immediate family members, including for—

(1) providing transport or relocating locally employed staff and their immediate family members to a safe and secure environment;

(2) providing short-term housing or lodging for up to six months for locally employed staff and their immediate family members;

(3) procuring or providing other essential items and services to support the safety and security of locally employed staff and their immediate family members.

(c) TEMPORARY HOUSING.—To ensure the safety and security of locally employed staff and their immediate family members consistent with this section, Chiefs of Missions are authorized to allow locally employed staff and their immediate family members to reside temporarily in the residences of United States direct hire employees, either in the host country or other countries, provided that such stays are offered voluntarily by United States direct hire employees.

(d) FOREIGN AFFAIRS MANUAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall amend the Foreign Affairs Manual to reflect the authorizations and requirements of this section.

(e) EMERGENCY SITUATION DEFINED.—In this section, the term ''emergency situation'' means armed conflict, civil unrest, natural disaster, or other types of instability that pose a threat to the safety and security of locally employed staff, particularly when and if a United States diplomatic or consular post must suspend operations.

(f) REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives a report describing prior actions the Department has taken with regard to locally employed staff and their immediate family members following suspensions or closures of United States diplomatic posts over the prior 10 years, including Kyiv, Kabul, Minsk, Khartoum, and Juba.

(2) ELEMENTS.—The report required under paragraph (1) shall—

(A) describe any actions the Department took to assist locally employed staff and their immediate family members;

(B) identify any obstacles that made providing support or assistance to locally employed staff and their immediate family members difficult;

(C) examine lessons learned and propose recommendations to better protect the safety and security of locally employed staff and their family members, including any additional authorities that may be required; and

(D) provide an analysis of and offer recommendations on any other steps that could improve efforts to protect the safety and security of locally employed staff and their immediate family members.

SEC. 6228. INTERNET AT HARDSHIP POSTS.

Section 3 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2670) is amended—

(1) in subsection (l), by striking ''; and'' and inserting a semicolon;

(2) in subsection (m) by striking the period at the end and by inserting ''; and''; and

(3) by adding at the end the following new subsection:

''(n) pay expenses to provide internet services in residences owned or leased by the United States Government in foreign countries for the use of Department personnel where Department personnel receive a post hardship differential equivalent to 30 percent or more above basic compensation.''.

SEC. 6229. COMPETITIVE LOCAL COMPENSATION PLAN.

(a) ESTABLISHMENT AND IMPLEMENTATION OF PREVAILING WAGE RATES GOAL.—Section 401(a) of the Department of State Authorities Act, fiscal year 2017 (22 U.S.C. 3968a(a)) is amended in the matter preceding paragraph (1), by striking ''periodically'' and inserting ''every 3 years''.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives a report that includes—

(1) compensation (including position classification) plans for locally employed staff based upon prevailing wage rates and compensation practices for corresponding types of positions in the locality of employment; and

(2) an assessment of the feasibility and impact of changing the prevailing wage rate goal for positions in the local compensation plan from the 50th percentile to the 75th percentile.

SEC. 6230. SUPPORTING TANDEM COUPLES IN THE FOREIGN SERVICE.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) challenges finding and maintaining spousal employment and family dissatisfaction are one of the leading reasons employees cite for leaving the Department;

(2) tandem Foreign Service personnel represent important members of the Foreign Service community, who act as force multipliers for our diplomacy;

(3) the Department can and should do more to keep tandem couples posted together and consider family member employment needs when assigning tandem officers; and

(4) common sense steps providing more flexibility in the assignments process would improve outcomes for tandem officers without disadvantaging other Foreign Service officers.

(b) DEFINITIONS.—In this section:

(1) FAMILY TOGETHERNESS.—The term ''family togetherness'' means facilitating the placement of Foreign Service personnel at the same United States diplomatic post when both spouses are members of a tandem couple of Foreign Service personnel.

(2) TANDEM FOREIGN SERVICE PERSONNEL; TANDEM.—The terms ''tandem Foreign Service personnel'' and ''tandem'' mean a member of a couple of which one spouse is a career or career candidate employee of the Foreign Service and the other spouse is a career or career candidate employee of the Foreign Service or an employee of one of the agencies authorized to use the Foreign Service Personnel System under section 202 of the Foreign Service Act of 1980 (22 U.S.C. 3922).

(c) FAMILY TOGETHERNESS IN ASSIGNMENTS.—Not later than 90 days after the date of enactment of this Act, the Department shall amend and update its policies to further promote the principle of family togetherness in the Foreign Service, which shall include the following:

(1) ENTRY-LEVEL FOREIGN SERVICE PERSONNEL.—The Secretary shall adopt policies and procedures to facilitate the assignment of entry-level tandem Foreign Service personnel on directed assignments to the same diplomatic post or country as their tandem spouse if they request to be assigned to the same post or country. The Secretary shall also provide a written justification to the requesting personnel explaining any denial of a request that would result in a tandem couple not serving together at the same post or country.

(2) TENURED FOREIGN SERVICE PERSONNEL.—The Secretary shall add family togetherness to the criteria when making a needs of the Service determination, as defined by the Foreign Affairs Manual, for the placement of tenured tandem Foreign Service personnel at United States diplomatic posts.

(3) UPDATES TO ANTINEPOTISM POLICY.—The Secretary shall update antinepotism policies so that nepotism rules only apply when an employee and a relative are placed into positions wherein they jointly and exclusively control government resources, property, or money or establish government policy.

(4) TEMPORARY SUPERVISION OF TANDEM SPOUSE.—The Secretary shall update policies to allow for a tandem spouse to temporarily supervise another tandem spouse for up to 90 days in a calendar year, including at a United States diplomatic mission.

(d) REPORT.—Not later than 90 days after the date of enactment of this Act, and annually thereafter for two years, the Secretary shall submit to the appropriate congressional committees a report that includes—

(1) the number of Foreign Service tandem couples currently serving;

(2) the number of Foreign Service tandems currently serving in separate locations, or, to the extent possible, are on leave without pay (LWOP); and

(3) an estimate of the cost savings that would result if all Foreign Service tandem couples were placed at a single post.

SEC. 6231. ACCESSIBILITY AT DIPLOMATIC MISSIONS.

Not later than 180 days after the date of the enactment of this Act, the Department shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives a report that includes—

(1) a list of the overseas United States diplomatic missions that, as of the date of the enactment of this Act, are not readily accessible to and usable by individuals with disabilities;

(2) any efforts in progress to make such missions readily accessible to and usable by individuals with disabilities; and

(3) an estimate of the cost to make all such missions readily accessible to and usable by individuals with disabilities.

SEC. 6232. REPORT ON BREASTFEEDING ACCOMMODATIONS OVERSEAS.

Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees a report that includes—

(1) a detailed report on the Department's efforts to equip 100 percent of United States embassies and consulates with dedicated lactation spaces, other than bathrooms, that are shielded from view and free from intrusion from coworkers and the public for use by employees, including the expected demand for such space as well as the status of such rooms when there is no demand for such space; and

(2) a description of costs and other resources needed to provide such spaces.

SEC. 6233. DETERMINING THE EFFECTIVENESS OF KNOWLEDGE TRANSFERS BETWEEN FOREIGN SERVICE OFFICERS.

The Secretary shall assess the effectiveness of knowledge transfers between Foreign Service officers who are departing from overseas positions and Foreign Service Officers who are arriving at such positions, and make recommendations for approving such knowledge transfers, as appropriate, by—

(1) not later than 90 days after the date of the enactment of this Act, conducting a written survey of a representative sample of Foreign Service Officers working in overseas assignments that analyzes the effectiveness of existing mechanisms to facilitate transitions, including training, mentorship, information technology, knowledge management, relationship building, the role of locally employed staff, and organizational culture; and

(2) not later than 120 days after the date of the enactment of this Act, submitting to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report that includes a summary and analysis of results of the survey conducted pursuant to paragraph (1) that—

(A) identifies best practices and areas for improvement;

(B) describes the Department's methodology for determining which Foreign Service Officers should receive familiarization trips before arriving at a new post;

(C) includes recommendations regarding future actions the Department should take to maximize effective knowledge transfer between Foreign Service Officers;

(D) identifies any steps taken, or intended to be taken, to implement such recommendations, including any additional resources or authorities necessary to implement such recommendations; and

(E) provides recommendations to Congress for legislative action to advance the priority described in subparagraph (C).

SEC. 6234. EDUCATION ALLOWANCE FOR DEPENDENTS OF DEPARTMENT OF STATE EMPLOYEES LOCATED IN UNITED STATES TERRITORIES.

(a) IN GENERAL.—An individual employed by the Department at a location described in subsection (b) shall be eligible for a cost-of-living allowance for the education of the dependents of such employee in an amount that does not exceed the educational allowance authorized by the Secretary of Defense for such location.

(b) LOCATION DESCRIBED.—A location is described in this subsection if—

(1) such location is in a territory of the United States; and

(2) the Secretary of Defense has determined that schools available in such location are unable to adequately provide for the education of—

(A) dependents of members of the Armed Forces; or

(B) dependents of employees of the Department of Defense.

TITLE LXIII—INFORMATION SECURITY AND CYBER DIPLOMACY

SEC. 6301. DATA-INFORMED DIPLOMACY.

(a) FINDINGS.—Congress makes the following findings:

(1) In a rapidly evolving and digitally interconnected global landscape, access to and maintenance of reliable, readily available data is key to informed decisionmaking and diplomacy and therefore should be considered a strategic asset.

(2) In order to achieve its mission in the 21st century, the Department must adapt to these trends by maintaining and providing timely access to high-quality data at the time and place needed, while simultaneously cultivating a data-savvy workforce.

(3) Leveraging data science and data analytics has the potential to improve the performance of the Department's workforce by providing otherwise unknown insights into program deficiencies, shortcomings, or other gaps in analysis.

(4) While innovative technologies such as artificial intelligence and machine learning have the potential to empower the Department to analyze and act upon data at scale, systematized, sustainable data management and information synthesis remain a core competency necessary for data-driven decisionmaking.

(5) The goals set out by the Department's Enterprise Data Council (EDC) as the areas of most critical need for the Department, including Cultivating a Data Culture, Accelerating Decisions through Analytics, Establishing Mission-Driven Data Management, and Enhancing Enterprise Data Governance, are laudable and will remain critical as the Department develops into a data-driven agency.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the Department should prioritize the recruitment and retainment of top data science talent in support of its data-informed diplomacy efforts as well as its broader modernization agenda; and

(2) the Department should strengthen data fluency among its workforce, promote data collaboration across and within its bureaus, and enhance its enterprise data oversight.

SEC. 6302. ESTABLISHMENT AND EXPANSION OF THE BUREAU CHIEF DATA OFFICER PROGRAM.

(a) BUREAU CHIEF DATA OFFICER PROGRAM.—

(1) ESTABLISHMENT.—The Secretary shall establish a program, which shall be known as the ''Bureau Chief Data Officer Program'' (referred to in this section as the ''Program''), overseen by the Department's Chief Data Officer. The Bureau Chief Data Officers hired under this program shall report to their respective Bureau leadership.

(2) GOALS.—The goals of the Program shall include the following:

(A) Cultivating a data culture by promoting data fluency and data collaboration across the Department.

(B) Promoting increased data analytics use in critical decisionmaking areas.

(C) Promoting data integration and standardization.

(D) Increasing efficiencies across the Department by incentivizing acquisition of enterprise data solutions and subscription data services to be shared across bureaus and offices and within bureaus.

(b) IMPLEMENTATION PLAN.—Not later than 180 days after the date of the enactment of

this Act, the Secretary shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives an implementation plan that outlines strategies for—

(1) advancing the goals described in subsection (a)(2);

(2) hiring Bureau Chief Data Officers at the GS-14 or GS-15 grade or a similar rank;

(3) assigning at least one Bureau Chief Data Officer to—

(A) each regional bureau of the Department;

(B) the Bureau of International Organization Affairs;

(C) the Office of the Chief Economist;

(D) the Office of the Science and Technology Advisor;

(E) the Bureau of Cyber and Digital Policy;

(F) the Bureau of Diplomatic Security;

(G) the Bureau for Global Talent Management; and

(H) the Bureau of Consular Affairs; and

(4) allocation of necessary resources to sustain the Program.

(c) ASSIGNMENT.—In implementing the Bureau Chief Data Officer Program, Bureaus may not dual-hat currently employed personnel as Bureau Chief Data Officers.

(d) ANNUAL REPORTING REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for the following 3 years, the Secretary shall submit a report to the appropriate congressional committees regarding the status of the implementation plan required under subsection (b).

SEC. 6303. ESTABLISHMENT OF THE CHIEF ARTIFICIAL INTELLIGENCE OFFICER OF THE DEPARTMENT OF STATE.

Section 1 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2651a) is amended by adding at the end the following new subsection:

''(n) CHIEF ARTIFICIAL INTELLIGENCE OFFICER.—

''(1) IN GENERAL.—There shall be within the Department of State a Chief Artificial Intelligence Officer, which may be dual-hatted as the Department's Chief Data Officer, who shall be a member of the Senior Executive Service.

''(2) DUTIES DESCRIBED.—The principal duties and responsibilities of the Chief Artificial Intelligence Officer shall be—

''(A) to evaluate, oversee, and, if appropriate, facilitate the responsible adoption of artificial intelligence (AI) and machine learning applications to help inform decisions by policymakers and to support programs and management operations of the Department of State; and

''(B) to act as the principal advisor to the Secretary of State on the ethical use of AI and advanced analytics in conducting data-informed diplomacy.

''(3) QUALIFICATIONS.—The Chief Artificial Intelligence Officer should be an individual with demonstrated skill and competency in—

''(A) the use and application of data analytics, AI, and machine learning; and

''(B) transformational leadership and organizational change management, particularly within large, complex organizations.

''(4) PARTNER WITH THE CHIEF INFORMATION OFFICER ON SCALING ARTIFICIAL INTELLIGENCE USE CASES.—To ensure alignment between the Chief Artificial Intelligence Officer and the Chief Information Officer, the Chief Information Officer will consult with the Chief Artificial Intelligence Officer on best practices for rolling out and scaling AI capabilities across the Bureau of Information and Resource Management's broader portfolio of software applications.

''(5) ARTIFICIAL INTELLIGENCE DEFINED.—In this subsection, the term 'artificial intelligence' has the meaning given the term in section 238(g) of the National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232; 10 U.S.C. 4001 note).''.

SEC. 6304. STRENGTHENING THE CHIEF INFORMATION OFFICER OF THE DEPARTMENT OF STATE.

(a) IN GENERAL.—The Chief Information Officer of the Department shall be consulted on all decisions to approve or disapprove, significant new unclassified information technology expenditures, including software, of the Department, including expenditures related to information technology acquired, managed, and maintained by other bureaus and offices within the Department, in order to—

(1) encourage the use of enterprise software and information technology solutions where such solutions exist or can be developed in a timeframe and manner consistent with maintaining and enhancing the continuity and improvement of Department operations;

(2) increase the bargaining power of the Department in acquiring information technology solutions across the Department;

(3) reduce the number of redundant Authorities to Operate (ATO), which, instead of using one ATO-approved platform across bureaus, requires multiple ATOs for software use cases across different bureaus;

(4) enhance the efficiency, reduce redundancy, and increase interoperability of the use of information technology across the enterprise of the Department;

(5) enhance training and alignment of information technology personnel with the skills required to maintain systems across the Department;

(6) reduce costs related to the maintenance of, or effectuate the retirement of, legacy systems;

(7) ensure the development and maintenance of security protocols regarding the use of information technology solutions and software across the Department; and

(8) improve end-user training on the operation of information technology solutions and to enhance end-user cybersecurity practices.

(b) STRATEGY AND IMPLEMENTATION PLAN REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Chief Information Officer of the Department shall develop, in consultation with relevant bureaus and offices as appropriate, a strategy and a 5-year implementation plan to advance the objectives described in subsection (a).

(2) CONSULTATION.—No later than one year after the date of the enactment of this Act, the Chief Information Officer shall submit the strategy required by this subsection to the appropriate congressional committees and shall consult with the appropriate congressional committees, not less than on an annual basis for 5 years, regarding the progress related to the implementation plan required by this subjection.

(c) IMPROVEMENT PLAN FOR THE BUREAU FOR INFORMATION RESOURCES MANAGEMENT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Chief Information Officer shall develop policies and protocols to improve the customer service orientation, quality and timely delivery of information technology solutions, and training and support for bureau and office-level information technology officers.

(2) SURVEY.—Not later than one year after the date of the enactment of this Act, and annually thereafter for five years, the Chief Information Officer shall undertake a client satisfaction survey of bureau information technology officers to obtain feedback on metrics related to—

(A) customer service orientation of the Bureau of Information Resources Management;

(B) quality and timelines of capabilities delivered;

(C) maintenance and upkeep of information technology solutions;

(D) training and support for senior bureau and office-level information technology officers; and

(E) other matters which the Chief Information Officer, in consultation with client bureaus and offices, determine appropriate.

(3) SUBMISSION OF FINDINGS.—Not later than 60 days after completing each survey required under paragraph (2), the Chief Information Officer shall submit a summary of the findings to the appropriate congressional committees.

(d) SIGNIFICANT EXPENDITURE DEFINED.—For purposes of this section, the term ''significant expenditure'' means any cumulative expenditure in excess of $250,000 total in a single fiscal year for a new unclassified software or information technology capability.

(e) RULE OF CONSTRUCTION.—Nothing in this section may be construed—

(1) to alter the authorities of the United States Office of Management and Budget, Office of the National Cyber Director, the Department of Homeland Security, or the Cybersecurity and Infrastructure Security Agency with respect to Federal information systems; or

(2) to alter the responsibilities and authorities of the Chief Information Officer of the Department of State as described in titles 40 or 44, United States Code, or any other law defining or assigning responsibilities or authorities to Federal Chief Information Officers.

SEC. 6305. SENSE OF CONGRESS ON STRENGTHENING ENTERPRISE GOVERNANCE.

It is the sense of Congress that in order to modernize the Department, enterprise-wide governance regarding budget and finance, information technology, and the creation, analysis, and use of data across the Department is necessary to better align resources to strategy, including evaluating trade-offs, and to enhance efficiency and security in using data and technology as tools to inform and evaluate the conduct of United States foreign policy.

SEC. 6306. DIGITAL CONNECTIVITY AND CYBERSECURITY PARTNERSHIP.

(a) DIGITAL CONNECTIVITY AND CYBERSECURITY PARTNERSHIP.—The Secretary is authorized to establish a program, which may be known as the ''Digital Connectivity and Cybersecurity Partnership'', to help foreign countries—

(1) expand and increase secure internet access and digital infrastructure in emerging markets, including demand for and availability of high-quality information and communications technology (ICT) equipment, software, and services;

(2) protect technological assets, including data;

(3) adopt policies and regulatory positions that foster and encourage open, interoperable, reliable, and secure internet, the free flow of data, multi-stakeholder models of internet governance, and pro-competitive and secure ICT policies and regulations;

(4) access United States exports of ICT goods and services;

(5) expand interoperability and promote the diversification of ICT goods and supply chain services to be less reliant on PRC imports;

(6) promote best practices and common standards for a national approach to cybersecurity; and

(7) advance other priorities consistent with paragraphs (1) through (6), as determined by the Secretary.

(b) USE OF FUNDS.—Funds made available to carry out this section may be used to strengthen civilian cybersecurity and information and communications technology capacity, including participation of foreign law enforcement and military personnel in non-military activities, notwithstanding any other provision of law, provided that such support is essential to enabling civilian and law enforcement of cybersecurity and information and communication technology related activities in their respective countries.

(c) IMPLEMENTATION PLAN.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees an implementation plan for the coming year to advance the goals identified in subsection (a).

(d) CONSULTATION.—In developing and operationalizing the implementation plan required under subsection (c), the Secretary shall consult with—

(1) the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives;

(2) United States industry leaders;

(3) other relevant technology experts, including the Open Technology Fund;

(4) representatives from relevant United States Government agencies; and

(5) representatives from like-minded allies and partners.

(e) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $100,000,000 for each of fiscal years 2024 through 2028 to carry out this section. Such funds, including funds authorized to be appropriated under the heading ''Economic Support Fund'', may be made available, notwithstanding any other provision of law to strengthen civilian cybersecurity and information and communications technology capacity, including for participation of foreign law enforcement and military personnel in non-military activities, and for contributions. Such funds shall remain available until expended.

SEC. 6307. ESTABLISHMENT OF A CYBERSPACE, DIGITAL CONNECTIVITY, AND RELATED TECHNOLOGIES (CDT) FUND.

Part II of the Foreign Assistance Act of 1961 (22 U.S.C. 2301 et seq.) is amended by adding at the end the following new chapter:

''CHAPTER 10—CYBERSPACE, DIGITAL CONNECTIVITY, AND RELATED TECHNOLOGIES (CDT) FUND

''SEC. 591. FINDINGS.

''Congress makes the following findings:

''(1) Increasingly digitized and interconnected social, political, and economic systems have introduced new vulnerabilities for malicious actors to exploit, which threatens economic and national security.

''(2) The rapid development, deployment, and integration of information and communication technologies into all aspects of modern life bring mounting risks of accidents and malicious activity involving such technologies, and their potential consequences.

''(3) Because information and communication technologies are globally manufactured, traded, and networked, the economic and national security of the United State depends greatly on cybersecurity practices of other actors, including other countries.

''(4) United States assistance to countries and international organizations to bolster civilian capacity to address national cybersecurity and deterrence in cyberspace can help—

''(A) reduce vulnerability in the information and communication technologies ecosystem; and

''(B) advance national and economic security objectives.

''SEC. 592. AUTHORIZATION OF ASSISTANCE AND FUNDING FOR CYBERSPACE, DIGITAL CONNECTIVITY, AND RELATED TECHNOLOGIES (CDT) CAPACITY BUILDING ACTIVITIES.

''(a) AUTHORIZATION.—The Secretary of State is authorized to provide assistance to foreign governments and organizations, including national, regional, and international institutions, on such terms and conditions as the Secretary may determine, in order to—

''(1) advance a secure and stable cyberspace;

''(2) protect and expand trusted digital ecosystems and connectivity;

''(3) build the cybersecurity capacity of partner countries and organizations; and

''(4) ensure that the development of standards and the deployment and use of technology supports and reinforces human rights and democratic values, including through the Digital Connectivity and Cybersecurity Partnership.

''(b) SCOPE OF USES.—Assistance under this section may include programs to—

''(1) advance the adoption and deployment of secure and trustworthy information and communications technology (ICT) infrastructure and services, including efforts to grow global markets for secure ICT goods and services and promote a more diverse and resilient ICT supply chain;

''(2) provide technical and capacity building assistance to—

''(A) promote policy and regulatory frameworks that create an enabling environment for digital connectivity and a vibrant digital economy;

''(B) ensure technologies, including related new and emerging technologies, are developed, deployed, and used in ways that support and reinforce democratic values and human rights;

''(C) promote innovation and competition; and

''(D) support digital governance with the development of rights-respecting international norms and standards;

''(3) help countries prepare for, defend against, and respond to malicious cyber activities, including through—

''(A) the adoption of cybersecurity best practices;

''(B) the development of national strategies to enhance cybersecurity;

''(C) the deployment of cybersecurity tools and services to increase the security, strength, and resilience of networks and infrastructure;

''(D) support for the development of cybersecurity watch, warning, response, and recovery capabilities, including through the development of cybersecurity incident response teams;

''(E) support for collaboration with the Cybersecurity and Infrastructure Security Agency (CISA) and other relevant Federal agencies to enhance cybersecurity;

''(F) programs to strengthen allied and partner governments' capacity to detect, investigate, deter, and prosecute cybercrimes;

''(G) programs to provide information and resources to diplomats engaging in discussions and negotiations around international law and capacity building measures related to cybersecurity;

''(H) capacity building for cybersecurity partners, including law enforcement and military entities as described in subsection (f);

''(I) programs that enhance the ability of relevant stakeholders to act collectively against shared cybersecurity threats;

''(J) the advancement of programs in support of the Framework of Responsible State Behavior in Cyberspace; and

''(K) the fortification of deterrence instruments in cyberspace; and

''(4) such other purpose and functions as the Secretary of State may designate.

''(c) RESPONSIBILITY FOR POLICY DECISIONS AND JUSTIFICATION.—The Secretary of State shall be responsible for policy decisions regarding programs under this chapter, with respect to—

''(1) whether there will be cybersecurity and digital capacity building programs for a foreign country or entity operating in that country;

''(2) the amount of funds for each foreign country or entity; and

''(3) the scope and nature of such uses of funding.

''(d) DETAILED JUSTIFICATION FOR USES AND PURPOSES OF FUNDS.—The Secretary of State shall provide, on an annual basis, a detailed justification for the uses and purposes of the amounts provided under this chapter, including information concerning—

''(1) the amounts and kinds of grants;

''(2) the amounts and kinds of budgetary support provided, if any; and

''(3) the amounts and kinds of project assistance provided for what purpose and with such amounts.

''(e) ASSISTANCE AND FUNDING UNDER OTHER AUTHORITIES.—The authority granted under this section to provide assistance or funding for countries and organizations does not preclude the use of funds provided to carry out other authorities also available for such purpose.

''(f) AVAILABILITY OF FUNDS.—Amounts appropriated to carry out this chapter may be used, notwithstanding any other provision of law, to strengthen civilian cybersecurity and information and communications technology capacity, including participation of foreign law enforcement and military personnel in non-military activities, provided that such support is essential to enabling civilian and law enforcement of cybersecurity and information and communication technology related activities in their respective countries.

''(g) NOTIFICATION REQUIREMENTS.—Funds made available under this section shall be obligated in accordance with the procedures applicable to reprogramming notifications pursuant to section 634A of this Act.

''SEC. 593. REVIEW OF EMERGENCY ASSISTANCE CAPACITY.

''(a) IN GENERAL.—The Secretary of State, in consultation as appropriate with other relevant Federal departments and agencies is authorized to conduct a review that—

''(1) analyzes the United States Government's capacity to promptly and effectively deliver emergency support to countries experiencing major cybersecurity and ICT incidents;

''(2) identifies relevant factors constraining the support referred to in paragraph (1); and

''(3) develops a strategy to improve coordination among relevant Federal agencies and to resolve such constraints.

''(b) REPORT.—Not later than one year after the date of the enactment of this chapter, the Secretary of State shall submit a report to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives that contains the results of the review conducted pursuant to subsection (a).

''SEC. 594. AUTHORIZATION OF APPROPRIATIONS.

''There is authorized to be appropriated $150,000,000 during the 5-year period beginning on October 1, 2023, to carry out the purposes of this chapter.''.

SEC. 6308. CYBER PROTECTION SUPPORT FOR PERSONNEL OF THE DEPARTMENT OF STATE IN POSITIONS HIGHLY VULNERABLE TO CYBER ATTACK.

(a) DEFINITIONS.—In this section:

(1) AT-RISK PERSONNEL.—The term ''at-risk personnel'' means personnel of the Department—

(A) whom the Secretary determines to be highly vulnerable to cyber attacks and hostile information collection activities because of their positions in the Department; and

(B) whose personal technology devices or personal accounts are highly vulnerable to cyber attacks and hostile information collection activities.

(2) PERSONAL ACCOUNTS.—The term ''personal accounts'' means accounts for online and telecommunications services, including telephone, residential internet access, email, text and multimedia messaging, cloud computing, social media, health care, and financial services, used by personnel of the Department outside of the scope of their employment with the Department.

(3) PERSONAL TECHNOLOGY DEVICES.—The term ''personal technology devices'' means technology devices used by personnel of the Department outside of the scope of their employment with the Department, including networks to which such devices connect.

(b) REQUIREMENT TO PROVIDE CYBER PROTECTION SUPPORT.—The Secretary, in consultation with the Secretary of Homeland Security and the Director of National Intelligence, as appropriate—

(1) shall offer cyber protection support for the personal technology devices and personal accounts of at-risk personnel; and

(2) may provide the support described in paragraph (1) to any Department personnel who request such support.

(c) NATURE OF CYBER PROTECTION SUPPORT.—Subject to the availability of resources, the cyber protection support provided to personnel pursuant to subsection (b) may include training, advice, assistance, and other services relating to protection against cyber attacks and hostile information collection activities.

(d) PRIVACY PROTECTIONS FOR PERSONAL DEVICES.—The Department is prohibited pursuant to this section from accessing or retrieving any information from any personal technology device or personal account of Department employees unless—

(1) access or information retrieval is necessary for carrying out the cyber protection support specified in this section; and

(2) the Department has received explicit consent from the employee to access a personal technology device or personal account prior to each time such device or account is accessed.

(e) RULE OF CONSTRUCTION.—Nothing in this section may be construed—

(1) to encourage Department personnel to use personal technology devices for official business; or

(2) to authorize cyber protection support for senior Department personnel using personal devices, networks, and personal accounts in an official capacity.

(f) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate congressional committees regarding the provision of cyber protection support pursuant to subsection (b), which shall include—

(1) a description of the methodology used to make the determination under subsection (a)(1); and

(2) guidance for the use of cyber protection support and tracking of support requests for personnel receiving cyber protection support pursuant to subsection (b).

TITLE LXIV—ORGANIZATION AND OPERATIONS

SEC. 6401. PERSONAL SERVICES CONTRACTORS.

(a) EXIGENT CIRCUMSTANCES AND CRISIS RESPONSE.—To assist the Department in addressing and responding to exigent circumstances and urgent crises abroad, the Department is authorized to employ, domestically and abroad, a limited number of personal services contractors in order to meet exigent needs, subject to the requirements of this section.

(b) AUTHORITY.—The authority to employ personal services contractors is in addition to any existing authorities to enter into personal services contracts and authority provided in the Afghanistan Supplemental Appropriations Act, 2022 (division C of Public Law 117–43).

(c) EMPLOYING AND ALLOCATION OF PERSONNEL.—To meet the needs described in subsection (a) and subject to the requirements in subsection (d), the Department may—

(1) enter into contracts to employ a total of up to 100 personal services contractors at any given time for each of fiscal years 2024, 2025, and 2026; and

(2) allocate up to 20 personal services contractors to a given bureau, without regard to the sources of funding such office relies on to compensate individuals.

(d) LIMITATION.—Employment authorized by this section shall not exceed two calendar years.

(e) NOTIFICATION AND REPORTING TO CONGRESS.—

(1) NOTIFICATION.—Not later than 15 days after the use of authority under this section, the Secretary shall notify the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives of the number of personal services contractors being employed, the expected length of employment, the relevant bureau, the purpose for using personal services contractors, and the justification, including the exigent circumstances requiring such use.

(2) ANNUAL REPORTING.—Not later than 60 days after the end of each fiscal year, the Department shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives a report describing the number of personal services contractors employed pursuant to this section for the prior fiscal year, the length of employment, the relevant bureau by which they were employed pursuant to this section, the purpose for using personal services contractors, disaggregated demographic data of such contractors, and the justification for the employment, including the exigent circumstances.

SEC. 6402. HARD-TO-FILL POSTS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the number of hard-to-fill vacancies at United States diplomatic missions is far too high, particularly in Sub-Saharan Africa;

(2) these vacancies—

(A) adversely impact the Department's execution of regional strategies;

(B) hinder the ability of the United States to effectively compete with strategic competitors, such as the People's Republic of China and the Russian Federation; and

(C) present a clear national security risk to the United States; and

(3) if the Department is unable to incentivize officers to accept hard-to-fill positions, the Department should consider directed assignments, particularly for posts in Africa, and other means to more effectively advance the national interests of the United States.

(b) REPORT ON DEVELOPMENT OF INCENTIVES FOR HARD-TO-FILL POSTS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate congressional committees on efforts to develop new incentives for hard-to-fill positions at United States diplomatic missions. The report shall include a description of the incentives developed to date and proposals to try to more effectively fill hard-to-fill posts.

(c) STUDY ON FEASIBILITY OF ALLOWING NON-CONSULAR FOREIGN SERVICE OFFICERS GIVEN DIRECTED CONSULAR POSTS TO VOLUNTEER FOR HARD-TO-FILL POSTS IN UNDERSTAFFED REGIONS.—

(1) STUDY.—

(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall conduct a study on—

(i) the number of Foreign Service positions vacant for six months or longer at overseas posts, including for consular, political, and economic positions, over the last five years, broken down by region, and a comparison of the proportion of vacancies between regions; and

(ii) the feasibility of allowing first-tour Foreign Service generalists in non-Consular cones, directed for a consular tour, to volunteer for reassignment at hard-to-fill posts in understaffed regions.

(B) MATTERS TO BE CONSIDERED.—The study conducted under subparagraph (A) shall consider whether allowing first-tour Foreign Service generalists to volunteer as described in such subparagraph would address current vacancies and what impact the new mechanism would have on consular operations.

(2) REPORT.—Not later than 60 days after completing the study required under paragraph (1), the Secretary shall submit to the appropriate congressional committees a report containing the findings of the study.

SEC. 6403. ENHANCED OVERSIGHT OF THE OFFICE OF CIVIL RIGHTS.

(a) REPORT WITH RECOMMENDATIONS AND MANAGEMENT STRUCTURE.—Not later than 270 days after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees a report with any recommendations for the long-term structure and management of the Office of Civil Rights (OCR), including—

(1) an assessment of the strengths and weaknesses of OCR's investigative processes and procedures;

(2) any changes made within OCR to its investigative processes to improve the integrity and thoroughness of its investigations; and

(3) any recommendations to improve the management structure, investigative process, and oversight of the Office.

SEC. 6404. CRISIS RESPONSE OPERATIONS.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall institute the following changes and ensure that the following elements have been integrated into the ongoing crisis response management and response by the Crisis Management and Strategy Office:

(1) The Department's crisis response planning and operations shall conduct, maintain, and update on a regular basis contingency plans for posts and regions experiencing or vulnerable to conflict or emergency conditions, including armed conflict, national disasters, significant political or military upheaval, and emergency evacuations.

(2) The Department's crisis response efforts shall be led by an individual with significant experience responding to prior crises, who shall be so designated by the Secretary.

(3) The Department's crisis response efforts shall provide at least quarterly updates to the Secretary and other relevant senior officials, including a plan and schedule to develop contingency planning for identified posts and regions consistent with paragraph (1).

(4) The decision to develop contingency planning for any particular post or region shall be made independent of any regional bureau.

(5) The crisis response team shall develop and maintain best practices for evacuations, closures, and emergency conditions.

(b) UPDATE.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and every 180 days thereafter for the next five years, the Secretary shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives an update outlining the steps taken to implement this section, along with any other recommendations to improve the Department's crisis management and response operations.

(2) CONTENTS.—Each update submitted pursuant to paragraph (1) should include—

(A) a list of the posts whose contingency plans, including any noncombatant evacuation contingencies, has been reviewed and updated as appropriate during the preceding 180 days; and

(B) an assessment of the Secretary's confidence that each post—

(i) has continuously reached out to United States persons in country to maintain and update contact information for as many such persons as practicable; and

(ii) is prepared to communicate with such persons in an emergency or crisis situation.

(3) FORM.—Each update submitted pursuant to paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

SEC. 6405. SPECIAL ENVOY TO THE PACIFIC ISLANDS FORUM.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States must increase its diplomatic activity and presence in the Pacific, particularly among Pacific Island nations; and

(2) the Special Envoy to the Pacific Islands Forum—

(A) should advance the United States partnership with Pacific Island Forum nations and with the organization itself on key issues of importance to the Pacific region; and

(B) should coordinate policies across the Pacific region with like-minded democracies.

(b) APPOINTMENT OF SPECIAL ENVOY TO THE PACIFIC ISLANDS FORUM.—Section 1 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2651a), as amended by section 6304, is further amended by adding at the end the following new subsection:

''(o) SPECIAL ENVOY TO THE PACIFIC ISLANDS FORUM.—

''(1) APPOINTMENT.—The President shall appoint, by and with the advice and consent of the Senate, a qualified individual to serve as Special Envoy to the Pacific Islands Forum (referred to in this section as the 'Special Envoy').

''(2) CONSIDERATIONS.—

''(A) SELECTION.—The Special Envoy shall be—

''(i) a United States Ambassador to a country that is a member of the Pacific Islands Forum; or

''(ii) a qualified individual who is not described in clause (i).

''(B) LIMITATIONS.—If the President appoints an Ambassador to a country that is a member of the Pacific Islands Forum to serve concurrently as the Special Envoy to the Pacific Islands Forum, such Ambassador—

''(i) may not begin service as the Special Envoy until he or she has been confirmed by the Senate for an ambassadorship to a country that is a member of the Pacific Islands Forum; and

''(ii) shall not receive additional compensation for his or her service as Special Envoy.

''(3) DUTIES.—The Special Envoy shall—

''(A) represent the United States in its role as dialogue partner to the Pacific Islands Forum; and

''(B) carry out such other duties as the President or the Secretary of State may prescribe.''.

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate congressional committees that describes how the Department will increase its ability to recruit and retain highly-qualified ambassadors, special envoys, and other senior personnel in posts in Pacific island countries as the Department expands its diplomatic footprint throughout the region.

SEC. 6406. SPECIAL ENVOY FOR BELARUS.

(a) SPECIAL ENVOY.—The President shall appoint a Special Envoy for Belarus within the Department (referred to in this section as the ''Special Envoy''). The Special Envoy should be a person of recognized distinction in the field of European security, geopolitics, democracy and human rights, and may be a career Foreign Service officer.

(b) CENTRAL OBJECTIVE.—The central objective of the Special Envoy is to coordinate and promote efforts—

(1) to improve respect for the fundamental human rights of the people of Belarus;

(2) to sustain focus on the national security implications of Belarus's political and military alignment for the United States; and

(3) to respond to the political, economic, and security impacts of events in Belarus upon neighboring countries and the wider region.

(c) DUTIES AND RESPONSIBILITIES.—The Special Envoy shall—

(1) engage in discussions with Belarusian officials regarding human rights, political, economic and security issues in Belarus;

(2) support international efforts to promote human rights and political freedoms in Belarus, including coordination and dialogue between the United States and the United Nations, the Organization for Security and Cooperation in Europe, the European Union, Belarus, and the other countries in Eastern Europe;

(3) consult with nongovernmental organizations that have attempted to address human rights and political and economic instability in Belarus;

(4) make recommendations regarding the funding of activities promoting human rights, democracy, the rule of law, and the development of a market economy in Belarus;

(5) review strategies for improving protection of human rights in Belarus, including technical training and exchange programs;

(6) develop an action plan for holding to account the perpetrators of the human rights violations documented in the United Nations High Commissioner for Human Rights report on the situation of human rights in Belarus in the run-up to the 2020 presidential election and its aftermath (Human Rights Council Resolution 49/36);

(7) engage with member countries of the North Atlantic Treaty Organization, the Organization for Security and Cooperation in Europe and the European Union with respect to the implications of Belarus's political and security alignment for transatlantic security; and

(8) work within the Department and among partnering countries to sustain focus on the political situation in Belarus.

(d) ROLE.—The position of Special Envoy—

(1) shall be a full-time position;

(2) may not be combined with any other position within the Department;

(3) shall only exist as long as United States diplomatic operations in Belarus at United States Embassy Minsk have been suspended; and

(4) shall oversee the operations and personnel of the Belarus Affairs Unit.

(e) REPORT ON ACTIVITIES.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter for the following 5 years, the Secretary, in consultation with the Special Envoy, shall submit a report to the appropriate congressional committees that describes the activities undertaken pursuant to subsection (c) during the reporting period.

(f) SUNSET.—The position of Special Envoy for Belarus Affairs and the authorities provided by this section shall terminate 5 years after the date of the enactment of this Act.

SEC. 6407. OVERSEAS PLACEMENT OF SPECIAL APPOINTMENT POSITIONS.

Not later than 90 days after the date of the enactment of this Act, the Secretary shall submit to the appropriate congressional committees a report on current special appointment positions at United States diplomatic missions that do not exercise significant authority, and all positions under schedule B or schedule C of subpart C of part 213 of title 5, Code of Federal Regulations, at United States diplomatic missions. The report shall include the title and responsibilities of each position, the expected duration of the position, the name of the individual currently appointed to the position, and the hiring authority utilized to fill the position.

SEC. 6408. RESOURCES FOR UNITED STATES NATIONALS UNLAWFULLY OR WRONGFULLY DETAINED ABROAD.

Section 302(d) of the Robert Levinson Hostage Recovery and Hostage-Taking Accountability Act (22 U.S.C. 1741(d)) is amended—

(1) in the subsection heading, by striking ''RESOURCE GUIDANCE'' and inserting ''RESOURCES FOR UNITED STATES NATIONALS UNLAWFULLY OR WRONGFULLY DETAINED ABROAD'';

(2) in paragraph (1), by striking the paragraph heading and all that follows through ''Not later than'' and inserting the following:

''(1) RESOURCE GUIDANCE.—

''(A) IN GENERAL.—Not later than'';

(3) in paragraph (2), by redesignating subparagraphs (A), (B), (C), (D), and (E) and clauses (i), (ii), (iii), (iv), and (v), respectively, and moving such clauses (as so redesignated) 2 ems to the right;

(4) by redesignating paragraph (2) as subparagraph (B) and moving such subparagraph (as so redesignated) 2 ems to the right;

(5) in subparagraph (B), as redesignated by paragraph (4), by striking ''paragraph (1)'' and inserting ''subparagraph (A)''; and

(6) by adding at the end the following:

''(2) TRAVEL ASSISTANCE.—

''(A) FAMILY ADVOCACY.—For the purpose of facilitating meetings between the United States Government and the family members of United States nationals unlawfully or wrongfully detained abroad, the Secretary shall provide financial assistance to cover the costs of travel to Washington, D.C., including travel by air, train, bus, or other transit as appropriate, to any individual who—

''(i) is—

''(I) a family member of a United States national unlawfully or wrongfully detained abroad as determined by the Secretary under subsection (a); or

''(II) an appropriate individual who—

''(aa) is approved by the Special Presidential Envoy for Hostage Affairs; and

''(bb) does not represent in any legal capacity a United States national unlawfully or wrongfully detained abroad or the family of such United States national;

''(ii) has a permanent address that is more than 50 miles from Washington, D.C.; and

''(iii) requests such assistance.

''(B) TRAVEL AND LODGING.—

''(i) IN GENERAL.—For each such United States national unlawfully or wrongfully detained abroad, the financial assistance described in subparagraph (A) shall be provided for not more than 2 trips per fiscal year, unless the Special Presidential Envoy for Hostage Affairs determines that a third trip is warranted.

''(ii) LIMITATIONS.—Any trip described in clause (i) shall—

''(I) consist of not more than 2 family members or other individuals approved in accordance with subparagraph (A)(i)(II), unless the Special Presidential Envoy for Hostage Affairs determines that circumstances warrant an additional family member or other individual approved in accordance with subparagraph (A)(i)(II) and approves assistance to such third family member or other individual; and

''(II) not exceed more than 2 nights lodging, which shall not exceed the applicable government rate.

''(C) RETURN TRAVEL.—If other United States Government assistance is unavailable, the Secretary may provide to a United States national unlawfully or wrongfully detained abroad as determined by the Secretary under subsection (a), compensation and assistance, as necessary, for return travel to the United States upon release of such United States national.

''(3) SUPPORT.—The Secretary shall seek to make available operational psychologists and clinical social workers, to support the mental health and well-being of—

''(A) any United States national unlawfully or wrongfully detained abroad; and

''(B) any family member of such United States national, with regard to the psychological, social, and mental health effects of such unlawful or wrongful detention.

''(4) NOTIFICATION REQUIREMENT.—The Secretary shall notify the Committee on Foreign Relations of the Senate, the Committee on Foreign Affairs of the House of Representatives, and the Committees on Appropriations of the Senate and the House of Representatives of any amount spent above $250,000 for any fiscal year to carry out paragraphs (2) and (3).

''(5) REPORT.—Not later than 90 days after the end of each fiscal year, the Secretary shall submit to the Committees on Foreign Relations and Appropriations of the Senate and the Committee on Foreign Affairs and Appropriations of the House of Representatives a report that includes—

''(A) a detailed description of expenditures made pursuant to paragraphs (2) and (3);

''(B) a detailed description of support provided pursuant to paragraph (3) and the individuals providing such support; and

''(C) the number and location of visits outside of Washington, D.C., during the prior fiscal year made by the Special Presidential Envoy for Hostage Affairs to family members of each United States national unlawfully or wrongfully detained abroad.

''(6) SUNSET.—The authority and requirements under paragraphs (2), (3), (4), and (5) shall terminate on December 31, 2027.

''(7) FAMILY MEMBER DEFINED.—In this subsection, the term 'family member' means a spouse, father, mother, child, brother, sister, grandparent, grandchild, aunt, uncle, nephew, niece, cousin, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half brother, or half sister.''.

TITLE LXV—ECONOMIC DIPLOMACY

SEC. 6501. REPORT ON RECRUITMENT, RETENTION, AND PROMOTION OF FOREIGN SERVICE ECONOMIC OFFICERS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a report to the appropriate congressional committees regarding the recruitment, retention, and promotion of economic officers in the Foreign Service.

(b) ELEMENTS.—The report required under subsection (b) shall include—

(1) an overview of the key challenges the Department faces in—

(A) recruiting individuals to serve as economic officers in the Foreign Service; and

(B) retaining individuals serving as economic officers in the Foreign Service, particularly at the level of GS–14 of the General Schedule and higher;

(2) an overview of the key challenges in recruiting and retaining qualified individuals to serve in economic positions in the Civil Service;

(3) a comparison of promotion rates for economic officers in the Foreign Service relative to other officers in the Foreign Service;

(4) a summary of the educational history and training of current economic officers in the Foreign Service and Civil Service officers serving in economic positions;

(5) the identification, disaggregated by region, of hard-to-fill posts and proposed incentives to improve staffing of economic officers in the Foreign Service at such posts;

(6) a summary and analysis of the factors that lead to the promotion of—

(A) economic officers in the Foreign Service; and

(B) individuals serving in economic positions in the Civil Service; and

(7) a summary and analysis of current Department-funded or run training opportunities and externally-funded programs, including the Secretary's Leadership Seminar at Harvard Business School, for—

(A) economic officers in the Foreign Service; and

(B) individuals serving in economic positions in the Civil Service.

SEC. 6502. MANDATE TO REVISE DEPARTMENT OF STATE METRICS FOR SUCCESSFUL ECONOMIC AND COMMERCIAL DIPLOMACY.

(a) MANDATE TO REVISE DEPARTMENT OF STATE PERFORMANCE MEASURES FOR ECONOMIC AND COMMERCIAL DIPLOMACY.—The Secretary shall, as part of the Department's next regularly scheduled review on metrics and performance measures, include revisions of Department performance measures for economic and commercial diplomacy, by identifying outcome-oriented, and not process-oriented, performance metrics, including metrics that—

(1) measure how Department efforts advanced specific economic and commercial objectives and led to successes for the United States or other private sector actors overseas; and

(2) focus on customer satisfaction with Department services and assistance.

(b) PLAN FOR ENSURING COMPLETE DATA FOR PERFORMANCE MEASURES.—As part of the review required under subsection (a), the Secretary shall include a plan for ensuring that—

(1) the Department, both at its main headquarters and at domestic and overseas posts, maintains and fully updates data on performance measures; and

(2) Department leadership and the appropriate congressional committees can evaluate the extent to which the Department is advancing United States economic and commercial interests abroad through meeting performance targets.

(c) REPORT ON PRIVATE SECTOR SURVEYS.—The Secretary shall prepare a report that lists and describes all the methods through which the Department conducts surveys of the private sector to measure private sector satisfaction with assistance and services provided by the Department to advance private sector economic and commercial goals in foreign markets.

(d) REPORT.—Not later than 90 days after conducting the review pursuant to subsection (a), the Secretary shall submit to the appropriate congressional committees—

(1) the revised performance metrics required under subsection (a); and

(2) the report required under subsection (c).

SEC. 6503. CHIEF OF MISSION ECONOMIC RESPONSIBILITIES.

Section 207 of the Foreign Service Act of 1980 (22 U.S.C. 3927) is amended by adding at the end the following:

''(e) EMBASSY ECONOMIC TEAM.—

''(1) COORDINATION AND SUPERVISION.—Each chief of mission shall coordinate and supervise the implementation of all United States economic policy interests within the host country in which the diplomatic mission is located, among all United States Government departments and agencies present in such country.

''(2) ACCOUNTABILITY.—The chief of mission is responsible for the performance of the diplomatic mission in advancing United States economic policy interests within the host country.

''(3) MISSION ECONOMIC TEAM.—The chief of mission shall designate appropriate embassy staff to form a mission economic team that—

''(A) monitors notable economic, commercial, and investment-related developments in the host country; and

''(B) develops plans and strategies for advancing United States economic and commercial interests in the host country, including—

''(i) tracking legislative, regulatory, judicial, and policy developments that could affect United States economic, commercial, and investment interests;

''(ii) advocating for best practices with respect to policy and regulatory developments;

''(iii) conducting regular analyses of market systems, trends, prospects, and opportunities for value-addition, including risk assessments and constraints analyses of key sectors and of United States strategic competitiveness, and other reporting on commercial opportunities and investment climate; and

''(iv) providing recommendations for responding to developments that may adversely affect United States economic and commercial interests.''.

SEC. 6504. DIRECTION TO EMBASSY DEAL TEAMS.

(a) PURPOSES.—The purposes of deal teams at United States embassies and consulates are—

(1) to promote a private sector-led approach—

(A) to advance economic growth and job creation that is tailored, as appropriate, to specific economic sectors; and

(B) to advance strategic partnerships;

(2) to prioritize efforts—

(A) to identify commercial and investment opportunities;

(B) to advocate for improvements in the business and investment climate;

(C) to engage and consult with private sector partners; and

(D) to report on the activities described in subparagraphs (A) through (C), in accordance with the applicable requirements under sections 706 and 707 of the Championing American Business Through Diplomacy Act of 2019 (22 U.S.C. 9902 and 9903);

(3)(A)(i) to identify trade and investment opportunities for United States companies in foreign markets; or

(ii) to assist with existing trade and investment opportunities already identified by United States companies; and

(B) to deploy United States Government economic and other tools to help such United States companies to secure their objectives;

(4) to identify and facilitate opportunities for entities in a host country to increase exports to, or investment in, the United States in order to grow two-way trade and investment;

(5) to modernize, streamline, and improve access to resources and services designed to promote increased trade and investment opportunities;

(6) to identify and secure United States or allied government support of strategic projects, such as ports, railways, energy production and distribution, critical minerals development, telecommunications networks, and other critical infrastructure projects vulnerable to predatory investment by an authoritarian country or entity in such country where support or investment serves an important United States interest;

(7) to coordinate across the Unites States Government to ensure the appropriate and most effective use of United States Government tools to support United States economic, commercial, and investment objectives; and

(8) to coordinate with the multi-agency DC Central Deal Team, established in February 2020, on the matters described in paragraphs (1) through (7) and other relevant matters.

(b) CLARIFICATION.—A deal team may be composed of the personnel comprising the mission economic team formed pursuant to section 207(e)(3) of the Foreign Service Act of 1980, as added by section 6503.

(c) RESTRICTIONS.—A deal team may not provide support for, or assist a United States person with a transaction involving, a government, or an entity owned or controlled by a government, if the Secretary determines that such government—

(1) has repeatedly provided support for acts of international terrorism, as described in—

(A) section 1754(c)(1)(A)(i) of the Export Control Reform Act of 2018 (subtitle B of title XVII of Public Law 115–232);

(B) section 620A(a) of the Foreign Assistance Act of 1961 (22 U.S.C. 2371(a));

(C) section 40(d) of the Arms Export Control Act (22 U.S.C. 2780(d)); or

(D) any other relevant provision of law; or

(2) has engaged in an activity that would trigger a restriction under section 116(a) or 502B(a)(2) of the Foreign Assistance Act of 1961 (22 U.S.C. 2151n(a) and 2304(a)(2)) or any other relevant provision of law.

(d) FURTHER RESTRICTIONS.—

(1) PROHIBITION ON SUPPORT OF SANCTIONED PERSONS.—Deal teams may not carry out activities prohibited under United States sanctions laws or regulations, including dealings with persons on the list of specially designated persons and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury, except to the extent otherwise authorized by the Secretary of the Treasury or the Secretary.

(2) PROHIBITION ON SUPPORT OF ACTIVITIES SUBJECT TO SANCTIONS.—Any person receiving support from a deal team must be in compliance with all United States sanctions laws and regulations as a condition for receiving such assistance.

(e) CHIEF OF MISSION AUTHORITY AND ACCOUNTABILITY.—The chief of mission to a foreign country—

(1) is the designated leader of a deal team in such country; and

(2) shall be held accountable for the performance and effectiveness of United States deal teams in such country.

(f) GUIDANCE CABLE.—The Department shall send out regular guidance on Deal Team efforts by an All Diplomatic and Consular Posts (referred to in this section as ''ALDAC'') that—

(1) describes the role of deal teams; and

(2) includes relevant and up-to-date information to enhance the effectiveness of deal teams in a country.

(g) CONFIDENTIALITY OF INFORMATION.—

(1) IN GENERAL.—In preparing the cable required under subsection (f), the Secretary shall protect from disclosure any proprietary information of a United States person marked as business confidential information unless the person submitting such information—

(A) had notice, at the time of submission, that such information would be released by; or

(B) subsequently consents to the release of such information.

(2) TREATMENT AS TRADE SECRETS.—Proprietary information obtained by the United States Government from a United States person pursuant to the activities of deal teams shall be—

(A) considered to be trade secrets and commercial or financial information (as such terms are used under section 552b(c)(4) of title 5, United States Code); and

(B) exempt from disclosure without the express approval of the person.

(h) SUNSET.—The requirements under subsections (f) through (h) shall terminate on the date that is 5 years after the date of the enactment of this Act.

SEC. 6505. ESTABLISHMENT OF A "DEAL TEAM OF THE YEAR" AWARD.

(a) ESTABLISHMENT.—The Secretary shall establish a new award, to be known as the ''Deal Team of the Year Award'', and annually present the award to a deal team at one United States mission in each region to recognize outstanding achievements in supporting a United States company or companies pursuing commercial deals abroad or in identifying new deal prospects for United States companies.

(b) AWARD CONTENT.—

(1) DEPARTMENT OF STATE.—Each member of a deal team receiving an award pursuant to subsection (a) shall receive a certificate that is signed by the Secretary and—

(A) in the case of a member of the Foreign Service, is included in the next employee evaluation report; or

(B) in the case of a Civil Service employee, is included in the next annual performance review.

(2) OTHER FEDERAL AGENCIES.—If an award is presented pursuant to subsection (a) to a Federal Government employee who is not employed by the Department, the employing agency may determine whether to provide such employee any recognition or benefits in addition to the recognition or benefits provided by the Department.

(c) ELIGIBILITY.—Any interagency economics team at a United States overseas mission under chief of mission authority that assists United States companies with identifying, navigating, and securing trade and investment opportunities in a foreign country or that facilitates beneficial foreign investment into the United States is eligible for an award under this section.

(d) REPORT.—Not later than the last day of the fiscal year in which awards are presented pursuant to subsection (a), the Secretary shall submit a report to the appropriate congressional committees that includes—

(1) each mission receiving a Deal Team of the Year Award.

(2) the names and agencies of each awardee within the recipient deal teams; and

(3) a detailed description of the reason such deal teams received such award.

TITLE LXVI—PUBLIC DIPLOMACY

SEC. 6601. PUBLIC DIPLOMACY OUTREACH.

(a) COORDINATION OF RESOURCES.—The Administrator of the United States Agency for International Development and the Secretary shall direct public affairs sections at United States embassies and USAID Mission Program Officers at USAID missions to coordinate, enhance and prioritize resources for public diplomacy and awareness campaigns around United States diplomatic and development efforts, including through—

(1) the utilization of new media technology for maximum public engagement; and

(2) enact coordinated comprehensive community outreach to increase public awareness and understanding and appreciation of United States diplomatic and development efforts.

(b) DEVELOPMENT OUTREACH AND COORDINATION OFFICERS.—USAID should prioritize hiring of additional Development Outreach and Coordination officers in USAID missions to support the purposes of subsection (a).

(c) BEST PRACTICES.—The Secretary and the Administrator of USAID shall identify 10 countries in which Embassies and USAID missions have successfully executed efforts, including monitoring and evaluation of such efforts, described in (a) and develop best practices to be turned into Department and USAID guidance.

SEC. 6602. MODIFICATION ON USE OF FUNDS FOR RADIO FREE EUROPE/RADIO LIBERTY.

In section 308(h) of the United States International Broadcasting Act of 1994 (22 U.S.C. 6207(h)) is amended—

(1) by striking subparagraphs (1), (3), and (5); and

(2) by redesignating paragraphs (2) and (4) as paragraphs (1) and (2), respectively.

SEC. 6603. INTERNATIONAL BROADCASTING.

(a) VOICE OF AMERICA.—Section 303 of the United States International Broadcasting Act of 1994 (22 U.S.C. 6202) is amended by adding at the end the following:

''(d) VOICE OF AMERICA OPERATIONS AND STRUCTURE.—

''(1) OPERATIONS.—The Director of the Voice of America (VOA)—

''(A) shall direct and supervise the operations of VOA, including making all major decisions relating its staffing; and

''(B) may utilize any authorities made available to the United States Agency for Global Media or to its Chief Executive Officer under this Act or under any other Act to carry out its operations in an effective manner.

''(2) PLAN.—Not later than 180 days after the date of the enactment of this Act, the Director of VOA shall submit to the Committee on Foreign Relations and the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Foreign Affairs and the Committee on Homeland Security of the House of Representatives a plan to ensure that the personnel structure of VOA is sufficient to effectively carry out the principles described in subsection (c).''.

(b) APPOINTMENT OF CHIEF EXECUTIVE OFFICER.—Section 304 of such Act (22 U.S.C. 6203) is amended—

(1) in subsection (a), by striking ''as an entity described in section 104 of title 5, United States Code'' and inserting ''under the direction of the International Broadcasting Advisory Board''; and

(2) in subsection (b)(1), by striking the second sentence and inserting the following: ''Notwithstanding any other provision of law, when a vacancy arises, until such time as a Chief Executive Officer, to whom sections 3345 through 3349b of title 5, United States Code, shall not apply, is appointed

and confirmed by the Senate, an acting Chief Executive Officer shall be appointed by the International Broadcasting Advisory Board and shall continue to serve and exercise the authorities and powers under this title as the sole means of filling such vacancy, for the duration of the vacancy. In the absence of a quorum on the International Broadcasting Advisory Board, the first principal deputy of the United States Agency for Global Media shall serve as acting Chief Executive Officer.''.

(c) CHIEF EXECUTIVE OFFICER AUTHORITIES.—Section 305(a)(1) of such Act (22 U.S.C. 6204(a)(1)) is amended by striking ''To supervise all'' and inserting ''To oversee, coordinate, and provide strategic direction for''.

(d) INTERNATIONAL BROADCASTING ADVISORY BOARD.—Section 306(a) of such Act (22 U.S.C. 6205(a)) is amended by striking ''advise the Chief Executive Officer of'' and inserting ''oversee and advise the Chief Executive Officer and''.

(e) RADIO FREE AFRICA; RADIO FREE AMERICAS.—Not later than 180 days after the date of the enactment of this Act, the Chief Executive Officer of the United States Agency for Global Media shall submit a report to the Committee on Foreign Relations of the Senate, the Committee on Appropriations of the Senate, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Appropriations of the House of Representatives that details the financial and other resources that would be required to establish and operate 2 nonprofit organizations, modeled after Radio Free Europe/Radio Liberty and Radio Free Asia, for the purposes of providing accurate, uncensored, and reliable news and information to—

(1) the region of Africa, with respect to Radio Free Africa; and

(2) the region of Latin America and the Caribbean, with respect to Radio Free Americas.

SEC. 6604. JOHN LEWIS CIVIL RIGHTS FELLOWSHIP PROGRAM.

(a) IN GENERAL.—The Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2451 et seq.) is amended by adding at the end the following:

''SEC. 115. JOHN LEWIS CIVIL RIGHTS FELLOWSHIP PROGRAM.

''(a) ESTABLISHMENT.—There is established the John Lewis Civil Rights Fellowship Program (referred to in this section as the 'Fellowship Program') within the J. William Fulbright Educational Exchange Program.

''(b) PURPOSES.—The purposes of the Fellowship Program are—

''(1) to honor the legacy of Representative John Lewis by promoting a greater understanding of the history and tenets of nonviolent civil rights movements; and

''(2) to advance foreign policy priorities of the United States by promoting studies, research, and international exchange in the subject of nonviolent movements that established and protected civil rights around the world.

''(c) ADMINISTRATION.—The Bureau of Educational and Cultural Affairs (referred to in this section as the 'Bureau') shall administer the Fellowship Program in accordance with policy guidelines established by the Board, in consultation with the binational Fulbright Commissions and United States Embassies.

''(d) SELECTION OF FELLOWS.—

''(1) IN GENERAL.—The Board shall annually select qualified individuals to participate in the Fellowship Program. The Bureau may determine the number of fellows selected each year, which, whenever feasible, shall be not fewer than 25.

''(2) OUTREACH.—

''(A) IN GENERAL.—To the extent practicable, the Bureau shall conduct outreach at institutions, including—

''(i) minority serving institutions, including historically Black colleges and universities; and

''(ii) other appropriate institutions, as determined by the Bureau.

''(B) DEFINITIONS.—In this paragraph:

''(i) HISTORICALLY BLACK COLLEGE AND UNIVERSITY.—The term 'historically Black college and university' has the meaning given the term 'part B institution' in section 322 of the Higher Education Act of 1965 (20 U.S.C. 1061).

''(ii) MINORITY SERVING INSTITUTION.—The term 'minority-serving institution' means an eligible institution under section 371(a) of the Higher Education Act of 1965 (20 U.S.C. 1067q(a)).

''(e) FELLOWSHIP ORIENTATION.—Annually, the Bureau shall organize and administer a fellowship orientation, which shall—

''(1) be held in Washington, D.C., or at another location selected by the Bureau; and

''(2) include programming to honor the legacy of Representative John Lewis.

''(f) STRUCTURE.—

''(1) WORK PLAN.—To carry out the purposes described in subsection (b)—

''(A) each fellow selected pursuant to subsection (d) shall arrange an internship or research placement—

''(i) with a nongovernmental organization, academic institution, or other organization approved by the Bureau; and

''(ii) in a country with an operational Fulbright U.S. Student Program; and

''(B) the Bureau shall, for each fellow, approve a work plan that identifies the target objectives for the fellow, including specific duties and responsibilities relating to those objectives.

''(2) CONFERENCES; PRESENTATIONS.—Each fellow shall—

''(A) attend a fellowship orientation organized and administered by the Bureau under subsection (e);

''(B) not later than the date that is 1 year after the end of the fellowship period, attend a fellowship summit organized and administered by the Bureau, which—

''(i) whenever feasible, shall be held in Atlanta, Georgia, or another location of importance to the civil rights movement in the United States; and

''(ii) may coincide with other events facilitated by the Bureau; and

''(C) at such summit, give a presentation on lessons learned during the period of fellowship.

''(3) FELLOWSHIP PERIOD.—Each fellowship under this section shall continue for a period determined by the Bureau, which, whenever feasible, shall be not fewer than 10 months.

''(g) FELLOWSHIP AWARD.—The Bureau shall provide each fellow under this section with an allowance that is equal to the amount needed for—

''(1) the reasonable costs of the fellow during the fellowship period; and

''(2) travel and lodging expenses related to attending the orientation and summit required under subsection (e)(2).

''(h) ANNUAL REPORT.—Not later than 1 year after the date of the completion of the Fellowship Program by the initial cohort of fellows selected under subsection (d), and annually thereafter, the Secretary of State shall submit to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report on the implementation of the Fellowship Program, including—

''(1) a description of the demographics of the cohort of fellows who completed a fellowship during the preceding 1-year period;

''(2) a description of internship and research placements, and research projects selected by such cohort, under the Fellowship Program, including feedback from—

''(A) such cohort on implementation of the Fellowship Program; and

''(B) the Secretary on lessons learned; and

''(3) an analysis of trends relating to the diversity of each cohort of fellows and the topics of projects completed since the establishment of the Fellowship Program.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS TO THE MUTUAL EDUCATIONAL AND CULTURAL EXCHANGE ACT OF 1961.—Section 112(a) of the Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2460(a)) is amended—

(1) in paragraph (8), by striking ''; and'' and inserting a semicolon;

(2) in paragraph (9), by striking the period and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(10) the John Lewis Civil Rights Fellowship Program established under section 115, which provides funding for international internships and research placements for early- to mid-career individuals from the United States to study nonviolent civil rights movements in self-arranged placements with universities or nongovernmental organizations in foreign countries.''.

SEC. 6605. DOMESTIC ENGAGEMENT AND PUBLIC AFFAIRS.

(a) STRATEGY REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall develop a strategy to explain to the American people the value of the work of the Department and United States foreign policy to advancing the national security of the United States. The strategy shall include—

(1) tools to inform the American people about the non-partisan importance of United States diplomacy and foreign relations and to utilize public diplomacy to meet the United States' national security priorities;

(2) efforts to reach the widest possible audience of Americans, including those who historically have not had exposure to United States foreign policy efforts and priorities;

(3) additional staffing and resource needs including—

(A) domestic positions within the Bureau of Global Public Affairs to focus on engagement with the American people as outlined in paragraph (1);

(B) positions within the Bureau of Educational and Cultural Affairs to enhance program and reach the widest possible audience;

(C) increasing the number of fellowship and detail programs that place Foreign Service and civil service employees outside the Department for a limited time, including Pearson Fellows, Reta Joe Lewis Local Diplomats, Brookings Fellows, and Georgetown Fellows; and

(D) recommendations for increasing participation in the Hometown Diplomats program and evaluating this program as well as other opportunities for Department officers to engage with American audiences while traveling within the United States.

SEC. 6606. EXTENSION OF GLOBAL ENGAGEMENT CENTER.

Section 1287(j) of the National Defense Authorization Act for Fiscal Year 2017 (22 U.S.C. 2656 note) is amended by striking ''on the date that is 8 years after the date of the enactment of this Act'' and inserting ''on September 30, 2026''.

SEC. 6607. PAPERWORK REDUCTION ACT.

Section 5603(d) of the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81) is amended by adding at the end the following new paragraph:

''(4) United States Information and Educational Exchange Act of 1948 (Public Law 80–402).''.

SEC. 6608. MODERNIZATION AND ENHANCEMENT STRATEGY.

Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit a strategy to the appropriate congressional committees for—

(1) modernizing and increasing the operational and programming capacity of American Spaces and American Corners throughout the world, including by leveraging public-private partnerships;

(2) providing salaries to locally employed staff of American Spaces and American Corners; and

(3) providing opportunities for United States businesses and nongovernmental organizations to better utilize American Spaces.

TITLE LXVII—OTHER MATTERS

SEC. 6701. INTERNSHIPS OF UNITED STATES NATIONALS AT INTERNATIONAL ORGANIZATIONS.

(a) IN GENERAL.—The Secretary of State is authorized to bolster efforts to increase the number of United States citizens representative of the American people occupying positions in the United Nations system, agencies, and commissions, and in other international organizations, including by awarding grants to educational institutions and students.

(b) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of State shall submit a report to the appropriate congressional committees that identifies—

(1) the number of United States citizens who are involved in internship programs at international organizations;

(2) the distribution of the individuals described in paragraph (1) among various international organizations; and

(3) grants, programs, and other activities that are being utilized to recruit and fund United States citizens to participate in internship programs at international organizations.

(c) ELIGIBILITY.—An individual referred to in subsection (a) is an individual who—

(1) is enrolled at or received their degree within two years from—

(A) an institution of higher education; or

(B) an institution of higher education based outside the United States, as determined by the Secretary of State; and

(2) is a citizen of the United States.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $1,500,000 for the Department of State for fiscal year 2024 to carry out the grant program authorized under subsection (a).

SEC. 6702. TRAINING FOR INTERNATIONAL ORGANIZATIONS.

(a) TRAINING PROGRAMS.—Section 708 of the Foreign Service Act of 1980 (22 U.S.C. 4028) is amended by adding at the end of the following new subsection:

''(e) TRAINING IN MULTILATERAL DIPLOMACY.—

''(1) IN GENERAL.—The Secretary, in consultation with other senior officials as appropriate, shall establish training courses on—

''(A) the conduct of diplomacy at international organizations and other multilateral institutions; and

''(B) broad-based multilateral negotiations of international instruments.

''(2) REQUIRED TRAINING.—Members of the Service, including appropriate chiefs of mission and other officers who are assigned to United States missions representing the United States to international organizations and other multilateral institutions or who are assigned in other positions that have as their primary responsibility formulation of policy related to such organizations and institutions, or participation in negotiations of international instruments, shall receive specialized training in the areas described in paragraph (1) prior to the beginning of service for such assignment or, if receiving such training at that time is not practical, within the first year of beginning such assignment.''.

(b) TRAINING FOR DEPARTMENT EMPLOYEES.—The Secretary of State shall ensure that employees of the Department of State who are assigned to positions described in paragraph (2) of subsection (e) of section 708 of the Foreign Service Act of 1980 (as added by subsection (a) of this section), including members of the civil service or general service, or who are seconded to international organizations for a period of at least one year, receive training described in such subsection and participate in other such courses as the Secretary may recommend to build or augment identifiable skills that would be useful for such Department officials representing United States interests at these institutions and organizations.

SEC. 6703. MODIFICATION TO TRANSPARENCY ON INTERNATIONAL AGREEMENTS AND NON-BINDING INSTRUMENTS.

Section 112b of title 1, United States Code, as most recently amended by section 5947 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 3476), is further amended—

(1) by redesignating subsections (h) through (l) as subsections (i) through (m), respectively; and

(2) by inserting after subsection (g) the following:

''(h)(1) If the Secretary is aware or has reason to believe that the requirements of subsection (a), (b), or (c) have not been fulfilled with respect to an international agreement or qualifying non-binding instrument, the Secretary shall—

''(A) immediately bring the matter to the attention of the office or agency responsible for the agreement or qualifying non-binding instrument; and

''(B) request the office or agency to provide within 7 days the text or other information necessary to fulfill the requirements of the relevant subsection.

''(2) Upon receiving the text or other information requested pursuant to paragraph (1), the Secretary shall—

''(A) fulfill the requirements of subsection (a), (b), or (c), as the case may be, with respect to the agreement or qualifying non-binding instrument concerned—

''(i) by including such text or other information in the next submission required by subsection (a)(1);

''(ii) by providing such information in writing to the Majority Leader of the Senate, the Minority Leader of the Senate, the Speaker of the House of Representatives, the Minority Leader of the House of Representatives, and the appropriate congressional committees before provision of the submission described in clause (i); or

''(iii) in relation to subsection (b), by making the text of the agreement or qualifying non-binding instrument and the information described in subparagraphs (A)(iii) and (B)(iii) of subsection (a)(1) relating to the agreement or instrument available to the public on the website of the Department of State within 15 days of receiving the text or other information requested pursuant to paragraph (1); and

''(B) provide to the Majority Leader of the Senate, the Minority Leader of the Senate, the Speaker of the House of Representatives, the Minority Leader of the House of Representatives, and the appropriate congressional committees, either in the next submission required by subsection (a)(1) or before such submission, a written statement explaining the reason for the delay in fulfilling the requirements of subsection (a), (b), or (c), as the case may be.''.

SEC. 6704. REPORT ON PARTNER FORCES UTILIZING UNITED STATES SECURITY ASSISTANCE IDENTIFIED AS USING HUNGER AS A WEAPON OF WAR.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States recognizes the link between armed conflict and conflict-induced food insecurity;

(2) Congress recognizes and condemns the role of nefarious security actors, including state and non-state armed groups, who have utilized hunger as a weapon of war, including through the unanimous adoption of House of Representatives Resolution 922 and Senate Resolution 669 relating to ''[c]ondemning the use of hunger as a weapon of war and recognizing the effect of conflict on global food security and famine''; and

(3) the United States should use the diplomatic and humanitarian tools at our disposal to not only fight global hunger, mitigate the spread of conflict, and promote critical, lifesaving assistance, but also hold perpetrators using hunger as a weapon of war to account.

(b) DEFINITIONS.—In this paragraph:

(1) HUNGER AS A WEAPON OF WAR.—The term ''hunger as a weapon of war'' means—

(A) intentional starvation of civilians;

(B) intentional and reckless destruction, removal, looting, or rendering useless objects necessary for food production and distribution, such as farmland, markets, mills, food processing and storage facilities, food stuffs, crops, livestock, agricultural assets, waterways, water systems, drinking water facilities and supplies, and irrigation networks;

(C) undue denial of humanitarian access and deprivation of objects indispensable to people's survival, such as food supplies and nutrition resources; and

(D) willful interruption of market systems for populations in need, including through the prevention of travel and manipulation of currency exchange.

(2) SECURITY ASSISTANCE.—The term ''security assistance'' means assistance meeting the definition of ''security assistance'' under section 502B of the Foreign Assistance Act of 1961 (22 U.S.C. 2304).

(c) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary, in consultation with the Administrator of the United States Agency for International Development, and the Secretary of Defense shall submit a report to the appropriate congressional committees, the Committee on Armed Services of the Senate, and the Committee on Armed Services of the House of Representatives regarding—

(1) United States-funded security assistance and cooperation; and

(2) whether the governments and entities receiving such assistance have or are currently using hunger as a weapon of war.

(d) ELEMENTS.—The report required under subsection (c) shall—

(1) identify countries receiving United States-funded security assistance or participating in security programs and activities, including in coordination with the Department of Defense, that are currently experiencing famine-like conditions as a result of conflict;

(2) describe the actors and actions taken by such actors in the countries identified pursuant to paragraph (1) who are utilizing hunger as a weapon of war; and

(3) describe any current or existing plans to continue providing United States-funded security assistance to recipient countries.

(e) FORM.—The report required under subsection (c) shall be submitted in unclassified form, but may include a classified annex.

SEC. 6705. INFRASTRUCTURE PROJECTS AND INVESTMENTS BY THE UNITED STATES AND PEOPLE'S REPUBLIC OF CHINA.

Not later than 1 year after the date of the enactment of this Act, the Secretary, in coordination with the Administrator of the United States Agency for International Development and the Chief Executive Officer of the Development Finance Corporation, shall submit to the appropriate congressional committees, the Committee on Appropriations of the Senate, and the Committee on Appropriations of the House of Representatives a report regarding the opportunities and costs of infrastructure projects in Middle East, African, and Latin American and Caribbean countries, which shall—

(1) describe the nature and total funding of United States infrastructure investments and construction in Middle East, African, and Latin American and Caribbean countries, and that of United States allies and partners in the same regions;

(2) describe the nature and total funding of infrastructure investments and construction by the People's Republic of China in Middle East, African, and Latin American and Caribbean countries;

(3) assess the national security threats posed by the infrastructure investment gap between the People's Republic of China and the United States and United States allies and partners, including—

(A) infrastructure, such as ports;

(B) access to critical and strategic minerals;

(C) digital and telecommunication infrastructure;

(D) threats to supply chains; and

(E) general favorability towards the People's Republic of China and the United States and United States' allies and partners among Middle East, African, and Latin American and Caribbean countries;

(4) assess the opportunities and challenges for companies based in the United States to invest in infrastructure projects in Middle East, African, and Latin American and Caribbean countries;

(5) describe options for the United States Government to undertake to increase support for United States businesses engaged in large-scale infrastructure projects in Middle East, African, and Latin American and Caribbean countries; and

(6) identify regional infrastructure priorities, ranked according to United States national interests, in Middle East, African, and Latin American and Caribbean countries.

SEC. 6706. SPECIAL ENVOYS.

(a) REVIEW.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall conduct a review of all special envoy positions to determine—

(1) which special envoy positions are needed to accomplish the mission of the Department;

(2) which special envoy positions could be absorbed into the Department's existing bureau structure;

(3) which special envoy positions were established by an Act of Congress; and

(4) which special envoy positions were created by the Executive Branch without explicit congressional approval.

(b) REPORT.—Not later than 60 days after the completion of the review required under subsection (a), the Secretary shall submit a report to the appropriate congressional committees that includes—

(1) a list of every special envoy position in the Department;

(2) a detailed justification of the need for each special envoy, if warranted;

(3) a list of the special envoy positions that could be absorbed into the Department's existing bureau structure without compromising the mission of the Department;

(4) a list of the special envoy positions that were created by an Act of Congress; and

(5) a list of the special envoy positions that are not expressly authorized by statute.

SEC. 6707. US-ASEAN CENTER.

(a) DEFINED TERM.—In this section, the term ''ASEAN'' means the Association of Southeast Asian Nations.

(b) ESTABLISHMENT.—The Secretary is authorized to enter into a public-private partnership for the purposes of establishing a US-ASEAN Center in the United States to support United States economic and cultural engagement with Southeast Asia.

(c) FUNCTIONS.—Notwithstanding any other provision of law, the US-ASEAN Center established pursuant to subsection (b) may—

(1) provide grants for research to support and elevate the importance of the US-ASEAN partnership;

(2) facilitate activities to strengthen US-ASEAN trade and investment;

(3) expand economic and technological relationships between ASEAN countries and the United States into new areas of cooperation;

(4) provide training to United States citizens and citizens of ASEAN countries that improve people-to-people ties;

(5) develop educational programs to increase awareness for the United States and ASEAN countries on the importance of relations between the United States and ASEAN countries; and

(6) carry out other activities the Secretary considers necessary to strengthen ties between the United States and ASEAN countries and achieve the objectives of the US-ASEAN Center.

SEC. 6708. BRIEFINGS ON THE UNITED STATES-EUROPEAN UNION TRADE AND TECHNOLOGY COUNCIL.

It is the sense of Congress that the United States-European Union Trade and Technology Council is an important forum for the United States and in the European Union to engage on transatlantic trade, investment, and engagement on matters related to critical and emerging technology and that the Department should provide regular updates to the appropriate congressional committees on the deliverables and policy initiatives announced at United States-European Union Trade and Technology Council ministerials

SEC. 6709. MODIFICATION AND REPEAL OF REPORTS.

(a) COUNTRY REPORTS ON HUMAN RIGHTS PRACTICES.—

(1) IN GENERAL.—The Secretary shall examine the production of the 2023 and subsequent annual Country Reports on Human Rights Practices by the Assistant Secretary for Democracy, Human Rights, and Labor as required under sections 116(d) and 502B(b) of the Foreign Assistance Act of 1961 (22 U.S.C. 2151n(d), 2304(b)) to maximize—

(A) cost and personnel efficiencies;

(B) the potential use of data and analytic tools and visualization; and

(C) advancement of the modernization agenda for the Department announced by the Secretary on October 27, 2021.

(2) TRANSNATIONAL REPRESSION AMENDMENTS TO ANNUAL COUNTRY REPORTS ON HUMAN RIGHTS PRACTICES.—Section 116(d) of the Foreign Assistance Act of 1961 (22 U.S.C. 2151n(d)) is amended by adding at the end the following new paragraph:

''(13) Wherever applicable, a description of the nature and extent of acts of transnational repression that occurred during the preceding year, including identification of—

''(A) incidents in which a government harassed, intimidated, or killed individuals outside of their internationally recognized borders and the patterns of such repression among repeat offenders;

''(B) countries in which such transnational repression occurs and the role of the governments of such countries in enabling, preventing, mitigating, and responding to such acts;

''(C) the tactics used by the governments of countries identified pursuant to subparagraph (A), including the actions identified and any new techniques observed;

''(D) in the case of digital surveillance and harassment, the type of technology or platform, including social media, smart city technology, health tracking systems, general surveillance technology, and data access, transfer, and storage procedures, used by the governments of countries identified pursuant to subparagraph (A) for such actions; and

''(E) groups and types of individuals targeted by acts of transnational repression in each country in which such acts occur.''.

(b) ELIMINATION OF OBSOLETE REPORTS.—

(1) ANNUAL REPORTS RELATING TO FUNDING MECHANISMS FOR TELECOMMUNICATIONS SECURITY AND SEMICONDUCTORS.—Division H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283) is amended—

(A) in section 9202(a)(2) (47 U.S.C. 906(a)(2))—

(i) by striking subparagraph (C); and

(ii) by redesignating subparagraph (D) as subparagraph (C); and

(B) in section 9905 (15 U.S.C. 4655)—

(i) by striking subsection (c); and

(ii) by redesignating subsection (d) as subsection (c).

(2) REPORTS RELATING TO FOREIGN ASSISTANCE TO COUNTER RUSSIAN INFLUENCE AND MEDIA ORGANIZATIONS CONTROLLED BY RUSSIA.—The Countering Russian Influence in Europe and Eurasia Act of 2017 (title II of Public Law 115–44) is amended—

(A) in section 254(e)—

(i) in paragraph (1)—

(I) by striking ''IN GENERAL.—'';

(II) by redesignating subparagraphs (A), (B), and (C) as paragraphs (1), (2), and (3), respectively, and moving such paragraphs 2 ems to the left; and

(ii) by striking paragraph (2); and

(B) by striking section 255.

(3) ANNUAL REPORT ON PROMOTING THE RULE OF LAW IN THE RUSSIAN FEDERATION.—Section 202 of the Russia and Moldova Jackson-Vanik Repeal and Sergei Magnitsky Rule of Law Accountability Act of 2012 (Public Law 112–208) is amended by striking subsection (a).

(4) ANNUAL REPORT ON ADVANCING FREEDOM AND DEMOCRACY.—Section 2121 of the Advance Democratic Values, Address Nondemocratic Countries, and Enhance Democracy Act of 2007 (title XXI of Public Law 110–53) is amended by striking subsection (c).

(5) ANNUAL REPORTS ON UNITED STATES-VIETNAM HUMAN RIGHTS DIALOGUE MEETINGS.—Section 702 of the Foreign Relations Authorization Act, Fiscal Year 2003 (22 U.S.C. 2151n note) is repealed.

SEC. 6710. MODIFICATION OF BUILD ACT OF 2018 TO PRIORITIZE PROJECTS THAT ADVANCE NATIONAL SECURITY.

Section 1412 of the Build Act of 2018 (22 U.S.C. 9612) is amended by adding at the end the following subsection:

''(d) PRIORITIZATION OF NATIONAL SECURITY INTERESTS.—The Corporation shall prioritize the provision of support under title II in projects that advance core national security interests of the United States with respect to the People's Republic of China.''.

SEC. 6711. PERMITTING FOR INTERNATIONAL BRIDGES.

The International Bridge Act of 1972 (33 U.S.C. 535 et seq.) is amended by inserting after section 5 the following:

"SEC. 6. PERMITTING FOR INTERNATIONAL BRIDGES.

''(a) DEFINITIONS.—In this section:

''(1) ELIGIBLE APPLICANT.—The term 'eligible applicant' means an entity that has submitted an application for a Presidential permit during the period beginning on December 1, 2020, and ending on December 31, 2024, for any of the following:

''(A) 1 or more international bridges in Webb County, Texas.

''(B) An international bridge in Cameron County, Texas.

''(C) An international bridge in Maverick County, Texas.

''(2) PRESIDENTIAL PERMIT.—

''(A) IN GENERAL.—The term 'Presidential permit' means—

''(i) an approval by the President to construct, maintain, and operate an international bridge under section 4; or

''(ii) an approval by the President to construct, maintain, and operate an international bridge pursuant to a process described in Executive Order 13867 (84 Fed. Reg. 15491; relating to Issuance of Permits With Respect to Facilities and Land Transportation Crossings at the International Boundaries of the United States) (or any successor Executive Order).

''(B) INCLUSION.—The term 'Presidential permit' includes an amendment to an approval described in clause (i) or (ii) of subparagraph (A).

''(3) SECRETARY.—The term 'Secretary' means the Secretary of State.

''(b) APPLICATION.—An eligible applicant for a Presidential permit to construct, maintain, and operate an international bridge shall submit an application for the permit to the Secretary.

''(c) RECOMMENDATION.—

''(1) IN GENERAL.—Not later than 60 days after the date on which the Secretary receives an application under subsection (b), the Secretary shall make a recommendation to the President—

''(A) to grant the Presidential permit; or

''(B) to deny the Presidential permit.

''(2) CONSIDERATION.—The sole basis for a recommendation under paragraph (1) shall be whether the international bridge is in the foreign policy interests of the United States.

''(d) PRESIDENTIAL ACTION.—

''(1) IN GENERAL.—The President shall grant or deny the Presidential permit for an application under subsection (b) by not later than 60 days after the earlier of—

''(A) the date on which the Secretary makes a recommendation under subsection (c)(1); and

''(B) the date on which the Secretary is required to make a recommendation under subsection (c)(1).

''(2) NO ACTION.—

''(A) IN GENERAL.—Subject to subparagraph (B), if the President does not grant or deny the Presidential permit for an application under subsection (b) by the deadline described in paragraph (1), the Presidential permit shall be considered to have been granted as of that deadline.

''(B) REQUIREMENT.—As a condition on a Presidential permit considered to be granted under subparagraph (A), the eligible applicant shall complete all applicable environmental documents required pursuant to Public Law 91–190 (42 U.S.C. 4321 et seq.).

''(e) DOCUMENT REQUIREMENTS.—Notwithstanding any other provision of law, the Secretary shall not require an eligible applicant for a Presidential permit—

''(1) to include in the application under subsection (b) environmental documents prepared pursuant to Public Law 91–190 (42 U.S.C. 4321 et seq.); or

''(2) to have completed any environmental review under Public Law 91–190 (42 U.S.C. 4321 et seq.) prior to the President granting a Presidential permit under subsection (d).

''(f) RULES OF CONSTRUCTION.—Nothing in this section—

''(1) prohibits the President from granting a Presidential permit conditioned on the eligible applicant completing all environmental documents pursuant to Public Law 91–190 (42 U.S.C. 4321 et seq.);

''(2) prohibits the Secretary from requesting a list of all permits and approvals from Federal, State, and local agencies that the eligible applicant believes are required in connection with the international bridge, or a brief description of how those permits and approvals will be acquired; or

''(3) exempts an eligible applicant from the requirement to complete all environmental documents pursuant to Public Law 91–190 (42 U.S.C. 4321 et seq.) prior to construction of an international bridge.''.

TITLE LXVIII—AUKUS MATTERS

SEC. 6801. DEFINITIONS.

In this title:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations and the Committee on Armed Services of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Armed Services of the House of Representatives.

(2) AUKUS PARTNERSHIP.—

(A) IN GENERAL.—The term ''AUKUS partnership'' means the enhanced trilateral security partnership between Australia, the United Kingdom, and the United States announced in September 2021.

(B) PILLARS.—The AUKUS partnership includes the following two pillars:

(i) Pillar One is focused on developing a pathway for Australia to acquire conventionally armed, nuclear-powered submarines.

(ii) Pillar Two is focused on enhancing trilateral collaboration on advanced defense capabilities, including hypersonic and counter hypersonic capabilities, quantum technologies, undersea technologies, and artificial intelligence.

(3) INTERNATIONAL TRAFFIC IN ARMS REGULATIONS.—The term ''International Traffic in Arms Regulations'' means subchapter M of chapter I of title 22, Code of Federal Regulations (or successor regulations).

Subtitle A—Outlining the AUKUS Partnership

SEC. 6811. STATEMENT OF POLICY ON THE AUKUS PARTNERSHIP.

(a) STATEMENT OF POLICY.—It is the policy of the United States that—

(1) the AUKUS partnership is integral to United States national security, increasing United States and allied capability in the undersea domain of the Indo-Pacific, and developing cutting edge military capabilities;

(2) the transfer of conventionally armed, nuclear-powered submarines to Australia, if implemented appropriately, will position the United States and its allies to maintain peace and security in the Indo-Pacific;

(3) the transfer of conventionally armed, nuclear-powered submarines to Australia will be safely implemented with the highest nonproliferation standards in alignment with—

(A) safeguards established by the International Atomic Energy Agency; and

(B) the Additional Protocol to the Agreement between Australia and the International Atomic Energy Agency for the application of safeguards in connection with the Treaty on the Non-Proliferation of Nuclear Weapons, signed at Vienna September 23, 1997;

(4) the United States will enter into a mutual defense agreement with Australia, modeled on the 1958 bilateral mutual defense agreement with the United Kingdom, for the sole purpose of facilitating the transfer of naval nuclear propulsion technology to Australia;

(5) working with the United Kingdom and Australia to develop and provide joint advanced military capabilities to promote security and stability in the Indo-Pacific will have tangible impacts on United States military effectiveness across the world;

(6) in order to better facilitate cooperation under Pillar 2 of the AUKUS partnership, it is imperative that every effort be made to streamline United States export controls consistent with necessary and reciprocal security safeguards on United States technology at least comparable to those of the United States;

(7) the trade authorization mechanism for the AUKUS partnership administered by the Department is a critical first step in reimagining the United States export control system to carry out the AUKUS partnership and expedite technology sharing and defense trade among the United States, Australia, and the United Kingdom; and

(8) the vast majority of United States defense trade with Australia is conducted through the Foreign Military Sales (FMS) process, the preponderance of defense trade with the United Kingdom is conducted through Direct Commercial Sales (DCS), and efforts to streamline United States export controls should focus on both Foreign Military Sales and Direct Commercial Sales.

SEC. 6812. SENIOR ADVISOR FOR THE AUKUS PARTNERSHIP AT THE DEPARTMENT OF STATE.

(a) IN GENERAL.—There shall be a Senior Advisor for the AUKUS partnership at the Department, who—

(1) shall report directly to the Secretary; and

(2) may not hold another position in the Department concurrently while holding the position of Senior Advisor for the AUKUS partnership.

(b) DUTIES.—The Senior Advisor shall—

(1) be responsible for coordinating efforts related to the AUKUS partnership across the Department, including the bureaus engaged in nonproliferation, defense trade, security assistance, and diplomatic relations in the Indo-Pacific;

(2) serve as the lead within the Department for implementation of the AUKUS partnership in interagency processes, consulting with counterparts in the Department of Defense, the Department of Commerce, the Department of Energy, the Office of Naval Reactors, and any other relevant agencies;

(3) lead diplomatic efforts related to the AUKUS partnership with other governments to explain how the partnership will enhance security and stability in the Indo-Pacific; and

(4) consult regularly with the appropriate congressional committees, and keep such committees fully and currently informed, on issues related to the AUKUS partnership, including in relation to the AUKUS Pillar 1 objective of supporting Australia's acquisition of conventionally armed, nuclear-powered submarines and the Pillar 2 objective of jointly developing advanced military capabilities to support security and stability in the Indo-Pacific, as affirmed by the President of the United States, the Prime Minister of the United Kingdom, and the Prime Minister of Australia on April 5, 2022.

(c) PERSONNEL TO SUPPORT THE SENIOR ADVISOR.—The Secretary shall ensure that the

Senior Advisor is adequately staffed, including through encouraging details, or assignment of employees of the Department, with expertise related to the implementation of the AUKUS partnership, including staff with expertise in—

(1) nuclear policy, including nonproliferation;

(2) defense trade and security cooperation, including security assistance; and

(3) relations with respect to political-military issues in the Indo-Pacific and Europe.

(d) NOTIFICATION.—Not later than 180 days after the date of the enactment of this Act, and not later than 90 days after a Senior Advisor assumes such position, the Secretary shall notify the appropriate congressional committees of the number of full-time equivalent positions, relevant expertise, and duties of any employees of the Department or detailees supporting the Senior Advisor.

(e) SUNSET.—

(1) IN GENERAL.—The position of the Senior Advisor for the AUKUS partnership shall terminate on the date that is 8 years after the date of the enactment of this Act.

(2) RENEWAL.—The Secretary may renew the position of the Senior Advisor for the AUKUS partnership for 1 additional period of 4 years, following notification to the appropriate congressional committees of the renewal.

Subtitle B—Authorization for AUKUS Submarine Training

SEC. 6823. AUSTRALIA, UNITED KINGDOM, AND UNITED STATES SUBMARINE SECURITY TRAINING.

(a) IN GENERAL.—The President may transfer or export directly to private individuals in Australia defense services that may be transferred to the Government of Australia under the Arms Export Control Act (22 U.S.C. 2751 et seq.) to support the development of the submarine industrial base of Australia necessary for submarine security activities between Australia, the United Kingdom, and the United States, including if such individuals are not officers, employees, or agents of the Government of Australia.

(b) SECURITY CONTROLS.—

(1) IN GENERAL.—Any defense service transferred or exported under subsection (a) shall be subject to appropriate security controls to ensure that any sensitive information conveyed by such transfer or export is protected from disclosure to persons unauthorized by the United States to receive such information.

(2) CERTIFICATION.—Not later than 30 days before the first transfer or export of a defense service under subsection (a), and annually thereafter, the President shall certify to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives that the controls described in paragraph (1) will protect the information described in such paragraph for the defense services so transferred or exported.

(c) APPLICATION OF REQUIREMENTS FOR RETRANSFER AND REEXPORT.—Any person who receives any defense service transferred or exported under subsection (a) may retransfer or reexport such service to other persons only in accordance with the requirements of the Arms Export Control Act (22 U.S.C. 2751 et seq.).

Subtitle C—Streamlining and Protecting Transfers of United States Military Technology From Compromise

SEC. 6831. PRIORITY FOR AUSTRALIA AND THE UNITED KINGDOM IN FOREIGN MILITARY SALES AND DIRECT COMMERCIAL SALES.

(a) IN GENERAL.—The President shall institute policies and procedures for letters of request from Australia and the United Kingdom to transfer defense articles and services under section 21 of the Arms Export Control Act (22 U.S.C. 2761) related to AUKUS to receive expedited consideration and processing relative to all other letters of request other than from Taiwan and Ukraine.

(b) TECHNOLOGY TRANSFER POLICY FOR AUSTRALIA, CANADA, AND THE UNITED KINGDOM.—

(1) IN GENERAL.—The Secretary, in consultation with the Secretary of Defense, shall create an anticipatory release policy for the transfer of technologies described in paragraph (2) to Australia, the United Kingdom, and Canada through Foreign Military Sales and Direct Commercial Sales that are not covered by an exemption under the International Traffic in Arms Regulations.

(2) CAPABILITIES DESCRIBED.—The capabilities described in this paragraph are—

(A) Pillar One-related technologies associated with submarine and associated combat systems; and

(B) Pillar Two-related technologies, including hypersonic missiles, cyber capabilities, artificial intelligence, quantum technologies, undersea capabilities, and other advanced technologies.

(3) EXPEDITED DECISION-MAKING.—Review of a transfer under the policy established under paragraph (1) shall be subject to an expedited decision-making process.

(c) INTERAGENCY POLICY AND GUIDANCE.—The Secretary and the Secretary of Defense shall jointly review and update interagency policies and implementation guidance related to requests for Foreign Military Sales and Direct Commercial Sales, including by incorporating the anticipatory release provisions of this section.

SEC. 6832. IDENTIFICATION AND PRE-CLEARANCE OF PLATFORMS, TECHNOLOGIES, AND EQUIPMENT FOR SALE TO AUSTRALIA AND THE UNITED KINGDOM THROUGH FOREIGN MILITARY SALES AND DIRECT COMMERCIAL SALES.

Not later than 90 days after the date of the enactment of this Act, and on a biennial basis thereafter for 8 years, the President shall submit to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report that includes a list of advanced military platforms, technologies, and equipment that are pre-cleared and prioritized for sale and release to Australia, the United Kingdom and Canada through the Foreign Military Sales and Direct Commercial Sales programs without regard to whether a letter of request or license to purchase such platforms, technologies, or equipment has been received from any of such country. Each list may include items that are not related to the AUKUS partnership but may not include items that are not covered by an exemption under the International Traffic in Arms Regulations except unmanned aerial or hypersonic systems.

SEC. 6833. EXPORT CONTROL EXEMPTIONS AND STANDARDS.

(a) IN GENERAL.—Section 38 of the Arms Export Control Act of 1976 (22 U.S.C. 2778) is amended by adding at the end the following new subsection:

''(l) AUKUS DEFENSE TRADE COOPERATION.—

''(1) EXEMPTION FROM LICENSING AND APPROVAL REQUIREMENTS.—Subject to paragraph (2) and notwithstanding any other provision of this section, the Secretary of State may exempt from the licensing or other approval requirements of this section exports and transfers (including reexports, retransfers, temporary imports, and brokering activities) of defense articles and defense services between or among the United States, the United Kingdom, and Australia that—

''(A) are not excluded by those countries;

''(B) are not referred to in subsection(j)(1)(C)(ii); and

''(C) involve only persons or entities that are approved by—

''(i) the Secretary of State; and

''(ii) the Ministry of Defense, the Ministry of Foreign Affairs, or other similar authority within those countries.

''(2) LIMITATION.—The authority provided in subparagraph (1) shall not apply to any activity, including exports, transfers, reexports, retransfers, temporary imports, or brokering, of United States defense articles and defense services involving any country or a person or entity of any country other than the United States, the United Kingdom, and Australia.''.

(b) REQUIRED STANDARDS OF EXPORT CONTROLS.—The Secretary may only exercise the authority under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, with respect to the United Kingdom or Australia 30 days after the Secretary submits to the appropriate congressional committees an unclassified certification and detailed unclassified assessment (which may include a classified annex) that the country concerned has implemented standards for a system of export controls that satisfies the elements of section 38(j)(2) of the Arms Export Control Act (22 U.S.C. 2778(j)(2)) for United States-origin defense articles and defense services, and for controlling the provision of military training, that are comparable to those standards administered by the United States in effect on the date of the enactment of this Act.

(c) CERTAIN REQUIREMENTS NOT APPLICABLE.—

(1) IN GENERAL.—Paragraphs (1), (2), and (3) of section 3(d) of the Arms Export Control Act (22 U.S.C. 2753(d)) shall not apply to any export or transfer that is the subject of an exemption under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section.

(2) QUARTERLY REPORTS.—The Secretary shall—

(A) require all exports and transfers that would be subject to the requirements of paragraphs (1), (2), and (3) of section 3(d) of the Arms Export Control Act (22 U.S.C. 2753(d)) but for the application of subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, to be reported to the Secretary; and

(B) submit such reports to the Committee on Foreign Relations of the Senate and Committee on Foreign Affairs of the House of Representatives on a quarterly basis.

(d) SUNSET.—Any exemption under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, shall terminate on the date that is 15 years after the date of the enactment of this Act. The Secretary of State may renew such exemption for 5 years upon a certification to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives that such exemption is in the vital national interest of the United States with a detailed justification for such certification.

(e) REPORTS.—

(1) ANNUAL REPORT.—

(A) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and annually thereafter until no exemptions under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, remain in effect, the Secretary shall submit to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report on the operation of exemptions issued under such subsection (l)(1), including whether any changes

to such exemptions are likely to be made in the coming year.

(B) INITIAL REPORT.—The first report submitted under subparagraph (A) shall also include an assessment of key recommendations the United States Government has provided to the Governments of Australia and the United Kingdom to revise laws, regulations, and policies of such countries that are required to implement the AUKUS partnership.

(2) REPORT ON EXPEDITED REVIEW OF EXPORT LICENSES FOR EXPORTS OF ADVANCED TECHNOLOGIES.—Not later than 180 days after the date of the enactment of this Act, the Secretary of State, in coordination with the Secretary of Defense, shall report on the practical application of a possible ''fast track'' decision-making process for applications, classified or unclassified, to export defense articles and defense services to Australia, the United Kingdom, and Canada.

SEC. 6834. EXPEDITED REVIEW OF EXPORT LICENSES FOR EXPORTS OF ADVANCED TECHNOLOGIES TO AUSTRALIA, THE UNITED KINGDOM, AND CANADA.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary, in coordination with the Secretary of Defense, shall initiate a rulemaking to establish an expedited decision-making process, classified or unclassified, for applications to export to Australia, the United Kingdom, and Canada commercial, advanced-technology defense articles and defense services that are not covered by an exemption under the International Traffic in Arms Regulations.

(b) ELIGIBILITY.—To qualify for the expedited decision-making process described in subsection (a), an application shall be for an export of defense articles or defense services that will take place wholly within or between the physical territory of Australia, Canada, or the United Kingdom and the United States and with governments or corporate entities from such countries.

(c) AVAILABILITY OF EXPEDITED PROCESS.—The expedited decision-making process described in subsection (a) shall be available for both classified and unclassified items, and the process must satisfy the following criteria to the extent practicable:

(1) Any licensing application to export defense articles and services that is related to a government to government agreement must be approved, returned, or denied within 30 days of submission.

(2) For all other licensing requests, any review shall be completed not later than 45 calendar days after the date of application.

SEC. 6835. UNITED STATES MUNITIONS LIST.

(a) EXEMPTION FOR THE GOVERNMENTS OF THE UNITED KINGDOM AND AUSTRALIA FROM CERTIFICATION AND CONGRESSIONAL NOTIFICATION REQUIREMENTS APPLICABLE TO CERTAIN TRANSFERS.—Section 38(f)(3) of the Arms Export Control Act (22 U.S.C. 2778(f)(3)) is amended by inserting '', the United Kingdom, or Australia'' after ''Canada''.

(b) UNITED STATES MUNITIONS LIST PERIODIC REVIEWS.—

(1) IN GENERAL.—The Secretary, acting through authority delegated by the President to carry out periodic reviews of items on the United States Munitions List under section 38(f) of the Arms Export Control Act (22 U.S.C. 2778(f)) and in coordination with the Secretary of Defense, the Secretary of Energy, the Secretary of Commerce, and the Director of the Office of Management and Budget, shall carry out such reviews not less frequently than every 3 years.

(2) SCOPE.—The periodic reviews described in paragraph (1) shall focus on matters including—

(A) interagency resources to address current threats faced by the United States;

(B) the evolving technological and economic landscape;

(C) the widespread availability of certain technologies and items on the United States Munitions List; and

(D) risks of misuse of United States-origin defense articles.

(3) CONSULTATION.—The Department of State may consult with the Defense Trade Advisory Group (DTAG) and other interested parties in conducting the periodic review described in paragraph (1).

Subtitle D—Other AUKUS Matters

SEC. 6841. REPORTING RELATED TO THE AUKUS PARTNERSHIP.

(a) REPORT ON INSTRUMENTS.—

(1) IN GENERAL.—Not later than 30 days after the signature, conclusion, or other finalization of any non-binding instrument related to the AUKUS partnership, the President shall submit to the appropriate congressional committees the text of such instrument.

(2) NON-DUPLICATION OF EFFORTS; RULE OF CONSTRUCTION.—To the extent the text of a non-binding instrument is submitted to the appropriate congressional committees pursuant to subsection (a), such text does not need to be submitted to Congress pursuant to section 112b(a)(1)(A)(ii) of title 1, United States Code, as amended by section 5947 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 3476). Paragraph (1) shall not be construed to relieve the executive branch of any other requirement of section 112b of title 1, United States Code, as amended so amended, or any other provision of law.

(3) DEFINITIONS.—In this section:

(A) IN GENERAL.—The term ''text'', with respect to a non-binding instrument, includes—

(i) any annex, appendix, codicil, side agreement, side letter, or any document of similar purpose or function to the aforementioned, regardless of the title of the document, that is entered into contemporaneously and in conjunction with the non-binding instrument; and

(ii) any implementing agreement or arrangement, or any document of similar purpose or function to the aforementioned, regardless of the title of the document, that is entered into contemporaneously and in conjunction with the non-binding instrument.

(B) CONTEMPORANEOUSLY AND IN CONJUNCTION WITH.—As used in subparagraph (A), the term ''contemporaneously and in conjunction with''—

(i) shall be construed liberally; and

(ii) may not be interpreted to require any action to have occurred simultaneously or on the same day.

(b) REPORT ON AUKUS PARTNERSHIP.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and biennially thereafter, the Secretary, in coordination with the Secretary of Defense and other appropriate heads of agencies, shall submit to the appropriate congressional committees a report on the AUKUS partnership.

(2) ELEMENTS.—Each report required under paragraph (1) shall include the following elements:

(A) STRATEGY.—

(i) An identification of the defensive military capability gaps and capacity shortfalls that the AUKUS partnership seeks to offset.

(ii) An explanation of the total cost to the United States associated with Pillar One of the AUKUS partnership.

(iii) A detailed explanation of how enhanced access to the industrial base of Australia is contributing to strengthening the United States strategic position in Asia.

(iv) A detailed explanation of the military and strategic benefit provided by the improved access provided by naval bases of Australia.

(v) A detailed assessment of how Australia's sovereign conventionally armed nuclear attack submarines contribute to United States defense and deterrence objectives in the Indo-Pacific region.

(B) IMPLEMENT THE AUKUS PARTNERSHIP.—

(i) Progress made on achieving the Optimal Pathway established for Australia's development of conventionally armed, nuclear-powered submarines, including the following elements:

(I) A description of progress made by Australia, the United Kingdom, and the United States to conclude an Article 14 arrangement with the International Atomic Energy Agency.

(II) A description of the status of efforts of Australia, the United Kingdom, and the United States to build the supporting infrastructure to base conventionally armed, nuclear-powered attack submarines.

(III) Updates on the efforts by Australia, the United Kingdom, and the United States to train a workforce that can build, sustain, and operate conventionally armed, nuclear-powered attack submarines.

(IV) A description of progress in establishing submarine support facilities capable of hosting rotational forces in western Australia by 2027.

(V) A description of progress made in improving United States submarine production capabilities that will enable the United States to meet—

(aa) its objectives of providing up to five Virginia Class submarines to Australia by the early to mid-2030's; and

(bb) United States submarine production requirements.

(ii) Progress made on Pillar Two of the AUKUS partnership, including the following elements:

(I) An assessment of the efforts of Australia, the United Kingdom, and the United States to enhance collaboration across the following eight trilateral lines of effort:

(aa) Underseas capabilities.

(bb) Quantum technologies.

(cc) Artificial intelligence and autonomy.

(dd) Advanced cyber capabilities.

(ee) Hypersonic and counter-hypersonic capabilities.

(ff) Electronic warfare.

(gg) Innovation.

(hh) Information sharing.

(II) An assessment of any new lines of effort established.

SA 933. Mr. MENENDEZ (for himself, Mr. KAINE, Mr. SCHATZ, and Mr. SCHUMER) submitted an amendment intended to be proposed by him to the bill S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

Strike sections 6801 through 6841 and insert the following:

SEC. 6801. DEFINITIONS.

In this title:

(1) ACTIVITIES NECESSARY FOR THE SAFE HOSTING AND OPERATION OF NUCLEAR-POWERED SUBMARINES.—The term ''activities necessary for the safe hosting and operation of nuclear-powered submarines'' means each of the following activities as it relates to Virginia class and Astute class submarines, as appropriate, and in accordance with applicable United States Navy or other Government

agency instructions, regulations, and standards:

(A) Maintenance.

(B) Training.

(C) Technical oversight.

(D) Safety certifications.

(E) Physical, communications, operational, cyber, and other security measures.

(F) Port operations and infrastructure support.

(G) Storage, including spare parts, repair parts, and munitions.

(H) Hazardous material handling and storage.

(I) Information technology systems.

(J) Support functions, including those related to medical, quality-of-life, and family needs.

(K) Such other related tasks as may be specified by the Secretary of Defense.

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations, the Committee on Armed Services, and the Committee on Appropriations of the Senate; and

(B) the Committee on Foreign Affairs, the Committee on Armed Services, and the Committee on Appropriations of the House of Representatives.

(3) AUKUS PARTNERSHIP.—

(A) IN GENERAL.—The term ''AUKUS partnership'' means the enhanced trilateral security partnership between Australia, the United Kingdom, and the United States announced in September 2021.

(B) PILLARS.—The AUKUS partnership includes the following two pillars:

(i) Pillar One is focused on developing a pathway for Australia to acquire conventionally armed, nuclear-powered submarines.

(ii) Pillar Two is focused on enhancing trilateral collaboration on advanced defense capabilities, including hypersonic and counter hypersonic capabilities, quantum technologies, undersea technologies, and artificial intelligence.

(4) INTERNATIONAL TRAFFIC IN ARMS REGULATIONS.—The term ''International Traffic in Arms Regulations'' means subchapter M of chapter I of title 22, Code of Federal Regulations (or successor regulations).

Subtitle A—Outlining the AUKUS Partnership

SEC. 6811. STATEMENT OF POLICY ON THE AUKUS PARTNERSHIP.

(a) STATEMENT OF POLICY.—It is the policy of the United States that—

(1) the AUKUS partnership is integral to United States national security, increasing United States and allied capability in the undersea domain of the Indo-Pacific, and developing cutting edge military capabilities;

(2) the transfer of conventionally armed, nuclear-powered submarines to Australia, if implemented appropriately, will position the United States and its allies to maintain peace and security in the Indo-Pacific;

(3) the transfer of conventionally armed, nuclear-powered submarines to Australia will be safely implemented with the highest nonproliferation standards in alignment with—

(A) safeguards established by the International Atomic Energy Agency; and

(B) the Additional Protocol to the Agreement between Australia and the International Atomic Energy Agency for the application of safeguards in connection with the Treaty on the Non-Proliferation of Nuclear Weapons, signed at Vienna September 23, 1997;

(4) the United States will enter into a mutual defense agreement with Australia, modeled on the 1958 bilateral mutual defense agreement with the United Kingdom, for the sole purpose of facilitating the transfer of naval nuclear propulsion technology to Australia;

(5) working with the United Kingdom and Australia to develop and provide joint advanced military capabilities to promote security and stability in the Indo-Pacific will have tangible impacts on United States military effectiveness across the world;

(6) in order to better facilitate cooperation under Pillar 2 of the AUKUS partnership, it is imperative that every effort be made to streamline United States export controls consistent with necessary and reciprocal security safeguards on United States technology at least comparable to those of the United States;

(7) the trade authorization mechanism for the AUKUS partnership administered by the Department is a critical first step in reimagining the United States export control system to carry out the AUKUS partnership and expedite technology sharing and defense trade among the United States, Australia, and the United Kingdom; and

(8) the vast majority of United States defense trade with Australia is conducted through the Foreign Military Sales (FMS) process, the preponderance of defense trade with the United Kingdom is conducted through Direct Commercial Sales (DCS), and efforts to streamline United States export controls should focus on both Foreign Military Sales and Direct Commercial Sales.

SEC. 6812. SENIOR ADVISOR FOR THE AUKUS PARTNERSHIP AT THE DEPARTMENT OF STATE.

(a) IN GENERAL.—There shall be a Senior Advisor for the AUKUS partnership at the Department, who—

(1) shall report directly to the Secretary; and

(2) may not hold another position in the Department concurrently while holding the position of Senior Advisor for the AUKUS partnership.

(b) DUTIES.—The Senior Advisor shall—

(1) be responsible for coordinating efforts related to the AUKUS partnership across the Department, including the bureaus engaged in nonproliferation, defense trade, security assistance, and diplomatic relations in the Indo-Pacific;

(2) serve as the lead within the Department for implementation of the AUKUS partnership in interagency processes, consulting with counterparts in the Department of Defense, the Department of Commerce, the Department of Energy, the Office of Naval Reactors, and any other relevant agencies;

(3) lead diplomatic efforts related to the AUKUS partnership with other governments to explain how the partnership will enhance security and stability in the Indo-Pacific; and

(4) consult regularly with the appropriate congressional committees, and keep such committees fully and currently informed, on issues related to the AUKUS partnership, including in relation to the AUKUS Pillar 1 objective of supporting Australia's acquisition of conventionally armed, nuclear-powered submarines and the Pillar 2 objective of jointly developing advanced military capabilities to support security and stability in the Indo-Pacific, as affirmed by the President of the United States, the Prime Minister of the United Kingdom, and the Prime Minister of Australia on April 5, 2022.

(c) PERSONNEL TO SUPPORT THE SENIOR ADVISOR.—The Secretary shall ensure that the Senior Advisor is adequately staffed, including through encouraging details, or assignment of employees of the Department, with expertise related to the implementation of the AUKUS partnership, including staff with expertise in—

(1) nuclear policy, including nonproliferation;

(2) defense trade and security cooperation, including security assistance; and

(3) relations with respect to political-military issues in the Indo-Pacific and Europe.

(d) NOTIFICATION.—Not later than 180 days after the date of the enactment of this Act, and not later than 90 days after a Senior Advisor assumes such position, the Secretary shall notify the appropriate congressional committees of the number of full-time equivalent positions, relevant expertise, and duties of any employees of the Department or detailees supporting the Senior Advisor.

(e) SUNSET.—

(1) IN GENERAL.—The position of the Senior Advisor for the AUKUS partnership shall terminate on the date that is 8 years after the date of the enactment of this Act.

(2) RENEWAL.—The Secretary may renew the position of the Senior Advisor for the AUKUS partnership for 1 additional period of 4 years, following notification to the appropriate congressional committees of the renewal.

Subtitle B—Authorization for Submarine Transfers, Support, and Infrastructure Improvement Activities

SEC. 6821. AUSTRALIA, UNITED KINGDOM, AND UNITED STATES SUBMARINE SECURITY ACTIVITIES.

(a) AUTHORIZATION TO TRANSFER SUBMARINES.—

(1) IN GENERAL.—Subject to paragraphs (3), (4), and (11), the President may, under section 21 of the Arms Export Control Act (22 U.S.C. 2761)—

(A) transfer not more than two Virginia class submarines from the inventory of the United States Navy to the Government of Australia on a sale basis; and

(B) transfer not more than one additional Virginia class submarine to the Government of Australia on a sale basis.

(2) REQUIREMENTS NOT APPLICABLE.—A sale carried out under paragraph (1)(B) shall not be subject to the requirements of—

(A) section 36 of the Arms Export Control Act (22 U.S.C. 2776); or

(B) section 8677 of title 10, United States Code.

(3) CERTIFICATION; BRIEFING.—

(A) PRESIDENTIAL CERTIFICATION.—The President may exercise the authority provided by paragraph (1) not earlier than 60 days after the date on which the President certifies to the appropriate congressional committees that any submarine transferred under such authority shall be used to support the joint security interests and military operations of the United States and Australia.

(B) WAIVER OF CHIEF OF NAVAL OPERATIONS CERTIFICATION.—The requirement for the Chief of Naval Operations to make a certification under section 8678 of title 10, United States Code, shall not apply to a transfer under paragraph (1).

(C) BRIEFING.—Not later than 90 days before the sale of any submarine under paragraph (1), the Secretary of the Navy shall provide to the appropriate congressional committees a briefing on—

(i) the impacts of such sale to the readiness of the submarine fleet of the United States, including with respect to maintenance timelines, deployment-to-dwell ratios, training, exercise participation, and the ability to meet combatant commander requirements;

(ii) the impacts of such sale to the submarine industrial base of the United States, including with respect to projected maintenance requirements, acquisition timelines for spare and replacement parts, and future procurement of Virginia class submarines for the submarine fleet of the United States; and

(iii) other relevant topics as determined by the Secretary of the Navy.

(4) REQUIRED MUTUAL DEFENSE AGREEMENT.—Before any transfer occurs under subsection (a), the United States and Australia shall have a mutual defense agreement in place, which shall—

(A) provide a clear legal framework for the sole purpose of Australia's acquisition of conventionally armed, nuclear-powered submarines; and

(B) meet the highest nonproliferation standards for the exchange of nuclear materials, technology, equipment, and information between the United States and Australia.

(5) SUBSEQUENT SALES.—A sale of a Virginia class submarine that occurs after the sales described in paragraph (1) may occur only if such sale is explicitly authorized in legislation enacted after the date of the enactment of this Act.

(6) COSTS OF TRANSFER.—Any expense incurred by the United States in connection with a transfer under paragraph (1) shall be charged to the Government of Australia.

(7) CREDITING OF RECEIPTS.—Notwithstanding any provision of law pertaining to the crediting of amounts received from a sale under section 21 of the Arms Export Control Act (22 U.S.C. 2761), any funds received by the United States pursuant to a transfer under paragraph (1) shall—

(A) be credited, at the discretion of the President, to—

(i) the fund or account used in incurring the original obligation for the acquisition of submarines transferred under paragraph (1);

(ii) an appropriate fund or account available for the purposes for which the expenditures for the original acquisition of submarines transferred under paragraph (1) were made; or

(iii) any other fund or account available for the purpose specified in paragraph (8)(B); and

(B) remain available for obligation until expended.

(8) USE OF FUNDS.—Subject to paragraphs (9) and (10)(A), the President may use funds received pursuant to a transfer under paragraph (1)—

(A) for the acquisition of submarines to replace the submarines transferred to the Government of Australia; or

(B) for improvements to the submarine industrial base of the United States.

(9) PLAN FOR USE OF FUNDS.—Before any use of any funds received pursuant to a transfer under paragraph (1), the President shall submit to the appropriate congressional committees a plan detailing how such funds will be used, including specific amounts and purposes.

(10) NOTIFICATION AND REPORT.—

(A) ACHIEVEMENT.—Not later than 30 days before the date of the first delivery of a submarine under paragraph (1), the President shall notify the appropriate congressional committees that—

(i) Submarine Rotational Forces-West Full Operational Capability to support 4 rotationally deployed Virginia class submarines and one Astute class submarine has been achieved, including the Government of Australia having demonstrated the domestic capacity to fully perform all the associated activities necessary for the safe hosting and operation of nuclear-powered submarines; and

(ii) Australia Sovereign-Ready Initial Operational Capability to support a Royal Australian Navy Virginia class submarine has been achieved, including the Government of Australia having demonstrated the domestic capacity to fully perform all the associated—

(I) activities necessary for the safe hosting and operation of nuclear-powered submarines;

(II) crewing;

(III) operations;

(IV) regulatory and emergency procedures, including those specific to nuclear power plants; and

(V) detailed planning for enduring Virginia class submarine ownership, including each significant event leading up to and including nuclear defueling.

(B) AMOUNTS.—Not later than 30 days after the date of any transfer under paragraph (1), and upon any transfer or depositing of funds received pursuant to such a transfer, the President shall notify the appropriate congressional committees of—

(i) the amount of funds received pursuant to the transfer; and

(ii) the specific account or fund into which the funds described in clause (i) are deposited.

(C) ANNUAL REPORT.—Not later than November 30 of each year until 1 year after the date on which all funds received pursuant to transfers under paragraph (1) have been fully expended, the President shall submit to the committees described in subparagraph (A) a report that includes an accounting of how funds received pursuant to transfers under paragraph (1) were used in the fiscal year preceding the fiscal year in which the report is submitted.

(11) APPLICABILITY OF EXISTING LAW TO TRANSFER OF SPECIAL NUCLEAR MATERIAL AND UTILIZATION FACILITIES FOR MILITARY APPLICATIONS.—

(A) IN GENERAL.—With respect to any special nuclear material for use in utilization facilities or any portion of a submarine transferred under paragraph (1) constituting utilization facilities for military applications under section 91 of the Atomic Energy Act of 1954 (42 U.S.C. 2121), transfer of such material or such facilities shall occur only in accordance with such section 91.

(B) USE OF FUNDS.—The President may use proceeds from a transfer described in subparagraph (A) for the acquisition of submarine naval nuclear propulsion plants and nuclear fuel to replace propulsion plants and fuel transferred to the Government of Australia.

(b) REPAIR AND REFURBISHMENT OF AUKUS SUBMARINES.—Section 8680 of title 10, United States Code, is amended—

(1) by redesignating subsection (c) as subsection (d); and

(2) by inserting after subsection (b) the following new subsection (c):

''(c) REPAIR AND REFURBISHMENT OF CERTAIN SUBMARINES.—

''(1) SHIPYARD.—Notwithstanding any other provision of this section, and subject to paragraph (2), the President shall determine the appropriate public or private shipyard in the United States, Australia, or the United Kingdom to perform any repair or refurbishment of a United States submarine involved in submarine security activities between the United States, Australia, and the United Kingdom.

''(2) CONDITIONS.—

''(A) IN GENERAL.—The President may determine under paragraph (1) that repair or refurbishment described in such paragraph may be performed in Australia or the United Kingdom only if—

''(i) such repair or refurbishment will facilitate the development of repair or refurbishment capabilities in the United Kingdom or Australia;

''(ii) such repair or refurbishment will be for a United States submarine that is assigned to a port outside of the United States; or

''(iii) the Secretary of Defense certifies to Congress that performing such repair or refurbishment at a shipyard in Australia or the United Kingdom is required due to an exigent threat to the national security interests of the United States.

''(B) CONSIDERATION.—In making a determination under subparagraph (A), the President shall consider any effects of such determination on the capacity and capability of shipyards in the United States.

''(C) BRIEFING REQUIRED.—Not later than 15 days after the date on which the Secretary of Defense makes a certification under subparagraph (A)(iii), the Secretary shall brief the congressional defense committees on—

''(i) the threat that requires the use of a shipyard in Australia or the United Kingdom; and

''(ii) opportunities to mitigate the future potential need to leverage foreign shipyards.

''(3) PERSONNEL.—Repair or refurbishment described in paragraph (1) may be carried out by personnel of the United States, the United Kingdom, or Australia in accordance with the international arrangements governing the submarine security activities described in such paragraph.''.

SEC. 6822. ACCEPTANCE OF CONTRIBUTIONS FOR AUSTRALIA, UNITED KINGDOM, AND UNITED STATES SUBMARINE SECURITY ACTIVITIES; AUKUS SUBMARINE SECURITY ACTIVITIES ACCOUNT.

(a) ACCEPTANCE AUTHORITY.—The President may accept from the Government of Australia contributions of money made by the Government of Australia for use by the Department of Defense in support of non-nuclear related aspects of submarine security activities between Australia, the United Kingdom, and the United States (AUKUS).

(b) ESTABLISHMENT OF AUKUS SUBMARINE SECURITY ACTIVITIES ACCOUNT.—

(1) IN GENERAL.—There is established in the Treasury of the United States a special account to be known as the ''AUKUS Submarine Security Activities Account''.

(2) CREDITING OF CONTRIBUTIONS OF MONEY.—Contributions of money accepted by the President under subsection (a) shall be credited to the AUKUS Submarine Security Activities Account.

(3) AVAILABILITY.—Amounts credited to the AUKUS Submarine Security Activities Account shall remain available until expended.

(c) USE OF AUKUS SUBMARINE SECURITY ACTIVITIES ACCOUNT.—

(1) IN GENERAL.—Subject to paragraph (2), and only after September 30, 2025, the President may use funds in the AUKUS Submarine Security Activities Account—

(A) for any purpose authorized by law that the President determines would support submarine security activities between Australia, the United Kingdom, and the United States;

(B) to carry out a military construction project related to the AUKUS partnership that is not otherwise authorized by law;

(C) to develop and increase the submarine industrial base workforce by investing in recruiting, training, and retaining key specialized labor at public and private shipyards; or

(D) to upgrade facilities, equipment, and infrastructure needed to repair and maintain submarines at public and private shipyards.

(2) PLAN FOR USE OF FUNDS.—Before any use of any funds in the AUKUS Submarine Security Activities Account, the President shall submit to the appropriate congressional committees a plan detailing—

(A) the amount of funds in the AUKUS Submarine Security Activities Account; and

(B) how such funds will be used, including specific amounts and purposes.

(d) TRANSFERS OF FUNDS.—

(1) IN GENERAL.—In carrying out subsection (c) and subject to paragraphs (2) and (5), the

President may transfer funds available in the AUKUS Submarine Security Activities Account to an account or fund available to the Department of Defense or any other appropriate agency.

(2) DEPARTMENT OF ENERGY.—In carrying out subsection (c), and in accordance with the Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.), the President may transfer funds available in the AUKUS Submarine Security Activities Account to an account or fund available to the Department of Energy to carry out activities related to submarine security activities between Australia, the United Kingdom, and the United States.

(3) AVAILABILITY FOR OBLIGATION.—Funds transferred under this subsection shall be available for obligation for the same time period and for the same purpose as the account or fund to which transferred.

(4) TRANSFER BACK TO ACCOUNT.—Upon a determination by the President that all or part of the funds transferred from the AUKUS Submarine Security Activities Account are not necessary for the purposes for which such funds were transferred, and subject to paragraph (5), all or such part of such funds shall be transferred back to the AUKUS Submarine Security Activities Account.

(5) NOTIFICATION AND REPORT.—

(A) NOTIFICATION.—The President shall notify the appropriate congressional committees of—

(i) before the transfer of any funds under this subsection—

(I) the amount of funds to be transferred; and

(II) the planned or anticipated purpose of such funds; and

(ii) before the obligation of any funds transferred under this subsection—

(I) the amount of funds to be obligated; and

(II) the purpose of the obligation.

(B) ANNUAL REPORT.—Not later than November 30 of each year until 1 year after the date on which all funds transferred under this subsection have been fully expended, the President shall submit to the committees described in subparagraph (A) a report that includes a detailed accounting of—

(i) the amount of funds transferred under this subsection during the fiscal year preceding the fiscal year in which the report is submitted; and

(ii) the purposes for which such funds were used.

(e) INVESTMENT OF MONEY.—

(1) AUTHORIZED INVESTMENTS.—The President may invest money in the AUKUS Submarine Security Activities Account in securities of the United States or in securities guaranteed as to principal and interest by the United States.

(2) INTEREST AND OTHER INCOME.—Any interest or other income that accrues from investment in securities referred to in paragraph (1) shall be deposited to the credit of the AUKUS Submarine Security Activities Account.

(f) RELATIONSHIP TO OTHER LAWS.—The authority to accept or transfer funds under this section is in addition to any other authority to accept or transfer funds.

SEC. 6823. AUSTRALIA, UNITED KINGDOM, AND UNITED STATES SUBMARINE SECURITY TRAINING.

(a) IN GENERAL.—The President may transfer or export directly to private individuals in Australia defense services that may be transferred to the Government of Australia under the Arms Export Control Act (22 U.S.C. 2751 et seq.) to support the development of the submarine industrial base of Australia necessary for submarine security activities between Australia, the United Kingdom, and the United States, including if such individuals are not officers, employees, or agents of the Government of Australia.

(b) SECURITY CONTROLS.—

(1) IN GENERAL.—Any defense service transferred or exported under subsection (a) shall be subject to appropriate security controls to ensure that any sensitive information conveyed by such transfer or export is protected from disclosure to persons unauthorized by the United States to receive such information.

(2) CERTIFICATION.—Not later than 30 days before the first transfer or export of a defense service under subsection (a), and annually thereafter, the President shall certify to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives that the controls described in paragraph (1) will protect the information described in such paragraph for the defense services so transferred or exported.

(c) APPLICATION OF REQUIREMENTS FOR RETRANSFER AND REEXPORT.—Any person who receives any defense service transferred or exported under subsection (a) may retransfer or reexport such service to other persons only in accordance with the requirements of the Arms Export Control Act (22 U.S.C. 2751 et seq.).

Subtitle C—Streamlining and Protecting Transfers of United States Military Technology From Compromise

SEC. 6831. PRIORITY FOR AUSTRALIA AND THE UNITED KINGDOM IN FOREIGN MILITARY SALES AND DIRECT COMMERCIAL SALES.

(a) IN GENERAL.—The President shall institute policies and procedures for letters of request from Australia and the United Kingdom to transfer defense articles and services under section 21 of the Arms Export Control Act (22 U.S.C. 2761) related to AUKUS to receive expedited consideration and processing relative to all other letters of request other than from Taiwan and Ukraine.

(b) TECHNOLOGY TRANSFER POLICY FOR AUSTRALIA, CANADA, AND THE UNITED KINGDOM.—

(1) IN GENERAL.—The Secretary, in consultation with the Secretary of Defense, shall create an anticipatory release policy for the transfer of technologies described in paragraph (2) to Australia, the United Kingdom, and Canada through Foreign Military Sales and Direct Commercial Sales that are not covered by an exemption under the International Traffic in Arms Regulations.

(2) CAPABILITIES DESCRIBED.—The capabilities described in this paragraph are—

(A) Pillar One-related technologies associated with submarine and associated combat systems; and

(B) Pillar Two-related technologies, including hypersonic missiles, cyber capabilities, artificial intelligence, quantum technologies, undersea capabilities, and other advanced technologies.

(3) EXPEDITED DECISION-MAKING.—Review of a transfer under the policy established under paragraph (1) shall be subject to an expedited decision-making process.

(c) INTERAGENCY POLICY AND GUIDANCE.—The Secretary and the Secretary of Defense shall jointly review and update interagency policies and implementation guidance related to requests for Foreign Military Sales and Direct Commercial Sales, including by incorporating the anticipatory release provisions of this section.

SEC. 6832. IDENTIFICATION AND PRE-CLEARANCE OF PLATFORMS, TECHNOLOGIES, AND EQUIPMENT FOR SALE TO AUSTRALIA AND THE UNITED KINGDOM THROUGH FOREIGN MILITARY SALES AND DIRECT COMMERCIAL SALES.

Not later than 90 days after the date of the enactment of this Act, and on a biennial basis thereafter for 8 years, the President shall submit to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report that includes a list of advanced military platforms, technologies, and equipment that are pre-cleared and prioritized for sale and release to Australia, the United Kingdom and Canada through the Foreign Military Sales and Direct Commercial Sales programs without regard to whether a letter of request or license to purchase such platforms, technologies, or equipment has been received from any of such country. Each list may include items that are not related to the AUKUS partnership but may not include items that are not covered by an exemption under the International Traffic in Arms Regulations except unmanned aerial or hypersonic systems.

SEC. 6833. EXPORT CONTROL EXEMPTIONS AND STANDARDS.

(a) IN GENERAL.—Section 38 of the Arms Export Control Act of 1976 (22 U.S.C. 2778) is amended by adding at the end the following new subsection:

''(l) AUKUS DEFENSE TRADE COOPERATION.—

''(1) EXEMPTION FROM LICENSING AND APPROVAL REQUIREMENTS.—Subject to paragraph (2) and notwithstanding any other provision of this section, the Secretary of State may exempt from the licensing or other approval requirements of this section exports and transfers (including reexports, retransfers, temporary imports, and brokering activities) of defense articles and defense services between or among the United States, the United Kingdom, and Australia that—

''(A) are not excluded by those countries;

''(B) are not referred to in subsection(j)(1)(C)(ii); and

''(C) involve only persons or entities that are approved by—

''(i) the Secretary of State; and

''(ii) the Ministry of Defense, the Ministry of Foreign Affairs, or other similar authority within those countries.

''(2) LIMITATION.—The authority provided in subparagraph (1) shall not apply to any activity, including exports, transfers, reexports, retransfers, temporary imports, or brokering, of United States defense articles and defense services involving any country or a person or entity of any country other than the United States, the United Kingdom, and Australia.''.

(b) REQUIRED STANDARDS OF EXPORT CONTROLS.—The Secretary may only exercise the authority under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, with respect to the United Kingdom or Australia 30 days after the Secretary submits to the appropriate congressional committees an unclassified certification and detailed unclassified assessment (which may include a classified annex) that the country concerned has implemented standards for a system of export controls that satisfies the elements of section 38(j)(2) of the Arms Export Control Act (22 U.S.C. 2778(j)(2)) for United States-origin defense articles and defense services, and for controlling the provision of military training, that are comparable to those standards administered by the United States in effect on the date of the enactment of this Act.

(c) CERTAIN REQUIREMENTS NOT APPLICABLE.—

(1) IN GENERAL.—Paragraphs (1), (2), and (3) of section 3(d) of the Arms Export Control Act (22 U.S.C. 2753(d)) shall not apply to any export or transfer that is the subject of an exemption under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section.

(2) QUARTERLY REPORTS.—The Secretary shall—

(A) require all exports and transfers that would be subject to the requirements of

paragraphs (1), (2), and (3) of section 3(d) of the Arms Export Control Act (22 U.S.C. 2753(d)) but for the application of subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, to be reported to the Secretary; and

(B) submit such reports to the Committee on Foreign Relations of the Senate and Committee on Foreign Affairs of the House of Representatives on a quarterly basis.

(d) SUNSET.—Any exemption under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, shall terminate on the date that is 15 years after the date of the enactment of this Act. The Secretary of State may renew such exemption for 5 years upon a certification to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives that such exemption is in the vital national interest of the United States with a detailed justification for such certification.

(e) REPORTS.—

(1) ANNUAL REPORT.—

(A) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and annually thereafter until no exemptions under subsection (l)(1) of section 38 of the Arms Export Control Act of 1976, as added by subsection (a) of this section, remain in effect, the Secretary shall submit to the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives a report on the operation of exemptions issued under such subsection (l)(1), including whether any changes to such exemptions are likely to be made in the coming year.

(B) INITIAL REPORT.—The first report submitted under subparagraph (A) shall also include an assessment of key recommendations the United States Government has provided to the Governments of Australia and the United Kingdom to revise laws, regulations, and policies of such countries that are required to implement the AUKUS partnership.

(2) REPORT ON EXPEDITED REVIEW OF EXPORT LICENSES FOR EXPORTS OF ADVANCED TECHNOLOGIES.—Not later than 180 days after the date of the enactment of this Act, the Secretary of State, in coordination with the Secretary of Defense, shall report on the practical application of a possible ''fast track'' decision-making process for applications, classified or unclassified, to export defense articles and defense services to Australia, the United Kingdom, and Canada.

SEC. 6834. EXPEDITED REVIEW OF EXPORT LICENSES FOR EXPORTS OF ADVANCED TECHNOLOGIES TO AUSTRALIA, THE UNITED KINGDOM, AND CANADA.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary, in coordination with the Secretary of Defense, shall initiate a rulemaking to establish an expedited decision-making process, classified or unclassified, for applications to export to Australia, the United Kingdom, and Canada commercial, advanced-technology defense articles and defense services that are not covered by an exemption under the International Traffic in Arms Regulations.

(b) ELIGIBILITY.—To qualify for the expedited decision-making process described in subsection (a), an application shall be for an export of defense articles or defense services that will take place wholly within or between the physical territory of Australia, Canada, or the United Kingdom and the United States and with governments or corporate entities from such countries.

(c) AVAILABILITY OF EXPEDITED PROCESS.—The expedited decision-making process described in subsection (a) shall be available for both classified and unclassified items, and the process must satisfy the following criteria to the extent practicable:

(1) Any licensing application to export defense articles and services that is related to a government to government agreement must be approved, returned, or denied within 30 days of submission.

(2) For all other licensing requests, any review shall be completed not later than 45 calendar days after the date of application.

SEC. 6835. UNITED STATES MUNITIONS LIST.

(a) EXEMPTION FOR THE GOVERNMENTS OF THE UNITED KINGDOM AND AUSTRALIA FROM CERTIFICATION AND CONGRESSIONAL NOTIFICATION REQUIREMENTS APPLICABLE TO CERTAIN TRANSFERS.—Section 38(f)(3) of the Arms Export Control Act (22 U.S.C. 2778(f)(3)) is amended by inserting '', the United Kingdom, or Australia'' after ''Canada''.

(b) UNITED STATES MUNITIONS LIST PERIODIC REVIEWS.—

(1) IN GENERAL.—The Secretary, acting through authority delegated by the President to carry out periodic reviews of items on the United States Munitions List under section 38(f) of the Arms Export Control Act (22 U.S.C. 2778(f)) and in coordination with the Secretary of Defense, the Secretary of Energy, the Secretary of Commerce, and the Director of the Office of Management and Budget, shall carry out such reviews not less frequently than every 3 years.

(2) SCOPE.—The periodic reviews described in paragraph (1) shall focus on matters including—

(A) interagency resources to address current threats faced by the United States;

(B) the evolving technological and economic landscape;

(C) the widespread availability of certain technologies and items on the United States Munitions List; and

(D) risks of misuse of United States-origin defense articles.

(3) CONSULTATION.—The Department of State may consult with the Defense Trade Advisory Group (DTAG) and other interested parties in conducting the periodic review described in paragraph (1).

Subtitle D—Other AUKUS Matters

SEC. 6841. REPORTING RELATED TO THE AUKUS PARTNERSHIP.

(a) REPORT ON INSTRUMENTS.—

(1) IN GENERAL.—Not later than 30 days after the signature, conclusion, or other finalization of any non-binding instrument related to the AUKUS partnership, the President shall submit to the appropriate congressional committees the text of such instrument.

(2) NON-DUPLICATION OF EFFORTS; RULE OF CONSTRUCTION.—To the extent the text of a non-binding instrument is submitted to the appropriate congressional committees pursuant to subsection (a), such text does not need to be submitted to Congress pursuant to section 112b(a)(1)(A)(ii) of title 1, United States Code, as amended by section 5947 of the James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 (Public Law 117–263; 136 Stat. 3476). Paragraph (1) shall not be construed to relieve the executive branch of any other requirement of section 112b of title 1, United States Code, as amended so amended, or any other provision of law.

(3) DEFINITIONS.—In this section:

(A) IN GENERAL.—The term ''text'', with respect to a non-binding instrument, includes—

(i) any annex, appendix, codicil, side agreement, side letter, or any document of similar purpose or function to the aforementioned, regardless of the title of the document, that is entered into contemporaneously and in conjunction with the non-binding instrument; and

(ii) any implementing agreement or arrangement, or any document of similar purpose or function to the aforementioned, regardless of the title of the document, that is entered into contemporaneously and in conjunction with the non-binding instrument.

(B) CONTEMPORANEOUSLY AND IN CONJUNCTION WITH.—As used in subparagraph (A), the term ''contemporaneously and in conjunction with''—

(i) shall be construed liberally; and

(ii) may not be interpreted to require any action to have occurred simultaneously or on the same day.

(b) REPORT ON AUKUS PARTNERSHIP.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and biennially thereafter, the Secretary, in coordination with the Secretary of Defense and other appropriate heads of agencies, shall submit to the appropriate congressional committees a report on the AUKUS partnership.

(2) ELEMENTS.—Each report required under paragraph (1) shall include the following elements:

(A) STRATEGY.—

(i) An identification of the defensive military capability gaps and capacity shortfalls that the AUKUS partnership seeks to offset.

(ii) An explanation of the total cost to the United States associated with Pillar One of the AUKUS partnership.

(iii) A detailed explanation of how enhanced access to the industrial base of Australia is contributing to strengthening the United States strategic position in Asia.

(iv) A detailed explanation of the military and strategic benefit provided by the improved access provided by naval bases of Australia.

(v) A detailed assessment of how Australia's sovereign conventionally armed nuclear attack submarines contribute to United States defense and deterrence objectives in the Indo-Pacific region.

(B) IMPLEMENT THE AUKUS PARTNERSHIP.—

(i) Progress made on achieving the Optimal Pathway established for Australia's development of conventionally armed, nuclear-powered submarines, including the following elements:

(I) A description of progress made by Australia, the United Kingdom, and the United States to conclude an Article 14 arrangement with the International Atomic Energy Agency.

(II) A description of the status of efforts of Australia, the United Kingdom, and the United States to build the supporting infrastructure to base conventionally armed, nuclear-powered attack submarines.

(III) Updates on the efforts by Australia, the United Kingdom, and the United States to train a workforce that can build, sustain, and operate conventionally armed, nuclear-powered attack submarines.

(IV) A description of progress in establishing submarine support facilities capable of hosting rotational forces in western Australia by 2027.

(V) A description of progress made in improving United States submarine production capabilities that will enable the United States to meet—

(aa) its objectives of providing up to five Virginia Class submarines to Australia by the early to mid-2030's; and

(bb) United States submarine production requirements.

(ii) Progress made on Pillar Two of the AUKUS partnership, including the following elements:

(I) An assessment of the efforts of Australia, the United Kingdom, and the United States to enhance collaboration across the following eight trilateral lines of effort:

(aa) Underseas capabilities.

(bb) Quantum technologies.
(cc) Artificial intelligence and autonomy.
(dd) Advanced cyber capabilities.
(ee) Hypersonic and counter-hypersonic capabilities.
(ff) Electronic warfare.
(gg) Innovation.
(hh) Information sharing.
(II) An assessment of any new lines of effort established.

SA 934. Mr. SCHUMER (for Mr. CORNYN) submitted an amendment intended to be proposed by Mr. Schumer to the bill S. 794, to require a pilot program on the participation of non-asset-based third-party logistics providers in the Customs-Trade Partnership Against Terrorism; as follows:

At the end, add the following:

SEC. 5. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to be appropriated for the purpose of carrying out this Act.

PRIVILEGES OF THE FLOOR

Mrs. BLACKBURN. Madam President, I ask unanimous consent that the following interns in my office be granted floor privileges for the rest of the Congress: Benjamin Chamberlin and Peter Skehan.

The PRESIDING OFFICER. Without objection, it is so ordered.

AUTHORIZING APPOINTMENT OF ESCORT COMMITTEE

Mr. SCHUMER. Mr. President, I ask unanimous consent that the President of the Senate be authorized to appoint a committee on the part of the Senate to join with a like committee on the part of the House of Representatives to escort His Excellency Isaac Herzog, President of the State of Israel, into the House Chamber for the joint meeting on Wednesday, July 19, 2023.

The PRESIDING OFFICER. Without objection, it is so ordered.

CUSTOMS TRADE PARTNERSHIP AGAINST TERRORISM PILOT PROGRAM ACT OF 2023

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 67, S. 794.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 794) to require a pilot program on the participation of non-asset-based third-party logistics providers in the Customs-Trade Partnership Against Terrorism.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Homeland Security and Governmental Affairs.

Mr. SCHUMER. I ask unanimous consent that the Cornyn amendment at the desk be considered and agreed to; that the bill, as amended, be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 934) was agreed to, as follows:

(Purpose: To specify that no additional funds are authorized to be appropriated for the purpose of carrying out the Act)

At the end, add the following:

SEC. 5. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to be appropriated for the purpose of carrying out this Act.

The bill (S. 794), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

S. 794

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Customs Trade Partnership Against Terrorism Pilot Program Act of 2023'' or the ''CTPAT Pilot Program Act of 2023''.

SEC. 2. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Homeland Security and Governmental Affairs and the Committee on Finance of the Senate; and

(B) the Committee on Homeland Security and the Committee on Ways and Means of the House of Representatives.

(2) CTPAT.—The term ''CTPAT'' means the Customs Trade Partnership Against Terrorism established under subtitle B of title II of the Security and Accountability for Every Port Act (6 U.S.C. 961 et seq.).

SEC. 3. PILOT PROGRAM ON PARTICIPATION OF THIRD-PARTY LOGISTICS PROVIDERS IN CTPAT.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—The Secretary of Homeland Security shall carry out a pilot program to assess whether allowing entities described in subsection (b) to participate in CTPAT would enhance port security, combat terrorism, prevent supply chain security breaches, or otherwise meet the goals of CTPAT.

(2) FEDERAL REGISTER NOTICE.—Not later than one year after the date of the enactment of this Act, the Secretary shall publish in the Federal Register a notice specifying the requirements for the pilot program required by paragraph (1).

(b) ENTITIES DESCRIBED.—An entity described in this subsection is—

(1) a non-asset-based third-party logistics provider that—

(A) arranges international transportation of freight and is licensed by the Department of Transportation; and

(B) meets such other requirements as the Secretary specifies in the Federal Register notice required by subsection (a)(2); or

(2) an asset-based third-party logistics provider that—

(A) facilitates cross border activity and is licensed or bonded by the Federal Maritime Commission, the Transportation Security Administration, U.S. Customs and Border Protection, or the Department of Transportation;

(B) manages and executes logistics services using its own warehousing assets and resources on behalf of its customers; and

(C) meets such other requirements as the Secretary specifies in the Federal Register notice required by subsection (a)(2).

(c) REQUIREMENTS.—In carrying out the pilot program required by subsection (a)(1), the Secretary shall—

(1) ensure that—

(A) not more than 10 entities described in paragraph (1) of subsection (b) participate in the pilot program; and

(B) not more than 10 entities described in paragraph (2) of that subsection participate in the program;

(2) provide for the participation of those entities on a voluntary basis;

(3) continue the program for a period of not less than one year after the date on which the Secretary publishes the Federal Register notice required by subsection (a)(2); and

(4) terminate the pilot program not more than 5 years after that date.

(d) REPORT REQUIRED.—Not later than 180 days after the termination of the pilot program under subsection (c)(4), the Secretary shall submit to the appropriate congressional committees a report on the findings of, and any recommendations arising from, the pilot program concerning the participation in CTPAT of entities described in subsection (b), including an assessment of participation by those entities.

SEC. 4. REPORT ON EFFECTIVENESS OF CTPAT.

(a) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Comptroller General of the United States shall submit to the appropriate congressional committees a report assessing the effectiveness of CTPAT.

(b) ELEMENTS.—The report required by subsection (a) shall include the following:

(1) An analysis of—

(A) security incidents in the cargo supply chain during the 5-year period preceding submission of the report that involved criminal activity, including drug trafficking, human smuggling, commercial fraud, or terrorist activity; and

(B) whether those incidents involved participants in CTPAT or entities not participating in CTPAT.

(2) An analysis of causes for the suspension or removal of entities from participating in CTPAT as a result of security incidents during that 5-year period.

(3) An analysis of the number of active CTPAT participants involved in one or more security incidents while maintaining their status as participants.

(4) Recommendations to the Commissioner of U.S. Customs and Border Protection for improvements to CTPAT to improve prevention of security incidents in the cargo supply chain involving participants in CTPAT.

SEC. 5. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to be appropriated for the purpose of carrying out this Act.

TRIBAL TRUST LAND HOMEOWNERSHIP ACT OF 2023

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 79, S. 70.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 70) to require the Bureau of Indian Affairs to process and complete all mortgage packages associated with residential and business mortgages on Indian land by certain deadlines, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Indian Affairs.

Mr. SCHUMER. I ask unanimous consent that the bill be considered read a

third time and passed and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 70) was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

S. 70

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Tribal Trust Land Homeownership Act of 2023''.

SEC. 2. DEFINITIONS.

In this Act:

(1) APPLICABLE BUREAU OFFICE.—The term ''applicable Bureau office'' means—

(A) a Regional office of the Bureau;

(B) an Agency office of the Bureau; or

(C) a Land Titles and Records Office of the Bureau.

(2) BUREAU.—The term ''Bureau'' means the Bureau of Indian Affairs.

(3) DIRECTOR.—The term ''Director'' means the Director of the Bureau.

(4) FIRST CERTIFIED TITLE STATUS REPORT.—The term ''first certified title status report'' means the title status report needed to verify title status on Indian land.

(5) INDIAN LAND.—The term ''Indian land'' has the meaning given the term in section 162.003 of title 25, Code of Federal Regulations (as in effect on the date of enactment of this Act).

(6) LAND MORTGAGE.—The term ''land mortgage'' means a mortgage obtained by an individual Indian who owns a tract of trust land for the purpose of—

(A) home acquisition;

(B) home construction;

(C) home improvements; or

(D) economic development.

(7) LEASEHOLD MORTGAGE.—The term ''leasehold mortgage'' means a mortgage, deed of trust, or other instrument that pledges the leasehold interest of a lessee as security for a debt or other obligation owed by the lessee to a lender or other mortgagee.

(8) MORTGAGE PACKAGE.—The term ''mortgage package'' means a proposed residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document submitted to an applicable Bureau office under section 3(a)(1).

(9) RELEVANT FEDERAL AGENCY.—The term ''relevant Federal agency'' means any of the following Federal agencies that guarantee or make direct mortgage loans on Indian land:

(A) The Department of Agriculture.

(B) The Department of Housing and Urban Development.

(C) The Department of Veterans Affairs.

(10) RIGHT-OF-WAY DOCUMENT.—The term ''right-of-way document'' has the meaning given the term in section 169.2 of title 25, Code of Federal Regulations (as in effect on the date of enactment of this Act).

(11) SUBSEQUENT CERTIFIED TITLE STATUS REPORT.—The term ''subsequent certified title status report'' means the title status report needed to identify any liens against a residential, business, or land lease on Indian land.

SEC. 3. MORTGAGE REVIEW AND PROCESSING.

(a) REVIEW AND PROCESSING DEADLINES.—

(1) IN GENERAL.—As soon as practicable after receiving a proposed residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document, the applicable Bureau office shall notify the lender that the proposed residential leasehold mortgage, business leasehold mortgage, or right-of-way document has been received.

(2) PRELIMINARY REVIEW.—

(A) IN GENERAL.—Not later than 10 calendar days after receipt of a proposed residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document, the applicable Bureau office shall conduct and complete a preliminary review of the residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document to verify that all required documents are included.

(B) INCOMPLETE DOCUMENTS.—As soon as practicable, but not more than 2 calendar days, after finding that any required documents are missing under subparagraph (A), the applicable Bureau office shall notify the lender of the missing documents.

(3) APPROVAL OR DISAPPROVAL.—

(A) LEASEHOLD MORTGAGES.—Not later than 20 calendar days after receipt of a complete executed residential leasehold mortgage or business leasehold mortgage, proof of required consents, and other required documentation, the applicable Bureau office shall approve or disapprove the residential leasehold mortgage or business leasehold mortgage.

(B) RIGHT-OF-WAY DOCUMENTS.—Not later than 30 calendar days after receipt of a complete executed right-of-way document, proof of required consents, and other required documentation, the applicable Bureau office shall approve or disapprove the right-of-way document.

(C) LAND MORTGAGES.—Not later than 30 calendar days after receipt of a complete executed land mortgage, proof of required consents, and other required documentation, the applicable Bureau office shall approve or disapprove the land mortgage.

(D) REQUIREMENTS.—The determination of whether to approve or disapprove a residential leasehold mortgage or business leasehold mortgage under subparagraph (A), a right-of-way document under subparagraph (B), or a land mortgage under subparagraph (C)—

(i) shall be in writing; and

(ii) in the case of a determination to disapprove a residential leasehold mortgage, business leasehold mortgage, right-of-way document, or land mortgage shall, state the basis for the determination.

(E) APPLICATION.—This paragraph shall not apply to a residential leasehold mortgage or business leasehold mortgage with respect to Indian land in cases in which the applicant for the residential leasehold mortgage or business leasehold mortgage is an Indian tribe (as defined in subsection (d) of the first section of the Act of 1955 (69 Stat. 539, chapter 615; 126 Stat. 1150; 25 U.S.C. 415(d))) that has been approved for leasing under subsection (h) of that section (69 Stat. 539, chapter 615; 126 Stat. 1151; 25 U.S.C. 415(h)).

(4) CERTIFIED TITLE STATUS REPORTS.—

(A) COMPLETION OF REPORTS.—

(i) IN GENERAL.—Not later than 10 calendar days after the applicable Bureau office approves a residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document under paragraph (3), the applicable Bureau office shall complete the processing of, as applicable—

(I) a first certified title status report, if a first certified title status report was not completed prior to the approval of the residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document; and

(II) a subsequent certified title status report.

(ii) REQUESTS FOR FIRST CERTIFIED TITLE STATUS REPORTS.—Notwithstanding clause (i), not later than 14 calendar days after the applicable Bureau office receives a request for a first certified title status report from an applicant for a residential leasehold mortgage, business leasehold mortgage, land mortgage, or right-of-way document under paragraph (1), the applicable Bureau office shall complete the processing of the first certified title status report.

(B) NOTICE.—

(i) IN GENERAL.—As soon as practicable after completion of the processing of, as applicable, a first certified title status report or a subsequent certified title status report under subparagraph (A), but by not later than the applicable deadline described in that subparagraph, the applicable Bureau office shall give notice of the completion to the lender.

(ii) FORM OF NOTICE.—The applicable Bureau office shall give notice under clause (i)—

(I) electronically through secure, encryption software; and

(II) through the United States mail.

(iii) OPTION TO OPT OUT.—The lender may opt out of receiving notice electronically under clause (ii)(I).

(b) NOTICES.—

(1) IN GENERAL.—If the applicable Bureau office does not complete the review and processing of mortgage packages under subsection (a) (including any corresponding first certified title status report or subsequent certified title status report under paragraph (4) of that subsection) by the applicable deadline described in that subsection, immediately after missing the deadline, the applicable Bureau office shall provide notice of the delay in review and processing to—

(A) the party that submitted the mortgage package or requested the first certified title status report; and

(B) the lender for which the mortgage package (including any corresponding first certified title status report or subsequent certified title status report) is being requested.

(2) REQUESTS FOR UPDATES.—In addition to providing the notices required under paragraph (1), not later than 2 calendar days after receiving a relevant inquiry with respect to a submitted mortgage package from the party that submitted the mortgage package or the lender for which the mortgage package (including any corresponding first certified title status report or subsequent certified title status report) is being requested or an inquiry with respect to a requested first certified title status report from the party that requested the first certified title status report, the applicable Bureau office shall respond to the inquiry.

(c) DELIVERY OF FIRST AND SUBSEQUENT CERTIFIED TITLE STATUS REPORTS.—Notwithstanding any other provision of law, any first certified title status report and any subsequent certified title status report, as applicable, shall be delivered directly to—

(1) the lender;

(2) any local or regional agency office of the Bureau that requests the first certified title status report or subsequent certified title status report;

(3) in the case of a proposed residential leasehold mortgage or land mortgage, the relevant Federal agency that insures or guarantees the loan; and

(4) if requested, any individual or entity described in section 150.303 of title 25, Code of Federal Regulations (as in effect on the date of enactment of this Act).

(d) ACCESS TO TRUST ASSET AND ACCOUNTING MANAGEMENT SYSTEM.—Beginning on the date of enactment of this Act, the relevant Federal agencies and Indian Tribes shall have read-only access to the Trust Asset and Accounting Management System maintained by the Bureau.

(e) ANNUAL REPORT.—

(1) IN GENERAL.—Not later than March 1 of each calendar year, the Director shall submit to the Committee on Indian Affairs of

the Senate and the Committee on Natural Resources of the House of Representatives a report describing—

(A) for the most recent calendar year, the number of requests received to complete residential leasehold mortgage packages, business leasehold mortgage packages, land mortgage packages, and right-of-way document packages (including any requests for corresponding first certified title status reports and subsequent certified title status reports), including a detailed description of—

(i) requests that were and were not successfully completed by the applicable deadline described in subsection (a) by each applicable Bureau office; and

(ii) the reasons for each applicable Bureau office not meeting any applicable deadlines; and

(B) the length of time needed by each applicable Bureau office during the most recent calendar year to provide the notices required under subsection (b)(1).

(2) REQUIREMENT.—In submitting the report required under paragraph (1), the Director shall maintain the confidentiality of personally identifiable information of the parties involved in requesting the completion of residential leasehold mortgage packages, business leasehold mortgage packages, land mortgage packages, and right-of-way document packages (including any corresponding first certified title status reports and subsequent certified title status reports).

(f) GAO STUDY.—Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall submit to the Committee on Indian Affairs of the Senate and the Committee on Natural Resources of the House of Representatives a report that includes—

(1) an evaluation of the need for residential leasehold mortgage packages, business leasehold mortgage packages, land mortgage packages, and right-of-way document packages of each Indian Tribe to be digitized for the purpose of streamlining and expediting the completion of mortgage packages for residential mortgages on Indian land (including the corresponding first certified title status reports and subsequent certified title status reports); and

(2) an estimate of the time and total cost necessary for Indian Tribes to digitize the records described in paragraph (1), in conjunction with assistance in that digitization from the Bureau.

SEC. 4. ESTABLISHMENT OF REALTY OMBUDSMAN POSITION.

(a) IN GENERAL.—The Director shall establish within the Division of Real Estate Services of the Bureau the position of Realty Ombudsman, who shall report directly to the Secretary of the Interior.

(b) FUNCTIONS.—The Realty Ombudsman shall—

(1) ensure that the applicable Bureau offices are meeting the mortgage review and processing deadlines established by section 3(a);

(2) ensure that the applicable Bureau offices comply with the notices required under subsections (a) and (b) of section 3;

(3) serve as a liaison to other Federal agencies, including by—

(A) ensuring the Bureau is responsive to all of the inquiries from the relevant Federal agencies; and

(B) helping to facilitate communications between the relevant Federal agencies and the Bureau on matters relating to mortgages on Indian land;

(4) receive inquiries, questions, and complaints directly from Indian Tribes, members of Indian Tribes, and lenders in regard to executed residential leasehold mortgages, business leasehold mortgages, land mortgages, or right-of-way documents; and

(5) serve as the intermediary between the Indian Tribes, members of Indian Tribes, and lenders and the Bureau in responding to inquiries and questions and resolving complaints.

URBAN INDIAN HEALTH CONFER ACT

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 80, S. 460.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 460) to amend the Indian Health Care Improvement Act to establish an urban Indian organization confer policy for the Department of Health and Human Services.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Indian Affairs.

Ms. SMITH. Mr. President, I thank my fellow Senators for consenting to the unanimous passage of S. 460, the Urban Indian Health Confer Act, which I introduced with Senator MULLIN.

S. 460 requires the Department of Health and Human Services—HHS—and its sub-agencies to ''confer'' with Urban Indian Organizations—UIOs—when Federal decision-making processes impact their delivery of healthcare services. I want to be clear that this bill does not equate formal Tribal consultation with an urban confer policy. Indeed, UIOs are not federally recognized Indian Tribes and do not have a government-to-government relationship with the federal government. But there is a demonstrated need for direct communication channels between Federal health agencies and UIOs. A HHS-wide confer policy for UIOs should reflect the unique needs of urban Native communities, not supplant—or in any way impact—the existing right of Tribal governments to formal consultation with HHS. It is simply good policy to provide the Federal Government with more tools, not less, to engage with and gather information from Native people wherever they live to improve their healthcare outcomes. S. 460 does just that.

Mr. SCHUMER. I ask unanimous consent that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 460) was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

S. 460

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Urban Indian Health Confer Act''.

SEC. 2. URBAN INDIAN ORGANIZATION CONFER POLICY.

Section 514 of the Indian Health Care Improvement Act (25 U.S.C. 1660d) is amended by striking subsection (b) and inserting the following:

''(b) REQUIREMENT.—The Secretary shall ensure that the Service and the other agencies and offices of the Department confer, to the maximum extent practicable, with urban Indian organizations in carrying out—

''(1) this Act; and

''(2) other provisions of law relating to Indian health care.''.

AMENDING THE INDIAN SELF-DETERMINATION AND EDUCATION ASSISTANCE ACT TO EXTEND THE DEADLINE FOR THE SECRETARY OF THE INTERIOR TO PROMULGATE REGULATIONS IMPLEMENTING TITLE IV OF THAT ACT

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 90, S. 1308.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 1308) to amend the Indian Self-Determination and Education Assistance Act to extend the deadline for the Secretary of the Interior to promulgate regulations implementing title IV of that Act, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Indian Affairs with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

SECTION 1. EXTENSION OF DEADLINE TO PROMULGATE CERTAIN REGULATIONS.

Section 413(a) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5373(a)) is amended—

(1) in paragraph (2), by striking ''21 months'' and inserting ''38 months''; and

(2) in paragraph (3), by striking ''30 months'' and inserting ''50 months''.

Mr. SCHUMER. I ask unanimous consent that the committee-reported substitute amendment be agreed to; that the bill, as amended, be considered read a third time and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment, in the nature of a substitute, was agreed to.

The bill (S. 1308), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

PALA BAND OF MISSION INDIANS LAND TRANSFER ACT OF 2023

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H.R. 423, which was received from the House and is at the desk.

The senior assistant legislative clerk read as follows:

A bill (H.R. 423) to take certain land located in San Diego County, California, into trust for the benefit of the Pala Band of Mission Indians, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. SCHUMER. I ask unanimous consent that the bill be considered read a third time and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 423) was ordered to a third reading, was read the third time, and passed.

HONORING THE MEN AND WOMEN OF THE DRUG ENFORCEMENT ADMINISTRATION ON THE 50TH ANNIVERSARY OF THE AGENCY

NATIONAL DAY OF THE AMERICAN COWBOY

COLLECTOR CAR APPRECIATION DAY

EXPRESSING SUPPORT FOR THE DESIGNATION OF JOURNEYMAN LINEWORKERS RECOGNITION DAY

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration of S. Res. 246 and S. Res. 269, and the Senate proceed to the en bloc consideration of the following Senate resolutions: S. Res. 246, S. Res. 269, S. Res. 300, and S. Res. 301.

There being no objection, the committee for the relevant resolutions was discharged, and the Senate proceeded to consider the resolutions, en bloc.

Mr. SCHUMER. I ask unanimous consent that the resolutions be agreed to, the preambles be agreed to, and the motions to reconsider be considered made and laid upon the table, all en bloc.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 246) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of June 13, 2023, under ''Submitted Resolutions.'')

The resolution (S. Res. 269) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of June 22, 2023, under ''Submitted Resolutions.'')

The resolutions (S. Res. 300 and S. Res. 301) were agreed to.

The preambles were agreed to.

(The resolutions, with their preambles, are printed in today's RECORD under ''Submitted Resolutions.'')

ORDERS FOR WEDNESDAY, JULY 19, 2023

Mr. SCHUMER. Finally, Mr. President, I ask unanimous consent that when the Senate completes its business today, it stand adjourned until 9:45 a.m. on Wednesday, July 19; that following the prayer and pledge, the Journal of proceedings be approved to date, the morning hour be deemed expired, the time for the two leaders be reserved for their use later in the day, and morning business be closed; that upon conclusion of morning business, the Senate resume consideration of the motion to proceed to Calendar No. 119, S. 2226, postcloture; further, that all time during adjournment, recess, morning business, and leader remarks count postcloture on the motion to proceed; finally, that the Senate recess from 1 to 2:15 p.m. to allow for the weekly caucus meetings.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. As a reminder, Senators should gather in the Senate Chamber beginning at 10:20 a.m. tomorrow, and we will proceed as a body to the House Chamber at 10:30 a.m. for the address by His Excellency Isaac Herzog, President of Israel.

ADJOURNMENT UNTIL 9:45 A.M. TOMORROW

Mr. SCHUMER. Mr. President, if there is no further business to come before the Senate, I ask that it stand adjourned under the previous order.

There being no objection, the Senate, at 10:44 p.m., adjourned until Wednesday, July 19, 2023, at 9:45 a.m.

NOMINATIONS

Executive nominations received by the Senate July 12, 2023:

DEFENSE NUCLEAR FACILITIES SAFETY BOARD

PATRICIA L. LEE, OF SOUTH CAROLINA, TO BE A MEMBER OF THE DEFENSE NUCLEAR FACILITIES SAFETY BOARD FOR A TERM EXPIRING OCTOBER 18, 2027, VICE JOSEPH BRUCE HAMILTON, TERM EXPIRED.

SECURITIES INVESTOR PROTECTION CORPORATION

CLAUDIA SLACIK, OF NEW YORK, TO BE A DIRECTOR OF THE SECURITIES INVESTOR PROTECTION CORPORATION FOR A TERM EXPIRING DECEMBER 31, 2026. (REAPPOINTMENT)

MORRIS K. UDALL AND STEWART L. UDALL FOUNDATION

TADD M. JOHNSON, OF MINNESOTA, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE MORRIS K. UDALL AND STEWART L. UDALL FOUNDATION FOR A TERM EXPIRING OCTOBER 6, 2028. (REAPPOINTMENT)

DEPARTMENT OF STATE

LAURA STONE, OF UTAH, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF THE MARSHALL ISLANDS.

HARRY S TRUMAN SCHOLARSHIP FOUNDATION

TODD GLORIA, OF CALIFORNIA, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE HARRY S TRUMAN SCHOLARSHIP FOUNDATION FOR A TERM EXPIRING DECEMBER 10, 2023, VICE JAMES L. HENDERSON, TERM EXPIRED.

TODD GLORIA, OF CALIFORNIA, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE HARRY S TRUMAN SCHOLARSHIP FOUNDATION FOR A TERM EXPIRING DECEMBER 10, 2029. (REAPPOINTMENT)

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

DAVID K. SING, OF HAWAII, TO BE A MEMBER OF THE NATIONAL COUNCIL ON THE HUMANITIES FOR A TERM EXPIRING JANUARY 26, 2026, VICE JOYCE MALCOLM, TERM EXPIRED.

DEPARTMENT OF LABOR

ERIKA L. MCENTARFER, OF THE DISTRICT OF COLUMBIA, TO BE COMMISSIONER OF LABOR STATISTICS, DEPARTMENT OF LABOR, FOR A TERM OF FOUR YEARS, VICE WILLIAM BEACH, TERM EXPIRED.

DEPARTMENT OF HOMELAND SECURITY

JEFF REZMOVIC, OF MARYLAND, TO BE CHIEF FINANCIAL OFFICER, DEPARTMENT OF HOMELAND SECURITY, VICE TROY D. EDGAR.

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant colonel

RYAN C. BOYLE

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

FEYSEL A. ABDULKAF
EMILY MURCH ABINGTON
KEVIN C. ABINGTON
JORDAN D. ADAMS
RAYMOND L. ADAMS
EMILY P. ADEJI PAUL
LAURA E. AGUIRRE CORREA
JAIME ALBARRAN
TAYLOR J. AMBERSON
DANIEL G. AMEZOLA
NICHOLAS C. ANDERSON
JAMES J. AO
MALOUPU L. AQUININGOC
MONA GAYLE L. AQUINO
ANGELITO E. ARAGON
REBECCA K. ARANGO
MEGAN NICOLE ARTMAN
DANIEL M. ASHLEY
TERRENCE S. ASHTON
JESSICA M. ASTUDILLO
KRISTOPHER K. ATABAKI
ASHLEY C. AYCOX
THOMAS P. BAGIACKAS
JAMES RUSSELL BAKER
KARI A. BAKER
STEPHEN M. BAKER
EDWARD H. BANACH
ANDREA E. BARRY
DANIEL W. BAZEMORE
CODY R. BENEDICT
HANNAH LENAROSE BERGSTROM
MATTHEW S. BETTIS
TIMOTHY A. BISHOP
LAUREN E. BLASSINGAME
KATY DUNKELBERG BLESSING
NICHOLAS T. BOARDMAN
MATTHEW J. BOLDUC
LUIS FERNANDO BOTTIA
JONATHAN BOWIE
KEVIN A. BOYAJIAN
GREGORY SCOTT BRADY
CLINT M. BRAMLETTE
STEPHEN R. BROWN
ASHLEY K. BURLIN
AMANDA F. BURROUGHS
PERRY A. BYRD JR
ANDREW M. CADY
AYANA D. CAMERON
RACHEL S. CAMERON
IAN R. CAMPBELL
KEVIN R. CARDENAS
MATTHEW W. CARLSON
WILLIAM J. CARMODY
SHAWN P. CARROLL
DAVID M. CASAS
MARC W. CHALE
MATTHEW E. CHAVEZ
JIMMY J. CHIEN
KEVIN T. CHIN
EVAN S. CLARK
TIFFANY M. CONDRA
TYLER A. CONRAD
MEGAN E. CONSTANTINEAU
GARRETT J. COOK
ANNIE K. COOPER
OWEN B. COOPER
CHAISE A. CORP
JONATHAN L. CROSBY
MACKENZIE M. CROSS
JOHN P. CROTEAU
MICHAEL R. CROWL
JAMES C. CUNNINGHAM
BRANDON L. DALEY
MELANIE K. DANE
ALEXANDER M. DANIELS
CALLAN D. DAVIS
DANIEL D. DAWSON
ERIC N. DAYHUFF
KEVIN L. DEAN
THOMAS D. DEANS
DAVID C. DELEON
CLARE M. DELILLO
ASHLEY S. DELLINGER
THOMAS A. DENNINGHOFF
JENNIFER L. DEVOE
TERRANCE TARRELL DIXON
DERRICK Q. DO
TROY Q. DRABEK
JUSTIN M. DURHAM
BRANDON Z. EAVES
JACOB M. EHRLICH
CALVIN MONTEIL ELKINS
JACOB T. ELLIOTT
ASHLEY DANIELLE ELLIS
MYLON J. EMARD
MELANIE ANN ENGLE
AARON T. EVENSON

JOHN C. FAIR
JOHN S. FARQUHAR
RYAN D. FAUCHER
GERALD A. FELTMAN
PAUL A. FETZNER
JOHN J. FITZGERALD
CHRISTOPHER RYAN FLOWERS
JOSHUA TYLER FORREST
DAVID E. FORSYTHE
JAYME D. FOULKROD
DANIEL K. FOX
ANNE CECELIA FREDELL
JULIAN D. FREEMAN
MAHALIA R. FROST
MATTHEW K. FRUGE
ANDREW S. FUERST
CAITLIN B. GABRIELSON
JOSUE R. GARCIA
RICHARD F. GAYSON
SARAH M. GEISER
KYLE J. GENTILE
JACOB D. GERNERT
ERIKA ELIZABETH GILTS
JESSICA D. GOFORTH
CHARLES V. GOODRICH, JR.
ANDREW M. GOUGH
ANDRE E. GREEN
NICOLE C. GREMILLION
DONALD JAMES GRILLO, JR.
KASSIE M. GURNELL
ANDREA YANG HAGADORN
AARON W. HAN
KALYN N. HANEY
KAITLIN HARPER
THOMAS PATRICK HART
TIMOTHY SCOTT HAWES
LAURA M. HAYDEN
SEAN M. HEARN
DILLON W. HECKENDORN
CHRISTIAN W. HEIMLICH
AMANDA N. HERMAN
MARY E. HERMAN
PEDRO L. HERNANDEZ
JOHN WILLIAM HOAGLAND
ANDREW K. HODGES
JASON TIMOTHY HODGES
KAITLIN DADDONA HOLMES
ALEXANDREA J. HOSSHARDING
JONATHAN K. HOTCHKISS
NATALIE L. HOWIE
AMY L. HUNT
TAKAYUKI IGUCHI
ZACQUORY D. ISRAELSON
DYLAN J. IVANISH
JAEWON JANG
HELEN L. JANTSCHER
DAVID C. JEONG
KRYSTAL JIMENEZ
ALLISON M. JOHNSON
REBECCA G. JOHNSON
BRIAN K. JOHNSTON
MARCUS J. JONES
DAVID M. JORGENSON
TELLER J. JUNAK
VENKATESH V. KAMATH
MARGARET A. KEALY–MACHELLA
KRISTEN M. KEANE
MARCUS P. KELLOGG
BRYCE L. KENDRICK
SAMUEL J. KIEKHAEFER
ALEXANDER D. KIM
KYUNG M. KIM
REBECCA O. KIM
KENNETH C. KING
CHARLES M. KINKEY
TYRUS A. KIRBY
ADAM C. KLEMONS
AUDREY M. KNICKEL
FRANK B. KNICKERBOCKER
DANA D. KOHN
ALANNA S. KOTS
REBECCA L. KRAUSE
KYLE R. KRONCKE
TOBIAH S. KROSKOB
KYLEIGH C. LAHVIC
ALANA M. LAKE
MICHELLE NICOLE LANGHOFF
MARY CARMELLE T. LAPENA
MATHIEU M. LEFEBVRE
AARON J. LEWIS
ABRAHAM D. LIM
LAUREN T. LINSCOTT
HECTOR HUGO LOPEZ, JR.
JARED H. LOVING
JAMES R. LUCKY
CONRAD E. LUTZ
ARACELI MACIAS
ROBERT C. MAGILL
MARCUS L. MALDONADO
DUSTIN THOMAS MALLONEE
AUSTIN R. MARR
ANDREW L. C. MARSHALL III
CHELSEA DANIELLE MARTA
BRETT A. MARTZ
KARA N. MASICK
WINFIELD H. MASON
MICHAEL JACOB MAST
JOCELIN S. MAUS
JEREMY A. MAYOJOHNSON
MELISSA N. MAZER
CATHERINE M. MAZUR
JEREMY ALAN MCCARTHY
MITCHEL R. MCCLINTON
JARRET G. MCDANIEL
CRAIG M. MCELWRATH
DEBORAH J. MCHONE
CASSANDRA R. MCKINNEY
ELIJAH D. MCLAMB
DANIEL P. MCLANE
EMILY M. MCPEAK
VINCENT A. MCPEAK
ALEX A. MEDINA
PATRICK ROBERT MEISSNER
MATTHEW J. MEYER
SEAN A. MILLER
AARON J. MILLS
JACOB TREVINO MIRELES
ALEXANDER DEONNE MITCHELL
ANNABEL GEORGINA MONROE
DAVID M. MOORE
JASON W. MOORE
HAYWOOD W. MOSELEY
LAUREN C. MOTTLEY
SHELBY A. MULLINS
PATRICK J. MURPHY
RYAN M. NARTEA
JOSE M. NAZARENO
JONATHAN T. NEELY
JOSEPH A. NEFF
GABRIELLE M. NESBURG
ARIANNA C. NIRO
CODY A. OAKES
JOHNATHAN TIMOTHY OBRYAN
MONITA OCEAN
HOWARD S. OH
NATHAN W. ORRILL
BRAWNLYN C. PATTERSON
BENJAMIN A. PEARSON
THOMAS L. PERSON II
GEORGE H. PETERSON
JARED M. PETERSON
JENNIFER LYNN PETERSON
LAURA ANNE POLLINO
BLAIR P. PONTOW
JOVAN POPOVICH
DEREK EDWARD RANDALL
PAUL A. RAYMOND
ERIN N. RECANZONE
DAVID ANDREW REMPE
KATHRYN M. REW–BANNING
GRANT J. RIBLER
SIERRA BONET RICHARDSON
MEGAN F. RITZERT
ANDREW SUNG RO
MATTHEW D. ROACH
TASHA M. ROACH
GRAEME M. ROBERTS
JONATHAN A. ROBERTS
TIMOTHY M. ROBLES
JESSICA E. RODRIGUEZ
HECTOR L. ROLDAN
DAVID D. ROWE
CHARLES L. RUDDEK
SARAH M. RUSSETT
ORLANDO SALDANA SANCHEZ
ETHAN L. SALGADO
RACHEL N. SALPIETRA
KEVIN L. SAMILING
MICHAEL S. SANDERS, JR.
LUKE A. SANTOSTEFANO
KIRILL A. SARANTSEV
DARYL WILLIAM SCHMITT
HANNAH J. SCHMITZ
ZACHARY S. SEABOLT
RIGOBERTO J. SERVENTI
WILLIAM C. SEVIER
BRANDON W. SHAW
COURTNEY J. SHEEKS
CORY LOUIS SHERWOOD
MATTHEW D. SHINN
DANIEL A. SIERRA
THOMAS J. SILLAMAN
ELIAS JAMES SMALL
ANDREW D. SMITH
CAMERON DWIGHT SMITH
MARTIN E. SMITH
MICHAEL SMYTHE
MARY ANN SNYDER
STANISLAV SOLOMOVICH
CHAD D. SPEER
ALANNAH MARIE STAVER
GERRIT MIKAEL STEENBERGEN
CHRISTOPHER Z. STINE
ALYSSA C. STROM
NICHOLAS J. STRYKER
DAVID W. STURGEON
MOHAMMED HASSAN SULLEY
KIPPUN D. SUMNER
TARA MARIE SUTSKO
PATRICK G. SUTTON–BUSCAVAGE
DEANGELA D. SWORD
ALI U. SYED
ADRIAN S. TAYLOR
BRANDON D. TAYLOR
ROBYN N. TAYLOR
DANIEL S. TEEL
ANTWANE JERMALE THOMAS
TRENIDY W. THOMAS
ALEXA L. THOMSEN
ALEXANDER B. THOMSON
GERARDO A. TINAJERO
SUSAN STEIN TOLBERT
JARED W. TONDER
AMIRYAH N. TOVES
ALEXANDER M. TRIGO
TIMOTHY R. TURNER
COLIN D. TWOHIG
CASEY W. ULLMANN
JOSHUA R. VADEN
ELPIDIO EMMANU VILLALPANDO
MICAH VILLARREAL
BRADEN M. VINCENT
COLEMAN G. VIVIAN
JOSEPH M. VOTTO
DANIEL C. WAHLGREN
SARAH A. WARNER
TIM REINHOLD H. WARNER
NICHOLAS O. WASHOK
CHRISTIAN EDWARD WEAVER
DAVID J. W. WEBB
MICHAEL P. WEISSINGER
JACOB B. WEST
LAUREN C. WHITE
LAUREN N. WIECHMANN
NATHAN A. WIKOWSKY
KEIRON JONATHAN WILLIAMS
KRISTINA O. F. WILLIAMS
JONATHAN R. WILSON
SAMANTHA L. WILSON
MATTHEW T. WINOT
NICHOLAS A. WOLK
WILLIAM DAVID WOOD, JR.
LAUREN M. WOODS
MATTHEW B. WOODY
FALIESHA Y. YEAGER
NICOLAS M. YNOSTROZA
ALEXANDRA C. YORK
RYAN T. ZACHER
ASHLEY N. ZAPP
STEFAN M. ZAVISLAN
KYLE R. ZIMMERMAN
NANCY M. ZIMMERMAN

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

SCOTT A. ABUSO
JUSTIN PAUL R. AGUIGUI
ZANE L. ALLINGER
ADRIAN T. ARCHIBEQUE
BRANDON J. BUSH
RAUN EDWARD CARNLEY
AUSTIN M. COLE
KRISTINA D. CORCORAN
MARK D. DANTES
ZACHARY K. DENNIS
DYLAN A. DEWOINA
THOMAS M. FARMER
EVAN P. FEINAUER
JAYNA K. FEINAUER
ALYSSA E. FORD
ANA M. GARZON
MICHELLE ANGELICA GOVERNOR
CORNELIUS D. HALL
MICHAEL PATRICK HARRIS
ERIC J. ILLIG
THOMAS W. KANIOS
CORTEZ LAROYCE LAMPLEY
JEREMY R. LOWERY
ERIC J. MALONEY
KYLE S. MARTINEZ
SPENCER E. MATTAUSCH
KAITLIN W. MCRAE
TYLER JOSEPH MOSCATO
PAUL JONATHAN MUNSON
BENJAMIN D. ONEILL
MATEJ L. OSYKA
LAUREN H. PARISIAN
ANGELICA G. PHILLIPS
RYAN A. PIERCE
DAMION D. PROCTOR
ADAM E. PRUIM
CODY SHANE SANCHEZ
JOSEPH N. SANFILIPPO
MADELAINE ROSS SAWYER
MARGARET E. SCHUETZ
CARRIE E. STACHURA
JOSE LUIS F. TALAMPAS
KENNETH A. VAZQUEZ
DANIEL HAN QING WANG
JOSHUA C. WILLIAMS
JUSTIN MICHAEL WINFREY
KATELYN ANN WOODLEY
MITCHELL S. WOODLEY
ROBERT ZAVALA, JR.

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

NANLISHA T. ABDULLAI
KEVEN ABRAHAM
DENIS ABRAMOV
WILLIAM C. ADAMS
KEVIN AGUILAR
PARKER H. ALFORD
TYLER E. ALMQUIST
PABLO J. ANDRADE
JOSHUA P. ANTINONE
ALYSSA ARMSTRONG
NICOLE L. AUGINS
CASSANDRA AYALA
CHANCE D. AYCOCK
DUSTIN C. BAGNALL
MICHELLE NICOLE BATTS
SAMANTHA N. BAUGHMAN
ZACHARY J. BAUMANN
STEVEN J. BAYNE
CHRISTOPHER J. BEATTY
ALANE NORA BEEARS
CODY J. BEEMER
JOSHUA L. BELANGER
TRAVIS ROBERT BENNE
ELLIOTT E. BESKI
MICHAEL ANTHONY BEST
CLINTON J. BIALCAK
KRISTA M. A. BIBLE
ETHAN W. BIDDY

STEPHEN TIMOTHY BITTNER
TAYLOR A. BLAIN
INDIGO DAY BLAKELY
KENNETH A. BLANCH
ROBERT J. BLIGH
DUSTIN D. BOHALL
FEYISADE A. BOLARINWA
WANESSA JEAN BOOZER
CASEY C. BOYLE
CHANDRIKA C. BREWTON
KYLE D. BRINEY
EMILY T. BROOKOVER
MANUEL LEE BROWN
ZACHARY G. BRUHN
JESSALYN K. BRYANT
NATALIE K. BURKE
PAIGE C. BURNETTE
CHRISTOPHER M. BURSON
WILLIAM F. BUSH
TYLER C. CAIREL
ALANNA REBECCA CAMPS
MICHAEL E. CANFIELD
ALEX R. CARMONA
JORDEN B. CASTANEDA
CLAY H. CHAFFIN
DAKOTA J. CHANCE
TRAVIS C. CHARFAUROS
HARRIET LAUREN CHINSKY
JOANNE E. CHOI
MELODY M. CHONG
ASHLEY S. CHUNG
JUAN J. CINTRON GONZALEZ
DONALD CLARK
ALEXANDER A. CLAWSON
TROY A. CLEMMONS
MELANIE E. COBERLY
VINCENT JOSEPH COLLETTI
AUSTEN L. COLLIE
KATIANA COLON RALDIRIS
JON R. COMER
NICOLE A. CORREA
STEPHEN R. COX
JAYNE M. CRISMAN
BRIANA J. CROWE
MICAH ANDREW CUMMINS
PAOLO J. CUNADA
NICHOLAS L. CUNNINGHAM
TESIA CHRISTINE DAVIS
OLIVIA M. DEAN
VANESSA M. DELANGEL
RYAN STERLING DELINE
JULIE M. DEWEY
CARISSA A. DOBBINS
ROBIN ELIZABETH DODGE
BENJAMIN M. DOERFLER
BRADLEY M. DUNCAN
AYESHA C. DUNHAM
FRANKLIN DUCOTE EASON
ASHLIE N. EDGERSON
SEAN T. EGAN
ELIE ABI NADER ELCHARTOUNI
MARK A. ELLIOTT
TERESA J. ELSBREE
COOPER O. EMMONS
PATRICK M. ENSLEN
CHRISTIAN G. ERNESTON
JON ANDREW ESPINOZA
ERICA M. FABRICIUS
KELLY O. FANN
KEVIN C. FARMER
JAMIE M. FARRIS
CONOR A. FAVO
NATHAN R. FEDERICO
ASHLEY P. FELDMAN
DEVIN J. FERGUSON
ANDREW J. FIEGEN
JAMIE E. FILER
JOSEPH E. FLESCHER
CARLOS P. FLORES
ANDREW Y. FOLTERMANN
NICOLAS FONTALVO
KYLE E. FORRY
JESSICA RENEE FRANKLIN
ASHLEY E. GAMBILL
CARI A. GANDY
JOSHUA O. GARCIA RIVERA
ELIZABETH A. GENTINE
JEANNETTE A. GHENT
SAMANTHA A. GIEBEL
CHRIS E. GINGERELLI
JOSHUA R. GLASS
EVAN A. GLENN
MARIS J. GLENN
GILES REXFORD GONNSEN
BRETT D. GOODWIN
DESMOND J. GOSIER
JOSEPH R. GRANT
SHAWN MICHAEL GRAVES
GLENN G. GRECIA
DAVID P. GREEN
SCOTT E. GREGORY
BRYCE A. GRIER
KELLY V. GRIFFITH
SCOTT R. GUERIN
JARED D. HAFICH
RYAN J. HAGER
MARGARET A. HALEY
TAYLOR CHRISTOPHER HANLEY
SHAWN PATRICK HANSEN
JESSICA LYNN HARGROVE
DAVID R. HARLESS
ALEXANDRIA N. HARRELL
JODY K. HASEBE
THOMAS L. HATTEN
COREY JAMES HAYES
ANDREW M. HEARD
GREGORY B. HEGE
STEPHANIE L. HELMS
CRYSTAL F. HENSLEY
ANNE MARIE HERRMANN
VALERIE M. HEWITT
MICHAEL R. HOFER
ROBERT L. HOLLISTER
CHARLOTTE M. HOLYFIELD
CHASE M. HOUSER
ANASTASIA M. HUEFFNER
DONALD MARK HUMPHREY, JR.
JOSEPH J. HUMPHREY
ZANE T. HUNTER
BAOHAN HUYNH
DANIEL J. INCORVAIA
ALYSSA M. INEICHEN
ROBERT C. IPPOLITO
MATTHEW T. IZUMI
RAVEN L. JACKSON
ASHLEY J. JACOBSEN
SPENCER T. JACOBSON
MITCHELL L. JENSEN
DANE A. JOHNSON
DANIEL L. JOHNSTON, JR.
SAMANTHA R. JONES
MADELEINE D. JONSON
MICHAEL JOO
MARVIS R. JOSEPH
PIERRE JOYNER
JOSHUA C. KANE
JANA M. KARALIUNAS
JEFFREY CLINTON KARR
ELIZABETH A. KEENAN
LAURA E. KELLY
MICHELLE N. KENNEDY
WILLIAM A. KENT
CHRISTOPHER S. KERANEN
ANDREW T. KERBER
DEBORAH B. KIM
GRACE S. KIM
BRENNAN L. KING
RACHEL Q. KINKEAD
BRANDON M. KIRBY
KIMBERLIE A. KIRKPATRICK
KORY T. KLUGE
JON M. KNUTSON
ALEXANDER A. KO
ANGEL LABOY
IAN A. LATHAM
WILLIAM C. LAWSON
WILLIAM T. LEACH
DAVID K. LEE
KENNETH LEE
CHASE W. LEHOCKY
CHARLES E. LEWIS
DOMINIQUE S. LEWIS
JAMIE M. LIDDLE
BRADLEY SCOTT LILLY
REISHA T. LIZAMA
DERRICK JAMES LOHR
KATHRYN E. LOPEZ
CHRISTIAN A. LORA
ALEXANDER D. LOVEJOY
HESTON JOHN DUMAGU LUBIANO
REUBEN K. LUONE
MELISSA K. LUTZ
ANDREW J. LY
IAN P. MACDONALD
SHEILA E. MANSFIELD
PATRICIA MANZUR BALLARD
FRANK R. MARQUETTE
ADAM GREGORY MARTHALER
LARRY S. MARTIN, JR.
DYLAN J. MASON
SCOTT A. MAYBERRY
JENNIFER A. MCANALLY
LISA MARIE MCCARTHY
ELIZABETH A. MCKENNA
BRANDON S. MCLENDON
CHRISTOPHER M. MCLEOD
JESSICA L. MEADOWS
CHERAE MONIQUE MEDINA
BRETT T. MEECE
YRA H. MEEHLEIB
ROED M. S. MEJIA
DAVID M. MELTON
MILES MENDEZ
DENNY JAMES MERIDETH
ANDREW D. METZ
CRAIG E. MILES
CAMERON J. MILLER
CHRISTOPHER WILLIAM MILLER
DAVID J. MILLER
DENNY J. MILLER
ISAIAH CAIDEN MILLER
PATRICK M. MILWARD
LYNDI J. MINOTT
CARLOS MANUEL MONGE
JANNA L. MONGE
JAMES LIANCHE MONK
MEGAN ETKIND MONTGOMERY
KYLE D. MOORE
TAYLOR LEE MOORE
REBECCA E. MORA
CHRISTOPHER A. MORALES
KAITLIN A. MORONES
ANGELA E. MORRIS
JOSEPH BRIAN MORROW
BYRON H. MUHLENBERG
BRENDAN W. MURPHY
ANASTASIA H. NEELY
KRLA NANICHI NEGRON LAGUNA
CODY R. NELSON
JASALYNN E. NESBITT
MATHEW RYAN NICHOLSON
NICHOLE R. NICHOLSON
BRENTON A. NORDEN
ADRIAN A. NUANES
JENNIFER M. NUANES
JESSE D. OCONNOR
SHELBY G. OLIVERA
BRIANNA M. OLTMAN
JAMES E. OLTMAN III
MATTHEW DAVID OVERBEY
ELIZABETH M. PACYNA
BRIGITTE L. PALACIOS
TIMOTHY J. PALMER
WILLIAM P. PALMER
MICHELLE D. PARAS
IAN N. PARKS
CHRISTOPHER M. PARMER
DANIEL C. PARSONS
JIGAR SURYAKANT PATEL
JAY F. PEARSON
SIMON A. PENA
SHAWN D. PENNIE
BENJAMIN W. PETRY
ALANA L. PICCONE
CONNOR B. PIGOTT
CHRISTOPHER J. PITILLO
JULIANN N. PLANK
LINDSAY MARIE PLASENCIO
MATTHEW A. PLOEG
ROBERT E. PLUNEDA
DAVID E. PORTEE
CHRISTOPHER T. PRICE
MITCHELL V. PRZYBOCKI
RYAN E. PUTNAM
AARON M. QUICK
JAMES P. QUINAN
ALLISON W. RAYOME
JONATHAN W. REASONER
THOMAS AARON REDFIELD
HALEY M. RENNER
MATTHEW E. REYES
JOURDANN D. RHODES
JOSEPH EDWARD RICHARD
DAVID K. RIFFLE
REBECCA E. ROACH
TIA M. ROBLES
JENNIFER M. ROCKWELL
CHRISTINA M. RODRIGUES
RICHARD A. RODRIGUEZ
CHEYENNE J. ROLON
JORGE M. ROMAN–CASTILLO
DREW MITCHELL RONTTI
TYLER A. ROTEN
CRYSTAL M. RUTH
DAVID J. SAGE
CRAIG M. SALAZAR
JESSE A. SALGADO
SAMANTHA E. SALTAMACHIA
ARIEL E. SALTIN
KRISTOPHER M. SANDIFER
AARON NOEL D. SANTOS
KELLY C. SARANDOS
KARLA E. SAVANA
ROBERT D. SCALETTI
NATHAN F. SCHAICK
ALLYSSA N. SCHIMMOELLER
SETH M. SCHNEIDER
LOREN A. SCULL
MICHAEL STEVEN SELFRIDGE
RYAN H. SHEIKH
DANIELLE D. SHINE
GARRETT SCOTT SHINKLE
DANIEL J. SLOSS
DEBORAH CHARISE SMITH
MELANIE CARROL SMITH
RACHEL E. SMITH
DESTINY HAWK SNYDER
LAURA N. SODERBERG
ADAM J. SOLOMON
ALEX B. SPARROW
CLAIRE A. SPORRER
ZACHARY J. SPRANGER
PATRICK L. STARK
SEAN TAYLOR STEPHENS
JELISA M. STEVENS
APRIL L. STOCKER
CODY W. STOCKER
MATTHEW R. STOUT
JACQUELYN O. STRINGFIELD
JOSEPH SUWABE
MARIANA I. TAMARIZ
NICHOLAS DAVID TAPP
KATIE M. THALHAMER
MARGARET L. THOMAS
WILLIAM JACKSON THOMAS
MICHAEL J. THRASHER
ERIC TIJERINA
ROBERT J. TIMIAN
ELIZABETH HARRISON TIWARI
IVOR A. TIWARI
BRANDON B. TOOTHAKER
LUCAS S. TORRES
JUSTIN EVERETT TRAMPOTA
CHAU V. TRAN
RYAN K. TRASTER
COLE W. TROVER
ROBERTO ANTONIO P. TRUJILLO
BINH T. TRUONG
SARAH N. TURNER
ROBERT EUGENE TYSON, JR.
KATELYN PORTELLI UNRATH
GRANT C. URBON
RYAN P. VEGA
MARIE ANNJANETTE M. VERDIDA
NAOMI VILLALOBOS
JAEN KARLO VILLALVIR
JAMAIL A. WALKER
EVAN D. WALTERS
ROBIN WALTON
TURNER B. WALTON
MATTHEW W. WARD

KRISTOPHER R. WASIELEWSKI
RYNE S. WATTS
TREVOR B. WEBBER
MATTHEW S. WEIR
CHRISTOPHER J. WEITGENANT
JOSEPH C. WIGHT
COURTNEY J. WISER
DUSTIN D. WOOSLEY
SARAH M. YOHE
SHAUNA M. YOUNG
TERESA GARFIELD YOUNG
STEVEN ZIMMER

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

MATTHEW N. ALOMBRO
MATTHEW B. ANDERSON
RYAN M. ARROWOOD
ROBERT W. ASHBY
BRYAN DOUGLAS BANFILL
CHANTE N. BARBER
ANDREW W. BEARD
CHRISTOPHER C. BETO
SCOTT A. BOLLER
BLAKE A. BRANTON
DYLAN T. BYRD
PATRICK M. CALLAGHAN
BRICETON MICHAEL CANNADA
REBECCA D. CARDINAL
JEREMY MICHAEL CASINGER
SARAH T. CASTRO
NATHANIAL B. CATT
KEVIN K. CHOE
ROZ A. CHROMY
ROBERT J. CLINE
CHRISTINE E. CLINTON
COREY A. COMBS
KEVIN M. CRAWFORD
FRANKIE ANTONIO CRUZ, JR.
BRANDEN M. CUNNINGHAM
TYLER W. DAVENPORT
BENJAMIN ANDREW DAVIS
STEVEN J. DELORME
RACHELE S. DENGLER
KENNETH G. DEVINE
THOMAS W. DICKINSON
JONATHAN E. DILLON
JOSHUA J. DISHMON
AUSTEN J. EBERT
HELLEN M. EDWARDS
CARL J. EICHERT
MICHAEL E. ESPINOZA
LAURA A. FAVO
DONALD EDWARD J. FEWKES
ROY A. FISHER
NICHOLAS C. FRANCIS
GRAIG S. GANITANO
YAZMIN HAIDEE GARCIA SMITH
DANIEL A. GOEBEL
TYLER J. GOODMAN
DUSTIN P. GRAVES
CHRISTOPHER L. GRIMM
PAUL A. GULOTTA
JAMES OWEN GUMBS
NATHANIEL JOHN HAERER
AMY C. HALL
JUSTIN A. HAPP
DEION JOINER HARDY
XAVIER T. HARRIS
HARRISON P. HATCHER
NOLAN T. HEBEIN
RYAN WILLIAM HEDDERLY
JERRY CHARLES HENRY
MICHAEL W. HERBERT
JOHNSON C. HO
CHARLES C. HOHNBAUM
JOHN MICHAEL HOLOWCHIK
OLIVIA S. HONEYCUTT
TAYLOR A. HUBBARD
JOHN J. HUDGINS
AVIAN Y. HUGHES
AARON W. HUGHEY
KEITH A. HUTCHISON
DEVON L. JONES
MANQUEZ FERRELL JONES
MARQUEZ TERRELL JONES
MATTHEW R. JORDAN
JENNIFER E. KASPER
MICHAEL P. KEANE
ROSS H. KELLET
JOSHUA P. KIM
CHRISTOPHER H. KODAMA
KATHERINE N. KONDAS
TERESA G. KOZIOL
JOSHUA R. KUSAN
BRIAN K. LAGRANGE
TREVOR J. LEAL
MICHAEL D. LEE
LAUREN E. LEET
JOSHUA T. LEONARD
THOMAS A. LEPLEY
MICHAEL R. LEVEILLE
BRANDON R. LIEBER
ANDREW H. LLOYD
TIMOTHY I. MACHIN
DANA C. MADSEN
DAVIN MAO
KYLE J. MATISSEK
ERICH W. MAXHEIMER
JULIAN P. MCCAFFERTY
JOHN A. MCKENZIE
DAVID A. MCLELLAN
LUKE J. MCNAMARA
JERROD M. MERTZ
KYLE S. MESECHER
JAKE THOMAS MEYER
MADISON J. MONTGOMERY
CALVIN D. MOORE
JUSTIN T. MOORE
BLAKE W. MORGAN
MICHAEL B. MORRIS
AUSTIN JOHNSON MYERS
LANCE T. MYREN
MATTHEW RYAN NEAU
SHAWN E. NEVALA
NATALIA OCAMPO
TRAVIS W. ODOM
EMMANUEL OKWOLI OGBE
KATHRINA M. OROZCO
STEVEN A. OWENS
CODY G. PALMER
EUNICE H. PARK
COLE R. PIPER
JONATHAN D. POWERS
NICHOLAS J. QUARTEMONT
ISAAC RAMIREZ
EMILY E. RANEY
TYLOR C. RATHSACK
VAL A. RED
RYAN J. REED
JOSHUA C. RIVEY
MIGUEL A. ROSARIO
MATTHEW G. SABOL
JACQUELINE MICHELLE SALAS
VICTORCAESAR SANTOS SALUM
TANNER L. SANCHEZ
MATTHEW K. SCOTT
JORDAN W. SHIMABUKURO
SERGIO A. SIERRA
DAVID L. SIMEROTH
DANIEL C. SMITH
LARA ASHLEY SMITH
LINDSAY SMITH
ETHAN D. SNYDER
ANDREW T. STARITA
DEMETRIUS D. STINSON
PAUL JOSEPH STOCKLIN
ANTHONY J. THOMAS
CAMILLE ARIEL THOMPSON
ALEXIS M. TODARO–WIEGNER
ANGEL A. TORRES
JOHN L. VANDER WYST
DENZEL J. VARNADO
ANDREW JAMES VELAS
IAN B. VERZONI
MOLLY A. WAKELING
TIMOTHY B. WALSH
GEENA LEE WELCH
SHAWN JOSEPH WHITNEY
CONNOR J. WIESE
RYAN PATRICK WILKERSON
OSBERT XIAO
PAMELA Y. ZHANG
DEREK W. ZIMA
GARRETT C. ZUPAN

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

KEVIN B. ABBOTT
TAYLOR B. ABSHER
JONATHAN D. ACKER
CARTER SANTIAGO ADAMS
MICHAEL J. ADAMS
MAXWELL H. ADLER
JUSTIN M. AGUD
CELESTINO CRUZ AGUON
ANDREW WILLIAM ALEXANDER
CASSANDRA ELLA ALEXANDER
JAMES R. ALEXANDER
RAFAEL ALICEA
JORDAN PAUL ALLEN
LAWSON BIMM ALLEN, JR.
GIOVANNI ALLEVATO
JOHN I. ALORA
JUAN S. ALVAREZHERRERA
AUSTIN R. ANDERSON
JASON K. ANDERSON
JEREMY B. ANDERSON
REX L. ANDERSON
BRIAN S. ANDRE
TREVOR K. ANDREASEN
BENJAMIN M. ANGWIN
IAN A. ANTHONY
KENNETH S. APPEL
THOMAS J. APPLETON
MICHAEL B. ARAKAWA
SHAUN FLOYD ARCHER
ANDREW T. ARMOR
MICHAEL A. ARMOUR
CHARLES J. ARMSTRONG
DAMIEN M. ASHLEY
WILLIAM G. ASTRAB, JR.
MADELINE M. ATKINSON
MARK L. AUDETTE
NICOLAS T. AUSTIN
KIMBERLY KAY AUTON
STEVEN C. AYALA
CARL K. F. AZAB
JORDAN R. BAAB
ALEXANDER S. BABOS
NOLAN A. BADER
SHAUN C. BAGHOTTSALMON
BRYANT W. BAILEY
COURTNEY M. BAILEY
DANIEL B. BAILEY
BRAXTON L. BAKER
KYLE WILLIAM BAKER
BENJAMIN J. BALDWIN
NATHAN ALLEN BALDWIN
AARIC C. BALLARD
AUSTIN RAMSEY BANGERTER
TIMOTHY CHARLES BANNING
BRANDON K. BANNON
BYRON S. BARFUSS
TRENNERT M. BARILLAS FOGARTY
MICHAEL ANDREW BARNEY
MATTHEW CLARK BARRETT
SEAN MICHAEL BARRON
AMOS J. BARTLOW
BRADLEY T. BASEK
BO T. BATEMAN
MARGARET ALEXANDRA BAUMAN
EDWARD M. BAXTER
ROBERT K. BEDELL
JONATHON L. BEENING
KENAN C. BELL
KEVIN M. BENNETT
TANNER J. BENNETT
MATTHEW C. BENSON
KYLE G. BENTON
JONATHAN R. BERAN
TODD A. BERGLUND
NATHANIEL S. BERNDT
COLEEN P. BERRYHILL
WILLIAM A. BERRYHILL
JOEL A. BERTELSEN
DANIEL E. BIEBER
RONNIE H. BIRGE III
MATTHEW ALLAN BLACKWELL
TIMOTHY P. BLAGBROUGH
MARIA PEREDERA BLAND
ROBERT C. BLAND
DAVID W. BLESSMAN
ERIN N. BLEYL
CALEB A. BLIESNER
AMANDA R. BLILEY
MATTHEW S. BLILEY
MILES A. BLISS
JUSTIN M. BLOTT
ELIJAH S. BLUSTAIN
MARK S. BODALSKI
DANIEL J. BOERCKEL
BRIAN COLE BOESHART
MATTHEW J. BOHANNON
RYAN J. BOHDEL
AUSTIN R. BOHN
CHRISTOPHER I. BOISE
AARON RAY BOLTON
MICHAEL DAVID BOOTH
WILLIAM BLAKE BOSTICK
JOHN C. BOWERMAN
AARON N. BOYD
BRENDAN WAYNE BOYD
NATALIE RENEA BOYD
CARLY C. BOYER
MICHAEL JOHN BOYLE
SETH A. BRACKEN
ALEXANDRA E. BRADFIELD
NATHAN J. BRADFIELD
SCOTT C. BRANDON
MARIAH L. BRANDT
TERRELL K. BRAYMAN
CHRISTIAN W. BRECHBUHL
RANDI LEE BREWBAKER
LAWRENCE S. BRIA
JOSHUA DAVID BRIGGS
JACKSON A. BRISTOL
RICHARD SHAWN BROCKINGTON
ERIC W. BRODBINE
BROOKS L. BRONAUGH
BRIAN S. BROOKOVER
SHANE A. BROUILLETTE
DAVID J. BROWN
JASON M. BROWN
NICHOLAS COLE BROWN
TYLER A. BROWN
WILLIAM PETER BROWN
JEFFREY S. BRUNNER
COLTON TAMASEU BRUNSON
JUSTIN D. BRUTON
STEWART LEE BRYANT
PAUL A. BUCHANAN
MATTHEW J. BUCHER
JONATHAN C. BUCKINGHAM
ERIC J. BUELTEL
KYLE REYES BUENAVENTURA
JASON S. BURBACH
COLLIN T. BURCHFIELD
PATRICK T. BURKS
JOSEPH N. BURMEISTER
WILLIAM D. BURNETTE
ANDREW M. BURNS
BRETT M. BURNSIDE
LARRY DAVID BUROKER
JOHNELLE M. BURRILL
GREGG DUNKIN BURROW
CAMERON M. BUTLER
JEREMY J. BUTLER
PHILLIP A. BUTLER
SHAMEL E. BUTLER
JILLIAN LEE CADIEUX
NICHOLAS S. CAFARO
SEAN P. CAHILL
BRIAN R. CAMP
PHILIP DONALD CAMPBELL
ALICIA M. CANETTA
ANTHONY J. CARBONE
NATHAN J. CAREY
STEPHEN MICHAEL CAREY
ROSS AARON CARLI
ANDREW J. CARPENTER
MATTHEW A. CARPENTER
KEVIN R. CARRINGTON
DAVID W. CARRUTH
CHRISTOPHER J. CARTAGENA

FORD B. CARTY
NICHOLAS W. CASINI
KYLE H. CASSADY
ALLAN B. CASTILLO
NICKLAS A. CASTLE
ISAAC D. CATHEY
TINA U. CAVAZOS
ELLIOT DRYDEN COLE CHAL
JAMES CHESTER CHAMBERS
RYAN E. CHANEY
JOHN T. CHAPMAN
MICHAEL V. CHAPMAN
JEREMY KYLE CHASTAIN
JACOB M. CHAVERS
MATTHEW STEVEN CHELLEW
DAVID P. CHESTNUT
KRISTIAN L. CIAMPA
JOHN R. CLARK
KALAN JAMES CLARK
HAILEY E. CLINTON
SHELBY S. COATS
AARON M. COFFMAN
DANIEL D. COLE
JOSEPH MARTIN COLE
PHILLIP EDWARD COLLAR
SEAN A. COLLINS
PHILIP E. COLWELL
PATRICK J. CONLEY
JOHN P. CONNER
MICHAEL AUSTIN CONNERS
MIRANDA LOUISE CONWAY
RICHARD D. COOK
MICHAEL C. COOPER
NATHAN A. COOPER
TIMOTHY J. CORDEIRO
SEAN M. CORK
AUSTIN F. CORNAY
RACHEL CHARITY CORNELIUS
KEVIN L. CORNELL
JEFFREY SCOTT CORTHELL
JOEL W. CORTRIGHT
DINESH DAS COSTLOW
THOMAS C. COUGHLIN
ALEXANDER U. COX
MICHAEL DOMINIQUE CRAIG
JOEL M. CRAMER
MICHAEL J. CRAMPTON
THOMAS JEFFERSON CREWS III
MATTHEW J. CROGHAN
TYLER H. CROMPTON
DYLAN SANDERS CROSS
TYLER LYNN CROSSON
CHRISTOPHER M. CRUZ
JASON D. CRYDER
MATTHEW R. CULLEY
MATTHEAU A. CURTIS
TREVOR A. CUTLER
JESSICA G. DACPANO
TYLER D. DAGOSTINO
BRYAN M. DALE
MATTHEW NOWLIN DALE
ZACHARY B. DALEY
JOSHUA A. DALLAS
JASON R. DARK
VINCENT A. DATO–ON
BEAU A. DAVIDSON
BRIAN S. DAVIS
CODY S. DAVIS
DEANDRE M. DAVIS
LAUREN M. DAVIS
MARTIN J. DAVIS
THOMAS STEPHEN DAVIS
ZACHARY J. DAVIS
RICHARD BOGGAN DAVISON II
ERIC B. DE JONG
JASON ALLEN DEAM
GARRETT S. DEAN
LOGAN S. DEAN
EVALDO DEARMAS, JR.
ZACHARY S. DECKER
ROBERT R. DEE
KELSEY M. DEES
JACOB L. DEL PONTE
ROGER J. DELANY
DAVONTE K. DELONEY
GAVIN GRANT DELPHIA
CODY J. DEMUTH
HEATHER R. DENNY
JAY S. DENNY
MICHAEL T. DEPAUW
JAMES S. DESANCTIS
SPENCER A. DEWEY
KENNETH MARK DICKENSCHEIDT
SHAUN M. DICKINSON
CHAD D. DIETRICH
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JOSEPH T. SWINSON
CHRISTIAN H. TAMBEAUX
ROBBIE MATTHEW H. TAN
KEVIN M. TANOUS
SHANE WINN TAPAY
JOHN D. TARDIEU
ERIC D. TAYLOR
CHRISTOPHER R. TEAFORD
WESLEY G. TEMPLETON
JEFFREY T. TEUFEL
VASUTORN V. THIENGTRONG
JACOB M. THOMAN
ASHLEY RENA THOMAS
MICHAEL A. THOMAS
DAVID S. THOMPSON
EMILY C. THOMPSON
IAN W. THOMPSON
RYAN P. THOMPSON
JARED W. THORNTON
RYAN PATRICK TICE
ELIZABETH T. TIFFANY
TERRY L. TILGHMAN
CHARLES STACY TODD
LANE A. TODD
JESSE J. TOGAWA
REYNALDO M. TOLEDO
NICHOLAS C. TONNEMACHER
NADEEM ANWAR TOOR
JOSHUA F. TORANO
MITCHELL S. TORREL
BRANDON M. TOWERS
KYLE A. TRAFTON
ALEXANDER K. TRAVERS
PATRICK H. TRENTMAN
DEREK J. TRUJILLO
JORDAN MICHAEL TUROK
ADAM E. UELMEN
KATHERINE E. UTSEY
WILLIAM S. UTSEY
JUSTIN WAYNE VAGTS
ALYSSA M. VAN BAALEN
RACHEL C. VAN BREEMEN
ZACHARY A. VAN CLEEF
MATTHEW J. VAN WAGENEN
ALLYSEN C. VANCE
ROBERT L. VAUGHN
JAMES S. VECHERY
NICKOLAS LEE VENTEICHER
LISA A. VENTURA
MORGAN TIMOTHY VIAR
CHRISTOPHER S. VILLANUEVA
WILLIAM B. VINE
LAUREN GERVAISE VINSON
ZACHARY L. VOHS
BENJAMIN D. VOLK
BRIAN R. VOS
STEPHEN MICHAEL VU
GEORGE A. WADDELL
REBECCA C. WADEY
WADE M. WALDMANN
ADAM D. WALKER
BRITNE E. WALKER
JORDAN L. WALKER
KEVIN J. WALKER
MARCUS E. WALKER
DUSTIN A. WALLACE
CASEY C. WALTERS
HONGLIANG WANG
GAVIN A. WARMBOLD
DAVID STEWART WARNER
BRIAN J. WASHBURN
JASON ANDREW WASSERMAN
CHRISTOPHER S. WASZAK
JOSHUA A. WATKINS
MATTHEW T. WAY
JEREMIAH S. WEAKLEY
EARNEST YOUN WEAVER
JOHN LOWELL WEAVER
JORDAN K. WEBB
LUKE B. WEBB
JAMES W. WEBBER
MYCHEAL R. WEEKES
JUSTIN SCOTT WEEKS
JACOB HARRIS WEINER
JOSEPH T. WELCH
JESSE R. WELLS
KEENAN L. WELSH
AUSTIN T. WENDT
TYLER D. WENZ
BRANDON J. WERLING
ROBERT JOHN WERNER
ELISABETH A. WESTFALL
SETH WESTFALL
MATTHEW J. WETZEL
RACHEL STECHER WEXHLER
AMY LOUISE WHEAT
CHRISTOPHER J. WHITEHEAD
JOSHUA A. WIESNER
TYLER T. WIESNER
HANNAH M. WIESNESKI
JORDAN D. WIGGINS
DENNIS G. WILCUTTS
BENJAMIN W. WILD
CRUISER C. WILKINSON
LUKE A. WILKINSON
ANDREW D. WILLARD
BRETT ALLEN WILLIAMS
ERIC MICHAEL WILLIAMS
KYLE R. WILLIAMS
CHRISTOPHER R. WILLIAMSON
CHRISTOPHER L. WILSON
GARRET J. WILSON
JOSEPH M. WILSON
ROBERT P. WILSON
RYAN R. WILSON
STUART EUGENE WILSON
KEVIN R. WISE
HANS E. WITTIG
TROY ROBERT WITTKE
EMERSON P. WOERNER
CRAIG M. WOJTKIEWICZ
TY A. WOJTYSIAK
SCOTT D. WOODEN
WESLEY D. WOODHOUSE
HD WOODRUFF III
TRAVIS L. WORDEN
SAMUEL RICHARD WOZNIAK
SEAN TRAVIS WRIGHT
SETH S. WYNN
JOHN JEEMIN YEOM
RYAN W. YOCHUM
THOMAS E. YODER
HYUN M. YOO
DANIEL RYAN YOUNG
KALEB K. YOUNG
STEVEN J. YOUNG
RICHARD D. YOUNT
JIMMY CHUCHIEH YU
TERRY SHUNGHEI YU
SHUAI ERIC YUAN
JUSTIN S. ZAHN
BENJAMIN D. ZAISER
ANDREW J. ZALDIVAR
INGEBOR ZANDEE VAN RILLAND
AARON P. ZARMBINSKI
AMANDA ELIZABETH ZERINGUE
YANZHI ZHUO
KAITLIN E. ZITO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be colonel

JAMES H. GUTZMAN

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant colonel

DANIELLE N. ANDERSON
ERIN D. ARCHER
JEFFREY N. BARNES
NIKKI L. BEADLE
JOANNA BORAWSKI
ANDREW J. BOSTIC

CODY R. BUTLER
RYAN D. BUTTON
NICOLE M. CAMPBELL
LEAH D. CHAPMAN
TODD J. CHRISTENSEN
DEBORAH E. COLON
AMILEAH R. DAVIS
ZARAH J. DAVIS
NANCY B. DELANEY
IVETH A. GALVEZ GUZMAN
JASON M. GARCIA
RYAN G. GARRISON
JOSEPH GITERSONKE
CHASE M. HAMILTON
CORY G. HEDIN
BRANDON M. HEY
JOANNA S. HO
NATHAN H. HOWARTH
DANIEL A. JACOBSON
KAMY C. JENKINS
DAVID M. JOHNSON
CHAD W. KILLPACK
BREANNE M. KORMENDY
JIMMY F. LAM
KATHIUSKA M. LAMB–RODRIGUEZ
GREGORY J. LATHBURY
BRYDON K. MANNING
JONATHAN B. MCQUAIG
PATRICK M. MEADE
JAMES NATHANAEL MOORE
CARLI B. MURPHY
ERIC A. OWENS
JOHN P. PISTELLO
JUSTIN R. READ
LAKISHA GADSDEN ROE
HEIDI L. SHELSTAD
BRIAN D. SHULER
JORDAN L. SIMONSON
TREVOR W. SLEIGHT
SHAOPING MO SUMNER
MICHAEL P. SWEENEY
KATHRYN MARIE TIDWELL
JOSHUA J. VAN WYNGAARDEN
KAREN A. VANDOR
AMANDA R. WALSH
JENNIFER P. WANG
BRIAN J. WELCH

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

RYAN C. CAGUILLO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be colonel

MARY M. GUTIERREZ

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE AIR FORCE UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

EDWARD W. HALE

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY JUDGE ADVOCATE GENERAL'S CORPS UNDER TITLE 10, U.S.C., SECTIONS 624 AND 7064:

To be colonel

CHARLES K. DJOU

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY NURSE CORPS UNDER TITLE 10, U.S.C., SECTIONS 624 AND 7064:

To be major

NICHOLAS C. MOLCZYK

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be major

DAVID HERNANDEZ

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be colonel

CLYDELLIA S. PRICHARD–ALLEN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

ESPADA J. RUIZ

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICER FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES MARINE CORPS UNDER TITLE 10, U.S.C., SECTION 8287:

To be lieutenant colonel

RYAN J. NOWLIN

IN THE NAVY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

MARY M. AYRES
JAKE U. CORMAN
MORGAN A. MCLEOD
REBECCA M. RIEGER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

DANIEL I. MORRISON

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

ALAN A. GUTBERLET

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

GUILLERMO M. ARGUELLO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be captain

CHRISTOPHER S. WILLIAMS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be captain

KRISTOPHER M. BRAZIL

THE FOLLOWING NAMED OFFICERS FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 605:

To be captain

JOSHUA P. CORBIN
MORGAN D. GEORGE
CHRISTOPHER J. GREEN
BRYAN J. KUPYAR
MICHAEL R. MARKS
ELIZABETH A. NELSON
DAVID A. NICHOLS
TOD F. OCONNELL
MATTHEW M. PIANETTA
NATHAN S. WEMETT

THE FOLLOWING NAMED OFFICERS FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 605:

To be commander

NICHOLAS B. ARTABAZON
COLBY T. BACON
JAMES E. BARCLAY
JOHN C. COLLINS II
JORDAN W. FOUQUETTE
MICHAEL J. HICKS
JUSTIN A. KELCH
WILLIAM K. MURRAY
NEAL N. NELSON
KEVIN P. OMALLEY
CHRISTOPHER R. TOCKEY
CHRISTOPHER M. WILKINS
JOSHUA N. WILLIAMS
SARA A. ZANITSCH

THE FOLLOWING NAMED OFFICERS FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 605:

To be lieutenant commander

MARY H. BAKER
GRANT M. BRINING
TIMOTHY P. BURNETT
ERIC M. CLARK
CHRISTOPHER J. COLE, JR.
BLAKE R. COPPLE
AARON L. CREEK
KEEGAN W. DELANOY
CHRISTOPHER J. DELBELLO
SIMON A. FINNEY
JORDAN C. FOUSHEE
GREGORY D. GIBBONS
MATTHEW T. GIVEN
ANDREW J. GOLANKIEWICZ
JORGE Y. GONZALEZ
CHRISTOPHER M. GRIGGS
BENNY A. HERNANDEZ
CHELSEA P. KELLINGER
ASIF A. KHAN
SAMANTHA L. KITTS
CALEB J. LINTZ
HAMZAH A. LODGE
LAWRENCE C. MCCARREN
LOGAN M. MCNEELY
JAMES D. MEYERS
CRISTOPHER A. MILLER
JASON L. MUSTAIN
JONATHAN B. NEWMAN
KYLE R. PARKER
DANIEL J. PERRINE
JARED M. PRICE
JOSHUA O. REED
JAROD L. SCOTT
JOSEPH A. SHANNON
BRANDON S. STEVENS
LANDON J. STULTZ
JAMES S. WAGNER
BENJAMIN D. WALTERS
TRENT A. WARNER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT AS SENIOR MILITARY ACQUISITION ADVISOR IN THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 1725(A):

To be captain

PETER J. MACULAN

CONFIRMATION

Executive nomination confirmed by the Senate July 18, 2023:

THE JUDICIARY

RACHEL BLOOMEKATZ, OF OHIO, TO BE UNITED STATES CIRCUIT JUDGE FOR THE SIXTH CIRCUIT.

EXTENSIONS OF REMARKS

CONGRATULATING ST. ELIZABETH ON THEIR CLASS 1 STATE CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating St. Elizabeth's Baseball Team on their victory in Missouri's Class 1 Championship game.

The Hornets claimed the Class 1 title for the third time in 5 years and fifth in their program history. In an exhilarant game, the team broke open the 1–1 score with an incredible 5 runs in the top of the third inning. They never trailed and played so well that the game was cut short at the end of the sixth inning due to the "run rule" mercy rule. The Hornets should be commended for all their hard work throughout the past year and for bringing home the state championship to their school and community.

Mr. Speaker, please join me in recognizing the St. Elizabeth Baseball Team for a job well done.

HONORING NORMAN CHAFFEE

HON. CLIFF BENTZ

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. BENTZ. Mr. Speaker, I rise today to honor retired NASA engineer, Norman Chaffee, and to recognize his achievements and outstanding efforts in inspiring countless rural students across Oregon through the Rural Schools Education Initiative program.

Throughout his 37-year career at NASA, Mr. Chaffee held several positions at the NASA Johnson Space Center from 1962 to 1998. He contributed to the Mercury program, Gemini, Apollo, Lunar, and Mars exploration programs. Mr. Chaffee has received numerous awards in recognition of his accomplishments including JSC Engineer of the Year in 1987, NASA Exceptional Service Medals in 1983 and 1991, a recognition from the State of Texas for his efforts in education outreach, and many more well-deserved awards and citations.

Continuing his devotion to education, Mr. Chaffee has continued to sustain a commitment for education and science having served as the Manager of the Space Settlement Design Competition for High School Students from 1999 to 2012 and continuing to be a champion for STEM.

After retiring in November 1998, Mr. Chaffee helped to create unique hands-on experiences for students in Oregon. In 2017, he led a personal tour of NASA's Robotics Lab at Johnson Space Center in Houston for students competing in the 2017 First International Robotics World Championship. Over 250 Oregon high school students participated in this experience. His remarkable work has served to promote Science, Technology, Robotics, Engineering, Arts, Math, and Medicine educational opportunities to Oregonians of all ages.

On behalf of Oregon's 2nd Congressional District, I ask my colleagues to join me in honoring Mr. Norman Chaffee.

PERSONAL EXPLANATION

HON. RUBEN GALLEGO

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. GALLEGO. Mr. Speaker, today I missed a vote on H. Con. Res. 57, Expressing the sense of Congress supporting the State of Israel, due to the birth of my child. Had I been present on the House Floor, I would have voted YEA in favor of this resolution. Israel is our most important ally in the Middle East, and remains a crucial partner in combatting terrorism, countering Iran's malign influence, and promoting democracy in the region. I firmly and indisputably reject efforts to question Israel's right to exist as a Jewish state and will continue to strongly advocate on behalf of a stronger U.S.-Israel relationship.

HONORING MR. JAMES MCBARRON II

HON. CLIFF BENTZ

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. BENTZ. Mr. Speaker, I rise today to honor the memory of the late NASA Engineer, James McBarron II, and to recognize his lifetime achievements and commitment to inspiring countless students in rural Oregon through the Rural Schools Education Initiative.

Throughout his 38-year career at NASA, from 1961 to 1999, Mr. McBarron II contributed to the Mercury, Gemini, Apollo, Skylab, Space Shuttle, International Space Station missions. He began his career in 1961 as an aerospace technologist with the Crew Equipment Branch, Life Sciences Division, Space Task Group at Langley Field, Virginia. His positions throughout his career included working as Crew Chief Crew Systems Division, CTSD chief engineer for EVA projects, and Spacesuit Systems Manager. He earned numerous prestigious awards for his achievements including the American Astronautical Society Victor A. Prather Award for outstanding contribution in the field of EV protection in space in 1979 and awarded the Presidential Medal of Freedom by President Nixon in 1971 as a member of the Apollo 13 Mission Operations Team.

Mr. McBarron II assisted in the promotion of the Rural Schools Education Initiative program in Oregon which helps bring retired NASA engineers to rural areas in Oregon to share their stories and inspire young students. By sharing his story and experience with Oregon students and community leaders he inspired hundreds of students to reach for the stars, to continue their education, and to enjoy their work while being successful.

On behalf of Oregon's 2nd Congressional District, I ask my colleagues to join me in honoring the life and accomplishments of Mr. James McBarron II.

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024

SPEECH OF

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Wednesday, July 12, 2023

The House in Committee of the Whole House on the state of the Union has under consideration the bill (H.R. 2670) to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense and for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes:

Mr. GARAMENDI. Mr. Chair, I rise today to highlight the extraordinary work done by the Readiness Subcommittee, with support from Chairman WALTZ and bipartisan support through the Subcommittee, despite efforts to compromise the integrity of this bill.

As the Ranking Member of the Readiness Subcommittee, it is my responsibility to provide congressional oversight of and support to the sustainment, logistics, infrastructure, and readiness of our military. I'd like to take a moment and thank my staff for their tireless work—the Readiness Subcommittee staff and my personal staff, Robert Hurd, Iain Hart, and Taylor Brunstad. I am proud of the Readiness Subcommittee's contribution and efforts to support our military.

I firmly believe in the mission of our military and support the men, women, and families that sacrifice so much. However, I cannot in good faith support a bill that undermines access to reproductive care; eliminates efforts to address systemic racism; and blocks medical care and support for transgender servicemembers and their dependents. We owe it to our servicemembers to protect their rights while they are sacrificing to protect our freedom.

I do, however want to acknowledge the critical work we were able to accomplish in the original bill that passed through the House Armed Services Committee:

Support Mare Island with a provision that authorizes the Secretary of Defense to conduct a study on dredging Mare Island Straight in front of finger piers 2 and 3 to a depth of 30 feet to restore the usability of the piers for commercial shipbuilding in the future.

Conduct a study on the efforts required to recapitalize Mare Island Naval Shipyard to support domestic shipbuilding.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

Provide new federal loans and loan guarantees for repairs and retrofits of U.S.-flag civilian vessels in domestic commercial shipyards, like Mare Island Dry Dock.

Combat price gouging and close the loopholes giant defense contractors are utilizing to price gouge the Pentagon and American taxpayers.

Authorize the FireGuard program, crucial to fighting wildfires in California and nationwide.

Provide a report on the feasibility of using CH–47 helicopters for fighting wildfires.

Continue to fight nuclear proliferation by requiring the development of an integrated master schedule for nuclear warhead development.

Make improvements relating to civilian access to U.S. military installations. This helps workers, veterans, and others who need to get on base for their jobs, livelihood, or medical care in military communities like Travis Air Force Base in Solano County.

Modernize the Military's List of Medically Disqualifying Conditions for military service to ensure enlistees are not needlessly disqualified from serving or continuing to serve in the military. The current list of medically disqualifying conditions was designed when female enlistees were far less common, therefore many female enlistees are unnecessarily disqualified from enlisting due to normal conditions of their gender. This would also allow for the review of conditions like ADD/ADHD, previous mental health treatment and support, and other conditions that frequently receive a waiver.

Increase funding for environmental clean-up at former military installation sites to $50 million dollars.

Require DOD to establish policy and process to identify and report encroachment related risks near military bases and installations, and to understand ways to mitigate associated risks.

Authorize continued funding for bio-industrial manufacturing infrastructure. This would establish a network of facilities that would support defense needs and assist in scaling commercial capacity so that the U.S. can compete with China, create new jobs, and us on robust agricultural feedstock.

Extend the deadline for the completion of the conveyance of a parcel of property at Sharpe Army Depot, Lathrop, California to 2026.

Increase funding for research and development for energy efficient aircraft development.

Continue to push the DOD on the sustainment and readiness of ships and aircraft via yearly reports from the GAO.

Utilize the lessons learned in the response to COVID–19 through ''Operation WARP SPEED'' to develop plans and operations for response to future pandemics or emergencies.

Support the American maritime industry by requiring reports on the preference afforded by domestic ports to U.S. military, commercial vessels enrolled in the Maritime Administration's (MARAD) strategic sealift programs, and other U.S.-flagged vessels, if any.

Demand responsible spending and furthering nuclear nonproliferation through studies on Plutonium Pit Aging.

It is unconscionable that the bipartisan bill advanced out of the House Armed Services Committee is being subjected to amendments that detract from its original mission to support our service members and keep American families safe. Regardless of the final outcome of this year's NDAA, I am pleased to have worked in a bipartisan manner to advance legislation out of the House Armed Services Committee that addresses the critical issues facing our military families and furthers America's national security interests.

HONORING AND COMMENDING ELOISE GOOD

HON. DONALD NORCROSS

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. NORCROSS. Mr. Speaker, I rise today to honor and commend Eloise Good for her 100th birthday celebration.

On July 16, 2023, family and friends gathered to celebrate the 100th birthday of Mrs. Eloise Good at Lucien's Manor in Berlin, New Jersey. Eloise Good was born on July 14, 1923, in Virginia. She moved to Glassboro, New Jersey, as a teenager where she later met her husband Pearly L. Good and continued to raise her family there.

Mrs. Eloise Good has been a hardworking and active community member and citizen. As a teenager, she organized a Christmas Savings Club for her neighborhood to enable them to save money during the holiday season, eventually recruiting members from all over her community. Mrs. Good is a longtime active member of the Democratic party. She served as a poll worker for a decade and worked on Governor James Florio's campaign for both New Jersey State Assembly and Governor.

In 1980, the Good family moved to Camden where she continued her efforts to support her community by successfully organizing a petition against the St. Lawrence Cement Plant in Camden, New Jersey, in opposition to the environmental threats the plant posed to her South Camden neighborhood. Furthermore, Mrs. Good is a committed and active member of the NAACP.

Eloise Good comes from a devoted military family. Her father, Henry Lee-Finney, fought in WWI and her husband served in WWII. Her grandson, Malcolm Sykes, served in the United States Marine Corps from 1989 to 1991, in the Army National Guard from 1998 to 2005, and in Operation Iraqi Freedom from 2004 to 2005. Another grandson, Jefferey Ferren, honorably gave his life in defense of this country on April 2, 2012, while on duty in the United States Navy. His widow, Gabrielle Kubinyi, is a member of the Gold Star Family.

Eloise and Pearly Good were married for 72 years until his passing in 2014. Today, she is a mother of 7 adult children, 20 grandchildren, 24 great-grandchildren, and 6 great-great-grandchildren. Mrs. Eloise Good is a shining example of what it means to lead a life filled with purpose and compassion.

Mr. Speaker, I ask you to join me in honoring and celebrating the 100th birthday of Mrs. Eloise Good of the City of Camden, New Jersey, a resident dedicated to her community and who has thoroughly served them to the best of her ability.

Be it known to all, that I hereby honor Eloise Good, and extend great appreciation for outstanding service to our community.

COMMEMORATING THE 125TH ANNIVERSARY OF VETERANS AFFAIRS ILLIANA

HON. DARIN LaHOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. LAHOOD. Mr. Speaker, I would like to honor a remarkable organization, the Veterans Affairs Illiana Health Care System. The Veterans Affairs Illiana expands across central Illinois and is a vital organization that provides care to Veterans in Illinois and Indiana. After many years of success and service, the Veterans Affairs Illiana is celebrating their 125th anniversary.

The Veterans Affairs Illiana Health Care System has united Veterans in the area since 1898 to successfully provide primary and specialty care to Veterans. Originating in Danville, Illinois, Veterans Affairs Illiana serves as the 8th oldest Veterans Affairs facility. The Veterans Affairs Illiana expanded services across central Illinois beginning in 1977 with outpatient clinics targeted to serve Veterans residing in rural areas. Today, the members of the organization work hard to support, serve and care for the Veteran community throughout 34 counties in Illinois and Indiana.

Illinois has become a state of advocacy for Veteran groups like Veterans Affairs Illiana Health Care System that come together and enhance opportunities for Veterans, their families, and the community. I extend my sincere congratulations to Veterans Affairs Illiana Health Care System for a successful 125 years, and I wish them continued success.

HONORING EMMA KENNER

HON. GREGORY W. MEEKS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. MEEKS. Mr. Speaker, I rise today to honor an incredible woman by the name of Emma Kenner. Emma Kenner is a child of God, and she gives thanks and praises to our Lord and Savior, Jesus Christ.

Emma was a Queens native hailing from Jamacia, New York. An inspirational and dedicated 103-year-old constituent who has had a major impact on the district. She has spent decades serving the communities of Southeast Queens as a shining example to future community leaders.

Emma has a lengthy resume with accomplishments across a plethora of fields. She spent many years working at the New York State Department of Mental Hygiene, served as a coordinator of the New York Board of Elections, and was the former president of the 113th Police Precinct Council. She has also played a major role in New York's political field by volunteering at many local elected official's offices such as Senator Comrie, Floyd Flake, Archie Spigner, and my very own. A woman undoubtedly devoted to public service and the advancement of our communities.

Mr. Speaker, I ask my colleagues to join me in recognizing Emma Kenner for her dedication to politics, her city, and her community.

PERSONAL EXPLANATION

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. HIGGINS of New York. Mr. Speaker, on July 17, 2023, I was unable to be present for the recorded suspension votes on Roll Call Nos. 329 and 330. Had I been present, I would have voted YES on Roll Call No. 329, S. 111—Providing for Accountability Through Transparency Act, as amended; and YES on Roll Call No. 330, H.R. 813—Global Investment in American Jobs Act of 2023, as amended.

LECOM 30TH ANNIVERSARY PROCLAMATION

HON. MIKE KELLY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. KELLY of Pennsylvania. Mr. Speaker, I proclaim the Lake Erie College of Osteopathic Medicine (LECOM) as a pillar of the community.

Whereas, LECOM has been established since 1992 in Erie, Pennsylvania as a college of Osteopathic Medicine and now celebrates its 30th Anniversary; and

Whereas, LECOM has grown to become the Nation's largest medical college with campuses in Erie, Pennsylvania, Greensburg, Pennsylvania, Bradenton, Florida, and Elmira, New York; and

Whereas, LECOM has prepared and graduated more than 16,000 students to become osteopathic physicians, pharmacy practitioners, and dentists through programs of excellence in education, research, clinical care, and community service to enhance the quality of life through improved health for all humanity; and

Whereas, LECOM has expanded its reach to include exceptional programs in graduate studies designed to provide scholars superlative education in the respective areas of study; and

Whereas, LECOM is opening a new School of Podiatric Medicine and pursuing opportunities to open additional campuses, further demonstrating their steadfast commitment to continue expanding healthcare education; and

Whereas, LECOM offers a quality medical education at an affordable price with one of the lowest, private medical college tuitions in the Nation; and

Whereas, LECOM provides students a choice of student-centered pathways that match the learning styles of individual students to promote success.

Whereas, LECOM has been ranked by U.S. News & World Report as one of the top medical colleges for graduating primary care physicians; and

Whereas, LECOM is the most applied to medical college in the United States; and

Whereas, LECOM has the Nation's only osteopathic academic health system with its own teaching hospitals, a physician network, and a full continuum of services for older adults;

Now therefore be it resolved, that I proclaim LECOM as an acclaimed school of Osteopathic Medicine in the Commonwealth of Pennsylvania.

Be if further resolved, that during their 30th anniversary, LECOM is commended for the exceptional impact the organization has on the communities they serve and for their contributions to improving healthcare for all.

HONORING THE BRAVERY OF GICELA ALEMAN

HON. COLIN Z. ALLRED

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. ALLRED. Mr. Speaker, on May 6 our North Texas community was left scarred by the shooting at Allen Premium Outlets.

Nine people were killed, and 7 others were injured.

But today, I recognize the brave story of the service of Gicela Aleman.

An unsung hero who that day was shopping for new shoes at the outlet mall with her daughter, Adele.

When the gunman opened fire, he severely wounded Preeti Patel, a mother and grandmother who was visiting family in North Texas and like so many others—was just trying to do some shopping.

Amidst the chaos and violence, Gicela sprung into action. She grabbed Preeti and tried to slow her bleeding.

After seeing that ambulances were struggling to get through security, Gicela drove Preeti herself to get the care she needed.

Preeti is alive today because of Gicela.

An amazing story that deserves a hero's praise.

We thank her for her bravery, selflessness and representing the best of North Texas.

PERSONAL EXPLANATION

HON. BECCA BALINT

OF VERMONT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Ms. BALINT. Mr. Speaker, I was unable to be present on July 17, 2023.

Had I been present, I would have voted YEA on Roll Call No. 330, and YEA on Roll Call No. 329.

RECOGNIZING ROSA CARTWRIGHT'S SERVICE TO THE CITY OF YPSILANTI

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mrs. DINGELL. Mr. Speaker, I rise today to recognize Rosa Margaret Cartwright of Ypsilanti, Michigan, on the occasion of her 100th Birthday. Her dedication to her family and local community over the last century is worthy of commendation.

Rosa was born on July 18, 1923, in Roanoke, Alabama to Eva and George Dozier. Rosa came to Michigan by way of Ohio in the 1940s. During this time, she attended the National Beauty Culturists' League for Cosmetology and held the title of 3rd Vice President and Secretary to the League. Rosa also pledged Theta Nu Sigma sorority and is currently 1 of the oldest living sorority members. She has also held the title of Theta Nu Sigma's Ambassador for the State of Michigan for many years.

After receiving her degree in Cosmetology, Rosa married her husband Benjamin in 1951. Together the couple had 4 children. A proud small business owner, Rosa was the owner and proprietor of Tony's Beauty Salon for over 70 years in addition to a small convenience store. Rosa is still an active community member and has served in many city and local organizations, including the Eastern Star as well as serving as Choir Director and Vice President of Mount Olive Baptist Church. Rosa still meets up weekly with a group of avid game players, and until recently taught piano.

Mr. Speaker, I ask my colleagues to join me today in celebrating the 100th birthday of Mrs. Rosa Cartwright. We are so proud of her continued tenacity and spirit at such a well-seasoned age. She continues to be a pillar of the Ypsilanti community and is a true beacon of love and friendship to all family and friends that are lucky enough to be in her presence. Happy birthday to Rosa.

CONGRATULATING EMILIA LABRUYERE ON HER CLASS 5 STATE CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Timberland High School's Emilia Labruyere on her victory in Missouri's Class 5 Discus State Championship.

Emilia claimed the Class 5 title, becoming the Wolves' first female track and field state champion. Her incredible, winning throw of 42.14 meters matched both her personal best and school record-winning toss of the same distance a month prior. Emilia should be commended for all her hard work throughout the past year and for bringing home the state championship to her school and community.

Mr. Speaker, please join me in recognizing Emilia Labruyere for a job well done.

RECONGIZING THE RETIREMENT OF THOMAS ''TOMMY'' CARLISLE

HON. MIKE ROGERS

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. ROGERS of Alabama. Mr. Speaker, I rise today to recognize the retirement of Mr. Thomas ''Tommy'' Carlisle following his 37-year career at Anniston Army Depot. Mr. Carlisle's service includes travel throughout the United States as well as 4 deployments overseas supporting the mission of the U.S. Army.

Tommy has served as a supervisor in 4 divisions including Fielding, Reciprocating Drive Train, Weapons and Track Systems. Additionally, Tommy has served as a Division Chief in

3 divisions including Logistics Management (Fielding), Reciprocating and Tracked Systems. In 2010, he was named Deputy Director of Production where he served for 8 years before becoming selected to serve as the Director of Production. Building on this service, he was selected as Deputy to the Commander at Anniston Army Depot on September 29, 2019.

Mr. Carlisle is a native and resident of Lincoln, Alabama. Tommy has been married for 34 years to his wife, Susan. Together, they have 2 children as well as 2 grandchildren. Tommy is an avid University of Alabama fan who enjoys tailgating and traveling to games. Additionally, Tommy enjoys being on the river, riding his Harley and socializing with his friends.

Mr. Speaker, please join me in recognizing the retirement of Mr. Thomas Carlisle for his 37-year career at Anniston Army Depot.

KOREAN-AMERICAN PARTNERSHIP

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. WILSON of South Carolina. Mr. Speaker, July 27th marks the 70th Anniversary of the signing of the Korean Armistice Agreement, which formally ended the Korean War.

As Co-Chair of Congressional Caucus on Korea, I was grateful to have joined my colleagues in welcoming new Ambassador of the Republic of Korea to the United States, His Excellency Hyun-Dong Cho and the Korean National Assembly ruling party delegation to the U.S. Capitol for a breakfast recognizing veterans of the Korean War.

I valued the opportunity to have met with 6 members of the ruling People Power Party Leader, Assemblyman Gi-Hyeon Kim, members of the National Assembly Chul-Gyu Lee, Seok-Ki Kim, Sang-Bum Yoo, Min-Kuk Kang, and Chairman of the International Relations Committee of the People Power Party and former National Assemblyman Jae-Young Lee.

Visible proof of affection by Americans for the people of the Republic of Korea was the Joint Session of Congress speech by President Yoon Suk Yeol.

HONORING THE ACCOMPLISHMENTS AND LEGACY OF LANCE CORPORAL (RET.) JOHN E. DEVOLL, SR.

HON. PATRICK RYAN

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 18, 2023

Mr. RYAN. Mr. Speaker, I rise today to honor the memory of Lance Corporal (ret.) John E. DeVoll, Sr., of New Paltz, N.Y., a devoted partner; beloved father, grandfather, and uncle; proud U.S. Marine and Vietnam War Era veteran; and cherished friend, who passed away in Poughkeepsie, New York, on December 5, 2022.

John DeVoll was born on November 30, 1944, in Staten Island, N.Y., to the late John ''Jack'' and Agnes (Bennett) DeVoll. He worked in security for Iron Mountain. Previously he worked as a night manager at Shoprite and manager at the International Pancake House, and worked with his parents in their family restaurants, Cherri's I and II, in High Falls, N.Y.

Lance Corporal DeVoll was a U.S. Marine who served his country with the 1st Battalion, 28th Marines, 5th Marine Division, 5th Marine Division (Fleet Marine Force) during the Vietnam War. For his service, he received awards including two Good Conduct Medals, the National Defense Service Medal, and the Rifle Sharpshooter Badge (M–14 Rifle). LCPL DeVoll was a selfless and faithful patriot.

He was preceded in death by his parents, sisters Margaret Brandow, Barbara Hasbrouck, and Jacqueline Santowski, former wife Dorothy DeVoll, longtime companion Katherine Wagner, and stepson Billy Jo.

He is survived by his children John Jr., Melissa Jennifer and her husband Rasheed Sr., and Michael; stepchildren Coleen and her husband Joseph Sr., and Kathy; grandchildren Anthony, Nicholas, Ava, Rasheed Jr., Ramya, Joe Jr., Damyn, Kaitlyn, Kaylona, Jerome, Christopher, Brittany Johnathan and Miranda. He will also be missed by many nieces and nephews.

Mr. Speaker, I ask my colleagues in the House of Representatives to join me in recognizing the accomplishments and legacy of Lance Corporal (ret.) John E. DeVoll. It is my privilege to rise in recognition of his service and to honor his memory.

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, July 12, 2023

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 2670) to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense and for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes:

Ms. JACKSON LEE. Mr. Chair, I rise today to speak on the rule for H.R. 2670, the National Defense Authorization Act (NDAA) for Fiscal Year 2024.

This is an important measure that for over 60 years, Republicans and Democrats have come together to support investments authorized in the NDAA that will help address the changing global landscape and prepare the country for future challenges and threats.

I along with my colleagues have offered a number of robust and thoughtful amendments in furtherance of a process that has generally been bipartisan work on behalf of America's national defense.

However, I am dismayed that this year, my Republican colleagues in the majority have refused meaningful consideration of the majority of amendments offered by my Democratic colleagues.

While I am grateful that one of my amendments was made in order, the Jackson Lee Amendment No. 1075 (No. 136 as reported in the Rule) and included in the En Bloc package No. 3, it is beyond disappointing and disgraceful that my additional 19 amendments were not made in order—and particularly ones I have offered for many years and have been made in order.

With respect to my amendment that was made in order, I ask for a favorable vote on the En Bloc package No. 3 in support of the Jackson Lee Amendment No. 1075.

The Jackson Lee Amendment No. 1075 would require that a report be submitted within 220 days of the NDAA's passage detailing our national capacity to provide disaster survivors with short term housing.

In the aftermath of emergencies and national disasters, victims have much on their minds.

Homes, properties, businesses, and livelihoods may have been damaged in the disaster, and families, friends, and community members may be mentally and physically affected by the disaster, not to mention additional challenges as they seek to return to work and school.

As these communities begin to face the long process of recovery and rebuilding, short term housing is one of the first things disaster survivors need to get back on their feet.

Unfortunately, my constituents and I are no stranger to these kinds of disasters.

In 2017, Hurricane Harvey devastated the Houston area, affecting over 100,000 homes across the city. In the aftermath of the storm, finding temporary housing was one of the biggest challenges to recovery for many survivors.

Short-term housing was difficult to coordinate due to the sheer number of Houstonians affected.

As such, it is crucial that Congress have a strong understanding of our current capabilities and, specifically, our ability to provide these survivors with short term housing before disaster strikes.

If voted on favorably, this report will not only inform us of our current capacity to provide housing but will also better equip Congress to respond to disasters and support survivors in the future.

In addition to this amendment, I offered the below listed amendments.

Jackson Lee Amendment No. 1010 condemns the actions of Boko Haram and directs the Secretary of Defense to submit a report on efforts to combat Boko Haram.

Since 2009, Boko Haram has subjected women and girls to unbearable and severe forms of abuse, including sexual slavery, sexual violence, forced marriages, forced pregnancies, and forced conversions.

The United Nation's Human Rights Council report on violations and abuses committed by this despicable organization reveals the negative impact of such violent acts on the affected communities and individuals.

And this year, in March of 2023, Boko Haram displaced at least 3,000 people in fighting along Nigerian border towns and villages.

In April of this year, Boko Haram militants also destroyed hundreds of homes in Cameroon.

Despite regional coordination efforts by the African Union in creating Multinational Joint Task Force to fight Boko Haram, this violent organization continues to commit gross human rights abuses and serious violations of international humanitarian law, resulting in ongoing casualties and further destruction of property.

The Jackson Lee Amendment No. 1010 would have supported efforts by the African

Union and other international entities to effectively counter the atrocities of this organization.

The Jackson Lee Amendment No. 1084 directs the Secretary of Defense to submit to Congress a report on the actions taken to protect members of the Armed Forces of the United States from armed attacks conducted by militants and terrorists in pursuit of bounties and inducements by the agencies, organizations, or entities aligned with the Russian Federation.

In 2020, there were reports that Russia was placing bounties on American soldiers.

Although these reports have not been confirmed, we must be prepared to contend with such threats.

The lives of our Armed Forces should be valued and protected from our Nation's adversaries.

It is important that we use our resources to ensure the safety and well-being of America's service members, as their bravery and valor are vital for America's success. It is our duty to ensure that our troops can return to their families.

That is why I introduced an amendment to ensure that a report is made detailing the actions taken to protect Armed Forces members from armed attacks. Jackson Lee Amendment No. 1084 would have ensured that we take a stand against attacks on our military and continue to protect men and women serving this country.

The Jackson Lee Amendment No. 1099 requires the Secretary of Defense to report to Congress on the programs and procedures employed to ensure students studying abroad through Department of Defense National Security Education Programs are trained to recognize, resist, and report against recruitment efforts by agents of foreign governments.

Tens of thousands of American students study abroad each year, with hundreds of them going through the Department of Defense's National Security Education Programs.

This past year, the National Security Education Program enrolled 108 Boren fellows and 210 Boren scholars, in addition to those enrolled in the organization's seven other study abroad programs. Protecting these students in their time abroad is a priority; hence, the need for the Secretary of Defense to ensure students know how to detect foreign intelligence and recruitment efforts.

Generating awareness about risks that study abroad students could face overseas will safeguard America from being targeted by foreign governments. Security measures offered by my amendment, Jackson Lee Amendment No. 1099, would have continued to protect America's future by preventing foreign intelligence services from acquiring tools to inflict harm on America.

The Jackson Lee Amendment No. 1108 requires the Secretary of Defense to evaluate the threat to national security posed by domestic terrorist groups and organizations motivated by a belief system of white supremacy.

Since 2010, white supremacists have carried out at least 17 lethal attacks, resulting in no fewer than 77 deaths. White supremacist attacks account for more than half of all fatalities from domestic terrorism, per the FBI.

As such, the FBI has deemed that white supremacists ''pose the primary threat'' in domestic terrorism. FBI reports have identified these racially-motivated extremists as part of a transnational movement facilitated by online networks.

Due to the FBI's assessment of a rising threat of domestic violence rooted in white supremacy, it is essential that Congress be thoroughly informed on this matter.

This amendment and the report it commissions will provide valuable information and an up-to-date, detailed evaluation of the potential domestic violence threat these groups pose moving forward.

In this way, Congress can better create meaningful policy solutions that enshrine national security and safety for all. The Jackson Lee Amendment No. 1108 offered an important proactive approach to combatting domestic terrorism.

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

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Ms. JACKSON LEE. Mr. Chair, I rise today to speak on the rule for H.R. 2670, the National Defense Authorization Act (NDAA) for Fiscal Year 2024.

This is an important measure that for over 60 years, Republicans and Democrats have come together to support investments authorized in the NDAA that will help address the changing global landscape and prepare the country for future challenges and threats.

I along with my colleagues have offered a number of robust and thoughtful amendments in furtherance of a process that has generally been bipartisan work on behalf of America's national defense.

However, I am dismayed that this year, my Republican colleagues in the majority have refused meaningful consideration of the majority of amendments offered by my Democratic colleagues.

While I am grateful that one of my amendments was made in order, the Jackson Lee Amendment No. 1075 (No. 136 as reported in the Rule) and included in the En Bloc package No. 3, it is beyond disappointing and disgraceful that my additional 19 amendments were not made in order—and particularly ones I have offered for many years and have been made in order.

With respect to my amendment that was made in order, I ask for a favorable vote on the En Bloc package No. 3 in support of the Jackson Lee Amendment No. 1075.

The Jackson Lee Amendment No. 1075 would require that a report be submitted within 220 days of the NDAA's passage detailing our national capacity to provide disaster survivors with short term housing.

In the aftermath of emergencies and national disasters, victims have much on their minds.

Homes, properties, businesses, and livelihoods may have been damaged in the disaster, and families, friends, and community members may be mentally and physically affected by the disaster, not to mention additional challenges as they seek to return to work and school.

As these communities begin to face the long process of recovery and rebuilding, short term housing is one of the first things disaster survivors need to get back on their feet.

Unfortunately, my constituents and I are no stranger to these kinds of disasters.

In 2017, Hurricane Harvey devastated the Houston area, affecting over 100,000 homes across the city. In the aftermath of the storm, finding temporary housing was one of the biggest challenges to recovery for many survivors.

Short-term housing was difficult to coordinate due to the sheer number of Houstonians affected. As such, it is crucial that Congress have a strong understanding of our current capabilities and, specifically, our ability to provide these survivors with short term housing before disaster strikes.

If voted on favorably, this report will not only inform us of our current capacity to provide housing but will also better equip Congress to respond to disasters and support survivors in the future.

In addition to this amendment, I offered the below listed amendments.

The Jackson Lee Amendment No. 1401 requires an annual report on maternal mortality rates for military members and their dependents.

Women make up about 17 percent of the active military population. As such, their specific health needs are a critical piece of force readiness and the well-being of U.S. troops. In order to ensure military readiness, it's important that the full scope of women's health care needs are understood and provided for. The knowledge gained through this report will best equip the creation of meaningful policy and standards of care for women in the military.

Despite generally lower rates of maternal and infant mortality compared with the United States overall, per a 2019 report generated as a result of my request to do so in the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232), the continued monitoring and reporting on these rates is crucial and highly relevant—particularly in light of the heightened attacks on women's reproductive health and the recent Supreme Court's decision effectively overturning Roe v. Wade.

Maternal and infant health are important indicators of the overall health of a Nation. More than 40 percent of active-duty service women reported a pregnancy since joining the military and 16 percent reported a pregnancy within the prior year. Beyond those directly serving in our military, this report would also support the needs of the pregnant dependents of those in the military and ensure that they also receive the standard of care they deserve. The Jackson Lee Amendment No. 1401 would have ensured a proactive approach to enshrining maternal health, especially for our military families.

Jackson Lee Amendment No. 1403 authorizes a $10 million increase in funding for increased collaboration with NIH to combat Triple Negative Breast Cancer.

Triple negative breast cancer is a specific strain of breast cancer for which no targeted

treatment is available. The American Cancer Society calls this particular strain of breast cancer ''an aggressive subtype associated with lower survival rates.''

I offered this amendment in hopes that through a coordinated effort DOD and NIH can develop a targeted treatment for the triple negative breast cancer strain. Breast cancers with specific, targeted treatment methods, such as hormone and gene-based strains, have higher survival rates than the triple negative subtype, highlighting the need for a targeted treatment.

Breast cancer accounts for 1 in 4 cancer diagnoses among women in this country. It is also the most commonly diagnosed cancer among African American women. The American Cancer society estimated that in 2019, over 33,000 new cases of breast cancer would occur among Black women, with about 6,540 breast cancer deaths expected to die from the disease.

Today, Black women are 40 percent more likely than white women to die from breast cancer. Black women are also 12 percent less likely to survive five years after a breast cancer diagnosis. One reason for this disparity is that African American women are disproportionally affected by triple negative breast cancer.

And in my district, the statistics are even more shocking for Black women. In Houston, the breast cancer death rate for black women is nearly double than average. Several preventable factors contribute to this. Namely, that Black patients are 1.5 times more likely to be uninsured than white patients and are simply unable to obtain and receive access to lifesaving treatment. In fact only 54 percent of Black women, in Houston, receive annual breast cancer screenings. This is unacceptable. We must do better in making sure all those inflicted by this deadly cancer have access to treatment and opportunity to live their lives to the fullest.

For these individuals and the tens of thousands of survivors and their daughters the Jackson Lee Amendment No. 1403 is desperately needed.

Jackson Lee Amendment No. 1404 provides authorization for $2.5 million increase in funding to combat post-traumatic stress disorder (PTSD).

This amendment is intended to address the urgent need for more post-traumatic stress disorder (PTSD) treatment and counseling facilities servicing veterans living in some of the more distressed areas of our country. We can never do enough to honor our wounded veterans.

The Congressional Research Service puts the number of troops deployed since 2000 suffering from post-traumatic stress disorder (PTSD) at nearly 67,000. Rates of PTSD among Veterans are twice as high as PTSD rates among the general population.

Of the six million Veterans served by the VA in Fiscal Year 2021, 10 percent of men and 19 percent of women were diagnosed with PTSD. This number does not take into account those suffering from depression or anxiety.

When wounded troops return home, the treatment they receive is more befitting a second-class citizen than a hero. This is unacceptable for a country that has the resources to provide Veterans and members of the Armed Forces with World Class Care.

In 2013, a three-judge panel of the 9th U.S. Circuit Court of Appeals ruled that the Department of Veterans Affairs treatment of mentally ill veterans is so inadequate, it is unconstitutional. The decision said, ''many veterans with severe depression or post-traumatic stress disorder are forced to wait weeks for mental health referrals and are given no opportunity to request or demonstrate their need for expedited care.''

Increasing the number of medical facilities specializing in post-traumatic stress disorder located in underserved urban areas is the first step Congress can take to providing veterans with the services they need.

Access to post-traumatic stress disorder treatment is especially important since veterans living in such areas are less likely to be diagnosed and treated for post-traumatic stress disorder. For those of us whose daily existence is not lived in harm's way, it is difficult to imagine the horrific images that American servicemen and women deployed in war zones see on a daily basis.

The courageous men and women of the Armed Forces brave IEDs, attacks, injury, and horrific violence to protect the safety and security of the United States, and we must, in turn, care for them when they return home. We must make this a priority and increase the number of medical facilities specializing in PTSD located in underserved urban areas.

These soldiers can be certain that Members of Congress will ensure that they receive the necessary treatment to guarantee that their adjustment back into society is a successful one. The Jackson Lee Amendment No. 1404 would have helped to ensure that no soldier is left behind.

Jackson Lee Amendment No. 1508 directs the Secretary of Defense to carry out a study and report to Congress on service-related injuries and medical conditions that occur post-enlistment and the determination of disability ratings based on age, race, gender, ethnicity, type of injury, and other functions as relates to the 50 percent or higher disability rating requirement for Concurrent Retirement and Disability Pay (CRDP) for military personnel or veterans, who are eligible for both VA disability payments and military retirement pay.

Since its inception on January 1, 2004, the Concurrent Retirement and Disability Pay (CRDP) has made it possible for military retirees to receive both military retired pay and Veterans Affairs (VA) compensation.

Under the CRDP eligibility rules, however, a military retiree may be entitled to CRDP only if they are a regular retiree with a VA disability rating of 50 percent or greater, among other considerations.

This rating requirement may be significantly impacted by the discretionary powers of VA disability examiners who often make rating decisions largely based on judgment calls.

This may have negative consequences for certain groups of people who are misconceived to have higher tolerance for pain compared to other races or groups.

The result is certain groups disproportionately receiving higher disability ratings for low tolerance for pain as compared with others.

The Jackson Lee Amendment No. 1508 would have ensured that the Secretary of Defense carries out a study to assess bias and discrimination in the VA disability rating system for compensation and pay (VA claim) examinations and to determine whether the judgement component of these examinations, often at the discretion of the examiners, is sometimes biased against certain races who are considered to have higher tolerance for pain.

Jackson Lee Amendment No. 1511 directs the Secretary of Defense, in consultation with the Secretary of Education and professionals in the field of psychology with expertise in pediatric and adolescent mental health, to conduct an assessment of evidence-based strategies that may be used to reduce the security threat posed by active shooter incidents at public elementary schools and secondary schools located on the grounds of federal military installations without being apparent to students as law enforcement or security measures.

This amendment further directs that not later than 180 days after NDAA enactment, the Secretary shall submit to Congressional defense committees a report on this assessment.

I offered this amendment because, while I applaud the Pentagon's Inspector General's efforts at commencing a comprehensive research project on how various law enforcement agencies of our military branches have responded to active shooter incidents and violence in the workplace on military installations over the years, I still believe that more needs to be done to protect our kids in the classroom on every military base.

The Jackson Lee Amendment No. 1511 would have prioritized the students' mental, emotional, and psychological health and development in the planning and implementation of active shooter trainings and the disruption and trauma it can impose on children in and of itself.

Jackson Lee Amendment No. 1513 requires the Secretary of Defense to audit current practices regarding administration of sexual harassment claims and submit a report no later than 180 days after passage detailing efforts to prevent sexual harassment and protect service-members, and compiling data and research on sexual harassment prevalence in the military, cases reported, legal proceedings, and convictions.

In 2021, sexual assaults surged in the military, with 8,886 cases reported, from 7,816 in 2020.

A 2022 survey estimated that 35,875 active-duty service members experienced ''unwanted sexual contact'' in 2021. These are very concerning numbers and major action is needed.

Currently, the Department of Defense is required to provide an annual report on sexual assault in the military, including data and planned actions for improvement.

While we deeply appreciate the ongoing cooperation and determination to address sexual harassment concerns, we are long overdue for a thorough audit of current practices regarding the handling of sexual harassment claims.

To ensure accountability and effectiveness, it is important that the sexual assault claims process is thoroughly evaluated.

The knowledge gained through the Jackson Lee Amendment No. 1513 would help equip the creation of meaningful policy and standards for accountability against sexual assault in the military and ensure that we continue to effectively protect the men and women that serve this country.

PROVIDING FOR CONSIDERATION OF H.R. 2670, NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, July 12, 2023

Ms. JACKSON LEE. Mr. Speaker, I rise today to speak on the rule for H.R. 2670, the National Defense Authorization Act (NDAA) for Fiscal Year 2024.

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However, I am dismayed that this year, my Republican colleagues in the majority have refused meaningful consideration of the majority of amendments offered by my Democratic colleagues.

While I am grateful that one of my amendments was made in order, the Jackson Lee Amendment No. 1075 (No. 136 as reported in the Rule) and included in the En Bloc package No. 3, it is beyond disappointing and disgraceful that my additional 19 amendments were not made in order—and particularly ones I have offered for many years and have been made in order.

With respect to my amendment that was made in order, I ask for a favorable vote on the En Bloc package No. 3 in support of the Jackson Lee Amendment No. 1075.

The Jackson Lee Amendment No. 1075 would require that a report be submitted within 220 days of the NDAA's passage detailing our national capacity to provide disaster survivors with short term housing.

In the aftermath of emergencies and national disasters, victims have much on their minds.

Homes, properties, businesses, and livelihoods may have been damaged in the disaster, and families, friends, and community members may be mentally and physically affected by the disaster, not to mention additional challenges as they seek to return to work and school.

As these communities begin to face the long process of recovery and rebuilding, short term housing is one of the first things disaster survivors need to get back on their feet.

Unfortunately, my constituents and I are no stranger to these kinds of disasters.

In 2017, Hurricane Harvey devastated the Houston area, affecting over 100,000 homes across the city. In the aftermath of the storm, finding temporary housing was one of the biggest challenges to recovery for many sulvivors.

Short-term housing was difficult to coordinate due to the sheer number of Houstonians affected. As such, it is crucial that Congress have a strong understanding of our current capabilities and, specifically, our ability to provide these survivors with short term housing before disaster strikes.

If voted on favorably, this report will not only inform us of our current capacity to provide housing but will also better equip Congress to respond to disasters and support survivors in the future.

In addition to this amendment, I offered the below listed amendments.

The Jackson Lee Amendment No. 1051 directed the Secretary of Defense to submit a report on the naming practices recognizing African American service members in the Department of Defense.

Throughout the history of our Nation, from the Battle of Lexington through the Battle of Fallujah to Afghanistan and Iraq, Black soldiers have served honorably and answered the call to duty during our nation's time of maximum danger.

For over 200 years, African Americans have participated in every conflict that confronted this Nation.

Besides fighting the common enemies of this country with unmatched bravery and valor, Black soldiers also had to confront individual and institutional racism of their countrymen.

African American servicemembers have served with great valor and distinction in all branches of our nation's armed forces.

Since the revolutionary war, Black Americans have faithfully defended this Nation and built a legacy of courage, commitment, and professionalism.

Like any other group of Americans, Black soldiers have served the armed forces with great honor, distinction, and generational inspiration.

The Jackson Lee Amendment No. 1051 would have ensured that the legacies of Black American servicemembers are duly recognized and honored.

The Jackson Lee Amendment No. 1104 requires a report to be submitted to Congress within 240 days of NDAA enactment on the risks posed by debris in low Earth orbit and to make recommendations on remediation of risks and outline plans to reduce the incident of space debris.

Space debris encompasses both natural and artificial particles and this amendment would address the risk of man-made space debris. Man-made objects in Earth's orbit that may no longer serve a useful function can include nonfunctional spacecraft, abandoned launch vehicle stages, mission-related debris and fragmentation debris.

Space debris travels at speeds up to 17,500 miles per hour—fast enough for a small piece of man-made debris to damage a satellite or a spacecraft.

There are more than 20,000 pieces of debris larger than a softball orbiting the Earth. There are 500,000 pieces of debris the size of a marble or larger tracked by NASA, and there are many millions of pieces of debris that are so small they can't be tracked.

This amendment seeks a report on risks posed by man-made space debris, solutions for reducing risks, and strategies for reducing the incidence of more man-made space debris being introduced into space.

Jackson Lee Amendment No. 1104 would have addressed these challenges.

Jackson Lee Amendment No. 1402 requires the Secretary of Defense to ensure that military academy graduates undergo screening for speech disorders and be provided with their results.

Many officer positions and occupation specialists require successful performance on the speech test, so it is essential that military academy students are aware of their status as they shape their career path.

Under this amendment, military academy students would have the option of undergoing speech therapy to reduce speech disorders or impediments.

Thus, military academy students who do not perform successfully on the speech test have the opportunity to improve their performance and potentially go on to pursue the officer and specialist positions they seek.

Approximately 5–10 percent of all children stutter as they develop language skills. Boys are 2 to 3 times more likely to stutter than girls. And approximately 75 percent of children recover from stuttering, but the remaining 25 percent will experience life-long effects of stuttering.

I offered this amendment to help entrants into military academies find the right career fit for their military service after graduation.

I learned about the issue of stuttering and its implications for a successful military career through the experiences of a Legislative Fellow who once served in my D.C. office.

He was a 2016 graduate from the United States Naval Academy with a degree in Operations Research and a veteran naval officer who was separated from the Navy in April 2019 because his speech fluency testing results did not meet the Naval Aviation community standards, and so he was disqualified from serving as an aviator.

At that critical juncture he was not informed about what careers he could qualify to fill that would not be impacted by the determination regarding his speech.

This Jackson Lee Amendment No. 1402 would have represented an important investment in military academy students, improving transparency and providing avenues for personal improvement, ensuring quality candidates for vital military leadership positions.

Jackson Lee Amendment No. 1405 removes bill language about Critical Race Theory, thereby rejecting any efforts to inject politics into the armed services.

In this way, my amendment affirms the importance of July 26, 1948, the date that President Harry Truman signed Executive Order 9981, creating the President's Committee on Equality of Treatment and Opportunity in the Armed Services.

This executive order desegregated the military and declared that there shall be equality of treatment and opportunity for all in the armed services without regard to race, color, religion, or national origin.

This was a major step forward and was the result of dedicated advocacy efforts from the NAACP and ACLU, as well as President Truman's own commitment to the issue.

The importance of this Executive Order and the change it brought about cannot be overstated. The diversity of the military and the equality of opportunity found there is one of the major strengths of the armed services.

It is crucial that the armed services continue their commitment to live out the promises of equality and opportunity enshrined in Executive Order 9981.

The current provisions of the NDAA which prohibit the use of federal funds for critical race theory are largely political in nature and represent a step away from the promises President Truman made of equality and opportunity in the military. The Jackson Lee Amendment No. 1405 would have ensured that these

political provisions are struck, thereby affirming the value of diversity and equality of opportunity throughout our military.

Jackson Lee Amendment No. 1406 requires a report be provided to the House and Senate Armed Services committee on the extent that readiness relies on electricity availability to bases, installations, and duty stations.

The report would provide an assessment on the military's reliance upon electricity service provided by transformers that manage power transmission from high power lines to end points. The assessment would evaluate supply chain issues impacting the availability of transformers and surplus transformers held in reserve by the military. The report would also assess the overall market supply and demand for transformers, and any risks that market availability issues of transformers pose to military readiness, to ensure recommendations on resolving any risk to readiness posed by supply chain issues with transformers. The report would also evaluate the extent if any that extreme weather plays on transformer supply. As such, Congress can be best informed on military readiness if supply chain issues with transformers persist. And Congress can ensure that the bases, installations, and duty stations of the armed services maintain the electricity they need to remain reliable and fulfill their function, even in times of crisis induced by natural disasters or supply chain issues. This Jackson Lee Amendment No. 1406 offered a proactive approach to military electricity supply and would have ensured informed responses when issues arise.

Jackson Lee Amendment No. 1509 helps to address military recruitment and retention needs by providing the following modifications to the J–1 Visa process:

J–1 Visa holders who have been legally admitted into the United States and have successfully completed 8 months out of a 12-month visa duration or 14 months out of an 18-month visa duration may pursue opportunities to join the military. If inducted into the armed services, they would qualify for permanent residency provided they meet other enlistment requirements, military fitness standards, have no criminal background, and are of good conduct during their period of enlistment and during which time they may pursue citizenship.

During the first years of the wars in Afghanistan and Iraq, many military experts expressed concerns that the constant deployments could negatively impact the force with the expectation that fewer young Americans would volunteer to serve in a wartime military. The expectations of these experts seem tenable given the current recruitment crisis following our full withdrawal from Afghanistan the summer of 2022.

With the current trend, this recruitment crisis shows no signs of abating anytime soon. As a result, we see shrinking numbers in all branches of our forces. To put this in perspective, the last fiscal year, the Army missed its recruitment goal by about 15,000 active-duty soldiers, roughly 25 percent of its target. Consequently, the army was forced to cut its projected active-duty end strength from about 476,000 down to around 466,000. Shrinking numbers is not caused by strategic choices but largely due to the lack of qualified volunteers. The Jackson Lee Amendment No. 1509 would have addressed this recruitment crisis with serious implications for our strategic position in this increasingly uncertain and dangerous world.

The Jackson Lee Amendment No. l510 directs the Secretary of Defense to establish a task force 180 days after enactment that will report to the House and Senate Armed Services Committees and make publicly available an annual report that explains the progress made over the history of the Department of Defense and its predecessor departments (Department of War) and experiences in integrating African Americans into the branches of the armed services and the civilian staffing of Pentagon offices and agencies.

The report shall provide information on the lessons learned about the social, cultural, legal, and logistical challenges faced, obstacles incurred, advances made, and the impact of integration on the warfighting capacity of the Nation.

In this way, the lessons of military integration can be drawn upon by policy makers charged with the important and necessary work of binding up the nation's wounds first inflicted with the governmental legalization and tolerance of slavery in the United States. The Jackson Lee Amendment No. 1510 would have made this possible.

Jackson Lee Amendment No. 1512 requires the Chief of the National Guard Bureau, in coordination with the Secretary of Defense, to submit a report identifying the personnel, training, and equipment required by the non-federalized National Guard to prevent, mitigate, respond to, and recover from natural and manmade disasters.

It is always hard to ever fully be prepared for what is to come whenever any form of disaster strikes. It therefore helps to know that the survival specialists of the Air National Guard are always equipped, ready, and quick to respond and assist the affected communities. Whenever a state of emergency is declared, it is because the authorities believe that the disaster that has occurred or is imminent, is severe enough to require State or federal aid to increase local resources to prevent and alleviate damage, suffering, and hardship to the affected communities.

The Air National Guard has an exceptionally unique role in aiding the prevention and recovery of these forms of disasters disaster. Jackson Lee Amendment No. 1512 would have ensured that the Air National Guard was prepared to successfully fulfill their role in disaster prevention and recovery.

Jackson Lee Amendment No. 15l4 requires the Secretary of the Navy, not later than 180 days after the date of the enactment of this Act, to submit to the congressional defense committees a report on desalinization technology's application for defense and national security purposes to provide drought relief to areas impacted by sharp declines in water resources.

Throughout the history of our Nation, the U.S. Navy has been a pioneer in national defense and security technology. The two main types of desalination systems on Navy ships, including reverse osmosis and distillation, produce up to 12,000 gallons of fresh, drinkable water a day.

The U.S. Navy has a unique opportunity to share resources and technology that lowers the cost of clean water production and use low-carbon energy sources. Now, as climate change becomes an increasing national security concern, desalinization technology could have rippling benefits for drought concerns here in the U.S. and around the world.

In one of the most unstable and geopolitical regions of the world, the Middle East and North Africa, water scarcity is a severe problem, with over 60 percent of the population having little or no access to drinking water. Currently, the region is heavily dependent on their current system of desalination, which is expensive and energy intensive. As many as 13 out of 22 Arab countries fall into the category of severe water scarcity and Navy desalination technology could make significant improvements in their process, addressing both climate change and security concerns.

Beyond addressing humanitarian concerns, this report will support needs here at home as water scarcity is a growing concern. New desalination technologies could give Americans an opportunity to be prepared for the next water crisis. Jackson Lee Amendment No. 1514 offered a proactive approach to protecting our national security and our planet as a whole.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S2967–S3128

Measures Introduced: Thirty-six bills and five resolutions were introduced, as follows: S. 2330–2365, S. Res. 299–301, and S. Con. Res. 14–15.

Pages S2984–85

Measures Reported:

S. 567, to amend the National Labor Relations Act, the Labor Management Relations Act, 1947, and the Labor-Management Reporting and Disclosure Act of 1959.

S. 728, to amend the Fair Labor Standards Act of 1938 to provide more effective remedies to victims of discrimination in the payment of wages on the basis of sex.

S. 1094, to provide a temporary safe harbor for publishers of online content to collectively negotiate with dominant online platforms regarding the terms on which content may be distributed.

S. 1664, to allow Americans to earn paid sick time so that they can address their own health needs and the health needs of their families. **Page S2984**

Measures Passed:

United States-Taiwan Initiative on 21st-Century Trade First Agreement Implementation Act: Senate passed H.R. 4004, to approve and implement the Agreement between the American Institute in Taiwan and the Taipei Economic and Cultural Representative Office in the United States regarding Trade between the United States of America and Taiwan. **Pages S2977–78**

CTPAT Pilot Program Act: Senate passed S. 794, to require a pilot program on the participation of non-asset-based third-party logistics providers in the Customs-Trade Partnership Against Terrorism, after agreeing to the following amendment proposed thereto: **Page S3118**

Schumer (for Cornyn) Amendment No. 934, to specify that no additional funds are authorized to be appropriated for the purpose of carrying out the Act. **Page S3118**

Tribal Trust Land Homeownership Act: Senate passed S. 70, to require the Bureau of Indian Affairs to process and complete all mortgage packages associated with residential and business mortgages on Indian land by certain deadlines. **Pages S3118–20**

Urban Indian Health Confer Act: Senate passed S. 460, to amend the Indian Health Care Improvement Act to establish an urban Indian organization confer policy for the Department of Health and Human Services. **Page S3120**

Indian Self-Determination and Education Assistance Act: Senate passed S. 1308, to amend the Indian Self-Determination and Education Assistance Act to extend the deadline for the Secretary of the Interior to promulgate regulations implementing title IV of that Act, after agreeing to the committee amendment in the nature of a substitute. **Page S3120**

Pala Band of Mission Indians: Senate passed H.R. 423, to take certain land located in San Diego County, California, into trust for the benefit of the Pala Band of Mission Indians. **Pages S3120–21**

Drug Enforcement Administration 50th Anniversary: Committee on the Judiciary was discharged from further consideration of S. Res. 246, honoring the men and women of the Drug Enforcement Administration on the 50th anniversary of the agency, and the resolution was then agreed to. **Page S3121**

National Day of the American Cowboy: Committee on the Judiciary was discharged from further consideration of S. Res. 269, designating July 22, 2023, as "National Day of the American Cowboy", and the resolution was then agreed to. **Page S3121**

Collector Car Appreciation Day: Senate agreed to S. Res. 300, designating July 14, 2023, as "Collector Car Appreciation Day" and recognizing that the collection and restoration of historic and classic cars is an important part of preserving the technological achievements and cultural heritage of the United States. **Page S3121**

Journeyman Lineworkers Recognition Day: Senate agreed to S. Res. 301, expressing support for the designation of Journeyman Lineworkers Recognition Day. **Page S3121**

Measures Considered:

National Defense Authorization Act—Agreement: Senate resumed consideration of the motion to proceed to consideration of S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year. **Page S2977**

During consideration of this measure today, Senate also took the following action:

By 72 yeas to 25 nays (Vote No. 188), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on the motion to proceed to consideration of the bill. **Page S2977**

A unanimous-consent agreement was reached providing for further consideration of the motion to proceed to consideration of the bill, post-cloture, at approximately 9:45 a.m., on Wednesday, July 19, 2023; and that all time during adjournment, recess, morning business, and Leader remarks count post-cloture on the motion to proceed. **Page S3121**

Escort Committee—Agreement: A unanimous-consent agreement was reached providing that the President of the Senate be authorized to appoint a committee on the part of the Senate to join with a like committee on the part of the House of Representatives to escort His Excellency Isaac Herzog, President of the State of Israel, into the House Chamber for the joint meeting on Wednesday, July 19, 2023. **Page S3118**

Nomination Confirmed: Senate confirmed the following nomination:

By 50 yeas to 48 nays (Vote No. EX. 187), Rachel Bloomekatz, of Ohio, to be United States Circuit Judge for the Sixth Circuit. **Pages S2967–77**

Nominations Received: On Wednesday, July 12, 2023, Senate received the following nominations:

Patricia L. Lee, of South Carolina, to be a Member of the Defense Nuclear Facilities Safety Board for a term expiring October 18, 2027.

Claudia Slacik, of New York, to be a Director of the Securities Investor Protection Corporation for a term expiring December 31, 2026.

Tadd M. Johnson, of Minnesota, to be a Member of the Board of Trustees of the Morris K. Udall and Stewart L. Udall Foundation for a term expiring October 6, 2028.

Laura Stone, of Utah, to be Ambassador to the Republic of the Marshall Islands.

Todd Gloria, of California, to be a Member of the Board of Trustees of the Harry S Truman Scholarship Foundation for a term expiring December 10, 2023.

Todd Gloria, of California, to be a Member of the Board of Trustees of the Harry S Truman Scholarship Foundation for a term expiring December 10, 2029.

David K. Sing, of Hawaii, to be a Member of the National Council on the Humanities for a term expiring January 26, 2026.

Erika L. McEntarfer, of the District of Columbia, to be Commissioner of Labor Statistics, Department of Labor, for a term of four years.

Jeff Rezmovic, of Maryland, to be Chief Financial Officer, Department of Homeland Security.

Routine lists in the Air Force, Army, Marine Corps, and Navy. **Pages S3121–28**

Messages from the House: **Page S2982**

Measures Referred: **Page S2982**

Executive Communications: **Pages S2982–83**

Additional Cosponsors: **Pages S2985–89**

Statements on Introduced Bills/Resolutions: **Pages S2989–93**

Additional Statements: **Pages S2981–82**

Amendments Submitted: **Pages S2993–S3118**

Privileges of the Floor: **Page S3118**

Record Votes: Two record votes were taken today. (Total—188) **Pages S2976–77**

Adjournment: Senate convened at 3 p.m. and adjourned at 10:44 p.m., until 9:45 a.m. on Wednesday, July 19, 2023. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S3121.)

Committee Meetings

(Committees not listed did not meet)

No committee meetings were held.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 33 public bills, H.R. 11, 4693–4724; and 4 resolutions, H. Con. Res. 58; and H. Res. 598–600 were introduced. **Pages H3698–H3700**

Additional Cosponsors: **Pages H3701–02**

Reports Filed: Reports were filed today as follows:

H. Res. 597, providing for consideration of the bill (H.R. 3935) to amend title 49, United States Code, to reauthorize and improve the Federal Aviation Administration and other civil aviation programs, and for other purposes, and providing for consideration of the bill (H.R. 3941) to prohibit the use of the facilities of a public elementary school, a public secondary school, or an institution of higher education to provide shelter for aliens who have not been admitted into the United States, and for other purposes (H. Rept. 118–147);

H.R. 3395, to direct the Chairman of the Federal Maritime Commission to seek to enter into an agreement with a federally funded research and development center to evaluate foreign ownership of marine terminals at the 15 largest United States container ports, and for other purposes, with an amendment (H. Rept. 118–148);

H.R. 1282, to amend title 10, United States Code, to expand eligibility to certain military retirees for concurrent receipt of veterans disability compensation and retired pay or combat-related special compensation, and for other purposes, with an amendment (H. Rept. 118–149, Part 1); and

H.R. 192, to prohibit individuals who are not citizens of the United States from voting in elections in the District of Columbia, with amendments (H. Rept. 118–150). **Page H3698**

Speaker: Read a letter from the Speaker wherein he appointed Representative Moore (UT) to act as Speaker pro tempore for today. **Page H3643**

Recess: The House recessed at 10:36 a.m. and reconvened at 12 p.m. **Page H3647**

Schools Not Shelters Act: The House considered H.R. 3941, to prohibit the use of the facilities of a public elementary school, a public secondary school, or an institution of higher education to provide shelter for aliens who have not been admitted into the United States. Consideration is expected to resume tomorrow, July 19th. **Pages H3673–80**

Proceedings postponed on the Vasquez motion to recommit the bill to the Committee on Education and the Workforce. **Page H3680**

Pursuant to the Rule, the amendment in the nature of a substitute recommended by the Committee on Education and the Workforce now printed in the bill shall be considered as adopted. **Page H3673**

Agreed to:

Ogles amendment (No. 1 printed in part B of H. Rept. 118–147) that defines short-term as a period of up to 72 hours. **Page H3680**

H. Res. 597, the rule providing for consideration of the bills (H.R. 3935) and (H.R. 3941) was agreed to by a recorded vote of 213 ayes to 206 noes, Roll No. 332, after the previous question was ordered by a yea-and-nay vote of 213 yeas to 207 nays, Roll No. 331. **Pages H3650–59**

Recess: The House recessed at 5:05 p.m. and reconvened at 5:30 p.m. **Page H3680**

Relating to a national emergency declared by the President on October 27, 2006: The House failed to pass H.J. Res. 68, relating to a national emergency declared by the President on October 27, 2006, by a yea-and-nay vote of 27 yeas to 381 nays, Roll No. 333. **Pages H3659–62, H3681**

Relating to a national emergency declared by the President on February 25, 2011: The House failed to pass H.J. Res. 70, relating to a national emergency declared by the President on February 25, 2011, by a yea-and-nay vote of 30 yeas to 388 nays, Roll No. 334. **Pages H3662–64, H3682**

Relating to a national emergency declared by the President on May 16, 2012: The House failed to pass H.J. Res. 74, relating to a national emergency declared by the President on May 16, 2012, by a yea-and-nay vote of 27 yeas to 393 nays, Roll No. 335. **Pages H3664–66, H3682–83**

Relating to a national emergency declared by the President on May 22, 2003: The House failed to pass H.J. Res. 71, relating to a national emergency declared by the President on May 22, 2003, by a yea-and-nay vote of 26 yeas to 394 nays, Roll No. 336. **Pages H3666–68, H3683–84**

Relating to a national emergency declared by the President on May 11, 2004: The House failed to pass H.J. Res. 79, relating to a national emergency declared by the President on May 11, 2004, by a yea-and-nay vote of 24 yeas to 394 nays, Roll No. 337. **Pages H3668–70, H3684**

Suspensions: The House agreed to suspend the rules and pass the following measure:

Expressing the sense of Congress supporting the State of Israel: H. Con. Res. 57, expressing the

sense of Congress supporting the State of Israel, by a 2/3 yea-and-nay vote of 412 yeas to 9 nays with one answering "present", Roll No. 338.

Pages H3670–73, H3684–85

Meeting Hour: Agreed by unanimous consent that when the House adjourns today, it adjourn to meet at 9 a.m. tomorrow, July 19th. **Page H3685**

Discharge Petition: Representative Pressley presented to the clerk a motion to discharge the Committee on the Judiciary from the consideration of the joint resolution (H.J. Res. 25) entitled, a joint resolution removing the deadline for the ratification of the equal rights amendment (Discharge Petition No. 6).

Senate Referrals: S. 112 was held at the desk. S. 475 was held at the desk. S. 932 was held at the desk. **Page H3681**

Senate Message: Message received from the Senate today appears on page H3681.

Quorum Calls—Votes: Seven yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H3658, H3658–59, H3681, H3682, H3682–83, H3683–84, H3684, and H3684–85.

Adjournment: The House met at 10 a.m. and adjourned at 8:28 p.m.

Committee Meetings

MISCELLANEOUS MEASURE

Committee on Appropriations: Full Committee held a markup on the Transportation, Housing and Urban Development, and Related Agencies FY 2024 Appropriations Bill. The Transportation, Housing and Urban Development, and Related Agencies FY 2024 Appropriations Bill was ordered reported, as amended.

MAN AND MACHINE: ARTIFICIAL INTELLIGENCE ON THE BATTLEFIELD

Committee on Armed Services: Subcommittee on Cyber, Information Technologies, and Innovation held a hearing entitled "Man and Machine: Artificial Intelligence on the Battlefield". Testimony was heard from public witnesses.

CUTTING CORNERS AT WHD: EXAMINING THE COST TO WORKERS, SMALL BUSINESSES, AND THE ECONOMY

Committee on Education and Workforce: Subcommittee on Workforce Protections held a hearing entitled "Cutting Corners at WHD: Examining the Cost to Workers, Small Businesses, and the Economy". Testimony was heard from public witnesses.

AMERICAN NUCLEAR ENERGY EXPANSION: UPDATING POLICIES FOR EFFICIENT, PREDICTABLE LICENSING AND DEPLOYMENT

Committee on Energy and Commerce: Subcommittee on Energy, Climate, and Grid Security held a hearing entitled "American Nuclear Energy Expansion: Updating Policies for Efficient, Predictable Licensing and Deployment". Testimony was heard from Daniel H. Dorman, Executive Director for Operations, U.S. Nuclear Regulatory Commission; K. Michael Goff, Principal Deputy Assistant Secretary, Office of Nuclear Energy, Department of Energy; and public witnesses.

INNOVATION SAVES LIVES: EVALUATING MEDICARE COVERAGE PATHWAYS FOR INNOVATIVE DRUGS, MEDICAL DEVICES, AND TECHNOLOGY

Committee on Energy and Commerce: Subcommittee on Health held a hearing entitled "Innovation Saves Lives: Evaluating Medicare Coverage Pathways for Innovative Drugs, Medical Devices, and Technology". Testimony was heard from public witnesses.

EXAMINING EMERGING THREATS TO ELECTRIC ENERGY INFRASTRUCTURE

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled "Examining Emerging Threats to Electric Energy Infrastructure". Testimony was heard from public witnesses.

OVERSIGHT OF THE SEC'S DIVISION OF CORPORATION FINANCE

Committee on Financial Services: Subcommittee on Capital Markets held a hearing entitled "Oversight of the SEC's Division of Corporation Finance". Testimony was heard from Erik Gerding, Director, Division of Corporation Finance, U.S. Securities and Exchange Commission.

CLIMATE–RISK: ARE FINANCIAL REGULATORS POLITICALLY INDEPENDENT

Committee on Financial Services: Subcommittee on Financial Institutions and Monetary Policy held a hearing entitled "Climate-Risk: Are Financial Regulators Politically Independent". Testimony was heard from Michael S. Gibson, Director, Division of Supervision and Regulation, Board of Governors of the Federal Reserve System; Greg Coleman, Senior Deputy Comptroller for Large Bank Supervision, Office of the Comptroller of the Currency; Doreen Eberley, Director, Division of Risk Management and Supervision, Federal Deposit Insurance Corporation; Sarah Benatar, Treasurer, Coconino County, Arizona; and

Rendell L. Jones, Deputy Executive Director, National Credit Union Administration.

POTENTIAL CONSEQUENCES OF FINCEN'S BENEFICIAL OWNERSHIP RULEMAKING

Committee on Financial Services: Subcommittee on National Security, Illicit Finance, and International Financial Institutions held a hearing entitled ''Potential Consequences of FinCEN's Beneficial Ownership Rulemaking''. Testimony was heard from public witnesses.

ACHIEVING PEACE THROUGH STRENGTH IN THE INDO-PACIFIC: EXAMINING THE FY24 BUDGET PRIORITIES

Committee on Foreign Affairs: Subcommittee on the Indo-Pacific held a hearing entitled ''Achieving Peace through Strength in the Indo-Pacific: Examining the FY24 Budget Priorities''. Testimony was heard from Daniel J. Kritenbrink, Assistant Secretary, Bureau of East Asian and Pacific Affairs, Department of State; and Michael Ronning, Acting Deputy Assistant Administrator, Asia Bureau, U.S. Agency for International Development.

THE DIRE STATE OF RELIGIOUS FREEDOM AROUND THE WORLD

Committee on Foreign Affairs: Subcommittee on Global Health, Global Human Rights, and International Organizations held a hearing entitled ''The Dire State of Religious Freedom Around the World''. Testimony was heard from Abraham Cooper, Chair, U.S. Commission on International Religious Freedom; Rashad Hussain, Ambassador-at-Large for International Religious Freedom, Department of State; and public witnesses.

STABILITY AND SECURITY IN THE WESTERN BALKANS: ASSESSING U.S. POLICY

Committee on Foreign Affairs: Subcommittee on Europe held a hearing entitled ''Stability and Security in the Western Balkans: Assessing U.S. Policy''. Testimony was heard from Gabriel Escobar, Deputy Assistant Secretary of State, Bureau of European and Eurasian Affairs, Department of State.

GREAT POWER COMPETITION IMPLICATIONS IN AFRICA: THE RUSSIAN FEDERATION AND ITS PROXIES

Committee on Foreign Affairs: Subcommittee on Africa held a hearing entitled ''Great Power Competition Implications in Africa: The Russian Federation and its Proxies''. Testimony was heard from public witnesses.

STRATEGIC COMPETITION IN THE ARCTIC

Committee on Homeland Security: Subcommittee on Transportation and Maritime Security held a hearing entitled ''Strategic Competition in the Arctic''. Testimony was heard from Ronald O'Rourke, Specialist in Naval Affairs, Congressional Research Service, Library of Congress; and public witnesses.

OPENING THE FLOOD GATES: BIDEN'S BROKEN BORDER BARRIER

Committee on Homeland Security: Subcommittee on Border Security and Enforcement; and Subcommittee on Oversight, Investigations, and Accountability held a joint hearing entitled ''Opening the Flood Gates: Biden's Broken Border Barrier''. Testimony was heard from Ntina Cooper, Deputy Executive Assistant Commissioner (Acting), Enterprise Services, U.S. Customs and Border Protection, Department of Homeland Security; Colonel Jason K. Jefferis, Head of Contracting Activities, U.S. Army Corps of Engineers, Department of Defense; Rebecca Gambler, Director, Homeland Security and Justice, Government Accountability Office; and public witnesses.

HEARING ON COMPLIANCE WITH COMMITTEE OVERSIGHT

Committee on the Judiciary: Subcommittee on Responsiveness and Accountability to Oversight held a hearing entitled ''Hearing on Compliance with Committee Oversight''. Testimony was heard from Melanie Egorin, Assistant Secretary for Legislation, Bureau of Legislative Affairs, Department of Health and Human Services; and Naz Durakoglu, Assistant Secretary, Bureau of Legislative Affairs, Department of State.

IS THERE A RIGHT TO REPAIR?

Committee on the Judiciary: Subcommittee on Courts, Intellectual Property, and the Internet held a hearing entitled ''Is There a Right to Repair?''. Testimony was heard from public witnesses.

THE BIDEN'S ADMINISTRATION'S PROPOSED COMPACT OF FREE ASSOCIATION AMENDMENTS ACT OF 2023

Committee on Natural Resources: Indo-Pacific Task Force held a hearing entitled ''The Biden's Administration's Proposed Compact of Free Association Amendments Act of 2023''. Testimony was heard from Joseph Y. Yun, Special Envoy for Compact Negotiations; Keone Nakoa, Deputy Assistant Secretary—Insular and International Affairs, Department of the Interior; Siddharth Mohandas, Deputy Assistant Secretary of Defense for East Asia, Department of Defense; and public witnesses.

ESA AT 50: THE DESTRUCTIVE COST OF THE ESA

Committee on Natural Resources: Subcommittee on Water, Wildlife and Fisheries held a hearing entitled "Oversight Hearing on "ESA at 50: The Destructive Cost of the ESA". Testimony was heard from Janet Coit, Deputy Administrator, National Oceanic and Atmospheric Administration, Department of Commerce; Martha Williams, Director, U.S. Fish and Wildlife Service, Department of the Interior; and public witnesses.

CANCELLING CONSUMER CHOICE: EXAMINING THE BIDEN ADMINISTRATION'S REGULATORY ASSAULT ON AMERICANS' HOME APPLIANCES

Committee on Oversight and Accountability: Subcommittee on Economic Growth, Energy Policy, and Regulatory Affairs held a hearing entitled "Cancelling Consumer Choice: Examining the Biden Administration's Regulatory Assault on Americans' Home Appliances". Testimony was heard from Geraldine Richmond, Under Secretary for Science and Innovation, Department of Energy.

WHY EXPANDING MEDICAID TO DACA RECIPIENTS WILL EXACERBATE THE BORDER CRISIS

Committee on Oversight and Accountability: Subcommittee on Health Care and Financial Services held a hearing entitled "Why Expanding Medicaid to DACA Recipients Will Exacerbate the Border Crisis". Testimony was heard from Ellen Montz, Deputy Administrator and Director, Center for Consumer Information and Insurance Oversight, Centers for Medicare and Medicaid Services, Department of Health and Human Services.

MISCELLANEOUS MEASURES

Committee on Small Business: Full Committee held a markup on H.R. 4667, the "RECLAIM Taxpayer Funds Act"; H.R 4666, a bill to require the SBA OIG to submit quarterly reports on PPP/EIDL fraud; H.R. 3995, the "Small Business Regulatory Reduction Act"; H.R. 4669, the "DOE and SBA Research Act"; H.R. 4668, the "POST IT Act"; and H.R. 4671, the "Corrective Action Report Oversight and Accountability Act". H.R. 3995, H.R. 4671 were ordered reported, as amended. H.R. 4667, H.R 4666, H.R. 4668, H.R. 4669 were ordered reported, without amendment.

MISCELLANEOUS MEASURES

Committee on Veterans' Affairs: Subcommittee on Health held a markup on H.R. 3520, the "Veteran Care Improvement Act of 2023"; H.R. 3581, the "COPE Act"; H.R. 1278, the "DRIVE Act"; H.R. 1639, the "VA Zero Suicide Demonstration Act of 2023"; H.R. 1774, the "VA Emergency Transportation Act"; H.R. 1815, the "Expanding Veterans' Options for Long Term Care Act"; H.R. 2683, the "VA Flood Preparedness Act"; H.R. 2768, the "PFC Joseph P. Dwyer Peer Support Program Act"; and H.R. 2818, the "Autonomy for Disabled Veterans Act". H.R. 1278, H.R. 1639, H.R. 2683, H.R. 2768, and H.R. 3581 were forwarded to the full Committee, without amendment. H.R. 3520, H.R. 1815, H.R. 1774, and H.R. 2818 were forwarded to the full Committee, as amended.

LEGISLATIVE MEASURES

Committee on Veterans' Affairs: Full Committee held a hearing on H.R. 705, the "Veterans 2nd Amendment Protection Act"; and legislation on the Ernest Peltz Accrued Veterans Benefits Act. Testimony was heard from Ron Burke, Deputy Under Secretary, Policy and Oversight, Veterans Benefits Administration, Department of Veterans Affairs; Dave Barrans, Chief Counsel, Benefits Law Group, Office of General Counsel, Department of Veterans Affairs; and public witnesses.

PEOPLE'S REPUBLIC OF CHINA (PRC) THREATS TO THE HOMELAND

Permanent Select Committee on Intelligence: Full Committee held a hearing entitled "People's Republic of China (PRC) Threats to the Homeland". This hearing was closed.

Joint Meetings

RUSSIA'S ALPINE ASSETS

Commission on Security and Cooperation in Europe: Commission concluded a hearing to examine Russia's alpine assets, focusing on money laundering and sanctions evasion in Switzerland, after receiving testimony from Bill Browder, Global Magnitsky Justice Campaign; Drew Sullivan, Organized Crime and Corruption Reporting Project; and Olena Tregub, Independent Defense Anti-Corruption Committee.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D678)*

S. 30, to authorize major medical facility projects for the Department of Veterans Affairs for fiscal year 2023. Signed on July 18, 2023. (Public Law 118–8)

COMMITTEE MEETINGS FOR WEDNESDAY, JULY 19, 2023

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Agriculture, Nutrition, and Forestry: Subcommittee on Rural Development and Energy, to hold hearings to examine rural water, focusing on modernizing our community water systems, 3 p.m., SR–328A.

Committee on Appropriations: Subcommittee on Financial Services and General Government, to hold hearings to examine the FY 2024 budget for the Securities and Exchange Commission, 2:45 p.m., SD–124.

Committee on Energy and Natural Resources: Subcommittee on Water and Power, to hold an oversight hearing to examine of the Bureau of Reclamation, including S. 461, to make certain irrigation districts eligible for Pick-Sloan Missouri Basin Program pumping power, S. 482, to amend the Klamath Basin Water Supply Enhancement Act of 2000 to provide the Secretary of the Interior with certain authorities with respect to projects affecting the Klamath Basin watershed, S. 739, to clarify jurisdiction with respect to certain Bureau of Reclamation pumped storage development, S. 1118, to establish the Open Access Evapotranspiration (OpenET) Data Program, S. 1215, to require assessments of opportunities to install and maintain floating photovoltaic solar panels at Bureau of Reclamation and Corps of Engineers projects, S. 1521, to amend the Federal Power Act to modernize and improve the licensing of non-Federal hydropower projects, S. 1662, to direct the Secretary of the Interior to convey to the Midvale Irrigation District the Pilot Butte Power Plant in the State of Wyoming, S. 1955, to amend the Central Utah Project Completion Act to authorize expenditures for the conduct of certain water conservation measures in the Great Salt Lake basin, S. 2102, to provide for drought preparedness and improved water supply reliability, S. 2160, to amend the Omnibus Public Land Management Act of 2009 to authorize certain extraordinary operation and maintenance work for urban canals of concern, S. 2161, to provide financial assistance for projects to address certain subsidence impacts in the State of California, S. 2162, to support water infrastructure in Reclamation States, S. 2166, to amend the Reclamation States Emergency Drought Relief Act of 1991 and the Omnibus Public Land Management Act of 2009 to provide grants to States and Indian Tribes for programs to voluntarily repurpose agricultural land to reduce consumptive water use, S. 2169, to authorize the Secretary of the Interior to carry out watershed pilots, S. 2202, to amend the Omnibus Public Land Management Act of 2009 to authorize the modification of transferred works to increase public benefits and other project benefits as part of extraordinary operation and maintenance work, and S. 2247, to reauthorize the Bureau of Reclamation to provide cost-shared funding to implement the endangered and threatened fish recovery programs for the Upper Colorado and San Juan River Basins, 2:30 p.m., SD–366.

Committee on Homeland Security and Governmental Affairs: business meeting to consider S. 1253, to increase the number of U.S. Customs and Border Protection Customs and Border Protection officers and support staff and to require reports that identify staffing, infrastructure, and equipment needed to enhance security at ports of entry, S. 1444, to increase the pay and enhance the training of United States Border Patrol agents, S. 2251, to improve the cybersecurity of the Federal Government, S. 2291, to establish the Northern Border Coordination Center, S. 2289, to direct the Director of the Information Security Oversight Office to assess foreign influence in the National Industrial Security Program and to develop a single, integrated strategy to better identify and mitigate such foreign influence, S. 2278, to establish Image Adjudicator and Supervisory Image Adjudicator positions in the U.S. Customs and Border Protection Office of Field Operations, S. 2248, to require a pilot program on the use of big data analytics to identify vessels evading sanctions and export controls and to require a report on the availability in the United States of emerging and foundational technologies subject to export controls, S. 2272, to amend title 5, United States Code, to provide for special base rates of pay for wildland firefighters, S. 1332, to require the Office of Management and Budget to revise the Standard Occupational Classification system to establish a separate code for direct support professionals, S. 2219, to amend the Congressional Accountability Act of 1995 to expand access to breastfeeding accommodations in the workplace, S. 2292, to improve the transparency of purchases by the Federal Government of data or information that can be used to identify an individual, S. 2286, to improve the effectiveness and performance of certain Federal financial assistance programs, S. 1524, to ensure that whistleblowers, including contractors, are protected from retaliation when a Federal employee orders a reprisal, S. 2283, to prohibit the procurement of certain items containing perfluorooctane sulfonate (PFOS) or perfluorooctanoic acid (PFOA) and prioritize the procurement of products not containing PFAS, S. 2270, to establish and maintain a database within each agency for executive branch ethics records of noncareer appointees, S. 2293, to establish the Chief Artificial Intelligence Officers Council, Chief Artificial Intelligence Officers, and Artificial Intelligence Governance Boards, S. 2073, to amend title 31, United States Code, to require agencies to include a list of outdated or duplicative reporting requirements in annual budget justifications, S. 2032, to require the reduction of the reliance and expenditures of the Federal Government on legacy information technology systems, S. 1973, to require the purchase of domestically made flags of the United States of America for use by the Federal Government, S. 2256, to authorize the Director of the Cybersecurity and Infrastructure Security Agency to establish an apprenticeship program and to establish a pilot program on cybersecurity training for veterans and members of the Armed Forces transitioning to civilian life, S. 2260, to require transparency in notices of funding opportunity, and the nomination of Fara Damelin, of Virginia, to be Inspector General, Federal Communications Commission, 9:30 a.m., SD–562.

Committee on Indian Affairs: business meeting to consider S. 195, to provide compensation to the Keweenaw

Bay Indian Community for the taking without just compensation of land by the United States inside the exterior boundaries of the L'Anse Indian Reservation that were guaranteed to the Community under a treaty signed in 1854, S. 382, to take certain land in the State of Washington into trust for the benefit of the Puyallup Tribe of the Puyallup Reservation, S. 910, to amend the Grand Ronde Reservation Act, S. 1286, to amend the Siletz Reservation Act to address the hunting, fishing, trapping, and animal gathering activities of the Confederated Tribes of Siletz Indians, S. 1322, to amend the Act of August 9, 1955, to modify the authorized purposes and term period of tribal leases, S. 1987, to provide for the settlement of the water rights claims of the Fort Belknap Indian Community, S. 2273, to amend the Indian Child Protection and Family Violence Prevention Act, S. 2285, to reauthorize the Native American Housing Assistance and Self-Determination Act of 1996; to be immediately followed by a hearing to examine S. 2088, to direct the Secretary of the Interior to complete all actions necessary for certain land to be held in restricted fee status by the Oglala Sioux Tribe and Cheyenne River Sioux Tribe, 2:30 p.m., SD–628.

Committee on the Judiciary: Subcommittee on Competition Policy, Antitrust, and Consumer Rights, to hold hearings to examine trends in vertical merger enforcement, 2:45 p.m., SD–226.

Committee on Small Business and Entrepreneurship: business meeting to consider S. 38, to amend the Small Business Act to codify the Boots to Business Program, S. 77, to reauthorize the State Trade Expansion Program of the Small Business Administration, S. 609, to establish a pilot program awarding competitive grants to organizations administering entrepreneurial development programming to formerly incarcerated individuals, and other purposes, S. 673, to allow nonprofit child care providers to participate in certain loan programs of the Small Business Administration, S. 936, to amend the Small Business Act to include requirements relating to graduates of career and technical education programs or programs of study for small business development centers and women's business centers, S. 943, to increase the minimum disaster loan amount for which the Small Business Administration may require collateral, S. 1156, to establish an Office of Native American Affairs within the Small Business Administration, S. 1345, to amend the Small Business Act to enhance the Office of Credit Risk Management, to require the Administrator of the Small Business Administration to issue rules relating to environmental obligations of certified development companies, S. 1352, to amend the Small Business Investment Act of 1958 to improve the loan guaranty program, enhance the ability of small manufacturers to access affordable capital, S. 1370, to reauthorize and limit the pre-disaster mitigation program of the Small Business Administration, S. 1396, to improve commercialization activities in the SBIR and STTR programs, S. 1402, to require the Administrator of the Small Business Administration, in consultation with the Under Secretary of Commerce for Minority Business Development, to establish a grant program to create or expand programs at minority-serving institutions and historically Black colleges and universities that promote minority business ownership and entrepreneurship, S. 1458, to require the Administrator of the Small Business Administration to establish a program to assist small business concerns with purchasing cybersecurity products and services, S. 1739, to require the Administrator of the Small Business Administration to establish an Innovation Voucher Grant Program, S. 1763, to include smoke in the definition of disaster in the Small Business Act, S. 2094, to reauthorize the Interagency Committee on Women's Business Enterprise, S. 2099, to establish an Office of Community Financial Institutions within the Small Business Administration that will strengthen the ability of Community Financial Institutions to support the development of small business concerns in underserved communities, S. 2100, to amend the Small Business Investment Act of 1958 to modify fees and funding for certain small business refinancing loans and loans to qualified State or local development companies, S. 2146, to amend the Small Business Act to increase the Governmentwide goal for participation in Federal contracts by small business concerns owned and controlled by service-disabled veterans, S. 2184, to amend the Small Business Act to improve the Women's Business Center Program, S. 2185, to amend the Small Business Act to require an annual report on entrepreneurial development programs, S. 2206, to increase the guarantee amount under the Surety Bond Program of the Small Business Administration, S. 2209, to establish a veteran Federal procurement entrepreneurship training program, S. 2212, to require the Administrator of the Small Business Administration to establish an SBIC Advisory Committee, and an original bill entitled, "Community Advantage Loan Program Act", 3 p.m., SR–428A.

Select Committee on Intelligence: to receive a closed briefing on certain intelligence matters, 2:30 p.m., SH–219.

House

Committee on Appropriations, Full Committee, markup on the Interior, Environment, and Related Agencies FY 2024 Appropriations Bill, 10 a.m., 2359 Rayburn.

Committee on Armed Services, Subcommittee on Military Personnel, hearing entitled "Admissions, Curriculum, and Diversity of Thought at the Military Service Academies", 2 p.m., 2118 Rayburn.

Committee on Energy and Commerce, Full Committee, markup on H.R. 824, the "Telehealth Benefit Expansion for Workers Act of 2023"; H.R. 3226, the "Prematurity Research Expansion and Education for Mothers who deliver Infants Early (PREEMIE) Reauthorization Act of 2023"; H.R. 3838, the "Preventing Maternal Deaths Reauthorization Act of 2023"; H.R. 3843, the "Action for Dental Health Act of 2023"; H.R. 3884, the "Sickle Cell Disease and Other Heritable Blood Disorders Research, Registry Reauthorization Act of 2023"; H.R. 3391, the "Gabriella Miller Kids First Research Act 2.0"; H.R. 3836, the "Medicaid Primary Care Improvement Act"; H.R. 4531, the "Support for Patients and Communities Reauthorization Act"; H.R. 4529, the "Public Health Guidance Transparency and Accountability Act of 2023"; H.R. 4381, the "Public Health Emergency Congressional

Review Act''; H.R. 3813, the ''CDC Leadership Accountability Act of 2023''; H.R. 4421, the ''Preparing for All Hazards and Pathogens Reauthorization Act''; H.R. 4420, the ''Preparedness and Response Reauthorization Act''; and H.R. 3887, the ''Children's Hospital GME Support Reauthorization Act of 2023'', 10 a.m., 2123 Rayburn.

Committee on Homeland Security, Full Committee, hearing entitled ''Biden and Mayorkas' Open Border: Advancing Cartel Crime in America'', 2 p.m., 310 Cannon.

Committee on House Administration, Subcommittee on Oversight, hearing entitled ''Oversight of the U.S. Capitol Police Office of Inspector General'', 2 p.m., 1310 Longworth.

Committee on the Judiciary, Full Committee, markup on H.R. 1631, the ''Protecting and Enhancing Public Access to Codes Act''; H.R. 4250, the ''Protect Reporters from Exploitative State Spying (PRESS) Act''; and H.R 4639, the ''Fourth Amendment Is Not For Sale Act'', 9 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, markup on H.R. 1607, to clarify jurisdiction with respect to certain Bureau of Reclamation pumped storage development, and for other purposes; H.R. 2839, to amend the Siletz Reservation Act to address the hunting, fishing, trapping, and animal gathering rights of the Confederated Tribes of Siletz Indians, and for other purposes; and H.R. 4374, the ''Energy Opportunities for All Act'', 9:15 a.m., 1324 Longworth.

Committee on Oversight and Accountability, Full Committee, hearing entitled ''Hearing with IRS Whistleblowers About the Biden Criminal Investigation'', 1 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Full Committee, hearing entitled ''Members' Day Hearing: House Committee on Science, Space, and Technology'', 2 p.m., 2318 Rayburn.

Committee on Small Business, Subcommittee on Oversight, Investigations, and Regulations, hearing entitled ''Burdensome Red Tape: Overregulation in Health Care and the Impact on Small Businesses'', 9:30 a.m., 2360 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity, markup on H.R. 3848, the ''HOME Act of 2023''; H.R. 3874, the ''Veterans Education Assistance Improvement Act''; H.R. 3898, the ''Transcript Assurance for Heroes Act''; H.R. 3900, to amend title 38, United States Code, to establish certain rights for spouses of members of the uniformed services; H.R. 3933, the ''TAP Promotion Act''; H.R. 3943, the ''Servicemember Employment Protection Act of 2023''; and H.R. 3981, the ''Veterans Education Oversight Expansion Act'', 9 a.m., 360 Cannon.

Subcommittee on Oversight and Investigations, markup on H.R. 592, the ''Department of Veterans Affairs Electronic Health Record Modernization Improvement Act''; H.R. 608, to terminate the Electronic Health Record Modernization Program of the Department of Veterans Affairs; H.R. 1659, the ''Department of Veterans Affairs IT Modernization Improvement Act''; H.R. 2499, the ''VA Supply Chain Management System Authorization Act''; H.R. 4278, the ''Restore Department of Veterans Affairs Accountability Act''; H.R. 196, the ''Expediting Temporary Ratings for Veterans Act''; H.R. 4461, the ''Modernizing Department of Veteran Affairs Disability Benefit Questionnaires Act''; H.R. 3504, the ''VA Medical Center Security Report Act''; H.R. 2733, the ''Department of Veterans Affairs Office of Inspector General Training Act''; and H.R. 4225, the ''VA Acquisition Review Board Act'', 2 p.m., 360 Cannon.

Committee on Ways and Means, Subcommittee on Tax, hearing entitled ''Biden's Global Tax Surrender Harms American Workers and Our Economy'', 2 p.m., 1100 Longworth.

CONGRESSIONAL PROGRAM AHEAD

Week of July 19 through July 21, 2023

Senate Chamber

On *Wednesday*, Senate will continue consideration of the motion to proceed to consideration of S. 2226, National Defense Authorization Act, post-cloture.

At 11 a.m., His Excellency Isaac Herzog, President of Israel, will address a Joint Meeting of Congress in the Hall of the House of Representatives. Senators should gather in the Senate Chamber at 10:20 a.m. and will proceed as a body to the House Chamber at 10:30 a.m.

During the balance of the week, Senate may consider any cleared legislative and executive business.

Senate Committees

(Committee meetings are open unless otherwise indicated)

Committee on Agriculture, Nutrition, and Forestry: July 19, Subcommittee on Rural Development and Energy, to hold hearings to examine rural water, focusing on modernizing our community water systems, 3 p.m., SR–328A.

Committee on Appropriations: July 19, Subcommittee on Financial Services and General Government, to hold hearings to examine the FY 2024 budget for the Securities and Exchange Commission, 2:45 p.m., SD–124.

July 20, Full Committee, business meeting to markup an original bill entitled, ''Energy and Water Development Appropriations Act'', an original bill entitled, ''State, Foreign Operations, and Related Programs Appropriations Act'', and an original bill entitled, ''Transportation, Housing and Urban Development, and Related Agencies Appropriations Act'', 10:30 a.m., SD–106.

Committee on Armed Services: July 20, to hold hearings to examine the nomination of Lieutenant General Timothy D. Haugh, USAF, to be general and Director, National Security Agency/Chief, Central Security Service Commander, United States Cyber Command, 9 a.m., SD–G50.

Committee on Banking, Housing, and Urban Affairs: July 20, to hold hearings to examine perspectives on deposit insurance reform after recent bank failures, 10 a.m., SD–538.

Committee on Commerce, Science, and Transportation: July 20, Subcommittee on Oceans, Fisheries, Climate Change, and Manufacturing, to hold an oversight hearing to examine the National Oceanic and Atmospheric Administration budget, 9:30 a.m., SR–253.

Committee on Energy and Natural Resources: July 19, Subcommittee on Water and Power, to hold an oversight hearing to examine of the Bureau of Reclamation, including S. 461, to make certain irrigation districts eligible for Pick-Sloan Missouri Basin Program pumping power, S. 482, to amend the Klamath Basin Water Supply Enhancement Act of 2000 to provide the Secretary of the Interior with certain authorities with respect to projects affecting the Klamath Basin watershed, S. 739, to clarify jurisdiction with respect to certain Bureau of Reclamation pumped storage development, S. 1118, to establish the Open Access Evapotranspiration (OpenET) Data Program, S. 1215, to require assessments of opportunities to install and maintain floating photovoltaic solar panels at Bureau of Reclamation and Corps of Engineers projects, S. 1521, to amend the Federal Power Act to modernize and improve the licensing of non-Federal hydropower projects, S. 1662, to direct the Secretary of the Interior to convey to the Midvale Irrigation District the Pilot Butte Power Plant in the State of Wyoming, S. 1955, to amend the Central Utah Project Completion Act to authorize expenditures for the conduct of certain water conservation measures in the Great Salt Lake basin, S. 2102, to provide for drought preparedness and improved water supply reliability, S. 2160, to amend the Omnibus Public Land Management Act of 2009 to authorize certain extraordinary operation and maintenance work for urban canals of concern, S. 2161, to provide financial assistance for projects to address certain subsidence impacts in the State of California, S. 2162, to support water infrastructure in Reclamation States, S. 2166, to amend the Reclamation States Emergency Drought Relief Act of 1991 and the Omnibus Public Land Management Act of 2009 to provide grants to States and Indian Tribes for programs to voluntarily repurpose agricultural land to reduce consumptive water use, S. 2169, to authorize the Secretary of the Interior to carry out watershed pilots, S. 2202, to amend the Omnibus Public Land Management Act of 2009 to authorize the modification of transferred works to increase public benefits and other project benefits as part of extraordinary operation and maintenance work, and S. 2247, to reauthorize the Bureau of Reclamation to provide cost-shared funding to implement the endangered and threatened fish recovery programs for the Upper Colorado and San Juan River Basins, 2:30 p.m., SD–366.

Committee on Environment and Public Works: July 20, to hold hearings to examine the Water Resources Development Act, focusing on non-Federal stakeholder views, 9:30 a.m., SD–406.

Committee on Finance: July 20, Subcommittee on Health Care, to hold hearings to examine the urgent need to reform the U.S. transplant system, focusing on the cost of inaction, 10 a.m., SD–215.

Committee on Health, Education, Labor, and Pensions: July 20, business meeting to consider S. 2333, to reauthorize certain programs under the Public Health Service Act with respect to public health security and all-hazards preparedness and response, and other pending calendar business, 10:30 a.m., SD–430.

Committee on Homeland Security and Governmental Affairs: July 19, business meeting to consider S. 1253, to increase the number of U.S. Customs and Border Protection Customs and Border Protection officers and support staff and to require reports that identify staffing, infrastructure, and equipment needed to enhance security at ports of entry, S. 1444, to increase the pay and enhance the training of United States Border Patrol agents, S. 2251, to improve the cybersecurity of the Federal Government, S. 2291, to establish the Northern Border Coordination Center, S. 2289, to direct the Director of the Information Security Oversight Office to assess foreign influence in the National Industrial Security Program and to develop a single, integrated strategy to better identify and mitigate such foreign influence, S. 2278, to establish Image Adjudicator and Supervisory Image Adjudicator positions in the U.S. Customs and Border Protection Office of Field Operations, S. 2248, to require a pilot program on the use of big data analytics to identify vessels evading sanctions and export controls and to require a report on the availability in the United States of emerging and foundational technologies subject to export controls, S. 2272, to amend title 5, United States Code, to provide for special base rates of pay for wildland firefighters, S. 1332, to require the Office of Management and Budget to revise the Standard Occupational Classification system to establish a separate code for direct support professionals, S. 2219, to amend the Congressional Accountability Act of 1995 to expand access to breastfeeding accommodations in the workplace, S. 2292, to improve the transparency of purchases by the Federal Government of data or information that can be used to identify an individual, S. 2286, to improve the effectiveness and performance of certain Federal financial assistance programs, S. 1524, to ensure that whistleblowers, including contractors, are protected from retaliation when a Federal employee orders a reprisal, S. 2283, to prohibit the procurement of certain items containing perfluorooctane sulfonate (PFOS) or perfluorooctanoic acid (PFOA) and prioritize the procurement of products not containing PFAS, S. 2270, to establish and maintain a database within each agency for executive branch ethics records of noncareer appointees, S. 2293, to establish the Chief Artificial Intelligence Officers Council, Chief Artificial Intelligence Officers, and Artificial Intelligence Governance Boards, S. 2073, to amend title 31, United States Code, to require agencies to include a list of outdated or duplicative reporting requirements in annual budget justifications, S. 2032, to require the reduction of the reliance and expenditures of the Federal Government on legacy information technology systems, S. 1973, to require the purchase of domestically made flags of the United States of America for use by the Federal Government, S. 2256, to authorize the Director of the Cybersecurity and Infrastructure Security Agency to establish an apprenticeship program and to establish a pilot program on cybersecurity training for veterans and members of the Armed Forces

transitioning to civilian life, S. 2260, to require transparency in notices of funding opportunity, and the nomination of Fara Damelin, of Virginia, to be Inspector General, Federal Communications Commission, 9:30 a.m., SD–562.

Committee on Indian Affairs: July 19, business meeting to consider S. 195, to provide compensation to the Keweenaw Bay Indian Community for the taking without just compensation of land by the United States inside the exterior boundaries of the L'Anse Indian Reservation that were guaranteed to the Community under a treaty signed in 1854, S. 382, to take certain land in the State of Washington into trust for the benefit of the Puyallup Tribe of the Puyallup Reservation, S. 910, to amend the Grand Ronde Reservation Act, S. 1286, to amend the Siletz Reservation Act to address the hunting, fishing, trapping, and animal gathering activities of the Confederated Tribes of Siletz Indians, S. 1322, to amend the Act of August 9, 1955, to modify the authorized purposes and term period of tribal leases, S. 1987, to provide for the settlement of the water rights claims of the Fort Belknap Indian Community, S. 2273, to amend the Indian Child Protection and Family Violence Prevention Act, S. 2285, to reauthorize the Native American Housing Assistance and Self-Determination Act of 1996; to be immediately followed by a hearing to examine S. 2088, to direct the Secretary of the Interior to complete all actions necessary for certain land to be held in restricted fee status by the Oglala Sioux Tribe and Cheyenne River Sioux Tribe, 2:30 p.m., SD–628.

Committee on the Judiciary: July 19, Subcommittee on Competition Policy, Antitrust, and Consumer Rights, to hold hearings to examine trends in vertical merger enforcement, 2:45 p.m., SD–226.

July 20, Full Committee, business meeting to consider S. 359, to amend title 28, United States Code, to provide for a code of conduct for justices of the Supreme Court of the United States, and the nomination of Julia Kathleen Munley, to be United States District Judge for the Middle District of Pennsylvania, 9:30 a.m., SH–216.

Committee on Small Business and Entrepreneurship: July 19, business meeting to consider S. 38, to amend the Small Business Act to codify the Boots to Business Program, S. 77, to reauthorize the State Trade Expansion Program of the Small Business Administration, S. 609, to establish a pilot program awarding competitive grants to organizations administering entrepreneurial development programming to formerly incarcerated individuals, and other purposes, S. 673, to allow nonprofit child care providers to participate in certain loan programs of the Small Business Administration, S. 936, to amend the Small Business Act to include requirements relating to graduates of career and technical education programs or programs of study for small business development centers and women's business centers, S. 943, to increase the minimum disaster loan amount for which the Small Business Administration may require collateral, S. 1156, to establish an Office of Native American Affairs within the Small Business Administration, S. 1345, to amend the Small Business Act to enhance the Office of Credit Risk Management, to require the Administrator of the Small Business Administration to issue rules relating to environmental obligations of certified development companies, S. 1352, to amend the Small Business Investment Act of 1958 to improve the loan guaranty program, enhance the ability of small manufacturers to access affordable capital, S. 1370, to reauthorize and limit the pre-disaster mitigation program of the Small Business Administration, S. 1396, to improve commercialization activities in the SBIR and STTR programs, S. 1402, to require the Administrator of the Small Business Administration, in consultation with the Under Secretary of Commerce for Minority Business Development, to establish a grant program to create or expand programs at minority-serving institutions and historically Black colleges and universities that promote minority business ownership and entrepreneurship, S. 1458, to require the Administrator of the Small Business Administration to establish a program to assist small business concerns with purchasing cybersecurity products and services, S. 1739, to require the Administrator of the Small Business Administration to establish an Innovation Voucher Grant Program, S. 1763, to include smoke in the definition of disaster in the Small Business Act, S. 2094, to reauthorize the Interagency Committee on Women's Business Enterprise, S. 2099, to establish an Office of Community Financial Institutions within the Small Business Administration that will strengthen the ability of Community Financial Institutions to support the development of small business concerns in underserved communities, S. 2100, to amend the Small Business Investment Act of 1958 to modify fees and funding for certain small business refinancing loans and loans to qualified State or local development companies, S. 2146, to amend the Small Business Act to increase the Governmentwide goal for participation in Federal contracts by small business concerns owned and controlled by service-disabled veterans, S. 2184, to amend the Small Business Act to improve the Women's Business Center Program, S. 2185, to amend the Small Business Act to require an annual report on entrepreneurial development programs, S. 2206, to increase the guarantee amount under the Surety Bond Program of the Small Business Administration, S. 2209, to establish a veteran Federal procurement entrepreneurship training program, S. 2212, to require the Administrator of the Small Business Administration to establish an SBIC Advisory Committee, and an original bill entitled, "Community Advantage Loan Program Act", 3 p.m., SR–428A.

Select Committee on Intelligence: July 19, to receive a closed briefing on certain intelligence matters, 2:30 p.m., SH–219.

Special Committee on Aging: July 20, to hold hearings to examine housing accessibility and affordability for older adults and people with disabilities, 9:30 a.m., SD–366.

House Committees

Committee on the Judiciary, July 20, Select Subcommittee on the Weaponization of the Federal Government, hearing entitled "Hearing on the Weaponization of the Federal Government", 9 a.m., 2141 Rayburn.

Committee on Natural Resources, July 20, Subcommittee on Federal Lands, hearing on legislation on Military and

Veterans in Parks (MVP) Act; H.R. 1786, the "GROW Act"; H.R. 1829, to require the Secretary of Agriculture to convey the Pleasant Valley Ranger District Administrative Site to Gila County, Arizona; and H.R. 2468, the "Mountain View Corridor Completion Act", 9 a.m., 1324 Longworth.

Committee on Veterans' Affairs, July 20, Subcommittee on Oversight and Investigations; and Subcommittee on Technology Modernization, joint hearing entitled "VA Contracting: Challenges in Competition and Conflicts of Interest", 9:30 a.m., 360 Cannon.

Select Committee on the Strategic Competition Between the United States and the Chinese Communist Party, July 20, Full Committee, hearing entitled "The Biden Administration's PRC Strategy", 8 a.m., 390 Cannon.

Next Meeting of the **SENATE**

9:45 a.m., Wednesday, July 19

Senate Chamber

Program for Wednesday: Senate will continue consideration of the motion to proceed to consideration of S. 2226, National Defense Authorization Act, post-cloture.

At 11 a.m., His Excellency Isaac Herzog, President of Israel, will address a Joint Meeting of Congress in the Hall of the House of Representatives. Senators should gather in the Senate Chamber at 10:20 a.m. and will proceed as a body to the House Chamber at 10:30 a.m.

(Senate will recess from 1 p.m. until 2:15 p.m. for their respective party conferences.)

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Wednesday, July 19

House Chamber

Program for Wednesday: Joint Meeting to receive His Excellency Isaac Herzog, President of the State of Israel. Complete consideration of H.R. 3941—Schools Not Shelters Act.

Consideration of H.R. 3935—Securing Growth and Robust Leadership in American Aviation Act.

Extensions of Remarks, as inserted in this issue

HOUSE

Allred, Colin Z., Tex., E689
Balint, Becca, Vt., E689
Bentz, Cliff, Ore., E687, E687
Dingell, Debbie, Mich., E689
Gallego, Ruben, Ariz., E687
Garamendi, John, Calif., E687
Higgins, Brian, N.Y., E689
Jackson Lee, Sheila, Tex., E690, E691, E693
Kelly, Mike, Pa., E689
LaHood, Darin, Ill., E688
Luetkemeyer, Blaine, Mo., E687, E689
Meeks, Gregory W., N.Y., E688
Norcross, Donald, N.J., E688
Rogers, Mike, Ala., E689
Ryan, Patrick, N.Y., E690
Wilson, Joe, S.C., E690

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